

REPORT OF THE COMMITTEE
APPOINTED TO INVESTIGATE THE
Railroad Riots

IN JULY, 1877.

*Read in the Senate and House of Representatives
May 23, 1878.*

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No. 29.

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Mr. Reyburn, from the committee appointed to investigate the causes of the riots in July last, made a report; which was read as follows, viz:

*To the Honorable the Senate and House of Representatives of the
Commonwealth of Pennsylvania:*

The committee appointed on the 3d day of February last, by virtue of a concurrent resolution of your honorable bodies, which resolution reads as follows, viz:

"*Resolved*, That a committee consisting of five members of the House of Representatives and three Senators, none of whom shall be from any of the counties in which said riots occurred, be appointed, whose duty it shall be to examine into all the circumstances attending the late disturbance of the peace in certain parts of the Commonwealth, known as the railroad riots, and endeavor, if possible, to ascertain the causes, and by what authority the troops of the State were called out, for what purpose, and the service and conduct of the same; and said committee shall have power, in pursuing their investigations, to send for persons and papers, examine witnesses under oath or affirmation, administer oaths, and employ a competent phonographer to take all the proceedings of the committee, and the testimony; the committee shall report in full, in writing, to the Senate and House of Representatives within twenty days, &c.,"

Beg leave to submit the following report, viz:

On the 4th day of February, 1878, the committee met at Harrisburg, and organized by the election of William M. Lindsey as chairman, Samuel B. Collins as clerk and stenographer, and J. J. Cromer as sergeant-at-arms. At said meeting it was also decided to commence taking testimony, first at Pittsburgh, that being the point where the first, and by far the most serious, riots occurred.

Your committee arrived at Pittsburgh at half-past eleven, P.M., February 5th, and on the 6th instant met at the orphans' court-room in said city, the authorities having kindly tendered the use of the same to the committee for the purposes of the investigation, and discussed the manner in which the

testimony should be taken, and what class of witnesses should be subpœnaed, whereupon it was decided that the chairman should conduct the examination of the witnesses generally on behalf of the committee, and that all citizens who knew any facts of importance should be subpœnaed to testify and to furnish to the committee the names of those known to possess valuable information. The taking of testimony was commenced on February 7th, and proceeded with as promptly as possible. After a =week's continuous work it became evident to the committee that they could not accomplish the work required of them and report within the time named in the above resolution. They therefore returned to the capital and presented to your honorable body a preliminary report setting forth what they had done, and what was still necessary to be done to complete the work required of them, when the following resolution was adopted by the Senate and House of Representatives:

Resolved, (if the Senate concur), That the joint committee of the Senate and House of Representatives, appointed to investigate the late railroad riots, etc., be and are hereby authorized to pursue their investigations according to the plan indicated in their preliminary report, and that to this end an extension of time over and above the limitation of twenty days of the resolution under which they are acting be given and granted under this direction, that the committee make a full and thorough inquiry, and report as soon as practicable. The committee afterwards took testimony at Harrisburg, at Philadelphia, at Scranton, and at Reading, and have made as thorough an investigation of the matter submitted to them as they reasonably could. As the result of the testimony taken, your committee is of the opinion that the following state of facts has been proved, viz:

The Pennsylvania Railroad Company, some time after the panic in 1873, reduced the wages of its employés ten per cent., and on account of the general decline in business made another reduction of ten per cent., which took effect on the 1st day of June, A.D. 1877; these reductions to apply to all employés, from the president of the company down to those whose wages by the month or otherwise amounted to one dollar per day or less.

These reductions applied not only to the Pennsylvania railroad proper, but also to the roads which were run by the Pennsylvania Company, a corporation controlling several railroads, including the Pittsburgh, Fort Wayne and Chicago railroad and the Pan Handle railroad, each having one of its *termini* at Pittsburgh, and running these railroads in connection with the Pennsylvania railroad, and all being practically under one management.

These were not the only railroads in the country to reduce the wages of employés, a reduction of ten per cent. having gone into effect on the New York Central railway on the 1st day of July, A.D. 1877, and a similar reduction on the Baltimore and Ohio railroad on the 16th day of July, A.D. 1877; your committee having no information as to whether or not any prior reduction had been made by the last named roads. In consequence of these reductions of wages a great deal of dissatisfaction was produced among the employés of the roads, especially those known as trainmen, consisting of freight engineers, firemen, conductors, brakemen, and flagmen.

These employés had consulted together in relation to the question of wages, and as the result of these consultations, a committee had been appointed some time the latter part of May, composed principally of engineers, who waited on Thomas A. Scott, President of the Pennsylvania Railroad Company, and stated the position of the men and their alleged grievances. Colonel Scott talked frankly with the committee, and stated the position of the railroad company, which was, in substance, that in consequence of the depression in all branches of trade, commerce, and manufactures throughout the country, the business of the company had so fallen off that it became a matter of necessity to reduce the wages of the employés, and, that as soon as the business of the company would warrant it the wages would be increased. The committee expressed their satisfaction at the statement made by Colonel Scott, and said they would go back to Pittsburgh and report the same to the employés, and that everything would be satisfactory and all right thereafter. The committee retired, and soon returned with their views set forth in writing, and signed by them, stating that their conference with Colonel Scott had proved satisfactory, and that his propositions were acceptable to the committee. No complaint as to wages was made thereafter

by any of the employés of the Pennsylvania Railroad Company or of the Pennsylvania Company to any of the proper officers until after the strike of July 19th.

Immediately after the order for the ten per cent. reduction, to go into effect on June 1st, 1877, was issued, the employés of the different railroads having their termini at Pittsburgh, commenced agitating the question of a strike on account of said reduction, which agitation resulted in the organization of "The Train Men's Union," a secret, oath-bound society, the declared object of which was the protection of its members, in all lawful ways, by combination, but more particularly to bring the railroad companies to terms by all striking on a given day, and leaving the railroads with no men of experience to run the trains. The first meeting to organize a lodge of the society was held in Allegheny City, on the 2d day of June, A.D. 1877, and the first person to take the oath of membership was R. A. Ammon, better known as "Boss Ammon," then a brakeman on the Pittsburgh, Fort Wayne and Chicago railroad, who had been in the employ of the company about nine months. Boss Ammon seems to have been the leading spirit of the society, and he was immediately appointed as general organizer, to go out and organize branches of the Union on all the leading trunk lines of the country, especially on those centering at Pittsburgh. In a short time the Union was in full working order on the Pennsylvania railroad, the Pittsburgh, Fort Wayne and Chicago railroad, the Baltimore and Ohio railroad, the New York Central railroad, the Erie railway, and the Atlantic and Great Western railway, and some others, and a general strike by the members of the Union was arranged to take place on the 27th of June, A.D. 1877, at twelve o'clock, noon. The report of the committee of engineers of the result of their conference with Colonel Scott was not satisfactory to the members of the Union, they believing, or at least saying, that the engineers were only looking after their own interests and taking care of themselves, and therefore the action of the committee did not arrest the preparations going on within the Union for the proposed strike. Allegheny City was the headquarters of the organization, and it was here that the general arrangements for the operations of the Union were perfected, the members claiming that at least three fourths of all the train men, whose headquarters

were at the two cities of Pittsburgh and Allegheny City, belonged to the organization. The proposed strike on the 27th of June was to take place on the Pennsylvania railroad, the Pittsburgh, Fort Wayne and Chicago railroad, the Allegheny Valley railroad, Pan Handle railroad, and the branches of the roads named, the Union having been more thoroughly and better organized on these roads than on any others, and the movements were to be directed from Allegheny City. Other roads were to be brought into the strike as fast as possible, so as to make it general and comprehensive.

In accordance with this plan of operations, on Sunday, June 24th, some forty members of the Union were sent out on the different lines centering at Pittsburgh, to notify the members on these roads of the time for the strike to take place, and to make the necessary arrangements to make it a success. On Monday night, June 25th, a meeting of the members of the Union on the Pan Handle division was held, and it was there developed that a portion of them were dissatisfied with the proposed strike, and trouble ensued on this account. It was also ascertained that some member or members had divulged the plans of the Union to the railroad officials, and that the latter were taking measures to counteract and defeat the strike. The moving spirits saw at once that with divided counsels, and their plans known to the railroad officials, the strike, if commenced, would prove a failure, and measures were at once adopted to prevent it from taking place by writing and sending word to all points possible in the short time left. The strike did not take place on the 27th, and the members of the Union felt as if they had met with a defeat, which left a sore spot in their bosoms, and which rankled for a long time. It may be well to state here that the subsequent strike on the Baltimore and Ohio railroad, at Martinsburg, West Virginia, on the 16th of July, and the strike at Pittsburgh, on July 19th, was not a strike of the Trainmen's Union, nor did the Union, as an organization, have anything to do with either, there having been no meeting of the society either at Pittsburgh or Allegheny City, after the 27th of June, 1877, up to that time. The main and almost the only grounds for the proposed strike was the ten per cent. reduction of wages, although some complaint was made of the abuse of power and overbearing actions of the minor railroad officials. Some time in July, 1877, the Pennsylvania Railroad Company issued an

order that all freight trains from Pittsburgh east to Derry should be run as "double-headers," the order to take effect on the 19th of that month.

A so called "double-header" consists of thirty four cars, and is hauled by two engines, a single train consisting of seventeen cars, hauled by one engine. This was one of the measures of economy adopted by the company in consequence of the great reduction in business, caused by the financial situation of the country, and the reduced rates at which the business was done, caused by the great competition of the different railroads to secure business, and would enable the company to dispense with the services of one half of their freight conductors, brakemen, and flagmen on the Pittsburgh division of the road between that place and Derry, as only one set of men, aside from the engineers and firemen, were used on a "double-header." One engine could haul the same train from Derry to Philadelphia that it took two engines to haul from Pittsburgh to Derry. "Double-headers" had been previously run between these two points, especially coal trains, but no general order for all freight trains to run as "double-headers" had ever before been issued. In selecting men to discharge under the order to run "double-headers," single men, and men who had been the shortest time in the employ of the company, were chosen, and the men with families, and old men, were kept so far as they could be. Quite a number of men had been discharged by the company prior to this time, some for cause, and more on account of the decrease in business since the panic of 1873; and the company had still in its employ many more men than could be employed at full time, keeping them along and allowing them each to work a portion of the time, probably believing in the old adage that "half a loaf is better than no bread."

Robert Pitcairn, the general agent and superintendent of the Pittsburgh division of the Pennsylvania railroad, had leave of absence for a short time, to commence on the 19th of July, and that morning he left for the east with his family, over the Pennsylvania railroad, no complaint, as he says, having been made to the officers of the company by the men, on account of the order to run "double-headers," and he having no knowledge or suspicion that any trouble was brewing or expected. The early morning freight trains

left Pittsburgh as "double-headers," but when the time (8.40 A.M.) came for the next train to leave, the men (two brakemen and one flagman) refused to go out on a "double-header," and the train did not go. The conductor notified the dispatcher that the men had struck, and the dispatcher undertook to find men who would go, but all the train men refused. He then made up two crews from the yard men, and gave orders for the engine to back down and couple on the train, when the striking men, led by one Andrew Hice, threw coupling pins and other missiles at the brakeman who was attempting to couple on the engine, one of which hit him, and, in the words of one witness, he had to run for his life. There was some twenty or twenty-five men in the crowd at this time; all men in the employ of the railroad company. The strikers took possession of the switches over which the trains would have to move, and refused to let any train pass out, and their number was from this time gradually increased by the addition of the men who came in on freight trains, who were induced to join the strikers as fast as they came in. Between ten and eleven o'clock, A.M., David M. Watt, chief clerk of the Pittsburgh division, who was acting in place of Mr. Pitcairn in his absence, went to the mayor's office and asked for ten policemen to be sent up to the yard of the company, to protect the men who were willing to go out on the trains, and arrest any one who should commit a breach of the peace, telling the mayor that, in his opinion, ten good men, with his (the mayor's) presence, would be sufficient for the purpose.

The mayor answered that he did not have the men; that the day force, with the exception of nine men, had some time previously been discharged by the action of the city council, and he could not send the night force, and also refused to go himself, saying he had other business, and it was not necessary for him to be there. He said, however, that they might get some of the discharged men to go, if Mr. Watt would become responsible for their pay, to which Mr. Watt assented, and the ten men were found, sent out under charge of Officer Charles McGovern. This force went along with Mr. Watt to the Twenty-eighth street crossing, the scene of the difficulty, and five of the police were placed at one switch just above Twenty-eighth street, and Officer McGovern with the balance took possession of a switch just

below Twenty-eighth street. An engine was there ready to back down and couple on to the train, and Mr. Watt gave orders to one of his men to open the switch, so the engine could run down on the proper track, but the man refused, saying he was afraid he would be injured by the strikers if he did so. Mr. Watt then stepped up and said "I will open the switch," when a brakeman by the name of Davis stepped in front of him, and said "boys we might as well die right here," and made some demonstrations. At this moment a man named McCall, standing behind Davis, struck Mr. Watt in the eye; that ended the attempt to open the switch at that time. After some difficulty and considerable chasing, McCall was arrested by the police, and taken to the lock-up. At this time, between twelve and one o'clock, P.M., there was about one hundred persons in the crowd, about one half of which were mere spectators. Twenty-five or thirty of the strikers attempted to prevent McCall's arrest by dodging around in the way, and by coaxing the police to let him alone. A few stones were thrown, but no very serious efforts were made beyond this by the strikers at this time. Soon after this, Mr. Watt sent one of his men to the mayor's office for fifty more policemen, and in answer to this call some five or six men came out about one, P.M., in charge of Officer White. With these men, Mr. Watt went out to the stock-yards, at Torrens station, a distance of five and one tenth miles from the Union depot, to see if the stock trains at that place, which had been some time loaded, could be got off.

At this place there was a large crowd of persons, a large portion of whom were either present employés of the railroad company or were discharged men, and others were unknown to the railroad officials. One train of stock was coupled on by the yard engine, and run out by stratagem before the crowd were aware that it was an attempt to send the train east, and this was the last freight train that was forwarded, until after the troubles were over. About four, P.M., another attempt to move a stock train from Torrens was made, but the engineers all refused to undertake to couple on to the train, as they had all been threatened by the strikers, and were afraid of their lives, and at any move made by the engineer the crowd would interfere, so that the crew gave up their trains. Mr. Watt returned to Pittsburgh, and the stock

was unloaded. Mr. Watt, on his return to Pittsburgh, went again to the mayor's office, about five, P.M., and asked for one hundred or one hundred and fifty police. The mayor was not in, having gone, as he testified, to Castle Shannon, to see his wife, who was sick. The mayor's clerk was at the office, and informed Mr. Watt that the men could not be furnished, that the day force of nine men in all were all busy, that the night force, which consisted of one hundred and twenty-two men, were not yet on duty, and could not be spared to be sent out to the scene of the disturbances, as they must be kept in the thicker portions of the city, and advised Mr. Watt to call on the sheriff of the county for assistance. On Friday morning, July 20, A. J. Cassatt sent David Stewart, of Pittsburgh, to invite the mayor to come to the Union depot, as he wished to consult him in regard to the situation, and had sent a carriage to convey him to the depot. The mayor replied that he would have nothing to do with it; the whole matter was taken out of his hands; they had no business to bring troops there. Mr. Stewart asked him if he would see Mr. Cassatt, if he would bring him down to the mayor's office. His answer was: "No, I will have nothing to do with it," and he turned and left. It will be noticed that this was some time before any troops were brought there, and a day and a half before the Philadelphia troops arrived. This ended the call, by the railroad officials, on the mayor for assistance to disperse the crowd interfering with their property, although, on that day, warrants were placed in the hands of the police for the arrest of some fifteen or twenty of the ringleaders of the strike, and after this time there does not appear to have been any very serious attempt made by the mayor or police to assist in quelling the riots. The whole extra force raised by the mayor, as testified to by J. J. Davis, clerk of the chief of police, for whom bills were sent in for pay, was twenty-nine men.

During the afternoon of the 19th of July, one or two attempts were made to start freight trains from Twenty-eighth street, but when the engine was started some of the crowd would step in front of it, swing their hands, and the engineer would leave his engine, and soon all efforts to start trains from this place were abandoned for that day.

Although the engineers and firemen and some of the conductors and brakemen professed to be willing to run at any time, yet, on the slightest demonstration being made by any of the strikers, they would abandon their engines and trains without making one decent effort to do their duty. The railroad officials claimed that they had plenty of men willing to run out the trains if they only had the opportunity, but when the opportunity was made for them the men did not care to take advantage of it. In the meantime the crowd was increasing at Twenty-eighth street, and Mr. Watt, after he left the mayor's office, went to the sheriff's office, and not finding him there drove to his residence, but he was not there. It was ascertained that he would be back in the course of the evening, and Mr. Watt returned to his own office.

The crowd had so increased at the Twenty-eighth street crossing that they had full possession of the railroad tracks there, and the yard engines could not be moved to transfer the cars in the yard from place to place, and orders were given to the engineers to put up their engines. Between eleven and twelve o'clock, P.M., Mr. Watt started for the sheriff's residence, and on his way called at the office of Honorable John Scott, solicitor for the Pennsylvania Railroad Company, to have that gentleman go with him. The sheriff was at home, and they called on him for protection for the property of the company, and advised him of all that had taken place up to that time. The sheriff went with them to the outer depot, near Twenty-sixth street, where they found General Pearson, who had come to Mr. Pitcairn's office to ascertain the condition of affairs, so as to report the same to Adjutant General Latta, who had telegraphed him from Philadelphia, making inquiry if he knew anything of the disturbances on the Pennsylvania railroad. Governor Hartranft was at that time out of the State, and somewhere in the West, on his way to California, and before going had given instructions to Adjutant General Latta, that in case of trouble requiring the presence of the military, he must, on the requisition of the proper civil authorities, assume the responsibility, and act as occasion demanded.

A little after midnight the sheriff, together with General Pearson, Mr. Watt, and some fifteen or twenty railroad employés, walked out to Twenty-eighth street, and there getting up on a gondola or flat car so as to be above the

crowd, addressed them, advising them to disperse and go to their homes, stating to them his duty in case they refused. The crowd refused to disperse, and hooted and yelled at the sheriff, and fired pistol shots in the air while he was addressing them. They told the sheriff to go home, that they were not going to allow any freight trains to leave until the difficulty between them and the railroad company was settled, that the mayor and policemen were on their side, and that prominent citizens had offered to assist them in provisions and money to carry on the strike. It should be here stated that there is no proof that any such offers of assistance were actually made, except that tradesmen with whom the strikers were dealing offered to trust them until they got work again, and one prominent citizen, whose name was used by the mob, came forward testified that he had never made any such offer. Some of the mob also read messages purporting to come from other places, urging them to hold their ground, and assistance in men and means would be sent them. There is no means of ascertaining whether these messages were really sent as they purported to be, or were only bogus ones, used for the purpose of firing up the mob, and inducing them to hold out in their purpose. They were probably bogus, and they, without doubt, produced the effect intended by their authors. At this time the crowd numbered some two hundred men and boys, and was composed of some railroad men, some discharged men, quite a number of mill men, (that is men from the iron mills, glass factories, &c.,) and some strangers as they were called by the witnesses, repulsive, hard looking men, probably tramps and criminals, who always flock to a scene of disturbance like vultures to the carrion. The sheriff, as he testifies, becoming satisfied that he could not raise force sufficient to control the crowd, made a call on the Governor, by telegraph, for military to suppress the riot. The sheriff at this time had made no effort whatever to raise a posse to disperse the mob, and in view of subsequent developments it is probable that such an effort would have been futile. The copy of the telegram of the sheriff to the Governor is given in the report of the Adjutant General for 1877, as are also copies of all other telegrams sent and received by him during the troubles, and most of them in the evidence taken by your committee, and therefore they need not be copied here.

In view of the absence of the Governor, the telegram was also sent to the Secretary of the Commonwealth, and the Adjutant General, the one to the latter reaching him at Lancaster on his way to Harrisburg. General Latta immediately telegraphed General Pearson, who held the rank of major general, and commanded the Sixth division, National Guard, with headquarters at Pittsburgh, to assume charge of the military situation, place one regiment on duty, and if he found one regiment not sufficiently strong, to order out the balance of the division and to report generally. General Pearson immediately ordered out the Eighteenth regiment, Colonel P. N. Guthrie, and this order was soon followed by one ordering out the Fourteenth regiment, Colonel Gray, the Nineteenth regiment, Colonel Howard, and Hutchinson's battery in command of Captain Breck. These orders were responded to very slowly, as it was in the night time, and the men were scattered about the city, and some companies were made up of men at some little towns outside of the city. Colonel Guthrie resides at East Liberty, and received his orders about half past four, A.M., on the 20th. He at once notified his officers, and they notified the men, but as it was too early to be able to get messengers the colonel had to go personally to the officers and it was about twelve o'clock, noon, when the regiment reported at the Union depot hotel two hundred and fifty strong. This regiment was ordered out to Torrens Station to protect property and clear the track at the stock yards, and on its arrival there, at half past one, found a crowd of from twelve hundred to fifteen hundred persons assembled. The regiment had no difficulty in getting into proper position, and Colonel Guthrie then lay in position waiting further orders. It was understood between General Pearson and Colonel Guthrie that the Fourteenth and Nineteenth regiments and the battery should clear the track at Twenty-eighth street, and protect the men on the trains in getting them started, and that Colonel Guthrie should clear the track at Torrens and protect the trains in passing that place. The Fourteenth and Nineteenth regiments assembled very slowly, and it was not until about five P.M., that General Brown, commanding the brigade, got together three or four companies, and these not half full, and marched out to Twenty-eighth street. Before taking a position there, he received orders from General Pearson to return to the Union depot, as he had not force

sufficient to accomplish anything, and accordingly he returned with his command.

In the meantime, General Pearson, fearing that the majority of the men in these regiments sympathized with the strikers, telegraphed Adjutant General Latta to that effect, and suggested that troops from Philadelphia should be sent on, and gave it as his opinion that two thousand troops would be needed to disperse the mob, as it was now (six thirty-five, P.M.,) very large (four thousand to five thousand men) and increasing hourly. General Latta at once telegraphed Major General Brinton, commanding the First division of the National Guard, at Philadelphia, to get his command ready to move to Pittsburgh. General Brinton received this order in the evening, and at two o'clock on the morning of the 21st he had six hundred men at the railroad depot ready to start. At Harrisburg, General Brinton received some ammunition and two Gatling guns, and reached Pittsburgh at one, P.M., and reported to General Latta at the Union depot hotel, and there distributed twenty rounds of ammunition to his men. In order to understand the situation of things and the future movements of the troops, a description of the depots, buildings, tracks, and surroundings of the Pennsylvania railroad property at Pittsburgh is here necessary. The Union depot was situated between Seventh and Eighth streets, and from this place the line of the railroad ran eastwardly, at the foot of a steep bluff, from one hundred and fifty to two hundred feet high on the right, and with Liberty street on the left. There were a great number of tracks running side by side out to and some distance beyond Twenty-eighth street, with numerous switches in order that the tracks might be used conveniently, and many of these tracks were filled with cars, passenger and baggage cars near the depot, and freight cars further out. The outer depot, lower round house, machine shops, &c., were situated at and near Twenty-sixth street, about a mile from the Union depot, some other shops were scattered along there to Twenty-eighth street, near which street was what was called the upper round-house. From Twenty-eighth street down to the Union depot the tracks were several feet higher than Liberty street, and a strong wall was built up at the side of Liberty street to support the embankment and keep it from caving into the

street. At Twenty-eighth street there was a crossing much used, the bluff not being as steep or as high here as it is further down, and the hill is ascended by a diagonal road or path from the crossing.

About two o'clock, A.M., of the 21st, the Nineteenth regiment and Breck's battery were sent out to Twenty-eighth street, the battery to take a position at the foot of the bluff, near the crossing, and the regiment a position on the side hill, a little above and commanding the crossing. About four, A.M., of the same day, the Fourteenth regiment was sent out, and ordered to take a position higher up the hill, and above the Nineteenth regiment, and the orders given by General Pearson were to hold this position, and keep the Twenty-eighth street crossing and the tracks in the vicinity clear of the crowd. This Twenty-eighth street crossing was the gathering point of the mob, and but very little effort seems to have been made during the day (the 21st) to carry out General Pearson's order. A few times in the forenoon one or two companies were ordered down, across the tracks at the crossing, and back again, and for the time would clear away the crowd in their immediate path, but as no effort was made to hold the crossing, nor to clear the tracks on each side of it, the effort amounted to nothing, and when the soldiers went back to their position on the hill the crowd would again resume possession of the ground cleared. The soldiers also fraternized with the mob. Most of the time their arms were stacked, and they were mingled indiscriminately with the crowd, lying about on the ground talking with them, and when, about four, P.M., the Philadelphia troops were marched out to Twenty-eighth street, a dense crowd filled the Twenty-eighth street crossing and vicinity, and was so mixed up with soldiers that no lines of regiments or companies could be observed, and it was with difficulty that soldiers could be discovered at all. On the morning of the 20th warrants had been issued for the arrest of some fifteen or twenty of the ringleaders of the strikers, and were placed in the hands of police officer McGovern and his men to be executed. His orders were not to attempt to execute the warrants in the crowd, as they were excited, and a collision might be provoked, and if arrests were made at all they must be made quietly. If the opportunity for quiet arrests occurred, it was not taken advantage of, for no arrests were

made, and no attempts seem to have been made to spot the men, or ascertain their whereabouts, or to do anything towards executing the warrants while they were in the hands of the officers. On the morning of the 21st, bench warrants for the arrest of the same persons were issued by Judge Ewing, and these were placed in the hands of Constable Richardson, who called on the sheriff for a posse to assist in making the arrests. The sheriff sent out ten of his deputies to raise a posse for the purpose, and the deputies claim they were vigilant and thorough in their efforts to find men willing to serve, but were unable to raise any considerable number of persons. All sorts of excuses were made, and not over ten persons in all responded. No peremptory summons or call, such as it was his right and duty to make, was ever issued by the sheriff, and, as testified by him, when he reached the Union depot with his deputies and posse, a short time before the Philadelphia troops arrived, all but six of his posse had left.

On Saturday it is the custom for the different mills and shops at Pittsburgh and vicinity to shut down about noon, or soon after; and on that eventful Saturday, July 21st, those in the neighborhood of the Twenty-eighth street crossing saw the crowd at that point suddenly and largely increased soon after the hour for shutting down the mills. A prominent manufacturer of Pittsburgh was at the Union depot on Saturday, about the time of the arrival of the Philadelphia troops, and had a talk with Mr. A. J. Cassatt, third vice president of the Pennsylvania railroad, and, in this conversation, told him that Saturday was an idle day with their workmen in Pittsburgh, and that it would be great wisdom in him to wait until Monday, when the laboring men would be at their work, before attempting to open their road; that it was natural that their home troops should sympathize with the strikers, and they could not be fully depended on in case of a riot. Mr. Cassatt refused to give any directions to delay the movements of the military, saying they had already lost a great deal of time, and it was the duty of the government to put them in possession of their property at once. General Brinton, with his command, arrived at Pittsburgh at three, P.M., and, after being furnished with coffee and sandwiches at the Union depot, were formed and marched out along the tracks to the Twenty-eighth street crossing. Before starting from

the depot, General Brinton gave orders that the mob must not be fired upon, even if they spat in the soldiers' faces, but if they were attacked, however, they must defend themselves.

The plan adopted for the afternoon's operations was for a portion of the Philadelphia troops to take possession of the premises of the railroad company at and in the vicinity of Twenty-fifth and Twenty-sixth streets, where the freight trains that had been prepared to send out stood, and clear this portion of the tracks from the crowd, so that when the tracks and switches at Twenty-eighth street were cleared and put in possession of the company, the trains could at once be moved, as the engineers and men were said to be ready to start with the trains. The balance of the Philadelphia troops were to move up to Twenty-eighth street and coöperate with the Pittsburg troops in clearing the tracks at that point, and when this was done the trains were to be started, and after a few trains had been run out it was believed that the strike would be broken up; that the strikers would see the futility of trying to resist the law when backed up by the military, and would give up the contest.

The sheriff and his deputies (he had no posse to speak of) started from the Union depot towards Twenty-eighth street, to execute the warrants in the hands of Constable Richardson, a little in advance of the Philadelphia troops, but were delayed on the way out, somewhat, by looking after men, and before arriving at Twenty-eighth street, were overtaken by the troops, but no arrests were made by them. The second division, in command of Brigadier General E. De. C. Loud, was left on Twenty-fifth and Twenty-sixth streets, with orders to disperse the crowd at that point and protect the employés in starting the trains. The order was promptly executed by throwing out skirmish lines and clearing the tracks in the vicinity of the trains. The first division brigade, under the command of General E. W. Mathews, and the battery of Gatling guns, all under command of General Brinton, marched out to near the Twenty-eighth street crossing. The command marched out by column far into the crowd as far as possible, and then General Brinton gave the command to wheel into line by the right flank, which brought one line lengthwise of the tracks, below the Twenty-

eighth street crossing, facing Liberty street, and another line was formed parallel with the first, on the opposite side of the tracks facing the hill. The crowd was ordered to disperse by the sheriff, and he was answered by hoots, jeers, and rough language. The move made by the troops had cleared the tracks between the two lines, and the crowd now began forcing itself down from Twenty-eighth street, between the lines formed each side of the tracks. General Brinton ordered two companies to form across the tracks at right angles with the two lines already formed, and between them, facing Twenty-eighth street, and to march up and press the crowd back and clear the crossing. The sheriff and his deputies had been in front up to this time, but they now took a position in rear of the two companies. General Pearson had been with the command until this time, when, seeing the size of the crowd, and its determination, he went back to Mr. Pitcairn's office to telegraph General Latta, for the purpose of having more troops ordered to the place. The two companies, in carrying out their orders, marched up against the crowd, with their pieces "arms port," and endeavored to press them back in this way, but no impression could be made on them. General Mathews, at this juncture, seeing, as he said, that the mob was firm and determined, and would not bear temporizing with, gave his men orders to load.

The two companies were then ordered to charge bayonets; many of their guns were seized and some of the bayonets nearly twisted off, but no impression was made on the crowd. While these movements were being made, the mob was becoming more and more noisy, defiant, and boisterous, and were throwing stones and other missiles at the troops, several of the latter having been hit, and one or two seriously injured. Several pistol shots were also fired by the crowd, and immediately after the pistol shots the troops commenced firing on the mob. The firing was scattering, commencing at a point near where the pistol firing took place, and running along the line in a desultory manner, until it became almost a volley for a moment. The officers ordered the firing to cease, and stopped it very soon. There is a conflict in the evidence as to whether or not an order was given the troops to fire, but the great weight of the testimony is that no such order was given. The most of those who testify that such an order was given, say

it was given by General Pearson, but General Pearson was not present when the firing took place, but was at the superintendent's office. Every person, however, from General Pearson down, who have given an opinion on the subject, say that an order to fire was justified and should have been given, and the officers in command say that the order would have been given very soon. The firing had the effect to disperse the crowd at once, they scattering in all directions, and leaving the troops in full possession of the Twenty-eighth street crossing and the tracks in the vicinity. Several persons were killed and wounded, and as is usually the case, a number of innocent people suffered. The coroner held inquests on the bodies of twenty-two persons in all, the most of whom were killed by the soldiers at this time at Twenty-eighth street, but a few were killed the following night and Sunday morning at or near Twenty-sixth street. The number cannot be ascertained with any certainty, but several were seriously injured. It is believed, by those best situated to know the facts, that a number of the mob were secretly disposed of or taken care of by their friends, and whose names have never been given. If men had been ready and willing to man the trains, they could have been sent out after the dispersal of the crowd, but the occurrence at Twenty-eighth street seems to have thrown everybody into confusion, and, as usual, the engineers and train men were glad to find some excuse for not going. No attempt seems to have been made to move the trains, which were supposed to be ready at Twenty-sixth street, and the cars remained there until they and their contents were burned. The troops remained on the ground from the time of the firing about five, P M., until about dusk, when they were ordered, by General Pearson, to move into the lower round-house and machine-shop, near Twenty-sixth street, and remain for the night, as all attempts to move trains had been abandoned, and the troops needed rest and food.

The crowd had come together again gradually, in the vicinity of the Twenty-eighth street crossing, but whenever the troops made any move towards them, they would scatter, and when the troops marched into the lower round house and machine shop, the mob took possession of, and had full sway again at the crossing. General Pearson had ordered the Fourteenth and

Nineteenth regiments to go down and take possession of the transfer depot as it was called, about two hundred yards below the lower round house, and these regiments marched down there about the time that General Brinton's command went into the round house and machine shop. Colonel Gray, at request of Colonel Howard, assumed command at the transfer depot, and held possession until about ten P.M., when General Brown came and told Colonel Gray that the place was untenable, and could not be held; that he had information which made it necessary for them to get out, and ordered the command to go to the Union depot. Colonel Gray had been disgusted at the order to leave the side hill above the Twenty-eighth street crossing, thinking it a great mistake, and was also disgusted at the order to move down to the Union depot. Colonel Gray, received orders from General Brown to disband his command, and at once called around him his officers, and protested against it. Said it was a disgrace to do so, with the mob in force in the vicinity, and a disgrace to desert the Philadelphia troops, but the order was obeyed, and the men dispersed to their homes, carrying their guns with them; about eleven P.M., General Brown testified, that leading citizens and military men advised him that it was best to disband these troops, that their being kept under arms aggravated and exasperated the mob, and that this advice coincided with his opinion, and therefore the order was given. About two hundred men were present at the time they were disbanded, nearly as many more having left from time to time, during the day and evening, and it is General Brown's opinion, that they were absent on account of their sympathy with the strikers, and not on account of fear. When these troops marched down to the transfer depot, the mob did not jeer or rail at them, as they did at all times at the Philadelphia troops, and it does not seem from the evidence, that anything had been done by them to aggravate or exasperate the mob in the least. General Pearson entered the round house with General Brinton's command, and left them about half past eight, to see about getting provisions for the men, who had received no regular meal since leaving Philadelphia. They had been furnished with coffee and sandwiches at Altoona, and the same at Pittsburgh.

On leaving, General Pearson gave General Brinton orders to hold the position until he returned, which he thought would be within an hour. On reaching Union depot General Pearson was informed that the mob was very much exasperated against him, as they held him responsible for the firing on them by the troops, and was advised by General Latta and others that his presence would still further aggravate the crowd, and that he had better retire to some place of safety until the excitement was over, which advice was followed, and he therefore did not return to General Brinton. The effort to provision General Brinton's troops was a failure, as the mob seized, used, and destroyed the food which was sent out for the purpose. The round house and machine shop overlooked Liberty street on one side, on the other side were the tracks, many of them filled with cars, and near the machine shop were piles of lumber and materials used in repairs. Pickets were put out on this side of the machine shop so as to prevent the mob from taking shelter behind the piles of lumber, and firing on the troops from these places. The mob had broken into two or three gun stores in the city between eight and nine o'clock that evening, and had, by this means, secured guns and ammunition, and soon after dark commenced firing on the round house and machine shops, firing in at the windows and at any soldiers they could get sight of, one of the mob firing an explosive bullet, which the troops could see explode every time it struck anything in their vicinity.

Two of the soldiers were wounded, one in the arm and one in the leg, during the night, which is all the casualties that occurred among them until after they left the round house and shop in the morning. About ten o'clock P.M., the mob began setting fire to the cars, and running them down the track nearest the round house, in order, if possible, to set it on fire, and thus drive out the troops. From some distance above Twenty-eighth street to below Twenty-sixth street it is down grade, and the cars will run of their own gravitation, on being started, down to and below the buildings in which the troops were located. The first car fired was a car of coal, and, after being set on fire, it was started on the down grade with one of the mob on it, and he, on arriving at the round house, broke up the car and stopped it. Other cars were fired and run down against the first one, and there was soon a string of

fire the whole length of the shops on the side next the tracks. The round house was well supplied with water, and the troops were enabled to keep the fire from communicating with the buildings during the night.

About one o'clock, on the morning of the 22d, (Sunday,) it was discovered that the mob had a field piece on Liberty street, ready to fire on the round house. By General Brinton's orders his men were stationed at the windows ready to fire, and the mob were notified to abandon the gun and not attempt to fire it, or they would be fired on. They paid no attention to the warning, and when one of them was seen with the lanyard in his hand ready to discharge the piece, orders were given the troops to fire, and several of the mob fell, and the rest ran away. Several attempts were made by the mob during the night to creep up and discharge the gun, but the soldiers kept close watch on it and allowed them no opportunity to do so. General Brinton succeeded in communicating with General Latta during the night by sending out one of his men, Sergeant Joseph F. Wilson, who, by disguising himself, succeeded in getting out and back twice, but would not undertake it again. He brought orders from General Latta to hold on as long as possible, that Guthrie had been ordered to report to him, and ought to reach him at five or six o'clock, but if compelled to escape at last, to do so to the eastward, to take Penn avenue if possible, and make for Colonel Guthrie, at Torrens. The scout, Wilson, brought in the last dispatch about two o'clock, A.M., the 22d, and this was the last communication that reached General Brinton while in the round house. The ordeal through which these men passed that night was fearful. Tired, hungry, worn out, surrounded by a mob of infuriated men, yelling like demons, fire on nearly all sides of them, suffocated and blinded by smoke, with no chance to rest, and but little knowledge of what efforts were being made for their relief, with orders not to fire on the mob unless in necessary self defense, the wonder is that they were not totally demoralized; but the evidence of all the officers is that the men behaved like veterans, obeyed all orders cheerfully and with promptness, and during the whole night but one company manifested any spirit of insubordination, and these proposed to lay down their arms and quit, as they were not allowed to use them on the mob, while the latter were

taking every opportunity of shooting down the soldiers. This insubordination was quickly brought to an end as soon as the attention of the proper officer was called to it, and when the troops marched out in the morning, no one could tell by their actions which of the men had wavered during the night. About half-past seven, Sunday morning, the 22d instant, the machine shop caught fire in many places, the roof of the round house also was on fire, and it became necessary to evacuate the buildings. The two Napoleon guns could not be removed, and were spiked, and about eight, A.M., the command marched out into the street in good, order, taking their Gatling guns with them. The mob scattered in every direction at sight of the troops coming out, and no attempt was made to molest the soldiers until they began their march eastward by Penn avenue, in pursuance of the orders received from General Latta.

After marching two or three squares, the troops were harassed by a fire in their rear. They were fired at from second story windows, from the corners of the streets, and from every place where one of the mob could fire from under cover so as to be safe himself from a return fire. They were also fired at from a police station, where eight or ten policemen stood in uniform, as they passed, and when they were a convenient distance from the station, shots were fired at them from the crowd there assembled. It is hard to believe charges of this kind, but the evidence is too positive and circumstantial to leave room for doubt. At one point, just before reaching the United States arsenal, there was some confusion among the men in the rear of the column, caused by an attack by the mob that was following up, and a halt was made, and the Gatling guns used on the attacking party, which dispersed them, and this ended all attacks on the troops. In this retreat, three of the soldiers were killed and several wounded, one of whom, Lieutenant Ashe, died a few days afterwards, at the United States arsenal. On arriving at the arsenal several of the soldiers climbed over the fence, into the grounds, and General Brinton called on the commandant, Major Buffington, for leave to feed and shelter his troops there. General Brinton and Major Buffington disagreed as to what occurred between them at that time, which question of veracity the purposes of this report does not require

us to decide, but General Brinton is corroborated by the testimony of one of his officers, and Major Buffington has no corroborating witness. The result of the conference was, that General Brinton and his well men went on, and his wounded were left, and well cared for, at the arsenal. General Brinton, hearing nothing from Colonel Guthrie, continued his march out to and through Sharpsburg, and finally brought up in the vicinity of the work-house, and encamped on the grounds near that institution, where he was furnished with rations for his men, and gave them a chance to get the rest they so much needed. These rations reached General Brinton's command during Sunday afternoon, through the personal exertions of A. J. Cassatt, who, from the time of the occupation of the round-house by the troops, had been unwearied in his endeavors to get provisions to them. The command was also furnished with blankets and other necessary camp equipments, by Colonel Thomas A. Scott, who had also been vigilant in looking after the welfare of the men, and all necessary transportation needed on their behalf, after their departure from Philadelphia, unprepared for a campaign, on account of the brief notice given them. To these two gentlemen, the friends of the National Guard owe a debt of gratitude for the personal interest taken by them, at all times, during the campaign, to render any service that lay in their power to make the men comfortable.

The destruction of the railroad property by the mob had been continued all night, the cars and goods contained in them that could not be carried off being burned as fast as they could be broken open, the goods thrown out and the cars set on fire. Crowds of men, women, and children were engaged in the work of pillage, and everything portable, of any value, was seized as fast as thrown from the cars, and carried away and secreted. One feature of the mob at Pittsburgh is new in this country. A large number of women were in the crowd at Twenty-eighth street, on Saturday, the 21st instant, and according to testimony, they talked to the sheriff, and others who tried to get the crowd to disperse, worse than the men, used viler epithets, and more indecent language, and did everything in their power to influence and excite the mob to resistance. They also, during Saturday night and Sunday, brought out tea and coffee for the men engaged in the destruction of property, and were the most active in carrying away the goods taken from

the cars. This work of pillage and destruction continued all day Sunday, and the actual destruction was participated in by only thirty to fifty men, the citizens in the meantime standing looking helplessly on, and no effort made to stay the damage by the bystanders. There was a very large crowd in the vicinity of the burning, who were supposed to be in sympathy with the destruction, and this probably deterred anyone from interfering to put a stop to it. The police, on Sunday, arrested some seventy-five persons who were carrying off goods, the arrests being made some distance from the place where the articles were taken. Those arrested were taken before Deputy Mayor Butler, and most of them were by him discharged. This seems to be all that the police did to restrain the rioting that day, and it is in evidence that one policeman in uniform got into one of the cars and threw goods out to the mob.

On Saturday morning, General Latta had sent written orders by Captain Aull to General Brinton, for the latter to make a junction with Colonel Guthrie, at Torrens, and with the whole force to march to Pittsburgh, and fearing that Captain Aull might fail to reach General Brinton, the order was read to Colonel Norris, who volunteered to go in search of General Brinton.

Colonel Norris, in company with J. M. Stewart, overtook General Brinton's command a little beyond Sharpsburg, and they both testify that Colonel Norris told General Brinton that Captain Aull had been sent by General Latta in search of him with orders, and communicated to him, (General Brinton,) the substance of the orders, and that General Brinton refused to go back, saying that his men had been fired at from houses, street crossings, and police stations, and were almost famished for want of food, and he was going into the open country where he could intrench and defend himself, and procure food for his men, but that if he received positive orders he might return.

General Brinton and several of his officers testify that although Colonel Norris visited him at the time and place stated, yet that he delivered no orders whatever, and stated that his errand was to find out where the command was. In regard to these counter-statements your committee will

have something to say under the head of "conduct of the militia." It is proper to state here, however, that the written order given to Captain Aull to take to General Brinton was not delivered to him till the 1st day of August, a week from its date.

Soon after the first car was set on fire, Saturday night, the alarm of fire was given, and the firemen with their engines at once turned out and arrived in the vicinity of the fire about eleven o'clock, but were not allowed to attempt to stop the destruction of the railroad company property. They tried several times to lay their hose, so as to play on the fire, but the mob cut their hose and threatened them with death if they persisted. Some of the police testify that they cleared away the mob at one place and notified the firemen that they were ready to protect them if they would go to work and put out the fire; but the firemen deny this, and testify that no such offer was made, and that at no time did they see half a dozen police together.

In view of the general failure of the police to do what must be considered their duty in regard to the rioters, during the whole time of the trouble, they need not think it strange if the majority of people are inclined to believe the statements of the firemen. The officers of the fire department testify that the firemen were well organized at the place of danger, ready to do their duty at all times, and that this department was the only one in the city that was organized trying to do its duty during the time of the riot. The firemen, after some remonstrance on the part of a portion of the rioters, were allowed to save private property, and to this fact may be ascribed the safety of a good portion of the city; for the fire from the railroad property communicated to the adjoining property of individuals, and but for the labors of the firemen there must have been a very extensive conflagration throughout Pittsburgh. The destruction of property did not cease until about five o'clock, P.M., on Sunday, the 22d, and then only when the limit of the corporation property had been reached at Seventh street by the destruction of the Union depot, Union depot hotel, and the grain elevator. The latter did not belong to the railroad company, but it was believed by the mob to be owned by a corporation, and therefore it was doomed to destruction with the rest. Several times during the day—Sunday—the cry of "police" was made by

some one in the crowd, and whenever this was done the mob would scatter in all directions, but as soon as it was ascertained to be a false alarm they would again return to the work of destruction. It was demonstrated also that whenever any citizen gave a determined and positive order to any of the mob it was usually obeyed.

A notice had been published in the Sunday morning papers, and had also been given out in the various churches, that a meeting of the citizens would be held at the old city hall, at noon, for the purpose of organizing to protect the city. Some citizens met at the old city hall, according to notice, but there seemed to be no head to the movement, and it adjourned to meet at the new city hall immediately. At this place a committee of safety was appointed, and a sort of an organization for defense commenced, but in the language of a prominent witness engaged in the movement: "They were all day doing very little; there was no head anywhere; the mayor did nothing, and seemed to be powerless, and the sheriff had run away. The mayor seemed to be confused; he ran around some, but really did nothing." A nucleus for an organization of the responsible citizens of the city was formed, however, which on the following day developed into vigorous action, and the best men of the city came forward and subscribed liberally to a fund to pay an extra police force, and pledged themselves to subscribe any amount necessary to put the city in a complete state of defense against the mob element. Some sixty thousand dollars was actually subscribed, of which about fifteen thousand dollars was used to pay the extra police force called into existence by the action of the citizens during the emergency.

About four to five o'clock, P.M., a body of fifty or sixty men, composed of professional and business men, were organized under the lead of Doctor Donnelly, and armed at first with ax-helves, and afterwards with some old muskets and no ammunition, and with white handkerchiefs on their left arms, appeared at the scene of the trouble, near the Union depot and elevator, but it was too late to save these buildings, as they were already burned. The crowd gave way to this force, but as the destruction was completed here but little could be accomplished. The doctor ordered the

mob to take hold and tear down a fence so as to stop the spread of the fire, and they obeyed orders.

There was such an apathy among the citizens, that it took all the day to raise this force led by Doctor Donnelly, and after being on the ground a short time, and finding nothing for them to do, they disbanded.

During the day (Sunday) a car load of whisky or high wines was broken open by the mob, and they drank very freely of it, and towards night, at the time the Union depot and elevator were burned, most of the active rioters were so drunk as to be unable to continue the work of destruction, if they had been so disposed. Whisky had done good service in this case, if never before. The fatigue consequent upon the labors of Saturday night and Sunday was also producing its effect upon the rioters, and taken in connection with the fact, that most of them must have been filled to satiety with rioting and destruction of property, shows a good cause for the waning of the riot on Sunday afternoon. A few of the rioters, between five and six o'clock, P.M., went to the Duquesne depot, (the property of the Pennsylvania Railroad Company,) at the junction of the Allegheny and Monongahela rivers, with the intention of burning it and the cars in the vicinity. One car was set on fire and an attempt made to set the depot on fire, but some six or eight of the citizens' safety committee arrived there about the time the rioters did, and they interfered at once to put a stop to destruction, and had no difficulty in doing so, as the rioters desisted and left as soon as they saw any authority exerted in opposition to their schemes.

The Eighteenth regiment (Colonel Guthrie) had remained at Torrens station, keeping the track clear at that point, and waiting for the expected trains. The crowd at that place numbered about fifteen hundred men, composed of mill men, some railroad men, boys, roughs, and tramps. The passenger trains were allowed to run by the mob, but between Pittsburgh and Torrens they were filled to overflowing by the roughest of the crowd, who traveled backwards and forwards between those places on the trains at their pleasure, and no one dared to interfere with them. They even climbed on the engine and tender, and roofs of the cars, and controlled the movements of

the trains whenever they chose so to do between those two points. At Torrens, the crowd would occasionally become demonstrative and defiant, and Colonel Guthrie was obliged to charge bayonets on them several times, and each time had no difficulty in dispersing them. Twice he ordered his men to load in presence of the crowd, and this of itself dispersed them. Colonel Guthrie's troops were not allowed to fraternize with the mob, but were kept entirely aloof from them, and this regiment does not seem to have become demoralized, as the Fourteenth and Nineteenth regiments were. About four o'clock, P.M., Sunday, Colonel Guthrie, hearing that the Fourteenth and Nineteenth regiments had been disbanded, and being unable to ascertain the exact condition of affairs at Pittsburgh, went there and consulted with General Latta, and his regiment was ordered to march to that place, where they arrived about dark, and, of course, too late to be of any service in stopping the destruction of property, which had all taken place before their arrival. They marched to the armory and stayed all night, and on Monday forenoon, the Twenty-third, together with the Fourteenth and Nineteenth regiments, which had been ordered to reassemble that morning, marched through the principal streets of the city for the purpose of overawing any riotous disposition that might still remain in those who had been engaged in the work of destruction the day before. Colonel Guthrie assumed command of the division, his commission being older than Colonel Gray's or Colonel Howard's, and when General Brown wished to assume command Colonel Guthrie refused to recognize his authority, on account of the manner in which he had managed matters on Saturday, the 21st. On Saturday night, a few of the leading citizens had suggested to the mayor that it would be well to call out all of the old police force that had been discharged, and in accordance with this suggestion the chief of police caused a notice to be published, calling on them to report at his office and they would be assigned to duty. During the day several reported and were employed, and afterwards most of the old force were taken back and assigned to duty for a time. This extra force, together with the force of citizens organized for the purpose, patrolled the city that Sunday night, and succeeding nights, until the danger had passed.

From the first commencement of the strike, the strikers had the active sympathy of a large portion of the people of Pittsburgh. The citizens had a bitter feeling against the Pennsylvania Railroad Company on account of, as they believed, an unjust discrimination by the railroad company against them in freight rates, which made it very difficult for their manufacturers to compete successfully with manufacturers further west, and this feeling had existed and been intensified for years, and pervaded all classes. A large portion of the people also believed that the railroad company was not dealing fairly by its men in making the last reduction in wages, and the tradesmen with whom the trainmen dealt also had a direct sympathy with the men in this reduction, for its results would affect their pockets.

The large class of laborers in the different mills, manufactories, mines, and other industries in Pittsburgh and vicinity, were also strongly in sympathy with the railroad strikers, considering the cause of the railroad men their cause, as their wages had also been reduced for the same causes as were those of the railroad men, and they were not only willing but anxious to make a common fight against the corporations. This feeling of aversion to the railroad company and sympathy with the strikers was indulged in by the Pittsburgh troops to the same extent that it was by the other classes, and as many of them had friends and relatives in the mob, it is not much to be wondered at that they did not show much anxiety to assist in dispersing the crowd and enforcing the law.

With the repulse of the attempt to set fire to the Duquesne depot ended all active efforts by the mob to destroy property, and after that Sunday night no mob of any size was again assembled, although it was several days before complete order was fully restored, as the people had lost confidence in all the laboring men, and no one knew who to trust or what to expect from others on account of the extent to which the demoralization had gone.

About sixteen hundred cars, (mostly freight,) including passenger and baggage cars, with such of their contents as were not carried away by the thieves; one hundred and twenty-six locomotives, and all the shops' materials and buildings, except one or two small ones, of the railroad

company, from above Twenty-eighth street to the Union depot, were burned on that Saturday night and Sunday.

It has been estimated, by a competent person, that the damage, including loss of property and loss of business, consequent upon the interruption of business, which was inflicted by the mob, at Pittsburgh alone, was \$5,000,000. This may be a large estimate, but if the consequential damages could be correctly arrived at, the total damage would fall but little short of the figures given. The actual loss of property by the railroad company alone, not including the freight they were transporting, is estimated at two million dollars, by the officers of the company, from actual figures made. The authorities of Allegheny county adopted thorough measures to ascertain the extent of the loss of property, and to that end appointed a committee to investigate claims of those claiming damage. One hundred and sixty-nine claims were settled by the committee, that is, the amount of each claim of this number was adjusted and agreed upon by the committee and the parties, and the total amount thus adjusted is about one hundred and sixty thousand dollars, and all this is strictly private property. Some persons refused to adjust the amount of their claims with the committee, among which is the claim of the elevator company, amounting to the sum of two hundred thousand dollars. Property that was stolen was also recovered and returned to the railroad company, amounting in value to at least sixty thousand dollars.

The tracks from Union depot out to and beyond Twenty-eighth street were nearly all ruined by the fire, the rails being warped and twisted and the ties burned; they were also covered with the debris of the burned cars, and it was about a week after the destruction, or until July 30th, before the railroad company were enabled to get their trains all running regularly again over this portion of the track.

During the troubles of the 20th and 21st, efforts were made by the strikers to come to an understanding or compromise with the railroad officials, and a committee to confer with the officials was appointed.

Some time on Friday, the 20th, the committee met Mr. Pitcairn, the superintendent of the Pittsburgh division, and presented him with a written statement of the demand made by the strikers, of which the following is a copy, viz:

"BROTHERHOOD OF LOCOMOTIVE ENGINEERS,
PITTSBURGH DIVISION, No. 50,
PITTSBURGH, PA., July 20, 1877.

To the Superintendent Western Division, Pennsylvania Railroad:

First. We, the undersigned committee appointed by the employés of the western division of the Pennsylvania Railroad Company, do hereby demand from the said company, through the proper officers of said company, the wages as per department of engineers, firemen, conductors, brakemen, and flagmen as received prior to June 1, 1877.

Second. That each and every employé that has been dismissed for taking part or parts in said strikes to be restored to their respective positions.

Third. That the classification of each of said department be abolished now and forever hereafter.

Fourth. That engineers and conductors receive the wages as received by said engineers and conductors of the highest class prior to June 1, 1877.

Fifth. That the running of double trains be abolished, excepting coal trains.

Sixth. That each and every engine, whether road or shifting, shall have its own fireman.

Respectfully submitted to you for immediate consideration.

J. S. McCauley,
D. H. Newhard,
John Shana,
G. Harris,

J. P. KESSLER,
Committee."

Mr. Pitcairn informed the committee, that these terms could not be accepted by the railroad company, and that he could not send such a proposition to Colonel Scott, the president of the company, and the negotiations were broken off. An attempt was made on Sunday, by some of the citizens, to induce the railroad officials to submit some proposition for a compromise to the strikers, but the officials refused, saying that the men had taken the law into their own hands, and that no proposition could be made to them until their property was restored, and all opposition had ceased, and that it was now a matter of law, and the State authorities must settle the question with the men first.

The propositions embraced in the papers submitted by the committee of engineers, proposed that the railroad company should make concessions that had never been asked before. The first and second explain themselves fully, and had been grounds of complaint before. The third, requiring the abolishment of the classification of conductors and engineers, had never been a ground of complaint by the men. The conductors were divided into three classes: The first of which received a certain rate of pay per month the first year of service; an addition of ten per cent. for the second year, and another addition of the ten per cent. for the third year. The engineers were divided into four classes, and received an advance of ten per cent. for each year of service after the first until the fourth class was reached. This classification was adopted at the request of the men themselves, some years previous, and no complaint in regard to it had ever reached the officers of the company.

This principle of classification had been practiced by other railroads, and has worked well, and is a good rule for both the men and the railroads, as its tendency is to secure and retain better men to run the trains.

The fourth proposition, if accepted, would have placed the new, inexperienced men on the same footing as the men of experience, and to

give them at once the highest wages paid the older and more experienced men.

The fifth proposition was for the railroad company to back down and rescind the order made to run double-headers and the sixth that the company should employ a fireman on all shifting engines, a place where they are not usually needed, as the engine is not engaged in steady work, and the engineer can do his own firing without trouble or over-work. No proposition of compromise was submitted to the strikers on the part of the railroad company, and what would have been the result if one had been made, it is useless to speculate about.

As tending to show the feeling of the people of Pittsburgh on the subject of the difficulties between the Pennsylvania Railroad Company and its employés and in regard to the strike, some copies of editorials from several of the newspapers of the city, written and published at the time of the strike, have been inserted in the evidence accompanying their report.

More space has been given to the history of the riots at Pittsburgh than to any other place, as it was here the troubles first commenced in this State; here was the greatest loss of life, and it was here that, by far, the greatest destruction of property took place. We turn now to Allegheny City, just across the river from Pittsburgh, and the termini of the Pittsburgh, Fort Wayne and Chicago railroad, the Allegheny Valley railroad, the Pan Handle railroad, and the Connellsville division of the Baltimore and Ohio railroad. On Friday morning, July 20th, the freight conductors and brakemen on the Pittsburgh, Fort Wayne and Chicago railroad refused to go out with their trains, and the railroad officers, fearing trouble, sent up to the mayor's office for some policemen to preserve the peace, and ten were sent them. The mayor was not at his office at the time, but, on his return, he immediately went up to the depot to look after the troubles himself. At the time the mayor arrived on the ground there was a crowd of two hundred and fifty to three hundred and fifty men assembled and no man could be found to man the trains. One engineer came out with his engine, which was surrounded by the crowd, but no violence was used and there is no evidence of any

threats being made at the time, but he returned with his engine to the round house. After this time no attempt to run a freight train was made on this road until the troubles were all over and the men had given up the strike.

The strikers here were under the leadership of one R. A. Ammon, better known as Boss Ammon, and declared their intention to use no violence to prevent trains from running; that if the railroad company could get "scabs" (as the strikers called any man who was willing to work during a strike) to run their trains, they were willing the trains should run, but as the company was unable to find men willing to go out on the trains, the good intentions of the strikers were not tested. As this road was run directly in connection with the Pennsylvania railroad on the general western through traffic, it was but little object to force the freight trains out as long as the Pennsylvania railroad was blockaded, and, hence, no effort was made, after the first day, to run freight trains. The main efforts were in the direction of keeping the peace and preventing the destruction of property. The strikers declared their intentions to keep the peace, and prevent the destruction of property, and not interfere with the running of passenger trains, and they were told that so long as they did this in good faith, they would not be interfered with. Mayor Phillips immediately ordered out all his police to patrol the city, organized an extra force of citizens, and swore them in, made a requisition on the Secretary of War for five hundred guns, and got them, and placed them in the hands of the citizens, and generally had everything so well organized and arranged that any attempt at a riot could have been met and quelled at once. It was rumored that the mob had broken, or was going to break, into the armory and get the guns (about forty) stored there, and the mayor at once sent and had the guns all removed to a place of safety. It was also rumored that the mob from Pittsburgh intended to come over into Allegheny City, and destroy the railroad property there, and the mayor had the bridges all guarded by armed men, with two field pieces at the principal ones, which he was enabled to get, and there being no balls with them, he caused them to be loaded with square iron burs, an inch or so in size.

The city had fifty-five policemen, and these were kept on duty as much of the time as it was possible for men to be out, and no opportunity was given

any of the Pittsburgh mob to cross over to Allegheny.

At the time it was alleged that the Pittsburgh mob was coming to Allegheny City, to destroy the property of the railroad company there, an arrangement was made with Ammon and his men to take the freight cars out of the city, which was accordingly done, and ten miles of cars were hauled out from the city some miles, and stowed away on the side tracks, until the troubles were over, when the same men brought them back and turned them over, in good order, to the railroad authorities. It was also arranged with Ammon and his men, that as long as the men behaved themselves and protected the property of the company, no soldier should be brought there to interfere with them, and if, at any time, they found themselves unable to preserve the peace and take care of the property, they were to notify the mayor, who would then furnish a force to preserve order. The mayor also, at the commencement of the troubles, sent his policemen around to notify the saloon-keepers, and others, to close their bars, and sell no strong drink to any one, and afterwards sent the force around to see that the order was obeyed. Although not legally binding, the order was very generally observed, and no trouble was experienced on account of the crowd using strong drink. The mayor had notices posted throughout the city that, if necessity required it, ten taps of the bell was to be the signal for the general assembling of the citizens at a given place for defense, which signal, fortunately, was not required to be given.

Mayor Phillips considered himself as the chief peace officer of the city, and if the sheriff or military had been called on for assistance, he did not consider either or both superseded him, but that it would have been his duty to have cooperated with them to the full extent of his power.

"Boss" Ammon and his party, which consisted of about one hundred railroad men and a crowd of two or three hundred outsiders, roughs, and laborers, continued to run the Pittsburgh division of the Pittsburgh, Fort Wayne and Chicago road until Tuesday evening, the 24th instant, at which time Governor Hartranft arrived from the West. When Ammon heard that the Governor was on the train, coming to Pittsburgh, he telegraphed him,

welcoming him to the State, and assuring him a safe passage. On the Governor's arrival he was met by Ammon and introduced to the crowd, and gave them a short talk, counseling obedience to the laws, which was well received. It was now felt by all that the strike must come to an end immediately; that there was a man at the head of affairs who knew his duty and would not be trifled with, and that all parties would be fairly and justly treated. Boss Ammon immediately made arrangements to turn over the railroad to the proper authorities, he seeing very clearly that the proper time to do so had now come, and that further delay was dangerous. Some of his men could not agree with him that it was best to make terms while they could, and, at a meeting of the men, he was hissed, and they refused to hear him speak.

Thus fell from his position of boss the man who, with only eleven months' experience as a brakeman, for four or five days successfully ran one division of a great railroad.

It has by some been considered an extraordinary performance for a young man of twenty-five, with the small experience he had, to control the men he did, and keep the passenger trains running regularly without accident on such a railroad; but when the circumstances are considered it is nothing wonderful. In the first place, a mob or crowd are always willing to follow any person who has nerve, and is willing to assume the responsibility and take the lead. Ammon had the nerve; was naturally shrewd and sharp, and knew how to control men, and they had been used to look up to him as the organizer of the Trainmen's Union. The mob always wants a dictator, and in Ammon they had one. In the next place, the great railroads of the country are so organized, and their trains are run by such a regular system in connection with the telegraph, that the trains can be run for days without a break if the superintendent should abandon the road entirely. Ammon was a king so long as he led in the direction the crowd wished to go; when he undertook to put on the brakes and get them to reason about their situation, and ran counter to their opinions, he was dethroned with as little ceremony or compunction as one school boy shows in knocking off the hat of another.

Human nature is the same everywhere; in politics, society, or with the mob, the leader must go in the direction his followers would have him go, or he is replaced for one more subservient. From Wednesday, the 25th of July, the officers of the Pittsburgh, Fort Wayne and Chicago railroad began to be able to get control of their road, and in a few days all the trains were running regularly. The other railroads running into Allegheny City had nearly the same difficulty with their men as did the Pittsburgh, Fort Wayne and Chicago railroad, and their trains for a few days were not regularly run, but they got along without any rioting or destruction of property, and were soon able to start all their trains again.

On Friday, July 20th, the freight conductors and brakemen on the Pennsylvania railroad, at Philadelphia, began to be uneasy, and on Saturday, the 21st, a strike was in full operation among them. They gathered in crowds at the yards of the company where the freight trains were made up to start out, and they, as in other places, were joined by a large crowd of idle men, tramps, and vagabonds, such as are found around a large city, and who scent out a chance for trouble or a riot, as a crow scents carrion. The officials called on Mayor Stokley for policemen to keep the peace, and protect the property of the company. The mayor at once acted vigorously; sent out his police with orders to disperse any crowd that might gather on the grounds of the railroad company, and, on advising with the citizens, he was authorized to call out an extra force, which he did at once. His action was so thorough and efficient, that no serious interruption of traffic was experienced at that place, although crowds of rough men had gathered to the number of two or three thousand, and at one time, as estimated, to the number of four thousand to five thousand. They were dispersed by the prompt and vigorous action of the police, who would charge into the crowd, using their clubs freely and scattered them at once. It was the policy of the mayor not to allow a mob to collect, and this prevented a serious rioting.

To Mayor Stokley and his police force, the State, as well as the city of Philadelphia, is greatly indebted, and to their efforts may be ascribed the salvation of that city from the disgraceful scenes enacted at Pittsburg.

On Saturday, July 21st, an uneasiness among the trainmen at Harrisburg and Scranton was observed, which, within the following two or three days, ripened into a strike. The first crowd which gathered in Harrisburg was on Saturday evening, the 21st of July, at the Pennsylvania railroad depot, to prevent the shipping of ammunition to Pittsburgh. The mayor was notified about ten o'clock, P.M., of what was going on, and he immediately sent for the chief of police, to make arrangements to meet the threatened danger. A lieutenant of police and another policeman being the only members of the force then available for prompt service, were sent to the scene of the trouble, and, by arrangement, arrested a man and started for the mayor's office with him, to draw the crowd from the depot. This ruse proved successful, and the ammunition was shipped before the crowd returned. Some three hundred or four hundred persons followed the policemen with their prisoner to the mayor's office, and, on their arrival there, the mayor went out and asked them to disperse, when about one half of the crowd left. The person arrested then appeared at the door, and informed the crowd that he had been arrested for drunkenness and disorderly conduct, and the balance of them dispersed.

On Sunday, the 22d, the trainmen, whose head-quarters were at Harrisburg, struck, and in consequence thereof a large crowd gathered on the common, and listened to harangues from some of their number, among whom was an insane man from the lunatic asylum. From the common, the mob went to the Pennsylvania railroad depot, and prevented a train from going out, and the mayor, having notice of their movements, appeared upon the scene and found some boys uncoupling an engine from the train, which the mayor put a stop to, and requested the engineer to move on, which he refused to do, giving as an excuse that he was told there were obstructions on the track a short distance out of town. The crowd at this time was composed of all kinds of citizens, good, bad, and indifferent, and they soon dispersed, and no violence took place. On Monday, the 23d, the mob gathered in large force about the railroad premises, and there being a larger number of roughs and tramps, became more turbulent and interfered with the running of the trains. The mayor consulted the leading men about raising a posse to assist

the police, there being only seventeen in the service of the city, and it was determined to raise a force of citizens, to be called the "law and order posse," who were to assemble at the mayor's office, on a given signal from the court-house bell.

The sheriff of the county was at Atlantic City at the commencement of the trouble, and was telegraphed to when matters began to assume a serious aspect, and he arrived at Harrisburg on the evening of the 23d. At this time the mob had increased largely, and was becoming demonstrative. The sheriff was informed as to what measures had been taken so far, and the mayor requested him to take charge of the situation and control the movements generally, which the sheriff assented to, and at once prepared a proclamation, ordering all good citizens to turn out and assist in enforcing law and order, which proclamation was published in the papers the next morning. In the evening of the 23d a portion of the mob had gone to Aultmeyer's gun store, on Second street, and demanded admittance, and the proprietor had opened the doors to them. Word was sent to the mayor of the occurrence, and he took his police and repaired to the place immediately. He found the store full of men and boys, who had helped themselves to guns and knives. The mayor formed his police in front of the store and went in and talked with them, and after a little parleying they delivered up the weapons they had seized and left. About eleven o'clock, P.M., the mob gathered in large numbers on Market street, where it crosses the railroad, and working up Market street they broke into two or three stores. The signal for the assembling of the citizens was given, and they assembled immediately at the corner of Third and Market streets to the number of three hundred to four hundred, together with the sheriff, the mayor, and the police. The sheriff being a man of considerable military experience, had caused the citizens to adopt company and regimental organizations, by reason of which they were more quickly assembled and more easily handled and moved. The sheriff and mayor went down to the mob and ordered them to disperse, which they refused to do, and then the police and citizens, armed with pistols and clubs, were marched toward the mob, the police and mayor at the head of the column. The mob numbered from seven hundred to

one thousand, and two thirds of them dispersed on seeing the force marching against them, but some two hundred stood their ground. The force in command of the mayor and sheriff marched into this body, using their clubs freely, and completely dispersed them without firing a shot. Several of the rioters were arrested at the time, and quite a number during the week; in all some forty-five or fifty of the leaders were arrested, many of them being taken in their beds that night.

This determination on the part of the civil authorities, backed by the citizens, broke the spirit of the mob, and they did not again assemble in any great number, or commit any further breaches of the peace, although the citizens' organization was kept up for several days, and a special force of some fifty men was employed to be on the watch for some time, and until matters became quiet throughout the State. The whole number of citizens enrolled was about fifteen hundred, and more than one thousand were out on a parade at one time. On receiving news of the uneasiness manifested at Harrisburg, General Latta, then at Pittsburgh, telegraphed Major General J. K. Sigfried, commanding Fourth division National Guard, with headquarters at Pottsville, to put the City Grays, of Harrisburg, on duty at the arsenal at once, and order his whole division under arms, and move to Harrisburg. He also received a similar telegram from Governor Hartranft, from Medicine Bow, Wyoming Territory. The telegrams were dated July 22d. General Sigfried had, on the previous day, as a precautionary measure, ordered Captain Maloney, of the Harrisburg City Grays, to ship his arms and ammunition to the State arsenal, located just outside of the city, and to stay there and guard the same, to prevent it from falling into the hands of any mob that might undertake to capture it. General Sigfried arrived at Harrisburg with nine companies of the Seventh and Eighth regiments on the 23d, and was there joined by eight other companies, making a force under his command of some eight hundred men. These troops were stationed at the arsenal at the time the mob was dispersed by the police and sheriff's posse, on the night of the 23d, but were not called on by the civil authorities, they evidently understanding their duty, which was to attempt to enforce the law by the means within their power, before calling on the military for assistance. Had this been done as promptly in some other

places, much expense to the State might have been saved, and the riot nipped in the bud, instead of being allowed to become strong and organized, while waiting for troops to arrive. The mayor testified that when the disturbance first commenced the citizens were lukewarm, and seemed to have considerable sympathy with the strikers, but as soon as affairs began to assume a serious aspect, they came forward and enrolled themselves freely in the law and order posse, and urged prompt and vigorous action, and by so doing they no doubt prevented the enacting at this place of the terrible destruction of life and property which took place in other localities.

At Reading, on Saturday, July 21st, the idle men began to gather in small bodies and talk of strikes, and showed a disposition to interfere with railroad property, but no overt act was committed until Sunday the 22d. The mob at this place was composed primarily of discharged employés of the Philadelphia and Reading Railroad Company, who had been discharged in the month of April preceding. The officers of that road learning that the society called the Brotherhood of Locomotive Engineers intended to make the company trouble, commenced preparing for it, and when in April the engineers demanded an advance in wages of twenty per centum, they were notified that any person who belonged to the brotherhood could not remain in the employ of the company unless he severed his connection with that society, and that, as the society was a beneficial one, and had a fund for its members to draw on in ease of sickness, the company would establish such a fund for its engineers. In consequence of this demand, and the circular of the company, some four hundred engineers, firemen, and brakemen left the service of the company, whose places were filled by promoting firemen and hiring new men, and those coming from other roads who held certificates of competency and good behavior. Many of these men who left the employ of the company had remained in and about Reading, and on hearing of the riots at Pittsburgh, thought it would be a good time to take their revenge on the Philadelphia and Reading Railroad Company, and these, with other idle men, composed the nucleus of the mob, and were, as in other places, soon joined by all the tramps and criminals in the vicinity. None of the regular employés of the railroad company struck at that time, nor were they engaged in the riots. On Sunday trains were interfered with near the depot,

and one or two cars burned, and on Sunday night, the 22d, the Lebanon Valley railroad bridge, which is a very high one, crossing the Schuylkill at Reading, and costing a large sum of money, was burned. On the evening of July 22d, Adjutant General Latta telegraphed to Major General William J. Bolton, commanding the Second division National Guard, with headquarters at Norristown, to concentrate the Sixteenth regiment, under arms, at once at Norristown, and the Fourth regiment, at Allentown, which was done as soon as possible, and the Fourth regiment, General Reeder, reported on the morning of the 23d, that all the companies were in hand except company A, which was in the hands of the mob at Reading.

At 3.50, P.M., of that day, J. E. Wootten, general manager of the Reading Railroad Company, telegraphed General Bolton, that they were in need of protection at Reading, and asked that General Reeder be sent to that place with his command, which request was complied with, and General Reeder ordered to proceed to Reading at once. General Reeder, with the Fourth regiment, Colonel Good, arrived at Reading about seven o'clock, P.M., of the 23d, and instead of finding the mob in possession of the depot of the Philadelphia and Reading railroad, as he expected, found it in possession of a squad of the coal and iron police. The mob had had pretty much its own way all day, and had stopped the running of all freight trains, and interfered with the passenger trains. The sheriff of the county, George R. Yorgey, who was out of the city, had been telegraphed to by the chief of police, in regard to the trouble, and having been furnished an extra train, arrived in the city about five, A.M., of the 23d.

On his arrival, he refused to take any steps to raise a posse, although men were offered him by the railroad officials, and the only step taken by him to disperse the rioters, and preserve order during the troubles, was to issue a proclamation at night, on the 23d, requesting all good citizens to remain at their homes. When the chief executive officer of the county, so fails in his duty, it is no wonder that mobs become defiant and destroy life and property.

The mayor was absent from the city, and the chief of police, Peter Cullen, was the only civil officer who did any thing to preserve order. He, with the police force of twenty-seven men, did all that men could do under the circumstances. On Sunday night, with a few police, he tried to prevent the burning of the cars, and stopped it after a short time. On Monday, with his force he cleared the crossing at Seventh and Penn streets, so that the street cars and people could pass, although the crowd numbered several thousands. He also sent out his men to raise a posse of two hundred men among the citizens, but they all refused, and laughed at the police, and he did not consider that he had the authority to summon them or order them out.

The police force was still at the Penn street crossing when General Reeder arrived at the depot. The railroad officials requested General Reeder to move into the railroad cut to release a train that was in the hands of the mob, and as that was on the direct route to Penn street crossing, the point to which he wished to go with his force, he commenced his march through the cut. The cut is some three squares long; the banks about thirty feet high at the highest place, and at the ends tapering down to nothing, with streets crossing it by bridges in two places, and walks at each side near the top of the bank, with a stone wall down the face of the bank, and a parapet three or four feet high to protect the walks.

On nearing the cut, General Reeder's force was met by a large crowd hooting and jeering at the soldiers, and throwing stones, and the General, seeing the temper of the mob, ordered his musicians to the rear and his men to lead. The mob gave away, but as the troops entered the cut the mob, which lined both sides of the cut, began to throw brickbats, paving stones, and other missiles down on them, which the soldiers bore until they were two thirds of the way through the cut, when one or two pistol shots were fired at them, and one soldier fired his piece in the air, which was followed by scattering shots, and then by a regular volley, and firing was kept up until they reached the Penn street crossing, where the police were stationed. Of the two hundred and fifty-three soldiers only about fifty escaped being hurt, but none were seriously injured. Of the crowd eleven were killed, and

over fifty wounded, two of the killed and some of the wounded being mere lookers on, and not engaged in the riots.

It being so dark that no one could be readily distinguished, seven of the policemen who were in line across the railroad at the Penn street crossing were wounded by the fire of the troops, some of them quite seriously, but they all recovered. This collision broke the spirit of the mob, and no destruction took place after that at this place. But the mob was threatening for several days, so much so that five companies of the Sixteenth regiment were immediately sent to General Reeder, from Norristown. This did not improve the condition of affairs, as the men of the Sixteenth regiment openly fraternized with the rioters, and declared their intention, in case of further trouble, of siding with them, and furnished them with ammunition. This soon destroyed the morale of the Fourth regiment, and General Reeder asked leave to move them to Allentown, which was granted, and General Bolton started for Reading on a special train, after giving orders for the movement and disposition of the balance of the men of his division. On arriving at Reading he found matters rather quiet at the depot, with the Sixteenth regiment in possession. The authorities fearing trouble that night, and the police having been out that day again trying to raise extra men for the force, and failing, General Bolton telegraphed to General Reeder, who was at Temple station, six miles distant, to return at once with the Fourth regiment; to which General Reeder answered that "the men positively refused to return to Reading to-night; the regiment and company officers are perfectly helpless;" and from Colonel Good: "The men of the Fourth positively refuse to return to-night; I can't get twenty-five men," and General Bolton finally ordered General Reeder to rendezvous at Allentown and await further orders. It is enough to say that three hundred United States troops arrived that day at Reading, and no further serious trouble was apprehended or occurred; that General Bolton ordered the Sixteenth regiment to return to Norristown; but company I mutinied and refused to return, and was disbanded in dishonor by the general. He afterwards issued an order to disband companies C, D, E, and H, of the Sixteenth regiment, subject to the approval of the Governor, for general insubordination and mutinous conduct while under orders.

At Scranton, the railroad men began to feel the effects of the strikes in other places, and on Monday, the 23d of July, rumors were circulated that a strike was to be inaugurated on the roads running through that place. Mayor R. H. McKune was at Ocean Grove, and seeing the accounts of the troubles at Pittsburgh in the newspapers, hurried home, where he arrived on the evening of the 23d. On the 24th, he tried to get the city council together to prepare for the emergency, as the strike, according to rumor, was to take place the next day, the 25th; but the council were opposed to doing anything in that direction, and refused to take any action. On Wednesday, the 25th, a committee of trainmen waited on the superintendent of the Delaware, Lackawanna and Western railroad, and informed him that no trains would be allowed to leave, except the engine with a mail car. The superintendent asked the mayor for a force to protect the trains, but the regular police force of the city had been reduced to ten men, which was entirely insufficient, and the superintendent was advised to run the mail cars for the present, and not undertake to move regular trains until more assistance could be got, which advice was finally followed.

On the 26th of July, the miners of the Lackawanna Iron and Coal Company held a meeting at the Round woods, at which from six thousand to eight thousand persons were present, and a committee was appointed to confer with the general manager in regard to wages, and the crowds began to gather in the streets. The mayor called an advisory committee of seven of the leading citizens, on Thursday morning, the 26th, and it was agreed to raise and swear in a special police force of the citizens, to act during the emergency, which arrangement was carried out, and quite a number of them raised that day, and placed under the command of officers who had seen service in the army. A room was procured at the company store, as it was called, for this special force to meet and organize in, and meetings were held and necessary arrangements made to meet any emergency.

The miners had resolved to quit work and not allow the mines to be pumped, and there was great danger that they would be flooded and immense damage inflicted. On Sunday, the 29th, the authorities met a committee of the miners and represented to them that the damage of

flooding the mines would—a great portion of it—fall on them, as the mines could not then be worked for a long time if once flooded, and it was finally concluded that the pumps might be worked, so that on Monday the pumps were generally going again. On Monday the city council met, and resolved that no necessity existed for special police, and that none would be paid by the city. The mayor on that day sent for the executive committee of the trainmen, and informed them that on Tuesday, the 31st, it was proposed to start the regular trains at nine, A.M., and if resisted the mayor would use all the force at his command to put the trains through. In the afternoon the trainmen had a meeting and resolved, by a large majority, to resume work, and by evening of that day all fears of any further trouble had passed. The special force of citizens which had been sworn in were armed partly with Remington rifles and partly with muskets, and it was arranged that they should assemble at headquarters on a given signal through the church bells. Wednesday morning, August 1st, a meeting of the laboring men of the vicinity was held at the silk-works, a mile or so below the city, at which some seven thousand or eight thousand men were present. Accounts conflict as to the purpose of this meeting, some contending that it was called to hear a report of some committee, and some that no object was specified in the call, which was by word of mouth from man to man. No committee made any report, but a letter was read by some demagogue, purporting to be written by W. W. Scranton, general manager of the Lackawanna Iron and Coal Company, saying that he meant to have the men at work for fifty cents a day, and when they died bury them in a culm pile. Mr. Scranton denies having written any such letter, but it answered the purpose of its author by inflaming the minds of those at the meeting, and they broke up with the cry, "let us clean out the company's shops." About half-past ten, A.M., the mayor was informed that a crowd of men was coming up from the silk-works. The mayor, with a friend, started out to see what was the trouble, and on his way notified some of the special police to meet at head-quarters.

On arriving at the corner of Lackawanna and Washington avenues, they saw a crowd of from three to four thousand coming up the latter street, and swarming about the machine and other shops, and about the railroad. The

mayor went down into the crowd, which opened for him, and he went as far as the machine shop, and turned and came back to the roadway of the Delaware, Lackawanna and Western shops. He had said to them: "Boys, you are doing wrong; you must disperse and go home." On arriving at the roadway, a company of one hundred and fifty or two hundred, who had been driving the men from the shops, and beating and maltreating them, came along, and the leader asked who that was. On being told it was the mayor, he said, "kill the son of a bitch; he has no business here," and immediately two shots were fired, and the mayor was struck between the shoulders by a club, or some heavy weapon, so hard as to cause hemorrhage of the lungs; a stone struck him in the small of the back, and several persons struck him with sticks. Several friends gathered about the mayor, and Father Dunn, a Catholic priest, came along to assist him. He was slipped out under the railroad bridge and toward Lackawanna avenue, followed by the crowd. The mayor had, before entering the crowd, given orders to have the signal given for the assembling of the extra police force, which order had not been executed, but word had been passed to a number of men, and when he got back to the avenue, he saw a body of them coming down towards him. At this point the mayor was hit by some heavy instrument, which broke his jaw and knocked him senseless for a time, but he went a short distance down the street and back again to where the mob and extra force of citizens were just about to meet. The mob, on leaving the machine shops, had cried out, "now let's clean out Lackawanna avenue," (the principal street of the city.) "Let's clean out the town." The force of citizens—about fifty in number—were passing Washington avenue just as the mob came up it and struck Lackawanna avenue, and they closed in behind the citizens and on both sides of the street around them; then a large number of stones and other missiles were thrown at the special police, with cries of "kill them; take their guns from them," and similar threats, and shortly two or three pistol shots were fired by the mob, and then the order was given the citizens to fire, which was immediately done, and three of the ringleaders killed the first fire. This dispersed the mob, which fled in every direction. The citizens gathered again at the company store to the number of two hundred, and a policeman soon reported the crowd gathering again.

The mayor, at the head of twenty-five of his men, immediately went to the crowd and ordered them to disperse, which order they obeyed. This force of citizens kept up their vigilance, not allowing any crowd to gather until the troops arrived on August 2d, and took charge of the military affairs at that place. A great deal of ill feeling and dissatisfaction still existed among the miners and mill men, but no open outbreak occurred, and before the troops left that section quiet and order was fully restored. Too much praise cannot be awarded the mayor and citizens' special police force of Scranton for the admirable organization they created, and for the prompt and vigorous measures taken when the emergency arrived. Had the action of the city council been approved and its advice taken, no special police force would have been raised, or had there been timidity among them when called out, Scranton would, no doubt, have suffered as badly as did Pittsburgh; for nowhere in the State was there a harder set of men than at Scranton and vicinity, many of the Molly Maguires, driven out of Schuylkill county, having gathered in and about that city, besides the scores of other hard cases who had been there for years. Riotous demonstrations were made at several other points in the State, but none of them assumed any great magnitude, except at Altoona and a few places in the anthracite coal region, and the occurrences at these places being described in the movements of the military as reported in the report of the Adjutant General for the year 1877, and being so similar to those that took place at the points particularly described herein, except as to magnitude, it is not deemed necessary to further notice them in this report.

Your committee has not thought it necessary to give a detailed account of the general movements of troops, except so far as they relate to the troubles at some particular point, where the same was necessary to a correct idea of all the circumstances occurring at such point, these general movements being all detailed fully in the Adjutant General's report above referred to.

As it is made the duty of your committee to report "by what authority the troops of the State were called out, for what purpose, and the service and conduct of the same," we approach this part of our labors with considerable diffidence, on account of the peculiar situation of affairs at many of the

points to which troops were sent; the fact that this kind of service was new to most of them, and that, unaccustomed as our people are to the use of the military to enforce the laws, the opportunities for forming a correct judgment are few, and the chances for being mistaken are many. It is perhaps easy, after a thing has happened, to criticise the actions of those engaged in the transaction, to point out where they failed, and to say where they ought to have done different, but if the theories of the critic had been tested by actual experience, he too might have produced no better results than did those he criticises. Bearing this in mind, and endeavoring to treat the whole subject fairly and conscientiously, we proceed to give our views upon this part of the matter under consideration. And first, the troops of the State were called out, in the first instance, by orders from James W. Latta, Adjutant General of the State, on a call from the sheriff of Allegheny county, the orders being signed by him, the Adjutant General, the Governor's name not being attached thereto, the Governor, as before stated, being absent from the State. He, with his family, started for California on the 16th of July, and before leaving had a conference with the Attorney General, Adjutant General, and Secretary of the Commonwealth, as to whether there was any reason why he should not go. It was agreed by all, that everything in the State was quiet at the time, and no prospects of any disturbance, and that there was no reason whatever, why he should not take the contemplated trip. Before leaving, however, he instructed Adjutant General Latta that if there was any trouble in his absence he should exercise the authority vested in the Commander-in-Chief, in accordance with the same rule and principles previously established, which were that on a call from the sheriff of a county for troops to assist in enforcing the law, the military should only be sent after he became satisfied that the sheriff had exhausted his powers and authority to suppress the disorder, and that the lawless element was too strong to be controlled by the civil authorities.

General Latta, after directing General Pearson, at Pittsburgh, to order out one regiment, and to take command of the military situation, reported what had occurred, and his order to General Pearson, to the Governor, which dispatch reached the latter at Antelope, on the Union Pacific railroad, July 20, before noon, which was answered by the Governor from Cheyenne, at

half past one, P.M., the same day, directing General Latta to "order promptly all troops necessary to support the sheriff in protecting moving trains on the Baltimore and Ohio railroad, and go to Pittsburgh and keep supervision of all troops ordered out." From this time communication by telegraph was kept up by the Governor until his return, and all troops were ordered out in pursuance to general orders given by him. The Governor received a telegram from C. N. Farr, his private secretary, and General Latta, at 2.20, P.M., the 20th instant, that everything was going on well, and the riot would be suppressed, and for him to go on. He accordingly pursued his journey to Salt Lake City, where he received a telegram Saturday evening, the 21st, at nine o'clock, giving an account of the collision between the troops and the mob at Pittsburgh, when he immediately procured a special train, and started on his return. These facts show that the troops were called out by the proper authority of the State, on a requisition of the civil authorities of the locality where the troops were to be sent.

We believe that neither the mayor of Pittsburgh, nor the sheriff of Allegheny county, had exhausted their powers under the law to disperse the mob before calling for troops, and that under the rules adopted by the commander-in-chief the steps prerequisite to ordering out the troops had not been properly taken by the civil authorities. The purpose for which the troops were called out was to assist the civil authorities in enforcing the law, and preserving the public peace, and it was at no time supposed by any one of the military officers that they superseded the civil power, although at some places they were obliged to act in the absence of the civil officers, the latter having run away, or refused to do anything to suppress the riotous disturbances.

The service and conduct of the troops was generally good, considering the circumstances under which they went into service, except in a few instances, which will be more particularly specified hereafter. It should be remembered that never before were the militia of the State placed in so trying a position as that in which they were placed in July last. Rarely, if ever, were regular soldiers placed in more trying circumstances. Called upon without a moment's warning, they left their homes, with but little or

no preparation, and hastened to the scene of the troubles. Nothing had occurred to give the people of the State or the railroad officials any indications of an outbreak at that time, but all at once the storm burst upon the city of Pittsburgh, and threatened its destruction. In this emergency the National Guard was called out, and most of the commands arrived at the scene of the troubles with great promptness, and there met a foe more formidable than they had any expectation of meeting. The active National Guard of the Commonwealth, being made up of volunteers from the people of the locality in which the military organization exists, is usually composed of all classes of the citizens of the locality, and the members of the military will, therefore, naturally be impressed with all the feelings of the community in which they reside, and be infected with any spirit of resistance to constituted authority that may exist among any great class of their neighbors.

Hence it is that this guard cannot be always relied upon to do its full duty in case of troubles at home, requiring the intervention of the military.

Not being brought up to the profession of soldiers, and the officers being their friends and neighbors, and when at home being no better and having no more authority than themselves, they are sometimes loth to obey orders when these orders run contrary to their wishes and inclinations. The military discipline, which comes from actual service, is wanting, and being accustomed to do their own thinking, having an opinion on all matters that come before them, and freely expressing it, it is very hard to come down to the condition of executing orders without a why or wherefore, even in ordinary cases; but when it comes to using their weapons against their friends, neighbors, and perhaps relatives, it is not to be wondered at if they sometimes waver in their duty. Every member of the active National Guard ought, however, to be taught that as a soldier it is his duty to obey the orders of his superior officers without question; that in case of a mob or riot in his neighborhood, strong enough to defy the civil authority, the organization of which he is a member is the first to be called upon, and that this aid to the civil powers is one of the principal duties which devolve upon him, and one of the principal reasons for maintaining such an organization. Taking into

account the difficulty of overcoming these natural feelings of men, a large majority of the troops called out in July last may be said to have behaved nobly. General Pearson has been severely censured for having (as was alleged) given the command to the troops at Twenty-eighth street to fire on the mob, and the troops have also been denounced for the firing which occurred at that point.

Your committee have found, from the evidence, that General Pearson did not give the orders to fire, but we are of the opinion that he would have been justified in so doing, and that if he had been present at the time, he would not have been justified in withholding such an order for a moment later than the firing actually occurred. Neither can any blame be attached to the troops themselves. They had been pelted with clubs, stones, and other missiles by the mob, and this was continually growing more severe, when some persons in the mob fired pistols into the ranks of the men, and others were trying to wrench their guns from their hands, and it had become a question of submission to the mob on their part, or to fire in self-defense before a gun was discharged by them.

As it is usually the case in such occurrences, some innocent persons were killed and others injured, but for this the soldiers were not to blame. Being where they ought not to be, their presence whether so intended or not encouraged the mob, and the soldiers could not in such a crowd distinguish friend from foe. Spectators ought to keep away from such mobs at all times and not let their curiosity get the better of their judgment and discretion. It has been questioned whether it was a wise movement to order General Brinton's command into the round-house and shops on the evening of the 21st. The move itself we do not care to criticise, but having been made, we think a stronger picket guard should have been thrown out, all approaches more thoroughly guarded, communication kept up with the Union depot, where the supplies of ammunition and food were stored, and whenever the mob began to assemble in the neighborhood a sufficient force should have been ordered out to disperse them, which could have been done with the means at General Brinton's command.

The great mistake was made by General Pearson in ordering General Brinton not to allow his men to fire on the mob when they began to re-assemble, and showed their murderous disposition by firing on the troops, and the other measures taken by them in the early evening. General Brinton asked for leave to fire on the mob when they began to assemble around the round house and fire on his men, but General Pearson would not allow it. It was of no use to march out for the purpose of dispersing such a mob unless the men were allowed to fire, if necessary, as blood had been shed, the mob had become enraged by this and emboldened by the position and apparent inactivity of the troops, and nothing but the most severe measures would now be sufficient to overawe and disperse them. General Pearson was evidently intimidated by the denunciation which he received, at the hands of the press and people of Pittsburgh, as the supposed author of the order to fire on the mob at Twenty-eighth street. In his evidence he states that if he had given the command to fire at Twenty-eighth street, and it had not been followed by the frightful destruction of property which ensued, he would have been tried, convicted, and hung for murder, such was the sentiment of the people of Pittsburgh at that time. We think he should have taken vigorous measures against the mob after the occurrences at Twenty-eighth street, and not have allowed it to assemble again in that vicinity, and that he ought not to have left the round house at the time he did. For what occurred after that time he is blameless, for on reaching the Union Depot Hotel he was practically relieved from his command by General Latta. We think this was a mistake also; that it was giving way to the sentiment still prevailing in Pittsburgh that the attempt to disperse the mob at Twenty-eighth street was wrong, and the killing of the persons at that place nothing less than murder. The military had commenced a move to accomplish a certain purpose under the lead of the sheriff, and as his posse; a collision had occurred, the sheriff had left, the mayor refused to cooperate with the sheriff or military, and it was the duty of the military officers to carry out the movement, (to wit: dispersing the mob,) in a vigorous manner, and not in any way be swayed from their duty by the sentiment above spoken of.

We think the order given by General Latta, sent by Sergeant Wilson to General Brinton in the round house, which closed as follows, viz: "If

compelled to escape at last, do so to the eastward; take Penn avenue if possible, and make for Guthrie, at Torrens," was a mistake. Some question has arisen as to the right of General Latta to give orders to General Brinton at all. We think that it is enough to say that General Latta was directed by the commander-in-chief to "go to Pittsburgh and keep supervision of all troops ordered out;" that he went there in pursuance of these directions, issued orders as if he understood himself to be at the head of military affairs after General Pearson left, was so recognized by all, and his orders obeyed as if coming from the commander-in-chief, and that, therefore, he cannot escape the responsibility of any orders issued by him, or the failure to take such steps as a military commander should have taken under the circumstances. If General Brinton was to leave the round house he should have been ordered to the Union depot, where he could have fed his men, and received a supply of ammunition, and from there he could have taken the most available position to disperse the mob and protect property. Of General Brinton's ability to have made this movement, if so ordered at any time, there can be no doubt.

Life would probably have been sacrificed in making such a move, but law and order must be upheld, even at the sacrifice of the lives of such persons as composed that lawless mob, or those who innocently mingled with it. The loss of life on the part of the troops could not have been greater than it was by pursuing the course afterwards taken, and it probably would have been much less, as mobs are always cowardly, and every demonstration made against this mob after the collision at Twenty-eighth street by any persons having authority, either civil or military, scattered it. Colonel Guthrie, with the Eighteenth regiment, should have been ordered from Torrens to Pittsburgh Saturday night, and the only excuse we can conceive for not doing this promptly, without waiting for the troops from Walls Station, is the fear that being Pittsburgh men they would refuse to obey any orders which would bring them in collision with the mob. This is not sufficient excuse. The proper order should have been given, as this regiment had not shown any insubordination, was not allowed to mix or talk with the mob, and would no doubt have obeyed all orders.

The conduct of the Fourteenth and Nineteenth regiments has been severely criticised by some, but many considerations are to be taken into account in coming to a just conclusion in regard to these men. The mob was made up in part of their neighbors and their fellow-laborers, and it was hard for them to take up arms to assist the sheriff in enforcing the law as against men having so much of their sympathy. This accounts for their dilatory movements in assembling when first called out, and the failure to report of many of their men. Their officers were to blame for allowing them to mingle with the mob, or rather for allowing the mob to mingle with them, and for the lack of strict discipline on Saturday, the 21st of July. Neither the officers nor men were to blame for their mismanagement on the night of the 21st, General Brown being alone responsible for that order.

This conduct of General Brown was unaccountable, until it was ascertained that he had been for some time previous suffering from severe physical ailments which had seriously affected his mind, and that he was not responsible for a failure in judgment at the time. It is no wonder the order called forth the indignant protest of Colonel Gray, but coming as it did from a superior officer, it was reluctantly obeyed. These regiments were afterwards sent to the coal fields, and there acquitted themselves like true soldiers.

As to the dispute between Colonel Norris and General Brinton, it is important only in treating of the conduct of General Brinton. The Adjutant General, in his evidence before your committee, stated that his duty was to assemble the troops, and that the command devolved upon the senior major general, (in the absence of the commander-in-chief,) who was General A. L. Pearson. He further stated that when General Pearson came to the Union depot hotel, before relieving him of his command, he was particular to ask him if he had left General Brinton in command, and that General Pearson replied that he had left him in full command. If General Brinton was in command, he had a right to act on his own judgment. But while General Latta's statement is correct when applied to him as Adjutant General, yet it must be remembered that he had assumed to act for the commander-in-chief, and gave orders to General Brinton during the night, and assumed the

direction of the troops. It is evident that General Brinton considered himself bound to obey the orders of the Adjutant General, and we take it for granted that he was. The important question then is, did General Brinton disobey the orders of General Latta? It is clearly proven and conceded by all parties that General Brinton did not receive the written order given to Captain Aull to convey to him until the 1st day of August, a week or more after it was dated. Colonel Norris says in his testimony that he did not deliver it as an order to General Brinton; that he did not consider he had a right to do so, but that he told him that Captain Aull was on the way to him with an order from General Latta, and communicated to him the substance of the order. He further said General Brinton said he might return if he got positive orders to do so. This remark shows that General Brinton did not receive it as an order.

And further, Captain Aull not reaching General Brinton during the day, in the evening he sent Major Baugh, a member of his staff, to the Adjutant General's head-quarters, at the Monongahela House, for orders. The Adjutant General gave Major Baugh a written order, which he delivered to General Brinton, who obeyed it promptly. If Colonel Norris had reported it to General Brinton as an order coming from General Latta, and General Brinton had received it as such, he would not have sent to head-quarters for orders, as he did. As your committee understand the evidence, all that Colonel Norris claims is, that he told General Brinton that Captain Aull had an order for him, and communicated the substance of it to him, and that General Brinton understood it. True, that in this he is disputed by General Brinton, but it is not necessary for your committee to settle this question of veracity between them. The only question for us to settle is, did General Brinton disobey the order? We do not think that he did. Colonel Norris does not say he gave him the order. He simply told him Captain Aull had an order, giving him the substance of it. General Brinton, it seems, did not consider it his duty to act until the order reached him. Captain Aull not reaching him, he did what was very proper, sent to head-quarters for orders.

General Brinton has been censured for going so far out from the city, and not staying in its immediate vicinity. No one in his position could be

expected to do differently. Ordered into the round house, not allowed to fire on the mob which was gathering around with the avowed purpose of killing his men, hooted at by the same mob which cheered the Pittsburgh troops, the Pittsburgh troops disbanded at a time when the mob had surrounded and besieged the shops in which his command was stationed, fired at from the windows of the houses, street corners, and even from a police station, not an official (except the sheriff) or citizen of the place to come near him at any time, or express a word of sympathy or encouragement in the disagreeable and delicate duty he was bound to perform, and after all, rebuffed at the United States arsenal, where he expected aid and sympathy, he had good reason to believe he was not wanted in the city, and needs no excuse for putting a reasonable distance between his command and that place.

The Sixteenth regiment seems to have been the most unreliable of all the regiments called on for service during the time of the troubles. Company I was disbanded in dishonor, for insubordination, cowardice, and mutinous conduct in disobeying orders and furnishing ammunition to rioters at Reading, by Major General Bolton, and he afterwards disbanded companies C, D, E, and H for mutinous conduct, subject to the approval of the Governor. The bad conduct of these companies commenced before they left home, in refusing at first to go aboard the cars, and continued until they got back again. The Fourth regiment, after having a serious collision with the mob at Reading, and behaving like men through that trouble, became badly demoralized by the action of the above named companies of the Sixteenth regiment, and, for a day or two, was entirely unreliable, but afterwards recovered its morale and did good service. A squad of some fifteen or twenty men, of General Brinton's division, (company and regiment not known,) which failed to report in time to leave with him for Pittsburgh, afterwards came on and were stopped near Altoona, and being unable to go further came back to a short distance above Harrisburg, and then left the cars to pass that place on foot by a circuitous route, as it was reported that the mob was in possession of the railroad, and would allow no soldiers to pass through. This squad stopped at some place across the river from Harrisburg. Some two hundred to two hundred and fifty men and boys, on

the 23d of July, went across the river and came back escorting this squad of soldiers, a lot of boys carrying their guns, and they were taken to some place near the railroad, fed and afterwards put on the cars for Philadelphia. Such an isolated instance as this ought not to condemn the command to which it belongs, but it is discreditable to those engaged in it, and, it is learned, a court-martial has been ordered to sit on their case.

The National Guard of the Commonwealth is a necessity, and in a State like ours, with large numbers of illiterate and unprincipled men concentrated in certain localities, many of whom are foreigners, and imbued with the spirit of foreign communism, which is spreading in this country, the Guard must occasionally be called on as a posse to assist in enforcing the law; but it never should be called on until all other means are tried and exhausted. It has become too common to call on the Governor for troops, in ease of a mob, and the experience of the summer of 1877, demonstrates that in any community where the civil authorities and the citizens wish the law enforced, and act together harmoniously and vigorously, order may be maintained and mobs dispersed without the intervention of the military. At Philadelphia, large and angry mobs were dispersed by the police, which, if allowed to have been together for a day or two, would have become so strong, as to defy the ordinary authorities, and the result would have been riot and destruction. It was the same at Harrisburg, and also at Scranton, except at the latter place the city council refused to cooperate with the mayor and citizens, but notwithstanding this disadvantage, the wisdom of the measures of the mayor was vindicated at the first collision with the mob. It is but just to the people of Pittsburgh to say that the above places had the example of the latter place before them, and had learned the danger of temporizing or in any way sympathizing with anything like a mob, however just they may believe their original demands to be.

In conclusion your committee adopt the following clause of the Governor's message, which fully coincides with their views, viz:

"I have been thus solicitous to present the conditions of a militia campaign, because the conduct of our troops during the late crisis has elicited every

variety of criticism, from mild censure to absolute condemnation, and because there has grown up in Pennsylvania a spirit of caviling at its militia, in marked contrast with the kindly feeling and pride manifested by other States towards their citizen soldiery. Now, that a temperate review of the facts may be made, I believe it will not be considered a partial judgment to say that during the conduct of the State troops during the late strike was, upon the whole, commendable and creditable. In Pittsburgh before a final decision, many considerations must modify our judgment. The conditions were not purely military. It was not simply a question of preserving a body of soldiery intact, of holding a position or defeating an enemy. Expecting to march into a friendly community, whose moral support would be cheerfully given them, they entered a practically hostile city, were denounced and threatened by press and people, and attacked by men who lurked in the security of a sympathetic crowd, and used women and children as shields and instruments. If, under such circumstances, their action lacked the energy and severity that purely military canons would have justified, it cannot be a matter of surprise, that having so long been accustomed to peace, they were unable to comprehend at once the sudden conditions of war. As it was, though not executed with the skilled precision of regular troops, the movement accomplished its purpose, and the failure to move the freight trains out of the city, to which more than any fact the subsequent burning is attributed, was the result of the want of cooperation of an adequate and competent police, and the desertion, at the critical moment, of the railroad employés.

"The behavior of the Pittsburgh troops, in a military sense, is without excuse; but was it any worse than the defection of officers and men in the regular army, who, in 1861, deserted their comrades in arms to join the communities in which they were born and bred? Such things are not military, they are political or social; and it cannot be expected that they should be judged by the severest military code. It was, in fact, the temporary excitement of unthinking men, carried away by the universal clamor around them. For that reason, when the burst of passion was over, I re-instated them; otherwise, new troops would have had to be enlisted, while these might be trusted to have a keener sense of duty, from a desire to

retrieve their fame. In the case of the Philadelphia troops, although disheartened by being placed on the defensive, and a part of the command demoralized by a too precipitate retreat, the general steadiness and obedience to orders, under comparative hardships, and in real danger, show them to have been composed of the best of soldiery material. The failure to subdue a city in insurrection against the laws is not to be attributed to the want of courage, capacity, or fidelity in the officers and men, but to a natural disinclination to take life indiscriminately, and the uncertainty as to how far, under the laws, they could exercise a purely military discretion. For myself, I have every confidence in the Guard, and shall not hesitate, if another occasion should unhappily arise, to rely upon its fidelity and courage. The after service of the Guard, when assembled together, prepared for active campaigning, was all that could be desired. The fact that as many answered the call for a service likely to be long and dangerous, as assembled in the pleasant encampment at the centennial, is conclusive proof of the general zeal and fidelity of the troops."

The causes which led to the riots are, in the opinion of your committee, as follows, to wit: The riots grew out of the strike of the railroad men, and the strikers themselves were the protest of the laborer against the system by which his wages were arbitrarily fixed and lowered by his employer without consultation with him, and without his consent. There are many other causes that combined to bring about the strikes, but the cause mentioned underlies the whole question, and it is the foundation of all the trouble.

Instead of capital and labor working together in harmony, as their community of interests would dictate, a conflict has been growing up between them, which, if not averted or discontinued, will lead to more serious troubles than any that have yet occurred, and which must result, as all such conflicts do, in the defeat of the labor interests and in consequence thereof placing labor at a still greater disadvantage than it now occupies. This conflict has been engendered and kept up by demagogues who, for their own advantage, seek to control the votes of the laboring men for base and partisan motives and who, in order to more surely secure their ends, profess to be the only and true friends of the laborer, and persistently

misrepresent the capitalist. It is much easier to move a body of men (which, like a large portion of the laboring class, has but little time to investigate the problem of the true position of labor and capital towards each other) by appealing to passion and prejudice, and in this respect your demagogue knows the material he has to work upon and allows no scruples of either honesty or modesty to restrain him. He is the leading spirit in organizing and keeping up so-called labor organizations of one kind or another, and which organizations, as heretofore managed in this country, have never resulted in any advantage to the men in whose ostensible interests they are gotten up, but, on the contrary, have inflicted untold damage on them. The demagogue likes to be appointed to some position in the labor organizations, and is not slow in suggesting a traveling agent or lecturer, with some supposed duty, where he can travel about the country, living at his ease on the fruits of the hard labor of his comrades, and spending freely the money that is as freely furnished him.

Why cannot the laboring men of the country see through the flimsy disguise of these men, and look at them as they are, the leeches and vampires who prey upon the life-blood of the interest they profess to befriend. There are men in all parties who have, or claim to have, some reputation as statesmen, who are not above the arts of the common demagogue, and who seem at times to be running a race with him to see which can stoop to the lowest tricks to secure the votes of the dear laborer. By the efforts of these men, and the tricks they practice, this conflict has been brought on. But the capitalist himself has not been blameless; instead of, in the common phrase, meeting his workmen half-way, and trying to come to a fair understanding with them, he has put himself on his dignity, and has placed all the blame of the results brought about by the demagogue upon the laborer himself. He must remember that the laborer is human, with hopes and aspirations as well as passions and prejudices, and that it is much better to cultivate the former by fair, frank, and courteous treatment, than to inflame the latter by the opposite course. The laborer believes, as he has a right to believe, that his wishes should be sometimes consulted, and that he should be recognized as one of the parties to the contract, and as such, fully consulted whenever the same is to be changed or abrogated. We believe it is in the power of the

capitalist who is an employer of men, by fair, frank, and just treatment of his employés, not only in the immediate question of wages, but also in looking after their social and educational interests, to completely undermine and destroy the occupation and influence of the demagogue spoken of, and create that mutual trust and friendship which ought to exist between labor and capital, and thereby put an end to the frequently recurring strikes which inflict such serious damage on the business of the country, and do no man or set of men the least particle of good.

Many instances of the favorable results following such action might be given, but we will only refer to one instance, which occurred in Yorkshire, England. Titus Salt, whose father was a woollen manufacturer at Bradford, in Yorkshire, at the age of twenty-one years, started out in business for himself, by hiring a small mill and one or two men, who, with himself, did the work of the establishment, and so diligently and wisely were his affairs managed that in a few years he found himself doing a successful and rapidly increasing business, and by a lucky discovery of the value of the wool of the Alpaca sheep, and its manufacture in dress goods, he soon acquired a fortune. This necessitated the enlargement of his mill, and to do this the more conveniently, he moved some two miles from town and erected a large manufactory, in which he gave employment to some four thousand operatives. Having been a laboring man himself, he knew the needs and wants of the laborer, and he accordingly erected neat and convenient cottages for the use of his employés, which were rented to them at a moderate rental, with the privilege of buying to those who were able, thus assisting them to procure a home of their own, and giving them a substantial interest in the success of the business they were employed in. He also caused to be erected churches which all could attend, and also school-houses, wherein every child could receive a good and thorough education. A public park was laid out and completed, bath-houses built, and clubs and lyceums established, Mr. Salt taking the lead and encouraging his people to carry out and sustain these institutions. In a short time a thriving town was built up which was named Saltaire, in honor of its founder, and here the laborer has an opportunity to enjoy himself like other human beings, with no thought of occasion for strikes, the employer or capitalist and employés

all feeling a common interest in the fortunes of their place, and with none of the jealousies or prejudices now commonly existing between these two classes. Mr. Salt has been created a baronet, but this can add no additional honor to the name of a man who has successfully solved the problem of the true relations between labor and capital, and who has taught the capitalist to what noble duties it is possible to devote himself, and the laborer, that the barrier between the sympathies of the master who employs and overlooks, and the man who works, may be broken down in other and better ways than by hostile combination. Such a town as Saltaire, with its neat cottages, pleasant parks, clean streets, fine churches and schools, where labor is respected, and intemperance banished, is a better monument than any made of marble or stone, and will perpetuate the name of its founder more surely and completely than if he had made a fortune by grinding down his human help to the last farthing, and then on his death-bed bequeathing it to some public institution.

The immediate cause of the first strike which took place in Pennsylvania, in July, 1877, to wit: that at Pittsburgh, July 19th, was the order by the Pennsylvania Railroad Company to run "double-headers" from that place to Derry. This order of itself, had there been no previous reductions of wages or dismissals of men on account of the depression in business, would probably have caused no strike, but following so soon after the second reduction, while the ill feeling engendered thereby was still having its effect on the men, together with the spirit of independence and probably recklessness which was brought about by the organization of the Trainmen's Union, with its general plan for a strike on the 27th of June, and the feeling of uneasiness and dissatisfaction existing among the laboring men of the country generally, caused by the want of labor and the low price thereof as compared with a few years previous, all together combined to set in motion this strike, which was followed by results so disastrous as to be forever memorable in the history of the State, results unforeseen and unanticipated at the commencement by the actors therein. The few trainmen who refused to take out the freight trains on the morning of July 19th, while not intending or wishing to cause any destruction of property or loss of life by their action, still cannot escape the primary responsibility of the fearful

scenes enacted at Pittsburgh during the few following days. The order which the railroad company made was one it had a right to make, and if the men did not wish to work under the order, they had a right to refuse to do so. So far there can be no question among reasonable men. The order having been promulgated several days before it was to go into effect, gave the men plenty of time to consider its effect, and if they did not wish to go out on double-headers, fair treatment would have dictated that they should have given the officers of the company reasonable notice of their decision prior to the time at which the order was to take effect, but this did not comport with the intentions of the men. They not only did not intend to work themselves under that order, but they did not propose to allow those who might be willing to accept service of the company on the double-header trains to do so, and when they combined together and raised their hands to prevent other men from working, they committed an act for which there can be no excuse.

It was hard for them to see not only their wages cut down, but also to see an order issued, which, if carried out, would result in the discharge of one half of their number, at a time when work was not to be had, but this does not justify, and cannot excuse their interference with the right of a corporation to take such measures as it may think most beneficial for its own interest, so long as it does not interfere with the rights of others, and especially can it be no excuse for one man, or set of men, who do not wish to work under certain regulations, to interfere with those who are willing to do so. The property of all citizens must be protected, and the laws must be enforced, and those who undertake to interfere with the one, or stand in the way of the enforcement of the other, must learn, however severe the lesson, that these things cannot be tolerated in a land of liberty and of law, and that however much trouble and expense they may succeed in inflicting on the subjects of their spite, in the end law and order will triumph, and those who stand in the way are those who suffer the most.

Every violation of law, if suppressed or punished, is done so at the expense of the community where the violation occurs, and the greater the violation the greater the expense. This expense must be met by taxation, and as

taxation is so arranged as to reach every member of the community, the result of this, therefore, is that the person who creates a disturbance or commits a crime which requires the intervention of the officers of the law, is forced to pay from his own pocket a portion of the expense incurred in its vindication.

The practice of a little arithmetic ought to convince any one that violating the law is a very expensive luxury, besides bringing him into disgrace and subjecting him to a penalty. This argument is not intended for the professional criminal, as it is not expected that he can be reached by any argument, but it is hoped that it may reach those who usually intend to be law-abiding citizens, and whose fortunes are affected by the good or evil fortune of the community in which they reside, and that this class may be induced to pause and consider before they attempt to use unlawful means to redress any grievances, however great it may seem to them. The destruction of property, although it may belong to a corporation, results in a direct loss to the labor of the country. It is conceded that all property and capital is created or produced by labor, and, therefore, any absolute loss, by the destruction of either, must, in the end, fall upon the laborer. The argument sometimes used, that if property is destroyed its replacement gives employment to the laborer, and that, therefore, it is a benefit to him, is fallacious, for the reason that the capital necessary to pay for the reproduction of the property destroyed must be originally created by labor. The capitalist who loses his property by fire is much less able to furnish employment than he was before, and if this destruction overtakes the property of a whole community, capital to replace what is lost must be drawn from some other locality by borrowing, and while times may seem prosperous during the time the re-building is being done, yet there has been an actual loss to the community, which, sooner or later, must be felt. The draining of capital from one place, to any great extent, causes its loss to be felt there, and there is no way in which the destruction of property, in one place, can be made good there, without the loss being felt somewhere, and in the end most fully and completely realized at the locality where it occurred.

The effects of such destruction of property may be temporarily prevented by bringing capital from other localities, as before suggested, and business affairs may, for a time, seem even more prosperous than ever; but when the capital thus brought is to be repaid, comes the re-action, and the loss is felt even worse than it would have been had no such borrowing have taken place. Witness the city of Chicago, as a notable instance in the recent history of the country. The buildings destroyed by the great fire at that place were speedily rebuilt, a good portion being done by borrowed capital, and it was really surprising to see with what amazing rapidity the losses seemed to be replaced, and the city rise, as the phrase goes, "Phoenix like from its ashes." Business went on, seemingly, as brisk as ever, and it was boastingly proclaimed that Chicago beat any city on the continent in recuperating power, and that it was a greater city than before the fire. But pay day must come. The property destroyed had been replaced, but not by the creation of capital by labor. The seeming wealth had no substantial foundation, the re-growth having been too rapid to come from this source, and how stands that city to-day?

The city treasury bankrupt, with a very serious question arising whether the municipal government can be maintained much longer, and private bankruptcy on every hand, for the pay day has come to considerable of the indebtedness, and the shift of borrowing cannot be resorted to forever. The lesson to be drawn by the striking laborers of Pittsburgh, from this illustration is obvious, and it should be taken to heart and pondered on by all labor organizations throughout the country, lest, by their unwise and hasty action, they may strike a blow which will re-act on themselves with treble the force with which it is aimed at some corporation or capitalist. It may be expected that an opinion will be given as to whether or not the Pennsylvania Railroad Company were justified in making the reduction in wages of ten per cent. on June 11, 1877, and, ordinarily, the question might be answered that this, or any other, corporation or individual has the right to pay such wages as it or he pleases, and to require such services for the money paid as it or he may choose. This rule must be received with considerable modification, in the case of a great corporation, receiving

special privileges from the State, and employing thousands of men, scattered from one end of the State to another.

If such corporation should execute a written contract with all of its employés on taking them into its service, specifying fully and particularly the hours and service required from them, the length of time for which each was hired, and the causes for which he could be discharged, no one would claim that they could vary the terms of that contract, without the assent of the employé. From the manner of the employment of the railroad employés in this country, and especially of the trainmen, there is in good faith an implied contract that the employé shall continue to receive the wages the company is at that time paying for the particular duty which he discharges, until the price is changed by mutual consent, and that his term of service shall continue as long as he behaves himself well and performs the services required of men in his position. This ought to be, and is in equity the implied contract between the parties, although not legally enforceable. But the railroad employé has a right to expect such treatment by the company into whose employ he enters. He is required to be on hand whenever called for, to give his entire attention to the business of the corporation, and he settles down with his family in such place as will make it most convenient for him to attend to the business of the company. His whole services are theirs, his arrangements are all made with reference to their business, and when he is discharged, without any reasonable cause, without any prior notice, or his wages reduced while his labor is not reduced, and, as is sometimes the case, increased without his consent, and the order for that purpose made without consulting him in any manner, he has a right to find fault. He is like a soldier, whose whole time has been spent in the service. His occupation is more dangerous than that followed by others, and the kind of services he has to perform unfits him for other duties, and railroad officers should always take these facts into consideration in dealing with him.

The wages of the trainmen, after the reduction in June, 1877, were as follows, to wit; Freight conductors: first class, two dollars and twelve cents per day; second class, one dollar and ninety-one cents per day; brakemen,

one dollar and forty-five cents per day, and the day's work averaged from seven hours and twenty-five minutes, the shortest time, to eight hours and thirty-five minutes, the longest time. These wages were good wages for the amount of labor performed per day, and if the men could make full time, would amount to thirty-eight dollars and seventy cents per month for brakemen, and fifty-five dollars and twelve cents for first class conductors. This was higher wages than the same class of men could get in other employments and seemed to be, as stated by the president of the Pennsylvania Railroad Company, some twenty per cent. higher than the wages paid in other lines of business, the company intending to keep the wages of its men about so much more than is paid in other occupations on account of the risk taken by the trainmen. It is claimed by the railroad officials that the depression in freight traffic on the railroads, both in amount and in price, required a consequent reduction in the expenses of the railroads, and the reduction of June, 1877, they asserted to be justifiable, under all the circumstances, and it is the opinion of your committee that, if before it had gone into effect, the men had been made fully acquainted with the reasons for the step taken, and the necessity of it, in short, treated as if they were reasonable men and entitled to consideration, very much of the dissatisfaction would not have existed, and the country might possibly have been spared the troublous scenes through which it passed at that time. No doubt the fact that a strike of the trainmen of the Baltimore and Ohio railroad had taken place at Martinsburg, West Virginia, on the 16th of July, and was gaining strength and headway, had its influence in determining the trainmen of the Pennsylvania railroad, at Pittsburgh, to commence their strike at that place, and, in consequence thereof, a much less grievance was needed than would otherwise have sufficed, as an excuse for their action. The fact, also, that the trainmen on other railroads were rapidly following suit, and stopping the running of freight trains on such roads, encouraged the men to persist in their course to stand out and prevent, by force, trains from being run on the Pennsylvania railroad.

There seemed at this time to be an epidemic of strikes running through the country, not only among the railroad men, but among all classes of laborers, and this helped to precipitate and bring about strikes at all the places about

which this report will treat. The general feeling of uneasiness existing among the laboring classes of the country before mentioned, and the sympathy felt by these classes for each other made them very susceptible to anything which affected their fellow laborers, and, to use a medical phrase, the labor system was in a good condition to receive the epidemic which was spreading over the country, and in a very poor condition to resist and throw off the disease. The strike once inaugurated at Pittsburgh, was strengthened and encouraged by the sympathy the strikers received from nearly all classes of the citizens, and more especially by the sympathy shown by the city officials. Had the community frowned on the attempt of the strikers to prevent, by force, the running of freight trains, as it should have been done, and had the civil authorities shown a firm determination to enforce the law at the outset, as it was their sworn duty to do, there can be no doubt but the mob would have been dispersed without bloodshed and riot, as it was in Philadelphia, Scranton, and other places. Philadelphia and Scranton are particularly mentioned, for at these places there is a much larger proportion of the turbulent class than at Pittsburgh, and consequently a great deal more of the material of which riotous mobs are composed. When any community winks at a small violation of the law, by any person, and more especially by a combination of persons, it is laying the foundation for trouble and difficulty. A crowd of people assembled for the purpose of accomplishing, however worthy, a purpose in a questionable manner, is very easily converted into a riot, and when a crowd proposed to carry out an unlawful object by violence it soon becomes an uncontrollable mob, if encouraged in its purposes by the sympathy, either expressed or passive, of the community and the civil authorities. The small show of force made by the police in the spasmodic manner, it was on July 19th and 20th, was worse than if no police force had ever appeared on the ground, for the strikers knew they had nothing to fear from them, and the lawless characters, who had begun to gather around, construed this action as a sort of license to do what they chose as long as they interfered with nothing but railroad interests.

The refusal of the mayor to go to the scene of the disturbance himself, when specially requested to do so, and to raise a special police to meet the emergency, is inexplicable on any theory of a wish on his part to do his duty

and enforce the law, and when contrasted with the vigorous measures taken by the mayor of the sister city of Allegheny, and of nearly every other place in which riots occurred, must be most humiliating to the people who elected such a man as their chief magistrate. Had he shown a proper appreciation of his duty by going to the grounds of the railroad company when requested, he would have known better the extent of the troubles threatened, and if determined to enforce the law, could have prepared to do so by swearing in special policemen, as was done in all other places. If he chose to rely on a subordinate to do what was manifestly his duty, and that subordinate failed from any cause, either incapacity or sympathy with the mob, to appreciate the danger, and take measures to prepare for it, the responsibility must still rest on him. His evidence, that he received reports from his officers through the night of the 19th and 20th, that all was quiet, is belied by all the testimony in the case. When a call was first made by the railroad officials for ten policemen, and for his personal presence, followed in a short time by a call for fifty policemen, and that by a call for one hundred and fifty, most men would have concluded that all was not quiet, even if the police should report to the contrary. This taken in connection with the fact that the morning papers of the 20th, contained the call of the sheriff on the Governor for troops, and the orders for the troops to assemble, and that this was done only after an appeal, soon after midnight, by the sheriff in person to the crowd to disperse, and their answer to him by blasphemy, and hooting, and yelling, and other indignities would leave the people generally to believe that the mayor had willfully shut his eyes to what was transpiring on the premises of the railroad company.

Very blind or confiding policemen they must have been that night of the 19th and 20th, and very confiding was the mayor to go to Castle Shannon, a distance of six miles, and let matters take care of themselves. The mayor, to excuse himself for doing nothing after the sheriff made a call for the troops, says that he considered himself superseded by the sheriff and by the military. It has usually been considered that the military was subordinate to the civil authority, and that the clause of the Constitution, which reads: "The military shall, in all cases, and at all times, be in strict subordination to the civil power," means something, and was placed in the Constitution for a

purpose. If the construction of the law, given by the mayor, is to prevail, people have been very much mistaken in their understanding of what is the law, and that all the military need do, under the mayor's dispensation, is to get some authority to call them out, and then, as they supersede the civil authority, they have full control, and can decide for themselves, when the necessity for their services has ceased, and can, therefore, take charge of the affairs of the community as long as any ambitious officer may elect. It is a new doctrine, this of the mayor's, in this country, and he must excuse this committee if they fail to take any stock in it. The other excuse given by the mayor for his inaction, to wit: That the men (meaning the sheriff and military officers,) who had charge of matters after the 19th, were narrow gauge men, and he could not coöperate with them in their views, and the measures necessary to be taken in the emergency, is also untenable. It does not appear that he ever consulted with these men, or any one of them, in regard to what should be done, while it does appear that he was sought after, and frequent attempts made to consult with him by the railroad officials, until they learned that nothing could be expected of him. If his excuse for neglecting his duty in the matters within his immediate jurisdiction, (to wit: Keeping the peace, dispersing a mob, and enforcing the law in the city of which he was chief executive officer,) is a valid one, the others might, with the same propriety, claim that his gauge did not suit them, and, therefore, they could not coöperate with him, to keep the peace in his bailiwick, and refuse to do anything, and the mob allowed to have its own way.

If the officers referred to were superior to the mayor, he should have done what he could to coöperate with them, in dispersing the mob, and suppressing the riot, and on them would rest the responsibility for the measures they adopted; if they were not superior to him, then even he will not claim that he had a right to do nothing. All peace officers (and the military when called out to suppress a riot, is only a posse for the peace officers) are expected, and it is their duty, to coöperate for the purpose of keeping the peace. An officer, willing and anxious to do his duty, will never object to do what he can to enforce the law because some other officer or officers are trying to assist in the same object, even if they do not consult

him, while one who is looking for some excuse for evading his duty is very apt to find one that will satisfy himself, although it may be satisfy no one else. Mayor McCarthy, at any time on the 19th day of July, at the head of a determined posse of fifty men, could have dispersed the strikers, and allowed trains to go out, and the trains once running, the strikers would have given up the contest. On the 20th of July, the mayor, with one hundred men, could have dispersed the crowd, and by the arrest of a few ringleaders broken the strength of the strike.

These statements are made on the supposition that the mayor had been in earnest, and acted with the vigor that characterized several of the mayors who were called upon for the same duty in their respective cities at nearly the same time.

The mob knows instinctively the feelings of the bystanders and officers, and a little encouragement makes it very bold, while a determination to enforce the law by a few brave officers will cause the same mob to disperse, for it is an old and true saying that mobs are cowardly. This report has already stated, as a matter of fact, proved by the evidence before the committee, that all classes of the citizens of Pittsburgh sympathized with the trainmen in their strike. Some of the citizens claim this is hardly true, but most of them admit it, but deny that any of them sympathized with the riotous conduct of the mob and the destruction of property by it. The best description of the feeling of that community was given by Sheriff Fife, who testified that there was a general sympathy with the strikers; the entire laboring class sympathized with them; the merchants sympathized with them to a certain extent; that the responsible portion of the people of Pittsburgh were not in sympathy with the riot, but that it took a certain amount of riot to bring them to their senses. That this sympathy with the strikers pervaded the whole community does not admit of a reasonable doubt. There may have been, and no doubt were persons who did not sympathize, but they were isolated cases, and so few as to be of no use in controlling or directing public sentiment. There are a great many evidences of this aside from the direct testimony of most of the witnesses who were asked the question. The fact that Sheriff Fife testifies to that he did not

undertake to raise a posse to disperse the mob before calling on the Governor for troops, as it would have been folly to have tried it in the city for he knew the feeling of the people, he might possibly have raised a posse in the country, if he had had time, is one evidence. On Saturday, the 21st, he sent out twenty deputies to raise a posse to assist in arresting the ringleaders, and they did not raise an average of one each, after, as they testify, making a vigorous effort. The action of the Pittsburgh troops, also shows that the same feeling of sympathy pervaded them, and the actions of the mayor and police show conclusively the same thing, so far as they were concerned. The editorials in the newspapers of the city show as strongly as any evidence can, where the sympathy of the community was, these being the best exponents of public sentiment when not repudiated by the people. The prejudice among the shippers over the Pennsylvania railroad against that company on account of the alleged discrimination in freight against them, caused them also to sympathize with the trainmen, and the general feeling was, after the commencement of the strike, to let the company take care of itself. No one can doubt that the existence of this feeling in the community was well known to the strikers, and that it encouraged them to hold out in their purposes and make them more bold in their adoption of measures to resist the company, and prevent by force any freight trains from leaving Pittsburgh.

This feeling of boldness and confidence in disregarding the law communicated itself to the new comers in the crowd, many of them being the worst criminals and tramps, until the mob became so confident that they could do as they pleased, that they did not believe any serious attempt would be made to disperse them, until the railroad company had yielded to the demand of the strikers, and that if such an attempt should be made they could easily repel it. None of the citizens had the remotest idea that the strike would culminate in any serious riot or destruction of property, neither did the strikers themselves expect this would be the result, but the resistance to law once started, the original movers soon lost all control of the movement, and the consequences were such as to astonish the most reckless among them. No one could have foreseen the result, and the experience of the people of Pittsburgh, with strikes prior to that time, had not been such as

to lead them to anticipate anything serious in this case. There being many manufacturing establishments in and around that place, employing a large number of men, strikes were quite familiar to them, but as they were usually confined to the men of one establishment, or one branch of trade, they were arranged without serious disturbance of the public peace, and no one realized the danger in winking at the course of the strikers in this case. No strike had ever before taken place under such favorable circumstances to make trouble. Never before were so many of the resident laborers out of work, never before was the country so filled with tramps to flock to such a scene of disturbance, never before was the laboring class of the whole country so ready to join in a move of that kind, and never before were the civil authorities of the city so utterly incompetent to deal with such an outbreak, or if not incompetent, then criminally negligent, in not making an earnest effort to enforce the law. The railroad riots of 1877, have by some been called an insurrection, for the reason that strikes occurred at nearly the same time on several of the main trunk lines of the country, that several Governors of States issued proclamations warning the rioters to disperse, &c., some of them calling on the President of the United States for troops to assist the civil authorities in dispersing the mobs and enforcing the law, and the large number of men engaged in these troubles in the different parts of the country. Insurrection is defined to be "a rising against civil or political authority; the open and active opposition of a number of persons to the execution of law in a city or State; a rebellion; a revolt."

The railroad riots in Pennsylvania were not a rising against civil or political authority; in their origin were not intended by their movers as an open and active opposition to the execution of the law. Most of the riots were the result of the strikes by a portion of the railroad men, the strikes being intended to bring the railroad officers to a compromise with the strikers, of the differences between them. In some places the men merely proposed to quit work, and not interfere with the running of trains by any men the railroad authorities could get; in other places they would not allow other men to work in their places, nor railroad officials to send out freight trains, if in their power to prevent. It was in no case an uprising against the law as such, but a combination of men to assert an illegal right as between them

and the railroad company. There was no organized movement throughout the country, no pre-arranged plan of the trainmen to prevent the running of freight trains by violence or combination, understanding or agreement between the men on any one railroad and the men on another. Each strike was independent of those on other roads, each having a local cause particularly its own. As before stated, there was a sort of an epidemic of strikes running through the laboring classes of the country, more particularly those in the employ of large corporations, caused by the great depression of business, which followed the panic of 1873, by means whereof many men were thrown out of work, and the wages of those who could get work were reduced to correspond with the reduction in the prices of all commodities and the reduced amount of business to be done. Each strike, except at Reading, although commenced originally by men then at work for a railroad or some other corporation, to carry out their own purposes, was soon joined by all the idlers and vagabonds in the vicinity, and these being by far the largest in number, soon took the movement out of the hands of the originators and carried it clear beyond anything they ever anticipated. The vagabonds having no object but plunder, and having no particular interest in anything else, were ready to resort to violent measures to accomplish their object.

The immediate cause of the strike at Pittsburgh was not similar to any other that has come to the knowledge of this committee, it being the order to run double-headers. No such cause existed anywhere else, and, therefore, the troubles there could not be considered as a part of any general understanding between trainmen. At Reading, the railroad men were not engaged in any strike, nor did they take any part in the riots there. The troubles there were caused solely by idle men, who had some time previously been discharged from the employ of the Philadelphia and Reading Railroad Company, and for the purpose of venting their spite on the company. At Scranton, although there had been a strike of the railroad men, this had been adjusted, and the men were at work again, when the riots occurred, the riots being engaged in by the idle men and striking miners and mill men. If a riot, growing out of any of these isolated movements, is to be called an insurrection, or if these movements, altogether, are to rise to the

dignity of an insurrection, then the word must be given a new definition, for as it now stands, there must have been some pre-concerted arrangement between the men at the different points, to resist the laws of the country, or the move at some point must have been for the purpose of resisting constituted authority, and not the mere purpose of forcing railroad companies, or any other corporations, to come to terms with the strikers, by obstructing the business of the railroad or other corporation. No pre-concerted arrangement of any kind has been proved before your committee, although such persons as might be supposed to know the fact, if it existed at all, were subpœnaed and testified before us, and all of them positively deny that there was any concert of action whatever, among the trainmen, for a strike after the 27th of June, and a local cause for the different strikes in Pennsylvania is given by them all. It has been asserted by many that no rioting or destruction of property would have taken place at Pittsburgh, if the troops had not been called out, and had not fired on the mob. The trifling with the mob, at this place, by the civil authorities, and the sympathy shown by the citizens, with the original strikers, had emboldened and encouraged it to such an extent, that when the Philadelphia troops arrived on the ground, it had, no doubt, got beyond the control of the civil power, as then constituted, and there can be no doubt of the necessity for the presence of those troops. Such mobs as that at the Twenty-eighth street crossing, on Saturday evening, July 21st, at the time the Philadelphia troops were marched out there, would never have dispersed without making serious trouble, troops or no troops.

How long it would take a mob to disperse and melt away of its own accord, which on Thursday numbered from fifty to two hundred men, on Friday from five hundred to fifteen hundred, and on Saturday from two thousand in the morning to seven or eight thousand in the afternoon, and which was growing all the time more turbulent and excited, we leave for the advocates of the do nothing policy to determine if they can. The firing on the mob by the troops, and the subsequent inaction precipitated and aggravated its action, but did not create the riots. When a great line of public travel and traffic like the Pennsylvania railroad is blockaded by a mob, the public interests suffer more than the railroad interests, and every day that it is

allowed to continue, damages the community to the extent of thousands of dollars, and it was the duty of the local civil authorities to adopt the most vigorous measures to break the blockade, but if instead of doing this, they temporize with the mob until, in consequence thereof, it becomes too strong to be suppressed by them, and the troops of the State are called on for assistance, the latter cannot be said to have caused the riots, or held responsible for the consequences of an honest effort to enforce the law. If the rioting was caused by the calling out of the troops, and their subsequent actions, then the claim that that was an insurrection falls to the ground, and if there was an insurrection, then the troops cannot have been the cause of the rioting, as the two positions are inconsistent, although held and advocated by a number of prominent men.

All of which is respectfully submitted.

JOHN E. REYBURN,
Chairman.
E. D. YUTZY,
W. L. TORBERT,
Committee of the Senate.
W. M. LINDSEY,
Chairman Joint Committee.
D. C. LARRABEE,
A. F. ENGELBERT,
SAMU'L W. MEANS,
P. P. DEWEES,
Committee of the House.

Laid on the table.

PROCEEDINGS AND TESTIMONY.

SENATE COMMITTEE ROOM,
HARRISBURG, *February 4, 1878.*

The committee met and organized by the election of the following officers:

W. M. Lindsey, *Chairman.*

Samuel B. Collins, *Clerk and Stenographer.*

J. J. Cromer, *Sergeant-at-Arms.*

—— ———, *Messenger.*

Adjourned to meet in Pittsburgh, on the 6th instant.

ORPHANS' COURT ROOM,
PITTSBURGH, *Wednesday, February 6, 1878.*

The committee met at half past ten o'clock, A.M., this day, in the orphans' court room, city of Pittsburgh.

The roll of members being called, it was found that all the members were present.

The committee engaged in a consultation as to the mode of procedure in taking testimony—as to whether the sessions of the committee should be public, and as to whether counsel should be admitted to represent parties who might be summoned as witnesses.

G. H. Geyer, Esquire, counsel for the county commissioners, was invited before the committee for the purpose of ascertaining what the commissioners desired; also W. B. Rogers, Esquire, counsel for the city of Allegheny, was invited before the committee for the same purpose. The county commissioners in person also appeared before the committee.

The committee was waited upon by Mr. Johnson, a member of the chamber of commerce, who gave information that the chamber had appointed a

committee, of which he had been elected chairman, for the purpose of giving aid in obtaining information relative to matters being investigated by the committee. On behalf of the chamber of commerce, he also tendered the use of their hall for the sittings of the committee.

Upon motion of Senator Reyburn, it was ordered that a session should be held this afternoon, from three to six o'clock.

Adjourned.

ORPHANS' COURT ROOM,
PITTSBURGH, *Wednesday, February 6, 1878.*

Pursuant to adjournment, the committee re-assembled at three o'clock, P.M., this day.

The debate was resumed, as to the mode of procedure in taking testimony.

Upon motion of Senator Reyburn, the chairman of the committee, Mr. Lindsey, was selected to conduct the examination of witnesses on behalf of the committee.

Adjourned.

ORPHANS' COURT ROOM,
PITTSBURGH, *February 7, 1878.*

Pursuant to adjournment, the committee met at ten o'clock, A.M., this day.

The committee proceeded to the examination of witnesses. The first witness called was:

John Scott, *sworn:*

By Mr. Lindsey:

Q. Where do you reside?

A. I am still a citizen of Pittsburgh, although I have been attending to my business for the last three months in Philadelphia.

Q. What is your official relation to the Pennsylvania Railroad Company?

A. At present I am the general solicitor of the company.

Q. What was it in July last?

A. I was then what was called the general counsel of the Pennsylvania Railroad Company, resident at Pittsburgh.

Q. Can you tell the committee whether, prior to July last, there were any differences existing between the Pennsylvania Railroad Company and its employés?

A. On that subject I have no personal knowledge. Any differences, if they did exist, between the employés and the company were known to the operating officers of the company, over whom I have no control. I only know it as a matter of public history, as other persons.

Q. Were you present at the disturbances of the peace within the city of Pittsburgh in July last?

A. I was during a portion of those disturbances, but not during all of them. If it is desired that I should give you a connected statement of what I did see, I would begin with where my personal knowledge of the transactions commenced.

Q. That is what the committee desire?

A. On the morning of Thursday—that week in which the disturbances occurred—I cannot recollect the date—on that morning there was no appearance of disturbance. I state this from the fact that Mr. Pitcairn, the superintendent of the western division, and I live within a very short

distance of each other. We take trains at the same station, and when I went there that morning I found him there with his family, preparing to go, for a visit of some length, to Long Branch. The strike which had occurred on the Baltimore and Ohio Railroad was the subject of conversation between us during the few moments that we were together there, and I know, at that moment, he had not the most remote apprehension of any disturbance. I came into town on the train, and knew nothing of any disturbance until about noon, when I heard of the assault having been made upon Mr. Watt. I did not see it, or I would narrate it.

Q. Who was Mr. Watt?

A. He was the chief clerk, or assistant to Mr. Pitcairn. About nine o'clock that evening I received a dispatch, stating that Messrs. Hampton and Dalzell, the local solicitors, who took charge of the local business, were absent from the city, and requesting me to come to the outer depot. I did so. I got off at the Twenty-eighth street station. There was quite a large crowd of people at that station. Just when I got off, an engine was coming up from the direction of the Union depot. I do not know from whence it had started. Immediately, there was a cry that it must be stopped, and there was a rush of a large number of that crowd towards the engine. It did stop, and a loud halloo went up from that crowd.

Q. Who composed that crowd, so far as you observed?

A. That I cannot tell. My point was to reach the outer depot, and I spent no more time there than was necessary. At the outer depot I found that Mr. Pitcairn had not yet reached the city, although he had been telegraphed for. I found Mr. Watt there, his assistant, and learned from him the extent to which the disturbance had gone. That he can give you personally. Finding from that statement that a call had been made upon the mayor for assistance to regain the property of the company, and that it had been ineffectual, I went up to my office for the purpose of looking at the act of Assembly passed in 1877, and also the law providing for calling out the military by the Governor. I spent some time in doing that, leaving word for Mr. Watt to come to my office, so we might call upon the sheriff for the purpose of

dispersing the mob, and regaining possession of the company's property. He came up in a short time, and we rode to the sheriff's residence, and woke him up out of bed.

Q. Where is his residence?

A. In Washington street, between Wylie and Fifth avenue.

Q. What time was that?

A. That was, probably, between ten—no I am not certain about the hour—about ten or eleven o'clock. I stated to the sheriff that the property of the company was in the possession of a large number of the employés and of citizens—the information was that—I had no personal knowledge of it—Mr. Watt was with me—and that an effort had been made, through the mayor, to regain possession, which had not succeeded, and that we called upon him, as officers of the company, to ask him to go to the outer depot and exert his power, as sheriff of the county, to disperse the crowd assembled there, and to restore possession to the company of its property. I said I came as counsel of the Pennsylvania Railroad Company, and, that as it would probably be one of the most delicate exercises of power he could be called upon to make, I insisted he should send for his own counsel to accompany him, as if he found his power insufficient to disperse the mob, and to restore to the company possession of its property, we would ask him further to advise the Governor, so he might exercise his power, if he found it necessary. The sheriff replied that Mr. Carnahan was his counsel, and that he resided at East Liberty, and that he could not get him in time to go to the depot. He went for a deputy, who lived across the street—Mr. Haymaker, I think—and we all drove to the outer depot, on the way finding Mr. Pitcairn, who had arrived in a train from the East. When we reached the outer depot, General Pearson was there. He had been apprized by the Adjutant General. The sheriff was again informed of the desire of the company to obtain possession of its property, and have the crowd dispersed.

Q. Can you give the date of this?

A. I have said this was on the Thursday preceding the actual burning and destruction. As a matter of memory, my recollection is that it was the 19th, although I am cautious about dates, as I have not a good recollection about dates. The sheriff then went out with General Pearson to Twenty-eighth street. I did not go with him. He came back after the lapse of probably three quarters of an hour, reporting that he found himself unable to disperse the mob, and that he could get no force to enable him to disperse it. I then said to the sheriff that it was a question for him to determine whether he had exhausted his power for the protection of the company's property. He said he had exhausted it, and that he had made up his mind to ask the Governor to call out the troops to disperse the mob. At his request, I wrote a dispatch to the Governor, and submitted it to him, General Pearson, being present as I understood, acting as his counsel at the time. Some requests had come to send a dispatch to the Lieutenant Governor. I was satisfied that it was not such an occasion as authorized the Lieutenant Governor to act; but public information in the newspapers being that the Governor was absent from the Commonwealth, I suggested to the sheriff, as a matter of prudence, that a dispatch should be sent to the executive office, at Harrisburg, addressed to the Governor; that a copy of it should be sent to the Secretary of State, who was then in Beaver, we understood, with information that it had been sent to executive office; that another copy should be sent to the Adjutant General, who was understood to be in Philadelphia, and that the Lieutenant Governor should be informed of the fact that such a dispatch had been sent to the Governor, that he might have that information, and, if he had the authority to act, might exercise it.

Q. Who signed that dispatch?

A. The sheriff.

Q. At what time?

A. That was in the neighborhood of twelve o'clock that night. I am giving my judgment about those hours. Those dispatches signed by the sheriff were sent. There was a great deal of telegraphing that evening there, between myself and the officials of the railroad company, Mr. Pitcairn and

others, the details of which I cannot now recollect. In the course of several hours after that dispatches were received from Mr. Quay and the Adjutant General by the Sheriff, informing him that the Governor had ordered out the troops. Dispatches were also received there by General Pearson, from the Adjutant General, giving him the same information. I cannot give the hour of those dispatches; but I know before we left the office, probably about five o'clock in the morning—four or five o'clock, perhaps—the sheriff and General Pearson had both received dispatches to the effect that the Governor had ordered out the military to the assistance of the sheriff, and that General Pearson had drawn an order, in pursuance of those dispatches, for one of his own regiments of this city to turn out. Probably about five or six o'clock that morning several of us left the office and went to bed at the Union depot. That was Friday morning. Now as to the actual progress of the strike. What occurred at the outer depot during Friday, I believe, I have no personal knowledge, and I do not know that I had any intercourse with any of the officials of the Pennsylvania Railroad Company, and not, probably, with the military officers, until about four or five o'clock that evening. There was delay in the military responding to the general's orders. Some information reached our office, where I was engaged in other business in the office of the Penn company, that General Pearson was about to open the tracks with the military, and was starting for that purpose from Union depot. Mr. Thaw and I went up there together. When we arrived, there was a company ready to go to Twenty-eighth street. Mr. Cassatt was there, one of the vice-presidents of the Pennsylvania Railroad Company. I do not know what was said when I got there; but in some way my opinion was asked as to the propriety of the movement. Somebody asked me, I do not know who. There were a great many people around the dispatcher's office, where General Pearson was. I was asked the question. I said in reply, that as an officer of the Pennsylvania Railroad Company I had no opinion at all to give, that the civil power of the country having been called upon, and the sheriff having been called upon, and the military being there with General Pearson in command of them, I certainly would not give any instructions that would interfere with the discretion either of the sheriff or of General Pearson. I might reply, as a citizen of Pittsburgh, that there was no need of

repeating the old maximum, which had got very trite, that there was no use in firing blank shot at a mob; but that when they were ready to strike, they should do it effectually, and disperse the mob. The General stated to me there the force he had, some sixty men in that company and a battery called Breck's Battery, the remainder of his force was at Torrens station. He also stated he had a number of men then at Twenty-eighth street.

Q. What is the distance of Torrens station from Twenty-eight street?

A. Out to East Liberty is four miles, and Torrens station is probably a quarter of a mile beyond that. From the length of time that had elapsed, and a number of the men not having responded, I felt satisfied it would be prudent to have more troops before striking, and I so telegraphed to Philadelphia. General Pearson, at that point, said: I believe I could take this battery up there and open the track at that point, but it would be with very great sacrifice of life.

Q. To whom did you telegraph to Philadelphia?

A. To the president of the road—Colonel Scott. I said in that dispatch, from the dilatory way in which the troops were coming, I thought that the troops ought to come from some other quarter than from Pittsburgh. General Pearson was evidently reluctant to sacrifice life, even if he could open the road by doing so, and wished Mr. Thaw and myself, as officers of the Pennsylvania Railroad Company, to sign a request asking him to delay his movement. I refused to do so, saying that I would not control his discretion as a military man—that what should be done, at that time, should be left to him to decide. I left then and went out home that evening, and staid at home Friday night and saw nothing more of the riot than a passenger would see in passing out through the large crowd assembled at and about Twenty-eight street. I cannot estimate the number there, but the road was blocked and the hill was largely covered, when we went out on Friday evening. I returned to the city on Saturday morning, but did not see what transpired along the Pennsylvania railroad during that morning, as I was busy in my own office at Tenth and Penn streets. There was a great deal of communicating back and forth between the officials of the road, between Philadelphia and here,

and west of this point, in reference to the strike. I was not present when the troops arrived from Philadelphia. I was pursuing my business in my department that evening until I went over to go out to my home, at Shady Side. The train I took was delayed, the firing having already commenced at Twenty-eight street. Word had come by telegraph, before that train started, that the firing had occurred. I went out in that train, through a dense crowd, both of civil and military men, at Twenty-eight street; and I was at my home during that night. The firing began that night, probably about eight or nine o'clock. I came into the city the next morning, and went to the Union Depot Hotel with some ladies who had been left on the train that could not get in the night before. It is not necessary for me to say what occurred. I found a place of safety for them. I found that the Union Depot Hotel was not a safe place at that time. I saw at that time the fire progressing up, but I was not any nearer to the scene of the riot at that time than the Union Depot Hotel. Secretary Quay and Adjutant General Latta were in the Union Depot Hotel making preparations to leave it.

Q. State the distance of your residence from the Union depot.

A. The station where I get off is a fraction over three miles from the Union Depot Hotel, and my residence is probably four or five hundred yards from the station.

Q. State whether at this time there was any rioting nearer to the Union depot than Twenty-eighth street, at the time you speak about when General Latta and Secretary Quay were in the Union Depot Hotel.

A. The fire had progressed, and was then progressing on this side of Twenty-eighth street up toward the Union Depot Hotel. I cannot say where the fire first originated, but looking up Liberty street from the Union Depot Hotel, when I was there, I should say the fire was then some six or seven blocks from the Union Depot Hotel. I could see it distinctly spreading across the street. I was not at the scene of the riot during Sunday; I was with the officers of the railroad company in Allegheny City, in conference as to the best mode of preventing further trouble, destruction, and rioting over portions of the road west of Pittsburgh. I do not know that I can give any

further information in giving my personal knowledge of what I saw of the actual disturbances.

Q. Have you any knowledge as to what was done by the railroad company after that time?

A. In the way of suppressing the riot?

Q. Yes.

A. I might state upon that subject, that upon Saturday afternoon, while the officers of the western lines were in Allegheny City, a committee of citizens—at least a committee appointed at a citizens' meeting—a representative of Bishop Twigg—one of his clergymen, whose name I do not recollect—and Reverend Mr. Scoville, of the Presbyterian Church, and James I. Bennett, came to see what we could do in the way of suppressing the riot, and asking that some concession should be made to the men on the road. We replied to them substantially, that so far as the railroad company was concerned, we thought the mob had done about its worst. This was when the Union depot was burning—at least Mr. Thaw and I were on the hill a short time before, and saw the fire so near that we supposed it was then burning. We said it had now ceased to be a question between the railroad company and the employés, and was one between the public authorities and the mob, between government and anarchy, and that so far as we had anything to do with the question, we were now in an utterly defenseless position, and we thought, being in that position, if we were to make the concessions which had been demanded in the beginning, we would be breaking down the only barrier between anarchy and their property, and that now the question for the citizens to determine was whether they would make any effort to stop that lawlessness which would next reach them after it had spent its fury on the railroad company. So far as the efforts to stop the rioting by negotiations or compromising with the men were concerned, I had no direct connection with them. That occurred between others—friends of the road, the general management, and the representatives of the men—and I knew of them only in a general way, from hearing what was said by the officers, which was substantially, that while the men were in the position of law breakers, and

holding control of the company's property, we could not yield to the demands extorted by that kind of violence; but that, if things were restored to their normal condition, the company was perfectly willing to meet the men, and negotiate with them in regard to this matter just as in regard to any other difference.

By Senator Reyburn:

Q. Upon this Thursday you speak of, you say you found, at a certain stage, that the road was in possession of the mob—substantially a mob—that then you went to the sheriff, and then, with him, to the depot, and found General Pearson there. Now, can you state to us who called for, or who sent for the militia—who called upon the State Government?

A. I have already stated that the call for the militia was made by Sheriff Fife, after he had gone out with General Pearson, and endeavored to disperse the mob at Twenty-eighth street. He then came back and reported his inability to do so, and that he had no further power at his command, and announced his decision that he would call upon the Governor, and, at his request, I wrote a dispatch to the Governor, announcing his conclusion, and asking for the Governor's aid.

Q. At the request of the sheriff?

A. Yes; he signed that dispatch sent to the Governor.

By Senator Yutzy:

Q. Did you call upon the mayor for assistance before you called upon the sheriff?

A. I did not personally. Mr. Watt informed me he did. He can give you that.

Q. Was General Pearson connected with the sheriff's office at that time as a deputy?

A. I don't know.

Q. You stated he was counsel for the sheriff?

A. Oh, no. I stated to the sheriff that I was calling upon him as counsel for the railroad company, and I insisted that he ought to have his own counsel to guide him in determining his duty in this emergency; but, saying that Mr. Carnahan was his regular counsel, and that he could not send for him, he went to the depot without him, with a deputy named Haymaker. When we reached the depot General Pearson was there, saying he had been requested by the Adjutant General to be there. When Sheriff Fife saw him there, he turned to me and said: "Mr. Scott, I know him, and for this occasion I will be governed by his counsel." General Pearson was not there as a deputy or a clerk, but in obedience to the dispatch of the Adjutant General, and the sheriff, finding him there, was governed by his counsel at that time.

By Senator Reyburn:

Q. Have you any knowledge as to who sent for the troops at Philadelphia, who ordered them here?

A. I have no other knowledge of it than that which came in the dispatches that night, which was that the Adjutant General had ordered them. A dispatch came from Mr. Quay saying that the Governor had ordered out the militia.

Q. The Philadelphia troops of the First division?

A. I have no actual knowledge as to who ordered them out, except in a general way; the Adjutant General was here afterwards, and when those troops came it was my understanding, derived from my intercourse with General Latta and all the others, that the military had been ordered out by the Adjutant General, he being the military officer of the State under the Governor. In speaking of all this, I am giving what occurred by the dispatches in the outer depot while I was there.

By Mr. Lindsey:

Q. Can you give the extent of the destruction of the railroad property by the fire?

A. I cannot, with any accuracy.

By Senator Yutzy:

Q. Approximately?

A. I have been informed that the officers of the road are yet engaged in making up a full statement of the losses of the company, and any estimate I might make would be so entirely unreliable that, if it is important to the committee, I prefer sending for those who have that subject in charge.

Q. Can you give the extent of the burning, the destruction of property in general?

A. My statement would be simply from observation—that the burning of property commenced at or very near the station of Lawrenceville.

Q. How far from the Union depot?

A. I would suppose a mile and a quarter or a mile and a half. That is an estimate. I do not know, I may be wrong about that. It is the second stopping place out from the Union depot. The destruction on the track, of cars that were there, and buildings extending from Lawrenceville all along past the Union depot and embracing property of the Pittsburgh, Cincinnati and St. Louis Railroad Company, on Seventh street, in this city, the number of cars burnt, the number of locomotives destroyed or disabled, the value of the goods in those cars, and the value of the buildings that were destroyed, and the injury done on the road are all matters of computation upon which my estimate would not be worth anything. It will have to be obtained from actual examination of those who inspected them.

By Mr. Means:

Q. Was the first burning of cars or of buildings?

A. I cannot say, except as a matter of public information. I was not present. I have already stated I was at Shady Side on Saturday evening, when the fire commenced.

Q. Have you any knowledge about what time that fire commenced?

A. I saw the light in the evening about nine or ten o'clock, and sent my son in to ascertain the state of things.

Q. Of your own knowledge you do not know whether it was a car that was first burned or a building?

A. Of my own knowledge I cannot say at what point the fire began, or by whom it was kindled.

By Mr. Lindsey:

Q. Can you state of your own knowledge what classes of men composed the rioters during the burning. Whether the mob was composed of railroad employés or of others than those, and if of others, of what class?

A. That would be in part my personal knowledge, but I could not give an answer to that without confounding together my personal knowledge and matters of information. I will give the result, if you wish it.

Q. State it?

A. The first difficulties, which were brought on by the employés of the company taking possession of the engines and trains, were, so far as I could judge, or saw, exclusively by those who had been railroad employés up to that point. The action which Mr. Pitcairn took with reference to that when they took that possession I cannot state. Things went on, with a great crowd accumulating from that Thursday morning, and while I say, as a lawyer, that there was a riot and mob there from Thursday morning down until the firing began, with a crowd constantly accumulating, as it would on account of any disturbance that had occurred, yet there seemed to be a feeling that it was not that kind of a riot or mob that called for the interposition of a very vigorous public sentiment to put it down; but, when the military were

brought for the purpose of regaining possession of the property, and the collision was actually brought on, I can say that the mob was made up of a great many other people than railroad employés. I did not see them, nor was actually among them so I could identify any of the railroad employés, or any persons outside, but from my knowledge of the immense crowd which was assembled at Twenty-eight street as I went in and out, there were undoubtedly a great many other than railroad employés about the scene of violence, and I have no doubt participating in it.

By Mr. Larrabee:

Q. You say that while the employés were in possession of the cars of the company, there seemed to be no such riot as required the intervention of public sentiment to put it down?

A. I did not intend to say that, but that while it was confined to railroad employés public sentiment did not seem to manifest itself as requiring any decided interposition to put that down. In other words, I am bound in candor to say, when asked for it, that public sentiment here very clearly distinguished between the act of breaking the law on the part of the employés in taking possession of the railroad property, and stopping commerce at this point, and the act of rioting and incendiarism which followed in consequence of that initial breaking of the law.

Q. That is, that public sentiment did not assert itself vigorously against the employés taking possession of the cars and engines prior to the actual outbreak and destruction of property?

A. That is what I mean.

Q. In other words, public sentiment sympathized with the rioters?

A. I am a citizen of Pittsburgh, and here along with the rest of them, am bound to say that the newspapers pretty fairly reflected the public sentiment in what they said. If you wish to see what it was, instead of asking my opinion, owing to my relation with the railroad company, if you will take the editorials of the various morning and evening newspapers from the 19th

of July, from the day on which this thing occurred, down until some days after the actual firing occurred, I think you will find that the editors evidently tried to reflect the public sentiment, and I think they succeeded pretty well in doing it. If you wish to get that you had better ask the sheriff what responses the people made to him when he asked them to become part of his *posse*. I did not hear what was said, but the sheriff knows.

By Mr. Lindsey:

Q. Did the sheriff succeed in raising a *posse comitatus*?

A. He said to us in the Union depot he could not, and reported to me the next morning that he could not do it.

By Mr. Engelbert:

Q. Have you any knowledge whether the mayor tried to subdue the riot or assist the sheriff in trying to subdue the riot?

A. I have not any personal knowledge of the mayor's action.

Q. Was he in the city during the time, or not?

A. Not to my personal knowledge, again. I did make one effort to have accomplished what I thought would have conduced somewhat to the public peace that afternoon, Saturday afternoon. That is the only fact within my own knowledge. About one o'clock, Saturday, seeing a large number of people attracted to the depot, and knowing that a large number of operatives were free from work that afternoon, I thought it a measure of precaution for the mayor to close the drinking saloons in the city. I drew up a paper, stating this fact, as politely as I could, and that paper was signed by Mr. Thaw and Mr. McCullough, officers of the company, and I took it over and had Secretary Quay and Adjutant General Latta sign it also, and then sent it up to the mayor, and the messenger reported to me that he had left it at the mayor's office in the hands of his chief clerk, I think he said; I never heard any more of it.

By Mr. Lindsey:

Q. Who was that messenger?

A. His name I cannot give you, but I placed it in the hands of D. H. Rudy; he can give you the name of the messenger who sent it up. That is the answer that I got, that he left it in the mayor's office. What was done with it I do not know.

By Mr. Engelbert:

Q. Do you know whether he complied with it or not?

A. I can only say that the drinking saloons were not closed, and I did not see any proclamation closing them.

Q. So if you were not a citizen of Pittsburgh, do you suppose you would think that the mayor had done his duty, as an officer ought to, at that particular time?

A. Being a citizen of Pittsburgh, I cannot put myself in the position of not being one. I will have to leave you to judge.

By Mr. Lindsey:

Q. At the time you first spoke of meeting the crowd of employés, and their taking possession of the engines on Thursday—the first outbreak you spoke of what was done on the part of the railroad company to ascertain the cause of that commotion?

A. I did not understand that there was any secret about the causes of it all. I am giving now the public understanding. My understanding was simply this: That an order had been made—Mr. Pitcairn can tell you more fully about that—an order requiring the running of, what are called double header trains—two engines to one train, and some of the employés alleged that that imposed on them additional work without additional pay. I believe that is the short of it, and rather than comply with it, they struck. I understood that was made the cause of beginning the disturbances here.

Q. Did you or any one, on behalf of the railroad company, communicate with those men?

A. I did not. I understood the operating officers did, but I cannot tell what occurred between them.

Robert Pitcairn, sworn with *uplifted hand*:

By Mr. Lindsey:

Q. What is your residence?

A. Shady Side.

Q. What is your official connection with the Pennsylvania Railroad Company?

A. General agent or superintendent of the Pittsburgh division.

Q. How long have you held that position?

A. I came here the last time in the spring of 1865. I have been here three times. Since that spring I have been superintendent of the division.

Q. Now give us your statement about the riots. Tell us whether there were any differences of opinion or disagreements between the Pennsylvania Railroad Company and the employés prior to the 20th of July last.

A. There were no more differences than there have been since the road has been opened. There have always been differences.

Q. Was there any difference existing at that time?

A. No more than heretofore. The company reduced the wages of all officers and employés ten per cent. in June.

Q. Of 1877?

A. Yes. There was a good deal of friction and complaint. Committees called upon me, and committees from the different divisions of the road visited Mr. Scott, the president, and had conferences with him on the subject. They complained because of the reduction. He explained that the cause of it was the condition of the country, and that as soon as business would become brighter, that then the company would entertain their petitions and would act fairly with them, when the committee, as they informed me, as Colonel Scott and others informed me, professed their satisfaction, and said there would be no trouble, but that they would work harmoniously.

Q. That was on what date?

A. I cannot remember the date; it was after the ten per cent. reduction.

Q. What was the date of that?

A. I think it was in June—May or June.

Q. Was there any further reduction after that time, and prior to the riot?

A. There was no reduction in wages.

Q. Was there an increase of duty or work placed upon the employés?

A. That is a question of opinion altogether. The company for many years back—the officers have been trying all in their power to economically manage the road, loading the engines to their full capacity and making them up differently. There is hardly a year passes, but that some of the officers finds some way of more economically running the road. There was an order given to make up what we call double-headers between Pittsburgh and Derry. Since the road has been opened we have always run double-headed, and sometimes three engines ahead and one behind, between Altoona and Conemaugh. The object in running the double-headers to Derry was for the purpose of making the trains go through to Philadelphia without being divided; that is, it takes two engines to haul a train from Pittsburgh to Derry, whether two engines ahead or behind, or two separate trains; and to avoid the delay of running two separate trains to Derry, one ahead waiting for the other, we put two engines in front of the trains, when one engine cuts the

train going to Conemaugh, and the one put behind goes down to Altoona, and goes through from there.

Q. What was the date of that order?

A. The order of running double-headers on all through trains was the morning of Thursday, but we had always run double-headers between Pittsburgh and Derry, perhaps from one half to two thirds. The order was to take effect on that Thursday, and was to make them all double-headers.

Q. Did the men make any complaint about that order?

A. They made no complaint.

Q. To you or to any other officer of the road?

A. Not that I am aware of. Up to that time we always considered the double-headers a question of economy.

Q. Did that order require the discharge of any number of men, or did it not?

A. It did.

Q. By that order you could run your trains with a less number of men?

A. We could run them with a less number of conductors and brakemen, but not of engineers and firemen. As many double-headers as we had would take off one single crew of conductors and brakemen each.

Q. You heard no complaint about that order?

A. Not that I am aware of; but the men were always complaining about something.

Q. That was on Thursday. What was the first riotous occurrence showing that the men were dissatisfied after the issuing of that order?

A. I had leave of absence on Thursday morning to go to Philadelphia. For a few days previous I had asked the men—asked the subordinate officers—as I always do when I see them, if there is any trouble. I was assured then that

our men were more satisfied and loyal than they had been, and I was perfectly free in my mind in going away on Thursday morning. I left in the day express on the Thursday morning when the trouble began.

Q. How far did you go before receiving intelligence of the trouble?

A. When I reached Altoona I got a telegram from Mr. Watt, who represented me here, saying that a few of the men, after the train I was on had left, had refused to go out on the double-headers, and that they were trying to create a disturbance, and saying what action he had taken, and that his idea was that it would be all right, and for me not to stop off but to go on, that the matter would be all right.

Q. What hour did you receive that?

A. About twelve twenty, when I reached Altoona. I had no train to return on and I thought I would go on the day express and think over the subject, and when I reached Lewistown I made up my mind that I would return. So I arranged for my family, who were accompanying me, to go on, and I returned on the fast line from Lewistown, reaching here at eleven thirty.

Q. In the evening?

A. Yes; eleven twenty-five. On my way west I telegraphed to my subordinate officers to meet me in Pittsburgh. I intended to get off at the outer depot, Twenty-eighth street, but there was a large crowd there, and I came to Union depot, and walked up to where my office then was, at Twenty-sixth street, and on my way I met a carriage with the Honorable John Scott and Mr. Watt and the sheriff. I got in the carriage and went to my office, at Twenty-sixth street, and there found my subordinate officers, and General Pearson was there.

Q. Who were your subordinate officers?

A. Joseph Fox, road foreman; John Major, road foreman; David Garrett, assistant trainmaster; Edward Pitcairn, trainmaster; Joseph McCabe, general dispatcher. Mr. Scott, the sheriff, and all the parties there were consulting and talking together, when the sheriff made up his mind to go up to Twenty-

eighth street, where the crowd was interfering and preventing trains from running. I wanted to go up and talk to the men, when my subordinates prevented me, and said there was no use of my going up, because none of our men were there. Few, if any, of our own men were there. It was a crowd. They persuaded me to remain, while the sheriff and General Pearson went up to Twenty-eighth street. They came back and reported the result of their attempt to disperse the crowd, when the communications, as stated by Mr. Scott——

Q. What did the sheriff and General Pearson report to you?

A. They said they went up and went to the crowd and called to the crowd to disperse and go to their homes, and they made no impression, and received nothing but vulgar abuse.

Q. Did they go alone?

A. Unless one or two of my men went with them. One or two went with them.

Q. At what hour was that?

A. About twelve o'clock, Thursday night.

Q. What then occurred?

A. Then came the communications to the different parties. The Governor, and Mr. Quay, and Lieutenant Governor Latta, and Adjutant General Latta, and then came the replies, and the message to General Pearson to order out one of the regiments, I think, which he did.

By Senator Yutzy:

Q. From whom did this order come?

A. Adjutant General Latta.

By Mr. Lindsey:

Q. What time did he receive that dispatch from General Latta?

A. Between twelve and half past four in the morning. I think the order calling out the troops came after the Governor's message. All left the office about half past four. General Pearson, who had written his orders about the regiment before, and I parted at the Union depot. General Pearson went down town, and Mr. Scott, Mr. Watt, and myself went to the Union depot hotel for the purpose of retiring.

Q. When you came in from Altoona did you notice the disturbance at Twenty-eighth street?

A. Yes.

Q. To what extent?

A. It was dark, and I could not see any of the crowd. I do not know how many were there.

Q. What was the crowd doing then?

A. Yelling—talking loud.

Q. Were they stopping trains?

A. I do not know; they did not stop our train. I went to bed; but it was not five minutes until I received another telegram, and another, pertaining to the business of the road. So I got up. There were a number of messages from President Scott and the general superintendent. They had an idea we could move the trains in the morning, and were giving different orders about stock and different things.

Q. Did you make any effort to move a train on Friday morning?

A. We were continually making efforts; we never ceased.

Q. What effort did you make to move the trains on Friday morning?

A. The efforts to move the trains on Friday morning were, securing the crews and firing up the engines, and having everything ready to move when

we could get through the crowd.

Q. Did you succeed in securing the crews?

A. Yes.

Q. Were they new men, or old employés?

A. Old employés. I want you to bear in mind, that in starting the trains, the crews were always there, professing their readiness to go out, and at no time had we not sufficient crews to take the whole number of cars out.

By Senator Reyburn:

Q. Who stopped you from running the trains?

A. The crowd.

By Mr. Larrabee:

Q. What was the crowd?

A. I did not know them.

By Senator Reyburn:

Q. Any of your own men?

A. I was about continually, and I do not think I ever saw over three or four of my own men in any crowd, if you leave out the sub-officers.

By Mr. Lindsey:

Q. On Friday morning you had crews enough to start all the trains; did you give orders to start?

A. To be ready to start.

Q. But you did not give any order to start?

A. No.

Q. For what reasons?

A. To get assistance to keep the crowd off our property.

Q. Did you think at that time that the crowd was so large that the trains could not run through it?

A. Not without killing them. They had charge of the switches there.

By Senator Yutzy:

Q. The crowd had?

A. Yes.

By Mr. Lindsey:

Q. Do you think if a train had started you could have run it through the crowd, and gone on—in your opinion?

A. If the crowd had not turned the switches. The switchmen were there, but under the management of the crowd.

Q. Did you go up there where that crowd was Friday morning, to see, of your own knowledge, whether the trains could run through or not?

A. On Friday morning we had a crowd at two points, Twenty-eighth street and at Torrens station. To both places I went.

Q. How large a crowd was at Twenty-eighth street that morning—Friday morning?

A. On Friday morning, to connect my story, I went up with General Pearson at Twenty-eighth street, and he talked to the crowd. I think the sheriff was along.

Q. How large a crowd did you find there?

A. I never was at Twenty-eighth street that evening.

Q. On Friday morning?

A. I have very little idea about the numbers of a crowd—it was a very large crowd.

By Senator Reyburn:

Q. Was your road-way blocked up?

A. Yes.

By Mr. Lindsey:

Q. Were any of your men among that crowd—your employés?

A. As I said before, I never recognized, I would be safe in saying half a dozen of our men that I knew.

Q. From Twenty-eighth street did you go out to Torrens?

A. Yes.

Q. How large a crowd was there?

A. I would say six hundred or a thousand. There was a crowd. I have no idea what number a crowd is.

Q. Did you find any of the railroad employés among that crowd?

A. I found one man that I knew as an employé, but I cannot name him. He talked to me, that is the reason I remember him.

Q. Were any of the switches turned, at that time, at Torrens?

A. None, to my knowledge.

Q. The track was clear at that time, so that the trains could have run through if they had allowed it?

A. Not to my personal knowledge.

By Senator Reyburn:

Q. Who seemed to be directing the crowd. That is, the mob?

A. There seemed to be an understanding, from the remarks made by the crowd, that they had sufficient force to prevent the trains going out. As for example: At Torrens a party told me it was bread or blood, and they could get any number of men to come up and prevent the running through of any train until the matter was arranged with them.

Q. Was that man an employé of the road?

A. He was, but I do not remember his name.

Q. What position did he hold on the road?

A. A train man. He may have been a flag man. I thought I knew his name, and came down to see a party arrested, but it was not the man. I have not seen him since.

By Senator Yutzy:

Q. Were those threats made by the crowd or by this one man?

A. By a single man.

Q. Were the threats made about preventing the running of the trains by employés or others?

A. By outsiders. They could not get enough employés to stop the trains.

By Mr. Dewees:

Q. When you doubled up the trains, how many men did you relieve. That is, on the morning of the Thursday that this outbreak occurred?

A. If there were ten single trains and I doubled up, I saved five conductors and five flagmen and ten brakemen.

Q. What became of those men?

A. They were suspended.

Q. Was anything said to them, that they were suspended for a certain time, or were they just dropped?

A. Those crews were not suspended, but that many men, and a great many more, because the business had gone down, were suspended, and we were choosing the married men and the old men. The old men and the married men were chosen, in preference to the single men.

By Mr. Larrabee:

Q. But by suspension do you mean discharge, or do you mean suspension temporarily?

A. They were given to understand that there was no more work.

By Mr. Dewees:

Q. This was one of the causes, this doubling up, as I understood you to say, that created the dissatisfaction here at this point?

A. That is what they say.

By Senator Yutzy:

Q. Did you not only reduce your crews, so far as the conductors and brakemen and flagmen were concerned, one half of a train, if it was sent out as a double-header?

A. One half of the trains we were running single between Pittsburgh and Derry.

By Mr. Lindsey:

Q. Were any of the discharged men among the crowd at Twenty-eighth street or at Torren's station that morning?

A. Yes; I saw quite a number of men who had been discharged for cause as well as suspended on account of the reduction.

Q. You deemed it unsafe from that time on to start your trains, from the time you visited Twenty-eighth street and Torren's station that morning?

A. The sheriff and General Pearson—the sheriff ordered the crowd to disperse and General Pearson, in fact, made a calm and warning speech, and told them what his orders were, that the military had been ordered out and what the consequences would be, and coaxed and pleaded with them to disperse before the military came up that had been ordered out.

Q. What time did the military come up?

A. In regard to the time of any of those occurrences, from Thursday until it was all over I was not in bed, and it is kind of cloudy in my mind as to the different hours; but as to the hour, I should say that this was about twelve or one o'clock, Friday.

By Senator Yutzy:

Q. When the military came at the crowd?

A. Yes.

By Mr. Lindsey:

Q. How many companies came on the ground at that time?

A. First one company—they were very straggling.

Q. Who commanded the first company that came?

A. I do not know.

Q. It was under the general direction of General Pearson?

A. Yes.

Q. At what point were they stationed?

A. That I cannot tell. On Friday—I cannot tell. I do not remember if there were any soldiers at Twenty-eighth street. I cannot tell. Friday night the Pittsburgh troops were brought out.

Q. What time did the first burning or destruction of property by fire commence?

A. Friday night the troops were stationed at Torrens.

Q. What time did the first burning commence?

A. I do not know that—I cannot say.

Q. Do you know where it commenced?

A. Only from hearsay. A great deal occurred between Friday night and Saturday night.

By Mr. Engelbert:

Q. When the sheriff and General Pearson went to the mob, was the mayor of the city, at that time, acting in conjunction with them?

A. I never saw the mayor.

Q. You do not know whether he issued a proclamation or assisted in any way whatever?

A. No.

Q. You do not know whether he took an active part in the matter of suppressing the riot?

A. No.

Q. Was he called on?

A. Only Mr. Watt informed me on Thursday morning, and then the sheriff was called Thursday evening.

By Senator Yutzy:

Q. Who was called first?

A. The mayor, according to my information.

By Mr. Engelbert:

Q. He did not respond?

A. Mr. Watt will tell you that.

Q. You have no personal knowledge about that?

A. No; it was before I arrived on Thursday night.

By Mr. Lindsey:

Q. Do you know when the first call was made on the sheriff, of your own knowledge?

A. Thursday night.

By Senator Yutzy:

Q. Did he respond?

A. Yes—in my office.

Q. With a force?

A. He had one man.

By Mr. Lindsey:

Q. Who was the man with him?

A. I did not know him.

Q. Do you know what effort he made to secure a force?

A. Only what he told me.

By Senator Reyburn:

Q. Were you there when the dispatch was sent for troops—the first dispatch, when the sheriff made up his mind to call upon the military?

A. Yes, sir.

Q. What time was that?

A. It was about twelve o'clock Thursday night.

By Mr. Lindsey:

Q. The call upon the mayor and on the sheriff was not made until after you returned?

A. The call on the mayor was made on Thursday morning and the call on the sheriff was made on Thursday evening.

Q. Had you become satisfied then that you could not run your trains on account of the mob which had assembled?

A. Yes; I knew we could not run the trains.

By Senator Yutzy:

Q. With safety?

A. No way.

Q. Did this ten per cent. reduction apply to all the officers and employés of the railroad company?

A. All the officers and employés, except those who got one dollar a day or less, either by the month or day—the track men getting ten cents an hour for ten hours. All above one dollar were reduced.

By Senator Torbert:

Q. That took effect on the 1st of June?

A. I think so.

By Mr. Lindsey:

Q. It applied to the general superintendent?

A. He told me so. It applied to me.

Q. To the president of the company?

A. I believe so.

By Mr. Larrabee:

Q. In regard to the dispatch which you received from Mr. Watt—did you receive any other dispatch except the one you received at Altoona, asking you to come back, or which caused you to make up your mind to return?

A. No.

Q. After you got back you say the crowd had assembled—had there been any attempt by the crowd to prevent trains from running?

A. They told me so—no trains went out.

Q. At what time was any train stopped?

A. The first double headers went out from Pittsburgh all right—they were not troubled.

Q. At what hour?

A. From three o'clock in the morning up to nine o'clock or eight o'clock in the morning.

Q. What trains were first prevented from leaving regularly on time?

A. The trains that should have left between eight and nine o'clock.

Q. A freight train?

A. Yes, sir.

Q. That was prevented from leaving?

A. The crew on that train would not go out.

Q. It was not the crowd that prevented that first train from leaving?

A. I was not there.

By Senator Reyburn:

Q. Could you have got back any sooner?

A. No.

By Mr. Lindsey:

Q. You say the crew of that train would not go out. Were they discharged then when they refused to obey orders?

A. After I got home, I had too little control, and wanted to get along as well as I could.

Q. Do you know what your officers did when that crew refused to go?

A. I understood that they had either to go out or be discharged.

By Mr. Larrabee:

Q. I was endeavoring to ascertain the first time that the crowd interfered?

A. I was not here, but you can get that testimony if you want it.

By Senator Yutzy:

Q. Can you give any idea of the loss to property that occurred through this riot?

A. No; not of my own knowledge. I have no idea. The bills are coming in every day.

Q. About what was it in round numbers—the loss sustained by the company?

A. I have my own idea.

Q. Who can give us the figures?

A. I suppose our controller or one of the vice presidents could give them as estimated up to to-day.

By Mr. Dewees:

Q. How many cars and engines did you lose?

A. We lost one hundred and four engines, and about sixteen hundred cars.

By Senator Yutzy:

Q. The engines would average what?

A. I do not think the engines are all re-built yet.

Q. The cars are about how much?

A. About \$800 a piece.

By Mr. Dewees:

Q. On the freight cars could any of the iron be re-placed?

A. I might say no. Of course, occasionally, a wheel or two might be an exception, but none could be used again.

By Senator Yutzy:

Q. Who is your controller?

A. R. W. Downing, of Philadelphia.

Q. He can give us an approximate estimate?

A. He or one of our vice presidents.

By Mr. Engelbert:

Q. You were here when the troops arrived from Philadelphia?

A. Yes; I saw all the movements of the troops.

By Mr. Lindsey:

Q. Tell us now the movements of the troops, the Pittsburgh troops first, and then the Philadelphia troops?

A. The Pittsburgh troops—most of them—were moved at night. One regiment was moved or went up the hill east from here on the arch of the hill, and then came down on Twenty-eighth street, so as to come down on the crowd.

By Senator Yutzy:

Q. When was this?

A. On Saturday morning. General Pearson ordered the battery to be taken up to the same place. It was loaded in the cars at the Union depot, and I was requested to move it up about two or three o'clock in the morning, to get there when the troops would be there. About two and one half or three o'clock, I had just gone to bed when they told me that they would not take the gondolas with the guns up.

Q. The men would not?

A. That is it. I went down and saw the men, and asked them why they would not do it, and they told me they were afraid of the crowd, that they would like to oblige me. I said if you don't take those trucks up, I will have to discharge you. They told me that they would like to do it, but their lives were threatened. They would not do it, so I had to take them up myself. I

went up to Twenty-eighth street with the guns, and then I saw this large crowd.

By Mr. Engelbert:

Q. Were you interfered with when you took up the gondolas?

A. No one said anything to me at the Union depot, only they kind of crowded around. When I got to Twenty-eighth street, they made a kind of rush, and when they saw I was running the engine, I expected them to attack me, but they did not. They did not say anything to me, only kind of crowded around. They got on the tank and saw no one but myself, and did not say anything.

By Senator Reyburn:

Q. Who got on?

A. The crowd.

Q. Employés of the railroad?

A. I did not recognize them as railroad men.

By Mr. Lindsey:

Q. Give us the detailed movements, now, of the troops?

A. We brought the troops to Twenty-eight street with the battery on Saturday morning, and at the same time there was a regiment at Torrens. General Pearson and the sheriff and I went to those two places at different times to see what we could do. At Torrens that regiment, apparently, had the mob under control, that is they would not crowd around the tracks. The military seemed to be by themselves, while at Twenty-eighth street they were all mixed up—the military and the mob. Then I received word that General Brinton's command was coming on Friday night or Saturday morning. They ought to have arrived about noon; but did not get here until about four o'clock. They arrived at the Union depot about four o'clock on

Saturday afternoon. We unloaded them, and got some coffee and sandwiches, and word was given to them to march to Twenty-eighth street, and clear the tracks.

Q. Who gave the order?

A. Some of the military. Mr. Cassatt, who arrived here on Friday, directed me to get two crews together, that General Brinton's command would clear the tracks, and that I could slip the trains out, and that everything, then, would go all right. Then General Brinton's command commenced to march, and the sheriff came up with about twenty members of his posse, and I urged him to hurry up and get there before the troops, and that if any of our men were there, I would talk to them, and perhaps prevent trouble. I went up. The crowd kept coming in on us all the way from the Union depot, so we took a large crowd up there. The crowd followed us up. We were so delayed in warning the crowd to get away that they came up close to us, and when we got to Twenty-eighth street, General Pearson was there, and the sheriff and his posse ahead of the military. The sheriff, I think, attempted to arrest one man who was very noisy, and then there was a general rumpus, and I was thrown back by the crowd and got in among the military companies, who had formed on Twenty-eighth street. They formed up and down on the north side, and up and down on the south side, and brought a company up between. Then a man threw me back, and the company coming up the street allowed me to get in between. They went up, I suppose, to disperse the mob.

Q. Who threw you back?

A. I do not know; he was a great big man; he was a friend of mine, I know; it was not an attempt to hurt me. This company moved up, and dispersed the mob, and the command was given to charge bayonets, and put the bayonets between the people so as not to hurt them.

Q. Who gave that command?

A. I do not know.

By Senator Reyburn:

Q. The object was not to use force, but to try and press the crowd back?

A. That is it. They were going to push them away. Then the crowd commenced cheering, and I saw two or three bayonets twisted off, and then a lot of stones were thrown at the military. General Pearson came back to me then, and said he was going to the office—was going to get more troops. He then went away. I could not get out. Then they commenced firing.

Q. What time was that?

A. About five o'clock on Saturday afternoon. I could not get out until the firing was all over and the crowd dispersed.

By Senator Yutzy:

Q. Were not shots fired from the crowd before the firing commenced?

A. Yes; two shots were fired. I was near to the men.

Q. Fired at the military?

A. Yes; and stones came around and clouded the horizon.

Q. Before there was any firing by the military?

A. Yes, sir.

Q. Was any command given to fire?

A. No; all the officers I saw were begging the men not to fire.

By Senator Yutzy:

Q. When the soldiers went up they did not attempt to injure the crowd? Were any of the soldiers hit and wounded at that time, before the firing—before they attempted to fire?

A. I saw two or three wounded right around me.

Q. Before that firing began?

A. Yes, sir.

Q. In other words, they attempted to do it without using force. Just by pressing back the crowd?

A. Yes, sir.

By Mr. Lindsey:

Q. Will you describe the crowd? Who composed it?

A. The crowd immediately around Twenty-eighth street, on the track, were workingmen—mill men. The other men, from their appearance on the hillside, were citizens. A great many people that I knew.

By Senator Yutzy:

Q. Women and children?

A. I saw no children, but some women.

By Mr. Lindsey:

Q. Mixed in with the crowd?

A. Yes, sir.

By Senator Yutzy:

Q. Close to the railroad?

A. They were apparently urging on the men. Some women were on the railroad.

Q. Encouraging the men?

A. They were yelling, and in through the men. There were very few women that I saw. They were all laughing and jeering at the soldiers.

By Mr. Lindsey:

Q. How long did the militia stand fire from the mob? Stand those stones and clubs before they fired?

A. Then the company moved up and got in the crowd, and there was a man in the crowd hallooed shoot, and two pistol shots and a great many stones followed, and then the soldiers commenced firing, and then there was shooting just that quick.

Q. Was any order given for the soldiers to shoot?

A. No.

By Senator Yutzy:

Q. Was it a scattering fire, or did it appear to be a volley?

A. It was in every way and in every direction.

By Mr. Dewees:

Q. When those stones were fired, you were among the military?

A. I was among the military, in the hollow square.

By Mr. Lindsey:

Q. Proceed with the military movements?

A. They dispersed the crowd by the firing, and as soon as I got out, I went down to my office, at Twenty-sixth street. I there found General Pearson, and I reported to Mr. Cassatt what had been done. He was talking to General Pearson, and General Pearson was writing telegrams to General Latta at the Union depot. Then General Pearson and General Brinton were discussing what to do next, and whether Twenty-eighth street was a proper position for them to take, or to go up the hill or to come into the shops—what they had best do with the men. General Pearson was telegraphing for orders. They decided they would come into the shops, in order to get under

shelter. The crowd was congregated around my office, and around the shops. General Pearson told me he would stay there, and as he had had nothing to eat that day, asked if I would send up some provisions: I told him I would go down to the Union depot and send all the provisions I could. So Mr. Cassatt and myself went to the Union depot, and I tried to get provisions up to the soldiers, but they were all confiscated by the crowd before they got any. I then went up to the room where General Latta and staff were. All this time the drums were beating, and crowd after crowd was moving up toward Twenty-sixth street. Mr. Cassatt said we were powerless to do anything, and directed me, or rather relieved me altogether of any—he said I had no business in Pittsburgh. All the time, during Friday and Saturday, one after another had come to me and said I had better leave. At the Union depot, they had got a report that I had given the order for the troops to fire. They had a coffin and a rope for General Pearson. All these reports were spreading about. Numbers of people told me to leave, and Mr. Cassatt directed me to leave. I afterwards left in company with Mr. Watt and Mr. Cassatt.

Q. Where did you go?

A. We loafed around the outskirts, and then went to Blairsville and reported, and made our head-quarters there at the Blairsville intersection. There I remained until I received word from Mr. Garrett that some of the old men wanted to see me to see if the matter could not be arranged, and to see if the trains could not be moved.

Q. When was it that you received that word?

A. On Tuesday. I was informed that some of the old men wanted to see me, and had other messages that I should come, and I came down to Pittsburgh.

By Mr. Lindsey:

Q. Did you meet any of the men?

A. I met the men.

Q. To what number?

A. About eight or ten.

Q. What proposition did they make?

A. None. On Friday a committee of the men met me, making a certain proposition.

Q. You did not meet them until Friday after you came back?

A. I mean I met them the Friday of the trouble. I told them I could not possibly send such a paper to Mr. Scott. Then this other committee met me on Wednesday after I came back. I met that committee, and instead of what I expected, they brought out the old proposition.

By Senator Reyburn:

Q. What was the nature of that?

A. It was that no double headers, and full crews, and, I think, twenty per cent. advance. It was everything. I have got the paper. There are about four, or five, or six demands.

By Mr. Means:

Q. You have that paper?

A. Yes, sir.

Adjourned to meet again at three o'clock, P.M.

SAME DAY.

ORPHANS' COURT ROOM,
THURSDAY, *February 8, 1878.*

Pursuant to adjournment, the committee re-assembled at three o'clock, P.M., and continued taking of testimony.

Robert Pitcairn, re-called:

By Mr. Lindsey:

Q. Commence with the troops at the round-house, and tell us what troops were quartered there, and give a detailed statement of the movements of the troops from that point during the continuance of the riot?

A. I said that the Philadelphia troops had dispersed the crowd, and that made an opening for me to get to my office, where I found Mr. Cassett and General Pearson. General Pearson was telegraphing for more troops to come up. General Brinton arrived just behind me, and reported to General Pearson the result, that the troops had fired without orders, and what had been done. Then there was a consultation as to the disposition of the troops, whether they should go up the hill or remain on Twenty-eighth street, or come in to the round-house. They were asking our opinion. I remember, they asked Mr. Cassatt's opinion. I told Mr. Cassatt that I did not think he had any opinion. I remained there, and Mr. Cassatt with me. Before I left they decided that they were going to take the shops and the round-house to protect their men. I left, promising to send provisions, and went to the Union depot where I remained until some time in the night, and then went to Blairsville. When I left Mr. Cassatt, we had word that Brinton had gone to the Allegheny side, by the West Penn. That was what induced me to go to Blairsville. Not knowing where to go to, I felt that was my head-quarters for the time, we being compelled to run trains over the West Penn.

Q. When did you arrive at Blairsville?

A. On Monday morning.

Q. When did General Brinton's command arrive there?

A. I think that afternoon or evening. It might have been the next morning, but I think it was that evening. The next day, though, I was ordered to

remain at Blairsville. I met this committee. Train-master Geyer wanted me to come down. I came down Tuesday, I think, or it might have been Wednesday morning, but I met the committee with the confidence that everything was going to be settled, but they brought this paper out that I told you was presented to me at Pittsburg, and with the committee that met me, instead of being very old men that we considered loyal men, there were some members of the committee who were among the suspended men. Nevertheless, I communicated the whole petition to President Scott, and asked for a reply. Mr. Scott's reply was in substance what Senator Scott told you was their reply to the citizens here, namely: that the welfare of the country would not allow him to give way to the men at the present time; that there were other interests involved, and that if they would go to work to start the trains again he would be glad to receive them. The conference with that committee amounted to nothing. The fact of the matter was, I was caught in a trap. I came down to see my old loyal men, and found suspended men, who, in an official way, I could not deal with, not being in our employ. A question was put to me this morning about the number of men suspended. I do not know how many suspended men we had at that time. I then came to Pittsburgh. I had orders to repair the damage, and try to get the main track through to the Union depot as quickly as possible, to gather up the force then scattered through the city, and the men who had gone to their homes, to repair the track and get to Union depot as quickly as possible. I went to the mayor, and asked him if we would commence work there if he would give protection. He said he would.

By Mr. Larrabee:

Q. What day was that?

A. I think Thursday. I was gathering up the men, but was cautioned by some of the citizens not to go out and work too brash in the beginning—not to take too many men about the ruins to clear them off, but to commence moderately, explaining the feeling of the city, how matters were not quiet there, and that delayed me some days. I met Governor Hartranft at

Blairsville before I left, going to Harrisburg. After he came here we got a large force.

By Mr. Lindsey:

Q. Do you recollect the day he arrived here?

A. As I have said, it was all one day to me. He came here with a force, and we went to work with a large force and commenced repairing the damage. On the Sabbath after—that was the Sabbath after the Sabbath succeeding the Saturday of the fight, we arranged to move our trains, and we then had force enough to move all the trains, as we had during all the time, with the exception that this time the men asked for the military to be sent with each train, to get them through the coal regions, and through Johnstown. That matter was arranged with Governor Hartranft to send a lot of soldiers with the men, to get them through the different points where we had trouble. I think it was the first or second train that went out from Pittsburgh on that Sabbath evening that was wrecked at Spring Hill, by a switch being removed by some parties while the train was passing over. From that Saturday night or Monday morning next, we gradually sent more trains and more trains, until we got our road running as heretofore, and gradually repaired the damages. Governor Hartranft stayed here a few days, and the committees urged them to stay until, at least, he left for Scranton.

By Mr. Means:

Q. You stated that when you commenced work you commenced with a small force, and that after Governor Hartranft arrived with the troops, then you increased your force?

A. Yes, sir; to as many men as we could work.

Q. Did you feel perfectly safe, after the Governor arrived with the troops, in going to work?

A. Yes. We had a large body of men.

Q. It was under their protection that you felt safe?

A. It was only under their protection.

Q. Did you feel safe from another demonstration of the railroad employés, or from any other source?

A. I have no hesitation in saying that we were never afraid of our own men. So far as our own men striking we were not afraid. We were perfectly able to manage our own men, so far as our own employés were concerned, if you took away from us the men suspended. But I do not pretend to say that we were not afraid of the party or parties they brought. But I know nothing about that, of my own personal knowledge. I say this: We always had enough men to move our trains, if other parties had not come in. Who they were brought by, I do not know.

Q. Your own men would never have given you any trouble, had not outsiders interfered?

A. I say that, but do not pretend to say who brought them.

By Mr. Lindsey:

Q. It was General Brinton's command which was present when the military dispersed the crowd by their fire. Was not any portion of General Pearson's command present?

A. General Pearson's command was at Twenty-eighth street. There were very few of the soldiers and some of the officers at Twenty-eighth street. The battery I had taken up on Saturday morning and some few men were there, and General Pearson's command was on the hill.

Q. Can you tell me why they did not hold their position that they then occupied—the militia. What necessity was there for retiring to the round house?

A. I knew what they thought—it was that they were coming under cover to prevent them from being struck. I was not a military man. However, I know

what I should have done.

By Senator Reyburn:

Q. What motives actuated them, after dispersing the crowd, in retiring their troops to the flat position of the street?

A. After dispersing the crowd, immediately the crowd—not that crowd, perhaps, but other crowds came back in front of my office—a great crowd. They were marching by and gathering from all quarters. By dispersing the crowd, I mean they all ran away, and then they commenced immediately coming back, and I had pretty hard work to come down to the office. The crowds were coming up the railway as I was coming down to the Union depot. All I can say is, they said that the reason for going to the round house was to get under cover.

By Mr. Lindsey:

Q. Was any effort made by the military to drive back that crowd when they commenced to reassemble?

A. I was in the office at that time.

Q. Only General Brinton's command went into the round-house?

A. General Pearson's command, I think, was dispersed, but I do not know it. I know this, that there were there soldiers that came with General Brinton's command, because some of them came down to the Union depot with messages.

Q. Had any property been fired or burned at that time?

A. Up to the time that I left no property had been burned.

By Mr. Means:

Q. Would it not have been natural, under military discipline, for the military to have held their position when they had obtained a position?

A. I think they ought to have gone up on the hill.

By Mr. Lindsey:

Q. When you returned from Blairsville, you said you expected to meet your old employés. Now, during all these negotiations, were the old men and the married men, that you have spoken of as being retained in your employ, engaged in this riot?

A. Not to my personal knowledge or observation. The majority of them were running.

Q. Did they make any complaint or any demand upon the company of any kind?

A. The general remarks of these men then were that they had nothing to do with this riot. Some of them said they ought to have the ten per cent. put back, but all deprecated this trouble, and said they had nothing to do with it.

Q. Were they ready to go to work at all times when you wanted them?

A. They always professed to be, but we never tried them to Sunday night, and then they wanted protection, and when we gave them protection they went out.

The following is the paper of the committee appointed by the employés making certain demands, to which I have already alluded in my testimony:

BROTHERHOOD OF LOCOMOTIVE ENGINEERS,
PITTSBURGH DIVISION, No. 50,
PITTSBURGH, PA., *July 20, 1877.*

To the Superintendent Western Division Pennsylvania Railroad:

First. We, the undersigned committee, appointed by the employés of the western division of the Pennsylvania Railroad Company, do hereby demand from the said company, through the proper officers of said company, the

wages as per departments of engineers, firemen, conductors, brakemen, and flagmen as received prior to June 1, 1877.

Second. That each and every employé that has been dismissed for taking part or parts in said strikes, to be restored to their respective positions.

Third. That the classification of each said department be abolished now and forever hereafter.

Fourth. That engineers and conductors receive the wages as received by said engineers and conductors of the highest class prior to June 1, 1877.

Fifth. That the running of double trains be abolished, excepting coal trains.

Sixth. That each and every engine, whether road or shifting, shall have its own fireman.

Respectfully submitted to you for immediate consideration.

J. S. McCauley,
D. H. Newhard,
John Shana,
G. Harris,
John P. Kessler,
Committee.

In regard to the classification mentioned in the paper, I will say this, that there is no classification in brakemen or flagmen. When you come to the conductors, they receive a certain rate, which I do not remember, for the first year, and ten per cent. over that for the second, and ten per cent. over that for the third, where they remain so long conductors. Now come the engineers. When promoted from firemen to engineers, they receive a certain rate, and the second year ten per cent. more, and the third year ten per cent. more, and the fourth year ten per cent. more—four classifications. That arrangement was made at their request, some four years ago, perhaps longer.

By Mr. Larrabee:

Q. These men were men who would have been suspended under the orders to run double-headers?

A. No. These men had taken such an active part previous to this Saturday, that I do not think they would have been kept in our employ, but we had no opportunity to discharge them.

David M. Watt, *sworn with uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. At East Liberty, on the line of the Pennsylvania railroad.

Q. You are in the employ of the Pennsylvania Railroad Company?

A. Yes; in the capacity of chief clerk of the Pittsburg division.

Q. How long have you been employed in that capacity?

A. It will be fourteen years in July next.

Q. You were filling the place of Mr. Pitcairn on the Thursday before the riot occurred?

A. Yes; during his absence.

Q. Have you any knowledge of any disagreements between the Pennsylvania Railroad Company and their employés prior to that date?

A. There are continually matters coming up for settlement in the superintendent's office.

Q. But disagreements leading to the riots?

A. There were none to my knowledge. Had there been, I should have known it.

Q. Had there been any reduction in wages?

A. Yes; a reduction of ten per cent., which had been notified in May, to take effect on all the employés from and after June 1.

By Senator Yutzy:

Q. All employés?

A. Except those whose pay amounted to one dollar per day, or who were paid by the month, and whose pay amounted to the rate of one dollar per day or less.

Q. Did that cause any complaint from the employés?

A. We were compelled to reduce our force on account of the condition of business. The volume of traffic governs the amount of wages, and the number of men we work. We had more men than we had the opportunity to give full time to. It was decided to reduce the force after the 1st of June, and the idea was to select the older men, and the men who by their services had proven themselves good and capable. To retain these and let the single men go, so as to give the married men a chance to make all the time we could afford to give them in the running of the traffic. It was also decided to run all the trains double-headers. A portion of them had been running for years as double-headers, but a notice was issued in July, advising all the employés that on and after a certain date—July 19, was the date fixed upon—all trains to and from Derry would be run as double trains. No complaint in the interval, between the date of the issuing of the order and the date upon which it was to go into effect, had been made at the superintendent's office, to either the superintendent or myself. Nor had there been any, so far as we had knowledge, to any of the subordinate officers, such as train-masters and others. Some of the men complained, of course, at not having work. It was a mooted question as to who would be the ones to go off.

Q. What date was that order to go into effect?

A. Upon July 19; Thursday. Mr. Pitcairn had arranged to go east on Thursday, July 19, in the day express, and I came to town, reaching the office about eight and a half o'clock in the morning, and up to that time no trouble had occurred, nor was any anticipated by the train-masters nor any one in our employ. About the time the eight-forty's—the extras—were to leave, the dispatcher came to the office and reported that some of the men had refused to go out. I made inquiry as to the reason of their refusal, and was told that they refused to go out on account of its being a double-header. Conductor Ryan was the man whose train did not go out. In the making up of his train he was ready to go out, but his men refused to go. I then instructed the dispatcher to call upon all the men on the road, with those out at the train-men's room. He called upon, I believe, some twenty-five men, brakemen, who refused to go out. They gave different reasons, some because they were double-headers, and some because they would not go if others did not go. Mr. Garrett, the assistant train-master, came in on the train that reaches there about nine o'clock. I sent for him, and told him what had been reported to me, and asked him to go out and see the men and see what they wanted, and report. Mr. Garrett, and Mr. McCabe, and Mr. Hunter, dispatchers, all three tried to induce the men to go out, but these twenty-five that had first refused got the balance to join them in refusing to man the trains. Mr. Garrett, I believe, requested Mr. McCabe, the general yard dispatcher, to make up a crew from the yard brakemen to man that train. Conductor Ryan was at all times ready to go out, and the engineers belonging to that train professed a readiness to run. We had a number of conductors there ready to run, and Conductor Gordon was the man who was going to take the train out after Mr. McCabe had secured the crew among his yard men. The crew, in making up their train, were assaulted with stones, and links, and pins, and driven from the train by a number of those men who had first refused to go out. I found that we were unable to get the train out. Then it came time for the nine-forty's to go out. In the meantime the crowd had increased somewhat, and they had taken possession of the switch which is west of Twenty-eighth street, leading on to the main track, over which a train to go east would have to be moved. It was reported to me

that they would not allow the engine to go over that switch. The crowd was increasing. I then started, after a consultation with Mr. Garrett and other men there, to call upon the mayor. I asked that he should protect us in the movement of our trains, by removing from Twenty-eighth street, or that immediate neighborhood, those parties interfering with the switches.

By Mr. Lindsey:

Q. Did you call in person upon the mayor?

A. I did; between ten and eleven o'clock. I drove to the mayor's office, and stated the trouble to him, and called upon him in the name of the company for protection. He replied that he had no force.

Q. Mayor McCarthy?

A. Yes; he said that the day-light force had been taken off, probably, about the 1st of July, and that he had nothing but the night force. I asked him to give me the front office force. He said he could not send them away. I told him I must have protection of some kind. He said that he might send out and gather up a force. He wanted to know how many men I wanted. I told him if he would send up ten men in uniform, that with our own force from the depot, if he could go up to the ground with me, and I had a buggy to take him, I thought the trouble would be all over before twelve o'clock. I thought the simple fact of his presence, without the police, would disperse the crowd there at that time. He refused to go, saying that he could not leave the office. I rather urged the matter upon him. The mayor then said he had been sick, and was not fit to go. He gathered a force of some ten men, I believe, and sent officer Charles McGovern, one of the front office men, in charge of them. They were to report at the Union depot, and be moved from there by a passenger car to run especially to Twenty-eighth street. Before the force was sent, the question was asked of me, who was to pay for the men.

Q. By whom?

A. The question was suggested by Mr. O'Mora, and addressed to the mayor. The mayor then addressed me, and desired to know whether I was in a position to assume the expense. I told him certainly, that I must have protection, and that if he could not give the force, and I must pay for it, I was then ready, and would become responsible for the payment of the men. I went to the outer depot, and got there a few minutes before the squad of police arrived. I walked up to Twenty-eighth street, in company with one of the dispatchers, I think McCabe, and was then advised that we could not turn the switch, that those parties held the switch, and would not allow the engine to back down. The engineer was John Sweeny, and the conductor was S. K. Moore. We wanted to take the engine down to couple on to a draft of cars to take them out on the Wilkensburg siding. I directed Moore to turn the switch. He refused, saying to me that he was afraid, that there were men there to shoot him the moment he attempted to turn the switch. I replied: "Very good, I will turn the switch," and I made a step forward for the purpose of getting to the switch, when the crowd gathered around me, and a brakeman by the name of D. D. Davis, who, I believe, at the time was in the employ of the Pan Handle road, or else a discharged employ   from there—he was not in our employ—jumped in front of me, and waving his hand, or his hat, called out: "Boys, we will die right here." I placed my hand upon his coat, and called upon officer McGovern to arrest him. While my hand was upon his coat, some one delivered a blow, and hit me in the eye. That was from behind this man Davis. Immediately an attempt was made on the part of the police officers to arrest him. Others interested with him were throwing themselves in the way of the police officers to prevent the capture, but he was finally captured, and taken to the station-house. Prior to that time, however, I had reported to Mr. Pitcairn on the day express east that there was trouble, but that I did not anticipate it would amount to a great deal, and that he need not hurry home, unless further advised by me. The first place I could reach him was at Altoona. After having been struck, and finding the crowd increasing, and determined to prevent the running of the trains, I made a still further report, stating the condition of things, and he came back to Pittsburgh on the next train on which he could reach here, the fast line west that night. After I was struck, I believe I directed Mr. Smith to

write a message, either in my name, or in Mr. Pitcairn's, I do not recollect, and addressed to the mayor, calling upon him for an additional force of not less than fifty men. It may have been a portion of those men who came up on the Atlantic express, six or eight, in charge of William J. White. Mr. Garrett reported from Torrens an immense crowd gathered there. I went up on the Atlantic with this police force to try to endeavor to get the stock. There were forty-six cars, all loaded with stock, waiting for this train to come out. We expected every moment to get some train started. Mr. Garrett had made an arrangement to side track some train coming west, and to take the engines and turn them at Torrens, and go east with the stock. They were there interfered with by quite a large crowd, who notified the employés on the trains that had come west that they must not couple to or touch the cars, intimidating them and threatening that they would be killed, or that something would happen.

Q. Who composed that crowd?

A. A number of railroad employés of our road and other roads and parties I didn't know, but supposed them to be not railroad men.

Q. Who seemed to be leading the crowd at Torrens?

A. A man who had been in our employ until the morning of Thursday—Andrew Hice. He notified the parties that he would be damned if any stock should move there, and that no train should pass there until the matter was settled.

Q. Was he an engineer?

A. He had been at one time a conductor on the road. Up until that Thursday morning he was in the employ of the company as a flagman. I might here state that when I directed Mr. Garrett to go out and see the men, he was told to notify all those employés who were called upon, and who refused to go out, that they might consider themselves as discharged. One party was paid off immediately; the others had not come for their pay, and nothing was said about paying or reporting them discharged until after the troubles were over.

Q. Did you have any conversation with those men yourself at that time?

A. Which men?

Q. With that crowd—those leaders?

A. I did have a conversation at Twenty-eighth street, before going to Torrens. I called upon the crowd to disperse and leave the ground of the company, that we proposed to move our trains, and did not desire to have any trouble.

Q. Did they make any demands at that time, and if so, what were the nature of those demands?

A. They did not. They simply said it was a question of bread or blood with them. At Torrens I had a conversation with the engineers and conductors of the trains coming west, and tried to persuade them to couple on to the stock and go ahead. They, however, refused, and gave as a reason, that they were afraid for their lives to do so. Mr. Thomas Scott, day stock agent at East Liberty, and the dispatcher both said to the crews that they would couple the cars if they would back the engines; but the crews were too much intimidated to do that. Mr. Garrett started with those engines to go east, and was to stop at Wilkensburg to take there a draft of twenty-two to thirty-two freight cars, and start for Derry with them. He and I had an understanding that I would attempt to get the stock from there somehow. I was to advise him after he left whether he might expect it. We gave it out that the stock was to be unloaded, and the shifting engine at the station, there for the purpose of shifting around the yard, backed down against the stock, and, that being coupled to the train, they started at once, and before they discovered what we were after, the train was out of reach, and this train that Mr. Garrett had taken east stopped and took on the stock at Walls. This was the last stock that we got away from East Liberty. East Liberty is four and five tenths miles, and Torrens is half a mile further east. I staid at Torrens waiting the movements of a train from Pittsburgh—the train that should come out in the afternoon. An attempt was made about four o'clock to move that train. A crowd interfered after the engines had started, and the

engineers left their engines, and the crews gave up the trains. I then came back to Pittsburgh and went to the office, and made a still further report to Mr. Pitcairn. I then drove again to the mayor's office. I met Captain Bachelor at the office. He wanted to know if he could do me any service.

Q. He called in the capacity of a private citizen?

A. Yes.

By Senator Reyburn:

Q. Who is he?

A. The president of the Mason's bank. I found, on inquiry, that the mayor was not about when I got to his office. I was informed by his clerk, Mr. Metzgar, that he had gone out to Castle Shannon in the afternoon. That his wife was sick, and that he had gone to see her. I then asked whether anything could be done to call out the night force, fearing from the way the crowd was increasing that there might be considerable trouble. They said they could not send the police force out there and leave the balance of the city unprotected. I then drove up here to the sheriff's office—or rather the captain drove up—and found all closed here. I then drove to the sheriff's residence, on Washington street, and they replied that he was out of the city, but was expected back during the evening. I then went back to the office, and found that we could not make any movement that night, though we held the crews ready to go in case we had a chance to move.

By Senator Yutzy:

Q. What night was this?

A. It was on Thursday night. I reported the condition of affairs to Mr. John Scott, who had called at the office on his way into town, in pursuance of a message from the east, to consult with Mr. Pitcairn. During that night, and before twelve o'clock, the crowd was accumulating, and had entire possession of the tracks at Twenty-eighth street, so that we were unable to move even the engines engaged in the yard transfer work. The engineers

had all been notified to put up their engines, and go into the house, and the movement of stock was interfered with. The movement of stock from the western roads—some was turned back. There seemed to be some trouble among the parties themselves as to whether the stock should go on or be sent back. I called at the office of the Pennsylvania company, to get the Honorable John Scott to go with me, and we called upon the sheriff in the name of the company for protection, and stated all that had been done up to that time. The sheriff got his deputy, who lived across the way, and we all drove out to the outer depot. On the way out we saw Mr. Pitcairn walking up, and took him in and rode to the outer depot—I think a little after twelve o'clock, midnight; the sheriff, after a consultation, went with General Pearson and some twenty or thirty men of our employés, myself among the number, to Twenty-eighth street. He there mounted upon a plank leading up on to a gondola, so that his head was above the crowd, and addressed them, advising them to leave and go to their homes, stating what his duty would be in case they did not go. He was greeted with all sorts of vile abuse, and told to go home. I will not repeat the language. He found he could do nothing there with them. He was jeered at, and while he was addressing the crowd pistol shots were fired in the air. That crowd was composed of some few railroad men, but the majority were not railroad men—a great number of them were mill men, and some of them with no occupation at all.

Q. How large was the crowd at that time?

A. I should judge in the neighborhood of two hundred men. The sheriff then went back to the superintendent's office, and entered into communication with Harrisburg and other points, sending the telegrams as described by Mr. Scott. There was no other attempt made that night to move anything, except stock to the stockyard from the connecting lines.

Q. What occurred on Friday morning?

A. We had crews brought in from Derry—that is the train-masters. They came in as passengers, ready to take the trains east. The majority of the engineers, up to this time, had professed their entire willingness to run at any and all times, but the crowd, on Friday, had increased to such an extent

that it was not deemed prudent to attempt to start the trains without some protection afforded to the men running them, at least through the crowd. Very little was done during Friday, except the movement of stock. Friday night the troops were moved, the Fourteenth and Nineteenth regiments, I believe, to the neighborhood of Twenty-eighth street. I expected on Saturday morning that we would start our trains without much trouble. I believe they took almost complete and entire possession of Twenty-eighth street and the switches that we needed to get our trains out.

Q. That is the troops took possession?

A. Yes; they had full possession of Twenty-eighth street on Saturday morning.

Q. And all the switches you needed to get your trains out?

A. Yes. But the crowd assembled in very large numbers, and it was not long before the crowd had possession of them, and all the ground.

By Senator Reyburn:

Q. Driving the troops off?

A. There was no conflict at all. The troops were stationed, one regiment on the hillside, probably some two hundred feet back from the line of the railroad, with their arms stacked, and another regiment was stationed on the road leading up to the hospital grounds, east of Twenty-eighth street, with their arms stacked, and a few men were on the crossing.

By Mr. Means:

Q. I want to know if those troops left their arms stacked while the crowd was still accumulating?

A. The crowd was in and about there. Do you mean whether or not the crowd could have taken possession of any of those arms without interference?

Q. No; but whether while the crowd was still accumulating the troops had their arms stacked?

A. The crowd was accumulating, and continued accumulating up to the time of the firing.

Q. And the arms were still stacked?

A. Yes, sir; while I was there.

By Mr. Lindsey:

Q. That is Friday evening?

A. No; Saturday morning. Mr. Pitcairn, and Mr. Cassett, and General Pearson, and other officers were at the Union depot. I remained at Twenty-sixth street, awaiting any instruction that might be sent me. I was advised by Mr. Pitcairn to hold myself in readiness to move some trains on Saturday afternoon—that the sheriff and posse were coming up the track, and that they would be followed by the troops, and that he expected that the crowd would be dispersed, and that we would be furnished a sufficient guard to place upon each one of those trains to move them out beyond Torrens, or to any other point where we might expect trouble. I waited, and met them as they came up. They were followed by quite a large concourse of persons. The troops held the track about opposite Twenty-fifth street, and there the Second brigade of the Philadelphia troops was left. I do not now remember the name of the general in command. However I was left with him. The First brigade moved on to Twenty-eighth street. This Second brigade threw out a skirmish line across the entire yard, with instructions from the general to drive back everybody. It was General Loud. He threw out a skirmish line and drove all parties west a sufficient distance for us to couple together all our cars and to make up our trains to go out.

Q. Drove them towards the city, you mean?

A. Yes; quite a crowd of the transfer clerks, and some of our engineers, and oil men, and repair men were on the tops of the cars, who claimed to be

employés, and had business there. General Loud sent an officer to me and asked if they were to remain there or whether we wanted them. I told him that we did not want anybody within a certain distance. When we had made attempts, prior to that, to couple up the trains, the links and pins all along had been taken out. I went down and advised the transfer clerks to go into the office, and I told the officer that when any of our men had business to be inside, they should be let through, and I told them that if we wanted them we could advise them. After having cleared off that space, we heard firing. I looked up in the direction of Twenty-eighth street, and saw a crowd coming down, a portion of them coming down towards where I was, right opposite the mouth of Twenty-sixth street. Seeing the crowd coming, I had the gate thrown open—the gate that closes the shops and the exit gate on Liberty street thrown open—and directed colonel, some one of the Greys, to throw a body across to prevent them going down the space he had cleared, and that we could turn them out at that point out on Twenty-sixth street. That firing occurred about five o'clock. When I speak of time in my testimony, I speak altogether of railroad time. There was no further attempt made that night to start trains. The excitement was so great, and it was quite late, so the men refused to go for fear of being thrown off the track at some point on the road. I believe that brings me up to the time of the firing.

Q. You had a space sufficient cleared to enable you to get your cars out?

A. Our engines were backed down from the round-house on to those tracks that the trains were standing on. We had cleared off a space there from the side hill to the line of the "transfer" clear of anyone and everyone.

Q. What prevented you from moving out your trains at that time?

A. The men got frightened at the firing, and started off. They were afraid that if they made an attempt at that time in that excitement that they would be thrown from the track.

Q. Where were the militia then?

A. General Loud was still in his position between Twenty-sixth street, and, I should judge, Twenty-fourth. The First division was at Twenty-eighth street,

and a considerable portion of the crowd was between Twenty-sixth and Twenty-eighth streets, between the two bodies of troops. I asked the colonel in charge of this Grey regiment not to allow his men to fire on the crowd coming down, that they could be turned out at Twenty-sixth street, and that some of our men were there who were all right. He got in front of his men and cautioned them. He first gave the command to a captain to have his men load their pieces. That was done, and then he cautioned his men, saying it was a very delicate matter, indeed, and that the men should be very careful, and that when there was any necessity for any firing that the men must remember that he would give the command.

Q. How long did the troops remain stationed as you have described?

A. I cannot answer that as to time. I went to the office and there saw General Pearson and General Brinton, and some of the others in consultation. They were all close around the shops, and they then turned and moved into the shops. I suppose it was then about six o'clock.

Q. Where did the troops stay during the night?

A. I was not there during the night.

Q. Do you know from your own knowledge?

A. They stayed in what we call the lower round-house and lock-shops.

Q. What troops stayed there?

A. I understand the Philadelphia troops, General Brinton's command, and the two pieces belonging to the battery here were taken into the round-house. The Fourteenth regiment had been stationed at the transfer building. The reason, I think, for their going into the shops, as I understood it, was that the men who were there had come without any preparation, and as there were to be no trains run out that night, they would go into the shops to be as comfortable as possible.

Q. Was any further effort made during that night to start any trains?

A. We were unable to make any efforts further.

Q. Can you tell us what became of the crowd during the night?

A. The crowd around the buildings accumulated so that in front of the office, at the corner of Twenty-sixth and Liberty, and for some distance on either side of it—that being the head-quarters—the office—they had taken possession of Mr. Pitcairn's office for the head-quarters—the crowd was very dense, and packed down Twenty-sixth street, probably half way to Penn, and on Liberty street, in every direction, for a square—an immense crowd of people yelling with rage against the troops.

Q. How many would you judge were there at that time?

A. Not less than five thousand people.

Q. Did they remain in force during all the night?

A. I was not there during all the time, but I understood they were constantly accumulating.

Q. Until Sunday morning?

A. Yes, sir.

Q. How large was the crowd on Sunday morning?

A. I cannot answer that. I was on the side hill early on Sunday morning, and I could see immense crowds in all directions moving up Liberty street.

Q. Can you tell us what the result of that firing, at the point cleared, was as to loss of life?

A. I am not prepared to answer that. If you will remember, I was stationed at Twenty-sixth street, and was not at Twenty-eighth street. At the time of the firing, I was with the second brigade of General Brinton's division. There passed me, and were taken into our office, several soldiers belonging to the First regiment, and a boy who was shot down. I should judge a boy about twelve or fourteen years of age. There were two men carrying him.

Quite a number of wounded soldiers were taken to the office, and they sent for Doctor Hamilton.

Q. Can you state what efforts were made, after the troops were taken into the round-house and the shops, by the officers of the militia to drive back the crowd and disperse it there that night or Sunday morning, or during the day of Sunday?

A. When they went into the round-house, I understood they would keep under cover. I do not think, from all I understood, it was the intention of the troops to come into any collision. They felt that they were brought there to protect the movement of trains, and that there would be a guard go out on each train, after having obtained possession of the Twenty-eighth street switches.

Q. What time did the firing of cars commence by the mob?

A. I cannot answer that from my own knowledge. I believe in the neighborhood of ten o'clock.

Q. Saturday night?

A. Yes, sir.

Q. Was any attempt made by the officers of the troops, or by the civil authorities, either of the county or city, to prevent that, and to drive back the crowd when they began to fire the cars and destroy property?

A. I cannot answer that. I did not see any.

Q. By any of the authorities?

A. I did not see any.

By Mr. Engelbert:

Q. Did it appear that the citizens were in sympathy with the strikers?

A. I am a Pittsburgher.

Q. But I ask were the citizens in sympathy with the strikers?

By Senator Yutzy: I think, Mr. Chairman, that that question ought to be modified. All the citizens were not present.

By the witness:

A. If you asked me the question whether or not the citizens, or any number of them, came to me and offered their assistance, then I might answer the question. The crowd certainly manifested no disposition to assist in the running of trains. The crowd, of course, was in sympathy. I speak of those who were present at Twenty-eighth street and Twenty-sixth street, on Liberty street, fronting the office, and I should say there were none at all in sympathy with the railroad company, but the soldiers.

By Mr. Engelbert:

Q. But that does not answer my question. I desire to know whether the citizens were not in sympathy with the strikers?

By Senator Yutzy: I repeat, Mr. Chairman, that I do not think this question should be put to the witness. I move that the committee retire for a few moments' consultation.

This motion being agreed to, the committee retired.

Upon returning, the chairman of the committee announced to the witness that the question would not be pressed for the present.

By Mr. Lindsey:

Q. What time did the first firing occur?

A. In the neighborhood of five o'clock. It was, probably, a few minutes after five o'clock.

Q. But when did the first firing occur—that is, when was the fire first kindled by the mob?

A. In the neighborhood of ten o'clock.

Q. Was any effort made by the railroad company, during the night, to prevent the firing and destruction of property?

A. I would hardly know how to answer that. The railroad employés that we had considered loyal and ready to run, when we desired them to go on the trains, had gone to their homes, it not being deemed prudent to run any trains that night. I left the outer depot in the neighborhood of seven o'clock, to go down to the Union depot for supper, and to arrange for the sending of supper for General Pearson's staff, and General Brinton's staff, and all his brigade generals' staff. I went to the Union depot with Mr. Pitcairn and Mr. Cassatt, and, I think, Colonel Smith, on engine forty-five. At that time the military were in possession of the shops and round-house, and I did not anticipate that anything would be done until daylight. The firing of the cars was, I understand, up at Lawrenceville, or just within sight of there, and the cars were dropped down, and the switches so turned that they would run towards the round-house—the burning cars, these, of course, would communicate to other cars.

Q. Would the cars run themselves?

A. It is down grade from East Liberty to Lawrenceville, and there a moderate down grade until about Twenty-sixth street, where there is a short level space, probably, two or three squares, and then there is an up grade west of that point until you reach about opposite St. Bridget's church, where again it is down grade, so that a car started from the east would run towards the round-house, and a car started from the west end of the yard would run toward the round-house.

Q. Do you know how long the troops remained in the round-house?

A. I understand they left between five and six o'clock that morning.

Q. Sunday morning?

A. Yes.

Q. You were not present there?

A. No.

Q. You do not know what occurred from your own knowledge?

A. Except from what I saw from the hillside.

Q. You were present during the day—Sunday?

A. No.

Q. Were you where you could see the movement of the rioters?

A. Not after four o'clock, Sunday morning.

Q. How long did the riotous proceedings continue—in other words, when did the mob disperse and cease their burning and destruction of property?

A. I left town on Sunday night at nine o'clock, and I understand they were still riotous. Of my own knowledge I know nothing after that time. Our head-quarters were at Blairsville intersection.

Q. When did you first get control of your road and property at this point?

A. Mr. Pitcairn came west from Blairsville intersection on Wednesday, July 25, I think on the Johnstown accommodation. We were then running our through connections over the West Penn Division, from Allegheny city to Blairsville intersection, and on the main line as far as East Liberty, our mail trains, and our passenger trains, and our Uniontown express over the south-west road.

Q. Were you present when the troops fired upon the crowd? If so, state all the circumstances that took place at that time?

A. I have already said that I was not at Twenty-eighth street at the time of the firing, but was with General Loud at Twenty-sixth street.

By Senator Reyburn:

Q. You know nothing then as to what transpired at Twenty-eighth street?

A. Except by seeing the crowd running, and hearing the firing, which was of an irregular character—not a volley at all.

By Mr. Means:

Q. The firing was something like the firing of a skirmish line?

A. Yes.

By Mr. Lindsey:

Q. Who composed the crowd at that time? Were they railroad employés or stragglers in general, or were there any other persons in the vicinity mixed with the crowd to any extent?

A. There was quite a very large number of lookers on, stationed on the hill side above—men, women, and children, scattered all along, probably for a distance of fifty thousand feet.

Q. How close were they to the persons carrying on the riot?

A. Probably from a hundred to two hundred and fifty feet above them. And at Twenty-eighth street, and east and west of Twenty-eighth street, and covering all of the tracks before the troops came up, there were many people. All our trains passing—we were running all the accommodation trains east and west—were boarded at Twenty-eighth street by the crowd, who filled them up, and ran through the cars, and piled upon the engines, so as to seriously interfere with the men in the performance of their duties. The crowd, many through curiosity, went upon the trains in such force that it was useless for any of our men to attempt to collect fare. The engines were perfectly black, both in front of the engine and the tank and the platform. A great number of those men got on and would go through the trains to see who was in them, before they would let them proceed.

Q. Were the passenger trains interfered with by the mob?

A. All were stopped at Twenty-eighth street, and the mob went through and examined each and every train for soldiers.

Q. And then allowed them to go on?

A. Sometimes it was a very serious question. If we had not had some engineers determined that they were going to try to get their trains through, they would have cut the passenger trains off and allowed nothing but mail cars to go.

By Mr. Means:

Q. On the 23d of July, did the sheriff not throw a guard around the burned district?

A. I was stationed then at Blairsville Intersection, and I cannot answer that question of my own knowledge.

Q. Then you do not know whether on or after the 23d day of July the railroad company could or could not have had entire control, if they had seen fit?

A. Most decidedly they could not, simply for the fact that they could not get beyond Lawrenceville station.

Q. But did not the sheriff throw a guard around the burned district?

A. I don't know. I was not in the city on the 23d of July. But the tracks were all burned between Thirty-third street, or Lawrenceville, and the Union depot.

ORPHANS' COURT ROOM,
PITTSBURGH, FRIDAY, *February 8, 1878.*

MORNING SESSION.

Pursuant to adjournment, the committee re-assembled at ten o'clock, A.M., this day, and continued the taking of testimony.

The first witness examined was:

Norman M. Smith, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. State where you reside and what your official connection with the Pennsylvania Railroad Company is?

A. I reside in the Twenty-second ward of Pittsburgh. I am manager of the Pittsburgh transfer station.

Q. How long have you filled that position?

A. About twelve and a half years.

Q. State to the committee, in your own way, what the causes were that led to the riot, or what the disagreements were between the Pennsylvania Railroad Company and their employés, and give the history of what you saw.

A. My position was not such that I can speak from personal observation as to the causes. Of course, I understood them to be the ten per cent. reduction, which had taken place on the 1st of June, and after that the increased running of double-headers on freight trains. I understood these to be the causes. My more immediate connection with the trouble commenced on the morning of Thursday, July 19. About nine o'clock that morning my foreman came to me, and informed me that there was difficulty in getting out our east bound freights—that the train men had refused to go out, unless the trains stopped running as double-headers. I went from my office up to the outer depot, and there found that the crews had refused to run. Shortly after that I met Mr. Garrett, the assistant train master, and Mr. McCabe, the general dispatcher, and they informed me that they were going to the

transfer station to detail our yard crews to run along the road. I remained there long enough to see one of the crews arrive. They came and attempted to couple a caboose car on one of the engines. A brakeman by the name of Gerry was making the coupling, when he was attacked by a number of train men, and driven away with a shower of stones, and links, and coupling-pins. I saw him struck. A further effort to remove the train was not made. About a quarter before twelve, I walked up to the outer depot again, and just at that moment a car came up with some ten or a dozen policemen. I then met Mr. Watt, and walked with him and the policemen up to Twenty-eighth street. A yard engine was standing on the switch there, and an attempt was made to get it out. Mr. Watt instructed a conductor named Moore to turn the switch, in order to let the engine out. Moore declined to do it, giving as his reason that he had been threatened with violence if he did so. Mr. Watt then made the attempt to turn the switch himself. Just at that moment, a man standing there raised his hand, perhaps with his hat in it, and said: "Come on, boys, we will die right here." Mr. Watt directed an officer to arrest him, and at that moment he was struck, by a man named McCullough, in the eye. The policemen made a rush on McCullough, and, after being interfered with by his friends, he was arrested. Mr. Watt then requested me to go to the telegraph office, and telegraph to Mayor McCarthy for fifty additional policemen. I sent a message, as near as I recollect, in these words: "Please send fifty additional policemen at once," and signed Mr. Watt's name to it. That message went a quarter before one, Philadelphia time. I then returned to Twenty-eighth street, and remained there perhaps two hours, and then returned to my office about three o'clock, and then returned to the outer depot. An additional police force of perhaps five or six men had responded to the call for fifty. A train was made up, two engines were attached to it, and it was ready to move. When the order was given to go ahead, a number of strikers got in front, and signaled it to stop, when it commenced moving. One of the engineers whistled down brakes, and the train stopped. There was some wrangling there, and the engineer of the forward engine, a man named Woodward, got off the engine, and was immediately greeted with cheers by the crowd, and made a hero of. I had an engagement at the house then, and left. I did not return until the next

morning. The next morning I found the crowd still at Twenty-eighth street, and the condition of the yard the same as the night before. No trains had been moved. About eleven o'clock, a committee of employés at the transfer station came to the office, and informed us that they intended to strike, unless the ten per cent. was restored. We told them we could only submit their demand to those in authority over us, that we had no function in the matter at all. The committee retired to discuss the matter with their fellow workmen. About twelve o'clock, perhaps a little before, a committee from the strikers—a committee of brakemen, I am told—I was not present at the time—came to the men, and made a speech to them, and told them if they would strike, they would protect them, and guarantee places after the strike was over. A majority of our men then went with this committee that came down in the direction of Twenty-eighth street. I remained on the platform, and saw such of the men as I could, and I found those I talked with were opposed to striking, and ready to go to work; and one by one the men who had gone off with the committee returned, or a number of them. These men said they were led into the thing against their wishes and judgment, and that they were ready to work. Of course, they did not like the reduction, but they must work if they could get it. I told them to leave their names with the foreman, directed him to take them, and told them as soon as they had given their names to return to their homes, and that as soon as we wanted them we would send for them. Our work, of course, had stopped with the stopping of the trains. I remained about the office until four o'clock in the afternoon, and then went to the Union depot. I there met Mr. Pitcairn, and he requested me to remain with him. Shortly after my arrival there, I found that a section of artillery and a portion of the Nineteenth regiment had reported for duty. The Eighteenth regiment, under Colonel Guthrie, I had seen going east on a passenger train, about noon, on the way, I ascertained, to Torrens station. Breck's two guns and the Nineteenth regiment were ready for orders. We started out Liberty street. After we had gone a square or so, we halted, and I heard Senator Scott, and Mr. Thaw, and Mr. Cassatt, and Mr. Pitcairn, and General Pearson in consultation. Certain of these gentlemen deprecated the movement of the troops at that time, thinking that the number was not sufficient to meet the strikers then at Twenty-eighth street, and fearing a

precipitation of the conflict. After this consultation, those troops were recalled, and brought on to the platform of the Union depot. A number of us, Mr. Pitcairn, Mr. Cassatt, General Pearson, Mr. Watt, and myself, and, perhaps, others, I do not recollect now, discussed the matter there, and General Pearson said that he would await the arrival of the Fourteenth regiment. When that came, probably about nine o'clock, on Friday the 20th, he proposed moving out the tracks to Twenty-eighth street, and hauling his guns after him. I objected to the movement, and was asked the reasons for my objection. I stated them to be, that I thought that at eight or nine o'clock that night the crowd would be very large, and that the movement would be a mistake. I suggested, instead of that movement, to wait until about three o'clock in the morning, when the crowd would be at a minimum, and then move out Bedford avenue with the Fourteenth regiment, and so give time for the Nineteenth regiment to arrive by the time the ground was cleared by the Fourteenth. Then, if the crowd did not go away, to drive them away, and occupy the hill and crossing, and keep them clear. Then, I thought, we could start the trains. After considerable discussion, that plan was adopted. I remained at the Union depot, and met Adjutant General Latta when he arrived.

Q. What time did he arrive?

A. On the fast line, that came in about twelve o'clock Friday night—may be a few minutes later. General Latta was advised of the proposed movement, and was particular in his inquiries in regard to it. He first hesitated in authorizing it, fearing a precipitation of the conflict. We argued that the probability of a conflict would be avoided by making that movement; that perhaps there would only be a couple of hundred men there and that we could occupy the place without difficulty, and once in control could keep it without further trouble. After the facts were presented, he declined to interfere with General Pearson's arrangement. About two o'clock, the Fourteenth regiment was ordered to return to the city, with the understanding that as soon as they got to a certain point they were to turn and go out Bedford avenue. Before this, however, I was directed to arrange to have two gondola cars to mount the guns on, and to have two engines to

push them up. I was to man them and run them up on parallel tracks, with the Nineteenth regiment supporting them. I went to the depot master, and requested him to get the gondolas, and asked him how many engines he had. He replied that he had one yard shifter. I told him to order out two engines for the Pacific express, and told him I had authority from Mr. Pitcairn to give the order. The engines were ordered out, but the mob refused to allow but one to go. The Fourteenth regiment had started out Bedford avenue. After my return, I started out the track, and went up through the ravine there west of Twenty-eighth street, overlooking the location of the mob, then I passed the Pest house and met the Fourteenth regiment on Bedford avenue, and turned them through the ravine east of the Pest house, explaining the topography of the hill to the commanding officer, telling him how to deploy his regiment. We then moved forward in regimental front. We started a few people on the hill, and they ran down the track. Just as we got to the lower bench of the hill the battery and the Nineteenth regiment arrived on the ground. The crossing was occupied and cleared. We then returned to the Union depot to prepare some provision for the troops. About seven o'clock we started out, Mr. Pitcairn, General Pearson, myself, and others. At Twenty-eighth street we halted, and I called General Pearson's attention to the hill, and the general location. We had some consultation about it, and General Pearson admitted that it was a position to be occupied and held. He then went to the other side of the tank of the engine, and directed somebody to hold the hill and allow nobody to go on it, and to keep the crossings clear, and to allow nobody to come on them. We then went on to Torren's station, to Colonel Guthrie's camp. He gave his orders, and he then said he would return to the city and await the arrival of the Philadelphia troops. The first detachment arrived at one o'clock, and the second about half past two o'clock. They were given a lunch there, and at about four o'clock, perhaps a little after, we started out the tracks. Sheriff Fife, with a posse of perhaps twelve or fifteen men, marched ahead of the column some distance, with warrants for the arrest of certain parties who were supposed to be ringleaders, and Mr. Pitcairn and myself accompanied the sheriff to point out these men. When we came opposite the transfer station, I pointed out a couple of avenues leading in

from Liberty street, and said it might be well to guard them, and we made a detail to guard that place. The rest of the column then moved on. We saw, directly, that the hill side, instead of being kept clear was covered with people, and also the crossings. The troops marched up with the First regiment—I think the regiment of Colonel Benson—in advance, and on Twenty-eighth street came into line. Colonel Benson then formed two sides of a square, making the north and south sides of the square, and two companies came up in company front and formed the first side of the square, facing east. The Gatling guns took position in the rear of the east side of the square. Before this square had been formed, Mr. Pitcairn and myself went with the sheriff among the crowd, but were unable to find the parties for whom the sheriff held warrants. We had some discussion there with the strikers, and General Pearson, I observed, passed us going up the hill where the Pittsburgh troops seemed to have been formed. After the square had been formed, we gave up our discussion with those people, and Mr. Pitcairn and myself sat down on some plank about the center of the square. General Pearson passed us and made some remarks. I forget his words. He referred to the thing looking serious, that more troops should be had, and said he was going to telegraph General Latta, and left us, starting in the direction of the telegraph office.

Q. What time was that?

A. That was about five o'clock. Mr. Pitcairn and myself were chatting together about the situation, when my attention was called to an attempt made by the company that formed the east side of the square to press the crowd back. They formed with arms across, and tried to push the crowd back, but the mob grasped the muskets of some of them. The troops found they could not make any impression, and then the order was given to charge bayonets.

Q. Who gave that order?

A. I do not know. I simply heard the order given. The troops came to a charge bayonets on the mob. Then I recollect seeing one man—one of the mob with a musket in one hand draw a pistol with the other, and fire, and I

saw a man fall—whether he was dodging only or whether he was struck, I do not know. At the same moment one or two other pistol shots were fired, and then a volley of stones and pieces of clinker came from the hill on the sides of the square. A number of the troops were struck down. Several of them fell within two or three feet of me. Then one or two shots were fired from the muskets, and others followed, and a fusillade was kept up for a couple of minutes. Mr. Pitcairn and myself were still sitting there, and I said to him it would be prudent to lie down. We kept close for a moment or two, and as soon as the crowd broke we walked to the north side of the square, and I told a lieutenant there, who was in command of a company, perhaps, that he had better make a right wheel, and drive some people out who had got behind a gondola car loaded with coal there. I believe he acted on my suggestion. At the first firing the crowd had broken and run in every direction. Mr. Pitcairn and myself then returned to his office. There I found General Pearson, and I judged, by his surprise, that I gave him the first intimation he had of the firing. Shortly after Mr. Cassatt came into the room. A few minutes after a gentleman on General Brinton's staff. I think Colonel Wilson came in. He was directed to tell General Brinton to report. General Brinton reported, and, after some consultation, General Brinton suggested a move into the round-house. I think I objected, but to no avail, because, as he said, the mob was driven away and he could go into the round-house and get shelter for his men and give them some rest, and that he could protect the property of the company in case of an attack just as well from the round-house as from the position he then occupied. I said to Mr. Pitcairn that I thought it was a great mistake—that the hill should be occupied; but General Brinton and General Pearson, of course, were the military officers who were in charge of the situation, and for the time the railroad officers had relinquished all control. We remained there some time, and the question of supplies came up—of provision for those men—and Mr. Pitcairn, Mr. Watt, Mr. Cassatt, and myself got on an engine and went to the Union depot, and gave orders for provisions. Those provisions were loaded up and started to the outer depot, and I afterwards understood were captured by the mob. We remained at the Union depot that evening. About ten o'clock a person came and told me I had better leave. I asked for his reason,

and he said that the mob were then at Saint Fulvia's church, at Fourteenth and Liberty streets, on their way to the Union depot, and said they were going to hang Mr. Cassatt, Mr. Pitcairn, Mr. Watt, and me. I did not place much reliance on the report, but it was afterwards verified that the mob was there and moving down in that direction. The other three gentlemen went away. I was in a different part of the hotel at the time, and remained there some time, but several friends came to me and urged me to leave. I went out through the front door of the depot, and when I got near the elevator, true enough the mob did come, but I do not know what for. I then got into a carriage and drove to my house.

Q. What time was that?

A. About a quarter after ten o'clock on Saturday night. I locate the time from the fact that after I got to my home, I threw myself on the bed, and my wife came to me and said the fire alarm was striking from box sixty-four. I said it was the outer depot, and it would be a big fire in a few minutes, but I did not want to be disturbed. I looked at my watch, and it was a quarter to eleven. Shortly afterward I was again awakened to come and look at the fire. I saw at once that it was the oil cars. I slept a few minutes, and then went to the stock yards. At Torrens station I met Colonel Guthrie, and there we chatted a while, and then I returned to the city. Probably about seven or eight o'clock, I am not sure about the hour, in walking up the track, I met some of our clerks, and they told me that my office was on fire, and that everything was burned, and there was no use to go up. I went up far enough to see the fire there, which was then extending, and I went then to the west end of the Union depot in the endeavor to get a few men together to throw some cars off the track to block it. I feared they would set fire to cars, and run them down the track to burn the depot. I got a number of men together and left them in charge of it. They succeeded afterwards in throwing some cars off, and blocking all the tracks but two. The reason of my leaving was, that I recollected that the night before, Saturday night, I had been requested by General Latta to remove a lot of ammunition which had been stored in the store-room at the east end of the Union depot—some twenty or thirty thousand rounds, perhaps more. I had gone there the evening before with a

few gentlemen, and loaded this ammunition up on baggage carriers, and stored it away in the cellar. I thought of the ammunition, and knew it was important to be saved. I left the parties at the cars and went to General Latta, and asked if any arrangement had been made to get the ammunition out. He said, "yes," that he had requested Captain Breck to attend to it, and that he was then at it, but he asked me to go and see if I could render him any assistance. I went to Captain Breck, and found he was making some effort in that direction. I offered him my services, but he said that he had all the assistance that he required, except that he had no wagon. I then went to a livery stable right opposite the depot and got a large express wagon and had it brought over, and Captain Breck said he had ample assistance to load the ammunition up and get it out. Shortly after I went to the Monongahela house, to which General Latta's head-quarter's had been removed.

Q. Was that ammunition for the troops?

A. It had been brought out with General Brinton's command.

Q. What time did it arrive?

A. It arrived with the troops that came on Saturday afternoon. It remained in the store-room, into which they put it first, until nine o'clock Saturday night, when those gentlemen and myself loaded it up and took it down into the cellar of the hotel. I went to the Monongahela house. I was anxious to see Mr. Cassatt and Mr. Pitcairn. I found Mr. Cassatt there. Previous to this, information had been received of General Brinton's retiring—that he had gone east, and then we heard he was in the Allegheny cemetery. The question of provisions was uppermost in the mind of everybody for those men, and orders were sent to Allegheny for the different bakers to prepare sandwiches, and get all the provisions ready they could. Mr. Scott, the stock agent at East Liberty, came to the hotel about noon, and said that Colonel Guthrie was anxious about ammunition—that he had but little, and had divided what he had with the Philadelphia troops stopped at Wall's station. I wrote out an order on Captain Breck to give to Mr. Scott what ammunition he wanted, and took it to General Latta, who signed it. I knew Colonel Guthrie's position in regard to ammunition, and in about a quarter of an

hour I followed Mr. Scott to the Union depot. I found him, and he said that the party with whom he had come in the buggy to get this ammunition had become demoralized and left, at any rate he could not get the ammunition. I think that was the reason he gave. I walked through the depot, and went to the place where the ammunition was stored, and I found it all remaining there; none of it was removed. I walked on the platform, and found the upper end on fire. I came down and walked through the lower part of the depot, and then up stairs through the hotel. I saw very few people—scarcely anybody. I then returned through the crowd, who were dragging every sort of property away from the robbed cars—got through them, and returned to the Monongahela house. General Latta then expressed an anxiety to form a junction between those troops at Wall's station and General Brinton's command, since ascertained to be in the vicinity of Sharpsburg, and expressed an additional anxiety in regard to the question of provisions. After consultation, I volunteered to do what I could to effect a junction between the two commands. Colonel Guthrie had returned from Torrens station, in citizens dress, to consult with General Latta, as he was unable to make any communication with him because the wires were burned. It was decided that I should take a buggy and communicate between those two detachments, and make what effort I could to get provisions. Mr. Cassatt was to take the north side of the river with a provision wagon, and get through the best he could, and I was to take the south side of the river and get through the best I could. I was to remain at General Brinton's camp until I heard from Mr. Cassatt. An order was also given to Colonel Guthrie to bring his regiment from Torrens station into the city. They thought, perhaps, that that regiment could stop the further burning. That regiment had remained solid and intact through the whole trouble.

Q. What time were these orders given?

A. About three o'clock on Sunday afternoon. I drove, then, first out to Torrens, and left Major Sellers there, and returned to my house, and changed my clothes, and then started for General Brinton's camp. I went across the Sharpsburg bridge, and then returned and took the river road. Being unacquainted with the location of General Brinton's command, I

stopped at a hotel on the road, and endeavored to make some inquiries. I was not interfered with. In consequence of some replies I got, I went on to Aetna, and there ascertained the exact locality of General Brinton, and met Mr. Campbell Herron, of the firm of Spang, Chalfant, & Co., of the large works there. I explained to him the state of the troops in regard to food, and asked if he could help me. He sent for his manager, and directed that everything in the company's store should be turned over to my order. I arranged with the manager that provisions should be loaded up as soon as it was dark, and hauled out to the camp. I then went on to Claremont, and found General Brinton in camp at that point. I told General Brinton that I had orders from General Latta to effect a junction, if possible, between his command and the detachment of his division at Wall's station, under the command of Colonel Rogers. After talking the matter over, we concluded we had best bring them across from Walls, by the way of the Fairview ferry. General Brinton was to take a detachment at daylight to the ferry, and seize the boat, and hold it until we appeared on the opposite bank. I waited there, awaiting word from Mr. Cassatt. At ten o'clock a citizen of Allegheny came from Walls with word for me from Mr. Cassatt. I then started for Walls Station, distant some eighteen miles from that point. I returned by way of Sharpsburg bridge. I lost my way and got in Barren valley, but finally got on the right road again, and reached Walls station about two o'clock in the morning. I found some men there, and supposed it was a picket post of the troops, but found instead it was some men there, who, I suppose, were railroad men or miners. After some parleying with them, they permitted me to go to the house of one of the passenger conductors of the road, and from him I ascertained that the troops had gone to Blairsville. While talking to them, this party had taken my horse and buggy, but after some difficulty I got it back again, and returned to Claremont, and got there about six and a half o'clock, in the morning. I then found that the First brigade of General Brinton's division was loaded on cars, and was just then pulling out on the way to Blairsville. They had been instructed during my absence to report there. I remained until they were all loaded up, and then returned to my home, changed my clothes, and returned to the city. On my arrival at home, I was told that my neighbors had held a meeting, and had organized a

vigilance committee, and placed me in command, and I spent the day in obtaining arms and ammunition for the committee. I remained on duty with that committee for the next week, patrolling the streets—twenty miles of streets. On Friday morning or Saturday, about sun rise, I was on the picket post at Torrens station, and there met Governor Hartranft and the troops returning to Pittsburgh. I remained on duty with my patrol. The next Sunday morning I was sent for by Mr. Pitcairn. He told me that he expected to commence moving trains that day, and wanted me to get ready. I got a force of clerks together, and we commenced starting trains, and in a few weeks things resumed there normal condition.

Q. Did you endeavour to ascertain whether the outbreak on Thursday was the result of a pre-arranged plan among the railroad employés or not?

A. I made no effort to ascertain that. From observation, I think there was a plan in course of arrangement, but I think the execution of it was premature on their part. I believe they did not strike here intentionally, but that it was precipitated by the crews that first refused to go that morning.

Q. What facts have led you to that conclusions?

A. I know from newspaper reports, and from rumors among the employés, that they were organizing a union of some description, to oppose this reduction. I simply have it from general rumor—from report.

Q. Have you ever succeeded in getting anything from the employés themselves—any statement from them that would lead you to that conclusion?

A. Nothing that I can re-call. I have heard them talking among themselves, saying that they would be organized by and by—some passing remark of that description, but nothing very tangible.

Q. Did this commence prior to the issuing of the order to run double-headers?

A. My impression is that it was started with the reduction in pay—the order for it. The order for double-headers affected only the Pennsylvania railroad,

but, that for the reduction in pay was general—affecting all the roads.

Q. Have you succeeded in gathering any facts from the men, or from any reliable source, to show whether or not there was any understanding among the men on Thursday morning, in relation to a general strike?

A. I have not, but from my observation, I should think the thing was not understood at all. It was started by one crew and the others gradually came in.

Q. Can you give us the names of the parties for whom the warrants were issued?

A. I cannot now. It is a matter of record in this court-house. I think they were bench warrants.

Q. What reply did the mayor make to the telegram that was sent calling for fifty more policemen?

A. I do not know of a reply of any description. If there had been any reply made it would have come to Mr. Watts. I signed his name.

Q. Explain to us the condition of the crowd at three o'clock on Sunday afternoon, when the orders were given to form this junction between Brinton's men and Colonel Roger's men—the crowd about the depot, and from that point out to Lawrenceville?

A. I went out on this side of the city. I did not pass up the railroad. At the Union depot, when I was there, there was a crowd of half drunken men and women dragging and hauling away every sort of plunder they could lay their hands on. I saw nobody that claims respectability among the crowd committing any depredation. Of course there were some lookers on.

Q. Was the riot still progressing—was the plundering and burning still going on?

A. It was at its heights. The fire was then at the east end of the shed, at the Union depot, and by the time I crossed the Ewalt street bridge I looked back

and saw the elevator in flames. After that it burned all the way down to Seventh avenue. They were still burning and destroying property and carrying things away.

By Senator Reyburn:

Q. What kind of property?

A. For instance, I saw a woman dragging a sack of salt, another woman a bag of flour in a wheelbarrow, and a great many others carrying leaf tobacco, and some rolling tierces of lard—railroad goods in general—the products of the west going east.

Q. Was it all railroad property?

A. Yes.

By Senator Yutzy:

Q. Freight?

A. Yes.

By Mr. Lindsey:

Q. Can you tell us whether, at that time, there was any reason to apprehend further destruction of property, not only of the railroad company, but of the city itself?

A. There were certainly such reasons. It looked then as if half the city would be burned.

Q. State whether or not you recognized any of the train men among the crowd assembled at Twenty-eighth street?

A. At what time?

Q. On Saturday, I refer to particularly, but at any time during the progress of the riot?

A. I know of but one man thus far that I have been able to recognize, and I know their faces. For instance, I can generally tell an employé of the road here—in a great many cases. But I do not know them all by name. There are one or two now under indictment that I have not seen since the riot. I expect to recognize one when I am called on to give my testimony.

By Senator Reyburn:

Q. Do you know of any requisition being made on the mayor of Pittsburgh or the sheriff of the county for a force to protect the company's property prior to the arrival of the military, and if so, did either of them respond to the call made?

A. The only requisition that I know of, to my personal knowledge, was the telegram that I sent myself, that I spoke of before, in which I requested the mayor, in Mr. Watt's name, to send fifty additional policemen at once. From the number of policemen we had that afternoon, I should judge that perhaps eight or ten came. I know of no other requisition of my own knowledge.

By Senator Yutzy:

Q. You know of no requisition being made on the sheriff, of your own personal knowledge?

A. I do not.

By Mr. Lindsey:

Q. How large was the vigilance committee that was organized—that you were at the head of?

A. There were a number of them. Mine was only one of the number. I had, I should judge, over a hundred men immediately under my command. Some were armed with their own arms.

Q. When was this committee organized?

A. The first meeting was held on Sunday evening. I was absent, but I was informed the following morning that they had held a meeting, and we were under arms that day.

Q. Monday?

A. Yes, sir.

Q. Were there any other such vigilance committees organized?

A. Yes. One was formed on my right and another on my left, in the East End, and I am told there were others in the city.

By Mr. Means:

Q. You have stated that you were advised to go away for safety?

A. Yes, sir.

Q. Was it a railroad employé or was it railroad employés, or a citizen or citizens that advised you and Mr. Pitcairn to leave the city?

A. I do not know who advised Mr. Pitcairn. The advice was given to me by myself. I was not with Mr. Pitcairn at the time. To my recollection, I think the notice was given to me by Mr. Elder, the night depot master.

Q. A railroad employé?

A. Yes. Various of my friends and citizens generally, advised me to leave afterwards.

Q. They considered your life in danger, if you remained?

A. Yes. I had notice sent to my house that I had better leave the city. They said they were going to burn the house.

Q. Was the intimation that Mr. Pitcairn's life was in danger along with the rest?

A. Yes; Mr. Pitcairn's, Mr. Watt's, Mr. Cassatt's, and mine.

By Senator Reyburn:

Q. Was any attempt made to interfere with your property or to burn your house?

A. Nothing.

Q. The mob did not go there?

A. It was too far away.

By Mr. Means:

Q. It was said that they would very likely take your life if you did not go away?

A. Yes.

By Mr. Larrabee:

Q. Who were the men that interfered with Gerry. Do you know them?

A. I think I do; but I am not prepared to say. One of the men, I think, is still in the criminal court.

By Senator Yutzy:

Q. You stated that General Pearson gave orders to keep the hill clear, and to let no one on the tracks. At that time was any one besides the military on the hill side?

A. Nobody except the military—not more than half a dozen. Probably the people living up there were passing up and down; but there was no crowd congregated there at all. I am unable to say to whom the order was given. He was on one side of the tank, and I was on the other. I presume it was some officer in charge; but who it was I cannot say.

Q. The object of the order was to keep the mob of people from congregating on the hill side?

A. Yes; and on the tracks.

By Mr. Lindsey:

Q. What was the name of the person to whom the order was given to move the ammunition.

A. That was Captain Breck—E. Y. Breck, commander of the Pittsburgh battery.

Q. Can you give the reason why he did not move it?

A. I cannot. I was not present long enough to ascertain.

Q. Could it have been moved at that time without much danger?

A. I think it could. He may have had reasons or difficulties that I know nothing about. He was on the ground all the time, and had a better opportunity of judging than I had.

By Senator Yutzy:

Q. What troops were on the hill when General Pearson gave the orders to keep the hillside clear?

A. I am not positive about that, but I think the Fourteenth regiment was on the hill, and the Nineteenth regiment on the track, and the battery was on the flat just above the track.

Joseph McCabe sworn *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the Twentieth ward.

Q. State whether you are connected with the Pennsylvania Railroad Company, and if so, in what capacity?

A. I am the general yard dispatcher at Pittsburgh.

Q. As such, what are your duties?

A. I make up trains and see that they go out properly.

Q. Were you on duty on the 19th of July last?

A. Yes.

Q. You may go on and give a statement of what occurred, beginning with Thursday morning?

A. On the morning of the 19th of July I was in the western part of the yard. I saw that the train did not move at the proper time, and went to the middle of the yard, at Twenty-sixth street, to ascertain why it did not go. The yard dispatcher there and assistant train master told me that some of the men had refused to go out. I and Mr. Hunter, then yard dispatcher, went to the men and asked them if they would go out, and all that we would go to, said they would not go out on the double-headers.

Q. About how many men did you see?

A. All that we could find. We went into the caboose cars.

Q. All refused to go out on the double-headers?

A. Yes; except the first train. The conductor was willing to go out, but not the crew.

Q. What classes of men refused—conductors and brakemen?

A. Yes; they refused to go, and I went then to get up the yard crews to put on, and brakemen to go in the place of conductors. I got an engine out. We were just going to make a coupling. I had got two crews and brought them up, and I had told a brakeman named W. S. Gerry to couple the engine. He made an effort to do so, and while doing so, they threw at him with pins and

links and stones. One of the pins struck him on the side, and he had to run for his life to the Philadelphia fast passenger train, which was standing on the track where he was, and he jumped on it. Had it not been for that they would have been very apt to have caught him.

Q. Who threw those missiles?

A. I cannot say who threw them, but the whole crowd apparently made a rush.

Q. How large was the crowd?

A. Not over twenty.

By Senator Reyburn:

Q. Were they train men?

A. Yes.

Q. What time was that?

A. It must have been between nine and ten o'clock.

Q. Thursday?

A. Yes.

Q. The crowd was composed of about twenty men?

A. Yes.

Q. Who were those men?

A. Some of them I don't know the names of. Some are up in court, and they are now trying them. One of them is "over the river."

Q. Name as many as you can?

A. One was Andrew Hice; another Alonzo Milliner, and several more of them. I can't just remember their names now.

Q. Were they all railroad employés?

A. As far as I saw, they were at that time.

Q. Men in actual employment at that time?

A. Yes.

Q. Were there any men there at that time who had previously been discharged?

A. None that I know of.

Q. What was the next incident that occurred that came under your observation?

A. The next thing, I went to Twenty-eighth street with Mr. Watt, and tried to get engine seven hundred and eighty-five out—Conductor S. K. Moore.

Q. What time was that?

A. Pretty close to twelve o'clock. I told him to bring his engine out, and he told me that they would not allow him to turn the switch.

Q. Who do you mean by "they?"

A. He said all of them—the crowd. They would not let him turn the switch. Mr. Watt said he would turn it. While he was stooping to turn it, one of them struck him. They arrested him, and after they arrested him I turned the switch and brought the engine out on the track and down the yard, and coupled her to sixteen cars, and sent her to Wilkinsburg with them.

By Mr. Lindsey:

Q. Was that the same crowd that had assembled about ten o'clock?

A. Yes; it was Twenty-sixth street, and they went to Twenty-eighth street. The second engine was at Twenty-eighth street. It was the same crowd.

Q. Had it increased in numbers?

A. Yes; in the meantime.

Q. Who were the men that joined them? Were they railroad employés too?

A. I cannot say. Afterwards I went to the west end of the yard with another engine. I had the dispatcher at the west end to get sixteen cars on another track, and I went there with another engine at about the time the Atlantic express should leave the depot. We got that train out, and that was the last.

Q. What time did that train go out?

A. It left Seventeenth street about one-five. I got to Twenty-eighth street before I ought to. The engineers left their engines there at Twenty-sixth street after we had got the trains ready to go. The mob got in front, and the first engineer blew down brakes, and got off. Then the second engineer did the same. The assistant engineer came to me and asked what he was going to do. I said I didn't know. He said he would run that engine if anybody else would. The road foreman came up, and I told him what Mr. Phillips had said, and he got on one engine and Phillips got on another. Then some person hallooed: "If you move that engine we will blow your brains out." Then they did not start. They all went out. There were about sixteen policemen there, but they could not apparently do anything with them.

Q. How many men got in front?

A. Suppose forty or fifty.

Q. Were they all railroad employés?

A. I don't think they were.

Q. Who composed the balance of the crowd?

A. I am not able to say.

Q. What time was that?

A. I can't say that positively, either.

Q. As near as you can tell?

A. Somewhere about twelve o'clock.

Q. Thursday?

A. Yes.

Q. You say that some policemen came up there?

A. About sixteen.

Q. Who was at the head of the police?

A. I can't say who.

Q. Just explain what effort they made to disperse the mob?

A. We got the train ready to start, and five or six of them got on one engine and the same on the other, and the balance of them got on the train. At Twenty-eighth street they arrested McCullough.

Q. Who made the arrest?

A. Four or five of them had hold of him.

Q. Policemen?

A. Yes.

By Senator Torbert:

Q. He was the person that struck Mr. Watt?

A. I suppose so.

By Mr. Lindsey:

Q. Was not any attack made on the crowd by the policemen?

A. They tried to get them away.

Q. How? With their clubs?

A. No. By pushing them with their hands, I suppose.

Q. What was done next?

A. The balance of the day the men could not do anything. The crowd appeared to increase all the time.

Q. Did you have any conversation with those men that refused to go at first to ascertain their reasons for their refusal?

A. I asked what their reason was for not going, and they allowed that they would not run on double-headers.

Q. All gave that as their reason?

A. Yes.

Q. Had you any knowledge before Thursday morning that such a refusal would be made?

A. No; I didn't have the slightest idea until I went up that morning from the west end of the yard.

Q. Did you talk with the men to find out whether there was any prearranged plan to strike that morning?

A. I did not ask them anything about it. They might have had an idea of striking, but I don't think the time was set. That being the morning that the double-headers was to go out, they picked on that morning very suddenly.

Q. When was that order first promulgated or known to the men?

A. I don't remember the date. I think it must have been a few days before that, but I can't say how many.

Q. Had you heard anything said by the men about the order prior to that morning?

A. No. Whatever they did do in the matter, they kept among themselves.

Q. Were you on the ground during the day of Friday?

A. Yes.

Q. Relate to us what occurred. Had double-headers been run before that day on the road?

A. Yes; the Union and National lines were double-headers, and our coal trains were double-headers. Some trains, such as coal trains between Derry—they were running them double for a number of years.

Q. Had you run through freight trains as double-headers before Thursday?

A. Yes; the Union and National lines.

Q. That morning, the order to run double-headers on all freight trains went into effect?

A. Yes.

Q. That required the discharge of a number of men, did it not?

A. I don't know whether they intended to discharge them or suspend them temporarily.

Q. Were any of those men who were suspended or not retained in the employ of the company among that crowd of twenty that you spoke of?

A. Not that I remember of seeing.

Q. That crowd of twenty was composed of men retained in the employ of the company?

A. Principally, but there might have been some others scattered among them.

Q. How are those men paid—the brakemen and conductors—by the hour, or the day, or the month?

A. They are paid by the day.

By Mr. Larrabee:

Q. What do you mean by the day?

A. In the yard a day of twelve hours constitutes a day—eleven hours—they get paid extra for the meal hour.

By Senator Yutzy:

Q. And over hours?

A. In the yard. I simply sent a message again, telling them to await at Rochester, and to send an escort of men down the road to receive me.

Q. To whom did you direct it?

A. To Colonel Carpenter, at Rochester. I expected he would be at Rochester. He was the commanding officer of the troops. When I got to Rochester, I went up and found he had not arrived—that the division had not arrived. I immediately telegraphed for it to move immediately down. I found it was at Greenville, and I gave the direction again to the officer in charge, not specifying any person in particular. In about an hour, after several attempts to get messages or several attempts to get answers, I went again for an answer, and after the instrument fluttering for half a minute, and all communication being suspended for half an hour, I got a message saying that the troops were at dinner, and would move immediately after dinner.

Q. What time was that?

A. Twelve o'clock, on Sunday. In the meantime, I had communication with General Latta. He told me to address him again at Union Depot hotel, and in the next communication to address him at the Monongahela house. Up to three o'clock he remained, I believe, at Union Depot hotel. All the communications I had from him were at the Union Depot hotel. Hearing that the Philadelphia troops had left the round-house and left the city, and fearing for my own ammunition, which the mob around me threatened to burn——

Q. At Rochester?

A. Yes; but which I afterwards saved by going out and stating in a loud voice, that I had thrown it all in the river half an hour ago. I concluded to let the division remain at Greenville, and ordered it to remain there.

Q. What time did you give that order?

A. Probably about half past twelve, as near as I can remember.

Q. On Sunday?

A. Yes.

Q. To whom was it addressed?

A. I forget whether it was addressed to Colonel Carpenter or not. I think it was to the officer in command of the troops there.

Q. Did it reach Colonel Carpenter?

A. Yes; delivered by the agent there. Then I telegraphed to General Latta, that I was going to Greenville. At three o'clock I started for Greenville, but didn't reach there until ten o'clock the next morning, having to go to Ohio. I went to the troops, but I didn't have any communications from General Latta, and fearing that my ammunition would be entirely destroyed at Rochester, I thought it best to try to form the division at some other point, and so I ordered them home. Then I started to meet the Governor, knowing he was coming from Chicago, but not meeting him, I returned immediately to Greenville, and ordered Colonel Carpenter to re-assemble the whole division at Franklin, and by Friday night I had everybody and everything in camp, and in so fair a way, that I was confident I could handle them, and ordered a movement for Saturday morning to Pittsburgh, which no person knew. I had received a communication from the Governor on Saturday night, to know when I would move, which I answered, that he might expect me shortly, at any time. After starting at Franklin, on the way, I received a dispatch from him or from General Latta, who I don't remember, saying he didn't think it was safe for me to come to Pittsburgh with the small amount of ammunition I had. I answered back, I was on the way, and unless I received peremptory orders, I would be in Pittsburgh that night. I came

there Saturday night; as soon as I came, the Governor came down—it was raining fearfully—and said he wanted me to open the road on Monday, and for me to select what troops I wanted to use, and that night or the next morning, I selected Colonel Carpenter's regiment for the work, and the Governor sent for me, and said he wanted all the stock trains moved out that day. The stock trains were moved out on Sunday, and the freight trains on Monday, without particular opposition.

Q. Will you give us the time when Colonel Carpenter's regiment reached Greenville?

A. All the regiment didn't reach Greenville. Some of the companies kept back in Meadville. Having only one train, one engine, and one engineer under our control, the officers decided very wisely, as I should have done, to remain there until the division should be concentrated, and then move down together. The whole division was not concentrated at Greenville. There was a company from Ridgway, one from Corry, one company from Union, two companies from Meadville, and there was one company from Clarion county, which was not ordered out, because it was so far away at the time.

Q. The order you sent for Colonel Carpenter to go to Rochester—do you know whether he received that order or not?

A. I didn't send it directly to Colonel Carpenter, for at no time was I certain Colonel Carpenter was there; but to the officer in charge of the troops. I was not certain my adjutant general was there.

Q. The North East company, and the Erie company, and the Conneautville company were at Greenville?

A. If I remember right, the North East company, under Captain Orton; Captains Riddle and Curtiss's company, of Erie; Captain Rupert, of Conneautville; Captain Kreps, of Greenville; Captain Fruit, of Jefferson; Captain Dight, of Pine Grove; and Captain Wright, of Mercer—eight or nine companies.

Q. What day did they assemble at Greenville?

A. They probably got there Sunday morning—possibly some of them Saturday night.

Q. Did Colonel Carpenter, who was in command there, receive your orders to move to Rochester?

A. He received the orders to move to Rochester, because he replied that the men were at dinner, and that as soon as dinner was over they would move.

Q. Did he receive any orders from you before that?

A. No; I don't think I sent him direct orders before that. The orders I sent before were from Chicago to Colonel Clarke to move the division to Rochester.

Q. Then it was three or four o'clock on Sunday afternoon when you sent the order to him to form?

A. No; about twelve and a half o'clock.

Q. Then he had no time to start?

A. No; they were about starting out the depot when I got my order not to start.

Q. Did you approve of his course in remaining at Greenville?

A. I did. Captain Riddle wanted to move down right away with all the men they had, but some of the rest didn't want to go, and Colonel Carpenter said to me that he had got into somewhat of a trouble about moving, and asked if I approved of his action, and I said perfectly—I didn't expect the division to move until it was in shape to take care of itself, and I entirely approve of your course. I went to Riddle, and called him to one side, and said this thing has gone further than I expected, and I don't want any more trouble. I didn't want the division to move down without being strong enough, although we had men enough I am confident, if we had ammunition, to wipe the whole city of Pittsburgh right out.

Q. Would it have been proper for him, with the nine companies he had, in case they were there early on Sunday morning, at Greenville—would it have been proper for him, as a military officer, to have gone on with them to Rochester?

A. No. If the division had got into a fight, he would have been the officer to handle the division, if I was not present. He never got the orders from me until I ordered him at twelve o'clock, and then I had reason to believe he was going to move immediately. The troops had been in Greenville for a day, and they were scattered around, and visiting in saloons and hotels. The men had to support themselves the best they could, and they could not keep them together, even by companies.

By Mr. Lindsey:

Q. How do the brakemen get paid, and the conductors?

A. They get paid by the trip.

By Senator Yutzy:

Q. In case they are delayed on the trip, are the men not paid extra for the time they are delayed?

A. Generally, when they are delayed any ways long, the conductor refers his case to the train master, and if he approves of it, they get paid extra.

Q. Did the men retained in the employ of the company and the discharged men have any communication with each other on the morning of Thursday, that you know of?

A. Not that I have any knowledge of.

Q. Did they not have a secret organization?

A. I believe they have an order called the Train Men's Union.

Q. Do you know the object of that organization?

A. No; I do not.

Q. Do you know whether those twenty men assembled there were members of that organization or not?

A. I don't know. I have an idea that they were.

Q. Were there any double-headers that succeeded in starting that morning of Thursday?

A. No; not from Pittsburgh.

Q. What time was the first train regularly to start?

A. Eight-forty.

Q. Can you tell us whether between the hour of twelve, midnight, and eight-forty, any double-headers left on Thursday morning.

A. The four o'clock trains went out double.

By Mr. Lindsey:

Q. How many went out at four o'clock?

A. All, I believe.

Q. Were you on the ground on Friday?

A. Yes; I was around there.

Q. How was the crowd on Friday morning?

A. It appeared to increase all the time.

Q. How large was it on Friday morning?

A. I can't exactly say how large. They were coming and going all the time.

Q. Give us an estimate?

A. In the neighborhood of a couple of thousand.

By Senator Yutzy:

Q. Were they noisy?

A. Some of them were and some of them were not.

Q. Were they making threats?

A. I just occasionally heard them making threats.

By Mr. Lindsey:

Q. How had it been there during the night?

A. Some of them were there all night stopping everything, so that we could not get along. The engines would stop.

Q. Were they noisy and boisterous?

A. The western engines coming up with the live stock were stopped and sent back on the same track.

Q. Was the crowd on Friday morning composed of the same men as on Thursday—were the same men leading the crowd?

A. I cannot say whether they were leading it or not; the crowd was so big they were all mixed up through it.

Q. Did you see any of the same men in the crowd on Friday?

A. I don't remember that I did. Some of the leaders of the crowd there on Thursday night had gone to Lawrenceville on Friday.

Q. Did you have any conversation with the train men on Friday about starting the trains.

A. No.

Q. Did you try to raise any crew on Friday?

A. We had a yard crew still there and two or three crews already to go out, provided they would let them go.

Q. Were you able to take any trains out on Friday, or if not, what hindered them from going out?

A. The mob at Twenty-eighth street——

Q. Were you able to take any trains out on Friday?

A. No; on account of the crowd at Twenty-eighth street making threats to the men—what they would do.

Q. State the condition of the crowd during the day, whether it was increasing or not, and whether it was demonstrative and boisterous or not?

A. Later in the day it appeared to increase.

Q. Did they allow the passenger cars to pass?

A. They allowed them to go. Some of them were stopped, but they let them pass afterwards.

Q. What means did they take to stop those trains?

A. Some of them would halloo and make threats, and others would get up and spring on the engines, and the engineers would have to stop to see what was the matter.

Q. Did they turn any of the switches?

A. Not that I remember of.

By Mr. Larrabee:

Q. They just piled on the trains?

A. Yes; they filled the engines and cars.

Q. Did they attempt any violence on the men running the trains during the day of Friday by throwing stones or clubs?

A. Not there, they didn't.

Q. Did they anywhere along the road?

A. I don't know whether they did outside of Pittsburgh or not. We didn't move anything on Friday except live stock. They agreed that we might move that, but nothing else.

Q. You say the live stock was moved?

A. Yes; on Friday. First in the morning—then they stopped it. Then Mr. Garrett, the train master, and me went up and saw them, and he talked to them. There was a big run of stock coming off the Fort Wayne road, and some of them said they would let him have one engine to haul it. He said that they ought to know better, that one engine was not sufficient, and they agreed to let him have two. So we got engines enough to move the stock to East Liberty.

Q. They said you could have one engine. Who was it that told this to Mr. Garrett?

A. I don't know who it was.

Q. Did you hear the conversation between the men and Mr. Garrett?

A. I was with him in the crowd. We had to go right into it like a wedge.

Q. Were they railroad men?

A. Some of them were railroad men.

Q. Men then in the employ of the company, or who had been up to the morning of Thursday?

A. Yes; they were still in the employ of the company, so far as I know.

Q. They were the spokesmen for the crowd, were they?

A. One of them was the spokesmen. We asked for the spokesman when we went there.

Q. Who was that man?

A. I don't remember now who he was.

Q. An engineer, conductor, or brakeman?

A. I think he was a brakeman.

Q. What is Mr. Garrett's first name?

A. His name is David Garrett.

By Mr. Means:

Q. At Twenty-eighth street, did the mob of men stop the train going east?

A. They stopped everything.

Q. Who did that?

A. I don't know whether it was by employés or others.

Q. They prevented the engines from connecting with your stock trains?

A. Yes; sometimes they told the engineers to go on back.

Q. They sent the engines back?

A. Yes; they were sent right back on going out the track, and sent in again on coming out the track.

By Mr. Lindsey:

Q. Describe the crowd during Friday night?

A. I was not there during that night.

Q. Were you there during Saturday morning?

A. Yes.

Q. Describe things then?

A. Early in the morning there was not such a very large crowd, but towards evening, just before the soldiers came up——

Q. How large was it in the morning early?

A. I don't suppose there were over two hundred people.

Q. What time was that?

A. About seven o'clock—that is outside of the soldiers. The Fourteenth and Eighteenth regiments were there then, I believe. In the evening along about five o'clock, at the time the firing began, in the neighborhood of the railroad, and in the streets there were from five to seven thousand people.

Q. Who composed that crowd then—what class of men?

A. They appeared to be all classes.

Q. Railroad employés?

A. Railroad and mill men, and I guess a few of every kind.

Q. When you refer to the crowd of five thousand, do you mean to say that all of that crowd were riotous or engaged in riotous conduct?

A. I don't mean to say that.

Q. You say that a portion of them were lookers-on?

A. Yes.

Q. How many were actually engaged in the riot at that time?

A. I cannot say. They were scattered around here and there and everywhere.

Q. Was there any division or separation between the rioters and the crowd that was looking on?

A. I guess they were scattered through the crowd everywhere around the railroad.

Q. Down on the railroad were any persons looking on—were they along the railroad track, or were they back on the hill?

A. They were standing on the hill and on the railroad track, too. Some of them might be railroad men of other roads, and I never know it.

Q. Were there any women and children mixed up with the crowd?

A. There were some on the street and hill-side.

Q. That crowd had been accumulating all day I suppose?

A. Yes.

Q. How was it in regard to any boisterous or noisy demonstrations?

A. I would say that some of them were pretty boisterous. Some of them would be about half tight, and were raising a little excitement here and among themselves.

Q. When did the crowd begin to get demonstrative or boisterous, at what time in the day?

A. Along about twelve o'clock probably, and about five it got worse. The work shops and all the mills, as a general thing, shut down about three o'clock on Saturday. I suppose that helped to increase the crowd.

Q. Were you among the crowd during Saturday night?

A. No.

Q. Were you present at Twenty-eighth street when the firing of the soldiers took place?

A. I was between Twenty-sixth and Twenty-eighth streets when they began to shoot—about half way.

Q. You were in sight so that you could see?

A. Yes.

Q. Did you hear any orders given to fire?

A. No; I was not near enough to hear, but I saw one or two missiles thrown from the hillside and the shooting began after that.

Q. By whom were the missiles thrown?

A. I cannot say that; they came from the thick part of the crowd on the hillside.

Q. Was there any firing before the missiles were thrown?

A. I don't remember; it was a little after.

By Senator Yutzy:

Q. Did it appear to be pistol shots or musketry?

A. I cannot tell.

Q. Were any shots fired from the hill?

A. I cannot tell whether they came from the hill or from the soldiers. There were some scattering shots, and then a kind of general volley.

Q. Were those shots pistol shots or musket shots?

A. I cannot tell.

Q. What effect did the firing have upon the crowd?

A. It appeared to drive them back for a while.

Q. Which way did they go?

A. They scattered in all directions—some went north, south, east, and west—in every direction—the best way they could get out.

Q. Did it clear the track?

A. It cleared the track for a while.

Q. For what distance?

A. Near down to Twenty-eighth street—that is about the only place that was obstructed.

Q. When did the mob begin to reassemble after that?

A. It took place somewhere along about six o'clock, I suppose. I was not there.

Q. When were you there next?

A. Sunday morning when I came in everything was on fire—was burning—seven and a half o'clock.

Q. How far?

A. To Twenty-eighth street.

Q. From what point?

A. What we call the south yard—the tracks south of the main track between Lawrenceville and Twenty-eighth street—they were burning, and they were burning the upper round-house then. I was along on the hill side, within sight of the track, from seven and a half that morning until eight o'clock that night.

Q. Where were the soldiers or troops?

A. They had left there then, and went into the work-house, I believe. They left the round-house between five and six o'clock in the morning.

Q. What took place during the day of Sunday—how large was the crowd Sunday morning?

A. The crowd that was burning?

Q. Engaged in actual riotous conduct?

A. There were these right in the yard—there appeared to be somewhere in the neighborhood of a thousand people. I cannot tell whether they all

belonged to the crowd or not. They appeared to be following after it—breaking the cars open and taking out what they wanted, and then setting fire to them.

Q. Who was breaking open the cars?

A. I cannot tell who they were.

Q. Did you go to see?

A. I didn't go near enough to recognize any of them.

By Senator Reyburn:

Q. From their appearance could you form any idea as to whether they were railroad men or not?

A. I could not tell.

Q. Was there nothing to distinguish them?

A. No.

Q. Who was engaged in firing the cars at that time?

A. I cannot tell that.

Q. Were they setting the cars on fire with torches and fire brands?

A. Yes. Wherever there was a gap they would carry the fire over the gap to the next place.

Q. Did you make any effort to see who those men were?

A. I could not tell who they were.

By Mr. Larrabee:

Q. What kind of men were they?

A. They were rough looking men.

By Mr. Lindsey:

Q. How near did you go?

A. I was a hundred feet or so from them. I heard that detectives were there. Some of them told me, in fact, that they understood detectives were among them watching them.

Q. Did you see any of your men among the crowd on Sunday morning?

A. No; I did not.

Adjourned to meet at three o'clock, P.M.

SAME DAY.

ORPHAN'S COURT ROOM,
PITTSBURGH, FRIDAY, *February 8, 1878*—3 P.M.

Pursuant to adjournment, the committee re-assembled at three, P.M., this day, and continued the taking of testimony.

The first witness examined was

William Ryan, *sworn with uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the Fifteenth ward of the city of Pittsburgh.

Q. Are you in the employ of the Pennsylvania Railroad Company?

A. Yes.

Q. How long have you been in their employ, and in what capacity?

A. I cannot state the precise date when I entered the service of the company; but I judge it is between eight and ten years.

Q. In what capacity were you employed in July last?

A. As freight conductor.

Q. Between what points?

A. Pittsburgh and Derry, or between Pittsburgh and Conemaugh.

Q. You were a conductor on trains that ran double-headers?

A. Yes.

Q. How long have you been running on trains that run in that way?

A. I cannot tell the length of time precisely, but I was running them from the time they started—that is, from the time they started to run through freight as double.

Q. About how long?

A. I cannot tell.

Q. Two or three years?

A. I hardly fancy it could be that long. I should say a year.

Q. Were you at the depot or about the depot on the morning of the 19th—Thursday morning?

A. Yes.

Q. Was that your morning for going out as conductor of the train?

A. It was my train that should have started out. It was my morning.

Q. What was your time for going out?

A. If I recollect right, it was eight-forty.

Q. Did you start that morning or make any attempt to start?

A. We made every preparation to start, with the exception of coupling up the train. I examined the train as I was going into the yard. I thought the men were rather long in getting the engine out. I started up, and on going to the train men's room met two of my brakemen, and asked the cause of the delay. They told me they didn't intend to go out. I asked the reason. They said they had either quit or struck—I don't recollect. I asked what their object was in striking. They said they didn't intend to run on double-headers—that they were not making any more than a living at that time, and that by running double-headers, it would cause some of them to be dismissed or

suspended. That they didn't know who it would be, and as they had the advantage at that time, they would make the best use of it they could.

Q. Those were your brakemen?

A. Yes.

Q. What were their names?

A. One was named John Vensel and the other I cannot give his first name. In giving in his time, I always gave it as M. Martin.

Q. What time had you this conversation with them?

A. I judge about nine o'clock.

Q. They said that some of them would be dismissed?

A. Yes.

Q. Did you have any further conversation with them?

A. I did.

Q. What about?

A. I tried to advise them not to strike, and showed them the folly of it. I told them that the times were hard at present and that freight was very slack, and that the company was trying to economize and that their chances were just as good as mine. I advised them to stay. They claimed "no," that they had determined to quit, and were going to do it or had done it. I notified the dispatcher then that the men had quit, and asked what I was to do. He told me to remain, and that he would provide men for me. He went around and made an effort to get men but could not get them. I then asked permission to go to dinner, and I went, and came back about twelve or one. There was no change in the affair at all, everything remained just as it had been.

Q. Where did these men go when they refused to go out on the train?

A. In the yard.

Q. They did not go home?

A. No; they remained in the yard up to the time I left, and I saw them there in the afternoon.

Q. Were there any other men about at that time?

A. Yes; men were continually coming in off the road.

Q. How many men were there when you left to go to dinner?

A. I should judge about eighteen or twenty men at that time.

Q. Did you have any conversation with any other men?

A. With my flagman.

Q. What did he say?

A. He thought as the rest did, that now was the time to strike or quit, and that they all had concluded to do it, and that all my conversation with him would not change his ideas a particle.

Q. What men were coming in?

A. The men off the regular freight trains kept coming in there during the day.

Q. They joined the other men?

A. Yes; and swelled the crowd.

Q. Did you talk with those men to find out whether they had arranged for this strike previously?

A. I did not. I blamed them for it, but they denied it. Whether they had made an arrangement or not for that day, I don't know.

Q. They denied an arrangement?

A. Yes.

Q. How many of them denied it?

A. Two or three of them I think denied it. They had made an arrangement previous to this to strike, but from some cause or other it was not carried into effect, and my being a non-union man, I concluded that they had arranged it in such a way that the responsibility would fall on me, and in case it would be a failure I would be the man discharged, and that the union men would not suffer. That was the opinion I formed that morning.

Q. How long previous had they made this arrangement?

A. A month or two months before.

Q. What prevented the carrying of the arrangement into effect?

A. I do not know. When a railroad man came to me, and requested me to join them, I told them I could not do it; that my opinion was different from theirs with reference to strikes; that I did not feel justified in doing it. He asked me if I had any injury. I told him I could not say. He said: "I am going to strike to-morrow." I went as far as Derry, and laid over two or three hours. The only person there I saw by himself was the dispatcher. I went to him and told him in confidence that these men were going to strike.

Q. When was that?

A. It was previous to this affair of the men going out—a month or two months.

By Senator Reyburn:

Q. After the reduction of ten per cent.?

A. Yes. I told the dispatcher that these men had come to the conclusion to strike, and told him I wanted to let it be known—that two thirds of them were not friends of mine, and it would only cause me trouble by their going out, and I would notify the proper officers in time to give them a chance to prevent in case it should occur. I returned to the city that morning with the train. Coming in, I wondered how to get at the superintendent's office

without being seen. I did not care about being known, and after putting the train away, I concluded I would go out on the accommodation, but I met one of my men, and I got into conversation with him, and I asked him if he knew anything about it. He said he did, and he said it had fallen through. I asked him if he was positive of it, he said he was—that he knew it had. I told him I was very glad to hear it. Says he, I am not. I concluded then not to go out. I made inquiries among other men, and found it to be the fact, that they had concluded not to strike at the time appointed.

Q. Did this man give you any reasons?

A. He did not.

Q. Who was he?

A. His name was Sloan.

Q. Did you hear any other conversation or learn anything of any other union or organization to strike from that morning until the 19th?

A. No.

Q. Had you any knowledge that your men would not go out until you met them—those two men?

A. None whatever.

Q. How long before that morning was it known to the men that the order had been issued to run double-headers?

A. It was known in six hours, I should judge, to all the men on the line after the order was posted on the bulletin boards.

Q. When was it posted?

A. I cannot give the date, but fancy it was posted twenty-four hours before the order should have gone into effect.

Q. Did you discover that it produced any commotion among the men?

A. Not more so than at other times. There was general dissatisfaction among the men on account of the double trains. Of course it increased it somewhat. There were several trains running before this order was issued, but when this order would go into effect it would make all trains double, and this would cause them to feel more dissatisfied.

Q. After you returned from your dinner on Friday, how large a crowd did you find in the yard?

A. I judge about twenty men—twenty-five—probably more.

Q. All railroad employés?

A. I cannot say that, but the greater portion of them at that time were railroad employés. The crowd gradually increased until evening.

Q. Did you have any conversation with the men after you returned from your dinner?

A. With some of them.

Q. About going out?

A. I spoke to them, and asked them who had organized it, and what they were going to do about it. They said they did not know, that they had quit because the rest had, and intended to see it through.

Q. Was there any effort made that afternoon to start the trains?

A. I believe not that afternoon to my knowledge.

Q. When was the first effort made to start the trains, to your knowledge?

A. Thursday morning.

Q. Was there none made on Friday morning, to your knowledge?

A. I think not.

Q. Or during the day Friday?

A. An effort was made, I think, in the afternoon of Friday.

Q. Were you present when that effort was made?

A. I was.

Q. How large was the crowd at that time?

A. I cannot tell the number, but it was a very large crowd.

Q. Composed of employés of your railroad, and of the different roads?

A. Almost all classes of men were there.

Q. Who seemed to be the leaders, at that time, of the crowd?

A. It would be a very difficult matter for me to say. In fact they all seemed to lead—where one would go, the rest would follow.

Q. Do you mean helter-skelter?

A. Yes.

By Mr. Lindsey:

Q. Did there seem to be any leader who was taking charge of the riot?

A. In the beginning there was one man that seemed to take the lead—on the morning of Thursday, but after that I lost all trace of him.

Q. Who was he?

A. His name was Hice. I was in the telegraph office on Thursday morning, after the strike occurred, talking to the train runner. He came up, after the conversation with me, and I saw him in the act of trying to couple an engine on to some caboose cars. They failed to do so on account of the throwing of stones and other missiles.

Q. What time was that?

A. I judge about ten o'clock—along there somewhere.

Q. Thursday?

A. Yes.

Q. Was that the first violence that was used?

A. The first I saw.

Q. Who were those persons who were throwing the stones?

A. I cannot say who they were.

Q. How many composed the crowd at that time?

A. I fancy some fifteen or eighteen men that I saw there, but might have been more.

Q. Were they all railroad employés?

A. I cannot say that.

Q. Were those brakemen who had refused to go out with you among them?

A. That I cannot say. I was not close enough to see whether my men were among them or not.

Q. On Friday afternoon, when the attempt was made to start the train, will you tell us what occurred then?

A. As near as I can recollect, the train was made up, and it was pulled up out of the freight yard. I don't know whether the caboose car was coupled or not. I cannot recollect, but I saw the train start as though it was going to go out. I saw men run in front of the engines to stop them, and I saw the parties get off of them, and the train then was backed into the yard after that.

By Senator Reyburn:

Q. Was that on Friday?

A. I cannot say whether it was Thursday afternoon or Friday, but it was one of those two days. It seems to me it was Thursday afternoon—the same day.

Q. When the resistance was made there, was it a combined resistance of all the men, or did only two or three seem to be leading the others?

A. It was a general rush, a swinging of hands, and a yelling and hooting.

Q. Were any missiles thrown of any kind?

A. Not that I saw.

Q. Was any violence used towards those who were trying to take the train out?

A. Not that I saw.

Q. Were any threats made to the loyal men who were willing to work?

A. I was not close enough to hear the conversation.

Q. Were you threatened at any time if you did not leave the yard?

A. Not directly. Two or three men came to me, and asked me if I was going out. I told them yes, if I could get a crew, and one of them intimated to me that I had better not go, or words to that effect—that they did not want to hurt me, or something like that. That was about all.

Q. Whom did you report to when your men refused to go out?

A. The dispatcher.

Q. What is his name?

A. William Hunter.

Q. How many trains were to go out at that hour—eight-forty?

A. I think mine was the only one at that time, with the exception of the single train going on the branch.

Q. When were the next trains to start?

A. The next, I believe, would have been eleven o'clock—no; the next would have been nine-forty.

Q. Do you know whether the conductors of those trains were all prepared to start them or not?

A. I believe one of them was there.

Q. Did you have any talk with him?

A. I did.

Q. Was he willing to go?

A. No; he was not.

Q. He was among the strikers?

A. Yes.

Q. Were the engineers willing to go?

A. That I do not know. One of them came to me and ask if I was going out, and I told him yes, if I could get a crew. He turned around and walked away, and did not say anything more to me about it.

By Mr. Larrabee:

Q. What was this conductor's name?

A. Meredith.

Q. You said that two or three men came and asked you if you were going out, and you said yes, if you could get a crew, and that then they intimated it would be well for you if you did not. Who were these men?

A. One was D. W. Davis. The other name I do not recollect.

Q. What was his position at that time?

A. A brakeman, I believe.

Q. Had he been discharged or was he still in the employ of the company?

A. He was in the employ of the company up to that morning, so far as I know.

Q. Do you know where he is now?

A. No.

Q. Has he been in the employ of the company since?

A. Not to my knowledge.

Q. The other's name you do not remember?

A. I don't remember at all.

Q. Where is this Conductor Meredith?

A. I think he is in some part of Kentucky.

Q. How many men did you have as trainmen for one train?

A. Three.

Q. Besides yourself, and aside from the engineer and fireman?

A. Yes.

By Mr. Means:

Q. Did you have any fear of violence from the employés of the road if you started out?

A. Well, I had a fear, but no serious fear. I did not think that they would kill me.

Q. You did not believe on the morning of the riot that they would do so?

A. No; besides I was determined to protect myself in the best way I could.

John Plender, *sworn with uplifted hand:*

By Mr. Lindsey:

Q. Where do you reside?

A. I am living at Walls station.

Q. Are you in the employ of the Pennsylvania Railroad Company?

A. Yes, sir; I am running a passenger engine—the "accommodation"—as engineer.

Q. Were you in July last?

A. Yes, sir.

Q. Between what points?

A. Between Walls and Pittsburgh.

Q. What is the distance of Walls from Pittsburgh?

A. Sixteen miles.

Q. How often do you make your trips?

A. I make three round trips a day.

Q. Were you at the Union depot on Thursday morning, the 19th?

A. I came in that morning from Walls, at eight-fifteen.

Q. What time did you go out?

A. At twelve-five.

Q. Where were you between eight-fifteen and twelve-five?

A. In the round-house, at work on my engine.

Q. When did you first learn that any men had refused to go out on their trains?

A. I suppose it was half-past nine when one of the men told me. It was an engineer that told me.

Q. Was he one that had refused to go out?

A. No; he had just come in.

Q. Did you learn anything more about it between that time and twelve o'clock?

A. No. The "Yioughiougheny" came in, and he told me that there was a strike.

Q. What then took place?

A. That was all that took place between him and me.

Q. Did you remain in the round-house?

A. I remained in there until eleven o'clock, when I backed out, and came down and took out the train.

Q. Were you interfered with in any way?

A. No.

Q. Did you have any conversation with the strikers that day?

A. Not until evening.

Q. Whom did you see in the evening?

A. I had no conversation, no more than a man stopped me at Twenty-eighth street, and asked me what I was hauling.

Q. Were you coming in or going out?

A. I was going out on the last trip, at eleven-forty. I told him I was hauling an accommodation train. He told me I could go on, and he got down off the engine.

Q. Did they stop you?

A. No; they were all standing there, and when I came up—we all have to stop there—he got on the engine.

Q. At what point?

A. At Twenty-eighth street.

Q. How many were standing there then?

A. Quite a number—I suppose about thirty-five or forty of them.

Q. Did you know any of them?

A. I knew him. It was dark, and I couldn't see who the rest were.

Q. What was the name of that man?

A. D. W. Davis, I think.

Q. Did he say anything more to you?

A. No; nothing more. He said it was all right, that I could go on, after I told him what I was hauling.

Q. What was the manner of the crowd at that time as to their being boisterous or demonstrative?

A. Indeed, I could not tell you. We just stop for a couple of minutes, and sometimes not that long.

Q. You had no conversation with any other excepting the one who got on your engine?

A. That is all. He was discharged off this road a couple of times, and off the Pan-Handle, I believe.

Q. Why was he discharged?

A. I cannot tell.

Q. Where did he live?

A. Somewhere about Twenty-eighth street.

Q. Did you learn that day, or any time after that, when these parties resolved to strike?

A. No.

Q. Did you know of any preconceived plan of striking?

A. No; I did not.

Q. Do you know whether they have a secret organization or not?

A. All I heard of was the Train Men's Union—that is all I know of.

Q. What is the object of that?

A. That I cannot tell you. I never was in any of their meetings, and know nothing about it.

Q. Do you know whether there was any other organization?

A. The Engineers' Brotherhood.

Q. What is the object of that?

A. That I cannot tell you. It is something I never belonged to.

Q. Did you come in on your regular trip in the morning?

A. Yes.

Q. Were you molested in any way?

A. No.

Q. Did you go out on time and come in on time all day Friday?

A. Yes, sir.

Q. Without being molested?

A. Yes, sir.

Q. Did you run on Saturday?

A. Until eight-fifteen, Saturday night.

Q. What stopped you then?

A. I did not go out at eleven-forty, because I could not get out at eleven-forty.

Q. Why?

A. The fire was too hot.

Q. I suppose you didn't go out for a week or so then?

A. I went to work on Tuesday.

Q. At what time?

A. I think I went out at six-five on Tuesday night.

Q. Was there still a crowd about then?

A. Yes.

Q. How large about?

A. I cannot tell how large the crowd was.

Q. Had the work commenced then, by the company, in clearing off the tracks—the *debris*?

A. Indeed, I cannot tell you whether it had or not.

Q. Were you interfered with in any way on Tuesday night when you went out?

A. Not on Tuesday night.

Q. What was the mob doing at that time on Tuesday night?

A. The mob was cleared away then, on Tuesday, partly.

Q. Partly, you say?

A. From Thirty-third street. It was as far as we could get. I went to work on Tuesday after the Sunday of the fire.

Q. You run your trains regularly up to Saturday night?

A. Yes; we came in at eight-fifteen.

Q. Were you there when any of the demonstrations were made by the crowd in firing or throwing stones?

A. No.

Q. You were not about Twenty-eighth street then?

A. No.

By Senator Yutzy:

Q. Did you see any interference?

A. I saw the interfering on Thursday with the Union Line that they were trying to take out.

Q. Stopping of the train?

A. Yes.

Q. Was there any violence or assaulting of the engineer, or any train men of that train?

A. No; the crowd just got in front of the engines, and sprung on them.

By Senator Reyburn:

Q. Who were those men?

A. They were other men than railroad men.

By Mr. Lindsey:

Q. Did you know any of those men who got on your train?

A. No.

By Mr. Larrabee:

Q. Couldn't you guess from their appearance what their trades or occupations were?

A. No.

By Senator Reyburn:

Q. Did they get on and off the engine as if they were men used to being around the cars?

A. No; some of them would get off and fall, and some of them would get off pretty good.

By Mr. Means:

Q. Were they sober or not?

A. I could not tell that.

W. A. Kirk, *sworn with uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. At Wilkensburg.

Q. What is your connection with the Pennsylvania Railroad Company?

A. I am a conductor on the Wilkensburg accommodation.

Q. Were you a conductor in July last?

A. Yes.

Q. How far is Wilkensburg from Pittsburgh?

A. Seven miles.

Q. How many trips do you make between these points a day?

A. Five round trips.

Q. What is your time for leaving?

A. The first trip in the morning we leave Wilkensburg at six-fifty-four, and get there at night at ten-fifteen.

Q. What time do you get to Pittsburgh?

A. Seven-thirty first, and leave at nine-forty, going out on the last trip.

Q. On the morning of July 19th, were you disturbed in coming in or going out?

A. No.

Q. When did you first learn of any difficulty or any strike?

A. When I came as far as Twenty-eighth street with the twelve-five train—coming in on that trip—with the train due at the depot at that time. I then heard of it. I had heard remarks of a strike, but heard nothing definite until I came in on that trip.

Q. What occurred on Friday?

A. I saw men standing around there on Friday, I did not see anything at all, except seeing men standing around.

Q. Were you molested in any way?

A. Not on Friday. I did not see anything unusual on Friday. No; I was not molested on Thursday in any shape, but on Friday they were around by hundreds. Parties that I did not know where they came from, and we could

not do anything with them. They would get on the trains, and we could not do anything with them. They did pretty much as they pleased, and I saw that we had better keep quiet. They were riding between Twenty-eighth street and Lawrenceville and Torren's station, during Friday. They were just riding when it suited them.

By Senator Reyburn:

Q. What did they seem to be?

A. They seemed to be mill men, as much as any thing else, from their appearance. They seemed to work somewhere where the sun did not strike them.

By Senator Yutzy:

Q. They refused to pay fare?

A. Yes; they paid nothing. On Saturday morning, coming in on the first trip, I did not see any of them. I had the usual run of passengers in that morning. Going out at nine-forty, I got a crowd on that covered the engine, and tank, and train, and every place. After I left Twenty-eighth street, I made up my mind between there and Lawrenceville that I would not go any further until I had got those parties off. I got to Lawrenceville, and went to the engine, and got a big coal pick, and then went to them, and said the first man that refuses to get off here, I am going to stick the coal pick in him. I found that they all got off, and seeing that I had it my own way with those on the engine, I thought I would try it with the others on the train. I did try it on them, and so pulled on to Millvale, when I did not have anybody on that did not pay any fare, and I kept that up all day Saturday, except one trip. On the half-past three trip, they were a little too thick. I threw them off, and knocked them off the train, and drove them off the engine with the pick. At Liberty, coming in on the twelve o'clock trip that day, I was about five minutes putting them off there. A crowd of them got on at Torrens. I got them all off, that did not pay any fare. My crew stood by me very well. During the whole trouble, if I had had a few more men on the train—I only

had two of a crew—I could have cleaned them out all the time. I was not molested or troubled at all by the railroad men—that is on the train, in that way. I was told at Liberty, on Saturday night, that I could not run the train out the city there by one railroad man and one other.

Q. Who was the railroad man?

A. His name was Hice, and the name of the other was Smith.

Q. Smith was not a railroad man?

A. No.

Q. Do you know what his occupation is?

A. A one-horse stock dealer. He went around the country buying up calves. I do not know what he is doing now. He is under indictment at present.

Q. Was Hice in the employ of the company at that time?

A. He was when the riot commenced. He has not been since.

Q. You say you ran your train without carrying passengers that refused to pay fare except once. What day was that?

A. It was Friday that I could not do anything with them.

Q. Did you attempt on that day to eject those men?

A. I did, but I concluded it was not going to be very healthy, and I gave it up. They would not get off, and made all sorts of threats. I did not know any of them that made the threats. They threatened that if there was any putting off, they would be the parties to do it, and I would be the one to go off.

By Senator Reyburn:

Q. Can you tell us any of the occurrences of the riot?

A. I cannot, for I was just simply running on the train. I did not stop. The firing that took place at Twenty-eighth street occurred while I was out on a

trip. They held me at Lawrenceville until it was all over and quiet, so that the track was clear when I came down. When I came in, there were not many there, but there was a big crowd there when I went out. I ran my train every trip except the last one, Saturday night. I went for information to the telegraph office, but could not get any, and I kept the train out there and did not make the last trip.

Q. During all the excitement you were free to run in and out?

A. Except a little detention waiting for the crowds to open. They would always get out of the road. Nothing was said to me by any person—by any employé, except this man Hice. He asked me once if I did not think I had better stop, and I told him I did not think I had, that I would go on as long as there was a track to run on, and make the trips, if I could.

Q. Did you have any conversation with any of these men except Hice, or did you hear any of the strikers talking?

A. Two or three railroad men—I do not know their names—went out on my train at three o'clock on Thursday afternoon; they were going out home. I asked them what the trouble was, but I got but little satisfaction out of them, no more than they were swearing at the double-headers; that was all I could hear.

Q. They were not taking part in the riot?

A. No; they said they were not going out, but they had nothing to do with the trouble. I think they went home, for I would see them still out down there when I went out. They were not in the crowds at all.

Frederick Fleck, *sworn with uplifted hand:*

By Senator Reyburn:

Q. Where do you reside?

A. At Spring Hill, on the line of the Pennsylvania railroad.

Q. What is your occupation?

A. I am a locomotive engineer.

Q. Were you so engaged during the riots in July?

A. I was.

Q. Can you give the committee any information upon the occurrences that came under your observation?

A. On the morning of Thursday, the 19th, I started out on my usual time, at seven-twenty, with a coal train. I ran what is called the Pittsburgh coal train—making two round trips from Pittsburgh to Brinton's about eleven miles out. We left in the morning without any indication or sign of trouble on the road. Everything appeared to be going on as usual. There was no intimation of any trouble. Coming in on the road, about East Liberty or Torrens, we usually met the trains going out—the eight-forty's. We did not meet them. We should have passed them between those points. We did not know what was the matter, but thought there was some delay or no freight; but when we came to Torrens, some of the men about the stock-yards, by signs in this manner, [indicating,] showed there was a strike, as we understood; but we knew nothing definite until we got to Lawrenceville, and there ascertained there was a strike. We usually cut the engine loose on running by the upper round-house. There was a conductor came on the engine, and asked me if I was going out. I told him I certainly was, that I had no reason why I should not go out. He said the boys were on a strike, and they did not propose to let anybody go out.

By Mr. Means:

Q. Who was that conductor?

A. His name was Leech Reynolds.

By Senator Reyburn:

Q. Was he an employ   of the railroad company?

A. He was a conductor at that time.

Q. Do you know where he resides?

A. I think he then resided in the Twelfth ward. I did not pay any attention to him, whatever, and the train was dropped past, and I pushed on to the west end of the yard, as usual. I believe there were no objections to putting trains away that came in.

Q. Is Reynolds living in Pittsburgh now?

A. I think he is, although he is not employed at present. I paid no attention to the threats. I asked what would be the consequence if I did go out, and he said that I would get my neck broke. I smiled. I told him I did not know—that it was pretty hard to break, as it was short and thick. I went on to Lawrenceville with the engine and crew. We carry four men on that train. It is a train that does a great deal of work, and we require two flagmen. There was a great deal of work to be done on that train, as it is a double train, and we take local traffic. At Lawrenceville I started to go down the track, when the conductor and crew left the engine. I said, boys are you not going out? They concluded not to go out, that they did not want to be black sheep. I told them that I did not know that the double-header business interfered with us, and it was only a question of double-headers, so far as I knew. Nevertheless, they concluded not to go out. I then took the engine down, and reported that there was no crew to go out. This was about eleven o'clock on Thursday morning. In the meantime, there was some scuffling about there. I saw men rush back and forward, and there were some policemen there. I did not know what the trouble was, and went down to make some inquiries from Mr. Fox. I asked what the matter was, and was told that they were trying to arrest a man that had struck Mr. Watt. They had got hold of him, but he was limber as an eel. The engine was taken into the round-house. About two or three o'clock that afternoon, an attempt was made to take the double train out—what is called the Union Line. Conductor France was to take it out. He asked me what to do about the

matter. I said he ought to judge for himself—you know your business—but, if I were you, I would attempt to take the train out, and if they won't let you, then you have done your duty. He is a rather bold, brave fellow, and sometimes would go further than other men would. He said, I have got shooting-irons, and if they stop me I may hurt somebody. They coupled up the train, but they were stopped at the lower round-house. There were some parleying there, and some difficulty. A crowd was there, of twenty or thirty or forty, stretched along from Twenty-sixth to Twenty-eighth street.

Q. Who were this crowd?

A. They were railroad men—I can hardly tell who they were—principally railroad men at that time. The order was given to start the train. I think Mr. Watt was there, and the engineers made an effort to start, but the crowd got in front and commenced swinging their hands, and I saw one man flourishing a revolver. I think his name was Harris. They stopped them, and the engineers got off, and the firemen, and the train did not move. That was on Thursday, about three o'clock. On Thursday evening the engineers called a meeting over Clark's hotel, and I went to see what action would be taken in regard to the strike. Up to that time I understood the engineers had not taken any part—that they were a kind of silent party, looking on. They met and discussed the matter *pro* and *con* for some time. The older men advised not to have anything to do with the matter, that it was a conductors' and brakemen's fight, and that they should be left to fight it out themselves; but some time previous to this, there had been a reduction of ten per cent., and the engineers had sent a committee to Philadelphia to the general office, to see what could be done about it. The committee returned, and they had accepted the reduction in good faith. I told the meeting that the men had consented to take the reduction, and that so far as the double-headers were concerned, they had run them before, and that there was no objection—that it did not require any less engineers or firemen to run the double-headers, and that it did not effect us in that respect, but before the meeting broke up some men came in under the influence of liquor, and got a little noisy, and the thing dropped until Friday morning. On Friday morning they had another meeting, and I also went to that. The older engineers thought that

we could keep the men out of it—the engineers and firemen—but it appeared to be determined on the part of the majority of the freight engineers and firemen to go into the matter, and the meeting was postponed until three o'clock. They did not come to any conclusion. The majority of the men there that morning were opposed to the strike. They concluded to have another meeting in the afternoon; and I saw, with a few others, that a resolution would be adopted that they would go for the strike, so I did not go, and I advised some of the younger men that I knew, not to go near the meeting. This was at Engineers' hall. About one o'clock they had organized the meeting, but I was not down there. They sent a sub-committee to come up and take me down by force to the meeting. I refused to go. Then they organized and concluded to go into the Trainmen's Union, and they went into it, and went into the strike—that is the majority of our freight men—engineers. Up to that time I did not know of any organized committee or anything else waiting on the officers, and I told our men in the morning you cannot consistently demand anything until you see the officers and have a refusal. I told them you have not made any request, and you are going into this thing without making any request, and that you have violated the law at the start, and you cannot expect to be successful; but they said that the iron was hot, and that they were going to strike. So after that time until the trouble was over, I had nothing to do with the men. I staid there until Saturday evening, ready to go out. In fact on Saturday my engine was fired up and ready to go out. I never refused to go out because I had never quit the service of the company.

By Senator Yutzy:

Q. What kind of a meeting was this?

A. It was meeting of engineers and firemen.

Q. A secret organization?

A. No; it was an open meeting.

Q. Participated in by men belonging to this organization and others?

A. By the brakemen, conductors, engineers, and firemen, and all those that wished to be there. On Saturday evening the troops came up, and I was back and forward to the shops. I was up on Twenty-eighth street, but I saw no violent demonstrations, although there was a big crowd there. I suppose, though, if there had been any effort on Friday or Saturday, to send trains out, there would have been violence. Plenty of revolvers and fire-arms were displayed there, by plenty of men outside of railroad men.

By Mr. Means:

Q. Was it railroad men who flourished and displayed the revolvers and fire-arms?

A. I think the majority were outsiders.

Q. Were they citizens of the city of Pittsburgh, or strangers?

A. I don't know. I suppose they were citizens from the East End—from the east of the city. There were thieves, and robbers, and rogues, and tramps there from the whole country.

Q. Were they citizens of Pittsburgh, or were they strangers?

A. I think the majority of them were outside of the railroad employés. Whether they were glass-blowers, or puddlers, or citizens of any other occupation, I could not tell. The Pittsburgh troops were on good terms with the mob. Some were giving them muskets, and marching up and down with the mob, and eating hard-tack with them, and there was a good feeling, generally, between them. The report came that the troops were coming from Philadelphia, and that there would quite likely be trouble with them, because they were strangers here, and would not know the position of things here, but would obey orders. From that, I inferred that the Pittsburgh soldiers had not exactly obeyed orders. I only inferred that. This was the kind of tone or feeling around there. When the Philadelphia troops came marching up through the yard, my engine was out. I think that General Pearson was there at the same time that the Philadelphia troops came up from Twenty-eighth street. I think that General Pearson was, and I am

positive about Mr. Cassatt. He said to me: Fred., are you willing to go out? I said: Certainly. I have never refused to go out. Certainly, on condition that the mob is dispersed. I would not like to run through it. I don't want to hurt anybody. He said: We don't want to send anybody out, until the mob is dispersed. I thought that if there was any determination displayed on the part of the troops, the mob would go away. Shortly after that, I was at the upper end of the lower round-house, half way between Twenty-sixth and Twenty-eighth streets. After the troops got up there, somebody made a speech—some one of the officers, or somebody—made a little speech, warning the people to go away, and disperse. I couldn't hear exactly what was said. Then I saw some of the soldiers come down shortly after that, and one of them, particularly, had the whole side of his face knocked off by a brick. They were the Philadelphia troops. Some of the others came down sick. I don't know whether they were sunstruck, or what kind of struck, but they were weak about the knees, some of them. Then, by and by, I heard a little bit of musketry rattling, and then heard them shoot in every direction, and saw the crowd dispersing in every direction—some running up the hill, and some up the railroad, and some down Twenty-eighth street. In a short time, nobody was there. The troops came down to the round-house, and were quartered there, with the Gatling gun put in position, off Twenty-eighth street. I heard one of the officers of the troops saying, that they could not stand it much longer—that they were yelled at and struck—that they had not come to Pittsburgh to hurt anybody, but that they couldn't stand it much longer. But General Brinton told them, in my hearing, that they shouldn't shoot at all. They had barricaded Twenty-eighth street. The troops were barricaded there. Guards were posted properly, I suppose; but they had no rations, and a good many of the men commenced to complain about something to eat—that they had only had a small lunch since they had left Altoona, or somewhere. Somebody remarked, that they would open up the Gatling gun on the mob, if it didn't quit throwing the stones and missiles at the men. This was about six o'clock. The General came, and said, I don't want a man to shoot, without the barricades are broken in. Stand back, and don't use any violence. I won't allow any shooting to be done, without, it is in self-defense. I remained there until half past eight or nine o'clock. The

mob had gathered so thick that it was almost impossible to get through. From Penn up to Liberty, and from Twenty-sixth up to Twenty-eighth streets, there was a solid mass of people. At that time, the old telegraph office was shot into, and stones were thrown into it, and the only thing that prevented them from shooting everybody there, was simply because the street was so much lower, and they had to shoot up, and the balls struck in the ceiling. One or two of the soldiers were struck in the back by missiles, or with stones in the face. One of the officers was struck, and it kind of riled him. By that time, an order came to send to Union depot to take the fast line out. Nobody was about. They had the engine, but no engineer. Mr. White asked me to go down. I said I would, if I could. I tried to get out at the rear of the shops, but the mob would not let me out. An officer was called up to pass me out of the round-house. I said, if you let me out between the office and the old round-house, I can jump off the wall, and get down. Previous to this time, it was generally thought, in the crowd outside, that Mr. Pitcairn and some of the officers, (Mr. Watt,) were in the office—in the outer depot office. It appeared that there was an antipathy against these men, and they wanted to get at them. Some remarks were made that they had coffins for them, and others said: Get them out of there. Just such threats the mob would make. They seemed to have made up their minds that those men had ordered the double-headers, or the reduction, and they were going to take their revenge out of them. They were instructed so (the mob was) by the railroad men. I thought that they were up there. I didn't know they were away. I thought they were there. Then I jumped off the wall. In the act of jumping, I was fired at. I suppose some ten or twelve balls were fired at me by some men there who had no love for me.

By Senator Yutzy:

Q. Who fired?

A. The mob outside. I got out of the crowd and into the Union depot. I found then that it was countermanded—that the fast line was not to go out. I went into the depot, and I don't know who I found, now—but I found out that the train was not to go. I found Mr. Pitcairn there, and I told him I

thought it was not a wholesome place for him, that he had better leave. I told him I thought that some of the men were disposed to do him some personal damage if they came across him, and from the way in which the mob or the crowd felt, I didn't think it would be very well for anybody to get in their way at that time. About nine o'clock there was somebody came and asked for volunteers to take an engine out to the outer depot, to take provisions up to the troops. I told them I would, and I waited for some time, and then I found out that they had come to the conclusion that it would not be safe to go up. I heard no more of it until morning. I staid with the engine during that whole night, and saw the fires getting brighter and brighter, and coming closer down. I staid there at Union depot until eleven o'clock Sunday, when I drew the fires out of the engine and left her standing there by the orders of the depot-master, and went home by the way of the Fifth avenue street cars. While waiting for dinner, my brother-in-law heard a train, and I went out on the road, and I saw a train coming backward. I gave a slight signal and the engineer stopped. It was not very hard to stop a train then. The conductor inquired what I wanted; he said that he was going out as far as Walls. I said I would like to go. It seemed that some of the troops were coming in and came as far as Torrens, and were ordered back. I went to bed early in the afternoon after getting there. I came in on Monday, and was at our head-quarters at Fast Liberty. I thought our foreman was there. I reported for duty. About noon he asked me to run the Walls accommodation train. I said, certainly, I will run the train. I run it—no, I did not go out that trip, for the man who had the engine refused to get off, although he had asked in the first place to get off. When I came he refused to give it up. He pulled out a pistol and displayed it, and refused to give the engine up, yet he had asked in the first place to be relieved. So I told Mr. Whetman, our foreman of the round-house. Well, says he, let him run it, but he told me sometime ago, that he was tired and wanted to be relieved. I remained there until afternoon, when I got orders to take the engine. I went down again, and said, I have orders to take this engine. So I took her and run her sometime—I run her that night from Thirty-third street to Walls and back on regular trips. But I didn't make the last trip. In the morning I came in at the usual time. When I came in, it appears that a committee had waited on

Mr. Whetman, and told him to take me off that engine. I believe the man Reynolds told him that they would not allow me to run the engine. Then Mr. Henry took the engine and run one round trip, when Mr. Blender took her. But before this, I was to go to Lawrenceville to take a train down to find a committee of men to have a conference about the thing. Mr. Garrett got on the engine. I asked where I was to go at East Liberty. John Shires and McCullough, who were on, were both of this committee, and Mr. Garrett told me that these parties wanted to go down for this conference. Shires spoke up and said, we will give you orders where we want you to go—we are running this road now. In fact I did not know who was running it. I had nothing to say. Five or six more parties got on, and we came to Pittsburgh. Shires gave me orders to go on down. Things went on so all that week. No train went out until the following Sunday, when I was ordered to take the yard engine at Torrens, and load some stock.

By Mr. Lindsey:

Q. Who was Shires?

A. He was a conductor on a shifting engine at that time. On Sunday we loaded some stock at Torrens I took the engine that usually did that work. Nobody was on her. I examined the fire and water, and found all right, and went to move the engine, when the engineer that had been on her came up and asked me what I was going to do. I said I had orders to run this engine. He said, I am running this engine. I said all right, and got off, and reported to Mr. Whetman. He said that the man had refused to move the stock; but said he would move passenger cars. He was not willing to move stock. He went down to the man and talked to him; but it appeared it had no effect. He would not do it. He came back and said, I want you to take that engine. I went down and tried to persuade the man. He was a man of family, and I thought he had better sense. I said to him this thing is all broken up, and it was a mistake from the start. This stock ought to be loaded, and I said you are taking revenge out of innocent parties. I said I don't know who will provide for your family if you are out of work, and I am confident if you won't work now they won't give you work when you want it. He said they

would have to take him. He would not take the stock, so I took the engine and loaded the stock.

Q. Did they resist?

A. No; I had no crew then; so Mr. Scott, the agent at the stock-yards, and Mr. Gummey, volunteered to couple the cars and do the work. So he, and I, and Mr. Scott did the work. We loaded three or four double trains that afternoon.

Q. What class of men were engaged in the riot when it first broke out?

A. Well, so far as I know, I think it was caused by one man only refusing to go out—the flagman of that train.

Q. Of what train?

A. Of the eight-forty.

Q. On Thursday morning?

A. Yes; and I think the rest fell in kind of spontaneously as they came in off the road.

Q. Have you been able to gather anything from the men, showing that they had a pre-arranged plan for a strike that morning?

A. Not that particular strike. I understood a month or so before, that the Trainmen's Union had organized a strike for a certain time, but I don't remember the day or date. I know there was such talk among the men, that there would be a strike that day among the brakemen and conductors. There was nothing of the kind among the engineers, that I know of, because had the engineers held meetings at other places, I would have heard them speak of it. Previous to that time there was nothing among the engineers and firemen; but, the day passed over, and there was no strike; and, of this strike on Thursday, the 19th, I heard nothing of it—I knew nothing of it, and our crew knew nothing of it—at least they said nothing to me, and it appeared to be a surprise to them when we came in. Railroad men sometimes are very

communicative; they generally let one know, directly or indirectly, what is in the wind. They generally know one among the other.

Q. Had they any secret organization?

A. I don't know what this Trainmen's Union is. It was a new thing to me. I heard of it, that is all. I believe that such an organization existed, and had for some time.

Q. Do you know the objects of the organization?

A. I don't really know—I never heard particularly—only from the talk of the men It was kind of protective or like all labor organizations—something of that kind—to unite the men together, and get them to act in unity.

By Senator Reyburn:

Q. Was it of a beneficial character?

A. No.

Q. It was not like the engineers' organization.

A. No.

By Senator Yutzy:

Q. It had no connection with it?

A. No.

By Mr. Lindsey:

Q. I suppose it is secret?

A. I think it is.

By Senator Yutzy:

Q. At the meeting you spoke of, did the engineers and firemen agree to go into that union?

A. I understood so, but I don't know it.

Q. Do you know whether the Engineers' Brotherhood assisted or encouraged this strike of the Trainmen's Union?

A. I don't know that they did. If they did, they violated their obligations. They might have been in sympathy.

Q. They took no formal action in the matter?

A. No; not up to that time.

By Mr. Lindsey:

Q. You have stated that the strike was commenced by one man refusing to go out?

A. As far as I understand.

Q. At what time was the first effort made to prevent men from going out who were willing to go?

A. As far as I know—I was out on the road at that time that this refusal was made—that occurred sometime about eight o'clock in the morning. I left Pittsburgh at seven-twenty, and didn't get back until eleven o'clock. What transpired in the meantime, I cannot tell you. I know nothing about it, only from hearsay.

Q. Do you know, of your own knowledge, whether it was discharged men or men in the employ of the company who would prevent others from going out, either by persuasion or by force?

A. I don't know that. I know that sometime in the afternoon, when that attempt was made at three o'clock, or thereabouts, there were employés and non-employés among the party.

By Senator Yutzy:

Q. And some of them had been in the service of the company and discharged?

A. Yes; and some that had never been in the service.

By Senator Reyburn:

Q. Did you hear any talk about men coming from a distance?

A. It was generally supposed—at the time of the fire and riot, I was at Union Depot, and I saw them carrying off goods—hauling them off by wagon loads and wheelbarrow loads—men, women, and children—it was generally supposed that all the thieves that could get here in two days, from all the country around, had got here; and I suppose, everybody thought that the property had better be carried off than be burned.

Q. Can you give the name of the flagman who first refused to go out?

A. No.

By Mr. Larrabee:

Q. Do you know whether the strike was confined to freight men entirely?

A. I think so; although some of the passenger men may have been in sympathy with them.

William Ryan, recalled:

By Mr. Lindsey:

Q. Please state whether it was discharged men, or whether it was men who were then in the employ of the railroad company who first prevented the trains from going out, either by persuasion or by interference?

A. As far as I could see it was men still in the employ of the company. On the morning that this occurred they conversed about it. I suppose in that way they persuaded them not to go out.

Q. Was it known then what men would be discharged under this order?

A. No, sir; it was a mystery to all.

Q. Can you give us the name of the flagman who refused to go out first?

A. Harris, his name was. I gave his name in as Gus. Whether it was proper or not, I don't know.

John Alexander, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. What is your occupation?

A. I am an engineer.

Q. In whose employ were you in July last?

A. In the employ of the Pennsylvania Railroad Company.

Q. As a freight engineer?

A. As a passenger engineer.

Q. On what train?

A. On the Walls accommodation.

Q. At what hours did you leave the Union depot?

A. In the morning, on the first trip, at six-twenty, and on the last trip leaving Pittsburgh, at five-twenty.

Q. What time did you arrive at Pittsburgh in the morning?

A. Eight-twenty-five.

Q. State whether you were interfered with on the morning of July 19?

A. I was not.

Q. When did you first learn there was any disturbance among the men?

A. About four o'clock that afternoon.

Q. How did you learn it?

A. I was coming down to go out on the five-twenty trip, and when I came to the round-house, above Twenty-eighth street, I saw a crowd of boys there. I asked what was going on—I asked somebody that I was acquainted with, and was told that the freight men were on a strike. That was, as near as I can tell, about four o'clock.

Q. Who told you that?

A. Robert Hardy.

Q. Do you know whether he was among the strikers?

A. I don't know.

Q. How large a crowd was assembled there?

A. I suppose about fifty persons. I thought that somebody was hurt by the Johnstown accommodation. It was just such a crowd as gathers when an accident takes place.

Q. Were they boisterous and noisy?

A. No; I didn't go into the crowd.

Q. Did you have any conversation with any of the men?

A. Nothing further than ascertaining what was going on. I went down to the lower round-house after my engine.

Q. Did you go out that night?

A. I did.

Q. Were you interfered with?

A. Not in the least—further than having to run carefully through the crowd.

Q. Were you present during the riotous conduct, on any of those days from Thursday morning?

A. I made my usual trips on Thursday and on Friday without any trouble, any more than this crowd getting on and off the engine between Torrens and Pittsburgh.

By Senator Reyburn:

Q. What kind of men were those?

A. The majority of them were not railroad men. They didn't appear to be accustomed to riding trains.

Q. Did they talk?

A. Only among themselves.

Q. What seemed to be their object?

A. They had no object, that I could see.

Q. Merely curiosity?

A. More curiosity than anything else.

Q. Have you any knowledge of new facts not related by the other engineers or conductors here who have testified?

A. Nothing. They have filled up all I can say.

Q. Can you give us any new light, as to the organization of the men or their plans of action, or the names of the prominent strikers?

A. I don't know the names of many of them.

Q. What do you know about the causes of the riot?

A. Nothing, only the double-headers.

By Senator Yutzy:

Q. Were you permitted to run the passenger trains without interference?

A. Until Saturday night.

Q. How about the freight trains. Were they permitted to run?

A. Not to my knowledge.

Q. They were stopped?

A. Except when I passed through with the train. I was not there. I didn't see the freight trains from that Thursday until the Sunday after running. I was aware of the fact that there was a suspension of business.

By Mr. Larrabee:

Q. What was the difficulty with the passenger trains on Saturday night?

A. Coming in from the five-twenty trip, they told us that we couldn't go out again. Some men got on the engine and told me so.

Q. Do you know where those men were from?

A. I don't know. It was night, and I didn't pay much attention to their appearance.

Q. Were they miners, or mill men, or tramps, or railroad men?

A. They were not railroad men; they didn't talk like it, or look like it.

By Senator Yutzy:

Q. Did you hear any threats?

A. They only told me I was not to go out again.

Q, They only complained about the orders for running double-headers?

A. Yes.

By Mr. Larrabee:

Q. These men gave no reasons for refusing to allow you to go out again on Saturday night?

A. No; I suppose they thought I knew.

By Senator Reyburn:

Q. Did the men know of any reason why the double-headers were to be run?

A. I was not running freight.

Q. You know nothing about freight?

A. It was about that order I heard them talking.

Adjourned until to-morrow, at three o'clock, P.M.

ORPHANS' COURT ROOM,
PITTSBURGH, SATURDAY, *February 9, 1878*

Pursuant to adjournment, the committee assembled at three o'clock, P.M., this day, and continued the taking of testimony.

The first witness examined was

Archibald Jeffrey, *sworn with the uplifted hand:*

By Mr. Lindsey:

Q. Where do you reside?

A. No. 32 Anderson street.

Q. How long have you resided there?

A. Going on three years.

Q. What is your business?

A. I am a machinist.

Q. Were you in the vicinity of the disorders that occurred, commencing on the 19th day of July last—that day or at any time following?

A. I was out there on the 22d—I believe that is Saturday evening.

Q. At what point?

A. About Twenty-eighth street.

Q. Tell us what you saw there?

A. There was a great deal of noise around there for awhile.

Q. Made by whom?

A. I can't just exactly tell who.

Q. There was a crowd there?

A. Yes.

Q. Composed of what classes?

A. Of most every class.

Q. How large a crowd was there?

A. I have no idea—I suppose a thousand or fifteen hundred men—I suppose so.

Q. How long before the burning was it that you speak about?

A. I went out there in the evening about five o'clock—along there—and I think the burning commenced about ten and a half o'clock.

Q. What was the conduct of the crowd at five or six o'clock, when you went there first?

A. That was after the shooting had been done out there.

Q. After the firing by the militia, you mean?

A. Yes.

Q. What was the condition of the crowd at that time?

A. There was a lot of talking going on about the soldiers; but not being interested in the thing at all, I didn't pay much attention to it.

Q. What kind of talk was it?

A. They appeared to be angry about the soldiers firing at the crowd.

Q. Where was the crowd assembled then?

A. About Twenty-eighth street, near the crossing.

Q. Did you see anybody set fire to any car or building, or anything in the vicinity of Twenty-eighth street?

A. I did see one man. He was the only man.

Q. Who was he?

A. Matthew Marshall.

Q. What time was that?

A. It was in the afterpart of the night. I can't say exactly.

Q. What was it he fired?

A. A car of coke.

Q. Where was the car standing?

A. On the track, about two squares above Twenty-eighth street.

Q. Just describe how he did it; where he got his fire; how it took place?

A. I don't know where he got his fire. When I noticed him first he was in the car. He had a bunch of shavings, and was in a sitting down position, and appeared to me to be kindling a fire. When the fire got kindled he jumped out. I saw him fifteen or twenty minutes afterwards. He was the only person I know of.

Q. Did you speak to him?

A. No.

Q. Was anybody with him?

A. I didn't notice anybody with him.

Q. What was the result of the kindling of the fire?

A. If there had been no other fire it would have burnt that car up; but there was fire all around.

Q. Other cars were then on fire?

A. Yes; burning at the same time.

Q. What has become of Mr. Marshall?

A. He is in prison—over the river.

Q. At whose instigation was he arrested?

A. I can't say that myself.

Q. You were not present when the firing took place by the militia?

A. No.

Q. Did you see any other fires kindled?

A. I don't believe I did.

Q. Describe whether there were other fires going on then, and how they were kindled, and what the mob were doing, and describe all the circumstances that took place at that time?

A. There appeared to me to be a gang of men. I don't know who they were—whether railroaders or not.

By Senator Reyburn:

Q. Did they seem to have any organized leaders, or were they directed by anybody?

A. It appeared to me they had at that time.

Q. Were they not running helter-skelter?

A. They were ordering each other around. I can't say whether they had an organization or not.

Q. Did it strike you that they had?

A. It did, at that time.

Q. That it was an organization?

A. Yes.

By Mr. Means:

Q. An organization without a head—do you mean to say that?

A. It appeared to me at that time that it was an organization, but I don't say it positively myself.

Q. Was there any particular party to command it?

A. Yes; it looked to me so.

By Mr. Lindsey:

Q. What did the crowd seem to be aiming at, at that time—was it the destruction of property?

A. I can't say that. There was a great deal of destruction and thieving going on.

Q. Pillage and plunder?

A. Yes.

Q. What was said by the rioters?

A. I can't state.

Q. Was this firing confined entirely to railroad property?

A. It was at that time.

Q. Was there any attempt made by any one, so far as you saw, to fire private property?

A. No.

Q. It seemed to be confined entirely to railroad property?

A. Yes.

Q. This man Marshall you spoke of, was entirely alone when you saw him fire the car?

A. So far as I know.

Q. Nobody seemed to be acting in concert with him?

A. No.

Q. Did this coke car stand entirely alone?

A. It stood in a train. They kept running cars down, six or seven at a time, against each other. This came down with the rest of them.

Q. Describe that. The firing of this car would communicate to others?

A. Yes.

Q. After the car was fired, was it put in motion?

A. Not that I noticed.

Q. When you speak of running cars down, where were they running them from?

A. From out the road some place. I think it is down grade this way.

Q. Did the cars stop at Twenty-eighth street?

A. Above Twenty-eighth street.

Q. Near the round-house?

A. The round-house is on Twenty-eighth street.

Q. Did the cars stop near the round-house?

A. Yes.

Q. Where were the troops then?

A. I suppose they were in one of the round-houses.

Q. Do you know that to be a fact?

A. I walked down, and the guard was standing there. I suppose so.

Q. The cars that were run down, then, would stop somewhere near the round-house?

A. Yes.

Q. Was there any effort made to fire the round-house, that you saw?

A. No; I didn't get near enough.

Q. Was there any attack being made upon the round-house by the mob at that time?

A. I can't say that there was. Not that I know of.

Q. Was there anything said by the mob about the soldiers being quartered in the round-house?

A. Not that I can remember.

Q. How long were you there?

A. I went out in the evening about six or seven o'clock, along there. I stayed along Liberty street and was once or twice on the railroad, and saw Marshall, and along Liberty street at four or five o'clock in the morning.

Q. How close to the mob?

A. I was twice, once or twice, upon the railroad.

Q. At what point on the railroad?

A. Just about where I saw this man.

Q. How far from the mob?

A. That just appeared to be—I stood along the edge of the railroad, and this car was on the second or third track, off the edge of the railroad.

Q. How many rods or feet from the mob?

A. Not more than five or six rods—something like that.

By Mr. Reyburn:

Q. You were in the crowd, were you?

A. No; not just in the crowd. I was standing looking at them.

By Mr. Lindsey:

Q. You were within five or six rods?

A. Yes.

Q. Was the crowd noisy and boisterous?

A. Yes.

Q. What did they appear to be saying?

A. I paid no attention to that.

Q. Did you hear them say anything?

A. I could hear them say a good bit, but it is a long time ago.

Q. What did they appear to be doing?

A. Dragging things off.

Q. What?

A. Goods and things.

By Senator Reyburn:

Q. Was this man Marshall a railroad man or an outsider?

A. I never knew him to be a railroad man.

Q. Do you know anything about him at all—you knew the man?

A. Yes.

By Mr. Larrabee:

Q. Where did he reside?

A. He lived in the First ward, Allegheny, some place.

Q. Had you known him for years?

A. Yes.

Q. He had lived in Allegheny for some time?

A. Yes.

By Mr. Lindsey:

Q. What was his business?

A. He was a machinist.

Q. In whose employ was he at that time?

A. I don't know.

By Senator Yutzy:

Q. What were you doing there—what led you to go there?

A. I heard of the excitement, and I went down town and went out to see it.

Q. It was curiosity?

A. Yes.

Q. Did you say that other cars were burning when this man Marshall fired this coke car?

A. Yes.

Q. At that time?

A. Yes.

Q. It was not the first car burned?

A. No.

By Mr. Means:

Q. Were you there when the first car was fired?

A. No.

By Senator Yutzy:

Q. What kind of things were they dragging off—merchandise from the cars?

A. Yes.

Q. Were any railroad men among that party?

A. I don't know. I didn't know anybody but the one man.

Q. Did they have the appearance of railroad men—familiar with tracks and with getting on and going about cars?

A. I can't say that.

Q. You could not judge anything from their actions?

A. No.

By Mr. Larrabee:

Q. How long was Marshall sent to the penitentiary for?

A. Six years, I believe.

By Mr. Lindsey:

Q. In whose employ were you at that time?

A. In the employ of McIntosh, Hemphill & Co.

Q. Where are their works located?

A. Twelfth and Pike.

By Mr. Dewees:

Q. How far were the other cars that were burning from this one?

A. They were close. There were cars all around, I suppose within thirty, or forty, or fifty feet.

By Mr. Larrabee:

Q. The crowd of spectators was not interfering with property?

A. No.

By Mr. Lindsey:

Q. You were there until five o'clock in the morning?

A. About that time.

Q. How large was the crowd there during the night—take an average.—I mean the crowd engaged in burning or pillaging or plundering?

A. I couldn't just give an idea.

Q. What is your opinion as to how large the crowd was—a thousand men or five thousand or ten thousand?

A. Two or three thousand.

Q. You mean that were about in the vicinity, and seemed to be taking part in the destruction of property?

A. If I were to give an estimate I would give you something that I don't know.

Q. Was there any effort made to stop the destruction of property during the night?

A. Not that I know of.

Q. Was there any interference with it by any person?

A. Not that I saw.

Q. They were running things there themselves during the entire night?

A. It appeared so to me.

By Mr. Engelbert:

Q. You did not see any soldiers, except the guard at the round-house?

A. I saw the guard and two or three standing there with him.

Q. There were none active in trying to beat back the crowd?

A. No.

Thomas M. King, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In Verona borough.

Q. You are officially connected with the Allegheny Valley Railroad—in what capacity?

A. I am superintendent of the river division.

Q. Did you occupy that position in July last?

A. Yes.

Q. State whether there were any differences between the Allegheny Valley Railroad Company and their employés, existing prior to the 19th day of July last?

A. There was some dissatisfaction among the men in regard to the ten per cent. reduction, but they all appeared to accept it.

Q. When was the ten per cent. reduction made?

A. The 1st of June.

Q. To what classes of employés did that apply?

A. To all classes receiving over a dollar a day.

Q. And to the officers, from the president down?

A. Yes.

Q. There was some complaint at the time?

A. Some dissatisfaction.

Q. Between the 1st of June and the 19th of July, was there any organization among the men, so far as you could learn, or any pre-arranged plan to strike?

A. There was nothing positive. I understood that quite a number of the men were joining what was called the Trainmen's Union.

Q. Did you know the object of the Trainmen's Union.

A. Of my own knowledge I did not. I understood it was being organized for the purpose of organizing a strike.

Q. Did you, as superintendent, have any communication with the men that you understood were joining the organization in relation to it?

A. A short time before the strike, three or four of our men, I understood, were very active in it, and I think I suspended one or two temporarily, and talked to some others about it. My information just previous to the strike led me to suppose that our men were not going to stand by it, or were withdrawing—that they would not go into the strike.

Q. Did you get that information from conversation with your men?

A. Yes.

Q. With what class of employés?

A. Conductors and engineers.

Q. What class seemed to be most dissatisfied with the reduction?

A. Generally those of the lower grade of pay—such as brakemen; that class of men.

Q. When did the first strike occur on your road?

A. I think on Monday morning, the 23d, I believe.

Q. What class of men struck first?

A. I would qualify the other statement by stating that on Saturday, about ten o'clock, I got a message stating that the shop men had held a meeting and determined not to work any longer without the ten per cent. was restored. We went out and called the men together, and Mr. Shinn, our vice president, made a speech, and explained the situation to them, and they held a meeting and agreed to stand by the reduction and go to work again. That was the first difficulty we had. On Monday, I think was the first refusal, on the part of the train men, to perform service.

Q. What was said and done to get the men to resume work?

A. On Monday, I went down with an empty train, and turned up Pike street. There they drew up, and I went on to the shops. We had a street engine that far. After getting to the Thirty-fourth street station, I was surprised to see a road engine standing there. I imagined, at once, there was going to be a difficulty, and I got off the engine and walked up to the round-house, and there was quite a large number of our men congregated there. I spoke to them, and asked them what this meant. None of them made any reply. I told them that the Pennsylvania Railroad Company had made some arrangement with their men, and that, of course, we would be governed by any arrangement made on the trunk lines. I told them they were foolish to go into the strike in the midst of the excitement—that it would do them no good. I then asked one of the engineers to go on the express engine standing there, and take her out. I got no reply. I said: "Boys, I am very sorry you are acting badly, and if you don't take the engine out, I will have to take her myself." I got on the engine and took her out, and made a coupling on a train and started. In the meantime, one of the firemen came down and got

on with me. By the time I got up to the round-house, one of the engineers came and took the engine from me.

By Senator Yutzy:

Q. You don't mean took it forcibly?

A. Oh, no. I went back to the men, and by that time quite a crowd was gathered around, and there was a great deal of excitement. There were a great many people around that I never saw before. The men said they were going to call a meeting. I told them as a great many strangers, apparently, were around, I would sooner they would go away from the shops, and call their meeting at some other place where they could do it quietly. They did so, and concluded that they would not go to work. I succeeded in running all the trains that day that I cared about running.

Q. How did you accomplish that?

A. By working myself, and by calling on the dispatchers and two or three of the engineers. The next day a great many strangers were in our yard, apparently influencing our men. I sent for some of our men, and told them that I could not understand their conduct, that we had always endeavored to treat them kindly and squarely, then they said it was not their fault, that they were forced into it, and were doing what they did by intimidation; that it would be as much as their lives were worth to undertake to run those trains. By Tuesday noon I had a great deal of difficulty in getting the passenger trains to run. The men would be scared off and desert them. I gave the men notice on Tuesday afternoon, at three o'clock, that if they wanted the *onus* of stopping all the passenger trains on our road, they would have to do it—that we would not be justified in undertaking to run trains and run the risk of having an accident occur to them by their refusing to perform their duty.

Q. What action did they take then?

A. They called a meeting about four o'clock. I sent up to that meeting and asked them to send me down a man to take out the passengers that had come into the city that morning, so that we could get them home. I could

not get any person to do that, and had to do it myself. I took the train out. That evening there was a committee waited on me with a proposal that they would run two of our trains—would select the crew to take charge of them. I had been unable to get any protection whatever either from the military or civil authorities.

Q. Did they carry out that arrangement?

A. I sent a request to the committee of public safety, and had also gone and seen General Brown, personally, to get some protection for our shops, and also some ammunition for a company that we had at Verona guarding our property there. General Brown said he could give me no assistance, whatever, and so far as his ammunition was concerned, he had but very few cartridges for his command. He, however, gave me forty, and an order to gather up the company at Verona, and place them on duty there. He said he could not allow any troops to be sent out of the city at all, as he deemed it of more importance to keep them in the city than to send them on the outskirts. From Mr. Thaw, I learned also, that the committee of public safety had declined to send any persons. After the men had made their proposal, I notified them that I would give them an answer in the morning, and started up to the east end and saw Mr. Shinn, our vice president, and submitted their proposal to him, and explained the position we were in—that we could get no protection either from the civil or military authorities, and that if our men were willing to work, I thought it would be prudent, on our part, to submit to the men until such times as the authorities could regain control. He agreed with me, and authorized me to let the men take charge of the trains and run them, so as not to stop the United States mails. The trains were run under the charge of the men for two days—Wednesday and Thursday. On Friday, we took charge of the trains ourselves again. We ran the passenger trains on Friday and on Saturday—all we desired to, and notified the men on Saturday that we proposed to commence running trains on Monday. And I advised all the men that desired to retain their positions, and who wanted to go to work again, that if they would come down on Monday and take their trains they could do so.

Q. How many responded on Monday?

A. We had some difficulty up until two o'clock, and I was compelled to employ a few new men. After that, the men saw that we were determined, to start the business on the road again, and the majority came in, and we had all the men we wanted.

Q. Did you have any assistance from the military at any time?

A. Yes.

Q. When was it?

A. I think on Thursday night. I went down to General Brown, and got an order from him to bring the company that was at Verona, doing duty there, to Forty-third street. He also sent a detail of cavalry from the city, and we took charge of the road on Friday morning, and started our trains.

Q. I understand it was on Tuesday you made the application to him.

A. On Monday night and Tuesday both.

Q. The troops were refused?

A. Yes.

Q. When was it you made application to the citizen's protective committee?

A. On Tuesday, Mr. Paul came to me, and told me. He said: "Mr. King, you are running a great risk. There is a great deal of excitement, and I have heard a great many threats, not only against you, but your road." I think it was at nine o'clock in the morning—between nine and ten. I said to him: "Mr. Paul, you see the condition of things here. If you can do anything with the committee of public safety, I think you should go and explain our position to them." He remarked to me that he had heard some threats among the men on Butler street, about burning the bridges and destroying property, and, also, some threats against me personally, on account of my having been running trains out. The men were afraid to take them at the station, on account of the threats made against them. I could not get the trains run out,

but as soon as I would get out of the city limits, an engineer would come forward, and relieve me. In that way, we were enabled to keep the passenger trains going.

Q. Who was Mr. Paul?

A. He was a neighbor of mine, living at Verona—of the firm of Metcalf, Paul & Co.—a member of that firm.

Q. Did you see any of the committee of public safety?

A. No. I was very busy, watching our property, and could not get down town during the day. Everybody was excited, and there were a good many outsiders around.

Q. Did Mr. Paul report to you after seeing the committee?

A. Yes.

Q. Do you know who he saw of the committee of public safety?

A. He did tell me, but I don't recollect now. I think he went in before the committee, and made a speech to them, and explained the situation—at least, that is my recollection.

Q. What kind of assistance was the committee of public safety rendering at that time?

A. I can't answer that. They were organizing the citizens into companies, for the purpose of protecting the city.

Q. Mutual protection?

A. Yes. The night I drove out to see Mr. Shinn the whole city appeared to be patrolled. It was midnight, and I was halted at almost every corner. The citizens were all apparently out.

Q. Were they armed?

A. Yes.

Q. On Thursday, Friday, and Saturday, were your men all at work?

A. Yes.

Q. What time did the shopmen quit work on Saturday?

A. At the usual hour.

Q. What is that hour?

A. Half past five in the evening. Mr. Shinn was there at half past two or three, and called the men together, and made a speech. I left then, and I think they all returned to work.

Q. Did I understand you to say that all the trains, both passenger and freight, were running on Saturday?

A. Yes; we sent out the night trains on Saturday evening, after the trouble had commenced.

Q. Was the same order issued by your company that was issued by the Pennsylvania Railroad Company, as to running double headers?

A. There was no necessity for it on our road.

Q. The only reduction in any way was the ten per cent. reduction, on the 1st of June, on your road?

A. Yes.

Q. Had you any reason to apprehend any strike, prior to the breaking out of the one here among your men?

A. No; I had an assurance from quite a number that they would not go into the strike.

Q. Did you receive any order from Colonel Grey upon Captain Patterson to furnish you with men?

A. I think that is the order I referred to. I went and saw General Brown, and he gave me an order to Captain Patterson, to get the men together and report

for duty at Verona shops.

Q. On Tuesday?

A. Yes; I am not sure whether it was Monday night or Tuesday. My recollection is, it was Monday night, but probably it was Tuesday.

Q. Did he give you the order when you first saw him—the first time he was called upon?

A. I was to see him two or three times during that period, and I am not positive about it. I think it was the second time; it may have been the first. I am not positive.

Q. Did he make any refusal the first time you saw him?

A. I explained to him, that we had a guard of seventy-five men, that we had organized ourselves at Verona, among whom were some of the Verona company, but they had no ammunition. I think that the General said to me, if I could get that company together, he would let it remain, but he could not send any troops from the city hall.

Q. Did he state his reasons?

A. He deemed it more important to keep the command together than to separate them.

Q. Did you make any application to the mayor or sheriff of the county for aid?

A. No; we did not need it until after the riot. It was only from the desire to protect our men who were willing to work. And I had been advised on Monday or Tuesday of some incendiary speech, made among the miners, and I looked for some trouble among them.

Q. Was any of the property of the Allegheny Valley railroad destroyed?

A. Nothing but a baggage car at Union depot and the tracks running in front of the round-house where we approached Union depot.

Q. Had you any number of cars there at the time the burning occurred?

A. I think we had about two hundred south of Forty-third street.

Q. Were any of them laden with freight?

A. Some with ore; the merchandise cars I removed Sunday night myself. Word was sent to me that the men were going to burn the freight station.

Q. Were you interfered with in any way?

A. No.

Q. In the interviews you had with your men before the strike—between the 1st of June and the strike—what reasons did the men give for their anticipated strike?

Q. They were dissatisfied with the reduction of wages. There had been one the previous year or so, and this one coming in that time, made them very much dissatisfied.

Q. How long before was the other reduction?

A. I think in 1874 or 1875.

By Senator Yutzy:

Q. Is it not a habit for the men, when their wages are reduced, to complain?

A. Oh, yes.

By Mr. Lindsey:

Q. Was it deemed necessary on the part of the company to make that reduction?

A. The board of directors thought so.

By Senator Reyburn:

Q. Had there been a falling off in business?

A. The business was very irregular and spurty. Sometimes we were running all the trains we could, and then they would drop off. And rates were not so good as they had been.

Q. From your position, you should judge that was the reason why the reduction was made?

A. I should judge it was a necessity on the part of the management to do it, on account of the condition of the trade of the country.

Q. There had been strikes in other parts of the country before this trouble occurred here—for instance, at Martinsburg?

A. I believe so—from newspaper reports.

Q. Did you have any consultation with the railroad authorities when this occurred—or did you take any measures to avert this?

A. So far as we were concerned, we did not anticipate it.

Q. You had no anticipation of any trouble on your road?

A. There had been some talk in regard to the train men's union, that it was for the purpose of getting up a strike. But many of our men, I understood, were withdrawing from it, and would not lend themselves to anything of the kind. For that reason I did not anticipate any trouble among our men.

Q. Do you know whether there was any aid asked of or any consultation held with the authorities before the strike came about?

A. I cannot answer that. I was not in the city that day.

By Mr. Lindsey:

Q. How did the business that the road was doing for three months prior to June 1st, when the reduction was made in wages, compare with the same three months of the year before?

A. My recollection is that our average may have been a little heavier, but I am not positive about that.

Q. In the three months preceding June, 1877.

A. Yes; our business is spasmodic. It is the oil business. A part of the year they are doing a good business, and then it drops off to nothing.

Q. How did the prices for the carrying of freight compare in 1877 with those in 1876?

A. I cannot answer that. I did not make the rates.

Q. Had there been any change in rates, so far as you know?

A. My impression is that the rates in 1877 were lower than in 1876. I want to say here, that our shifting engines handling freight on the street had been interfered with two or three times during Saturday morning by the crowd going down Twenty-eighth street, and sent back. I walked out the street, from Eleventh street to Forty-third—between eleven and twelve o'clock. I saw that there was a very considerable excitement among the people, and a good deal of feeling. From there I went up on to Twenty-eighth street, where the strikers were in possession of the track. I saw but very few people there that I knew. Some faces were familiar to me. I came back to the office, and got a report about the action of the men at the shop, and went out there at half-past two o'clock, and on my return I walked up to the Pennsylvania railroad shops, and found the troops were moving out. I went in through the yard, and followed in the rear of the column. After the troops reached the vicinity of Twenty-eighth street, I got up on a car right in the rear of them, and I watched their movements—the formation of the command. The crossings were cleared. I saw a few stones thrown among the crowd, and I saw a man with a cap on—saw him draw a pistol, and fire into the troops.

Q. Do you know who it was?

A. No.

Q. Do you know whether he was a railroad man or not?

A. I cannot answer that. When the company struck the crowd on the crossing there was a recoil like jumping up against a rock. There did not appear to be any give to it. Then there was a struggle, and some of the men reached for the muskets, and two or three of the soldiers pulled back and brought their muskets to a charge, and three or four shots were fired.

Q. By the troops?

A. Yes; and then there appeared to be a volley from the entire command—a rattling fire—starting at the front rank and breaking back to the rear.

By Senator Reyburn:

Q. What do you mean by the entire command?

A. The head commenced firing, and then it run back on the wings. It was an irregular roll of musketry. I got off the car, and fell back after the firing ceased. My position was somewhat exposed.

Q. Did you hear any command to fire?

A. I do not think there was any command given.

Q. You were in a position to hear it?

A. Yes.

By Mr. Lindsey:

Q. How many shots were fired by the crowd before the militia began to fire?

A. I only saw one. I saw some stones thrown.

Q. Was a volley of stones thrown in among the militia, or was it scattering?

A. Scattering.

Q. From what point were the stones thrown?

A. They appeared to come from the hill side—in the vicinity of the watch-box, near the crossing.

Q. What was the effect of the firing of the stones among the militia—was there any damage done to life or limb?

A. I noticed a sergeant of one of the Philadelphia companies with a bad cut on the face. He came back with his face shattered. The thing came very quick.

By Senator Yutzy:

Q. Did you hear any command to cease firing?

A. I did not. I went to the rear of the cars I was standing on, and the soldiers were breaking back in my direction, and I did not notice what was going on in front after that. There was just one volley. The soldiers just emptied their muskets.

By Mr. Lindsey:

Q. What was the result of the volley?

A. A panic on the hill side—every person ran from the hill side and the crossing.

Q. It dispersed the crowd, did it?

A. Yes.

Q. In what direction did they retire?

A. In all directions.

Q. What became of the soldier's then?

A. I left the crossing, and went from there to the telegraph office, and wrote some messages to the freight depot and shops, directing them to put on a heavy guard during the night. While I was there Mr. Watt came in, and told me that the mob had started for the arsenal. I telegraphed to the

commandant to take care of our shops, and advised him to be on his guard. The message was delivered within five or ten minutes after it was sent.

By Mr. Larrabee:

Q. Was any actual violence used by the strikers to prevent the trains running on your road?

A. Our men were threatened.

Q. But there was no actual violence?

A. No.

By Mr. Dewees:

Q. When you were running that engine yourself, what was the mob composed of—men that had been in your employ, or in the employ of the Pennsylvania Railroad Company, or tramps? Describe the crowd?

A. They were strangers to me. I do not know them.

By Mr. Engelbert:

Q. I understood you to say that application was made to the civil authorities. What do you mean by that?

A. I did not say that application had been made to the civil authorities.

By Mr. Lindsey:

Q. If you were present when the first firing occurred, I wish you would give us a description of it—what it was started by, and what the condition of the crowd was at that time?

A. I was at the corner of Penn and Twelfth streets when the alarm was struck, 10.40 o'clock by city time, or a few minutes later. I saw a flash in the sky and heard the alarm, and hurried on up Penn street. I knew what it meant. There were some oil cars stored in the Pennsylvania yard at the time,

and I saw it was the flash of an oil fire. I think about Twentieth street the fire commenced. I then went about a square, and I heard a torpedo explode, and I got to the next corner and saw the fire on Penn street, and on the side street.

By Senator Yutzy:

Q. A railroad torpedo, you mean?

A. Yes; it made a noise similar to that. The engines were driving fast at the time. I went to the vicinity of the coke yards, and remained there until half past two or three o'clock in the morning.

Q. Did you go with the engines during this time?

A. No, I was walking. When I got up there, they were dropping the cars down to the cars that had already been set on fire—quite a crowd was around. The burning of the cars appeared to have commenced. People were passing with their arms full of dry goods and things of that kind. As fast as the cars were dropped down, they were set fire to. Every few minutes there would be a panic among them, and they would flee like wolves or sheep, but seeing that there was no danger, they would come back again. I remained there until three o'clock, and then walked to the shops to see if everything was quiet there. After I got there, I got a message from Colonel McKee, of the Oil City command, stating that he was on his way, but had no ammunition. I telegraphed to General Latta, and asked him where it could be got at some point on the road, before reaching the city. I did not get any answer. The wires were interrupted between the city and our place, and at four and a half o'clock, I started down to Union depot, to hunt up General Latta.

Q. On Sunday morning?

A. Yes, sir; I met a great many people coming from the vicinity of the Pennsylvania yards, all having more or less plunder. A great many of them were in liquor. I got to Union depot, I believe, at six and a half o'clock. I went up to General Latta, after getting to Union depot, and he told me he

had some ammunition, and would give me some after a bit, for Colonel McKee's command. He appeared to be very much exercised over the condition of the troops at the round-house at that time. A short time after, Captain Breck came in and reported that General Brinton had broken cover and started for the country. I think he told General Latta and one or two others sitting in the hotel at the time. The general and the captain went up stairs, and after that I did not see them. I remained in the vicinity of our shops and the Union depot until twelve o'clock Sunday, and then went up among the mob. I went to see what the character of the crowd was, and to see if I knew any of them. There appeared to me to be about seventy-five or one hundred and fifty men that were organized. One man, particularly, I noticed with black whiskers with a stick in his hand that appeared to be the leader. They would go on and destroy a lot of cars and then meet apparently to consult. He would wave his stick, the mob would follow, and do as he directed. I saw them setting fire to the cars there. Such a hard looking set of people I never saw before. I did not recognize anybody that I had ever seen. Quite a number of them appeared to be in liquor. They had cleaned out everything down as far as what is called the "brewery switches."

Q. About what street is that?

A. About Fifteenth or Sixteenth street. One of them got up on a car and made a speech, and declared that, as near as I could judge from their actions—I could not hear their words—that the Union depot would be the next point affected. Two cars loaded with plunder were got into position and set fire to, and shoved up over the hill and down to the other cars on the other side. As fast as the gang appeared to make an advance, the plunderers kept ahead of them.

By Senator Reyburn:

Q. Did these men appear to be railroad men?

A. No, sir; they were not railroad men. They looked to me like roughs of the lowest description. They had the vilest countenances I ever saw. One man, I

noticed, was so intoxicated that he could hardly stand on his legs, but he would go in among the cars and do what a sober man could not do.

By Mr. Lindsey:

Q. Did you make any effort to find out who the black-whiskered man was?

A. I recognized him as the leader of the party, and I would know his face again. If I should ever see him, I would recognize him. They appeared determined to drop the burning cars into the depot, and I went down and threw an engine off the track, and blocked the track so that they could not do that. A great many people were around at the time, and it was thought that by the time they reached the depot they would not have the courage to come in there. The police were there, and I did not think that they would undertake to fire it.

Q. How many police were there at that time?

A. Fifteen or twenty. They retired right in front of the mob.

Q. When they reached Union depot, how many did the mob number, that were actually engaged in the burning?

A. I cannot answer that. A great many people were around in the vicinity, and in the streets, and on the hill side, and all around—a great many people were there.

Q. You spoke of about seventy-five or a hundred?

A. They were followed by an army of plunderers. This gang appeared to be the center, and as they went along, the plunderers demolished everything that came in their way. After they found they could not drop any cars into the depot they walked right into the office, at the north end of the depot, and knocked the windows out, and presently there was a flash there, and in a few minutes the shed was on fire. After the depot was fired, I walked to Forty-third street to see how things were going. I returned after the elevator took fire. I saw from that position that it was on fire, and I commenced to

have grave doubts whether they could check it—whether they could prevent the lower end of the town from burning.

Q. Did this gang of men fire property below the depot, or did that catch from the depot?

A. I was not in the vicinity of the depot when the property on the other side was fired, and I cannot answer that, nor when the elevator was fired.

By Senator Reyburn:

Q. When you came back did you see this same gang?

A. The crowd was scattered then. The elevator was on fire, and the Pan Handle yards were on fire. I got word then that they were going to attack our property, and I started right to the shops, and took an engine and removed what property we had.

David Garrett, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the Twentieth ward of Pittsburgh.

Q. What is your occupation?

A. I am an assistant train master.

Q. Of the Pennsylvania railroad?

A. Yes.

Q. Did you occupy that position in July last?

A. Yes.

Q. State what knowledge you have as to any dissatisfaction among the employés of the Pennsylvania Railroad Company in regard to wages prior to the 19th of July last?

A. I have no knowledge more than any person would have who has his wages reduced. The men spoke about the reduction of their wages, that it was a little hard. They talked to me about the order. I told them that we were all in the same fix, and tried to point out to them that the reduction was general—that the business of the company had become reduced, and I supposed that they thought it was necessary to make a reduction. Most of the men that I talked to on the subject seemed to be satisfied. They didn't feel good about it, but they didn't say that they would offer any resistance to a reduction, or that they would strike, or anything of that sort.

Q. That was after the ten per cent. reduction?

A. Yes; they talked about it some. Of course we had heard about the troubles on the Baltimore and Ohio, and had heard about the Trainmen's Union, and also heard about men withdrawing from that, and also about its being bursted up. What I think the cause of the trouble was the very light business that was doing. Then in June, when the reduction was made, we found we had a large surplus of men, and we reduced the force to suit about the volume of business doing then. In doing that, we had regard to the condition of the men. Those who were married we tried to retain, and those who had been a long time in the service we tried to retain, and occasionally if we had a man who could get along at something else, or who was in particularly good circumstances, we would discharge him, in order to keep some man who was not so well favored. That threw some men out of employment. Then on the 16th of July—that was the morning on which the new arrangement was to go into effect—the running of double-headers. That is, instead of taking two trains from Pittsburgh to Derry, with seventeen cars, we would run one train with thirty-four cars.

Q. Was the order issued on the 16th?

A. It was to take effect on the 19th. The order had been issued some time previously, and posted on the bulletin boards where the men could see it. When this order was posted up, the men would come, and I saw them looking at the bulletin boards. No one expressed any dissatisfaction. There had been some talk among the men that it would dispense with the services of quite a number, which, of course, we admitted it would, and the more so, from the fact that while formerly we were running men from Conemaugh, the company found it inconvenient to run trains to Conemaugh, and were making Derry the dividing point. We were running from Pittsburgh to Derry and back again. That would give the smaller portion of the run to the men on this end of the road, and, of course, a smaller number of men were required. But to fix that, the day previous to the strike I went out to Derry, and there had a consultation with Mr. Edward Pitcairn, who is the train master at Derry. We saw the difficulty, and tried to provide for it, by taking seven or eight crews, of four men to a crew, to run between Derry and Altoona. As we were getting along with a less number of men, at the other end they would require a greater number of men. That was on Wednesday, the day preceding the riot. We had the thing all arranged, as I thought. I came into Pittsburgh the next morning about nine o'clock, when one of the dispatchers told me on my arrival, that one of the trains had not gone out. I asked him the reason, and he said that the brakemen had refused to go out on the train. I asked him the number of men he had asked to go out, and he said quite a number—eighteen or twenty, perhaps more. I told him I would go out and talk with the men about the matter. I felt about that, that we had a large surplus of men, and if only a portion of the men were insubordinate and refused to run, it would relieve us from embarrassment. I had no idea that it would extend beyond that. I went out and found eighteen or twenty men, and asked them if they had any objections to go out. Some just declined to go out on double trains, and others said nothing. Of the men present, I couldn't get any to go. The conductors were willing to go. I conferred then with Mr. McCabe, and he suggested that we should get some of the yard men to man the trains. We called on several of them, and finally got three to go as brakemen. Preparation was made to start the train. I walked some distance in advance of the engine that was to take the train,

and met some men coming along that seemed to be somewhat demonstrative, and among them one man very violent—one now undergoing his trial. He remarked to me—I said something about the switches—I cannot remember now what—and he remarked to me that no trains would go out, or something to that effect. I asked why, and he said that they had resolved not to let anything go out. I remonstrated with him, and said: "Hice, you have a perfect right to refuse to go out if you don't want to go out, but you have no right to interfere with others." He said it had got to be a question of bread or blood, and that they were going to resist. I left him, and then came to attend to some other matter towards the switches. I heard something behind me and turned around, and saw a considerable confusion. I saw links and pins being hurled at these yard men on the train. I saw one of them struck. I saw a link or pin falling from his person, and saw it hit him. I also saw men going on the engine. I came forward then and found no person on the engine at all, and found that the men we had expected to run the train all driven away. I found that we were defeated in getting the train out. It was not worth while to parley with the men at all. We had no force at all—no police at all—or not very strong. I went to the office of Mr. Watt, who was acting in the place of Mr. Pitcairn, who was absent, and it was suggested that inasmuch as a large quantity of live stock was at East Liberty, and it was important to get that away, that I should go there and anticipate any power that might be coming west, and put the cars away, and take the power and send the live stock away from East Liberty. I immediately did that, and went there on the first train I met. I went to Torrens, and at East Liberty I met a coal train, and I stopped the train and went to the conductor and told him what I wanted. I told him to put his cars in there and to take a train of live stock from East Liberty. I didn't tell him anything about the trouble in Pittsburgh. He went away and conferred with some person, and then came and told me that he declined to do that. I left him go. I then went to Torrens, not wishing to lose any time, and while there received a message from the superintendent's office telling me that two engines were on the way there and would soon arrive—two engines westward. I then received another message to make haste, that Hice and his crowd had started for Torrens to interfere with the live stock. I made

all the haste I could. I went down to Gray's switches, and there waited the arrival of the two engines, took the cars from them, crossed the engines coming west over to the other track, adjusted the switches, and went on down. When I got down there, Hice and his party had just arrived.

By Senator Reyburn:

Q. How did they get there?

A. I don't know. The distance is not very great. I don't know what time they started, and I don't know by what route. I rather think they walked up the track to Torrens. At that time, when we got back, the party was there and surrounding the engines. I got up on one of the engines and asked the engine man what was wrong. He said he couldn't take the stock. They said that their lives had been threatened if they moved the stock. I telegraphed to Pittsburgh, stating the situation of affairs, and that we couldn't do anything at all without we had more protection, and Pittsburgh told me, after a bit, that more police were coming—that there would be fifteen of them. They had made a requisition, I understood, upon the mayor, and that fifteen police were to come up. They were to come up on the Atlantic express, I think. About the time the Atlantic express was due, I went out to where the engines were standing, and backed up against the stock. I didn't tell the crowd or any person that I had information of any assistance coming, but I just remarked to them that we proposed now to commence moving that stock, and that those who were in no way concerned with the railroad, or who had no interest in the matter, except as lookers-on—that I would take it as a favor if they would retire, and give us room to work. There was a large crowd there. Just at that time, this same man Hice called out, they are going to bring the militia—the Duquesne Grays. He immediately called out and said, I want four good men. They came up to him, and he said, I want you to go to Pittsburgh and get out two thousand mill men. Four young men started—a couple of them were, I think, our own men, and a couple were not in our service. I can't say who they were. One little thing occurred before this conversation with Hice—before the Atlantic express came. I had gone some distance east to the telegraph office, and I found Hice there, and

I got into conversation again about it, and I told him: "Hice, be careful not to do anything you will be sorry for." He said it is a question of bread or blood, and said, if I go to the penitentiary I can get bread and water, and that is about all I can get now. I saw it was no use to talk to him, and I left him. When the express came along it didn't have the force on that I expected. It had some men, but not enough for the emergency. A great many men came up on the train. We found that we couldn't move the stock. Mr. Watt had come up, and I called his attention to the situation. I suggested that we should move some of the stock by deceiving the men. That I would get two engines, and say I couldn't move the stock, and I might as well go on back, and that under pretense of shifting the stock on to the siding he should get it past the crowd, and run it to some point on the road—to Spring Hill, and that there I would take it with those two engines, and that, in the meantime, if he couldn't do that, that I would couple to a train of cars that had been brought from Wilkinsburg in the morning, and take it as far as Spring Hill, and if the stock didn't come would take it on through. After we started from Torrens with the engines, I told the conductor and men what I wanted to do—to couple on to the train at Wilkinsburg. The men seemed to have a little fear that the crowd would overtake us before we could get the train out. However, I told them to hurry up, and I succeeded in getting it out. We took it on as far as Spring Hill, and, while the engines were taking fuel and water, I told them to remain until I came back and gave a signal, and I walked on to Walls to ascertain whether or not the stock was coming. When I got to Walls I learned from Mr. Watt the stock was coming. I then went back, and, when the stock arrived, coupled on, and sent it out. That was the last train moved, and it was done by deceiving the men. I then returned to Pittsburgh. It was pretty near night. I found the crowd at Torrens was indignant at us deceiving them in moving the stock. Some of the stock couldn't be moved, and had to be unloaded. I then came to Pittsburgh, and I found that while I had been away that they had a great deal of trouble in the Pittsburgh yard. But I don't know anything that occurred in Pittsburgh that day from the time I left until six or seven o'clock that night. But I remained there then all that night.

Q. As train master, tell us how the traffic on your road for the three months prior to June 1, compared with the traffic during the same time of the year previous?

A. I can give my impression, that it was very much below the corresponding period of the year previous. My impression is, it was below. Of course, in that, I may be mistaken.

By Senator Reyburn:

Q. You judge from the number of trains and the amount of stuff you hauled?

A. Yes; our trade is peculiar. There are times when the through freight may be heavy, but at points east of Pittsburgh, the coal and other local business may be very light. We will start from Pittsburgh with an unusually heavy business, but it won't aggregate nearly as much when it arrives at Altoona, as on other occasions, when we start from Pittsburgh with a comparatively light business. I was present at the time of the firing of the troops, but about that, what I can say is about what Mr. King has said.

Q. If you were present at that time, however, you may state what you saw?

A. I was at Union depot when the troops arrived. I went to the outer depot, two blocks west of Twenty-eighth street. We kept ourselves advised by wire as to about the time the troops would move from Union depot to Twenty-eighth street. We were expecting that they would clear the track, and that then, if possible, we would get the trains started. We had a crew in readiness to go just as soon as they got protection enough to start. I remained on some gondolas there until the troops, with the Gatling gun, passed along up the track. Then I followed up. I didn't intend to go very close, but got much nearer than I had intended, and so got near enough to see the movements of the troops. I saw them form on Twenty-eighth street into what is called a square, and saw the confusion that Mr. King spoke about. I heard the shots very soon after that. I thought at first it was blank cartridges, but soon learned such was not the case.

Q. Have you any idea as to how many were hurt?

A. Seven, eight, or ten—and some killed.

Q. You saw this yourself?

A. I didn't see any myself. I saw them carrying people away very soon afterwards. I saw afterwards the man that Mr. King mentioned as having been hit in the face by a stone before the firing. While I was in the superintendent's office, after the firing, a report came that they were going to attack the arsenal, and also the superintendent's office. I afterwards went home and got my supper and returned. When returning, the mass of people at Twenty-eighth street was enormous. They were solid on both sides of the track. By the way, some soldiers were there, enough to keep the men off the track. I had intended to go up and walk to the superintendent's office, but found I couldn't do it with safety. I thought they possibly might want me, and I intended to go. I went to Union depot, and made an arrangement to get to the office. After that, I learned that the military had charge of everything. I staid at Union depot until ten o'clock, and left on the last train that went out. That was on Saturday night. About three or four o'clock in the morning I was awakened by a great deal of noise and hallowing, and saw a great many roughs passing my place, and heard wagons passing.

Q. Did they seem to be coming in wagons from a distance?

A. Yes; various wagons went past my house. It was three or four o'clock in the morning. It was getting daylight; and during all that day the people were carrying plunder past our house; and those same wagons returned during the afternoon loaded. I remained at home on Sunday, for the reason that they said they were going to commence at East Liberty and burn everything to Pittsburgh, and I thought that possibly my house might be burned.

Q. If you had succeeded in starting a train from Pittsburgh, would it have been able to get ten miles away.

A. All the trains that we started previous to, say, nine or nine and a half o'clock on Thursday, went through—went through all right.

Q. What do you mean by through?

A. To the destination, wherever it was.

By Senator Yutzy:

Q. During this time, before the military arrived, was there any considerable effort made on the part of the police to protect you and your men and property?

A. No, sir; nothing at all equal to the emergency.

Q. What number of policemen were there in force, at any time, to protect you?

A. I cannot say that I ever saw a dozen. A small force of police were brought to the outer depot on Thursday, but it was after I had gone to Torrens, and I remained away the remainder of the day. It was after the time that we were trying to get out another train, when the men refused to let it go, and when Mr. Watt was struck.

Q. What were the police doing all this time?

A. I suppose the police were too weak in numbers.

By Senator Reyburn:

Q. When you saw them they were inadequate to the emergency?

A. Yes; altogether.

Q. Up to Saturday night, any train that could have been started would have gone through to its destination?

A. No; only on Thursday. After Thursday, I think, no freight train could have gone through, because all the trains were stopped; and even the passenger trains were stopped at East Liberty and Lawrenceville.

Q. From the information that the railroad authorities had, they could not have run trains through to their destination?

A. I don't think so, after Thursday. The men allowed our trains to come west, but as fast as they came west they prevented them from going east.

Adjourned until Monday morning, at ten o'clock.

PITTSBURGH, MONDAY, *February 11, 1878, 10 o'clock*, A.M.
ORPHANS' COURT ROOM.

Pursuant to adjournment the committee re-assembled at ten o'clock, A.M., this day, and continued the taking of testimony.

Charles McGovern, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. On Boyd street, in the Sixth ward, Pittsburgh.

Q. Were you on the police force of the city of Pittsburgh, in last July?

A. I was.

Q. In what capacity?

A. I was a detective.

Q. Were you in the city on the 19th day of July?

A. I was. That was Thursday.

Q. Were you employed by the mayor as a special detective?

A. I was serving under his administration.

Q. Had you any communication with the mayor on that day with reference to the disturbance of the peace?

A. I had.

Q. State what it was?

A. A little after eleven o'clock on Thursday, the 19th day of July, Mr. Watt came to the mayor's office and had a conversation with the mayor, and after he was through the mayor called me in. It was my week in the office. We took our turns in the office. He instructed me to gather what men I could find and go out to Twenty-eighth street—that there was some trouble with the railroad employés out there on account of a strike. The week before that our police force had been reduced from two hundred and thirty-six men to one hundred and twenty, I think. That left us without any men in the day time at all, except six men that were employed in the office as detectives, and one man on Fifth street, and two specials, I believe; but on this day it happened that the men that had been dropped from the rolls were in the City hall for the purpose of getting their money. I told the mayor that I could not get a sufficient number of men to go out there to amount to anything, if there was any serious trouble, but that a number of these men were there, and that I could raise a squad from them if necessary. So failing to find the necessary number of our men—who were in bed at this time because they were on duty at night—I gathered ten men belonging to the force that had been dropped, and started out to the Union depot. Mr. Watt met us there and took us out to the crossing at Twenty-eighth street. He had some two or three of his own men there. When I got out there he told me what we were brought there for—that there was a strike in progress, and he anticipated some trouble with the employés—that is they would likely resist the running of trains. We were moved out to Twenty-eighth street, and at Twenty-eighth street, or a little this side of the street—that is, west—there is a switch. He told me he was going to move the trains, and I sent the men to protect those switches, and to see they were not interfered with by the strikers. I divided the men into two squads, and sent one squad to the western switch and took charge of the other myself.

Q. How many men were there in a squad?

A. Five; I had ten men and myself. Quite a number of the people there were boys, and there didn't appear to be much excitement just then.

Q. What time was that?

A. A little before twelve o'clock.

By Senator Reyburn:

Q. What were they, railroad men?

A. Yes; a number of them. Some I knew.

By Mr. Lindsey:

Q. Could you mention their names?

A. One I recollect now. I knew him to be a railroad man. I had a conversation with him. It was Samuel Muckle. I talked with him. The leading men of them seemed to be disposed to keep the peace. They didn't want any trouble with the police. We didn't anticipate much trouble then.

Q. How many were there?

A. One hundred were there, but a number of those were spectators, who had just come from curiosity.

Q. How many were engaged in the strike?

A. I can only judge of the number actively engaged in the strike, from the number of persons that interfered with the first arrest that we made. That occurred when Mr. Watt attempted to open the switch to let the train out. That is where the first trouble commenced. As soon as he did that, a man named McCall, and another man named Davis, both of whom have been tried in the courts since—they jumped on to the switch, and one of them struck Mr. Watt. When I saw that, I was at the other switch. I ran down, and after considerable trouble, we succeeded in arresting McCall and in taking him down to the watch-house. Then probably there were fifteen or twenty persons that appeared to take an active part in preventing McCall from being arrested. They seemed to be very anxious to have us let him go. There were a number of stones thrown, and some of my officers were hit. I saw a number of stones thrown, and it was principally the work of boys. The railroad men wanted to persuade us to let him go, but we finally got him

down to the watch-house. He resisted very stoutly. None of the railroad men attempted to use violence at that time.

Q. You placed him in the lock-up?

A. Yes; at the Twelfth ward station.

Q. How many of your men remained there on the ground?

A. After we locked him up we came right back there again.

Q. What occurred then?

A. Mr. Watt left then and went to get more men. Along about one o'clock, I judge, there were some five or six men came, in charge of officer White, of the mayor's force, and went on out to East Liberty, and my impression is that Mr. Watt went with them.

Q. How many men were with officer White?

A. Five or six men—also men dropped from the rolls. Then three or four—probably more—there may have been ten—came to my assistance and remained with me at the crossing.

Q. How long did you remain at the crossing?

A. Until about three o'clock. In the meantime there did not appear to be any effort made on the part of the railroad authorities to move any more trains after this assault at the switch, and my impression was at the time that they had given the matter up just then. There seemed to be a general disposition on the part of the railroad employés—the men not on strike—to rest easy, as it were. They didn't want to work. I heard the men talking with each other. They did not appear to make any effort to work. Those not engaged in the strike actively—they seemed to be in sympathy with those in the strike.

Q. What was the condition of the crowd there from one o'clock up to three o'clock?

A. It kept on increasing.

Q. How was it as to being demonstrative or boisterous?

A. There was no trouble there after this assault on Mr. Watt, because no effort was made on the part of the railroad officials to run out trains.

Q. Where did you go when you left there?

A. I telegraphed to the chief, in town, from the Twelfth ward station, that things were at a stand-still; that there was no attempt on the part of the railroad men to run out trains, and that the men were still stationed at the crossing, and he instructed me to place the men in charge of officer Fowler, and to come in to the central office. I did so after three o'clock.

Q. Did you go out again?

A. Not that afternoon.

Q. Did you receive any further instructions?

A. Not that day. The men remained there that day and night—all night.

Q. Were you present when Mr. Watt came to consult with the mayor?

A. I was in the office.

Q. Did you hear the conversation?

A. No.

Q. What did Mr. Watt tell you that time in the presence of the mayor?

A. I do not think the mayor was present at that time. It was in regard to what I was going out there for. He told me a few of the men were on a strike, and that they would probably undertake to interfere with the running of the trains, but he did not anticipate any serious trouble. He thought that a few men would be sufficient. He did not think it would amount to anything, and said that the presence of a few men would stop the whole thing. He looked on it very lightly at that time.

Q. After Mr. Watt went away it was that Mayor McCarthy gave you instructions?

A. Yes.

Q. What did he tell you to do?

A. He told me to collect as many men as I could get.

Q. Of the force on duty?

A. There was no force on duty.

Q. From what source were you to collect them?

A. He told me to get as many men as I could get. He meant the office men. But they were only on duty at night, and at this time none of them were about except the chief of detectives, Mr. O'Mara, who was busy, I believe. I so reported to the mayor. I told him I could get a number of the men who were dropped from the rolls. He told me to go ahead and get them.

Q. How many of those men were there then?

A. I suppose there may have been twenty or twenty-five.

Q. You selected ten of them?

A. I thought that would be a sufficient number on account of what Mr. Watt had told me.

Q. You could have got more if you had wanted them?

A. Yes; I did get more afterwards. I think ten more came out. Of course we could not get those men and bring them into service as our men in actual service, because those men had been dropped from the rolls, and it was only those willing to go on duty or not.

Q. But plenty of them were willing to go?

A. Yes; they showed a willingness to go.

Q. When you got to Twenty-eighth street, how many men were engaged there then in preventing the trains from moving?

A. The first intimation I had of any men, who were going to prevent trains from running, was when Mr. Watt was assaulted, and then I should judge that those men actively engaged, numbered, probably, ten or fifteen—that seemed to be the leaders.

Q. When you undertook to arrest McCall, how many men took his part?

A. I suppose ten or fifteen of those men gathered around us, and wanted us to let him go.

Q. Did you arrest all of those who undertook to take McCall's part?

A. They did not use any violence at all. McCall appealed to them, and asked them not to allow him to be arrested, that they were there for the purpose of preventing the trains from running, and that they were not surely going to allow him to go to the watch-house, but there was not a man of them that attempted to interfere with the officers. The only interference was some stones thrown from the hill-side around. I saw some of them thrown, and most of them by boys.

Q. I understand, after you returned from the lock-up, you found the crowd still assembled at Twenty-eighth street?

A. Yes.

Q. How large was it then?

A. It was increased then, I estimate, to about the number of two hundred people, women, and children, and boys, and men.

Q. What were they doing at that time?

A. They were just standing around there chatting and talking among themselves. The excitement was still increasing.

Q. No effort was made to start the trains from that time until three o'clock?

A. When those men came from the office—the second force—Mr. Watt went up to Torren's station. I believe there was no person there that appeared to make any effort to do anything. Mr. Fox, the chief of the Pennsylvania railroad police was there, and I was under his instructions to do anything he wanted done. From that time, until I left, no effort was made on their part to run out trains east. There was an attempt made after I left to run trains out, but of course I did not see that.

Q. Did you command the crowd to disperse?

A. We undertook to keep the crowd off the tracks, but our force was not sufficient. As soon as we would get one track cleared, they would come in on the other. It would have required at two or three o'clock—it would have required a hundred men to clear the tracks, and do it effectually, and I did not have the necessary force to do it with. They appeared to loiter around there talking, and the crowd kept on increasing.

Q. Did you get any further instructions after you returned to the city and reported to the chief of police?

A. I got no further instructions, I remember, from the chief; he instructed me to turn the force over to officer Fowler, and report at the city hall.

Q. Do you know, of your own knowledge, what were the movements of the police force there during the balance of the day?

A. During the balance of the day the force was increased to, I think, at Twenty-eighth street, thirty men—twenty-five or thirty men—during the evening. They remained on duty all night.

Q. Was there any effort made to run out trains during the afternoon of Thursday?

A. I believe there was.

Q. Were you not on an engine, and were you not driven off?

A. I was not; the officers can be got here that went on that engine.

Q. Will you tell us who they were?

A. Officer Saul Coulston and officer Robert Fowler.

Q. Did you have any further connection with the movements of the police?

A. Not in the capacity of commander or leader.

Q. Were you present at any of the disturbances after that?

A. I went through it all, backward and forward, around the city, in the capacity of an officer.

Q. Were the police, to your knowledge, reinforced in the morning of the 20th—Friday morning.

A. No, sir; the police force was not reinforced until Tuesday morning—the following Tuesday—that is, were not organized. Then the regular force was filled up and organized by the committee of safety. But a number of the men who were called on on Monday and Sunday responded. But the regular organization did not take place until Tuesday.

Q. They responded whenever the calls were made?

A. A number of them responded on Sunday, after the fire was going on.

Q. Was there any difficulty, so far as you know, in reinforcing the police force?

A. I know, from my own experience, that there was considerable difficulty in bringing the men dropped from the rolls when there was no trouble,—in bringing them to the front after the trouble commenced. A great many of them objected to going on duty.

Q. Why?

A. I suppose they looked on it in this way. I inferred this from the tone of their conversation—that they were discharged—that the councils had thought proper to dispense with their services when there was no trouble, and that, when they were in trouble they did not propose to put their heads

into the halter. I know one of them left my squad—or two of them. One of them did not reflect that he might be taken to where he would get hurt or get hit with a stone. He left and the other left.

Q. What reason did he give?

A. He simply left.

By Senator Reyburn:

Q. These men were not organized at all?

A. They had been dropped from the rolls the week previous. They were not bound in any way to the city.

By Senator Yutzy:

Q. Did not a demand have to be made on them?

A. No, sir; I simply told them. Those that wanted to go, fell into line, and marched out as volunteers.

By Mr. Means:

Q. They could leave as soon as they wanted?

A. Yes; the same as any other citizens. They were not under pay—not under pay at all.

By Senator Yutzy:

Q. Did you not have the right from the mayor to demand them to go with you?

A. I did not know I had a right any more than I could command you to assist me.

By Mr. Lindsey:

Q. Did you get such instructions from the mayor?

A. At the time we went out we did not expect any such trouble.

Q. But did the mayor give you instructions to demand them to go with you?

A. He did not think of it, and I did not either. I thought that the presence, as Mr. Watt told me—that the presence of five or six men would have the desired effect.

Q. Did you make any report to the mayor, during the afternoon?

A. I reported to the chief of police.

Q. That is the only report you made?

A. Yes, sir.

Q. Who was he?

A. Philip Demmel.

By Senator Yutzy:

Q. Do you know of an order, given by the mayor to his officers, to compel men to serve on the police force, during those troubles?

A. I do not know of any order of that kind. I know of orders given by the mayor to summon all the men that had been dropped from the rolls, and to get them organized with the men we had, and go on duty. A number of them responded. That was on Sunday.

Q. What do you mean by summoned?

A. Just notified them.

Q. Compelling them to serve?

A. I did not understand it as compulsory at all. I did not think it was.

By Mr. Lindsey:

Q. It was simply a call for volunteers to go out?

A. Yes, sir.

Q. Did you state to them anything about their pay—as to how they would be paid?

A. I do not know as I stated anything to them probably the first day, but the understanding was after they got out there that Mr. Watt was responsible for the pay of these men.

Q. The mayor did not make any call on the night police to go out there at all on Thursday?

A. Not on Thursday. The night men were not there.

By Senator Yutzy:

Q. There was no effort made, that you know of, to get the night men out there?

A. There was no apparent necessity at that time. The night force went on duty on Friday night, and they remained on duty in and around the city hall until the trouble was all over.

By Senator Reyburn:

Q. What do you mean by that?

A. Going out in squads from the city hall wherever they were required to go.

By Senator Yutzy:

Q. Did they serve during the day on Friday?

A. I do not recollect that they did. I cannot say that.

By Mr. Lindsey:

Q. Did they serve during the day Saturday?

A. I think they were on duty from Friday night until the trouble was all over. That is my impression. I cannot be positive, however.

Q. The night force numbered one hundred and twenty?

A. One hundred and sixteen men we had left for the whole city.

Q. Were any of that number detailed to go to the depot or to that section of the city?

A. On Thursday?

Q. Yes; or on Friday or on Saturday?

A. The men were on duty continually Friday, and on Saturday all the men were out.

Q. Where?

A. In the neighborhood of Twenty-eighth street, and along where the trouble was.

Q. How many were at Twenty-eighth street on Saturday?

A. I cannot say.

Q. How many on Friday?

A. That I cannot say. I suppose the chief would know.

By Senator Reyburn:

Q. You were on duty that day?

A. I was on duty continuously from that time until the trouble was over.

Q. When you talked with those men, what reason did they give you. You have said you talked with one?

A. They assigned as a reason for striking that it was on account of the double-headers, slim pay, and so forth. That the men were starving, and all

that kind of thing, and that now they proposed to reduce the force, and compel one crew to run two trains, and they did not propose to do it. Various reasons were assigned.

Q. Did he express any intention to use violence?

A. He did not. He and a number of the others had considerable influence over the men, and no violence was to be used at all. It seemed that the men not in the strike were in sympathy with those that were, and that no trains would be run out.

By Senator Yutzy:

Q. When was this?

A. It was after Mr. Watt was struck.

Q. Did he take any part with them?

A. No, sir.

Q. How many men were arrested in that crowd on Thursday in the vicinity of the trouble?

A. McCall was the only one I arrested. I left about three o'clock. While I was there no other act was committed by any person in the party, and no effort was made by the railroad to run out trains, and we were simply there under the instruction of the railroad men.

Q. You do not know of any others being arrested that day in that vicinity?

A. I do not.

Q. Nor on Friday in that vicinity to your knowledge?

A. On Friday morning, I think, the military was out with the sheriff and his posse.

Q. But answer my question?

A. No.

Q. On Saturday?

A. On Saturday, no, not on Saturday. The military were in charge of the railroad property on Saturday.

Q. Did you or any other officer that you know of have a warrant in his hands for the arrest of some ten or twelve men?

A. Yes; I had a warrant for the arrest of ten or twelve men that were interfering with the railroad employés.

Q. You had the names of those parties?

A. Before the warrants were served they were re-called from me.

Q. By whom?

A. The information was taken away by the attorneys of the railroad company.

Q. Did they recall them?

A. Yes.

Q. From you?

A. Not the warrants; but I was notified by the mayor that the information was taken from the office, and that the matter was placed in the hands of the sheriff.

Q. Did he instruct you to return the warrants?

A. The warrants were null and void then when the information was taken away. The warrants were transferred to the sheriff.

By Mr. Means:

Q. Did you hear anybody make any threats against the railroad officers?

A. Well, Davis jumped on the switch, and swore that no trains should go out, that he would die in his tracks first. Those were the only threats I heard on Thursday.

Q. Were those directed against the railroad officers or any of their employés?

A. The threats were against the running out of the trains.

Q. Do you know anybody going to the officers of the Pennsylvania Railroad Company, and advising them to leave the city for fear that they would suffer violence?

A. Not to my own knowledge.

Q. You did not hear anybody make such threats?

A. No.

By Senator Yutzy:

Q. When did you first get the warrants for the arrest of those men—what day was it?

A. It seems to me the warrants were issued on Thursday afternoon or Friday morning, but I am not positive about that. I can refer to the warrants and see.

Q. How long did you hold them before you got notice that the information was withdrawn.

A. I think the warrants were held by me—I am not positive about the time that they were issued to me—but it seems to me that the warrants were in my hands; just one day and night.

By Senator Reyburn:

Q. Were not your instructions to quietly take those men?

A. My instructions were to quietly take those men up. They were my instructions. At the time the warrants were issued there was considerable excitement, and the instructions I got in relation to it were that after the excitement allayed somewhat, the warrants could be quietly served without bringing about a conflict, and owing to the pretty slim police force, it was considered wise to wait until the trouble would be over.

By Mr. Lindsey:

Q. Who gave you those instructions?

A. The mayor—the chief of detectives, I think it was. I do not say the mayor, but one of my superior officers, I know it was.

Q. Who was the chief of detectives at that time?

A. Mr. O'Mara, I believe.

By Senator Reyburn:

Q. Your instructions were to wait until the excitement was allayed?

A. Yes.

Q. And not to go after your men that night after the men had retired to their homes, and take them up quietly, and take them to the station house?

A. My impression is, that the men did not retire to their homes on that day or night; the crowd kept there all night, or staid around the tracks at Twenty-eighth street, and also at Torrens station.

By Mr. Lindsey:

Q. Was any effort made by the police to disperse the crowd during the night?

A. I was not there.

By Senator Reyburn:

Q. Could you at any time have taken the men out of the crowd with your force?

A. If they had resisted I could not, I know.

Q. Could you not have quietly slipped up and taken them?

A. Those men I had warrants for were employés of the road, and I did not know anything about their being in any crowd, but it appears they were active leaders. I did not know they were in any crowd, but owing to the state of excitement at the time, it was considered advisable to wait until the excitement was allayed before arresting those men.

By Mr. Lindsey:

Q. Who made the information against those men?

A. I think it was Mr. Watt. That is my impression. The information was drawn by Messrs. Hampton and Dalzell, and sworn to by Mr. Watt.

Roger O'Mara, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. No. 267 Webster avenue.

Q. What was your business in July last?

A. I was chief of detectives of the city of Pittsburgh.

Q. Were you in the city on the 10th of July?

A. Yes.

Q. State what knowledge you have of any disturbance of the peace on that day?

A. The first knowledge I had, Mr. Watt came to the mayor's office that morning. I was in the office at the time. He stated that there was a disturbance, that the men were on a strike, and he wanted to get some officers to go out with him. Our force was reduced shortly before that, and no men were on duty in the day time. We only had one hundred and twenty men, and ten were lamp watchers, and ten were at the station-houses. One hundred and one in all were left for police duty.

Q. State what occurred?

A. I asked Mr. Watt how many men he thought would do, and he said about ten men. I had the men gathered up from those men who were dropped from the rolls, and brought them in there, and told Officer Fowler to take charge of them, and to go with Mr. Watt. I afterwards asked the mayor, and he told me that Mr. McGovern should be placed in charge. I then sent him on up.

Q. Did you have any difficulty in getting the men you wanted?

A. I gathered them in about five minutes. I just asked for ten, and got them.

Q. Plenty of others were willing to go?

A. I suppose so.

Q. Was anything said between Mr. Watt and the mayor about the pay of the men?

A. Mr. Watt told me he would pay the men.

Q. Who introduced that subject of pay?

A. I do not know. I told him these men are not on the force, but we could gather them up if he agreed to pay them.

Q. They went then?

A. Yes; in charge of McGovern.

Q. State what occurred from the time that they went away—whether any report was made to you or not?

A. I understood about the trouble. McGovern told me about arresting this party after he came back.

Q. Was any report made to you of what occurred?

A. I had a conversation with him after he came back.

Q. At what time?

A. About four o'clock on Thursday.

Q. What did he state to you when he came back?

A. He told me he had arrested that party—that Mr. Watt went to turn the switch, and somebody hit him, and he arrested him, and put him in the Twelfth ward station-house. Information was afterwards made against some ten parties.

Q. What time was that?

A. I think on Thursday afternoon, after this arrest.

Q. You say against some ten parties?

A. Yes, sir.

Q. In whose hands were the warrants placed?

A. They were given to me first. A lawyer in Mr. Hampton's office was here. He had them drawn up. I gave the warrants to McGovern. On account of the excitement we proposed to locate the parties in their houses, and to get them there. But the next morning a young man in Hampton's office came in and told me not to make the arrests until further orders. I thought then that the men were going to work, perhaps. I then told McGovern not to make the arrests.

Q. Do you state you told McGovern not to arrest the men, but to get them at their houses?

A. Yes.

Q. How many policemen do you think you could have gathered up that afternoon for duty?

A. I have no idea how many. A good many of them were about there just at the time that Mr. Watt came in and said he wanted some. We might have gotten thirty then. More went out afterwards.

Q. Who sent them out?

A. I do not know. But I understood, however, more men were wanted, and they were sent out.

By Senator Yutzy:

Q. These men that were picked up—these men that had been dropped from the rolls, did they go out on the ground in uniform, or did they go out in citizen's dress?

A. I guess some in uniform and some in citizen's dress. I cannot say whether they were in uniform or not.

By Mr. Lindsey:

Q. Were they armed as usual with maces?

A. I cannot say that.

By Mr. Engelbert:

Q. Usually when you send out a squad, don't you arm them with maces?

A. Yes; but these men were not on the rolls, and I just gathered them up, and sent them out as quickly as possible.

Q. If not armed, they would not have been of much use?

A. No; not of much use, if there was much disturbance, without arms.

Q. You do not know whether they were armed or not?

A. I do not, because I did not go out with them.

By Mr. Lindsey:

Q. Was there any call made on the night force for it?

A. I do not think there was that night.

Q. They were on duty regularly on Thursday evening, I suppose?

A. Throughout the city, yes.

Q. The one hundred and one men were on service throughout the city proper?

A. On Thursday night, yes.

Q. None of them went to the scene of this disturbance?

A. Not to my knowledge, except the men on in that district.

Q. How many men were regularly stationed in that district?

A. I suppose about ten men were on in that district—the third district—from the Union depot to Twenty-eighth street. The lieutenant in charge of the district may have had his men there.

Q. Who had charge of that district?

A. Henry Coates, I think. I think he had charge of it.

Q. Were any of them sent out there on Friday morning—any of the night force?

A. I do not think they were, to my knowledge.

Q. Or during the day Friday, at any time?

A. I do not know that they were.

By Mr. Larrabee:

Q. Were you at the scene of the disturbance at any time during the trouble?

A. I was out there on Sunday morning early, along the line on Liberty street. There was a good deal of trouble about the city, and we were gathering the police in and sending them out throughout the city. We were afraid that the mob would break into the gun shops. The excitement was so great that I thought they might attempt to break into places, and so I gathered the men up and sent them to different places.

By Mr. Lindsey:

Q. If the mayor had made a call for policemen on Thursday afternoon, how many men could he have raised?

A. I do not know. I have no idea.

Q. Would there have been any difficulty in raising any number of policemen, do you think?

A. There might have been some. That call was made through the Sunday papers, and a good many responded.

By Senator Yutzy:

Q. How many officers and men does the night force consist of?

A. The whole force was one hundred and twenty men—nine of them were engaged in the station-houses, and ten of them watched lamps—patrolmen, detectives, and all. That was for the whole city.

By Mr. Lindsey:

Q. How many men were discharged from the day force?

A. One hundred and sixteen men were discharged. Our whole force consisted of two hundred and thirty-six men, all told. The appropriation ran out, and we had to knock the men off.

By Senator Reyburn:

Q. What reason was given by the officer for not serving the warrants? He had them one night, had he not?

A. We did not get the houses all located. It seems they were out that night, and we could not get them served, and the next morning we were ordered not to serve them. The case was put into the hands of the sheriff on Friday, I think.

By Senator Yutzy:

Q. While you had those warrants for the arrest of those ten men, could you not have arrested them?

A. I do not think, with the few men we could have got, that we could have arrested them out there, on account of those men out there. It might have made the thing worse if we had attempted to arrest them on the ground. I thought it was better to arrest them away from there.

Q. Did you attempt to locate them at their homes that night—you did not go to their homes?

A. No; we did not go to their homes, but we got information from the parties who made the information.

By Senator Reyburn:

Q. Did you have any arrangement to watch those men?

A. From all accounts, the men seemed to be in the crowd. We had no one watching their houses that night, because we did not find out that night where they all lived.

Q. Did you not have men to watch these men or follow them around?

A. No, sir; not to my knowledge.

By Senator Yutzy:

Q. Didn't you see some of these men out there on Friday?

A. I did not. I was not out there.

By Senator Reyburn:

Q. How did you expect to know that these men went to their homes, if you did not follow them or have them watched?

A. The warrants were withdrawn before we located the men.

Q. What efforts were you making to locate them?

A. We were making inquiries from parties who knew them.

Q. Were you trying all the time to find out where they were?

A. We asked the parties who made the information. We wanted to locate them all, and to make the arrests. We did not expect to arrest them in the crowd. We thought we could not do it there.

By Mr. Engelbert:

Q. Did you have any spotters out in the crowd at all?

A. Several of the officers there saw the different parties, and what they did. Or, if information was made against them, we had them arrested and tried. Some of them are not tried yet. Any of the officers who knew any men, or saw them do anything, afterwards made information against them.

By Senator Reyburn:

Q. The officers reported to you, did they?

A. Some of them.

By Mr. Engelbert:

Q. You being the chief of detectives, did you send any men out to spot those parties?

A. No, sir; after Friday, the thing was taken out of our hands. If any party gave information in regard to what was done, we would have them arrested. The detectives were out. We made inquiries of people as to what they saw other people do.

By Mr. Larrabee:

Q. Was it not on Saturday morning that you considered the complaint withdrawn upon which the warrants were based?

A. I think on Friday, it was, that I was notified to hold them until further orders.

Q. Was it not on Saturday morning instead of on Friday morning?

A. My recollection is, that it was Friday.

By Senator Yutzy:

Q. Were you present at any time during the destruction of the property of the railroad company by fire?

A. I was along the line Sunday morning, in Liberty street. I drove along with the mayor in a buggy. My mother and sister both lived back of the Union depot, and they were burned out. I tried to help them get their things away.

Q. During the fire, were you ever called on by the chief of the fire department, or by anybody connected with the fire department, to protect them in their attempts to put out the fire?

A. No, sir.

Q. Do you know of any other officer of the police force being called upon to assist them?

A. No.

By Senator Reyburn:

Q. Did you take any measures to prevent this destruction?

A. We could not do anything after the first firing was done. With what police force we had, we could do nothing at all. They commenced breaking into houses, and gun stores, &c., and we tried to prevent them from doing that.

By Senator Yutzy:

Q. Did you see them breaking into any gun stores?

A. Yes; on Penn street I saw a couple of men breaking into a pawn shop. I heard of the mob coming, and I hurried up the officers, and placed men in front of different gun stores, but on Wood street they got into one in spite of the men. Before that, we had notified the different parties to put their guns away, that the excitement was very great, and that the soldiers had fired upon the men, and that they would be apt to break into places to try to get arms. I notified the different parties to put their goods away that the mob should not get them.

Q. Who composed that crowd—did you recognize any of them?

A. They seemed to be working men—men that came from the south side. One squad that came from the south side—I saw them going down the street—a couple of young men—the same that I saw marching down Penn street. Some of them have been arrested since.

Q. You think the men were principally from the south side who broke into the gun stores?

A. About the time that they broke into them, at different places, I had squads of men. On Fifth street a couple of young men came down firing off guns, and I went to the mayor's office for more men, and I was not there two minutes when word came that Brown's gun store was broke into. I then got some men and placed them in front of the door.

By Mr. Lindsey:

Q. Did you succeed in keeping the crowd out then?

A. Yes; but it was not much good then, for the things were gone. They had ransacked the place.

By Mr. Larrabee:

Q. What time was that?

A. It was on Saturday night. It was just about dusk when this party came down, and went in on Liberty street and on Penn street. I was going up that way towards Twenty-eighth street, when I saw this mob coming down. I followed on down to see what they proposed to do.

By Senator Yutzy:

Q. You had no men stationed about any of these gun stores before they broke into them?

A. Yes, sir; at Brown's, on Wood street.

Q. Were they uniformed men?

A. Yes; on the regular city force. I sent them to the places where I thought they were most needed, and I tried to prevent the mob from getting fire-arms.

Charles McGovern, re-called.

By Mr. Lindsey:

Q. Were those men that you took to Twenty-eighth street dressed in uniform?

A. No; just a few of them had vests on with uniform buttons on. And all of them that had badges about them, I had them place them on their coats in order to show that they were officers.

Q. Were there any that had neither vests nor badges among them?

A. I think there were. Some of them did not happen to have anything with which to show that they were officers.

Q. Were they armed in any way?

A. No.

Q. They had no maces?

A. No; they were taken out in a hurry from the city hall—just taken out on the spur of the moment.

Q. What time were those warrants placed in your hands for the arrest of those parties?

A. My recollection of the warrants—I could very easily give you a definite answer if I had time to go to the office and refer to my memoranda. Then I could tell you. But I think it was Friday. That is my impression. I think it was Friday morning or Thursday afternoon.

Q. How long did you keep them in your possession?

A. A day, I think, and a night. That is my impression.

Q. Did you make any effort to arrest the parties?

A. We were so busy on other matters that there was no effort made, any more than to make inquiries and locating the parties. We did not anticipate any trouble in getting them after the excitement was somewhat allayed.

Q. Did you go to their houses during the time that you had the warrants?

A. No.

Q. Did you try to spot the men among the crowd?

A. No; I cannot say that I did, because it was a secondary consideration in regard to those men. The information was interfering with railroad employés, and we considered it a light matter towards what was going on at

Twenty-eighth street—the riotous proceedings. We were kept busy that day and night trying to keep order.

Q. Those men were all participating in the riot as leaders when you first went out there?

A. I do not know that of my own knowledge, but I, of course, inferred it from the fact of the information made against them.

Q. Did you know any of the ten or twelve men that stood around, trying to prevent the arrest of McCall?

A. None of them tried to prevent the arrest of McCall. I knew some of them by face and a few by name.

Q. Were any of those men's names included in those warrants?

A. I believe they were, but I did not have those warrants at the time.

Q. You did not get them until that evening or the next morning?

A. I think it was the next morning.

Q. Then you did not go up to arrest them when you got the warrants?

A. Not immediately. It was considered a matter of judgment at the office by the mayor, and, of course, I was under his instructions.

Q. You followed the mayor's instructions?

A. Not specially his instructions, but chief O'Mara's instructions. I considered it would be easier to serve them afterwards than at the present time.

By Mr. Engelbert:

Q. When you summoned those men to go out, you did not provide them with maces and equipments as you usually do?

A. The police force of this city provide everything for themselves. If they want to carry a pistol, they must provide it. Our maces we buy, and our clothes we buy. The city supplies nothing. At one time the city supplied those things, but now we have got to supply all those things ourselves. We did not think it would be necessary to have them armed at that time.

Q. At the time of a row, if the men are armed, it is all right, and if they are not armed, it is all right, too?

A. It was a sudden summons, and nobody understood the extent of it. Of course, the gentleman who summoned us, said he did not anticipate any serious trouble at all; that he thought that our official appearance would be sufficient; that the presence of the officers there would be all that was necessary.

Q. But you, as an officer, did not exactly believe in official appearance, without something to knock down with in case of a row?

A. In case of a riot we ought to be provided with arms; but there was no riot at that time, nor did we anticipate any.

[A paper exhibited to witness.]

Q. State whether this is the information made upon which the warrants were issued?

A. I never saw it.

Q. What did you do with the warrants?

A. They are still in the office.

Q. You returned them to the mayor?

A. No; they are still in the closet at the office. I think they are there yet. I may have destroyed them.

Q. Do you know the date of the warrants?

A. I cannot remember the date. I told you I thought it was Thursday evening or Friday; that would be the 19th or 20th.

John J. Davis, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. No. 114, Sixteenth street, on the south side.

Q. What was your business in July last?

A. I was clerk to the chief of police.

Q. Where were you on the 19th day of July—Thursday?

A. At the mayor's office, and at the railroad.

Q. State if you have any knowledge of the disturbances that occurred?

A. I was not at the railroad during the time of the disturbances.

Q. Did you receive information of them?

A. We got a second dispatch, or rather a young man came from the ticket office asking for fifty men. I was present in the office at the time.

Q. What time did you receive that dispatch?

A. Between twelve and one o'clock.

Q. By whom was it signed?

A. I cannot say now. It was brought by a young man at the ticket office?

Q. You mean the railroad ticket office?

A. Yes, sir.

Q. Asking for fifty men?

A. Yes, sir.

Q. To whom was it addressed?

A. To the mayor. I started out and hunted up all the men I could find, and during my progress I saw the mayor, and he gave me orders to hunt up all the men I could, both the old men and the men that had been dropped. I met him on Fifth avenue.

Q. Did you inform him of the dispatch?

A. I did, and he ordered me to hunt up all the men I could possibly find.

Q. How many did you get?

A. In the neighborhood of twenty-five or twenty-eight that afternoon. I can not say exactly.

Q. What did you do with them?

A. Some went out on a train, and some walked out. I went out with one squad, with Mr. White. We saw Mr. Watt, and he suggested the sending of the men to Torrens station, six or eight of them; the balance of them stayed at Twenty-eighth street.

Q. What time did you meet the mayor on Fifth avenue?

A. I suppose five minutes after the dispatch came. I started out and went down to the station-house to see if any officers were there, but I found none there. I then went two squares, and on my way coming back, I met the mayor on Fifth avenue. It was not over five or ten minutes.

Q. You informed him about the dispatch calling for fifty men?

A. Yes, sir.

Q. Where was he during the rest of that afternoon?

A. As I stated before, I went to Twenty-eighth street, and stayed there all that afternoon.

Q. Did you have any communication with him that afternoon?

A. No; everything was quiet at Twenty-eighth street that afternoon. My instructions were to communicate if anything was wrong. I went to Torrens station about four o'clock. Quite a crowd was there.

Q. What was the crowd doing?

A. They were watching to see if any trains would go out. It was curiosity.

Q. How many were there?

A. One hundred or one hundred and fifty, while I was there.

Q. Of whom was this crowd composed?

A. Of laboring men, and railroad men, and business men, and women and children.

Q. All mixed together?

A. Yes, sir.

Q. Were the railroad men noisy and boisterous?

A. Not that I saw.

Q. Were they stopping the trains?

Q. The only one I saw stopped was at Twenty-eighth street.

Q. What time was that?

A. I heard the men saying it was three-forty, schedule time.

Q. They stopped it?

A. They started out, and three or four officers were put on the engine. After they started, some parties got on the track and waved their hands, and the

engine stopped and the engineer jumped off. The officers were still on the engine after the engineer got off.

Q. You simply called for volunteers when you went out to hunt up those men?

A. Only one man refused to go.

Q. Was any demand made on the night force that afternoon?

A. The mayor instructed me to hunt up all the men I could find, both the men on duty and the men dropped, and I did so.

Q. The men on regular duty went out, did they?

A. Those that I found. At that time we only had one hundred and twenty men, including lamp-washers and station-house keepers.

Q. How many men did you get that afternoon on actual duty—the night force?

A. To my best recollection, five or six, but I won't be positive. I only sent in the bill for the men not on regular duty—twenty-nine the company paid for—for those men on duty we sent in no bill at all. It was only for the men not paid by the city.

Q. How long were those men on duty there?

A. Until morning. They reported at the office between seven and seven and a half o'clock.

Q. Friday morning?

A. Yes, sir.

Q. All of them?

A. Some went home for breakfast.

Q. Were they sent on duty again?

A. They were sent out to the depot in the morning, but they came back and said they were not wanted, that Officer Fox had all the men he wanted.

Q. Who was he?

A. He has charge of the officers around the depot.

By Senator Reyburn:

Q. He is an employé of the railroad?

A. I think so.

By Mr. Lindsey:

Q. Did he tell you that he had all the men that they wanted?

A. The men I sent up to the depot reported that to me.

Q. Who reported that?

A. Officer William Johnson. Several of them, I think. Officer Crosby. The men came back and they said that they were not wanted. He kept three at the depot, M. A. Davis, Matthew Goddard, and Ernest Ehring.

Q. Where was the mayor during the night?

A. When I came back in the evening, about seven o'clock, I brought the men to supper, and after they had supper, I sent them out again, and I went to the office. I am not positive whether I saw the mayor there or not. I am not positive about that. The next time I saw him, was in the neighborhood of twelve o'clock, at the office.

Q. Thursday night?

A. Yes, sir.

Q. Where did he remain during the balance of the night?

A. In the office. I stayed there also all night.

Q. Were you out during the night?

A. I went out and stayed until about ten o'clock, and then I came back.

Q. Did the mayor have any communication with the men out there during the night?

A. Not that I know of.

Q. Where was the chief of police during the night?

A. I cannot say that.

By Senator Yutzy:

Q. You say you sent the men back on Friday. Where did you instruct them to go—to the Union depot or to Twenty-eighth street?

A. To the Union depot. I directed them to ask if they were wanted, and they came back and said that they were told that they were not wanted; that they had all the men they wanted.

Q. Do you know where the mayor was on Friday?

A. I cannot answer that, because I was at Twenty-eighth street, almost all day on Friday. My instructions were to go there, and if I saw a disturbance, to telegraph immediately to the city to the office.

Q. You did not see him on the ground at any time?

A. No—not on Thursday nor on Friday.

By Senator Reyburn:

Q. While you were there, on Friday, did you see any effort made to take possession of the tracks?

A. No; no effort was made at all.

Q. You saw no disturbance at all on Friday?

A. No.

Q. Or Saturday?

A. No disturbance, until after the trouble about the firing.

Q. Was any effort made during Friday to run out trains?

A. Not while I was there—not on Friday.

Q. The crowd was there?

A. Quite a crowd was gathered there. They appeared to be going and coming all day.

By Mr. Lindsey:

Q. You saw no effort made on Friday. How long were you there on Friday?

A. I suppose I was there three quarters of the day—walking all along, and seeing what was going on.

Q. There might have been an effort made, and you not have seen it?

A. Yes, sir.

By Senator Reyburn:

Q. It appeared to be an orderly assemblage?

A. Yes, sir.

By Mr. Lindsey:

Q. What were they doing?

A. Standing together and chatting—talking.

Q. Standing there all day?

A. They appeared to be coming and going.

By Mr. Means:

Q. Did the subject of conversation appear to be the stopping of the trains?

A. I did not hear them.

By Mr. Lindsey:

Q. What were they there for?

A. For curiosity, I suppose.

Q. Where is this William Johnson that you spoke of?

A. He is on the police force now.

Q. What is Crosby's first name?

A. George.

Philip Demmel, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. No. 26 Twelfth street, in the south side.

Q. What was your business during last July?

A. I was chief of the police of Pittsburgh.

Q. State whether any knowledge was brought to you in regard to the disturbance at Twenty-eighth street, on the 19th of July, and if so, state what time it was.

A. I came to the office sometime after dinner, and went into the mayor's office, and I was told that some of the railroad employés had gone on a strike at about Twenty-eighth street, and that Mr. Watt had sent for some

policemen, and that about ten or a dozen had been sent out in charge of Detective McGovern. A short time after a dispatch came in signed by Mr. Watt, asking for fifty more men. I went on the street myself then. Our police force, of course, was in bed. They did duty at night. I went on the street, and saw a few of those discharged men, and asked them to go. Some went and some did not. I did not hear anything more of it until evening, when I came in from supper. They reported then that one man had been arrested, and after that everything was quiet. The men got their suppers, and we sent them out again. There were only a few that would not go. In the morning they came back—those who were on duty all night—and some of them said that the railroad officers had got as many men as they thought sufficient, and that the military was called out. It was thought at the mayor's office then that the services of the police would not be needed any longer.

Q. That the services of the police would not be needed any longer, you say?

A. Yes, sir.

Q. Did the mayor say that?

A. I do not remember that the mayor said that, but——

Q. That was the decision you came to?

A. Yes, sir.

Q. After a consultation with the mayor, was it?

A. I cannot recollect any direct consultation with the mayor.

By Mr. Reyburn:

Q. Was he there?

A. Yes, sir; but I am satisfied that he was of the same opinion.

By Mr. Lindsey:

Q. Did Officer McGovern report to the mayor during the afternoon?

A. I believe he came in before the rest came for supper, and reported this disturbance—about a man being arrested for striking Mr. Watt, and he then reported all quiet after that.

Q: Did he report to you by telegraph?

A. No; yes—I believe they did telegraph this arrest first from the Twelfth ward station.

Q. You have arrangements at the station-house to receive reports from all parts of the city, have you not?

A. From eight different parts of the city—yes, sir.

Q. From that portion of the city?

A. Yes, sir; there is a station-house within two blocks of Twenty-eighth street.

Q. Did you receive any report from Officer McGovern during the afternoon?

A. Yes, sir.

Q. What was the nature of it?

A. That all was quiet—that this man had been arrested for striking Mr. Watt.

Q. Was there a dispatch sent you, or communicated to you from Mr. Watt during the afternoon, that he wanted fifty more men?

A. Yes, sir.

Q. What time was that?

A. I do not remember—perhaps an hour after the first squad of police went out.

Q. What did you do?

A. I stated that before. I went out on the street, and saw some of the discharged men.

Q. Did you raise the fifty men you wanted?

A. No, sir; I did not raise twenty men. I did not raise seven men, no more than that.

Q. Could you not have got fifty men at that time?

A. No.

Q. Did you make any call on the night force?

A. No.

Q. Did you make any call for police—any demand for a posse of police?

A. Of the regular force?

Q. Or any force?

A. I simply went on the street, and around Fifth avenue and Smithfield street, and asked these men if they would go.

Q. Did you have any conversation with the mayor?

A. I think the mayor handed me this dispatch.

Q. Did he make any call for a posse of police?

A. No; no more than telling me to do as I did—to see if I could get the men.

Q. Did he tell you how the men were to be paid?

A. I do not know. That was one objection with these men. They wanted to know about their pay, and whether it was going to be a regular thing. I could not satisfy them about that, and they did not care much about going.

Q. You just went around and hunted up the men that would go voluntarily of their own accord?

A. Yes; after getting this report from the Twelfth ward station-house. We thought that fifty men would hardly be necessary anyhow; but we could not have raised them if we had wanted them.

By Senator Yutzy:

Q. Could you not have got them if you had commanded them?

A. We could not command them any more than I could command you.

Q. Could not the mayor have commanded them?

A. He had no right to command them.

By Mr. Lindsey:

Q. He did not tell you to command any men to serve.

A. No.

By Mr. Dewees:

Q. What was the reason you could not get these men to go out?

A. Well, we had a reduction of our force a short time before, and some of these men thought that they were not treated right, and when I asked them to go out, they wanted to know if they would be placed on the force permanently. Of course I could not satisfy them, and they did not want to go.

By Mr. Means:

Q. At any time you were there, did the firemen call on you to assist them?

A. I saw the firemen only on Sunday, and it was understood then that the mob would not allow them to put water on the property.

Q. Did they ask the police officers to help them?

A. I do not know that they did. I was out there with the mayor, and we had too few men. The firemen would change their place time after time as the fire came down. A man came and said that they wanted to throw water on the fire, indicating a car burning, and the mayor said: "All right, we will protect you." We immediately formed the men to protect them, but afterwards they did not throw water on that fire at all.

By Mr. Lindsey:

Q. Where was the mayor during Thursday afternoon?

A. I saw him in the office, I think, once or twice.

Q. Where was he during Thursday night?

A. I think in the office.

Q. Did you receive any instructions from him during the night?

A. I went to him during Thursday night to place one of our lieutenants in charge over the force at Twenty-eighth street—Lieutenant Coates. It was his suggestion, I believe.

Q. At the mayor's suggestion?

A. Yes; or mine, and he agreed with it.

Q. What time was that?

A. About supper time.

Q. Where was he during the day Friday?

A. I remember seeing him in the office.

Q. Did you receive any instructions from him during the day in regard to this disturbance at Twenty-eighth street?

A. No; there was no disturbance there during that day. There was a crowd there, and the military were there.

Q. Where was the mayor during Friday night?

A. I cannot answer that.

Q. Where was he on Saturday?

A. On Saturday he was in the office. In and out as usual. At the time we got the report of the firing he was in the office, I know, because he sent for me and asked me to take a couple of men out Penn avenue, and close all the saloons in the vicinity of this disturbance.

Q. What time was that?

A. I think along about four o'clock.

Q. Four o'clock on Saturday he asked you to take two men out and close all the saloons in what district?

A. You mean what police district?

Q. Yes.

A. The third police district.

Q. Extending over how much space?

A. Over the city in the vicinity of Twenty-eighth street. We closed all the saloons there from Thirtieth to Twenty-fourth street. We then came in and sent another squad out to close the balance.

Q. How far?

A. Down to Eleventh street.

Q. Had you received any instructions from him during the day, (Saturday before this,) in regard to the disturbance out there?

A. No.

Q. The saloons had been open out there until three or four o'clock on Saturday?

A. Yes; they were open at the time we went there.

Q. What time did you arrive there?

A. I can't tell. It was immediately after hearing of the firing. We walked up Liberty street as fast as we could.

Q. You went with the two men, and saw that your orders were executed?

A. We went in and asked these men, and told them it was the request of the mayor to have them close their saloons.

Q. Did they comply?

A. Most generally.

Q. During the day, Sunday, did you receive any orders from the mayor?

A. No; except I was out with him at the scene of action in the afternoon. The mayor was out there before daylight, and I was out there myself. I came in about six or seven o'clock, and got my breakfast, and went out at ten o'clock, and then I found the mayor there.

Q. Did you receive any orders during Sunday night from the mayor?

A. Nothing, except about handling the police, in trying to prevent the mob getting into those stores.

Q. What did you do to prevent that?

A. They called some of the south side police over, and had them doing duty around in places where they anticipated there might be a break made, but there was considerable damage done before the police arrived.

Q. What damage was done before the police arrived?

A. A couple of stores were gutted, on Penn avenue and on Liberty street.

Q. What kind of stores?

A. The one on Penn avenue was a pawnbroker's and the one on Liberty street was a gun shop.

Q. Do you know who broke open the stores?

A. Since then I know of one party that was a leader in it. But I do not know the others.

Q. Were any policemen in the vicinity at the time?

A. No; at that time there were no police on duty. They didn't go on duty until eight o'clock.

Q. Were any policemen on duty throughout the city during the day, Friday?

A. No.

Q. During the day, Saturday, throughout the city, I mean?

A. No.

Q. They were not on duty until eight o'clock, Saturday night?

A. No.

Q. Then these stores were broken open before eight o'clock?

A. Yes; that is, the first two.

Q. When there were no policemen on duty?

A. Yes.

Q. When did the mayor put on any day force, or was there any day force on Sunday?

A. On Saturday night I put a notice, by the order of the mayor, into two of the Sunday papers, to have all those ex-policemen report at eleven o'clock on Sunday, but got very few reports.

Q. How many reports did you get?

A. I do not remember now—not probably over fifteen or twenty reported in time.

Q. Were they placed on duty during Sunday?

A. Yes.

Q. Were there any policemen on duty throughout the city on Sunday?

A. Yes.

Q. How many?

A. Well, the third district had some of the south side police on duty on Sunday night, in the vicinity of Twenty-eighth street, and the police there I brought in on Sunday morning, and got their breakfasts, and sent them out again. Some of them strayed off, of course.

Q. As chief of police, can you not give us the number of policemen on duty during Sunday, in the whole city?

A. I do not think there were more than eighty. That is, we got more men on as it grew later in the day.

Q. This notice you placed in the papers was merely a request for the discharged police force to report at eleven o'clock?

A. Yes; I had the orders, and I think the mayor had consulted with the committee of safety, or some one who assured him they would be responsible for the pay of the police, and would see that the police stayed on.

Q. What time did you get that notice into the papers?

A. It was given to the papers on Saturday night.

Q. Was it published in the evening editions?

A. It was published in the *Globe* and *Leader* of Sunday morning.

Q. By whom was the notice signed?

A. By myself.

Q. As chief of police?

A. Yes.

Q. You say you got very few reports?

A. Very few; that is, at eleven o'clock.

Q. During Sunday night how many police did you have on duty?

A. I had all the old force, and I expect, perhaps, about forty or fifty of the discharged men.

Q. That would make about one hundred and forty or one hundred and fifty men during Sunday night?

A. Yes.

Q. How many did you have on duty during the day—Monday?

A. Well, those policemen came reporting in one after another from Sunday until Tuesday, and they never went off duty at anytime from Sunday night, from the time they went on, until about Wednesday, I guess.

Q. Where did the mayor spend the day—Sunday?

A. Along Liberty street, part of the day.

By Senator Reyburn:

Q. About the scene of the riot?

A. Right there.

Q. What was he doing there?

A. All he could to prevent the depredations. He was with the police; but we could not do anything. He went to Union depot and made a speech to the

mob; but that did not have any effect. They stoned him, and he had to get out.

By Mr. Lindsey:

Q. What time was that?

A. I do not have any distinct recollection of any time that day. It was, perhaps, half an hour previous to the burning of Union depot.

Q. Was he out there on Sunday when the fire was going on?

A. Yes.

Q. The fire commenced out beyond Twenty-eighth street and worked down this way?

A. Yes.

Q. How many men were engaged in burning cars, or in the actual destruction of property there, during Sunday?

A. That is a hard matter for me to say. The track in some places—I suppose there are three or four or five rows—and the freight cars were packed in alongside of one another, and on the top of those cars and in between them, there was a crowd of people all the time. Some of them may not have had a hand in doing any damage, but I think that most everybody that was on the track—of course there were some spectators that didn't have any hand in it—but the majority of the people there would break open a car or gut a car whenever they could. I could not say how many, but a great many, three hundred or four hundred anyhow.

Q. Were those men armed? Had they weapons?

A. I didn't see any weapons except a few revolvers.

Q. As chief of police, I ask you if you do not think you could have taken one hundred policemen, with their maces, or the weapons that they usually

carry, and have thrown them across the track there, and driven back that crowd?

A. No.

Q. Why not?

A. Because the crowd was on all sides, and I would not know how to form the men to do that to have a solid line. The crowd was along the track and in between the cars as much as five hundred or six hundred yards at a time, and they would come rushing in and yelling every way, from below and above.

Q. I ask you if, in your judgment, you do not think that you could have taken one hundred policemen and stationed them across the track in front of Union depot, from the hill down to the block of buildings, and have driven back the crowd as they came up?

A. If I had had one hundred men there that might have been accomplished. I did try it with what men I had.

By Senator Reyburn:

Q. How many men did you have?

A. Not more than fifteen or sixteen together at one time. The policemen, of course, got around among the people, or the mob, and we could not find them.

Q. It was not possible to keep them together?

A. I could not keep them together. In order to get at the men, the policemen would have to divide, and it was such a big mob, we could not keep them together.

By Mr. Lindsey:

Q. Could you not have formed at some cross street, say Fifteenth or Sixteenth street, and then have resisted the crowd and kept them back?

A. On the street?

Q. Yes?

A. Well, the crowd on the street was not so unruly as those on the railroad.

Q. But Sixteenth street runs up to the railroad. Now, could you not have formed the men at Sixteenth street and thrown them across the railroad, with one wing running out towards the hill, and then have kept the crowd back?

A. No; because you could not have got the mob together at any one point—because the mob most all the time extended five hundred or six hundred yards.

Q. To what point did the mob extend, coming towards the city?

A. Nearly into Union depot.

Q. Then could you not have formed at Union depot and kept them back?

A. It would have taken a great many more men than that.

By Senator Reyburn:

Q. Was any effort made at all to get control of this crowd at any time during the disturbance?

A. Yes.

Q. With your fifteen or sixteen men, you mean?

A. Sometimes we had twenty—all the men we had, or that could be got together—perhaps, sometimes, twenty-five or thirty men. They would be getting in among the mob and trying to drive them back.

Q. Had the police authorities no organization or no arrangement to keep the crowd from coming, or did they allow people to come from all directions when they knew a disturbance of this kind was going on—did you have any organization at all?

A. Not a very good organization. The men went out there in the morning, and they had been up all night, and they were tired, and it would have been impossible to keep the crowd back. They flocked in from all parts of the city, and from the country for miles around.

By Mr. Englebert:

Q. In other words, you really had not any organization of the police force?

A. When I went up there, our men were scattered. I took them on the railroad several times, but was unable to do any good. I took them on the railroad in a body, but they could not be kept there any time without being separated.

By Senator Yutzy:

Q. Was any effort made to make any arrests, during this disturbance, of parties engaged in the riot?

A. On Sunday morning, we arrested about one hundred and thirty—that was the beginning of the fire—when they began to pillage the freight cars.

Q. Did you arrest any of the parties that were pillaging?

A. We arrested them coming away with goods.

Q. What did you do with them?

A. We brought them down in the morning, in the "black maria," to the Central station, but Deputy Mayor Butler, I believe, discharged most of them, and fined some of them.

By Mr. Lindsey:

Q. Do you know how many were fined?

A. I cannot tell. I did not stay to the hearing myself.

Q. What is Mr. Butler's first name?

A. Joseph.

By Senator Reyburn:

Q. Your people took these men up, going away with goods?

A. Yes. We put them in the Twelfth Ward station, and then put them in the "black maria," and brought them to the Central station, and heard them there. Mayor McCarthy was up all night, and he was tired, and he deputized Deputy Mayor Butler to hear them.

Q. And he discharged them?

A. Yes; he discharged a good many of them.

By Mr. Engelbert:

Q. Do you know whether those people were citizens of Pittsburgh, or people that had just run in?

A. Some were citizens of Pittsburgh and some were strangers.

By Mr. Means:

Q. Did the mayor or anybody else say to you, at any time, that it was necessary for the railroad officials to get out of town—that their lives were in jeopardy.

A. I never heard any such expression coming from the mayor.

Q. That it was necessary for the railroad officials to get out of town—that their lives were in jeopardy? Was that said to you by the mayor or by anybody else?

A. I am satisfied that I didn't hear any expression like that coming from the mayor, but I heard talk like that on the street.

Q. From whom?

A. Most any of the crowd that would be congregated together would be talking about this thing.

Q. Citizens of Pittsburgh?

A. Yes.

Q. Could you name any of them?

A. Not now. It was the general talk. General Pearson, I guess, was named in such talk more often than the railroad officers.

Q. But you heard that talk about the railroad officials?

A. Yes; that it would not be safe for them to show up.

By Mr. Engelbert:

Q. One question about this plundering and thieving: Were those parties discharged the same day that they were arrested—on Sunday?

A. The same day—Sunday.

Q. Then the arrests amounted virtually to nothing?

A. Yes; except in saving the property of the company, or whoever it belonged to.

By Senator Yutzy:

Q. Was the mayor present when you offered protection to the firemen, at the fire engine, when they proposed to throw water on those burning cars?

A. Yes; the mayor was present. One of the firemen asked him, if he would protect them, and he said yes, and the fireman said, that is what we want. Then they made the attachment, but did not throw any water afterward on the fire.

Q. Did they make any proposal to the mayor, to take an active part himself—to hold the nozzle?

A. No; I do not think they did.

By Senator Reyburn:

Q. Why did they not throw the water?

A. Because, I suppose, they were intimidated.

Q. But when you gave them the protection they asked, did they not make an effort to throw the water?

A. No.

Q. Did the mob make a rush?

A. No; no more than following the engine.

Q. What reason did they give for not throwing the water?

A. I do not know.

By Mr. Lindsey:

Q. Who had charge of the engine at that point?

A. I do not know; I do not know what engine it was.

By Mr. Engelbert:

Q. Did the firemen throw water on private property when it was burning?

A. All the time.

Q. But not on the railroad property?

A. No.

By Mr. Lindsey:

Q. Do you know who the man was who asked protection from the mayor?

A. I do not know.

Q. Did the mob interfere with private property at any time?

A. Not during that day. They did attempt to during that night and also during Sunday night.

Q. What attempts were made on Sunday night?

A. The American house, I think, or some place near it, was gutted, but by that time we had a pretty good force, and we went there and drove them away and arrested some of them.

Q. Who had command there?

A. Lieutenant Coates.

Q. He had no trouble in beating the crowd away?

A. He had some trouble, but he did it.

Q. How many men had he?

A. I went there afterwards, and we had, I suppose, some forty men there.

Q. After the railroad property was destroyed—by that time you had a pretty good police force?

A. Yes; the men were reporting during the day.

By Mr. Dewees:

Q. You stated you had sixteen policemen at Union depot?

A. I stated I had sixteen in line.

Q. Where were the balance of your police at that time?

A. They were scattered among the mob.

Q. The whole police of the city were there?

A. No, sir; all I could gather up at that time were there.

Q. Are you still the chief of police?

A. No, sir; there is another administration.

By Senator Yutzy:

Q. Have you a police commission or police committee, that have any special duty in taking charge of the police or in regulating the police?

A. No, sir; it is the mayor that has that power here.

Adjourned to meet at three o'clock, P.M.

AFTERNOON SESSION.

ORPHANS' COURT ROOM,
PITTSBURGH, *Monday, February 11, 1878.*

Pursuant to adjournment, the committee re-assembled at three o'clock, P.M., this day, and continued the taking of testimony.

The first witness examined was—

Henry Metzgar, *sworn with the uplifted hand:*

By Mr. Lindsey:

Q. Where do you reside?

A. In the Eighth ward, Pittsburgh.

Q. What official position did you hold in the city last July?

A. I was the mayor's clerk.

Q. What knowledge had you on Thursday of any disturbance among the railroad employés?

A. I think my first knowledge was on Wednesday, but to get at the data I would request to send for the information made against Thomas McCall.

[A paper exhibited to witness.]

Q. Is that a copy of the information?

A. Yes. On Thursday, the 19th, Mr. Watt came into the office, and asked for a number of policemen. As to the exact number I don't know, I didn't exactly hear the number, but I understood he wanted ten policemen to go out on the Pennsylvania railroad. The mayor went out with me to the chief of detectives, and they got a number of policemen, and arranged them up in line, and I think I asked Mr. Watt how many he wanted, and he said ten. One or more of them then stepped out of the ranks. Ten policemen went out, I believe, to the railroad. About twelve o'clock of that day we received a telegram, asking, I think, for fifty policemen additional.

Q. From whom?

A. To the best of my recollection the telegram was from Mr. Watt. I immediately went out and hunted some of the policemen who had been discharged—I hunted them up, and several of the officers went out and hunted them up. I notified a number myself to report at the office for duty at the Pennsylvania Railroad Company's depot. How many reported I don't know. It not being my special duty, I paid no attention to it. But I know a number of them reported. Where they went to I don't know personally. About four o'clock that evening, the mayor asked me if there was any news from the Twelfth ward. I told him I could telegraph to the Twelfth ward and see. We did so, and the report came from the station that all was quiet.

Q. The Twelfth ward takes in this district at Twenty-eighth street?

A. Yes; the mayor then left the office to go to Castle Shannon where his family is, as I believed, for the night. About that time—about five o'clock, Mr. Watt came in and asked for from fifty to a hundred additional

policemen. I told him I didn't know where we could get them—that all we had for effective duty was ninety men, and, in the absence of the mayor, I couldn't take away the policemen from all portions of the city, for the purpose of protecting the property of the railroad company. Mr. Watt said to me, what will I do. I said, I don't know—the only thing—if you have a fear of any danger to your property—you had better call upon the sheriff, and the sheriff can call a *posse comitatus* to protect the property if there is any danger. Mr. Watt said he would do so. That is the last I saw of him until some time after the riot. No—the next morning—the morning of the 20th—he came in, and made this information against Thomas McCall. The mayor, at the time, said to him, that our police force was very limited, and in making those arrests we would have to make quiet arrests. The warrants were placed in the hands of the officers, for the purpose of ascertaining where those parties lived, and to find out who they were, and all about them. For the most part, they were strangers, as far as we knew. Officer McGovern had the warrants. The next morning Mr. Houseman, of the firm of Hampton & Dalzell, came into the office, and asked me how many of the parties had been arrested. I told him I didn't know that any were arrested. That the mayor's instructions were to proceed quietly. He said, can you give me this information. I said, no, it is part of the record, and cannot go out of our hands. He then asked for the names of the parties against whom the information was brought, and he copied the names, and as he was going out he said, I am instructed by Mr. Hampton to tell you folks not to execute these warrants. I said, very well—this is a matter entirely in your own hands. I went out with him to the officer, and told the officer to produce his warrants. He produced them, and I told him, you are instructed by Mr. Hampton, through Mr. Houseman, not to execute them. He said, that was all right. That is all I know, unless some special question may arise.

Q. How many policemen had been discharged prior to Thursday?

A. One hundred and sixteen.

Q. How long had they been discharged before that?

A. They were discharged, I think, sometime about the latter part of June, or may be the 1st of July. I am not certain as to the date.

Q. Had you any knowledge of any anticipated outbreak or strike by the men before it was communicated to you by Mr. Watt?

A. Not the slightest. And at that time we had no idea there was going to be any such trouble at all, as we have had sometimes in this city.

Q. You were present when Mr. Watt asked the mayor to furnish him with the police?

A. I was in the office.

Q. You heard the mayor's reply?

A. He went out with Mr. Watt and instructed the chief of police to get the men.

Q. Did Mr. Watt have to promise to pay the men before the mayor gave that instruction?

A. I believe something was said about pay. These men, you see, were not on the pay-rolls of the city. The regular men were in bed or scattered all over the city. These men happened to be there that day, being paid off.

Q. Did the mayor require Mr. Watt to become responsible for their pay?

A. I believe something was said about the railroad company—that it would have to pay the men, as no provision was made by the city for their pay. I think very few of these men were on the regular force.

Q. Did the mayor make that a condition before he instructed you to send out for the men?

A. He never instructed me to send out for anybody.

Q. Who did he instruct?

A. Either the chief of detectives or the chief of police—I cannot remember which.

Q. Did he make any order at that time, calling out policemen?

A. Not as I know of.

Q. These men went out as volunteers?

A. Yes; in that sense. They were men who had been discharged. They went out under the control of Officer Charles McGovern.

Q. They volunteered to go?

A. We had no right to make a demand on them as a police force. They were not in the employ of the city.

Q. When the telegram came to you calling for fifty policemen, what effort did you make to get them?

A. We hunted them up as well as we could. A great many of these men wouldn't go because they were incensed at the city for discharging them, but a number of them did respond.

Q. You hunted up as many as you could get to go willingly?

A. Yes.

Q. How many?

A. About thirty-five. It not being my special business, I didn't pay much attention to it.

Q. Did you notify the mayor of that call for fifty additional police?

A. Yes; he sent us out, and says, go hunt them up.

Q. How many did you get?

A. I think about thirty-five. I never burdened my mind specially with that.

Q. Did you get another call from the railroad company?

A. I have no recollection of another call, except when Mr. Watt came and said he wanted from fifty to one hundred men additional.

Q. Did you communicate that to the mayor?

A. I did when he came into the city, at eight o'clock on that evening.

Q. What evening?

A. Thursday evening.

Q. What did the mayor say?

A. He said he didn't know where he could get the policemen. Our intention in calling the police was simply to protect property from getting stolen.

Q. Did he make a demand upon the citizens of the city to join the police force at any time?

A. We made a demand—certainly we did.

Q. When?

A. On Sunday night, for instance, when I made a call upon the citizens to volunteer to protect the water works of the city.

Q. Had you made any demand prior to that Sunday night?

A. I cannot say. I know of that for a fact.

By Senator Yutzy:

Q. What demand?

A. He said, how many people will volunteer to protect the water-works of the city, and I ask for volunteers. As I understood, they intended to burn them down. Out of some two hundred men, four responded, I think. He said he understood they were in danger.

By Mr. Lindsey:

Q. But he summoned no posse from the citizens of the city during the riots, did he?

A. I don't know that he did.

Q. How many of those discharged policemen were at the city hall on Thursday when those ten men went out?

A. I cannot say how many were there. They were in and out, being paid off. I cannot say how many. Quite a number of them, I know.

Q. How many could you have got to go out there at that time, do you think?

A. We got all we could.

Q. To go voluntarily?

A. Yes; I know, personally, I used every exertion I could, and I know Mr. Davis was out hunting up men.

Q. Were you out there during the riots at any time?

A. I was out on Friday.

Q. At what point?

A. At Twenty-eighth street.

Q. How large a crowd was there?

A. At the time I was there I suppose probably a thousand people were there.

Q. How many were engaged in the riotous proceedings?

A. None that I saw.

Q. What were they doing at that time?

A. They were assembled there listening to a speech made by Doctor Donnelly, counseling moderation, and advising those not connected with the railroad to go home and attend to their own business. Some other speeches were made by one or two more.

Q. What was the effect of the speech upon the crowd?

A. I don't know that it had any effect. It had no special effect particularly one way or another.

Q. Did they listen to it?

A. Yes.

Q. Did they make any response to it in any way?

A. Some response was made to Doctor Donnelly when he counseled those having no business there to go home. Some of them made some remarks from the outside of the crowd—that is enough now, you just stop there; and things of that kind.

Q. What time did the mayor return from Castle Shannon?

A. Shortly after eight o'clock. It may have been eight and a half o'clock.

Q. Where did he remain during the night?

A. In the office, I think.

Q. All night?

A. I can't say, for I didn't stay there.

Q. Where was the mayor Friday, during the day?

A. In and out the office all day, so far as I know. I know he was there.

Q. Was any effort made to increase the police force on Friday?

A. Not that I know of.

Q. Nor on Saturday?

A. No.

Q. When were the discharged men placed back on the police force?

A. They were not placed back on the police force until Monday. I think Monday a number of them reported for duty. A committee of councils, or councils held a session on Sunday morning; but there was so much confusion that nothing was done. The police force was not replaced until Monday or Tuesday; that is, the additional men.

By Mr. Means:

Q. Where is the mayor at the present time?

A. In Philadelphia, I believe. He has left a note that he would be home tomorrow.

Q. What was said about these men being paid?

A. There was some conversation about the railroad company—that it would have to pay these men, because the men were not on the pay-rolls of the city at the time.

Q. Did the mayor make that inquiry of Mr. Watt, as to who would pay?

A. I know there was some conversation on that subject.

Q. Did or did not the mayor say to you that it was necessary for the officers of the railroad to go out of town, that their lives were in jeopardy?

A. No.

Q. Did anybody else say so?

A. No.

Q. Did you ever hear it said?

A. No; only after the riots. I understood they left town for fear of that, and I was rather astonished to find that some of them had been out of town.

Q. Did anybody there state to you that General Pearson had better go out of town?

A. No.

Q. Did you know of his being out of town?

A. No.

Q. Did you know of any of those railroad officers being out of town?

A. No; only subsequently.

By Mr. Lindsey:

Q. Did any of the citizens call upon the mayor, requesting him to put on an additional force?

A. Well, I guess—I do not know that. They did not up to Saturday afternoon, until the time of this firing.

Q. Didn't they do it on Friday?

A. No.

Q. On Saturday?

A. Not that I know of.

Q. Did they offer to become responsible for the payment of the additional police?

A. When?

Q. Friday, Saturday, or Sunday?

A. I never heard of it at all. I never heard any such an offer made. The committee of public safety afterwards agreed to pay a certain number of men on the police force from that time until the end of the year.

Q. When did they make that proposition?

A. I think Monday, Tuesday, or Wednesday, but it was after all the trouble had occurred, so far as I know anything of it.

Q. You know nothing of any such offer having been made on Friday, Saturday, or Sunday?

A. No.

Q. Were you with the mayor during those days?

A. Off and on, Friday and Saturday. On Sunday I was at the central station until twelve o'clock, noon. We had about one hundred and twenty-five prisoners there Sunday morning, and it took all my attention until noon that day to get through with the business.

Q. What were they arrested for?

A. For carrying away property, and stuff, and various things, and disorderly conduct. One thing and another of that kind.

Q. For larceny and disorderly conduct?

A. Yes, sir.

Q. Before whom were they taken?

A. Before Deputy Mayor Butler.

Q. What was done with those persons?

A. Some were fined, and some were held for court, and some were discharged. A great many were discharged, as one of the officers came down with the report that the jailor said that he could not hold them or keep them.

Q. What persons were they who were arrested?

A. I cannot say. Most of those names are fictitious.

Q. Did you get their residences?

A. No; the residences were not taken.

Q. How many did you hold for court?

A. That I cannot say.

Q. Did you keep a record of it?

A. Yes; there is a record of it.

Q. Have you the record now in your office?

A. I do not know whether it is there now. I passed the record out of my hands to the comptroller of the city.

Q. How many were fined?

A. Quite a number.

Q. Did they pay their fines?

A. Some of them did and some went to jail.

Q. How many went to jail?

A. That I cannot say.

Q. Can't you make an estimate?

A. I really could not, because you can imagine that morning I had not much stomach for anything to keep facts and figures. It is just a general idea. Everything was in such terrible confusion.

Q. How large were the fines?

A. From three to five dollars.

Q. You say you cannot tell who those men were, or where they resided?

A. No; they were people I never saw before.

Q. Those who were committed to jail. Did you ever ascertain afterward who they were and where they came from?

A. I did not.

Q. Did you ever make any effort?

A. I never did. The police made efforts afterwards to try to ascertain, I believe, who they were, but I do not know what they did, or whether they did anything or not.

Q. Can't you tell something about what class of people they were from their dress?

A. They all looked to be of the poorer class of people, but what they were or who they were I cannot say.

Q. Can't you tell whether they were tramps or railroad men or people of the poorer class?

A. Some were tramps—I know that. I have a recollection of that. I don't think there were any railroad men. There may have been a few, but a very few, though. They were generally of the poorer class of people, picking up plunder.

By Senator Reyburn:

Q. Were they Pittsburghers?

A. That I cannot say. I never saw them before, and have never seen them since.

By Mr. Means:

Q. When those policemen were sent out there, was there any arrangement made by Mr. Watt, or any other person, to keep the time of the men while in service?

A. I had nothing to do with that. That was a matter for the clerk of the chief of police to attend to. I know that Mr. Watt, or somebody, sent down a check to pay them.

Q. Have you any recollection of a party of eighty sent to the work-house?

A. I remember a party of forty-six sent there. They came here from Cumberland, and were arrested on the arrival of the train here.

Q. What train?

A. On the Connellsville railroad.

Q. Those were all sent up in a body?

A. Yes, sir.

By Mr. Larrabee:

Q. When was that?

A. On the 23d or 24th of July.

R. H. Fife, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Were you sheriff of Allegheny county last July?

A. Yes.

Q. How long have you been sheriff?

A. Two years the first Monday of last January.

Q. State what knowledge you have of the disturbance of the peace that commenced on the 19th of July last?

A. On the 19th of July last I had been out of the city during a part of that day, and came home late in the evening. I went to my house, and remained there until sometime in the night. I had been sleeping, I think. About eleven o'clock, between that and twelve o'clock——

Q. Thursday night?

A. Yes. Mr. Scott—that is Mr. John Scott—Mr. Watt, and another gentleman—I do not recollect his name—came to the house. I came down and admitted them into the parlor. They told me of the trouble they had—that Mr. Watt had been assaulted, and that a large crowd was out there. They wished me to go out and see what I could do. I told them I would go, and I put my coat on, and called one of my deputies—Mr. Haymaker—and we started down to Union depot. There we met General Pearson, and he went with us out to one of the offices—I do not know just what office—and then General Pearson and Mr. Watt—I think Mr. Watt went along, or some other gentleman connected with the railroad—and I went up to Twenty-eighth street.

Q. What time did you arrive at Twenty-eighth street?

A. It was after the middle of the night—between twelve and one o'clock. There was a large crowd of rough people there. But probably I am a little ahead of my story when I speak of Twenty-eighth street. On my road up from the depot to Twenty-eighth street, the cars on the siding there, and on the tracks that were not filled with merchandise, appeared to be all filled with people. A number of them were in there sleeping, and others were in there carousing. All the cars appeared to be full. At Twenty-eighth street, I asked why that assemblage of people were there, and they said they were on a strike, and that they proposed to stop the freight trains from going out, and that they had stopped them. I told them they were acting contrary to the law, and that they must disperse. The reply was, "go to hell you gray-headed old son of a bitch," that and other pet names of similar character. I then repeated the order that they must disperse, and that if I had not the power to do it, that I would have to try to get power sufficient to do it. They then replied, that General Pearson and I both might go to hell, that they had the mayor and his force on their side, and that Mr. T. C. Jenkins had agreed to give them one thousand barrels of flour to stand out, and that Mr. Alexander King had agreed to give them a thousand dollars. I told them they did not know those gentlemen as well as I did, or they would not talk that way. They said they knew them, and that we had better take a walk. About this time there was a diversion in the crowd. A courier came with a piece of

paper—I did not have it in my hand, I did not get to see it—but a large number of them ran across, and they read the communication aloud. It read something in this way: "Hold your position until to-morrow morning, and we will send five hundred coal miners to assist you." It purported to come from the Monongahela Valley. They then assembled back. I was up on a pile of lumber talking to them, and I commenced to talk again, but, after this, they were far more abusive than before. The language would not do to repeat. In a short time another courier came with another communication, representing to come from Wilkes-Barre, that parties there would be here to assist them as soon as they could.

By Senator Reyburn:

Q. Were these people you spoke of, railroad men?

A. Not many of them. A portion of them were, but not many. They were the bad elements of society from all parts of the city, and from some parts of the county, in connection with thieves and blackguards from other parts of the country. A great many strangers were there. I made that remark to one of the railroad officials, that the crowd was not composed entirely of our people, and he differed with me, and I gave this answer at the time—I said "These are not our people, for I claim to know as many men in Allegheny county as any other man in it, and they are strangers here that I never saw." Some females were there, or ladies, the worst I ever saw.

By Mr. Lindsey:

Q. You speak now of Thursday night?

A. Yes; my first introduction to the crowd. I remained some time, trying to get them to disperse. They did not offer me any violence, but refused to go, and said they would die there sooner than they would be driven off. One man there, who appeared to be a leader, had served two terms in the penitentiary. I knew him by sight. He appeared to be a leader. He was not a railroad man, and I do not think ever had been.

Q. What was his name?

A. He was killed on Saturday morning, by the Philadelphia soldiers, and, probably, I had better not name him. He amused himself up to Saturday morning annoying everybody, and was shot on Saturday morning. I became satisfied, that no force I had or could convene could hold that crowd there then, or the crowd that would likely be there in the morning. So I telegraphed to the Governor.

Q. What time was that?

A. It was after midnight. I suppose, about two o'clock.

Q. Friday morning?

A. Yes; I suppose so. I cannot give the exact time.

By Senator Reyburn:

Q. It was during that night?

A. Yes; about two o'clock. I telegraphed to the Secretary of the Commonwealth and to the Adjutant General.

By Mr. Lindsey:

Q. Have you copies of those telegrams?

A. I think I have in my safe.

Q. I wish you would give us copies of them?

A. I will do so. I received an answer sometime after that that he had ordered General Pearson to call out one regiment of volunteers to assist in putting down the riot.

By Senator Yutzy:

Q. Who was this from?

A. I think from Secretary Quay or the Adjutant General. General Pearson then was ordered to call out the regiment here—the Duquesne Greys. They

were called out to be in readiness at a certain hour in the morning. Afterwards I walked down to the city hall, and found about thirty men there, and a number of them were trying to get home as fast as they could. About thirty of them I saw in uniform at the city hall. During the forenoon of Friday, I went with General Pearson and some others, out through the mob or crowd at Twenty-eighth street, and along the line up to Twenty-eighth street, and up to Torrens station. There was a large crowd also, and very boisterous, and apparently very determined. I talked to them, and urged them to disperse, but they hooted and jeered. They did not use quite so bad language, but there was plenty of it, as they had done the night before. They told me they would wade in blood to their knees before they would disperse, and that it was blood or bread with them. I also read a proclamation to them, purporting to come from the Governor, and they hooted and jeered at that, and said they did not care, that they were going to stop those trains and had stopped them. It was then about eleven o'clock, and they said at that hour the railroads over the whole country are stopped. General Pearson attempted to address them, but they hooted and jeered at him. I believe he offered to buy a car load of bread and bring it out to them if they would disperse, but they said it was blood or bread with them, and they would not disperse. One young man that appeared to act as spokesman of the crowd while General Pearson was talking to them—I went to him, and asked him why he was acting in the way he was, and why this crowd was here. I am going to give you his answer: He said the Pennsylvania Railroad Company has two ends, one in Philadelphia and one in Pittsburgh. We have determined on a strike, and in Philadelphia they have a strong police force, and they are with the railroad, but in Pittsburgh they have a weak force, and it is a mining and manufacturing district, and we can get all the help we want from the laboring elements, and we have determined to make the strike here. I said to him: "Are you a railroader?" he said "No. I am a laboring man and not a railroader." I then asked him his name. He said: "It might be John Smith and might be John Jones, but I am not here to tell you what it is." I said: "Where do you live?" He said "In the eastern part of the State." I advised him to go home, and not engage in this bad business, but he said he intended to see it through or leave his corpse here. I might

say, at East Liberty I warned them to disperse, the crowd, and when they refused to disperse, I warned the women and children to disperse—that the military would be there in a short time, and probably somebody would be hurt. I warned all having no part in the riot to get out of the road. The women answered me that they were there to urge the men on to do what they wanted. Who the women were I do not know, but they answered me in that way. That was in the forenoon of Friday. About noon there was a request sent to me to send some of my deputies with the railroad officials. I understood they were going to try to move the trains on Friday afternoon. I detached Major Boyce, and told him to take as many of my deputies as were necessary, and go down to Union depot. He started after a while, and came back, and it was reported to me that they had decided not to move any trains that afternoon. Consequently, he was not needed, he said. On Saturday—the forenoon of Saturday—I was called on by James Richardson, a constable—I do not know in what ward he is constable—I generally see him here in the Second ward—he is an old constable for many years in the city—he called on me and said that he had some warrants to arrest some parties who were leaders of the riot, issued by Judge Ewing, president judge of our court of common pleas No. 2, and that he wished me to go with him and take what assistance I could, to assist him in arresting some of the leaders of the mob. I immediately detailed ten of my deputies to go out and try to raise a *posse*. They started out and reported to me about one o'clock, and they had some eight or ten men with them.

Q. On Saturday?

A. Yes; some of them appeared willing to go provided they were paid in advance, and others were willing to go—that is, appeared willing to go—under any consideration. We started and went down as far as Union depot, and I think by the time I got there with this *posse* my deputies had got up; they had all forsaken me and escaped except about six. We met Mr. Pitcairn there, and some of the other railroad officers. They told me they wished me to assist Mr. Richardson in arresting those parties, and that a division or a regiment, I do not know which they called it, of soldiers from Philadelphia would protect me. I went up with Mr. Richardson and Mr. Pitcairn, and

another gentleman whom I saw giving his testimony here the other day; I do not know his name. We went up to Twenty-eighth street, and Mr. Pitcairn told me when we got to Twenty-eighth street, that he could not see the parties for whom the warrants were issued. I replied to him, that then my duty in that respect was ended. If he could not point them out that I could not arrest them; that I did not know them. I had seen the list of names, and I did not know any of them. I passed through the crowd, and they hooted and jeered at me for a mile, I suppose, but they offered me no violence. I went clear through the crowd and came and turned back through a portion of it. The military were bringing up a Gatling gun and placing it in position. I came back to the side of the Gatling gun. The military were formed into what I would call three sides of a hollow square. Shortly after that, or previous to that I might say, as we passed up, General Pearson was at my side, and a man who appeared to be a kind of leader of the crowd was on our right. He was very noisy and very boisterous, and God damning Pearson for bringing out his double-headers, and General Pearson just pointed at him and said, "That man will cause trouble after a little, I am afraid." The man saw him pointing. In some little time he came me—he forced himself through the lines of the military and came to me—and said, what had I against him? I said I had nothing against him, so long as he behaved himself. He asked what General Pearson had against him. I said I did not know. I did not hear him say anything against him. He said he was a friend of Pearson's, and had nothing against him, but that he was God damned if he was going to be pointed out that way in the crowd, that he had friends enough there to wipe us both out. I told him to get out. He said he would not go. I put my hands on his shoulders, and he was then thrown through to the crowd by one of the officers, He there became very noisy.

The military came up through the crowd in front with arms apart, and the crowd stood still, refusing to get back. The soldiers were then ordered to charge bayonets. Then somebody cried out in the crowd to hold their position. They came up at a charge bayonets; but a number of their guns were seized by the mob, as you might call it, and at this time, any number of stones were thrown. I saw one soldier get struck with a piece of coal on the forehead, just peeling his forehead, and he fell to his knees. About the

same time there were three or four pistol shots fired from the crowd into the ranks of the soldiers, and, as I said before, any quantity of stones and clubs were thrown. Then the firing commenced by the soldiers, and it ran along around two sides of the square. It was a kind of running fire without an order to fire. It put me in mind of a pack of shooting crackers, when you set one end on fire one report would follow another. Some parties were killed and a great many ran away. I waited some half hour or more there. The soldiers then retired towards the round-house, and I returned to my home.

By Mr. Lindsey:

Q. What time did this firing occur?

A. In the afternoon about I should judge between four and five o'clock. I think it was near five o'clock.

Q. Did you remain home during the night?

A. I did not. I came down to my office, and remained there.

Q. Go on and relate your movements during the balance of the night, and Sunday and Sunday night.

A. All that night, and Sunday and Sunday night, I remained in the court-house here. I was useless and powerless, and they were hunting me to murder me. On Monday morning, I went to my office door, and a drunken creature was leaning there, with a revolver in his right hand, hunting for the sheriff. I asked him what he wanted with him. He said, I want to see him. I said you can take a good look at him now, and, with that, I took him by the collar, and kicked him down the steps. I have not seen him since. I might have stated, that on Thursday night, (the first night I went out into the crowd,) there were shots fired when General Pearson and I went out there first. I do not know whether they were fired at any person in particular. I think that they were intended to alarm more than anything else.

Q. When Mr. Scott came to your house, on Thursday night, to inform you of the riotous proceedings, did he advise you to consult with your counsel

before going out?

A. No; he said it probably would be necessary, before I got through, to see my counsel. I told him that I could not see him then, that he had returned to his home, in the Nineteenth ward, Pittsburgh, and it would be impossible for me to see him at that hour of the night. I told him I would see him at an early hour in the morning.

Q. Did he tell you why it would be necessary?

A. No; I do not think he did, particularly—not to my recollection. He said if I became satisfied, in my own mind, that I had not sufficient force to remove the crowd, that it would be my duty to call on the Governor for aid, and he wished me to be satisfied in my own mind.

Q. How many of your deputies did you take with you that night?

A. Only one—Mr. Haymaker.

Q. Did you call for any posse that night?

A. Not that night.

Q. You did not call for any posse before telegraphing to the Governor?

A. No; I did not. I will say this here, that although I was called on that night, I was aware pretty generally what was going on in regard to the strike previous to that. It could be heard on the street—parties were saying—the strike before this had occurred in other parts of the United States—and they would say it will be here—it will be here in a day or two. I could hear the remarks passed. Not only that, but every avenue of the city, for a week before, had been crowded. There was a very considerable travel by strangers coming to the city. The city was full of strangers at the time. There was no railroad or wagon road but what you could find on it a class of people traveling that you had never seen or heard of at all before, and they were coming into the city. The city was full of them. This I have not heard any other person remark but myself, but it is the fact of the case. On all the

railroad trains you could see men coming in, riding on the tenders, or on the cow-catchers, or any way at all—on the steps, or any way.

Q. What days?

A. Tuesday, Wednesday, and Thursday. I will give another little fact. This morning a lady came to my office, asking me to solicit transportation for her over the Pennsylvania railroad to Philadelphia. She wished to get a pass. I asked her why, and she said that she had a son living in Chester county who had come here and mixed himself in with the riots, and had laid out and slept out until he had got a cold, and that he now was dying with consumption, and she was poor, and wished me to solicit the Pennsylvania railroad company to give her a pass to go and see him before he died. She lives here, and her son is married and lives in Chester county. She lives nearly across the street from where I do. But I didn't know she had this son, though.

Q. As soon as you returned on Thursday night from Twenty-eighth street, you telegraphed to the Governor?

A. Yes, sir.

Q. Had you become satisfied, then, that it was necessary to call out the troops?

A. Yes, sir; I had. The riot had assumed—although there had been no actual outbreak, except the striking of Mr. Watt—had assumed such proportions then, that it would have been folly for me to attempt in this city to have got a posse to remove the crowd. I might, if I had had time, have got the rural districts of this county to assist me—I might have got a force there, but then it would have been a worse slaughter than what it was. But in this city it would have been folly for me to try it. I knew the feeling of the people.

Q. Did you make any effort on Friday forenoon to raise a posse?

A. I did not. I viewed it in this way. That, when I had called on the State authorities, and the State authorities had responded, that that relieved me of that responsibility of calling a posse. In fact, I considered the idea of a

sheriff of any county calling out a posse almost as an obsolete piece of law to-day. The time was, when the military were under the control of the sheriff, but it is not so now.

Q. Do you know what the law is in regard to calling out the militia to suppress a riot?

A. I have read the acts of assembly.

Q. You knew what they were?

A. Yes.

Q. You knew what was necessary for you, as sheriff, to do before calling the militia?

A. Well, any citizen can call on the Governor for aid—any responsible party.

Q. But you knew what was necessary for you to do as sheriff?

A. I think I did. I might have been mistaken.

Q. You thought that you laid sufficient ground for calling on the Governor, did you?

A. Yes; this riot had assumed such proportions at that time—it had gone so far, and such a crowd was there, of all the rough elements of society, that no posse, raised inside of three or four days—and then it would have had to be collected from all parts of the county—could have removed it.

Q. How large was the crowd that night?

A. Well, I cannot tell you that, because the cars not loaded with freight, as I said before, were all occupied. Some had four or five in, and some ten or twelve in. I cannot tell how many cars were full. At Twenty-eighth street, I judge that a thousand persons were there at that time, and all along, from Union depot to Twenty-eighth street, they were scattered.

By Mr. Larrabee:

Q. Those cars you saw the men in, were they regular freight cars or caboose cars?

A. I saw them in both. One thing other I wish to impress on the committee, and that is this: I see that other evidence—by reading it in the papers—places those warrants for the arrest of those parties on Saturday, in my hands. It is not the case. They were in the hands of James Richardson, the constable, and I was only acting as a guard to assist him.

By Senator Yutzy:

Q. Was he not appointed as one of your deputies?

A. No; I told him I would go myself, and give him some of my men to assist him. I took thirteen of my regular deputies and myself to assist him, and some other men not regularly connected with the office. The names of some of them I cannot recollect.

By Senator Reyburn:

Q. Would it then have been possible to have arrested those men?

A. No, sir; not unless the military had done it. Probably, General Brinton might have been able, but I do not know. There was about a mile of a solid packed mob.

By Mr. Lindsey:

Q. On Saturday?

A. Yes; the day we had the warrants.

By Senator Reyburn:

Q. Friday?

A. On Friday there was a large crowd. It was continually increasing. It increased from Thursday, and kept on increasing all the time, on Friday and Saturday.

Q. Were they all taking a part?

A. No; a portion were lookers on, but the sympathy appeared to be all with the strikers. But I must say, that I did not see many of those strikers. After we had gone out to Torrens station, I asked Mr. Pitcairn how many men he knew in those two crowds, at Twenty-eighth street and Torrens station, as belonging to the road. After studying awhile, he said: "Well, really, I think I only know four."

By Mr. Lindsey:

Q. You say the sympathy of all those gathered around was with the strikers?

A. It appeared to be.

Q. How extensive was that sympathy—to what extent was it carried among the people?

A. It was very extensive. In fact, I do hardly know any person whose sympathy was not with them. It went so far that on Saturday night, after the firing, parties were coming to my house and telling my family that they would be murdered or burned out before morning. My wife became alarmed, and in the street where I lived she could not get protection in any house. They would not let her in.

Q. Why?

A. Because they blamed me for being at the head of the soldiers, and for causing the killing of innocent parties. That was the reason they gave her—that they did not think they would be safe in letting her in.

Q. What street is that?

A. Washington street, Pittsburgh.

By Senator Reyburn:

Q. On Thursday or Friday was this crowd boisterous or destroying things?

A. They were not destroying things. On Friday they were stopping all the trains coming in—stopping trains, and then hooking on locomotives and running the cattle cars, for instance, to Torrens station, and letting the cattle out in the field. In fact, Mr. Pitcairn will remember that we were ordered out of the locomotive that we were on, to let them run cattle out.

By Mr. Lindsey:

Q. Not on Thursday and Friday, but after the firing occurred, how was the sympathy?

A. I think the sympathy was with the strikers from the first. I feel satisfied it was. But I am only giving you my own opinion.

By Senator Reyburn:

Q. But you give that opinion, having formed it after intercourse with the people, and after being in the crowd?

A. Yes; I talked with a great many of them, and they appeared to think it was a hardship to reduce the wages and the numbers of the men, and also, once in a while, they would bring in this freight discrimination question.

Q. If you had had the warrants on Thursday night, could you have arrested those parties?

A. If I had had a posse of two hundred or two hundred and fifty I probably could have arrested them, but probably there would have been somebody killed. I believe on Thursday morning if I had had the number of police that Mayor McCarthy had, I could have arrested the leaders, and put in prison the disorderly parties, and that then the trouble would not have assumed the proportions it did. That is only my own idea of it.

By Senator Reyburn:

Q. Could it have been done on Thursday?

A. As I said before, I was out of Pittsburgh part of Thursday. I was called away on business.

Q. But from the time you became acquainted with the difficulty first?

A. On Thursday morning I saw the crowd gathering around, and I think then if I had had a force and had been called on to anything with the force that Mayor McCarthy had, I think I could have done some good, but on Thursday night at one o'clock, I do not think it could have been done.

Q. When those messages were brought in and read to the crowd as coming from other parties, were there any messages sent out to them in reply?

A. Not to my knowledge.

Q. No responses were made to them?

A. There was considerable cheering.

Q. But were any answers sent?

A. No.

Q. Did those messages come in answer to messages that had been sent out?

A. I cannot answer that. I have given you about the purport of the messages. Probably if General Pearson shall be called he might recollect the purport a little distincter than I have.

By Senator Yutzy:

Q. Were those telegrams?

A. I think not. I didn't so understand it.

By Senator Reyburn:

Q. There appeared to be an organization?

A. It looked to me in that light very much.

By Senator Yutzy:

Q. You stated one was from Wilkes-Barre?

A. Yes, and one from the Monongahela valley, and there was also one from Mansfield—that the coal miners there would be in in the morning.

By Mr. Lindsey:

Q. Had you knowledge of any organization prior to this time?

A. Nothing that I could assert with any distinctness—nothing only rumor—while I firmly believe there was. Now I will give you another fact or instance to corroborate my theory: Some five weeks after the riot I was in St. Paul, and the mayor of St. Paul had gathered up thirteen tramps in a cave on the bank of the Mississippi river. I was at the hearing, and each one had a traveling sack or satchel, and they examined these satchels and there were goods like silk handkerchiefs, and so forth, in them. The mayor asked them where they got them, and they said, at Pittsburgh at the time of the riot, "How did you know there was going to be a riot there." "Oh! we knew it, and we were there." If you will telegraph to the mayor at St. Paul he will substantiate the fact.

Q. In regard to the extent of this sympathy with the strikers that you spoke of, I would like you to explain a little more upon that subject as to the extent of it, and as to what classes of people sympathized with the strikers?

A. The whole laboring class, so far as I know, were with the strikers in their sympathy.

Q. The entire laboring class?

A. Yes; I think so. Do not understand me to say that they were in sympathy with the riot. They were in sympathy with the men on account of their wages being reduced.

By Mr. Yutzy:

Q. With the railroad strikers?

A. Yes.

By Mr. Lindsey:

Q. But they were not opposed to the railroad company?

A. I do not know that, but it was just this way that the railroad men had their sympathy. Then there was another sympathy of the merchants to a certain extent with these men. They believed they were not paid right, and that the railroad company were not doing——

Q. Among what class of merchants?

A. Our better class.

Q. The entire classes?

A. No; but a portion of them.

By Senator Yutzy:

Q. Was it sympathy with the strikers, or only prejudice against the railroad company?

A. I think they had sympathy and prejudice both.

Q. Do you think that any responsible portion of the people of Pittsburgh, whether laboring men or others, sympathized with the rioters after the difficulty had become a riot?

A. No; I think not. I would say here, that the responsible portion of the people of Pittsburgh were not in sympathy with the riot, but I would say, further, that it took a certain amount of riot to bring them to their senses. Something has been said in regard to seeing my solicitor. On Friday morning, I did see him at an early hour, and stated to him all I had done,

and what I had done, and he advised me that I had done just exactly what he would have advised me to do. He stayed with me nearly all day Friday and Saturday. Before going up to Union depot in company with him, I walked down the street, looking for a posse to go along, and among other places we dropped in, was Air. Hampton's office. They two consulted, and both decided that I had acted in the right way. I am only satisfying you in regard to that. Those gentlemen, both, can be had at any time.

The following are the telegrams referred to in the foregoing testimony of Sheriff Fife:

PITTSBURGH, *July 19, '77.*

To Hon. JOHN LATTA, *Lieutenant Governor of Penn'a.:*

I have forwarded the following dispatch to his Excellency Governor Hartranft, at Harrisburg. Learning that he is absent from the State, I forward it also to you for such action as you may deem your duty and powers render proper.

Signed R. H. FIFE,
Sheriff of Allegheny county.

Following is the dispatch above alluded to:

PITTSBURGH, *July 19, 1878.*

HON. JOHN F. HARTRANFT,
Governor of Pennsylvania,
Harrisburg:

A tumult, riot, and mob exist on the Pennsylvania railroad at East Liberty and in the Twelfth ward of Pittsburgh. Large assemblages of people are upon the railroad, and the movement of freight trains, either east or west, is prevented by intimidation and violence, molesting and obstructing the engineers and other employés of the railroad company in the discharge of their duties. As the sheriff of the county, I have endeavored to suppress the riot, and have not adequate means at my command to do so, and I, therefore, request you to exercise your authority in calling out the military to suppress the same.

R. H. FIFE, (Copy.)
Sheriff of Allegheny county.

BEAVER, PA., *July 20, 3:35, A.M.*

R. H. FIFE,
Sheriff:

Your telegram received. I have telegraphed the Adjutant General.

M. S. QUAY,
Secretary Commonwealth.

HARRISBURG, *July 20, 2:11, A.M.*

R. H. FIFE,
Sheriff Allegheny county Pa.:

Gen. Latta will be here in an hour, and means taken to assist you if necessary.

C. N. FARR, JR.,
Private Secretary.

HARRISBURG, *July 20, 2:30, A.M.*

R. H. FIFE,
Sheriff Allegheny county, Pa.:

The Constitution gives me no power to act in the matter. The Governor alone has the power. His law officer, Attorney General Lear, can be reached either at Harrisburg or Doylestown.

JOHN LATTA,
Lieut. Gov.

LANCASTER, PA., *3:17, A.M.*

R. H. FIFE,
Sheriff Allegheny county, Pa.:

Have ordered General Pearson to place a regiment on duty to aid you in suppressing disorder.

JAMES W. LATTI, (Copy.)
Adjutant General.

Hugh Y. Boyce, sworn with the uplifted hand:

By Mr. Lindsey:

Q. You were a deputy sheriff in July last?

A. Yes.

Q. You reside where?

A. No. 551 Fifth avenue.

Q. State to us what knowledge you have of the disturbance, and when it commenced—give us a statement of the facts?

A. Coming in on Friday morning, from attending a sale, I met the sheriff and General Pearson, on Grant street or on Liberty street. I told the sheriff I was going to the office, and I asked where he was going, and he said he was going out the Pennsylvania railroad a short distance. I asked him if he wished me to go along, and he said he did. Then the sheriff and Mr. Pitcairn and General Pearson and myself went to Torrens station. The sheriff there addressed the crowd, as also did General Pearson. They gave some good advice, but they took no notice of it.

Q. How did you go out?

A. On a locomotive.

Q. How large a crowd was there?

A. Five or six hundred—I couldn't tell.

Q. What class of people were there?

A. A pretty hard class.

Q. Railroad men?

A. Some were railroad men, but they were not all railroad men.

Q. What were they doing?

A. Standing in groups talking, on the railroad track, and by the side of the railroad track.

Q. Were you interfered with in going out?

A. No; except the crowd hallooed at us as we went along.

Q. How large a crowd was at Twenty-eighth street?

A. I cannot say that—perhaps four or five hundred.

Q. What response did those men make to the sheriff's admonitions?

A. They said they would have bread or blood.

Q. Anything else?

A. Nothing; but they used very bad language.

Q. They refused to disperse, did they?

A. Yes; General Pearson made a neat, handsome little speech to them, but they paid no attention to it, nor to the sheriff either.

Q. Did you return without any interference?

A. Yes.

Q. What occurred next?

A. The next was on Saturday. In the morning, sometime, the sheriff called me into the office, and told me to get up some men to report at the

Pennsylvania railroad depot.

Q. Did you go?

A. Yes.

Q. How many were with you?

A. I think about fifteen or sixteen; I am not certain about that.

Q. Tell us what took place?

A. This was on Friday afternoon. We went out that afternoon to the depot. They wanted some assistance in moving some trains. After I went there, they concluded not to move any, and I returned to the office; and on Saturday I went again, with Constable James Richardson, probably about one o'clock.

Q. With how many men?

A. Seventeen or eighteen men?

Q. Who collected the men?

A. The most of them belonged to the sheriff's office.

Q. Did you try to collect a posse?

A. Yes; but I found it very hard work.

By Senator Yutzy:

Q. You say it was hard work. Why?

A. Because the men didn't seem to be willing to give us their assistance.

By Mr. Lindsey:

Q. What did they say when they were asked to go?

A. They said they would sooner go out and help the rioters.

Q. Did you get that response from any considerable number?

A. A few would answer in that way; others said that they had enough to do to attend to their own business.

Q. What class of men did you call on?

A. I called on citizens and on constables.

By Senator Yutzy:

Q. Did any constables refuse to go?

A. Yes.

By Mr. Lindsey:

Q. What excuse did they make?

A. They didn't wish to go out to get shot.

Q. What class of men said that they would sooner go out and help the rioters?

A. Well, laboring men.

Q. You say you called on constables and citizens. Citizens is a very broad term. Did you call on any professional men?

A. No.

Q. On business men?

A. Yes.

Q. What response did they make?

A. That they had to attend to their own business, and couldn't leave on account of it—it being a busy day on Saturday.

Q. You got to the depot about one o'clock?

A. I think so.

Q. Was any crowd about Union depot there?

A. Yes; and soldiers, too.

Q. Were there any riotous proceedings around the depot at that time?

A. Not at that time, but a crowd was there, but they didn't appear to be specially riotous at that time.

Q. Did you move down to Twenty-eighth street with the sheriff, ahead of the militia?

A. We did.

Q. You formed one of the sheriff's posse?

A. Yes.

Q. There were about sixteen of you?

A. About eighteen. There may have been more.

Q. Were you armed?

A. No; some of them had revolvers. I had one.

Q. You had no weapons in view?

A. No.

Q. What took place at Twenty-eighth street?

A. There was quite a large crowd of people there—rioters.

Q. What were they doing?

A. Talking, and hallooing, and making a great noise.

Q. Had they begun to destroy property in any way?

A. Not when we went there—at least not when I was there.

Q. What did the sheriff do?

A. The sheriff advised them to disperse and go home.

Q. Advised them or commanded them?

A. Commanded them.

Q. What response was made?

A. Nothing but vile language, and throwing stones, and brickbats, &c.

Q. Were those stones thrown at the sheriff's posse or at the militia?

A. Promiscuously—all around in that neighborhood.

Q. Did they hit any of the sheriffs posse?

A. Yes.

Q. Were any of them injured?

A. Not materially.

Q. Were any pistols fired?

A. Yes.

Q. How many shots were fired before the militia fired?

A. There may have been five or six.

Q. To what extent were the missiles thrown?

A. There was quite a shower of stones and brickbats.

Q. Was any command given to the militia to fire?

A. Not that I heard. I heard the command to charge bayonets, but no command to fire.

Q. Was the command to charge bayonets obeyed?

A. Yes.

Q. Did they drive back the crowd?

A. A very short distance.

Q. Did they drive them as long as they continued to charge?

A. Yes; they cleared the tracks.

Q. And drove them as far as they desired to?

A. I presume so, just at that time. Quite a number of the crowd—several of them—tried to take the muskets out of the hands of the soldiers.

Q. How did the firing by the militia commence—was it one shot—one shot or a volley?

A. One shot, and then another shot, and then two or three shots every second.

Q. A rattling volley?

A. Yes.

Q. Was it regular?

A. Yes.

Q. What effect did that have on the crowd?

A. It drove them away for the time being.

Q. Where did they assemble afterwards?

A. In different places down below Penn street and up on the hill.

Q. Did the crowd assemble between the depot and where the militia were then stationed?

A. I don't know.

Q. What became of you?

A. After the firing was over, probably three quarters of an hour, I came in Penn avenue.

Q. Did the posse remain together?

A. When the firing commenced we were standing immediately in front. It was too warm to stand there very long.

Q. Did the firing disperse the sheriff's posse, too?

A. Yes; it was a rather peculiar place to stand there.

Q. Do you know how many were killed there that evening?

A. I don't know the exact number now.

Q. Had you any knowledge of any pre-arranged purpose among those men to strike on that day?

A. I had not—only what you might judge from the crowds gathering there occasionally, at the corners, and on the railroad tracks, and different places.

By Senator Yutzy:

Q. Was there any talk of striking among those men that gathered in crowds before the strike?

A. Yes; you could hear a great deal of talk about a strike, but nothing was said as to the time when it was going to take place.

Q. How long before this strike?

A. On Tuesday and Wednesday.

By Mr. Lindsey:

Q. Who was the talk among?

A. Among the laboring classes—among the men that worked in the mills, and the glass houses, &c., and railroad men.

Q. Did you hear it before the news of the strike on the Baltimore and Ohio railroad?

A. No.

Q. It was not until after that that you heard talk of striking?

A. No.

Q. Prior to that you had heard nothing that would lead you to believe there was an organization for the purpose?

A. No.

Q. That was the subject of conversation, I suppose, among all classes—to some extent?

A. Yes; it was.

Conrad Upperman, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In Penn avenue, between Thirty-third and Thirty-fourth streets.

Q. What was your occupation?

A. I was night foreman in the round-house.

Q. Were you on duty on Thursday night?

A. I was.

Q. State whether there was any disturbance about the round-house on that night.

A. There was none about the round-house at all. The only disturbances there were, took place out on the track, about Twenty-eighth street.

Q. What kind of a disturbance was it?

A. The railroad men and the others were combined—but they were not doing anything, except standing there in groups.

Q. During the night was the crowd noisy and boisterous?

A. Somewhat.

Q. You were in sight of them?

A. I was among them nearly all the time. On Thursday night, between eight and nine o'clock, I attempted to get out an engine to haul some stock, and I thought it was useless to attempt it without first seeing whether they would allow us to haul it. Mr. Watt told me in the office that they would allow us to haul the stock; but when I got among them they didn't seem very favorable to allowing it. So we talked to them some time, and at last they agreed that we could haul the stock. I brought the engine out myself; but before I could get her across Twenty-eighth street four or five hundred called out to me and hallowed—called out to me to take her back; but I got her across Twenty-eighth street, and, after talking to them, they got quiet, and agreed that I could haul the stock, provided a committee could go on the engine to see that we would not haul anything else. I then got two engineers, one to fire the engine, and one to run it, and they took the stock up that night; but a little later in the night a Pan Handle train came along, and that raised a terrible howl there about the stock, and they cut the engine loose; but at last they let the stock go as far as Lawrenceville, and then we got an engine to haul it away. In fact, they went along on the train.

Q. What complaints did the men make in your conversations with them?

A. They complained about the double-headers; that they would take a great many of them off; that it would take their work away at any rate, and they thought they might as well fight it.

Q. Were you in the round-house on Saturday night?

A. I was.

Q. Were you present when the firing occurred on Saturday afternoon?

A. No; I went home at six o'clock in the morning to take some sleep. I then went to the round-house between seven and eight o'clock. When I got there the soldiers were just entering. After they had got themselves stationed there, it was not long until the outside parties commenced firing into the round-house.

Q. With what?

A. With musketry.

Q. The rioters?

A. Yes; between eleven and twelve o'clock that night. There was a board pile between Twenty-sixth and Twenty-seventh streets, and a good many of them got in behind that, and they just rattled volley after volley into the round-house. I was standing there; but I thought it was too hot, and went to the other side. I then remained in the round-house until about twelve o'clock, and then told an officer that I would go out. He said I had better see General Brinton first, that I might do him some good. I saw General Brinton; but he had nothing to say, and I said nothing to him. I started to go out the back way of the carpenter shop; but there was a lot of rioters there, and we thought that it would not be safe, so we came on back to where the superintendent's office stood, and he proposed that I might go out the gate at Twenty-sixth street, and that he would tell his soldiers not to fire on me. The firing was going on at Twenty-sixth street. I got out then and went on home.

Q. Were you molested by the rioters?

A. Not then; but on Friday night or Saturday morning, between twelve and one o'clock, we were getting out two passenger engines to go east. It was not my business to know what the engines were going to haul. I got orders to get them out, and I went out in the street then and got two engineers and firemen, but a man came in and gave us to understand that the engines couldn't go, and I knew it was no use to argue the point with them, because there were four or five hundred of them there on Twenty-eighth street.

By Senator Yutzy:

Q. Was that man a railroader?

A. Not at that time. I believe he had been suspended. He is in the work-house now. Then we had two engines coming west on the fast line that same night, and we cut one engine off and took the accommodation engine at Wall's, and let the accommodation engine bring the train in, and let the other engine go back to Altoona; but we found they had her blocked. I went to Twenty-eighth street, and they were pretty noisy at that time. Some of them came to me, and asked what kind of a hand I was taking in the matter. I told them I was not taking any more hand in it than I ought to, and they told me if I didn't get out right quick they would shoot me so full of holes that I couldn't get away. I found it was pretty hot, and I got away. On Friday morning, when the troops came there, there was not over twenty or thirty men at Twenty-eighth street. They seemed to go away, but after that, of course, they commenced gathering in groups, and I noticed the troops were not there very long until they were among them themselves. I noticed that morning, before I went home, that they were walking together in the street, our own men and the soldiers. I thought there was no use for those soldiers there.

By Senator Reyburn:

Q. What morning was that?

A. Saturday morning.

By Senator Yutzy:

Q. What troops were those?

A. The Pittsburgh troops. I was there Thursday night and Friday night and Saturday night until one o'clock.

Q. At Twenty-eighth street, were the same men there all the time from Thursday until Saturday—until the firing of the troops?

A. Yes; they were nearly about the same crowd. Of course, the crowd increased. On Friday night four or five thousand of them were there, but the crowd was orderly, and I never saw them molest anybody unless you wanted to do something—then they would drive you back.

By Senator Reyburn:

Q. Would it have been possible for the police to have made any arrests at that time?

A. I went out and looked at the crowd. I looked over the crowd and I thought if there were any police there they could have arrested the whole of them.

Q. Could a force of fifty good police have dispersed the mob?

A. They could on Thursday afternoon, when the first double-header was stopped. I think only about from twenty to twenty-five men were interfering with that train at all. It was just this way: I stood and looked on, but I had nothing to do with it. It was daylight, and I was on at night. There were four police on each engine, and a road foreman was on an engine, and the engineers and firemen, but they didn't seem to pull her out. I didn't see anybody with anything in their hands, but was informed that there were parties with links and pins in their hands, ready to throw in case they did start.

By Senator Yutzy:

Q. Do you know of any engineers or firemen being driven off their engines when there were policemen with them on the train?

A. I cannot say that I do. They got off, though.

Q. Did the police get off too?

A. They did, yes.

Q. You didn't see them driven off?

A. No, they hooted and hallooed a good bit.

Q. They got off—no links were thrown and no assaults were made?

A. Not when I was looking.

Q. How many police were on the engines?

A. Four on the first, and I think four on the second.

Q. They got off on account of the threats?

A. That is the only reason I would know for their getting off.

C. A. Fife, *sworn with uplifted hand*:

By Mr. Lindsey:

Q. You are the son of Sheriff Fife?

A. Yes.

Q. Were you in the sheriff's office on Thursday, the 19th of July?

A. Yes.

Q. Was there any call upon the sheriff during that day for assistance in putting down the disturbance at Twenty-eighth street?

A. Not during that day, I do not think.

Q. During the evening?

A. I believe so, but I was not home.

Q. You were not out with him?

A. No.

Q. Were you out with him on Friday?

A. I was at Union depot on Friday.

Q. Was there any disturbance there?

A. No, sir.

Q. Were you out on Saturday?

A. Yes.

Q. At what time?

A. I was there when the militia went out, in the afternoon.

Q. Were you a member of the sheriff's posse?

A. Yes.

Q. Tell us what occurred there?

A. We walked into the crowd. The crowd would open for us to walk in, and then close around us.

Q. At what point was that?

A. Twenty-eighth street.

Q. The militia were immediately in your rear.

A. Yes.

Q. What did the sheriff say to the crowd?

A. He asked them to disperse.

Q. What response did they make?

A. I cannot say that. They hooted, and hallooed, and used vile language, and threw stones.

By Senator Reyburn:

Q. They did not disperse?

A. No.

By Mr. Lindsey:

Q. Who were the stones thrown at?

A. Both at the militia and us, but I cannot say exactly.

Q. Were any guns or pistols fired at you?

A. I heard pistol shots, but cannot say who they were fired at.

Q. Before the firing from the soldiers?

A. Yes.

Q. Was there any command given to fire?

A. Not that I heard.

Q. Where were you during Saturday night, after the shooting?

A. I was around through town here—no place in particular.

Q. Were you at your home?

A. Yes; then I was out on the hill above Twenty-eighth street.

Q. Was there anybody that offered violence to you?

A. No.

Q. Was any attempt made to burn the house of the sheriff?

A. I did not see anybody there, but I heard that there had been parties at the house.

Q. You saw nobody there?

A. I did not get home until near morning. I was out on the hill at Twenty-eighth street.

Q. Were any threats made that you heard?

A. I did not hear any, but I heard of them.

Q. Did you assist on Saturday in raising that posse?

A. I tried to get some parties.

Q. What efforts did you make?

A. I asked several parties to go out with us.

Q. What replies did you get?

A. I was refused wherever I asked anybody.

Q. What class of men did you call on?

A. I do not exactly remember now who I did ask—parties I would see around the court-house.

Q. You did not succeed in getting anybody?

A. No.

At this point the committee adjourned until to-morrow morning, at ten o'clock.

ORPHANS' COURT ROOM,
PITTSBURGH, *Tuesday, February 12, 1878.*

Pursuant to adjournment, the committee re-assembled at ten o'clock, A.M., this day, and continued the taking of testimony.

The first witness examined was:

Alexander E. McCandless, *sworn with the uplifted hand:*

By Mr. Lindsey:

Q. Where do you reside?

A. On Centre avenue, in this city.

Q. What is your profession?

A. I am a physician.

Q. State whether you were connected with the fire department last July?

A. I was a fire commissioner.

Q. What are the duties of the fire commissioners?

A. They are elected by city councils to take care of the fire department, and to elect the force, and to run it, and they have general supervision over the expenditure of the money.

Q. Do they control the movements of the fire department in case of a fire?

A. We have a chief engineer for that purpose.

Q. What was done by the fire department during the riot for the purpose of protecting the city or railroad companies' property from fire?

A. The first alarm of fire was struck about eleven o'clock on Saturday night, after the cars were set fire to. The fire department responded as soon as the

alarm was struck, and started out to the fire, No. 7 engine, I believe, being the first on the way. At that time, I was on top of the hill overlooking the outer depot. I heard the alarm struck, and I heard the engine start, and then I heard the shouts of the mob, and could hear the gong of the engine as it was running. I then heard the engine stop, and could hear the oaths of the men all distinctly. Afterwards I went down into the crowd, and as the other engines came up, I saw them stopped by the mob there, who swore that if we did lay any hose, they would cut the hose, and shoot the drivers, and all that kind of a thing. The mob would not allow the fire department to put a drop of water on the company's property, and all that night we did not get to throw any. The following night when private property caught fire they allowed us to throw water on it, and did not interfere.

Q. Was private property protected pretty generally?

A. As well as it could be done, but it was so extensive that we could not protect it altogether; we had the force of the fire department cut down on account of the appropriations not being sufficient to run it a short time before that, and the result was that we were short of men.

Q. Was the private property fired by the mob, or did it catch from the railroad company's fire?

A. I cannot state that of my own knowledge.

Q. What seemed to be the disposition of the mob?

A. They were wild—perfectly mad, and appeared to want to burn everything or anything, especially the railroad property.

Q. This is Saturday night you speak of?

A. That evening—Saturday evening—we did not get to throw any water. But the chief engineer can give fuller details than I can about that.

Q. Did you call on the mayor for protection in any way for your fire department?

A. Not personally, but the chief of the department, I think, did.

Q. Was the fire department protected by the police?

A. No.

Q. During Saturday night or the day of Sunday?

A. Not that I know of. We were the only department that kept up any organization in this city at that time.

Q. You say you did keep up your organization?

A. Yes, perfectly, and we followed the line of the fire all the way down Liberty street clear to Union depot.

Q. During the entire riot you preserved your organization?

A. Yes. I was attacked once near the grain elevator. I was directing a stream of water on the hotel opposite, and they thought I wanted to put water on the elevator, and they attacked me; but I got away, as I was on horseback.

Q. If your fire department had been protected by the police, could you have controlled the fire?

A. We could at the inception of it—when they started burning the cars. Only one car was lit at that time.

Q. The fire department, you say, is under the control of a chief engineer?

A. Yes; he has supreme control of the fire department, and in case of a large fire he is assisted by the commissioners.

Q. Is he subject to the order of the mayor?

A. No; he is not. He has nothing to do with the mayor.

Q. He is subject to the orders of the commissioners?

A. Yes; he is directed by them, but he has supreme control of the fire department. If he wants the assistance of the commissioners he sends an

alarm for them.

Q. In case the fire department needs protection, to whom ought you to look for that protection?

A. I suppose to the head of the police department of the city.

Q. Do you know, of your own knowledge, whether any demand was made upon the chief of police for protection?

A. Not of my own knowledge.

Q. Is the fire department a paid department?

A. Yes.

Q. Did you see the fire when it first started?

A. I saw the first of it—the first torch applied to the first car.

Q. Where was that car standing?

A. Beyond the round-house. And I thought they had an engine up there. They would fire one car and start it, and fire another car and start it, and fire another car and start it.

Q. Can you give us the street where it was?

A. I think they were all above Twenty-eighth street—the cars that were started.

Q. You thought they had an engine to start the cars?

A. I thought so—either that or a large gang of men. They started so rapidly.

Q. When those cars came down, where did they stop after they were started?

A. They came down—the whole yard was packed with cars down below the round-house, and they had the switches so arranged that they ran down to

the round-house. They were trying to burn out the soldiers. It was very plain what their motive was.

Q. The motive, at first, was not to destroy the railroad company's property, but to burn out the soldiers?

A. That was the motive, to my mind, as I viewed it from the hill.

Q. What were those first cars loaded with?

A. I cannot tell that.

Q. With oil?

A. No; they were freight cars first that were fired. Afterwards they started the oil cars down.

By Mr. Lindsey:

Q. As the fire progressed on Sunday morning, what seemed to be the motive?

A. It was general destruction then. They started the oil cars early Sunday morning.

Q. What time did the troops get out of the round-house?

A. I did not see them come out. I only know from newspaper reports.

Q. Did you see the mob as it approached the depot with torches, and the burning of Union depot?

A. No; I was at work on another part of the fire.

Q. How large was the mob during Sunday?

A. It would be hard to form an estimate. It was an immense crowd, for squares on Liberty street, breaking cars open and stealing—ten thousand or fifteen thousand anyway—just streaming back over the hill, taking the things away. Thousands of them were carrying away everything imaginable,

and going to the south side with them. They passed my house—crowds of them.

Q. Who were ahead—the men with the torches or the plundering posse?

A. The torches were first.

By Senator Yutzy:

Q. In what manner did the mob interfere with your men?

A. They would not let them get to the fire.

Q. They stopped your men?

A. Yes; they just got ahead in front of the horses and caught the horses by the head, and swore they would shoot the drivers if they would go any further.

Q. But they did not assault your men?

A. They interfered in every way they could. One of our men caught a man going along with a sword-cane punching holes in the hose, and he knocked him down, and took it away from him. They have that cane now.

Q. Did you not have one of your fire engines in position to play on the fire when the police offered to protect you from the mob, but your men did not then play on the fire?

A. The chief engineer can tell you that. I was not present when that occurred.

Samuel M. Evans, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. At 190 Fourth avenue.

Q. What was your official connection with the fire department in July last?

A. I was the chief engineer.

Q. How long have you occupied that position?

A. Since last May. I was the assistant chief for two years, and the engineer of a company before that, and the foreman of a company before that. I then resigned for sometime, and was then elected engineer afterwards, and was then elected assistant chief engineer, and then elected chief.

Q. State when the first alarm of fire was given?

A. On Saturday night, about eleven o'clock.

Q. From whence did the fire proceed—what part of the city?

A. The corner of Twenty-sixth and Penn streets—it was there the box struck.

Q. What did you do?

A. When the alarm came I was in bed. They fetched my wagon to me, and I went out there, and when I got to Eleventh street—driving there—they got in my way—certain parties—and called out: "You son of a bitch, don't lay any hose—you son of a bitch." But I said to them, "you can go to hell;" and I started on. It was on the street, and I went at a pretty rapid gait. When I got out as far as the "Independent" house, Mr. Coates, one of the fire commissioners, said to me: "Sam, drive in here, quick." I drove then into the engine house, and then went to Twenty-eighth and Liberty streets where the mob was. I looked up and saw the fire. It was a car—it appeared to be an oil tank car. At first, No. 7 was between Twenty-second and Twenty-third streets on the right side of Penn, in the gutter. They had no fire in the engine, and I said: "Where's your fire?" And they told me they had put a pistol to the head of the fireman, and made him draw the fire. I told the engineer then to turn her around and take her down to the house and to fire

up again. They went to the house, and I told them to stand there so as to be ready to go into service if we could get into service. Then they came up with a big gun on wheels—a cannon—pulling it along on the street. After they got up to where a few hose carriages were, they came to Twenty-third street—and I said, "what is the matter?" And all they said was to point the gun at us and said: "If you don't get out of that we'll blow you to hell." I said we had better come down here than go there. While I was standing there, an alarm came from East Liberty. I went out there, and when I went out there I thought probably it was the stock-yards, but I found it was a solitary house away down on Negley's run, a mile or a mile and a half from the railroad. Then I told the engine company at East Liberty to stay there in case they would burn Mr. Pitcairn's house, or set the stock-yards on fire, and that we would manage to get along without them. So they did not come in. Then I came in, and I think at eight minutes after three it was, when they sent a signal in that the fire was out. There was a big crowd on Liberty street, and somebody asked me to let them lay a line of hose to save Mr. Hardie's stable, and some property belonging to Mr. Denny. I told the foreman then of hose company No. 1, to lay a line of hose up Liberty street from Thirty-first street, and that if any stables got on fire, or any private property, to throw water on it. Then four men stopped me with guns, and asked me what I was going to do, and I said I was going to lay a line of hose; and they said, not a God damned line of hose. But I said to them that I was going to save private property, and then they said, that I could throw water on that, "but that if you throw any water on the company's fire we will shoot you and cut your hose," and everything else. While coming in they were carrying goods away from the cars. Everybody you would see, had a bundle on their shoulders or their heads.

By Senator Yutzy:

Q. What time of night was this?

A. Between three and four o'clock in the morning. I came down to Twenty-third street, but we could not go into service at all. They were shooting at that time out of the machine shop and the round-house.

Q. Who were shooting?

A. The soldiers, and the others were shooting out of the board pile.

Q. Firing at the round-house?

A. Yes; they took this gun and planted it in the street to shoot into the round-house, and these men in the round-house, when they would go to sight this gun, would shoot them. They had this gun loaded with links and pins belonging to the railroad company. After the fire started, I think it could have been stopped before it set the round-house on fire. I think at that time it could have been stopped, because in the morning, about six or seven o'clock, they commenced running down the wall—a crowd of them—and then pushed the cars up along the Allegheny Valley track, and when they would come to a car afire—one man I noticed particularly jump up on a car, and stop it alongside of another car afire. Then when it would catch fire they would open the brakes, and let it go down to the round-house. Then they threw something out of the round-house, and stopped the cars there, and then they got to throwing water out of the round-house on the cars. I was down on the corner of Twenty-third street when two rough looking customers came down, and asked me where the place to stop the water off was. They said they are throwing water out of the round-house. I told them to go to the head of Twenty-sixth street on Liberty, and that they would see a big iron plate in the middle of the street, and that they should lift that up, and put their hands down and stop it off. They said they will pick us off, and they wanted to know if there was no place in Penn street to stop the water off. I said no.

By Senator Yutzy:

Q. You knew they could not stop it off?

A. Yes; I knew they were rioters, and if they went where I told them they would shoot them, perhaps.

Q. You did not give the information for the purpose of getting the water stopped off.

A. No; I knew that they could not stop it off.

By Senator Reyburn:

Q. Were these two men strangers?

A. Yes.

Q. You are very well acquainted about Pittsburgh?

A. Yes.

Q. Did this crowd—all of them—seem to be citizens?

A. Some of them did, and some did not.

Q. What were the citizens doing?

A. Standing there—a great many of them—but they were afraid to speak or to do anything for fear of getting hurt—those that felt like stopping it. A good many were arrested. I saw the "black maria" very busy taking men down to the station-house, and I asked the policemen how many were arrested, and they said one hundred and thirty or one hundred and forty, for stealing, and in the morning I asked a man what they did with them, and he said that the mayor had fined them three dollars and costs, and let them go. I said they were all thieves, and he said that nobody was there to identify the property. I said it was not necessary to identify stolen property.

Q. Did he get the three dollars out of them?

A. That is what the policeman said—three dollars and costs.

Q. He did not let them go until he got that?

A. That is what he told me.

By Senator Yutzy:

Q. What time was the round-house set on fire?

A. About seven o'clock in the morning.

Q. How was it fired?

A. From cars on the Allegheny Valley railroad.

Q. Is that on Liberty street?

A. Yes; the track is on top of the wall until you come to a little piece on this side of Twenty-sixth street, and then it comes down and gets level with the payment—between Twenty-fifth and Twenty-sixth streets it begins to get on a level with the payment. These cars were stopped between Twenty-sixth and Twenty-seventh streets. One fireman told me—a fireman of Engine Company 8, in Philadelphia—that he got the water ready to throw, or was handling the line, when he said there was a car loaded with liquor in it burning, and it ran down into the cellar of the round-house, or the shop on the other side, and that that was what drove them out so that they could not do anything. When that liquor, burning, ran down into the cellar, it set the buildings on fire.

Q. Did any of your engines play on the fire on the railroad?

A. No; they would not let us. And we had as much as we could do after the fire started. As fast as the fire would come along we would move the engines down.

Q. How many engines had you?

A. Eleven of my own, and the chief engineer of Allegheny came over and fetched me three.

Q. They would not allow you to play on the railroad property.

A. No.

Q. Did you ask protection from the mayor?

A. I do not know that I saw him but once. He and Roger O'Mara came up Penn street in a buggy, and turned out Liberty, and then O'Mara came back

some way without the mayor.

Q. Did you ask for protection?

A. No; I did not see anybody to ask.

Q. Do you know of any protection given to you by the police?

A. No protection at all, sir. If I could have got protection when I first went out to the fire, we could have kept the other cars from burning. We could have pulled them away sufficiently far to stop the oil tanks from setting any of the rest afire, and kept them cooled off.

Q. Do you think that the police force of the city could have protected you so that you could have played on the fire?

A. If they had not been demoralized, they could. If they had had a police like the New York police, they could have kept the crowd back.

Q. How many men would it have taken to protect you sufficiently?

A. After the fire got started, it would have taken right smart, but before that I think that one hundred and fifty or two hundred men could have stopped the whole thing, because police can do more than soldiers.

Q. We have testimony that the police offered to give protection to one engine?

A. Let the police come up and name the engine. I saw that in the papers.

Q. Do you know the parties referred to?

A. Motts and Goldsmith. They came out in the papers and said they went to one man named Kennedy, and told them that they would give protection, but I went and asked them, and they said that they never came to them at all.

Q. These gentlemen will testify to that?

A. Yes; I can have them at any time at all. I will fetch them to you. None of them came to me; and I am the proper person to come to for a purpose of that kind.

By Senator Reyburn.

Q. Were you about on Thursday or Friday?

A. No.

Q. You say that a couple of hundred or one hundred and fifty policemen could have driven the crowd back?

A. On Saturday, one hundred and fifty policemen, well armed, and staying together, could have moved the crowd away so that they could have moved the trains.

Q. But you were not there?

A. Not until Saturday night, when the alarm was given.

Q. On Saturday and Sunday morning, when you were there, were the police doing anything to prevent the pillaging?

A. After I came back from East Liberty, I saw the police arresting people for stealing. The "black maria" was busy taking them down to the station—the Twelfth ward station—and then running them down to the Central station.

Q. From what you saw, do you think it would have been possible for the police to have stopped it?

A. It would have been impossible for what was there to have stopped the mob. They could catch the people when carrying things off.

By Senator Yutzy:

Q. Were you a witness before the grand jury?

A. No; this is the first time I have been called upon.

By Mr. Englebert:

Q. Did you see any of the soldiers?

A. Yes; about the round-house. As soon as the soldiers went out of the round-house we went into service, and kept right on then. We could not go into service before, because they were firing both from the round-house and from the board-pile—the rioters.

By Senator Yutzy:

Q. When the soldiers came out of the round-house, did they come out in ranks?

A. Yes. As soon as they came down on to Penn street, I noticed a squad on each side watching the houses and buildings and alleys, and the men with the Gatling gun were watching behind.

By Senator Reyburn:

Q. Were they well handled and marching orderly, or were they demoralized?

A. No. They marched out orderly. You could not have told from the way they looked that anything was the matter. I expected to see them come out and run every way, and I was astonished. When they began coming out everybody ran from them, but when they saw them come out in good order, and keep in a good line, then they began to stand still again—the people did.

Samuel A. Muckle, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the Twenty-third ward, Pittsburgh, at the present time.

Q. Where were you residing in July last?

A. In the Fourth ward, Allegheny city.

Q. What business were you engaged in all that time?

A. No business at all at that time. I was employed by the railroad before that.

Q. What position did you hold on the railroad before that?

A. Conductor.

Q. Of what road?

A. The Pan Handle.

Q. Passenger or freight?

A. Freight, at that time.

Q. Was there any pre-arranged plan among the railroad men for a strike?

A. None that I know of—if you speak of the strike that occurred in July.

Q. Yes?

A. None that I know of.

Q. Was there any arrangement being made among the men for a strike to take place then or any other time?

A. We had an organization here at that time, called the Trainmen's Union. Of course, if I have to answer all these questions, I am willing to answer them, if they do not conflict with this organization. Of course, I went into that organization, and I am under an obligation.

By Senator Yutzy:

Q. Oath bound?

A. Yes.

By Mr. Lindsey:

Q. It is a secret organization?

A. So far as our own business is concerned.

Q. As far as you can, you will give us what information you have upon the causes of this riot, and whether it was pre-arranged among the men?

A. The organization is not in existence to-day, but I still feel myself duty bound to the organization. I will answer this. There was a union called the Trainmen's Union—an organization—and there was a talk of a strike in June. It was to have taken place on the 27th day of June. That fell through, and with the strike in July, we had no business of that kind.

Q. What induced the men to arrange for a strike on the 27th of June?

A. This organization was gotten up for the benefit of the railroad men—for their own protection—for to protect them in anything that might be brought up.

Q. What class of railroad men?

A. The transportation department entirely.

Q. Including conductors and brakemen?

A. Yes; and engineers and firemen.

Q. Did it include any passenger conductors and brakemen?

A. Yes.

Q. The whole?

A. Yes; when I speak of transportation, I include the whole transportation department.

Q. Was it the ten per cent. reduction made on the 1st of June that induced the men to arrange for that strike?

A. I do not know that it was positively that, more than some other grievances that might be brought up. It was organized more for the protection of ourselves in any grievances that might be brought up. Of course, the ten per cent. would be included.

Q. Were there any other grievances except that ten per cent. reduction?

A. Not at that time.

Q. Had the men any grievances or complaints to make outside of that, when it was talked of that a strike should take place on the 27th of June?

A. I believe there were.

Q. What were they?

A. In regard to the classification of engineers and the amount of pay they received, &c.; that was something I did not particularly understand at that time.

By Senator Yutzy:

Q. The object of the brotherhood was to abolish this classification?

A. The object was to protect themselves.

By Senator Reyburn:

Q. They considered this grading unjust?

A. Yes; they considered it unjust, which it certainly was.

By Mr. Lindsey:

Q. You did not organize a strike for the 27th of June in regard to any future grievance.

A. No.

Q. It was the ten per cent. reduction and the classification of engines that induced you to arrange that strike for the 27th of June?

A. Yes.

Q. In arranging for a strike, what did the railroad men propose to do—stop all trains—just simply quit work?

A. In case of their striking, they simply proposed quitting work themselves—standing still or going to their homes, or wherever they wished to go. I never heard of any arrangement made as to what they would do.

By Mr. Means:

Q. Were any resolutions passed in your body to stop trains?

A. No.

By Mr. Lindsey:

Q. Were there any resolutions to interfere with the men who desired to work?

A. No.

Q. You said it fell through. What broke off that arrangement to strike on the 27th of June?

A. It was because it was generally thought it was not solid enough; it was not worked in the right way.

Q. How extensive was the arrangement—how wide did it extend?

A. I did not think it was very extensive; at least, I did not think it was very solid.

Q. Do you know how many organizations this Trainmen's Union had in existence—how many lodges?

A. I am not prepared to say; I do not know.

Q. Did it include all the trunk lines?

A. I think it did.

Q. Did it include all the employés of the Pennsylvania Railroad Company?

A. It included all those who joined the order.

Q. What other roads?

A. Most all the roads out of Pittsburgh; in fact, I guess all the other main roads.

Q. Where did that union originate?

A. I believe in Pittsburgh.

Q. When was it abandoned?

A. Previous to the strike.

By Senator Reyburn:

Q. Then there was no organization at the time of the strike.

A. No; we had no meeting for some time previous to the strike.

By Mr. Lindsey:

Q. For how long previous?

A. Not within a week, and that was very small. The meeting called last was called without the approval of the right party in this union. His attention was called to a poster struck up on a telegraph pole by a certain party, and I rather think it was put up just as a burlesque in the first place. There had not been a regular meeting for some time previous to the strike.

Q. Can you tell what induced them to abandon the union?

A. I have my own idea, but I don't know whether I am right. My impression always was that the railroad men, in connection with the Trainmen's Union, were afraid to attempt it for fear of being discharged from the road. I claim it was lack of nerve on the part of the men. I was discharged myself after the first trainmen's meeting I ever attended, and I am satisfied I would still be a union man if there had been any men with me.

Q. When did you first learn of the strike on Thursday, July 19?

A. In the neighborhood of eleven o'clock, in the forenoon.

Q. Had you any intimation of it before that?

A. Not in the least. In fact I was surprised, and I didn't believe such a thing was going on until I walked to Twenty-eighth street, and saw it to be a fact.

Q. When you got there who did you find there?

A. A few railroad men, and I believe a few policemen were there, and some citizens.

Q. How many railroad men were there?

A. I cannot tell you that—I suppose twenty or thirty or forty or fifty. A great many of those men I didn't know.

Q. What road were those men working on at that time?

A. I think the majority of them belonged to the Pennsylvania railroad.

Q. What were they doing?

A. They didn't appear to be doing anything. They just appeared to be standing around talking.

Q. Was there any effort made to move any trains while you were there?

A. Not at that time.

Q. Were any made in your presence?

A. Not just in my presence. I believe they undertook—that is only hearsay—but I could see from Twenty-eighth street down towards where they started the trains west of Twenty-eighth street, and I think on Friday I saw a few engines apparently coupled to trains. Whether they intended to go out is more than I can tell of my own knowledge. I know they didn't go out.

Q. Did you see anybody try to start a train on Thursday?

A. No, sir; I didn't see anybody try to start a train during the trouble.

Q. Were you there during Thursday night?

A. I was not there during any night.

Q. What was the object of the men assembling at that point?

A. From the understanding I had from the men, after talking with a few of the men, it was that they had struck against the double-headers.

Q. Were those men members of the Trainmen's union?

A. Some of them.

Q. Why were they assembled in force on the track?

A. That is more than I can tell what their motive was.

By Senator Reyburn:

Q. What did they say about it?

A. Nothing particularly—nothing more than that they had struck.

By Mr. Lindsey:

Q. Did you talk with them?

A. I talked with some few of the men I knew.

Q. Did you admonish them that it was wrong to be assembled in such large numbers there?

A. No.

Q. Was anything said about that?

A. Not that I know of. I was not in a very good humor just as I got up there. I had been insulted just before I reached Twenty-eighth street.

Q. By whom?

A. By Mr. Watt. When I reached there there were only a few of those parties that I knew.

Q. The Trainmen's Union, at that time, was not in existence?

A. They had not had a meeting for some time previous.

Q. Did they have any meetings after that?

A. Not that I know of.

By Senator Yutzy:

Q. Was the organization formally disbanded?

A. It just died out. They had no meetings called of the order.

By Mr. Larrabee:

Q. When did this union start, to your knowledge?

A. It was about the latter part of May, I think, or the 1st of June.

By Mr. Lindsey:

Q. As a member of the organization, what action would your organization have taken in reference to that unlawful assemblage there?

A. My idea is that they would have discountenanced anything of the kind—any burning, or pillaging, or anything of that kind.

Q. Or any interference with trains?

A. That is more than I can tell. I cannot tell anything about what men will do after getting started.

Q. Would your organization have any means of disciplining the members of it who interfered with the movements of the trains?

A. Most certainly. Our order had a head.

By Mr. Means:

Q. You mean to say, in your organization, according to the rules and regulations of it, if they struck, they passed resolutions that no trains should go out?

A. I didn't say anything of the kind.

Q. Was it the intention of the men to interfere with the movement of the trains?

A. Not to the best of my knowledge. I never heard any such resolution, and I never heard any person speak of it that way.

Q. Do you know any of the men that did interfere with the movement of the trains who belonged to the union?

[Witness did not answer.]

By Mr. Lindsey:

Q. In that arrangement to strike on the 27th of June—how extensive was that strike to be—how far was it to extend—what roads was it to include?

A. It included the roads running out of Pittsburgh, so far as I know.

By Mr. Engelbert:

Q. What roads are they?

A. The Pennsylvania railroad, the Pan-Handle, the Fort Wayne and Chicago, the Allegheny Valley, and the Cleveland and Pittsburgh.

Q. Was the Baltimore and Ohio not included?

A. I cannot say particularly.

By Mr. Lindsey:

Q. Was your organization notified of this strike that took place on Thursday, the 19th?

A. No, sir; no more than what I told you, that I was met on the corner of Eleventh street, near the Rush house, and told of it, in the neighborhood of eleven o'clock.

By Mr. Engelbert:

Q. You said you were discharged on account of being a union man?

A. I am positive of it—at least the message I received bore nearly about the same words, but not just in that way.

Q. That, of course, was a grievance?

A. Yes.

By Mr. Lindsey:

Q. Did your Trainmen's Union include the employés of the Baltimore and Ohio road?

A. Yes.

Q. Was that strike in pursuance of an arrangement made in your union?

A. Not to my knowledge.

Q. Was that formally communicated to your union here—the strike that occurred there?

A. No; nothing more than hearsay on the street.

Q. Did the members of your union make any effort to have those parties disperse and go to their homes during Friday, Saturday, and Sunday?

A. Not that I know of—no more than I did myself.

Q. What did you do in relation to it?

A. I did take some men out of the crowd at Twenty-eighth street, men that belonged to the Pan-Handle road. At Twenty-eighth street, that day, I was met by this Watt. He says to me, I want you to leave this property. Watt was the man; but I didn't know him only by sight. I thought, of course, he was an employé of the company. He said, I want you to leave the company's ground, and I asked him who he was. He replied that it didn't make any difference who he was, that he knew who I was, and my motive for being there. I said if he knew my motive he knew my business better than I did, for I hardly knew myself what I was there for. And after trying to give me a bluff, as I call it, that he was Mr. Watt, and employed by the road, I went up towards Twenty-eighth street, and there understood that they were going to send for what they called the Pan Handle roughs to head this trouble. I knew the great majority of those men—between eighty and a hundred of them were discharged off the Pan Handle road, and had been discharged prior to this strike. The majority of them were in town; some had left town; but a great many of them were here, and they were pretty lucky if they could get one meal a day. I didn't want to see any of them get into further trouble, and when I heard this I was afraid that some of those men would enter into this thing through persuasion. I went to them singly, and took some half a dozen out of the crowd, one at a time, and told them not to have anything to do with the affair. I said, I have been discharged from the Pan Handle, and you, and there will be nothing in this of any benefit at all. I took out six or eight men from different parties that had belonged to the Pan Handle railroad.

By Senator Reyburn:

Q. What did they mean by sending for the Pan Handle roughs?

A. They thought that a few men of that road were rougher than anybody else, or had more pluck. I don't know—it was a rumor I heard.

By Mr. Means:

Q. Those men you spoke to went with you willingly out of the crowd?

A. Yes.

By Senator Reyburn:

Q. Were you on the ground of the Pennsylvania railroad, or on public ground?

A. It was on their ground. I was walking right up the track. After this man was going to bounce me, I walked up to Twenty-eighth street, and I told him I thought I would have the privilege of standing there on the street.

By Senator Yutzy:

Q. What do you mean by bouncing you?

A. Why, if I had weakened a little, I suppose he would have thrown me off.

By Mr. Lindsey:

Q. Were you there during the day, Sunday?

A. I was not. I was not on the ground at all after Saturday evening—after one of our engineers was wounded very badly. I helped to carry him up Liberty street on a shutter. I was not on the ground afterwards.

Q. Did you see any considerable number of the Pan-Handle men or employés in the crowd?

A. Not a great many.

Q. Who seemed to be the leaders of the crowd?

A. That is more than I can tell you.

Q. What business are you engaged in now?

A. Not any.

Q. Do you reside in the city?

A. Yes.

Q. You are still out of employment?

A. Yes; and likely to remain out so long as some of these men hold their positions on the roads.

By Mr. Larrabee:

Q. What position did you hold in this organization?

A. I was the president.

Q. You know nothing of this organization being in existence at that time on any roads except those that ran out of Pittsburgh?

A. At which time?

Q. At the time the strike was contemplated, in June?

A. They might have been contemplating such a thing, but the organization at that time, in June, was not so extensive as it got to be afterwards.

Q. Then it did increase afterwards and extend?

A. Yes.

Q. Do you know whether it did exist on other roads in June?

A. I don't know.

Q. You think it started here and spread?

A. Yes.

By Senator Yutzy:

Q. You say it started here?

A. Yes; I believe so. It was first organized here.

By Mr. Larrabee:

Q. Were you here at its birth?

A. Yes; and I have no objection either as to being at the first meeting.

By Senator Reyburn:

Q. Was it beneficial?

A. It had not got that far along, but it would have been, probably.

By Senator Yutzy:

Q. Was it the object of this organization to control the railroad companies, as to wages and running regulations?

A. The object, no doubt, of the organization was to protect themselves, no matter what grievances might be brought up, if based on good authority. The union would attend to them in its own way, whatever it might be.

Q. In what way did they propose to protect themselves?

A. That would have to be brought up before the order before they could tell that.

By Mr. Larrabee:

Q. Then there was no definite plan by which the railroad companies were to be controlled or coerced into coming to terms with the union?

A. No.

Q. That was left to be determined as circumstances might arise?

A. That is it exactly.

By Mr. Means:

Q. You said, a while ago, that this last meeting you spoke of was not regularly called?

A. No.

Q. You would have been the proper person to call it?

A. Yes.

Q. It was not done at your instance?

A. If it had been called it would have been through me. I had nothing to do with this poster on the telegraph pole; but after being on the pole for a half day, I concluded, rather than dupe the men, to let them meet, but nothing was done.

By Mr. Larrabee:

Q. Do you know how many members of this organization there were in Pittsburgh at the time of the contemplated strike in June?

A. I don't know.

Q. Do you know how many divisions there were in this city?

A. No.

Q. Have you any idea?

A. In Pittsburgh?

Q. Yes?

A. Three or four in Pittsburgh—three, I think.

Q. How many members belonged to the division you were connected with?

A. That is a question I cannot answer—I cannot tell.

Q. Can you give an approximate estimate of the number in Pittsburgh, at that time?

A. Four or five hundred.

Q. Was there not an understanding in the union, that whenever there were differences between the train men and the railroad companies, that the railroad companies were to be brought to terms by the members of the union, by striking on some particular day, without any notice to the companies, so that all traffic would be stopped?

A. I don't know of anything of that kind.

Q. Was there not some such talk, that that would be the most effectual way of bringing the companies to terms?

A. There was a great deal of wild talk among the men.

Q. There was no such proposal made in the union?

A. No.

Q. And no definite plan was adopted by the union to act upon the railroad companies in any way?

A. No.

By Mr. Engelbert:

Q. When any men wanted to become members of the organization, did they have to pay any initiation fees or dues?

A. They would have had to in course of time, but, up to that time, it was more a charitable institution than anything else. Anybody that had five cents or a quarter, and wanted to give it, could give it.

Q. There was no specific sum at that time?

A. No.

Q. Nor since?

A. The union is not in existence.

By Senator Yutzy:

Q. What do you mean by a strike—a railroad strike—what is the usual custom—what do you mean by it?

A. What I have always understood by a strike, is the men quitting work.

Q. You understand that they are all to quit?

A. Most undoubtedly.

Q. For the purpose of stopping traffic—the running of trains?

A. If that would stop it—most undoubtedly.

Q. Is it customary, in railroad strikes, for the men who quit work, to stop others from working, by violence or otherwise?

A. I have never seen it—by violence.

Q. Only by persuasion?

A. Only by persuasion. I have heard about a great many men being stopped, but, if our railroad men would get up and testify—I have heard railroad men claim that they wanted to work, but there was not one of them, that was not in the mire just as deep, while the thing was going on.

By Senator Reyburn:

Q. You mean the trainmen?

A. Certainly.

By Senator Yutzy:

Q. What class of men did you take into your organization?

A. Men belonging to the transportation department.

Q. No outsiders—no mill men?

A. I believe not.

Q. Had you a constitution and by-laws?

A. Yes.

Q. Have you got them in your possession?

A. I have not.

Q. Who has?

A. That is more than I can say.

Q. You don't know.

A. No.

Q. Have you a copy of them?

A. I have not.

By Mr. Larrabee:

Q. Can you give us the names of any men that would be willing to appear before our committee, and give information about the strike or their grievances?

A. Yes; an engineer by the name of John Hassler, residing on Wood street, the second or third door to the left of Bidwell. I think he would be an important witness; also, an engineer by the name of William Robb. He lives in the lower part of Allegheny somewhere, but I cannot tell his residence exactly.

By Mr. Means:

Q. You say that the union does not exist now. Do you know of any other organization that is organized to produce the same effect.

A. No; no more than what has always been in existence. The locomotive engineers, of course, have their union.

G. Gilbert Follensbee, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In Pittsburgh.

Q. Where is your place of business?

A. On Fifth avenue—No. 42.

Q. What is it?

A. I am in the clothing business.

Q. In company with some other gentlemen, did you call on the mayor during the disturbance in July last; and, if so, give us the circumstances?

A. On the evening of the 21st of July, (Saturday,) between seven and eight o'clock, I heard that parties had got into some gun stores, and I went to my friend Mr. Bown, and then found Mr. Edward Myers; and after talking a while, we thought it would be prudent to see the mayor, and tell him that we thought it would be prudent to get a posse, and come down and protect Mr. Bown's gunshop. We saw the mayor, and said: "You are probably aware that some gun stores have been broken into;" and we implored him to send a posse to protect the gun stores.

Q. What reply did he make?

A. I do not remember his reply, but he seemed to be very indifferent, and I implored him, for God's sake, to do something, and that we three would volunteer, and that probably with fifty men or less we could protect Mr. Bown's store.

Q. Did you offer to be sworn in?

A. I volunteered to be one of the posse.

Q. What reply did he make to that?

A. I do not remember.

Q. Did he say in response to your application—did he say whether he had the policemen or not, or did he make any excuse that he could not raise them?

A. No; I do not think he made any reply in regard to his police. I was aware that his police were small and scattered around the city, and my idea was to have him swear in some of us as special police.

Q. Did he refuse to swear you in as special police?

A. He did not take any action in the matter.

Q. Did he send anybody to the store?

A. Not that I am aware of.

By Senator Reyburn:

Q. Did the mob come there?

A. Yes; Mr. Bown left his store and came to my store, and while there, we heard the mob.

By Mr. Lindsey:

Q. How long before the mob came down had you made this call upon the mayor?

A. Two hours, at least—two hours—an hour and a half or two hours. Before the mob got there, I went back to Mr. Bown's store, and asked him if there was no place to secrete the arms, and they took them down into the cellar and vault and secreted a good many of them.

Q. Did you see the mob?

A. Yes; I saw the mob in the store, but not in front of the store, because we had gone in the rear private way. We could see the store full of people—probably one hundred to one hundred and fifty were in the store.

Q. What class of men were they?

A. They did not seem to me to be any particularly riot element, so far as appearances were concerned. They did not look like tramps or roughs.

By Senator Reyburn:

Q. Do you suppose they were citizens of Pittsburgh?

A. I suppose so.

By Mr. Lindsey:

Q. Did they take away any more arms than they wanted themselves?

A. I do not think they left any.

Q. Was there any ammunition in the store?

A. I was so informed.

Q. What was done with that?

A. They took the ammunition too.

By Senator Yutzy:

Q. Was the mayor aware of those arms and that ammunition in the store?

A. It was the most prominent gun store in the city.

By Senator Reyburn:

Q. Could any force of determined men have stopped the riot?

A. I am only speaking about that gun shop, and I think that from thirty to fifty determined men could have prevented the riot at that place.

By Mr. Lindsey:

Q. You were willing to be one of them?

A. I said so.

Q. Did you tell him you wanted a force to guard that gun store?

A. Yes; I said for God's sake do something to protect that gun store. I looked at it this way: That it would be terribly fatal if the mob were to get in and get guns and ammunition.

By Mr. Means:

Q. Did the major know who you were?

A. Intimately.

Q. You are intimately acquainted with him?

A. Yes.

William H. Bown, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. What is your business?

A. I belong to the firm of James Bown & Son. Our place of business is located on Wood street, and our business is cutlery and guns and revolvers, and all kinds of sportsmen's articles.

Q. Do you keep ammunition, also?

A. Yes; powder and shot and caps and wads.

By Mr. Yutzy:

Q. Fixed ammunition, also?

A. Yes.

By Mr. Lindsey:

Q. What efforts did you make to secure protection during the riot?

A. My father went to see the mayor, with Mr. Follensbee. He went early in the day to Mt. Washington, to see a shooting match. We were not aware of any excitement in the city, but word came to me. In the afternoon I saw a telegraphic dispatch from some one about the mayor. It was the mayor's clerk that brought it down—setting forth that there was a mob organized to break into the different gun stores that evening. I judge between five and six o'clock that came down. He wanted me to remove all our arms. I said that it was so late in the day that I did not know where to place them—that we had a large number, but that, nevertheless, we would try to remove all we possibly could. I then got both the porters and took the arms out of the windows, and a lot of ammunition, cartridges, and cans of powder, and I got some paper and covered over it, to convey the impression to those passing along that we were about cleaning the window, and I left the paper there to disguise it. I had not commenced to take out the arms in the cases. We had two cases that run about sixty feet long. I went to supper, and about six o'clock, when I came back, I found six policemen at the store, but the mayor's clerk came down about seven o'clock, and said they were required at the Central station. Shortly after that father came. He could not get into the front, from the fact that we had the wire across and the screens put up, and I had also gone out and got a couple of scantlings, and put them against the doors, and braced them against the counters. I did not anticipate that they would break in the large glass windows. We had commenced to take down the arms and put them in the magazine, which we have in the cellar,

where we keep the powder, and we got down, I should judge about forty, and were kept pretty busy in getting them down, when the large alarm bell struck and I heard the glass go. I came up the stairs, and when I got to the top I found they had knocked the lock off, and I immediately went down, but I could not find the key. I was in my shirt sleeves at the time, but I closed the bolt and put out the gas and came up stairs, and just as I came up I met two parties right at my desk—I had a desk where I do my correspondence—and one of them says, "why in the hell don't you turn up the gas?" I suppose he took me for one of the party who came in. I passed him and went on up stairs, and stayed there until after the racket was over.

By Senator Yutzy:

Q. Where was the mob?

A. On the lower floor; of course they came up stairs, and then I went up to the third floor.

By Mr. Lindsey:

Q. What was their manner as to being boisterous or demonstrative?

A. When they came in there, I thought bedlam had broken loose.

Q. What class of men were they?

A. What we term from the south side—I judge workingmen. They would just come to the cases and break them in. A few of them had old muskets.

By Senator Yutzy:

Q. That they brought with them?

A. Yes; and one party was very kind, and left his and took a new gun.

By Mr. Lindsey:

Q. After these policemen were taken up to the central station, did any of them return?

A. That I cannot say, but I understood from those that came in after the mob went away, that they were out there, but the mob was too large for them to handle.

By Mr. Reyburn:

Q. Did the mayor's clerk come down and order those policemen to report?

A. Yes.

Q. Did he take them away from your store?

A. Yes; at that time everything was quiet about the city.

Q. He had notified you that there would be an attempt made?

A. It was reported that there would be an attempt made on the different gun stores.

Q. Yet he took these policemen away?

A. Yes; because at that time there was no excitement at the lower end of the city.

Q. Did they return before you were driven out of the store by the mob?

A. I did not see them; but I cannot say.

Q. But were they ordered back for duty before this mob came?

A. I understood that, but I did not see them. I was in the store at the time, and did not come down, because I thought discretion was the better part of valor.

By Mr. Lindsey:

Q. You saw that dispatch?

A. Yes.

Q. Who was it signed by?

A. I did not notice. I think a fictitious name was to it. I did not notice any name to it, particularly. It was the mayor's clerk. It was late, and all our help had gone off, and the boys had gone to supper, and I was alone, with the two porters.

By Mr. Yutzy:

Q. How many guns and pistols were taken out of your store?

A. Something over four hundred. They took everything—carving knives, butcher knives, and forks, and ammunition, and cutlery—everything they could take.

E. A. Myers, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. At No. 60 Liberty street.

Q. Where is your place of business?

A. No. 145 Wood street.

Q. You are connected with the office of——

A. I am connected with the of the *Post*.

Q. Relate what occurred when you went to the mayor?

A. I may say that Mr. Bown, senior, came over to my place, and he and Mr. Folensbee went with me up to the mayor, to notify him to send policemen down. After we went there, the mayor at first said he was unable to send any assistance, as the police were scattered through the city, but he would do the best he could. We went to Mr. Johnston's gun shop, a short distance above the mayor's office, and staid there awhile, and came down to the

mayor's office, and then walked down to Mr. Bown's establishment, and remained there sometime, without the police coming. Then Mr. Bown and myself went back again, but on the way we met them coming up—we met them coming up—some six or eight of the police—coming; and there were at least six or eight policemen there during the disturbance. The crowd that came up, I don't think, at first numbered over seventy-five or eighty—half grown boys. There seemed to be half a dozen armed with muskets, but a large crowd was collected around the streets.

Q. What effort did the policemen make to drive them back?

A. Nothing, whatever; but they staid there. I spoke to the mayor's clerk; I said there were not enough of them to do anything, but they staid there.

Q. Was the crowd armed when they came there?

A. They apparently had a few muskets and guns with them, as far as I could tell.

Q. Did you offer your services, as a policeman, to the mayor?

A. Not as policeman specially, but I offered to do anything that I could to defend the place—not to the mayor, but to Mr. Bown. Mr. Follensbee, I believe, did.

Q. Mr. Follensbee did?

A. Yes; my impression at that time was, that fifteen or twenty determined persons could have stopped the whole rumpus in front of Mr. Bown's place.

Q. Did the mayor make any demand on the citizens for help?

A. Not that I know of. The mayor told me that his police force was scattered around so that he was unable to get together enough to be of any special service. But they did, however, gather up six or eight of them, and they came down here.

Joseph S. Haymaker, sworn with the uplifted hand:

By Mr. Lindsey:

Q. Where do you reside?

A. At Laurel station, on the Fort Wayne railroad.

Q. State what you know of the riot that began on the 19th of July?

A. I believe it was on Saturday—I think that was the 20th of July—that I came up to the city. I had been home sick for almost two months before that time. I went out to Twenty-eighth street, and at the time I went there I found a very considerable crowd of men there. I knew a very few of them. The great majority of them seemed to be strangers. I say this from the fact that owing to my political knowledge in the city, having made many political speeches here, I had gotten to know a great many men. When I came to Twenty-eighth street that afternoon, about two o'clock, I found a large number of men—probably from twelve hundred to fifteen hundred—right across the railroad track at Twenty-eighth street. I met some men I knew, and we were talking over the probability of a difficulty between the troops and the strikers; and these men, or one of them, said there was no danger of the soldiers firing on them—that the people of the State of Pennsylvania were with the strikers in this matter. Whilst we were talking in that way, the Philadelphia soldiers came up the railroad. I was asked the question two or three times, whether or not I thought the soldiers would fire on the citizens, and I said I would not trust them, and, so far as I am concerned, I am going to get out of the road. They are strangers here, and if ordered to fire will fire. If they don't, they are not good soldiers. I was standing then right in front of what they called the sand-house. Three or four gentlemen were there at the time with me, and John Cluley, the painter. I said to them: now, I have had a little military experience during the last war, and I said we will get out of this and go down the hill-side. I got them to go with me. The Philadelphia men came up, and formed on both sides of the track, clearing the track by forming a square, open at the lower end. At this time I was on the hill-side, about eighty or ninety feet, probably one hundred feet, above

where they had formed. In that formation of the square there was a portion of a company—I suppose about twenty or twenty-five men—that had yellow plumes in their hats—Philadelphia men—who were swung off from the left of the square, and tried to force back the mob from Twenty-eighth street. Failing in that, then a company was brought up from the lower end of the square—brought right up between the two lines in this way, [illustrating,] right past where the Gatling guns were stationed, and brought face to face with the mob. They marched up until they were within probably twenty-five or thirty feet of the mob, and then halted for about a second. At that time I noticed the sheriff's posse standing in front of where they were standing, trying to get the mob to move back. Then these men moved at a charge bayonet, and went right up to the mob, and I saw several of the mob catch the bayonets and push them down. Then I saw three or four stones thrown from the little watch-house. These stones were thrown right through into this company coming up. Then I heard a pistol shot fired, and probably two or three seconds after that three or four other pistols shots were fired just like that, [illustrating,] and then I saw two or three of the soldiers go down. Then the stones began to fly down along the line, in among the soldiers, and the firing first began right across the railroad track. I don't know what company or regiment it was, but they had black feathers. They were right in front of this square, and the first musket firing began there. I noticed that. Then I heard, probably a dozen of boys hallo shoot! shoot! down along the line, then the pistol shots began, and the musket shots began, and I got down in a ditch behind where I was, and staid there until it was all over.

By Senator Yutzy:

Q. This call of shoot, shoot, where did it come from?

A. I won't be sure about that. I saw some of the officers strike up the guns with their swords, and I saw some pulling of the men backwards inside the square. Then, just right after that, there was a general volley right along the line.

Q. A volley or a scattering fire?

A. File firing—each man for himself.

By Mr. Lindsey:

Q. Did you hear any order given by any officer to fire?

A. No; nor do I believe any order was given. I say that, for the reason that, had there been an order or command given, there would have been simultaneous firing, but it seemed to me, when the fighting commenced, that everybody was taking care of himself.

By Senator Reyburn:

Q. That is, they were protecting themselves from something that was going to injure them?

A. No; but as fast as a man got his gun loaded he would fire, and as fast as the others could get a brick they would throw it.

By Mr. Lindsey:

Q. What effect did the firing of the soldiers produce on the crowd?

A. Right by me, on my right hand an old man, and a little girl on my left hand, were shot dead. I got into the ditch, and I know it was full—the ditch.

By Mr. Means:

Q. It was not a regular volley of musketry?

A. No; it was every fellow for himself.

By Mr. Lindsey:

Q. Do you know how many persons were killed there?

A. No; but when I came up from the ditch—it is not a regular ditch, but a wash down the hillside—when I raised up, somebody else was shot, and I

got down again. When I raised up the second time everything was quiet. I looked down over the bank, and several men were lying there dead.

Q. You say that an old gentleman was killed?

A. Yes.

Q. And that a little girl was killed?

A. No; she was shot right through the knee, and I pulled her down into the ditch and tied a handkerchief around her leg. There was a physician there—I think Dr. Schnatterly, of Bellevue, and he took charge of her, and I heard she died that night.

By Mr. Reyburn:

Q. This crowd standing there—what business did they have there?

A. They had no business there.

By Mr. Yutzy:

Q. Had you any business there?

A. None at all; but I had never seen a strike before, and I went up to see what it looked like. Right down along the railroad there was probably ten feet of ground, or twelve feet—right along the railroad, in front of the troops, occupied by a class of men that I had never seen in the city of Pittsburgh before—ragged looking and dirty looking. There is one thing about Pittsburgh people, that you can tell them on the street—at least, I think, I can. I walking along the street, if a man comes from Philadelphia or any other place, I think I can tell him. In other words, I know he don't belong here. I don't know the reason why, but we get to notice our own people, and I say that that crowd of people along there I never saw before. They looked here [illustrating] like people that I never saw before. I believe them to be strangers not only to Pittsburgh and Allegheny county, but to Western Pennsylvania, and, in fact, to the State of Pennsylvania.

By Mr. Lindsey:

Q. How large was that crowd?

A. There were five hundred or more of them fronting the railroad.

By Senator Reyburn:

Q. There is a kind of a platform there?

A. The road runs along six feet below the bank, and then the bank runs back about fifty feet, and then the hill commences for one hundred or one and fifty feet above that.

Q. Did this crowd throw stones?

A. Yes; and just here I will give another reason why I believe that crowd to be strangers in the city of Pittsburgh. The most of our men here—our laboring men—wear dark clothes, but I saw men in that crowd with light pantaloons, and yellow pantaloons, and two men with velveteen coats, and those men seemed to me to be making the most noise down in front of the soldiers. At that time, in my mind, I thought they were tramps. Of course, I can't say that of the whole crowd, but I say that the men making the demonstrations were men of that class.

By Mr. Lindsey:

Q. Did that fire from the militia disperse the crowd?

A. Yes; in firing, very unfortunately, they fired over the heads of the people there, and killed the people above. If they had lowered their guns eight inches they would have killed a class of men that we could very well get rid of.

Q. Did they disperse?

A. Yes.

Q. In what direction?

A. Some went up the hill-side, and the mob in front of Twenty-eighth street, ran down Twenty-eighth street to Penn.

By Senator Reyburn:

Q. Did the soldiers attempt to shoot at them as they ran up the bank?

A. Yes; I suppose the firing lasted a minute and a half. The soldiers began firing right down the line, and probably some of them fired four or five shots. When the crowd broke, they ran up among the people on the hill-side, and some of them ran into the ditch where I was. The rest of them went on up the hill-side. I noticed one thing, that the old soldiers dropped flat down when the firing commenced, while the others ran.

By Senator Yutzy:

Q. You mean the old soldiers in the crowd?

A. I mean that.

By Mr. Lindsey:

Q. Do you think that force of soldiers, with twenty rounds of ammunition, could have held their position and kept the crowd off during the night?

A. Not as strangers, they could not do it. I mean this—had that force been posted as to the situation here, they could have done that—they could have kept the mob off with half their number; but not being acquainted, I think they did about the only thing they could do. The only thing lacking under the circumstances—I have had my own opinion since that time as to what I think I would have done, without any more knowledge of military affairs than I learned in the army, and I would have taken charge of this ditch that I was in, and have put the men in there for the purpose of controlling the round-house and the tracks below. But then there was a danger to be taken into consideration, that along the hill above this ditch, there were houses on the hill-side occupied by railroad men and by strikers, and by men in sympathy with them, so there would have been a danger there, because

there would have been firing from the rear—in other words, if people had gone on the hill-side, and opened fire down from the hill-side, they would have had to abandon the ditch—or, on the other hand—my idea of the matter would have been to have picketed Penn avenue and Liberty street very heavily, and have kept those streets clear, from Twenty-eighth street clear down. When you consider that a crowd or a mob is always cowardly, so that the firing of eight or ten men into it will break it, I really believe that the best plan would have been to have picketed Penn avenue and Liberty street—to have kept these streets clear, and then if necessary, to have picketed the upper side of the railroad track, which would have formed a square of pickets, whereby to preserve the cars. Yet, at the same time, I will say that these picket lines would have been subjected to a fire from both sides—from the hill-side above, and from the houses below. I went home on the six o'clock train that evening.

Q. Could General Brinton have taken his troops then, and marched them down towards the Union depot, and kept the crowd back, or kept the crowd above?

A. No; but the mistake that General Brinton made was this, that when he began firing he should have kept it up.

Q. How long?

A. Until every man in the city of Pittsburgh was willing to stop.

Q. Do you think, in your judgment, with the number of men they had, with twenty rounds of ammunition, and with more ammunition over in the Union depot, that they could have maintained their ground there and kept up the firing, and kept the mob back, and kept up communications with Union depot, in order to replenish their ammunition?

A. If he had continued his firing from the time the firing began at Twenty-eighth street, most undoubtedly he could. But after that, when General Brinton got into the round-house, where there are open windows—the house is perfectly round—at that time he was at the mercy of every building.

Q. But I am speaking of the time before he went into the round-house, and after the crowd had dispersed—at that time had he continued firing, could he have maintained his position and kept the crowd away?

A. Yes; fifty men armed as those men were armed—because I noticed that every time a gun struck, it tore a hole like that. [Illustrating.] Following that mob would have dispersed them.

By Mr. Yutzy:

Q. Would not that have caused great loss of life?

A. Undoubtedly—if they had fired low.

Q. What is your avocation now?

A. I am a lawyer by profession.

Q. You practice at the bar here in this city?

A. Yes.

Q. From your experience in the army, and from what you saw of the conduct of the troops at Twenty-eighth street, would you say that their conduct was good as military men?

A. No, sir; not a bit of it. Every man that fired first should have been taken out and shot. In other words, I mean that there was not a particle of discipline. I say that for this reason: There was no order given to fire by any officer. I believe that to be the fact, because I was on the hill side not more than sixty or eighty feet away from where the firing began, and I had been there some two hours before the firing did begin. I was standing there wondering how the men were going to clear the tracks, and when the fight began I was listening very closely in order to hear what command would be given by the officer in command. Then this fuss began with three or four pistol shots, and then the bricks and stones were thrown, and then more pistol shots, and then it was every man for himself. So far as those soldiers

were concerned, I have said since, and believe it to be a fact, that it was one mob armed against another mob not armed.

Q. Was not the conduct of those soldiers as good as could be expected from militia men?

A. I do not know that. I have seen militia men during the war that would walk up to the scratch, and stay there. The great trouble with militia men is that they fire too high.

By Senator Yutzy:

Q. Do you think there was any real necessity for calling on the militia for assistance here?

A. I would not like to give any opinion about that. I know that the sheriff started out a lot of his deputies to get a lot of lawyers out here, and the lawyers went out—of the back windows, and every other way they could get out. I never believed that the sheriff exhausted all his power.

By Senator Reyburn:

Q. You believe, then, it was necessary to call out the military—that the difficulty had got beyond the control of the civil authorities?

A. I believe that. I believe it was necessary to call out the military—but to use them. In explanation of that, I would say this: that even after the military were here, that the city of Pittsburgh was panic struck, and that young men were taken up on the streets and were furnished with arms, privately by the different banks, to go in and guard the banks, because, on the Monday night following the burning, it was rumored on the streets—on Fifth avenue, and on Wood, and on Smithfield streets—that the banks were to be attacked that night, and I know of several banks in the city that were guarded by young men picked up throughout the city. I believe it to be a fact, that, had the trouble lasted two days longer, there would have been a vacation of the city by the women and the children in the city of Pittsburgh. I believe they would have gotten out of town.

By Mr. Larrabee:

Q. You state you spoke to some people about the probability of the troops firing on the crowd. Who were those people?

A. I cannot recollect.

Q. Were they part of the crowd—the strikers?

A. No.

At this point the committee adjourned to meet at three o'clock this afternoon.

AFTERNOON SESSION.

ORPHANS' COURT ROOM.

PITTSBURGH, *Tuesday, February 12, 1878.*

Pursuant to adjournment the committee re-assembled at three o'clock, P.M., this day, and continued the taking of testimony.

Joseph S. Haymaker, *recalled.*

By Mr. Lindsey:

Q. What sympathy did the rioters seem to get from the surrounding crowds of spectators?

A. Do you mean on Saturday?

Q. Yes.

A. I can hardly say; I was one of the party myself. Do you mean after they were fired into?

Q. From that time until Monday.

A. On Saturday, the 20th of July, the general feeling seemed to be, up to the time of the firing, that the Pennsylvania Railroad Company had not done exactly what was right with their employés.

Q. To what extent did that feeling exist in the community?

A. I cannot say about the community, because I was at my home sick for six weeks before that time. I can only speak of the crowd that was there at the same time I was. So far as that was concerned, I suppose they felt about as I did, that as they were getting pretty good pay for their shipments, and everything of that kind, it seemed to be kind of rough, to cut down their wages so much. It was a kind of general feeling, that the railroad company had not done exactly what was right with their employés, but I found nobody who could give me a definite explanation of the reason why the people of Pittsburgh should be against the railroad company—that is, I could not find anybody who could give me any reason why there should be any strike between the people of the city and the railroad company, on account of the way the railroad company had treated their employés; but immediately after the fire was over, I did not hear any question of that kind raised. The prevailing question was how we were going to get out of the trouble we were in.

Q. In your judgment, would it not have been proper for the officer in command of the military force, at five o'clock on Saturday afternoon, to have given the command to fire?

A. I most undoubtedly think it would have been.

By Senator Reyburn:

Q. There was sufficient provocation to justify the giving of that command?

A. Yes; my recollection is, I heard an order given by some officer, commanding either a company or a regiment of the Philadelphia soldiers up at the front of the line that was formed there—an order given to those men

to disperse and go back, and I think he gave the order in this way: "Now," he says, "why don't you men go back?" It was half a minute after that when I heard the first pistol shot fired, and then from that the firing began. I think, that when the order was given to go back and clear the tracks, that he would have been justified in ordering the men to fire, although I heard no order to fire.

Q. And followed up the firing until he dispersed the crowd?

A. I believe that.

By Senator Yutzy:

Q. What troops were on the ground at that time?

A. I do not know. I simply know this. That certain troops or uniformed men came up the Pennsylvania railroad from the depot, and formed in line in front of the upper round-house, at the corner of Twenty-eighth street, and at that time some of our Pittsburgh soldiers were on the hill side above—some of our Allegheny county soldiers on the hill side above.

Q. But those on the railroad were Philadelphia troops?

A. I believed them to be from Philadelphia.

Q. Do you know anything about the conduct of the Pittsburgh troops called out here during that day, or any time during the riot?

A. No; except this far, that when I came up to Twenty-eighth street, and before the Philadelphia soldiers came up there, I walked across Twenty-eighth street, up the hill side, where there was part of a company—part of one of the western Pennsylvania companies, or a Pittsburgh company, I do not know which it was, and when I got to the top of the hill side I was a good deal out of breath——

Q. After the firing?

A. Before the firing—probably an hour before. There was one of the private soldiers belonging to some company—I do not know any thing about him.

He had a uniform on, and I asked him the question: "How long have you been here?" and he said, "since last night." I said, "how long are you going to stay here?" and he says, "I don't know." I said, "you may likely be called upon to clear the tracks down there;" and he said, "they may call on me, and they may call pretty damn loud before they will clear the tracks." At the same time, I looked in the man's face, and I thought he might be called upon to all eternity before he would do anything reasonable. The company, at that time, was scattered—standing all around.

Q. Was this company far from the mob?

A. Probably one hundred feet—probably one hundred and fifty feet.

Q. Were their arms stacked?

A. Yes; I know that after the firing, one dead soldier was carried down from about the spot where I had been talking to this man, down to the Twenty-eighth street crossing.

Q. Were the men with their guns where they were stacked?

A. Some of them were down on the railroad track, and some were on the hill-side, and some were around their guns, and some were back towards the hospital.

By Mr. Means:

Q. Didn't you say those were Philadelphia troops up at Twenty-eighth street?

A. Yes; that is, I understood that.

By Senator Reyburn:

Q. You spoke about those strange men you thought were strangers in Pittsburgh, that had come from a distance. Have you any knowledge of people coming to Pittsburgh at any time previous to the 19th of July?

A. I can say this in reference to that, but as a lawyer I would say that part of it is hearsay evidence, that is, I do not know it to be a fact myself. I live below Pittsburgh, about seven miles, on the Fort Wayne road, at Laurel station, and I know from the time I went down last spring, we had much trouble with tramps. Probably two or three, or four or five, or six or seven, would be there every day. But about four days before this trouble—it was on the Friday before this trouble—at that time I was not at home sick—I recollect my wife saying to me, that "we have had no tramps down here for the last few days," and I said, "they will come back again," and until after the rioting and the burning here, we had but one tramp at our house, until the third day after—that was on Sunday. Then they began to come back every day. I have heard others of my neighbors say the same thing. And almost every night, looking from my library towards the river, I could see along the river bank that these tramps would have fires, and I have seen, when I would come down to the train in the morning—I have seen as high as fifteen or twenty around these fires. But for two or three days before the riot—that is, before the burning here, and for one or two days after that time, I noticed very few of those fires, if any, and we were not troubled with these tramps at our house; and after the trouble was all over, it made such an impression on me, that I loaded a double-barreled shot gun, and told my wife how to use it, and told her if they came around not to do anything for them. I did not consider them fit subjects for charity.

James Bown, *sworn with the uplifted hand.*

By Mr. Lindsey:

Q. What is your business, and where is your place of business?

A. Nos. 136 and 138 Wood street, Pittsburgh.

Q. What kind of business do you carry on?

A. It is the cutlery business—guns and sporting goods in general—manufacturing.

Q. I wish you to state what efforts you made to protect your store on the night of the 21st—Saturday night. You went to see the mayor. What efforts did you make?

A. I was absent from the city until about seven and a half o'clock that evening, and when I came to the store I found it was shut up. I met my second son there, and I asked him what the trouble was. Well, he said the mob had broken into some of the pawnbrokers, up in the Fifth ward, and also into one of our competitor's. I asked him where my other son was, and he said at the back end of the store. I got into the back yard and went into the store and found them there making preparations to take some of the valuable guns into the cellar—into the vault. It looked as if things were serious. I said, "I will go out and look around, and see what the trouble is." They commenced to put away the goods as fast as they could. Of course they had to use great judgment about taking the fine guns into the cellar. I was away perhaps half an hour. As soon as I went out into the alley, I met Mr. Follensbee and Mr. Myers. I said, "Things look serious around here." The mayor's clerk was there, Mr. Metzgar, and perhaps half a dozen people were congregated in the alley. He said, "Gentlemen, you had better disperse. We would rather not have anybody around here, so as not to excite anybody." I told him it was a good suggestion, and Mr. Myers and Mr. Follensbee and myself went into our yard. It was then pretty near dark. I said, "Let us go up to Smithfield street, and see what they are doing." I understood there was quite a crowd in front of Mr. Johnston's, another competitor of our's. We went up the alley and then turned to the left and went down towards Sixth avenue. An immense crowd was in front of this gun store, but had done no damage. Several policemen were in front of the store. In going through the crowd several sang out, "Let's go down to Bown's, and clean him out." I said, "That sounds pretty loud, and we had better go and see if the mayor won't send back some police." We came back to the mayor's office, and there the mayor was, standing outside. I went up to him, and addressed him as "Mac." I am rather familiar with him. I said,

"We require some extra police down there, as they are going down to our store to clean us out." He said, "I will do all I can for you," and said that a good many police were up at Mr. Johnston's. I said, "It is necessary to act quick and prompt, as the crowd is now moving, and it won't take them long to come there." Mr. Follensbee spoke up, and said, "I will be one of fifty special police." I do not think he made any reply to that, but he said, "I will send some down." With that I left, and came down to the store again. Some people were in front of the store, and I think among them, perhaps, were two or three policemen—I think there were. I was more interested in securing the things just at that time, so I went into the store again, and the boys were still working, taking down the guns. They had got the pistols—the greater portion of them—into a safe we had, and Mr. Follensbee suggested to me to come around to Fifth avenue to his store. I went back through Mr. Carter's store, and went with him into his store. I was not in there two minutes until an immense rush of people came past the store, and they shoved the doors to. I said, "Open the doors, I want to see what the trouble is." I was running across the street when a friend of mine said, "There is no use in your going; they have got in." I knew a road coming through another gentleman's store and through Mr. Carter's store, and got into the back yard. The crowd was then in the store and securing all the things as fast as they could. Then Mr. Follensbee followed after me. Of course, he remonstrated outside as well he could. Everything was barricaded up so that we could not get in. I will tell you one thing that occurred there. A negro had got at my private desk and got open the drawers, and was pulling out the things, and had got among the postage stamps when we halloed at him. The language we used was pretty severe, and he dropped everything and ran. In a few minutes, as soon as things were quieted down, we got a policeman—we tapped for him to come and open a window, and we got in. Of course, then the destruction had taken place.

Q. How long after you made that call on the mayor was it that they broke into the store?

A. Not over fifteen to twenty minutes.

Q. Did he send any policemen down?

A. Some were there in front, but I cannot say how many. Some came after the thing was over, but whether they were outside, I do not know.

Q. He made no reply when Mr. Follensbee offered to do special duty?

A. No reply at all.

Q. Nor did he make any demand on the citizens?

A. No.

By Senator Reyburn:

Q. Those parties took away general plunder, did they?

A. Yes.

Q. They did not come specially for guns?

A. They took everything—knives and pistols and spoons and forks and carving knives and fishing tackle, and everything they could.

Q. It was simply a party bent on plunder?

A. Yes; it was just a mob. I do not charge it on the strikers.

By Mr. Larrabee:

Q. Did you ever get track of any of those guns.

A. We got four out of the lot—those were left by parties—men that came out with three or four and just handed them to us. They preserved them for us.

Q. You never got track where they went?

A. No; we had a good many guns with marks on them—numbers, and some guns—a special kind of guns—that there are very few of here.

By Senator Yutzy:

Q. About four hundred of them?

A. Yes.

Q. And a great variety of other things?

A. Yes.

Q. You recovered none of the guns?

A. No.

B. K. Walton, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. You were one of the deputy sheriffs in July last?

A. Yes.

Q. State whether you were in the city during Thursday, the 19th, and during Friday.

A. I cannot say as to Thursday or Friday—I do not think that I was. I was on Saturday.

Q. State to us just what connection you had with the riotous proceedings?

A. On Saturday I was one among the deputies instructed by the sheriff to get up a posse. I went along several of the streets and asked several parties to come up. Some said they would come and some said they would not. However, not more than one or two came. We went on up to Union depot to the railroad and from there went up with the military to Twenty-eighth street. There appeared to be a crowd on both sides of the railroad, and along the railroad, as we went up. There was a great deal of turmoil and noise. We

were not up there more than a few minutes until the firing commenced. Stones and pieces of bricks were thrown before the firing commenced.

Q. Where did you try to raise a posse?

A. In the streets here.

Q. To what class of men did you go?

A. To most anybody that we could get hold of—citizens of Pittsburgh.

Q. What responses did you get usually?

A. Some said they would not go under any consideration and others promised to go, but did not come when the time came.

Q. How many did you succeed in getting?

A. Out of ten or fifteen that promised to come, I think only one or two came.

Q. Did you go outside of the city in trying to raise the posse?

A. No.

Q. How many did you say there were of you that went ahead of the military?

A. I think there were from twelve to eighteen of us ahead of the militia from Union depot up to Twenty-eighth street.

Q. When the crowd began to throw stones, was it at you or the militia?

A. It appeared to be at the militia altogether.

Q. Were any of the sheriff's posse hit?

A. Not to my own knowledge.

By Senator Yutzy:

Q. Was not the sheriff struck himself?

A. Not that I saw.

By Mr. Lindsey:

Q. Whereabouts did the sheriff's posse stand when the stones began to be thrown?

A. Some were on Twenty-eighth street, and part of the party were on this side a little piece, not more than ten or twelve feet apart.

Q. In front of the militia?

A. Yes.

Q. Where were you when the militia fired?

A. On the crossing at Twenty-eighth street. Part of the crowd had got in between me and most of the others and the militia. We got mixed up at that time.

Q. Did the militia fire towards you?

A. The first firing appeared to be up the hill, and the second up the railroad where we were standing.

Q. Where did you go then?

A. I got behind a car.

Q. Where did the balance of the party go to?

A. I do not know where they all went to. Some were where I was.

Q. Did you call on any of the constables to go out with you?

A. I do not believe I did myself.

Q. Were you out during Sunday?

A. Not in connection with the office; but I was out myself.

Q. Did you see the fire?

A. Yes; I was on the hill pretty much all day above the Union depot.

Q. What time did you get on the ground?

A. I came over in the morning about nine o'clock. I live just above the top of the hill.

Q. How far had the fire approached towards the city at that time?

A. A considerable distance below the round-house.

Q. How many men were engaged in burning and running down the cars then?

A. A great many of them.

Q. Two or three hundred?

A. Yes; more than that.

Q. How many policemen would it have taken to have driven them away at that time?

A. I do not think there were enough in the city at that time.

By Senator Yutzy:

Q. Did the sheriff command the mob to disperse before the firing?

A. I believe he did; but I was not up with him the first time he was up.

Q. What effort was made by the sheriff and his posse, or deputies, to clear the track before the military came up?

A. They tried to get them off the track—they talked to some of them, but they appeared to want to get at the military. When we got to the crossing, part of the party got away, and that is how a part of the mob got in between us and the military.

Q. Were you close to the military when the firing commenced?

A. Within ten or twelve feet, I think.

Q. Did you hear any command given to fire?

A. None whatever.

Q. If there had been a command given you would have heard it?

A. I think so—I was close enough. There appeared to be a good deal of noise going on at the time.

By Mr. Lindsey:

Q. You were not with the sheriff on Friday night when he went up to Twenty-eighth street?

A. No.

Q. Do you know whether he made any effort that night to raise a posse or not?

A. I do not know of my own knowledge. I was not in the city on Friday night?

Q. Did you see the crowd on Saturday morning?

A. Yes.

Q. How large was it on Saturday morning?

A. A great many people were there.

Q. Do you think a well organized police force would have been able to have driven away the crowd on Saturday morning?

A. I do not know about that. It would have depended on circumstances altogether. It would have taken a pretty good force to have driven them away.

Q. Do you think it would have been possible to have gathered a posse in and about the city—if the sheriff had started out on Saturday morning and

made an effort, could he have collected a posse sufficiently large to have driven away the crowd?

A. The Saturday morning we were out?

Q. By sending out deputies through the county, do you think he could have collected a posse, or not?

A. If all were of the same opinion as the people in town, I do not think he could have got a posse. It would have been pretty hard work.

Q. How was the feeling outside the city, so far as you know?

A. Outside I do not know. In the city, the feeling appeared to be with the strikers altogether.

Q. Here in the city?

A. Yes.

By Senator Yutzy:

Q. Do you say all the citizens?

A. No; I do not say that; but those I had any conversation with—those men I tried to get to go up there.

Soloman Coulson, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. What is your occupation?

A. I am doing nothing. At the time of this riot I was a police officer. My occupation is a brick-maker.

Q. What office did you fill at the time of the trouble?

A. I was what is called a roundsman here in this city—walking pretty much all over. I wore no uniform. I traveled into different places in the city.

Q. Where were you on Thursday morning?

A. I was at home in bed.

Q. When did you first learn of the disturbance?

A. About one o'clock in the afternoon.

Q. What took place?

A. I went to Twenty-eighth street where the disturbance was, and found detective McGovern there in charge of a posse of men. A great many railroaders were standing around, not doing anything. Along about three-forty o'clock, they made up a freight train to go out called a double-header—two engines attached to the train. Orders were given by somebody, I don't know who, that four policemen should go on each one of those locomotives. I was, myself, on one locomotive. The engine I was on, a reporter got on. He asked me if there was any danger, and I told him I thought there was, and he got off. They pulled out this train, I guess, about ten or twelve feet, and I didn't see anybody going to stop it. I thought they could very easily have taken it out at that time. I saw a man get on the track and throw his hands up, and with that they stopped, and the engineers and firemen jumped off. The police then on the engines insisted on going ahead. I did, for myself. The last man I saw getting off was a fireman. I said what are you getting off for, and he said he had got to do it.

Q. Did they refuse to go on when you insisted?

A. That man—he was a fireman or an engineer—I cannot tell which—he was doing both.

Q. It was when that man threw himself in front of the train?

A. One man did it. I think he is in jail now. That evening we had this man McCall in the Twelfth ward station, and there was a rumor that the mob was

going to attack the Twelfth ward station and rescue him. I went to that station, and took that man McCall and marched down, putting twenty policemen behind us. We passed through the crowd, and nothing was said, and got down a few squares when there happened to be a friend of mine sitting in a car, and he hallooed at me and said, "For God's sake get in the car." The street was blocked. The car was stopped at the corner of Twenty-fourth and Penn, and we got in with our prisoner. Some of the crowd caught up with us. I had a revolver. One fellow put up a revolver at my ear when I struck him over the face with mine. We still kept on going, and we took our prisoner to the Central station. I didn't get back again that night. I was there again on the 21st, Saturday, and about eleven o'clock that night—Saturday night—I saw this burning. I was on Smithfield street at the time, and met a great many men coming down with goods. The feeling was not good towards me on account of this man McCall. I met a couple of parties with rolls of cloth, and we arrested them, and by morning we had more than a hundred in there for carrying off stuff. On Sunday morning, after the Philadelphia troops left—and before they did leave—we had that man in jail that I saw shooting into them with a breech-loading rifle. I went up to the round-house, and made a search there. I heard Chief Evans state that he saw whisky running into the cellar of the round-house. I don't know where there is a cellar to the round-house, but there is a cellar to the carpenter shop.

Q. Is the carpenter-shop not one part of the round-house?

A. The carpenter-shop is on the right, and there was a space of thirty or forty feet between them. The Philadelphia troops I saw leave the round-house. They came out and formed, and went off.

Q. How did they come out?

A. In a body, in regular marching order.

Q. Where was the crowd when they came out?

A. Very scarce.

Q. Where had the crowd gone to?

A. Dispersed and secreted themselves in buildings and every place. I went as far as Seventeenth street—the crowd had started, too—then the fire had not got that far. It was about the middle of the day. We stopped there, and during the time we were there undertook to prevent parties from breaking open the cars and setting them on fire, which we did succeed in stopping some. Afterwards I saw men dropping coal down below the track, and rolling barrels of oil down and setting them on fire. They were strangers to me. We couldn't get the force apparently together. If we had got them together at that time, a hundred men would have subdued the riot at that time, because it was apparently the work of boys. There were not as many men as boys, but the force had got scattered.

Q. What time did the troops come out of the round-house?

A. Near seven or eight o'clock.

Q. Not many of the crowd were there at that time?

A. No.

Q. Was any burning going on at that time?

A. I saw the first car fired to drive the Philadelphia troops out. It was a car on the Valley track. It was set on fire, and a wheel of it was chocked. They dropped other cars down against it, and they caught on fire, until it got pretty hot. But this carpenter-shop didn't take fire for some time. I helped to shove some cars away back from the entrance leading in between the round-house and the carpenter-shop. Those cars didn't catch on fire.

Q. They kept dropping those cars down all night?

A. Yes.

Q. Did they remain near the round-house?

A. They kept back towards Twenty-seventh street. They had a gun there. A man named Stewart I saw carried away from there dead. He was apparently

a railroader. He had a watch with that name on it. I went to see the gun, and if they had ever fired it, it never would have hurt anybody in the round-house—if they had ever fired it. The wall is too high there.

Q. What was it that caused that crowd to be scattered? Was it fear of fire from the soldiers?

A. I reckon that was it.

Q. After the soldiers got away, did the crowd re-assemble?

A. No; not there.

Q. Were the burning cars below there?

A. Yes.

Q. They were still going on down with the burning and the pillaging?

A. Yes.

Q. They marched in regular order—the troops you saw?

A. In every good order.

Q. Suppose they had formed in line, at that time, and marched on the crowd what would have been the effect?

A. They would have got the best of the crowd because I didn't see many around there.

Q. Could they have driven the crowd away from the burning cars?

A. I think they could.

By Senator Reyburn:

Q. And restored order?

A. I don't know about that.

By Mr. Lindsey:

Q. Who directed you to go out there first?

A. The mayor—to the best of my knowledge and belief.

Q. Did you have anybody with you?

A. No.

Q. Did you see the mayor before going?

A. I saw him that day before going.

Q. Where?

A. At the city hall, in his office.

Q. Were you on regular duty that day?

A. I was on other duty that day—I was on a little special duty that day, but was detailed and sent to where this trouble was supposed to be. I was to meet the men where I was going. About this Officer Motts. On Saturday night the mayor was in the Twelfth ward, and shortly after I went there I saw him there, and on Sunday morning. On Sunday he was on the railroad. I was standing alone, and he came to me and said to me, for God's sake get some men, you can stop them from breaking into these cars. I went towards the crowd, but there was no use for one man—but I did. They then commenced to hurl stones.

By Senator Reyburn:

Q. What was the crowd—boys?

A. Yes; and some men were among them. They were all getting pretty drunk then.

Q. You say the mayor was there attending to his duties?

A. Yes; using all the efforts he could to stop the riot; but we could not get the men together. Our force had been cut down, and it was impossible to get the men together. I asked men to stand alongside of me, but as soon as you would turn your head around again they were gone. In relation to Johnston and Bown's gun shops—I was at both places. At Johnston's, a demand was made for guns, and they gave them some muskets. I don't think that Johnston's was broke in.

By Senator Reyburn:

Q. They gave them?

A. That was what was said. I know I took a musket with a bayonet on from a fellow, and gave it back to the store. I was sent by the mayor's clerk to Bown's—some eight of us—but there were no uniformed men among us; we were in citizen's clothes. It was a hard matter to tell what they wanted; but eight of us went there at the time. Then this party came along Wood street, and they had a drum with them, and some of them had muskets with bayonets on, and others had revolvers, and others, what I took to be a large rammer, and they commenced ramming against the door. Officer Downey was one of the first officers to the store. I got in with him. They were then carrying out the stuff, and we took several guns from them and handed them back. They were still carrying out the stuff, and it was impossible to prevent them breaking in, because the force was not strong enough.

By Mr. Lindsey:

Q. Were you armed?

A. No; no more than we usually carried—our pocket revolvers.

Q. Had you maces?

A. The men that were there were not in the habit of carrying maces. I suppose they had billies and revolvers. The proper course to save Bown's store would have been to let eight or nine men get in there and arm them, and then keep them out there.

By Senator Reyburn:

Q. Did this crowd seem to be bent on plunder?

A. Principally on plunder; I don't think that many of those guns taken out there ever went into the riot.

Q. Did they carry off pretty much everything?

A. Yes; according to the looks of the shelves and show cases. There were a couple of men arrested for stealing from that establishment, that are now doing terms in the western penitentiary.

By Mr. Englebert:

Q. Did you recognize them as any particular class of men?

A. I did not; their faces to me were apparently strange—they apparently looked like workingmen. A great many thieves were among them, and some, I know, have had to leave the city since, or we would have had them.

Q. You don't know where they were from?

A. Those I speak of?

Q. Yes?

A. I do; yes, from Pittsburgh.

By Mr. Lindsey:

Q. They have left the city entirely?

A. Yes.

Q. You were about the city a good deal attending to your duties, and you know a large part of the population?

A. I do.

Q. That crowd of men that went out there on Saturday and Sunday—was the crowd composed of men about the city?

A. No; they were pretty much all strangers; the biggest portion of them were strange men.

By Senator Reyburn:

Q. In your duties as a roundsman, had you noticed any unusual influx of strangers into the town?

A. I had—a great many. We had a large crowd of them, I believe from Cumberland—in the neighborhood of twenty-five or thirty—that is, one batch, and I took notice of others.

Q. Sufficient to attract the attention of the police authorities?

A. It would have attracted my attention, and I have been following up that business for my living for eight or nine years.

By Mr. Larrabee:

Q. When did these men come into the city first?

A. The first I noticed of them was on Saturday night, when I got into the Twelfth ward. To show you that there were a great many people that didn't belong in the city, I arrested some nine or ten up there that night, and among that nine or ten, eight of them belonged to Allegheny, and their faces were all strange to me.

By Senator Yutzy:

Q. This party from Cumberland—when did they come?

A. I can't remember.

Q. After or before the fire?

A. I can't be positive which.

By Mr. Dewees:

Q. You said there was no cellar under this round-house?

A. There was no cellar, but I found a turn-table in the middle of it.

Q. How deep is a round-house generally dug out—from the top of the rails down?

A. It is on a level, but it has got to be so deep for the turn-table.

By Senator Yutzy:

Q. The carpenter shop was connected with it?

A. Yes.

Q. And the superintendent's office and car shops?

A. Yes.

Q. Didn't they all have cellars under them?

A. The office might have had a cellar—I know the office had.

By Mr. Lindsey:

Q. When you went out there on Thursday afternoon, what class of men were there?

A. Principally railroaders.

Q. How many were there?

A. One hundred and fifty, or more than that. I knew a great many of them.

Q. Could the trains have been run out that afternoon, if the engineers and firemen had gone?

A. Yes; they could have taken this train out I was on—I don't know how far, though. They had four policemen on each engine to protect the engineers

and firemen, and from what I understood, there were men to be put along on the train to protect the brakemen.

Q. You were out again on Friday?

A. No; not until Saturday. I remained there until Sunday morning, about eight o'clock.

Q. How large a posse could you have raised in the city to go out there and restore order, if the mayor had made a call, or a demand for a posse?

A. It would have depended on how much time you would have given me.

Q. In a day?

A. I might have got in the neighborhood of one hundred men. There were but one hundred and twenty men, and some of them were there.

Q. But from any class of men in the city—if he had just called for a posse from any source—for extra men?

A. He could not have got many at that time. Wherever I went, to judge from the talk, the people were all in sympathy with the mob.

By Mr. Engelbert:

Q. Do you mean the tax-payers?

A. I suppose so.

By Mr. Lindsey:

Q. But the mayor made no call, so far as you know, for a posse?

A. I saw him trying to get men together on different occasions.

Q. But he made no official demand?

A. Not that I know of.

By Senator Reyburn:

Q. He made no effort to increase his police force by swearing in extra men?

A. I believe he did as quick as he could do it.

By Mr. Lindsey:

Q. When did he do it?

A. In a couple or three days—may be two days.

By Senator Yutzy:

Q. After the riot?

A. Shortly after the riot. I think he did it as quickly as he could get the men together. I think he tried all he could to prevent this riot, which he don't get the credit for here. He ordered me on Sunday morning to go to the fire department, about one o'clock, and I went in search of the chief, in company with another officer, Motts. He did the talking. I didn't talk to him myself. We went to look for the chief, and could not find him. We went down to Twenty-first street and Penn street, and we saw a foreman there—I believe, in fact, several of the fire department were there, and we requested them to come and play on the fire, that the mayor had sufficient force, and that he would protect them, and the answer I don't remember, but I know they didn't come up and play on the fire. They were not going to run the danger.

Q. What firemen did you see?

A. Motts can tell you. Several were standing there.

Q. What ones were standing there?

A. Different ones. A man named Kennedy was there, and one named Miller.

Q. Do you know where those two men are now?

A. I suppose they are still on the fire department. The mayor at that time had dispatched from the Twelfth ward station for police, and had got, I

guess, sixty or may be more. I know that many, for I knew the lieutenant that came up.

By Mr. Dewees:

Q. Were the round-house and those shops very hot when you went in?

A. No; No cars were burning there yet.

By Mr. Engelbert:

Q. Was the fire department near there—some of them?

A. Yes; close up.

Q. If they had played on the burning cars could they have prevented those buildings from getting on fire?

A. I think they could have prevented it.

Q. Were you ready to give protection then?

A. The mayor was there, and his force, and those were the orders.

By Mr. Larrabee:

Q. When you went inside of the round-house were the doors still intact.

A. They were. I could not see any fire about them.

Q. How many engines were in there at that time?

A. I can't be certain. A number were in there at that time—a great many. They were shoved in the stalls. There would, apparently, be one in each.

Q. You think you examined those doors, do you?

A. I was close to the doors, and if there had been any fire—in case of a fire I would have seen it.

By Mr. Engelbert:

Q. Was the upper round-house burning then?

A. I believe it was pretty much burned at that time.

By Mr. Lindsey:

Q. Where did the troops come out of the round-house?

A. I saw a portion of them come out of the entrance on Twenty-sixth street, and I think a portion of them came out of the rear end of the carpenter shop. I saw some twenty-five or thirty come out.

Thomas Hastings, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. What is your business?

A. I not doing anything at present.

Q. What were you doing in July last?

A. I was a police officer.

Q. What connection had you with the efforts to suppress the riot?

A. I did everything, so far as I could, at that time. I didn't know much about it until Saturday evening. Our time for going on duty was eight o'clock in the evening. I went on at seven o'clock, and had orders from the lieutenant to go down and notify each tavern-keeper to close his saloon, at the request of the mayor. I did so, and we were distributed in the vicinity of Twenty-eighth street. There was a large crowd at Twenty-eighth street and Twenty-sixth street, and the crowd increased up to eleven o'clock.

Q. What time did you receive orders to close the saloons?

A. About seven o'clock in the evening.

Q. In the vicinity of Twenty-eighth street?

A. All along Penn street. I went up about eleven o'clock, and stayed looking around for a while at Twenty-eighth street, and then came down as far as Twenty-sixth street, and went back again, and just as I got at the corner of Twenty-eighth and Penn streets I saw the fire, and I ran up Liberty street and saw a car of oil. I then ran down and pulled the alarm, and just as I pulled the alarm I was thrown out in the street. Just then the mayor passed me, and asked me what the car was, and I told him it was a car of oil. He asked me if I pulled the alarm, and I said yes. I didn't see any engine coming. I went down then to the Twelfth ward station-house, and I asked the captain if he had pulled the alarm, and he said he had tried to, but couldn't. I then went down a little piece, and saw an engine and the Independence hose carriage standing at Twenty-fourth or Twenty-fifth street. Somebody made a remark that they would not let them come up any further—that they had threatened to shoot them. I stayed around there all that night, and on Sunday morning, after the Philadelphia troops left——

Q. Did you see the Philadelphia troops come out of the round-house?

A. I saw what they called the Philadelphia troops.

Q. Where did they come out?

A. They were in this round-house and in the carpenter shop. They appeared to come out of the west end of the carpenter shop.

Q. On to what street?

A. On to Liberty, and then down Twenty-fifth street to Penn. Some were deployed as skirmishers, at the head of the column. They appeared to be pretty well frightened.

Q. Were they marching in good order?

A. Yes; but they appeared to be pretty well scared.

Q. They marched regularly, did they?

A. Yes.

Q. Was any attack made on them?

A. Not to my knowledge—so far as I saw. I only stayed a few minutes, and went over into the round-house and carpenter shop. I went into, I believe, where D. O. Shater had his office, on the east end of the round-house. I went in there, and went in through the round-house into the carpenter shop.

Q. Were you on duty during the week prior to the riot?

A. Yes.

Q. Did you learn of any arrangement among the men for the strike?

A. I knew nothing of it until I got out of bed on Thursday, that was the first I heard of it.

Q. What time did you get up?

A. I generally got up about four or five o'clock.

Q. What did you learn then?

A. I learned that there was a strike, or that there was going to be a strike.

Q. Who informed you?

A. I don't remember. Some railroad man.

Q. What did he say about it?

A. That there had been a strike, or was going to be a strike.

Q. You knew of no pre-arranged plan for a strike?

A. No.

Q. Had you noticed any influx of strangers into the city prior to that time?

A. I had noticed a great many.

Q. What class of men?

A. They appeared to be tramps—fellows hunting for work, but who didn't want it.

Q. Any more than there had been previously?

A. Yes; that week there had been a great many traveling back and forward on the streets.

Q. A great many all the time are traveling, are they not?

A. Not as many as that week, I don't think.

Q. Did you have any conversation with those tramps?

A. No.

Q. What do you do with the tramps who come into the city here?

A. We don't do anything at present.

By Mr. Larrabee:

Q. What was the first day you noticed more tramps than usual?

A. It appeared to be the beginning of the week of the riot—for six or eight days previous.

Q. You noticed it before the strike commenced?

A. Yes, sir.

By Mr. Lindsey:

Q. You did not do anything with those tramps who gathered and collected?

A. We had not for some time.

Q. You allowed them to come in and go away when they choose?

A. Yes.

By Mr. Larrabee:

Q. Where had you noticed this extra influx of tramps?

A. I had noticed it on Penn street, particularly. A great many were going in and out. They would ask me where there was a place to stay over night, or if they could stay at the station-house, and I always directed them to the Young Men's Home.

Q. Did they come there in larger numbers than usual—that is, in larger crowds than six or eight or ten?

A. Sometimes I would see one or two, and then six, and they increased to as high as eight in a party.

Q. In a party?

A. In a bunch.

By Senator Yutzy:

Q. How soon were you up to the round-house after the troops vacated it?

A. In eight or ten minutes.

Q. Did you go through the round-house or the shops?

A. Yes.

Q. Were any of those buildings on fire?

A. The machine shop was on fire—thirty or forty feet on the east side—that is, sixty feet from the east end of the round-house.

Q. Do you know anything about any oil cars that were dropped down on the Pennsylvania railroad towards the round-house?

A. I know that oil cars were dropped down there.

Q. At what time?

A. They were afire when I saw them. I don't know how close to the round-house they went.

Q. How were they stopped?

A. I think they were bumped against other cars.

Q. You don't know of any obstructions placed on the tracks that prevented them from running clear to the round house?

A. No.

Q. Was there much heat in the round-house when you got there, soon after the troops left?

A. The machine shop was on fire. How long it had been burning before, I cannot say. It was burning when I went into D. O. Shafer's office.

Q. Had any of the troops been in this machine shop?

A. I can't say; some had been shooting out of the bell tower that night.

Q. Of the machine shop?

A. Yes, sir; the round-house was not on fire, nor the carpenter shop.

Q. What has been your avocation for the last eight or ten years?

A. I have been a railroad man up to within three years.

Q. Have you ever been a conductor on passenger trains?

A. No.

Q. On freight trains?

A. I have been a conductor on freight.

Q. Had you any conversation with freight conductors up to the time of the riot, or before that time in relation to any contemplated strike?

A. No.

Q. Or with any men belonging to the Trainmen's Union?

A. No; I never took any stock in that union.

Q. Did you see the troops retiring from the round-house?

A. Not until they came up on Penn street.

Q. Did you see them fired at?

A. Not on Penn street. I saw a man who is in jail now, firing from the corner of Twenty-sixth and Penn streets.

Q. At the troops?

A. Yes.

Q. Did you see any whisky running into any of those buildings on fire?

A. I saw two cars of high wines on fire. They had stopped them in front of the superintendent's office, and they were throwing water out of the windows to put the fire out. When I went up there I saw it was high wines.

Q. Could that have run into the cellar of the buildings or the superintendent's office?

A. It would have taken a good bit, for the stone sill was eight or ten inches from the ground, and it would take a great deal to run in there, though a barrel might have rolled in through the window.

Q. Where is the battery room under the superintendent's office?

A. It is in the west corner of the building—in the cellar.

Q. Is it below the grade of the Allegheny Valley track?

A. I am not sure. Yes; it is below, the bottom part of it, but along the window sill, I think, it is five or six inches, may be more.

Q. It is below the grade of the railroad track?

A. The inside of it is, but the outside is about six or eight inches above the ground. I would have to send up to be sure about it.

William Coats, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Were you connected with the fire department of the city of Pittsburgh last July?

A. I am one of the fire commissioners of the city of Pittsburgh.

Q. State the organization of that department last July?

A. We had eleven steam fire engine companies and two hose companies and three trucks in the city of Pittsburgh last July, and an average of about seven men to a company. But we didn't have a full force on. Our appropriations ran short, and we were compelled to put off some twenty-two men just previous to the riot.

Q. How many men had you at that time?

A. One hundred and four, telegraph operators and all—a working force of about ninety-eight men.

Q. They are a paid force, are they?

A. Yes.

Q. State what aid they rendered in putting out the fire?

A. The first alarm, the night of the riot, occurred on the 21st of July, I think—I am not positive—and was sent in about fifteen minutes after ten o'clock. I was then at engine house No. 7, on Penn avenue, near the corner of Twenty-third street. There were three companies that answered that alarm, and one hose company and one truck. The department was stopped on the street, between Twenty-third and Twenty-eighth street. The crowd caught

the horses of No. 7 engine, and drew the fire out of the engine, and made the men pull into the sidewalk. The department did no service on Saturday night, but they went into service when the Philadelphia troops vacated the round-house, on Sunday morning at seven o'clock. Our men went there then; and, if you will allow me, I will tell you why they did not go into service before.

Q. We want to know it?

A. The people would not allow them to.

Q. That is the mob?

A. Yes; but we considered them in service from the time the alarm struck, though they didn't throw any water. We couldn't get to the round-house building, or to where the fire started, because the mob stopped us. They made the assistant chief engineer get out of his buggy. I sent off the second signal myself from No. 7 engine house when they commenced to fire cars down about Twentieth street. In the meantime, an alarm came in from East Liberty, and we thought it was the cattle yards there. From the corner of Twenty-second and Liberty streets, we laid a line of hose, but they commenced to cut it as soon as we laid it, and they made us take it up again. A fellow put a pistol to my ear and said, take that up.

Q. Did you know the fellow who did that?

A. No. I have not seen him since. We reeled the hose up. There was no use in getting it out. We could only get into service when the Philadelphia troops came out of the round-house on Sunday morning.

Q. What kind of service did you render during the day?

A. We saved this town from burning down. I don't suppose that ever a body of men worked harder than the Pittsburgh fire department. We did not have a man who was not at his post from ten o'clock on Saturday night until eight o'clock on Monday morning. It was the only body of men in Pittsburgh organized.

By Senator Reyburn:

Q. They were ready to do their duty?

A. They did their duty.

By Mr. Lindsey:

Q. You say they saved the city? How?

A. In the first place, when we went into service, opposite the round-house or the machine-shops, there were a lot of frames or tenement houses that were on fire. Well, we put out this fire, and we kept on following the fire down Liberty street, and kept the buildings wetted down. The fire was very intense—very hot, and it was a continual fight with fire all the way down Liberty street.

Q. The crowd of rioters and pillagers were ahead of you?

A. Sometimes they were ahead, and sometimes along with us; sometimes the rioters kept ahead of the fire, and sometimes they were among us.

Q. They didn't break open the cars and pillage them until the fire started along?

A. There were places on Liberty street where no man could have stood, even to wet the houses down, and where they couldn't have pillaged, because it was too hot, and occasionally along Liberty street there were a lot of coal dumps and some oil bins, and where that occurred the heat was very intense. We had to keep things wetted all the time. Along there the pillagers would sometimes be very plenty.

Q. I suppose all the private property burned caught from the heat of the railroad cars?

A. Yes; the only private property that was burned was on Washington street.

Q. Did those houses catch fire, or were they set on fire?

A. They caught from the Union depot.

Q. You saved the private property here by wetting down the buildings?

A. Yes.

Q. Did you receive any protection from the police force?

A. No; we did not.

Q. At any time?

A. No; not to my knowledge.

Q. You were with the department?

A. I was.

Q. At any time did you receive any protection from the police?

A. No.

Q. If you had been protected by the police, could you have cut the fire and stopped it?

A. We could, at any place.

Q. How many men would it have taken to protect you?

A. I think twenty-five or fifty men, at the outside, could have stopped that burning on Sunday morning. I say that, because there could have been no mistakes. Because, if they had shot some of them down, they could not have made any mistakes. They had no business there.

By Mr. Means:

Q. Did you see the mayor there during the day?

A. I saw the mayor there.

By Senator Reyburn:

Q. Was the mayor making any effort to keep back the crowd?

A. I did not see any force of policemen that day, but the mayor appeared to be moving up and down Liberty street. I saw him talking to the rioters.

By Mr. Means:

Q. After the Philadelphia troops left the round-house, how long was it before it was on fire?

A. It was, I think, on fire when they left, because we went up there right away.

By Senator Yutzy:

Q. You say that the round-house was on fire, but we have evidence that it was not?

A. The offices that stood between were certainly on fire, because I worked that stream myself, and the heat got so intense at one time, that we had to move the engine away. The round-house could not help being on fire, for that oil sent down would have put anything on fire.

By Senator Reyburn:

Q. Did you see the troops come out?

A. Yes, sir.

Q. Were the burning cars around there?

A. They had been sending down the burning cars sometime before.

Q. Then it was afire when they came out?

A. As soon as the troops came out, the chief engineer ordered some apparatus there, and we went there at once. There was almost an entire square on Liberty street, all lumber yards and frame shanties, on fire. And

this machine shop was on fire. I am not positive about the two round-houses at that time. I was working there myself.

Q. How many men, do you judge, were engaged in this burning?

A. I cannot tell you that—a great many.

Q. Actively engaged—that is, I want to distinguish between the persons standing around in crowds on the pavements looking on, and the parties actively engaged in the burning?

A. When I was down on Liberty street, there appeared to be a great many people on the railroad track. Of course, they were pillaging then—it was plain—any person could see it. Every now and then you could see the flames bursting out from the cars.

Q. Did you see this crowd—was it an organized effort to follow up the burning—did it seem to be followed systematically?

A. Yes; I think it was organized.

Q. Can you form any idea as to how many were actively engaged?

A. I cannot. I was not on the railroad track that day. Men and women and everything else were on the railroad track.

By Mr. Lindsey:

Q. Behind the fire?

A. Yes; but they kept in front, too.

By Senator Reyburn:

Q. They were pillaging and carrying the things away?

A. Yes; I got down to Eleventh street, and went to the Pan-Handle railroad yard, and they were breaking the cars open and setting the things on fire. I said to them, don't do it, or you will set the city on fire, and they said they did not care a damn if they did.

By Mr. Means:

Q. Did you know those men?

A. No; I never saw them before or since. On Saturday evening I was sitting in front of the engine house, and some men came up in front and said, "If there is a fire to-night, I suppose you will turn out." I said, "Certainly," when he said, "If you turn out there will be trouble. We will cut your hose and smash your apparatus."

By Senator Reyburn:

Q. Did he talk as if he came to warn you for that purpose?

A. Yes; he talked as if he came for the purpose of letting us know that. There was a great deal of feeling that night.

By Senator Yutzy:

Q. Did you have none of your engines in service before the troops left?

A. No.

Q. You played on neither private property nor railroad property?

A. No.

Q. Were the crowd generally disorderly?

A. Yes.

Q. Making threats?

A. O, yes; that they would kill the firemen, and one thing and another?

By Mr. Engelbert:

Q. Did you see a proclamation or any official document of the mayor of the city of Pittsburgh ordering the rum shops and drinking saloons to be closed on Saturday or Sunday?

A. I do not know of seeing it. If a proclamation was issued on Saturday, I was not in the city on Saturday afternoon.

Q. Or any proclamation ordering the crowd to disperse?

A. I did not.

Q. No proclamation calling for a police force?

A. No.

By Senator Reyburn:

Q. Did you see the shooting on Saturday night?

A. No; what occurred in the evening I didn't see. I was up there in the morning, but out of the city in the afternoon.

By Mr. Lindsey:

Q. If a determined effort had been made on Thursday by the mayor with the police force that he had at hand, could he have dispersed the crowd?

A. I do not know of any reason why he should not.

Q. On Friday, do you think so?

A. Yes.

Q. Could he on Saturday, up until the time of the arrival of the militia?

A. It could not have been done on Saturday morning, because the mill men had all commenced to gather.

By Senator Yutzy:

Q. Do you think he could have quelled the trouble without calling on the militia—that the police force could have suppressed the riot?

A. That is something I do not pretend to answer. The militia were called out a day or two previous to that. But I think this, that it was unfortunate for

this shooting to have occurred in Pittsburgh. My sympathies were with the strikers, but not up to the point of rioting.

Q. You say you thought on Saturday morning the crowd could not have been dispersed without the militia?

A. No.

Q. By the police force?

A. No.

Q. Could the mayor or the sheriff have raised a posse, either in the city or in the county, including both, sufficient to have dispersed the crowd?

A. I think that the mayor of any city of the size of the city of Pittsburgh ought to be able, with his police force, to break up any assemblage of men.

By Mr. Engelbert:

Q. After the sheriff called upon the Governor for troops, didn't that intensify the feeling in Pittsburgh?

A. It did. I do not think that there was any necessity for that, sir.

By Mr. Lindsey:

Q. State what efforts were made to start trains that day?

A. On Friday afternoon no effort was made. The passenger trains came in on Saturday morning. The troops were mixed with the crowd, and no effort was made to start trains, I went to Allegheny City, and learned of the shooting while coming across the river. I happened to be away when the fun commenced.

At this point the committee adjourned to meet to-morrow morning, at ten o'clock.

MORNING SESSION.

ORPHANS' COURT ROOM,
PITTSBURGH, *Wednesday, February 13, 1878.*

Pursuant to adjournment, the committee assembled at ten o'clock A.M., this day, and continued taking of testimony.

The first witness examined was:

Henry Coates, *sworn with the uplifted hand:*

By Mr. Lindsey:

Q. Were you a member of the fire department last July?

A. No; I was a member of the police force.

Q. What position did you hold?

A. I was a lieutenant.

Q. How many men did you have control of?

A. I had forty men that night of Saturday.

Q. Where were you on Thursday?

A. Sleeping. We had no day force in the city at that time.

Q. Were you not around during the day, Thursday?

A. No.

Q. Where were you on Friday?

A. In bed.

Q. During the night of Thursday, where were you?

A. On duty from Eleventh street to Thirty-third street.

Q. Taking in Twenty-eighth street?

A. Yes.

Q. Was there any disturbance—any overt act?

A. No; but there was a collection of people. Sometimes there would not be over thirty or forty.

Q. What class of people?

A. Railroaders, particularly.

Q. What was the conduct of the people?

A. They were quiet. There was no trouble at all.

Q. Did they remain there?

A. They would pass up and down, talking among themselves.

Q. Did you have any conversation with them?

A. No.

Q. Did you ask them why they were there?

A. No; it was not an infrequent occurrence to see men there. It is a principal street to go up to go to work.

Q. On Friday night how large was the crowd?

A. One hundred or so.

Q. Were they railroad men on Friday night?

A. Yes; principally. They appeared to be very quiet talking among themselves.

Q. What were they saying?

A. That they did not let me hear.

Q. Did you report to the chief of police or the mayor?

A. I made a report every morning.

Q. You reported that crowd to him?

A. Yes.

Q. But received no orders?

A. No; no orders to disperse them or anything else.

Q. Were the saloons open in that part of the city during Thursday, Friday, and Saturday. Were they closed at all?

A. I ordered them to close on Saturday evening.

Q. At what time?

A. About eight o'clock.

Q. During Saturday night, describe what took place?

A. I do not know that I can.

Q. You were not on duty during the firing?

A. No; that took place before we went on duty.

Q. How large was the crowd?

A. They began to come—three or four hundred—or two hundred—squads coming from different places all during Saturday night and Sunday morning. Nearly everybody in the city was in that neighborhood—or the biggest part of them.

Q. What time did the burning commence?

A. In the neighborhood of ten and half or a quarter to eleven o'clock. A crowd had congregated around the fire-alarm box, and would not let the men pull it.

Q. Where did the fire break out first?

A. I was about Twenty-eighth street when it broke out. I should judge between Thirty-first and Thirty-second street on the railroad.

Q. What was set on fire?

A. Oil, from the appearance of the smoke.

Q. What did they do with the cars after they set them on fire?

A. They cut them loose and ran them.

Q. How many men were engaged in that?

A. I cannot say that at all.

Q. Were you near the round-house during the night?

A. Yes; with the mayor of the city. I went to Twenty-seventh street, and passed the round-house, and tried to get in a place where it was reported a lady was shot—opposite the round-house. That was after the firing had taken place—about eleven o'clock.

Q. Did you succeed in getting in?

A. No; it was in a small saloon, and I had notified them in the early part of the evening to close, and for that reason they would not let us in.

Q. Were you there on Sunday morning?

A. Yes; until after the troops left.

Q. Did you see them march out?

A. Yes.

Q. Where did they come out?

A. On Twenty-sixth street—out of the gate.

Q. Did they march in good order?

A. Yes.

Q. Were they fired upon?

A. Not in our neighborhood.

Q. By the crowd?

A. No.

Q. How large a crowd was there or around there when they marched out?

A. I saw one citizen.

Q. Did you know him?

A. Yes.

Q. Who was he?

A. Captain —— McMunn. There had been quite a crowd before they filed on to Penn street, but they all broke.

Q. They broke when they saw the troops?

A. Yes; the cry was raised when they came out that they were going down to the Union depot, and the mob undertook to get down and cut them off.

Q. The mob broke and ran towards the river?

A. Any place where they could run away.

Q. You mean to say that the mob ran from the military, when they came out?

A. They did.

Q. How long was it before the mob re-assembled?

A. I did not see them re-assemble.

Q. Were you there during the day?

A. Shortly after that I had to come to the central station and take charge of the prisoners we had arrested.

Q. How many prisoners did you have arrested up there?

A. I cannot say the number.

Q. Can you give us an estimate?

A. About seventy-five, I suppose.

Q. What were they arrested for?

A. For having goods in their possession—cloth, and everything they could get hold of.

Q. Did you take them before the mayor?

A. Before Acting-Mayor Butler.

Q. What did he do with them?

A. Some of them were dismissed, and some were sent to jail, and some were fined.

Q. Some were dismissed?

A. Yes.

Q. Why?

A. That I cannot tell you.

Q. Was there no evidence against them?

A. Evidence of having goods in their possession, certainly. We arrested some of them with guns.

Q. Muskets?

A. Yes, and shot guns.

Q. Were any of those dismissed?

A. That I cannot say.

Q. About how many of those were dismissed?

A. That I cannot tell you.

Q. What time did you return to the scene of the riot?

A. After getting through with the prisoners, I was then ordered by the mayor to report to the chief engineer of the fire department for duty.

Q. What did you do?

A. I did all I could. Being an engineer by trade, I took spells at running an engine and worked with them after the neighborhood of seven o'clock that evening.

Q. Were you interfered with by the mob?

A. I was not.

Q. Whereabouts did you work?

A. Generally at the engine.

Q. At what points?

A. Twenty-fifth and Twenty-sixth, and Seventeenth and Sixteenth streets. And from there I went with the fuel wagon.

Q. Did you receive any assistance from the police?

A. They were there, and doing all they could, but the police was small at that time.

Q. Were you at the Union depot when it was set on fire?

A. No.

By Mr. Dewees:

Q. Those goods—what became of them?

A. They were turned over to the commissioners, I understood.

Q. They were goods taken out the cars?

A. Yes.

By Senator Yutzy:

Q. Why were those prisoners taken before Deputy Mayor Butler?

A. I cannot answer that question.

Q. Where did he sit?

A. In the central station, where we usually held the mayor's court.

Q. The mayor's office?

A. It is the central station-house.

Q. Where the mayor holds his court?

A. Yes.

Q. Where was Mayor McCarthy at that time?

A. I cannot tell you that.

Q. You say the police gave the fire department assistance and protection?

A. I say they assisted, so far as I saw.

William J. Kennedy, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. What is your occupation?

A. Foreman of engine company No. 3.

Q. Did you occupy that position last July?

A. Yes.

Q. State what part you took in putting out the fire that occurred on the night of the 21st—Saturday night?

A. It was eleven o'clock and twenty minutes when the alarm came first. We started out the house, but we were stopped at the grain elevator. But we got through that crowd, and got on to Penn street, when they began firing at us or at our horses.

Q. How many shots were fired?

A. I cannot tell that. It was just firing here and there along the street.

Q. With pistols and guns?

A. With all kinds of arms.

Q. How long was that kept up?

A. All night until daylight.

Q. Go on and tell us what occurred?

A. We turned on to Liberty street, and at Twenty-first and Liberty they hit me with something, and surrounded the horses. Then we turned on to Penn again, but they wouldn't let us move, so we went towards the river and tried to go down to get up further, but they were waiting there. They had some old muskets and carbines and other things, and if we just moved the horses they would come. We changed to different places from one block to another, but they wouldn't let us lay a line, and wouldn't let us throw any

water except private property was in danger. We didn't throw any water until after the troops went out of the round-house in the morning.

Q. Were you present when they went out of the round-house?

A. Yes.

Q. Were you at the round-house after they left?

A. Yes.

Q. Was it on fire?

A. Yes. They had to come out. The fire got under them.

Q. Under what part of the round-house?

A. I don't know what part of it, but they set it on fire from Liberty street. They had a hose there, and were throwing water all night. They ran the cars down and tried to set it on fire, but it was all right until the fire got under them.

Q. You say the troops had hose, and kept the fire out until it got under them and drove them out?

A. Yes.

Q. Do you know of any oil that was run under them?

A. I don't know that. All I know is, that some liquor was there burning.

Q. How soon did you get to the round-house, after the troops left?

A. As soon as we could.

Q. How extensive was the fire then in the round-house?

A. It was big, and there were lumber yards across the street all afire.

Q. Was the carpenter shop on fire?

A. I don't know whether the carpenter shop was or not.

By Senator Yutzy:

Q. Were any buildings attached to the round-house on fire, or buildings near it?

A. Yes.

By Mr. Lindsey:

Q. How large was the crowd when the troops came out?

A. I don't know how large.

Q. What did the crowd do when the troops marched out?

A. They were taking a walk—nobody interfered with the troops. Everybody tried to get out of their road.

Q. And get away?

A. Yes.

Q. In what direction did the crowd go?

A. I don't know.

Q. The crowd didn't attempt to attack the troops?

A. No.

Q. During the day—Sunday and Sunday night—were you interfered with by the crowd in throwing water?

A. Yes—frequently.

Q. To what extent?

A. Different parties kept coming constantly, so that we couldn't do anything. They said: "Don't you throw any water on the railroad property, or we will blow the heads off of you." It was not just one man, but they kept reminding you of it all the time.

By Senator Reyburn:

Q. They allowed you to play on private property?

A. Yes; I turned a stream on the cars at Union depot, when I suppose twenty revolvers were shot at me.

By Mr. Lindsey:

Q. Did you call on the police force for protection?

A. I would have had to call a good while before I would have got any. I didn't see many of them.

Q. Did they offer any protection to you?

A. Not to me, they didn't.

Q. Did Officer Daniel Motts speak to you at any time, offering to protect you?

A. He spoke to me several times during the night, but never offered me any protection. There was no occasion to offer me any, as both the chiefs were there.

Q. And he didn't offer you any protection?

A. No.

By Senator Yutzy:

Q. Did he give you any protection?

A. Not that I know of.

By Mr. Lindsey:

Q. Did he tell you, if you would commence playing on a certain point, that the police would protect you?

A. He didn't.

By Senator Reyburn:

Q. Did any police officer?

A. No.

By Mr. Means:

Q. In your examination, you have stated that you went to the round-house as soon as you could, after the troops left?

A. Yes; and went into service.

Q. How long was it after the troops left until you got playing upon the fire at the round-house?

A. I cannot tell you exactly, but it was very quick?

Q. Half an hour?

A. No; it was not ten minutes until we were throwing water.

Q. Then the fire had made considerable progress in the round-house?

A. Yes; and across the street in the lumber yards.

Q. Do you know, of your own personal knowledge, that the fire department did call upon the mayor for protection?

A. I cannot say. I saw the mayor there in a buggy.

Q. He didn't offer you any protection?

A. Not that I know of.

By Mr. Lindsey:

Q. Do you think, with the fire department, you could have cut the fire and stopped it during Sunday, if you had had protection?

A. I don't know whether we could have stopped it, it was on fire in too many different places; but I think we could have picked out twenty-five men and saved Union depot from burning.

Q. Do you mean you could have prevented the mob from firing it?

A. Yes.

Q. With twenty-five policemen?

A. With twenty-five good men of any kind.

By Senator Reyburn:

Q. Do you mean that it could have been stopped at that time and place?

A. Yes.

Q. And that you could have prevented the spreading of the fire?

A. Yes; if I had had that number of determined men.

Q. Did you see those parties who set Union depot on fire?

A. No.

Q. Was there no effort made when they set the sheds on fire to tear the sheds down and stop the fire?

A. Not that I saw—not by the police, that I saw. We did all we could. We kept following up the fire.

By Mr. Lindsey:

Q. Was there no effort made during the day, Sunday, to stop the progress of those men in setting fire to the cars and the depot?

A. That I cannot say.

Q. You were not present when the mayor made a speech to the crowd?

A. No.

John M. Miller, sworn with the uplifted hand:

By Mr. Lindsey:

Q. Where do you reside?

A. On Second avenue.

Q. What was your connection with the fire department in July last?

A. I was an engineer.

Q. What time did you go to the scene of the fire?

A. About twenty minutes after eleven o'clock.

Q. Saturday night?

A. Yes.

Q. Were you interfered with by the crowd?

A. We were fired at and told to go slow, you sons of bitches, all the way, but nobody struck us. I don't know whether they fired at us or not, but our foreman, I believe, was struck in the back.

Q. Did they strike any of your horses?

A. That I cannot tell. I was behind the engine.

Q. Where did you commence work?

A. We were off with the engine about a square from the fire, and commenced work first at Twenty-sixth street. I don't know where they had the hose placed. They told us not to throw on the railroad property, or they would cut our hose, and they tried to prevent me putting on my suction

hose. We had to talk to them, and tell them we were not going to play on the railroad property before they would allow us to make any attachment at all.

Q. How long did you remain at work playing on the fire?

A. We returned home at ten o'clock Monday morning, I think it was.

Q. During the day, Sunday, were you interfered with by the mob?

A. They spoke to us, and a drunken fellow told us, if we played on the railroad property, that they would blow our heads off.

Q. Were you protected by the police?

A. The police was a disorganized body—no two of them were together, I don't believe. I never saw over two together the whole day.

Q. Did you call on the police for protection?

A. I didn't.

Q. Did the police offer you any protection?

A. Not that I know of.

Q. Did Officer Daniel Motts say anything to you at any time?

A. Daniel Motts and a man named Coulston came to us before the round-house caught on fire, about one o'clock that night, and asked us what we were standing there for, and not throwing any water. I said that the mob wouldn't allow us, and they said, I believe, they would protect us. I said, I am not the proper person, as the chief is here, and as we have orders to stand here and wait further orders. But the way they spoke to me, I thought it was in a joking way, because the only protection they could offer wouldn't have amounted to anything. I told them I was not the proper person, that the chief was there.

Q. Did they ask you to play upon any particular point of the fire, and say they would protect you?

A. No; they didn't. The cars were burning above the round-house at the time, but the round-house was not burning at the time.

Q. Did you see the troops come out?

A. No; but I saw them after they came out.

Q. How soon did you get up there after the troops went out?

A. In about twenty minutes or twenty-five minutes.

Q. Was the round-house on fire when you got there?

A. It was burning bad.

Q. Was it burning before they came out?

A. Yes; that is what chased them out. I understood afterwards that they came out of the carpenter shop.

Q. Was the carpenter shop burned afterwards?

A. That I cannot say. We were ordered away below that again.

Q. What became of the crowd when the troops came out?

A. They ran pell mell, and fell over each other. The troops could have marched down Liberty street and drove them. The mob were cowards when daylight shown on them. They had plenty of guns, but not much ammunition for them. They were drunk, and that was what gave courage to the most of them.

Q. Those drunken men, when daylight came, what became of them?

A. They staggered off, and went to sleep or something. They had plenty of liquor.

Q. How many were engaged in firing the cars during the day—Sunday?

A. Not over ten or twelve men. Some of them were boys fourteen or fifteen years of age. The most conspicuous man was a man with one arm.

Q. Were you close?

A. I was; at Twenty-first and Liberty street.

Q. Did you follow down with your department?

A. When the fire broke out down below amongst the cars we were ordered further down. We went then to Twelfth and Liberty streets, that is from Twenty-first to Twelfth.

Q. Was any effort made by either the police or the militia or any person to stop this gang who were firing the cars?

A. None at all. There were plenty of people outside in sympathy with those who were setting fire, and who were handing drinks up to them, and some women were carrying coffee, and handing it to them?

Q. What class of women?

A. They looked like Irish women.

Q. What classes of men were about that day who appeared to be in sympathy with them?

A. It generally was the Irish. Most every person that spoke to us about not playing on the fire was Irish, that is, had the brogue on the tongue.

Q. Were they railroad men, or did they belong to any particular class in the city. Mill men, or any particular class of people?

A. I didn't recognize any of them that I knew personally.

By Senator Reyburn:

Q. You say they were handing coffee up to those people. It must have been made in the vicinity of the fire?

A. Yes; or else carried some distance. It appeared to be hot coffee.

By Mr. Lindsey:

Q. Where was the mayor during the day Sunday?

A. I cannot say; I didn't see him at all.

By Mr. Engelbert:

Q. After the soldiers marched out the round-house, if they had torn up the track, would it have prevented any further firing west?

A. Previous to the round-house being set on fire?

Q. Afterwards?

A. It would; but they would have followed on down.

Q. But couldn't the soldiers have checked them there?

A. Yes; I think the soldiers could have cleared the whole track after daylight on Sunday, cleared the whole track.

Q. The soldiers or the mayor's posse?

A. I don't know about the mayor's posse. They didn't appear to be so much afraid of the posse as of the guns.

By Mr. Lindsey:

Q. I understand you to say that no attempt was made by either the civil authorities or the military authorities to stop the fire on Sunday, or to clear the track?

A. There was no attempt at all.

Q. Of course, you cannot tell what would have been the result, if an attempt had been made—it is a mere matter of opinion as to what would have been the result?

A. I believe so; but that is my opinion. I feel certain that they could.

Q. You spoke of the police force not being organized. What was the organization of the fire department?

A. The organization of the fire department was perfect. All the men were at their posts all the time, ready to do what they were ordered to do.

Q. How many were at their posts?

A. All the men that were on the force. The force had been reduced, but some of the men that had been put off were helping.

By Mr. Engelbert:

Q. You say those members of the department that had been put off didn't refuse to assist you?

A. Not at all!

By Mr. Lindsey?

Q. How many men were discharged from the fire department?

A. Some twenty-two.

Q. How many of those men came back to your assistance?

A. Through the whole department I cannot say, but of our company I saw a couple of them. Of course, they had their favorite companies. And then there were plenty of volunteers of the old members of the volunteer department.

Q. Who appoints the fire commissioners?

A. They are elected by city councils.

Q. They have control of the fire department?

A. Yes.

Q. State whether the fire commissioners are subject to the control of any higher body?

A. I don't think they are. I think they are given full power.

Q. Do you know what the law is in regard to that?

A. I don't. I have never examined it.

By Senator Yutzy:

Q. What appeared to be the disposition of the crowd surrounding that fire—did they appear to be in sympathy with the rioters?

A. That I cannot say.

Q. Some of the crowd were gathered there out of curiosity?

A. I would have them all around the engine. It was a regular hum, just like bees—everybody seemed to be talking.

Q. Was there any general expression against the soldiery?

A. I believe there was, after they fired on the mob. I believe some classes of men had a feeling against the soldiers, but I believe the better class of citizens had not.

Q. You say the soldiers could have cleared the tracks and dispersed the mob, when they came out of the round-house?

A. They could—if they had opened with the Gatling guns, there would not have been a soul in sight for fifteen squares.

Q. Do you know whether the officers of the soldiery in the round-house had any communication with anybody outside, during the night?

A. I don't think they had, to my knowledge.

Q. None of them were passing back and forth, between the round-house and outside?

A. That I cannot say. I was not close enough to it.

By Senator Reyburn:

Q. The soldiers had no means of knowing that the crowd had become dispersed, or weakened, or drunken?

A. I don't think they had. I think the soldiers thought the whole community was against them. If they had known that they could have come out, and drove the mob down, I think they would have done it.

By Senator Yutzy:

Q. Officer Coulston has testified, that the round-house was not on fire where the troops came out—that he went through the building. Could he have gone through those buildings soon after the troops evacuated them?

A. He couldn't. He might have gone into the carpenter shop, or the paint shop, but the flames were coming out of all the windows of the round-house. Nobody could have lived there.

By Senator Reyburn:

Q. Could a man have got on to the engines as they stood in the stalls?

A. He might, in one part by the carpenter shop, but I don't think he could have lived in any part of it, on account of the heat.

Daniel J. Eckels, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. 135 Second avenue.

Q. Were you connected with the fire department in July last?

A. Yes.

Q. What position did you hold?

A. I was engineer of company No. 2.

Q. State when you arrived at the fire, and how long you remained there?

A. Probably between twelve and one o'clock on Sunday morning. We could not go into service. We waited there on the street by the Independence engine-house. We stayed at the fire until after the troops came out of the round-house.

Q. During the day—Sunday?

A. Yes.

Q. And Sunday night?

A. Yes.

Q. Until Monday morning?

A. Yes.

Q. Were you assisted by the police force at any time?

A. Not that I know of.

Q. Did you see any policemen about there?

A. I cannot say that I did; but I did hear that at one place where we were working the mayor was around, but I did not see him.

Q. Did you see Mayor McCarthy at any time?

A. Not that I know of.

Q. Was any attempt made during the entire day of Sunday to stop the men who were engaged in the burning?

A. Not that I know of.

J. F. Rivers, sworn with the uplifted hand:

By Mr. Lindsey:

Q. Where do you reside?

A. On Mulberry street, above Twenty-fifth.

Q. What is your business?

A. I had been a detective in the employ of the city of Pittsburgh previous to July 12.

Q. What position did you hold at the time of the riot?

A. I held no position; but I lived within three squares of the scene, and consequently had considerable interest in the riot. I was away from the city; but I came back on Friday evening. I heard that there was a strike among the railroad men, and, as I knew a great many of them, I was very much interested in their behalf. I went up to the upper round-house on Saturday morning, and there I saw a great many railroad men, and a good many outsiders, that I knew were attracted there for, probably, the same reason I was. They were very orderly, and I saw no trouble there. It did not look as though there was going to be any trouble. I came down to the city and saw the troops at Union depot towards noon, and went up to my home, and saw the troops up on the hill. I paid no more attention to it until towards evening, when I heard the troops had fired upon the crowd. Then I went up there. I was trying to find my two boys. The crowd was then gathering to the number of thousands, and the people were very much excited, and expressed themselves that the troops ought to be cleaned out, and all such language as that. I went away from there, and towards dark I went out towards Twenty-fifth street, and saw the troops had been moved from the Twenty-eighth street position to the round-house, or square-house. The carpenter shop is on one side of Twenty-sixth street, and the round-house and office of the assistant superintendent is on the left hand side opposite. The round-house is a little back of the office, and the outer circle of the

round-house comes on the line of Liberty street, and there is a railroad track in front of it belonging to the Valley Railroad Company. The crowd was in front of there; the soldiers were in the round-house and in the carpenter shop. The crowd was there, and probably thirty men were jeering at the soldiers. I did not know any of them; but I went in among the men and I said, "boys, if those men come out you will have to go away, as you do not have any business here." I said, "these men are strangers, and you ought to treat them differently." They said, "we will have them out if we have got to roast them out." I felt some interest in the Pennsylvania Railroad Company, and in the interest of good behavior I come down the street, and tried to find some railroad officers to communicate my belief that there would be a fire and trouble. I tried to find some of the railroad officers, but could not do it. It was then after dark—after night. I went towards my home, and I met the crowd on Liberty street going to Union depot. I went up to one man I knew, who was tried in court last week, and I said "the railroad company has conceded to the demands of their employés." I had understood something of that sort. He said "it was too damned thin," and went into the depot, and a short time after there was an alarm of fire. At the corner of Twenty-fifth and Penn avenue the Independence apparatus was stopped by men pointing pistols, and saying if they proceeded any further they would kill their horses. I spoke to the parties that did that loud talking, and they said it did not make any difference—that they had no right to go up and throw water on the railroad property. I said: "These men are responding to a call, and they must obey, and you should not interfere with them." I then went away to see the extent of the fire. I went to Twenty-eighth street, and between there and Twenty-ninth, on Liberty, I saw the burning cars running down the grade towards the Twenty-eighth street crossing. But a switch was turned wrong or something, and the cars ran off the track. They set fire to what is known as the sand-house, and that is the first building that caught fire, and from that the fire communicated to the upper round-house, I think. The fire burned very slow. It appeared to me to be started by people that wanted to plunder, which they did, for they carried out great quantities of goods that day and the next day. The fire burned very slow—I never saw a fire burn so slow in my life. I did not see whether the fire department went

into service that night or not. Next morning I saw the troops as they came up Liberty street on to Twenty-fifth, and marched out Penn avenue. I did not see much of any mob at that time. Then the fire department went into service. I saw no person particularly setting things on fire, but I saw two men coming from under a car off the track, in front of the round-house, just at Twenty-sixth street. The car was loaded with liquor, and just shortly after they came out and went away the car caught fire, and then the round-house and the shop and the offices and all caught fire.

By Senator Reyburn:

Q. Before or after the troops came out?

A. A portion of it—the square shop that they came out of was set on fire afterwards. The building was L shaped, and there was a fire in the rear of it, and there might have been a fire—but I won't be positive—but there might have been a fire in the L that ran towards the road, but none in the L on Liberty street when they came out; and they had made some efforts to protect themselves against fire, because I discovered some leather hose, that the railroad company had in the premises, after the troops came out. The fire then kept burning down gradually on Liberty street down the railroad, and the people kept carrying off the goods all day Sunday. Down at the Union depot—previous to that catching fire—I was in there, and saw that the parties had moved as many of the goods as they could, and I saw no person trying to stop them. They set the depot master's office on fire, and then a burning car was run down into the depot, and that fired it. I saw the troops marching down Twenty-fifth street towards Penn, and saw them march up Penn.

By Senator Yutzy:

Q. Can you tell us what portion of the round-house, or the buildings attached to it, were on fire when they left?

A. I do not know, but there might have been a fire in the rear of the round-house—the portion of it that is next to the main line might have been a fire

—and as I said before, this L of the carpenter shop might have been afire previous to the vacation, but I do not know it; but, from my recollection of it, the fire burned so slow that there must have been a fire in there before they got out, because when it caught from the burning car on Liberty street, the whole building appeared to be enveloped at once.

Q. Did you see the troops fired on as they went out?

A. I saw one man fire, I think, twice. He attempted to run into my yard, and I kicked him out, and I said "if you want to fire on those men go out and do it, but you cannot do it here." He ran out and shot at them with a pistol. Somebody returned the fire, and he quit following them any further.

Q. Did you know him?

A. No; I never saw him before. I know a great many men here; but I knew very few men that took part in the riot.

By Senator Reyburn:

Q. You were around through the crowd?

A. Yes.

Q. And could judge of the crowd?

A. The men I saw jeering the soldiers penned in there, I did not know any of them, nor I do not think they knew me, because I think if they had known I was an officer, or had been one, I think they would have made it lively for me, because I have the idea that they would have thought I was there in the line of my business. I did not know any of them. But this man, Richardson, that was tried last week, I saw him and spoke to him about half past nine o'clock on Saturday night, and told him that the railroad company had conceded to the wishes of the men, and he said that was too damned thin, and went on.

By Senator Yutzy:

Q. In your experience as a detective in this city, you have gained an extensive knowledge of the people?

A. Yes.

Q. And from the general appearance of that mob you think they were strangers, and did not belong in the city.

A. Yes; that is, the ringleaders. I was at one time on the Pennsylvania railroad, a number of years ago, and in consequence of that, I know a great many railroad men, employés of the road, and I saw none of them engaged in this riot. When I first went up there, in the morning, I saw a great many I knew, railroad men, but they were all quiet and orderly.

By Senator Reyburn:

Q. Did you have any conversation with them as to the reasons or causes that led to the strike?

A. Yes; their grievances were, as far as they told me, that they had been required to put on double-headers, and the reduction in the number of their men that they would lose so many men, as they called it, in a crew.

Q. Did they express any intention of using violence?

A. Not that I heard. I did not hear a man say a word that would tend to show he was going to use any violence. I remarked to four or five of them standing together: "If the mayor sends his police here and orders you fellows away from here, you have no business here on this property, and you must go."

By Mr. Lindsey:

Q. What day was that?

A. On Saturday morning, about ten o'clock.

By Senator Yutzy:

Q. Did you hear any of those railroad men speak of a preconcerted arrangement for a general strike through the country?

A. I never did.

Q. At that time?

A. No.

Q. Nor since?

A. No.

Michael Hannigan, *sworn with uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. No. 45, Grant street.

Q. What was your business in July last.

A. I was acting foreman of engine company No. 2.

Q. What time did you visit the scene of the riot?

A. Between one and two o'clock on Sunday morning.

Q. At what point did you stop first?

A. We answered box No. 62, and then the chief gave us orders to stop at Twenty-third and Penn, and not make any attachment until we got further orders.

Q. How large was the crowd at that time?

A. A great many men were scattered along the street as we were going to the box. The fire was down as far as Twenty-third street by that time. By

daylight it got warm at Twenty-third and Liberty, and the chief got permission from the mob to lay a line of hose so that a foundry there might not take fire. We afterwards went to Twenty-sixth street, but could not get across there as the soldiers were firing across Twenty-sixth street.

Q. What time was that?

A. An hour after we were at Twenty-third street.

Q. After daylight?

A. Yes.

Q. Did you visit the round-house after the troops left?

A. It was impossible for anybody to go there. The upper building was completely burned when we went into service. It is a square building.

By Senator Yutzy:

Q. Attached to or in close proximity to the round-house?

A. Yes. The roof had fallen in when we laid the line of hose. That was in ten minutes after the soldiers had left the round-house.

By Mr. Lindsey:

Q. How long before the round-house was consumed by fire?

A. I cannot tell you that.

Q. Did the soldiers march out in good order?

A. I did not see the soldiers except at a distance.

Q. Did you remain on duty during the day Sunday?

A. Yes; and up until Monday morning at ten o'clock.

Q. Had the fire stopped when you left?

A. Yes, We were on Washington street.

Q. What stopped the crowd from plundering and burning?

A. I do not know that.

Q. After they fired Union depot, did they fire any other property?

A. There was a depot fired on the west side.

Q. How far down towards the city did the crowd come?

A. It was down there on Seventh avenue.

Q. How large a crowd was on Seventh avenue?

A. From the Rush House down to Seventh avenue—ten thousand men—you could hardly get through.

Q. Were there any police there to arrest the crowd?

A. I did not see any.

Q. Did you see the crowd when they dispersed from that point?

A. No.

Q. Were you assisted at any time during the fire by the police?

A. No.

By Senator Yutzy:

Q. Were you protected?

A. No.

Q. Did you ask for protection?

A. No; the mob had a cannon planted at Twenty-seventh street, pointed right at the engine, and they said if you play on the railroad property we will raise you. We did not want to be raised.

By Mr. Lindsey:

Q. Who made those threats?

A. That I can not tell you.

Q. Was any effort made by the mob to set fire to private property, that you saw?

A. I did not see any of that.

Q. On Sunday night they had finished all the railroad property?

A. I think the last they set afire was that depot on Grant street.

Q. What became of the mob after that time?

A. I do not know, but I heard several citizens express themselves that they were getting tired of this work. We were then on Bedford avenue. They said they were going too far with it.

Q. Citizens said that?

A. Yes.

Q. What citizens made those remarks?

A. I do not recollect.

Q. Where were the mob during Sunday night?

A. I did not see any of the mob at the time we went out. I saw a great many people on the street. We had to go very slow. They were using all kinds of threats.

Q. When you left, on Monday morning, was everything quiet?

A. Everything was quiet then.

Q. Where had these people gone?

A. I do not know.

Q. Did you see the mayor about at any time?

A. Once, at the corner of Twentieth and Liberty streets, standing against a gas post.

Q. What time was that?

A. In the afternoon—I do not recollect the hour.

By Senator Yutzy:

Q. Do you know whether the round-house was on fire when the military left it?

A. Yes; at least that building was.

Q. How long after the military left did you go to the round-house?

A. While I walked from the corner of Twenty-fourth up to Twenty-sixth street.

Colonel D. L. Smith, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the city of Allegheny.

Q. Do you hold any official position?

A. I am one of the aldermen of that city.

Q. Where were you at the time of the riots in July last?

A. I was at my home in Allegheny city.

Q. What occurred there in regard to the riots, that you have any knowledge of?

A. About half past five o'clock in the evening, on the day that the soldiers fired in the crowd, my office boy came to my office and reported to me in great excitement, that the soldiers had fired on and killed a number of the citizens. I then went to the scene of the trouble, and remained there until about eight o'clock in the evening.

Q. What time did you get there?

A. At six o'clock. The troops had just gone into the round-house as I got there. I returned to my office after eight o'clock, and when the cars were fired at eleven o'clock, I saw the light and heard the alarm, and immediately went to the scene, and remained there until four o'clock in the morning. I then returned home, and remained at home until one o'clock, and then came to Pittsburgh again and remained until nine o'clock.

Q. What did you observe?

A. One or two wounded men being carried from the ground. I observed a disorganized mass of people standing in groups, numbering perhaps six or eight hundred, discussing the fire and passing their comments on it.

Q. This crowd of people you saw there—of what class was it composed?

A. There were some few railroad employés, but the most of them I recognized as mill hands from the different rolling-mills. I knew many of them personally.

Q. A portion of them from your city?

A. Yes; attracted by excitement to the fire. Some remained there.

Q. What were those mill hands doing when you went there?

A. Discussing the question involved in the railroad strikes, and some of them were using threats. One man remarked, if the firing went on, that there wouldn't be a dollar's worth of railroad property left in the county of Allegheny at nine o'clock the next morning. Quite a number of persons I

recognized as persons I knew to be workingmen from other sections. I know a great many of the Pittsburgh workingmen.

Q. You say from other sections?

A. I judged them to be miners and mill hands, attracted here from outlying counties—attracted by news of the riot; in fact, in conversation with some, they informed me they had come from different places.

Q. From communities within a short distance of the city?

A. Yes.

Q. Were that class of men taking part in the disturbance?

A. At that time there was no disturbance. It was very peaceful, except the grumbling. But at eleven o'clock, I was on the railroad track, and I noticed three men breaking into and taking the contents of a car.

Q. Did you know who those men were?

A. No; they appeared to be workingmen, and some of them appeared to be familiar with handling cars from the manner in which they proceeded to open the cars. I went down and remonstrated with them, and they treated me very civilly—didn't seem to take as an insult my interference. I remarked that the railroad company would not be the sufferer. They paid no particular attention, and I told them, you men will certainly be punished for this. I told them I was a magistrate, and had come in my official capacity to try and quell the disturbance; but they paid no attention. There was no riot at that time. They went peaceably about it.

Q. Did they get the goods out?

A. Yes; they threw them out promiscuously. The greater number of goods were carried away by girls about sixteen years of age and by boys up to twenty years of age. The goods were carried away by residents of the immediate neighborhood. I then went up to where they were setting fire to

the oil cars, and there were probably not more than eight or ten men engaged in that.

Q. Who were they?

A. I do not know. They seemed to be workingmen from their garb. I knew them to be workingmen, and several of them I knew were familiar with operating railroads, from the fact that they knew how to open the switches, and run the cars into position, and they handled the cars with the experience of practical mechanics.

By Senator Reyburn:

Q. Do you mean they were railroad men?

A. Certainly; some of them. At this time probably twenty cars were on fire, and there were not over one hundred and fifty persons altogether on the railroad tracks.

By Mr. Larrabee:

Q. What hour was this?

A. Twelve o'clock on Saturday night. Just then a man came from the crowd of rioters—there was a crowd collected in front of the round-house for the purpose of fighting the militia—and he jumped on to a flat car and drew a sword—he had a belt around him, but had no uniform—and he immediately ordered them to stop burning the cars and pillaging the trains, saying that they had come not to burn and pillage, but to fight the military.

Q. Who was he?

A. He was evidently a leader, but I did not know him. He was from the party that came from Birmingham. Immediately when he jumped on that car, somebody hallooed "police," and in five minutes there was not a man left on the railroad track. The cry of "police" cleared the whole thing out, and any two police officers could have preserved the peace.

Q. You think that a small force of police there could have straightened things up?

A. At no time more than twenty men were engaged in the burning.

Q. How long did you stay?

A. Until four o'clock in the morning.

Q. You say those carrying off the goods were mostly children?

A. They were mostly young—girls and boys. At one o'clock in the morning I passed the police station on Penn street, in the immediate vicinity, and the police officers were arresting every person passing with goods and there was no resistance. They had perfect control. A mob amounting to not more than five hundred persons was standing near, and they had a cannon commanding the round-house, but the soldiers had covered it with their arms, and had killed one or two of the rioters. The mob engaged in fighting the soldiers were not engaged in the burning and pillaging. I went among them. One of them called me by name. I knew his face. He said, "Alderman, don't go down that way; they will shoot you." But I said, "No," and passed on through them. I said to him, "You had better go home," when he said that they had come for the purpose of fighting the militia, and were going to fight them.

Q. What time was that?

A. About four o'clock. It was just breaking day.

Q. Now, this mob gathered around in the vicinity of the round-house—what was that mob composed of?

A. I recognized that mob as composed nearly all of people who were working men from the south side of the river.

Q. That is, Birmingham?

A. Yes; some few of them were citizens that I knew. And I would state that some few were armed, but showed no disposition to violence except that

they had an antipathy to the soldiers that had fired on their relatives. I mention this fact to show that there should be a distinction between the rioters proper and the plunderers. They didn't seem to be acting in concert. A posse of police of twenty men could have protected all the property that night.

Q. Did you hear any body state that the rioters or the mob had prevented the fire department from throwing water on the railroad property?

A. I did not. But I have no doubt they would have prevented it, from the disposition of the mob. I didn't see any person setting fire to the Union depot. I took my stand at the elevator. I met one of the clerks belonging to the company, and he told me that they had refused to let them take their books out. I said, come back with me, and I will take them out. So I went back and stationed myself at the elevator, to save it, if I could, by my presence there, and by calling a *posse comitatus*. But I could not get any person to serve. The sheds below Union depot were then taking fire, and two or three men came, and wanted to go into the elevator. I told them not to go in. At this time not less than twenty thousand people were there—men, women, and children—but there was no rioting, and there were not more than eight or ten or a score of men engaged in spreading the fire at that time. They seemed to be peaceable.

By Senator Yutzy:

Q. You mean the men who were setting things on fire?

A. Yes; they went to it deliberately'.

Q. You spoke about raising a *posse comitatus*?

A. I tried to raise it. I called on a gentleman from Allegheny, named Gray. I summoned him to my assistance, but he refused to act, but said if I could get ten more he would do so. I afterwards saw some other parties, but while they deprecated the burning, they said it was worth their lives to interfere. I then went with Mr. Gray down to where the men were running the burning cars, and tried to reason with them. At that time probably twenty men were

engaged in that, besides the persons engaged in carrying the things off. And by that time they had gotten into liquor, and were pretty well intoxicated. On Sunday afternoon I also tried to raise a *posse comitatus*. I called on some citizens that I knew, but they were afraid to do anything, alleging that the military and police should do it.

Q. What reasons did they give?

A. That they did not want to jeopardize their lives.

Q. Was the elevator set on fire while you were there?

A. No; I left, and supposed the elevator was safe, and went down to Seventh avenue, where the depot of the Pan Handle road was just being set on fire. I remained there some time, and then went to Allegheny to get my supper, and came back. While crossing the bridge, I noticed the fire coming from the elevator. I remained in the vicinity of the fire until between nine and ten o'clock that night, and at that time there was no further spreading of the destruction. The citizens, in the meantime, had organized a police, and there had, apparently, been a number of arrests made.

Q. As soon as the police began making arrests, the citizens took the matter into their own hands, and the destruction ceased?

A. Yes; and that is what convinced me that a posse of twenty policemen could have prevented the destruction. But at any time during Saturday night, if a police officer had gone into the crowd to arrest a man, the mob would have interfered with him—I am satisfied of that.

By Mr. Lindsey:

Q. When you told those persons to stop setting fire, did they obey your orders?

A. On Saturday night they paid no attention, but they didn't interfere with me.

Q. You asserted your authority as far you could?

A. As far as I could, and they respected my authority when I asserted it resolutely. Then they gave way. I went to Allegheny to try to summon a *posse comitatus*, but I found it collected, and I then repaired to the mayor's office, in Allegheny, and took part with them for the protection of our city. In our city, I may say, that no destruction occurred. The railroad men took possession of the railroad property there. I think they took possession first on Thursday evening. Nothing was destroyed. The railroad men—those I conversed with—said that they had determined to protect the railroad property against any mob.

By Mr. Larrabee:

Q. What did they say was their object in taking possession of the railroad property?

A. Well—my office seems to be a general receptacle for persons of diverse opinions. Some of these railroad men came to me with their complaints. I was told their grievances, and that their purpose was merely the restoration of the ten per cent. reduction.

Q. Those were employés of what railroad?

A. The Pittsburgh, Port Wayne and Chicago road. They admitted their actions were contrary to law, and that they might be amenable, but still they asserted their assumed right to stop the running of trains until their demands were complied with.

By Mr. Lindsey:

Q. You say they asserted their right to stop the trains?

A. An assumed right. They supposed they had such a right. Some of them supposed, ignorantly, that they had such a right—a great many of them honestly believed that.

By Mr. Larrabee:

Q. Did they claim that they had any right to set themselves up against the authorities?

A. No; at no time; as they construed the laws of the Commonwealth, they did not want to set themselves up against them.

By Senator Reyburn:

Q. Do you know what the feeling was in this city when the strike broke out?

A. I know that the people of the city of Pittsburgh almost universally condemned the reduction of the salaries of the railroad men at that time. The strikers knew that they had the sympathies of the people of Allegheny county—of all classes—in their efforts to have a living rate of wages restored to them, and thousands of people not engaged in the strike, on that Saturday afternoon, in July last, were gathered in the vicinity of the Pennsylvania railroad workshops, not for the purpose of violating any law, but either from motives of sympathy with the strikers or prompted by curiosity to witness the military. It may be inferred, that at least one half of those people were women and children, and these, without warning, were fired into and many of them killed or wounded. Of course, this caused universal indignation and condemnation, and was the occasion of all the subsequent troubles and destruction. A pacific course pursued towards these men would have avoided the catastrophe that followed. The first great blunder in dealing with the strikers in Pittsburgh, was in the attempt to operate the road by the use of a military force, instead of using the troops to preserve order and to keep the peace.

Q. You say that the sympathies of the people of Pittsburgh were with the strikers or with the railroad employés and against the reduction of their wages. Do you mean as long as no overt act was committed? Or what did they regard as an overt act?

A. They would have regarded as an overt act the destruction of property.

Q. Did they regard the stopping of trains as an overt act?

A. I think that certain classes of people did not regard the stopping of the trains an overt act, but they would have regarded the forcible taking of men from the trains—men who were willing to work—or the preventing them from working, as an overt act.

By Mr. Lindsey:

Q. Will you tell us what you did in your own city—tell us how you managed the trouble there?

A. The authorities of Allegheny managed the strikers differently—in a different way from that pursued in Pittsburgh. Several days prior to the burning in Pittsburgh, the strikers took possession of the railroad tracks, and the workshops of the Pennsylvania company operating the Pittsburgh, Port Wayne and Chicago railroad. They threw up breast-works, and held armed possession of the railroad property, and even took possession of, and regulated the running of passenger trains and the United States mail trains. At all interviews, they insisted that it was not their intention to destroy property, but to protect the railroad property, and that they wouldn't commit any overt act in violation of law, as they understood it. Many of them believed they were not violating any law, and assumed that they had a right to accomplish the object they had in view, by the method they then were pursuing. The authorities and the citizens of Allegheny City knew that they were dealing with a powerful, intelligent, and well organized body of men, who were determined and resolute in their purposes. To have attempted to force those men from their position, would have precipitated the same troubles that culminated in Pittsburgh a few days subsequently. So the citizens appealed to the better judgment of those strikers, they reasoned with them, and instead of irritating them, or attempting to force them, they permitted them to have their own way, believing that the railroad officials and their employés, would, in a few days, adjust all differences. This policy, under the circumstances, proved to be a wise one, as when danger came, and when the mob were burning and destroying in Pittsburgh, the strikers in Allegheny actually removed all the rolling stock out of the way of danger, and volunteered to assist the organized citizens in protecting the depots and

workshops, and all other railroad property in the city of Allegheny. Had the same policy been pursued in Pittsburgh, there would have been no destruction of property.

Q. You were in the army. What position in the army did you hold during the late war?

A. In 1861—in May, 1861—I enlisted as a soldier, and was elected lieutenant of my company, and went out as a member of the Second Virginia regiment, as lieutenant, and afterwards became captain of my company.

Q. Was it a Union regiment?

A. Yes. We went to Wheeling to protect the people, and our services were accepted by the people of West Virginia. On the 19th of February, 1862, I was appointed commissary assistant by the Secretary of War, and that position I held until about the 1st day of September, 1862, when I was assigned to duty as chief commissary of the Twelfth army corps. About the 15th of March, 1863, I was assigned to duty as chief commissary of the Fifth army corps, with the rank of lieutenant colonel, on General Meade's staff.

Q. How long did you occupy that position?

A. Until I was mustered out of the service, or until the corps was disbanded, in September, 1865. I remained in service until March, 1866.

Q. What business have you been engaged in since the war?

A. For the last eight years I have been an alderman of the city of Allegheny. The year before that, I was a member of the Legislature.

Q. From the time you left the army until you were elected a member of the Legislature what business were you engaged in?

A. I was following my occupation as a scrivener.

Q. Where did you reside before going into the army?

A. From the year 1836, until I went into the army, in this county.

Q. What business were you engaged in?

A. When I went into the army I was chief clerk in the county commissioners' office of Allegheny county. Prior to that I was a clerk in a store.

By Mr. Larrabee:

Q. Something has been said about picketing the railroad track where the riot occurred. Now, taking into consideration the number of cars around there, how many troops would it have taken to reasonably picket the track and the ground there in possession of the mob?

A. The ground in possession of the mob, from the round-house out to Lawrenceville, I think could have been sufficiently picketed by one hundred men on both sides. At no time were more than one hundred persons on the ground from twelve o'clock that night until four o'clock in the morning, from the round-house out to Two Mile run. I consider that the movement of the military into the round-house, at the time, was a good one, but they should have picketed the railroad, and all the approaches to the round-house. To have retired on the bluff, above the railroad tracks, would have been a military blunder, for if they were not strong enough to protect themselves where the cars and buildings afforded them shelter, they certainly could not have held a position on the hill face, where they could have been attacked from the open fields above them, and been within easy range of masked or rifle shots from the houses fronting on Liberty street. No officer of any military experience would have selected that hill face to bivouac his troops, under the circumstances then existing, but the retreat of two regiments of well armed and equipped soldiers, commanded by officers of undoubted courage, and large military experience in the face of a disorganized mob, was certainly an inexplicable blunder.

Q. You did not see the crowd before it was fired into and dispersed by the military?

A. I did not. I only arrived there afterward.

By Senator Yutzy:

Q. Now in your judgment, as a military man, do you think that there was any necessity for calling on the military to quell this riot?

A. I do not. I honestly believe that if the authorities of the county or Allegheny, or the city of Pittsburgh, had summoned a sufficient *posse comitatus*, they could have preserved the peace. They might not have been able to run the railroad cars, but the peace could have been preserved without calling the military.

By Senator Reyburn:

Q. From your observations during this disturbance, what opinion have you of the conduct of the officers and those in charge of the military?

A. I was not brought in contact with them, except with Colonel Gray, of one of our regiments, after the firing. I went to where he had bivouacked on the railroad track, and he had one hundred and twenty men with him at the time. He said he was there for the purpose of obeying orders, and that his men would stay by him. He had no orders at that time. I asked him particularly whether he had any orders, and he said he had none. I asked him whether he thought he could preserve the peace, and he said he could. I think he said that the firing on the people was a mistake, and was done without orders, but if I had been there I would have ordered the mob to disperse, and then fired on them with blank cartridges.

Q. From your knowledge of these men as soldiers during the war, do you think they were competent or incompetent men?

A. I know General Pearson well. I knew him in the army, and I know what his military record was in the army, and there is no young officer in the United States service who has a prouder record as a brave, a careful, and discreet soldier. He served in our own corps, and I had daily opportunity of knowing what his military services and military abilities were, and his

record in the army was certainly vary creditable to him. I also knew General Brinton in our corps, and I know that his record is equally good.

By Mr. Means:

Q. They were good soldiers, ready to obey orders at all times?

A. Yes; and had those two officers had the management of this affair, without being amenable to superiors, much of the destruction would have been avoided.

Q. You mean Generals Pearson and Brinton?

A. Yes; they had, to my certain knowledge, years of experience in the army—active experience as soldiers.

Adjourned.

MORNING SESSION.

PITTSBURGH, *Wednesday, February 20, 1878.*

The committee met, pursuant to adjournment, at ten o'clock, A.M. Mr. Lindsey in the chair. All the members present except Messrs. Reyburn and Torbert.

Daniel Corbus, being duly *sworn*, testified as follows:

Examined by Mr. Lindsey:

Q. Where do you reside?

A. New Brighton, Beaver county.

Q. How long have you resided there?

A. I was born there in 1839.

Q. What is your business?

A. Wire drawer by trade.

Q. State whether you were in Pittsburgh when the disturbances of last July first broke out?

A. I was not there at the breaking out of it. I arrived here the same day, about a quarter past one, I suppose—Liberty street.

Q. State what you saw and heard?

A. Saturday night the news was very exciting out home, and Sunday morning at eleven o'clock I took the express and arrive I here at the city—Federal street—about twelve o'clock I should judge it was. Came over to Fifth street and got my dinner. Went to the market-house and saw a crowd of people there. Went down to see what was going on, and found it was a peace convention.

Q. A what?

A. A peace convention.

Q. At what point was that?

A. It was some place near the old City Hall—I should judge it was. It was in the street. I went from there up Liberty street until I met the fire. I couldn't state how far it was from the Union depot—how many squares it was; but I stopped at the first crossing below the last car that was on fire. I staid there until a car load of spirits exploded, and the flames ran down from there about a hundred feet.

Q. Where was this explosion—at what point?

A. It was on the railroad in a railroad car.

Q. What street?

A. It was on Liberty street—I should judge that was the street that the cars go out of. I am not well enough acquainted to state positively—it was on the Pennsylvania railroad.

Q. Was that on the Allegheny Valley track?

A. No, sir; on the Pennsylvania tracks.

Q. Near what cross street?

A. That I am not well enough informed to know, but I should judge it was four squares above the Union depot, right up the track.

Q. Four squares?

A. Yes; four squares.

Q. Go on now?

A. While standing there looking at the flames going on, I made a remark to some person: "Ain't they going to try to stop it?" and he said, "no, we don't care anything whether it is stopped or not." I hadn't staid there long until I heard the gong of a hose carriage. The crowd didn't seem disposed to give way or do anything—just standing in the road. I asked the crowd if they would stand back and let the hose carriage come in. I was a perfect stranger to every person around. There was a movement made in the crowd, and the hose carriage came up. Says I, "do you want any assistance?" says he, "yes." Says I, "give me the end of the hose and I will make the attachment." He was taking it off the reel and one man jumped from the reel and went to the plug, and him and I made the attachment. The reel started on—there was barrels being rolled down this street, and everything was in confusion, and no person seemed to make any effort to check anything. I seen that the hose were in danger of being blocked, and I told some parties who were rolling some barrels down, "stop that! put that barrel in here." They stopped. I took the barrel out of their hands, and rolled it into the gutter. I staid there for ten minutes afterwards, when one of my companions came along, and says he, "let us get out of here." We walked on down do the Union depot, passed the Union depot and went up to, I should judge it

would be Washington street, from the description given—not being well acquainted with the streets—and stepped into a segar store, got some segars, and told the proprietor of the store, says I, "I think you had better move." And says he, "no, I don't think there is any danger." Says I, "in a couple of hours you will be burned out—they ain't making any effort up there to stop it." I went out, passed around on to the side of the hill above the Union depot, where I had a view of the whole transaction that was going on; just seen the burners going along and doing just as they pleased, having everything in their own hands. I was on the side of the hill when the office beyond the shed attached to the Union depot building was set on fire.

Q. Did you see it set on fire?

A. I seen a man go into the building, and in a few minutes I seen the flames coming out.

Q. Do you know the man?

A. No, sir; I was too far away. The smoke coming up over the hill, I moved around and came back, then down to the Union depot by the same route I had went up, and there stopped by the elevator. As I came by the Union depot, I saw, I suppose, twenty armed men leaving it, some with parts of uniform on, some with caps, and some with pants, and others with citizens overcoats. They were going through the gangway to the hill, passing out of the side entrance to the gangway that runs across the Pan-Handle road on to the hill. I stood down by the elevator, and saw the parties making their escape from the upper stories of the Union depot, and then I got in conversation with a gentleman about it. Says I, "I suppose they will be satisfied when that is burned." "No;" says he, "we won't be satisfied until this elevator is down." Says I, "do you intend to burn this?" Says he, "everything in these monopolies has got to burn"—he made use of that expression. Says he, "I am a citizen here, and I own property, and I expect to help pay for it." Says I, "this is not railroad property." Says he, "it don't make a damned bit of difference, it has got to come down; it is a monopoly, and we are tired of it."

Q. Did you know that man?

A. I am personally acquainted with him, but I would rather not give his name publicly.

Q. I think we ought to have his name?

A. I would give it to you privately. He is a friend of mine from boyhood up. I can give you his name, and you can have him before you. I would like to be excused from giving his name publicly.

Q. What kind of a citizen is he—what is his business standing?

A. He is a machinist, and of good character, so far as I know.

Q. How long has he resided in the city of Pittsburgh?

A. I suppose he must have resided in this neighborhood for twenty years.

Q. Does he work in the railroad shops as a machinist?

A. No, sir; one of the city shops.

Q. How old a man is he?

A. I suppose he would be between thirty-five and forty years. About near my age. We were boys together when we were in Brighton, and he came to the city.

Q. A man of family?

A. Yes; he is a man of family.

Q. He said he expected to help pay for it?

A. He says, "I expect to help pay for it."

Q. Did he set fire then to the elevator?

A. Oh! no, sir.

Q. Who did fire that?

A. I do not know.

Q. Did he take any part?

A. No; he didn't seem to take any part. He seemed to know and understand what was going to be done, though.

Q. Was he leading or giving directions in any way to the crowd?

A. No, sir. He stood with me in the crowd back. He seemed to know certain parties that were in it, although he mentioned no names.

Q. Did he say where the parties were from that were in it?

A. Yes; he made that remark—said he, "Our shop boys came home this morning tired out with the night's work."

Q. With Saturday night's work, did he allude to?

A. Yes, sir.

Q. Our shop boys?

A. Yes, sir.

Q. What shop was that he alluded to?

A. Jones & Laughus, I believe—the American iron works.

Q. How many men do the American iron works employ, do you know?

A. I can only give an estimate of the reports—from one thousand five hundred to two thousand. They are very large works. I have been through them.

Q. When he said, "our boys came home tired out from last night's work," what work did he allude to?

A. The conversation was on this burning altogether—on the destruction of the property. My inference was that it was the work we had witnessed.

Q. Were you talking about any other subject at the time?

A. No, sir; nothing but the disturbance then in progress.

Q. Did you see any attempt while you were there to destroy or set fire to individual property?

A. No; I did not.

Q. When you arrived at the scene of the riot, how large a crowd was there?

A. On the streets—it would be impossible to judge the number.

Q. Engaged in actual burning and rioting?

A. I think twenty-five good men would have cleaned the crowd out.

Q. I asked you how large the crowd was?

A. Averaging from three to five hundred, not over that—boys—young fellows.

Q. Did you see any efforts made by anybody to stop the burning?

A. No, sir; not an effort.

Q. See any policemen around there?

A. I saw two or three policemen about two squares below, but none in the immediate neighborhood of the burning.

Q. Did you see the sheriff or any posse about?

A. I did not—no person in authority, or any person using any authority.

Q. When you attempted to make the connection, were you interfered with in any way?

A. No, sir; not in the least.

Q. When you undertook to stop the rolling down of barrels, what seemed to be the feeling in the crowd?

A. They just stopped and let me have my own way.

Q. Obeyed orders?

A. Obeyed orders.

Q. Did you make any effort to stop those that were setting fire to property and burning?

A. No, sir; I did not; I held back from them on account of not being a citizen of the town.

Q. The crowd that was standing around, of whom were they composed?

A. They seemed to be composed of the better class of citizens of the two cities, you could see—quiet, orderly.

Q. Were there any women and children among them in the crowd?

A. Yes; there were a great number.

Q. Did you see any business men of the city standing about?

A. No, sir; I can't say that I did. I am not well enough acquainted with the business men of the city to know whether there was any in the crowd or not.

Q. Did you see the mayor?

A. I haven't seen the mayor to know him since 1860; I probably would not know him on the street.

Q. Did you find any difficulty in getting into the city that day, from New Brighton, Beaver county?

A. No, sir; I found no difficulty at all. Trains came in on time. At the Allegheny depot the strikers boarded the train and run it to Federal street station, and said they would not run it over to Pittsburgh.

Q. Did the trains go out on the roads leading west?

A. Yes; they went out whenever Boss Amnion, as he was called, said that train should go.

Q. He allowed the passenger trains to run?

A. No interference, so far as I know, in regard to passenger trains. I had no trouble at all in getting home.

Q. Did you see anything of General Latta that day?

A. I did not; I am not personally acquainted with him: probably might have seen him, and not known him.

Q. Were you at the city hall that day or any other day?

A. I was at the city hall at seven o'clock, Monday morning.

Q. Who was there?

A. I can say that the mayor was not there, as I heard him inquired for half a dozen times. The rest were strangers to me.

Q. Did you see the chief of police or any of the officials there?

A. Not to my knowledge—there was not. I made inquiry for the chief of police—if the chief of police was in, and I was told he was not.

Q. What class of people were there?

A. They seemed to be employés around there, or some persons that seem to be well acquainted with the office; they were sitting there.

Q. Tell us what you heard said there?

A. I went into the chief of police's office—the left hand entrance going into the city hall—and seen one gentlemen that I was slightly acquainted with, Mr. Carrigan, and spoke to him. He got up and went out. There were two or three gentlemen—strangers—I got into conversation with them about it, and one of them, a large, tall man, with heavy black whiskers, says he, "We won't be satisfied here until this track is torn up to the point." He brought his fist down; says he, "We have been imposed on long enough."

Q. Until the track was torn up to the point—what track did he refer to?

A. He mentioned the Liberty street track?

Q. What was referred to by the word "point?"

A. I suppose it is the old Duquesne depot on the point.

Q. At the junction of the Allegheny and Monongahela?

A. Yes, sir.

Q. He referred to the Liberty street track?

A. Referred to the Liberty street track to be torn up to satisfy the citizens.

Q. Who was the man?

A. I can't name him. He was a stranger to me.

Q. Do you know where he belonged?

A. I do not know, but judged from his conversation that he belonged to the city of Pittsburgh, from the manner in which he used that expression.

Q. What else did you hear said there?

A. People were commenting about it in general terms. I came down Sunday night, after the fire had got cooled down somewhat. I went to the Saint James hotel, opposite the Union depot, to take a look. I went out of curiosity, and got in over the hot coals, so as to have it said that I ate a meal in the Saint James while it was hot. I walked all around the burned district; that is, the elevator, Union depot, and Pan Handle yard, watched the firemen, went down to where the firemen were playing on the ruins, and came down then through what is known as the metal yard, and there I heard a conversation amongst the men. I couldn't tell you the exact number, but I should think there was a hundred and fifty congregated around there, some of them dead drunk, and some half drunk, and some of them drunk enough to go any place. I heard them say: "We must go to this place. There is no police, and they won't interfere with us any way."

Q. What place did he refer to?

A. I don't know what place they referred to. I thought it was a rather dangerous place for me, being without any arms, any more than natural fists, and I didn't stay any longer.

Q. Did you hear any conversation, while at the city hall, from the mayor's clerks in reference to the riot and burning?

A. No; I don't know as I did. There was a gentleman came in there, and inquired for the mayor. Says he: "There is a big lot of miners coming down here," and, says he, "we don't know what to do." He inquired where he was, and wanted something done to stop them. No person seemed to know what to do.

Q. How long did you remain at the city hall?

A. I remained there until Monday evening—at the city hall?

Q. Yes?

A. Probably I was there an hour.

Q. Was the mayor away all the time that you were there?

A. I didn't hear of the mayor coming in while I was there at all. He might have went to his office while I was in there.

By Mr. Engelbert:

Q. What time were you at the city hall?

A. I should judge about seven o'clock in the morning—Monday morning.

Q. When you went into the tobacco store, and told this man he had better be moving, what reply did he make?

A. Says he: "I think not. They won't let it come down this far will they?"

By Mr. Dewees:

Q. How did you happen to be here?

A. I came up on purpose to see it. Heard of it at home, and came up.

Q. On purpose to see the riot?

A. On purpose to see what was going on, like hundreds of others.

By Mr. Means:

Q. This man that was in the city hall that said they would not be satisfied until the track was torn up down to the point—was he dressed in citizen's clothes?

A. Yes; I judged by his dress and conversation that he was a resident of the place.

Q. Did the other men make any reply when he made that remark?

A. No; no reply was made.

Q. You would take him then to be a citizen of Pittsburgh?

A. Yes.

Q. How many men from Beaver county came up?

A. Indeed, I could hardly state—I should judge a hundred or one hundred and fifty.

Q. At the same time?

A. Yes; and some of them were railroad men down there, and were interested here.

Q. Were they with you at the time you had the conversation with that man?

A. No, sir; at that time I was by myself.

By Senator Yutzy:

Q. You spoke about some armed men you saw going up the hill—did you ascertain who they were?

A. No, sir; I did not. I was told they were some Philadelphia men that had been left in there.

Q. Left in the depot?

A. Left in the depot as a guard.

Q. How were they uniformed?

A. Some had caps on, some pants—I would judge they belonged to the soldiers, on account of the weapons they had in their hands—they were breech-loaders.

Q. Did they make any effort to prevent any destruction of property?

A. In what way.

Q. You spoke about marching along the hill, or up the hill?

A. When I spoke about them they were escaping from the Union depot. At that time the flames were coming in from the shed. They were going over the hill towards the reservoir.

Q. This man you had the conversation with down at the municipal hall, at the office of the chief of police, did he appear to be connected with the office there in any way?

A. Well, indeed I can't say. He was in this office, and I struck up a conversation with him. I don't know how we got to talking about it. I spoke to Mr. Carrigan, the only one I knew. He went out, and there was no other person I had conversation with but him, and he seemed to be at home.

Q. Do you know where Mr. Carrigan lives?

A. No, sir.

By Mr. Lindsey:

Q. What is Carrigan's name?

A. I can't tell you that.

Q. Does he live here in Pittsburgh?

A. I believe he does.

Q. Can you give his place of business or residence?

A. No, sir; I can't do that. I met him on special duty at one time—he appeared to be connected with the detective force at one time here.

By Senator Yutzy:

Q. Can you name any gentlemen that came up from Beaver with you?

A. Mr. Robinson.

Q. What is his first name?

A. Hugh Robinson.

Q. Any other?

A. Mr. Edgar.

Q. Mr. Edgar—what is his first name?

A. John P.

Q. Who else?

A. Mr. Jagger.

Q. What is his first name?

A. Fred.

Q. All these men were with you on the ground?

A. They were scattered through the crowd. I was separated from them pretty much all the time. Only just occasionally we would meet.

Q. Are they from the town of Beaver?

A. New Brighton.

Q. Any others?

A. There was Major Henry, from Beaver, and Mr. Macomber, of Beaver Falls file works.

Doctor Edward Donnelly, being duly sworn, testified as follows:

Examined of Mr. Lindsey:

Q. Where do you reside?

A. Reside at 62 Stevenson street. My office is 133 Grand street.

Q. You are a practicing physician in city?

A. Yes, sir.

Q. Just go on and make a brief statement of what you saw in relation to the riots?

A. My first knowledge of the riots was on Saturday, the 21st of July, about an hour or so previous to the arrival of the troops from the east. I was induced to go to Twenty-eighth street, hearing that there was a large concourse of people assemble there, and they were there for the purpose of preventing any trains leaving the city—any freight trains, and having the dread of riots before my eyes—I had seen other riots in Philadelphia, in 1844—I apprehended that there might be some little difficulty, and as I have some influence with the Irish portion of the people of the city, I thought it my duty to go there, and try to induce them to leave the place, and not enter into any measures that would tend to criminate themselves or break the laws of the country. That was the reason I went there. When I arrived at the ground—I drove out in my buggy—when I arrived there, I found about fifteen hundred people. I presume, assembled—fifteen hundred to two thousand, and several companies of soldiers—the Fourteenth

regiment, Greys, I believe, some of them, and the Nineteenth. I am not sure that there was any Greys there—I think it was the Fourteenth and the Nineteenth regiments. I saw Colonel Grey's command on the side of the hill, and I inquired of him who had charge of the troops here, as they were in rather a disorderly condition, I consider, in a military point of view. They were mingling freely with the crowd in groups here and there, and seemed to have no order or discipline amongst them. They told me General Brown had command; and I then went down amongst the crowd on the railroad track, where Twenty-eighth street intersects the road, and I met General Brown, and inquired of him if he was in command of the troops. He said he was. Said I, "you are not in military uniform—you have no uniform on." He was dressed as a citizen. I thought it was a very remarkable thing. He then asked me if I would make a speech to the crowd, so as to disperse them, or induce them to disperse, and leave the track free for the cars to go out—engines and so on. I told him that I did not think it was my place, but if it would be of any benefit I would certainly do so; and he said "yes," he thought it would be necessary, because there was troops coming from Philadelphia and Easton; that the railroad company had sent for troops to disperse any mob that would attempt to interfere with the running of trains; and, perhaps, it would be best, in order to prevent any disturbance, for me to address the crowd to that effect. I hesitated somewhat, and inquired then before I consented. Said I, "who is the leader of the strikers?" Said he "there he is," pointing to a tall man that was very busy in the crowd, making motions with his fingers to his companions—that is, trainmen, firemen, and engineers. Said I "call him here and see what he says about my addressing this crowd." This man was called, and he also thought it advisable for me to do so—they did not want any disturbance, and they would like the crowd to disperse—they could manage this business themselves without any outsiders; and at this solicitation of Brown, and this chief man amongst the strikers, I got up on the steps of a small oil house, that is fronting the round-house—standing there yet—and I addressed the crowd present, and what I said on that day to them was published in the afternoon paper—in the *Leader*—I have a copy of it here. I told them that it was necessary for them

to disperse—if you would like to here the exact words I would read them for you.

Q. Is it lengthy?

A. No, sir; it is very short. It was so to the point at the time that I thought it best to preserve it, and this is copied from the *Leader* of the 21st, the afternoon of the-day of the occurrence, and this address was delivered about one hour before the arrival of the troops. The reporter says he addressed—that is. Doctor Donnelly—addressed the strikers as his fellow-countrymen. I did so because I have been in the habit of addressing Irishmen in public meetings, and it was more of a habit than anything else. Instead of saying "fellow-citizens," I said countrymen; not because they were all Irish, but because it is a habit I had in using that term, and exhorted them not to resort to violence. "No striker," he said, "had ever yet succeeded where violence was resorted to. Violence was invariably met with violence, and ended in the discomfiture of the strikers. It was opposed and contrary to the fundamental laws of the land. He entreated them to maintain law and order. To reflect before taking any rash step, and to remember that law-breakers must, in the natural course of things, suffer. He urged them to be prudent upon the arrival of the troops from the east. The troops from Philadelphia, said he, and the troops from Easton and elsewhere are not to you like the Duquesne Greys or the Fourteenth regiment or the Nineteenth regiment. They are not, I might say, your brothers. You cannot go to them and take their hands and say to them, 'how are you, Jim?' or 'how are you, Tom' or 'how is it with you, Patrick?' These men will come here strangers to you, and they will come here regarding you as we regarded the rebels during the rebellion, and there will be no friendly feeling between you and them. For this reason, I implore you, for God's sake, to stand back when they arrive. To stand off and allow your leaders, who hold the throttle of this movement, to deal with them. For this reason I implore those of you who have no business here to go home to your families. It is your duty to do so. It is your duty to them, to your country, and to the laws of your country. Leave the matter in the hands of your leaders, who know what is for the best, better than you do, and you will leave it in good hands. I have been assured of

this. I have been informed by the men who are leading this strike that they will exercise the greatest caution and forbearance when the soldiers arrive, and I entreat you to stand back, and let them manage the thing in their own way." That was the import of it.

Q. Were you near Twenty-eighth street when you made that?

A. I was right amongst them, sir.

Q. At Twenty-eighth street?

A. At Twenty-eighth street and the round-house. The crowd was between the round-house and myself—some fifteen hundred or two thousand, including; soldiers and all.

By Mr. Yutzy:

Q. It was on the steps of the watch-box?

A. I was on the steps of a small building where oil is kept. The steps are high up, and I had a good location and a good view of the surroundings. They listened very patiently, and as there was a great number of women and children among them, I deemed it my duty to warn them.

By Mr. Lindsey:

Q. Before you go on, state to us what effect this address had upon them?

A. It seemed to have a good effect upon them as far as the women and children, and a great number of men retired and went away; and there was a kindly feeling apparent amongst the people and amongst the soldiers that were there. There was no evidence of violence, nor none apprehended, except when the troops would arrive from the cast. The only fear that appeared to exist amongst the bystanders and those I conversed with, was a conflict between the eastern troops and the people.

Q. Were the troops—the soldiers of the Fourteenth and Nineteenth regiments—mixed up with the crowd at that time?

A. Yes; there was neither order nor discipline amongst them.

Q. Did they have their arms with them?

A. They had some arms on the ground. Some had them with them and some were stacked in different places along the side of the hill and at the bottom of the hill.

Q. Were they dressed in uniform?

A. Yes; with the exception of General Brown, who was in citizen's dress, and he was the commander-in-chief. I inquired for General Pearson. I understood he was with the Philadelphia troops.

Q. Go on, now, Doctor.

A. My address seemed to have considerable influence with the strikers and trainmen and others; and they had their meeting-place on Penn street, near Twenty-eighth. I think it was over a cigar store; and I was requested to meet them that afternoon. I did so, and they delegated me to wait on the officials of the road to make terms, to put an end to any further disturbances. They requested me to see Mr. Thaw. I think he is an official of the road, one of the vice presidents, if I am not mistaken—William Thaw, I think his name is, and Mr. McCullough and Mr. Layng. I went to Mr. Thaw's house two or three times, but was unable to find him. I then went to Allegheny, and met Mr. Layng and Colonel McCullough, and told them what the strikers wanted, and endeavored to persuade them to meet the strikers or to make some promise that would put an end to further difficulty and trouble, or the shooting of people or destruction of property. They were both together, and I conversed with them, and I gave them the terms the strikers had authorized me to make. I took it from the strikers and wrote it down in pencil at the time, and it is here—the terms they wished me to propose to the officers of the road, to Mr. Thaw and Colonel Scott, if he was in town. After informing these gentlemen what the strikers demanded, they told me they could do nothing in the matter whatever—it was above their power to do anything.

Q. You may read what the strikers demanded.

A. This is what they demanded: "Authorized by strikers to visit Colonel McCullough and Mr. Layng to effect a compromise on the basis of taking off double-headers; same wages as prior to June 1, 1877; each man to receive his position prior to strike."

Q. Retain his position prior to strike—receive or retain?

A. They said receive at that time—"classification of engines done away with; each engineer to receive first-class wages, same as prior to June 1, 1877; each engine, road or shifting, to have own fireman"—that was the conditions on which they wished to make a compromise with the officials of the road, and by all means to endeavor to have them meet them, so as to make some kind of a compromise. Their great object seemed to be to have a conference with the officials.

Q. What time did you get that proposition?

A. It was in the afternoon of Saturday.

Q. Before the collision with the troops?

A. It was after the collision. I had not heard of the collision at that time. I had been hunting Mr. Thaw in the afternoon, and then had gone to Allegheny, and I had to procure the aid of a gentleman to go with me to learn where Mr. McCullough and Mr. Layng lived.

Q. Did you get the proposition before the collision from the strikers?

A. The strikers gave me the proposition previous to the collision, I think.

Q. What time did you present it?

A. I presented it—it must have been, perhaps, four o'clock or five—it was in the afternoon.

Q. What response did you get—reply?

A. They told me they could do nothing at all in the matter, nor did they seemed disposed to do anything. They conversed about the matter as indifferently as if it was a thing on the other side of the Atlantic—took no interest in it, but referred me to President Scott.

Q. Did you return to Twenty-eighth street that night again—Saturday night?

A. I did, sir; went there several times. I reported the interview, and they said they would try to meet the officers—they would meet the officers at East Liberty, and that they had sent out word to some of the officers—I think Mr. Pitcairn and some other officers—to meet them at East Liberty, and they had gone out there. This was late in the evening. They had gone out to East Liberty, but they could get no satisfaction out of the officers there; and they had also telegraphed to Mr. Scott, president of the road, and had received no answer, and that they had used every means in their power to make some compromise with the officers of the road, but had failed.

Q. Were you present when the fire occurred and the first car was fired?

A. No, sir; I was not present at any firing. I was pretty late that evening out at Twenty-eighth street, and there was an immense concourse of people all along Liberty street for several squares, but, as I had my horse with me I did not go amongst them at all on the tracks. I merely reported my interview between myself and Colonel McCullough and Mr. Layng, and I then went home.

Q. Your effort was particularly confined to adjusting the compromise and difficulty between the strikers and the railroad?

A. Railroad officials at that time.

Q. Did you have any negotiations with the mayor about additional policemen?

A. That Saturday I had not. On Saturday I had not, but on the next morning, Sunday morning, I was very active, indeed, to endeavor to raise and organize a vigilance committee for the purpose of suppressing the riot and

saving the property of the railroad company, and other property; dreading that the city would be set on fire and plundered by mobs.

By Mr. Yutzy:

Q. These railroad officials you called to see in Allegheny—General McCullough and Thaw and Layng—what railroad company are they connected with? Pennsylvania Central?

A. They are all connected with the same company. I presume they represent the Cleveland and Cincinnati—that western part of the Pennsylvania Central.

Q. Pennsylvania Company—not the Pennsylvania Central?

A. I didn't know that there was any difference. Mr. Thaw is certainly connected with the Pennsylvania Central. I think he is one of the vice presidents.

Q. The Pennsylvania Company managed the road west of Pittsburgh?

A. I don't really know what their positions were. I was solicited by these men to interview them, supposing that they were the proper authorities in the matter. Mr. Thaw was proper authority in the absence of Colonel Scott or other officials that could not be found.

By Mr. Lindsey:

Q. What success did you meet with in trying to organize a force on Sunday morning?

A. On Sunday morning the citizens met near the old city hall and formed a kind of organization there, and finally adjourned to the new city hall, and there we organized a committee of safety, composed of citizens, to take measures to assist the mayor—employ a force of policemen, as he was very deficient in a police force at the time, and had but a few men on duty; and the object was to organize a strong police force to aid and assist the mayor in suppressing the riot, which then had become very alarming. We were all

day nearly in doing a very little. The citizens seemed to be panic stricken, and there seemed to be no head at all in the city amongst the officials or amongst the people. The mayor seemed to be powerless. The sheriff, I believe, had ran away, and, in fact, we seemed to have no city government for the protection of the city or the people.

Q. What did the mayor do in the way of assisting in this organization?

A. The mayor—he didn't do a great deal, he seemed to be running around at one thing and another, and he seemed to be so confused and incapable of organizing anything, that he really did do nothing. I understood there was two companies of troops come down from up the Monongahela in charge of an old army companion of mine. I suggested that he had better try to get those two companies, and take them down where the riot was going on, and do something. We found that these troops had returned again, and they were not there, and we came back again, and, finding that the riot was still going on and nothing being done, he authorized me to collect as many citizens as I possibly could, and go down there and see if we could suppress the disturbance, and I organized about sixty men, composed partly of lawyers, a few physicians, and other gentlemen, who were determined to use every effort to suppress the disturbance; and we first armed ourselves with axe handles, which a gentleman on Wood street procured for us out of his store. I considered that didn't look very military, and somebody suggested that there were rifles at the Western University, up on Diamond street, and we concluded to make a raid on the university. We did so, with the sanction of the mayor, and we got the rifles, and then there was no ammunition, and we put the bayonets on them, and with a company of sixty men, and myself as the colonel—I had been commissioned by the mayor to act as such—we marched down to the scene of the riot and arson, each gentleman had a white handkerchief tied on his arm to distinguish them from the rest of the crowd that was there assembled—it may look very ludicrous just now, but it was a very serious matter then. We marched down amongst them, and the crowd sort of stood to one side and let us pass through. I arranged the men on each side of Liberty street, where I supposed they were going to set fire to the large stores. At that time the grain elevator had been destroyed, and

the property adjoining the metal yard, adjoining this large ware-house, was also on fire. There was a fence running from the middle yard up to one of the stores, I proposed to some of the rioters present to tear that fence down and save that property, two or three of them said, well, what do you want, I said we didn't want private property destroyed, so a gang of them went over and tore the fence down, and the flames didn't extend any further in that direction. After staying there some time, and seeing that there was no evidence of breaking into stores or setting fire to private property, we retired; that is, we retreated to the city hall, and stacked our arms in the building, and dispersed for the night. The next morning we were not organized again, the city seemed pretty quiet, and the crowd had understood that the citizens were taking an active part in protecting the city.

Q. Let me ask you a question there. Supposing you had arrived with your regiment—you say you were a commissioned colonel—suppose you had arrived on the ground before the fire reached the Union depot, do you think that you could have kept the mob back and prevented the firing of the Union depot with that body?

A. I do think that if I had been authorized and given me fifty or sixty good men, that understood their duty, and were obedient to orders and had loaded rifles before that depot burned, it could have been saved. I went there and tried to save that depot, and took Bishop Tuigg with me to go out there, thinking that there might be a number of our countrymen there engaged in that, and that he would have some influence with them, to save the property of the company, and save the building. I stood on the platform of a car with the bishop, and he first addressed them, and in looking over the crowd, I found that the crowd were not Irishmen. As we soon discovered, they began throwing iron ore and other missiles at the bishop's head, which no good Catholic would do, unless he was an Orangeman. I also addressed them, and a burly fellow came up and said, get down from here, Doctor, we are going to set fire to this, and I considered it most prudent to get down. With fifty good men, I would have cleared that place in a very few minutes.

By Mr. Means:

Q. Do you know that man that came up to you?

A. I would know him if I ever saw him. I felt very vindictive towards him at that moment. I did try to save an engine by pulling a fellow off who would not allow the engineer to try to run it off. I pulled him off and said let that man take the engine off. He was drunk at the time, and he said something to me, but anyhow they kept the engine there until it was burned. If the officials even of the depot—if the officials of the road, or the employés of the road, had any courage at all on Monday, they could have saved that building. There was no trouble about it, because the outside people were perfectly indifferent, looking on and affording no resistance.

By Mr. Lindsey:

Q. Supposing the officials connected with the road there had made an effort to have driven them back, what effect would that have had upon the crowd?

A. The crowd that was there at that time could have been easily driven away.

Q. Would it have excited them worse?

A. I think not. I think the citizens were all disposed at that time to aid to enforce law and order. It was the feeling. That was on Sunday, mind you. On Sunday afternoon at that time I believe every citizen was disposed to enforce law and order, and that the rioting element would not have had any chance whatever, and they would not have been supported.

Q. How many were actually engaged in the arson and rioting at that time?

A. From my looking at them and looking amongst them, and as they were assembled together to listen to what we had to say, I don't think there was fifty men really.

Q. Engaged in the riot?

A. I don't think there was that many, because they were dispersed amongst the crowd of people, and you could only tell the bad element amongst them

by their appearance, and by their dress, and by their half drunken condition.

Q. Had you any talk with the mayor during the day, Sunday, about sending out a posse of policemen there?

A. I had talked with the mayor on several occasions. I urged him to try to organize a force, and I asked him several times very plainly why he had not arrested these rioters, I mean the strikers, the head of them, that were inciting riot, and he said that he had done his duty in that respect, but that he had been superseded by Mr. Hampton and Dalzell, and other persons connected with the railroad, in taking it out of his hands, and placing the authority in the hands of the sheriff, and that he would let them manage the matter—something to that effect—and that seemed to be his principal reason for not having acted more energetically—that the officers of the road had taken the matter out of his hands.

Q. He was out there during the day Sunday looking over the crowd?

A. I didn't see him out there, I think, unless he was there, and I didn't see him. I was going to say that these are some of the strikers who sent the communication [indicating a paper] to the mayor and myself. This is addressed to the Honorable Mr. McCarthy and Doctor Donnelly. Metzgar was chief clerk of the mayor at that time, and this communication was sent. I had been soliciting these strikers to aid us in suppressing the riot, to enter in with us, and make their appearance amongst us, to show that they were not in favor of pillaging, burning, &c. This is addressed to the Honorable M. J. McCarthy: "Have gone to the Twenty-sixth street, with Cunningham, of the strikers, with McKeon. Say they will try to go down at once to new city hall to join you, and will do my best." That is underlined: "Will do my very best. Tell Donnelly, if they come, see that they get instructions." That is, I was to go down with the force, at that time, with proper instructions. That is the name of the gentleman, I can hardly make it out, it is very peculiar writing, "W. N. Riddle," I should think it was. He was to aid and assist us, with his strikers, to suppress these disturbances.

Q. Riddle—was this the man that requested you——

A. That was not the man. That man I could never find afterwards. He was a tall man, a thin spare-faced man, a very active man, he seemed to have some influence over them. One of the strikers gave me that, [indicating paper.] I understood it was from a principal one of them, at the time.

By Mr. Engelbert:

Q. How long did it take you to raise that force of yours?

A. It took me all day. I never saw such apathy or cowardice among the citizens.

Q. They did not appear to be anxious?

A. Men that should have done their duty, as citizens, were promenading Fifth avenue, and it was very difficult to get citizens. I must say to the credit of the bar, that they did their duty.

By Mr. Lindsey:

Q. Will you give us the names of some of the lawyers that were members of that company?

A. Colonel Haymaker was one of them, Mr. Harper was another—there was quite a number, Dr. Sutton was one, he was second in command. I have the names of most of them.

Q. I believe you find lawyers and doctors among the best citizens, as a general thing?

A. We do our duty, if we can.

By Senator Yutzy:

Q. Could you have got fifty or sixty good men, with rifles and ammunition, at the time that you and Bishop Tuigg went up to remonstrate with the mob?

A. We could not—not at that time. We had been ineffectual all day to organize a company, and there was no arms to be had yet; there was troops

at the old city hall, but there seemed to be nobody in command to do anything, to take the responsibility, there seemed to be really no person at the head of anything.

By Mr. Means:

Q. This whole machine appeared to have no head?

A. Yes; it appeared, as I said before, it appeared that the mayor was indifferent. He said that it was the railroad company that was running this thing, and he would let them run it.

By Senator Yutzy:

Q. You say there was troops at the city hall. How many, and who were they—what organization?

A. There was part of a company of the Nineteenth regiment—a company there of the Nineteenth regiment. I forget who had charge of them. I know the gentleman very well, but I cannot think of his name. He went out afterwards in command of one of the regiments to the east from here. A tall, nice-looking young man. He had charge of the regiment. Howard, I think it was—Hartley Howard, I think, was the gentleman.

By Mr. Means:

Q. Had the mayor intimated to you that the railroad officials had taken this matter into their own hands?

A. They had interfered with him in executing an order. They had interfered in arresting some man. He had not acted as promptly as they thought. It appears that Mr. Hampton and Dalzell—I think he used the names jointly—had taken these writs from him and given them into the hands of the sheriff.

By Mr. Means:

Q. And that he would not interfere?

A. Yes, sir.

By Mr. Engelbert:

Q. You said a while ago that the sheriff had run away. How did you know he had run away?

A. He was not to be found anywhere. I had not seen him that day. I heard he had left. They had threatened to burn his house, and he had left the city. As the sheriff is a man subject to heart disease, I presume it was his duty not to risk his life amongst them. I heard there was a strong feeling against him, and he had left. I had not seen the sheriff after that day.

By Senator Yutzy:

Q. What day was this you were speaking of?

A. That was on Sunday.

Q. Did you see him there on Saturday with the troops?

A. No, sir; I did see the sheriff on Saturday.

By Mr. Larrabee:

Q. You stated in your speech to the people that you had been informed by those who led the strike that they would manage the matter prudently, so as to have no trouble. Who were those parties that informed you they were leading the strike? Can you give us the names?

A. I can ascertain the names of some of them, but I don't know the names now. I don't remember them. There was one little man very active. His brother keeps a drug store at the corner of Twenty-eighth and Penn streets. He seemed to be very active amongst them.

Q. Do you know his name?

A. No, sir; I can find out his name. I can find out the names of several of them. I think I have them written down. This gent—I thought his name was

attached to that paper—was a city man, very active. He seemed to be the leading spirit amongst them, but I found he was the man that brought that document there.

Q. He is not the one that signed it?

A. No, sir.

By Mr. Lindsey:

Q. How do you account for the apathy or cowardice that existed in the city about going out to take steps to stop this?

A. The only way I can account for it is that there was a feeling amongst the people that these men had been treated very unjustly by the railroad company; that it had reduced their wages down to a starvation point, and that they had been treated unjustly. There has been a feeling here more or less ever since I have been in Pittsburgh—twelve years—since the war, against the railroad company, on account of its unjust actions against the mercantile interests of Pittsburgh. There has always been more or less of that kind of feeling against the company, as I told the Governor in my interview with him on the Sunday night that he was here. That feeling has existed against Tom Scott and the railroad company. The overbearing manner of their officials, and their want of making any compromise whatever, or showing any disposition whatever to compromise with their employés; that has been the feeling engendered in this city for years.

Q. How extensive is that disposition?

A. It is amongst almost the whole class of people, intelligent as well as ignorant, that feeling has existed.

Q. The business men and professional men?

A. The business men—many of the business men—have been bitter enemies of the road on account of the discrimination in freights that has existed. That feeling has permeated the whole community—it permeated the whole community, and I had that same feeling and that same

antagonism to the road myself. As I told the Governor, Tom Scott should come down from his empyrean and mingle amongst the people, and he should assert his right of being Governor of the State, and not Tom Scott.

Q. What reply did the Governor make?

A. The Governor made one of his bland smiles.

By Senator Yutzy:

Q. He is a good listener?

A. Yes; that was up in the hotel where he stopped the Sunday night.

By Mr. Lindsey:

Q. In your negotiations, mingling with the strikers and endeavoring to adjust matters, did you ascertain the reason or the cause of the strike?

A. This was the cause that I stated, just what is set forth in this paper, [indicating paper,] that was the cause, and that was what they wanted, an adjustment on that basis.

By Mr. Larrabee:

Q. Did any one sign that paper setting forth their grievances?

A. Only I had a meeting with them. I wrote down what they wanted.

Q. You wrote that down yourself?

A. They would not permit anybody, they had confidence in me or they wouldn't have entrusted me. They saw I was disposed to do what was right. I acted prudently with them.

By Mr. Lindsey:

Q. Were any of the strikers, that is the railroad employés, who first struck, engaged in this arson, burning, and pillaging?

A. The persons whom I saw engaged in this arson business, and the crowd that I addressed on Sunday were rioters. They appeared to me to be all strangers. They were not really citizens of Pittsburgh. They appeared to me to be all strangers. There was no strikers. I saw none of the strikers that I knew, whose countenances I would remember amongst the rioters. They appeared to keep aloof. They appeared to keep away, and when we wanted to find them or have any conversation with them, we had our meeting down at their place. The bishop and the delegation of citizens from this committee of public safety, went down to meet them away down at their head-quarters, at Twenty-eighth street, where we had a conference with them. They were perfectly powerless, yet disposed to do all they could to save the property and suppress the riot.

Q. Who were the men engaged in this arson and burning?

A. That is more than I can tell you who they were. They appeared to be a class of men I had never seen before.

Q. Were they mill men?

A. Many of them looked like laboring men. Most of them were young men, reckless young fellows, half drunk, and of a class you would call roughs, which you will find always around cities and places where there is anything going on, you don't know who they are—they appeared to be all young men.

Q. From the works about the city?

A. They might have been; I don't know. I couldn't recognize them.

By Senator Yutzy:

Q. Didn't one recognize and call to you "Doctor, get down from that?"

A. They knew me well enough—these men knew me well enough.

By Mr. Lindsey:

Q. Told you to get down from there, and said they were going to burn that car?

A. Yes; they had made up their minds to burn the depot.

Q. Did he say that?

A. No, sir; I judged that. That was our effort to save the depot. I induced the bishop to go down myself.

Q. In the practice of your profession, have you become acquainted, more or less, with the laboring men about the city?

A. Yes; I have. I am a great deal amongst them—factories, mills, and all around the neighborhood. I have a great deal of intercourse with that class of people as a surgeon amongst them.

Q. Did you recognize any of that class in this crowd?

A. I didn't recognize—yes, I recognized two men, that I have since endeavored to find, who were amongst the rioters—that was the only two.

Q. On Sunday?

A. Yes; they were there present, and one of them, when I was addressing the crowd, made the remark to me that they wouldn't put confidence in any man, no matter what he said, and that man I would know again. He was one of them, and he was an aider and abettor. I have gone frequently around the depot since; and I think he was employed by the company. I would know him if I was to see him. The other man, that threw the piece of iron ore at my head, I would know him. I have never met him.

By Senator Yutzy:

Q. Do you know whether any of your command—of your company had been called upon by the sheriff to join his posse to suppress the riot the day before, or at any time.

A. I don't know whether they ever had or not. I don't think the sheriff was about on Sunday.

Q. The day before?

A. I don't know whether he was Saturday night or not. I don't know, sir, anything about the sheriff and his posse. There was no sheriff or posse that I saw at all.

Captain P. Grallisath, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Were you at the Union depot at any time during the riots of July last—first you may state where you reside?

A. No. 660 Diamond street.

Q. What is your business?

A. Tavern.

Q. Keep hotel?

A. No; tavern—restaurant.

Q. State whether you were at the Union hotel or not, and what time it was?

A. I was at the Union depot about half past two in the afternoon.

Q. Of what day?

A. On Saturday. I think it was.

Q. When the Philadelphia troops arrived?

A. I got notice from my colonel, who is captain of the Black Hussars, who sent a man to me with a note that one of his men lost a cap on the road, and for me to bring him one. I went out myself and met them at the depot there

—the Black Hussars, and I saw—I suppose it was the First regiment or Second Philadelphia—the infantry getting ready to march out the track; and I was talking to my colonel, and asking him how things goes, and what he came on here for. Says he: "I don't know." He says: "I suppose we came on here to keep peace here in Pittsburgh." I staid there with him for about an hour and a half. I told him, says I: "Colonel, you better come down to my house. There is nothing going on here. It is all nonsense to remain here. Leave your men here and come down with me;" and so he did.

Q. What was the Colonel's name?

A. Captain Chues, of the Black Hussars. He was my colonel in the army. We went down home and got something to eat and a few glasses of beer, and all at once an orderly sent word to say: "Captain hurry up, they are firing on front." I went out with him to the depot, and staid there until dark with him. They had charge of the ammunition from General Brinton, at the Union depot. I staid there until dark, and the infantry was out, and a great many people passing along Liberty street, and hollering and cheering over to the boys, but they didn't take any notice. I told the colonel, says I, "never mind, just leave them talk and mind their own business." So they did, I says, "colonel, I am going home. I will be back again in a short time." I had to see how business was at home. Everything was upside down in the city. I came back about eight o'clock, and went to the depot again, and I found there was nobody there. I asked where they were, and they said they were in the round-house. I could not go out there, because I was alone myself, and I understood they were at the same time in the Union depot, up stairs—all of them—hid up.

Q. Who did you understand that from?

A. I had it from Major Howard, of the Fourteenth regiment, whose company was there stationed in the Union depot. This was after this.

Q. Did he say that all the Black Hussars——

A. He says "they are not there." Then I went back home again in the street cars, and I see a great mob making raids on the bonds for whisky—anything

they could find—nearly opposite the street car where I was in. I went home. About twelve o'clock I went to the depot again. I thought it was the best thing for me to see where these boys are.

Q. The Hussars?

A. Yes. I went out with one of my men to find out where they were. I saw General Howard, of the Fourteenth regiment, right at the gate where the train comes in. I went to him. Says I, "Do you know anything about the Black Hussars." Says he, "Captain, I don't." Says I, "Are they in the round-house." Says he, "I don't know anything about it." I went out over where the ammunition was, and didn't see anybody except two or three watchmen around with lanterns. I ask them where they were, and they said they didn't know, that they must be in the round-house. I couldn't believe it, because I know Colonel Clines ain't going to block himself up in a cage. Says I, "If I can't find them, there is no use for me to go out in the round-house." I went home again, and couldn't get any satisfaction. All at once, Sergeant Wilder, from Philadelphia, orderly sergeant of the company of Black Hussars, about half-past two o'clock in the morning, I was sitting on the bed, and he asked some policeman where my house was, and he told him he didn't know. Everybody knows me, where my house is, especially policemen, and he says he didn't know where Captain Gallisath lived. He passed my house two or three times before he could find it. All at once, he asked somebody, and they told him, and he rang the bell, and I was sitting on the bed. I was not going to undress until I heard some news. A darkey, he showed him the road. He came up and told me the whole thing as it stands. Says he, "We are in the Union depot, and I don't know how to get out." I got all my boys up, and said they should throw out every stitch of clothes they had in their possession. I went out and took them all out in two squads over the hill. They couldn't get through Liberty street.

Q. You gave them citizens' clothes?

A. All my own and all my men's.

Q. For the Hussars to go out in disguise?

A. Yes; I kept them there for three days at my house.

Q. How many of them?

A. There was sixteen or seventeen. I think there was seventeen. I kept them there until I got word from General Brinton, and I took them over to the West Penn road, and sent them home. General Pearson, I suppose, gave them a pass. The Black Hussars were on the road to Philadelphia, and were telegraphed to come back to the junction again.

By Mr. Larrabee:

Q. There were sixteen or seventeen?

A. Yes.

Q. Did they have arms?

A. Nothing but sabers.

Q. Where were their guns?

A. They had none.

Q. Did they have guns when they came in from Philadelphia?

A. Nothing at all but sabers.

Q. They were placed in the Union depot to guard the ammunition, Captain Clines at the head?

A. Yes, sir.

Q. Was that all that came there Saturday—Saturday afternoon—sixteen in number?

A. That is all they had, seventeen—I suppose it was seventeen—I had them in my house. They had nothing but sabers. They had no carbines nor pistols nor anything.

Q. Where did they leave the ammunition when they came out?

A. The ammunition was at the same place still—and burned up too.

Q. In the Union depot?

A. That is the report that I heard afterwards, that it was set afire on Sunday.

Q. They didn't bring the ammunition out with them?

A. General Brinton gave Captain Clines orders to take charge of the ammunition, so they could ship it to the front, but they never came back again, the Philadelphia troops.

Q. General Brinton didn't come back again?

A. No; they were up in the round-house, and Sunday morning went away to the other side of the river.

Q. Captain Clines left the ammunition in the depot?

A. The understanding was, that they were cut off from General Brinton, and nobody knew the ammunition was in there, except himself and his boys.

Q. Do you know whether he left it there in the depot or not?

A. I am very well satisfied he couldn't take it away. I heard the cartridges cracking around there on Sunday when they burned up. General Brinton had no ammunition, whatever, when he was cut off, and he couldn't get none—not what he brought from Philadelphia.

By Senator Yutzy:

Q. Did Captain Clines and his command carry anything away from there?

A. They left their sabers there when I took them up the hill, but they got them back afterwards, and I shipped them to Philadelphia my own self.

Q. How far do you live from Union depot?

A. Three squares and a half.

Q. What street?

A. Diamond.

Q. How many people were there along Diamond street when you took these clothes out?

A. Nobody—everything quiet.

Q. Couldn't these Black Hussars have marched out and down to your house?

A. They couldn't march from Union depot on Liberty street, they had to go around the hill and over the Pan-Handle road by the tunnel and back here—that is where the nigger took them around.

Q. In citizens dress?

A. I sent the clothes out. They went in two squads. We hadn't so many clothes to dress them all at once, the mob was waiting for them to come out.

By Senator Yutzy:

Q. You are a military man, and have had a great deal of experience in the army. In your opinion, could these sixteen men have cut their way out with their sabers?

A. No, sir; they couldn't.

Q. Why not?

A. I couldn't see how. They didn't know the road, nor anything. They were strangers.

Q. If they had had a guide?

A. I don't see how they could do it with sabers, when the mob was standing outside with stones and pistols. What did them sixteen men want to do with sabers.

Q. Was there a large crowd?

A. There was a big crowd there. They couldn't, I am satisfied. I wouldn't have risked it, and I wouldn't be afraid if I were acquainted in the city, and know my road.

Q. If you had had sixteen men well armed——

A. Yes; well armed, that is all right; but they were not.

Q. Were there no arms there. Were there not some stacks of muskets?

A. They had nothing but their sabers, that is all. I saw them all. They had nothing but their pocket knives. Some of them had no knives, because they went away so quick, they didn't know where they were going, and they thought they were going a few miles outside of Philadelphia.

Q. Do you know whether there was any effort made to take any provisions or ammunition to the troops in the round-house on Saturday night?

A. Not as I know of.

By Mr. Engelbert:

Q. These Black Hussars are generally intended as cavalry, are they not?

A. Yes; they are all mounted.

Q. The general cry was against the Philadelphia soldiers. That intimidated these men, did it?

A. I heard them hollering in the street for to kill them—in Liberty street.

Q. That is a good way to intimidate a person, isn't it?

A. Oh! yes; I was right with them. I suppose they would if they could. A man says to me, what I got business to do with the Philadelphia troops, keeping conversation with them. I told him that is my business.

Q. What business you had with them?

A. Yes. I said that is my business.

Q. They didn't pretend to interfere with you—did they?

A. I suppose they would, if they could. I don't know, I wasn't afraid.

By Mr. Lindsey:

Q. Was it known to the crowd that these Black Hussars were quartered in your house? Did the crowd know that the Black Hussars were in your house?

A. No; not that Sunday. They found it out on Monday, though. The people came in the house keeping very nice, quiet conversation with them. I never heard a wrong word on Wednesday. The house was crowded, and they were sitting around with them, drinking beer. It was all right; very nice, quiet conversation.

Q. The Black Hussars did?

A. Our Pittsburgh friends treated them very kind.

Robert B. Carnahan, being duly sworn, was examined as follows:

By Mr. Lindsey:

Q. Where do you reside, Mr. Carnahan?

A. I reside in Pittsburgh, Nineteenth ward. We call it the east end here.

Q. Practicing attorney?

A. Practicing attorney.

Q. Solicitor for the sheriff, I believe?

A. Yes; I am at this time, and have been for two years past.

Q. Just state what you know of the movements of the sheriff during the riots of July last?

A. At the time of the first disturbance, which occurred on Thursday evening, it was preceding the Saturday on which——

Q. That was the 19th—Thursday evening, the 19th?

A. Yes; the 19th. I knew nothing whatever of anything the sheriff had done, or had been called on to do. I was informed the next morning that during the night of Thursday the sheriff had been called on by the solicitor of one of the railroads—Mr. Scott—by some of the railroad officials, during the night, and that he had been at Twenty-eighth street during that night, but I knew nothing of it personally. My residence is five miles—nearly six miles—from here, though in the city of Pittsburgh, and I was not sent for that night. The next day I became acquainted with what had been done, but I think I did not see the sheriff at all. He was out at Torrens station during a considerable portion of the day, with the railroad officers, and I don't remember to have seen him that day. I think he had been up pretty much all the night before, and was out, away from his office, the greater part of Friday, and I don't think I saw him at all on Friday. On Saturday morning I saw the sheriff, and had a full conference with him in his office. The sheriff submitted to me what he had done. Gave me an account of his meeting the rioters on Thursday night, and of his being out at Torrens station on Friday, where I think he was a considerable part of the day—at one place or the other—at least, I did not find him during business hours; and of his notification of the Governor that he was not able to deal, in his opinion, with the rioters or mob that had obstructed the running of the trains. Of course, I made inquiry as to the magnitude of the gatherings, to learn something about their threatening, hostile character. In fact, had known myself, personally, coming in on the road, that the trains were detained. I said to him that I entirely approved, as a matter of law, of what he had done in notifying the Governor to send on troops. The view I had of the act of 1864, I think it is, was that the Governor, on reliable information from any quarter where there was insurrection that the legal authorities were not able to deal with, might call out the troops, and I approved of that; but on Saturday morning the attorneys of the Pennsylvania railroad went into the court of common pleas No. 2, and obtained warrants for the arrest of a

number of persons—my recollection is, fifteen in number—who were charged as leaders of this riotous movement. I think the warrants were addressed to a constable of the name of Richardson, and the solicitors of the road made a demand on the sheriff that morning for a *posse comitatus* to attend the arresting officers, and support him in the discharge of that duty. This took place sometime in the morning, at or after eleven o'clock in the morning—it was after eleven o'clock, I think—and I advised the sheriff to assemble a *posse comitatus*—as large a number of men as he could obtain—that three or four hundred would not be too large, and it was understood, at that time, that troops would arrive that evening. They would arrive here at twelve o'clock, or about twelve o'clock, perhaps earlier than twelve, on a train that arrived here between eleven and twelve o'clock, and it was understood the arrangement was, that the civil authorities were to make these arrests, the constable supported by the sheriff and his *posse comitatus*, and that the military were to be on the ground. There was, indeed, very little time for obtaining a *posse comitatus* at that time, but the sheriff sent out his deputies, some fifteen or sixteen of them, with instructions to bring in a *posse comitatus*. There was not time to write out summonses and serve them in any way, but I said to him that it would be a sufficient demand upon a person to attend if given verbally, that it was better to have a written notice, if there was time, which there was not then—less than an hour to do it all in. These deputies went out, some fourteen or fifteen of them, but they severally came in and reported at an interval of an hour, or an hour and a half—it was nearly one o'clock—and the result was, I think, but two men were obtained. I remember of one man being brought into the office who was very much alarmed. The sheriff asked him if he was willing to go. He said he was not willing to go; he was afraid to go. The sheriff reproached him with cowardice, and said he did not want that kind of a fellow to attend him. I think not more than two men were obtained. Sometime between twelve and one—I think nearer one than twelve—the sheriff, with his own deputies, went up to the Union depot. I think all his deputies, with the exception of one or two, perhaps, who were not then in the city. Every deputy he had in the city attended him, including his two sons and his brother, and they went up to the Union depot, and I think the constable was

with him. I am not entirely sure about that. I attended them myself up as far as the Union depot. I know we went there, and some of the military had arrived there from Philadelphia at that time, but I think not all of them. I know nothing more as to what occurred on that afternoon, for I was not at Twenty-eighth street when the firing took place, and my personal knowledge ends with this, that the sheriff himself personally went. I cannot relate about anything that took place on Saturday night, or after that time, for I was not in that part of the city, but was at home.

Q. Do you know when it was that the sheriff made the call on the Governor for troops to support him?

A. I only know from what he told me himself, and what I have heard others say, and what I have seen printed—it must have been on Thursday night, the 19th.

Q. In your opinion, had the sheriff then exhausted his powers and resources to cope with the mob?

A. I, of course, cannot judge that; that is a question of fact. I can only judge of it from what other people have told me. I can judge from what I personally have seen of this mob myself, coming in on the train every day, for these trains had been delayed for two or three days. The freight trains were accumulating, and had been detained for some days before that or some time before that—at least one day—one whole day, if not another. I should judge from the crowds I saw assembled about the trains myself, and from descriptions of them by others, that it was not possible for the sheriff with any *posse comitatus* that he could obtain to deal with them, and I will tell you on what I found my opinion. This was a combination, I may say, of what we call here in Pittsburgh, the striking element. I don't think any man will say that he found a preponderance of the railroad men in their assemblages about Twenty-eighth street, or the Union depot, or other places on the road. Everybody out of work who belonged to what we call the striking population, were directed by sympathy or opinion towards these people. It was not a body of railroad men alone, and I don't think that the larger part of them were railroad men—the iron workers, the people who

work in rolling mills, and the people who work in the various branches of industry, were all in sympathy with them, so far as I observed, and so far as my knowledge, derived from others, extends, and it was a sort of massing of the striking element here. The strike of the Pennsylvania railroad men being simply the occasion that brought them together.

Q. Let me ask you another question: In your judgment, had the sheriff at that time, under the act of 1864, laid the grounds for calling on the Governor for aid?

A. I don't remember—I have not the act of 1864 before me, and I don't remember whether it defines any ground. My recollection is, that the act itself does not define more than in general terms, at least, the ground upon which the executive aid maybe invoked. I was satisfied of this, and I think Senator Scott was. I know from his conversations with me that it was such a gathering, with such a purpose, and with such a determination that, at least, the Pennsylvania Railroad Company did not expect to deal with them without military forces to aid them, and I think that that was the prevalent impression. One of the sheriffs deputies told me that, though he had served in the army three years, he never had encountered any danger that alarmed him like the danger he expected to encounter here. He was a man willing to do his duty. It was a mob that inspired some terror, even at that time. Before any blood was shed, there was a general apprehension of trouble. I have seen many strikes here of coal diggers, of men engaged in iron mills and glass houses, and the various departments of industry. In fact, we have been a good deal accustomed to them, but there had never before been very much actual, positive mischief coming from them, and I never before saw a mob the people were afraid of, before that one in this city. However, I must say I saw but little of it until Saturday, and then the soldiers had been called out under the command of General Pearson, and some Philadelphia soldiers had arrived. On Saturday, the feeling was angry, it was threatening and severe.

Q. What preparations is it necessary for the sheriff to make, or what are his duties under the laws of the State of Pennsylvania before calling on the Governor for aid?

A. Well, gentlemen, I think the law on that subject has been very much changed by the act of 1864. That is here. I would like to refer you to it. I think very radical changes were made in the law relative to calling out the militia, by the act of 1864, that has been much adverted to lately. I think it establishes a very different system.

Q. From that heretofore in practice?

A. I think so. I think it is altogether different. As I understand that law, it is not necessary at all that the sheriff should notify the Governor. It might be done by the mayor, or alderman, or even by any citizen. The Governor himself judges of the sufficiency.

Q. As you understand the law, is it necessary for the sheriff to make an effort to obtain a *posse comitatus* before calling on the Governor?

A. I certainly would think the sheriff, the principal peace officer of the county, ought to make some effort to get a *posse comitatus* to control that riot; but there are cases where the riot has taken such proportions, as I think this one had—I do not regard it as local at all, for it extended from the Mississippi to the Atlantic—there are such cases where no *posse comitatus* could deal with them at all.

Q. At the time the sheriff made the call on the Governor, was it not principally local?

A. As to that I cannot speak from personal knowledge. What has been told to me was, in substance, this: That when the sheriff first met the gathering at Twenty-eighth street, there was a large collection of people, numbering, I don't know how many, but one or two thousand people, and this was in the middle of the night—towards eleven o'clock at night. They were gathered there. They insulted the sheriff, threw all sorts of reproaches upon him, blasphemy and obscenity of the very worst character were employed—this I don't know personally, but it has been told to me—and threats were made. Now, it is a question upon which you can judge as well as I, whether, when a crowd can be brought together at that hour of the night—a crowd greatly in excess of all the railroad men in this part of the country—whether any

collection of citizens you might obtain, would be able to successfully disperse them, and it is a question very hard to determine.

Q. Would it, in your judgment, be the duty of the sheriff to make an effort to obtain a posse before calling on the Governor?

A. Unless the effort was plainly fruitless, I would not understand the law to require him to do a thing that is plainly unnecessary. If an armed force would come into the county which the sheriff evidently could not deal with citizens, especially without arms, I would not think it necessary to expose himself to any sacrifice of life. If the disturbance were local, I think he ought to make a serious effort to disperse it, before calling on the Governor. The law, as I understand it, and the only law in force on this subject, is the act of 1864, which was passed during the war—during the time of the rebellion, and when there were disturbances in different parts of this State. I understand it authorizes the Governor to call out the militia, on any information that satisfies his mind, whether it is of an official character or not. It is in these terms:

"When an invasion of, or insurrection in, the State is made or threatened, or a tumult, riot, or mob shall exist, the commander-in-chief shall call upon the militia to repel or suppress the same, and may order our divisions, brigades, regiments, battalions, or companies, or may order to be detached parts or companies thereof, or any number of men to be drafted therefrom, and may cause officers to be detailed, sufficient with those attached to the troops to organize the forces."

That was not the law until 1864. At one period in Pennsylvania, when the military were called out, they were to be under the command of the sheriffs. That was changed by the act of 1857—I am not entirely sure about that—it was about that time, and in case of an insurrection, application was to be made to a judge, and so forth. But it will be observed that that law seems to supply all existing legislation on the subject, and applies to cases of insurrection, invasion, mobs, tumults, and riots, and also authorized the Governor when these exist, to call them out, though it don't prescribe on what terms or conditions he shall call them out. I take it that if you, Mr.

Chairman, or any gentleman in whom the Governor had confidence, were to communicate with him information that a mob or tumult existed, and it was necessary to call out forces to deal with them, he would be perfectly authorized in calling out the militia, whether his information is of official character or not.

Q. Did you communicate your views, as you have given them to us, to Sheriff Fife?

A. Yes; I said I approved of what he had done. He had sent these telegrams on Thursday night, and as I stated to you, I didn't see him until afternoon.

Q. You approved of what he had done?

A. I approved of what he had done, and I think that view was the view of Mr. Scott, the solicitor of the railroad, and I think of everybody that were cognizant of the fact. At a later period, during the week succeeding the destruction of the property, the various railroads here—the Fort Wayne and Chicago, the Pittsburgh and Cleveland, and the Allegheny Valley, the Baltimore and Ohio, and the Charleston and Virginia road sent written demands to the sheriff, setting forth that a tumultuous body of men were holding their property, and threatening to destroy it, and calling upon him to protect the property. The sheriff made a demand for aid upon General Brown, who was in command of the Sixth division, having succeeded General Pearson, who had been relieved, to enable him to protect this property. I cannot give you the views the military had of their duty here

Q. We will take the evidence of the military men?

A. There is a communication, and a copy of the communication, written by myself, and sent to General Brown, in fact, it is the original letter, which I have here, to General Brown, making a demand, and I have a copy of his reply. The sheriff, at the same time, or before that time, had constituted General James S. Negley his deputy, for the purpose of preserving the public peace and dispersing the rioters. General Negley was recruiting a body of men to act in preserving the peace. It was said he had several

hundred men, and the sheriff, after consultation, clothed him with all the civil character which the sheriff himself had in dealing with these disturbances.

Q. What time was that done?

A. That was done somewhere about the 25th of July. It is about the date of this letter. [Indicating.] This letter will, perhaps, explain about what the sheriff's views of duty were, if you will permit me to read it.

Q. I don't see hardly how that would be necessary, because he called upon the Governor as commander-in-chief to send troops?

A. But the Governor was not here with his troops.

Q. Well, he ordered his troops out?

A. There were no troops here at that time, except the Sixth regiment. General Brinton had been here on Saturday, but he had left with his troops. There were no troops here, except the Sixth division, commanded then by General Brown, and composed of the Fourteenth, Eighteenth, and Nineteenth regiments.

Q. Is this of a character to give directions to General Brown or asking him for aid?

A. Asking him for aid.

Q. I think it would be proper to have it read.

The witness then read the following communication:

SHERIFF'S OFFICE, PITTSBURGH, July 26, 1877.

To GENERAL JOSEPH BROWN, in command of the Sixth Division National Guard of Pennsylvania:

SIR: I have the honor to enclose to you copies of the following communications, addressed to me under date of the 25th and 26th days of July, inst., by Messrs. Hampton and Dalzell, solicitors for the Pennsylvania company, operating the Pittsburgh, Fort Wayne and Chicago railway, and the Cleveland and Pittsburgh railroad; also by the same parties, solicitors of the Pittsburgh, Cincinnati and St. Louis Railway Company; also by the same parties, solicitors of the Pittsburgh, Virginia and Charleston Railroad Company, and by Welty McCullough, solicitor of the Baltimore and Ohio Railroad Company and the Pittsburgh and Connellsville Railroad Company, representing, in substance, that the property of the respective railway companies is in immediate and constant danger of destruction at the hands of a body of rioters and disaffected workmen, which may at any time become a mob, and which said companies believe has an intention of destroying said property.

I beg leave to inform you that since the present disturbances began I have made efforts to summon a *posse comitatus* to suppress the unlawful and riotous proceedings of the persons referred to in the enclosed communications, but have been hereto unsuccessful in procuring the services of any considerable number of men willing to come to my aid as a *posse comitatus*. My consequent inability to disperse the unlawful assemblages referred to (or some of them) has been communicated to the Governor, who has ordered out the military power of the State for that purpose. I cannot protect the property referred to without your aid. Can you give it? I am well persuaded that no mere civil force that I can raise can protect this property. If you can give me the aid of your military force please inform in writing immediately.

Yours respectfully,

R. H. FIFE,
Sheriff.

Signed by the sheriff. It was dated the 26th, and the answer of General Brown came two days afterwards, July 28th, and is as follows:

[Official Business.]

HEADQUARTERS SIXTH DIVISION, NATIONAL GUARD, PENNSYLVANIA.

(Copy.)

PITTSBURGH, *July 28, 1877.*

Hon. R. H. FIFE, *Sheriff Allegheny county, Pennsylvania:*

SIR: Yours of date 25th instant came to hand July 26, at 7.20, P.M., in which you request the aid of the National Guard of Pennsylvania to protect the property of the several railroad companies centering in the city of Pittsburgh, now threatened by mobs. You will, wherever there may be any riotous proceedings, bring all the powers with which you are clothed to disperse the rioters. After you have made such effort and are overpowered, your *posse comitatus* completely driven from the ground, then I am ready and fully able to assist you, and am now ready to assist you, when assured your power is exhausted.

Very respectfully,

Joseph Brown,
Brigadier General commanding Sixth Division N.G.P.

Received July 28, 1877, at 9.30, A.M.

I sent a verbal message to ask General Brown whether he thought it was his duty to wait until the *posse comitatus* was completely driven from the ground. If his duty was merely to bury the dead, we could get somebody to do that as well as him.

Q. This is dated the 28th?

A. It was after any actual destruction of property, and this railroad property was still held by the rioters, and they wouldn't allow trains to move.

By Mr. Larrabee:

Q. It was a week after the Saturday?

A. It was just a week. The Governor hadn't arrived with his troops, and didn't arrive until some days afterwards—the next week.

Q. What troops did General Brown have under his control?

A. General Brown had under his control the Fourteenth regiment and the Eighteenth regiment and the Nineteenth regiment, Pennsylvania National Guards, all raised in and about this place.

Q. Do you know how many of them were on duty at that time?

A. I cannot say how many were on duty, except from what I have heard, but I have heard the number estimated, and I think I have heard military men say some three or four hundred altogether. General Brown's head-quarters was less than one square from the court-house, and we could get no answer from him at all until two days afterwards. He says in his reply he received the communication, twenty minutes past seven, P.M., on the 26th. After waiting two days he replied, and replied in the manner set forth.

Q. I wish you to state where Sheriff Fife was on Sunday, during the riot, so far as you know?

A. Sheriff Fife was in the city, at home, as I have learned.

Q. During the day, Sunday?

A. The whole day Sunday. I have never heard he was out of the city at all.

Q. Did you see him any time during Sunday in the city?

A. I didn't see him any time during the day, but I saw him on Monday, the next day. It was reported that the sheriff had been killed—it was telegraphed all over the country. I saw the sheriff on Monday, was in his company, and in his office. As to the sheriff himself, I may say this about it, that I personally advised the sheriff, when he went up on Saturday, to constitute a deputy to take charge of this force. The sheriff had, three times during the year preceding, been at the point of death with heart disease, and I don't think he was in a fit condition to go at all, but he insisted on going, and did go, both on Thursday, Friday, and Saturday. I know nothing more, gentlemen, that I can tell you about this.

At this point the committee adjourned until three o'clock, this afternoon.

AFTERNOON SESSION.

PITTSBURGH, *Wednesday, February 20, 1878.*

Pursuant to adjournment, the committee met at three o'clock. All present except Messrs. Means, Reyburn, and Torbert.

William N. Riddle, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. In the city of Pittsburgh.

Q. What is your business?

A. Cashier of the Penn Rank.

Q. State whether you had any negotiations or any conference with the strikers during the riots of July last, and if so, what it was?

A. I had conversations with the strikers on, I think, Friday before the riot, and Sunday of the riot.

Q. State what the conference was on Friday—that is, you mean Friday, the 21st of July?

A. Friday before the riot. The conversation was at East Liberty, with the strikers. I went there to see about some stock that had been consigned to us. While there, I got in conversation with them. They seemed to demand their rights of the railroad, but they didn't want to inconvenience any stock dealers there, nor anybody else—didn't seem to want to interfere with the business—wanted their rights—seemed peaceable enough to me on Sunday. I suppose the paper that is here—that is what I am to testify—in regard to that, (the paper referred to by the witness is the paper written to W. C. McCarthy, and will be found in the testimony of Doctor Donnelly,) I was requested, I think, by Major McCarthy, after the citizens meeting on Sunday, at the city hall, to go to Twenty-eighth street and see if I could make any arrangements, or see what the feeling was out among the strikers. I went there, and found this man Cunningham—I don't say it was him, it was a man that was pointed out to me as Cunningham. He said he was willing to go down and join Captain McMunn, and help us citizens suppress the mob. Then this paper was to go to the mayor. I met some one on the corner who said he was going there, and he, this man Cunningham said, would deliver the note properly, and he sent this note to the mayor. This man Cunningham said, that he also thought the Pennsylvania railroad had treated them wrong, but that he was very much opposed to the destruction of property, and that he was willing to join with the citizens, and go down and help suppress the mob then going on—I suppose they were at that time. I couldn't state what hour this was. They must have been in and about the Union depot and elevator.

Q. Who is the man Cunningham. Do you know about his history?

A. I know nothing at all. Never saw him before or since this day. Wouldn't know him now.

Q. Was he a railroad man?

Q. He was a brakeman or engineer on the railroad—one of the strikers said to be at the meeting at the city hall. I cannot testify that that was the man.

Q. This is the note you sent to the mayor after the conversation with Cunningham?

A. Yes.

Q. Will you read this, so the reporter can take it down?

"HONORABLE W. C. McCARTHY: I have gone to Twenty-sixth street. Cunningham, of the strikers, with Captain McMunn, say they will try to go down at once to new city hall to join you. I will do my best. Tell Doctor Donnelly; and if they come, see that they get instructions." "Instructions" meant—I suppose that means get instruction where to go.

Q. Do you know whether this was delivered to the mayor or not?

A. That I cannot say.

Q. What time did you send this to him?

A. That I wouldn't like to say. I suppose it was about four o'clock in the afternoon—Sunday afternoon.

Q. Who is Captain McMunn?

A. He was also a prominent man among the strikers. He made a speech at the city hall that is recorded. A very good hearted man. I knew him before.

Q. What was his situation on the railroad; do you know?

A. I don't.

Q. Was he in the employ of the railroad company at the time the strike broke out?

A. I cannot say that he was then. I was always led to believe he was before. I used to live at the Union depot, and I know most of these people by sight.

I have seen him several times, and talked to him on the street since the riot.

Q. Do you know whether he is in the employ of the company now or not?

A. I don't, sir.

By Senator Yutzy:

Q. Did you understand from the conference you had with Cunningham that the strikers would unite with good citizens to suppress the riot and disperse the mob?

A. Yes; that some of the strikers would—the ones inclined peaceably?

Q. What did Mayor McCarthy say in reply to this note? Did you ever learn?

A. I never got an answer. In fact, I don't think I ever asked, because when I came down the people had all gone up to the depot—all that seemed to want to join. In fact I am positive I never said anything about it afterwards. I suppose if they had gone there they would have been assigned to proper places.

Q. Were they to act in conjunction with Doctor Donnelly and his armed force?

A. Yes; that was the understanding. I think Captain McMunn told me to go to this man Cunningham, and that he would help us.

Q. They were to join Doctor Donnelly?

A. Yes.

Q. Did they ever join Doctor Donnelly?

A. That I can't say. I don't know. They might have joined without my knowing it.

Q. State, if you know, what efforts were made by the city authorities to get a force to suppress the riot and disperse the mob?

A. At what particular time, or do you mean in general?

Q. At any time during the riots—during the violence?

A. I can tell you very briefly—it would have to be——

Q. Only what you know of your own personal knowledge what effort was made by the mayor and his subordinates to suppress the riots and disperse the mob?

A. I only know that in the morning I went to the mayor and asked—early in the morning——

Q. The day it commenced?

A. On Saturday. I was in Allegheny that night. I went to the mayor early in the morning, and asked him if there was anything that could be done—asked him if he couldn't get a few extra police by issuing a call for extra police.

Q. That is the mayor of Pittsburgh?

A. Mayor McCarthy; yes, sir. He said the police committee were then in session up stairs. I asked him if he would allow me to go up, and request them to issue a call and guarantee their payment. He said, I might. I went up and stated the case, and they said to me, that they had authorized the mayor to employ a certain number, which I don't know now, of police. I went to the mayor and asked him if he would—after that there was a meeting at the city hall, pretty shortly after that—I asked the mayor if he could get any extra police. He said, he couldn't get them, he had tried, and couldn't get them. I joined the mayor after that, and went to the city hall meeting. Going down Fifth avenue, I asked the mayor if he was going to make an attempt to get additional police, as he had been authorized by the police committee. He said he was, but who was going to guarantee the payment of this money. I told him we would fix that part of it, if that was all the hang there was to it. We got to the city hall meeting, went on and got partly through. If I remember right, I said I would be one of so many that would pay the police, if he felt backward about employing them. Then I know after that, he made

an attempt to get men, and succeeded, I don't how far, but he got a few, at least, later in the day. I asked him if he was going to send out police, and he said he had not been asked to do so.

Q. Send them to the scene of the riots?

A. Yes; I am a friend of Mayor McCarthy, and I am simply testifying as a citizen. I think there is very much of a mix somewheres—who it belongs to or where it rests—it ought to be placed somewhere. There is a very decided mix.

Q. I wish to ask you another question. Do you know what efforts were made by the sheriff and his subordinates or the county authorities to suppress the riot?

A. I don't know anything about that, nothing at all except hearsay.

By Mr. Lindsey:

Q. Had you had any talk with Mayor McCarthy before Sunday?

A. No, sir; not on this subject.

Reverend Sylvester F. Scoville, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Were you at the citizen's meeting on Sunday?

A. I arrived just at the close of it.

Q. What occurred then?

A. I had been appointed a member of the citizens' committee. I went with them to city hall, and from that went in carriages to the mob.

Q. Who accompanied you?

A. Bishop Tuigg, a father of the catholic church, whose name I have forgotten—Mr. Bennett, I think his name is J. I. Bennett—Mr. J. Parker, junior, and others, whose names I forget at the moment. There were two carriages. Doctor Donnelly, I remember him distinctly, he was there. Our contact with the mob was very brief. Railings were torn from the fence on Liberty street; but we made our way to the end of the platform of the car—the rear platform of the car. One of the gentlemen sought to call the people to order, and introduced Bishop Tuigg, who endeavoured to address them. They listened for a few moments, and then interrupted with questions. After a few moments further they began to throw clinkers or pieces of iron, and we were warned by apparent friends to withdraw, with the words, "It is growing very hot here." Other ineffectual attempts were made to address the meeting. After withdrawing we proceeded to Twenty-sixth street, with a view of meeting the strikers, and attempting to dissociate them from the rioters, with the hope that they would assist in suppressing the riot. It was impossible to find the leaders. One or two, who seemed to have some influence, were finally seen. Then the citizens' committee went to visit the railroad authorities at a private house in Allegheny.

Q. What was said to the strikers that you found, and what did the strikers say?

A. Those who were found disclaimed any sympathy with the riot, and they were appealed to do what they could to suppress it.

Q. Did they seem willing to help in suppressing the arson and riot that was then going on?

A. They made no motion in that direction, but there were very few—they were so scattered here and there. So far as I could see, all that was accomplished by that committee was to direct the attention of the few to the efforts that were going on in the city to organize a force. The character of the rioters appeared to me to be such as belonged to people habitually in Pittsburgh. I saw no evidence of their being strangers.

Q. What class of people were they?

A. By their dress and language, they were laborers.

Q. Laborers from the factories, and rolling-mills, &c.?

A. I should think so. Yes, sir.

Q. Were there no railroad employés that were actually engaged in the arson and burning and riot?

A. I recognized none whom I knew as railroad employés, but it was evident that somebody that understood the management of engines were there, and the crowd was not wholly confined to those whose dress looked like laboring men. They seemed to have no wish to injure anything but the railroad, and clamored to know whether any proposition came directly from the chief of the road, Mr. Scott, and when they found no such proposition was to be given to them, they would not listen to any other.

Q. What time was it that you visited the scene of the riot?

A. From half past two to three. Do you wish to know anything in regard to the interview with the authorities?

Q. Yes; I would like to have you relate the interview with the city authorities?

A. I mean with the railroad authorities.

Q. Relate the interview with the railroad authorities?

A. By the time we had arrived at the private house, in Allegheny, the depot was in flames, and I think also the elevator. So that they answered in a word, that all the mischief had been done which they could sustain, and they had no proposition for a compromise to make, and it is just to say, that they would have said the same if they had other interests. They plead also the general interest of the community as a reason for not treating with those in rebellion against the authorities. I know nothing whatever in regard to the conduct of the city authorities, except what could be observed from the outside of the building—the city hall—the new city hall—from five to

seven o'clock—the formation of the companies—they went up to the scene of the riot, and their return, which I witnessed, that was all.

Q. Companies of citizens?

A. Citizens—young men mainly. Mr. McCune, and myself, and some others were with the mayor at the time of the issuance of the first proclamation, reading, I think, in this way: "Veterans, to the rescue. Meet at city hall at ten o'clock," I think, "the citizens will follow you."

By Senator Yutzy:

Q. Whose proclamation was that?

A. Written, I think, by myself, at the instance of the mayor. That was on Monday. There was no citizens' meeting then, that I knew of. This proclamation was designed to meet the necessity which came upon us, through the information of other persons coming from a distance—a boat load down the Monongahela, and the cars full from McKeesport. That was very soon afterward superceded by another notice, and General Negley took the whole charge from that. I was engaged in visiting the wounded. That is all I know in regard to it, except these expressions of opinion I heard here and there.

By Mr. Lindsey:

Q. How many were actually engaged in the burning and riot, when you were out at the scene of the riot?

A. At the time we were there, before the firing of the depot, the multitude was in an elongated form, stretching up the railway, so that all were not visible at any one point. But those that were visible to us, would number anywhere from two to three hundred who seemed actually participating, while towards the city there was a large crowd.

Q. Bystanders and lookers on?

A. Yes; many of whom I recognized as our citizens, and persons of standing in the community. Many statements have been made with regard to the ease of checking the multitude at that point, which are certainly hard to prove. No small force could have stopped them at that time—that is, of course, in my judgment. I know very little about such things. Some boys were in the multitude, and several of them evidently under the influence of drink, and fainting from exhaustion and excitement. But the most of them were stalwart men, under most powerful excitement.

Q. Under the influence of spirits?

A. We could see that only in a few cases, of course, where it come to such evidence that they were overcome by it. It is evident, there were a number of boys who were on the point of falling, from exposure to the sun.

Q. Were these two or three hundred that you speak of armed, so far as you could see?

A. We saw no arms. The engine that was near us—there seemed to be an effort of some to move it; but, if I understood rightly, those who wished to remove the engine were pulled down from it, and not suffered to move it.

Q. Who had called the meeting that appointed you a committee?

A. The notice I received and read from the pulpit was signed J. I. Burnett, but his name was crossed out, as though he desired it to be impersonal—written hurriedly on a piece of paper with a pencil. I announced, at the time, that "this notice comes to me without signature, and I am unable to say in whose name it is."

Q. Was that read in the pulpit of the churches pretty generally?

A. I am not advised as to that.

Q. At what hour?

A. At the close of the service.

Q. Morning service—that would be about twelve o'clock?

A. Yes; about twelve o'clock.

Q. How large was the gathering of the citizens at the meeting?

A. I came just at its close, but I suppose, from the area they occupied in the street, that it was from one hundred and fifty to two hundred.

Q. This appointment of this committee was with a view of trying to stop the arson and riot by peaceable measures?

A. Conciliation—yes. Our effort with the railroad authorities was based upon previous efforts to dissociate the rioters from the strikers, and remove that cause of complaint, and the only proposition that was made was whether they could make any proposition.

Q. Did you report back to the citizens' meeting?

A. We started for the citizens' meeting. We arrived shortly before its close, but for what reason, I could not understand, our chairman made no report. Probably because there was nothing to report—nothing that had been done, or could be done.

Q. How soon after you came back was it before the citizens began to organize into companies for the purpose of protection?

A. Almost within half an hour. While we were standing on the verge of the assembled crowd, they began to form in line, and march to the city hall. I remember the person who headed the column.

Q. Were these companies armed that night?

A. They were armed when they reached the city hall.

Q. With what?

A. With muskets, as I understood, taken from the armory of the university, as I was afterwards told, without ammunition.

Q. How many citizens were there in arms that night do you think?

A. Do you mean at night or at that time?

Q. At that time?

A. At that time, I saw probably a hundred.

Q. Did it increase in number?

A. No; it seemed to diminish. Going down to the Duquesne depot, at nine o'clock, I was told that quite a large number had come originally to guard the depot, but all had dispersed, except six.

Frank Haymaker, being duly sworn, testified as follows:

Examined by Mr. Lindsey:

Q. Where do you reside?

A. Part of the time in the city and part of the time at Laurel station, four miles below the city.

Q. A deputy of Sheriff Fife's?

A. Yes, sir.

Q. State whether you accompanied Sheriff Fife to Twenty-eighth street, on the night of Thursday, the 19th of July last, and what took place there?

A. On the 18th of the month, I went to the country. On the 19th I got back. I heard they were striking in town here, and there were a good many men got on the cars coming in along, and they were talking considerably about it on the road coming in—talking that they were coming in to take part in the strike. That was on Thursday, the 19th of the month. I noticed men along the road, on the road coming in, and some of them yelled at those parties who got on the train to send them out grub—they had been out for some time, and hadn't had anything to eat. They were out at East Liberty. I came in town. Didn't notice much of a crowd in the city. That was late in the

evening, and I went to bed that evening about nine o'clock. I think it was about two o'clock I was wakened by Sheriff Fife himself. He said they wished us to go to Twenty-eighth street. We got in a carriage and went to Mr. Pitcairn's office, and from there we went out to where there was a considerable of a crowd gathered.

Q. What occurred there—what was said by the sheriff and done.

A. The sheriff talked to them, and he told them what the result of it would be, and they would have to go away. If they did not, he would have to send for the military. He said he would use all the power that he could, but, he said, if they would not disperse he would have to send for the military. They hooted him and hissed him and gave him a great deal of bad language while I was there. I turned around and came back to Pitcairn's office, and he told me he would not need me any longer, I might go home. I went home and went to bed.

Q. Did he make any attempt to arrest anybody that night?

A. No, sir; not that I know. They were not doing anything at the time we went out there, any more than standing there.

Q. Were they interfering with the trains that were passing?

A. No, sir. I believe they said, though, that they would not—they were not going to let any more trains go out, or something to that effect.

Q. The sheriff made no attempt to disperse the crowd that night, did he?

A. No, sir; the two of us—I don't think there was much use of us making any attempt.

Q. Did he make any attempt to raise a posse?

A. He told me he could not find any other of his deputies—he had sent for several of them, but they were not at home, or something of that kind. He said I was all the one he could find.

Q. Did he call upon citizens to go out?

A. That night?

Q. Yes?

A. No, sir; not to my knowledge—he did not.

Q. Do you know when he sent to the Governor for troops?

A. These men that came for him, told him all they wanted of him, was to go out and make a demand of the crowd to disperse.

Q. Who told him that?

A. I believe it was Mr. Scott told him that.

Q. Did you hear him tell him that?

A. Yes, sir; I am not certain it was Mr. Scott, but I think it was.

Q. Was it one of the railroad officials?

A. It was one of the railroad officials and one of the men that came for the sheriff.

Q. When did the sheriff call on the Governor to furnish him with troops?

A. That night, sir.

Q. After he returned?

A. After he returned.

Q. And before morning?

A. And before morning; yes, sir.

Q. State whether you were with him at any other time?

A. On Friday I was out—Friday morning—to serve some writs, and didn't get back until pretty late in the morning. When I got in, he told me he wanted me to go along out to Twenty-eighth street.

Q. That was the next day?

A. Yes; that was on Friday. We two went down to the depot. The militia was gathered there. We stood there several hours. I think he came to the conclusion not to go out on that day. He told us we could go home again—would not go out before the next day. The next day I was out some place attending to some business in my district, and came back. He told me that the rest of the deputies were all out and they wanted men to go to Twenty-eighth street. That was the day before—that was on Friday, I think it was Friday—he attempted to raise a posse, I would not be certain. He said the rest of the deputies were all through town trying to get a posse to go and assist in making arrests, and told me he wanted me to go out and raise all the men I could—if I could find any, to bring them in. I went out and met a good many men that I knew, and some that I was not acquainted with, anymore than I knew their faces, and spoke to them about going out, and none of them would go.

Q. Where did you go to raise a posse?

A. I went around through the city.

Q. On what streets?

A. I believe all the time I was on Fifth street.

Q. What class of men did you ask to go?

A. Just any man at all that I thought there was any show of getting.

Q. Did you ask any of the business men?

A. I don't remember that I did.

Q. Who did you ask—anybody you met in the street?

A. Yes, sir.

Q. You didn't ask strangers, did you?

A. There are a great many men in the city that their faces are familiar, but I don't know their names.

Q. Any citizens?

A. Yes, sir; any citizens I met.

Q. What replies did you get.

A. Some of them stated they didn't want to have anything to do with fighting against the workingmen, other men said, damned if they wanted to go out there to get killed, and such replies as that.

Q. Did you demand—make a demand on them to go?

A. Yes, sir.

Q. And they absolutely refused?

A. They absolutely refused.

Q. What was done with those men that refused?

A. I never knew of anything being done to them.

Q. Was any report of it made to the court?

A. Not that I know of.

Q. Nor no arrests made?

A. No.

Q. State in what way the demand was made?

A. Well, sir, I just made a verbal demand.

Q. In what words?

A. I asked if they would go out, and assist in making arrests at Twenty-eighth street.

By Mr. Larrabee:

Q. Did you say to any of them that you commanded them as a peace officer—you demanded their assistance as a posse to assist in suppressing the riot?

A. No, sir; I believe I didn't.

Q. It was a mere request, then, and not a command?

A. I suppose it was.

Q. And they declined?

A. Yes, sir.

Q. Did you go outside of the city in search of men?

A. No, sir.

Q. Did you call upon professional men?

A. Yes, sir.

Q. What class of professional men?

A. Attorneys.

Q. Did you succeed in getting any?

A. They just laughed at me.

Q. Did you call on any physicians?

A. I believe not.

Q. Any dentists?

A. Not that I know of. We don't go to that class of men.

Q. I believe you cannot state anything but what has already been stated?

A. I believe not, sir. I have not heard——

Q. We have had a great many witnesses on that subject?

A. I don't think I can enlighten you any on that subject.

By Mr. Engelbert:

Q. The sheriff issued no proclamation?

A. Not that I know of.

By Mr. Lindsey:

Q. Did the sheriff go out himself, and command men to join him in putting down the riot?

A. I couldn't state that, whether he did or didn't. I was not in the office much. I was away in the morning, and when I came back, he requested me to go out.

Q. What were his directions to you?

A. His directions were to go out in town, and get all the men I could to assist in making arrests in Twenty-eighth street. He said there was three or four men there they had warrants for, and they expected trouble, and wanted a posse.

Q. Didn't tell you to make your demands, or what language to use, nor gave you no written summons.

A. Nothing more than what I have told you.

James H. Fife, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. Allegheny City.

Q. Brother of Sheriff Fife, of Allegheny county?

A. Yes, sir.

Q. Were you with your brother at any time during the riots of July last?

A. I was with him on Saturday.

Q. With him on Saturday?

A. Yes, sir; went with him from the Union depot up to Twenty-eighth street.

Q. What time did you meet him at the Union depot?

A. I think about two o'clock, as near as I can recollect.

Q. Go on and state what took place from that time on.

A. There was considerable delay, at least I thought so, before we made a start to go from the depot to Twenty-eighth street. There appeared to be a delay with the military. They had not all arrived at the one time, and those that had, had to have something to eat, before they were ready to go on. There appeared to be considerable delay. I think it was near four o'clock before a start was made from the depot—somewheres between three and four o'clock. The sheriff and I think seventeen assistants were in advance of the military, and marched up the railroad street in that way. I understood the object that we were taken for was to assist Constable Richardson in making some arrests. I understood that there was an order issued from court to arrest some ten or eleven of the ring-leaders of the strikers, and we were to assist Richardson in making the rescue, and the military, as I understood it at the time, was to protect us. I walked with my brother the greater part of the way. We went two by two, in advance of the military. We reached the neighborhood of Twenty-eighth street, and the crowd was so dense it was with difficulty that we could get through it. We worked our way on up to Twenty-eighth street. I stood about the center of the street for a considerable length of time, at Twenty-eighth street, where the railroad crosses. You have heard the statements made in regard to the disposition that was made of the

military there, and my own views are just the same. They were put into what is termed a hollow square, and then what followed after that——

Q. Did you find any of the men you went to arrest?

A. No, sir; my understanding before we started, and on the way there, and afterwards, was, that Mr. Pitcairn was to point out the men to this Constable Richardson, but I have never seen Mr. Pitcairn but once since, and that was before your honorable body, and I saw no men pointed out. There was no attempt made to arrest that I know of, and I think it was very well that it was so.

Q. When you got to a certain point, the crowd resisted your further progress?

A. It was an impossibility to get through, that was just about it. They were there in large numbers. In front of us appeared to be one dense mass of people, for a square or more, and on either side. Of course they gave away to the military, to a certain extent, up to Twenty-eighth street, and there the military halted, and appeared not able to go any further.

Q. When the hollow square was formed, where was the sheriff's posse?

A. The sheriff was just—the last place I saw him was just at what we would call the corner of this hollow square, on the left hand side as you go up. His posse was—the principal part of them—right in front among the crowd—immediately in front. I know that was my position, and there was several others, I noticed, that went with us, that were within a few feet of me at the time the order to charge bayonets was made. I was, perhaps, no further than to that wall, [indicating about fifteen feet,] from where I am sitting to where the charge was made.

Q. Was any attack made upon the sheriff's posse?

A. None that I know of. I was looking for it; but there was nothing of the kind made. We were distinguished by a badge, so that we could have been known by any person.

Q. Did the sheriff say anything to the crowd?

A. He tried to; but the noise was so great I don't think he was heard, only by a very few in the immediate neighborhood.

Q. What did he say?

A. I don't know really what he did say. I could see that he was talking; but I don't know what he did say. He was perhaps twenty (20) feet from me.

Q. Was any attack made on the military by the crowd?

A. Yes; I presume you gentlemen were up there and can understand me. Just where Twenty-eighth street crosses the railroad there is a road which leads diagonally up the hill to the hospital. Just where that road connects with Twenty-eighth street there was a gate that was hung to close up that road. That gate was swung back, about two parts that way, and here was a pile of stones behind it—between it and this fence. There were two men standing behind that gate, and from the time that these men attempted to make a charge, these men commenced throwing stones at the military.

By Senator Yutzy:

Q. The stones came from the right and front of the military?

A. Yes; and there was quite a number of pieces of coal and other missiles thrown from the front or from this side here. These two men that threw them were behind this gate.

Q. This gate is east of the street, isn't it—Twenty-eighth street?

A. East of the street; it is to close that road that runs up the hill to the hospital.

By Mr. Larrabee:

Q. They commenced throwing when the military got in reach?

A. No, sir; not until the time the charge of bayonets was made.

By Senator Yutzy:

Q. Where was it on Twenty-eighth street?

A. Just at the edge of it.

Q. Just reaching the street?

A. Yes, sir. I saw the two soldiers that were struck with missiles. One of them was knocked down. He got up in a minute. When he dropped his cap had dropped off, and when he got up he held his gun in his left hand this way, butt on the street, and he was wiping his face so, [indicating] it was bleeding very profusely. The other one didn't fall; he was struck some place about the shoulder. These are the only two that I saw that I knew to be struck, and it was over in that neighborhood where these two were struck that the firing commenced, the firing was in that direction, over towards the hill. I didn't see any stone thrown immediately in front, but there was coal and other missiles—pieces of sticks and things of that kind.

By Mr. Lindsey:

Q. Have you any new facts to communicate to us that have not been gone through?

A. I don't know that I have, unless there will be some question occurring to you.

Q. Do you know what efforts were made by the mayor to suppress the riots?

A. I know nothing about that, only from hearsay.

Q. You live in Allegheny City?

A. Yes; I live in Allegheny City. I live on Anderson street—that is, at the far end of the bridge.

Q. Was there any riot over there?

A. We didn't permit it over there.

Q. Was there any strike?

A. Yes; there was a strike, and the railroad, as I understood it, and to all appearance, was in the possession of the strikers. There was no destruction of property.

Q. How large a crowd of strikers was together at any one time?

A. At one time, I suppose, I saw two or three or four hundred together at the outer depot.

Q. What day was that?

A. That was on Sunday. They didn't appear to destroy any property, everything appeared to be just at a stand-still. There was men standing talking, and didn't appear to molest anybody.

Q. What preparations were made by the city authorities of Allegheny City, to protect themselves and to keep down the riot?

A. Meetings of the citizens were called at the public square—the mayor's office—and of course there was a great deal of talk like there is at all these kind of meetings, and a good many propositions made, but the one that was adopted, was, that they should organize the citizens into a military force, and did it, so that General Lesieur—General Lesieur was the colonel of the round-head regiment during the late trouble. He is now a practicing physician in Allegheny City.

Q. What time was it organized?

A. Sunday afternoon or Monday afternoon, the time of the troublest times, anyhow.

By Mr. Lindsey:

Q. Go on?

A. To let you know a part of what was done, I live adjacent to the bridge. There was a piece of artillery planted there, and sixteen men, armed with

muskets, stood there as a guard for a week, every night, and I was informed it was so down at the other bridges, and the street cars that run over that line, many of them, were stopped just at the end of the bridge, and one of these military would look in to see who was in. There was persons coming, as I understood, from a distance here, roughs and rowdies, &c., and the object was that they shouldn't come in Allegheny City—they had to go back on this side.

Q. How long did that crowd continue there at the outer depot—of strikers?

A. I don't know the length of time it continued; there was more or less of them there for several days, until the thing got settled.

Q. What was done by the mayor and his subordinates prior to the citizens' meeting in Allegheny City—Mayor Philips?

A. Well, I don't know precisely what was done, it is only from hearsay, and that, of course, is not evidence.

By Senator Yutzy:

Q. Was this meeting called by the mayor?

A. Called by the mayor, as I understood.

Q. Organized a force?

A. Yes, sir. I don't know the number, but the number is quite small, compared with this city. I saw myself, on Sabbath day, a policeman stop two persons that were carrying stuff away, that afternoon, they had got from some of the cars here. It was plunder. They stopped them and took them with them, I presume to the lock-up. I don't know, but I suppose so.

Q. Plunder and all?

A. Plunder and all. A question has been raised here frequently about who gave orders to fire up there. I think I was in a position that I would have known.

Q. That is, at Twenty-eighth street?

A. Yes; I heard no order given by any one, and during the time the firing was in progress, I saw a man that was represented, that I understood to be General Brinton, trying, apparently, to stop it. He was using his sword this way, [indicating,] under their guns, to get them to shoot up or quit. That was the idea conveyed to my mind.

Q. I would like to ask you another question or two in relation to this citizens' meeting in Allegheny City. Were the people generally in Allegheny City unwilling to respond, or did they willingly respond to the call of the mayor, and organize themselves into a military organization.

A. I think so—all that was needed. I think there was no difficulty there.

Q. How large was the response—was the meeting in response to the mayor's call?

A. This thing of fixing numbers is kind of guess work. I don't know. There was two or three hundred, perhaps, when I saw them. I think, if you would call Mayor Philips, he could give you that perhaps better than I could.

Q. Was there anybody who refused, to your knowledge?

A. I don't know of a single one that refused in Allegheny City—I don't know of any.

By Senator Yutzy:

Q. Did Mayor Philips take active measures to raise a force for the purpose of preventing or suppressing violence and riot?

A. I so understood that he did.

Q. He did his duty well?

A. I think so; and the evidence of it is, that he had his men at these bridges, guarding them, and keeping them there for a week, a piece of artillery and twelve or sixteen men at every bridge.

George Olnhausen, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. Over on the south side, on Carson street.

Q. What is your business?

A. Window glass business.

Q. Were you a member of any of the military companies?

A. Yes; pay-master of the Fourteenth regiment.

Q. On the ground or scene of the riots?

A. Yes; I was there.

Q. What day first?

A. It was on Saturday. We started on Friday afternoon, or rather Saturday morning, to go up there, about four or five o'clock.

Q. Were you there before the arrival of the Philadelphia troops?

A. Yes; we arrived about three or four o'clock.

Q. Colonel Gray and the entire Fourteenth regiment?

A. Yes, sir.

Q. Was he there on Saturday?

A. Yes, sir.

Q. In command of his regiment?

A. Yes, sir.

Q. How many men did he have on arrival?

A. On arrival we had twenty-seven officers and one hundred and seventy-eight men on Twenty-eighth street.

Q. How long were you on duty there before the arrival of General Brinton and his troops.

A. I think when we got there it was between four and five o'clock, and stayed there until Brinton came. It was, I think, perhaps two or three o'clock; I think somewhere near that time.

Q. Was anything said or done by Colonel Gray about clearing the track before the arrival of General Brinton?

A. Yes. In the morning when we first got there there was a little excitement—it didn't amount to really very much, but by ten or eleven or twelve o'clock, one, &c., it got on worse all the time; that is, there was a great many more men got there, and Colonel Gray sent me down—I think it was between two and three o'clock—to give Colonel Hartley Howard his compliments, and said, if they would cooperate with them he would clean that track. Colonel Howard acknowledged the compliments, and said he didn't think it was proper to do that.

Q. What regiment did Colonel Gray command?

A. The Nineteenth.

Q. Where was he stationed then?

A. He was laying just about this gate Mr. Fife spoke about here a little while ago.

Q. Whereabouts was the Fourteenth regiment then?

A. Right up on the hill.

Q. Commanding the hill?

A. Commanding the hill—that is, we were laying there. I went and reported the matter to the colonel, that Colonel Howard didn't think it was justifiable

in doing that, and that ended the matter.

Q. Which officer was senior in command then, Colonel Gray or Colonel Howard?

A. Colonel Gray is senior in command. Colonel Gray sent down that word. I don't suppose that he meant or wanted to shoot or use any extra force, just simply wanted to get them to go away from the track; at least that is my impression.

By Senator Yutzy:

Q. Was the message in the form of an order to Colonel Howard from Colonel Gray?

A. No, sir; I don't think it was in the form of an order. Just simply stating, that, if he would cooperate, they would clear the track together. At that time we had four or five companies, and just as soon as one company would march by they would rush in again, and kept on that way all the time, from ten o'clock until the afternoon. It was very annoying, because the men were very nearly played out.

Q. You may state what condition Colonel Gray's regiment was in, as to obeying orders, and whether it was disposed to obey orders.

A. The majority of the men were. Of course, there were some few that were in sympathy with the strikers. In fact, almost everybody in Pittsburgh was in sympathy with the strikers.

Q. How many of Colonel Gray's regiment was in sympathy with the strikers?

A. I should judge there would be about thirty-two.

Q. That couldn't be depended upon in case of an attack on the mob?

A. I suppose there might not have been that many, not quite thirty-two you couldn't depend on, but there was thirty-two missing that night, and I didn't hear of any of them being shot, and I suppose they must have gone away.

Q. They skulked, in military parlance?

A. Yes; that was generally the case. I would also state, that when we were disbanded at the Union depot we had twenty-eight officers and one hundred and forty-six men. We had one officer more.

Q. When were you disbanded?

A. It was about eleven o'clock Saturday afternoon.

Q. For what purpose—why did you disband?

A. So far as I can learn, as General Brinton gave the orders to Colonel Gray, Colonel Gray gave it to the officers and his men, and he disbanded—staff officers.

Q. I would like the general to explain what he means by disband.

A. He meant that we should go to our homes.

By Mr. Lindsey:

Q. Broke ranks for the evening?

A. Yes, sir.

Q. Were you re-assembled the next morning?

A. No, sir; we didn't re-assemble the next morning. I was over, and a great many of the other officers were over, to see what we could do, but we didn't re-assemble.

Q. To whom did you communicate these facts?

A. I communicated them to a number of persons.

By Senator Clark:

Q. Will you give the names of those persons?

A. I want to state this fact right here, that I understand this committee to be appointed for the purpose of investigating this transaction. Now, with all due respect to the committee, my idea is, that the committee is appointed for the purpose of investigating the facts.

Q. As a regiment you were not re-organized until Monday morning?

A. Yes, sir; a great many of the officers were there, and I suppose a great many of the men. Everything was so exciting we could not get them together.

Q. While you were on the hill, during Saturday, did your soldiers mingle among the rioters, or did they preserve order?

A. They preserved order. There was a few that would get leave of absence to go down street for something or other—very few.

Q. Did they remain in ranks.

A. Remained in ranks.

Q. You staid there until what hour?

A. We all remained there until the Philadelphia regiments were coming up there, and I got instructions from Colonel Grey to have the troops got ready to move.

Q. At what time did you abandon the hill?

A. I think we received orders to move down there about six o'clock. I guess, perhaps, a little later than that—perhaps a little earlier—I am not positive. We marched down there.

Q. Down where?

A. Down the hill, on to the railroad track at Twenty-eighth street, and then down to the transfer depot, and stayed there until eleven o'clock, or near eleven—half past ten, anyway.

Q. Did you hold your position on the hill until six o'clock——

Senator Yutzy: On Saturday, at the time of the firing?

A. Yes, sir.

By Mr. Lindsey:

Q. Did the Nineteenth regiment remain on the hill?

A. They were laying below us at the gate.

Q. Did they hold their position until six o'clock?

A. There was some of them did, and some of them did not.

Q. How far is the transfer depot from the round-house.

A. I think the transfer depot is on Sixteenth street—six or eight blocks.

Q. Where were the mob when you marched down to the transfer depot?

A. They were mostly all down along the railroad, at Twenty-eighth street.

Q. Did you meet with any resistance in marching down?

A. No, sir.

Q. Where were they when you disbanded, at eleven o'clock?

A. They were most everywhere then, because, it seemed to me, that all the workmen from the south side, Allegheny City, Sharpsburg, and all from the country had come in here, and so far as I could learn, they were going to clean out the Philadelphia troops.

Q. Had the burning commenced when you disbanded?

A. No, sir; not that I know of. When I got home, I could see over that they were burning—that was about twelve o'clock.

By Senator Yutzy:

Q. Your regiment was resting on the hill, in good order. What position did they have during the day. Were they at rest—stacked arms?

A. Yes, sir; stacked arms, and we had a guard there.

Q. Your men laid close by the arms?

A. Close by the arms.

Q. When you broke ranks down by the Union depot, did you have orders to re-assemble at any time?

A. No, sir; we did not.

Q. Who gave the order to break ranks?

A. Colonel Grey gave orders to his regiment. So far as I could learn, General Brown gave him the orders.

Q. Did they take their arms to the armory, or did they go away, each one taking his own gun home with him?

A. Yes, sir; we were not marched to the armory.

Q. Broke ranks right there at the depot?

A. Yes, sir.

Q. Was there any mob there at the depot?

A. Yes, sir; they were running all up and down the street, yelling and shouting.

By Mr. Larrabee:

Q. Was there any effort made by your regiment on the 19th to clear the crossing, or keep it clear that day?

A. We were there from three or four o'clock in the morning and until the Philadelphians came in that day, and kept it clear.

Q. How happened there to be such a large——

A. That is to say, suppose this was the track. We would go and clear this off, and then they would get in behind us, shouting and howling and cursing. It kept three or four companies going there all day.

Q. Did you undertake to hold possession of the crossing of the track any distance there at the crossing, or merely clear it off and fall back?

A. Then they would rush in behind us, and we would have to send another company.

Q. How happened there to be such a large crowd on the crossing at the time the Philadelphia troops marched up?

A. I think our regiment had orders—that is the companies—had orders to fall back and let the Philadelphians in. Our orders were, so far as I can remember, that we were to go on a train, and go out.

Q. How long previous to the Philadelphia troops coming up there had you fallen back?

A. I suppose it was about a minute.

Q. Some testify that the mob was mixed up with the troops there near the crossing, and on the side of the hill?

A. They were only mixed up in that way, just as I told you.

By Senator Yutzy:

Q. The troops were mixed in the crowd?

A. Yes; mixing in the crowd.

By Mr. Larrabee:

Q. How; were they on good terms—the crowd and the troops?

A. They didn't say anything. Some of them said they were going to clean out the militia, we didn't take any notice of that at all.

Q. No particular hard feeling by the crowd against your troops?

A. No, sir.

Q. They showed considerable feeling against the Philadelphia troops—it was supposed that they would clear the crossing there.

A. They were, of course, from Philadelphia, and they didn't like them—that was about it.

Q. Could not the force you had there—these two regiments—could not that crossing there, and the immediate neighborhood, been kept clear entirely by the force you had there?

A. I think they could. That is very hard to tell. We didn't know what might have happened.

Q. Were the efforts of the officers directed in that way—to keep it clear?

A. Yes; of course some of our men were in sympathy with the strikers, but if we were to take away two or three regiments, away to different cities or somewhere out away from Pittsburgh, I think they could pretty nearly clean out a city of this size.

Q. You don't think they were as firm in their duty as they would have been in some other city?

A. Yes.

Q. They were a little more tender of the people they were dealing with?

A. Yes; they were friends and relatives.

By Senator Yutzy:

Q. Fraternize with the people—with the crowd?

A. I think if you would take the Fourteenth regiment out, in fact, even in another riot, they would do their duty. All of our officers were men in the army during the war except one or two. It is like all these other things that are unexpected, and like in the war at first; they were all demoralized, and didn't stand up as well as they did in the last part of the war.

Q. Was the military at any time deployed on the railroad track, and any attempt made to drive them off the track in both directions?

A. That was done all the time—they were kept off most of the time.

Q. Were the military deployed along the track of the railroad?

A. Yes; marched back and forward.

Q. Were they stationed with a skirmish line?

A. Not that I know of.

Q. In your opinion, as a military man, couldn't that mob or crowd have been kept off the track by deploying the men along the track as a skirmish line, or, say two skirmish lines, one on each side of the track?

A. No, sir; I don't think it could, unless you did some shooting.

By Mr. Lindsey:

Q. Could it have been done by doing some shooting?

A. If they had shot everybody that came they couldn't have got on.

Q. Could a skirmish line have maintained its position and kept the crowd back?

A. I don't think they could by shooting, for the reason men, women, and children would come in, and they couldn't have kept it clear—not kept the whole track clear.

By Senator Yutzy:

Q. The reason I asked him that, was that he said the companies marched over on the railroad and they would fall in behind. I want to know if the military had been deployed with two skirmish lines, why they couldn't have kept the crowd away?

A. There was too many people.

Q. Were the people armed?

A. No, sir; not that I saw. They all might have had revolvers and such things as that, but they had no guns.

Q. Did all that crowd appear to be violent and riotous, or were there a great many there that were simply there out of curiosity?

A. Yes; there was a great many out of curiosity—three or four that were working for me.

Q. How many hundred men do you think there were there that were riotous or disposed to be lawless?

A. I should judge—of course it is a pretty hard thing to tell—there was a great many, indeed—two thousand, anyhow.

Q. What proportion of that crowd were disposed to be riotous or lawless?

A. There might have been five hundred in the first place, but after the shooting commenced all were or pretty nearly all.

By Mr. Dewees:

Q. At any time before the Philadelphia troops came, could you have or could the military have dispersed the mob at any time?

A. I think they could, yes.

James I. Bennett, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. State where you reside, Mr. Bennett?

A. Allegheny city is my residence.

Q. Where is your business?

A. In Pittsburgh.

Q. And what is it?

A. Manufacturing of iron nails, &c.

Q. Been engaged in the business a long time?

A. Twenty years or more. About twenty years.

Q. What is your firm name?

A. Graff, Bennett & Co.

Q. Were you in the city during the riots of July last?

A. I was.

Q. Just give us a statement of what you saw, the hour and date commencing

A. I was not in the riots. I was in the city, but I was not up to the depot until Sunday—until Sunday afternoon. I didn't feel very much concerned. Saturday is generally a busy day with us, but Saturday afternoon I became anxious about the matter. I had been accustomed to be in a good many of these quarrels with laboring men, and supposed the thing would be adjusted; but on coming home on Saturday evening, from what I heard, learned of the condition of affairs, I became considerably alarmed and very much concerned. I live down that side of the river at my residence, about three miles. After going home, I hitched up my buggy, and came back to the city. When I came into the city, the crowd was just coming, I think, out of Bowers' store. They had cleaned out a gun store—hardware store, on Third

street. The first intimation I had of that was seeing a man with a gun, and I asked him what was going on. I was satisfied that he had no business with the gun. He told me there was a large crowd of men had been into Bowers' store and broken it open and taken all the arms that they could get there, and that they were marching then to the railroad. At one point I turned around my horse and buggy and drove back to Mr. Thaw's house, which is on Fifth street. I went to Mr. Thaw's house and I called him out, and we talked about the matter. Thaw didn't appear to be alarmed; he said he was going to his business. He thought there was no danger. I went up again to Third street and Fifth street, and was satisfied in my mind that there was a great deal of trouble, or was likely to be a great deal, and I went back to Mr. Thaw. He spoke of the military coming in, and he thought there was enough to protect. I advised him not to go up to the offices of the Fort Wayne road at all. I think I went back to Mr. Thaw's house the third time, and he then appeared to be very much more concerned and alarmed this time. I think one of his neighbors came down that had been up there. I left him then, and on my way home, in Allegheny city, I went to Mr. McCullough's house. We sat until perhaps eleven o'clock, talking together. Mr. McCullough at first felt entirely satisfied that the military would be sufficient to prevent any serious damage. I felt very much concerned, and advised him to be very careful and not put himself in the way of danger or any trouble.

Q. Who is Mr. McCullough?

A. Mr. McCullough is vice president of the Pennsylvania Company. He is managing man of the Pennsylvania Company's lines.

By Senator Yutzy:

Q. I would like you to state what the Pennsylvania lines were?

A. The leased lines west of this.

Q. Pennsylvania Central?

A. Their offices are altogether; but they are connecting lines. I live in Allegheny city, and I felt concerned——

Q. What is Mr. McCollough's first name?

A. J. M. He told me there was a regiment coming up on the line of the road that night, and that there was a sufficient number of troops coming in that would prevent any trouble. He felt secure; but, as I said before, I did not. I told him that there was trouble certain ahead, and I felt very much concerned from what I could learn all around, that there was gathering into our city a very bad set of men, and it was hard to tell what the consequences might be. I left him, and started home about eleven o'clock, or perhaps a little after eleven. I got down to Strawberry lane, which is below the shops of the Fort Wayne road. I drove right into a crowd, I presume, of several thousand persons. I had come up that way that night, and there was no person there.

Q. The evening before?

A. That same evening. There were no parties there when I came up, and I drove in and called some of them to know what it meant. I was considerably taken aback, coming unexpected into it, and they told me they were waiting for a train of soldiers that were coming up. Three or four came out that knew me, and said, "Don't you go away;" says I, "Why?" Says he, "they have rifle pits just above there, and if the train comes in you will be in the line of their fire," and I was in sight of my house and my family was there, and I could see the situation, and drove rapidly past them, after inquiring what was going on there. When I came to the bridge crossing, perhaps, a quarter of a mile below there, as I drove up there, there appeared to be sentinels stationed along the line of the railroad across this bridge.

By Senator Yutzy:

Q. At what point was this?

A. A quarter of a mile below this place where they were waiting.

By Mr. Lindsey:

Q. On the line of the Fort Wayne and Chicago?

A. They were there patrolling the streets with their guns, as orderly as any soldiers. They were all very sober and polite men, nothing like rioters, and ladies from the adjoining neighborhood had come down to the bridge to see—that was the only place they could see anything—and about the time they expected the train in, these men had gone up to them and asked them to retire back behind the hill, lest a stray shot would reach them. There appeared to be a perfect organization.

Q. What bridge?

A. This was a bridge in Allegheny City, below the outer depot of the Fort Wayne.

Q. Bridge across the railroad?

A. Bridge across the railroad. There appeared to be an entirely perfect organization on that side of the river. They were armed, and were sober men. Some of them knew me—they all knew me—I could not name a great many of them, but most of them knew me.

Q. Were they railroad men—employés?

A. There were a great many of them employés. I was told by other persons they were employés. I could not tell certain, but I made an inquiry, and was told that a great many of those men were employés of the railroad company, and this organization appeared to me to be very perfect, and they were very orderly, and appeared to be very systematic. There was no fighting in this tremendous crowd above. The crowd was there, but they were orderly—no quarreling nor fighting going on.

Q. Were they all men that were in that crowd?

A. No; there was a great many boys, but the most of them were men. I think the great majority of them were men. I stayed there until about twelve o'clock at night, about half past twelve or one, and the report came down about the firing on this side, and the burning of the round-house, and the soldiers having been burned up. We were all very much alarmed. I could do nothing but stay at home, seeing the crowd there, and not knowing what

was coming, but in the morning I came to town—on Sunday morning. I stopped in Allegheny, and saw one or two gentlemen, and got them to go over with me. I went to Mr. Barr's office at the *Post*, but he was not there. He had been there, but had gone out to the outer depot of the Pennsylvania railroad. I went around and saw some other parties, and went down to the *Chronicle* office. Mr. Sieblich was there, and, I think, the *Dispatch* people. At the office there were posters out, one for a public meeting of the citizens at twelve o'clock—at half past twelve, at the old city hall, notices of which were then sent to the different churches, that there would be a citizens' meeting—to be read from the pulpits in that neighborhood. There was a large number of churches in the neighborhood. There were no citizens but what were extremely anxious to do anything and everything they could do, but they appeared to be paralyzed, and did not know what to do. The reports came in that the military had gone, and that the mob had everything in their own hands, and no one appeared to know just how things stood. That meeting came together, and they adjourned to the mayor's office. I understood that there was a reason for that: that the city hall then was used as an armory, and they had adjourned, as they did not think it was prudent to open that. Some gentlemen I was talking to had made a suggestion that we should go and see Bishop Tuigg, and some other parties who would go out, and see what persuasion would do, and there was no man that was more extensively known than Bishop Tuigg. He said he would do so, and they proposed to get another minister that he would nominate himself to go along with him. At our meeting in the mayor's office, the minister of the First church, Mr. Scoville, was at the meeting, and Mr. Scoville accompanied Bishop Tuigg. Mr. Parke and some other gentlemen went up. At this time the fire had got down—it had burned all the way down to the old market-house—that is a few squares above the depot. We went up, and he addressed these people.

By Senator Yutzy.

Q. Who addressed them?

A. Bishop Tuigg. He did everything he could to get these people to desist. I saw a few there that I knew of our own people, and these I do say were not engaged in burning. After that, we went up to try and find the engineers of the railroad—locomotive engineers. We went up to see them. We got some of the citizens to go to their houses and tell them that we would meet them. We went up there, and were not able to meet any, but two or three of them at a time came in, and Mr. Slagle remained there. Bishop Tuigg and the Reverend Scoville and I went over there to Allegheny City to see the officials of the Pennsylvania Company and Pennsylvania railroad. Mr. Cassatt was there, Mr. Thaw, Mr. McCullough, and their solicitor, Senator Scott. We talked with them upon the subject, but previous to that I had gone down to the Monongahela house, and had met Mr. Cassatt there, and I think Mr. Quay, and a number of gentlemen that were there. I took him in my buggy and took him across to Allegheny City.

Q. Mr. Cassatt?

A. And left him there with the other gentlemen connected with the railroad.

Q. What is Mr. Thaw's first name?

A. William Thaw.

Q. What is his official position?

A. He is also connected with the Pennsylvania Company, in charge of the leased lines of the Pennsylvania railroad.

Q. In what capacity?

A. I think he is vice president.

Q. Mr. Cassatt is connected with what road?

A. Connected with the Pennsylvania Central.

Q. And Mr. Thaw with the Pennsylvania?

A. Mr. Thaw with the Pennsylvania. Mr. Cassatt was at the Monongahela house, and these gentlemen had connection with the two roads running together. He said he would like to go over. I said I would take him over, and took him in my open buggy, which he did not appear to relish very well just at that moment, but really there was no danger. I went down and crossed the lower bridge, and over into the street where Mr. Layng is living. I do not think we saw fifty people. The people had gone up to the fire. Allegheny City was at that time as quiet as it is on any Sabbath day, outside of the immediate neighborhood of the depot. I met no person on Sunday who was not just as anxious as they could be to do anything and everything they could to put down the rebellion, as I called it, for as I have said, I never could recognize it as a riot or anything else than an uprising of the people. On our own side of the river it was comparative quietness, but these men were settled on having their own way. If they had not commenced it before, it was not likely that they could organize as quickly and as thoroughly as they had done.

By Mr. Lindsey:

Q. What was the result of the interview with Cassatt and McCullough and Thaw?

A. I think Bishop Tuigg asked them to make some concessions to those parties, which they declined to make. I think the bishop's idea was to have some little concession made, and the difficulty might be adjusted as between the men and them. That was declined on their part.

By Senator Yutzy:

Q. What reason did they give?

A. The reason, so far as I understood it at the time it was given, was this: That they would not make any arrangement with men that were in open rebellion against law, and everything of that kind—could not recognize anything of that kind.

Q. What did your committee do then?

A. We came back to the city again, and there was a meeting in the afternoon, and I was at the mayor's office again in the afternoon. The mayor appeared to be entirely powerless. He had no police to do anything with, that amounted to anything. After that we then went to work and organized a citizens' meeting, which was perfected on the next Monday morning, and everything was done by those men that could be done. I do not think I ever saw men work more earnestly in trying to protect the city, and railroad, and everything else.

By Mr. Lindsey:

Q. At whose instance was the citizens' meeting organized—who were the movers in it?

A. The first I recollect of it was the bulletin boards that were put out on Sunday—that was as soon as the citizens could be got together.

Q. What bulletin boards?

A. The bulletin boards of the *Post*, and, I think, the *Dispatch*, the *Commercial* and *Gazette*, and I think the *Chronicle* and *Leader*. They are nearly all in that neighborhood. I think Mr. Barr was at the organization of the meeting. He was at the meeting they had on Sunday and Monday morning. The citizens were called together again and adjourned until Monday morning. There were a good many of our leading manufacturers that were out of the city, their families were out in the country, and they had gone out on Saturday.

Q. How long did that crowd you speak of in Allegheny City, that you ran into on Saturday nights—how long had that crowd remained in force there?

A. They were there I think nearly all that night. They were away the next morning. When I came up the next morning they were not there, that is, there was no crowd in comparison to what had been there—perhaps not more than usual there.

Q. There were some there?

A. There were some few that were there. They had possession then of the trains.

By Senator Yutzy:

Q. The strikers had?

A. The strikers had possession of the trains on Sunday morning. They were in possession there at that time.

By Mr. Lindsey:

Q. How many were engaged in actual riot and arson out at Twenty-eighth street, when you were there with the bishop?

A. I do not think it was so far as Twenty-eighth street—it was within a few squares of the depot. It would be impossible for any one to say how many were actually engaged in it, but the whole railway connection, so far as you could see, was filled with people on both sides of it—the street on both sides of the railway track. The number that was engaged in it appeared to be but few compared with the great crowd that was there—very few.

Q. What class was the crowd that was there composed of?

A. The citizens you speak of along the street?

Q. Yes?

A. There appeared to be a general outpouring from the entire city—every person. They were attracted there from every place.

Q. By curiosity?

A. Yes, sir.

Q. They were lookers-on?

A. They were lookers-on.

Q. Was there a crowd of sympathizers around, immediately around these parties that were engaged in actual riot and arson?

A. There were some that were sympathizers, but so far as my own knowledge went, men of any standing expressed no sympathy with them. A great many of the workingmen felt that the railroad was oppressing these men, and they were in sympathy with them—that is not taking any part in it. There were a great many of our laboring men that were there in their Sunday clothes that were taking no part, but walking around, and a great many of them absolutely appeared to me to be alarmed and frightened. That paralyzed them—not doing anything. I begged of the men, for their own sakes, to try and stop that, and they felt as though their lives were at stake in doing it. They were afraid to say a word; did not know who was their friend or enemy. The men appeared to be going on in a quiet way without saying much to anybody, except this crowd that was before us—we were right in the immediate neighborhood of the burning—as rough a looking set of characters as I ever saw. I have no desire to get amongst such a crowd again very soon.

Q. Were these men laborers or men that you had ever seen in and about Pittsburgh?

A. I could not say that any I saw in the burning were men I ever saw before—could not say that they were men I ever saw before.

Q. Could you tell from their dress what class of people they were?

A. It would be very hard to tell that. I saw a great many of our own men walking around looking on that were employed with us at our mills.

By Senator Yutzy:

Q. Have you an extensive acquaintance with the laboring men?

A. I know a great many of them by sight, and where they work. At the two mills were employed six or seven hundred men, one way or another; and back and forwards I have become quite familiar with them, without

knowing their names. Indeed, all the laboring men about the mills, as a general rule they know me by sight, and I know a great many that have worked with us, that are not working with us now, among the better class of mill men and laboring men about the mills. I do not think they were engaged. We have some men engaged with us that are very bad men.

Q. What was it that alarmed you on Saturday and made you apprehensive of the future on Saturday afternoon?

A. What alarmed me first was this, when I began to make an inquiry—that our mills all stopped on Saturday from eleven to twelve o'clock, and the men about the mills had from one to two o'clock. They usually dressed, and generally we see them about in the city, and they are free from any employment. You can imagine the number of laboring men there are about the city; and that, as a rule, would apply to nearly all branches of manufacture.

Q. From your knowledge of the city and manufacturing establishments, give us an estimate of the number of laborers that would be out of employment and at leisure on Saturday afternoon.

A. I could not give you an estimate. I should say you could count it at thousands, though—thousands of men that would be unemployed at that time.

Q. Have you any idea of the number of thousands of laborers employed in and about Pittsburgh?

A. I could not give any correct estimate of that.

Q. Have you had experience before with strikers? Has there been strikes?

A. I have had a great deal to do with them at one time and another in our own business—men that we had employed ourselves.

Q. Is it a thing of very frequent occurrence—strikes among laboring men?

A. It is a common thing, but not so very frequent, these large strikes—what we would call large strikes, where the mill hands in all the mills strike. We frequently have difficulties of that kind in our own mill when it does not occur in any others—upon a particular branch of the business; something of that kind. We have had a number of very large strikes here in the city where all the rolling mills were stopped at one time.

Q. And it was your experience with the strikes, and knowing the number of men that would be idle Saturday afternoon, that made you apprehensive of the result?

A. That made me apprehensive; because these men were idle. They were all idle, and a great many of them are men. For instance, to explain more fully to you: A man comes along and he wants labor. We have our labor bosses. We do not inquire into his character, or anything else. If we need a man badly we put him in. He may be one of the worst men possible, and we may have quite a number of these men about our mills without knowing it. Tramps may come into our town, and if it is a time that labor is a little scarce, we might have fifty of them about us without knowing it—if they behave themselves just whilst they are employed. Bad men may come in and settle down upon us in that way.

Q. Had you been up at the scene of the riot before Sunday?

A. No, sir; I had not been there before that.

Q. Did you at any time during the riot have any talk with the rioters themselves, or the railroad employés, to ascertain their grievances, or the causes of the strike?

A. Not on the Pennsylvania railroad; but I did on the other side of the river, with them over there.

Q. Go on and give us the facts.

A. I had on the Fort Wayne and Chicago. I was among these men at the shops. I went over there one night or two in the shops with those men, talking to them, and they claimed that the railroad company had ground

them down; that their wages were such that they could not live. That was their real grievance, and they wanted their wages restored. And they complained of a large portion of the men unnecessarily being thrown out of employment by doubling up the trains. That was the complaint. They had their unions—there are unions existing among the laboring men in our mills. Puddlers have their unions, and we have what is called "The Amalgamated Iron Works Union," which embraces nearly all. The railroad employés had their unions. These unions are all in sympathy with each other, and as a rule, will aid each other. There would be a sympathy existing among these men of all classes, for they felt that they were oppressed by the railroad company; and, as I say, they had the sympathy of the other workingmen of nearly every class—there can be no question of that.

By Senator Yutzy:

Q. Are these unions secret organizations?

A. Yes, sir; I think they are all secret organizations. I have never known any that were not secret organizations. I was there with them, and after some time Mr. McCullough—I don't recollect what day it was—I was with Mr. McCullough, at his office, to get information. Telegraphs were coming there, and I went there to get the news—to see what was going on along the road. Mr. McCullough had not seen any of the men of his own road. I got a gentleman to go and see them and tell them that I thought there should be an interview between them and Mr. McCullough, and I arranged that interview. I think there was one engineer, a fireman, a brakeman, and a conductor—there were four, and they agreed to meet Mr. McCullough, and I went with them and made the arrangement to meet at B. F. Jones' house in Allegheny City. Mr. McCullough came there and met them, and Mr. Layng also. They had a conversation there.

Q. Give us the summary of that conversation?

A. They stated to Mr. McCullough what the grievances were with regard to what the hands wanted. A portion of them denied that they had anything to do with the strike.

Q. That was after the Sunday?

A. This was after the Sunday of the burning. Mr. McCullough talked with them, and the interview was a very pleasant one. Mr. McCullough said he would do all that he could to have everything made right and satisfactory to them whenever the property was once placed in their hands, but whilst they stood out and kept them from their property he could not do anything at all. I told these men—I said to them afterwards that Mr. McCullough was right in his position; that they were in violation of law, and they claimed they were there, and they were not interfering with anybody nor anything, nor had they purposed to interfere with anybody. I told them that their simple presence was enough to show that they were in sympathy with these people. They might almost as well be guilty as to be doing what they were doing. I went down and talked to a number of the engineers with regard to the matter. As a rule, they were very reticent and very careful about giving any expression at all.

Q. Did they claim a right to stop trains—interfere with trains?

A. Of course, they didn't to me. They were men of too good sense. They denied having anything to do with it. It was always somebody else. As I said, they were there giving countenance.

Q. How did these people define a strike?

A. They said this was not a strike of the engineers. This was a strike of the firemen—the firemen and brakemen, I believe. They threw it on them. I thought things were settled, and they were going to work. I came up and said, "Boys, how is it, I thought you were going to work" They said they were going to have a meeting, and asked me to go with them. I said I would go. They said they were going to have it then. I went down to the meeting in the Odd Fellows' Hall, and went in with them, and was there, and they denied that it was them solely. They said the engineers had as much to do with it as they had—just the same—and that they were encouraging them. I stated to them, then, that I would do all I could to have their pay made right, but there was only one way to do it, that I could see, and that was to report

themselves ready for work, and take their positions, and after the road was once running, and in order, then the citizens would see to it that their case was properly represented, and that they would be more likely to get their rights in that way than in any other.

By Senator Yutzy:

Q. At this time they had possession of the railroad property?

A. They disclaimed having possession of the property. They would not admit that fact. They appeared to understand that that was in violation of the law.

Q. Was that the fact?

A. This was the fact—there was no doubt of that. You could not get any of them to admit it, though.

Q. Did they understand that they had no right to interfere with the running of trains, or with any other employé who desired to work?

A. They denied interfering with any employé. There never was a man yet that said he interfered with any one—never got an admission of that kind from any one. They said if a man wanted to go to work, there was his engine. At the same time, Mr. Layng, superintendent of the road, whilst he was but a few squares from the depot, I think he didn't care about going over to the railroad at that time, I met them the same day, and they went and reported themselves to the officers at the outer depot, and went to work.

Q. From the interviews that you had with the railroad employés, what did you gather as being the cause—the real cause of the strike?

A. From all I could gather from the employés in one way or another, my impression is that it was an organization. That perhaps the strike was a little sooner than was intended. It was a regular organization, intending to make a general strike throughout the whole country at the same time, and it was not the intention to be commenced at Pittsburgh. I think it was all over our country. We might call it an insurrection of these people to take possession

and enforce their demands on the people. They then knew that the other labor organizations were in sympathy with them.

Q. What led you to that conclusion?

A. From the fact that these uprisings at Fort Wayne and Chicago and St. Louis, and on the line of the Baltimore and Ohio and Altoona and Harrisburg and Philadelphia. If it had been of an ordinary character, it would have had no influence, except where it originated.

Q. Did you ascertain from the men that there was any communication between the rioters here and the rioters at the other places you have mentioned?

A. I think one told me that they were in possession of the telegraph lines, and knew all that was going on, and one stated to me at one time something like this: He says, "We knew what was going on, because one of the men with us is an operator, who stood outside of the window, and he could hear the instrument and could tell us what was going over the line." I think they had possession of the telegraph line, and a good many were operators.

Q. He told you they knew what was going on—that was between the authorities, &c., in reference to the matter; but did he say that they had any communication through the rioters themselves by telegraph?

A. No; I do not know that any one admitted anything of the kind. They were very careful in making any admissions. These men you will find, so far as the law was concerned, they really understood that as well as any other class of men, where they are liable and where they are not.

Q. The strikes at Fort Wayne and Chicago and Altoona and Philadelphia that you have mentioned, were not until after the strike here—were they?

A. I think it was almost simultaneous—it was very nearly the same time—on the Sunday following right along—immediately on the heels of it, and I should think it was all during two or three days.

Q. Do you know what days the strike was at its height in Chicago?

A. No.

Q. Nor Fort Wayne?

A. I have no recollection now of just when this was, for I took no note of that.

Q. Nor in Philadelphia?

A. Nor in Philadelphia. I think it was unfortunate that they attempted to start these trains out—these double-headers here on Saturday.

By Mr. Yutzy:

Q. Why?

A. Because there were so many men loose—the laboring men of our town—you may say that certainly four fifths of the laboring men were unemployed after twelve or one o'clock, and that is the best reason I could give you for it. If I was going to do anything to a crowd, I should have postponed it until these men were at work. I think it was unfortunate, because, as I stated before, we all knew of the existence of these organizations, and we knew that these men that were in these organizations were all in sympathy, the one with the other.

By Mr. Lindsey:

Q. Was the fact that there would be so large a number of unemployed men on Saturday afternoon, known to the railroad officers?

A. I do not know that of my own knowledge. Mr. James Park, I think, told me that he had remonstrated with some of the railroad officials—I think he had spoken to Mr. Cassatt on the subject.

Q. Did you have any conversation?

A. I had no conversation on the subject, because I was engaged and busy on Saturday, and was not alarmed in regard to this. Mr. Park's manufacturing establishment was in the immediate vicinity of the trouble, and you might

say he was in it. He was located right in it, and he was there, and I think what I say in regard to that, will be the testimony of every manufacturer in the city. I believe if the thing had been left until Monday or Tuesday, that the probabilities are that men would be generally about their employment at one thing or another, that there might have been no burning here at all. We might have had trouble and loss of life, and things of that kind. Why I say I think there was an organization, when I went home on Saturday night, coming up after dark, they were expecting this train in. These men certainly knew that train was coming with soldiers, and they were prepared to meet them. They were orderly—a quarter of a mile below, at the bridge—there appeared to be entirely too much order for a riot. When there is a riot, they generally do things up very quickly, without regard to who is in the way. These men were orderly and systematic.

By Senator Yutzy:

Q. This train you speak of—was that train from Erie?

A. I think that was the Erie train. Mr. McCullough told me he expected that train in. I was informed that they had no ammunition or anything of that kind.

Q. These men you conversed with gave as a reason for their strike that the wages were so low they could not live?

A. That was the general complaint.

Q. Do you know what they were actually getting?

A. I did know, and I had it from the railroad officials—I had it from them, but I have forgotten what it was.

Q. Were any of them getting less than a dollar a day—trainmen?

A. I think they were paid by the trip, but I do not recollect that any of them were getting less than that. I would not speak positively in regard to that. It may be possible. I have a memorandum of that in my pocket-book. I never expected to be called before a committee, or I would have saved some of

these things that I had. It may be I have something here that will enable me to answer that question.

Q. If you find it hereafter you can send it to us, and we can attach it to your testimony.

A. It was a copy of a telegraph—you asked me a question; it would have answered it. It was a copy of a telegraph I had sent to Mr. McCullough on the subject, and his reply to it, but I think that, supposing that the thing was ended, my impression is that I have destroyed it.

Q. Have you anything else to communicate, Mr. Bennett?

A. Nothing; but I would bear testimony to the fact that the citizens of Pittsburgh appeared to be anxious to do everything they could to put down this riot, and there was no sympathy with the rioters—none whatever.

Q. You had a good deal to do in raising the force of citizens to put down the riot?

A. I had, perhaps. The first move, I told you, was on Sunday. A good many of my most intimate acquaintances were among the rolling mills, and quite a large number of them were out of the city. I sent for Mr. Park.

Q. Did you meet with any opposition in your efforts to raise the men?

A. Not a single instance. Upon the contrary, every man I saw was anxious to do anything, and were willing and did go up there at the risk of their lives, to do everything they could do, and no man I met anywhere at all, among my own acquaintances, but what were ready to do anything they would deem in reason, to try to stop it; and I think it was stopped by the citizens at last. I was not present, but from what I heard afterwards, the citizens prevented the burning of the Fort Wayne depot.

Q. Was there any move by the citizens prior to Sunday morning?

A. Not that I know of. I have no knowledge of any—no recollection of any now. It was early Sunday morning that they set fire to things in the first

place, and the citizens appeared to be completely paralyzed. I saw men coming along, carrying provisions, bacon, hams, and articles that they had taken from the cars they had broken open—carrying them away back two or three miles into the country, and I saw them walking along the streets, and it appeared to me that people were afraid to say a word to them. They were alarmed—they did not know what to make of it. It appeared to come upon them like a clap of thunder—they were unprepared for it in any way. I never saw men labor more earnestly, and labor harder to try to do their whole duty than that citizens' committee did. It was through their individual efforts that there was an additional police, and it was by private subscription to pay these men, that they were put upon the force. Our city was in a helpless condition, and these bad men, of which we have a large number around the city—they knew exactly what the police force was, better than we did.

Q. Did you know the police force had been reduced in the city, and, if so, when were you informed of that fact?

A. I had no knowledge that our city was in so helpless a condition. I was amazed when I heard it.

Q. Was it known to the business men—I mean generally—that your city was in such a condition, in regard to the police force?

A. I do not think they generally understood the matter. They might have been under the impression that there was a reduction of police, but so few ———

Q. Was it the subject of conversation when it became known?

A. Of course it was, and the very moment it was discovered, they sought to apply the remedy by making contributions of money themselves, to have the force put on, and agreeing to pay for it.

Q. Did you have any talk with the mayor yourself in relation to that subject?

A. I did, at his office. He told me then that he had no power to do anything, but expressed a willingness and a desire to do anything he could, and I do

not think that any suggestion I made to him, he ever refused to do anything it was in his power to do.

Q. What day was that?

A. I had a conversation with him on Sunday, and again on Monday, and as I met him at different times, I would have a talk with the mayor.

Q. Was it known to you that the mayor had full authority and control over the police, to increase the number of police, or to call out—was it known to you that he had the same authority that the sheriff had in calling out the police?

A. No, sir; it was not.

Q. Did he make any proclamation calling for police?

A. He made some proclamation. I cannot tell you what it was—do not recollect what it was.

Q. Did you ever examine to see what powers are given to the mayor by your city charter?

A. I did not in regard to Allegheny City. After Sunday, I was more with Mayor Phillips, and more on that side than I was on this. I believe Colonel Scott telegraphed to me himself, and said that they would commence laying the tracks, if their men would be protected, and I went to Mr. Shinn and got him to send an answer to him that they would be, and I would lay the matter before the committee the next morning. Immediately on the committee convening, I brought the matter before them, and the committee answered Colonel Scott that they would be protected. I went out of the committee myself, and started up to meet Mr. Pitcairn at the office of Mr. Layng, and stated to Mr. Layng in regard to that telegram, and my own impression that they should put the men on to work to feel their way, and if they were interfered with to withdraw them, that I believed that before night would come that they would have more men than they would know what to do with, and that was the result. I spoke of being out on Sunday and not seeing any of the officials of the railroad at all. I think they did right. I do not think

it would have been prudent for them to be there. I advised those I knew to keep away. You could not tell to what extent this excitement would lead a man, nor you could not tell how bad men were. They might have been seriously injured, if not killed, if any one of them had gone into a crowd of that kind.

Q. Would the presence of the railroad officials have tended to exasperate the crowd, do you think?

A. Yes, sir. I don't think it would have been safe for them to have been there. I think it would have exasperated them.

Q. Where was Adjutant Latta during the day—Sunday?

A. I think he was at the Monongahela house, with Cassatt—I think he was there.

Q. Until what hour?

A. I was introduced to him when I took Mr. Cassatt across to Allegheny City. It must have been between eleven and twelve o'clock. I left him there, and I was not back to the Monongahela house after that. I learned they had gone down the river to Beaver. I think General Latta was along. There was a number of gentlemen there. Mr. Cassatt was anxious in regard to the soldiers that they had. I did not know the condition of them, nor did he—how these men that had come from Philadelphia were. He appeared to be under the impression that they had got out, and had neither provision nor ammunition, and I said that I could fix a way that they could have the supplies—that there were parties in Allegheny who would attend to that. I went down on Monday to Mr. Ray, and he sent them out provisions, and told me afterwards that they had removed their head-quarters, and he had followed them up to Blairsville, and had delivered them cooked provisions.

Q. Who is Mr. Ray?

A. He is a grocer on Liberty street.

Q. In Allegheny City?

A. No, sir; Pittsburgh.

Q. Would it have been prudent for the Adjutant General to have remained in the city during the day, Sunday?

A. To have gone into the crowd?

Q. Yes; or remained in the city?

A. I do not think there would have been a hair of his head harmed.

Q. Would it have been prudent for the other State officials?

A. If they had remained at the Monongahela house they would not have been disturbed.

Q. If the Adjutant General had gone to the scene of the riot, would he have been disturbed?

A. I think there would have been danger. Any man went in at the peril of his life—any officer went in single-handed, alone.

By Senator Yutzy:

Q. You have a very extensive knowledge of what transpired here during the riots. I want to know whether, in your opinion, there was a disposition on the part of the city and county authorities to protect property and to suppress the riot. If so, could they have done so?

A. I have not any doubt in my own mind, but the——

Q. Not the citizens. I am speaking of the city and county officials?

A. In regard to the county officials, I was not with them. So far as my knowledge goes, I was acquainted, at the time, from talking as I would with Mr. Barr, or Slagle, or any of the gentlemen, and I believe they were all anxious to try to prevent any loss of life or property, and do all that was in their power.

Q. And could they have done so, if they had made a vigorous effort to do so—protect the property and prevent the lawlessness?

A. After the riot got started they could not have done it. If we had the full force we would have only had about two hundred policemen, and they would not have been able to have done very much, and the sheriff could not have done very much by calling upon the people and telling them that he wanted them to stop. Nothing but imperiling their lives. They would keep away from him. I do not think he had much chance of doing anything.

Q. It is only a matter of opinion?

A. You could readily understand that those men, with the force that they could command, would be small in comparison. After the firing I have no doubt the report that there was ten or twenty killed, where there was one, did create a fearful excitement, and I do not think any sheriff of any county could have done anything at all that would have stopped it, after it had once got started as it had on Sunday morning.

By Mr. Englebert:

Q. Did you take any active steps prior to Saturday evening?

A. No, sir; I did not really feel very uneasy about the matter until Saturday afternoon, when I learned—I was not taking much interest in the matter, and I got very much this way—the railroad people, this was a matter they were tending to, but that there was going to be any riot—there might be some quarreling, fighting, or something of that kind, but I didn't expect there was going to be anything of the magnitude it was. On Saturday, I felt concerned about the matter, and the reason for being concerned was, that I knew that the manufacturing establishments were idle, and the men were off work, and that they were there, and if you have had anything to do with iron men, you know they are a class of men who are easily excited.

Q. You, as a business man, would have closed up all business at that time, under this state of excitement?

A. As a business man, when I found it was necessary to get the military in there, I would not have undertaken to have done that on Saturday afternoon. I would have waited until the men were employed on Monday, or Tuesday, and then there would not be the danger that there was in doing it on Saturday.

Q. The majority of men being off, of course there was great travel on the streets?

A. Yes, sir.

By Senator Yutzy:

Q. You felt satisfied and easy that there would not be any disturbance up to Saturday—why did you feel easy and satisfied that there would be no trouble up to Saturday?

A. I understood that the military were here, and that would intimidate them. I was tending to my own business, and really. I had not gone out at all to see what was going on on the railroad, although we have a mill opposite, within a mile, perhaps, of the outer depot, across the river, and I came back and forward and everything was quiet; but when I heard of the loss of life and of the firing, which, I think took place on Saturday, and the men coming across and going into the gun shops in the town, breaking them open and destroying them, then I felt that there was danger, because there is this fact: there is a large number of men that were through the war that are not afraid as those who have never smelled powder—they are not very much afraid of it, and they are brave men, and if you understood that there is danger, they say "we know," and you cannot do anything with them. The idea was this: The first I heard of it that they had shot into a crowd, killing men, women, and children indiscriminately. These men are men who are ready to believe anything of the kind, and they will believe what is said among themselves quicker than they would from you or me or anybody else on the outside. They were excited and exasperated, and then you cannot control them, but the men about our mills are not bad men, all of them. We have bad men there and they will get into the mills, but I do not think there is a better class

of men anywhere than in Pittsburgh. My own theory is, that these tramps along the line of the railroad had a knowledge of this strike, and might have been congregating in here for two weeks, and these men are always ready to apply the torch at any moment. They came in here and got into it. I think a great many of the railroad men had nothing to do, and had no idea whatever of getting anything but their wages—no idea of any loss of life or destruction of property; but when they got in there they had no control of this thing, and they did not know themselves whether the men that had been in the lodge room, perhaps, were with them or against them. The people were paralyzed at the magnitude of this thing.

By Senator Yutzy:

Q. You have a general acquaintance and knowledge of the manufacturing interests of this State. Is there a larger proportion of employés in the manufactories and mining in this vicinity than there is elsewhere in this State?

A. I think there is; I am not familiar with any place where the proportion is so large as it is just here in our city.

J. Howard Logan being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you live?

A. Lincoln avenue, Allegheny.

Q. What is your occupation?

A. I have a foundry in New Brighton. Doing business in Pittsburgh.

Q. State whether you were with Doctor Donnelly on Sunday, the 22d of July?

A. I went to the meeting at the old city hall, in Market street, four o'clock, Sunday afternoon, and joined the citizens' organization to go up and stop the riot and firing. We had great trouble getting arms. At first we went to the university, and failed to get them there. Then went down and got pick-handles from a hardware store on Wood street. After that we were marched up to the university again, but failed to get them, and from there we went to one of the armories of the Fourteenth regiment or Nineteenth, and failed to get any arms there. We marched back again to the university, and we got some old rusty muskets, with bayonets. There were plenty of men willing to go; but being marched around from one place to another they dropped off. We got these old muskets, and had about a hundred. We marched down to the mayor's office, and from there we went up Liberty street to Wood, right into the midst of the crowd, and attempted to form a line right across Liberty street, at the edge of the crowd; but we were surrounded, individually, and failed to do that. Doctor Donnelly, who was leading, seemed to have lost control of the men, and seemed to be very much excited. We stayed there about ten minutes without accomplishing anything, except having pistols at our heads all around, and nothing to defend ourselves with but these rusty muskets.

Q. Without any ammunition?

A. Without any ammunition or anything else. Probably one or two of the party, or a few of them, had revolvers, but the majority of us had not.

Q. What did you do then?

A. We got started, and about half of the company went out, and the balance of us turned around and came out then, feeling that we were whipped.

Q. Then you had not the means to cope—arms or weapons to cope with the crowd?

A. No, sir. There were a number lost their muskets in wrestling with the crowd, but they were willing to fight or do anything to hold on to them, but we were powerless because we had nothing to defend ourselves with.

By Senator Yutzy:

Q. Were the muskets wrenched from their hands?

A. In some cases they were.

Q. Did your men fight them, or use the bayonet?

A. Didn't use the bayonets. We held on to them, and pulled them away. It was very fortunate for us that there were no pistol shots fired, or we would all have been cut to pieces, because all the crowd were armed, and we were not.

Q. If you had had a bold, deliberate leader, and been well armed, could you have accomplished anything in the way of driving away the crowd?

A. We might have done something just at that place, but we did not have more than enough to protect that one spot which we were at.

Q. Where was that?

A. That was on Liberty street, just in front of the elevator.

Q. In front of the elevator?

A. Yes; down from the elevator.

Q. What time was it?

A. About six o'clock.

Q. Sunday evening?

A. Between five and six.

Q. Was there any trouble in raising a company of citizens at that time?

A. No, sir; there were more than we had arms for—more ready to go than we could get muskets for, and some, when we could get these imperfect muskets, were afraid to go into the crowd with them. When we came down from there we deposited what arms we had in the mayor's office, in charge

of a policeman there, and some of them scattered and went to the depot—the Duquesne depot—and others to the depots or upon the street, individually.

Q. What did you do Sunday night yourself?

A. I went over to Allegheny; found the citizens were organizing there and about starting out to guard the bridges. I went with a party to the railroad bridge and was there that night. I had a revolver with me then.

Q. The railroad bridge?

A. The railroad bridge across the Allegheny river at the Fort Wayne road.

Q. Was that well guarded by citizens?

A. There was about fifteen or twenty, armed with muskets and revolvers.

Q. What class of citizens?

A. There were several policemen and some officers and men from Allegheny.

Q. Were you molested during the night?

A. No, sir; the orders were from the mayor to stop every person coming over that bridge, and let no one pass. We turned a great many men coming over there—we turned them back, and made them go around to the other bridges.

Q. Allowed nobody to pass?

A. Allowed no person except a few whom the policemen recognized as living right near there, and were respectable people. Any person we didn't know we made them go back.

James I. Bennett, being recalled, testified as follows:

The Witness. Our city is surrounded by large mining interests, in which thousands of men are engaged, and they come in on the trains Saturday to do their marketing and other trading. When we learned of all this thing—of what was going on Sunday—they came in a distance of four or five or six miles, and perhaps there might have been thousands of these men that came in on Sunday and on Monday. The works were nearly all stopped, and these men were flowing in here in any number, and I think only for the organization that the citizens had themselves perfected on Monday, that I do not know what the consequences might have been later in the week, but they saw that there was a preparation to meet them, and the thing was stopped.

At this point the committee adjourned until to-morrow morning, at ten o'clock.

PITTSBURGH, *Thursday, February 21, 1878.*

The committee met, pursuant to adjournment, at ten o'clock, A.M., Mr. Lindsey in the chair, and continued the taking of testimony.

All members present except Senator Reyburn.

John H. Webster, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. Twenty-fourth ward, south side.

Q. What is your business?

A. Machinist.

Q. What firm are you at work for—Jones & Laughlin?

A. American Iron Works.

Q. Were you at work for them last July?

A. I have worked for them for over twelve years.

Q. Were you at the scene of the riots, near the Union depot, on Saturday?

A. No, sir.

Q. Were you on Saturday night?

A. No, sir.

Q. Were you on Sunday?

A. I was on a hill immediately above.

Q. On Sunday?

A. Yes; got there about ten o'clock. I suppose it was somewhere in the neighborhood of ten o'clock.

Q. That was your first appearance in the vicinity of the riots?

A. First appearance.

Q. How large a crowd was there, when you got there Sunday?

A. There was an immense crowd.

Q. Of what class of people was the crowd composed principally?

A. All classes.

Q. Were there railroad employés there?

A. I couldn't say whether there was or not.

Q. Were there mill men and factory men and employés in the shops about Pittsburgh there?

A. Not that I seen of upon the hill where I was. I don't know what was done on the track, I was away up top of the hill.

Q. How long did you remain up at the top of the hill?

A. I followed the firing down until the Union depot got fired, then it got too warm for me, and I came away.

Q. Were you down near the track when you followed the firing along?

A. I was up on the hill.

Q. Were you near the elevator?

A. Coming down I passed the elevator, and got on Liberty street, and the crowd made a rush, and came near knocking me down. I got down near the corner of Penn street and stayed there, and watched the Union depot burn.

Q. Did you have any conversation with those that were engaged in burning?

A. When I first made my way on the upper part of the hill, there was a number of young men lying on the ground under a fence, a tree, or something, and I asked one of them—he appeared to be lively, he was lying, kicking, and looked as though he was hard at work. Says I, "When is this thing going to stop?" Says he, "At the elevator." Says I, "You ain't gone that far." Says he, "Yes, that has got to come down, too;" and I left him, after talking a few minutes about that.

Q. Who was he?

A. I don't know who he was.

Q. Strangers?

A. Yes, sir.

Q. Where did you go?

A. I went on from there down to look at the firing, and see all that could be seen.

Q. When you arrived at the elevator, did you have any conversation with anybody there?

A. Oh, yes; had a conversation with almost everybody—talking to each other.

Q. Did you say that the elevator was going to be burned?

A. I told several parties what this party had told me on the hill, that he allowed it would come to the elevator, and I began to think there was a good deal of truth in it, because the Union depot was on fire.

Q. Did you see Daniel Corbus near the elevator?

A. I met him at the corner of Fifth and Fulton streets, and we walked down together. I told him what these parties had told me—they were going to burn down the elevator, that was a damn monopoly, too.

Q. Did you say to Daniel Corbus that the elevator had got to be burned—that it was a monopoly, and had got to be burned?

A. I didn't tell him that, because I was taking no active part in it.

Q. Did you tell him that the other party said it was a damn monopoly, and had got to come down.

A. Yes, sir. The railroad officials had stock in it, and they were death on railroads.

Q. You had no participation at all in what was going on?

A. No, sir; just went over to see the fire, and to see what was going on.

Q. How many were with this fellow that made this remark to you?

A. There was some four or five of them laying there, I think.

Q. Was this fellow intoxicated, did you think?

A. He appeared to be perfectly sober.

Q. What for a dressed man was he? How was he dressed?

A. From the appearance of him—he was not dressed any better than I am just at the present time—dirty.

Q. Did his dress indicate a railroad employé or a factory man?

A. I couldn't judge that from his dress. Couldn't say what he was by that—by his dress.

Q. He was dressed like a laboring man?

A. Yes; he was dressed like a workingman.

Q. What time did you leave the depot or elevator?

A. I left when I was standing on Liberty street. I left the time the Union depot fell.

Q. About what time in the afternoon was that?

A. Somewhere very near six o'clock.

Q. Did you go back again?

A. No, sir; stayed home all night. I overheard a couple of gentlemen saying that a committee had been talking to the crowd, and gotten the promise not to burn the elevator. I thought the firing had stopped there.

Irvin K. Campbell, being duly sworn, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. Ninth ward, Allegheny City.

Q. What is your occupation?

A. I am a foreman of the hinge factory of Lewis, Oliver & Philips.

Q. How long have you occupied that position?

A. About three years—possibly four. Between three and four.

Q. Were you near the scene of the riots any time during July last, in any of the days and nights?

A. I heard of the firing on the citizens about six o'clock, and I came up on what we call the Cleveland train, and got to Twenty-eighth street, probably at eight o'clock.

Q. What was?

A. That was on Saturday evening—the evening after the firing.

Q. Twenty-eighth street? What time?

A. It was probably half past eight o'clock.

Q. When you got there how much of a crowd did you find there?

A. There was not much of a crowd when I was there. The troops had gone into the round-house, and I inquired why they went in, and received no satisfactory answer. I supposed I was acquainted with some of the troops that went in, and inquired for Colonel Howard, of the Nineteenth. I was acquainted with Mr. Howard, and served in the same regiment in the army, and talked of going in and advising Colonel Howard to get out of the round-house, and was advised not to go in; that the men were scared enough to shoot any man.

Q. Who advised you this?

A. Alderman Conlan, of the Ninth ward, said they were scared bad enough to shoot any man. I came out—I just stepped—probably had one foot inside of the fence where you go into the round-house track—going into the round-house at Twenty-eighth street. I went down Liberty street, and there was two shots fired. I was with a gentleman named Joseph Steen, son-in-

law of Mr. Bown's, on Third street. I spoke then and said something about firing out there when there was no occasion for it. I don't mind what my conversation was, but kept on down the street, and heard no more firing until I got down a little ways, and I heard several rambling shots fired. At this time there was no organization, or any crowd to amount to anything. I had been up to the hospital in the meantime to see if there was anybody hurt that I knew. I formerly worked for the railroad company there, and was a little interested to see if there was anybody killed or wounded that I was acquainted with.

Q. Where were those shots fired from?

A. They were fired from one of the windows of what we call the round-house for passenger engines—the round-house this way. You might call it the Twenty-eighth street round-house.

Q. Were there any soldiers there?

A. I presume there was. I couldn't see from the outside.

Q. You didn't know whether they were soldiers or part of the mob?

A. I knew there were none of the mob in there at that time. They were soldiers I knew, but I did not see them.

Q. Was there any burning going on at that time?

A. No burning at that time. I think after I came from there down the street I heard burning talked of; and, if I recollect right, I heard it intimated before I left Twenty-eighth street. I think that was my reason for wishing to see Colonel Howard, to advise these men to come out.

Q. By whom did you hear it talked of?

A. I couldn't tell. Although I formerly worked on the railroad, I didn't see a man there that I was acquainted with.

Q. Was it the rioters that were talking about the burning?

A. At that time you couldn't tell who was rioters. They stood around in crowds of four, or five, or a dozen. The only active rioters I noticed was when the way passenger came in I seen probably five or six men that looked liked brakemen on the road run up to uncouple the engines, and the engineer, Tom Wilson, told them that the car behind him had one horse in, and asked them to let him take it on through—there was no ammunition, or provision, or anything of that kind. I listened to some of the arguments whether they would side-track the freight car or allow it to go through, and they finally told Wilson to back and they took the train into the Union depot.

Q. Mow long did you remain there?

A. I was in the vicinity of the crossing probably ten minutes—not long. The train moved down, and I started to go towards my home.

Q. What time did you get home?

A. I came down Penn street with this Mr. Steen, son-in-law of Mr. Bown's, and we heard of the trouble at Mr. Bown's hardware store, and we stopped there for a few minutes—we stopped there probably three quarters of an hour. I don't recollect, positively, how long, but when I left there I got over in Allegheny, and in time to make the late train, and got down to the Ninth ward. The train, at that time, left Allegheny sometime after eleven o'clock.

Q. When you got to Bown's store, had the rabble been in and ransacked things?

A. They had been in and ransacked things and had gone off. They had apparently taken things that were of no account at all, so far as the riot was concerned.

Q. Were there any rioters still around the store?

A. No rioters at all. The police were standing in front of the store and refused to let us in, and I explained that Mr. Steen was son-in-law of Mr. Bown's and wanted to see if the family was hurt.

Q. Did you see any police up at the crossing near the scene of the riots?

A. Not on Saturday afternoon.

Q. How many came up on the train from the Ninth ward of Allegheny City with you?

A. There was quite a number. The word came down that there had been firing up there, and parties killed and wounded—I could not tell positively how many I came up with—two parties with me.

Q. Did any of the men from your works come up?

A. Not that I know of—there was none came up with me.

Q. Were there any of the men at these works that came up and remained and participated, to your knowledge?

A. Not to my knowledge.

Q. Are you well acquainted with the laboring men about the city?

A. I am in the neighborhood in which I reside.

Q. Did you see any that you knew in that vicinity?

A. Not one—didn't see a man taking an active part in the riot that I knew. I was pretty well acquainted with both sides, and I thought that there was something strange about that—men that were supposed to be easy led by excitement of the kind—and I rather wondered at it. The only man I noticed making any resistance, was one man who said he was a son of a bitch from Brownstone.

Q. That is in the vicinity of the iron works?

A. On the south side. That was on Sunday, near the elevator.

Q. He was near the elevator?

A. Yes, sir.

Q. He was engaged in the riot?

A. He said he had been at it all night and all day, and was nearly done out, and at the time I seen him he had a keg—I forget whether it was wine or beer, but he was very liberal with it, giving it to any parties that wanted it, urging them to turn in and help, that he was tired.

Q. What time did you return on Sunday to the scene of the riot?

A. It might have been half past eight or nine. We could see the smoke from down where I lived. That was the first I knew of the burning, when I got up next morning, and came up to see what was burning. I got to Twentieth street about the time, or just before the police made their appearance there to stop the burning of cars.

Q. How far had the fire progressed towards the depot when you got there?

A. I am not positive the street, exactly, but it was in the neighborhood of Twentieth street.

Q. Was there any effort made by the police or any other parties to stop it there?

A. In the vicinity of Twentieth street, the police came along the wall that holds the embankment the tracks are laid on, and drove parties away from the cars. Just as the fire would catch a car, the rabble, composed of all parties, not rioters, but thieves or whatever you choose to call them, they would break into a car and commence carrying the things off—men, women, and children. The police drove the parties off the wall. Some of them fell down, and one, I noticed, got hurt, and, apparently, the police at that time had possession, and I thought it was going to stop, but in a short time I noticed smoke starting up below, further down, and the police went down that way.

Q. How many policemen were there?

A. I am not positive of the number, but there must have been twenty or thirty, the mayor at the head of the police.

Q. The mayor at the head of them?

A. That is my recollection. I am almost positive of that, because I know the mayor by sight when I see him.

Q. Did they succeed in clearing the track and driving them away from that point?

A. There was five or six tracks in that vicinity. They entirely cleared them on the side next to Liberty street, but there was at least six tracks there, and most of the tracks had trains laying on them. Smoke started over a little further amongst some of the other cars.

Q. Did the rioters make any resistance to the police?

A. Not any that I noticed. Some, according to their creed or nationality, held on longer to their goods.

Q. What nationality seemed to hold on the longest?

A. I must say that the Germans carried the heaviest loads. I noticed that, and commented on it coming up in a street car, that the Germans had the heaviest loads. I mean no disrespect to anybody.

By Mr. Larrabee:

Q. About what time was it that the police cleared the crowd off the wall?

A. It might have been half-past ten or eleven.

Q. On Sunday?

A. On Sunday, but I could not be positive; during the excitement there I was paying more attention to what I could see, and wondering what would turn up next.

By Mr. Lindsey:

Q. Did you remain there during the entire day?

A. I remained on the Pittsburgh side until probably six o'clock in the afternoon. I then heard they were organizing in Allegheny, and that is the side I lived on, and that there was likely to be trouble over there, and I went over to the other side. The elevator was partially burned down when I left the ground.

Q. Did you see any further efforts of the policemen after eleven o'clock to stop the riot and stop the fire?

A. After that time the police appeared to be scattered in squads. I did not see them in one body after that. I believe they were distributed around after that. I seen a few policemen after that, but not in a body. At the time I lost sight of the policemen I started to go up to see the condition of the round-house. From there I went up to Thirty-third street—I had formerly lived up in that neighborhood—and then down to what they call Lawrenceville, and back down to the Union depot in that direction. I will just say that I met Captain McMunn on Twenty-sixth street coming down, and inquired of him if there was any effort being made to stop it, and my recollection is that he said they had made a proposition to try and organize the employés and try to stop it, but it had not been entertained. I would not say that on oath, but I think so.

Q. Captain McMunn?

A. Yes; he was one of the strikers. Another employé standing looking at the engine in the morning was Robert Aitchison, known on the road as old Bobby Aitchison. He was lamenting about the destruction, and finding fault, and said it was wrong, and he told me he was sure the railroad men had nothing to do with it.

Q. What is Mr. Aitchison's first name?

A. Robert.

Q. That is the old man?

A. That is the old man. At the time I speak of seeing Aitchison, he was standing where he could see the engine he had formerly run—engine 281. I

was acquainted with him, and had fired the engine myself at one time. This act was rather impressed upon my memory more than any other things that occurred.

Q. Did you go close to the men that were engaged in the arson and riot during the day, Sunday, so as to ascertain who they were—that is, the leaders in the burning, I mean?

A. I could not recognize any man, but they were what I would call roughs—hard cases, desperate men, most of them. I was told that some, I think, were men that had been—I do not know what the best word is—proscribed, or whatever you choose to call it, been discharged from one railroad, and got a situation on another, and been discharged from there, by this last company receiving a letter. There are a great many men in this country now, that, if they are discharged on the Fort Wayne road, they come to the Pennsylvania railroad, and that company will discharge them, and give no reason for it. There are a great many of this kind in the country to-day, that are desperate men, ready to do anything at all. I have no doubt that some of the leaders in this movement were men of that kind, because the men that were engaged in the riot, were used to railroading, because they could not have run these cars in and burned the round-house as they did. If they had been men belonging to the Pennsylvania railroad, I would have recognized them. I was standing by the elevator when the firemen attempted to throw water on there. I was close by the hose when somebody cut the hose, and the water went over the crowd. I received some of it myself.

Q. When you got back to Allegheny City, you said they were organized there—how large was the crowd there?

A. It was probably six or half past, when I got back there. There was no complete organization—they were just gathering.

Q. At what point?

A. The center appeared to be, that I noticed, near the round-houses of the Fort Wayne road. I noticed parties there that were employés in the shops,

and probably there might have been some on the road, but some that I knew belonged to the shops.

Q. Did the crowd increase there?

A. The crowd increased there, but I did not stay there. I kept on down to my own home.

Q. Remained at home during the night—Sunday night?

A. I remained at home all night—was not outside.

Q. Monday morning did you return?

A. Monday morning I reported at the works, and we organized there, and I was placed in charge of a patrol or guard we had round the company's works.

Q. For protecting the works?

A. For protecting the works and do what we could for the whole neighborhood.

Q. Did your men all join in that organization?

A. Just what was asked. They did not make an indiscriminate thing of it. We just selected men and placed them on guard, and kept them on all night, and let them off in the morning, but were ready for a call at any time.

Q. Were the men all willing to unite in such a scheme of protection?

A. All that I seen—I heard no objection.

Q. If there is anything else you can enlighten us on state it? I do not think of any further question to ask.

A. I will just say that the first night we were on we arrested two different parties down there. The first one was on Pike street, Pittsburgh. We found him skulking around the works. I inquired what his business was, and he said he heard there was going to be fun down there, and he came down to

see it, and gave no excuse—said he didn't intend to do anything, but he heard there was going to be fun; and there was a lot of freight cars laying full of freight. We put the fear in him a little, and let him go—didn't keep him.

By Mr. Means:

Q. There were two arrested?

A. I arrested another—that was a boy about sixteen or eighteen. I found him laying in a metal pile. He gave the same excuse. He heard there was going to be fun down there, and he came down to see it. We found out that he lived a mile or two back in the country from our neighborhood.

Q. The first man lived in Pike street?

A. He said so. He gave his name there, and the young man, too.

Q. How far is that from the destruction of the property?

A. It is right in the vicinity—down a little. Pike street and Sixteenth street, I think that is in the vicinity of Zug's mill, out along Penn, between Penn and the river. The city was full of men at that time, that, while the excitement was up, they wanted to see what was going on. There was a great many outsiders that were tramps, I suppose. They appeared to be strangers. It appears this strike had been talked of for sometime, and the tramps appeared to understand it, and they appeared to be gathered in for the spoil.

By Senator Yutzy:

Q. Did you observe, during the time of this destruction, whether there were two separate classes of individuals, one destroying the property and breaking up cars, and the others carrying away?

A. I noticed that there were men destroying that appeared not to do it for personal gain. Just appeared fonder of destruction than anything else.

Q. Did you think that either of these two parties—the parties carrying away, and the parties breaking up the cars, were citizens?

A. The parties carrying away were citizens, but just appeared to be carrying away because it was there to be had, and wanted to get it.

Q. Those who broke up cars, did they appear to be citizens, too?

A. I could not say about that. The reason that I suppose these parties that carried away were citizens was because they were all making for different localities, and I have every reason to believe they were citizens from some of the things they were carrying away, such as rolling away barrels of flour, and rolling away barrels of lard.

Q. Looked as if they had a place to put it?

A. Yes, sir.

Q. Would these goods have been consumed by the fire, had they not been carried off?

A. That was the excuse which some of them gave for it. There were some that would be ashamed to steal that were carrying the things off.

Q. Because they were being destroyed by the fire?

A. Because they would be destroyed any way.

Q. You said you had no difficulty in getting citizens to volunteer and organize into bodies to assist in suppressing the riot or keeping the peace?

A. There was no riot in Allegheny.

Q. You said they were willing to organize?

A. They were very ready.

Q. Did the citizens generally express a willingness to go elsewhere, where there was riot or lawlessness besides in their own locality?

A. That question I do not think was brought up at all. I heard nothing of the kind mentioned. I know citizens of Allegheny, that they were in Pittsburgh, and took an active part in organizing to put down this riot.

Captain W. J. Glenn, being duly sworn, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. I reside at Mansfield, about five miles out of the city—west of the city.

Q. You belong to the National Guard?

A. Yes, sir.

Q. Captain of a company?

A. I command company K, of the Fourteenth regiment.

Q. When were you called upon—called out?

A. I received an order to report my company at head-quarters from Pittsburgh on the 20th day of July. I think was the date—on Friday.

Q. To report your company in Pittsburgh?

A. Yes; at the head-quarters of the regiment.

Q. From where did you receive the order?

A. Lieutenant Colonel Glenn, commanding the regiment, in the absence of Colonel Gray.

Q. Did you report as ordered?

A. I did, sir.

Q. At what time did you report at head-quarters, and with how many men?

A. I reported at the Union depot at seven o'clock—I think it was about seven o'clock—with twenty-one men.

Q. How many men composed your company?

A. I had forty men on my roll—thirty-nine men.

Q. Did you have any difficulty in getting your men together?

A. I had difficulty in getting them together from the fact that they are scattered. I live in a country town. The majority I got word to reported promptly. There was a few exceptions that I knew of that were restrained from coming by their friends that thought differently.

Q. Restrained from coming by friends who were opposed to putting down the riot?

A. As they said, they were opposed to fighting the workingmen; that is it.

Q. What was done Friday night after you reported at the Union depot?

A. The first thing we did was to partake of a very excellent supper in Union depot, and then staid at the Union depot until sometime early in the morning. Two o'clock, perhaps, at the Union depot.

Q. What time in the morning?

A. Until about two, I think. I would not say for certain.

Q. Where did you go then?

A. We marched to Twenty-eighth street, by a circuitous route, by the way of Wylie avenue and Webster avenue, I think, are the streets, and then down on the hill to Twenty-eighth street—to the hill above Twenty-eighth street, right opposite.

Q. Were you joined by any other companies; if so, state what?

A. We there met our regiment—we there found the Nineteenth regiment, and a battery called the Hutchinson battery, that I understood had gone out

on the train.

Q. How long did you remain there?

A. We remained in about the same position all day, with the exception of details that were made to go down to the crossing, until about five o'clock in the evening, I think it was. We marched to the transfer station—perhaps later than that.

Q. What was done then, after you arrived at the transfer?

A. We stayed there until ten o'clock at night, then we were ordered to the Union depot, and about eleven o'clock—I think it was near eleven o'clock—we were ordered to go to our armories.

Q. Where were the armories?

A. Our armory is at Mansfield.

Q. Did you go?

A. There was an eleven o'clock train—11.02—which starts for Mansfield. I took that train and went to Mansfield.

Q. How long did you remain there?

A. I remained until Monday.

Q. Called into action again Monday?

A. Yes, sir.

Q. Reported, where?

A. I reported at the Central armory, Pittsburgh.

Q. During the day on Saturday, while occupying the hill, you had a view of the track, and the scene of the riot, did you not?

A. Yes, sir; I had.

Q. How large was the crowd during Saturday—and what was their—were they demonstrative or not?

A. Very much so, and the crowd was very large. They seemed to increase after three o'clock.

Q. Was any attempt made by the Fourteenth and Nineteenth regiments during Saturday, to drive the crowd from the tracks?

A. Yes; I was, with my company, several times ordered to go down to the track, and clear the crossing at Twenty-eighth street, which I did, and it was immediately filled up again by some on the other side. My company being small, would, of course, sweep but a small space of the ground.

Q. Tell us in what manner you cleared the crossing.

A. I marched company front across the track towards the river, and then I would wheel from the left to right, and marched back again, asking the crowd to get off the track, which they would do reluctantly, but I had no trouble.

Q. At a charge bayonet?

A. I do not think I came to a charge bayonet at all.

Q. Just simply marched through and back?

A. Yes; at a carry.

Q. In what order was your company drawn up—in two lines?

A. Sometimes in double rank, and sometimes in single rank.

Q. Would you sweep the track the width of your company?

A. There was generally two companies detailed. One would be passing, perhaps east, keeping the crowd towards East Liberty, and the other would face the river.

Q. Were there any other companies of your own regiment there?

A. Where—on the track?

Q. Yes?

A. My regiment was on the hill, with the exceptions——

Q. Was your regiment on there?

A. I believe I said in my testimony, that the Fourteenth regiment marched that way in a circuitous route, while the Nineteenth went out the other way. I reported to my colonel, who was then in command—Colonel Gray.

Q. Was there any resistance to your attempt at clearing the track?

A. There was some little said. They were obstinate, some of them, and considerably mean about it, and would not go away, as we were marched up, but a few words would make them go away, but they would go round, and get on the track again.

Q. Were they stopping trains?

A. No, sir; I did not see them stop any trains there.

By Mr. Larrabee:

Q. During the time while you were not engaged in clearing the crossing, in what position were the companies of the Fourteenth regiment stationed, up on the top of the hill?

A. We were in what I would call line of battle, on the face of the hill.

Q. Was the crowd mingling with the regiment—mixed up with the regiment?

A. With very few exceptions. I mind, during the day, talking to several citizens, but I did not consider them rioters.

Q. While you were stationed in line of battle, on the brow of the hill, where was the Nineteenth regiment stationed?

A. The Nineteenth was to our front and right in advance, on the road that leads up to the hospital.

Q. What position were they in during the day?

A. My recollection is, they were in line the same as we were, with the exception of this: that we were detailed a guard.

Q. There was something said by some of the witnesses about the mob and the troops being mixed up indiscriminately. Did you see anything of that kind?

A. I do not think I would say that.

Q. There seemed to be a friendly feeling?

A. There was no picket line out, to keep it entirely clear. The orders were to keep the crowd away, and not to mingle with the men. Still there was no pickets put out, and no driving them away. I heard some remarks made to the men: "You won't shoot workingmen."

Q. Were there any efforts made that day to form any line, by either of the regiments, or both of them, to form a line, so as to keep the mob off from the tracks? What I mean is, to occupy the vicinity of the track, so as to keep the crowd off from it?

A. I have said, already, that my company——

Q. You were marched down and marched back, and took your position with the regiment again? There was no effort made to keep the track clear at any place, except the crossing?

A. No, sir; because they would go right on the track again.

Q. There was no effort made to string out a line, so as to keep the crowd from the track?

A. Only at the crossing, sir.

Q. Where were you at the time General Brinton's troops came up there?

A. I was a very short distance from that little watch-house at Twenty-eighth street, at the foot of the hill—the base of the hill. Perhaps twenty-five yards from where the company was.

Q. In full view of what was going on?

A. Yes; Colonel Gray, I heard him get the order from General Brown to send a company down to support Breck's battery. He turned around and ordered me to take my company out, and also ordered another captain to report to me, and we went down the hill and supported the battery.

Q. The battery was near the crossing at that time?

A. Yes; very near the crossing.

Q. What did you see as General Brinton came up the track? Were there any deputies in advance of them?

A. Yes; the sheriff and his posse was there, and General Pearson, I believe.

Q. State the occurrence as you saw it, just immediately preceding and including the firing on the mob?

A. There was a company came up the track—at least one company, I say—there were, perhaps, two. They came up company front. The regiment—the First Pennsylvania regiment, I believe—came up by flank, the sheriff in front. The railroad came this way [indicating] and they met the troops and the sheriff.

Q. Advanced to meet them part way?

A. Yes; they were going out to see. The troops were stopped—the sheriff was—and I saw him talking, but could not state what he said, be cause there was a very loud clamor and talk from the hillside then, about that time. There was quite a crowd accumulated on the hill, immediately in my rear and right and left. The crowd ran that way to see what was going on—men, women, and children—and it became very noisy; they were crying to the mob, as I call it, to hold the fort.

Q. Men, women, and children, that were spectators, crying to the mob to hold the fort?

A. Yes; "Stand to your post, &c.," and they appeared to obey the command, for they stood pretty solidly, and the sheriff appeared to become so mixed up with the crowd that I could not tell where he was. The only front I saw was these Black Hussars, I think they call them, came right up and told them to go back and came to an arms port, and finally to a charge bayonet, and in the meantime Colonel Benson got his regiment to a front about faced his rear rank, and marched out across the railroad with the rear facing my company, and they formed, what some have termed, a hollow square. It was simply the front facing one way and the rank about facing and marching across the railroad, and that cleared the tracks, and the rear was protected by another battalion, and these troops in front tried to come on through—that was their order as I understood it—they were to forward, and it was hard work for them to go forward very fast. Just about that time, demonstrations became very lively, clubs were flying, stones, coal, and pieces of iron ore. There was a difficulty about this time over some soldier, that some man had got the bayonet, or something, and at least one pistol shot was fired from the mob into the troops, and somebody there—some soldier—he was carried away—I do not know whether he was shot or not, but just then there was firing commenced on the right of the third rank of the First regiment.

Q. How far distant from you was that first firing by the troops?

A. It was not very far—I suppose twenty yards.

Q. What order did you hear given by any of the commanding officers there?

A. I heard no order, except this captain commanding the front company to forward.

Q. That is all the orders you heard given?

A. That is all I heard given.

Q. Heard no order to fire?

A. There was not any order to fire, to the best of my knowledge. I was paying strict attention and I could have heard it if the battalion had heard it.

Q. What was the effect of the firing—what was the result?

A. There was a general clearing out of that mob for about ten minutes—five or ten minutes.

Q. They scattered and left that neighborhood?

A. Yes, sir; the firing commenced, and the troops appeared not to understand exactly where their enemies was. They fired too much towards where your humble servant was, I thought, and I undertook to help them to stop the firing, and the companies were fronted down Twenty-eighth street.

Q. The time this firing commenced, was the crowd all about, on each side of this body of troops that were coming up the track—they were each side of them—the crowd was all about on each side of your company?

A. Yes, sir.

Q. Were scattered all about there?

A. Yes; they became very thick in a very short time.

Q. Then the crowd scattered after the firing?

A. Yes, sir.

Q. Was there any attempt made to prevent their gathering again there by any of the troops?

A. Nothing more. When they would go to come up again they were ordered to right and prepare to fire, and that scattered them. Some of the mob kept on throwing stones and clubs from behind cars until this company wheeled to the left and faced the river, so as they could see behind the cars.

Q. How long before General Brinton's command left the ground there?

A. After the firing; I do not think it was over half an hour. I cannot remember the exact time.

Q. After his command left the ground you stayed there some little time—your regiment?

A. My regiment did. I went up on the hill to my regiment.

Q. Was there any effort made by the Fourteenth or Nineteenth regiment, after General Brinton left, to keep the crowd from the crossing?

A. My regiment was not at the crossing at all.

Q. Was any effort made by either of the commands to prevent their gathering there again?

A. Yes; the troops from Philadelphia went that way, and they would go up above, further towards East Liberty, and congregate in the street again—in Twenty-eighth street—immediately after that and would make demonstrations.

By Senator Yutzy:

Q. That is not answering the question. Did the Fourteenth or Nineteenth make any effort?

A. I said no—the Fourteenth regiment did not. I do not know about the Nineteenth. I did not see them. We were not down on the track; we were on the hill.

By Mr. Larrabee:

Q. You kept your position on the hill. After the firing you went back there?

A. Yes, sir.

Q. On Monday you say you came back to the city and reported with your command. Where were you sent then—on what duty?

A. We stayed at the central armory for several days, then we were ordered to the court-house.

Q. There was nothing of any importance occurred?

A. No, sir.

By Senator Yutzy:

Q. Was your company the only company of your regiment at the crossing at Twenty-eighth street and the railroad?

A. No, sir; there were others.

Q. Was the whole regiment there at any one time?

A. No, sir; at no one time.

Q. How many companies were there of your regiment at one time?

A. I think mostly we had two companies at a time.

Q. And the balance of the regiment were up on the hill?

A. Or if there was only one company the cavalry company would support us.

Q. What was the strength of your regiment about that time?

A. I do not remember the figures. There were two or three companies had not yet reported.

Q. Never did report?

A. Yes; they had not yet reported on Saturday. One company had reported, and was still at the Union depot, up the river. Another company was kept up the Allegheny railroad by orders.

Q. Can you form an estimate of the strength of your regiment on Saturday?

A. I did know the figures. I think there were two hundred, perhaps, or one hundred and fifty.

Q. After the firing on the Philadelphia troops, you rejoined your regiment on the hill—your company?

A. Yes; General Brinton relieved me, and told me he would support that battery, and I could be relieved, and I reported to my colonel by my sergeant, and he ordered me up on the hill again.

Q. Did you take the battery with you?

A. No, sir; General Brinton said he would support the battery. Company C, Captain Nesbitt, was ordered to go down the hill with me.

Q. Did you get any order after this firing, and after the Philadelphia troops had entered the round-house, to clear the tracks with your regiment?

A. No, sir.

Q. There was no effort made?

A. We marched down through the crowd to the transfer station, after the Philadelphia troops left to go to the round-house.

Q. Where is this transfer station?

A. It was two hundred yards or so outside of the round-house. That is my recollection of the distance—perhaps two hundred yards.

By Mr. Lindsey:

Q. From there you went to the Union depot?

A. Yes, sir.

Q. Was the track clear down to the Union depot?

A. No, sir; there were parties of men standing along here and there.

Q. They gave way so that you could march through?

A. Yes; they didn't molest us. Some remarks made that we were not the Philadelphians, etc.

By Mr. Means:

Q. Did the mob appear to discriminate between the Philadelphia troops and the Pittsburgh troops.

A. There appeared to be a feeling against the Philadelphia troops.

By Senator Yutzy:

Q. Did there appear to be any feeling on the part of your regiment men against the Philadelphia troops?

A. No, sir; I heard no such remarks made.

Q. That feeling was expressed in the mob?

A. Yes, sir.

By Mr. Means:

Q. The one soldier would respect another?

A. We knew they were soldiers and obeyed orders.

Q. That was our training in the army?

A. Yes, sir.

By Mr. Lindsey:

Q. Were you in the late war, captain?

A. Yes, sir.

Q. What position did you hold there?

A. I was captain of company E, Sixty-first Pennsylvania regiment.

Q. Served how long?

A. Three years.

By Senator Yutzy:

Q. If you had deployed your regiment, or probably both your regiment and the Nineteenth, too, along the line of the railroad forming a line on each side of the track, could you have kept the crowd and mob away from the railroad with the force you had there?

A. If I had been ordered to do so, I think so, certainly. We would have tried hard anyway.

General Joseph Brown, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. Pittsburgh.

Q. What is your business?

A. Hardware merchant.

Q. A member of the National Guard?

A. No, sir; not a member of it now. My time expired on November 1st or 2d.

Q. 1877?

A. Yes, sir.

Q. Were you in July, 1877?

A. Yes, sir.

Q. And what position did you hold?

A. Brigadier General.

Q. What regiments were under your command?

A. The Fourteenth and the Nineteenth.

Q. Did you receive any orders, and if so, what were they in relation to the riots of July?

A. Yes; on the Friday morning I came to the city, about ten o'clock, I presume, and passing by the city hall, I saw the troops.

Q. Friday morning, the 20th?

A. Yes. I went into the city hall, and found that the Eighteenth regiment, of my brigade—one of the regiments of my brigade—had received orders to go out to the depot, that there was trouble there. I went up with them, as far as the depot, and they went out to the end from there. General Pearson ordered me to get out my other two regiments, and I did so as quickly as possible.

Q. What regiments were they?

A. The Fourteenth and the Nineteenth. About three o'clock I got about one hundred men—I do not remember now which companies they were—which regiments—but I started to go to the outer depot with a battery of two guns, and after I started, about three squares, or two squares, I suppose, I got orders to return, that the force was not strong enough.

Q. From whom?

A. From General Pearson. I returned and saw General Pearson. The idea was to get more troops before they could do anything. We were ordered to lay by until during the morning of the next day, and go out to the outer depot—to this place where the rioters were supposed to be.

By Senator Yutzy:

Q. What time was this?

A. This was along in the evening about five o'clock.

Q. What hour did you get the orders to remain at rest until morning?

A. About that same time—about four o'clock. We considered which would be the best way to get the upper hand of the rioters. I supposed they were in full force. About four o'clock, I suppose, I went out with the Fourth regiment, up through the city.

Q. About four o'clock in the evening?

A. Four o'clock in the morning—Saturday morning—and we occupied the ground immediately back of the depot.

Q. Of the Union depot?

A. No, sir; at this outer Twenty-eighth street crossing. We there met General Pearson, with Hutchinson's battery and the Nineteenth regiment, and I deployed them—placed the battery fronting on Twenty-eighth street and the regiment up on the side of the hill, in front of the Fourteenth regiment.

Q. Define fully the position of the battery—was it on the railroad track?

A. The battery was right at the railroad track, on a space probably as wide as this room.

Q. At the side of the track?

A. Yes; and pointing down toward the depot—towards the other depot.

Q. How many pieces?

A. Two pieces. I placed two companies on the crossing at Twenty-eighth street there, and kept them there for an hour at a time, I believe, to keep the track clear—to keep everything in order.

Q. You had one company to relieve the other?

A. Two companies to relieve each other from each regiment—two companies from each regiment.

By Mr. Larrabee:

Q. Alternately from each regiment?

A. Yes; alternately from each regiment.

By Senator Yutzy:

Q. Well?

A. We cleared the ground every time that there was any gathering, apparently, upon the track. There might be a few persons—fifteen or twenty persons, probably—on the track at that time. The companies would move across—probably there might be more—they would move across the track and clear it off entirely. At about the time the Philadelphia troops came through, I had the place cleared off thoroughly, and had Doctor Donnelly make a speech to the people there, and tried to tell them about the trouble that they were getting into. He made a few remarks there, and while he was making the speech I cleared the whole place off thoroughly. Then I remained about there. I was in my citizen's clothes all this time.

Q. You were in citizen's clothes?

A. Yes. I came up to the city—I live about a mile and a half below the city—my uniform was at home. I was in citizen's clothes and, of course, they did not know me so well—the men who were about me. I suppose there was one hundred and fifty to two hundred men.

Q. You mean of the mob—the crowd?

A. Yes, sir.

Q. You say you cleared the track completely, before the Philadelphia troops arrived at the crossing—by what means or disposition of your troops did you do so?

A. The two companies of one of the regiments.

Q. Tell me how you did that?

A. By forming in line and moving them back down the street, back of the crossing.

Q. Threw your companies across the street, and across the railroad track, and drawing them down Twenty-eighth street?

A. Yes; across over the railroad track, and passed on back to where these brick houses came up. Part of the column was there, the other was across the other way. Therefore we had them all on this side, except what was on the hill.

Q. In your efforts to keep the crossing clear, what course did you pursue?

A. Just merely to march—whenever I would see a few men on the track, I would move these troops across there.

Q. March across company front?

A. Yes; division front, and clear the track off.

Q. Then march back?

A. March the other side of the track again—up on the track all the time. They were on the track next to the hill—they were in line from this brick building across all the way, and whenever they would get in the rear of the soldiers they would fall back.

Q. During this time, the balance of your regiment reserved, was up on the hill—how far from the crossing?

A. Probably seventy-five yards.

Q. The whole brigade?

A. The two regiments.

Q. Not over seventy-five yards away from the crossing?

A. Yes, sir.

Q. They were not on the brow of the hill?

A. The Fourteenth regiment was up on the brow of the hill, probably seventy-five or eighty yards from the railroad track, and the Nineteenth regiment was down on the road, within twenty yards of the track. At about half past one to two o'clock, I went into the Union depot to see General Pearson, what he was going to do. The Philadelphia troops were in there lunching at the time. I thought that they were so long in there, I would go in to see what was going on, and make calculations what I should do. I saw General Pearson, and he told me we would do nothing at all, except to go out on two trains, that they were there ready for us to go out on.

Q. He said you were not to do anything at all, except to go out with those trains?

A. Yes, sir.

By Mr. Lindsey:

Q. What time was this?

A. It was, I suppose, one or two o'clock. I cannot tell the time. While I was in there, he told me this was all he had to do—to get on these two trains to go out there.

By Senator Yutzy:

Q. Did you make any further effort to keep the track clear?

A. Yes; the track was kept clear, until the Philadelphia troops came out, and there was such a rush of people, and gathering when they arrived at the depot, that it was utterly impossible to keep them from surrounding.

Q. Did you understand, from what Pearson said to you then, that he had countermanded the order to keep the track clear?

A. Oh, no; the track was being kept clear.

Q. To do nothing but that—to take out these trains?

A. To take out these trains.

Q. Were you in the immediate vicinity, when the firing took place?

A. Yes; I suppose twenty or thirty yards—well I was at the guns at the time—five or ten yards away from them.

Q. Was General Pearson there?

A. I did not see him.

Q. Who was in command of the troops that came up—the Philadelphia troops—at that time?

A. General Pearson, I thought, was in command of the troops—he was in command.

Q. Was he present?

A. That I could not say.

Q. Was Brinton present?

A. Yes; all I know is—I was watching everything as close as I could—the general outline of thousands of people at the time, and I was trying to watch it as much as I could, to see how the thing was going to get on, and the first things I saw was the firing, when the stones were thrown.

Q. The first thing you saw was the firing after the stones were thrown?

A. Yes; after the stones were thrown.

Q. Did you see the sheriff in front of the military?

A. I saw him there.

Q. With a posse?

A. Yes; with twelve or fifteen men.

Q. Were they assaulted by the mob?

A. Not that I saw.

Q. Any stones or missiles thrown at them?

A. Oh, no; they were thrown at them—the stones were thrown at the military.

Q. Were any of the military injured before the firing took place?

A. There might have been. I do not know. They say there was. I do not know.

Q. Did you hear any command given to fire?

A. No, sir; the first I heard was the firing.

Q. Were you in a position where you could have heard the command to fire if there had been one given?

A. I guess the noise was so great, the hooting and yelling was so great, I could not have heard.

Q. What was the effect of the firing?

A. The people all ran.

Q. Scattered?

A. Scattered in every direction—there was not a man about at all, except one man I saw standing there, and he did not seem to pay any attention at all to us.

Q. Did you make any effort after this firing to keep the track clear?

A. No, sir.

Q. Was there any effort made by any of the military to keep the track clear?

A. They rested a short time on the track, and whilst they were resting Colonel Glenn showed me an order, signed by General Pearson, for his

regiment to move down to some place at the depot—one of the sheds.

Q. You saw an order from General Pearson to Colonel Glenn?

A. Yes, sir.

Q. Was it directed to colonel or to you?

A. It was directed to Colonel Glenn and Colonel Howard, the same.

Q. That was the 19th?

A. Yes; I received one, may be six o'clock.

Q. You did receive an order from General Pearson?

A. Yes; at six o'clock.

Q. There was no effort made then to prevent the crowd or mob from re-assembling?

A. They did assemble two or three times, and the soldiers would raise their guns.

Q. They were persuaded away by military persuasion?

A. Yes; by military persuasion.

Q. Was any effort made by your brigade to rescue the Philadelphia troops while they were in the round-house?

A. They were very nearly three to our one, I suppose. Two to one anyhow.

Q. You mean there were three times as many of the Philadelphia troops?

A. Yes, sir.

Q. Would not your force have added to the strength of their force if you had re-inforced them?

A. We did not receive any such orders to relieve them.

Q. Who was in chief command during all this time of your troops?

A. General Pearson was chief in command of the round-house until I found out after dark some time that he had left.

Q. You found he had left? Had you any superior officer present then?

A. Nobody except General Brinton.

Q. Did you receive any orders from him?

A. No, sir.

Q. And if he had been disposed to give you orders——

A. I do not know whether he could have got out or not. There was no trouble until after he fired and killed those citizens. Then there was a great feeling against him, of course.

Q. In the absence of any superior officer, did you consider yourself chief in command of your troops, or the brigade?

A. No, sir; I did not. I commanded what troops I had.

Q. You considered yourself justified in exercising your own discretion in any military movement after that?

A. Yes, sir.

Q. Then what did you do?

A. About ten or eleven o'clock I received word that the crowd was so very great, and the excitement so terrible, that it would be hardly worth my while to do anything.

Q. You got such information?

A. Yes, sir.

Q. Who did you get this information from?

A. Different persons.

Q. In your judgment, did you think it was useless to attempt to drive away the mob?

A. It was at that time with what troops I had.

Q. How many troops had you then?

A. I suppose I had one hundred and fifty or one hundred and seventy-five.

Q. Of the two regiments?

A. Yes, sir.

Q. What had become of the balance of your troops?

A. Some of them had left.

Q. By orders?

A. No, sir; not by orders.

Q. By any orders that you know of?

A. No, sir.

Q. Do you mean to say that they had deserted?

A. They left. There was quite a large number left.

Q. Were they missing?

A. They were among the missing.

Q. That was not more than about one fourth of your command—one hundred and fifty men?

A. One hundred and seventy-five men was not much more than one fourth.

Q. Any of your officers missing—subordinates?

A. No; I could not say that.

Q. How many hours had you been in active service and on duty?

A. From the morning previous—say ten o'clock—until Saturday evening.

Q. From ten o'clock Friday until ten o'clock Saturday evening?

A. I was up continuously until Sunday at noon.

Q. Your troops were in active service all that time?

A. Yes, sir.

Q. Were they provisioned regularly?

A. They were to a certain extent. Grub was brought to them in baskets. It was regular feeding.

Q. Not regular rations?

A. Yes, sir.

Q. You did not suffer from want of rations, however?

A. They did not to a certain extent.

Q. How did you account for the absence of the names of your men?

A. I suppose it might have been in sympathy with the movement.

Q. With the mob movement?

A. Yes, sir.

By Senator Yutzy:

Q. It was not out of fear the desertion took place?

A. No; I do not think it was.

Q. Did you regard the conduct of your subordinate officers commendable during those troubles?

A. They all did their duty. I do not know of any to-day but what stayed there.

Q. Rank and file, do you think their conduct commendable as soldiers?

A. There were some few that left. There was not a full gathering of the command at the first start of it.

Q. Those that deserted you or left, was their conduct commendable?

A. I did not say it was.

Q. The conduct of those that remained was good as soldiers?

A. Oh, yes.

Q. Had a great portion of your command seen service?

A. Well, yes; I think a good many of them—quite a large number of them had seen service.

Q. What experience had you in active military service during the last war, or any other war?

A. About nearly three years.

Q. Active service?

A. Yes, sir.

Q. In what capacity?

A. I was captain adjutant, major, lieutenant colonel.

Q. What regiment?

A. The One Hundred and Second and One Hundred and Fifth Pennsylvania.

Q. Heavy artillery?

A. Yes, sir.

Q. How long did you remain at the Union depot with your command?

A. Until about, I suppose, it was eleven o'clock.

Q. On Saturday night?

A. Yes, sir.

Q. Then what did you do?

A. I received messages from different persons who came there to see me. They stated to me that they thought I had better disband my command. That was on Saturday evening about eleven o'clock, I suppose.

Q. Will you name some of those persons?

A. No, I could not.

Q. Gave you gratuitous advice?

A. Yes; just talked to me.

By Mr. Lindsey:

Q. Were they citizens?

A. Yes; citizens and military besides.

Q. What military men?

A. Captain Macfarland was one military man that I remember distinctly.

Q. Was he under your command?

A. He was not out with his command.

Q. Any other military men?

A. I do not know, there was quite a number of persons there. We talked the matter over.

Q. Did you receive any orders from General Pearson, or from any of your superior officers?

A. No.

Q. You took the responsibility of disbanding them without orders from your superiors?

A. Yes.

By Senator Yutzy:

Q. You considered yourself supreme in command at that time?

A. Yes; I considered I was in command of all the troops that were there.

By Mr. Larrabee:

Q. Why did you think it was best to disband your troops at that time—what reasons?

A. We did not have enough to compete with the crowd that was surrounding us—that was about the whole thing.

Q. Was that all the reason that was given?

A. That we were not sufficient.

Q. Not able to compete with the crowd?

A. Yes, sir.

Q. And therefore you should disband entirely?

A. Yes, sir.

By Mr. Lindsey:

Q. You said you considered yourself superior in command at that time?

A. Of the post where I was.

Q. Where was General Pearson?

A. That I could not tell you.

Q. Had you any communication with him?

A. I heard that General Pearson had left.

Q. You heard he had left?

A. Yes, sir.

Q. When did you receive the last communication from him?

A. The last communication I received from him was at the Union depot when I went in there—noon sometime, or near two o'clock.

Q. Where was Adjutant General Latta at that time?

A. I suppose he was at the Union depot hotel.

Q. At what time?

A. At all this time I suppose he was there.

Q. Eleven o'clock Saturday night?

A. Yes, sir.

Q. Did you receive any communication or order from him?

A. No, sir.

Q. Did you send for any?

A. No, sir.

Q. Did you understand that he was acting commander-in-chief of the forces?

A. I only understood he was acting adjutant general, and that the orders emanated from him as from some higher authority.

By Senator Yutzy:

Q. Did you know at that time that the adjutant general was in the Union depot?

A. I had an impression that he was.

Q. Did you make any effort before you disbanded to see him?

A. No, sir.

Q. Knowing him to be there, or believing him to be there?

A. No, sir; I did not make any effort to see him. At this time I suppose that the mob was gathered in such great crowds it would be advisable for the military to be out of the road of the mob so as not to get their ill will.

Q. In your military experience, in your judgment, could you have taken a position and intrenched yourself and held your ground against the mob during the night?

A. Oh, no.

Q. Nowhere in the vicinity?

A. No, sir; unless I had been in the round-house.

Q. Could you not have marched out away from there and held your body?

A. They would have suffered great loss to have marched away.

Q. You did march to the depot, did you not, the Union depot?

A. Oh, yes.

Q. Were you interfered with in any way?

A. No, sir; not much.

Q. Marched all the way down the track?

A. Yes, sir. It would not have been advisable to march down the street.

By Senator Yutzy:

Q. Could you have taken a position in the Union depot, and used it as a fortification to defend yourself against the mob?

A. There was no mob at the Union depot.

Q. Why could you not have held the position then?

A. At the Union depot, the idea was to get away so as we would not get the ill will of these men; that they would probably disperse at this time.

Q. Did I understand you, that you disbanded for fear of exasperating the mob?

A. Yes—with this number of troops that I had.

Q. Was it your opinion that that was the way to disperse the mob, by the military disbanding?

A. I thought it was probably the best way.

By Mr. Lindsey:

Q. Did you receive any order from General Pearson, after the firing at Twenty-eighth street?

A. I received one order.

Q. What was that?

A. For to adjourn these two regiments to this depot.

Q. The transfer depot?

A. Yes, sir.

Q. Were you to take your regiments to the transfer depot?

A. Yes, sir. The colonels of the regiments had already received the orders sometime previous, and they did not want to move until they saw me, and they showed me the order.

Q. In that order, did he tell you to hold your position?

A. As long as possible, I believe.

Q. To take your regiments to the transfer depot, and to hold that?

A. Yes, sir.

Q. And at eleven o'clock you marched down?

A. We marched down as a command down there.

Q. You disbanded at the transfer depot?

A. We disbanded, and the men got away the best they could.

Q. Left the transfer depot?

A. Yes, sir.

By Mr. Engelbert:

Q. Were these orders addressed to you, or to the colonel?

A. Addressed to me, and the orders addressed to the colonels of the regiments, too.

Q. Of the same purport?

A. Yes, sir.

Q. Did you consider that they had superceded you by the order?

A. I did not know what was the matter.

Q. Did it not look to you like it?

A. Yes; it did look to me very strange for them to receive a written order.

Q. You, as a military man, of course, felt aggrieved at that?

A. No, sir. I said that they could obey the order cheerfully, and I marched down to the depot with them.

Q. You did not consider that under your order?

A. Things were mixed up so I did not know.

Q. Which way which?

A. Which way which, and I obeyed the order. Afterwards I received this order.

By Mr. Larrabee:

Q. Received by the same order?

A. Yes, sir.

Q. When you left the transfer depot, did your men go in a body, together, or did they strike out?

A. Each came away by himself.

By Mr. Lindsey:

Q. Were you called—did you call your men together after that?

A. Yes; we did on Monday morning, and I reported to the mayor whatever he wished me to do. I took one company up on Second avenue, and dispersed a crowd that were coming here on boats in large crowds. There must have been towards three hundred.

Q. How long did you remain in service?

A. I remained in service then half a month, or three weeks. On Wednesday night Governor Hartranft passed through here, and he gave me an order to assume command of the troops here, and I did so. I went over to the Union depot in Allegheny, and I had them turn over the property to me at the Fort Wayne road.

Q. Maintained order there, did you?

A. I had no troops there. I only went over as a citizen, and I put on my citizen's clothes, and went over there and talked to them. The second—I believe they turned over their property to me. I called out Mr. Cassatt, I think—not Mr. Cassatt, but the agent of the Fort Wayne road.

Q. Pitcairn?

A. Not Pitcairn. The agent of the Fort Wayne road—I forget his name now. I told him the cars and property were there, and he could do as he pleased with them. That the crowd had given them to me. That I turned them over to him.

Q. There was no further trouble here about the city?

A. No, sir; there was no further trouble.

Henry King being duly *affirmed*, testified as follows:

By Mr. Lindsey:

Q. Where is your residence?

A. In Allegheny City.

Q. And what is your business?

A. Furnace man, engaged in the manufacture of pig iron, interested in the manufacture of pig iron.

Q. I wish you would state, Mr. King, all the facts in relation to the riot here, that came under your observation—that you know personally yourself?

A. On this side of the river I do not know so much about what was going on. I was over here, of course, every day attending to my business, and I got glimpses of this matter once in a while. I think probably that I had better first state as to the origin. I think that is what my testimony probably would have the most weight in.

Q. That is what we called you to find out about?

A. At one time, from 1849 to 1855, I was engaged in railroading. First as a civil engineer; next as a mechanical engineer; and had made acquaintance of many railroad men—pretty extended—a great many were of the men who are railroading at the present day, and were railroading previous to this strike and during the strike, and for a length of time previous to the strike were men I was acquainted with, and I, perhaps, knew as much about their grievances as they did themselves, or what they considered their grievances. They talked to me very freely, most of them, and I told several of my acquaintances in the city here that I thought there would be a great deal of trouble amongst railroad men; that there seemed to me to be a great deal of dissatisfaction.

Q. When was that?

A. This was in the early part of last summer, commencing in May perhaps. These men talked to me a great deal. I traveled a great deal on the railroad, and these men talked freely to me. I felt pretty confident from what they told me that there would be a great deal of trouble; there appeared to be a great amount of dissatisfaction.

Q. You communicated that to your acquaintances in the city?

A. Yes; my business connections.

Q. Business men?

A. Yes; business men. Some believed and some didn't believe, of course. I felt very confident there would be a great deal of trouble, and was satisfied, too, that it was not going to be a local matter, but would be very general, and it proved so.

Q. On what did you base your opinion, if anything?

A. As to whether it would be general?

Q. Yes?

A. From the manner in which these men spoke about what they considered grievances. I didn't wholly agree with them on that.

Q. What did they consider as their grievances?

A. Reduction of pay; that seemed to be the chief complaint.

Q. They complained of the reduction?

A. Complained very bitterly about that.

Q. Did you talk with the men on different roads—did you converse with men on different roads?

A. Yes; on several different roads.

Q. What roads?

A. There were some on the Pennsylvania railroad; some on the Pittsburgh and Fort Wayne road; some on the Cleveland and Pittsburgh run, and also some men on the Atlantic and Great Western road.

Q. Did you ever converse with any of the employés on the Baltimore and Ohio road?

A. No, sir; I had no acquaintances amongst these men. That is a road I travel on very little. Didn't go out of my way to hunt up any information; it all came to me incidentally.

Q. Were all these roads reducing the wages of their employés?

A. It was so reported to me—it was so talked among the men.

Q. How was it throughout the country? Did you know, of your own knowledge, that the leading railroads throughout the whole country were reducing the wages of the employés?

A. Speaking of it in a general way, I have no authority, except newspaper account, that wages were being very generally reduced.

Q. Speaking then of your own knowledge, you simply speak of roads leading in and out of Pittsburgh?

A. My knowledge in this particular is from the employés of the road.

Q. And your conversation was with the employés of the roads leading in and out of Pittsburgh?

A. Mostly roads leading in and out of Pittsburgh. I may say wholly so, with the exception of the Atlantic and Great Western.

Q. In conversation with these men did they mention, or did you find out from them, that there was any organization among them?

A. Oh! yes; I knew of an organization—the Trainmen's Union—I knew there was such an organization as that.

Q. As the Trainmen's Union?

A. Yes, sir.

Q. Did you know the object and purpose of that organization?

A. Yes; they talked to me that there were several objects they wished to accomplish by that organization. We had a great many discussions about the thing. The only object they had, of course, was to make an organization that they thought would be sufficiently strong to enable them to have something to say about the rate of pay. Another was to re-instate some men who had been discharge for cause.

Q. Did you gather from these conversations that their object was to force the railroads to pay them the wages which they demanded?

A. They expected to put it to that as a finality. They expected to resort to that before giving it up.

Q. Did you talk with them—did they state to you how they intended to force the railroad?

A. Well, by stopping work and stopping business.

Q. Themselves only?

A. They talked about it, that they would stop themselves, and they would stop others. Of course, I expressed my opinions. Everybody said what they pleased. I told them it was every persons right to stop work. If the work did not suit them they had a perfect right to quit, and to go off; but whatever they did, not to do anything they would be sorry for afterwards, because the matter would be settled, undoubtedly, sooner or later, and they had better not do anything they would afterwards have cause to regret. As I said before, they would have a perfect right to stop work, but they had no right to interfere with others.

Q. Did they claim that they had the right to interfere with others?

A. They did not claim they had a right, but they claimed the ability to do that.

Q. And their purpose of doing it?

A. Well, they expected to do that.

Q. Did they say anything to you or did they expect to ally other classes of laboring men with them?

A. No; they did not care about having any help from outside parties; at least if they did, there was no intimation of that kind to me. They expected to accomplish it themselves. I have no knowledge of their making any effort whatever to induce other trades unions—I do not know that they made any effort to have others coöperate with them; if they did, I do not know of it.

Q. This intercourse you had with the men, and from talking, led you to be apprehensive of the results?

A. Yes; I felt very confident——

Q. Did you communicate that very freely to your acquaintances here?

A. With my more intimate business acquaintances the matter was talked over pretty freely.

Q. Did you have any communication with the railroad officials in regard to it?

A. No; I supposed them capable of taking care of their own business. I fortified myself in regard to the strike. I have occasion to have a great deal of freight moved, and I put myself in a condition against any strike.

Q. In what way?

A. In getting in a good supply. If the strike had continued a month it would not have hurt me, anything more than I could not have shipped anything away. I had plenty of raw material on hand—it answered a very good purpose, too.

Q. Did you communicate these facts and your apprehensions to the city officials, any of them, of Pittsburgh?

A. No, sir.

Q. Or the county officials?

A. No, sir; I only talked with parties who were interested in the same manner that I am myself and others, perhaps, I am well acquainted with, in the same line of business, by fortifying in the way of getting in plenty of raw material. I was so certain it would come to pass, that I advised it all the time.

Q. Did you gather facts enough to enable you to determine when this strike would probably take place?

A. Yes; I had a very good idea when it would come. I do not know that I could see that my idea was so clear upon that, that I could fix the hour or perhaps the day, but I think I could have named a time of ten days that it would have occurred within that time. I could have done that, perhaps, twenty days before the strike occurred.

Q. Did you, in any conversation with these railroad men, have any talk with them about the wages they were receiving, and whether it was adequate for

their support?

A. Yes; that was talked about considerably.

Q. In the business that you are engaged in you employed a large number of laborers?

A. Yes, sir.

Q. How did their wages compare with the wages of your men?

A. If they had steady employment—if they had been employed each and every day—the wages they had would have been sufficient, and would have compared very favorably with the employment in other lines of business—in other departments. As I looked upon it, the prime cause of the trouble was that there were more men than there was work for, and they undertook to make a little work divide around amongst a great many men, and that, of course, made a small amount of pay for each one. In many other businesses, an employer so situated would have—I know I should have discharged my men down until I had full employment for those that were retained.

By Senator Yutzy:

Q. From that I would infer that it was not the pay, but it was the time they were making?

A. They did not make enough time.

Q. Had they made full time they would have made ample pay?

A. Perhaps satisfactory.

By Mr. Englebert:

Q. Has not that been the case in all business for the last year?

A. I think that some employers have made the same mistake as the railroad men. It was out of the goodness of their hearts that they kept men about that

they had not employment for. I would either give them work or not give them work.

By Mr. Lindsey:

Q. In your opinion, it is bad policy to keep men working on half time?

A. It is very bad policy.

Q. That was the policy adopted by the railroad company?

A. It seems to have been.

By Mr. Means:

Q. I simply want to know this: Did the railroad officials believe that half a loaf was better than no bread?

A. I have heard them talk that way. I think the railroad officials took that view.

Q. That half a loaf was better than no bread?

A. Yes, sir; but as opinions are going, I would say, a man had better go and try to make a whole loaf somewhere else, than hang around and make a half loaf.

Q. Suppose he could not get the work?

A. There is a way where there is a will. I never kept a man half employed.

By Mr. Lindsey:

Q. Did you visit the scene of the riot at any time during its progress?

A. Yes, sir; Sunday I was up in that part of the city. I did not go up to where it was said to be the worst, but far enough to see all that I cared about seeing.

Q. What class of men were engaged in the actual burning and pillage so far as——

A. So far as I observed, and judging by appearance, it was about the class of men you see going backwards and forwards on the railroads and thoroughfares, known as tramps.

Q. Did you see any of the railroad employés with whom you had conversations before and were acquainted?

A. I saw some there; yes, sir. They appeared to be lookers-on only.

Q. Not engaged in the actual arson and riot?

A. No, sir; I did not see one of them that had anything except what appeared to belong to him.

Q. Were any engaged in burning and setting afire?

A. Not that I saw—none that I had any acquaintance with.

Q. Did you meet any of them to have conversation with them on that day?

A. Yes; Sunday I saw a great many of them.

Q. How did they talk then?

A. They appeared to regret very much that there was any destruction of property.

Q. Have you talked with them since any?

A. Yes: I talked—I believe three days out of six I am more or less on the railroads, and acquainted with a great many railroad men. It has pretty much ceased to be the subject of conversation now, but for a time afterwards it was the principal topic.

Q. Did you ascertain from them, or from any reliable source, whether they had anything to do with the attack that was made on the Philadelphia troops at Twenty-eighth street on Sunday, when the firing took place?

A. I have never seen any of them that acknowledged having anything to do with making that attack on the troops. They spoke of it as the attack having been made by—well, tramps and roughs they called them. There was a pretty strong organization among the men on the north side of the river to prevent any force coming over to shoot the Pennsylvania boys, or, as they termed them, P.R.R. boys. That is the way they talked about it. They did not propose to have anybody coming in there to shoot them down. That was a pretty thoroughly organized force.

Q. That is, to stop the trains having troops in?

A. Yes; and they were expected in with troops. That occurred in the immediate neighborhood where I live. The whole region was patrolled.

Q. Patrolled by the railroad men?

A. By the railroad men; yes, sir.

Q. Did you learn from these men where the first strike was to be made?

A. No. They talked of it as though it would be a general uprising throughout the whole country. They did not designate any particular place.

Q. You did not get the particulars?

A. I never heard the particular place designated as to how it would start, but simply it would be a strike; that they would all quit work; not work themselves nor allow others to work, and block travel and traffic in that way, expecting as the result it would bring the managers of railroads to their terms.

Q. You travel on the roads a great deal you say, and have a great deal of shipping?

A. Yes, sir.

Q. From your knowledge was there a less amount of work to be done on the railroads by the men than there had been formerly?

A. There appeared to be a very decided falling off in through traffic; the local traffic is holding its own, perhaps; furnace work and mineral traffic appeared to be about the same as it had been.

Q. It was in the through traffic that there was a falling off?

A. Principally in the through traffic.

By Senator Yutzy:

Q. Who was in command of this armed force you speak of that was on the other side of the river?

A. I never heard the commander's name mentioned. Those men whom I met in the street in my neighborhood said that their commander says so and so, and requested citizens to keep away—that the trains were about due—that the commander says so and so. I do not know who the commander was.

Q. They had apparently an organization?

A. They had apparently an organization, and obeyed instructions, perhaps, as well as the soldiers on this side.

Q. What train had that reference to?

A. The Erie train.

Q. With troops?

A. The train that was expected to arrive with troops.

Q. What steps did this armed force take to prevent trains from coming from Erie to assist the military?

A. The plan that they had proposed was to give the signal to that train and stop it.

Q. But if that was not heeded?

A. They had a rifle pit shortly above there, and if the train had not heeded the signals they would have undoubtedly fired into it.

By Mr. Lindsey:

Q. Was the man who was called Boss Ammon—was he in command of that force?

A. I did not hear Ammon's name mentioned in connection with the matter to any extent until the day following. I know that Ammon was not installed in the dispatcher's office on that side until the Sunday. This attempt to stop the Erie train was on Saturday night, and Sunday afternoon Ammon was installed as head man in the dispatcher's office. I did not hear that name. I have no recollection of hearing his name mentioned in connection with the matter at all, until some time during the forenoon of Sunday. I had heard of a man of that name; but did not know he was in this part of the country at all. I did not know who their commander was Saturday night. The name was not mentioned, except as I spoke of, as our commander says so and so, and requested people to keep out of the way in a certain locality in the immediate vicinity of the station.

Q. What time did that organization first show itself in Allegheny to stop trains with troops?

A. That was on Saturday night.

Q. When was the first freight train stopped?

A. Friday; I think it was Friday morning.

By Mr. Dewees:

Q. Did you see any trenches dug along the road?

A. Strawberry lane; yes, sir.

Q. What was the object of that?

A. To intercept the Erie train in the event of their disobeying the signal.

Q. Were they along the road, or across the road?

A. Parallel with the road.

Q. Where is Strawberry lane?

A. It is in the Ninth ward of Allegheny City—one of the lower wards.

Q. Who put in the rifle pits?

A. The railroaders—strikers.

Q. This mob?

A. It did not partake of the nature of a mob over there. It was a very thoroughly organized force—armed and equipped.

By Mr. Lindsey:

Q. How many railroad men did you converse with, do you think, that led you to form your conclusions?

A. On the different roads, perhaps fifty men.

Q. What class of men principally?

A. They were conductors and engineers, chiefly, I talked with.

Q. Any brakemen?

A. With many brakemen.

Q. Fifty men on the different roads that you have mentioned before—you mentioned the roads?

A. Yes, sir.

Q. When did that restlessness begin to show itself among the men?

A. Began to manifest itself in the latter part of May.

By Mr. Dewees:

Q. The persons that dug that trench, were they Allegheny railroad men or were they tramps? What do you suppose they were?

A. Most of them were railroad men. There did not seem to be many tramps connected with those men over there. These men were acting on their own account, and did not ask anybody to help them. They said they were working for the right, and appeared to be very earnest. They were very orderly.

Q. Things were done systematically?

A. Things were done very systematically.

By Mr. Engelbert:

Q. Were these men in the employ of the railroad company or were they discharged men?

A. There were a few discharged men. Of course I do not know how many of them were discharged, but from their talk I got the impression that there were some six or eight that had been discharged.

Q. That was a part of the grievances?

A. Yes; that was the object—to have them re-instated. They made that one of the conditions—of those men going to work again. I was amongst these men a great deal during the time that they were discharging them and reducing the work. I was very desirous that they should go to work, for as long as they were not at work it brought a class of people in our part of the city that I did not want to have around there. I knew if they went to work, and the trains were moved—I talked with them whenever I could—they would all gather about me.

By Mr. Larrabee:

Q. You say you thought you could have named within ten days of when the strike would take place. Did you hear anything about the proposed strike of the 27th of June that was talked about by the Trainmen's Union?

A. Yes, sir.

Q. You heard them talk about that?

A. I heard them talk about that.

Q. Did you hear the railroad men fix that time or talk about that time as there would likely be a strike?

A. There seemed to be a difference of opinion in their views as to that being the right time. They would talk of it in that way—some thought it would be a good time, and others did not.

Q. Did you ever hear them name any special day, or any particular time when there would likely be a strike, or when there would probably be a strike?

A. After the 27th of June they felt pretty certain that it would be sometime not far from the middle of July. They talked like this. They wanted the money for the work that had been done during the month of June before they struck. If they had their money in their pocket it would be fortifying themselves.

Q. What time was the pay day of the railroad company?

A. I believe the usual pay day—of course it varies along the line of the road—I think on most of the roads they commence paying sometime from the seventh to the tenth, and go along various places until they get paid.

Q. You supposed from that that probably if the strike occurred it would probably occur pretty soon after they got their pay?

A. As soon as the men along the line of the road had been paid off.

Q. Was there anything done by the railroad men on your side of the river that you know of towards organizing for the strike, or committing any overt act until after the strike occurred here?

A. I think the trains had been moving regularly up to that time.

Q. It did not really break out there—no overt act was done nor any trains prevented from going out until the Saturday after the Thursday it broke out on this side?

A. It broke out here on Thursday, and I think the first there was Friday morning.

Q. Were you talking or did you talk on this Thursday or Friday with those classes of railroad men you had previously had conversation with, in regard to what was going on?

A. On Friday I had some talk. I went out on a train that leaves here at nine o'clock in the morning, on the Fort Wayne road, and had considerable talk with some of the freight train conductors.

Q. What did they say about the difficulties that had occurred here?

A. There is a schedule of quite a number of freights following immediately after that passenger train, and of course they talked about the strike being in fact over here, and talked with some of the men at the station before the train left there. I was on the lookout to see whether the trains were moving out, and the trains appeared to be ready to go out. When I got some thirty-five or forty miles up the road, the conductor on the train I was on told me that the freights that would follow immediately after the nine o'clock train, had been intercepted, and that the strike had organized.

Q. As this strike finally did take place, there was no general understanding on all the roads that it should take place on each railroad on a certain day, that you found out. It did not actually take place on the different roads on the same day?

A. No; I do not think the strike became general throughout the country until, perhaps, three—it may have been four—days after its first commencement. The first general demonstration was on the Baltimore and Ohio road.

Q. You heard nothing in any of these conversations of any fixed day after the 27th of June—any date named?

A. As I said early in my testimony here, I do not know that I could fix the hour or the day, but I think I could have named the time within ten days, from the information I had in talking with the various employés, and that was, to wait until the payments had been pretty generally made on all the roads throughout the country—that seemed to be the time.

By Senator Yutzy:

Q. Did the railroad strikers in Allegheny City, on the Fort Wayne and Chicago railroad, show any disposition to destroy property or commit any violence or illegal acts except stopping the trains?

A. No, sir; there was a great effort made upon their part to preserve all property—railroad property and private property.

Q. They made efforts to prevent the destruction of property?

A. Yes, sir.

Q. Private property and railroad property?

A. Yes, sir.

Q. In what way or what efforts did they make?

A. On Sunday afternoon the report became current over there that these destructionists—I do not know what else to call them—were coming to Allegheny, and the railroad men talked amongst themselves like this: That this is the employment we are living on, and it shall not be destroyed; we will take care of it. The trade of the road is such there that from the upper end, or what is known as the outer depot, cars and locomotives and everything—I suppose they run twenty miles up—laying on the tracks, and within a very brief space of time there was some fourteen or fifteen miles of locomotives taken entirely out.

Q. By the strikers?

A. Yes, sir.

Q. To protect them?

A. Yes; and they did protect them most effectually. Many of those cars were loaded with very valuable merchandise, and there was an armed force of these strikers who protected these cars—regularly stood guard over them—fourteen or fifteen miles of cars—every day and every night, relieved regularly.

Q. Did you see them or any of them commit any illegal acts—railroad men?

A. I suppose that would have been an illegal—would have been considered an illegal act to stop that train.

Q. Didn't they stop other trains—freight trains?

A. The regular trains were stopped.

Q. Forcibly?

A. Not forcibly. They seemed to be stopped at the dispatcher's office. If they got a permit they would allow them to pass. If a train went out with a permit they would not trouble it.

Q. Did they take forcible possession of the dispatcher's office?

A. I do not know whether it was forcible or not, they seemed to have possession of it.

Q. Did they use any violence towards men that were willing to run trains?

A. I did not hear of an instance of intimidation.

Q. Do you know of any effort being made to have trainmen take out trains?

A. I do not think there was any effort made. They appeared to be all of one mind about that.

Q. Did the strikers say they would prevent them from going out by violence?

A. I think I heard some talk that would amount to about that. Passenger trains were allowed to come and go as they had done before. A good many of the passenger trains stopped at the dispatcher's office to get a permit that would enable them to pass other localities where the strikers were congregated.

Q. That would be called, in railroad parlance, orders?

A. Yes, sir.

Q. Who was the dispatcher during the riots there?

A. Ammon was known as dispatcher.

Q. He took possession of the dispatcher's office?

A. Yes, sir.

By Mr. Lindsey:

Q. Was he the man that issued these orders?

A. I think the orders were signed with his name. I never saw any of the orders. I heard the passenger train conductor speaking of them.

By Senator Yutzy:

Q. He was general superintendent and dispatcher both?

A. Yes; he seemed to be the principal man on that side. I have thought of that matter frequently since then, and it appeared to me that it was a fortunate circumstance that these men were willing to recognize some man as a head, if they had not done that matters would have been worse than they were.

By Mr. Dewees:

Q. Did the mayor of Allegheny City send a relief guard?

A. I heard that he did. I do not know that I ever saw it.

Q. You do not know that as a fact?

A. No, sir.

By Senator Yutzy:

Q. Was not the force that he organized in other parts of Allegheny City at the bridges?

A. I suppose that is where his force was employed chiefly.

Q. Was there a general disposition manifested on the part of the citizens to quiet the troubles?

A. Yes; all the talk was with a view to get to work again.

Q. I am speaking of the citizens?

A. All the citizens desired to have these men go to work, so far as I talked with any of them.

Colonel P. N. Guthrie, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Where do you reside?

A. I reside at East Liberty, Pittsburgh.

Q. What is your business at the present time?

A. I am a book-keeper in the Exchange National Bank.

Q. How long have you held that position?

A. About twelve years.

Q. Are you a member of the National Guard?

A. I am Colonel of the Eighteenth regiment.

Q. How long have you held that position?

A. Since 1874. I think my commission dates 1874.

Q. Just state to us now what orders you received, and when you first received them, and from whom, in relation to the riot last summer?

A. Well, on Friday morning, about half past four o'clock, I was awakened by a knock, and received an order, a telegraphic order, from General Pearson, informing me that by orders of the Governor, my regiment was ordered out for service, and ordered me to report at seven o'clock, at the Union Depot hotel. I have one company whose head-quarters is at East Liberty, where I reside, some five miles out. I notified them by hunting up the captain, and then came into town, sent off, the best way I knew how, to get my officers together, and notified them. They notified their subordinate officers, and assembled the regiment. It was too late to get any orders in the newspapers, they had all gone to press. It was too early to find messengers, and the work had to be all done by carrying messages from man to man, by the corporals and sergeants of companies. My command was ready at half past eleven o'clock, and by a little after twelve I was at the Union Depot hotel.

Q. With how many men?

A. I had then about two hundred and twenty-five men.

Q. How many men have you in all the regiment?

A. I have about three hundred and twenty-six uniformed men. Well, the regiment was formed in my armory. There was present, Major General Pearson, commanding the division, and the sheriff of the county. When I deemed that I had sufficient men for service, I marched down to the Union Depot hotel, accompanied by the sheriff. At that time I thought that my regiment was the only regiment ordered into service, and had the direction of military affairs, and so far as my regiment was concerned was with me. I had my own ideas what should be done, but when I got to the Union Depot

hotel, Major General Pearson had ordered out the division, which made me a subordinate officer. My regiment was then ordered out to the stock-yards, five miles and a half from here, where I remained until Sunday night on duty.

Q. What time did you arrive at the stock-yards?

A. Torrens station—that is the stock-yards. I arrived there about half past one o'clock. We remained at the Union Depot hotel, waiting there for a consultation between General Pearson, the railroad officials, and myself, as to what was the best course to be pursued. My regiment was finally ordered out to the stock-yards, with the understanding that the Fourteenth and Nineteenth regiments would soon report, and they be sent to Twenty-eighth street. Upon their arrival at Twenty-eighth street, trains were immediately to be started. Sending me to the stock-yards was to secure the passage of trains through and beyond the stock-yards.

Q. That was the result of your consultation there at the depot?

A. That was the result of the decision of Major General Pearson. My opinion was that I should go to Twenty-eighth street, and the Fourteenth and Nineteenth go to the stock-yards. I believe no interference with the trains had been made at the stock-yards, and up to that time. If there had been, I don't know it, and there certainly had been interference at Twenty-eighth street.

Q. You desired to stop at Twenty-eighth street?

A. I desired to stop at Twenty-eighth street. I could have taken possession there without any trouble, I think, at that time.

Q. In going out to Torrens, were you interfered with on the route?

A. Not at all. There were about two hundred or three hundred men at Twenty-eighth street—I guess twelve hundred or thirteen hundred when I got there.

Q. You went out on the train, did you?

A. Went out on the train.

Q. Did you have any trouble or meet with any resistance in disembarking your command?

A. I had one company at East Liberty that I had ordered at once to Torrens station, and they had taken possession of the platforms there, and we disembarked from the cars without any trouble whatever, or any demonstration of any kind—not even noise. Everything was quiet and still.

At this point the committee adjourned until three o'clock, this afternoon.

AFTERNOON SESSION.

PITTSBURGH, *Thursday, February 21, 1878.*

The committee met, pursuant to adjournment, at three o'clock, P.M. Mr. Lindsey in the chair, and continued the taking of testimony. All members present except Senator Reyburn.

Colonel P. N. Guthrie, resumed:

Q. When we adjourned you had got at Torrens station. I wish you would state to us how large a crowd you found there, what the appearance of the crowd was, and so on, and give your movements from that time?

A. When I got to Torrens station I found at least twelve hundred men there, composed of strikers, and the crowd and mob—not a mob—lookers on. I had no trouble in getting into position, no trouble of any kind. Was not greeted with hisses, noise, or demonstration of any kind whatever. As soon as I got my command in the position I wanted them in, I brought them to a rest. Then I went around on the tracks to see what the condition of affairs was. I found, as I stated before, that the mob contained two elements there

—strikers and lookers on. I sent for the man who was represented to me to be a leader among the strikers, had him brought down to my position, and had a long conversation with him. I informed him that I had been sent out there with orders from General Pearson to see that all trains passed through the stock-yards. It was my duty to keep the tracks clear, and keep the crowd from interfering with the passage of trains, &c. I didn't want to have any trouble or any disturbance of any kind; but the moment a train approached there it was going to go through. He told me that the strikers had no intention, no disposition to interfere with the passage of the trains, that the Pennsylvania railroad might send all the trains through they had got. He said they could not send any through because they could not get the men to man them; but if they could, they could send them through; they didn't intend to interfere. I told him I was glad to hear that, that it would probably make things a great deal easier, because if the crowd interfered outside of the strikers a man would have less hesitation in dealing with them. This conversation with this leader of the strikers occurred immediately after I got there, as soon as I got my command into a position and gave the command rest. Almost immediately after, and during my conversation with this man, a train came up to the stock-yards from Pittsburgh. That was a freight train or a passenger train—I have forgotten. I did not probably look at that time; but I think it was a freight train; but that train was loaded down with roughs on the cars, and platforms of the cars, the engine, cow-catcher, and every available space. I think the train was crowded with the most infernal lot of scoundrels that a man ever saw. I do not think that they were strikers entirely, though. There were a great many men from Pittsburgh that I recognized; but there was a large element on that train I could not account for at all. They became very noisy and offensive. All of them got off that train and crowded on to any trains that were stationary there—cars standing on the track, which brought them within a very few feet of my regiment. Their remarks became so offensive to me that I was afraid that if it was allowed to continue it might bring about trouble. I had the bayonets fixed on my guns, and I charged bayonets on this crowd. They broke and fled away, and got some distance off. In the interval I formed my men in another position more satisfactory to me—got them on the street, and in what we

call column of companies. Before, I was in line of battle. I remained in that position for some time. I would say here that the understanding between General Pearson and myself, when I went to the stock-yards, was that the trains would be sent out immediately. I urged it upon General Pearson. I believed it was the best thing then, and I believe so now, that a train should have been started, that if one train could have got through, all the rest would have followed, and even one train would have broken the force of the strike; but I waited and waited and waited in position there until the men could stand it no longer. The crowd three times during my stay at the stock-yards annoyed me, and crowded close on my lines, and became somewhat demonstrative, so much so that I was afraid to allow the thing to continue, and I charged bayonets. Every time I charged bayonets the crowd dispersed, and twice I loaded the guns in the presence of the mob, and the moment the guns were loaded the crowd fled and dispersed; but would return almost immediately after. As soon as the crowd would go away from my front I would take the cartridges out of the guns to prevent the men from recklessly firing and bringing about any conflict between the troops and the crowd. That continued time after time during my whole stay at the stock-yards. These men were easily driven away by me. At any appearance I would make of a disposition to fire upon them or use force against them, the mob would disperse—the crowd would disperse, because it was hardly a mob. I could not see that they were armed at all. If they were armed they had pistols—they had no guns of any kind.

Q. Had they thrown any missiles?

A. The second time I charged on them, they began throwing, but it didn't amount to anything—no more than five or six men were engaged. One man who stood on the top of the cars—a man known as Monkey John, a man who has since been tried by the courts here—was the most offensive in the whole crowd. He expressed a great desire on his part to split my head open, but he didn't try it. He was within a few feet of me, and I was strongly tempted to split his head open, but I thought I had better not. During the time I remained at the stock-yards, I was frequently visited by General Pearson, and to all of my inquiries, why trains had not started out, his

answer was, the troops were not ready in the town, and hadn't been able to get possession of Twenty-eighth street, which brings me back to my original assertion, that, if the first troops had gone to Twenty-eighth street, we might have had the trains moving. General Pearson, every time he came out, was accompanied by some of the railroad officials, and all of them seemed to be very anxious with regard to my ability to hold that place; but I told them there was no mob in front of me, only a crowd, that might become a mob if they got the upper hand, and so long as they didn't have the upper hand they were a crowd. That was the state of affairs until the arrival of the troops from Philadelphia. At the time they arrived, General Pearson informed me that as soon as they got into the Union Depot hotel they would be disembarked, and brought out to Twenty-eighth street, and placed in position at Twenty-eighth street, and the Fourteenth, and Nineteenth, and Breck's battery would be sent out to me, and the trains moved. I waited until nearly two o'clock that night, (Saturday,) waiting for trains, and waiting for information. Not a train appeared, and not a word of official information reached me until Sunday morning. On Sunday morning, about half past two o'clock, I received a communication from James W. Latta, Adjutant General, which was the first information I had that General Pearson was not in command, and that General Latta was directing affairs—informing me that ammunition would be sent out to me by wagon, under the charge of an officer of the staff. Upon the arrival of that ammunition, I would be joined by troops from Walls station, and, when that junction was formed, I was to march into town to the relief of General Brinton, besieged in the round-house. I prepared my men for marching, and waited the arrival of the ammunition. Sometime after that the ammunition arrived, and I am not able to state the time exactly, because my watch had run down, and everybody else's around. When the ammunition reached me, an order also came with it, stating that the troops at Walls station were without ammunition, that the engineer was unable to bring the train in, and they could not make a movement until they had ammunition. That all the approaches to the city from Walls station were crowded by rioters. That all points along the railroad, suitable for their purpose, was in possession of the rioters—a fact which I demonstrated afterwards by sending men out of my own command

to determine whether that was the case or not. I received orders also to send ammunition by wagon out to these men. As soon as that ammunition was received, they were directed to continue to march in to me, and, when they joined me, I was directed to complete the movement as ordered in my first dispatch. I hired a wagon, and sent a squad of men out with it. They had to take a roundabout way to get there. I sent, I think, five thousand rounds of ammunition out to these men. Time was passing away very rapidly, and it was nearly ten o'clock before these men got to Walls station with that ammunition.

Q. Ten o'clock on what day?

A. On Sunday morning. In the meantime I had made up my mind that the Walls station troops could not get in. About five o'clock I had made up my mind that the troops from Walls station could not get in to me in time to make the junction and march in to the relief of General Brinton, and I sent Captain Aull, of my regiment, in to General Latta, with instructions to tell him that, in my opinion, these forces couldn't join me, and to countermand the order so far as Walls station troops were concerned, and order me into the city. On the way in to General Latta, Captain Aull witnessed the leaving of the round-house by General Brinton's command. He conveyed that information to General Latta. General Latta then sat down and wrote an order to General Brinton, ordering him to unite with me at the stock-yards, and sent a copy of that order out to me. Of course that prevented me acting on my own responsibility, and I was compelled to remain at the stock-yards. The order reached General Brinton, and General Brinton refused to join me—at all events he didn't join me. I waited there until about twelve o'clock, and I was satisfied then that it was not General Brinton's intention to come to me—that he had left the city, and he didn't intend to return. I then made up my mind I would go into town and see myself what was going on. In all this time I hadn't one word of official information concerning what was going on in town. Colonel Smith came to my camp on Sunday morning, and gave me the first information of the state of affairs in Pittsburgh. Of course I could see a dim light in town, but the extent of what had occurred I didn't understand—I could hardly believe—and I could hardly believe that the

large force of well drilled men under General Brinton could not control any mob that might be brought against them. At twelve o'clock and about ten minutes, these troops from Walls station came down to Torrens station.

Q. Twelve o'clock Sunday night?

A. Twelve o'clock noon on Sunday. At that time I knew, from the officers I had sent out after Brinton, that Brinton was not going to come back to Pittsburgh. I had official information from the staff of the Sixth division that the Fourteenth regiment and the Nineteenth had been disbanded by General Brown, and there was no military force in the city of Pittsburgh. I didn't deem that the troops from Walls station were of any assistance to me whatever, at that time. I thought they were a great hinderance to my efforts. I ordered them back to Walls station, and to go from there to Blairsville, which would be, I thought, almost necessary that Brinton should make a junction. I didn't see how he was to get home unless he did go to Blairsville in some way or another. I then came into town to see how affairs stood. I went to the Union Depot hotel; reached the Union Depot hotel just about the time it had been fired—it was then in a blaze, commencing to burn, though the fire was not thoroughly under way. I went to the end of the building, and I saw some fifty or sixty men on the tracks engaged in burning and pillaging. I think at that time that twenty-five good men could have checked that whole business. There was a large crowd in the open space in front of the Union Depot hotel, and a large crowd on Liberty street. I went through the crowd in front of the hotel, and went through the crowd on Liberty street, and I am satisfied there were not men enough in the Sixth division to stop that burning. The crowd on Liberty street and in the space in front of the Union Depot hotel was merely lookers-on, but it only needed a demonstration of some kind against them to have made every one of those men, or nearly every one of those men, part and parcel of that mob engaged in pillaging and burning. They would have gone to the defense of those men without any question. I satisfied myself of this matter pretty thoroughly. I was not hasty about it—calmly went through that crowd and heard them talk, and knew exactly what they meant. They were men that were not

disposed to take upon themselves to burn or pillage, because there was no necessity, since they had other men to do it for them.

Q. Were you in military uniform?

A. No, sir; I was not. I could never have got into town with a military uniform on. I came into town not only disguised, but in a great measure hidden. I did that for the reason that men that joined my command, within a few moments of leaving, had told me of being stopped on the way themselves. They had to take a roundabout way to go out to the camp. I saw on my way in there were crowds of men everywhere who would have put a stop to any person coming into town in uniform. I went to the Union Depot hotel for the purpose of finding General Latta, and discover what was being done and what had been done. The moment I got there I saw for myself what had been done by the rioters, but what the military authorities were doing, of course, I couldn't ascertain until I had found General Latta. I hunted around through the town and found General Latta at the Monongahela House. He was regretting very much, at that time, that General Brinton had gone out of the city instead of going out to me or coming into the city. He was powerless to do anything, he had no troops under his command except my own regiment. I went to my armory, and I sent out to Colonel Smith and the adjutant general of the Fourth brigade instructions to my regiment to march into town. Through some delay on the part of Captain Aull, the regiment was delayed about two hours. They reached here about dark.

Q. By what route?

A. They came in on Fifth avenue, the only route they could have gotten into town. The crowd was very large on Penn avenue. Notwithstanding, they came into town, I believe, without any demonstrations of any kind against them whatever; marched down to the armory. We remained there on duty continually. Colonel Howard came in and he brought his regiment together. Colonel Gray, of the Fourteenth, got his regiment together. On Monday morning the three regiments were here in the city of Pittsburgh ready for duty, and on Monday morning, the three regiments, I believe, paraded

through the streets. Colonel Howard's and my own regiment paraded together. I think I remember, after going back to the armory, seeing Colonel Gray's regiment return to the armory after their parade. I am not certain about that, but I think I did. Those two regiments returned to their armory, were ready, and could have been assembled had anybody taken the trouble to order them—could have been assembled in a very short time. On Monday morning, I believed that I was in command of the troops of the Sixth division. I certainly was in command of the Eighteenth and Nineteenth regiments, because Colonel Howard was then in my armory with his regiment and had agreed to obey orders under me. General Brown came in and assumed command on Monday morning, and I refused to recognize or obey any orders from him. He remonstrated, but I insisted that I wouldn't obey his orders. I was in command of the troops, and I intended to handle them, and he went out and various men came in and thought it was a very serious thing to have dissensions in the military at that time—the city was apparently in the hands of the mob, and it would be better for the military to proceed as a military body, without any dissensions in rank. After listening to them, I agreed to serve under General Brown, and I so notified him. From that time until the troops were ordered to Luzerne, and until we returned, I served immediately under the command of Brigadier General Brown. That is the outline of my service.

Q. Did you receive any orders from General Brown to disband your regiment at any time?

A. On the 31st of July, about one o'clock in the afternoon, General Brown sent an officer of his staff to my head-quarters, requesting my presence at his head-quarters. I think it was the 31st of July. I went up to General Brown's head-quarters, and he gave me a verbal order to dismiss my regiment. I asked him by what authority the regiment was disbanded. He said he had just come from the Governor's head-quarters, or he had received an official communication from the Governor's head-quarters, I have forgotten which. At all events, the orders were from his superior officers that my regiment, and also Colonel Gray's and Colonel Howard's were to be disbanded. I think he had sent to Colonel Howard and Colonel Gray also. I

determined that I wouldn't disband my regiment, and I couldn't see why the Sixth division should be dismissed when the Governor was rapidly assembling all the troops of the State in this city. Could not understand it, and felt there was a mistake of some kind about it. I went back to the armory. That afternoon I paraded my regiment, and before I got through the parade I had official knowledge that the Sixth division was to go to the coal regions, which demonstrates fully to my mind that there had been a mistake made somewhere, or there never was a communication of the Governor's that the Sixth division should be dismissed at all. So far as official knowledge of what took place in the city of Pittsburgh on Friday after half-past one o'clock, and on Saturday until six o'clock, I know nothing at all. I was not present with my regiment and knew nothing at all about it, except on Sunday afternoon, when I came in myself. With the burning of the elevator on Sunday afternoon, I think all danger of a mob had passed. The men had got all the whisky they could get hold of, and the whisky had worked its effect on these men. The burning and pillaging of this city was stopped by the giving out of whisky, and with the natural working of the whisky on the human body. The men were dead drunk. On Monday morning there was no mob in the city of Pittsburgh that I could see, though the railroad property and trains were in the possession of the strikers, and remained so until the arrival of Governor Hartranft with the national guard.

Q. What day was that?

A. I do not remember what day that was; that was probably the 25th or 26th of July—it was later than that. I cannot state the date of his arrival. They were here on the 31st of July. I remember that, because I went out to see General Brinton on that day.

Q. Did you have any trouble in assembling your regiment—in getting them together?

A. When they were first ordered out?

Q. Yes.

A. Oh, I had a great deal.

Q. What I mean is, were the men willing to serve?

A. Oh, yes; no trouble of that kind in my regiment whatever. The only trouble was in getting hold of the men.

Q. Was there any disposition among your men to aid or sympathize with the strikers?

A. Not a bit, sir.

Q. Could you have depended on them, do you think, for any emergency?

A. Depended on them for any emergency whatever. I had no trouble of that kind. I never gave a thought of trouble of that kind. I had no personal worry or annoyance with the men in my regiment. I do not believe there was much of that thing in any of the other regiments.

Q. How much, or under what circumstances, would you deem it proper for an officer under command, in the face of a mob, to give the order to fire. That is, how much resistance on the part of the mob, or demonstration on their part, before an officer would be justifiable in firing, or giving the word of command to his men to fire?

A. I would hesitate some before I would give an order to fire, unless there was a shot fired. The firing of a gun or pistol into the ranks of my men would, I believe, justify me in giving an order to fire, and I would at once do it. A man in command of troops has to judge a good deal of the disposition of the crowd, as he can see it. I can hardly tell you exactly what I mean. Sometimes you find a crowd in front of you good-natured, meaning no harm, and you generally find among the crowd a lot of men who are working the mischief—see an element of that kind in a crowd. I do not think an officer is justified in hesitating at all, because these men can soon influence a crowd to do as they want to. If a crowd attempted to seize hold of the guns of my command, I should certainly give an order to fire. I would not give the order recklessly to fire. I would give the crowd time to get out of the way, by simply announcing to them that I would fire if the crowd did not disperse. If they had been firing into me, and committing acts

imperiling the lives of my men, I do not know that I would give them that warning. These are little things a man would have to judge of as they occurred. I believe an overt act committed by a mob justifies the officer who commands the troops to fire.

Q. Would the hurling of missiles into your men by the mob be a provocation sufficient to justify the commander giving an order to fire?

A. I believe it would, but the commander would consider the previous acts of the mob and all the conditions of it, the character of it, and the character of the people in it, &c. I believe whenever a mob in the presence of the military does damage to the military that the military are justified in doing damage to the mob, and doing it right quick.

Q. And use the necessary efforts to disperse the mob?

A. Yes; fire at them, and do it quickly, and do enough of it to prevent them ever coming back. I do not believe a man in command of troops has any right to act rashly, and would hesitate some before he would do a thing of that kind. My idea of the military has always been that they are subordinate until the sheriff is satisfied he can do nothing—that then they step in and act quickly. Probably there would be no demonstration against the military if the military officer would inform the mob that if they did not disperse within a certain time, he would fire upon them, and if necessary, load in the presence of the mob, and ninety-nine times out of one hundred, I believe, there would be no mob by the time they got loaded.

Q. Did the mob flee or disperse before your men every time you gave the order to load?

A. They scattered every time. I had no trouble at all with the mob—I did not consider that I had a mob in front of me. I simply had a large crowd, which I believe would have been a mob if they could have got the upper hand in any way.

Q. You ordered to charge bayonets once or twice?

A. Three times.

Q. In the charge bayonets, did the crowd stand until your men came close to them?

A. No, sir; they fled in a good natured way. Laughed—no trouble at all to get rid of them. My object only was to prevent them coming too close. If the men get close enough some men in the crowd might feel like taking a musket away, and that would bring about a disturbance. It is better to prevent anything of that kind than to allow it to come and then act afterwards.

Q. Your object was to preserve the military character of your regiment?

A. Yes, sir.

By Mr. Larrabee:

Q. Keep the troops and the mob separate?

A. Yes. I never let the mob in with my troops at all, sir.

By Senator Yutzy:

Q. You were in active service during the last war, were you not?

A. I was.

Q. In what capacity?

A. I went out in the service as second lieutenant, and came back a major—filled all the intermediate ranks.

Q. How long were you in the service?

A. Three years and seven months.

Q. You were speaking about taking command of the three regiments—the regiments commanded by Colonel Howard and Colonel Gray—did you take command by virtue of your seniority over them?

A. I would, but I do not think I spoke of taking command of the three regiments, as I had not seen Colonel Gray. I do not know what he would do if he had been dismissed by General Brown. I suppose he would think General Brown had his reasons for that. Colonel Howard had voluntarily offered to join with me, and I did assume command. I had no conversation with Colonel Gray at that time, nor for weeks afterwards. I did say that on Monday, when Colonel Gray and myself were parading the streets, that, to the best of my knowledge, as we were returning, I saw Colonel Gray out with his regiment doing the same thing. That continued during the time we remained in our armory afterwards. In other words, I am satisfied that the Fourteenth regiment was organized and ready for duty on Monday.

Q. After they had been dismissed by General Brown?

A. Yes, sir.

Q. You say you refused to receive orders from General Brown on Monday?

A. I did.

Q. Give us the reason for that?

A. My reason for that was, that General Brown had dismissed his command, and when he dismissed his command, his authority ceased over them until he re-organized. The act of re-organizing or bringing together the Nineteenth regiment, was a personal matter on the part of Colonel Howard; General Brown had nothing to do with that; it was between Colonel Howard and myself, until General Brown got a brigade together. He could not command me. One regiment does not need a brigadier general and a colonel to command it; there would be a conflict of authority at once; those were my reasons.

Q. Did you not regard him as your superior officer, if you were the only man in his brigade?

A. I would regard him as my superior officer. I believe I could have done better service than he. I was willing to take the responsibility. I think that is the trouble with all the National Guard—there are too many officers.

By Senator Yutzy:

Q. And not enough men?

A. And not enough men.

Q. Was there any reason you had for disobeying his orders or receiving orders from him?

A. There was. I believe that General Brown has been suffering from sickness more or less. He was physically weak, and I did not believe was fully equal to the fatigues and annoyance of the command. I had no disposition to ignore General Brown, but I did think that in the great excitement of that day I could have handled my regiments better without being hindered by orders from brigadier generals.

Q. In other words, you regarded him incapacitated for his position in consequence of his illness and mental distress?

A. I did.

Q. And that would justify you?

A. That would have been my defense if I had got into any trouble.

Q. If it had not been that, as a disciplinarian and a military man, you would have considered it your duty to obey?

A. I would. I considered General Brown, under ordinary circumstances, was fully competent for his command; a braver man, I know, never breathed than General Brown—possesses every quality for bravery. His military capacity can hardly be doubted, when a man has filled the various commands that he had in the army.

Q. That is, when he is in good health?

A. When he is in good health, he is a good man.

Q. Did you see anything of General Brinton's command during this trouble, up to the time the collision occurred at Twenty-eighth street?

A. I saw nothing of any troops, except my own regiment, until Sunday night or Monday morning, when I came to town. I saw the troops of General Brinton in the cars, as they passed the stock-yards on their way to Pittsburgh. That is all I saw of them.

Q. As an officer of experience in the army and active service, did you think it was prudent for General Brinton to retire to the round-house when he did?

A. I would not like to have done it. If I had had command enough to have guarded every approach to the round-house, and to have had a guard around the round-house, for the purpose of allowing one portion to sleep while the other was on duty, I might have taken the round-house.

Q. For the reserves?

A. Yes, for the reserves; but under no circumstances would I go into the round-house, without I was certain that every approach to the round-house was thoroughly and properly guarded, and, if it was going to take too many men to guard the approaches to the round-house, I would not go into it then.

Q. Where would you have stationed your men?

A. The hill side there furnished an excellent position. Men could have slept there, and with a small portion of them guarding it, and been free from attack. They could have been free from danger. I like to be out in the open air myself, where I can swing free and clear.

Q. Could you have intrenched yourself on the hill side, so as to make the position secure and safe?

A. I do not think it needed any—it is naturally a strong position. If it was necessary they could have gone to the top of the hill, and nothing could have come in there. A very small force would have guarded any approach. It would not be likely that anybody would have crawled up there.

Q. If there would have been an assault made, would not the troops have been exposed without entrenchments?

A. Not to any extent. Men could have hidden behind a house here and there, and might have taken advantage of the inequalities of the ground, and no large body could have got there.

Q. That hillside is terraced with ravines and wash-outs, which would have given your men as much protection as the enemy?

A. Just as much, and with the advantage that a man in command of the troops would have the selection of the ground. I never walked over the ground particularly—I walk by there twice a day, and I am familiar with the appearance of the hill. What the number of inequalities of the ground are, I do not know, but it is a hill, at all events, and the mob would come from below.

Q. The hill would have been the most eligible position for the force. From your knowledge of the Union depot, would that have served as a fortification for General Brown's command to repel the mob, in case they had made an attack on the depot?

A. To go down to the Union depot?

Q. For instance, if they were in the depot?

A. Oh, no; I think not. I do not think that depot was a desirable place for any defense, because there was too much space between there and the transfer station, where General Brown was, but the Union depot was certainly the only place where these troops could get supplies, and it would have been a good thing to have kept that space open, between the Union depot and General Brown. I do not think that the force could have scattered them to the extent that you speak of, defending the Union Depot hotel and transfer station and the round-house. I do not think they had enough men for it.

Q. Was there any available position between the transfer station and the Union depot, where he could have entrenched himself and secured a

position?

A. The hillside was there. I think there was too much space between Twenty-eighth street and the Union depot for General Brinton to have attempted to protect all that line of property. He had not enough for that.

By Mr. Lindsey:

Q. Could he, with his men stationed at the Union depot, have gone out and driven off any crowd of men that might attempt to set fire to the cars and thus keep the space clear by sallying from the Union depot.

A. I think he could; and, if it was necessary for him to go into any house, I would have preferred taking the whole command down to the Union depot, than going into the round-house and transfer station.

Q. And then guarded it as far out as you could?

A. Yes, sir.

Q. The reason for that would have been that the supplies were all at the Union depot?

A. All at the Union depot.

Q. And the ammunition?

A. The ammunition was there. However, I do not think that General Brinton knew anything about the ammunition, where that was, or anything about it, when he went into the round-house, and neither do I believe that General Brinton anticipated any trouble when he went into the round-house. Firing upon the mob and dispersing it, he was left without any disposition for some time, and then he went into the round-house.

By Senator Yutzy:

Q. Do you know whether General Brinton received the order from General Latta, to join you at the stock-yards?

A. No; I can only answer that by hearsay.

Q. Did he report that he received that order?

A. Yes, he does. The adjutant general in his report states that Colonel Norris and Colonel Stewart went out to deliver an order to General Brinton. General Brinton in his report states that at a certain time, Colonel Norris did join; he did not state whether Colonel Norris gave him, or what answer he gave Colonel Norris; but the two put together, demonstrate pretty clearly that he did receive an order.

Q. Was there anything to prevent General Brinton from joining you at the stock-yards?

A. Nothing at all, except, probably he might have not known the way out, but he could have found that by inquiring. There was not even that excuse, because he had an officer of the Sixth division with him, I believe, showing him the way.

Q. In his retreat or march from the city to Blairsville, how far did he pass from you, from the stock-yards, how near?

A. He was going away from me within fifteen minutes of the time he left the round-house—about fifteen minutes' march from the round-house he came to the junction of the Sharpsburg and East Liberty roads. The East Liberty led to the right and the Sharpsburg road to the left. He took the road to the left, so he was going away from me all the time after he got to where these two roads united. General Brinton did not get this order that General Latta speaks of in his report and that Colonel Norris carried to him—he did not get that order, and Colonel Norris did not join him until he got to the Sharpsburg bridge.

Q. Until he got to it—he received it before he crossed the river?

A. I think he did. This is only hearsay on my part. I do know that General Brinton had not received that order until he got to the Sharpsburg bridge, because Captain Aull of my regiment had a copy of the order. He had the written order. Colonel Norris had a verbal copy. Stewart and Norris reached

General Brinton. Captain Aull did not. Captain Aull was in uniform, and had not the same facilities for passing through crowds that the other two men had who were in citizens' clothes.

By Mr. Lindsey:

Q. In the absence of the commander-in-chief, who is the senior?

A. The next officer of the line, the senior officer?

Q. Who is he—what person would be the next?

A. In these troops out here I believe General Pearson would be in command.

Q. Of the troops of the State who would be?

A. The Governor is the commander-in-chief. After the Governor, the next senior major general. I believe the senior major general was General Dobson or General Osborne. I have forgotten which. After him comes General Pearson in order of seniority, and after all the major generals had been exhausted the brigadier generals would come in; then the colonels.

Q. Is there any other person except the Governor as commander-in-chief who has authority to call out the militia?

A. I think not. That is a matter of law, and that I am not exactly able to give an opinion upon. My understanding as a military officer is that no one but the Governor can call the troops out. I certainly would hesitate a long time before I would obey an order from anybody else.

By Senator Yutzy:

Q. In the absence of the Governor from the State is there any one that could call out the troops?

A. Unless he left orders with his adjutant general.

Q. Can he delegate that power as commander-in-chief to any person?

A. That is another fine legal point. I will say this: That if the Governor is absent and an order came signed by order of the commander-in-chief, James W. Latta, Adjutant General, I should obey it. It is not my business to know whether the Governor is present or not. The order the official——

Q. He might exercise his powers as commander-in-chief out of the State, and without the exercise of the power from him, could any other person exercise that power of commander-in-chief?

A. No, sir; there is no power can order out the militia but the Governor.

Q. Is there such a thing as a Governor *pro tem.* in the absence of the Governor?

A. I do not think there is such a thing as a Governor *pro tem.*

Q. The Lieutenant Governor, would he exercise the functions of Governor in case of the death of the Governor?

A. Of course in event of his death he becomes Governor at once. I do not understand that anybody can exercise the functions of the Governor but the Governor. That is a little bit of teaching I learned in the Democratic party when I was a very little bit of a fellow, and never forgot it. We have a respect for law and authority in our party.

Q. Is there anything else you can enlighten us on in regard to the military movements of the mob that you can think of?

A. There is nothing that I can say, except to give an opinion about the character of this mob, and the sufficiency of the military, and civil authorities, &c. I looked around very closely into this matter, and I am perfectly satisfied, in my own mind, that this mob was not to be dealt with by a trifling force. I do not believe it was in the power of the civil authorities to have put it down. I do not believe it was within the power of the small military force that was first called out to have put it down. It ceased to be a riot and got to be an insurrection almost instantly. The time was very short that intervened between the mob and the insurrection.

By Mr. Lindsey:

Q. What distinction do you make between a mob and an insurrection?

A. I believe that a mob is an uprising in a locality, either here or anywhere else—a small uprising that is within the power of the sheriff to look after. The sheriff, with what posse he might get together, may attempt to restore peace, and, failing in that, call out the local military. I make the dividing line as to when it becomes an insurrection when the executive of the state is compelled to interfere. If the sheriff and the Eighteenth regiment and the Fourteenth regiment and the Nineteenth regiment had put down that thing and restored peace and order, and placed the cars of the railroad in the hands of the company, I would have called it a riot.

Q. And then the difference between a mob and an insurrection is in strength and power?

A. Strength and power. If they overcome the local authorities and the State authorities have to interfere, then it is an insurrection. The sheriff is one arm of the executive. If he cannot quell it, then the executive himself has to come in.

By Senator Yutzy:

Q. When you first arrived at the Union depot, that was on——

A. Friday, at noon.

Q. Would it have required a large force to disperse the mob then?

A. It would not—not at Twenty-eighth street. I did not get off the cars at Twenty-eighth street; and I did not go up to Twenty-eighth street; and I did not know what the disposition of the crowd was; and I do not know what was back there—what could be seen—but those that could be seen certainly did not appear over two hundred or two hundred and fifty men.

Q. If there had been active measures taken on Friday or Saturday, could not that mob have been dispersed and the rioting suppressed?

A. I believe it could on Friday. I do not believe it could on Saturday. On Friday it could, because the strikers were determined themselves not to go to work, and some of them were rioters. There is no doubt about it; because some of them had interfered with the civil authorities, and a great portion of them were simply determined that they would not work, and they would not furnish any assistance to the Pennsylvania railroad in running their trains. For that reason, I believe the trains ought to have been started at once. I believe if a train had been started, the backbone of the thing would have been broken. I believe so to-day; but it was impossible to move trains, because you could not get men to man them. They were afraid of the strikers. It was not necessary for a striker to go up and stick a pistol at a man's head, or say, "I will shoot you." Some of them would give a wink and lift a finger, which would be just as effectual as if they had shot at you. I saw one striker go on the back part of an engine tender of a locomotive and take hold of a brake that was there. The engineer attempted to start the train. He just lifted his finger and the engineer never moved that train.

Q. If these trainmen that were willing to run had received the protection either of the military or civil authorities, could they not have run out these trains, and do you not think they would have been run out?

A. I think everybody got all the protection it was possible to give them. The Pennsylvania railroad were not prepared to run these trains, and they knew what the riot was, and what it would amount to more than we did. I knew no reason why troops should be called out on the morning I was called out. Never heard of a disturbance of any kind. After the military had been called out, then affairs had progressed so far that to have started a train from Twenty-eighth street would have required to place upon that train a large force of military to protect it. You could have moved it, probably to the stock-yards, and through the stock-yards, because there was a military force to protect it there, but as soon as they got a little west, why something might be thrown upon the track—a demonstration made of some kind that would block the cars up. There was no certainty it could go very far after it had started. But for the reason that there had been no demonstration made at any point, I believe if the train had been started, it could have gone through; not

that it was in the power of the small force, civil or military, to put down the strikers, had they determined to resist, because there were too many of those strikers and fellow helpers in the mob.

By Senator Yutzy:

Q. You think there was a necessity for calling on the military?

A. Oh, undoubtedly. There is no question about it in my mind. The only thing I find to regret was that the military did not have proper information as to what it meant. I am but an humble citizen of the city of Pittsburgh, and I know nothing about the strike on the Pennsylvania railroad, and what led to it, and what it meant. I went down to Union depot, and until I met General Pearson, or the sheriff, I knew no reason why the military should be called out. When I got back I could see why. There was a demonstration against law and order.

Q. There was a necessity?

A. There was a necessity, for the evidence proved that.

Colonel Joseph H. Gray, *sworn*:

By Mr. Lindsey:

Q. Where do you reside, Colonel?

A. I reside in Pittsburgh, East End.

Q. What is your official position in the National Guard?

A. I am colonel of the Fourteenth regiment.

Q. Were you in the war of the late rebellion?

A. Yes, sir.

Q. What rank did you hold?

A. I was orderly sergeant of a company in the One Hundred and Fifth Pennsylvania regiment.

Q. How long were you in the army?

A. I went in in 1861, and remained in the service until the battle of Fair Oaks, where I was laid up from service.

Q. State when you received the orders calling you into service in July last—what day it was and what time?

A. I was not present. I had left Thursday morning and gone to the country, fourteen miles, and on Friday the order reached head-quarters for Colonel Glenn to assemble the regiment, about noon or after dinner some time.

Q. Was he lieutenant colonel?

A. Yes; lieutenant colonel. About Friday evening I heard that there was trouble in the city, and that the military was called out, and I also heard that the men could not be depended on—that they were not going to respond. Citizens from East Liberty came up. I jumped in my buggy and started to the city, and I met one company at East Liberty. I stopped there and, to my astonishment, found that the company had been assembled, and that a large majority of the company had responded to the call, and were ready for service, in their armory. I spoke a few words to the captain and told him to remain there until I came from the city, and he requested me to telegraph him immediately, and send him some orders. I stopped at my home, and put on my fatigue uniform, and came to the city, and went to the central armory and found there my adjutant, and that Lieutenant Colonel Glenn had taken what men had assembled there—there are three companies who have their armories there—and he had taken them to the Union Depot hotel. I immediately went there and reported for duty to General Brown. I inquired of my officers as to the number of men that had reported for duty, and then I had six companies in the city and four in the country. I inquired whether Captain Shof had been ordered out at East Liberty—he told me not. I went to the dispatcher's office, at the end of the hotel, and telegraphed to those companies to report to me immediately, at the Union Depot hotel. However,

at that time they could not very well get in, and I changed the order to report to me on the first morning train coming into the city. About 7 o'clock Captain Nesbitt came up and Captain Glenn, of Mansfield, reported with their companies. That was Friday evening. It was six o'clock when I came to the Union depot, and they arrived at seven. I went out to the dispatcher's office the second time, to order Captain Perchman in. I then met, for the first time, General Pearson and told him what I proposed doing, and he said that he preferred that Captain Perchman should remain in his armory there for the present, and Colonel Moore, as chief of staff, told me he had communicated with Captain Perchman to this effect, that he should go and get his men rations and remain there, so that I then turned my attention to having my men fed. I asked the gentleman in charge of the depot if he had any cars in the ... he should run them down, so that I could put my men into them for the night, until further orders. He immediately had cars run down. I did that because I wanted to get my men—there was a great deal of talking on the platform around the depot about the future operations. General Latta had just come in, and there was a good deal of excitement, and I did not want my men to know anything about it. I put them in the cars and kept them there until three o'clock, in the morning. Then I received an order, about twelve or one o'clock, to take my command, at three o'clock, sharp, to Twenty-eighth street, by way of Webster avenue. I marched out of the Union depot precisely at three o'clock, and General Brown and Colonel Smith and another gentleman. We went to Twenty-eighth street by a circuitous route, and took a position on the hill side center, opposite Twenty-eighth street, in line. There we remained during the day. I should say about nine o'clock, perhaps between eight and nine o'clock, General Brown sent his adjutant to me, asking the detail of one or two companies—I think he said fifty men.

By Senator Yutzy:

Q. That was on Saturday?

A. That was on Saturday morning. I sent two companies to the foot of the hill, and they were on duty there for an hour, perhaps an hour and a half,

and they were relieved by two other companies.

Q. From your regiment?

A. Yes, sir; during the forenoon I sent a request to General Brown that my two companies should be relieved. They had all been down, and I asked that they be relieved by the Nineteenth regiment. I thought we were doing more than our share of duty, and for other reasons I asked to be relieved.

Q. You speak here of Colonel Glenn?

A. Lieutenant Colonel Glenn. He assembled my regiment in the city, and reported to the Union depot.

Q. You say you were accompanied by Colonel Smith?

A. Colonel Smith.

Q. What regiment?

A. He is connected with another regiment.

Q. During the day, what companies were on duty at the foot of the hill?

A. They were not under my command. I never knew what orders they had that were detailed. I do not know to-day what their orders were. I know what duty they were performing. I was never down on the railroad myself until I was ordered off the hill. We were there when the Philadelphia troops came there, and we were witnesses of the conflict. About two o'clock in the afternoon I received an order—I think it was about that time—the only order I received from the time I had got an order to go to Twenty-eighth street—I received an order to have my command in readiness to move, at a moment's notice, on board a train. I immediately sent my commissary, Captain Wallace, to provide rations. While there was no explanation of that order, I understood his meaning that we should take charge of a freight train. I had the provisions there. The captain got the provisions at Twenty-eighth street, three days' rations, and we remained, momentarily expecting

an order to move down the hill and get on board a train. At the time that the Philadelphia troops came out——

Q. Before you come to that—did I understand you to say that you had no knowledge of what orders those companies had that were detailed, and sent down to the crossing of the railroad?

A. They were detailed away from my command, and I had no knowledge of what was to be done.

Q. Who did they report to?

A. They reported to General Brown. I know what duty they were performing there—could see it all. I might just say here that I had great apprehensions of the whole matter. They were not the impressions I had since. Those were what I had then. I want to say this: that I gave orders distinctly and positively that my men should not be allowed to talk with, or in any way have any conversation with, the strikers, and I say, also, that that order was positive. Of course, men sometimes were away; it was a pretty hot day, and they had to go for water, and occasionally, perhaps, they talked; but I do not think my orders were violated at all in any respect. I stayed with my men all day long watching their behavior, and at this time I received an order to get my men ready to go on a train. I felt pleased at this, for I thought those who were at the head of affairs understood the situation. I had my doubts before that whether they did. Though we did not go on the train, we were there, ready to go on after the firing was over.

Q. Give us the circumstances of the affair; how it occurred—you were present there at the time, were you not?—as briefly as you can?

A. I would say, first, that the Philadelphia troops came out in as grand style as ever men went to any duty, and their position was good. There can be no exceptions taken to the position. They moved up the tracks. My recollection of the matter is that there was one company in advance of the First regiment. I did not know it was the First regiment at that time. I know that from the report. They moved, and they were formed in line and marched to the left to the round-house, cleared the tracks, and then the rear rank was

about faced, and cleared the track, leaving an open space. Two other companies were brought up, and a Gatling gun brought up to that space, and the company in advance marched right into the crowd. They were as determined men as ever stood before anybody. I looked very earnestly, and with a good deal of solicitation, when the stones were thrown and pistol shots fired. I could not see whether there was many or not. There was a great deal of confusion, and the firing began and was kept up—a continuous firing.

Q. You say that pistol shots were fired from the mob?

A. Yes, sir.

Q. And stones thrown from the mob and other missiles?

A. Yes, sir.

Q. Was there any firing from the troops before that?

A. There was not a shot fired until after they were attacked. The first thing I saw—I knew it was coming. I was not disappointed a particle in regard to the whole matter—the company charge bayonets on the crowd, and the first thing I saw was a man in the mob take hold of a gun, and one man wrenched the gun away from him, and struck him with the bayonet with a good deal of force.

Q. That is, one of the soldiers?

A. Yes; and then the pistol shots were fired. It was all done in a moment, and then the fire began by the soldiers.

Q. Was there any command given to fire?

A. It was too far away for hearing the command; but I may say it was effectually done, and if that was so, it was only a pity the command had not been given.

Q. Was it a volley or was it a scattering fire?

A. It was a scattering fire, but it extended all along the line. We were immediately in front of the rear rank that faced to the rear, and received a good share of the fire.

By Mr. Lindsey:

Q. Was there a rush made by the mob towards the troops before the firing began?

A. The thing had been gathering momentum from ten o'clock. It was not a mob—the mob in front—that I was afraid of at all. It was the feeling that existed there, apparently strong outside, and when the mills closed that afternoon, it seemed to me they just came up there in hundreds.

By Senator Yutzy:

Q. Rolling mills, iron mills, and so forth?

A. Yes, sir; the crowd accumulated rapidly. They were going and coming all the time, and they were there in force.

Q. The mill hands are generally at leisure on Saturday afternoon?

A. I think they came right out of the mills, when they closed down. A great many, perhaps, came there out of curiosity, but there was a great many added to the mob down on Twenty-eighth street. The crowd increased rapidly at that time.

Q. From what you saw, would you consider an order to fire justifiable?

A. Yes, sir.

Q. What took place after that?

A. The crowd ran away. Those that were on the hill side came up and devoted themselves to the carrying away of the wounded for a time. The Philadelphia troops moved up and took their position by the crossing, at Twenty-eighth street, and placed their Gatling gun in position there, and I ordered my companies, Captain Glenn and Captain Nesbitt, up in line of

battalion. The crowd down the road, that had been there, collected again. However, they did not make any attempt to force themselves on to the railroad. The Philadelphia troops would strike terror into the crowd and they would run away for a time, and then would find there was no danger, and then they would come back.

Q. When did you go after that?

A. Five or six o'clock, after quiet had been restored, and the wounded had all been carried away, I received an order from General Pearson, to assist Colonel Howard, in moving Breck's guns to the round-house, and then go to the transfer office, and hold it against any attack. I sent that order—it was a written order—with my adjutant, to General Brown, who was with Colonel Howard, on my right and front, and reported to him that I was ready to move, in obedience to the order. However, I want to say, that was very reluctantly done.

Q. What was reluctantly done?

A. That movement by me. That was done, because their officers and their commands were there. Captain Breck came to me at that time, and said he had such an order, and asked me if I would not see General Pearson, and protest against the matter. I said to him that there were my men immediately in my line, and he commenced to explain the situation that he could be in, and I said to him, "Captain, I won't allow any discussion of that kind here." I told him to step to one side, and this order reached me, just at that time, and after I read the order, I found Captain Breck was waiting and I went to him. He asked me if I had concluded to do anything in the matter, and I said to him, we will obey the order. I felt then it was a great mistake.

By Mr. Lindsey:

Q. For what reason?

A. I did not think we had any business down on Twenty-eighth street.

Q. You went down to obey the order?

A. We obeyed the order. However, just immediately at that time the Philadelphia troops began moving into the round-house, commencing on the left, and moving in all the way up, and Captain Breck took this battery, and then went away, and left me on the hill. When I moved up they were all in the round-house, and the mob was pressing down this track. I moved down the hill. Had to go down by a flank movement. I anticipated trouble then, because I knew by their actions—they hooted and jeered and taunted the soldiers—the Philadelphians—as they went away. I anticipated trouble. However, we marched down by the gate-way, and marched through the crowd, and to the transfer station. Upon my arrival at the transfer station, I took a view of the station myself. Colonel Howard came and asked me in regard to the matter. Colonel Howard asked me if I would take command of the station. I told him General Brown was here, and he was in authority. I told him that I would throw out pickets on my front. The transfer station was separated by tracks in between. Colonel Howard was on the side next to the hill, and I was on Liberty street, and I told him I would take care of my side; that he could dispose of his own troops. We remained there, and the most of them went and laid down to sleep. It was dark, and most of my men, except those on duty, went to sleep. During the night General Brown came to me, and said that the place was untenable, and he advised me to get out of it. We commenced to consult about the matter, and I told him there was no trouble there, that it was a good place to rest, and that if we got into any trouble we could get out of it. A short time afterwards he and Colonel Howard came back, and I had the situation in my own mind, and had sent my officers out on the hill side, and at that very time I had sent Doctor McCandless, surgeon on my staff. He was well acquainted with the hill side in that part of town. I sent him up there to look at the situation—it is a very ragged hill—to see in case there was a necessity to pick out the best way, of a return by the way of the hill side to my old position on the hill side. When General Brown and Colonel Howard came to me, I told them what I had done, that I expected that our position was such we could not do any fighting, but we could from the hill side, and I had sent officers out to select a way by which we could get out, if necessary. There was no immediate danger. About ten o'clock General Brown came to me again, and said we

must get out. He had information that we must leave that place. Says I, "General Brown, you cannot persuade me to leave this, I will obey your orders, but I do not see any necessity for leaving this position at this time." He immediately ordered me to take my command, and go to the Union depot. I formed my command, and we started, but the road was full of cars, and we had to go out the best way we could. We got out into the open track below, and when I got out there, I halted the advance of the regiment, re-formed and marched into the Union depot in good order.

Q. Will you please tell me about how far it is from the transfer station to the round-house, where the Philadelphia troops were?

A. From the transfer station?

Q. From where you were stationed?

A. I have very little knowledge as to the location of that transfer depot. I never passed through there, except going east on the train at night, but I do not think it is very far, probably two hundred yards.

Q. That is where you were stationed, about two hundred yards from the round-house?

A. I should think so. That is my idea of the distance there. When I arrived at the Union depot, I was pretty disgusted with the thing—had been all day, for that matter. After I re-formed my men, I had expected to get some rations. I knew my commissary was there getting some, and I sent an officer to inquire and find out. General Brown, I went to him, and asked him for orders, and to my utter astonishment he told me I could dismiss my command.

By Mr. Lindsey:

Q. Did you obey him?

A. Not then. I called around my officers—those that were nearest to me—surrounded the general, and protested in the strongest terms that I was allowed to, in regard to the matter, that it was a disgrace to the officers and

men that I had there willing to do their duty; that it was a disgrace also to desert the Philadelphia troops. The general was a little startled at my talk, and he says, "You remain here a few minutes, and I will see you again." He left me, and I did not see him again.

By Mr. Means:

Q. I would like to know where and when your regiment was disbanded?

A. When and where it was disbanded. It was disbanded a few minutes before eleven o'clock at the Union Depot hotel, by myself, in obedience to General Brown's order. And I want to say this in regard to that matter: After I remained there awhile, I went up to the office of the Union Depot hotel, and inquired for General Pearson, and they told me that the general was not there. I inquired for General Latta, and they told me he was not there. I wondered where he could have gone to, and I saw Mr. Murdock, who is one of the officers, and he made the same reply; and I had great confidence in him.

Q. Your head-quarters is here at the market-house, isn't it?

A. I had my head-quarters at my office. That is, our armory.

Q. Your regiment was not brought there, then, as a regiment, and disbanded?

A. Not that night. No, sir; because I had four companies who had to go home by railroad.

Q. Were any of the companies brought down here and disbanded?

A. That night?

Q. Yes, sir?

A. No, sir. I directed my staff officers to notify the commanding officers of companies that their services were not needed, and to take their men to the armories and dismiss them.

By Senator Yutzy:

Q. What the captain wishes to get at is, did your men break ranks there at the Union depot?

A. I had a company in the next day at ten o'clock.

Q. They marched out by companies?

A. Yes, sir.

By Mr. Means:

Q. What I want to get at is this: If your regiment was disbanded at the Union depot; and after that, did you not have command of them as a regiment?

A. Well, sir, I dismissed my regiment at the Union depot. I also sent word to the companies who had to leave the city—I had four companies—that they were perfectly safe, and they better not go away till morning.

Q. What did they do with their arms, when you dismissed them?

A. They took them home, except one company; they could not get away that night, and stayed there. At ten the next day, I had three companies that went out on the eleven o'clock train.

By Mr. Means:

Q. The companies that left lived in the rural districts; they took their arms with them to their homes?

A. I think they all did, so far as I know, except one company.

Q. And they remained in the city?

A. That company was a home company, and remained at the Union depot until ten o'clock next day, before it left.

By Mr. Lindsey:

Q. How many rounds of ammunition had you?

A. I think we had about eight or ten rounds to a man. It was not very equally divided, but we averaged that during the morning. We had received our ammunition, our share of the ammunition, by requisition, a few weeks before that time, and had sent out to the arsenal, and they had not received it, and it was left at Captain Fox's armory, in Lawrenceville, and on that morning, I think that we hadn't enough, and I sent out a wagon and had a box of a thousand rounds brought in, and it was carried up from the crossing to my regiment, and a great many of the strikers came up to see what kind it was, and that was the only time that any of them was up there in any considerable number. That is, if there were any up there, they were strikers away from the fold. They came up, and I allowed them to remain there until the ammunition was distributed and issued, so that they could see what it was. Then I ordered them down the hill and they went. A few minutes after that one of their number, I presume him to be one of their number, came up and commenced to me about our being there, and I asked him who he was, and he said he was a striker, and that they were armed and that they were going to fight for their rights.

Q. This was on Saturday?

A. Yes, sir.

Q. Before the Philadelphia troops came out there?

A. Yes, sir; he said they were armed and they were going to fight for their rights. I heard him, and told him if that was all the business they had up there he had better get down the hill, or I would arrest him. He left. That is the only man I talked to that day outside of my own regiment.

By Mr. Means:

Q. Did you know who that man was?

A. No; I did not know him.

By Mr. Larrabee:

Q. At the time you dismissed your troops at the Union Depot hotel, about eleven o'clock, was the whole number with you that you took out in the morning?

A. No, sir; there was not.

Q. What had become of those that were not there?

A. I dismissed some men early in the day of Saturday morning, men whom I think were not in a condition to do service there under the circumstances.

Q. For what reason?

A. There was two of them got something to drink and got drunk. I think they were drunk, and I relieved them from duty and sent them away. That was one thing I had great care about. I believe that a commander is responsible for the morality of his men, and I was looking after that particularly on that occasion.

Q. How many less men did you have at night?

A. I had between thirty and forty.

Q. That were missing—some of those went off on their own account?

A. No, sir. I dismissed one company entire. I had one company after the firing of the troops—a great many of the killed and wounded were killed immediately in front of my line, and I saw the men raising their guns to fire, and I ordered my men to lie down, and I think I saved the lives of some of them by so doing. Immediately after that there was a great deal of excitement, and the crowd down on the hill side came rushing back and got in the rear of my line. I ordered the captains to examine the men to see that they had not loaded their arms. I did not anticipate that that was the end of it, but I wanted to know whether any of my men had loaded their arms under the excitement, and I found it was reported that some of them had. I

saw some myself, and this company—the lieutenant had an altercation and tussle, and took a gun—the man refused to obey, and the lieutenant took hold of the gun and took it from him. It created a panic in the company, and they ran back of the line for a few yards, and I sent Colonel Glenn to see what the trouble was, and the men were a good deal excited. Afterwards the captain came to me and I sent an order to have them remain there in that position, and the captain came to me afterwards and asked me to order them back into the line, which I refused to do. I determined to send them home. I dismissed twenty-eight men in one company. I want to say that I believe I did these men a great injustice. Some of these men tried to get back here at night. I did not know the circumstances, and I supposed that under the excitement of the firing that they had run back. And when the matter was explained to me afterwards, I believe I did them a great injustice. I know I did, because they did service after worthy of all praise.

By Mr. Larrabee:

Q. Did any of your men straggle off and desert?

A. Some men went away—not many.

Q. How many men had you at night, or about how many, when you dismissed the regiment?

A. I had about one hundred and forty-six men and twenty-seven officers. I had my men counted before I dismissed them. I was not deceived in regard to them from first to last.

Q. What was the captain's name of that company you sent off?

A. Captain Graham.

Q. Were they veterans as a general thing—had seen service?

A. Which?

Q. These men in the company.

A. I could not answer that; some of them were, I know that. All my officers are old veterans, except one.

Q. You have seen service in the war?

A. Yes, sir.

Q. In what capacity did you serve in the army?

A. Orderly sergeant.

Q. For how long were you in the service?

A. From September, 1861, until the last day of May, 1861.

Q. When you were wounded?

A. Yes, sir.

Q. What explanation did you have from General Brown for disbanding the regiment or dismissing the regiment at that time?

A. There was no explanation of it at that time.

Q. Did you think that that order of General Brown's to dismiss the regiment could be justified on any grounds?

A. No, sir.

Q. You dismissed your regiment upon that order, simply because you consider it your duty to do so. You obeyed orders?

A. Yes; I obeyed orders.

Q. Where was the Nineteenth regiment at that time?

A. I only saw one of the officers of the Nineteenth regiment at the Union depot, and that was Captain Bingham.

General A. L. Pearson, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I live in the city, sir.

Q. What is your profession?

A. I am a member of the bar of this city.

Q. Member of the National Guard?

A. Yes; I command the Sixth division National Guard.

Q. With what rank?

A. The rank of major general.

Q. Were you in the late war of the rebellion?

A. Yes, sir.

Q. How long?

A. I entered the service in the beginning of 1862, as captain, and went through the intermediate ranks of major, lieutenant colonel, colonel, and was afterwards brevetted brigadier and major general—commanded a brigade at the end of the war.

Q. Were you in the city on the 19th of July last?

A. Yes, sir; I was.

Q. State when you first heard of the disturbance among the railroad employés, and your connection with it thereafter?

A. On the evening of the 19th July—Thursday, I believe—I was going home—I live just at the Allegheny arsenal—I live on Thirty-ninth, just directly opposite the Allegheny arsenal—going out in the street car, and I observed numbers of men standing up along the railroad. At that time I knew there was no difficulty. Had not heard of any strike or any disturbance

of any kind or character. I suppose I retired about half-past nine o'clock. In the neighborhood of ten, or probably half-past, a carriage drove up to my door, and the bell rang, and I went to the door and found a telegraph dispatch from General Latta, asking if I knew anything relative to the disturbance on the Pennsylvania railroad. The messenger who was in the carriage requested me to go with him. Who the gentleman was I do not know. I went with him.

Q. What time was the message received at the office?

A. That is what I cannot tell you.

Q. Did not notice that?

A. I did not notice it. I supposed it had just been received, and brought directly from the office to my residence. I received it probably a few minutes after ten—between ten and eleven. I got in the carriage and accompanied the gentleman down to Mr. Pitcairn's office, which is at the corner of Twenty-sixth and Liberty avenue. When I got there I think Mr. Scott was present, who was the solicitor of the road, and several other gentlemen. They told me about the difficulties, and stated that they had sent to Sheriff Fife. At that time I knew of no difficulties. Did not know there were any troubles at all, and I waited a long time, and I presume it was in the neighborhood of twelve o'clock when Sheriff Fife arrived, and they talked over the situation of affairs, and at the request of the sheriff I accompanied him to Twenty-eighth street, walking up the track.

Q. Twelve o'clock at night?

A. I suppose in the neighborhood of twelve o'clock in the night. When we arrived in the neighborhood of Twenty-eighth street, several shots were fired—not at us, however. They were fired, I presume, in the air, at least, nobody was hurt, and we went in among the crowd, and the sheriff mounted a little pile of lumber or so, and told this crowd who he was, and was answered with most outrageous language. He told them he was there as a law officer of the county, and insisted upon them dispersing. Told them the consequences of their illegal acts. After he had spoken sometime, some one,

who evidently was leader of the party, cried out, "Why, you can go and bring your posse, we don't care a damn for you or your posse. Mayor McCarthy and his police are with us." Then they mentioned the name of some merchant who had promised them a thousand barrels of flour, and another gentleman who promised them one thousand dollars if they would continue. After they had made these remarks, two or three of the fellows took me one side, and told me about a man named McCall, who had been arrested for striking Mr. Watt, and wanted to know if I would defend him next morning at the mayor's office at ten o'clock. I told them if it was necessary; that I was an attorney, and I would go with them, and advised them to leave the railroad property at that time. Talked to them quietly, and promised to meet them the next morning to defend this fellow who had struck Mr. Watt. Sheriff Fife still talked with the crowd. The crowd was very large, and, while he was talking, one or two, maybe three, dispatches—whether they were telegraphic dispatches or not, I do not know—but they received one or two, and probably three dispatches.

Q. The mob?

A. The mob; and as some person would announce the fact that they received these dispatches they would run hurriedly with a lantern, and he would read it out. They said we don't care a damn for you, or your posse, to-morrow at eleven o'clock we will stop every road in the Commonwealth. There will not be a railroad train run to-morrow after eleven o'clock. Their language was simply outrageous. One or two women in the party were, if anything, worse than the men, and extended invitations to the sheriff which he did not accept at that time. Whether he has or not, I don't know. No such invitations were extended to me, however. At that time I was treated very civil, indeed. They treated me very nicely with the exception of the boisterous language which had been used more directly to the sheriff. Finding nothing could be done they insisted upon remaining where they were, and stopping the trains. We walked down to the telegraph office where we had left, and there in consultation with Mr. Scott and others who were present, the sheriff sent communications to the Governor, to the Lieutenant Governor, to the Adjutant General, and Mr. Quay, and whether he sent to any other State

officers or not I can't say. He hesitated at first in regard to writing these communications, and said he would prefer to have his attorney. Says he: "I can't reach Mr. Carnochan, but I will submit and ask your advice in regard to this matter."

Q. That is, addressing himself to you?

A. Addressing himself to me. I told him I was very free to confess that after having heard what had been said by the mob at Twenty-eighth street, and the fact that there was not a single police officer to be seen in that neighborhood, although large crowds had congregated there, that it was more than likely that what they said in regard to the mayor was true, that everything looked very serious, that he had but one duty to perform, and that was to call out his *posse comitatus*, and in view of the fact that everything looked so badly just then, that I would not hesitate, were I the sheriff of the county, under the circumstances, to notify the Adjutant General of the true state of affairs. He then sent the telegraphic dispatches as I have stated.

Q. By whom were they written?

A. That is what I cannot tell you, sir. They were sent, I know, by the sheriff. They were not written by myself, and I do not think they were written by Sheriff Fife.

Q. Were they written by Mr. Scott, the solicitor?

A. I think it is more than probable that Mr. Scott wrote the dispatches. When I knew he was going to send the dispatches I had other things to think about. I knew my command was scattered, and I would have a good deal of work to get them out if I was so ordered.

Q. Who first suggested the calling out of the militia in that conversation?

A. That would be hard to tell. The conversation was a general one. Probably there were half a dozen gentlemen present at that meeting.

Q. Between yourself and the sheriff?

A. There was Mr. Scott was there, and I think Mr. Watt and the sheriff, and two or three other railroad officials, and myself. The dispatches were sent. I telegraphed General Latta that I was then at the telegraph office, and subject to any orders that he might send. At about three o'clock, probably half past three o'clock in the morning, I received a telegraphic communication—order from General Latta—ordering me to place one regiment—ordering out one regiment for duty. Upon that order I telegraphed Colonel Guthrie, who resided at the East End, telling him I had ordered out his regiment—the Eighteenth regiment. I came down to the city and stopped one or two of the newspaper presses, and got my order—I think it was in the *Gazette* and the *Dispatch*—calling upon the Eighteenth regiment to assemble at their armory at six o'clock in the morning, and report at the Union depot at seven. My adjutant was out of town, and I had no means of reaching any members of my staff; but having telegraphed Colonel Guthrie, I fortunately met him early on the following morning, and he had been at work from the time he had received my dispatch in getting his men together. From the fact that his regiment was scattered all over town, it was almost impossible for him to have access to the members of his command, and they did not report at the hour named, to wit: seven o'clock in the morning, but at about twelve o'clock. Colonel Guthrie reported at the Union Depot hotel. I deemed it then—at that time, at Torrens station, where the stock-yards were—there was a large number of sheds, and a great many cattle congregated there, and a large crowd had been there, and I considered it was the principal point of attack—that there was more danger to be apprehended there than any place else. I consequently sent Guthrie and his command to Torrens station by rail. I had telegraphed General Latta of the situation of affairs, and suggested the propriety of calling out the remainder of my division, and received an answer thereto, with orders to that effect. General Brown lived at McKee's, some distance below the city, and I had no means of communicating. I consequently issued my orders directly to the regimental commanders, Colonel Gray and Colonel Howard; also, instructing Captain Breck to report with two pieces of artillery. Late in the afternoon of Friday, probably in the neighborhood of half past three o'clock, Captain Breck reported with his two pieces of artillery, and Colonel Howard reported with

but a very few men—I suppose, all told, not fifty from his regiment. I then ordered Colonel Howard and Captain Breck, with his two pieces of artillery, to take their position on Liberty avenue, with the expectation of moving out to Twenty-eighth street. Mr. Thaw, Mr. Scott, and Mr. Cassatt, and one or two other gentlemen, met at the office of Mr. Butler, who was the depot master, and wanted to know whether I could clear Twenty-eighth street with the number of men I then had—that was about seventy-five. I told them there was no doubt about my——

Q. What time was that?

A. That was at four o'clock. I told them there was no doubt about my ability to clear the tracks, at that time, with the number of men. That I had already ordered them to start, to go out Liberty avenue to Twenty-eighth street, and up Twenty-eighth, and take possession of the tracks at that point. I had no doubt of my ability to clear the tracks, at that time, but I was compelled to say that it would be at a fearful loss of life, a thing that I preferred to avert, if possible. Mr. Thaw and Mr. Scott both expostulated, and asked if I would send an aid, and stop the troops from going at that time, which I did. They halted at the Catholic church, and we then talked the matter over. Mr. Cassatt thought it much better to go out and take possession of the property then, even if there should be a trouble. I told them, then, that I could go and take possession of the track, that I thought, from the feeling that was existing then, it would be impossible for me, with seventy-five men, to hold the position. I would clear the tracks, but I would not promise to hold the position at that locality. After considerable conversation, believing it better to avert bloodshed and loss of life, and, acting upon the suggestion of Mr. William Thaw and Mr. Scott, I re-called the troops, and brought them into the Union depot, but, in the meantime, I had visited Torrens station, in company with the sheriff, and he there had spoken to the crowd, and commanded and demanded that they should disperse. They treated him with a very great deal of disrespect, hurling all sorts of outrageous epithets at him, and, seeing quite a number in the crowd whom I knew, not by name, but whom I knew, I thought if I would talk to them I might have some influence, and I got up on a tender, and spoke to them. It just had the

opposite effect. They said, we don't care a damn for you or your troops. One man in particular said, "I have been in the army for four years, and many of us have been, and we are going to have bread or blood, and we will wade up to our waists in blood before this thing is over." I told them that was the language generally used by fellows who ran away. There was a good many women and children, and I begged that they would go away. We then returned to Twenty-eighth street, and I again spoke to the crowd there, with a like result. After the troops had been re-called into the Union Depot hotel, it was suggested that, inasmuch as very many of the men of my division were workingmen, who, probably, had fathers or brothers who were directly interested in the railroads, being employés of the road, that their sympathies would be with those that were opposing law and order, that some other troops should be called, and Mr. Cassatt suggested that a Philadelphia regiment be sent for. I telegraphed to General Latta what had been suggested, and, in answer thereto, he asked what I thought of affairs. I told him, from the situation of affairs, that I thought it would be much better to bring additional troops here, and that we ought not to have less than two thousand. That there was but one way to avoid the shedding of blood and loss of life, and that was to overawe the strikers and rioters by an appearance of strength. Acting upon that suggestion, I think General Brinton's command was ordered here. In the evening, I received a telegraphic dispatch from General Latta, stating that he had ordered General Brinton's division to report to me. I received a dispatch from General Brinton, stating that he would leave at one o'clock with eighteen hundred men, fully armed and equipped. At that time, Colonel Gray had reported with the Fourteenth regiment at the Union depot, and a considerable number of the Nineteenth regiment—Colonel Howard's regiment—had also reported, swelling the entire strength of the division to the neighborhood, probably, of six hundred men. Of that number Colonel Guthrie, probably, had two hundred, and over, men at Torrens station. Anticipating the arrival of General Brinton early on Saturday morning before daylight, I ordered Colonel Gray, and Colonel Howard, and Captain Breck to have their men under arms, and ready for any movement I might suggest.

Q. On Saturday morning?

A. Yes, sir; and I think about two-thirty o'clock that morning, I sent Colonel Gray out, taking a circuitous route—taking Bedford avenue, so as to strike the top of the hill directly opposite Twenty-eighth street, with orders to deploy on the summit of the hill, and move down, and giving him time to get to that locality. I had taken out Breck's two guns upon gondola cars and what troops of the Nineteenth had reported under Colonel Howard, and just as we reached Twenty-eighth street, Colonel Gray's regiment could be seen coming down from the summit of the hill, and moving down towards the pieces. At that time there were not many men there—not many of the mob. We disembarked Captain Breck's guns, and placed them in position, facing Twenty-eighth street, and commanding that position. Colonel Gray moved his command down, probably half way down the hill and halted. Colonel Howard took possession of the railroad tracks, and I walked up to meet Colonel Gray's command, and found half a dozen men who had evidently been posted there, and we drove them off the hill. We pushed the crowd back clear to the westerly track, and I told them then and there, that the Philadelphia troops had been ordered here, and that we had no blank ammunition, that these men were all sworn into the service, that they had but one duty to perform, and that was to obey orders, and that they were there in opposition to the law, and that they must leave.

Q. The mob was there in opposition?

A. The mob was there in opposition to the law, and they must leave the tracks, that they had no right there, and that the orders that I would give to my troops would be to keep the hill side clear, and the tracks open for the passage of any trains the railroad officials might see fit to send. There was considerable howling at that time, and some of them spoke about wanting bread, and says I, "If you want bread, if you will go away from there, I will send you a car load of bread. I will furnish you with all the bread you want, if you go away and let these tracks alone." The tracks then were comparatively clear. There was no person on the hill side with the exception of the troops. I then gave directions to General Brown, who had command of the infantry portion of the division, to keep the hill side clear, and allow no person upon the track, and to hold it in the position until he received

further orders from me. He spoke of the fact that Twenty-eighth street was a public street, and that the public had a right to use it. I told him that was a matter he had no concern about whatever. I had the responsibility of closing up that street, and I gave him an order to keep the hill side clear, and the people off the track, and anything he might do to carry out that order I would be responsible for, and he would be doing what would place him in no false position. I then jumped on the locomotive, and returned to the Union Depot hotel. During this time numbers of people had come to me to expostulate with me for calling out the troops. I told them that was a matter in which I had no concern whatever; I was merely obeying orders. I was a sworn officer of the Commonwealth, and that every officer and every man in my command had filed their oaths to obey orders. I was there to obey orders, and anything that might happen would not be upon my shoulders, but upon those who were breaking the laws. I received telegrams from General Brinton from various points on his route to Pittsburgh from Philadelphia. When he reached Pittsburgh, it was then in the neighborhood of two o'clock. He had about five hundred and fifty men and two Gatling guns, and I think twenty thousand rounds of extra ammunition. Upon his arrival, we furnished his command—they came in two sections—when the first section arrived, we furnished the troops of that section with such rations as we could procure, which was nothing more or less than a sandwich and cup of coffee, and probably thirty minutes after the second section arrived, and we furnished the troops in that section with sandwiches and coffee. We took the ammunition and placed it in the small building near the track, and I then took General Brinton out and had a consultation with General Latta, who was then in the Union Depot hotel. He wanted to know what my plans were, and I told him, and he asked me the question, "Do you still think that it is better to overawe the mob with the large number of troops?" And I told him, certainly I did, and General Latta agreed with me. Says he, "I think you are pursuing a wise policy. We will try to avert the shedding of blood and loss of life if possible." He then wanted me to show General Brinton the situation of affairs, and I drew a small plot of Twenty-eighth street and the hill, and the track, the round-house, &c. And General Latta asked me, "Who will you send out with General Brinton to show him

the situation?" I told him I had better go out myself. We started out the tracks, taking the two Gatling guns by hand. At that time a large crowd was congregated in the neighborhood of the Union Depot hotel, many of them looking over the fences, and others had got inside, and were mingling with the troops, but we pushed out the tracks, and in the neighborhood of Twenty-fourth street there was quite a crowd lining the tracks, standing on the cars, occupying the side of the hill. Probably at that time there was in the neighborhood of one thousand five hundred or two thousand cars laden with all kinds of goods there, and I suggested to General Brinton the propriety of leaving a portion of his troops to guard his flank and rear, as well as to protect the cars, which he did. I think that was probably General Loud's brigade, consisting probably of three hundred men. They were deployed over that locality clear up to the lower round-house. We pushed on with the balance of the troops, headed by the sheriff and his posse. When we got to Twenty-eighth street, instead of finding the tracks clear, and the hill side clear of people, there was one dense mass of humanity, men, women, and children—the hill side was crowded with people. I could not see Colonel Gray's regiment, the Fourteenth. I found a small portion of the Nineteenth occupying the right hand track of the railroad, and the entire tracks in possession of the mob. As we went up the track the sheriff was received with all manner of derisive shouts, calling him all sorts of names. I was received in a like manner, but the crowd seemed to know me very well by name. They pointed me out, and everything that a dirty, low man could say was said. At that time one of the mob pushed through the line of soldiers and struck at one of the officers—whether it was General Brinton, or General Mathews, who commanded one of his brigades, I don't know.

Q. What did he strike with?

A. Struck him with his fist. I got the fellow by the shoulder and quickly pushed him towards the sheriff. Says I, "Here is a fellow that will make trouble; take charge of this man." The sheriff pushed him into the midst of his posse. At that time there was a fellow standing upon my right, just off the railroad tracks, and he was doing a good deal of loud talking and making all sorts of threats. I pointed him out to the sheriff, and says I, "Here

is another fellow you had better arrest; he will make trouble." I pushed through the mob and started up the hillside to find where General Brown was—to find where the Fourteenth regiment was, and the remainder of the Nineteenth was. I found Colonel Howard, who commanded the Nineteenth regiment, occupying a position on a private road leading to the West Pennsylvania hospital, and asked him the question what he was doing there. He said he had been ordered to report there, and, says he, "I am sorry to say you can place but little dependence upon the troops of your division, and some of the men have thrown down their arms and others have left, and I fear the situation very much;" and spoke in like terms—says he, "I think the Fourteenth regiment is in the same position." I then gave orders to Colonel Howard to move his command in such a position that they would be of some use in case of attack, which he immediately proceeded to do. I then came down, pushed through the mob, and having heard this information from Colonel Howard of the situation of affairs, and finding General Brown was not to be found, I did not see him, and did not know where he was—had not seen him that day at all—and finding the hill side occupied with people, the tracks in complete possession of the mob, the troops outnumbered in a very large degree, I concluded it was my duty then to notify General Latta of the state of affairs, and to ask that additional troops be sent for. I knew that four divisions had been ordered under arms prior to that—General White's, General Huidekoper's, General Gallagher's, and probably General Bolton's, had been ordered under arms prior to that. As I pushed through the mob I found that General Brinton had deployed, by what command I cannot state. But one single line of his troops occupied a portion of the westerly track. There was a single rank facing the hill side, and as I passed down the company was moving up from his rear and moving directly up the tracks towards Twenty-eighth street. I left my station there with Major Evans, walked down the tracks, entered the telegraph office at the corner of Twenty-sixth and Liberty avenue, and telegraphed General Latta of the situation of affairs, asking if he would immediately telegraph to the Fourth division commanders and order them at once. Probably that had hardly taken place, and in looking out of the window I found a man carrying a boy across his arms with his legs dangling down. I

remarked to Major Evans that I feared there had been a conflict. He went out and came back with the report that a boy had been sun-struck. Just then I heard a cry on Liberty avenue, and looking out of the window I found the dead and wounded being carried past, and the crowd rushing down to the workshops of the railroad. At that instant Mr. Cassatt came in. He had been up in the cupola of one of the workshops, and had seen the firing and was the first to communicate the fact to me that the firing had taken place. I had not even heard the reports of the muskets. I presume the noise of the ticking of the telegraphic instruments and the steam which was up in half a dozen locomotives in the adjoining round-house was such that I did not hear the explosion of the pieces. Mr. Cassatt stated that as the mob was rushing round Twenty-eighth street and down Liberty, towards the round-houses, he feared destruction of property. The round-houses were filled with locomotives, the workshops filled full of valuable machinery, and the tracks lined with cars laden with all sorts of valuables of every kind and character, and stated that he feared that property would be destroyed. I had sent word to General Brinton asking him, if necessary, to send a staff officer to me or communicate in person. He came in in a moment or two, stating that he had cleared the tracks; that the mob had fired upon his troops; that many of the men had been knocked down by stones and pieces of iron, and without orders his troops had fired into the crowd; that the tracks were cleared, and that he was ready, and if they had any trains to send them out. It was then stated by some of the railroad officials that they had no crews to send out trains, and Brinton suggested that in as much as nothing could be done that night, and his men were almost in a famished condition, that they be brought into the round-houses or workshops. I then stated that it was the only thing to be done to save the property of the road. I issued orders to General Brinton to bring his troops in and to occupy the round-house, and I sent direct communications to Colonel Howard and Colonel Gray ordering them to bring their regiments in and take possession of the transfer offices, which were long wooden sheds, extending from Twenty-third, I think, to Twenty-fourth street. My orders were obeyed. Captain Breck brought two pieces of his battery in and placed them in position, facing Twenty-sixth street. Brinton's two Gatling guns were brought in and placed in a like

position. The gates fronting Twenty-eighth street were closed, and everything at that time in as good a condition as could possibly be. Mr. Pitcairn, superintendent of the western division of the Pennsylvania Railroad Company, who had been an observer of all the Twenty-eighth street troubles, came in, and I suggested the propriety that they should go down and send out rations from the depot hotel. They said they would, and they started off for that purpose. Towards evening an express wagon came up. General Brinton and his staff was occupying the second story, then, of the telegraph office, and I had my station there. We were congratulating ourselves upon the fact that we were going to have at least one decent meal. We could see the express wagon coming up with the supper, and just at that time the crowd made a rush upon the wagon and took entire possession, and instead of supper we got broken dishes through the windows, which did not add much to the good feeling existing in the building at that time. And after that an Irishman—I know he was an Irishman by the cut of his jib and his language—drove up on a bob-tailed, lantern-jawed horse and made a very inflammatory speech to the mob right in front of the gate. It was a very ludicrous speech, and the mob seemed to take it as such, because one of them pulled off a piece of board off a fence and struck the horse over the back, and the last we could see of this Irish orator he was going down Liberty avenue. Then a few shots were fired through the windows, and stones thrown, and General Brinton insisted upon firing into the crowd with his Gatling guns. I expostulated with him, telling him the situation was not serious enough to use his guns at that time, because then on Liberty avenue, directly in connection with where we were, there were very few of the rioters. Down Twenty-sixth and up there probably there were a thousand men, women, and children congregated, and particularly women and children, and as his officers would go up to his Gatling guns the active rioters who were on Liberty avenue would get behind the stone wall, leaving Twenty-sixth street exposed. I ran out and called attention to the fact. Says I, "If you fire now instead of killing these people that should be killed, you will kill a large number of women and children who are merely idle spectators," and gave direct orders to one of the officers not to fire that gun. They apparently cooled down and returned into the building, and the

thing was repeated. I then gave orders again that until the affairs became more desperate that there was no occasion to use the Gatling gun, because the active rioters would not be injured—that merely women and children would be knocked down in the streets. At eight o'clock—in the neighborhood of eight and nine o'clock—General Brinton had been complaining during this time of the half-famished condition of his troops, and I knew the fact that they were in a half-famished condition, and I knew my own troops were no better off. My commissary—the officer who attended to the commissary of my division—was at Torrens station. General Brinton was at the Union depot, and he asked me the question, "Can you not go down and try to get some provisions of some kind to carry to my troops?" Says I, "I think I can." At that time everything was apparently quiet, and, accompanied by the members of my staff, we started down the railroad track, leaving General Brinton in command at that place, leaving him with orders to hold the position.

Q. Where was Cassatt?

A. Mr. Cassatt had, long before this, gone to the Union Depot hotel. I do not think any of the railroad employés were there at all.

Q. What time was it you started?

A. I think it was between eight and nine o'clock that night. We started down the tracks, and when we reached the depot——

Q. Were you dressed in uniform?

A. Yes; my entire staff was in uniform. All had our swords and everything. When we reached the depot, everything was silent as a graveyard in and about the depot, and we passed down and entered the Union Depot hotel. We went up to General Latta's room, and there found General Latta, Colonel Quay, and Mr. Farr, the Governor's private secretary, Colonel Norris, of the Governor's staff, and several other gentlemen. There seemed to be a very great deal of surprise manifested at the fact that we had got through the crowd and reached the Union depot. I had established my headquarters there at the beginning of the entire affair, and it was then suggested

that, inasmuch as the rioters had blamed me for ordering the firing and killing the citizens, that my remaining in further command of the troops would only aggravate affairs, and that was doing a very material injury to the troops, and it was stated by some one in the room that the rioters had gone through the hotel looking for me. That they had gone from the cellar to the roof, and if found, I and any with me, would be hanged. I thought the threat was an idle one, and wanted to know what they wanted me to do. At that time we could hear bodies of men marching up with drums and fifes, and hear them shouting.

Q. What room was that?

A. General Latta's room, at the Union Depot hotel. And then General Latta suggested me—he asked the question—and says he, "Is General Brinton in command out at the round-house." Says I, "He is." Says he, "Then I think the best thing we can do for the situation of affairs and the protection of your troops, and to try and quell this disturbance, is for you to go away from here. If you do not go, you will be hanged." I told him there was a sufficient number of us there to make a hanging very agreeable to all, and I did not think there was much danger; if any one was hanged, somebody would be hurt. He said it was no time to use any levity; the situation was very serious, and my life was not worth a penny, and that my remaining in command of the troops was doing an injury; that I had been blamed for the whole thing. I asked him what he wanted me to do.

Q. What time was that in the evening?

A. It was between nine and ten o'clock.

Q. Saturday night?

A. Saturday night. Says I, "What do you want me to do? Do you wish me to change my head-quarters? If so, will I go to the Monongahela house?" "No; you will just be as bad off there as here," and then Major Evans, of my staff, spoke up, and said, "General Latta, if you insist that this ought to be done, let General Pearson come to my house." General Latta said, "Yes; that is the very thing to do." I had never been at Major Evans' house, but knew it was

in the neighborhood. The address was taken by General Latta, and I think by Mr. Farr, of the Governor's staff. At that time, Mr. Dalzell, one of the attorneys of the road, came into the room, and I spoke to him, and I spoke to Quay. Says I, "Mr. Quay, do you think I ought to leave this place?" Says he: "I certainly do. The situation of affairs is such in the manner in which you are blamed for this, that you are doing an injury to the troops;" and others of the Governor's staff spoke up in the same way. Says I, "Very well, I take this as an order, but before I go I will leave you three members of the staff." I left my brother, Mr. Murray, and Major Steen, stating that I would be prepared to perform any duty. That these officers knew where I could be found, and anything they wished done, I would do. Major Evans and myself left. There was no possible way of getting out front, and we crossed a small bridge, and went up over the hill-side, and reached Major Evans' house. At that time there had not been a car fired, and there had been no torch communicated to anything—buildings or cars.

Q. Where was Major Evans' house?

A. Major Evans' house is situated in what is known as Oakland. I do not know what street he does live on.

Q. What distance from the Union depot?

A. I suppose it is in the neighborhood of a mile and a half. We reached Mayor Evans' house, and I then sent him over to find out, if he could ascertain anything about my family. I had heard my house was ransacked, and I know that my daughter had been driven away. She drove down in an open buggy after the firing. Came down to Twenty-sixth street and the round-house, where the troops were, drove through the mob, and tried to get some communication from me. It had been reported that I was shot. It was impossible to get any communication with her, and the mob drove her off. I sent Major Evans over to see if he could find out anything about my family. While he was gone, Colonel Moore and my brother came out for me to give him an order for ammunition at the Allegheny arsenal. The ammunition had been stored there and could not be taken out, except by my order. I gave the necessary orders. At that time everything was quiet. They started away with

the orders for ammunition. Subsequently Major Evans came in and reported that so far as he could learn everything was quiet. At about ten o'clock, Sunday morning, I was wakened up and told of the fact that the rioters and mob had set fire to the cars and burned out the round-house, and I immediately sent a written communication to General Latta, by Major Evans, stating that I had heard what had taken place, and desired to receive some instructions from him. That I was ready to perform any service, and to do any duty, and to go any place, and suggested the propriety of immediately telegraphing the Governor for his return. Probably about one or two—it might have been after that—Sunday afternoon I received a verbal reply by Major Evans stating that General Latta had stated for me to remain where I was until I got further orders. My appearance then would only aggravate matters and do more harm than good, and for Major Evans to report on the Monday following. I sent Major Evans in on the Monday morning, and at the same time General Latta had left. I believe he did not see him. I know nothing at all about the situation of affairs from that time up.

Q. How long did you remain at Major Evans'?

A. I remained several days there, and the family being a strange family to me—had never seen his family. I knew the major very well—and having received intelligence that there was a likelihood of the major's house being mobbed, and not desiring to put them in a situation of that kind, I left Major Evans' house. Subsequent to that—of course, when I left the Union Depot hotel, I looked upon that as being virtually a relief from my command, and found, by reading the daily papers, that General Brown had assumed command of the division. I think it was the 1st of August—a number of days subsequent, anyhow—I received an official communication from the Governor, instructing me to hold my command in readiness to move at an hour not later than eight o'clock, and to go up to Luzerne coal regions, where difficulties were apprehended.

By Mr. Lindsey:

Q. Did you go?

A. At that time I found that the division had been ordered to disband—verbal orders had been given by General Brown to disband the troops, and by accident I was at Colonel Guthrie's head-quarters, and I suggested the propriety of him not disbanding just at that time, and he concluded that he would not. That he would have a street parade of his regiment that evening. I returned to my head-quarters, and when I returned, I got orders from the Governor, ordering me to have my division in readiness to start off at an hour not later than eight o'clock. I immediately communicated with various officers of the division, and at the hour indicated I was ready to move with the entire command. Transportation could not be procured at that time, and we did not leave until the neighborhood of twelve o'clock—started off with, I think, one thousand and thirty-five men, and went to Luzerne county. Do you desire me to give an account of how we proceeded there, and what took place?

Q. You might state whether the mob went to your house in search of you?

A. Of my own personal knowledge, of course, I do not know. From what I have heard, they did go.

Q. You ordered Colonel Gray and Colonel Howard to move their commands to the transfer station, I believe you said?

A. Yes, sir; I did that, because I considered it my duty to put these men in positions I considered the most dangerous—they were my own troops. The transfer sheds were long, low frame buildings, extending probably in the neighborhood of a square, open and unprotected, and I thought it was my duty at least to expose my own troops much more than strangers who were coming here from a long distance. I placed General Brinton's command in brick buildings.

Q. Was it General Brinton's suggestion, or because you deemed it the best position, that you placed him in the round-house?

A. I found that no trains were to be run at all, that it would be mere and utter foolishness to keep General Brinton's troops standing upon the railroad tracks, and to place them upon the hill side would be exposing that

command to danger, as all the hill side and all the buildings on it were filled up by railroaders, I believe, and consequently, to place General Brinton's command on the hill side would subject them to any troubles that might occur from the railroaders living above them, and of the mob getting round on top. Then, the further fact that the mob would have taken possession of the round-house and used the cars as barricades, and he could do nothing. He suggested the propriety of bringing them into the round-house, and giving them some chance to rest, and getting them provisions; and I say now, that knowing all the facts of the case, if the thing was to be done over again to-morrow, I would do exactly what was done. To have placed them in any other position than that in which they were placed, would have been a piece of folly that I would not be guilty of. A man that would have taken troops and placed them upon the hill side, under the situation of affairs, I would characterize as an ass, and not worthy of commanding troops.

Q. Would it not have been better to have retired the troops to the Union depot, inasmuch as there were no trains to be moved that night?

A. It would have been a great deal pleasanter to the troops, but it would have given entire possession of the cars, round-houses, workshops, locomotives, and the entire moving machinery of the Pennsylvania railroad—placed it entirely in the hands of the mob.

Q. Could you not have sent out detachments to have driven away any mob that might have gathered for the purpose of burning buildings?

A. That might have been done in an open field, but the fact that the railroad tracks ran along Liberty avenue, are probably ten or twelve feet above the grade on Liberty avenue, and then on the right of the tracks is a hill side, and Brinton did not bring one thousand eight hundred men, Brinton brought about six hundred men, and Colonel Guthrie was at Torrens, and to have scattered the few men out along the railroad tracks—men who did not know the situation of affairs, and did not know the general locality of the ground, they would be subject to all sorts of annoyance, and could be shot down at pleasure by those people. There is one thing the committee must understand, that this mob did not only congregate at Twenty-eighth street.

They formed in position on the south side; that they came over in a compact body by regiments. They formed in different localities in Allegheny City, and different places, and they were all marched to a given point, and to have sent a few troops along the line of the track they could have picked them up, one by one, and carried them off body and breeches. There was but one thing to do, and it was to take possession of the buildings, and the only mistake that was made was General Brinton's not calling out his pickets and shooting down the people, as they should have been shot down, and the property would have been saved, and if it had been saved, General Brinton and others would have been hanged for murder, because the feeling in this community at that time was such that if it had not been for the fact that the railroad property had been burned down, and private property had been taken and robbed, and private buildings burned down, there was no officer in command of troops safe, and his life was not worth a penny. The feeling in the community was such that I have no hesitancy in saying indictments would have been found and the officers convicted of manslaughter.

By Mr. Means:

Q. Is there no similarity between this riot, and the military force meeting the enemy in the field of battle?

A. Certainly not. Meeting an enemy on a field of battle, you go there to kill. The more you kill, and the quicker you do it, the better; but in this instance you had a division of six hundred men—my division was six hundred men. Colonel Guthrie was at Torrens, surrounded by a mob. The balance of my troops were at Twenty-eighth street, and here you had men who had fathers and brothers and relatives mingled in the crowd of rioters, and it was very natural for them to have a feeling that to fire then and kill these men, was like shooting their own relatives. The sympathy of the people, the sympathy of the troops, my own sympathy, was with the strikers proper. We all felt that those men were not receiving enough wages.

By Mr. Lindsey:

Q. You say you meet an enemy on a field of battle, and you go there to kill. What was the purpose of the troops in going out to Twenty-eighth street?

A. The purpose of the troops was to try to preserve order and preserve peace. There would be no difficulty of us going out there and commencing to shoot if that had been an enemy. The first thing we would have done, would be to throw out a skirmish line and commence to shoot.

Q. You were to preserve the peace at all hazards—if necessary to preserve the peace to call, you are justifiable in doing it?

A. Certainly.

Q. When an attack is made upon your troops with clubs and stones, and firing into your troops, are you not justified in killing?

A. My opinion may be different from a great many other military men. I look at it in this way: when troops are officered, it is the duty of the officers to do the thinking. If every man that carries a musket has a right to think and shoot just as he thinks, there is no occasion to have any officers at all, because, when we started out from the Union Depot hotel these Philadelphia men were insulted long before they arrived. Colonel Guthrie was insulted at Torrens, and if each man had carried out his own thoughts and commenced to shoot, it would have showed a great want of discipline.

Q. Would not the commanding officer be justifiable in giving the command to fire?

A. Most undoubtedly so. He would not only be justifiable, but it would be his duty so to do, and I have no hesitancy in saying, from what I have learned from the manner in which General Brinton's troops were received and treated, and the shots that were fired at them, the stones that were hurled at them, and the fact that these men were knocked down, it was his duty to have given the order to fire, and if I had been there I would have had no hesitancy in giving the order.

Q. What I understand you to say is, that there was not a public sentiment that would have justified the commanding officer in giving that command

to kill?

A. The sentiment afterwards showed that the sentiment was directly against the firing.

Q. Do you mean to say that the civil authorities, the civil arm of the government, would not have protected the military officer in giving a command to fire under circumstances of the attack made there at Twenty-eighth street on the militia?

A. I have got to answer that in a twofold capacity. As a lawyer, I believe that the courts would most undoubtedly have sustained the officer. I believe that the mayor and his police were in direct opposition to the troops—after having heard the crowd state that the mayor and his police were in sympathy with them, and finding that no arrests had been made, and knowing the fact that upon every occasion that mayor's police were only too anxious to protect men up for disorderly conduct, that there was not a police officer to be found at Twenty-eighth street, and that no arrests had been made, although there was any number of chances to arrest for disorderly conduct and other offenses—finding that none of those officers were there, I had no other way to think that these men had said truly, that Mayor McCarthy and his police were in sympathy with the mob. I telegraphed Mayor McCarthy after the troops had been taken into the round-house—I telegraphed him, and I told him I thought his presence there might be the means of saving life. I believe then, and I believe now, that if Mayor McCarthy had come at that time and talked to the crowd, something might have been done. There was then a terrible feeling against the troops, and no feeling against the police. I believed then, and I believe now, that if he had responded to my telegraph, many valuable lives might have been saved. There was no sympathy extended to the troops by anybody outside of the sheriff and his posse. The sheriff and his posse were the only ones that gave any aid or assistance to the troops. He did all that he knew how and all that he could.

Q. Did you have any communication with the sheriff, after the firing at Twenty-eighth street?

A. No, sir; I did not see the sheriff after that.

Q. Do you know where he went?

A. I have no idea.

Q. You were in communication with him up to that time?

A. Certainly; he was at the head of the troops.

Q. And you, as commanding officer, were to protect him in making his arrests?

A. Yes; he was armed with warrants from Judge Young to arrest certain parties therein named, and we went out with him.

By Senator Yutzy:

Q. You speak of an order you received from General Latta. Did that order purport to be signed by order of the Governor, sent by him as Adjutant General?

A. No, sir; it was not by order of the Governor; it was a telegraphic communication, ordering me to order out one regiment.

Q. Was it official?

A. I think so. I have not got it, because they were destroyed at the Union depot. I think the Adjutant General's report shows all those telegrams. I think that gives all the telegrams that passed.

Q. Did you, at any time, give an order to the troops to fire?

A. I am sorry to say that I did not. I am sorry to say I was not there when the occasion required such an order. If I had been there, I would have given the order, and in such a manner that the active rioters would receive their reward of merit. They deserved it, and they ought to have had it. I am only sorry to say I was not there.

By Mr. Larrabee:

Q. You said the people expostulated with you about calling out the troops. What people were they that came to you and expostulated?

A. Oh, very early in the morning. Of course, the Friday morning papers had the order, and people came to me, at the Union Depot hotel, and say, "You ought not to do this thing; these men are workingmen; they have their rights."

Q. Were there many of them—more than two or three?

A. I was stopped on the street by women—respectable women. I was stopped in the streets by business men of the place.

Q. Business men of the place expostulated with you?

A. Yes; and after the firing, men came to me and insisted upon my taking the troops out of the round-house. I want to say this in regard—there may be an impression in regard to the manner in which the Sixth division responded to my order—that it may not be known to the committee that we have no direct way of calling out the troops—that is, by any alarm—not by a fire alarm or anything of that kind. An officer has to hunt up his officers, and they, in turn, have got to hunt up their men, who are scattered all over through two cities, and when I notified Colonel Guthrie, I found him early in the morning and he was hard at work, and they responded as promptly as any regiment could possibly respond. There was no way to get his men together any sooner than they did. They went to Torrens station, as per order, and I believe remained intact until the 6th or 7th day of September. I do not know of them having disbanded for a single instant, from the time that they were first called out, until the end of the trouble in Luzerne county, and the Fourteenth regiment, as I have subsequently learned, performed their service as well as a regiment could. They had been ordered to disband, contrary to the wishes of Colonel Gray and his officers, and nearly obeyed an order made by a superior officer.

By Mr. Lindsey:

Q. You knew nothing of the command which General Brown gave?

A. No, sir; there are officers who heard the command and know all about that.

Q. He did it upon his own responsibility?

A. Certainly. Had General Brown carried out the instructions he received at Twenty-eighty street, and kept the hill side and the tracks clear, with the plans I had adopted of taking General Brinton out, and letting him occupy the position, and sending a portion of General Brown's command to Colonel Guthrie, and used a portion for the taking out of trains, I think there would have been no subsequent troubles. Instead of that we found the ground entirely occupied and in possession of the rioters and sympathizers, and the result was just as you know.

Q. Could the destruction of property have been prevented by any other distribution of the troops that night, do you think?

A. I presume, had we known the fact that the rioters had converted themselves from men to devils, and had concluded to roast everybody alive, and gone into it in the manner in which they did, that something might have been done. Of course, no one could anticipate the fact that those men would send burning flames of oil down upon the troops in the round-house. No man living could ever think of such a thing.

At this point the committee adjourned until ten o'clock, to-morrow morning.

MORNING SESSION.

PITTSBURGH, *Friday, February 22, 1878.*

The committee met, pursuant to adjournment, at ten o'clock. Mr. Lindsey in the chair. All members present.

Mayor W. C. McCarthy, *affirmed*:

By Mr. Lindsey:

Q. Where is your residence?

A. My residence is 95, Robert street, Eleventh ward.

Q. What official position did you hold in this city last July?

A. I was mayor of the city.

Q. How long had you occupied that position?

A. Since the 1st day of February, 1875—the last time—I occupied it before.

Q. When did you first learn of any disturbance at the Pennsylvania railroad?

A. On Thursday, the 19th of July, in the forenoon.

Q. About what time?

A. That I am not able to say, but I suppose it was in the early forenoon.

Q. How did you learn of the fact?

A. Mr. Watt came to me in the mayor's office, asking me if I could furnish him with ten men. I told him no. By and by—before I come to that, I will give you the police force and the disposition of it. Every person connected

with the police force consisted entirely of one hundred and twenty, having a supervision over twenty-seven square miles. Five of them were simply lamp watchmen, leaving one hundred and fifteen policemen. They were divided as follows: One captain, one chief, two turn-keys at the central station, eight station-house keepers, eight front office men. These eight men were all the men we had in daylight, all told, the rest were put on night duty. One night watchman at the city hall, two roundsmen. These roundsmen are men who perambulate the whole city, for the purpose of having an eye to the different police, that they were attending to their duty, and we had one corner man—a man stationed at the corner of Fifth avenue and Smithfield street—and nine lieutenants, and eighty-two patrolmen. These eighty-two patrolmen are men whose metes and bounds were set out to travel. We had one hundred and fifteen police of all kinds, classes, and individuals.

Q. How much ground was covered by each one of these patrolmen?

A. Some less and some more, if you knew the city I think you would know it. Well, take for instance, starting at the corner of Fourth avenue and Smithfield street, go following the cars down to the river; downwards, go down Fourth avenue in that direction and you cross Wood street, and you cross Market street, and you come to Ferry street, then you go along Ferry street, which may be called the lower end of town, to Second, then you reverse and come up this way, you come to Smithfield street, and you walk up to the corner of Fourth avenue and Smithfield street, the place of beginning, a route that really would be too much for two men, one man had to do it.

By Senator Reyburn:

Q. How much ground would a man have to cover taking in all the side streets?

A. He would have to cover six squares, and extraordinarily large squares at that, and I think that it would take him over twenty minutes to rapidly walk it.

By Mr. Lindsey:

Q. These police were night watchmen then all of them?

A. Yes, sir.

Q. Had you before that had any day police?

A. Oh, yes. Previous to that, altogether the whole police force of policemen, including ten lamp-watchmen, consisted of two hundred and twenty-six men, and in consequence of the heavy taxation, and the absolute inability of the treasurer to pay for the policemen, they were compelled to cut it down one hundred and eleven men, or rather one hundred and sixteen men altogether—I am talking about policemen, I leave the lamp watchmen out—and then there was a deficiency of sixteen to eighteen thousand dollars for the year.

Q. When was that done?

A. That was done on the 1st of July, or thereabouts, maybe a little before that.

Q. You may state what occurred when Mr. Watt came to your office, on Thursday, the 19th?

A. Mr. Watt came and stated that he wanted ten men. I told him I couldn't furnish him ten men. I would furnish him with what we could, but if he would pay for them, we could pick up some of those discharged policemen who were not employed, and he very promptly answered that he would pay for them. So I told Detective McGovern and some others to take what they could, and all our own men, and fill up with the idle policemen, and that the policemen would be paid by Mr. Watt. Mr. Watt requested me to go up with them, which I declined to do. I couldn't see any reason why the mayor of the city of Pittsburgh should go to the Pennsylvania depot to take cognizance of a disturbance that only required ten men, in his own opinion, and I sent a very faithful and one of the best officers in charge of the men, Detective McGovern, a very clear-headed man.

Q. What did he say as to the extent of the disturbance up there?

A. He made no remarks about that.

Q. Did you ask him anything about it?

A. No, sir. Gave him what he asked for.

Q. Was any report made to you by Officer McGovern.

A. Oh, yes. We had reports all the time from that until this morning. Officer McGovern reported to me—I cannot say whether it was McGovern, or who it was—but the first intimation I had of any violence was a report come to me that a man by the name of McCall had struck Mr. Watt; that he was arrested and taken to the station-house by the police. Then I heard afterwards from this time out—what I have got to say about Thursday will be hearsay. You can produce evidence and substantiate whatever I may say—I heard there was a train somewhere about three o'clock to go out, and the police aboard the train told the engineer they would protect him. The track was clear, and the engineer refused to go on, and got down and left the engine in the possession of the police.

Q. What police was on the train?

A. That was in the afternoon.

Q. What police was on the train?

A. I cannot exactly tell you, but I think that Mr. Motts, Mr. Coulson, and some others were there.

Q. How did you obtain this information?

A. From the police.

Q. An official report from the police?

A. Oh, no. We didn't have that much red tape about these things. The only red tape we had was the morning report of the different lieutenants. I can produce the men; I suppose you will want them to verify it.

By Senator Reyburn:

Q. They would report to the lieutenant would they?

A. No; they were in charge of Mr. Watt. The truth is, these men are under the control of the officers of the Pennsylvania railroad, and I felt it my duty to send as many men as I could there, who were paid by the city, and the others had to be paid by the railroad company, as I told you, but all the men we had in July was nine men.

Q. Did you send any of those nine men?

A. Oh, yes; McGovern and White and some more of them—I am a little mixed; and there was another order given for men as I understand. I started Mr. Davis to get them, but on that I am not so clear—I am a little mixed on that; Mr. Davis, however, can tell. He told me he met me on Fifth avenue and told me an order had come for more men, and I started then from Fifth avenue to get them.

Q. Did you receive any word from Mr. Watt after he left you with the ten police?

A. Directly from Mr. Watt?

Q. Yes, sir.

A. No; not a word.

Q. Did you receive any telegram from him calling for fifteen more men or twenty-five more men?

A. I didn't receive anything of the kind; but I guess that must be the word Mr. Davis speaks about when he says he met me on Fifth avenue, and I told him to get the men.

Q. Didn't your clerks or any of your subordinates notify you that such a telegram had been received from Mr. Watt?

A. I don't know what Mr. Davis says he told me on Fifth avenue.

Q. For fifty men?

A. No, sir; I took supper at Castle Shannon. I left at a quarter to five, and came back at eight, and then there were some persons from the Pennsylvania had been there for policemen, and the Pennsylvania railroad got all the policemen they wanted. They got so many that they sent back word that they did not want any more.

Q. Did they send any such word to you personally?

A. No; I can prove it.

Q. I want just what they said about—the next that took place between you and the officers?

A. I got no communication directly from the officers of the Pennsylvania, from the time Mr. Watt had been there in the forenoon.

Q. Did you receive any telegram from Mr. Watt calling for fifty police?

A. I didn't.

Q. Were you notified by your clerks or subordinates that such a telegram had been received at your office?

A. Not in the shape you put it.

Q. Did you see Mr. Watt after he left with the ten men?

A. No, sir; I don't think that I did. I have no recollection of it whatever. I don't believe I did.

Q. Where were you from eight o'clock Thursday night, during the balance of the night?

A. I was at the office, and in the neighborhood.

Q. Were any reports made to you during the night, from the policemen?

A. Yes, sir.

Q. In regard to the situation?

A. Yes; that everything was quiet.

Q. From what men?

A. I cannot name them, but I can bring the men here who were there to testify. Let me tell you what the police told me—the men that were out there.

Q. It is hearsay evidence. I think it is hardly proper?

A. Hear my statement, then, for your own guidance.

Q. I understand you to say that you didn't receive any dispatch from Mr. Watt, calling for fifty men, nor it was not communicated about in that form?

A. No, sir; it was not. Nothing of that kind occurred. He may have sent a dispatch, but I think I can very conscientiously affirm that I never saw it.

Q. Do you allow your clerks to act upon intelligence received at the office, without instructions from you?

A. Most undoubtedly. When I am away a riot or disturbance ought not to be going along until I come back. They know the general rules I act upon.

Q. Communications, in the shape of letters and dispatches, are they placed on file in your office, when received in your absence?

A. No, sir; not placed on file at any time. They are attended to and thrown away.

Q. Attended to by your clerks?

A. Yes; the chief of police and the clerks. If I am up in the Eleventh ward, they would have to wait an hour and a half until I got down.

Q. If a dispatch was received at your office, notifying you of a disturbance in one part of the city, and you are in another part of the city?

A. It would be attended to.

Q. It would be attended to without notifying you of the fact?

A. Yes, sir.

Q. You have telegraphic communications to all parts of the city, I suppose—stations?

A. With the station-house. We have got one station-house in the Thirty-sixth ward, Thirtieth ward, one in the Twenty-first, and one in the Second, or rather the telegraph is in the Third, one in the Eleventh, one in the Twelfth, and one in the Fourteenth, one in the Seventeenth, and one in the Nineteenth.

Q. Did you receive any reports during the night—Thursday night?

A. Yes; and everything was quiet.

Q. What officer had charge of that part of the city near Twenty-eighth street—what police officer?

A. Lieutenant Coates had.

Q. Did you receive any reports from him during the night?

A. I do not know that I did.

Q. Were there any affidavits made before you against parties—against any disorderly conduct?

A. There was on Friday forenoon.

Q. Did you issue warrants for that?

A. Yes, sir.

Q. For how many?

A. Well, I guess there was eight or nine, maybe more—I have forgotten.

Q. In whose hands were those warrants placed to execute?

A. I cannot tell distinctly, but I think it was in the hands of Mr. McGovern.

Q. Did he execute the warrants? What instructions did you give him about that?

A. I told him that in consequence of the calling out of the soldiers that the public mind excited, and it would be very dangerous to act as we usually acted, and for him to be exceedingly cautious, and cause no disturbance.

Q. When you placed the warrants in his hands, what instructions did you give him?

A. That is what I gave him.

Q. Had the soldiers been called out?

A. Yes; I was perfectly astonished when I took up the newspapers. Here was a whole lot of telegraphic dispatches, that had been flying from one end of the State to the other.

Q. On Thursday morning or Friday morning?

A. On Friday morning.

Q. You did not tell him to make the arrests?

A. Absolutely?

Q. Yes?

A. No, sir; I knew too much for that. The policemen at any time create a riot in the street by going at it brashly, and after the soldiers were in it, I thought it very dangerous.

Q. Why?

A. Because they were under the control of men who were rather of the narrow gauge pattern, about 2×3.

They were men who knew no law but the law of force, and had no knowledge that truculent defiance always begets truculent defiance. Had the force been in the hands of men who thought with Coleridge, when he said:

"He prayeth well who loveth well, Both man, and bird, and beast."

Had it been in the hands of men, who had any idea like Coleridge, there would not have been a life lost, nor a dollar of property destroyed, in my deliberate opinion.

By Mr. Means:

Q. You speak of those two or three, do you allude to the military now?

A. I allude to the men assuming charge—that had control of the force after I was displaced by the military and counsel.

By Mr. Lindsey:

Q. Did you not have charge of these in the beginning of the riot or disturbance?

A. No, sir.

Q. Why not?

A. Because Mr. Watt came over and asked for ten men, and they were given to him.

Q. He asked you to go out, didn't he?

A. Yes, sir.

Q. You refused?

A. I did, for the reason that I could see no reason from anything he said that the mayor should start out to take charge of ten men, and control it—it must have been a very small affair.

Q. You received notice that another call had been made by Mr. Watt, didn't you?

A. No, sir; I have reason to believe, from what I heard—that Mr. Davis informs me—that I told him to go ahead and send them.

Q. Didn't Mr. Watt inform you that your presence could do a good deal towards quelling the disturbance there?

A. Not that I can remember.

Q. Would not it have had that effect, in your opinion?

A. Indeed, I do not know. I think a disturbance that in Mr. Watt's opinion only required ten men, didn't require the city to go there in the person of the mayor, because it was a very slight affair, as he represented it—it made no impression upon me.

Q. A man, such as Mr. Coleridge described in that quotation you have made, would have had that effect?

A. No, sir; he would have been called upon, and if he had been asked to call for troops, it would have come in. Let me say about calling for troops, that if Mr. Mackey and Mr. Hartranft—but I should say Governor Hartranft and Mr. Mackey—had been in Harrisburg, there would not have been a troop brought here, and peace would have been preserved, but, unfortunately, neither of these two gentlemen were there. Let me tell you, sir, we had a puddler's strike here, and that I had some hand in, and the peace of the city was preserved; and notwithstanding the peace of the city was preserved all the time, some person, I don't know who, sent a request to the Governor for troops, that the peace of the city was disturbed and it could not be preserved. Mr. Hartranft did not know what to do, so he sent for Mr. Mackey. Mr. Mackey came to him and told him, says he, "Wait a few minutes, and I will let you know what to do." Mr. Mackey told him——

Q. Are you testifying to facts within your knowledge?

A. Within my knowledge. Mr. Mackey telegraphed to a gentlemen that I know very well, as to what the condition of affairs was. The gentleman telegraphed back that it was idle and futile to send soldiers here, and it would only create a disturbance. They could keep them away. They were kept away, and there was not a man killed, and not a dollar's worth of property destroyed.

Q. When was that?

A. It was two years ago.

Q. You say that you acted in attempting to keep and preserve the peace here and keep down violence until superseded by the military?

A. Yes, sir.

Q. Is not the military always in subjection to the civil authorities?

A. The Constitution says so, but the facts of the case are otherwise.

Q. Had you not entire authority and control, at all times, within the limits and jurisdiction of the city?

A. Not when the sheriff comes to the front. He is the chief peace officer of the county, and has the whole county at his beck and nod. The mayor is simply the city.

Q. Is not it the duty of other head officers to coöperate with the sheriff?

A. That depends upon circumstances. I could not coöperate with the sheriff, because the matter was under control of men who were acting entirely different from any way that I would have acted in the case, and I could not assume responsibility in a state of facts that I believe would lead to what was the ultimate result.

Q. Is not your power as magistrate, within the city limits, identical with those of the sheriff?

A. They are.

Q. What hindered you from acting then?

A. Because the sheriff took possession of the case, and called upon the troops. Had the sheriff come to consult me, instead of going to the Pennsylvania Railroad Company's office, and assumed control in calling for troops, the result would have been different. But I was thrown aside. I didn't suit.

Q. You were asked to go up to the scene of the disturbance, were you not?

A. No, sir.

Q. Didn't Mr. Watt ask you?

A. Not that I know of.

Q. Did he at ten o'clock, on Thursday, ask you to go to the scene of the disturbance?

A. He did.

Q. And you refused to go?

A. Yes, for the reason that I told you, that he asked for ten men, and I knew no reason—when he got all the men he asked for, and it was only ten men—I didn't see any reason why the mayor should go up there.

Q. Did you go up to the scene of the disturbance at any time during Friday?

A. No, sir.

Q. Friday night?

A. No, sir.

Q. Saturday?

A. No, sir.

Q. Saturday night?

A. Yes, sir.

Q. At what time?

A. Well, I think when I got out there, it must have been ten o'clock.

Q. What did you find there?

A. I found a howling mob, many of them armed.

Q. Did you know that this firing was going on all this time between ten o'clock Thursday and ten o'clock Saturday night, when you went to the scene of the disturbance?

A. I knew nothing of the disturbance at all. I heard that the soldiers had fired upon the crowd.

Q. You knew that there were crowds there, didn't you?

A. Yes, sir.

Q. You knew they prevented freights from running?

A. I did not.

Q. You know that they prevented freight trains from going out?

A. No, sir; I believe the fact is otherwise. I believe the fact is that after the police got possession of a train, on Thursday afternoon, that the engineer deserted, and that the Pennsylvania Railroad Company didn't attempt to put another freight out—that is what I heard.

Q. That is hearsay, isn't it?

A. That is, and I guess it is very true, too.

Q. You had come out then to see?

A. No, sir; I didn't.

Q. On Friday, did you increase your police force any?

A. No, sir.

Q. Did you increase them any on Friday night?

A. No, sir.

Q. On Saturday?

A. No, sir.

Q. Saturday night?

A. Saturday night, when we heard of the shooting I directed the officers to go round and inform the proprietors of the gun shops of what had taken place, and to put themselves in a state of defense, and to get their arms out of the road; for they might be assailed, and directed the chief of police to insert an advertisement in the Sunday papers, calling upon the discharged policemen to appear at the mayor's office for duty. My idea of that was that there might be a necessity for these men performing police duty in the streets. I had no idea, until at that time, that where the city and county authorities had a thousand men under their command, in the Twelfth ward, that any policemen would be required or needed on the property of the Pennsylvania railroad, but I did think there would be very great excitement, and it would be necessary to have a force on the streets, not knowing what would happen, and I directed a call to be made for an immediate meeting of the police committee, on Sunday morning.

Q. Were the day force placed back on duty on Sunday morning?

A. Let me go on, as nigh as I can, in a chronological order of events. My mind, as to hours, after I got in the Twelfth ward and saw the state of affairs there, is a blank. I could not give you an hour from that time up to Monday morning, but I was on deck all that time. I went up to the Twelfth ward, saw a crowd there, and mixed in among them. Had a talk with quite a number of them, and tried to dissuade them from acts of violence and disorder, but I was talking to a lot of crazy men. Words were nowhere. Somewhere, as nigh as I can guess, I was in front of the Twelfth ward station-house, immediately above Twenty-sixth street or Penn avenue, and I was too late. It struck me then that there must be some cars set on fire. I left there and went up to the corner of Liberty and Twenty-fifth street, and saw a car on fire immediately above Twenty-fifth street. I looked at the situation, and turned back to the corner of Twenty-eighth and Penn streets, and I there met a policeman, who I think was Mr. Scribner. Says I, "Has the box been pulled?" Says he, "No; the crowd won't let us, but the alarm has been sent down to the police telegraph." I then waited there a very, very long time,

expecting the fire department to come. When I stayed there long enough, and hearing nothing of the fire department, I came to the conclusion that the message sent by the police telegraph had failed. By this time Alderman Barclay was along side of a police officer, and a large man, whom I knew by sight, but not by name, and I said to the alderman, says I, "Can't we send an alarm in on this box." The alderman said, "We can try it." He went, I think, into the drug store and got a key, and four of us went to the box, and nobody interfered with us—there were very few up at that corner, and the alderman opened the box, and this man, I believe, he pulled it. We waited another long time—a very long time—and heard nothing of the fire department. Then I began to make inquiries, and I ascertained that a portion of the fire department had come up Penn avenue, and for reasons satisfactory to themselves, had stopped immediately below the Independence engine house, on Penn avenue, somewhere about Twenty-first or Twentieth street—I cannot give you the number—and that they had been stopped there, and were afraid to go on. I do not know what reason they had—they had some reason. I then went to the station-house; but, by the by, I may say here, when I left the lower end of the city the mob was still going through the streets, and I should have stated before, chronologically—what I forgot—that I issued orders by telegraph, and the men met at eight o'clock in the evening, at the station-house, after having lit the lamps.

Q. Saturday evening?

A. Saturday evening. I ordered all the policemen from the first, second, fourth, seventh, eighth, ninth districts, to leave their station-houses, and to come at once to the central station, as soon as the men would come to the station-house. These men came between eight and nine o'clock, most of them nine o'clock, may be later. Some of them had to walk a distance of two miles, and they were put on duty immediately through the streets, and when I thought that I could leave things safely to the direction of the police, I went to the Twelfth ward to see how things were standing. That was the position of matters. When I found that the fire department had not or could not come, I went to the station-house—the Twelfth ward station-house—

and telegraphed down to the central station to send up all the police that could be spared. That was done, and as these policemen came up, two or three or four or five or six, &c.—there was a great quantity of stealing going on.

Q. How many policemen came up?

A. I will get at that in a few minutes. As they came there was a great deal of stealing going on, and as fast as they came to the station-house, I started them out on to Penn street, to arrest the people that were carrying off goods. They continued at that work until such times as I thought I had enough policemen to assist the firemen, at which time possibly I may have had fifty or sixty, may be forty. I do not suppose I had over forty or fifty. When I thought I had enough to protect the firemen, I told officer Coulston to go to the fire department and tell them that we now had police sufficient, I thought, to protect them, and to come on, and we would do the best we could. Coulston started off with that message. After a lapse of sufficient time he came back and told me he had informed the parties in charge, of my message, that they replied to them that they would not move until they were ordered by the chief of the fire department and the fire commissioners, and I supposed, that at that time I may have had, all told, fifty or sixty—about fifty policemen—the fifth district and the sixth district had not been called in. The fifth district and the Lawrenceville district immediately adjoining the point where the Allegheny Valley railroad runs through, they were not called in because I supposed they would have as much to do in their own districts. The sixth district was not called in because Torrens station and the stock-yards were in that district, and I thought it altogether likely that the police of these two districts would be wanted to take care of things there for the reason I have given you.

Q. How long did you keep those policemen there in the Twelfth ward?

A. They were kept there until their regular time of going on duty.

Q. What time was that?

A. Well, the regular time was six o'clock, but they were there long after that.

Q. Sunday morning?

A. Yes, sir. I will tell you about that. I stayed up there until somewhere in the neighborhood of daylight. The soldiers, I had supposed, that had taken refuge in the houses there, that their strategy was to stay until daylight would come, and then they would come out upon the railroad track and take possession. That is what I supposed—nobody communicated to me what they would do.

Q. Did you make any effort to communicate with General Brinton or General Pearson?

A. No, sir; I did not. I thought those gentlemen had the matter in their own hands, and didn't want any advice from me; and about daylight, or thereabouts, I came down town, and somewhere in the neighborhood of seven o'clock, or thereabouts, it might have been a little after seven—might have been half an hour, but I just name that at random, approximate it—I received a telegraphic dispatch from the Twelfth ward station that the soldiers were on Penn avenue, marching past the Twelfth ward station-house. That struck me that it was an admirable strategic movement. I thought they had come off the railroad property with their full strength, five hundred or six hundred strong, to march through the streets, to intimidate the crowd, and I was highly delighted at that idea, and I requested Mr. Davis to go and get a buggy that we might go up and witness the effect of it. He came with the buggy, and we both started out, and after we got a considerable distance up town, in the neighborhood of the Twelfth ward, I received information that these men were retreating from the city—six hundred armed men. It sent my heart down about my thighs. I could not understand it. I could not believe it. Then the idea struck me that these men were not retreating from the city, but they were following a line of march by which they had two roads to go to East Liberty. I thought they were going either one of those two roads to join the forces out there, and possibly to come in together. When I got as far as the car stables, in Lawrenceville, just about Forty-second street, I think, I bethought myself it was hardly worth while to make that horse pull two hundred and ten pounds unnecessarily,

and I stopped the buggy and got out. I told Mr. Davis to go on after the troops, and not to return until he knew where they had gone to. They might have gone by Stanton avenue to East Liberty, from the upper side of the cemetery, or they might have gone by the Morning side road up to the Sharpsburg bridge. I told him to go on, and not give it up until he could locate them, and then to come back to the Twelfth ward station-house, and report to me, and I then got in a street car at the car stables and came down to the Twelfth ward station-house. Then I telegraphed down to the central station to detain all the police that were there, and send them to the Twelfth ward, and I got tired waiting on Mr. Davis, and knowing that the police committee was to meet, I went over to where the firemen were at work, for the purpose of seeing the chief engineer, and concert with him some plan of action by which I could assist them. I could not find the chief engineer, high nor low. I asked the firemen where he was, and they didn't know, and I took that the work upon the fire—this was not on the railroad property, but on the opposite side of Liberty street where they were at work. I thought the work was ineffective, and I spoke to the firemen about it, and they told me the reason of it was that the water in the basin was low. I thought that a little strange, because it was a rule with the water department, with which I had been connected a great many years, to always have it full on Sunday, but I determined to see about that. Failing to see the chief engineer, I could not waste my time in hunting him, and I came down town. On my way down, I met the superintendent of the water-works, and I says to him, "Jim, the firemen complain they cannot work effectively up in the Twelfth ward, because there is no water in the basin," I think that is the way I put it to him. Says he "I think they are mistaken; the basin is full of water." I think it was at Eleventh street I met him. I came down to the central station, and, on the pavement, I met the secretary of the fire commission, Mr. Case. I says to him, "Frank, the firemen tell me that there is no water in the basin"—I meant a small quantity of water in the basin—"I saw Jim Atkinson on my way down, and he tells me the basin is full. You take my buggy at once, and go up and tell them that the basin is full, that they need not be afraid of the supply of water, and you leave the buggy at Rosewell's stables." He departed, and I suppose gave my message.

Q. What time did the fire commence on Saturday night?

A. It is a guess with me, but I think it must have been about eleven o'clock. I don't think I am far wrong.

Q. You stayed there during the night?

A. Yes; I was going through the crowd during the whole night.

Q. When you got fifty policemen, did you make any effort with those policemen to drive the crowd from the cars that were burning?

A. No, sir; I did not.

Q. Your efforts were simply confined to arresting men that were carrying off plunder?

A. Yes, sir.

Q. Your policemen armed?

A. Some are and some are not.

Q. They are all armed with maces, I suppose?

A. Yes; they all have maces.

Q. Why didn't you make some effort to stop the burning?

A. Because, in my judgment, it could not be done.

Q. How many men would it have taken to have stopped that that night?

A. Lord knows! I can't tell. I think it would have taken a good many. Near a thousand men cooped themselves up in some houses, and cooped all those men up in those houses after having done the firing. It was yielding to the mob. It was just saying plainly, that the mob was stronger than the soldiers, and that forty or fifty policemen, who had never been in a disturbance of this nature or kind, would simply have been suicidal?

Q. After coming to the central station, Sunday morning, did you return again?

A. Yes, sir; I did.

Q. What hour?

A. That I could not tell you. As I told you before, I took no note of time. It was after I had seen the police committee, and had talked with some of the citizens, with regard to a citizens' meeting, I went up on.

Q. During the day, on Sunday, how many policemen had you in the vicinity of the riot?

A. That I can't tell. I did not suppose, that all told, so far as I could guess or know, there were not more than thirty or forty.

Q. Did you make any demand to recruit your police—demand upon men to serve on the police?

A. That had been done by advertisement in the Sunday morning papers, by the chief of police?

Q. Did you issue an order calling on men, demanding them to join your police force?

A. Which, on Sunday?

Q. At any time?

A. Nothing, except that on Saturday morning for the police.

Q. It was in the shape of a request, was it not?

A. Yes; it was an order.

Q. It was not a command such as would be a command under the laws of the Commonwealth?

A. I don't think it was. I didn't see it. I didn't look for it.

Q. It was placed in the papers by your clerk?

A. By the chief of police.

Q. When you went to the scene of the riot on Saturday night, did you use efforts yourself to suppress the riot or stop it?

A. I went into the crowd and talked with them, but I might as well have talked to the moon.

Q. Who did you talk with?

A. There were several that I talked to that I did not know. I only met one man that I did know, and he had been a lieutenant of police.

Q. He was engaged in rioting?

A. He was there with the crowd and very muddled.

Q. How long before that had he been lieutenant of police?

A. He had been lieutenant of police, I suppose, as near as I can judge, some three weeks before.

Q. And discharged under the order discharging the day force?

A. Yes, sir.

Q. Did you meet any other persons that had been members of the police force?

A. No; not in that position?

Q. What replies did you get from the men when admonishing them to desist?

A. Everybody was filled with the idea that the troops the citizens causelessly, and that had excited the indignation and made men wild. It was a fearful sentiment on Saturday night.

Q. I understood you to state that the reason why you did not go to the Twelfth ward during the Friday and Saturday before, was that you had been superseded by the military?

A. Yes; and because I was perfectly satisfied that the influence that controlled would be disastrous, and that I could not prevent it, and I was not going to permit myself to be compromised by it.

Q. You did go to the scene on Saturday night?

A. I did.

Q. Or rather on Sunday?

A. I did.

Q. Had you gone there on Thursday, or Friday, or Saturday morning, and made use of the police that you had under your command, could you not have prevented the disturbance?

A. Permit me to say again that it was impossible for me to have any connection with the men who had charge of that, because I could not control them. They are men that would not listen to me, and that I could have no influence with.

Q. Whom do you refer to?

A. I refer to the leading officers of the Pennsylvania Railroad Company.

Q. You had control of your police force, hadn't you?

A. I had.

Q. You have control of the affairs of the city.

A. Yes, sir.

Q. And the organization of the police?

A. Yes, sir.

Q. You could have control of the force—you are the peace officer of the city?

A. Yes, sir; and there is the sheriff.

Q. Why did not you then assert your rights as peace officer?

A. Because I recognized the fact that I have no right to come in conflict with the sheriff and the military. I was utterly hostile to their movements and to their plan of operations, and I felt satisfied that it could have no other end than the end that was reached. I, surely, under those circumstances, would have been of no more use than a painted ship upon a painted sea. They would not listen to me.

By Mr. Larrabee:

Q. Did you go to them and talk with them, or did you try and see whether you could cooperate with them in any manner?

A. No, sir; I knew the men. That was enough for me.

Q. Do I understand you to say that there was an antagonism between you and the sheriff of the county?

A. It could not be otherwise in this matter, because they had adopted a plan of action that I could have nothing at all to do with.

Q. Were you called on first by the railroad officials?

A. Yes; and gave them all they wanted, and gave them so many men—I will prove to you that they said they didn't want them.

Q. You were asked to go to the scene of the disturbance?

A. Yes; we have talked that matter over several times.

Q. Did you receive any communication from Mr. Scott, the solicitor of the road, on Thursday?

A. I did not.

Q. On Friday?

A. I did not.

Q. Did he make a request to you that you would order the saloons of the city closed?

A. I got a document on Saturday afternoon—I don't know, some time on Saturday it was, according to my recollection—it was by Mr. Thaw, I think by Mr. McCullough, and I think by Mr. Quay, and I think by Mr. Latta, requesting me to request the saloons to be closed, which request, on my part, was complied with.

Q. At what time?

A. That I could not say. I had no right to compel the closing of them—none whatever. I could only request.

Q. You had a riot and disorder in the city then. Do I understand that you had no right to order the saloons closed?

A. No, sir; I have no right to order them closed, under any circumstances, except upon Sunday or upon election days. Then the laws forbid them to be open.

By Senator Yutzy:

Q. Did you have any knowledge of the disturbance, and the extent of the disturbance during Thursday, Friday, and Saturday, out in the vicinity of the Union depot, on the railroad?

A. I did not know of any disturbance occurring.

Q. During any of those days?

A. None of those days, except what I told you as having occurred on Thursday. I had reason to believe that there was no disturbance from Thursday afternoon until Saturday afternoon.

Q. Didn't you know of a large collection of people in that vicinity?

A. Oh, yes, sir. I knew they were coming there—went there to see the soldiers—what was going on. People went there as they would to a county fair or a boat race, to see what was to be seen. Men with their families, women with their children, even children in their arms, went there from curiosity.

Q. Don't you know that there was a large crowd there before the military arrived?

A. No, sir.

Q. No knowledge of that?

A. No knowledge of what we would call a large crowd. I know there was quite a crowd there on Thursday. I know from what I am told, there was a crowd there at the time of the alleged disturbance with Mr. Watt and Mr. McCall.

Q. Hadn't you been told by citizens and others, that there was a large crowd there—likely to be trouble?

A. No, sir.

Q. Hadn't any idea?

A. I had an idea that there was to be trouble, because when the military came out they were subject to the thousand contingencies that would produce disturbance.

Q. Had you any intimation of trouble before the military were ordered out?

A. As much as I told you occurred on Friday, after the arrest by the police of this man who was alleged to have struck Mr. Watt. Think there was no disturbance after that during the whole of Thursday night, and to Friday morning, when the police were dismissed.

Q. Did you go to any trouble to ascertain the extent of that disturbance, on the first disturbance on Thursday?

A. Of course, I knew the extent of it from what the police told me.

Q. You were shortly informed of what was going on—made all efforts necessary to ascertain?

A. It came to me without an effort.

Q. Didn't require any effort to ascertain?

A. No, sir; I inquired what going on, and ascertained what was going on.

Q. Didn't your police inform you that the mob had overpowered the police, and also the railroad authorities, on Thursday?

A. Why, no! they didn't overpower them. I proved that here. They were not overpowered.

Q. They had every control of their railroad and their rolling stock without interference?

A. I will prove it to you by the police.

Q. I want to know what you were informed of the situation of affairs—what you know of your own knowledge?

A. I was not there. I don't know anything of my own knowledge. I can tell you what can be proved by the police.

Q. I ask you the question, what reports you got from your officers?

A. That everything was quiet and peaceable after the arrest of McCall.

Q. Did you receive any reports from your officers on Friday, that everything was quiet?

A. On Friday morning I received word that the police had been dismissed by the Pennsylvania railroad men.

Q. Who informed you of that fact?

A. I can't tell you.

Q. An officer of your force?

A. I presume so; in fact it must have been; that state of facts I can prove here and demonstrate.

Q. Did you at any time deem it necessary to increase your force of police?

A. Yes, sir.

Q. But did you do so?

A. Done what I could to increase.

Q. To what extent did you increase your force?

A. It was increased upwards of one hundred men, by the order of the committee of public safety, and after I got about one hundred, their orders were that I should increase the force to three hundred, but I came to the conclusion that that number of men were not needed, and I didn't employ any more. I suppose we had altogether about two hundred and forty or two hundred and fifty men.

Q. Did you increase your police force before you were ordered to do so by the public committee?

A. Yes; to the extent of ordering the police who were unemployed to report to the city hall for duty on Sunday forenoon. A portion of them came, not many. They considered they had been very badly treated, and they did not care about risking their lives under those circumstances.

Q. Could you have demanded citizens to serve as police on your force?

A. Yes, sir.

Q. And did you do so?

A. No, sir.

Q. Did you have all you needed?

A. No, sir.

Q. Why did not you make this demand?

A. Because I had no time to do it. My time was fully occupied. I had met several gentlemen in the morning, and they called a citizens' meeting for the forenoon, and I expected them to make arrangements to go out, in what we might call, in a non-legal way, in a posse, but instead of doing that they thought it more advisable to send a number of gentlemen up to address the crowd.

Q. Who thought so?

A. The meeting.

Q. Citizens' meeting?

A. Yes, sir; they were there and addressed the crowd from the upper end of the platform of the Union depot, but it was of no avail, talking was of no use. Then they were to have a meeting in the afternoon. I came down to that meeting and met the committee at the city hall, talked a little there, and then they adjourned to meet on Market street, and there was considerable talk. Doctor Donnelly was there, he was one of the spokesmen, and he talked there about having offered, with the permission of the mayor, a company. He is slightly mistaken as to having formed a company; it was I who formed it.

Q. A military company with arms?

A. No, sir; a company of citizens.

Q. Armed citizens?

A. They were not armed. They had nothing.

Q. You subsequently armed them, didn't you?

A. Yes, sir. To properly understand the spirit with which I was actuated, with permission of the committee, I will read two extracts, one from the *Post* of Monday, and one from the *Gazette* of Monday morning, these extracts are not literally reported, but to show the spirit that was there, and with permission of the committee, I will read them.

Q. Are they long?

A. No, sir; they are not long. This is from the *Post* of Monday, July 23, 1877.

Q. An editorial?

A. A local report. This is the extract: "An enterprising individual here endeavored to throw cold water on the spirit of the meeting, by saying they needed a thousand men; but he was suppressed. Mayor McCarthy rushed to the stand, and said there was no use of any more fooling. 'Let all who wanted to save their city fall into line, and go at once to the mayor's office, and be sworn in as extra policemen. The fire was spreading, and the incendiaries were still at work, and we must act now.'" Then the reporter puts in this: "This suited the meeting, and a portion of the meeting formed in line, and, under head of the mayor, marched off." That is from the , *Post*.

Q. Before you go any further, did you command that force?

A. I led them; went at their head. I will give you a history of that.

Q. As commander of them?

A. Yes; they were not going into action. There is a history about this, which I will give you after reading this. This is from the *Gazette* of Monday, July 23, an extract: "There was now a loud call for the mayor, who was in the crowd. He stepped to the front, and said, 'The city is on fire. There is no time to be lost. I want every man, who is ready to help me, to go up here to join this band to go and put down incendiaries.' Mr. Henry Pilipps, junior, said, 'Let us go to the city hall at once, and be perfectly organized as a vigilance committee, and let the mayor swear his policemen in.' The mayor then said, 'I can swear them in now,' and suiting the action to the word, the

mayor made his way to one end of the crowd, and countermarched through them. The ranks were quickly filled up, as soon as the movement was understood. The meeting adjourned to call of the chair, and the company proceeded up Fifth avenue." Now this company that I formed there. Doctor Donnelly was present, and he had been spoken of as a fit person to command. I intended to have taken them down Diamond alley to Gregg's store, and arm them with axe-handles or pick-handles, or whatever could be got; but the large majority of them were indisposed to do that, and we started off to the university building, across the way here, and two or three portions of the building were broken in in search of some drilling arms that the cadets in the university use. After a considerable waste of time there, they couldn't get the arms. We succeeded in getting them into line again, and we marched off to Gregg's. Mr. Gregg opened the door, and the line formed outside in the street, and some men went into the store, and they carried enough of those ax-handles to arm the crowd. When that was done, I turned them over to Doctor Donnelly. In anticipation of the formation of this company, I had given orders for a number of police to collect at the city hall, to the end that they would lead this company and precede them, and in that position go and attack the rioters. When I had put Doctor Donnelly in charge, I told him to bring his men to the city hall, and I would give him a police force to precede them and march at their head to go to the scene of the riot. I don't know whether the Doctor understood me or not; but his police force did go. His company didn't go to the city hall, and right here, permit me to say that you have heard a great deal about fifty men squelching this mob, and a hundred determined men. I suppose Doctor Donnelly thought he had determined men, and he didn't go for police assistance. Possibly he expected he could accomplish it all without the aid of police. He went; he was repulsed horse, foot, and dragoon. The next thing I saw of them they came to the city hall in a demoralized condition. I said to the doctor when he came there, says I, "Doctor, keep your men here. I understand that there is a company of soldiers on a steamboat at the lock. You and I will go up and see if we can get them." He got into the buggy, and we went up there. We saw the lady of the house at the lock, and she told me that these men had had orders to go into camp at the poor farm. We

came back to the city hall, and was informed that Doctor Donnelly's troops had gone to their supper, and would be back after supper. After supper there came some eight or ten of them—they were there ready for action. That was all that came back, and so you see what fifty determined men could do.

Q. Did this company of Doctor Donnelly's go up there armed with anything else but pick handles?

A. I don't know. I think that after I left them ready to come to the city hall, that they went some place and got some arms, because they came back to the mayor's office with some instruments——

Q. Muskets?

A. I guess there were some muskets the university had used. I know the university authorities created quite a disturbance about their not being returned to them.

Q. You spoke about different parties coming there to suppress this riot. Who were those parties, besides your officers—I mean outside of the city authorities?

A. This meeting of the citizens.

Q. Who else?

A. I don't know any others.

Q. The sheriff and the county authorities?

A. I saw nothing of them on Sunday.

Q. You were speaking of those parties attempting command or change of affairs in trying to suppress the riots. Did you have reference to the citizens' committee?

A. No, sir.

Q. Was it the sheriff's posse?

A. I have reference to the county authorities, the Pennsylvania railroad, and the military.

Q. Then what was it you had reference to—the citizens?

A. No, sir.

Q. Nor Doctor Donnelly's command?

A. I think Doctor Donnelly's command went in good faith, to do what they could—they were not able.

Q. You said you were utterly hostile to all those parties in their efforts?

A. I said I was hostile to their plan of operations, because I didn't think it was called for at the time it was done, because I believed it would end in disaster, which it did.

Q. Did you make any effort to have any conference with these parties to agree on some plan that would be effected?

A. No, sir; they went to work independent of me, and had called out the troops without consulting me at all. I was at my office all night waiting if anything would occur, and I knew nothing of this movement to call troops out until I saw the dispatches on Friday morning.

Q. Do I understand you that because they did not consult you, you put yourself in hostility to all these parties?

A. If you understand me that way, you understand me entirely wrong.

Q. I want to know that?

A. I have time and again here to-day stated that I was utterly hostile to their plan of operations, and that I had nothing to do with them, because I knew I would be powerless with these men.

Q. You made no effort to see them or converse with them, and had no conference with them?

A. No, sir.

Q. Made no attempt to have any conference with them?

A. No, sir; I did not. I am satisfied they did not want me.

By Senator Reyburn:

Q. Was it not your duty as mayor of the city, to take charge, notwithstanding these men, and if they put themselves in your way, to take them and make them behave themselves?

A. No; I could not do that. The sheriff is the leading officer.

Q. Here among the powers, I find set forth is, "To prevent riots, noises, disturbances, or disorderly assemblages—" that is a part of your powers.

A. I will show you something stronger than that there. That is very weak—wishy-washy. Do not understand me as being offensive—you have got a pretty good-natured face, and I like to talk to you. There it is, "The mayor of the city, shall be its executive officer, and the conservator of its peace. He shall have and exercise within the city limits, the powers conferred on sheriffs of counties, to suppress disorder, and keep the peace.

Q. That is what I meant. Was it not part of your duty to take charge yourself, as mayor?

A. Not under the circumstances. I had been superseded by the power that had the whole county at its beck, who had without my knowledge, and, as I thought, entirely unnecessary, laid out a plan of action I could have nothing at all to do with.

By Senator Yutzy:

Q. I would like at this point, for the mayor to explain why he considered himself superseded, having acted without his knowledge.

A. Why I considered I had been superseded?

Q. You say that they acted without your knowledge. I want to know why you considered yourself superseded?

A. I did not consider myself superseded because they acted without my knowledge. If I said anything of that kind I have been misunderstood. I have time and again tried to express myself upon that point, and that is this, that the sheriff of the county, together with the military, had taken possession of this matter, and superseded the mayor.

Q. Had you been so informed?

A. I was superseded by the dismissal of the police on Friday morning, and the taking possession by soldiers who had been called out by the State authorities.

By Mr. Lindsey:

Q. Do you know the fact of your own knowledge that the police had been dismissed?

A. I know that fact from the statement of the police—made to me and to the office.

Q. That is the only way you know that?

A. Yes, sir.

Q. You received no intelligence of that fact from the railroad officials?

A. No, sir; I did not.

Q. Is it their prerogative to dismiss the police, or have you got control of them?

A. They were under control of the railroad authorities. They directed them where to go, and according to their orders they went.

Q. Have they got control, equal to yourself, with any police in this city?

A. Under the circumstances they had.

Q. You delegated that power to them?

A. They were sent there for that purpose, to do just as they said for them to do.

Q. You delegated the power to the railroad officials to have charge of these men?

A. I cannot say that I delegated them, because there were not over four or five that were under my control.

Q. Did you consider, under all the circumstances, that the railroad officials or anybody else had the right to dismiss police without consulting you, or had any control over them?

A. Under those circumstances, I did.

By Mr. Larrabee:

Q. Was that dismissal anything more than a mere taking of those warrants from the hands of the police, and putting them in the hands of the sheriff?

A. There was nothing of the kind took place, and now understand me: policemen, at the suggestion of the Pennsylvania Railroad Company, were sent there during the afternoon and the night. They were there under the control of the railroad authorities, and when the railroad authorities did not want them any more, they dismissed them, which was on Friday morning.

Q. You understand they gave them a formal dismissal, and told them their services were not needed to keep the peace any longer?

A. I do not know in what form it was done.

Q. Was it not merely taking warrants from their hands, and telling these policemen they would put the warrants that were in their hands for execution into the hands of the sheriff to execute—was not that all the dismissal there was?

A. At that time no warrants had been issued.

Q. On Friday?

A. On Friday morning, when the police were dismissed by the railroad authorities, no warrants had been issued—no information had been made.

Q. After their dismissal, did you think then you had no further occasion to keep the police force there?

A. Not because they were dismissed, but because I had been superseded by the military and the county.

Q. I want to know why you thought you were superseded—were you so informed by either of those parties, either the sheriff or the mayor, or anybody acting for them?

A. No, sir; I was not informed by them.

Q. Why did you consider yourself superseded? Simply because they took action to suppress the riot?

A. They took possession of the whole business. There was no room for me.

By Mr. Larrabee:

Q. Would not your police force which you could have gathered together have been some assistance to them in keeping the peace?

A. If the sheriff had asked me for the police as a posse to help him I could have given a hundred men.

By Mr. Lindsey:

Q. I want to ask you this question, if you think that you can be superseded by the military?

A. If I am not?

Q. Yes; can you be superseded by the military in your powers and duties?

A. If I had charge they would not supersede me.

Q. Is it not your duty to take charge?

A. That duty had been performed by the sheriff.

Q. Is it not your duty to take charge of your police and put down any riots or disturbance within the city limits, regardless of any power on earth?

A. No, sir; in the event that the sheriff does not interfere, it would be. If I got possession first I would hold.

Q. Were you not called upon first by the railroad officials?

A. I was called upon first by the railroad officials to furnish them with ten men.

Q. And you acted?

A. Yes, sir.

Q. Why did you not keep control?

A. Because they had taken it out of my hands by dismissing the police, calling upon the sheriff, and the sheriff called upon the State for troops.

Q. Then I understand you to say that the sheriff superseded you, in your judgment?

A. That is what I said a dozen times.

Q. Did the military supersede you?

A. Certainly they did.

Q. I want to know if you think the military can supersede you?

A. Mr. Chairman, you are getting too hair-splitting here. If I had charge the military could not supersede me—it would not be in their power.

Q. Did you not have charge at the commencement?

A. At the commencement I had, but on Friday morning I was thrown to the dogs. In the night they had sent for the sheriff. They did not come down to

the mayor's office, where I was ready and waiting to hear what was going on there the whole night, but they went for the sheriff and they took him out.

Q. Did they not telegraph you for fifty more additional police?

A. Did I not tell you half a dozen times that I knew nothing about that—I received no dispatch—how often must I repeat that?

Q. Was it not received at your office?

A. I was told that they sent there for more men, and that they got them.

Q. Did they get fifty more policemen that they called for?

A. No, sir. Wait a moment, and I will prove to you that at supper time—after supper—they sent word from the outer depot to the inner depot that they would not furnish transportation to the policemen that went there—they had enough, and they did not want any more.

Q. You did not send them the fifty policemen?

A. I do not know anything at all about it. They got all they wanted.

Q. Now, in not getting them, they called upon the sheriff?

A. No, sir. I will prove to you they got all they wanted. They said they wanted no more, and they would not furnish transportation to the men at the Union depot; but if these men wanted to go they would have to walk.

Q. They did not get the fifty policemen. You have stated they sent for fifty policemen, and they did not get them?

A. I do not know that they sent for fifty policemen, but I have a moral conviction they sent for more men. How many I do not know. It may have been fifty. I have a moral conviction that more men were sent to them than they wanted, for they said so. Whether it was fifty men, I do not know. I do not think it was fifty.

Q. You were not at your office, and did not receive that dispatch calling for fifty men?

A. I was not at the office from quarter to five in the afternoon until eight in the evening. From eight in the evening I was there all night.

Q. I understand your position, Mr. McCarthy, to be this: that you may be superseded by the sheriff of the county, but not by the military?

A. No, sir; that is not my position, by a long slap. My position is that the military were sent here at the request of the sheriff—that the sheriff took possession of the business, and that the police were dismissed, and then I had nothing more to do with them. That is my position.

By Mr. Larrabee:

Q. That is, when the sheriff takes possession that then there is no further call on you or any further duty for you to perform—is that the position?

A. Under the circumstances as they existed at that time.

By Mr. Lindsey:

Q. Why, then, did you assume command on Saturday evening?

A. Because I had reason to believe from what I saw that outside of the railroad property there was work to be done.

Q. It was not then for the purpose of protecting the railroad property that you acted on Saturday?

A. My good conscience, didn't the railroad company and the sheriff have one thousand men right on that ground, or thereabouts.

Q. It was not for that purpose, then, but it was for the purpose of protecting the city you acted on Saturday?

A. Yes; outside of that.

Q. What time was the information made by Mr. Watt before you on which the warrants were issued for these nine or ten men?

A. Sometime during Friday forenoon.

Q. Made by Mr. Watt?

A. I do not know. May be it was.

Q. Warrants were immediately issued, were they?

A. Yes, sir.

Q. Placed in the hands of your policemen?

A. Yes, sir.

Q. How long were they kept by the policemen?

A. Until Saturday morning.

Q. And no arrests were made?

A. No arrests were made.

Q. And then what was done with them?

A. They came there and wanted to take the information away—the law authorities—I think Mr. Housey was one of them. We would not give them the information—would not let go of that. Then they wanted the names of the men who were implicated in it for the purpose of getting out bench warrants, and they got the names. We gave them to them.

Q. Why were these men not arrested on Friday?

A. Because a troubled state of feeling had been existing in the community by calling out the troops, and I instructed the policemen to be very cautious, and if they made any arrests, an arrest any time before the meeting of the grand jury would be sufficient, simply for the purposes of this information.

Q. Did you not understand these persons were the leaders in the disturbances on Twenty-eighth street?

A. I would understand they were engaged in it.

Q. That was the charge contained in the affidavit, was it not?

A. No, no; it was not a charge. I think that the information was made under an act of Assembly, passed within the last two or three years, about people interfering with the running of trains. I think that was it, though I am not quite sure.

Q. Would it not have been better to have made these arrests as soon as possible, before the arrival of the military?

A. No, sir; I think, under the circumstances, it would have been a very bad move to have made these arrests. I was conscious, at the time I gave the warrants to the officer, that it was a dangerous thing, on account of the public excitement that had been created by calling out the troops, and I told him to be very cautious about what he would do, and I was satisfied he would be cautious, as to rush pell-mell, right up there, and snatch these men right out, would have created a disturbance at once. At least, I thought so.

Q. On Saturday night, when you went out and ordered all the police you could get, consistently, to the Twelfth ward, I understand you to say that it was not for the purpose of protecting the railroad property, but to protect the city particularly?

A. I conceived that the railroad property had eight hundred or nine hundred—at least eight hundred men there, for that purpose.

Q. You took these policemen, you say, to arrest men that were carrying off railroad property?

A. Presumed to be railroad property.

Q. Or carrying off plunder?

A. Yes, sir.

Q. How many did they arrest?

A. I could not tell you. I suppose there may have been about a hundred.

Q. What was done with these men?

A. They were taken to the station-house, and Alderman Butler, I believe, who was in charge—I was not in charge for a week; I had something else to do—I believe they came to the conclusion that they could not be convicted of larceny, from not being able to identify what goods they had. All things were thrown together in the hurry of the moment, and they could not identify them nor the goods, and I believe they came to the conclusion that an action of larceny would not lie, and it would be troublesome to prove it, and he fined them.

Q. How many of them did he fine?

A. Indeed, I cannot tell. I never looked to see.

Q. Did he discharge any of them?

A. That I do not know. I had too much to do, to look after them.

Q. Was any record made of it?

A. Oh! yes; they have their names down in the watch-house docket.

Q. You never examined the record?

A. No, sir; I never examined it because it was a trifling matter compared with other things that had to be done, and I paid no attention to it.

Q. Had you any intimation from any source prior to the appearance of Mr. Watt on Thursday at your office of an outbreak among the railroad employés?

A. No, sir; but on the contrary, I happened to know from the president of the Trainmen's Union that when he was told that, eleven o'clock that day, he disputed the accuracy of the statement. He knew nothing of it, but when he was assured in such a way that he thought there must be something in it, he

left the corner of Eleventh and Liberty streets for Twenty-eighth street, to know what the facts were. He himself did not believe it.

Q. You had no reason at all to anticipate anything of the kind?

A. No; I never dreamed that there would be an outbreak such as there was.

Q. That there would be a strike at all on the railroad?

A. Oh, no; had no idea of it at all. I very seldom come in contact with railroad men.

Q. In the conversations that you had with the men who went out in the Twelfth ward, did they give you any reasons for the outbreak and the strike?

A. No, sir; never entered into a critical examination of the question there at that time.

Q. Your conversation with them was simply in relation to——

A. What was occurring at the moment. I think from all I could gather from the railroad men, that they were averse to what took place.

Q. Had you noticed any influx of people in the city, prior to this time—within a few days?

A. No, sir; I had not, but there was one thing struck me with surprise, that I did not know the faces of vast numbers of people. I was born and raised in Pittsburgh, and I know an immense number of faces. I almost think I can tell a Pittsburgher when I see him, but on that day there were vast numbers of people I could not recognize. I got into close quarters with them twice. By the by, I have not told you that I came in contact with them at the head of the platform of the Union depot, but, like Doctor Donnelly's men, in about ten seconds I was placed *hors du combat*. They invited me to take a little walk—one fellow struck me. A good man in the crowd interfered, and told me they did not want to hurt me, but if I stayed there I would have to take the consequence. I looked around at Officer Jones, who went into the crowd with me, and I saw him looking pretty black, and he made up his

mind to the situation, and he left. He came over to me, and says, "Mayor, you had better get out of this." I was disposed to kick. I did not feel very afraid of them. I am not a man of courage. He gave me a nudge, says he, "Get out quick." And I thought I had better go. With that the mob picked me up and carried me from the head of the platform and landed me out in front of the depot, and Alderman O'Donnell and Dan Hall, and four or five policemen then came up, and I was led into the Union depot.

Q. What time was that?

A. I cannot tell the time—it was when the mob was coming down the Pennsylvania railroad yard, smashing up cars and things.

Q. Some time Sunday?

A. I got a little angry, and lost my head. I did not care what I did, and Jones and I, and two or three others, I do not know who they were, went in.

By Senator Yutzy:

Q. I would like to ask a few more questions in regard to the sheriff and military superseding the mayor?

A. Never ending and always beginning. Do you expect to put me in the hole, Mr. Yutzy?

Q. Not at all. I would like to know why you considered yourself superseded by any other authorities here in the city, the disturbance having commenced?

A. I have tried to impress that upon you half a dozen times.

Q. Were you informed, by either of those parties, that you were not needed?

A. I have told you two or three times *no*, and I shall have to continue answering it *no* every time you ask me.

Q. Did you not consider it your duty to make an effort to suppress the riot and disturbance after they had made an effort to do so?

A. After they had made an effort and abandoned it, I did make an effort.

Q. During the time you were making that effort, did you not consider it your duty also, as chief officer of the city, to suppress any riot or disturbance?

A. I think I told you several times.

Q. Answer that question?

A. I say I have already told you several times, that they pursued a course so diametrically opposed to anything I would have done or could have approved of, and having a firm conviction that no persuasion of mine could alter the determination of the authorities who had it in charge, that I could not interfere.

Q. You made no effort, then, to disperse or suppress the riot?

A. No, sir.

Q. After they had made an effort?

A. After they had made an effort, I did.

Q. During the time they were making an effort?

A. No, sir.

Q. Made no effort?

A. No, sir.

By Mr. Lindsey:

Q. And not until after they had failed, in your judgment?

A. Yes, sir. What more evidence would you want than that everybody had run away—they had left. I do not charge the soldiers with running away—do not understand that. I meant among the men who said the Philadelphia troops murdered the people there. I am not among those men. I believe they were murdered, but the Philadelphia troops are not responsible for it.

By Senator Yutzy:

Q. During the time that the sheriff or the State authorities were making an effort to suppress this riot and disperse the mob, was it not your duty, just as much as if they had not been here, to preserve the peace, and make every effort in your power to the same end?

A. I have already answered that question half a dozen times. I answered it a moment ago.

Q. Will you please answer that, yes or no.

A. Under the circumstances, I do not think that I had anything to do with it.

Q. I would like you to answer that question. It may not be so very material, but I would like to have that question answered, yes or no?

A. I have answered it?

Q. Can you answer it, yes or no.

A. I have already answered it. Under the circumstances, I do not think so.

Q. The sheriff and the military, or even the United States Government, attempting to suppress a riot unless there was military law declared, did you not consider it your duty to make every effort in your power to preserve the peace and prevent any disturbance in your city?

A. I would consider it my duty to do so if there was nothing to interfere with me.

Q. Was there anybody interfering with your duties by any manner of means?

A. I have already said that I considered I was relieved by the sheriff and the State authorities.

Q. Did they interfere with you?

A. It just comes down to this; that is my platform, and that is what I believe, and you happen to think differently.

Q. I wish to ask you the question whether they interfered with you by any manner of means in the performance of your duties?

A. They did not.

Q. And still you suspended your operations or your efforts to suppress this riot and keep the peace?

A. Because these gentlemen superseded me and took possession.

Q. In what way did they supersede you?

A. By dismissing the police that they had in charge, the railroad men, and by the sheriff going there and performing his duties as sheriff, and by calling out the State troops.

Q. Who dismissed these police?

A. The railroad men.

Q. Are you subordinate to the railroad authorities?

A. No, sir; I am not subordinate to them, not by a long slap. There cannot be two kings where I am one.

Q. Still you regarded the railroad company as superseding you when they dismissed your police?

A. No, sir; I did not.

Q. Did they supersede you at any time—the railroad authorities?

A. Why, certainly they did.

Q. By calling upon the sheriff?

A. By the sheriff undertaking to order the crowd to disperse at Twenty-eighth street, and then immediately coming to the conclusion that the civil

power had become exhausted, and then sending a dispatch by Senator Scott calling for the troops, and the troops being ordered out—that superseded me, suspended me. I went over that a dozen times. I am on this stand doing the swearing, and I am swearing for myself.

Q. I would not ask you any question that I did not think was a proper one?

A. I don't think that, but we differ.

Q. There appears to be a conflict of authority in this matter between the city and the county and the State authorities?

A. Not a particle of conflict of authority. I took pretty good care that there should be no conflict. When the county and the military and the railroad authority undertook to follow a course which I would have nothing to do with, that I could not approve of, that I believed would end in disaster, as it did, I stepped aside and let them have their way, because I could not control these men.

Q. We want to know where the responsibility should rest—which of those authorities should have taken command?

A. You have a right to form your opinion from the evidence before you. I have given my evidence, what I thought about the matter.

Q. For that reason I ask you the question whether you considered yourself superseded by other authorities, and should refrain from making any effort?

A. I have told you I thought so, and gave you my reasons for it.

Q. During the pillage and the carrying away of goods at the Union depot and in that vicinity, from the railroad, did you see any of the citizens carrying away any of those goods?

A. Oh, yes; there must have been citizens—they must have been citizens—it was not the fellows who were stealing that there was any danger from. It was the fellows standing around with their hands in their pockets.

Q. Did you know anyone in particular who was carrying away goods there?

A. I did not.

Q. Did you see any of the policemen carrying away any goods?

A. I did not; and don't believe they did.

Q. Did you see any of them taking cigars or anything of that kind?

A. Yes; I know what you are coming at now; I had forgotten all about it. We have not been going on chronology, we have been switching off. I saw a number of police throwing what I supposed to be segars, in fact I might say I know, to the mob. The circumstances were these.

Q. Thrown by the police to the mob?

A. O, yes; precisely that and nothing else. You will remember that I said that I telegraphed to detain the policemen, and send them up there on Sunday morning. I got up there pretty late, and the policemen were waiting on me. I hadn't much confidence in any person we had, because I knew that the retreat and dispersal of the soldiers had emboldened the disorderly, and they thought when the soldiers would leave the mob, that the citizens had no chance, and the community were demoralized. I got about twenty policemen, I think, and I thought it would be a good thing to put them to light work and put a little spirit in them. I took them around and told them to go up the wall and drive those thieves away. I didn't get on the wall, I walked down alongside the wall to witness their operations. As soon as the police mounted the wall and the thieves saw them—I kept down with the police the great body of them; I followed on the street and they upon the wall, and the wall was clear for a very few minutes, and I happened to turn my eye up, and I saw a policeman with a bundle of those soft felt hats that are piled on top of one another, and he was throwing them down to the crowd in the street, and I rushed up for him, and shook my fist at him, and used some choice Italian, and then he stopped, and after talking a little string to him I turned, and down the line I saw a couple of policemen jump into a car and throw things out—they were cigars—and they threw things down to the crowd. I rushed down there and bellowed like a mad bull at them, and they stopped finally, but the moral effect of their previous

conduct was gone, and the crowd mounted the hill like so many rats, and that was the end of that business. The men engaged in that were two lieutenants, and I am free to say there were not two better men in the force, but they lost their heads; they were completely surrounded by fire, and they thought those things would burn up, and as they would be burned up they just thought they might mollify the crowd—a very mistaken idea—by throwing these things to the crowd. It was from no desire to help the mob, but they had ignored the moral principle involved that they had no right to touch anything, except for the sole and only purpose of preserving it for its owner, and no other purpose. They had forgotten that part of their catechism.

By Senator Yutzy:

Q. In other words, the police were demoralized as well as the citizens?

A. At that moment they were. I don't think these men would ever do a thing of that kind again.

By Mr. Lindsey:

Q. What was done with those policemen for that act?

A. I dropped them. I could not do anything else.

By Senator Yutzy:

Q. Discharged them?

A. Yes, sir.

Q. Are they on the force now?

A. That I can't say. I do not know anything about the present force?

Q. Did you discharge them permanently?

A. They left, certainly, and were never on again. They were on again for some days afterwards, for I had too many things to attend to, to attend to

them just at once. I pitied the men, because I knew them to be good men, and I am very confident they will never do so again. It took the starch out of me. I was demoralized by it. There are some things you haven't asked me questions about. There was some talk here the other day about protection to the fire department.

By Senator Reyburn:

Q. There has been some testimony that citizens, about the time they were breaking into these gun stores, came and offered to be sworn—state what you know about that?

A. That was by Follensbee. Mr. Follensbee came there and offered. He came to the office very much demoralized.

By Mr. Lindsey:

Q. Just state the fact whether he offered his services, and then whether you accepted or not, and then give the reason why you didn't accept him?

A. I don't know whether he offered his services or not. There were more men, during these two or three hours that I was assigning these men to duty—there were more men who came in there, in the capacity of military strategists, than would be enough to run the United States and Confederate army during the rebellion, and I was annoyed to death with every man coming in there who had some plan. I could not get my wits together. This Mr. Follensbee came there. I have no recollection personally of what he said, but I do know that he was very sadly demoralized with something stronger than I am going to take now. He is a good gentleman, as honest a man as ever lived.

Q. You did not swear him in?

A. No.

Q. Was that the reason why you did not?

A. Oh, yes.

Q. Did any other gentlemen with him offer their services?

A. Not that I know of. There was so many people came in and talked about so many things, and how this, that, and the other thing could be done, that I thought of getting a stuffed club to beat them out with.

Q. Did you send any policemen to Mr. Bown's store?

A. Undoubtedly. I suppose there was a dozen there. They were overpowered by the momentum of the mob, and Lieutenant Chalfant was knocked down, as I was told by the policemen a few days afterwards, when we began to gather up our wits. I was told that some of the policemen that were there tried to keep the pavement clear, and took out their pistols, and citizens who were there requested them to put them up, and not use them—that they would be murdered.

Q. Just state what you know—what came under your own observation?

A. Nothing came under my observation there. You won't know how to probe this thing, unless I told you what can be shown.

By Senator Reyburn:

Q. I am inclined to think that anything in the police officers' reports—the police officers reporting to you, in an official capacity—would be testimony?

A. Now, about Follensbee. The city clerk was down in front of Mr. Bown's, and there was not a very great many people. They had been trying to keep the people moving. Mr. Follensbee was standing there, and the city clerk appeared to go that way——

Q. We have had the city clerk's report of that, from himself, which is much better evidence than coming from a second party. All we want to know, is just what came under your observation, and what was officially reported to you by your policemen?

A. I sent men there, and I know they went there.

Q. You say you sent about a dozen policemen there?

A. I suppose there must have been a dozen, and I know, from the report of the police to me, that they endeavored to keep the crowd back, and did keep the crowd back, and that one man in the crowd counted one, two, three, four, and up to ten—they are no count, and the whole crowd made a rush at them, and Lieutenant Chalfant was knocked down, and the momentum of the crowd carried the crowd out of sight. They had thrown stones at the heads of them, and broken the windows.

Q. You didn't make any effort to get any greater number of policemen to send there?

A. We had to ... half a dozen places at the same time. We just done the best we could, and possibly might have done better, if there had not been so many strategists coming there to bother us.

Q. Did you send any policemen to protect the fire companies?

A. Why, yes, sir.

Q. Whom did you send?

A. I was there myself, with fifteen policemen.

Q. Whom did you offer assistance to?

A. Let me tell you.

Q. Just answer the question?

A. We can get to that better.

Q. Whom did you offer assistance to?

A. To the man in charge.

Q. Who was he?

A. I don't know what his name was.

Q. What street was it?

A. It was, as I think, at the corner of Twentieth and Liberty. You can't understand this, unless you let me tell the story.

Q. At what time?

A. I can't give you any hour. I know nothing of time.

Q. You offered assistance to the man in charge. What was he doing?

A. He was throwing water on French's spring works. You better let me tell the story. You are cutting it up.

Q. What did he say?

A. He says to me, says he, "I won't do it—I am not going to risk my life—if you want to take charge of this thing you can do it."

Q. He was throwing water at that time without any molestation from the mob?

A. Certainly; and the police was stationed across the street to protect them. Whether they would have stood fire or not, I can't tell.

Q. What assistance did you offer him?

A. The police that were there within thirty feet of me.

Q. If he was not molested by the mob at that time, he wanted no further assistance?

A. You won't let me tell this story straight. If you let me commence at the beginning you will understand it.

Q. Did you offer assistance at any other time than the one you speak of now?

A. I told you that I offered assistance on Saturday night, and it was refused.

Q. To whom did you offer the assistance on Saturday night?

A. I sent Officer Coulson to the fire department to tell them to come and aid the police.

Q. We have had Officer Coulson and his story?

A. On Sunday morning, when the fire had crossed Liberty street, I went to hunt the chief of the fire department, and could not find him, to concert measures with him. That is the time I talked about the water arrangement. Then a man connected with the Pennsylvania railroad came to me, and says he, "If I get an engine at the corner of Twentieth street to throw water on the railroad cars will you have the police force there to protect me?" Says I, "I will." I immediately went and I gathered about fifteen policemen, as nigh as I can guess, and had them at the corner of Twentieth street. I think it is at the lower end of French's spring works. I had them there a very long time, and no engine appeared. John Coyle, a member of the bar here, came along and spoke to me, and I said to him, says I, "John"—I told him the facts—"come along with me, I want to hunt this thing up," and we went up to find the chief, and we didn't find him. We found Commissioner Coates, the man that had a pistol at his head and lived to tell the tale. He said he had an engine. I left Mr. Coyle and came down. Coyle went about his business; and I saw an engine coming down one of the cross-streets—Penn street—and I went over to see where it was going, and it went away down town. I went back to where I had the police stationed waiting for the engine to come. After a very great delay, the engine came and attached to a fire plug; but instead of throwing water upon the burning cars, opposite to this street where we were, he commenced throwing upon French's spring works. Then Mr. Houseman I think it is—the gentleman who had made the request of me—I went to him and said something to him, and he came back to me and said, "These men won't do anything. You come and see what you can do." I went over to him, and the answer he made was he was not going to risk his life, but if I wanted to take charge of it I could do so. But I didn't do so. Then the police—they were few in number, and not able to do anything—I just told them to go and do what they could. Then I went down town, and knew the result of the citizens' meeting.

By Mr. Larrabee:

Q. You said you did not agree, nor could not agree with the plan adopted by the sheriff and the troops, or the officers of the troops, in charge of matters, and at the same time the directions you gave your police was to be careful, and not excite the crowd, and not make these arrests. Are we to infer from that, that your plan was that you must not oppose force to them, you must handle them gingerly and tenderly. Is that what we must infer?

A. No, sir; every occasion presents its own line of action.

Q. The troops and the sheriff were trying to oppose the crowd by force and stop the riot, and you say you did not agree with their plan of action?

A. I don't. I think that the military force is only to be used in case of the very last resort.

Q. In ordering your policemen not to make these arrests, are we to infer —

A. Infer and understand this, that in ordering these policemen to be careful how they made arrests, it was after I had considered I had been superseded, and I wanted them to make the arrests when they made them in such a way as not to create any disturbance.

Q. Are we to infer from your evidence upon that point that your manner of managing such a mob would be to give way to them, and not oppose force to the crowd?

A. I have said nothing, I think, to indicate that.

Q. What would be your plan in such a case?

A. I would have policemen to do it. I don't think the policemen would create such a truculent feeling as an arrest by the use of military.

Q. You think then that the police are the proper force to use on such occasions?

A. Until you ascertain you can do nothing with them, until all other means have failed, and then, and not till then, are the military to be used.

Q. Did you attempt at any time on Sunday to gather your police force in a body so as to have an organized force large enough to accomplish something?

A. I could not get any force on Sunday large enough.

Q. You got fifteen—you say there was fifty or sixty policemen—did you undertake to gather that body?

A. I did not say there was fifty or sixty policemen. I am talking now about the night before.

Q. I think the question was asked you how many there was about there on Sunday?

A. I could not tell how many were there. I know only a small body of them could be got together, and then they began to collect the men who had went home in the morning before we knew that the soldiers had been withdrawn—they began to gather in before dark—then we had a pretty good force, and then with such assistance as citizens gave, we broke the back of the riot—we knocked them right and left.

Q. Hadn't whisky helped a good deal at that time to place them *hors du combat*?

A. I don't know about it myself, I do not drink it.

Q. I did not ask you as a connoisseur.

A. I think it had the effect to make the crowd vicious. I thought so when I was in their hands.

Q. This Sunday night and Monday morning was when you first began to regain some control there?

A. We got control—from dark on Sunday evening we had control.

Q. The mob had kind of petered out then?

A. Yes, and they had been licked out by the police and citizens.

Q. Where had there been any set-to where the mob had been licked—at what place?

A. At the Fort Wayne depot, at the intersection of Tenth and Liberty street.

Q. What police had had the set-to with the crowd at the Fort Wayne depot?

A. There was eight or ten policemen went there when the car was afire, and they put that out, and they were assisted by citizens also.

Q. How large a crowd did they find to contend with?

A. I don't know, it was an accomplished fact. The mob began to break in stores, and commenced at the corner opposite to Tenth on Liberty street, and the police and the mob had the battle there.

Q. How many police were there engaged in that battle?

A. There was a considerable number.

Q. Do you know how large a crowd there was there?

A. I am told the streets are full.

Q. What kind of a crowd was it?

A. Breaking into stores.

Q. The same crowd that had been burning cars?

A. I don't know.

Q. What was it composed of—this crowd running about the streets?

A. They were composed of men and boys. We had another battle with them at Seventeenth.

Q. This crowd that was plundering was easily dispersed at any time?

A. Easy. They were not people to be afraid of.

Q. Who were the people to be afraid of?

A. Those standing around doing nothing.

Q. Was there an apparent organization among them?

A. I don't know.

Q. Could you judge?

A. I don't know whether there was an organization; there appeared to be a common feeling. I was astonished from the fact that I didn't know them.

By Senator Yutzy:

Q. They appeared to be strangers?

A. They were strangers to me, I did not recognize them.

Q. In your intimate acquaintance with the people, you would take them to be people from elsewhere?

A. I thought I knew the people about Pittsburgh, but I didn't know these. I don't want to swear that they were strangers. I don't know that I know. I was recognized, and I thought I ought to recognize a great many of them.

Q. Those that were engaged in the act of rioting and police?

A. I am speaking more especially of those who captured me in the railroad yard, and carried me out in front of the depot.

By Mr. Engelbert:

Q. They did that systematically, did they?

A. Oh, yes; carried me right out.

By Senator Yutzy:

Q. Did you, at any time during the riots, employ your night force in the day time?

A. Such of them as we could get. Understand this, my idea of this matter was that the soldiers, having possession of the railroad property, were cooped up for the night, and that when daylight would appear they would go out into the open ground, and take possession of things. My idea was, they went into this place to prevent being pushed back during the night. The great body of the police force went off at six o'clock in the morning. I, supposing that the police would have nothing to do, except to do street duty under this excitement, and had instructed the chief of police to call upon the discharged policemen, supposing that he could get plenty of them, but that expectation was not realized, and not expecting that the soldiers would leave the city at the time they did, had given no orders to keep the night policemen on duty that morning; but when I found that the soldiers had all dispersed, I telegraphed down to the central station to detain such policemen as were there—and there were some there—and they were detained, and they were on duty all day.

Q. Did you make any effort to re-assemble the night police after you ascertained they had left?

A. Could not do it.

Q. Did you make any effort?

A. Could not do it.

Q. Could not you find them?

A. You couldn't get a man to go after them—the great body of them—until night would come. You would get them just as soon by waiting until they came on duty.

Q. Didn't you have the address in your mind?

A. Yes; and knew where they lived. We had plenty to do without doing that.

Q. Any more important duty to perform than to get these men to assemble?

A. That would depend altogether upon what the man in charge thought. I thought the most important duty was to have the police up there—all we could get—and let them do what they could.

Q. Without calling on the night police?

A. If we had means of calling on the night force to gather them in, it would have been done, but, to do so, we would have had to abandon everything else for the time being. Possibly, that might have been as well, though. When I went to the corner of Seventh and Grant streets, I found the firemen playing there, and the police having charge of the ropes—keeping the crowd away from them.

Q. Did you employ all your powers during these riots, regardless of any other efforts adopted to subdue the riots, in preserving the peace?

A. What do you call during the riots?

Q. The time from Thursday until Sunday?

A. Because I didn't think there was any riot before five o'clock on Saturday.

Mr. Lindsey: That question requires a direct answer—yes or no.

By Senator Yutzy:

Q. Did you exhaust all your powers during the riots, irrespective of these other parties?

A. I say there was no riot until four or five o'clock in the morning, when the soldiers charged bayonets on the crowd.

Q. Including all within the time from Thursday until Monday, did you exhaust——

A. I knew of no riots until the soldiers charged bayonets on the people. I have answered that question a dozen of times.

Q. Answer it yes or no?

A. I will not answer it yes or no. All my powers were exhausted in preserving the peace so far as I thought I could exercise them. That is the answer to that question.

Q. Have you any call—is there any call to assemble the police, by telegraph or otherwise?

A. We have a police telegraph from each station-house. We send messages on it every day.

Q. There is no particular call by which you assemble your police?

A. There is no alarm.

By Mr. Lindsey:

Q. I want to ask the mayor a question in connection with his answer to this. He says he used all his powers in preserving the peace, so far as he could exercise them. Was there anything to prevent you from exercising your powers as mayor?

A. Yes; the ground had been occupied by the State military and the sheriff, and occupied in a way that it was utterly impossible for me to act with them.

Q. And it was the only thing that prevented you from exercising your powers?

A. I will say that there was a party went down to the depot—the Duquesne depot—Sunday afternoon, stating he was going to set it afire. That man was arrested by the police, assisted by some citizens, and taken to the lock-up.

Q. You know that there was an assemblage of men at or near Twenty-eighth street during the day, on Friday, don't you?

A. I presume there was, or Mr. Watt would not have come down there and asked for police?

Q. For the purpose of protecting trains going out?

A. No, sir; I didn't know that. I don't think I knew that.

Q. For what purpose were they assembled there, so far as you know?

A. I only knew about them from Mr. Watt, and what he told me, I have forgotten now.

Q. You have forgotten what he told you?

A. Yes, sir.

Q. Did you take any measures to ascertain what the purpose of the assemblage was?

A. I think Mr. Watt must have told me what it was, and I judge so. The first thing I heard after the police went there, was that a man had struck Mr. Watt.

Q. I want to know if you don't know that during the day on Friday, and during the day Saturday, there was a large assemblage of men at or near Twenty-eighth street?

A. I knew that by common report, and hearing the police talk.

Q. Was not that an unlawful assemblage of men?

A. It may have been an unlawful assemblage of men.

Q. Didn't you know it was an unlawful assemblage of men?

A. I don't know, I presume it would have been an unlawful assemblage. I presume that they were there for an unlawful purpose.

Q. You did not take any pains to disperse that assemblage?

A. Have I not answered that question a dozen times?

Q. What is your answer? Did you take any measures to disperse that assemblage?

A. I didn't for the reason that I have given you—for the reason I repeated a dozen times to different other questions, in different forms. There is a good deal more I would like to tell you.

Q. You say on Thursday you sent police officers there, and they got on a train, and they attempted to run that train out?

A. And couldn't run it out.

Q. Why didn't they run it out?

A. Because the engineer stepped down and out.

Q. Why did he step down and out?

A. Because he wanted to.

Q. Was there any men taken by force?

A. Oh, no.

Q. Was there a crowd there at that time?

A. I suppose there were a great many people there. I have no doubt there was.

Q. Don't you think it was an unlawful assemblage, and that it was your duty, as mayor, to have gone there, and have dispersed that crowd?

A. The police were there preserving the peace. They were there and preserved the peace to such an extent, that the police say that they were on that train, and that train could go out. There was nothing to hinder it, if the engineer had stuck to his post; but, instead of that, he stepped off his engine, and left the police in charge. That is the report of the police to me?

Q. Wasn't it your duty to disperse that crowd there, as mayor of the city?

A. No; because I knew nothing of the details of that, at this time; because Mr. Watt got all the police that he needed, and they got more than they wanted—said they had more than they wanted, and they had the direction of

them there, and the presumption is that the police did just what they wanted them to, and the only breach of the peace that occurred there was that of which Mr. McCall was arrested for—striking Mr. Watt—and taken to the station.

Q. Was not the train uncoupled? When they attempted to start that train, didn't they rush on and uncouple the cars?

A. I guess you are talking about the trains they attempted to run early in the morning, before the police came there. That is what I think. It was on that occasion that Mr. Watt came down after the ten policemen.

Q. Didn't Mr. Watt tell you of the circumstances?

A. I suppose he did.

Q. Didn't you have knowledge then that there had been a riot, or, at least, a disorderly crowd there, and wasn't it your duty then to protect those people?

A. And for the purpose of doing that, Mr. Watt came and asked for a certain number of policemen—for what he thought was sufficient—and they were soon there?

Q. And still you allowed that crowd to remain there?

A. That is not a fair way to put it.

Q. I want to get at the reasons that actuated you?

A. I didn't know anything of the nature of that crowd. I knew nothing more at the time than that Mr. Watt wanted ten men, and ten men was sufficient to control it. That was sufficient. They were there, and there was only one breach of the peace, and that man was arrested, and when this train, between three and four o'clock, undertook to be run out, it could have been run out.

Q. Did the crowd intimidate the engineer in any way, do you know?

A. I understood the police that he was not intimidated—that he could have gone out with the train, if he thought proper. They were there to protect him in so doing. They told me he could have gone out, if he had chosen. I don't know who he is, anything about him. I guess it was the last effort made to run a train out.

By Senator Yutzy:

Q. Did you consider at any time until the military arrived that the crowd that assembled there was an illegal crowd?

A. Oh, no; I didn't think it amounted to shucks.

Q. You consider there was no riot or mob nor illegal assemblage at any time before the military arrived?

A. I knew that there were men in a crowd.

Q. Answer that question now. You consider there was no illegal assemblage, mob, or riot previous to the arrival of the military?

A. I think that in the ordinary acceptation of the word mob and riot, there was no mob and riot previous to the military coming there.

Q. Or illegal assemblage of people?

A. I think any persons that go on the Pennsylvania Railroad Company's ground, don't obey their lawful orders and proper orders, that it is an unlawful assemblage.

Q. Was there any illegal assemblage?

A. I have no doubt there was.

Q. Were you aware of that?

A. I must have been aware. It could not have been otherwise.

Q. Did you make any efforts to disperse them?

A. Yes; I gave the Pennsylvania Railroad Company all the police they asked for.

Q. Did you drive them off?

A. I don't think they were driven off, but the Pennsylvania railroad got all the police they asked for.

Q. You didn't give them the officer they asked for?

A. In asking for me?

Q. Yes; you?

A. No; I was not going up to head ten policemen.

Q. You required them to pay the police also?

A. No, sir; you put your statement too broad. These policemen—we took what policemen we could belonging to the city and filled up with the others who were not in the pay of the city.

Q. And those others were paid?

A. I think there must have been about twenty-nine policemen outside of such of the city folks as were considered.

Q. The extras were paid off by the Pennsylvania railroad?

A. Yes; they were paid by them.

By Mr. Lindsey:

Q. You didn't call on any of the night force to go at that time?

A. No, sir; we couldn't do that. Nothing but the most imperative necessity would require that. We only had patrolmen to cover twenty-seven square miles. At the riot on Saturday night every man was called in from the first, second, fourth, seventh, eighth, and ninth districts; they were left entirely unprotected.

At this point the committee adjourned until this afternoon, at two o'clock.

AFTERNOON SESSION.

PITTSBURGH, *Friday, February 22, 1878.*

The committee met, pursuant to adjournment, in the orphans' court room at three o'clock, P.M., Mr. Lindsey in the chair.

All members present.

R. L. Hamilton, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. 810 Penn avenue.

Q. What is your business?

A. I am a clerk for the water-works of the city of Pittsburgh—clerk of the water-works. I believe it is called, sometimes, clerk of the water extension committee.

Q. How long have you held that position?

A. I have held the position of clerk of the water-works since February, 1876—February 4, I believe.

Q. Where is your office?

A. City hall. Third floor of the city hall. Municipal hall as it is called.

Q. State whether you were at or in the vicinity of Twenty-eighth street, on Saturday the 21st day of July?

A. I was.

Q. When the firing occurred?

A. I was in the vicinity at the time of the firing.

Q. Where were you—what was your position?

A. I can hardly understand the question.

Q. Where were you in relation to where the troops stood—explain the situation you occupied?

A. At the time of the firing I was running.

Q. Which direction?

A. Well, towards Liberty street and Twenty-ninth street, to get a brick house between me and the troops.

Q. Go on, and relate what you saw, commencing at the time you arrived at, or in the vicinity of Twenty-eighth street?

A. To explain the question, there was a meeting of the water committee called for Monday evening, and some two or three members of the water committee lived out in that direction. I started at that notice, and at two o'clock I arrived at Twenty-eighth street. I went up Twenty-eighth street to the Pennsylvania railroad tracks, and when there, I was informed that the Philadelphia troops were about to come out, and I waited to see them until sometime after four o'clock. These troops came out headed by the sheriff and several citizens of Pittsburgh, and after they had formed themselves in position, the sheriff commenced speaking to the crowd, and I couldn't hear what he was saying from where I was standing, and I got on a coal truck where I thought I could hear what he was saying. When I was on this truck, one company of the Philadelphia troops—the troops, at that time, were formed in two lines facing the hill, that is, the line next me was facing the hill. I wouldn't say positively about the line nearest the hill. I was near the round-house. There was one company of the Philadelphia troops brought up

in single rank, they marched up very quietly until they got to the switch below Twenty-eighth street. They were met by the crowd, that is, a crowd of men that refused to go any further. There were orders given very quietly, and another company, with black plumes on their hats, came up, and this first company was put in double rank. They tried to force the crowd back, and the order was given to charge bayonets. The officers of the Philadelphia troops were in the rear of those two companies, they were charged up on the track, and after sometime, there was an order given to fire by the different officers of the Philadelphia troops.

Q. I wish you would now repeat what you said, beginning with the order which was given to charge bayonets, commencing about there, and repeat what you said?

A. After the second company had been brought up—the company with dark plumes on their hats, I cannot tell what the uniform was—after that, there was an order given to charge bayonets, and it was a very short time after this order to charge bayonets—that was only given to the two companies, the other files were standing, the rest of the Philadelphia troops were standing in two lines on each side of the railroad track—after that order given to charge bayonets, almost immediately, I heard the command given by several officers of Philadelphia companies, that is, I suppose they were from Philadelphia. I don't know them personally, but from their uniform, and from the position in which they were. The order to fire was given by several men in the uniform of officers of that regiment.

Q. Where did you stand during this time?

A. I stood on a truck loaded with coal. The left of the railroad tracks going out almost immediately in front of the sand-house of the Pennsylvania railroad, this side of Twenty-eighth street.

Q. How far from the tracks?

A. I could have stooped down and touched three of the militia with my hands, by stooping.

Q. How far were you from them at the time the order to charge bayonets was given?

A. I was in the same position. I had not left that position from the time I got up there to see what was said by the sheriff until I heard the order given.

Q. What officers gave the order to charge bayonets?

A. I couldn't say. I heard, but I couldn't say how it was given. The orders at that time were given very low. It was not to the whole regiment.

Q. From what direction did the order come?

A. Right from the rear of the two companies that were marched up the track, and they were not charging when the order was given.

Q. How did they have their arms when the order to charge bayonets was given?

A. The two companies, I think the whole of them, were at carry arms, from what I know of the present tactics.

Q. Were any of them at arms port?

A. Some of them in the charging parties had their guns at arms port—some of the charging party.

Q. Did you hear that command given?

A. No, sir; I didn't hear that command given, but I know now that some of them had their guns at arms port, because I remember the guns being in the position of arms port—some of them. A party directly in front of me were at carry arms.

Q. They were standing still?

A. Yes. They were in line. I think they were at a carry, so far as I can remember. I cannot swear positively as to that.

Q. When you heard the command given to charge bayonets, how close were those two companies to the mob?

A. Just as close as they could get.

Q. And the mob resisted them?

A. Yes, sir.

Q. When the order was given to charge bayonets, did the two companies obey the order.

A. Part of them did. I could see them lunge with their bayonets—try to force them back.

Q. Did the crowd resist that charge?

A. Some of them did; yes, sir.

Q. And attempted to pull——

A. I heard parties say that if they would let them out in any way, they would be glad to do so. It was the crowd back of them that was holding them in. Others resisted.

Q. Did they try to pull the bayonets off the guns?

A. I saw them wrenching with the guns. Saw them wrenching the guns, and heard remarks made by different parties in front of the party charging bayonets that if they would give them room to get back they didn't want to interfere. I heard these remarks made from where I was.

Q. And the command to fire, you say, was given by captains?

A. I don't know about captains. I say officers of the Philadelphia companies that the word "fire" was given by.

Q. By officers of companies?

A. Company officers is what I say the word was given by.

Q. And not by field officers?

A. I wouldn't know that the field officers were with that regiment, but I knew from the position——

By Mr. Reyburn:

Q. You mean from the position they occupied, they were company officers?

A. I suppose they were company officers. They were in the rear of the two ranks facing me.

Q. Had any stones and missiles been thrown at the soldiers before the command to charge bayonets was given?

A. I cannot say positively as to before the command to charge bayonets was given.

Q. Were any thrown at the troops before the command to fire was given? Were there any shots fired by the crowd before the command to fire was given?

A. Not that I either saw or heard—not before the command to fire.

Q. Missiles had been thrown?

A. They had been thrown—I saw them thrown.

Q. Were any of the soldiers hurt?

A. Not that I saw. I saw one of the officers—I supposed to be a field officer—saw him hit, and it staggered him, but he didn't seem to be hurt—kind of shoved him to one side—it seemed to be a piece of a board or piece of wood—something like a block of wood—it was thrown from the hill side, and hit one of the officers. I saw that myself—not thrown from the hill side, but from what they call the watch-box—it is a watch-box. It was thrown from the back of that by a boy.

Q. You saw the boy?

A. It was a young fellow about sixteen or seventeen years of age, from what I could judge from his appearance.

Q. When the firing commenced, you ran?

A. I ran before the firing commenced. I was back of what they call the Hill house.

Q. Did you run before the command was given?

A. No, sir; I didn't. Whenever I heard the command given, I thought I had no business there, and I got out of the road, that is one thing that made me so positive the command was given. My idea of getting out of the road was on account of that command to fire.

Q. In what words—was there more than one command?

A. There was no more than one command. The word fire was given by different men in uniform. They were standing not in the rear, but in front of the line of militia that was right in front of me. I heard that from more than one voice.

Q. In what words was the command given?

A. The command I speak of as given by those parties, was the word "fire."

Q. Addressed to any particular person?

A. Not by those parties—just "fire."

Q. How do you know who gave that command?

A. I could hear them; I don't suppose I was six feet from some of them.

Q. Could you pick out the men who gave the command?

A. That gave the word fire?

Q. Yes?

A. No, sir; I couldn't.

Q. Then you don't know who it was that gave the command?

A. That gave these commands? No, sir.

Q. You say it came from officers in command of a company?

A. It came from what I supposed by the position they held—they were strangers to me.

By Mr. Reyburn:

Q. Couldn't you distinguish the officers from the private?

A. I thought I could. It was what I consider officers. I didn't pay that much attention. I had no idea there was going to be such a command given, and paid no attention to officers nor privates. These parties had no guns. Whether they were captains or lieutenants, or what, I couldn't say.

Q. You wouldn't pretend to say what man it was gave the command, or pick out the man?

A. That gave this command I speak of? No, sir.

Q. You could only tell the direction in which the words came?

A. If they had been Pittsburgh troops had been there, I suppose I could have told every man of them. I could not point out the men if they were brought before me now.

Q. Could you see the man who uttered the words?

A. Yes, sir.

Q. So as to pick him out?

A. I could, provided I had seen enough of the man. I couldn't remember him now. I believe if I could see the man that I first heard these words "fire" from; if I would have seen him the next morning, I could point him out. I don't remember of having seen him since, and I don't know that I could point him out if he was here.

Q. How was he dressed?

A. Dressed in a gray uniform? He was in full uniform, with gold lace on it.

Q. What rank did his uniform indicate?

A. I didn't pay that much attention to him to find out what his rank was. The militia uniform is so badly mixed, I could hardly tell what the man's rank would be. The uniform seemed to be about the same in all the officers. I didn't pay any attention to these troops as regards that.

By Mr. Reyburn:

Q. Had he a plume, the same as the privates?

A. I couldn't say.

Q. Didn't notice?

A. No, sir.

By Senator Yutzy:

Q. How many officers did you hear give this command to fire?

A. I couldn't say exactly. I suppose seven or eight.

Q. All gave the command to fire?

A. Yes, sir; that is, I heard it in that many different voices; I couldn't say how many officers, but in that many different voices.

Q. Not at one and the same time?

A. Not at one and the same time.

Q. Did any other words precede the word "fire?"

A. Not by the officers I speak of.

Q. Nothing but simply "fire?"

A. Simply "fire."

By Senator Reyburn:

Q. You are sure they didn't say not to fire, and you only heard the word "fire?"

A. I am sure of the parties I speak of.

Q. That they were not cautioning their men not to fire on the crowd?

A. No, sir; I am sure of that.

Q. Couldn't you have made a mistake, and only heard the last word?

A. Not from the position I was. The parties may have been mistaken in regard to where they got their order.

Q. When they were ordered to charge bayonets, what was the command given to charge bayonets?

A. As I spoke before, the command was given, that I could hear the command but couldn't hear what was said to the troops. It was given to two companies in a low tone of voice, but what I understood to be "charge bayonets," and a charge bayonets was immediately made after this order. It was in a low tone of voice.

Q. Not as a military officer ought to give a command?

A. Not as I would suppose a military officer should give a command. I am not posted in regard to how they should give it.

Q. He didn't say it as though he meant business?

A. It looked very much like it.

Q. He gave it in a low tone of voice?

A. Just gave it in a low tone of voice to those two companies—it was a command to those two companies.

Q. When he gave the command fire, did he speak it distinctly as though he meant exactly what he said?

A. Who are you speaking of?

Q. The officers that gave the command?

A. Yes; they spoke it distinctly.

Q. As though they meant exactly what they said?

A. I supposed from that they meant it, that is the reason I got out of the road. I thought they meant what they said.

By Senator Yutzy:

Q. What position did those officers occupy when this command to fire was given. The officers I speak of giving the word "fire?"

A. They were in front of the command.

Q. In front of the rank?

A. In front of the rank. There was no room for them in place else.

Q. You are sure they were in front of the rank?

A. Yes, sir.

Q. Seven or eight of them, you say?

A. If you will allow me to explain about the officers. Six, seven, or eight. There was two ranks of troops, stretching from the switch at Twenty-eighth street down the track in two ranks, and those two companies were at the upper end. What I supposed to be the general officers were in the rear of those two officers, and the other officers were scattered down along. There was two lines. There was seven or eight not scattered along, because they were over near to what I considered to be the generals.

Q. They were in front of the rank?

A. The line was facing this way. [Illustrating.] There was no officers outside of this rank [indicating] that I could see, and there was no room in this rank, because here is a truck—a coal truck. I stood from where I could stoop down and touch the soldiers.

Q. Wouldn't you suppose this was a pretty bad place for an officer to stand?

A. I should think it was.

By Senator Yutzy:

Q. These officers stood between the mob and their men?

A. No, sir.

Q. They were behind the men?

A. What I consider the mob was at the switch at Twenty-eighth street. That was the switch here. [Illustrating.] The Philadelphia troops were formed in two ranks. There was the two companies coming up here, [indicating,] one in single file, and when they got to the switch the men stopped them. They were in single line. This company was brought up between the two lines, forcing every person out, keeping that part of the track clear. They succeeded until they got to this switch. When they got to the switch one company was not successful in driving them back.

By Senator Reyburn:

Q. You said the officers were in front of the men, did you mean those men that were standing in line? The officers were in front of them, was the ones you speak of?

A. Yes, sir.

Q. It was these officers gave the command to fire?

A. These officers I was speaking of.

Q. It was not the men that were marching up to clear the crowd—I mean marching towards the crowd?

A. It was not those officers I heard.

Q. It was the bystanders? Those officers had nothing to do with those companies?

A. No, sir; not with those two companies up the track—no, sir.

Q. Did the companies commanded by the officers who gave the command, fire?

A. I didn't wait to see.

Q. You don't know that they did fire?

A. Not from my own knowledge, but from the parties wounded and killed, I would suppose so.

By Mr. Larrabee:

Q. How long after the command was given did you hear the firing?

A. I got back of this house before I heard any firing.

Q. What distance was you from the crowd, where you stood, when the command was given, when the firing began?

A. I suppose I would be a distance about forty yards, before I heard any firing.

Q. After the command to fire was given, you retreated to the oil-house?

A. I got the oil-house between me and the Philadelphia troops.

Q. How far was that from where you stood when the command was given?

A. I think it was forty yards from where I stood on the track.

Q. How long after you got to the oil-house, did you hear the firing?

A. I could hardly tell—it was a very short time. I don't think you could count a minute.

Q. You think you were not behind the oil-house one minute before the firing began?

A. Until I heard the firing.

Q. You started as soon as ever you heard the command to fire?

A. Just as soon as I could get off the track. As soon as I heard the command "fire," I commenced my way back in this crowd on the track, just as quick as I could get off and run.

Q. About how long did it take you to get through that crowd and behind the oil-house?

A. Didn't take me very long. I was not very long getting there, I know that.

Q. A minute?

A. I do not think I was a minute getting off the track. I was over a minute getting behind the oil-house.

Q. You were there not over a minute before you heard the firing?

A. I am sure of that.

Q. Do you think it was two minutes after the order to fire was given, before the firing began?

A. I think so; yes, sir.

By Mr. Reyburn:

Q. Where did these stones and missiles come from?

A. The things I saw thrown were right from back of what we call a switch-tender's shanty. There is a little shanty we call the switch-tender's shanty. It

was parties standing back of that—I could see it from where I was standing—most of them that were thrown.

Q. How much of a shower of stones was it?

A. There was no shower. There was not even a slight storm. It was not what I would call a shower of stones.

Q. Only two or three stones thrown?

A. There might have been—I guess I saw six or seven. There were lumps of mud and pieces of wood. I do not think I saw a stone. I did see mud—that is, hard mud seemed to be taken from the side of the hill.

Q. Did you see one of those soldiers fall, in the ranks that marched down there?

A. Yes, sir; there was one of them fell, and they picked him up, and took him into the hospital grounds. He was sun-struck, or something of that kind.

Q. How do you know he was sun-struck?

A. That is what some of his comrades claimed. Before they got to Twenty-eighth street this man dropped. He seemed to be a Jew, from his looks. The boys used the expression: "Let the damned Jew lay there." The railroaders got water for him, and bathed him.

Q. Have you ever told anybody that you heard the firing there, and heard the command given to fire?

A. I was a witness in the criminal court, in the murder case against General Pearson.

Q. Have you told anybody outside that you heard the command to fire given?

A. I believe I did.

Q. Have you told persons you heard General Pearson give the command to fire?

A. Not in direct words.

Q. Have you not stated several times, on the street corners, to different parties, that you heard General Pearson give the command to fire?

A. No, sir; I do not think I ever did—not in those words.

Q. Did you ever state to anybody that you had heard the commanders of companies give the command to fire, before stating it here?

A. I do not know. I forget exactly just what words my testimony was in the court.

Q. I am not asking you what testimony you gave in the court. Have you ever stated to any person before to-day, outside of the court, or anywhere, that you heard officers of companies give the command to fire?

A. I believe I have. Yes, sir.

Q. And you have stated that you heard General Pearson give the command to fire?

A. Not in those words.

Q. What do you mean by "Not in those words?"

A. I think the order to fire emanated from General Pearson, but I never said, in direct words, that General Pearson gave the order to fire.

Q. It was only a supposition of yours?

A. No; it was from the remark that I have sworn—I heard General Pearson give this—my remark was that General Pearson had turned around to other officers, with whom I am not acquainted, and used the expression, "Your men to fire;" but I did not say he had coupled those words with "Order your men to fire."

Q. Did you hear him say those words?

A. I have sworn. Yes, sir.

Q. To whom?

A. As I told you, I was not acquainted with the officers to whom he addressed himself. He was speaking to parties in gray uniform. He was standing almost immediately in his rear.

Q. He said, "Your men to fire?"

A. Yes, sir.

Q. How far were you from him?

A. I suppose I would be—I could hardly judge the distance—I would take it to be about ten feet or so.

Q. Did he speak it in a low tone?

A. It was not very loud. It was not a low tone.

Q. Was there a good deal of noise and confusion about at that time?

A. Oh, considerable, just in certain localities.

Q. The crowd was boisterous, were they not?

A. To a certain extent.

By Senator Reyburn:

Q. You did not hear any command given to fire, positively, by General Pearson?

A. No, sir; I never said so.

By Senator Yutzy:

Q. How do you account for the long interval of time intervening between the command to fire and the firing.

A. I could not say.

Q. Did they load after the command to fire was given?

A. I could not say.

Q. Did you see them load?

A. No, sir; I did not see them fire.

By Senator Reyburn:

Q. There was nothing preparatory at all, to this word fire.

A. No, sir; I thought it very strange myself, at the time the command to fire was given. They were not even ready.

By Senator Yutzy:

Q. You say you heard General Pearson speak to those officers, and said something about firing. You do not know whether he said not allow the men to fire, or to fire?

A. No, sir.

Q. How long after he made this remark to those officers did the command to fire come from those officers, and did it come from those same officers he was talking to?

A. I could not say whether it came from the same officers he was talking to. There were about fifteen or twenty of them in the crowd. I cannot say who he was addressing. It was started from that crowd, and carried by others still further down the line.

Q. How long after that was that order given to fire?

A. I do not think it was a minute. I cannot recollect the time.

Q. How far was General Pearson from the place when he had this conversation with those officers—how far was he from the position where those officers did give the command to fire?

A. I can hardly know.

Q. The word passed along the line?

A. It was passed by parties in front.

Q. How far did it pass until it got to those officers that did give the command?

A. It did not pass any further than, I suppose, seven or eight feet.

Q. The officers were pretty thick, were they not?

A. Yes, sir; very thick.

By Mr. Means:

Q. General Pearson appeared to stand at the head of the column?

A. He stood in the rear of the two companies that were charging up the track between the two lines and the side of the track.

Q. It appears from your testimony that the firing was sometime after the command to fire was given.

A. Yes; it was sometime. I had time enough to get away.

Q. Do you think that this firing was in consequence of the order to fire?

A. I did not wait to see anything about that. As soon as I heard the word "fire," I thought that was enough for me.

Q. Have you ever had any military experience in the army?

A. No, sir; never in the army. I served two or three years in the militia.

Q. Ever practiced firing any in the militia?

A. Some little.

Q. How long after the command to fire was given do you discharge your piece?

A. If in position to fire, we generally pulled as quick as we could get it off.

Q. When this firing began, was it a volley, or was it a scattering fire?

A. It was kind of mixed, I thought. I did not think it was what I considered a volley from a number of men that were present.

Q. Was it a scattering fire that lasted some little time?

A. The firing was kept up. Scattering fire was kept up for three or four minutes.

Q. The first fire?

A. The first volley, though not what I consider a volley from the number of men that were present. It sounded more like a volley than a scattering fire—the first fire. After that it was a scattering fire.

Q. There appeared to be a number of simultaneous discharges of muskets?

A. Yes, sir.

Q. Was there any one else present there where you stood that heard and saw what you said, or was likely to see and hear?

A. There were plenty there that could have seen.

Q. Any one that you know?

A. No, sir: no person that I know. I was not paying much attention to who was standing around me. No person that I knew of was in that locality at that time.

Q. Did you see the arms loaded at any time?

A. No, sir.

J. G. McConnell, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I reside in the Nineteenth ward, city of Pittsburgh.

Q. What is your profession?

A. Practicing law.

Q. State whether you were at or in the vicinity of the elevator on the 22d of July last, about the time it was burned?

A. I was, sir.

Q. What time did you arrive at that place?

A. I arrived there just about the time that the fire was taking hold of the elevator.

Q. Just about the time the fire was taking hold of the elevator?

A. Just about the time the inside of the elevator——

Q. Were there any policemen there at the time?

A. No, sir; I did not see any.

Q. Did any come there?

A. Not that I saw.

Q. Did you send for any?

A. Not at that time, sir.

Q. Afterwards did you?

A. No, sir.

Q. Did you see who set the elevator on fire?

A. I did not.

Q. And how it caught?

A. No, sir; but after the elevator was on fire. The person who gave you that information has not given you the correct information. After the elevator was on fire some little time, I was standing on Eleventh street, probably halfway between Penn and Liberty. While standing there, a man came up alongside of me and stood there. I did not say anything, and directly there was another man joined him. The first one was a short thick-set man, with a light colored moustache and imperial and light hair; a man I should say weighing about one hundred and sixty-five pounds, probably about five feet eight inches in height. The person who joined him was somewhat taller, nearly six feet in height, and they got into a conversation. They were evidently well acquainted with each other; and then the short thick man made a remark. Says he, "The elevator makes a very handsome fire." I spoke up and said I thought it was a very great shame and outrage that property should be destroyed, and this man turned around and said, "What is it your business?" I told him it was my business to a certain extent, as I was solicitor for the elevator company. I said to him that I thought the firemen ought to turn their hose on it. I then went to see Mr. Evans, and asked him if he could turn the hose on, and he informed me that it was impossible to do so. He had been deterred by the mob, and they had cut his hose, or threatened to cut his hose, and some man had put a revolver to his head; that he had two streams on, but had to take them off. I walked down pretty close to Penn avenue and these two men were still standing there. I stopped opposite them and they were still in conversation. The short thick-set man turned around to the other one and in a whisper made this remark to him, "Has the Pan Handle bridge been set fire to yet?" The other one says, "No, I think not." He said, "Somebody ought to send a party to do that;" and I then, left and went down towards Wayne street, went down to the river, went down the river, came up towards Fifth avenue, and on Thursday or Friday subsequent to the destruction of the elevator, on my way out home, in the evening, about half past four o'clock, passing the ruins of the Union Depot hotel, I saw this man standing there—this short thick-set man. There was a policeman standing on the corner. I went up to the policeman and pointed this man out and said, "That man, I think, was a ring leader in the

riot. If you will arrest him, I will make information against him." The policeman did not reply, but walked up towards the avenue.

Q. Do you know the policeman?

A. No, sir; I did not take notice of his number.

By Senator Yutzy:

Q. Did you see the grain elevator set on fire?

A. No, sir; I was standing out in front, and from where I stood the burning apparently began at the back side, towards the Pan Handle side of the road, towards the Washington street bridge.

Q. How many policemen did you see around the vicinity at that time?

A. Did not see any.

Q. The only one you saw was on this bridge?

A. I did not see any at all that day—that evening.

Q. When was it you saw this policeman?

A. Thursday or Friday, subsequent to the destruction.

By Mr. Lindsey:

Q. Did you make any report of the policeman who refused?

A. No, sir; only to the officers of the elevator company.

Q. Did they make any effort to find out who the policeman was, afterwards?

A. I do not know, sir—that is, I made no official report to the company. I just reported it to one or two of the officers, and their instructions were, if I recognized the party, to report it, and if I recognized the party I saw on Monday evening to report it.

Q. You made no report of that policeman to the mayor of his refusal to act?

A. No, sir; if I had known his number I certainly should; but I did not know his number.

By Senator Reyburn:

Q. You did not hear enough of the conversation between those men, to find out whether there was an organization?

A. None, whatever. I did not hear sufficient of that. I believe that is all the conversation I heard in regard to the matter. There was a remark made that rather implied I had better get out of the way, and I stood over by the engine.

By Mr. Lindsey:

Q. These men were both strangers to you, the short man and the large one?

A. They were men who were working. I evidently took them to be mill men about the city here. I do not think they were strangers in the city at all, sir.

By Senator Reyburn:

Q. Were they railroad men?

A. I do not think so. I could not judge from their appearance. Just from their appearance, I took them to be men working about some of the mills or about some heavy employment in the city. I judged that more from their general appearance and from their hands. I noticed one man put up his fist. He had a very large heavy fist, and it looked like a work-man's fist.

Q. That was Thursday or Friday subsequent to the burning, that you met this other man?

A. Yes; Thursday or Friday?

Q. What time of day was it you met him?

A. I think it was about half past four in the afternoon. I left my office to go home, and it took me, I suppose, eight or nine minutes to walk up to where

the Union Depot hotel stood at that time. Probably I stood around there ten minutes looking at the ruins, and it was just as I was moving off—probably it was about five o'clock.

Doctor James B. Murdock, *sworn*:

By Mr. Lindsey:

Q. Please state where you reside?

A. I reside on Centre avenue, No. 99. Up over the hill from the railroad—over that side of the hill—back from it.

Q. A practicing physician in the city of Pittsburgh?

A. Practicing physician and surgeon.

Q. State what knowledge you have of the late riots?

A. When I heard I was to be subpœnaed here, I wrote down what I know about it, and perhaps that would be the quickest way of telling. My first knowledge of the riot was on the evening of the day of the riot, the 21st of July, about half past five o'clock in the afternoon, when I was returning to my office from my calls, and one of my neighbors came running to me in a hurried manner, and stated that a little boy had been shot and needed my services. I accompanied the messenger to a drug store in the vicinity of my house, and on my way there this messenger informed me how it happened, and told me the boy had been sitting on the hill side above the Twenty-eighth street crossing, and that he also was there, and that there was a volley of musketry fired from the soldiers, who were down on the railroad track, and that the little boy had screamed out——

Q. I hardly think this comes within the scope of our investigation, unless you can give us the number of persons killed and wounded. That might be within the scope of our investigation; but testimony as to the persons that were wounded is hardly within the scope of our investigation?

A. I do not know what I was subpoenaed here for. I was one of the surgeons in charge of the wounded at the West Pennsylvania hospital.

Q. State the number that were brought there wounded?

A. There were seven wounded men brought there that evening.

Q. How many soldiers?

A. Two soldiers. One of them wounded with a stone and the other sun-struck.

Q. Who were the other parties?

A. I do not know who they were. They were citizens—I do not know whether they were citizens or not. They were strangers to me.

Q. Do you know the number that were killed in that fire?

A. No, sir; I do not.

Q. You know nothing, I suppose, as to the wounded, except those that were brought to the West Penn Hospital?

A. Only just this little boy. I saw from there the attack on the round-house during the night.

By Mr. Reyburn:

Q. Did you see the firing of the cars when it commenced?

A. I saw the whole of that attack.

Q. You might give us a description of that?

A. The grade is down from Thirty-third to Twenty-eighth, and the cars ran from their own gravity. When they were let go they would run. The first car came down between ten and eleven, and it was run down the grade, and when it got opposite the round-house it seemed to run off the track. You could observe it from the hospital grounds. Soon after that a whole train of

cars, loaded with coke, came down the track, and struck this first one. We could hear the collision. It stopped near the round-house. They continued the passing down of fired cars from the vicinity of Lawrenceville, until I left the hospital, about two o'clock in the morning, and the cars were burning there, and the sand-house was then on fire, when I left.

Q. From your position you could not see who done the firing?

A. No, sir; but I could see in front of the hospital grounds when a car would stop, as it sometimes would in its descent, there would be people take hold of it, and push it on down towards the round-house. I observe that those who did that pushing were nearly all boys, fourteen to sixteen or seventeen years of age.

Q. Twenty-five engaged in it?

A. I do not think I saw over twenty-five at this place. I could not see where the cars were started from, I could see them just as they were passing the hospital grounds.

Q. How large a crowd was gathered there?

A. On my way to the hospital there was an immense crowd. I had to go through Liberty street, but just at the Twenty-eighth street crossing and down on the track, as you may say, Twenty-eighth to Twenty-ninth street, there was not a hundred people visible. There were a great many on the side hill looking down.

Q. Were you present on Sunday?

A. Yes, sir. I saw the burning of the Union depot and the elevator. There is one circumstance that I, perhaps, might state to the committee if it is of interest. I do not know that it is, though. On my way around through the city, I saw a great deal of the plunder being carried off, and on Gazzam's hill Sunday morning, at eleven o'clock, I saw a boy some twelve years of age who seemed to be gazing over in the direction of the railroad. I asked him what he was looking at. He said that the round-house had been burned last night and that the depot and the elevator was going to be burned to-

night. I asked him how he knew that. He said his father had told him he had been out all last night was going out to-night.

Q. Did you ascertain who he was?

A. No, sir; I did not. I did not think anything of it at the time. I did not think anything of it. When it occurred I remembered then of that statement.

By Senator Yutzy:

Q. Did you notice any firing by the mob, musketry or pistols, at the troops in the round-house?

A. No, sir; I did not see any.

By Mr. Means:

Q. You do not know whether this boy's father was an employé of the Pennsylvania railroad or not, that told you that the elevator and the other buildings were to be burned?

A. No, sir; the boy was in a part of the city where it would not be likely that an employé of the company would live.

Q. You do not know who the boy was?

A. No, sir; did not pay enough attention to it at that time.

J. R. McCune, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the Fourteenth ward, this city.

Q. What is your business?

A. I am president of the Union National Bank.

Q. Were you at the scene of the riots at any time during their progress?

A. I saw the burning—partly saw it on Sunday for the first. I was not at the scene of the riots prior to Sunday, and know very little or most nothing of my own knowledge—prior to Sunday.

Q. You may state what efforts you made in connection with others to suppress the riot on Sunday, and stop the pillaging and plundering?

A. I came down town on Sunday morning in conference with some other citizens, and thought it desirable to call a meeting of citizens. I then learned for the first time that the troops had left the city, and there were placards posted on the bulletin boards calling a meeting of citizens, I think, at twelve o'clock. I participated in that meeting, and was appointed on a committee to take such action as was deemed advisable. The committee was a large one, and adjourned to the council chamber, and it was there determined to appoint a sub-committee to visit the scene of destruction, and take whatever action seemed judicious. I think our duties were not restricted. I went with that committee, but cannot say that we effected much of anything. I believe that has been detailed to you before how the committee went up there, and got on a platform of a car, and Bishop Tuigg undertook to address the audience.

Q. Doctor Scovill's testimony in regard to that was correct?

A. So far as I saw. The doctor was immediately along side of me on the platform of the car. After leaving, there the committee was divided, and went to different points, one of which being to ascertain, if possible, if the railroad strikers were actively engaged in this burning, and we endeavored to hunt up the railroad men. We went up as far as Twentieth street, and interviewed railroad men wherever we could find them. They, I believe, universally disclaimed all participation in the riot. That is in the burning.

Q. In the destruction of property?

A. In the destruction of property. That was a point we inquired into particularly.

Q. Did they state who was engaged in the destruction of property?

A. My recollection is that they generally professed not to know. They promised to coöperate with us in efforts to stop the burning.

Q. Did they do that—did they coöperate?

A. I don't know how much they did in that direction. There was some of them came down to attend the meeting, and this committee reported to an adjourned meeting that was to be held, I think, at four o'clock in the afternoon. The committee returned, and stated briefly what had been done and the condition of affairs, and I think we suggested that there would be a large increase of the police force. The mayor was present, and the committee authorized him to employ as many policemen as they could get—five hundred if he could obtain them—and a number of gentlemen present pledged themselves for the payment of this police force.

Q. At four o'clock Sunday afternoon?

A. Yes; four o'clock Sunday afternoon, and there was also a sort of militia force organized, of which Mayor McCarthy told you this morning.

Q. This suggestion of employing five hundred police was made to the mayor, was it?

A. I don't remember from where the suggestion emanated. It seemed to be the unanimous wish of those present.

Q. Did you so inform the mayor of that week?

A. Yes; and the question was raised as to how they were to be paid, and quite a number of citizens there pledged themselves for the payment, and the mayor was asked if that would be satisfactory, and he said it was entirely so.

Q. Did the mayor issue any call, or any command, or summon any posse of citizens as a police force?

A. Immediately a call was made for citizens to unite with the mayor, and I think there was quite a force congregated together, and started to procure such arms as were available.

Q. That was the request made, was it?

A. I am not able to recall whether the request was made by the mayor. It was suggested from some source, and matters were done under a good deal of excitement. There was not much formality about that.

Q. Doctor Donnelly's command was organized at that time?

A. Donnelly had charge of it. An hour afterwards or so there were some others that repaired to the Duquesne depot. There are others can tell you more about that than I. The next morning I was at the mayor's office, when a sort of militia force was organized.

Q. How large a force was organized?

A. It is difficult to tell; I could only guess at it. There were, perhaps, two hundred.

Q. Composed of citizens?

A. Of citizens; yes, sir.

Q. Under whose command.

A. I think General Negley was made commander of them, temporarily. There was a telegram there from the burgess of Elizabeth, stating that a party of roughs or rioters were en route to the city by steamer, and this force went down there to meet them when they would arrive. Also during that morning there was a meeting of citizens convened, for the purpose of organizing a committee of safety. This meeting, held on Sunday, did not organize any permanent committee. On Monday there was a permanent committee organized, of which I was a member.

Q. How large a crowd was there during the day Monday, or was there any?

A. On Monday?

Q. Yes?

A. The streets were full of people. I think, possibly, I never have seen so many people in the streets, unless it was during the time of an immense convention.

Q. What class of people?

A. I could not undertake to say, sir. Seemed to me that everybody was there. There were comparatively few of them that I was acquainted with.

Q. This body of rioters, were they in force on Monday?

A. Thought there were a great many very rough looking characters on the street—that I had never seen so many.

Q. Were there any attacks made upon any property or persons, on Monday?

A. No, sir; not that I remember. I cannot re-call any.

Q. Were the business places open on Monday, throughout the city?

A. I think a good many were opened—some were closed. There was a great deal of fear expressed.

Q. Among the citizens?

A. Yes; the committee of public safety began immediately to organize a military force. They organized a force of infantry, and they organized a company of horsemen, and got them under way as rapidly as possible.

Q. To patrol the streets?

A. Yes; to go outside of the city limits, and endeavor to guard against any turbulence anywhere, or any organizations that might show themselves.

Q. Were you up about the railroad works any, during Monday?

A. I think I was not. No, sir; I was not at the scene of the burning on Monday.

Q. This crowd in the streets on Monday, did it seem to be just a promiscuous crowd everywhere on the streets, or was there an organization of men—roughs about?

A. There was nothing to enable me to determine that there was an organization.

By Senator Reyburn:

Q. Was the crowd attracted by curiosity to see what was going on?

A. It was largely so, I think—attracted by curiosity, although it seemed to me there were an immense number of strange faces amongst them.

By Mr. Lindsey:

Q. You had no trouble in preserving the peace after Monday morning?

A. The peace was preserved on Monday without trouble, because I think these organizations had a very wholesome effect. The committee of public safety then formally instructed the mayor to increase his police force. He had instructions to employ twenty additional men, and under that authority he did employ, I think, one hundred and thirty men, whom the committee on public safety paid.

Q. For how long a time did he keep these men employed?

A. A portion of them were discharged about ten days thereafter—perhaps in all the half of them—and the remainder were continued for forty or fifty days. I would state that the committee of public safety and other citizens united in a paper, whereby they pledged themselves to pay all expenses that might be incurred by this committee, without any limit whatever, and that we subsequently obtained specific subscriptions to the amount of about fifty thousand dollars.

Q. How much of that was expended in the operation?

A. I can't say positively, but a small portion of it, probably fifteen thousand dollars.

Q. And after the organization of that committee of public safety, the peace was preserved from that time forward?

A. Yes, sir; how much the committee had to do with it is a question I could not determine.

Q. Did the people unite heartily in carrying out the suggestions made by that committee?

A. Yes; I think the committee had no cause of complaint. They had the sympathy and coöperation of the community generally.

By Senator Reyburn:

Q. You know nothing of the causes leading to the riot?

A. Nothing; no, sir; nothing but what is patent to everybody. I had no special facilities for learning anything. Everybody had their own opinion. I was not on the ground prior to Sunday.

Q. Do you know whether this mounted citizens' police force went out of the city, and patrolled the streets leading to the city?

A. That is my impression. I was not with them, but I think they did.

Q. Along the lines of the Pan Handle railroad.

A. Yes; we were a good deal concerned about the Pan Handle road. There were rumors come to the committee that there was very imminent danger of them burning the cars in the tunnel and other points out the Pan Handle road. I think, however, you can glean the facts pertaining to the committee better from Mr. Johnson, who is chairman of that committee. He has examined the minutes, I think, and has charged his memory with the details.

Q. Do you know whether any men were arrested or not that attempted to come in on that road by this citizens' police force?

A. No, sir; my opinion is very vague on that point.

Q. Was not there some disturbance on Monday on some of your streets here in the city?

A. There was a good deal of turbulence all over the city. I remember one instance now. The committee was sent after some guns, and while they were being brought down Market street there was a halt made. They stopped the gun carriages, and somebody went up and boldly spiked the guns, which created a good deal of excitement for the moment.

Q. The crowd spiked the guns?

A. Spiked the guns.

Q. How many guns?

A. There were three of them, I think.

Q. What battery did they belong to?

A. I can't answer. I am not up on military affairs.

Q. Was not there some disturbance on Fifth avenue there that day?

A. There were disturbances, more or less, in many parts of the city. The city was disordered that day—decidedly disorderly.

Q. There was an effort made by the citizens generally, to suppress everything of that kind on Monday?

A. Yes; there was a decided effort made by the citizens.

Q. An organized effort?

A. Yes; the committee of public safety, organized for this special purpose. They acted promptly and vigorously.

Q. Do you know of any disturbance at Limerick, south side, on that day?

A. I cannot recollect it.

Q. Do you know of any disturbance on Second Avenue park?

A. No, sir; I cannot of my own personal knowledge—I cannot recollect.

Robert Atchison, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. 873 Penn avenue.

Q. What is your occupation?

A. Engineer.

Q. On what railroad?

A. P.R.R.

Q. Pennsylvania?

A. Yes, sir.

Q. Are you in the employ of the Pennsylvania Company now?

A. I am.

Q. Were you in July last, the 19th of July?

A. I have been employed on the road for seventeen years, in the capacity of engineer. If it is necessary, I will just state what I know about it, if it is in evidence. On the morning of Thursday, 19th July, I think it was, the trains were all to be run double. I took out the first train. I was called at three

o'clock in the morning, to take out the first train, and there was no trouble then, nor knew of any trouble. We went out—went to Derry.

Q. What hour did you leave?

A. I left at three o'clock in the morning, and got to Derry about seven, and returned. Coming back, before I got to the city, the other side of Walls station, I remarked to my fireman, that I thought there must be a wreck on the road. We had met no freights. We should have met some east of that, several miles. But paid no attention much to it, until I came in sight of Walls station. The accommodation is due there, then, twelve-forty, and I just remarked that if there was a wreck, I suppose they could run the accommodation round, as they often did, in such cases. When I came down—the conductor lives just a little way below—he got on my engine and rode down with me, and I asked him what was the matter, there was nothing out. He just made the remark, that the boys would not let anything go out this morning. That is the first intimation I had of anything, or I believe even the crews. They did not seem to know anything about it.

Q. What time was that?

A. It was about twelve-forty. We came on to the city unmolested by any person, until we came to Torrens station, that is a little way from East Liberty. There was a crowd there, but didn't seem to be doing anything—nobody was doing anything. We had some work to do, to put some cars in or something, and I just remarked to the crowd that was on the other side, says I, "What's going on here?" Says one, "Lots of fun." Mr. Garrett, the train master, gave the signal to me, and we went on, and came down to Twenty-eighth street, and what astonished me more than anything else was the crowd that was there, and the few people that I knew. They were strangers to me. At Twenty-eighth street I could not recognize but a few of our own men. They were all strangers to me. I passed on down with the train, took it to the west end of the yard, and put it away, and backed up my engine to the round-house, and put it in the round-house, and went home. Then I hadn't had any dinner—it was nearly three o'clock. I went home to dinner, and I didn't come up that afternoon, I don't think, again. I was up the

next day around, but there was nothing going out, and the way we were running—some one remarked to me, I could not tell who it was—says he, "Go ahead, you can go in, but you can't go out." Says I, "Never mind, it is not my turn to go out."

Q. Were you put on Friday?

A. Yes; I was about.

Q. Was you ready to take out your train?

A. I was ready, and came up there on Friday. One of the officers remarked to me, there was nothing going out. It seemed to be this way: that if they got a train ready and the engine, there was no crew, and if you got a crew, there was no engine or anything else there. Some of the officers remarked to me that the Philadelphia soldiers were coming in, and everything would go on then as usual. I think I went home, and I didn't come back again that night. In the morning—Saturday morning, six o'clock—I was sent for to come up and go out. I believe before I had my breakfast. As soon as I got breakfast I went out, but I didn't see nothing for me to go out on, and I stood around there until eleven o'clock on Saturday, I think eleven or twelve, and I then just remarked to the foreman—I think it was the foreman, in the round-house—that I was going down home, and that if they wanted me, to send a watchman down to me, I would be at home—I would not be away from home. I said to my family, I believed I would go to bed and take some sleep, for I might have to come out to-night. I suppose it was fortunate for me I was not up in the crowd at the time of the shooting. I might have been there.

Q. Were you ready at all times to take out your train?

A. Provided everything had been all right I would. I would not like the idea of starting out there on Sunday morning. I didn't think I would like to take out a train then.

Q. Thought there was too big a crowd to get through?

A. I didn't feel like it.

Q. You were ready to go if the track was clear?

A. Yes; oh, yes.

Q. Had you heard, prior to your information at Walls, anything about the strike?

A. Never had the least intimation, because I do not think it was a pre-arranged matter at all. It did not seem to me that anybody seemed to know. No; I knew nothing about it, and nobody else seemed to know anything about it. The order was given on Wednesday, I think, that all trains would be run double from Thursday. That seemed to be a kind of sticker on some of them. They didn't care much whether they started or not, and some of them that morning, on the eight-forty train, refused to go out. They didn't care whether they went out or not, and just quit.

Q. There had been no pre-arranged plan for a strike to take place at that time?

A. Not that I had ever heard of.

Q. Had there been any arrangement made for a strike at or near that time?

A. Not to my knowledge. Not among the engineers, or so far as I know.

Q. Did you know of the existence of what was called the Trainmen's Union?

A. I did not at that time.

Q. Had no knowledge of that?

A. Had no knowledge nor no idea of anything of the kind going on.

Q. Had you talked with the conductors or brakemen—had intercourse with them?

A. Oh, yes; there was never one of them mentioned anything of the kind to me, nothing of the kind at all. In fact, I don't have as much intercourse with the trainmen on the road as we did formerly when they had no caboose. Of

late years they have been running cabooses, and they generally congregate there themselves.

Q. Engineers congregate more on their engine?

A. Yes; all the time train men go back in the caboose.

Q. You have an organization among the engineers?

A. There is an organization existing.

Q. Is that for engineers especially?

A. Especially, yes.

Q. Was there any talk of that kind in that organization that you know of—of striking?

A. Not a particle, not at the time.

Q. During the progress of the depredations or burning on Sunday were you present?

A. I was; I live close by.

Q. What class of men were engaged in active arson and destruction of property—burning?

A. It appears to me the roughest class of people I ever saw. They appeared to be all strangers to me. I was present when the alarm of fire was struck. I was at the corner of Twenty-sixth street, right opposite the round-house, where the soldiers were. I was coming down, I guess it was ten o'clock or near eleven, and the firemen responded to the alarm, and came up Penn avenue a little above my house, and they was stopped by the crowd. They told them they could not go any further. I was across the street. I heard one man say, "I will shoot the horse, and if you undertake to go, I will shoot you." They ran across the street, and came right beside me, and I heard them say they would have them out of there if they would have to burn them out. I just said, said I, "my God, men, don't set anything on fire here,

you will burn it all up," and the answer he made was, "Go to hell, you son of a bitch." That was the very words he made use of. I thought the least I could say was the best, as I was by myself.

Q. Were there any railroad men engaged during the day Sunday?

A. I didn't see one railroad man to my knowledge, not an employ   of the Pennsylvania railroad.

Q. Men that had been discharged, did you see any of that kind?

A. I did not see any of the kind.

Q. What did you, in connection with other railroad men, do to try and stop this?

A. We did not do very much, for we could not. It seemed as though everybody was intimidated, and felt himself afraid to undertake to do anything. I did, I know, as one by myself. I do not think, in a crowd of men, it would have been useless to try to stop the burning at nine o'clock in the morning.

Q. Sunday morning?

A. Sunday morning. The whole yard was in flames.

Q. Did you have any communication with the committee that was sent up from Harrisburg?

A. I did; I believe I did.

Q. State what that was?

A. General Brown came to me in the morning—about five o'clock.

Q. Sunday morning?

A. Sunday morning; and said to me—he wanted to know where this committee of railroad men was. I told him that I did not know where it was, but, says I, maybe I could find some of them. If we could get past Twenty-

sixth street we might get some of them; but you can't pass through, they are shooting us there. Says he, tell them to come down to the Union depot, that I am authorized to give the men what they ask. There was a party went down there, and they could not find General Brown or any one else.

Q. Who was it went down?

A. I went down for one, and I didn't mind who else went down, it was impossible to get one of that committee, because they were scattered all through the city.

By Senator Yutzy:

Q. Were you on this committee of safety or any sub-committee, appointed by them, to go and confer with the strikers at any time.

A. No, I do not think—I think we went down. There was a committee of safety come up there, and I think Captain McMunn and myself and some of our ward boys, several of us, went down.

Q. As railroad men?

A. As railroad men, we went down. I got into the crowd down here, right below the elevator there, tried to find the leading man of the citizens' committee, and they got to shooting, and the crowd ran down there. There was a tremendous crowd there, and carried us along with them. I do not think there was any use to try to do anything at all.

Q. You said you would not like to have attempted to get out with that train on Saturday?

A. No; I would not.

Q. Did you apprehend any danger from any one?

A. None. I would not have apprehended any danger, I think, from anybody but from outsiders.

Q. Not from the railroad men?

A. Not from the railroad men. I did not think that they would interfere with me.

Q. Did you hear any threats of violence from the railroad men or engineers or any railroad strikers?

A. No; not to me at all.

Q. From any one else?

A. I did from outsiders—remarks—but I didn't know who they were—that the first man that would attempt to go out had better hunt his coffin.

Q. You saw the handling of cars and engines by the rioters during the destruction of property there in the vicinity of Twenty-eighth street and at the depot—did these men handle the cars and engines as if they had been accustomed to handling cars and engines?

A. I didn't see anybody handling an engine. After the soldiers went into the round-house, I never went up near the place, that is, further than going up some of the side streets to look over the burning. All the engines were further up, at Twenty-eighth street. I was not up there.

Q. You saw none of the mob taking engines and running them on the track?

A. No, sir.

Q. Did you see them handling the cars and switches?

A. I did not.

Q. You were speaking of an association of engineers. Is that the Brotherhood of Locomotive Engineers?

A. Yes, sir.

Q. Was there any coöperation or action between that association and the Trainmen's Union at any time that you know of?

A. I do not think there was any of any account?

Q. If there was, you would know it?

A. I believe I should know it. There was a disposition on the part of all the men, when the strike had occurred, to stand out for their ten per cent. That was their object.

Q. That is, you mean all the trainmen, and engineers as well?

A. Yes, sir.

Q. Are you a member of the Brotherhood of Locomotive Engineers?

A. I was. I believe the order in this vicinity has disappeared.

Q. That association was got up for protection—a charitable institution for those that were connected with it?

A. Nothing to interfere with the railroad.

Q. If there had been any coöperation between the Trainmen's Union, or any connection between them and your association, you would likely know something about it.

A. Yes; there was this, so far as the ten per cent. went. That I believe was all after the burning. I do not think there was any connection with it before.

By Mr. Lindsey:

Q. Was there any coöperation or pre-arranged plan to strike for the purpose of securing this ten per cent.?

A. No, sir; not at all. The trouble had originated not until after there had been a committee to see Mr. Scott; but the thing had dropped, and I had heard nothing of it from the time that committee reported, and I do not remember the report they made, either.

Q. Was there a general dissatisfaction and complaint on the part of the railroad employés on account of this reduction of pay?

A. There was. That seemed to be a great deal of the trouble. They were dissatisfied with the pay they were getting.

Q. In your opinion, did that lead to the strike and trouble here?

A. I do not think it did. No, sir; I do not think so.

Q. What was it that led to the disturbance?

A. I do not think that would lead to it, because if the committee of engineers went to see the general officers, and they didn't get satisfaction, or claimed that the business that they were doing could not pay it, the men would have waited until such time as they would. They claimed that they were in pretty close quarters financially, but as soon as business would warrant, why they would restore it.

Q. What led to immediate troubles here? What was the immediate cause?

A. Running these double trains.

Q. Double-headers, as they were called?

A. Double-headers, as we called them.

Q. Why was there less objection to running double-headers?

A. In the first place it is very disagreeable for the men, and they consider it dangerous for one thing, and in running these trains it cuts a good many of them out of employment.

Q. Reduce the force of train men, not engineers?

A. Not of engineers, of trainmen.

Q. Wherein consisted the danger of running double-headers?

A. In the first place you hold just twice as many cars, and you don't have any more men on the train to hold them. Brakemen would hold thirty-four cars with two engines, and seventeen cars with one. If these trains get started they are pretty hard to manage.

Q. Did you have these engines at the head of the trains at all times, or did you have one in the front and one in the rear?

A. At the head all the time, they consider it safer that way to run them than to run one behind. Going through these up and down grades and turning is liable to break.

Q. The only danger there was in not having the same number of brakemen to the same number of cars as you do when you run the single train?

A. That would have helped the matter considerably, I believe.

Q. There was no other danger?

A. There was no other danger.

Q. Could not that danger have been counteracted by having less trains?

A. They would not think that was safer.

Q. Would not there have been less danger by taking two trains and making one, and running them on the track—less danger of collisions than if you had to have two trains instead of one?

A. There is more danger running this double train than the single trains, because they are harder to manage.

Q. You can handle a train more readily?

A. Yes; check it up quicker. You can check a train much quicker—a light train than a heavy one—and they are less liable to break in the dark and in the fog. In the fog you can't tell whether they are broken or not. They might stop, and the hind part run into the front part, which has been frequently done.

J. F. Cluley, *sworn*.

By Senator Yutzy:

Q. Where do you live?

A. Centre avenue, city.

Q. What is your business?

A. Painter.

Q. Go on and state what you know in relation to the riots of last July?

A. On the Saturday, probably about half-past two, I went up to the depot and went in, and the Philadelphia soldiers were about starting out. I got up to Twenty-eighth street probably half an hour before they did. Everything was quiet there—at Twenty-eighth street. There was a company keeping the street clear—a company of troops.

Q. Who was that company commanded by?

A. I do not know. It looked like a cavalry company on foot from the trimmings on their clothes. As soon as the Philadelphia troops came up the mob closed round, and commenced hooting and hollering.

Q. Go on and state what took place there?

A. I suppose I had been up there probably twenty minutes, when they formed a double line and cleared the track. I was thrown over toward the round-house. I went round the cars at Twenty-eighth street, probably two hundred feet up the hill. There was a ravine coming down there, and I got outside of it. I don't mind how long I had been in there before the troops formed. At that time they had swept the tracks, and there was two or three lines formed outside the tracks. The troops had done some manœuvering, they had marched up right against the track. At that time Twentieth street was blocked, and they marched, and the crowd did not get away, and they stepped back and made a bayonet charge. It seems to me after they had marched up against them I saw some men stagger, but I was too far off.

About the time they made the bayonet charge there was a stone or three or four stones came from the direction of the hospital, and a pistol shot fired.

By Senator Reyburn:

Q. From the direction of the hospital?

A. There is a watch-box there—it was not more than three stones, I think, they threw. It was done just about the time the bayonet charge was made, and then there was a pistol shot about the same time.

Q. From the crowd?

A. It was generally in that direction; I suppose it was in the crowd. Then the firing was done just after.

Q. Did you hear any command to fire?

A. No; I was two hundred feet back. I was in a position that I could see the whole thing take place.

Q. Did the men fire as if they had received a command?

A. It appeared to be a scattered fire. As soon as they commenced firing, I started up on the hill. Some one called out they were firing blank cartridges, and I seen the dust flying around, and I threw myself down like everybody else. There was a man shot within the length of this room from me, and killed—a man named Ray, I think. I then started down hill, and when I was coming down I saw a man on the far side of Twenty-eighth street swing round a freight car, and throw into the company—he threw three or four stones or some missiles in among them, the last, when I was down almost to the track, and I thought every stone I seen throwed, I thought they would fire.

Q. Was it before they had fired?

A. After the firing, he swung around, and seemed to be inviting them, I thought, to do something.

By Mr. Lindsey:

Q. Inviting the soldiers?

A. It looked as though he was. He was holding on to the iron rod on the car, and was swinging on in front of them. He was a large man, about six feet, very genteelly dressed—more so than the common run of them.

By Senator Yutzy:

Q. This man you saw swinging on round there, trying to make an effort to exasperate them?

A. It looked as though he was inviting them.

Q. It looked as though he was trying to exasperate them?

A. It looked as though he was inviting them to fire. I crossed the track ten minutes after the firing was over. The soldiers seemed to be laying huddled together. This stone throwing was right in among them.

Q. Did you see any of the soldiers struck down by missiles before the firing took place?

A. When the first advance was made, I thought I saw one of them stagger. I cannot tell whether they were hit. After they made the bayonet charge the parties took their hands and threw the guns up.

Q. What was the appearance of the class of men that threw the stones?

A. This I think was a half grown boy that threw the missiles from the back of the house.

Q. A boy?

A. It looked to me. Three or four half grown boys there.

Q. Did you see any men there throwing stones?

A. I don't recollect of seeing any stones throwed, except at this watch-box, until I saw this man, after the firing was all over. The track was perfectly clear when I crossed.

Q. What was the character of the crowd immediately in front of the military, or near the military?

A. Rough looking. I had seen the same crowd around for two or three days. I had been out and in on the railroad. I had seen them at ... street and Twenty-eighth street, for two or three days.

Q. Would you take them to be citizens of Harrisburg?

A. Yes, sir; not as a general thing. I know some of the conductors of the trains remarked to me that everybody was going in and nobody was coming out—all the tramps come in town and none going out.

Q. These men—would you take them to be what is generally denominated tramps?

A. Not all of them. Generally a pretty rough looking set. On the hill side there was plenty of women and children.

Q. I mean in the immediate vicinity of where the troubles were?

A. These were a rough looking set of men. I won't say they were all tramps. They were a rough looking set of men. I noticed them before the military came up. There was no disturbance at all until after the military came up. They were all quiet.

Q. They resisted the military, when they came up?

A. After they formed a line and made a charge.

Q. They resisted the military before the firing?

A. Yes; they stood right like a wall. The military marched up, and they didn't give the least bit. Then they stepped back a piece or two, and made a bayonet charge. I was not close enough to hear any orders given.

C. H. Armstrong, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. Thirty-second street.

Q. What is your occupation?

A. Coal business.

Q. Where is your office?

A. Liberty street, between Twenty-eighth and Twenty-ninth.

Q. Were you at your office on the 19th—Thursday, 19th of July last?

A. Yes, sir.

Q. How large a crowd of men was there gathered about there during Thursday?

A. There was quite a large crowd there during Thursday morning. Towards the afternoon a great number had come up to see the strikers. There was very few railroad men among the crowd.

Q. What class of men were there?

A. Parties that lived around the railroad there, just come up to see the excitement.

Q. Where they demonstrative?

A. No, sir; they were not. They were all talking about double-headers, I do not know what they meant, and I asked them, and they told me about putting two engines on a long train.

Q. How large a crowd was there at any one time during the day, Thursday?

A. I guess three or four hundred—in the afternoon about four o'clock.

Q. Did they remain there during the night, Thursday?

A. Yes; I was up there about twelve o'clock, and there was a few men there—about thirty remained there during the night waiting for trains to go out.

Q. How many on Friday?

A. There was seven or eight hundred. They were expecting the soldiers in that evening. Were also expecting the Harrisburg men up that evening. They did not come up. I went down Saturday morning and went down the railroad from our house. I saw the Harrisburg soldiers there on the side of the hill and also down by the railroad.

Q. How large was it Saturday?

A. I don't know how large it was; the streets were just jammed and the side of the hill on Twenty-eighth street.

Q. Was you present when the firing took place?

A. Yes; I was up on the side of the hill about seventy yards from where the troops were.

Q. Did you see troops as they marched up?

A. Yes; I saw them before they left the Union depot. Saw them get their cartridges before they left there.

Q. Did you go up ahead of them?

A. Yes, sir.

Q. Did you have any talk with the mob?

A. Yes, sir; I talked with some of the railroad men.

Q. Tell them that the troops were coming?

A. Told them that the Philadelphia troops were coming.

Q. What did they say?

A. They said that they were not afraid of that; as long as they didn't hurt them, they would not hurt them.

Q. Was the sheriff's posse ahead of the line?

A. Yes; I recognized a few of them, I believe the sheriff was ahead, and, I think, Deputy Sheriff Steward, and, I think, Mr. Pitcairn was also ahead of them. He was walking beside Sheriff Fife.

Q. Did you see any stones or missiles thrown by the crowd at the soldiers?

A. Yes; about the time they were charging bayonets.

Q. Was there any pistols fired by the crowd?

A. There was one or two fired. A pistol about the center of Twenty-eighth street; held it over, and shot down the road. By that time there were stone throwing. There were two cannons, and there was some boys started to throw stones, and one of them hit a soldier against a car, and the moment he fell they started firing. He threw up his arm about the time they charged bayonets—the crowd was throwing the bayonets up. The crowd caught hold of the bayonets, and threw the guns up to save themselves.

Q. Did you hear any command given by any of the officers to fire?

A. No, sir; I did not. I heard them charge bayonets. I heard that command, and I heard them give their military manœuvres, but I heard no command to fire at all.

Q. Did you remain there during the night—Saturday night?

A. Yes; I was there until Sunday, at dinner time.

Q. What time did the mob begin to fire the cars?

A. At half past ten o'clock.

Q. Do you know who set the first on fire?

A. No, sir; I could not say, I heard them say it was small boys done it. It was right back of our office it first started. The time I saw it there was first one car on fire, and they started to run oil cars down against it.

Q. Were you there during the time, Thursday or Friday, when the police force came out?

A. They were there. I did not see them come up, they were up there when I was there.

Q. How many policemen?

A. I do not know how many there was, only about ten or twelve, I think. I think there was only three or four on Thursday.

Q. Did they make any efforts to disperse the mob?

A. Not as I saw.

Q. Did they assist in trying to start the train?

A. I did not see them trying to do that at all.

Q. Do you know who was in charge of the police?

A. No, sir; I could not say.

By Senator Yutzy:

Q. You heard the command given by the officers to charge bayonets?

A. Yes, sir.

Q. Did you remain in the same position after you heard that command until after the firing commenced?

A. No, sir; I did not, after the first volley was fired.

Q. But from the time you heard the command given to charge bayonets up to the time of the firing, were you still in the same position?

A. Yes; I was in the same position.

Q. If there had been a command given by the officers to fire, you think you would have heard it?

A. I think so. I heard most of the other commands and the manoeuvres they went through before they charged bayonets.

Q. You heard that distinctly?

A. I heard the order to carry arms, shoulder arms——

Q. Arms port?

A. I do not know whether I heard arms port or not.

Q. How long after the command was given to charge bayonets before the firing commenced?

A. About two minutes. It was a different body of men that came up through the hollow-square.

By Senator Reyburn:

Q. How did they fire. Did they fire altogether, as if they were ordered to fire?

A. The parties next to the cars. The men in their company did the first shooting, and they shot very low. At the same time those in front shot higher.

Q. They commenced?

A. Commenced right where these men fell.

Q. On the road?

A. No; that was, I run back against the car—a lot of flat cars filled with coal.

Q. Was this the line that was formed parallel with the railroad tracks, on the right towards the hill side?

A. No; towards the round-house.

Q. There is where the first shot was fired?

A. Yes, sir. A man standing near the end of the cars fell, and just as he fell, they just put their guns up and shot.

Q. Did you notice in what direction they fired?

A. Towards the hill.

Q. Over the heads of the other line?

A. Yes, over the heads; I could see the dirt fly; the party in front of them shot.

Q. Did they appear to fire in the direction of where the missiles and stones came from?

A. The missiles came right in front of this other body of men that shot towards the side of the hill. The stones were right at the foot of the hill, and they shot up on the side of the hill. The boys that threw the stones, were down at the foot of the hill, right back of the tracks. There was two cannons there, and those boys were right among them throwing.

By Senator Reyburn:

Q. Did you say the troops came out of the round-house, Sunday?

A. I didn't say they came out of the round-house; I say they passed Twenty-eighth street. I was on the corner of Twenty-eighth and Penn when they passed.

Q. Was anybody shooting at them?

A. I saw one man following them up as they came down Twenty-eighth street.

Q. He followed them up?

A. Followed them so far as I could see, about the middle of Twenty-eighth and Twenty-ninth. I was afraid they would shoot at me.

Q. What did he do while he was following up?

A. Threatened to shoot several times—threatened to shoot on an alley in Twenty-eighth street. We put up our hands at him. He got up again and followed them at Penn street. I got back of a sign and I believe he shot after he got a piece further up.

Q. You didn't see him fire?

A. No.

Q. He had a gun?

A. A breech-loader.

Q. Musket?

A. It was one of those breech-loaders. I saw him throw it up and examine the cartridges.

Q. Did you know the man?

A. No; I knew he wore a linen coat and a white straw hat.

Q. Was it a rifle or a shot gun?

A. Yes; regular musket, called breech-loaders, something similar to what the militia have.

At this point the committee adjourned, to meet at the arsenal, at half-past eight o'clock, this evening.

ALLEGHENY ARSENAL,
FRIDAY EVENING, *February 22, 1878.*

The committee met pursuant to adjournment, at the United States Arsenal, at half-past eight o'clock. All members present.

Major A. R. Buffington, *sworn*:

By Mr. Lindsey:

Q. First state your rank and official position here under the United States Government?

A. Major ordnance United States Army, commanding Allegheny arsenal—commandant Allegheny arsenal—which ever way you choose to put it.

Q. If you will go on and get at the facts, probably it will be as easy as any other way to come at a statement of the facts that came within your knowledge?

A. I presume what you want from me are simple facts. You want no opinions, nor anything else—my knowledge of the riot. I have here three or four little notes addressed to me:

July 21, 5, P.M.

Major BUFFINGTON,
Commanding U.S. Arsenal:

The troops of the first division, after having been fired at by the rioters, returned the fire, killing and wounding a number. It is said the rioters will take the arsenal, and take the arms and ammunition. It may be a rumor; I will give it to you for what it is worth. It would be well for you to be on your guard.

(Signed)

A. L. PEARSON,
Major General.

Q. What time did you receive that note?

A. I received that note somewhere about six o'clock. It is dated five-thirty, P.M., July 21, about half an hour afterwards—about six o'clock, I should judge. Previous to this, I would state that three gentlemen came here from the city—came to my quarters—and informed me in substance the same thing, before this was received—perhaps an hour. Was received somewhere about that time. That was the first notice I had of it.

Q. Who were those gentlemen?

A. Their names I don't know. They were strangers to me, and they introduced themselves. I have forgotten their names.

Q. Were they citizens of Pittsburgh?

A. Yes, sir; and when they came they were very much afraid that the mob would see their vehicle out in front of the gate, and they immediately left and went away on that account, saying they were afraid their vehicle would be recognized, and they were afraid of the mob. This word I mention was brought to me by Doctor Speers, of Pittsburgh, in a buggy, and he also was very much afraid of the mob. Cautioned me saying anything about it; that they would spot me, or something to that purpose. I also received this one. Here is a copy of that one written in the handwriting of General Latta. This was handed through the picket fence, which is by my quarters, to a young lady visiting my house at that time, with a request to give it to me, which she did. She refused to take it, and told him to take it to the guard-house, and he expressed a fear about taking it to the guard-house, and insisted on her taking it. In addition, I received this one. It is headed,

"O.D. 7, 21—7th month 21st day.

"COMMANDANT ARSENAL: Mob has started to the arsenal for the purpose of taking arms. Serious trouble at Twenty-eighth street between them and military.

(Signed)

"J. M. or T. M. KING,
Superintendent."

I believe he is superintendent of the Allegheny Valley railroad. Having received information from those gentlemen previous to those notes, I immediately took steps to receive the mob if they should come out there. Lieutenant Lyon was staying over there. He came to the office, and I told him to tell my sergeant to go out quietly and couple the six pounder guns, have one of them brought down to the inside of the gate, as you come in. I had but one box of ammunition. All my men had Springfield rifles, and I had a part of a box of ammunition for them—I had plenty of ammunition,

but none of that kind. My sergeant got some for my men, and I gave him some general instructions to guard and close the gates, and lock them, and let no one in without my knowledge. These preparations were carried on, and we got in readiness, and matters remained so until night came on, and there was no signs of anybody coming, and at night I thought I would go out in the street and see what was going on. Lieutenant Lyon, I believe, went with me. We struck down street and consulted with various people. Very few people know me here. I went out in the street and talked with a few of them. In a field below here—about two squares—is a new livery stable, and over that building there was some sort of a meeting going on, and we went to the door. They had sentries at the door. There was quite a concourse of citizens around. We could not get in, and we waited there until they came out. They were cheering inside, and somebody making speeches. Presently they came out, about twenty armed with some muskets they had gotten out of an armory below here somewhere—half-grown boys they were, and a few men—and filed off down street cheered by the populace surrounding them, and one man along side of me fired a musket in the air, and that is all that I saw. I didn't see any disposition of any of them to come here at all, and I returned, telling Lieutenant Lyon I had no doubt they would come out here, but I did not anticipate any trouble with them at all, and instructed the men to keep in their quarters with their clothing on—to lie down with their clothing on, ready at a moment's call. Between ten and eleven o'clock I heard drums beating down street, and I concluded the rioters were coming. I went out, and the men were turned out and placed up here behind that building, where they could not be seen, and by that time the mob had got at the gate. There was nobody there except a sentry and that six pounder gun there. I went out in citizen's dress. They were yelling and screaming about the gate. As I approached, one of them said, "Here comes the commanding officer, we will talk to him." I walked up to the gate, too—the gate is armed with open pickets—they stopped their noise, and I said, "Boys, what is the matter?" They said, "A party of Philadelphia troops have fired into a crowd down here and killed a lot of women and children, and we come to get arms; we want to fight them." I says, "I cannot give you any arms." I said, "I cannot help you, it is impossible for me to

help you." He said women and children had been shot down, and I said, "It was a sad thing, but it is impossible for me to help you." "We don't want you, we want that gun." I ignored that request, and kept talking quiet to them. They seemed to be peaceable enough, except one man, and I imagined he was slightly intoxicated. "I know there are only twenty men in the place, and if twenty-five will join me we scale the walls." He abused them for not following. Presently one of them said, "He talks well, come on." Finally the better disposed of them called the others off, and they went up the street a short distance and returned again. This belligerent fellow staid near the gate and called for volunteers. There was nobody there except myself and the sentry. I kept the men out of sight, for I didn't wish to flourish a red handkerchief in the face of the bull. I was determined to exhaust all peaceable means. They came back again, and about the time they got opposite the gate, a cry of fire was raised, and an alarm struck on the bell, and they all raised the cry of fire, and they went off down the street. This man who was calling for volunteers, says he, "The guns are spiked, we will all go;" and they all went off again. That is my knowledge of the mob.

By Mr. Lindsey:

Q. What stores of ammunition were here at that time that the mob could have got if they had entered?

A. We have here many buildings full of ordinance stores. We had for years, and have yet, something like thirty-six or forty thousand stand of arms. Don't put these down as the exact figures. We had a great many thousand stand of arms, and two magazines full of powder and ammunition, prepared and partially prepared for service; that is, the powder in the shells, the powder in the cartridges, two large magazines full. We have there, in fact, two of them full, and another partially so in the upper park. Besides these arms I speak of, we have many thousand stands of arms, revolvers, carbines, muskets, and all sorts of things. We have many large warehouses here. There is one there, [indicating,] and here is one, [indicating,] and one on the other side of the street; above that are the magazines. We have got a

great deal of property here, valuable property, too, but we had no small arm ammunition except some of the old style ammunition—a lot of the old style paper cartridges which I had broken up. The arms we had are mostly loaders, except fifty breech-loading muskets, and my men here are armed with caliber fifty. A year before the riot began I was impressed with the dangerous position of this place, and I drew the attention of the authorities in Washington to it. There is a map showing the arsenal, [indicating.] That is Butler street. There, you see, are four buildings called temporary magazines. Those are wooden buildings. There are a great mass of breech-loading ammunition in there, partially prepared for service. There is one magazine, and there is the other one. There is Penn avenue—it is called a pike there. A man might have thrown a lighted cigar over and set fire to this place. I drew the attention of my chief to it, and called particular attention to this dangerous place. He saw the importance of it, and ordered me to break up the ammunition and otherwise get rid of it. Fortunately, all that was cleared out before the riot began. These magazines were all full, and the small arm ammunition I had broken up. Here the shops are below the work-shops, on a plateau just below this, and here is the road over which you came. Here is a sort of open space, and nothing but a low wall here with a picket. Right opposite, there is another gate leading into the upper park. My men were here, and this part is utterly defenseless, and in that place were a number of cannon. The mob would have cleaned me out here. There is not a man there, but a man in charge of the magazine, and twenty men, you see, would be a small force to defend it. It is not a fortified place, it is the same as houses surrounded by a wall with a wooden picket fence. The mob could push it over and come in, and there would be no trouble about it.

Q. Not a very strong fortification?

A. It is utterly defenseless; but, at the same time, I was not afraid the mob would do me any injury.

Q. How many cannon had you that they could have taken and moved off?

A. I don't know how many are in that shed. I have five or six pieces which I call in current service. Those pieces are mounted. Those are six-pounder guns, and there is plenty of ammunition which could be used for that purpose in those magazines. I had one of them on this side, [indicating,] and one on the other side. As mobs generally do, they always come where the danger is. Here was those six-pounder guns, with canister. The only hostile demonstration they made was to rush for the gate, but I merely raised my hands, and says, that won't do, and they stopped instantly. To show what the state of affairs was here, and my information of what was going on, sometime on Saturday night I received this communication from General Latta, addressed to the commanding officer, United States arsenal, Pittsburgh, without date, or anything else. He says:

"Have you communicated with General Government about prospects of attack on your arsenal.

(Signed)

"GEN. LATTA."

That was sometime late in the night. I don't know whether it was before the mob came or not. Here is the reply I sent to him:

"UNITED STATES ARSENAL, *July 21.*

"JAMES W. LATTA: In reply to your pencil note, without date, I have to say I have not communicated with General Government about prospects of attack on me, and shall not until such a course is necessary."

I had no communication with Washington, and none with the State authorities, except just what I showed you. They didn't advise me about what was going on. I knew nothing but just what you see here, except to give them all the assistance I could, and, by a strange mistake, I gave them all the defense I had. Here is a communication:

"HEAD-QUARTERS SIXTH DIVISION, PITTSBURGH, *July 21, 1877, 11.30, P.M.*

"Major E. R. BUFFINGTON: It is of the utmost importance that I should have two hundred rounds metallic ball cartridges. Please deliver them to Colonel Moore. In case I have none in store, I will deliver you the order of the Secretary of War to-morrow.

(Signed)

"A. L. PEARSON,
Major General."

To explain, the State had here some ammunition which I had been giving to them as they wanted all along, and we had given it all out. General Pearson had been informed that there was no more here belonging to the State, but he said if he had none to give him some, and he would get authority from Washington. Down here is the note of the man in charge of the magazines. This is dated eleven-thirty, P.M. It did not come to me till long afterwards. I sent them with a guard to the upper park with instructions to tell the magazine man to give them if they had any of the State stores, and to tell this gentleman that I had none except a part of a box for my own men. It was just nine hundred rounds, and the guard carried the written order, and down to the bottom, pasted to it, is:

"*July 22, '77.—4.20 A.M.*"

You see how late it was in the morning.

"Deliver to General Pearson's messengers eight hundred and sixty center prime metallic ball cartridges United States property, there being no ball cartridges belonging to the State at this arsenal.

(Signed)

"JAMES FITZSIMMONS."

By mistake, the State troops got all the cartridges I had. My men got forty out of the nine hundred. Each man had two rounds simply.

By Senator Yutzy:

Q. Do I understand you to say that you had no ammunition for any of your arms?

A. I had not a round of ammunition suitable for any arm I had in here, for the simple reason that we are in profound peace, surrounded by friends. Since the Frankford arsenal got making metallic cartridges, we had a few rounds here for the use of my men, in case we wanted to shoot. We had a few blank cartridges. We had cannon ammunition, but all the small arm ammunition was broken up and powder taken out of it and balls thrown into the lead pile. We did not have any for arms we had here except, perhaps, a few cartridges for revolvers, which I issued afterwards to the citizens in the town to defend the city—two or three days afterwards.

Q. You have some muzzle loaders?

A. All the muskets are muzzle loaders except——

Q. And no ammunition for them?

A. No; we had powder and ball. I had paper cartridges made for the committee since that, as the controller will tell you. They came to get muskets, and I had cartridges made.

Q. You may state to what extent you supplied the citizens with ammunition?

A. Well, to quite a large extent. This is a statement which I have made up for General Negley. He represents the committee of safety. Here are fifty Cosmopolitan carbines; three hundred and ninety-nine Springfield rifled muskets; fifty Remington revolvers; fifty cavalry sabers; forty-nine belt holsters; forty-seven pistol pouches; forty-seven cavalry saber belts; fifty

carbine slings; forty-eight carbine slings swivels; two hundred bayonet scabbards; one hundred and ninety cap pouches; two hundred cartridge boxes; two hundred cartridge-box belts; two hundred and fifteen waist belts; two hundred waist-belt plaits; fifty bridles—curb bridles; forty-nine holsters and straps; fifty saddles; fifty saddle bags; fifty saddle blankets; thirty-eight pounds of buckshot; four hundred and eighty-three musket percussion caps. These were to make buck and ball cartridges. Those were returned back to me since then.

These are to be added: One hundred and twenty-six Springfield rifled muskets, caliber fifty-eight; twenty-six Remington revolvers, caliber forty-four; thirteen Whitney revolvers, caliber thirty-six; six cavalry sabers, thirty-nine pistol holsters, sixty cap pouches, eighteen waist belts, thirty-three waist belt plaits. That was to the committee of safety; besides that, to the mayor of Allegheny City I issued—I am not sure—I think it was three hundred muskets, and powder, and balls, and buckshot, and cartridge paper for making cartridges.

Q. These cartridges were not paper, buck, and ball?

A. Oh, no; just the material I had, which was the balls and the powder. In order to get the powder, I broke up cannon ammunition—one pound cartridges—broke it up.

By Mr. Lindsey:

Q. Did you witness any of the scenes of Sunday, the 22d.

A. Yes; for a very short time.

Q. Tell us what you saw on Sunday?

A. By these papers I was nearly all night. I went to bed to get some rest, and was in bed when I heard firing down this street. That is what first wakened me was the sound of firing down the street. Otherwise, before that it was perfectly peaceable and quiet. That officer had his twenty men out on this side of that building, for Sunday morning inspection, and he had just

dismissed them, and hearing this firing down street, I jumped out of bed, and got into my pantaloons, and put my night shirt in my breeches, and got my coat on, and rushed out of the room, and before I got out I saw that, from the exclamations of those in the house, there were a number of men running through the grounds. Whoever they were, they were unauthorizedly coming in without any permission, and when I appeared on the grounds, there were a number of soldiers inside, how many, I do not know, and as I opened the door, the firing had ceased. I started towards the gate, and upon looking around in this direction, I saw Lieutenant Lyons coming towards my quarters, and an officer coming towards my house, and I turned to meet him. As he came up, I said to him, "You must take your men right out, sir; there is no protection here for you." He answered, "You have walls." "Yes," I said, "we have walls," raising my hand that way. He says, "Have you any suggestion to make." I said, "None, sir; except to organize your men and assault them." I supposed there was some fight going on, from what I saw and heard. That is all the words passed between me and the officer—who he was I do not know. He had a blouse coat, and looked like a second lieutenant. It does not matter who he was; under the circumstances there was no time, at that time, for wasting words, in my estimation. My orders were orders that were peremptory. I ordered him and his men out. As I told him these last words he started towards the gate, and I immediately turned and went towards the building, where a wounded man was brought in. Says I, "I will take care of the wounded." I called my men, and ordered him taken to the hospital. There was a man lying inside of the gate, one of my men bathing his temples. I asked what was the matter. He did not know. I called my man and instructed him to take him to the hospital. I went to the gate, and I saw nothing there, except a few citizens—workingmen in their Sunday clothes—going to church. I did not see an armed man anywhere. Brinton and his command had gone up the street in the meantime, and left the arsenal. In a few moments I was joined by Lieutenant Lyon, and I authorized him to go immediately for a surgeon for these wounded men, and he went down to Doctor Robinson's office, which is one square below, and brought Doctor Robinson in immediately, by a private entrance, to save time. I went to the hospital—there was no signs of any riot in the street, or

anything of the kind—I went to the hospital, and there saw Doctor Robinson, who referred to Lieutenant Ash, and said his leg must come off, but I prefer to have some surgeon to consult with. I suggested to him Doctor Lemoyne, and he agreed to that, and I went to my quarters and wrote Doctor Lemoyne a note, telling him, in the letter, Doctor Robinson had been called in, and that he wished to consult with him, and I sent one of my own horses and a messenger into the city, for Doctor Lemoyne, and he came out. He lives, maybe, three miles from here. In the meantime, the wounded had the attention of Doctor Robinson and his partner, Doctor Evans. Doctor Lemoyne soon came, accompanied by Doctor Reed, and then the wounded had the attention of all four of them. That is all I saw. As to the condition of the Philadelphia men, Lieutenant Lyon can tell more than I can, because he saw the whole thing. The stragglers were inside here; were kept here, and fed, and taken care of until Tuesday evening, and they were clothed like my men. They were so demoralized that one of them, it was reported, could not eat, and in order to divert their minds, Lieutenant Lyon put them to work—they were so afraid they would be shot by somebody. Lieutenant Ash died here, and his brother and his wife were here at the time he died.

Q. When did he die?

A. Died on Tuesday about two o'clock.

Q. What become of the other wounded man that was brought in?

A. The other wounded man was playing possum. There was not anything the matter with him. When he went to the hospital he was lying on a bed, and I said, "what is the matter with you?" He did not answer. Says I, "get up, we do not want anybody in the hospital except sick men." The other men wounded themselves getting over the pickets. They came over the pickets, and I am satisfied they wounded themselves in getting over the pickets. One man had a wound in the center of the hand, which he said was caused by a piece of shell. I think he put his hand on a picket of the fence, and one man had his pantaloons torn. They had some little scratches on them. In a few minutes they got out, and went to the works with the other

men. There was only one wounded man, that was Lieutenant Ash. One man was wounded down street here, and ran into the Catholic church—Corporal Ash—and a few days ago he came in here to see me. He was shot in the abdomen, and strange to say he got well. Those were the only wounded men down street here.

Q. You did not know, at the time that this soldier approached you, that it was General Brinton?

A. No; I do not know who it was. It did not make any difference who he was. As I wrote afterwards to Washington, they virtually forced my guard. It is a very different thing for a man outside and a man inside. I know what the place is, and it is presumed that I ought to know how to take care of it; and, in addition to that, I am responsible to the civil authority for every act of mine which comes in conflict with it. I am amenable, in other words, to the civil authorities, and it seems to me I ought to know beforehand what I am doing before I enter into a fight—to know what is going on. I shall certainly take care to do so. Suppose I had opened on some of those men; they would have had me up here for murder, sure, the next day. If it had once begun, it would have been a serious business. I questioned my guard. I said to him, when did you hear that firing—when that firing began, did you see anything in the streets? "No," he said, "there was a small boy in front, a newspaper boy, and I asked him to look down the street, and he said he saw no one. That is the fire that got me out." I said, "were there any shots fired after you heard that?" He said, "there was not a shot fired while the men were here at all." I did not hear a shot fired after I left my quarters, until along sometimes afterwards, way down below here somewhere. Some man—so it was reported, and I believe it was so—some man shot two of them with the same shot, from behind the cemetery wall, or somewhere near there.

By Mr. Lindsey:

Q. If that mob on Saturday night had made an attempt to enter your grounds here, would you have considered you were justifiable in resisting it with any amount of force?

A. Unmistakably. I had it there ready to use, and the beck of my hand would have brought my men there.

Q. Did you know this officer that approached you and asked permission to bring his men inside?

A. He did not ask any permission—just as I have reported to you. The words were no more or less than just what I have said. The mere fact of his being there revealed to me that he had come there for that purpose. I did not wait for any request at all. The mere presence of himself and his men was sufficient for me. I took my action from what I saw.

Q. How many men were inside of the grounds?

A. That I do not know. Lieutenant Lyon can answer that better than I can.

Q. The number of men that stayed here?

A. The number of men that stayed here were eight besides Lieutenant Ash. These men I kept—afterwards, when I saw the command was gone, these men, I allowed them to stay in because I would not send them out in the streets. I told the men to join the command, but the command moved off, and these men were allowed to remain in, and were fed and kept.

By Senator Yutzy:

Q. Was there any formal demand made by any officer of the militia to be admitted, or request to be admitted here?

A. None, sir; except just what I told you.

Lieutenant M. W. Lyon, *sworn*:

By Mr. Lindsey:

Q. Just state your rank?

A. First lieutenant of ordinance.

Q. Stationed at——

A. Allegheny arsenal.

Q. State what came under your observation here on the morning of the 22d—Sunday morning?

A. We have Sunday morning inspection about eight o'clock. I finished the inspection, and returned to my quarters and had hold of the door, when I heard the firing down street. I turned to look out to see what it was, when I heard a yell and a lot of men running over the wall—jumping over the wall. I ran up to the gate in that direction. I thought they were the mob. Soldiers were running. I thought it was our own guard. When I got as far as that large warehouse, I met this officer, and I took him to Major Buffington's quarters.

Q. Did you know who the officer was?

A. No, sir; there were several officers, and the only way I now know it was General Brinton, is the fact, that some of them say that he wore a blouse, and he was the only one that had a blouse. The others were in full dress uniform.

Q. Did he state to you what he wanted?

A. No; he seemed to be commanding officer, and I took him to the major's quarters. He was in a great hurry. There were several officers with him.

Q. What was the result of his interview with Major Buffington?

A. As the major says, he made the remark to him, as he stated in his statement, and after that this officer, with the other officers, walked toward the entrance and went out, and I followed more leisurely. When we arrived there, they were bringing in the wounded, and the major told them all the wounded they had they might leave, and he ordered those that were bringing them in, to re-join the company—these eight men came in under

the pretense that they were wounded, excepting one man, who had brought—I think he helped carry Lieutenant Ash in, and the major told him he would have to join his command, and he went to the gate and found the command had moved on, and he came to me and said he would willingly hide anywhere. He would hide in the coal-shed. He had never fired a gun off in his life, and only belonged to the militia three weeks.

By Mr. Means:

Q. Did the general commanding leave his command, in your opinion—the man that wore the blouse—had he left his command, and come in here for protection?

A. I do not think he came in here for protection.

Q. What brought him here?

A. He came in to see if he could get admittance for his troops.

Q. Did General Brinton then move on with his command?

A. As far as I know. I went down with some of these men that were carrying the wounded, to show them the direction to the hospital; then I returned to the gate to go for Doctor Robinson, and I do not think they stopped there more than a minute.

Q. Did you see any mob following in the rear?

A. There was none, I am quite positive. When I went to the gate, there was a man who keeps a beer saloon standing at the gate, and he said there was only one man following, and he gave the name of this one man. I went up to him and asked him, and he immediately stopped talking, and he said he did not know the man's name.

Q. When you went for Doctor Robinson, did you see any of the mob?

A. I saw no mob. I saw quite a number of people in the street that had come out of curiosity, hearing the firing, but they had no arms with them at all.

Q. Did you have any conversation with these wounded men to ascertain how they were wounded?

A. Oh! yes; I asked them all how they were wounded. One man said that they kept firing away from the middle of the street. They had two cannons, and loaded them up with glass and nails—little toy cannons. He said he got struck that way two or three times.

Q. How long after Lieutenant Ash was brought into the hospital was it before Doctor Robinson arrived?

A. I should think it was not more than five minutes, because I did not go down all the way to the hospital—the hospital is halfway between here and the guard-house, and I went immediately back to the gate, and went down to Thirty-seventh street, where Doctor Robinson lives, and he was sitting in his chair, reading the morning paper, and he came with me immediately, and I did not think it was more than five minutes, certainly not more than ten.

Q. How long was it before Doctor Lemoyne arrived?

A. I do not think he came until about two hours afterwards.

Q. Was there any amputation performed?

A. No, sir; they tried to perform an amputation, but Lieutenant Ash was not strong enough.

Q. Did you learn where he was wounded—where he was when he was shot?

A. I never could learn. I did not ask him, because the doctors did not want him to have any conversation.

Q. You do not know how far he had been carried?

A. No, sir; it was my impression he was shot near Thirty-seventh street. Some of the men said he was shot near the round-house. Lieutenant Dermott, who was stationed at the university here as assistant professor in

engineering, he was up here while these wounded men were in the arsenal, and together we went over to the commissary where their cartridge boxes were, and I found the cartridges they had in their boxes, and they all averaged twenty rounds a piece, and one man he had forty. Some had less than twenty.

Q. Of the soldiers?

A. Of those eight that were here. I asked him—he was an old man. In fact, he had been wounded in the hand at the battle of Gettysburg, he said. When they were passing them around, there were several extra cartridge boxes, and he took one.

By Senator Yutzy:

Q. Were you in the vicinity of the crossing of Twenty-eighth street and the railroad, the scene of the riot, on Saturday?

A. Yes, sir.

Q. At the time the military arrived there?

A. I was not there the time the military arrived there. I was there about an hour before they arrived. I was talking with Captain Breck. He had two six-pounder guns, and I told him they were not of much use. He ought to have Gatling guns. He said the Philadelphia troops did have a pair of them. I waited until my patience was exhausted, and I came home.

Q. Did you see any of the movements of the military in that vicinity, or while you were there?

A. They made no movement while I was there. They simply remained stationary where they were. There were some on the hill side with their arms all stacked.

Q. None at the crossing of the railroad, were there?

A. I am not positive about that. At any rate, I did not keep account of them. They could get across the track very readily, for I went across. I do not

think there were any there. I think they were mostly on the hill, and those had their guns stacked, but they were down at the crossing and on Twenty-eighth street, talking with the people, about the same as though they were going to have a party.

Q. That is, the soldiers were away from their command?

A. Yes, sir.

Q. Mingling with the crowd?

A. Yes, sir.

Q. In conversation with them?

A. Yes, sir.

Q. Was there any considerable number of them with their arms where they were stacked?

A. They were stacked there, and there were several sentinels along the line where the arms were stacked, but the men, as a rule, had their guns stacked.

Q. They had broken ranks?

A. They had broken ranks.

Q. Did you see them make any effort to keep any portion of the track clear?

A. Not while I was there; no, sir.

Q. How long were you there.

A. I was there three quarters of an hour, perhaps an hour.

Q. Did you see any portion of the military in ranks?

A. I saw no portion of them drawn up in line of battle, or anything like it; no, sir; or company front either. I think the only men I saw, were those that were without arms, walking up and down with the crowd, talking to them, and the sentinels on post over the stacked arms.

Q. They appeared to be the only ones on duty?

A. They appeared to be the only ones on duty at that time.

Q. As the militia were passing here, did they throw away their arms or ammunition?

A. Well, not that I saw, except that Major Buffington found a case filled with cartridges belonging to the Gatling guns.

At this point the committee adjourned until to-morrow morning, at ten o'clock.

PITTSBURGH, *Saturday, February 23, 1878.*

The committee met, pursuant to adjournment, at half-past ten, in the orphans' court room, Mr. Lindsey in the chair.

All the members present.

O. Phillips, *sworn*:

By Mr. Lindsey:

Q. State your residence and your official position in July last, and then go on and give us the facts?

A. My residence is 344 Ridge avenue, Allegheny. I was mayor of the city for the last three years, up to January, 1878.

Q. Of the city of Allegheny?

A. Yes; of the city of Allegheny.

Q. Just commence and give us a statement in your own way, chronologically—give us the facts?

A. On Thursday or Friday, the 19th or 20th of July last, I had been over in Pittsburgh during the day, and went back to my office in the afternoon, and there I found that the railroad officials of the Pennsylvania company had sent up the office for police assistance, stating that a crowd of men were interfering with the running of trains near the outer depot, and that Chief of Police Ross and ten or twelve policemen had gone down there.

Q. The outer depot of the Fort Wayne road?

A. Yes; I jumped in a horse car and went down there myself, deeming it my duty to go and see what was the trouble, and when I got to the outer depot I saw a number of men walking up and down the track, and quite a large number of men at Strawberry lane. I noticed a locomotive pass me and go down. It was interrupted or stopped by some men climbing up on the engine, and gesticulating in a threatening way, but what they said I do not know, but the engine stopped, and returned to the round-house. I went down then to where this crowd of men was, and saw it was a very large assemblage—several hundreds—and the police force were an atom, a mere drop in the bucket. Some of the men wanted to talk to me about their troubles. I told them, as mayor of the city, I had nothing to do with that. I was simply there as a representative of peace and good order, and spoke to the men, cautioning prudence, asking them if they realized the seriousness of what they were doing. I noticed that a man by the name of Robert Ammon was recognized as their ring-leader. He came up to me and introduced himself as having known me at my factory, on the South Side, and said he would like to talk to me. I stepped aside to converse with him, and while we were talking, men would come up and say: "What shall we do now, Bob?" He would say: "Stand aside, I do not want to be interrupted." He told me he had been an employé of the railroad company six weeks or two months before that, but had been discharged, and since that he had been around the country organizing Trainmen's Unions. He told me he had influence to stop these troubles; that if he had sent a telegram to Martinsburg the troubles would have been stopped. He said it was not worth while to go to the railroad men; he asked me to make a speech to the men; I told him that was not my style. The men gave me their assurance they

would protect the railroad property, both day and night, and when they could not do anything further they would send to me for police. I then left my officers quietly mingling with these men, and then I went back to the mayor's office, which was on Thursday or Friday, I am not sure which, or Saturday. Word came to me that some of the supposed strikers had gone to one of the military organizations in Allegheny, and had taken thirty or forty arms, and had taken them down towards where the men were on a strike, and they expected to come up in a short time and remove the guns from Captain Bigham's armory, a company of the Nineteenth regiment. I went over there, and, assisted by the postmaster of Allegheny, and two or three of my police, we carried over thirty or forty arms and ammunition and placed them in our watch-house. A messenger came up hurriedly and said that the crowd were coming up to take these guns from me. My force were all out in the districts, and I then had the locks and bayonets taken off these muskets, so that if they got the guns they would be of no service to them. On Sunday, the day of the serious trouble, I had Knapp's battery taken out of the armory, by some of the battery men, under the command of Captain Walker, and these guns, four field pieces, were loaded with small square iron nuts. We had not any ammunition. We had blank cartridges but no balls, and I had these things loaded, and then, assisted by citizens, armed with axe handles and wagon spokes, I had gotten from one of the wagon-yards, and their old fowling pieces, and everything of the sort. They posted these guns at the Allegheny end of the bridges. I had been notified that the mob were coming over Sunday afternoon and Sunday night to burn the Allegheny shops, and release the inmates from the penitentiary. I notified the warden of that fact, and he kept his force on day and night, heavily armed, for a number of days. I selected two or three gentlemen of cool judgment and discretion, and those on horseback, and went to Pittsburgh and rode around among the rioters on this Sunday night to try and find out which bridge they proposed to come over, and then hurry back and notify me, and my intention was to concentrate all these field pieces at that bridge and stop them. I had taken the police pretty much away from the city of Allegheny and put them at the bridges, and sent squads of private citizens to patrol the streets. My force consisted of about fifty-five men. I kept the police on both day and night,

until their strength was exhausted, and they could not stand it any more. On Monday I telegraphed the Secretary of War, and asked permission to draw five hundred muskets from the arsenal. That permission was granted, and I sent out two wagons, guarded by twenty-five or thirty veteran soldiers, and they went and brought me the guns. I called a special meeting of councils on that same day, and asked permission to increase the police force, which permission was granted me. I swore in a hundred special policemen, and armed them with maces. A hundred of those veteran soldiers were armed with Springfield muskets, and we made our own ammunition and cartridges, with either five or six buckshot. A hundred veterans were in reserve in the armory, to come out along with the citizens at ten taps of the big bell. The employés sent me word there were so many tramps coming over that they could not protect railroad property, and asked for police assistance, and I detailed a squad of policemen, and guarded all the crossings from Irwin avenue to Strawberry lane, and kept the crowd back. There was a meeting of these railroad employés in Allegheny, to which they asked me to attend. I was very kindly treated by them, and quite a number of them would come to my office and confer with me. I received a communication from the railroad officials, Mr. Thaw, General McCollough, indorsed by Mr. Quay and Mr. Latta, and asked me to close the liquor saloons. I requested the chief and one or two officers to go around and close them, and they did. I do not know whether I had the power, but I thought the emergency required it should be done, and I ordered them closed, and I sent officers to see that they were kept closed. When the Governor came through, he sent for me, and I went to see him at his car, and he asked me what protection I had, and I told him just as I have related to you, and told him I did not want any military until I was completely overpowered, and that I thought I could protect the city, and if I could not, I would call on him, and he said he would send me a thousand effective men. I had submitted to the railroad employés in Allegheny that if they would go down and bring these ten miles of stuff they had run down the road—all this stuff—to Allegheny, and take the eastern bound over to Pittsburgh, &c., I would see that their wages were paid, and then I would take the road off their hands. The railroad company had declined to receive the road until the stuff

was brought back. On the day proposed to raise the blockade, I went down to the depot with thirty picked policemen, and when I got there in the dispatcher's office, there were seven or eight hundred people, or more. I stepped upon a pile of railroad ties, and ordered all the men that did not belong to the railroad to step on the other side of the railroad track. Said that they would settle their difficulties without outside assistance, and at least four of the men went on that side of the track. There were private detectives going through them, and they would ask, "Who is that man?" and they told him it was Mayor Phillips, of Allegheny. I then proposed to the men, employés of the company, to go down and bring up the first draft of cars, knowing that if we would get the first draft up, the back-bone of the trouble would be broken; and they all got up in a hurrah and got the first draft up, and then all the stuff was brought up.

Q. Then you turned it over to the railroad company?

A. Yes; the railroad company took it after the stuff had been brought up. I know little or nothing of the trouble that took place in Pittsburgh.

Q. What day was that that you brought up this stuff?

A. Several days afterwards. I cannot tell you the date. I do not exactly remember the date. On Sunday, the day of the burning, there was a committee of railroad strikers met Mr. Layng at my house, that Sunday morning, and had a conference with him, and agreed to take care of the property of the company, and they did it well and manfully.

Q. The first day you went out and met the crowd of several hundred, were they composed entirely of railroad employés?

A. No, sir; they were not. Very few appeared to be railroad men.

Q. What class of men were in the crowd?

A. Workingmen—rough-looking men—men that I did not know.

Q. After the railroad employés agreed with you that they would protect the railroad property, did they permit the crowd of roughs to remain with them?

A. No, sir; because they sent me word that the roughs were coming there, and they were apprehensive there would be trouble, and wanted policemen, and they guarded all this property, until at last they said they were tired and worn out, and asked me to protect this ten miles of property down below. I had not any authority to go outside of the city with police, but the railroad company agreed to pay, and I sent a police force ten or twelve miles down the road, and protected the property until the troubles were over.

Q. Do you know anything of the crowd trying to prevent, or making preparations to prevent, trains from coming in with soldiers on the Pittsburgh and Erie road?

A. We were notified there that none of the soldiers would be allowed to come in that way. Some of the men intimated to the effect that they would be stopped. It was in the early part of the troubles.

Q. Notified by railroad employés?

A. Some of the men notified the police, and the police told me. I do not remember exactly how. I told the men we would not have any military over there as long as we could do without them. A squad of men came up and said United States soldiers had come there, and it was contrary to the contract. I told them that that was answered simply, and that the United States Government would send their troops when, and how, and where they pleased, but I had seen the military authorities of Pittsburgh, and asked them not to send any troops to Allegheny until I called for them. I thought I could protect the city. I was assisted by the people of Allegheny all I could ask for.

Q. Under what circumstances or condition of this order would you consider yourself justifiable in calling on the Governor to send you troops?

A. Well, sir, when I went down that day, and I felt I could not control the multitude, and they attempted any threatening, I proposed to fight them. I would not give up without. I had armed the police with revolvers and maces. I had something myself, and when we could not fight, I proposed to call on the military, and not till then.

By Mr. Means:

Q. You determined to make a fight before you called on the military?

A. That is the English of it.

Q. And to head the police yourself?

A. I did, sir. I head them all the time. I thought that was my place.

Q. In case of a ... occurring in any part of the city, did you regard it as your duty to visit the point and ascertain?

A. Yes. I was up day and night for a week, and I was nearly worn out. I kept the battery in camp in the city hall yard. Kept them there day and night, and had these veteran soldiers sleep on the floor of city hall, so that we could call on them at any moment.

Q. Would you consider it your duty to have called out a posse of citizens, and to exhaust your power in that direction, before calling on the State for military aid.

A. Most decidedly. I had arranged and published hand-bills all over the city, that at ten taps of the bell the citizens of Allegheny were to come forward to protect their firesides and homes. I swore in a goodly number of them to go on duty.

Q. You did swear them in?

A. Quite a large number of them.

Q. Do you regard your authority and powers subordinate to those of the sheriff of the county—within the limits of your city, I mean?

A. No, sir. I thought I was the chief executive, and the man the people looked to.

Q. You regard yourself as superior within the limits of the city?

A. Yes, sir.

Q. Would you have allowed yourself to have been superseded by the sheriff in authority or power?

A. That is pretty hard to answer. I do not think I would. I thought I was placed there to protect the city by the people, and I would try to do that.

Q. You would do your duty as long as anybody else would?

A. That is my idea.

By Mr. Lindsey:

Q. As far as the military is concerned: if you had called for the military, you would have considered it was your duty to give general supervision and direction, within the limits of the city, in putting down the disturbance?

A. I would have done all I could. I would have assisted the military all in my power.

Q. You regard the military subordinate to the civil authorities?

A. I think so; yes, sir.

Q. Did Robert Ammon tell you how many lodges of Trainmen's Unions he had established?

A. I do not remember the number, sir, but he said a goodly number?

Q. Did he tell you on what roads he had established them?

A. He told me he had been on different roads. Eastern and western roads, if I remember rightly.

Q. Did he tell you the object of that Union?

A. As I gathered, it was to see about regulating the wages—to control—to compel—that is the substance of it. A very hurried conversation we had, and a good deal of excitement at the time.

Q. Did he say that there was a pre-arranged plan for a strike at this time.

A. Yes, and if I remember rightly, it came a little premature—a little too soon.

Q. Did he say that he had direction of the different strikes?

A. He said that if he sent a telegram to Martinsburg the strike would stop, and if he would turn over his hand here, the thing would be stopped.

By Mr. Larrabee:

Q. Does anything more of importance occur to you?

A. I only visited Pittsburgh once during the riot, and that was that Sunday afternoon, and made a statement to the citizens that the railroad men had agreed to protect the property. I stayed in my own place.

Q. Did you have any talk with any of the other strikers besides Ammon about their places?

A. No, sir. I talked with a great many of the employés. I attended their meetings.

Q. What reason did they give for going on a strike at that time?

A. I did not hear any reason. I did not understand the strike was coming from them at that time.

Q. They were on a strike?

A. That, on account of the wages, they could not live on what they were getting.

Q. That was the reason they struck, because the wages were not high enough?

A. Yes, sir.

Q. Did you hear any other cause of complaint from the men that struck?

A. No, sir; that was the substance of it.

Q. Did you learn what reductions had been made in the wages of these men?

A. No; I did not. They told me their troubles. I listened to them quietly and politely, but did not think it was what I was for. I told them I was simply a representative of peace and good order, and protect their property as well as my own.

By Senator Yutzy:

Q. There appears in a statement made by Boss Ammon, a report made public in the *Leader* of January 28. He says: "Meanwhile prominent citizens came forward and supplied me with arms and ammunition for my men." Do you know anything about that?

A. I deny it, sir, *in toto*—emphatically—that any prominent citizens gave arms to any of the men there. They helped themselves to arms—somebody did—at this armory. I just related how I was afraid they were going to help themselves to some more, and I got them myself, and carried them to the watch-house.

Q. Do you know whether there was any coöperation between Bob Ammon and the railroad officials during these troubles, working together?

A. I do not know of my own knowledge. I would say I do not know a thing about it, and I did not believe there was anything of the sort—work together in harmony?

Q. Yes?

A. Not a bit of it.

Q. Here is a statement he makes in regard to you: "I pledged my honor that they would be guilty of no violence, and they heartily and unanimously seconded my pledge. The mayor expressed his satisfaction at the aspect of affairs, and ordered the police off the ground. The train dispatcher wished to retain ten policemen as a guard for the property, and the question was referred to me whether they should remain or not. I put it to the men, and

they responded 'Do as you please about that, Bob; you're boss now, and we'll follow where you lead.'" Mayor Phillips said to them: "If you are determined to strike, I beg to state that I have known Mr. Ammon from his childhood, and have full confidence in his honor and judgment, and I don't think he would give you any wrong advice?"

A. That is stuff. I did not know Bob Ammon more than five minutes before that. He introduced himself to me, and he was a young man. I could not express satisfaction with men who were doing wrong and breaking the laws of the city. That would not do. I emphatically deny the whole thing.

Thomas Furlong, *sworn*:

By Mr. Lindsey:

Q. Where do you reside, Mr. Furlong?

A. I reside in Oil City, Venango county.

Q. Were you in the city of Pittsburgh in July last?

A. I was.

Q. Were you present at the scene of the riots during any of the days?

A. I was. I arrived in the city of Pittsburgh on Friday morning, about nine o'clock, and remained here after that during the riot.

Q. I wish you would state, Mr. Furlong, what knowledge you have of any of the police of the city of Philadelphia having fired upon any of the troops, the soldiers?

A. Well, while working in my capacity of detective officer, I was called to Philadelphia—the city of Philadelphia—to get evidence in regard to certain things that occurred during the riot. While there, I received information that some of the mayor's police had fired on the Philadelphia soldiers during their retreat on Sunday morning, on Butler street, on the morning of the 22.

Q. What did you learn in relation to it?

A. I saw one gentleman in Philadelphia that said he would swear he saw a uniformed police officer fire at the Philadelphia from the curbstone or from the pavement.

Q. Who was this gentleman?

A. I disremember his name now. I have his name and all the facts.

Q. Do you know where he lives?

A. I do know where he can be found. He lives in Philadelphia.

Mr. Lindsey: I think we hardly ought to take his testimony—what this gentleman said. We ought to have the gentleman himself. You can go on and state what you found out yourself about the truth, either in admissions that the police may have made in your presence, or from facts that you have dug up, that is, in relation to the matter you may state, and not what the gent said.

A. All the evidence that I obtained in that line in reference to the matter came in that way. It is hearsay evidence. There has never been information made against this party.

Q. Against the policeman?

A. Against the policeman charged with having done this shooting. For that reason I didn't bring these records along. I should have brought those records if there had been information made against him, and I saw no police officers fire at the Philadelphia soldiers myself.

Q. Have you any other evidence to show that a policeman fired upon the Philadelphia soldiers except what was told to you by the gentleman that you spoke of in Philadelphia?

A. I have interviewed the other gentleman upon the same subject, and the statement of this first gentleman—Philadelphia gentleman—has been corroborated by other parties. There is a police officer in the city at the

present time, a member of the force now, that saw a police officer, who was a police officer at that time, on the 22d of July, saw him engaged in supplying ammunition to be fired at the Philadelphia soldiers.

Q. Can you give us the name of that police officer?

A. I could give you the name of that police officer and the name of the man that supplied the ammunition. I would rather not do it, though. I have been working in connection with our council.

F. S. Bissell, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I reside in the Eighteenth ward.

Q. What is your business?

A. Foundry business.

Q. Please state what you saw and heard of the riot, in a brief way?

A. I will state briefly, that about, I think, after twelve o'clock, on Sunday, I had learned what had transpired in the city.—I live quite a distance out—and I came to the city and walked down Liberty street, and saw the wrecking, and went down past the Union depot, and waited, I suppose, ten or fifteen minutes there, went around towards Adam's Express depot, saw what transpired there, although I was on the outskirts of the crowd, and although I didn't mingle in the crowd, and learned from some parties that a meeting was to be held at the city hall, for the purpose of rallying a number of citizens to quell the riot or insurrection. After a number of ineffectual efforts to get a body of citizens together, I went with a few parties down to the Duquesne depot. I made up my mind that that would be the next place burned.

Q. Please state where the Duquesne depot is?

A. Duquesne depot is at the foot of Liberty street, on the river, at lower end, fronting on the Monongahela.

Q. What road is the depot on?

A. The Pennsylvania depot—it is the old Pennsylvania depot.

Q. Go on Mr. Bissell?

A. During the afternoon we arrested two parties there in the act of firing—one in the act of firing a car, and the other inquiring how to get into the depot—how to set it on fire. I state this briefly—these parties have been tried. I remained around there all the afternoon, until ten o'clock that night, and about six or half-past six, along about there, after the elevator had burned or was about falling, a wagon came very rapidly down street—it was one of the express wagons—and informed some one there that the next attempt would be that depot, that the mob were surging that way. I then started with a few citizens, Mr. Little and McCandless and others, to get a cable to stretch around that building, our object being to keep back the crowd, and allow nobody inside that line if possible, so as to distinguish who the parties might be who would come to burn it. We got a few of the young men who belonged to the military—belonged to some of the militia companies—to stand guard inside of the rope during the night, and some other persons living at that place. There was nothing particularly transpired after that that I know of. We stayed there until half-past ten, or about that, and then went home.

By Senator Yutzy:

Q. How many men went with you to the Duquesne depot?

A. We started from the city hall. That was the organization that we called Doctor Donnelly's brigade. They had marched up street, and I think there was about a dozen of us remained at the depot, and we made up our minds to stay there. This was on Sunday afternoon. We expended our breath in

trying to impress upon the citizens around about there, that if they burned that depot, it would burn their property.

Q. Was there a large crowd of people then in that vicinity?

A. Quite a large crowd. I suppose somewhere in the neighborhood of a thousand or more scattered around. There is a pretty large extent of ground.

Q. Did many participate in riotous conduct there?

A. No, sir; it seemed to be a few parties. They were pretty much all under the influence of liquor.

Q. Many of this crowd were there from curiosity?

A. A good many, I have no doubt. The report was, that they were coming down towards the Duquesne depot, and the next place would likely be the Duquesne depot and the bridges. That was only, doubtless, the opinions of the people.

Q. These men you arrested there in the act of applying the torch to the depot and the cars you speak of, were they accompanied by any considerable number of men appearing to be participating in it?

A. A few sympathizers, and men who were standing out there appeared to be sympathizers. That was the party who was arrested by Doctor Dixon. He was tried.

Q. Was he a citizen of the place?

A. I think he lived down on the south side, somewhere.

Q. The other man, was he a citizen of the city?

A. I couldn't say. I don't know anything about him.

Q. Have both of those men been tried?

A. They have, sir. I think they have been tried.

Q. Were there any police in the vicinity at the time you were stationed there?

A. No, sir; I didn't see any. We clubbed together, a number of us then, and made up a little purse and hired a few police.

Q. Private police?

A. No; only to look after the building at night, and help us arrest anybody that should attempt to burn.

Q. Were those men sworn in by you men as special police?

A. I think they had belonged to the police force—the men who had been discharged, owing to the inadequacy of the funds to meet bills.

Q. Did you have any conversation with the mayor in regard to these policemen?

A. No, sir; I had no conversation myself. We put down what we could pay, and paid it when we were called upon.

By Senator Reyburn:

Q. Did you go down to the scene of the riot and burning on Sunday?

A. Sunday afternoon a good deal of the firing had been done before I got to the city, and walked on down Liberty street past the wrecking—just made a pretty quick trip.

Q. What kind of people were engaged?

A. Some of them appeared to be about as rough a crowd as I ever saw.

Q. Was there much of a crowd actively engaged?

A. I thought so. Down about the Union depot there was an immense crowd of people carrying off all sorts of baggage—seemed to be more engaged at that than anything else, outside of the firemen.

Q. Would it have been impossible for a force of men to have stopped that?

A. I don't think it would have been possible. I didn't see how. I think women would have been shot—a great many innocent people. People were panic stricken, and every thing seemed to be upside down.

Q. Wild?

A. Yes.

Thomas Furlong, *re-called*:

By Mr. Lindsey:

Q. Mr. Furlong, were you at the Twenty-eighth street crossing at the time the firing occurred?

A. I was.

Q. I wish you would go on and state what you saw there?

A. I was at Twenty-eighth street nearly all day on Saturday, the 21st. I was there at the time the train came in from the east, bearing the Philadelphia soldiers. I followed the train from Twenty-eighth street down to the Union depot, and when I got down there, I found the Philadelphia soldiers had gotten out of the cars and were at lunch on the platform, drinking coffee and eating sandwiches. I had some conversation with them, and finally they fell into line and were marched up the railroad track back towards Twenty-eighth street. I started to go up with them, walking near the head of the column. The sheriff was first in front of the troops with a squad of men, and I was ordered to keep away from the head of the column by some of the sheriffs men. I walked faster than they did—they made rather slow progress. I got up to Twenty-eighth street perhaps ten minutes or thereabouts, before the head of the column reached there. There was a great crowd of people congregated at Twenty-eighth street, and below, and on the hill all around there—a terrible crowd of people. As soon as the soldiers got

in sight of this crowd, they commenced shouting, jeering, swearing, using abusive and profane language, and the closer the soldiers got to them the more boisterous the crowd grew. The soldiers came advancing slowly until the head of the column got almost to where Twenty-eighth street crosses the railroad track. The crowd didn't give way, they just stood there blockading the crossing. It was a solid mass of people. The soldiers walked right up against them, and I was standing, at that time, in the neighborhood of forty feet below the lower side of Twenty-eighth street, on the east side of the track, on the right hand side of the track going out of the depot, standing close by the track, but about forty feet below the watch box that is situated there. There was a young man—I don't know his name, I never saw him—nor have seen him since, although I looked for him a good deal, too—standing within about three feet of where I was, at the time the soldiers marched up against this crowd. He picked up some stones—he had some stones gathered up—a little pile of stones. He picked up these stones, and commenced to throw down into the soldiers. I remonstrated with him, told him he ought not to do it, the soldiers would be likely to fire up there. He replied, they daresn't shoot. He then pulled a revolver out of his hip pocket and fired down towards the soldiers. When I saw him point his revolver, and I followed the direction at that time, there was just a shower of missiles and stones of one kind or another. Every person appeared to be throwing something; and from the other side of the track they were throwing coal. The coal just appeared to be raising off the cars and dropping on the soldiers. This man fired two shots out of his pistol.

By Senator Reyburn:

Q. Did he shoot as if he was taking aim?

A. Yes he aimed toward the soldiers. I couldn't see that he took deliberate aim at any particular person, but he fired down into the troops.

Q. He didn't fire up into the air?

A. No, sir. We were standing on an elevated position. We were above the soldiers, standing, perhaps, three feet higher than the soldiers were

standing. I don't see how he could have fired down there, without hurting some of the soldiers or citizens, or some of the mob. The people were so thick down there. There was another man standing behind this watch-box, and he also fired into the crowd, with a revolver.

Q. How many shots were fired by the mob, before there was any firing from the soldiers?

A. I saw smoke come from behind this watch-box. I thought at the time it was some person. I saw a man there, this man wore a cap, and from where I was standing, I could see him very plainly in looking that way, and I thought he was shooting. I could see the smoke, but there was so much noise, that I could not hear the report of the pistol. I saw two shots fired by this man, immediately in front of me, and before the report of his last shot quit ringing in my ears, the soldiers commenced firing.

Q. Did you hear any command given to the soldiers to fire?

A. I didn't; I stood there for, I suppose, a minute and a half after the mob threw coal, and stones, clubs, and missiles of that kind, at the soldiers, and I was very much afraid that the soldiers wouldn't fire. I was afraid that they were going to lay down their guns, and not fire. I wanted to see them fire. I was afraid they would lay their guns down, and not fire. In fact, I was very glad to hear them commence firing.

Q. What effect did the firing by the soldiers have upon the mob?

A. It scattered that mob quicker than any mob I ever saw scattered before in my life. The first shot that was fired, I thought the ball came pretty close to where I was. I could hear it whistle, and I laid down. The crowd was so that I did not consider it safe to run, and I dropped down on my face right where I was standing, and I laid there until the firing ceased, and when I got up, there was no rioter to be seen anyplace; that is, in that immediate vicinity.

Q. Where did they go to?

A. There was a ditch or a washout; there was a ridge running diagonally down the hill off Twenty-eighth street then, and there was an old water

course alongside of this ridge, in some places that was several feet deep, and they piled in there and laid down on the side of the hill, and behind coal cars and behind houses, and they got just wherever they could.

Q. How long was the crowd in re-assembling.

A. Well. I remained there. This firing occurred shortly after five o'clock in the afternoon—it couldn't have been quarter after five—I think it was hardly that late—five or ten minutes after five o'clock, perhaps—along there—and I remained there on the ground until after six o'clock, and the crowd hadn't re-assembled on the crossing, while I was there. A very large crowd gathered down on Liberty and Twenty-eighth street, down on Penn and Twenty-eighth, and in that neighborhood, there was large crowds of people, but they didn't come to where the soldiers were—kept away from the soldiers. The soldiers, after the firing was over, they threw out a guard line, and took possession of the track, and didn't allow parties to walk up or down the track.

By Mr. Means:

Q. The soldiers had entire control of the track?

A. They had entire control of the track at that time; yes, sir. I came down town and got my supper, and after that I went to Twenty-eighth street. At that time the soldiers were in the round-house, so I was informed.

Q. Was this picket line still out?

A. No; I didn't find any picket. I did not go up the railroad track. I went up Penn street at that time. I was not up on the railroad track, and I could not say whether there was a picket line on the railroad track or not, at that time.

By Mr. Lindsey:

Q. If you were present at any of the efforts made by the railroad company to start their trains, you might state what occurred on Friday and Saturday?

A. On Friday I was up there all day, in the vicinity of Twenty-eighth street—in the neighborhood, back and forward—and I saw a number of engines making steam, and heard, from time to time, that they were going to start trains out, and also heard the railroad strikers say that they couldn't take any trains out. They were not going to permit any trains to go out—any double-headers. I saw no trains go out, that is, no freight trains. Saturday morning I saw a few cars of stock. They came over, I believe, from Allegheny, and were taken out to the stock-yards. There must have been, at least, a couple of hundred men on top of the cars.

Q. What class of men?

A. They appeared to be strikers. I didn't know the men. They appeared to me like railroad men, and a good many of them were strangers to me. The cars were just covered with them—as many as could possibly get on. I recollect that Monkey John Richardson, as they called him, was on the train. I think it was his crowd. He seemed to have control of the party.

Q. It was run by the strikers themselves?

A. I believe that the train was run by the strikers; yes, sir.

J. P. Moore, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the city.

Q. Are you a member of the National Guard?

A. Yes, sir; adjutant general, Sixth division, for the last three years.

Q. Adjutant, Sixth division?

A. Yes, sir.

Q. It is not necessary to go over the whole history; General Pearson has given us a full history. I would like you to state what occurred on Saturday, beginning with the arrival of the Philadelphia troops, and state what came to your knowledge. Give us a full history of what occurred after that time?

A. I accompanied General Pearson with the Philadelphia troops as far as the outer round-house. Upon our arrival there, General Pearson had notice of the displacement of the troops he had posted at three o'clock in the morning.

Q. What troops were those?

A. The Fourteenth and Nineteenth regiments, and Breck's battery. He immediately went to the crossing, and taking Major Evans with us, we went up to Colonel Howard—not seeing General Brown—and inquired the reason of the displacement of the Nineteenth regiment from the position he placed it in in the morning. The general was not satisfied with the answer of Colonel Howard, and returned, and found as we were coming down, that the sheriff was addressing the people, or notifying them to leave the scene. The Nineteenth was in the hospital grounds. On our arrival at Twenty-eighth street, the general directed me to remain with General Brinton, and he went to the telegraph office—Mr. Pitcairn's office—and telegraph communication with the Adjutant General was established. General Brinton then formed the First regiment, one line facing towards the hill and one towards Liberty street, and directed the company in grey uniform, one of which I think was the Weccacoe Legion, and a portion of the Washington Greys, to clear the people from between the ranks. They started on that movement, followed by the two Gatling guns, and went up with the two guns as far as Twenty-eighth street, when they came as far as crossing of Twenty-eighth street. In order to move the crowd back, the Legion endeavored to make a wheel to the left. In making that wheel, the order was given to charge bayonets, and the front rank came to an arms port; the rear rank stepped back about a pace, the crowd being so dense in front of them, that the men in the front rank could not get to the position of charge bayonets. The rear rank kept back about a pace, and they came to the charge.

Q. Who gave the order to charge bayonets?

A. I am not certain whether it was General Matthews or not. I heard General Matthews give the order to load, but I could not say whether it was General Matthews or a company officer that gave the command to charge. At the same instant, a man by the name of Horn, who was about three files from the left of the company, stooped down and passed through the front rank, raised up and struck at General Brinton, and at the same instant a pistol shot was fired either by the man Horn or a man immediately in his rear. Stones were hurled, and one of the men of the—I cannot say whether he belonged to the Greys or the Weccacoe Legion, but it was one of the party that was charging—was struck on the shoulder and knocked against one of the Gatling guns. There had been no firing done by the troops at that time, but the crowd outside were hurling epithets at the soldiers, and asking, "Why don't you shoot, you sons of bitches. Why don't you shoot?"

By Senator Reyburn:

Q. Did they shoot or fire?

A. Some of them said: "Why don't you fire? Why don't you shoot;" and some of them said: "Shoot, you sons of bitches! Why don't you shoot," General Brinton gave the order to cease firing a very few moments afterwards. There was one point I wished to call your attention to—this man of the Weccacoe Legion—and I believe he is the same man Doctor Murdock spoke of yesterday—that man firing his piece three times after instructions; wiping the blood out of his eyes, loaded and fired his piece.

Q. Where was he struck?

A. He was struck about the head, and blood was running down over his face.

Q. Then he wiped the blood out of his eyes and fired his piece afterwards?

A. Yes, sir.

By Mr. Lindsey:

Q. Was the command to fire given by any of the officers?

A. I think it was.

Q. What ones?

A. I could not designate the officer. I heard the word fire so frequently between the parties outside casting their anathemas at the soldiers. As I understood, the order came from an officer; but I could not distinguish which one it was. I heard the order to load very distinctly.

Q. Did you hear the order from an officer to fire?

A. I did so.

By Senator Reyburn:

Q. Which men fired? These men endeavoring to press back the crowd, did they fire? You say they wheeled to clear the crowd off Twenty-eighth street; did they fire into this crowd?

A. I think not, sir.

Q. Where did the firing come from?

A. From the First regiment.

Q. They were standing back by the cars, were they?

A. One line here—it was standing towards Liberty street, and the other facing towards the hill.

Q. The two ranks—the one in front facing to the right, and the rear facing to the left?

A. I think the front rank was facing towards Liberty street. I think they were moved out by the left flank from Union depot.

Q. The front rank would be facing towards the hillside and the rear rank facing towards Liberty street?

A. I think not, sir. They marched left and front. Their proper front would be by left face. They were marched out that way; consequently the front rank would face towards Liberty street.

Q. The other rank would face towards the hill?

A. Yes, sir.

Q. Where did this firing come from—the front rank, facing the hill?

A. The rank facing the hill fired. The first shots that were fired from the front rank were fired towards Liberty street, and they turned round then and commenced firing in another direction, over their heads and through the files of officers, and General Brinton gave the order to cease firing, with Colonel Benson and Major Lazarus. Colonel Stewart, of the Governor's staff, who was then in citizen's clothes at that time, came down and volunteered to assist in anything which was to be done. Major Fife and myself went down the line and assisted in stopping the firing.

Q. Did they fire as if they had been commanded or ordered to fire?

A. The first round or so evidenced that fact to me. Immediately after the firing, I received an order from General Pearson to take one half a regiment of General Loud's brigade. I reported to General Brinton the order on General Loud, and he informed me he had seen General Pearson, and the matter was arranged. I asked him where General Pearson was, and he said he was in Pitcairn's office.

Q. You say General Pearson ordered you to take a portion of the regiment?

A. To the Union depot. I reported to Brinton for an order on General Loud.

By Mr. Larrabee:

Q. Where was General Pearson at the time the firing took place?

A. He was in Pitcairn's office.

Q. He was not present?

A. No, sir; there was no officer of the division at Twenty-eighth street, except myself at the crossing. The cars were taken out for the removal of the Fourteenth and Nineteenth regiments—an order had been issued to that effect. The train was taken out and left about, maybe, one hundred and fifty feet below Twenty-eighth street. Immediately at the end of the train, I left Major Dickson, Captain Denney, of Colonel Guthrie's staff, Major Fife, and Major Stroff. Major Evans went over to the Nineteenth regiment.

By Senator Reyburn:

Q. You say General Pearson was in Pitcairn's office?

A. Yes, sir.

Q. He was not there at all—how far is that from where the firing was?

A. About eleven hundred feet, according to my estimate of it. There was not an officer of the sixth division there except myself.

Q. Then it was impossible for him to have given the order?

A. He did not give any order to fire. General Brinton left immediately after the firing to see General Pearson in answer to an inquiry which was brought by Major Evans to him in regard to the firing. When I received this order I started to report to General Brinton to get the order spoken of a few moments ago, and I met General Brinton at the—going into the office of Mr. Pitcairn, and received from him the information that General Pearson was in Pitcairn's office. The first authentic information that General Pearson had of the firing was what I communicated to him in Pitcairn's office.

Q. What was the reason given for you sending this portion of the regiment—it was not sent anywhere, was it—to the Union depot?

A. There was no reason assigned. It had been arranged not to send that half regiment to the Union depot. I asked for General Pearson, and went to

ascertain the cause of it, and the general said it was not necessary and directed me to remain there. At the request of General Brinton, he was going to bring the Philadelphia troops into the building, and a little after six o'clock they commenced to come in.

James Park, junior, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Will you please give us your residence and business?

A. My residence is Allegheny city. My business is manufacturer of steel and copper.

Q. I wish you to state now, in your own way, what knowledge you have of the riots that occurred in July last, and the efforts made to suppress them?

A. Some days previous to the Saturday when the riot was started, I was aware of the strike on the part of the employés of the Pennsylvania Railroad Company. On Saturday, the 21st of July, I believe it was, I was at the Pennsylvania railroad depot at the time of the arrival of the Pennsylvania regiments——

By Senator Reyburn:

Q. Philadelphia regiments?

A. Philadelphia, I mean, sir. I was there when they disembarked, and during the time they were engaged in taking their lunch. I felt very greatly exercised in reference to the whole matter, fearing that, with the small force of military, in the event of anything that would precipitate firing upon the people, very disastrous consequences might follow. Seeing Mr. Cassatt on the back porch of the hotel building, I went up to him, and cautioned him with some earnestness. I told him that Saturday was an idle day with our workingmen, and I thought I knew the temper of our men pretty well.

Sunday would be an idle day, and it would be great wisdom on his part not to attempt to do anything until the following Monday.

By Mr. Lindsey:

Q. What hour was that?

A. It was about four o'clock, as near as I can recollect.

Q. Before the troops went out?

A. Before they marched out. I told him it was very natural for our home military to feel some sympathy, if it were ever so little, in behalf of those who were termed strikers, and that they ought not to expect to place full dependence upon their efficiency in case of anything like a riot. He referred to the Philadelphia regiment as being composed of men who would not fire over the heads of the mob in case of any mob being started, but I told him that in case of necessity for firing that he ought not to have less than ten thousand men, and that I doubted with that force whether he would be able, in case of firing upon the people, to quell the mob that might be precipitated upon us from the firing of the militia, but at all events not to do anything with less than five thousand men. He said in reply that they must have their property. That if the State authorities will not give them possession of it they will call upon the general Government. He took out his watch and said they had now lost an hour and a half's time, meaning that the military should have been marched from the hotel to the place where the great crowd was congregated an hour and a half before the time which I am speaking of. I left for Allegheny just after talking to Mr. Cassatt, and went to my home on a matter of business—to see my son—and came back, taking the car up Penn avenue, and leaving the car at Thirtieth street. Just as I left the car the volley of firing took place. There was an immense crowd of people on the side of the hill. From the number that fell, I supposed there were a very great many killed, but it turned out afterwards that two thirds who fell had fallen to roll into a ditch that was cut on the other side of the road running up the hill, to save themselves. I thought it strange that the firing took place upon the people on the hillside. I could not see, from

where I stood, what was going on close to the military, but it struck me, I recollect, at that time, as being very strange that the firing should be made about the line of the angle of the slope of the hill. I don't know that I can say anything more on that point. I went to my works, and I found great excitement all over that region of the city. I went to crowds of men, women, and children, warning them to go into their houses, for the reason that a little while before there was a good deal of commotion on Penn avenue, near Twenty-eighth street, and I thought giving evidence that some fighting was going on that might reach up into the neighborhood of these crowds of people, but I found that, with all my efforts, I did not accomplish anything, people still remained, and a great many run in that direction, just as people will. I cannot account for it, but no doubt gentlemen are well aware of the fact, just as I am, that people will do that thoughtlessly. My own son, who was just by my side the moment the firing took place, ran and got probably a hundred feet from me before I checked him. I told him he must not go in that direction at all. He came to his mind in a minute, and said he did not think what he was doing. I state this just to show how easy it is for a crowd of people to congregate where there is any excitement, particularly when the military are about. I went to my residence in Allegheny and heard nothing at all what was going on, supposing everything was quiet, and that there was no disturbance. Nor did I know that there was anything in the way of burning of property until Sunday morning. My partner, Mr. Charles L. Caldwell, came to my house and said he thought I better come to the city; that something ought to be done; that the Pennsylvania railroad property was being destroyed, and there ought to be some effort in the way of getting up organizations to arrest the work of the mob. He told me to go to the Chamber of Commerce; that James I. Bennett and others would meet me there. We repaired to the Chamber of Commerce and found the door closed, and we went to the printing office, and finally stopped at the office of the *Pittsburgh Post*, meeting Mr. Barr and Mr. Wakes, I think it was, and prepared for a meeting that we had bulletined to take place at twelve o'clock at the city hall, on Market street. That meeting was very well attended. A great many people on the way from church noticed the announcement on the bulletin boards, and repaired to the place of meeting. I felt very proud,

on that occasion, of the people of Pittsburgh, and ever since that day, when away from home, I have registered from Pittsburgh, a thing I never did before. I always registered in Europe, and in this country, from Allegheny. Ever since that I have registered from Pittsburgh, and always will do so. I found wealthy men at that meeting, who pledged all that they were worth—not five thousand or ten thousand dollars—but all that they were worth, to put down the mob. John Moorhead, John Harper, John Slagle, and John R. McCuen signed a pledge that they would pay their proportion of all the necessary expenses to check that mob. A committee of twenty-five, I think, was appointed to meet at two or three o'clock at the mayor's office, city hall. This meeting I speak of was at the old city hall. That committee of twenty-five convened and appointed a committee to go to the mob and try to bring it to reason. There were no preparations to do it then, on the part of the citizens, but it was thought that the committee might appeal to them and stay the conflagration and destruction of property. That committee did go there, and went into the midst of the mob, and did appeal to them. I thought that they had about checked the matter, and that the Union depot would be saved, but the committee went from there to meet with some of the men who were on a strike. The committee met a number of them—I was present during all this time, and I know what the committee did, and do not state from hearsay—the committee met quite a number of the railroad men, who were there at that time—the strikers—and found them to express very great regret at the destruction of property. We proposed to them that they would attend an adjourned meeting, at the old city hall, to take place at three o'clock, or half past three o'clock, and proposed that they would organize and assist the citizens in saving the property. They talked very nicely about it, and one of their number—I think two of their number—attended that meeting. He was authorized to get up an organization of those men who were then termed strikers. I was a little too busy for some days to notice, but I believe they did make an effort in that direction. Then this committee of public safety went to work on Monday. I am speaking now of what took place on Sabbath afternoon. On Monday, Pittsburgh was certainly in a very deplorable condition. I noticed that the streets—some of them—particularly Fourth avenue and Third street, were crowded almost from curb to curb

with strangers—not railroad men, because I think I should have recognized, from their appearance, the class of men that work in our work-shops from this crowd. They seemed to be composed of strangers, miners, and others from the neighboring parts here, up and down the river. Of course, the most of that crowd were idlers, men who would be ready to join in almost any destruction of property. They were not, I think, citizens—probably very few of them. Efforts were made by the committee of public safety to get organized. The mayor sent to Washington and got permission to take some of the Government arms. They were brought into the city, and General Negley and others were called in to assist, and, I think, the preparations that were made were done in a very short time, because on Tuesday the city seemed to be entirely quiet, and these crowds started for home. One very large crowd, that came down from the upper Monongahela river, were met by the mayor and General Negley, and many citizens that we organized, some with weapons and arms, and they agreed to go home, and said they had understood that men, women, and children were being shot down by the soldiers from a distance, and they came down to protect them, but they agreed to go home quietly. I believe I have told the story about as near as I can recollect—about all I know of it.

By Mr. Lindsey:

Q. Anything in relation to the Duquesne depot that you know of?

A. At the meeting on Sunday, we started organizations, and were very much pleased to find our young men, particularly, falling into line. I think it could not have been five minutes after the announcement was made, that we wanted all to organize a company to go to the Duquesne depot—fearing that it might be set on fire—I think it was not five minutes after that, that I noticed, I think a hundred, probably, marching right past where I stood. I was presiding at the meeting, and I believe they were led in the wrong direction—they were taken up Third street, I believe—some person took them up to the elevator. Another company that formed—I do not know how many—went down to the Duquesne depot to protect that.

Q. Was any attempt made to destroy the Duquesne depot?

A. I understand there was some arrests there. I was present at the mayor's office when a man was brought in there, and Doctor Dickson and some others testified that he was caught in the act.

By Senator Reyburn:

Q. Do you know anything about the events before the strike, the dispute between the railroad employés and the railroad company—the causes leading to these disturbances?

A. Nothing more than from general information, that it was because of reduction of wages, and that the men thought the reduction was more than they were willing to accept, and that it had eventuated in a strike. I understand from quite a number that they were not committing any violence. Mr. Shinn, vice president of the Allegheny Valley railroad, and Mr. McCargo, superintendent of the Allegheny Valley railroad, said to me just before the arrival of the Philadelphia regiment, that there was no effort made at all by the railroad strikers to prevent the running out of trains. I think I can recollect very nearly Mr. McCargo's words. Says he, "Mr. Park, you or I can get on a locomotive and run out any train, and nobody will disturb a hair of our heads." He then followed that up by saying the difficulty was to get anybody to go on to a locomotive.

Q. To man the train?

A. That understood the moving of a locomotive, and running a train out. After seeing Mr. Cassatt, after this interview with Mr. McCargo, I mentioned that to Mr. Cassatt, and he said their presence intimidated them, and he said they made no act of resistance; but their presence intimidated persons—that the strikers were on the ground or on the road, intimidating persons that would take out trains.

Q. Was any threats made by yourself and other citizens to prevent a collision between the military and the people? You related an interview with Mr. Cassatt. Was there any other threats made by citizens like yourself to prevent a collision?

A. I don't know of anything done in that way. I suppose persons would have felt that they were interfering. I felt a little in that way. When I was advising Mr. Cassatt, I felt that the State, or the railroad company, or one power, was directing that sheriff—somebody was directing the whole movement, and believed for me to give advice on that, probably it was a little premature, or at least Mr. Cassatt might have thought it was uncalled for, and I was greatly in fear that some stone might be thrown or pistol shot, and that the military might fire, and I felt sure the strength was not there if the mob was started—if a mob was precipitated upon the citizens of Pittsburgh, there was not military enough to put it down.

Q. Did you know that the trains had been stopped during Thursday and Friday?

A. Yes; I knew by general rumor, and was told by a great many that the Pennsylvania railroad were not able to operate.

Q. Why didn't you make a suggestion to the railroad officials sooner?

A. I never thought of doing it; but if I had thought of doing it, I would have thought that they might have told me to attend to my business, just as I would have done, if I had any difficulty at my works, and railroad men came to advise me—"you mind your own business, and I will attend to my strikers."

Q. In the suggestions that you made to Mr. Cassatt, did you suggest any plan to preserve the property and prevent its destruction from Saturday until Monday?

A. I said the better way would be to wait. I am not very clear in my recollection. I tried to fix it upon my memory, but it is a little misty just how I put that to Mr. Cassatt; but as near as I can recollect, it was like this—of course, in substance it would be the same—that Saturday was an idle day, and Sunday would be an idle day, and to-night these people would be in their beds and with the force he had—he said, I think, eight hundred men would be expected in momentarily—I said, as near as I can recollect, that to-night these people will be in their beds, and with the force you will have,

take possession of your grounds, but don't attempt to move any train until Monday. I recollect very clearly impressing that upon him, not to move a train until Monday. I knew on Monday all the mills would be running and the men would be at their places, and if there was any little disturbance in the moving of trains, the civil authorities could manage it, even if the military didn't take any part in it.

By Senator Reyburn:

Q. From your knowledge of the kind of people, did you regard it as necessary to call the military to suppress them?

A. No, sir; I didn't. I think it was a mistake, a very serious mistake. I knew that the day police of Pittsburgh had been discharged—that is, most of them, and that the mayor was left with a very small force, but I knew at the same time, that the class of men that was engaged by the railroad companies—they are a pretty intelligent set of men—they can be reasoned with, and if arrangements had been made to have had their ground protected by police, not allowing any one to come up Twenty-sixth or Twenty-eighth streets—done that at night, I don't think there would have been any trouble. I don't think any of those men that were termed strikers—I think they would have hardly violated the law in knocking down police, if the police had said the orders were that nobody was to come. I forgot to say that very soon after the firing, after I had warned these little crowds on Penn street to go into their houses, I went over to my mill—the mills generally stopped about half past three o'clock, sometimes as late as four o'clock, and I found that some of our men had been a good deal excited—one man had rushed into the office, and wanted to know from our time-keeper if his gun was at home. He told him he must not have his gun, must not attempt to go for it, because if he did he would alarm his wife, who was then sick, but he went for, and brought his gun back, and handed it to our time-keeper, and went out in the mill for something, and the time-keeper gave it to our manager, and he took it back in our office, and broke the stock of it, then our time-keeper bet five dollars with this man that he had not a gun, and the gun was brought in, and it was broke up, and this man rejoiced over it, and said he had been making

a fool of himself, he was very glad he had come to his senses, and he didn't take time to reason, nor did, I think, any of these men. Their general life and their education and training has been more or less different from yours or mine. If your son had been in that crowd or your brother, and you had heard he was shot, you would have just done as I would have done, sat down and reasoned whether he had any business to be there, and you would not have run in and shot down Philadelphia soldiers, or any other soldiers. They just heard somebody was killed, and they rushed for arms, all being done on the impulse of the moment, and done in a way that you or I would not have done, because if my son had been there and shot, I would have lamented it terribly, but I would not have gone there with a pistol or gun. I would have reasoned, undoubtedly, as you would have done, that he had no business to be there, or ought to have been home. These men didn't reason in that way.

By Senator Yutzy:

Q. Have you not had quite a number of strikes among the employés in the mills or factories in this vicinity, during the last five or six years?

A. I can call to mind quite a number of them.

Q. You are a manufacturer?

A. Yes, sir.

Q. Employ a large number of men, do you not, sir?

A. Yes, sir.

Q. Have you ever had any strikes in your works?

A. Yes, a number.

Q. Did the strikers attempt to prevent other men from working, that you employed?

A. Not by force. I never knew of any attempt by force. They did it by persuasion. I have twenty odd men out now. My rule is never to take any man into my employ that has ever struck on me. I will keep them from

starving, with money, but not with work. I don't think there is any occasion for a strike. We require notice, and we give notice, and let every man know that if he ever strikes, he never can work for us as long as God spares me on this earth. I will lend him money, or do anything for him, but he will never work for me.

Q. In the different strikes, in your works, was there ever any violence used by the strikers, to prevent men from working, you put in there?

A. I don't recollect of any cases.

Q. Did you ever have any difficulty in getting strikers quiet—dispersed from your works?

A. No, sir; they were always very quiet, and when told to leave—sometimes they were not inclined to go out, and they called to me and I requested them to go, spoke to them mildly about it, and told them that my rules were to be carried out. I did once have to bring in a policeman, but the man was very drunk and did not know what he was doing. I am satisfied that if he had been sober, he would have left the building without calling in a policeman.

Q. You have had strikes in the city where there have been a larger number engaged than in this?

A. Oh, yes; we have had strikes where the aggregate number would have amounted to many more than those engaged at the Pennsylvania Railroad Company's works. We have had ten strikes here.

Q. Was there any violence resulting from them at all?

A. No; I don't recollect only in the case of a strike on the part of the puddlers, probably about twenty-five years or so ago. There was some little trouble at Bailey's mill. They brought on some eastern puddlers, and when they attempted to start the furnaces—it was principally women, the wives of some of the men—they struck them with stones a little, and had some few knock-downs, but they soon quieted.

Q. Have you had any difficulties lately—any violence, that is the last few years?

A. No, sir; none at all.

Q. Have you not had a strike among your puddlers, within the last few years?

A. Yes; about two years and a half or three years ago, and I couldn't employ them again just for the reason that my rules were, that any man that strikes can never work for me again, and I thought, of course, as there were so many idle puddlers at that time, that I would have no trouble in starting up my puddling forge. A puddler came around and says, "I can get men and can start you puddling." Says I, "I would like very much to start." Says he, "I can get up a gang by Monday." Says he, "Did you have any trouble?" Says I, "Yes; they struck." Well, they wouldn't work. That lasted for three or four months, and I concluded that some determination had been agreed upon, that these men that struck, must work for me, and I determined they never would—I determined before we started up. I would lend them money at any time, but they might starve, or their families starve, for want of work. I dedicated that forge to negro labor. My men was a little disposed to interfere by violence with the men who engaged themselves to carry on that work, but I have never known any serious interference with my negro workmen at all. We have had peace and quiet, so far as I can learn, and white puddlers have never molested them at all, and we have had them two or three years.

Q. Still working?

A. Yes; we pay them the same price as white men, because I told them when they came that we would pay them just the same price as white puddlers got in other mills, and we have had to do so.

By Mr. Dewees:

Q. Have you an idea how many employés are employed in the different mills in the cities of Allegheny and Pittsburgh?

A. I guess twenty or twenty-five thousand, probably; that is merely a guess. I would have to think over the number of mills. I suppose something like twenty thousand, and probably more.

By Senator Yutzy:

Q. You are speaking about a strike about twenty or twenty-five years ago. Have you any recollection of the military being called out at that time?

A. I don't recollect of them being called out—they might have been.

Q. At any other time within the last twenty-five years, were the military called out to preserve the peace?

A. I think one time I recollect of them being called out—I think it was at the time of starting the negro puddlers at the bolt company's works. I think then the military was called on; that is about two or three years ago.

Q. Was there any serious opposition to those new men working there?

A. There was some quarreling and knocking down. I think there was nothing very serious.

Q. As a general thing, in strikes among your men here in the mills or manufactories, you think it is bad policy to call out the military to suppress any trouble that might arise from them?

A. Yes; I do so. I think so for the reason that the military would do very well, if they could overawe, but the fear is that somebody would throw a stone, or somebody would fire a pistol, and then they would fire into the citizens. You understand as well as I do, that you put up proclamations and warn people to disperse, and you can go in and talk and plead with them, and still the crowd will be there, and it is almost certain that innocent people will be shot down, if there is any firing.

Q. In your testimony, you state you saw Mr. Cassatt in the rear porch of the Union depot, and advised him not to attempt to move trains on Saturday, as the men in your mills and manufactories were idle on that day—not to

attempt to move trains until Monday—what reply did you get from him to that advice?

A. He said they must have possession of their property. If the State authorities did not give it to them, they would call on the general Government, taking his watch out, and said that they had now lost an hour and a half. That is about as near as I can recollect. The idea was they had lost an hour and a half in moving the Philadelphia regiment up to Twenty-eighth street—up to where the crowd was congregated over their property; that is, the railroad men as a general thing, on their property. I think the citizens were, as a general thing, on the hillside, as near as I can understand it—the most of the citizens, spectators, &c., were up on the hillside—some of them were up as high as the pest-house, on the hill. One young lad was shot there through the wrist—he was in a line with the pest-house.

Q. Were you a member of the citizens' committee waiting on Mr. Cassatt at that time?

A. No, sir. We had no citizens' committee at that time.

Q. Were you a member of the committee that waited on the Governor and the officials of the railroad company, at any time after that, to give him some advice?

A. Yes.

Q. State that?

A. I have forgotten the day. I don't recollect the day he arrived, but I think it was—I don't recollect the day he did arrive—it was some time in the week after the riot.

Q. The latter part of the week?

A. Probably it was; by the way, it was Saturday. I recollect very distinctly, because I spoke of Sunday just about as I did to Mr. Cassatt. Joseph F. Dilworth, Mr. Johnson, and myself were appointed a committee to visit the Governor. We got word to meet him Saturday morning at Thirty-third street,

in a car, and we went up there and met him. I believe I did the first talking, and advised that nothing should be done until Monday to take possession of the ground. He said he was going to do nothing in a hurry—was going to take his time, and move with caution.

Q. Was this the conference with the Governor?

A. With the Governor himself. He said he was not out here in the interest of any railroad, but in the interest of peace, or something to that effect. He left me to understand that he didn't come to look after the Pennsylvania Railroad Company, but to look after the safety of this community. He had an impression that our water-works were stopped, and he did just as he said he would do. He waited quietly and did not do anything at all until Saturday night, until everybody was in bed. He put out pickets along Penn avenue, and up and down the streets, to keep everybody from going on the railroad property, and then commenced to work, and tore up the track and relay. That could have been done before the Governor came.

Q. Could the trains have been run.

A. I think so. I don't think there would have been any disturbance at all. If they had the trains there, they could have taken them out without any disturbance.

Q. In your opinion, from what you know, would there have been any disturbance, if they had attempted to move trains on Saturday or Sunday, when the Governor was here, at the time you had this conference with the Governor?

A. I think there would have been no disturbance—I am satisfied that the men who were designated as railroad strikers, regretted, probably as much as any other set of men, the destruction of the railroad property, and probably they would have been about as ready as any other men to have interfered with any outside people annoying the Pennsylvania Railroad Company in its moving trains. They might not have gone on to the locomotives and moved them themselves, but if any persons could have

been procured to take out the trains, I don't think that the railroad strikers would have interfered.

Q. Would the crowd of people have interfered on that Saturday?

A. I don't think they would have interfered on that Saturday—that was about a week after the riot.

Q. Did I understand you to say you appealed to the Governor not to attempt to move trains on that Saturday?

A. Yes, I did.

Q. Did you think at that time there might be trouble?

A. I think so. I thought it was wise to take time, and do nothing until Monday.

J. Guy McCandles, *sworn*:

By Mr. Lindsey:

Q. State whether you were present at the firing of the militia, on Saturday afternoon?

A. I was.

Q. Go on and state what you saw, and what occurred.

A. I was there the whole of Saturday. Went up Saturday morning, and was there during the day, and was there at the time of the firing, and when the Philadelphia troops came up, and whenever the troops came up, the crowd increased in front of them on Twenty-eighth street, until it was very dense, and there was a company deployed across the street to push them back. They marched up in front, with arms port, and marched up against the crowd, in order to push them back, but it was too dense, they could not do it. They retreated back a step or two, and charged bayonet. I was up on the

hill, about two or three rods up on the hill, so that I could not hear any orders given of anything of that kind—I could only see their movements. I could see all their movements well. They attempted to charge bayonets, walked up slowly, got nearer and closer every moment, until the bayonets began to infringe on the crowd. Then one of the crowd got hold of a bayonet, and tried to pull the musket from the soldier. He jerked it from him, and he then gave him a sort of a push, and knocked him, I do not know which. Right immediately back of them, I saw a man draw out a pistol, and shoot right into the crowd. At the same time, there was two or three other pistol shots heard at different points. Almost simultaneously, we had a scattering fire from the soldiery, directed mostly right up on the hill towards where our troops were lying.

Q. Did you hear any order to fire given?

A. I did not.

Q. How close were you?

A. About three rods off, at least. I could not have heard an order to fire. There was a good deal of noise and confusion.

Q. How many were wounded in the conflict?

A. I really don't know. I saw about fifteen or sixteen that were wounded, around on the hill where we were standing. I saw about that many there. There was one of the soldiers that was killed, shot through the head, twenty or thirty feet off, and when I went to him he was dead—a soldier of the Nineteenth regiment. I thought it was one of our own men. He was dead when we reached him. It was not one of our men, but the Nineteenth regiment, that was lying on our right and front. There was a very heavy volley of stones thrown into the soldiers previous to the fire.

Q. You were surgeon of the Fourteenth?

A. I was surgeon of the Fourteenth regiment.

Q. It was commanded by ——

A. Colonel Gray.

By Senator Yutzy:

Q. Do you know whether this soldier was killed by a shot fired from the mob or not?

A. It was not a pistol shot, I know that from the character of the wound.

By Senator Reyburn:

Q. He was not one of the soldiers who put the mob back?

A. No, sir; he was one of the soldiers on the hill. They were facing towards the hill, and there was a great many of the mob that were there on the side of the hill, between the other soldiers, before us and Twenty-eighth street—a dense mass of them there.

Q. Was he standing in his command?

A. He was away from his command. He was not exactly in the crowd—the crowd was below him.

Q. He was not with his command?

A. Was not standing in rank at the time.

Q. How far away from his command?

A. About a rod from where the command was at the time. There was one or two companies on the hill in the same line with the others, and then two or more—three rods down, in front, near the hospital grounds. Had he been down with his command he would not have been shot—the shooting was higher.

Q. Was he back of his command?

A. As I say, his command was, at the time—some of the companies were—down near the railroad tracks, and there was a couple of companies up to

the right of our regiment, three rods back of them on the hill, and it was between two—he was just between the two.

Q. Was he immediately behind any particular company, close——

A. He was some little distance to the right.

Q. Was he a non-commissioned officer, do you know?

A. No, sir; he was a private.

Doctor John S. Dixon, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. 273 Penn avenue.

Q. Practicing physician?

A. Yes, sir; for ten years, in the city of Pittsburgh.

Q. State what knowledge you have of the riot, and what was done to suppress it?

A. The first part I took in any suppressing the riot—on Sunday I stayed at home, thought I might be needed, and that that was the best place for me. When it got so bad, and the Union depot had been fired, I thought it was my duty to go to the side of the hill to see what I could do there, and somebody proposed, or said, that as the grain elevator had already been set afire, that the next would be the Duquesne depot, and Mr. Bissell and myself and some others—quite a number started. I think he and I were the only ones of our party that got there. We went down to the Duquesne depot, and met a few persons there we knew and a great many we did not know. I do not know who was in sympathy with us or not. After being there some time, and trying to devise means of preventing the depot from being fired, if an

attempt was made, we talked of getting a cable, and shutting off the leading avenues to the depot. There was a man rode up in a buggy and stated there was an attempt to fire the lower end of the depot. We were then at the upper end. We walked down, and there was a party examining a car. I went up and looked into the car, and there was some smoke and embers there, which somebody had scattered before I got there, to prevent it from catching fire. There was a barrel of oil rolled under the car—I do not know for what purpose it was, I suppose to set fire to it, and there was one man in particular by the name of David Carney or Carter. He was arrested afterwards; he was ringleader. I talked to him, and tried to persuade him not to do anything of the kind. He said he had been up all day at the fire above, and that he was one of the advance to set fire to the Duquesne depot. I asked him where he was from. He told me he was first an engineer on the Oil City railroad, and then he said he was from Ohio, then he told me he was from Greene county. He was so drunk and so excited and wild, with the burning, that he didn't know what he was talking about. He was bound to do mischief, and we talked to him one after the other, trying to persuade him, while one was holding him in control, and the party, the rest of the gentlemen, were interested in protecting the depot. They talked to a crowd, trying to persuade the people that lived there, if the Duquesne depot was fired, the whole lower part of the town would be burned, that the fire department were trying to save property on Wilder street on the hill, and that there would be several squares of valuable property destroyed if this depot was set on fire, as it is a mere shell, an old frame building, and very large. This man who was a ringleader of them, he said he didn't care a damn; he said that the property holders would have to pay for it, and the rich would have to pay for it, and he was a friend of the workingman. I told him if he would burn this property the working people, so many of them, would be burned out of house and home. He said there would be good come of it, at any rate, and that he was bound to burn that, and that they would burn the Connellsville depot, and that they would burn the bridges, and then they didn't care a damn what became of the rest of the town. I told him he had better not do that, that it was a very bad thing to do. Mr. Bissell told him, to try and keep him under control, that he had sent for policemen. The

policemen came and I made information against him, and as soon as a couple of policemen nabbed him he wilted right away. He was very willing to be marched off to the lock-up. In his testimony at court, he said that he had arrived in the city Saturday afternoon, at two o'clock, from the oil regions, that he had been working that summer on his father's farm, some place up there, I have forgotten where he said—at some place, Parker, Oil City—had been working there during the summer, and heard there was going to be some fun down in Harrisburg, and he was coming down to have some of it, and that he had gotten drunk and didn't know what he was doing—that was according to his own testimony in the criminal court. He was convicted, I believe, for something like four years, that was about the total of my experience. I made an information against him.

Q. How did you learn his name?

A. I asked his name at the time, and he told me. He gave me two or three names, but his right name is either Carney or Carter. He gave one four or five days afterwards, at municipal hall, and at first he denied that he was the man at all—he never had seen me. Said he had been arrested on the south side for drunkenness, but he was recognized by Bissell and others, and he owned up he had been there. His name is Carney *alias* Carter.

Alexander King, *sworn*:

By Mr. Lindsey:

Q. Where do you live?

A. Pittsburgh, Nineteenth ward.

Q. What is your business here?

A. Merchant.

Q. In what kind of mercantile business are you engaged?

A. In glass material. I am not doing much now—winding up.

Q. Employ a large number of men?

A. No, sir; we have only two. I have been manufacturing heretofore, and have had quite a lot of them in a glass manufactory.

Q. You may go on and state what you desire to on the subject?

A. I noticed a few days ago, in an evening paper, a statement made by Sheriff Fife, or said to have been by him—of course, I do not know, I only read it in the papers—that I had offered the rioters a thousand barrels of flour.

Q. That was in Sheriff Fife's statement?

A. You gentlemen know, of course, what he did say. It was in the evening papers. It is altogether unfounded; it was neither flour nor money, nor have I ever offered nor paid one cent, or spoken to anybody on the subject. It is utterly without foundation.

Q. What you desire is to correct——

A. Any impression of that kind.

Q. And if such statements were made by the crowd, they were made without authority?

A. Yes, sir.

By Mr. Means:

Q. Was it not an assertion made here that that was the strikers this side, not the rioters?

A. The strikers. The crowd there claimed that the citizens were in sympathy with them, and they, too, had offered them a thousand barrels of flour. I think that was mentioned in the *Chronicle*. I should just say, I had never

seen one of the strikers or rioters until I saw one of them in July—that is the first I ever saw any of them.

C. L. Jackson, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. 202 Juniata street, Allegheny.

Q. What is your business?

A. Engineer of the Fort Wayne railroad.

Q. Were you an engineer of that road in July last?

A. I was.

Q. State, Mr. Jackson, whether you had any knowledge of any pre-arranged plan among the railroad employés to strike?

A. I had not.

Q. Before the day of the 19th of July?

A. I had not. The first time I heard of it I came in in the evening at nine-twenty, Friday evening. I heard that they were stopping the trains from coming out.

Q. You came in from the west on Friday evening?

A. Yes, sir.

Q. That was the first you knew anything about it?

A. Yes, sir.

Q. Did you know anything about the organization of the Trainmen's Union?

A. Yes, sir.

Q. For what class of employés was that organized?

A. Brakesmen and firemen.

Q. Conductors?

A. Conductors.

Q. Engineers, too?

A. Engineers, I think.

Q. What was the purpose and object of that union?

A. Indeed, I could not say.

Q. Were you connected with it?

A. No, sir.

Q. Don't belong to it?

A. No, sir.

Q. Had you any talk with men that did belong to it?

A. No, sir.

Q. Were you solicited by other employés to join it?

A. Yes; I was asked to join it.

Q. What reasons did they give—what inducements did they hold out for your joining it?

A. Indeed, I hardly know what they were.

Q. Who asked you to join it?

A. Conductors.

Q. What persons?

A. Indeed, I could not say.

Q. Conductors asked you to join it?

A. Yes, sir.

Q. What did they say was the object of the union?

A. They did not say.

Q. Didn't they give you any object?

A. Didn't give me any information.

By Mr. Larrabee:

Q. Did they say to you how much advantage it would be to you to join it?

A. No, sir.

By Mr. Lindsey:

Q. Was it secret?

A. Yes; I believe it was.

Q. You know how extensive it was?

A. No, sir; I do not.

Q. Don't you know how many lodges there were organized?

A. Lodges organized all over the country, I think.

Q. You say you knew nothing of any pre-arranged plan for a strike?

A. No, sir.

Q. Did you go out again after coming in on Friday night?

A. No, sir; not until after it was settled.

Q. And remained in the city of Allegheny all the time?

A. Yes, sir; I was over Sunday afternoon.

Q. Were you over Saturday to Pittsburgh?

A. I came over Saturday about two-thirty, or near two-thirty to three o'clock.

Q. Where did you go Friday night?

A. During the night I stayed in about two squares of home—Washington avenue, there.

Q. With the crowd?

A. There was a crowd around there. There was not very many.

Q. What class of men—railroad employés?

A. There was very few railroad men there.

Q. What were you staying there for?

A. I thought it was best to stay there. I heard of the trouble over in the city here, and I thought I would not come over, and that the best place to stay was at home.

Q. You were not at home?

A. Within two squares of home.

Q. How many men were there with you?

A. I suppose the forepart of the evening there was a good many men around there.

Q. How many would you judge?

A. I suppose maybe fifty or hundred; but they scattered away.

Q. All railroad men?

A. No, sir.

Q. What other men were there, besides railroad employés?

A. There was men that lived around there.

Q. And you remained there all night?

A. I remained there. I stayed there until about two o'clock in the morning.

Q. What was the object of that meeting?

A. There was no meeting.

Q. About fifty of you together. Would not you call that a meeting?

A. There was only two or three of us at seven or eight o'clock.

Q. What was the purposes or the objects of the coming there?

A. The men were just waiting. They saw the fire over at Pittsburgh.

Q. Was there any fire Friday night?

A. This was Saturday night.

Q. Friday night, you said?

A. I went right home Friday night.

Q. And stayed at home?

A. Yes, sir.

Q. Then it was Saturday night you spoke of the coming there?

A. Yes, sir.

Q. Sunday morning, where were you?

A. I did not get up at all until about ten o'clock.

Q. What time did you come over to the depot?

A. I came over about half-past two.

Q. How long did you remain at Union depot?

A. About ten or fifteen minutes.

Q. Did you come up to Twenty-fifth street?

A. No, sir.

Q. Where did you go from Union depot?

A. I came down Smithfield street, and went over the bridge to Allegheny again.

Q. You remained with this crowd until two o'clock, that you have spoken of?

A. Yes, sir.

Q. Where were you during the day on Sunday?

A. Sunday night came over to the city, between one and two o'clock on Sunday.

Q. Go up to the ground?

A. I was over at the Union depot. I was up on the hill side.

Q. How large a crowd was engaged in burning and plundering?

A. I do not know. I could see eighteen or twenty in the crowd.

Q. Did you see any railroad men among them?

A. I did not see a railroad man.

Q. Did you know any of the men?

A. I know some of them.

Q. Who were they?

A. I thought you asked me if I knew any of the railroad men—no, I did not know the men there.

Q. Did you know any of the men you saw there?

A. No.

Q. How long have you been working on the railroad?

A. About seventeen years.

Q. Then you knew most of the men who were working on railroads leading out of Pittsburgh, did you not?

A. I did not know a very few of them, except on our own road.

Q. Except on the Fort Wayne road?

A. I have stopped right there.

Q. You know nothing of any pre-arranged plan among the men for a strike?

A. No, sir; I did not.

Q. You belong to the Engineers' Brotherhood?

A. Yes, sir.

Q. Was there anything talked of in that organization of strikes?

A. No, sir; there was not.

Q. Was there anything communicated from the Trainmen's Union to the Engineers' Brotherhood of a strike?

A. Not that I know of.

Q. If you know anything of the origin or the cause of the strike, I wish you to state it to us fully?

A. All I know about it, is the reduction of the wages ten per cent.

Q. That you think was the cause of it?

A. Yes, sir.

Q. Was there any order on the Fort Wayne road for running double-headers?

A. No, sir.

Q. Then the only thing that they had to complain of on the Fort Wayne and Chicago road, was the ten per cent. reduction, was it?

A. Yes, sir.

Q. When did that take effect?

A. I think it was on the 1st of July. I could not say certain.

By Mr. Means:

Q. Was there a necessity to run double-headers on the Fort Wayne and Chicago road, if they want to do it?

A. I do not know. I guess there is about as much necessity as there is on the Central road, if they wanted to do it.

By Senator Yutzy:

Q. Are double-headers used as a general thing where there are heavy grades?

A. Not on our road, there ain't.

Q. You have no very heavy grades on the Fort Wayne road?

A. We pull seventeen cars as our load.

Q. Don't you know, as a railroad man, that double-headers are used generally on heavy grades, if at all?

A. I know they are used on the Pennsylvania road.

By Mr. Lindsey:

Q. Were there any other complaints or grievances by the men of that road?

A. Indeed, I can't say that there was.

Q. Have you ever heard?

A. No, sir.

By Senator Yutzy:

Q. Is there any other secret organization of railroad men, besides the Engineers' Brotherhood, that you know of?

A. No, sir.

Q. Are you at liberty to state the object of the Engineers' Brotherhood?

A. It is a more beneficial thing than anything else.

Q. The object of that association is not to control railroad companies, is it?

A. No, sir.

Q. Simply for their own benefit?

A. Benefit; yes, sir.

Q. During the trouble at the outer depot, or on the Fort Wayne, did you know of any armed force of railroad men that were prepared to protect any trains from coming into the city of Pittsburgh that had troops on?

A. I know there was a lot of them went to get some guns. Went down to the lower end of the yard.

Q. Railroad men?

A. I could say I did not see that. I saw a crowd about two squares off from our house. I could see them move down the track. I understood afterwards that was who they were.

Q. In your conversation with railroad men of the Pennsylvania Central, did you learn what their grievances were?

A. No; not particularly.

Q. Did they not complain of double-headers?

A. Yes; I believe there was a complaint of double-headers.

Q. Anything else?

A. Indeed, I could not say that there was.

Q. On your road it was on account of reduction of wages, was it, that they struck?

A. I think that is what it was.

Q. Are you acquainted with Bob Ammon?

A. Yes, sir.

Q. Did you receive any orders from him?

A. No, sir.

Q. During the strike?

A. Never saw him during the strike.

Q. Did you assist the railroad men in protecting the property of the company?

A. I did, sir.

Q. Help to guard it?

A. Yes, sir.

Q. Against the mob?

A. Yes, sir.

Q. Was there any violence used to prevent the running of trains that you know of?

A. Not as I know of.

Q. No threats made?

A. No, sir; I didn't hear any.

Q. Were you on duty during the riots—were you at work, or did you run your engines during the troubles?

A. I would if they had wanted me to.

Q. If the company wanted you to?

A. Yes, sir.

Q. Did you assist the strikers in running the cars down out of danger?

A. I was over at the city the afternoon they were taken out.

Q. Take any of the cars out yourself?

A. No, sir.

Q. Did you run any engine during that time—from Thursday until Monday?

A. No, sir.

Q. Were you called on by the railroad officials?

A. No, sir.

Q. Or by Bob Ammon?

A. No, sir.

Q. You are still in the employment of the road?

A. Yes, sir.

At this point the committee adjourned until three o'clock, this afternoon.

PITTSBURGH, *Saturday, February 23, 1878.*

The committee met at three o'clock, pursuant to adjournment, Mr. Lindsey in the chair. All members present.

William W. Thompson, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. Fourth ward, Pittsburgh.

Q. What is your business?

A. Attorney.

Q. State, Mr. Thompson, what knowledge you have of the riots and means taken to suppress—I do not know the fact that you are called to prove particularly, but go on and state it?

A. I just say this: That during the time of the riots, I was chairman of the police committee of the city of Pittsburgh, and that on the evening of Saturday, the 21st of July, I was up at city hall. The mayor had called a special meeting in order to enable him to employ additional police, and he employed the policemen round about the city hall at that time to deliver the notices, and we had a meeting on Sunday morning, at ten o'clock, and authorized the mayor to employ as many additional policemen as he deemed necessary for the emergency. That was all that the police committee had authority to stop.

Q. What time was that meeting?

A. On Sunday, the 22d of July, at ten o'clock.

Q. You then authorized him to employ as many police as he deemed necessary?

A. Yes; for the emergency that was all we could do. Afterwards that evening I was at city hall, and Colonel Howard—I do not remember the number of his regiment—

Q. The Nineteenth, I believe?

A. I think it was the Nineteenth—asked me to call a meeting of the councils. At that time, on account of the absence of Negley, I was president of common council, and at his instance I called a meeting of the common council, and also issued a call, in the name of Mr. Aiken, president of the select council, for a meeting of the select council the next morning at ten o'clock, for the meeting to authorize the payment of any expenses that might be necessary for the purpose of suppressing the riot. We had a meeting next morning, at ten o'clock, and authorized the payment of whatever expenses were necessary for that purpose.

Q. Did the mayor increase his police force after that, to your knowledge?

A. I know before that time the policemen had been reduced, on account of want of appropriation—had been reduced one half—and he sent out notices for all the discharged policemen to come in and be sworn in as additional policemen. That was Saturday, and on Sunday morning there were some of them there, but not many of them. There were a good many of the police refused to serve on account of being employed for an emergency. They said if they were to be employed for the balance of the year they would serve, but if they were to be employed for a few days, to go into this fight, they would not act. That evening—that Sunday evening—there were several residents down in the Fourth ward, in the neighborhood of the Duquesne depot, employed a force to guard the Duquesne depot there that night. It was said there was going to be an attack on it, and they had a guard around it to protect it that night—to prevent the rioters from setting it on fire. There were two men arrested for making an attempt to burn it. I believe they were tried and convicted afterwards for attempted arson.

Q. Was there any disposition on the part of either branch to employ all the force required in the city to suppress the riot?

A. That whole matter rested with the police committee, and the vote of the police committee was unanimous authorizing the mayor to employ as many men as he deemed necessary. There was no opposition. We held a joint session Monday morning for the purpose of authorizing the payment of all expenses necessary for that purpose. My recollection for that purpose has been paid without any objection that I know of.

E. P. Jones, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. In the Thirteenth ward, Pittsburgh.

Q. What is your business?

A. Attorney.

Q. I do not know the fact you are called upon to prove, but if you will just go on and state it——

A. I hardly know myself. I saw a good deal of the riot, but I think some one mentioned to me that it was with reference to the circumstances that I saw Saturday night. I rode past the round-house between nine and ten o'clock, on Saturday night.

Q. What time?

A. Between nine and ten o'clock. When I got to the round-house, and was just passing it, there was a two horse carriage drove up. It stopped, or was stopped, just when I was there, and they had something in the carriage that they delivered to the crowd, taking the articles from under the seats, and as soon as they delivered them to the crowd, the whole crowd burst in one

applause and hurrah. I presume, too, without knowing the fact—I did not see the articles—but I thought they were ammunition and arms. I went on, after that. There was a great crowd of people there, and I rode by way of Liberty street from that point down to the depot. Every avenue leading on Liberty street, and to the round-house, were crowded with people going that way. They were all in a great hurry.

By Senator Reyburn:

Q. You did not see what was in the carriage?

A. No; I could not say that I saw the articles, positively. I happened to mention that circumstance, and some one——

Q. Did you hear in the crowd anything expressive of what it was?

A. Nothing but applause. They received whatever there was there, with great applause and excitement. I saw the burning on Sunday.

Q. Do you know who drove the carriage?

A. No, sir; the driver was sitting up in one of those high sitting carriages—a two horse carriage. It stopped right at the round-house, in the midst of the crowd, and the articles, whatever they were, were delivered.

By Mr. Lindsey:

Q. Did you know the carriage?

A. No, sir; it appeared to be a hired carriage. I am satisfied of that.

Q. Belonging to——

A. I would take it that it was one of those livery stable rigs.

Q. A hack?

A. Yes, one of those carriages. It was not a private carriage. I do not know any other facts.

By Senator Yutzy:

Q. Where were you during Sunday, during the burning of the property there and rioting?

A. I was on the hill—I was on Grant street, and different places during the day. Went to church in the morning, and then in the afternoon I was among the rioters.

Q. Were you near the scene of the riot?

A. Yes, sir.

Q. What kind of people appeared to be engaged in this riot?

A. They appeared to be foreigners, and I must say that looking at them, and being among them, I could not recognize one face.

Q. You speak of foreigners. You mean not living in this vicinity?

A. Yes, sir; and I saw some Germans, but the burners were Irish—a few negroes, but very few.

Q. Did you have any conversation with many of those people?

A. Yes; talked with them some.

Q. Did you remonstrate with any of them for the rioting?

A. Yes; talked of the impropriety of what they were doing. I was stationed at the last part of the riot at Grant street, when the elevator was burning. There were a great many there. I had some talk with people there. I was struck by one—it was an Irishman that struck me.

Q. How did it happen—how did he come to strike you?

A. I was just in the street there, and he struck me.

Q. Without any provocation?

A. Without any provocation at all.

Q. What did he say?

A. He damned me.

Q. Give any reasons for striking you?

A. No reasons at all.

Q. Was it for remonstrating with him?

A. No; I was not talking with him. I was standing in the street, talking to another man, and he came along, and I believe he jostled against somebody, and his hat went off, and I heard him command some one to take up his hat, and I paid no attention to it. The gent I was talking to, said we had better get away from here. He stepped in the street and went away, and this fellow made a pitch at me, and struck me.

Q. Without assigning any reason?

A. He says, "Damn you, pick up that hat, or I will make you do it."

Q. Did you pick it up?

A. No; I did not. After he struck me, I knocked him down, and kicked him twice. I struck him. Knocked him down, and kicked him twice, and wheeled right in the crowd and remained there, and did not go away.

Henry Warner, *sworn*:

By Mr. Lindsey:

Q. State your residence?

A. Allegheny City.

Q. And official position?

A. Comptroller of Allegheny City.

Q. You may just go on and state the facts.

A. My testimony will bear entirely on the restoration of order and closing scenes of the riot. I will state that on Saturday, the day the riot broke out, I left my office here, at fifteen minutes after five o'clock in the evening, and took the train to a place I was boarding at, in the country, with my family. I did not hear before I left the office, nor hear on the train, one word of any disturbance that had taken place on the Pennsylvania railroad. I knew that there had been a strike. I knew that the trains were prevented from running by the strikers, but I did not know of any overt act of violence having been committed, either by the public authorities or the strikers. There is no telegraphic communication with the place I was boarding at, and on Sabbath day, late in the day, rumors commenced to circulate throughout the country of the scenes that were occurring in the city, and when the night was pretty far advanced, the light from the burning could be seen at that distance, over twelve miles—the glare in the sky. I made arrangements with some persons, thinking that, probably, the train might be detained at Little Washington, and not come in. I made arrangements to come with some other gentlemen by private conveyance, but the train came along that day, and I arrived at my office on Monday at half past eight o'clock. The first message I received was from Mayor McCarthy to come to his office without delay, and I took one of the county commissioners and started for his office. I had no opportunity of learning the extent of the disaster that had occurred. I met him on the corner of Fifth and Smithfield. He appeared to me to have been coming up in this direction. As soon as he saw me, he hallooed me, and said that the Philadelphia military had been driven from the city, and had taken refuge at the Allegheny county work-house, and the authorities had refused to provide them with victuals, and requested me to order the authorities at the work-house to provide the soldiers with something to eat. Mr. Begard and I—Mr. Begard is the county commissioner—started for the Western Union telegraph office, and at my request, the telegraph company put one of their lines—gave me the use of one of their lines to communicate as long and much as I wished. The nearest telegraph station to the work-house was a mile and a half away from the work-house. The operator tried his line, and found that they were down,

and reported the fact, and stated, that probably if I would go to Allegheny City, and the West Penn station, that probably I would get communication there. I went over to the West Penn station, and the proprietor there tried the lines also, and his lines were down—could not get any communication. He then advised me to go to the transfer station of the West Penn railroad, about three quarters of a mile out, and probably I could get communication there. When I went out there, we got telegraphic communication, and discovered that the soldiers were all loaded on cars, and were then on their way to Blairsville. On my return to the Allegheny depot, I met one of the soldiers of the Philadelphia command, who had straggled away from his regiment, and who was in citizen's dress. Some citizens called my attention to the man, and said that he was eager for protection, that he was in fear of personal danger, and they requested that I would take charge of him and do something for him. I told him the circumstances, where his command had been shipped to, and went to one of the officials of the West Penn railroad, and got him transportation on the first line that left the depot. I took a card out of my pocket, and directed it to the commanding officer, requesting him to come back with his command to the work-house, and that he would be provisioned there and be taken care of. I don't know whether that note ever reached the commanding officer or not. It certainly had no effect. That and the meeting of the committee of safety, in Pittsburgh, on Monday afternoon, in which they requested the prompt coöperation of the county authorities, and especially the use of the means under our control, and restore order, was my first day's work. On Tuesday, at the request of the committee of public safety, I went to Colonel Howe, superintendent Western Union Telegraph Company, and requested him to send a man to Claremont to put the work-house in telegraphic communication with the city, as there were very serious rumors prevailing that the coopers, who were much opposed, in this vicinity, to prison labor, were about to assault the work-house, and probably destroy it. Colonel Rowe did so. He sent his men there, and in less than two hours I had a dispatch from the superintendent of the work-house. The dispatch was to the effect that I should send him out arms and ammunition. Senator McNeil was then in the city, and he and I got a buggy, and went out to the arsenal, stated our case to the commandant of the

Allegheny arsenal, and he told us he had authority to issue five hundred stand of arms from the Secretary of War—authority from the Secretary of War to issue five hundred stand of arms to the mayor of Allegheny City. As the mayor of Allegheny had only drawn four hundred, he had one hundred left, and suggested that we should get an order for the balance. We took a flour wagon over to the arsenal. The mayor of Allegheny told McNeil, and some citizens also told us, that we could not possibly get away from the arsenal with arms and ammunition, as we should be watched, and that all avenues leading to and from the city were carefully guarded by the rioters. We got one hundred stand of arms from the arsenal, five thousand rounds of ammunition, and loaded it in our flour wagon, and, with a single driver, and McNeil and myself in the buggy, took them to the Allegheny work-house, a distance of eight miles, by country roads. We were not misled nor questioned by any person. At the time we left the arsenal, the commandant showed us out a private entrance. I might state here that the superintendent of the work-house proposed to defend that institution with the employés of the institution, and with some trusty criminals that he had in charge. He thought that if he had the arms and ammunition he would be perfectly safe. We remained all night at the work-house, and on Wednesday morning instructed the sheriff of the county—the county commissioner and myself, instructed the sheriff of the county, in view of the fact that the railroad officials had appeared to have abandoned their property entirely, to immediately throw a guard of men of not less than one hundred around all the burned district to protect what remaining property was on the ground, scrap iron, &c., and it was rumored that a car load of bullion had been melted and run into the debris, and the sheriff immediately did so. We also called into our aid—although we were advised that it was out of our jurisdiction—that is, there appeared to be no person to undertake these things—we called into our aid the county detective, and instructed him to employ as many detectives, and as many wagons as he could possibly use, and to hunt for and restore the stolen property that had been taken away, and to bring it to a warehouse that we rented on Liberty street—a large warehouse for the purpose, and also put notices—had notices inserted in all the papers, morning and evening, directing any persons who had any

property in their possession that had been taken during the riot to deliver it to those detectives, or at that warehouse. A very large amount of property was recovered—property of all descriptions, and under an arrangement with the officials of the Pennsylvania Railroad Company, as this property was nearly all theirs and taken from their cars, they were delivered over to the officials of the railroad company, and their receipts were taken for the same. That covers a period of probably two weeks, and various instances happened in regard to that property that would scarcely be necessary for me to repeat. Some of them were very curious. A great deal of the property was voluntarily brought back, and the excuse was given that, as it seemed to be a general thing, and as every person was taking property, thought that that property, a barrel of flour, or a ham, or box of cigars, or whatever it may be, might as well be taken by them as be lost. I had a conversation with the president of the Pennsylvania Railroad Company a few days after that—Colonel Thomas A. Scott—and an arrangement was entered into in regard to those losses—in regard to an account being taken of them, and to have them as definitely settled as possible. The county commissioners and myself appointed a commission, composed of the fire marshal of Allegheny county, and Robert Thorn, an experienced insurance adjuster, and Mr. Trimble, an experienced carpenter, to go upon the ground and thoroughly investigate any claims for loss or damage, which they did, and I have in my office now over one hundred and sixty-nine adjusted claims; that is, claims that were settled—the amount settled by this commission. Colonel Scott was to investigate the losses of freights, which would take a very considerable time, and obtain such proofs as were in the possession of the railroad company in regard to the losses; and the estimated value of the goods that were returned to the Pennsylvania Railroad Company could not have been much short of sixty thousand dollars, at first cost—the cost to the owners. They were disposed of by auction, many of them being broken packages, and much of the goods being such as would spoil by being kept on hand. We also appointed a commission, composed of three experienced locomotive and car builders, to go upon the ground and carefully estimate the damage that was done to locomotives and cars. I have also that report on file in my office; and after a period of about four weeks we suspended, as

the civil officers—as the financial officers really had no jurisdiction in those matters—suspended all operations in that line, and handed it over to the civil authorities of the county. I may say here, in addition to that, that we considered, as financial officers of the county, that no expense should be spared nor efforts spared to make restitution, and return all the property it was possible to get hold of. A great deal of property was returned to private individuals, besides that that was returned to the railroad company.

By Mr. Lindsey:

Q. What was the amount of losses adjusted by the two commissions?

A. The amount that was adjusted of strictly private property, that has been finished by the fire marshall's commission, as we call it, has been fixed at about \$160,000, in round figures. The locomotive engineers' report——

By Senator Reyburn:

Q. Let me understand. What do you mean by strictly private property, does that include furniture?

A. No; that includes houses that were burned, and furniture destroyed.

Q. Any railroad property?

A. No railroad property. I will also state that there was some claims of that nature, that the parties who had the claims refused to present them to the commission, and have them adjusted by the commission. A notable instance of that kind is the Pittsburgh elevator. Their claim for loss is above, I believe, \$200,000, alone. Some person will come along with a claim for a suit of clothes, or something of that kind, that was lost in a hotel, or in some house. The commissions reported in regard to locomotive property—railroad property. I considered it private, and have not given the figures to the public.

Q. Have you any estimate of the loss of freight?

A. We have no authentic estimate. I wrote to Colonel Scott in regard to that before I published my annual report, and got no reply, but I understood that the matter was in the hands of a gentleman in Altoona, who had not got through with it. I want to impress the committee with the fact that every effort was made to make restitution.

James Little, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. Twenty-first ward, city of Pittsburgh.

Q. What is your business?

A. Wholesale liquor.

Q. I believe you are called to give us some information as to what was done to suppress the riot on Sunday night?

A. The trouble is to know where to begin and not detain you with unnecessary ideas. I came in on Sabbath morning, when I heard of it. As I came down street, William Smith, the pipeman, proposed we would hold a meeting, and I went down street, and as I went down every prominent man I met I announced it to them, and went on down at the meeting—down at the old market-house.

Q. Citizens' meeting?

A. Citizens' meeting, Sunday. When the meeting was called to order, James Parke was called to the chair, and he assumed to run the whole meeting. He didn't want any one else to speak but himself, and he had been managing the strikers for twenty-five years, and cut me out entirely, and I felt, perhaps, a little personal disgust with how it was managed. I went up to the depot. Citizens came to me and pleaded with me to take part. I went among

the railroad men I knew, and asked, Where are the leaders—where is the man that has this thing in charge, where can we go to get parties to prevail on them to stop? They would say, That man over there, pointing to some man; and the first answer he would give would be a rebuff, very harsh generally. I would tell them, That is no use—I don't want to be treated in that way. This thing is disgracing and injuring you and all of us. I treated them as railroad men. Railroad men would send me to those parties. They were invariably strangers. Those that took command were men that were not known here—that is, gave the hints to stand along and managed the guards that were keeping the citizens back that were interfering with them firing the cars.

Q. Railroad men seemed to know who they were?

A. Railroad men knew who they were. At first they denied me any conversation, then I would get and talk with them, and after awhile they would say. So far as I am concerned we will consent to have the thing stopped. Then here was a crowd that I did see some among—I knew the faces of a large number—that would not permit the fire to stop. Told them to burn, apparently, through spite they had of the employers. About the time the fire got round to Seventh street, they had exhausted the line of railroad there—it goes into the tunnel—and we heard the remark, "Now for the point depot." They were quite drunk. There was a car of whisky behind the elevator—they had broken open the car—high wines—and it was perhaps the saving of any further destruction—had made them dead drunk. We gathered up five or six and started with them, explaining to them what districts would be burned, if they didn't furnish assistance. One or two men set fire to cars and in a short time we prevailed on the citizens. I made a speech on a barrel, and we found we had backing enough to call in the police officers and have one of the men arrested, and to stop the riot there. They made declarations that have come before the courts here—that the attorney who has been attending to these courts will recollect—how they were going to proceed to burn the railroad property on the south side.

By Senator Reyburn:

Q. Did these men tell you how they were going to proceed?

A. They said they would not stop until they would burn the cars that were standing on the south side, and the different depots—they were going to burn these depots, and so forth. Some of them made remarks, and some of them did not, on that question. I was treated with perfect respect—announced myself, and we discussed it there. I was one of those unfortunate men that thought I could stop that riot with fifty men.

Q. You mean by remonstrances?

A. By talking, not by force.

Q. Pick handle persuasion?

A. No; white handkerchief. Go right at it, and when a man won't submit to be arrested, try to put him out of the way; if we had to hurt him, hurt him. I served a short time in the military, and we done things very quick in that way there. We would try to handle men gently, and if he would not submit, he was handled roughly.

By Mr. Englebert:

Q. What you would call knock down arguments?

A. There was no chance for white handkerchief nor pick handle arguments there. The crowd was too close.

By Senator Yutzy:

Q. Could you have quelled the disturbance without the use of fire arms?

A. No, sir; not at all. Perhaps, without the use of them. I would think that, if they had seen men determined to do their work, there would be no necessity for any trouble.

Q. The idea was to be prepared, in case there was a necessity for using fire arms.

A. I, unfortunately, employed in the army, on police duty, through the country, and would arrest many a man who shot a dozen, and you come at them quietly and determined, and they would surrender.

Q. You thought it was necessary to use a show of force and resolution?

A. Yes; and I consider State officers and all were interested by "don't hurt anybody," that that idea got through the crowd, and they were confident that there was nobody going to be hurt.

Q. Do you know of anybody waiting upon the city authorities?

A. I was not connected with that part. I had connection with the mayor's proceeding, to some extent, as a councilor.

By Mr. Larrabee:

Q. What efforts did he make?

A. He sent for some of the leading councilmen, and called a meeting of the council, and we met in general session, and resolved that we would sustain the mayor in paying any expense that he would incur.

Q. When was that?

A. I think on Monday.

Q. After the riot?

A. They supposed the riot was still unquelled.

Q. What I mean is, before the breaking out of the riot—before Saturday night—during Thursday and Friday—was there any steps taken before any consultations with the councilmen?

A. There was, to some extent, but in the shape of a meeting of council.

Q. Was there any talk about calling a meeting, and it would be necessary to take means to suppress any disturbance that might grow out of it?

A. There was, up to the time the county and the military took hold. Then it looked as if the force was immense to a great many—the military force being called out—they had called on them, and the exertions, perhaps, relaxed on the part of the city authorities.

Q. What seemed to animate these men among this crowd?

A. These men that stood back and threatened to shoot any man that would interfere—was a man that appeared to be animated by a spirit of opposition to the railroad—to burn out the railroad—and those that were doing the burning were parties that apparently acted under this direction and were generally strangers that none of us could recognize. On the other hand, it was citizens of Harrisburg that was generally doing the wrecking and carrying away goods. That is as near as I can judge from my connection with them, and I mingled right among them.

Q. Were you among them there Thursday or Friday—have you any knowledge?

A. The first that surprised me in the transactions—I went up to the Union depot on—I think it was Saturday, and the military there—some of the companies—were marched out to go to East Liberty, and instead of ridding the crowd away, they bundled through the crowd, so that they could hardly hold ranks—got out as best they could. I was surprised at it. I thought there was no disposition shown by the military to disperse these crowds.

Q. Have you any knowledge of the causes leading to the riot, at all?

A. Oh, yes.

Q. From personal knowledge?

A. Yes; I suppose I have as good a knowledge of that as most people, because you mingled with railroad men and heard them talk. They were clamoring on account of the reduction of wages and the double-headers. These two were the arguments they plead their cases on. As a general thing they had a good deal of sympathy, I think.

Q. What do you mean by sympathy?

A. They represented their case so that a great many people thought that they were imposed on.

Q. What cause did they assign—a reduction in wages?

A. The reduction in wages was such that, for instance, one brakesman I know to be of good character, he had his last check or warrant, showing that eighteen dollars and some cents was all he could make during the month. His argument was in this shape: Brakesmen would not go out for a day or so, and they could not make a living at the wages they paid; that too many of them were employed. He did not use that argument, but his argument went to show that there was too many of them employed, and that they could not get steady work, and it was still being cut down lower. That was the argument of one man, as a sample.

Q. He seemed to express the ideas of all of them—he was a man of intelligence?

A. He was a very nice man, a man I have known for some time. I think he has a wife and some children. He pulled out his warrant and showed me, as a part of his argument.

Q. He only received eighteen dollars a month?

A. Only got in time enough to make that. While the railroad men stood in the position of defending themselves, they had a great many friends, until it got into the shape of a riot, and then people began to complain. They were uneasy, and saw that things were changed.

Q. Have you any other information on that subject—the cause, which is, as you have expressed, this man's opinion?

A. No other argument that was used in regard to the double-headers. They were on these heavy trains, with only the same number of brakemen as on a single train, and it was so hard to work, and at the same time it was throwing a part of them out of work, and making their time so much less to

the men—the same as that man described—he only made eighteen dollars. Numbers of them talked. There was a neighborhood handy to me, where railroad men live, and I often dropped in with them, and talked with them to see what their views are during the week, and that was a leading argument among the common men. I can explain that almost as fully as a road man. I am so familiar with that—any question you wish to ask about it. Double-header is where there is a locomotive put to thirty-six cars, and where they will take about half of that with a single one, and then they would put on a crew to break the cars and attend to them—one conductor and one or two brakemen—the same number that was put on a single train, and they would have to do the work of a number of hands, and they objected to that work—was too heavy, with the mountains and the heavy grades, and with the heavy trains, made their breaking so heavy that it was very hard and dangerous. They complained, of the way they were abused by handling these heavy trains.

By Senator Yutzy:

Q. Did the men appear to think that they should be allowed to make ... and higher up, and none of them discharged?

A. They argued, that the pay should not be reduced and the labor increased. They talked against these double-headers, the reduction being made on their wages, and their labor increased by doubling up the train, making their labor heavier and those who were doing the work. This is the shape they objected.

Q. Did you learn whether it was their idea that they should be getting full time, or were they willing that part should be discharged, and then let them make full time?

A. I never heard them express their views on that point, but they complained they were not getting full time. Were standing, waiting for days, looking for a job, and that if they were not there for a moment, they would lose their chance.

J. L. Kennedy, *sworn*:

By Mr. Lindsey:

Q. Where is your residence, Mr. Kennedy?

A. Claremont.

Q. What is your official business?

A. Warden of the county work-house, at present.

Q. Were you in July last?

A. I was assistant warden at that time.

Q. State whether the militia under the command of General Brinton came to the work-house, and what you saw and heard?

A. On the Sunday afternoon General Brinton came to the building, about two o'clock, I guess, him and another gentleman from Philadelphia came there in a buggy, and wanted to know if he could put his troops inside. I told him the superintendent was not at home, and I did not feel like them going inside, as they would not be more secure than outside. I advised him to take his men up on the hill in camp. They said they had been driven from the city, and the mob was following them. I told him I did not think there would be much danger in taking the men up on the hill. They would be just as secure. He inquired the way back to Sharpsburg. He had not his troops with him. He was in advance of them. I told him the way to Sharpsburg, and he wanted to know if he could get back without going back on the public road. I told him he could not, unless he would leave his horse there, and walk through the field. He appeared to be very much frightened, and very much demoralized. He started back to meet his troops, and took them upon the hill, and kept them in camp there. The next morning he left, I believe, and put them aboard cars, and took them to Blairsville. In the evening some men came down, and asked if we could give them some provisions. We gave them as much bread as they wanted, and all the meat about the

institution. At that time the superintendent came back, and him and I went up, and we saw more bread than the troops had any use for. I believe the poor-house gave them all the coffee they wanted.

Q. Did you converse with the troops any?

A. No, sir.

Q. Did you see them when they marched up?

A. Yes, sir.

Q. Did they march in regular order?

A. Some of them, and some did not—kept straggling up there all the evening, after the main body came through, they kept straggling up all the evening. In fact, the next two days they came there one or two at a time. Some of them had their uniforms on, and several came around with citizen's clothes on. The next day after they left, there were two came there, one of them had been wounded. We took him inside, and had our hospital steward dress his wound, and kept him there until we got transportation for them, and they were sent to Blairsville.

Q. Did any of the mob follow them up Sunday?

A. No, sir; no person came after them at all.

Q. Was there any attack made upon this institution, or threatened?

A. It was threatened very strongly, but they never made any attack.

Q. What preparations did you make to meet them?

A. There had been a lot of arms sent out to us through the county commissioners, and we were prepared to meet any emergency.

W. G. Johnson, *sworn*:

Witness: I do not know that I can give you anything in addition to what you have already had.

By Mr. Lindsey:

Q. There was information that it was suggested that you might give about something that was done on the south side in the way of protection of the depot or the trains there—of patrolling the approaches to the city on that side.

A. The committee of safety on Monday immediately took steps. They organized military force of the citizens. General Negley had already made a start in that direction, and our committee coöperated with him. In fact, he was a member of that committee. He was in continual correspondence with the committee. Quite a number of military organizations were formed under General Negley's command; among others was that of Major Paul. That was a mounted patrol. The safety committee purchased horses and hired horses for some two or three weeks; had them patrol all the highways and streets at all hours of the day and night, and wherever there was any disturbance they were, of course, sent in that direction to see what was necessary to put it down. I suppose what you refer to is over at the Cork Run tunnel. There were no disturbance there, but there were some threatenings of burning of cars in the tunnel. Major Paul visited that point and scoured the whole country.

Q. Is that on the Allegheny road?

A. No, sir; that is on the Pan Handle. He scoured the country around and found—the only thing he found in that direction in the way of an assemblage was a lot of miners out by Mansfield holding a meeting there. They saw nothing that looked riotous among those miners. They were holding a meeting in regard to the strike at the time. Whether any damage would have arisen to the cars there in Cork Run tunnel, we would see if there were any parties having an eye to it, and Major Paul's command would have kept the post pretty clear.

Q. You do not think of anything new, Mr. Johnson, in relation to the organizations. We had a pretty full explanation of the organization by the citizens.

A. You have had a pretty full explanation through Mr. Park and Mr. McKune and others. They have testified to the main facts in relation to what the committee did. At the very outset the pledging of these individuals to unlimited amounts to restore peace and order. They have already told you of what the nature of the disquiet was on Monday morning. The streets were crowded to excess, apparently by strangers never seen here before, and it looked very threatening, indeed—very alarming. Every precaution was taken by this committee at the time. They were in session continuously from Monday morning until Saturday night, from nine o'clock in the morning until nine o'clock at night, and sometimes until midnight. We were in correspondence with the Secretary of War, as to ammunition, and got all we wanted—arms and ammunition; in correspondence with Governor Hartranft on his route from the west here. We met him on his arrival. Urged him to remain here, thinking his presence would be of great benefit, but he only consented to remain until three o'clock on the following morning. He remained from eight or nine o'clock until three o'clock the following morning, saying he could do us more good by going to Philadelphia to consult with General Hancock, and he would have sufficient force of military here to restore perfect quiet.

By Senator Yutzy:

Q. I understood you to say that you organized this citizens' committee—this committee organized of companies—and armed them?

A. Yes, sir.

Q. How did you arm them?

A. We procured arms from the arsenal.

Q. Muskets?

A. Muskets—rifles—Springfield rifles.

Q. What class of men were those you organized into companies?

A. Some of them—some members of them—were men who had been out in the last war.

Q. Were any of them in those companies among the rioters or part of the rioters?

A. Yes; I will explain a little matter of that character. General Negley had his head-quarters in Lafayette hall, and I think it was on Tuesday noon I had left the Chamber of Commerce rooms to go to my dinner, and I noticed a squad of probably sixty men, about as rough looking chaps as I had ever laid eyes on, going through some military motions on Wood street. I saw General Negley on the opposite corner, and I asked him the question whether he was feeding a lot of tramps. We were paying the expense of feeding them. Says he, "You are about right. We are mustering those fellows out." He had taken under his command all that would offer, and he had to sift them out afterwards. He said these he had sifted out, and he was going to muster them out—going to pay them a dollar a piece and tell them "go." The night previous he discovered that some of these men had been among the rioters. They were regular tramps, undoubtedly, and he had these men arrested and sent to the lockup, and found that they had been among the rioters, and these others were undoubtedly tramps of the same character. The city was infested with them at that time.

Q. These men had been armed by your committee, without knowing what class of men they were?

A. General Negley had placed arms in the hands of the men under his control.

Q. Some of them had turned out to be some of the rioters?

A. Yes, sir.

Q. As soon as it was discovered——

A. As soon as it was discovered, those he knew to be rioters he had arrested, and sent to the lockup. The others were picked out by their appearance, and he had them mustered out.

Q. Did you keep any men in these commands you knew were among the rioters?

A. None we knew of. General Negley was very particular in regard to them. My own knowledge in reference to tramps was brought out on Sunday, the day of the riot. I wanted to come to town to see what was going on, and my family persuaded me to remain at home for a double reason. They were not very far from the stock-yards, which were threatened by fire, and the hotel out there, and another reason for my remaining at home was the great number of tramps, that for some days before had been coming along the road and getting food. East Liberty was a great camping ground for these tramps.

Q. Were there more than the usual number of those tramps?

A. A great many more than usual. At that time I did not connect the fact of the unusual number of tramps with the riots.

Q. What direction did they go?

A. Heading towards the city invariably.

J. L. Bigham, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I now reside in Allegheny.

Q. Are you a member of the National Guard?

A. Yes, sir; I am captain of the Nineteenth regiment, commanding company G, of that regiment.

Q. Were you with your command on the 21st of July?

A. Yes, sir.

Q. State what orders you heard given by General Brown, at the transfer station, in reference to the regiments disbanding?

A. General Brown came in, I suppose, about eleven o'clock. There was some consultation between him and the colonels—Colonel Howard and Colonel Gray. There was some move talked about. I came down and asked Colonel Howard what was to be done, and he said he didn't know, and in a few moments General Brown came up, and directed him to have his arms and equipments concealed in the building, where the mob would not get them when they came in, and dismiss his men there in the sheds, and directed them to find their way home the best way they could, each man for himself.

Q. That was done, was it?

A. Yes, sir.

Q. What was done by you and by the balance of the regiment as to re-assembling?

A. I went home that night. The next morning when I got up—I had breakfast about eight o'clock—everything was on fire then. I got my lieutenant to come out and hunt up some of the men, and sent for my sergeant to have the armory open, and went over to the Union depot to see what was to be done. I saw General Brown there, and asked him if he would allow the regiment to be re-assembled and let us go out to protect the fire department. I got information that the mob had stopped the fire department from work. He says: No, it will exasperate the mob. I saw General Latta, and made the same request of him; he first said our regiment had not behaved well the day before, and there was no use in re-assembling us, and finally he said he would not take the responsibility—refused to allow us to

re-assemble and go out. I went from there down to see the adjutant, and told him what occurred, and I understand that he went up by some direction of the colonel, and asked for orders to the same effect. That evening Mayor Philips organized the citizens, and made arrangements to go down and protect one of the lower bridges there. Part of my men were in that, and partly citizens. There were twenty of my muskets used there. I was down at the bridge when Colonel Howard came there, about one o'clock in the morning, and ordered me to re-assemble and report for duty at nine o'clock. I left there, and started men out to order the other men to report, and reported shortly after nine o'clock with a portion of my men, and got the other men gathered by eleven, and we were on duty from that time, continuously, until we were dismissed.

Q. Had the regiment re-assembled as a regiment?

A. They re-assembled as a regiment on Monday morning, and were used in suppressing several disturbances that occurred on Monday.

Q. How many men were together on Monday?

A. I suppose about a hundred men. When the regiment came together, Captain McFarland was not with us. He had been assembled earlier than the rest of the regiment, and was sent up to Second avenue park here, where there was some disturbance, and was kept moving about. I, myself, had only about sixteen men. I and a part of Captain Batchelor's company and a part of Captain Archibald's were taken down to Limerick, where there had been an attack made on some cars. We went down there and came back, and when we came back, the regiment was re-assembled as a regiment. The balance of Captain Bachelor's company and Captain Gordon's company. He had been operating by scattered detachments until near two o'clock.

Q. You remained here until the arrival of the Governor with troops from the east?

A. We remained until I think the night of the 21st of July, when we left for Scranton.

Q. How many men did you have when you left for Scranton?

A. I do not know how many, exactly, sir. I think thirty-six men with me, and I think our companies averaged about that—seven companies on duty.

Q. Something over two hundred, then?

A. Yes, sir.

Q. What does the regiment number when all the men are present?

A. We had only six companies, of about thirty-five or thirty-six men. There should be forty men to each company. There were one or two companies that ran about fifty men, but usually the companies did not run over forty. We considered turning out thirty-six men as a pretty full turnout.

Q. Were the men obedient—did they perform their duty?

A. I had no trouble. None of my men refusing to obey orders. Two or three of them deserted. I had two of them in jail for it afterwards. There was no disobedience of orders.

Colonel Robert Monroe, *sworn*:

By Mr. Lindsey:

Q. State where you live, if you please?

A. In Allegheny City.

Q. What is your business?

A. Boiler manufacturer.

Q. I do not know what point you are called to testify to, but you may go on and state?

A. I could not say because I saw very little of the riot. I was kept down at the Point. My location is at the Point.

Q. I presume that it is perhaps best to state to us what was done towards protecting the Duquesne depot?

A. I was at the Duquesne depot on Saturday evening. When I first went there, probably, it was four o'clock. Persons that I was acquainted with there, stated there was going to be trouble. People were moving their goods from the houses around the depot. I asked them what the trouble would be, and they said they had been notified to move all their personal effects, as the mob would be down in a short time—to turn out, stating the hour.

By Senator Reyburn:

Q. Did they say who notified them?

A. Persons that came down from the upper depot stated they were to burn it at a certain hour, I think five o'clock was the hour. My place of business was located just below it, and I kept at the lower part of the depot. Between five and six o'clock, there were seven or eight persons congregated at the lower part of the depot, trying to break open the depot. They talked as though they were going to set fire to the depot, and also burn up some cars that were across on Water street siding that was there. They broke open a car door and set fire to one of the cars. There were probably five or six of us standing there at the time. Several remonstrated with them for trying to set fire to the cars—objections were made. They had that on fire and it was kicked out. They got a keg of beer from some store or other, and about six or eight of them drank that keg of beer. They tried to start a fire in a second car, and Mr. Reeves, one of the party, told him he would put a ball through the man that put a match to that car. He asked me for a pistol at the time. He said he had none, but he made that remark to frighten them—the men were intoxicated. A number of us agreed to stick together in case any attack was made, that we could assist each other in resisting these drunken men that were trying to burn the depot and the cars. One young man hammered a good deal at the depot door, trying to get the door started to get in, but did

not succeed. The crowd continued there probably an hour—from three quarters of an hour to an hour. Some gentlemen. Doctor Dixon among the rest, came down from the upper end of the depot, hearing that we were there, and, as I understand, they arrested the parties that were drinking and threatening the depot with destruction.

Q. These men intoxicated?

A. Every one of them.

Q. Any other facts?

A. I do not know of anything. I kept down at the Point all the time.

Q. How large was the crowd there; about how many?

A. They gathered towards six o'clock—a pretty large crowd—and at the time I allude to when they were trying to burn the cars in the depot, or wanted to burn the depot—the drunken men—about six or eight. They talked very loud. There were but three of us at first, when we were at the lower part of the depot, and stayed there until we got more force.

John Slagle, *sworn*:

By Mr. Lindsey:

Q. State to the committee where you reside?

A. Allegheny City.

Q. And your business?

A. Business is iron commission merchant, in Pittsburgh.

Q. You may state to the committee any facts—any information—you are in possession of, in regard to the riot, and the means used to suppress it, that have not been already fully gone over?

A. You have got most of the facts that I am conversant with, I expect, Mr. Chairman. During the week preceding the Sunday of the riots, I had learned, through the papers and by hearsay, that the Pennsylvania Railroad Company were going to enforce what was known as the double-header order. I heard of the attack upon Mr. Watt, and the question came up as to what was to be done in reference to it, and on inquiry of some parties, we learned that the railroad company did not suppose it was going to be a very serious strike, or would be very difficult for them to run their trains, as they had a large number of loyal men that would run trains as soon as they issued the order, and the rest would be taken care of. I paid no special attention to the matter, until I heard the military were coming that day. Failing to get their double-header order put into effect by the police, that they had arranged for military, and the excitement began to get up a little; and I remember very well how I felt, for the reason that I had a boy just about the age that boys want to go to such places. He was anxious to go to the scene of the trouble. I charged him that he must not go, and that everybody that went to a place of that sort was a rioter, unless he went there to help put down the strikes, and he had better stay away. As the consequence, I stayed at home, even after the shooting took place that evening. I might say, however, about that, that on Saturday evening I visited the house of my brother, on the hill above, on Centre avenue, and after leaving his house, along about five or six o'clock, to go to my own home, I met some of these soldiers coming, without their guns, on the street. Saw one of them talking to a girl immediately in front of my brother's house, and overheard him say that he had abandoned the field; that the Philadelphia troops had fired on the crowd, and there were a good many people killed and a terrible riot there, and he had abandoned the field, and was going home. I followed to my own home, and stayed there until the citizens were called out, on Sunday at noon, with this exception, that I had watched a little of the operations of what was going on in Allegheny, at the outer depot, and I went that Saturday evening down to the transfer station to see what they were doing there, and found a large number of people—railroad men and others—and in talking with them, I asked what they were doing. They said that they were stopping all trains that came into Allegheny,

housing the freights, and seeing that nobody went to Pittsburgh on the passenger trains that had any arms, or was likely to interfere with the strike at the Pennsylvania railroad. One of the men I talked to was a railroad employé, working in the machine shop—the son was a fireman, and the son and father were standing together. Said I, "You do not seem to be among the strikers." "No," he said, "we think it is best to keep off the railroad property in times like this, and we are leaving that to some other fellows." As to my own part, it began on Sunday noon. I was appointed on a committee of twenty-five to see what could be done to stop the burning and riot, and went with the committee to the scene of the fire about one o'clock, and you have heard from Mr. Scoville and others all that Mr. Bennett and Mr. Tuigg, the bishop, and Doctor Donnelly, and Mr. Barr did and said while they were in the railroad yards. I remained in my buggy outside of the railroad yards, and saw a good many people that I knew, and a great many that I did not know, and in answer to a question that was put to me as to what we were doing there, I said these gentlemen that had gone in the yard came there to see if they could not devise some means to stop this burning before there was any further destruction of railroad cars, and especially to save the Union depot. They asked me, "How do you propose to do it?" I stood up in the buggy, and addressed the crowd—told them we wanted to find some of the railroad strikers that could handle the cars, and then we would take them up with citizens to stop the burning. If we could find ten railroaders to handle the cars, we would go into the depot grounds, and stop that fire and save the depot. A fellow on top of the cars says: "You can't do that. We are going to burn clear to the river, and the lower depot as well, before we are done." I looked at the fellow, who was on top of one of the burning cars. They had run it down, and checked the brakes at the side of a freight train, so that the fire would communicate. I had a curiosity to hitch my horse, and climb up and see that fellow. There was three of them. He appeared to be guiding the others, and had charge of the car, and checked it alongside of two other box cars, so that the fire might communicate. He said they were going to burn the whole train—they were going to continue until they burned everything the railroad owned. I got into my buggy and drove a square further toward the round-house, and stopped again and asked the crowd if there was any

railroad men who were strikers in that crowd, and at that point a young man came to me in his shirt sleeves, with a handkerchief, says he, "Slagle, you don't remember me. I am a railroader, but not a P.R.R. man." I said, "Can you find any P.R.R. men? They all abandoned the property last night." Says I, "Will you take me to where they can be found?" He said he would, and he jumped in my buggy, and drove me down to Twenty-fourth street. He wouldn't take me any further. Says he, "You stop here, and I will bring them to you." I stopped and sat in my buggy a little while, and, after a while, he came back, and he said he could only find two, but we will go to Twenty-sixth street, and I can find you two or three. I got into the buggy, and drove to Twenty-sixth street, I stopped again at the corner of Twenty-sixth, and he went up toward the railroad, and came back with one man. This man said, "What do you want?" Says I, "We want from ten to twenty railroaders to go to stop this firing before it reaches the depot." Said I, "I don't know you." Says he, "You have got no advantage of me, for I don't know you, and we will go on one condition, that is, I think we can get the men to go on one condition, and that is, that we are protected against arrest for what we have done in the way of striking, for," says he, "we have destroyed no property, and we abandoned it as soon as the mob begun to burn, and we fear we will be arrested, and if you will guarantee us against the arrest, we will arrest the men." I asked him to arrest the men, and I would see about the other. So I took my buggy and drove back, and met some of the other committee coming up—Tuigg, Scoville, Park, and McCune, and others—and we arranged a meeting at Twenty-sixth street, and on the curb-stone we talked it over, and told them we could not guarantee them against arrest, but, if they would come down and help us to put out the fire, and they were arrested, we would go their bail. Three men stepped out, and said they were strikers, and they would go. They started then to find more, and we met again at Twenty-fourth street, I think it was, and had another meeting. At that meeting they arranged to go down to the city hall, and they began to back out a little. At that point I left them, and they arranged with Park and McCune to meet at the city hall, at half past three o'clock, and said they would go with the citizens, and stop the burning. From that point, I had left my young friend, and took the buggy and started, when a fireman says to

me, "You are going down town?" Says I, "I guess you are the man I am hunting. We want some one to put out this fire." Says I, "Who are you?" Says he, "I am the chief. I would like to borrow your buggy a little bit. I have got a message to bring men to the elevator." I whipped my horse up a little until we found his own horse, and then he jumped from the buggy. I told him we wanted to get a hose company to go in there, and I thought we could water the fellows off the cars. Says he, "We will get you one, and we will try it." When I got down, he had got a hose company, and started in. They had not thrown long, I think, till somebody cut the hose, and they were backed out, or pushed out of the crowd, and were not allowed to throw water for some cause. This took two hours or more of time, and we came back to a point a short distance above the Union depot, and, while we were conferring with these firemen and some others, a fire was started down below in the back shed. Then I left, and attended this meeting at the city hall. At the city hall you have heard was done there. From there I went to the Duquesne depot, and met this man that Colonel Monroe and Doctor Dixon told you about, and I saw what they were doing. In the meantime, the elevator was burned. I went over to Allegheny, and took some little steps to protect the railroad property at the outer depot and the dispatcher's office. The only point I would like to say anything about after that was this: From that time until the end of the strike, and the trains were running, I was busy every day and every night going back and forth between the railroad employés and officials, and the mayor, and committee of safety. There is one point I have heard much said about, and it is this: I had been in the immediate vicinity of the dispatcher's office in Allegheny, back and forth to see what was going on. I happened to be there about the time that Ross vacated his place, and Ammon took it, and watched a little of the operations by which the trains were run under Ammon's administration, and I saw, with my own eyes, what the trainmen appear very unwilling to testify to, and that was whenever an engine came into that yard it was immediately assailed by from three to twenty men, and the men that were on it were told, called generally by their first name, "You get off, and let that engine be just where she is; this thing has got to be fought out now." Whilst they did not use personal violence in taking a man off a train, I saw a passenger train

stand there one hour after it had come away from the Union depot before they could get a crew, for the reason that as fast as they got one fireman on they would intimidate him by threats of violence. It would not be safe for him if he got out of town with the mob and crowd somewhere else, and he had better stay where he was. I have seen three sets of men taken out in an hour before they got enough men to take a passenger train out. I was sent for after the strikers begun to disagree. A man had been displaced from his position there by his fellow strikers, and Ross had been re-instated. It was rumored that man was going to be arrested, that they had a warrant out for him. I was sent for to go to the *Chronicle* office one day, to know if I would go with Bob Ammon, and see Layng, McCullough, and Thaw, of the railroad. I said I did not want to do so. I didn't want to have anything to do with Ammon; thought he was a bad man; didn't care about it. Ammon had a proposition to make by which he could break the blockade. As a merchant interested in shipping, I agreed to go with Ammon, and I met him at the *Chronicle* office, went to the railroad office, and stayed there in the building while he was making his proposition to Layng and McCullough and others to break the blockade. I did not hear what his proposition was, for while he was talking to them I was with Solicitor Scott, talking with him. After he came down to Layng's office again they had a warrant for him, but they concluded they would not arrest him then. Then afterwards, it was proposed that Ammon said he could break that blockade—would I go to Allegheny with him, and see if we could. I didn't want to go to Allegheny with Ammon. I thought they were going to kill him over there; finally I consented to go to Allegheny, and did so. This was early in the week after the Sunday. I went over there with him, down Penn street, and went in the street cars, and on the way he introduced me to a railroad passenger conductor, and appeared to be on good terms with him. We went down to the dispatcher's office, and walked along the track, and now says he, "You will see if they are going to kill me or not." We walked together and joined the crowd—one hundred and fifty or two hundred railroaders. I was introduced to one whose name was Cole, from Chicago. I asked Cole what he was doing there, and he had been advised that there was going to be a strike, and he had come there, because he was one of the officers of the

union, at Chicago, and he was there in the discharge of his business. I asked where those other men were from. I would not know him again if I would see him. I said, I don't see many of our Allegheny boys, where are they? He said, You can see them over at the hall directly, we are going to have a meeting. Nobody molested Ammon at all. We went to the dispatcher's office, and he looked in and spoke to people that were there, and stayed with me there, for I was going to see what he was going to propose. We then went to a meeting of railroaders in the hall, and at that meeting this citizens' committee and the mayor was present, and as I had not been appointed for that office, I took my place in the back part of the hall. There was about three hundred or four hundred railroaders there, so they said. The hall was jammed full—there was not room for more. They organized by having a chairman and secretary. McCune and Captain Gray, and Mr. Morehead, Mayor Phillips, and somebody else was the committee. They began to call for Slagle, knowing me, being an Allegheny man, and living near there, and knew a good many of their faces. I told them I hadn't anything to say at that meeting; I had come with one of the railroaders, and Mr. McCune was foreman of that committee, and then after awhile they talked the matter over, back and forth, those citizens and railroaders went over their grievances. Here was Ammon's proposition: "Now, I am going to make my proposition; I want you to wait." He got up and addressed the chairman, and they began to hoot at him—howl, you have no right here, you are a scamp, and abused him as though he was a man they did not want to associate with, and the meeting got very boisterous, and the chairman took his position and tapped on the table, and, says he, "Ammon has a right to speak here." Ammon said, "I propose we break this blockade by organizing two or three crews, and I am authorized to say that the engines will be furnished, if we can get the crews to run. I propose that we organize two or three crews, and take the first freight train that is on the track below the city, and run it through to Chicago." I never heard such yelling: throw him out the window, kill him—all sorts of threats were made—but they quieted down, and the result of that meeting was an interview between nine railroaders appointed by that meeting, at the office of the mayor, at which I was invited to be present, and we sat three hours.

Q. At the mayor's office? What mayor?

A. Mayor Phillips. I did not participate in that discussion only to be a witness at the interview between those nine men and the committee, which was all in reference to their illegal possession of property that did not belong them, and they ought to abandon their possession, and give the property back to the railroad company in the condition they left it the first day of the strike. It was understood that the railroad officials had abandoned the property to the strikers, insisting that it had been taken away from them illegally, and they wanted to get possession of their property in a legal way. I believe, Mr. Chairman, except the little part I took with this safety committee in raising money and men to do whatever might be needed, that that is all I know about the strike.

By Senator Reyburn:

Q. Did these men state what their grievances were?

A. It was very clear. They said they had no double-header order to be rescinded, but they were bound to get back this reduction of ten per cent. and to break up this classification of engineers, and they said a great deal on that subject in this boisterous meeting. Some of the speeches were very intemperate and very boisterous—bread or blood—and all that sort of thing, but they were hot-headed fellows. Then other men thought they had made a mistake. They all admitted they had made a mistake in striking and holding possession of the property. They admitted that when we argued it quietly. The mayor argued it with them, and they admitted to him that they had made a mistake in striking, and in abandoning their jobs to the road, and they said they were so organized that the road could not run a train out without the consent of the strikers. Mayor Phillips said to them, "What do you mean by so organized?" Says he, "We have our Brotherhood of Engineers and Trainmen's Union, and they extend all over, and if one man or the association says strike, his train is not to go, and you cannot get any man to run that train, and the road will have to give us what we demand." You have been aware of this movement to save the freight on Saturday, when it was run down the road, and it is not necessary for me to detail that.

I might just say this about that: Having lived in Allegheny for twenty years, and several years right down there in the neighborhood of the depot, that I was surprised to find so few of these men that were on the track that afternoon, and other afternoons, to be our own Allegheny railroaders, and in answer to a question that I put to these men, calling to a man named Sourbeer, and one or two others, he said, You must understand that a great many of these trainmen that are young men that are not married, and have no fixed home, and they are just where their train happens to be. There is a man, for instance, who has a wife and family, lives near Union. The day he is in Allegheny he boards at the house, and a large number of those men that are striking are men that live at the places along the line of the road, and that accounted for why I didn't know more of them.

James P. Barr, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. State your residence?

A. Fourteenth ward of Pittsburgh.

Q. Editor of the *Pittsburgh Post*?

A. Editor of the *Post*.

Q. Editor and publisher?

A. Yes, sir.

Q. Just go on and make a statement and what you know of the causes of the riot that came within your knowledge by conversation with the employés of the road, etc., and what came under your observation during the riot and the days of the progress of the riot?

A. I think I should prefer to answer questions first before I go into anything like that, because my personal observation does not extend over a great

deal.

Q. When did you first learn of any disturbance among the railroad employés?

A. On Friday morning. The first was on Thursday at noon. I did not know anything about it at all till Friday morning's paper. I do not know any of our people knew there was any trouble beyond the railroad employés, but it was mentioned in Friday morning's paper, and on Friday morning we learned that a proclamation was issued, and the military were called for. I went to the depot about twelve o'clock. About half-past one I went out to the Eighteenth regiment, at Torrens station. Remained there three or four hours. There was considerable of a crowd there. I talked to Mr. Hice—he is on trial here now—he appeared to be a leader of the party there. Colonel Guthrie talked with him. He told him that he would get on the trains as they were coming into the city and inform the conductors and engineers and trainmen that there was a strike, and have them abandon their trains when they came in. I talked with him a good while, expostulating with him. He said they did not intend to perform any overt act, that they felt persuaded they could accomplish their purposes by abandoning their trains. It required experts and people of experience to take them out again. They knew such people were not about. I told them I thought it would soon get out of his hands. The sheriff and General Pearson had been out there just before. I came on the ground while he was there—probably came out on the cars. The military were called into position two or three times. The crowd was uneasy. There were no trains going eastward. I think there were some trains passed while I was there on Friday, and a good many people came out on an engine during the afternoon. I came in on Friday night. I was about at the office. Around town there was no particular excitement. We had been subject to these things for years—strikes of employés in the mills and in the mines—and they generally exhausted themselves without any violence. We did not anticipate any trouble, but on Saturday the knowledge came that the Philadelphia troops were coming, and we had our Sixth division out—the regiments and two batteries—and had a kind of a circus. Great crowds of people gathered. Crowds of women and children gathered on the hill side. I

was not at the depot nor at Twenty-eighth street at the time the firing occurred, but was somewhat conversant with the condition of things.

Q. Did you know on Friday, when you went to Twenty-eighth street, that the militia had been called out? At that time did you know it?

A. There was a printed proclamation, purporting to be coming from the Governor. On Friday morning, at nine o'clock, it had been posted on the streets, calling for the local troops here. General Pearson's orders were printed in all the papers, as well as the orders of Thursday night. All the telegraphic dispatches were in the papers on Friday morning—from the sheriff, from the Secretary of the Commonwealth, Attorney General, the Adjutant General, and Mr. Farr—some eight or nine dispatches were all printed on Friday morning, and our division called out. At that time, the whole public was informed as to the fact of the military there.

Q. On Saturday night, what knowledge had you of the movements of the military?

A. I learned, after the firing, that a great deal of excitement prevailed. I might as well state now, that the fact of the firing upon the mob did not make any difference, whether it was by orders or without orders. The crowd supposed it was by orders, because their vengeance seemed to be concentrated on General Pearson, who was in command. They thought he gave orders, but practically it made no difference whether it was by an order or without an order. It makes a difference, in fact, so far as parties killed were concerned, or the act itself; but they supposed that an order had been given to fire, and that they then had a grievance, which they had not before. Before that, it was confined to railroad employés. They assumed that they had not got wages enough. There were double-headers put on, but when people were killed, they said there was then a good cause for grievance, and they rushed to the gunshops—one right opposite my office—took all the weapons they could find in there, broke open the whole place, carried off the guns, and paraded the streets. The feeling then was intense—bitter, and revengeful feelings seemed to pervade all classes of labor. There had been a sympathy with them all the way through—they were part of the labor

element. I think myself that if the military had not been there, and had not provoked a collision at that unfortunate time, that there would not have been a life lost, nor a dollar's worth of property destroyed. As everybody can tell after the battle is lost how it might have been won, we find that after we survey the whole thing over again, it is pretty hard to lay the blame on anybody. The action of the militia just at that time has been the common action of the militia all over the world. It requires the strictest and sternest discipline of the regular soldier, to obey the command after he has been struck or knocked, to refrain from resistance. The militiaman is not paid for it; he carries his humanity into the ranks, and when he is struck he resists. What our militia did here, they did in Baltimore, they did all over the country, and they would do again under similar circumstances. The question of their firing without orders, is a thing you never can provide against with militia.

Q. Sunday morning, what was done by the military or civil authorities, county or city?

A. Sunday morning, at nine o'clock, when I came to my office I found a number of gentlemen there, merchants, manufacturers, and business men, alarmed and dazed by the condition of things. About the first thing that was done, was to write a resolution—they wrote a resolution to get the citizens together, and provide a leader. They waited from Thursday until Sunday, the city, the county, and the State at her back, and we had not provided any other agency for self-protection or the preservation of the peace, but these. When we ascertained on Sunday morning, that twelve hundred soldiers, veterans, under the command of experienced officers, had not been able to quell this violence, we felt that no fifty or one hundred men could do it, and we were at a loss to dam the brook on Saturday night, and the flood was then over, and we had to wait until the water subsided before we could get foothold or make a landing. We went to work as fast as we could. I went to the Union depot until about half-past nine or ten o'clock. I saw quite a lot there, they appeared to be cool but utterly unable to provide for the difficulty, the military having gone away, contrary to their instructions or their orders. While I was in there, General Gallagher, I think it was, came

in. He had been around the city, and they asked him how many troops it would take to hold the city at that time, and he said, it would require at least fifteen thousand. I stayed there that time, and a servant came up and said we were the last people in the hotel building, and we had better go off. Then we went to the Monongahela House.

Q. Who is Gallagher?

A. I think he is colonel in one of the neighboring counties.

Q. Belonging to the National Guard of Pennsylvania?

A. Yes, he is a colonel—at least he was in undress.

Q. Was he not a colonel in the Pennsylvania Reserves, during the war?

A. Yes; in Westmoreland, I think. The whole town was out, you know. I think there has a very great delusion taken possession of the public mind, in regard to the Sunday's burning. There were not many people on the tracks at any time during Sunday, because they were crowded with cars—cars burning slowly, and the work of destruction commenced at night. The motive was, they wanted to burn these troops out of the round-houses, and communicating fire from car to car, was rather slow, and many people imagined, that because there were but few people on the tracks during the day, therefore a few people could have controlled them. The reflection seems to be made upon the officers of the city and county, and the military, that a few policemen, or a few military, could have driven those people off the tracks, and that would have been the end of it. But anybody that stood there during that day, and was among these people, found thousands of people on the streets and on the side-walks, the side streets, at Liberty street, that prevented any water being thrown on the cars, and prevented any interference. It was not necessary for many people to be there to fire the cars. They were strangers. I suppose the railroad men who had the first grievances, did not go there, because they might have been recognized, but they all stood on the streets, and not a drop of water dared to be thrown on these tracks. It is the sheerest nonsense to talk about ten men, or twenty-five men, or two thousand men, to have stopped this. They had broken open

barrels of whisky, and they knew the military were gone, and they were perfectly satisfied there was no police force to stop the people, and unarmed citizens called by the sheriff to put down the mob, was simply ridiculous. The sheriff did what any sheriff would do—he called a posse, a lot of clerks, or—lawyers, to put down a mob. The mob understood as well as anybody else, that that could not be done, it was not his fault, and it was not the fault of the mayor that there was not any police. The State prevented the city of Pittsburgh from borrowing any money. The bankers in this city offered to furnish the amount of appropriation that was short for police, but they could not get the money back again, because the city could not borrow any money. The bankers offered to provide us with our usual number of police, but the State law stated that we could not borrow any money for that purpose.

Q. Constitution, ain't it?

A. Yes; it is in the Constitution, too. The State stepped in, and would not let us do it. Eighty-five men to cover twenty-five miles square. The patrolmen were up all Thursday night, and on Friday we hadn't any police. We held a meeting at half past twelve, and in the meantime a committee five was appointed, of which I was one, who went into the crowd, and asked them to stop. There was one man, he was in a blouse, he seemed to be dressed as a railroader—he attached a burning car to a locomotive, and jumped the track four or five squares east of the depot. When our committee came in, and when Bishop Tuigg was speaking, he rang his bell, and started off with his steam whistling, not allowing people to hear what was said, and there were words lost on the crowd that was in front. They were not railroad men. If it hadn't been for the fireman the city would have been in ashes. If it hadn't been for the citizens preserving the peace, there is no telling what would have happened. The matter was of such dimensions, and extended over so many cities, and miles of railway, that if this whole city had have burned down, and if every man, woman, and child had been arrested, that was not the end of the thing. It was only a small element—a portion of it. I think it extended over nine cities, and twenty thousand miles of railway. It had proclamations from six or seven Governors, and proclamations from the

President of the United States. It was a matter not of contagion, but of organization. I have here the proclamation of the Governor, and meeting of trainmen.

Q. What facts have you to say that it was a matter or organization?

A. Not being a member of any of their organizations, although I am of some other societies, I only get it by publications which I have in my bound files, and can furnish you the meetings of trainmen, and the fact that on the 16th of July, on Monday, that these same railroad men, on account of wages in West Virginia, Martinsburg, resisted the authority. They called on the Governor, and the Governor appealed to the President of the United States. That on Wednesday, the 18th, the proclamation of the President of the United States was issued, which was twenty-four hours in advance of the first interruption here, and that it extended over nine of the most populous States in the Union. It is a matter of current public positive history, which of itself would be sufficient to show that all the railroad employées were in consultation, and had, of course, an organization. I suppose that railroads had to reduce wages in consequence of reduced receipts, and that these people, with their oath bound organization, had agreed that the only way they could cure that, would be by stopping work. I think that was their only object.

Q. Have you any facts, aside from the actual existence of the strike, to show that they had secret organizations and a pre-arranged plan to strike throughout the nine States?

A. Not being a member of any secret organization myself, I was only governed, as a public journalist, by the facts that came to me.

Q. You arrive at that conclusion, then, from the existence of the strikes themselves, and their spreading over so large a territory?

A. Yes; and at the same time, it could not be simply contagion from one line to the other. There was not time enough to communicate from man to man along all the line of railroads, and that they having possession of the telegraphic wires at the same time, they had all the works of the entire

railroad itself, and it was communicated to the whole of them, and they had their resolutions and perfected their organization.

Q. Do you know how many railroads in this country reduced their wages ten per cent. on the 1st of June?

A. I do not, except from the current reports at the time that the four great trunk lines did—branches of the roads east agreed with it. About forty thousand miles of railroad in the United States agreed with it. About all, although the strike was not developed all over. I think some of the New York roads, perhaps, arranged it with their employés, but still there was trouble. The main trouble here, was the reduction of wages. I don't know that it would be of benefit to this committee, but I would be perfectly willing to give my bound files which give the current history of that during the two weeks. It might be useful to look over to show the existence of this thing. There are many things that are official—the Governor's proclamation is official.

Q. You have no copies of the papers that you could furnish us to retain?

A. I will furnish them to you or send them to you at Harrisburg by express. You can keep them as long as you want. I can get them very well. I have extracts taken out of them, all of which I would be very glad to furnish. There is one thing I might state——

By Senator Yutzy:

Q. Have you got your files bound for the month of July?

A. The daily and weekly are bound together. I have them bound, and I will furnish them gladly to you.

Q. Could you not furnish us with a bound copy, with references to the pages?

A. You can have from July 28, to August 24, that is two weeks. We felt here the crisis approaching, and the importance of this whole matter, and I

telegraphed to Mr. Scott, president of the Pennsylvania railroad, these words:

PITTSBURGH, *Saturday noon, 1877.*

To T. A. SCOTT, *Philadelphia:*

Don't you think you could best serve your company, rescue imperiled interests, and perhaps save valuable lives by your presence here, and make in person some proposition to convince our people your company has rights and grievances. The current sets against you with every shade of labor, and it is important that you should be on hand to decide whatever may be presented to you. I can assure you the situation is critical.

J. P. BARR.

That was on Saturday, about eleven o'clock, before any firing—before I knew that the Philadelphia people were here at all. I was so utterly convinced of the critical situation of affairs here, that I thought if Mr. Scott was here in person, that he might be able to say to these people that they were then an unlawful assembly, and that an appeal from him would settle this thing. If the committee desire, I will read his answer:

PHILADELPHIA, *July 21—4, P.M.*

JAMES P. BARR, *Pittsburgh:*

I have just received your message, and fully appreciate the grave importance of the matters transpiring in your community. You will speedily discover that the strike of a few of our railway employés is simply being used by the mob violence, which some of your people are permitting or encouraging, to effect other purposes, which, if successful, will destroy many of your leading local interests. The strike on our road at Pittsburgh was inaugurated without any notice to or conference with the officers of our company as to the existence of a grievance. The reductions in the

compensation to the people in the service of this company are to-day less than in any other branch of business in the country, and were made only because of the great depression in trade interests, to enable us to aid the various communities in carrying on business at all. When violent possession was taken of our property, and the business obstructed, there was no recourse left us but to call upon the authorities of the city, county, and State to take charge of the matter, and vindicate the laws by the restoration of order in such form as to them should seem best. If I could be of any possible service in Pittsburgh, I would go out, but at present I think it would be most unwise to interfere in any manner with the State authorities in their enforcement of law and order.

Thomas A. Scott.

On Sunday he telegraphs:

PHILADELPHIA, *July 25—12.30, P.M.*

To JAMES P. BARR, *Pittsburgh*:

What is the situation of affairs in Pittsburgh to-day? Are the loyal people in shape to protect life and property? The statements of my message of last Saturday to you have been terribly realized. I think there is not and cannot be any safety for life or property unless the State and United States authorities will adopt the measures necessary to restore absolute law and order, and make it permanent. Would be glad to have your views of the situation this morning.

THOMAS A. SCOTT.

I telegraphed him back:

PITTSBURGH, *Wednesday, July 25—2, P.M.*

To T. A. SCOTT, *Philadelphia*:

The local military and organized citizens, animated by a determination to quell mobs, are quite sufficient to preserve the peace and property of this city. Everything is quiet. Our impending danger is the suspension of general labor and thronging our streets with idle men. Local traffic for coal and provisions is first demanded.

Neither you nor labor will surrender, because it involves humiliation, but you can suggest or agree to a board of arbitration to present a compromise, which will relieve you and labor without disturbing the rights or grievances of either. Compromise governs the daily business of the world. You have it in your power to restore peace and preserve society. The discontent of many years against the extravagance of railway management has culminated, and forms the subject of complaint, as well as the reduction of wages.

I implore you not to assume the ground that military can settle anything but defiance of law. Have this compromise effected at once, and the country will owe you a debt of gratitude.

J. P. BARR.

And he says:

PHILADELPHIA, *Wednesday*—4, P.M.

TO JAMES P. BARR:

I like your suggestion as to the restoration of the local business of the country, and the giving of employment to mines and factories. This it has always been a pleasure to me to do, and we will do it to-morrow, if your people will protect the employés of the company who are willing and anxious to work and preserve the interest of the country, as highways like our own are able to do.

My own judgement is that the restoration of law and order can only be effected by a return to common sense by the people, and by them refraining from encouraging or connecting themselves with mobs or violence of any

kind, and that the channels of trade and business will immediately fill up, and give employment to every man that the depressed condition of the business of the country will permit. I am sure we shall be glad to aid them, but to do it in any other way would be but simply temporizing with the worst evil the world has ever seen; but to effect permanent peace and order, and protection to life and property, the matter must be settled by the governmental authorities of the country as they exist, and independently of the transportation companies of the country, which have been doing and are anxious to do their full duty.

I believe if our men are protected by you and by other good citizens, there won't be an hour's delay in opening our roads for the convenience of traffic. I am sure that nearly the entire force connected with our road is thoroughly loyal, and that no trouble will come from them, but that they will do their duty.

THOMAS A. SCOTT.

It is well enough in Scott to say—I think he stated in an independent communication, that ninety per cent. of the Pennsylvania railroad employés were loyal. If there were ten per cent. of them loyal I think it would be nearer the truth, for if on Sunday twenty-five men could have put down that riot—they have three hundred clerks, and three or four hundred more in their machine shops, that could have been sworn in by the mayor—they had a better right to protect them. I suppose it is well enough for Scott to say, that they were not invited by the citizens of Pittsburgh. It was a rebellion on the part of the employés, because of grievances they had, or supposed they had, and when mad riot was inaugurated after that, other people came in to do it. It was not the people of Pittsburgh, the taxpayers or representatives of the people of Pittsburgh, any more than it was in Philadelphia in 1844, while a riot held possession of that city for over a week, notwithstanding the military. It was an unfortunate thing that the military were ever called. They did the very best they could. They supposed they were coming to restore order, by the quickest method. I have no complaints to make in that

regard, because if our foresight was as good as our hindsight, I don't think there would have been any trouble in this case.

By Mr. Lindsey:

Q. Did you have any consultation with the sheriff about his calling for militia?

A. No, sir; I did not.

Q. When you learned he had made the call, did you take any steps to see him?

A. I did not.

Q. Didn't you know that he was going to make the call?

A. No; I never heard of any call. I did hear, to some extent, I may say. I knew that the railroad authorities were more perfectly aware of the extent of this trouble than the community generally, and when the strike was made, on Thursday, July 19—when the day for putting the order for double-headers into effect. That when an officer of the railroad was assaulted, and the police were asked to arrest that man, which was done, and immediately communication was made with the State authorities to provide for a military force.

Q. How do you know that?

A. I don't want you to ask me how I know it exactly.

Q. If you can give us any knowledge——

A. As a member of a grand jury, I cannot tell who swore to these facts, although I did make certain facts public. I can state here the facts that came before me—that the general of the Sixth division here was called several hours before the civil authorities were called upon. That he was at the railroad depot, and in communication with the State authorities. That he was called there by the State authorities to consult with them. Under the law, I take it, that the civil authorities must come in as a sort of figure head.

It was not intended that the sheriff could get any posse of our citizens to put down the riot, but he had to follow up the requirements of the law. That was after the railroad had called upon the State to do this work, being perfectly aware that we had no police force sufficient. The sheriff did his full duty. It was not the fault of the mayor that there was no police. So I do not think the railroad, if they intended to meet this thing, had anything else to do but to call on the State. I think it is a most dangerous power, and one that will stab the liberties of this country, that by the click of the telegraph they can call for a thousand armed men, instead of exhausting the civil authority, if it takes two weeks to do it. It is a dangerous power to give them.

By Senator Yutzy:

Q. You claim that they have the power to compel the Governor to furnish troops?

A. Who?

Q. The sheriff or the railroad company?

A. I say it is a power entrusted to him, that Mr. Scott can call on the Governor of the State and furnish transportation, after the sheriff only says so, because the sheriff must conform with the law.

Q. Is that dangerous that he has that right?

A. It is dangerous that any man has a right to ... with a thousand armed troops.

Q. It is dangerous for anyone to have that power?

A. The Governor or any other man. The bill reads: It says that the military shall be subordinate to the civil authorities. It means that the civil power are paramount, and the military should never be called in except to kill—they are not to be degraded into police.

Q. I want to know whether you wish to convey the idea that the railroad company or the sheriff has the power to call out the military, or that he can

only make a request, and the Governor has the power?

A. Under the old militia law of the State the sheriff could call them out, or General Pearson, or the major general in command of this division, and he could oblige them to serve as a posse. As it is to-day, he cannot do it.

By Mr. Lindsey:

Q. I understand, from what you have already said, that it was not necessary, in your opinion, to call out the militia in this instance, at the time they were called?

A. I don't exactly mean that, but I do mean to say, it seemed to be the only power at hand, as we have not enough provided in the city or county. It was ill advised and bad judgment when they were called to put them inside of the mob, and not to keep them in reserve. The purpose of a soldier is simply to kill, and it was particularly ill advised on Saturday, in the teeth of protests made by representative citizens. It could effect nothing but what it did effect, and that was violence in every form.

Q. You had not sufficient police force here to cope with a mob of its extent and power?

A. No, sir.

Q. The sheriff had not sufficient force to cope with it?

A. No.

Q. And I understand it would be folly for the sheriff to attempt to raise a posse of citizens to cope with it—then there was nothing left but to call out the military?

A. I do not see anything else—if they intended to do what they supposed they could do. I do not think it was necessary to call out anybody.

Q. You think it was ill advised, to undertake to move trains at the time?

A. They could not have moved a train, because they had not the men to move it, but they could have done there what they did elsewhere. They could have let it exhaust itself. The very presence of the soldiers begat excitement, and if they intended to intimidate the great crowd, I suppose the calling of the soldiers would do that, if they had cool leaders, men who understood what was to be done in an exigency of that sort. They ought not to be thrown into a crowd to be assaulted by stones.

Q. Would the mob have exhausted itself before there would have been great destruction of property?

A. There would not have been any destruction of property whatever.

Q. Would not there not have been a loss of perishable property that was in transit, too?

A. They seemed to be willing to make provision even for that. It seems to me the whole labor movement has failed signally in strikes in coal mines, in mills, and in large places, because it was only local, and the whole community failed to sympathize with them. They failed to get their rights by strikes, because it did not affect the general interests. They discovered, for the first time, where forty millions of people could be stricken as with a blow, by all the people on these roads refusing to work. They found out, for the first time, where the weak point was, as well as the strong point, in this country. They can do it again. When the employés—brakemen, trainmen, conductors, and engineers will agree not to run a railroad in this country, that is the end of traffic, and they can starve out whole communities. They discovered that fact, and then it was on Saturday evening, that labor sympathizing with those people, they partook of the strike, and helped to burn cars and carry on the work of destruction. That is a danger we are subject to, and the Governor, in this city, when he came back from the West, the very first proclamation he issued, was this:

PITTSBURGH, *July 25—1.30, A.M.*

To the people of the State of Pennsylvania:

WHEREAS, There exists a condition of turbulence and disorder within the State, extending to many interest, and threatening all communities, under the impulse of which there has grown up a spirit of lawlessness, requiring that all law observing citizens shall organize themselves into armed bodies for the purpose of self-protection and preserving the peace; therefore,

I, John F. Hartranft, Governor of the State of Pennsylvania, recommend that all citizens shall organize themselves into associations, with such arms as they can procure, for the purpose of maintaining order and suppressing violence, and all good citizens are warned against appearing in company with any mob or riotous assembly, and thus giving encouragement to violators of the law.

(Signed)

J. F. HARTRANFT,
Governor.

He did not confine it to Pittsburgh, but called for the whole power of the United States to put it down.

By Senator Yutzy:

Q. It was not on railroads?

A. It got into coal and everything. It struck labor. They found when you hit the mills it was only local; but when you struck the railroads it struck everybody. I will furnish you files of the papers. Also the official report of the coroner, and the testimony taken before him, and the number of people killed on Saturday.

Q. You have the official report of the coroner in the files?

A. Yes. The first fire there were ten people killed outright, and there were some sixty or seventy wounded—I have the names of all of them. The first fire the people were killed that had no right to be killed—the fire of Saturday night. Anybody that was killed after Saturday night had a right to

be killed; but it is a very dangerous doctrine—judges have to charge that—that everybody is constructively a mob that is then around, but that won't do in the United States, to charge that everybody is a mob.

Colonel Gray, re-called:

The witness: When I dismissed my command at the Union depot, at eleven o'clock on Saturday night, just in advance of that I want to say, because I took all the responsibility, General Brown left Twenty-eighth street on that afternoon about one or two o'clock, and came to the Union depot and left me in command, and it is in your testimony that I sent an officer to Colonel Howard, with the purpose in view—that purpose I want to say—I had felt all day that whatever orders they had were not carried out, and I thought it was impossible, so far as I was concerned, that something should be done, and I sent an officer to Colonel Howard, to ask his coöperation, and I would take a different course. I intended to vacate that railroad and prevent any one from coming on it; and I want to say in connection with that, there was some great difficulty—the local trains running in from Walls and East Liberty were coming constantly, and the strikers at all points on the railroad were arriving to and fro. They were getting off these trains and getting on them, so that the military were at a great disadvantage. Hundreds came in on every train, and got off right on the track; and another point I want to say, that after my men assembled—the companies coming at the original call—the men that wanted to come in on the railroad were put off; they couldn't get into the city; they wanted to report to the companies here on duty. They were put off the trains. I was telegraphed to for two or three days, men along the railroads were put off. I re-organized my regiment Monday morning—all the companies—two companies at the request of Mr. King, who was here from the Allegheny Valley railroad. At his request, I left one company in charge of the sheds, and my command was re-assembled, very promptly, to my great astonishment, Monday morning. There was no difficulty in getting the men to the armory and re-assembling, and I had two hundred and forty or two hundred and fifty men, and had two

companies outside of the city. My command was in service until the 6th day of December, and did faithful service. My officers are men that don't run away.

By Senator Yutzy:

Q. You account for the small turn out of your command, when you first assembled them, from the fact that they were prevented from coming on the trains, some of them?

A. Yes, sir.

At this point the committee adjourned until to-morrow morning, at eight and a half o'clock.

PITTSBURGH, *Tuesday, February 26, 1878.*

The committee met, at half past ten o'clock. Mr. Reyburn in the chair. All members present except Messrs. Larrabee and Lindsey.

Captain J. D. McFarland, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. John D. McFarland.

Q. Where do you reside?

A. 78 Logan street, Seventh ward.

Q. You were a member of the militia?

A. Yes, sir.

Q. In what capacity?

A. Captain of the Washington infantry.

Q. Were you called out during the late disturbance?

A. Yes, sir; called out—got my orders on Friday morning.

Q. Will you be kind enough to make a statement of what you know in relation to the late riots?

A. On Friday, I believe the 21st of July, I received orders from the adjutant of the regiment to which we are attached, to assemble my command as soon as possible, at the armory. I sent a notice to the sergeants of the company, and about two o'clock in the afternoon, I reported to Colonel Howard, commanding the regiment, at Union depot. We stayed there some time—a short time—I suppose an hour, perhaps an hour and a half. The regiment was ordered out on the street, with two pieces of Breck's battery, to proceed to Twenty-eighth street. We were halted, after marching three or four hundred yards. We had no ammunition, and there was a box opened on the stone wall near the depot, and to the best of my recollection, we there received one hundred and twenty rounds for the company—that was issued to us—to the whole of the command, and we remained on the street some time, I suppose, maybe three quarters of an hour, and then we were ordered back on to the platform of the depot, inside of the railroad company's lines. We remained there all that night, the night of Friday, and until Saturday morning, until about four o'clock. At four o'clock we were ordered to move out along the line of the tracks. Two pieces of Breck's battery was placed on a gondola car, and the regiment I understood had been sent around in the rear on the hill. We were the first company on the track at Twenty-eighth street, and arriving there, we found from twenty-five to thirty men, citizens. There were not over thirty, I think; and to the best of my knowledge, the colonel ordered me to clear the tracks, and put them off the company's property, which we did. We moved up and down the track, and that was repeated, I suppose, a couple of hours. When we would move down the track to clear it, the parties would gather in on our rear and flank, there had

been no pickets out, and they would gather in on our rear on the track. We remained there with the command, clearing the tracks, I suppose, until about two o'clock in the afternoon.

By Senator Yutzy:

Q. On Saturday?

A. Yes; on Saturday, perhaps later than that. I am not certain about the time. At that time I came in, had permission to come in and attend to some private business, and I was not there during the firing. As soon as I heard there was such a thing, I hastened out, and found that the Philadelphia troops had been put in the round-house, and it was reported that the Fourteenth and Nineteenth regiments, which constitute our division, that the Eighteenth had been sent to the Union depot. I learned this at the hospital. There was then a great mob making such a noise, as a mob usually does. I hastened to the Union depot, and met the sergeant, who informed me that our regiment was out at the transfer office. I went out there, and found General Brown and Colonel Howard with a portion of the command in a shed surrounded by cars. I asked Colonel Howard—he was the first officer I saw—asked him what he was doing there. He said he was there by orders, and asked me the state of affairs in the city. I told him the condition in the neighborhood of the Union depot. There was a large mob upon the street—from the Union depot to Twenty-eighth street was crowded with a mob, and they were hooting, yelling, and threatening what they would do. I heard them shouting, they would break into the armories and gun stores—that was the common threat that was used by the mob on the street. That afternoon, Colonel Howard said to me, that he would see General Brown, who was up stairs in the transfer office. General Brown came down. He asked me the condition. I made to him the same statement I had made to Colonel Howard, and I advised him to take another position than that—he had first asked me what my advice would have been. I told him that I thought he might get a better place for the men than that. I then came down to the city, to the armory, and found the mob there who had broken in and taken all the

arms that had been left in the armory, with the exception of those that had been concealed. They got the arms and left.

By Senator Reyburn:

Q. Where is your armory?

A. It is on Market street. It is in the city property, over one of the market-houses. All of the regiments are quartered there in the city property. I suppose I had been there fifteen or twenty minutes when the balance of the officers, and the men of the regiment, came down into the armory. There was nothing more done that night. I was on the streets, I suppose, until twelve o'clock, until an alarm from the box at Twenty-eighth street sounded for fire, and, in company with several other persons, we started on the hill above the hospital, or near the hospital, not quite so far out, and there saw what I took to be the first car that was burned that had been set on fire. It was running down near the round-house. I remained on the hill a good portion of that evening—it was then morning.

Q. Sunday morning?

A. Sunday morning; yes, sir. Sunday morning I came home and laid down awhile, and got breakfast, and started to the city to see if anything had been done to gather the battalion together. I saw none of the officers on the street at all, I believe, with the exception of the assistant adjutant general, Colonel Moore, of our division, and one officer of General Pearson's staff. There was nothing done that day until afternoon. A citizen came up to the house—I had gone home. He said to me, says he, "The citizens are going to put this thing down. They would like to get your arms." I said, "No; if the citizens will back us up, we will find a gun for every man. We have got all ours. All we want is ammunition and backing." I sent out and I had as many men of my company who lived near me come to a room in my own house, and I there ordered those men to go out, and order the balance of the company to take their accoutrements, which they had so thrown off, and come to the mayor's office. I did not want to go to my own armory. In fact, I was afraid to go there, from the fact that it was a place that could not have been

defended at all. It could easily be set fire to. Went to the mayor, and asked him if I could have one of the rooms in which to assemble men. He said, "Certainly." He was glad I had come. I sent one of my officers out—my first lieutenant, Mr. Brown—out to our colonel's house. I sent my lieutenant out to notify Colonel Howard what I had done—I had ordered the company to assemble at the mayor's office—and asking if he would procure us more ammunition than what I had. He came in—General Brown came in—and General Brown gave me an order on Major Buffington, and Mayor McCarthy furnished us with a wagon in which to go out and get ammunition. Major Buffington returned word that they had scarcely sufficient ammunition to give to their own guard. I stated the case to Mayor McCarthy, and Mayor McCarthy, about eleven o'clock, started out, and, in the course of a half or three quarters of an hour, he came back and handed me two hundred and forty rounds which he had got. He asked me if I would remain with him during the night, and put down any disturbance. I said I would, subject to the orders of my superior officers. On Monday morning, about half past eight or nine o'clock, I had left the men go to get something to eat, and the mayor said to me, "I don't want you to let the men go away from here unless under orders, and I will see that they receive provisions; that I should take my men around to a saloon near there; they would be attended to there." Shortly after breakfast he notified me there was a boat load of miners coming down on the packet from Elizabeth. He had received information that they had come down, and expected a pretty rough time, and asked me to go with them. I assembled the men, and General Brown went down with us. There was a squad of police. As I recollect the line of march, there was a squad of police in front. There was my company, and then there was a company of citizens, armed with shot-guns, rifles, and carbines, under the command of General Negley. General Negley and Mayor McCarthy and General Joe Brown were with us. We went down to Smithfield street, and we learned that the men, in place of coming down on the packet as far as its regular landing, had got off about half a mile above the landing, and come down that way; I suppose, so as to get in the city without any trouble. I threw my company across Grant street, and blocked up the passage. Ordered the men to load, and I saw then, while standing in

front of the command, General Negley and Mayor McCarthy and others, making addresses to this band of miners—they were all reputed to be miners—I do not know whether they were or not. The crowd was dispersed. We marched down to Water street. There were no shots fired—no disturbance of any kind. They seemed to be pacified by the remarks made by the officers. We then went back to city hall, to the mayor's office, and were quartered there until the afternoon, when I received orders to report to my colonel. I reported to him on First avenue, and after supper we were sent to our armory again. During the night, between ten and eleven o'clock, I was ordered out again to support another detachment of the police. It seems that a party of roughs from Cumberland had taken a train, and taken possession of it, and the mayor was notified, and he sent down a detail of police, and we were sent down to support the police. The police had men under arrest before we got there, and the next day we escorted these men and the police over to Allegheny, to take the cars for Claremont. That was about all the trouble—all the duty we really did, with the exception of some ordinary patrolling—marching around. There was nothing of any importance.

By Senator Yutzy:

Q. You came from the transfer station to your armory in the city—this was on Saturday night?

A. This was on Saturday night.

Q. What time in the night?

A. I should judge it would be about eleven o'clock.

Q. Bring your command down to the armory?

A. No, sir.

Q. Did you leave your command there?

A. Yes, sir.

Q. And never went back to the regiment after that, that night?

A. That night. No, sir. The regiment was disbanded, as I understood it.

Q. You understood that next day?

A. Yes, sir; well, I knew of the fact within half an hour afterwards as I stated. The balance of the officers came there while I was still in the armory.

Q. What was your object in going to the armory?

A. My object in going there was to save any property that could possibly be saved. We had considerable property there of ours independent of the State's.

Q. Were you in uniform when you came down to the armory?

A. No, sir.

Q. Citizen's dress?

A. Plain clothes.

Q. Were you in citizen's dress during the time you were in command?

A. No, sir.

Q. You changed your uniform?

A. It would be impossible, in my own opinion, for any man to have gone through that mob in uniform.

Q. You rallied your men on Sunday and went to the mayor's office—did you remain there during all of Sunday?

A. All of Sunday evening and Sunday night and up until Monday, until we went with the mayor to stop the progress of these miners.

Q. Where was the balance of your regiment?

A. I do not know, sir. I know they were assembled on Monday—I do this from hearsay, which, of course, is not evidence—I know that there were two of the companies in Allegheny who were doing duty of one kind or other over there.

By Senator Reyburn:

Q. There was no organization of the regiment—you received no orders from the colonel?

A. No, sir.

Q. You were acting independently?

A. Yes; I was acting independently in support of the mayor.

Thomas Graham, *sworn*:

By Senator Reyburn:

Q. Give your full name and address?

A. Thomas C. Graham.

Q. Where do you reside?

A. I reside in the Fifteenth ward of Pittsburgh.

Q. What is your occupation?

A. I am janitor of the city hall.

Q. Have you any information concerning the riots of July, the subject which we are investigating?

A. I was present at Twenty-eighth street, at the side of the hill, at the time the firing was done.

Q. Be good enough to state, then, what you know about it?

A. I was on my way home about a quarter past four o'clock, I think, to the best of my knowledge, and General Brown was in the car with me; the car was pretty well crowded; we were standing up. When we arrived at Twenty-eighth street he said to me, Come along up and see the military; come up along. I said I didn't care about going up, and I didn't think that any one outside of the railroad employés had any business there; but he said he was not going to stop, and rather insisted, and I got off the car, and went up there. We crossed over the track, and away from the crowd altogether, on the south side of the track, beside of the hill, and we walked up that way, leading along the public road—it is used as a public thoroughfare, to a certain extent—and there halted. I thought by going up there we could have a good view of everything that was going on, and get out of danger. I found out my mistake afterwards, though. When the military came up I was standing right about seventy-five or one hundred feet from the tracks, on the side of the hill. Was elevated a considerable distance, and had a good view over all that was going on. I kept moving my head, or rather my eyes rolling, from one point to the other, taking all in that was going on, and when the troops came up and cleared the track on both sides, the battery came up and across, through Twenty-eighth street; they could not get through, but part of them came to support the battery; came up, and when they got up to the crowd—there is a watch-box stationed on the side of the hill, by the side of the hospital gate, and there was a crowd of half grown boys congregated around that box. I seen, as soon as they came up by the boys, they stooped down and picked up stones, there was like to be trouble, but I concluded I would be safe where I was, and remained there. As soon as the troops came up to Twenty-eighth street crossing, the boys commenced to throw at the troops, and some missiles were thrown from the corner of the hospital grounds. Then the firing began, and continued for quite a length of time. I stayed where I was, until I saw two men fall, one of them as close as to that window, the other one further down, towards the track. There was a ravine in the rear of where I was standing, and I made the remark to a gentleman standing by me that it appeared to be getting very warm here, we had better get out of this, and I leaped right into the ravine,

and there remained until the firing was over, and then came down and went home. I didn't come out of my house down the street, as I live eight squares further from there out. I didn't come in till that night. That was about what I saw of the occurrence.

Q. How many people were engaged in this throwing?

A. Well, as I said, the starting point of the throwing came from the side of the watch-box—the watch-box of the man who tends switch. There was about a dozen of them around there, and that was where the throwing commenced.

Q. Did you see any of the troops struck with stones?

A. No; I didn't see anyone struck particularly, but I would consider it would be impossible most to throw into that crowd without striking some one. I didn't see any missiles.

Q. Were you close enough to hear any command given by the officers?

A. I was about seventy-five or one hundred feet when the throwing begun; I heard the word "fire" very distinctly.

Q. Where did it come from?

A. It appeared to come from the head of the column.

Q. Was it in the crowd?

A. I should say, that it came from the head of the military column—there was not more than a space of, I suppose, thirty feet, and it might have been a little more, it could not have been much more than that from the head of the column to Twenty-eighth street, where the crowd was.

Q. From the head of the column?

A. Yes, sir.

Q. Which column do you mean?

A. I am not a military man.

Q. You mean the company marched up?

A. No, sir; the company that marched up was then as close as I am to the other side of the table, with their arms at a charge.

Q. Close to what?

A. To the crowd at Twenty-eighth street.

Q. Trying to press the crowd back?

A. Trying to press the crowd or make their way through them—was not thrusting or anything of that kind.

Q. You don't know who gave this command, or was it an exclamation you heard in the crowd?

A. I am under the impression that it was a command or a military order, but I would not swear who it was that gave it. I could not do that.

By Senator Yutzy:

Q. Did it appear to be in front of the command—the head of the column where the command came from to fire?

A. I was standing immediately opposite the head of the column, and the sound of that command appeared to come directly opposite to me, down at the head of the column.

Q. Did you see any officers in advance of that command?

A. When the military marched up?

Q. At that time, when you heard this command, were any officers in advance of the column?

A. I seen several officers. The most of the officers were strangers. I don't know who they were. I could see they were officers, by their uniform.

Q. Were they in front of the men?

A. They were in front of them at the head of the column. The troops were formed in a hollow square. They marched up, and then got the command front. They marched to the side of the hill, to clear the track of any that might be there, and those who were standing on the track got up on the side of the hill. There were very few on that side. The rear rank got the command, To the rear, open order, march.

Q. You heard these commands?

A. Yes; very distinctly. They got the command to about, and then they marched to the north side, which left an interval of two or three tracks clear—formed a hollow square.

Q. This company marched down between these two lines?

A. This company appeared to be at the head of the column, and they marched through up the lines. There was a portion of them came away to let them in, and they marched up.

Q. Was there a company marched up between those two lines, after the open order?

A. The company appeared to come from the head of the column.

Q. Wheeled out from the head of the column?

A. I don't think—I am not positive, but I am under the impression it was separated from the column. I would not swear positively. They were dressed in blue.

Q. How did they march up—company front—in line of battle?

A. They marched up, I think, in sections of about four—I am not positive about that.

Q. Until they reached——

A. Nearly to Twenty-eighth street, then they halted.

Q. And saw them open order, and one rank faced about, and they took positions on two sides of the track, which left a place between?

A. Yes, sir.

Q. Then was there a company marched up between these two?

A. I am not positive, but I think this company was taken from the head, or a portion of it—it was not a full company, it was what you might term a squad—there was not, I suppose, over twenty-five.

Q. It was taken from the head of the column?

A. Yes, sir.

Q. Was there a company marched up between those two ranks?

A. I think a battery. I think this company, as I said, was taken from the head of the column, and marched up to support the battery, in order to get through the crowd at Twenty-eighth street.

Q. Did this company turn around and face the crowd—how did they face? This crowd, you said, they marched up and tried to press the crowd back, and they wheeled out from the column and marched up against the crowd, or did they go down between the two lines, and march up against the crowd?

A. I stated that they appeared to be reserved for the purpose of supporting that battery, as they were not brought from the rear in front rank at all.

By Senator Reyburn:

Q. Did you see the sheriff and his posse?

A. I did.

Q. Where were they?

A. They were at the head, coming up—the head of the column.

Q. All of them?

A. All of them. I recognized Sheriff Fife, Mr. Pitcairn, superintendent of the Pennsylvania railroad, and General Pearson at the head. When they came up, the sheriff attempted to say something to the crowd, and there was such jeering and hallooing, it was impossible to be heard from where I was standing.

Q. You are positive about hearing this command to fire—was not this jeering——

A. That jeering and hooting was not at that particular time. There appeared to be a little confusion when that portion of the company came up, the jeering only began during the speaking of the sheriff. I don't know whether he was reading the riot act or not. I don't know what he was doing; of course I could not hear it.

E. F. A. Hastings, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. E. F. A., not quite the whole alphabet.

Q. Where do you reside, Mr. Hastings?

A. I live between Twenty-second and Twenty-third now.

Q. What is your occupation?

A. Machinist.

Q. Were you present during the disturbance last July?

A. Yes, I was.

Q. State what came under your observation?

A. I was there on Twenty-eighth street, on the side of the hill, when the troops were coming up, and I waited there until they came pretty well up the track, then I came down the hill, and I looked for my boy.

Q. What time was this?

A. On Saturday afternoon, when I seen the troops come up—and they came in regular—I think it was four deep. They came up and stopped and halted. They turned around in open order, formed in a hollow square, and I turned around and came away with the young man, and I took him off the track, and started him down towards Penn street. I turned around and looked for my boy, and I could not see him. Walked in towards the cars, and stood by the side of the sand-house—the cars extended up a little ways beyond the sand-house—and I got right in to the end of the car. Then came orders to charge bayonets. I turned to get back, and the crowd was behind, and I could not get back. I got a bayonet right in behind here. [Indicating.] Just at that time Pearson stood in about that direction.

Q. Who do you mean by Pearson?

A. General Pearson, or Pierson, or whatever you call him. He was looking in the direction towards the watch-box. There was some stones being thrown over there—it would fly all to pieces, it appeared to be like clay. There was only one stone I could distinguish, about that large, [indicating,] the shape of an oyster shell. It came from there. Then there was a couple of old shoes—I didn't see anybody struck with them. Pearson turned around, when he was standing there he was looking about this—he turned around towards the men, and his officer standing here—I don't know whether they belonged to Pittsburgh, or where they belonged, and I don't know whether they were officers. Monkey jackets it was, I think. He says, "Order your men to fire." He repeated the word fire louder than he did the others, and turned around, and walked right down the track after that. I did not see them commence firing, and I dropped right down. They fired on that corner, on the side of the hill first—these men in front with the black plumes in their hat. I don't know one from the other. They wheeled round, and fired down Twenty-eighth street. They walked over the top of me. I laid there. I don't

know where Pearson or any of the rest went after that. I got up, and helped this man in front of me, that was killed—I helped him back.

Q. What man do you mean?

A. Some say it was Dearnmot, I don't know his name.

Q. Killed by the cars?

A. No; killed by the firing. A gun was right up against his breast when he was shot.

Q. Where did this fire come from—those men standing by the cars?

A. The military all around that hollow-square, except the lower end. I laid there; I was right underneath them; could see the whole thing that was going on. Some of the men fired right up in the air. I don't know whether they belonged to Philadelphia or not.

By Senator Yutzy:

Q. From what part of the line of this hollow-square did the firing commence?

A. I will show you in just about a minute.

[Witness illustrates on paper, the situation of the troops during the firing.]

Q. Just say where the first fire commenced in that hollow square, so that the reporter can take it down.

A. It was near the corner, on the side of the track next to the hill.

Q. Near the corner of the square of troops, next to the hill?

A. There was no square there. It was round.

Q. It came from the right, next towards the hill?

A. Next towards the hill.

Q. How many shots were fired at first?

A. They shot like a little fellow would throw a lot of shooting crackers out.

Q. How long after you heard the command to fire did this shooting commence?

A. It was right by those other fellows standing over on this side—right by them. I guess there was four or five of them repeated it. I took them to be officers.

Q. Dressed differently?

A. Yes, sir.

By Senator Reyburn:

Q. Were they in front of their men when they gave the order?

A. They were in this hollow square.

Q. Did they turn round to fire?

A. They were facing the crowd to fire. Pearson turned and gave these men the command.

Q. It was General Pearson that gave the command?

A. Yes, sir.

Q. You are positive it was General Pearson?

A. I am positive. I was standing close enough to hear him.

Q. Did he give the command to fire, or was he cautioning the men?

A. He gave the command to fire, and repeated the word fire louder than he did all the others.

By Senator Yutzy:

Q. Were there any other officers in that hollow square, that you knew, besides General Pearson?

A. None to my knowledge, that I knew. There were some men that I knew, coming up ahead of them. Mr. Pitcairn and Mr. Watt came up ahead of them. I know some of them, beside, but don't know their names.

Q. Do you know Colonel Brown or Moore?

A. I don't know him by name.

Q. Did General Pearson give this command to an officer standing close by him?

A. Yes; called them officers.

Q. You saw him when he gave the command?

A. The men that had swords, I think.

Q. You saw General Pearson when he gave this order?

A. Yes, sir.

Q. How close was he to the men he gave the order to?

A. He was standing looking towards the switch box, where these were coming from. Right in front there were some men had a bayonet in another, and he wanted to get it away. He wheeled round this way and gave the orders for these men to fire, and then walked right down the track, but wherever he went to I could not say.

Q. Was he standing close to where the men commenced firing when he gave the order to those men? You say he wheeled around; those he gave the command to must have been behind him?

A. Here is where he stood. [Illustrating.] He wheeled around to the officers to the rear, and they passed the command to the officers in front. They repeated the order to fire.

By Mr. Means:

Q. Did the officers who repeated that command repeat it in a distinct, loud tone of voice?

A. Yes; they repeated it distinctly.

Q. How many of them?

A. There were some three or four, I could not say exactly. I am positive there was three or four, if not more—positive of three.

Q. And then the firing was done—it was not a volley of musketry—it was just done at random, was it?

A. The first squad that fired there, I don't believe there was more than about half a second between them, and the squads, as soon as this squad fired on this side first, then these other fellows here fired, [indicating,] and the crowd broke away and run down. I laid there. They wheeled right down over me, and fired down Twenty-eighth street.

By Senator Reyburn:

Q. Did the crowd scatter when they fired?

A. The crowd scattered.

By Mr. Means:

Q. How many of the soldiers fired at that time—at the first command?

A. The first fire?

Q. When General Pearson gave the command to fire, then his officers under him repeated the command. Now how many soldiers fired when these officers repeated that command?

A. It looked about like a platoon—about twenty-five, I suppose, if not more.

By Senator Reyburn:

Q. Were the crowd resisting these men? What were they doing when the soldiers came up?

A. They were on Twenty-eighth street crossing—the railroad crosses Twenty-eighth street—they were on there. They were talking and hollering. Some man called Pearson—that was the man I took away—called Pearson a son of a bitch, and these men took Pearson's part. Says he: "Don't call Al a son of a bitch; he is a friend of mine!" I thought there was going to be a fight between them, too, and a man called me over and told me to get him away. I took him away with me across the track towards the round-house, and he started on down. There was nobody in front of me at all, and I had hardly got in there until the crowd was right at my heels.

By Mr. Means:

Q. You say there was about twenty-five men fired? How many men fired after that?

A. They appeared to be firing in squads all over the line.

Q. How long did this firing last?

A. I don't suppose it lasted more than about two and a half or three minutes—could not have lasted any longer, I think.

Q. What were the officers doing?

A. Some of them went down the track flying—running over the other side.

Q. They were hunting their quarters?

A. They were hunting their quarters.

By Mr. Dewees:

Q. Did you hear the order to load?

A. No, sir; they were all loaded before they got there. They could not have loaded in that time. After the first volley was fired, then I seen them loading—those men in front.

Q. Don't you know who gave the order to load?

A. I didn't hear anybody give the order to load.

Q. They loaded without orders?

A. I suppose so, after the first fire.

By Senator Reyburn:

Q. Did you see them load afterwards?

A. Yes; breech loaders.

Q. Did you see the operation?

A. I saw them pull the cock back—that part that turns back—and put in a cartridge. I was lying right underneath them when they were doing it. The parties in front fired the last shot down Twenty-eighth street. I don't know who they were. They were men with black plumes in their hats.

Q. You say the parties next to Twenty-eighth street were the last to fire?

A. They wheeled right round——

Q. That was the party that fired first?

A. No; the party that fired first was over here. [Illustrating.]

Q. The party facing down Liberty street?

A. Yes; they fired. There was some that was against a car that could not do anything.

Q. Did they fire before the front line fired?

A. They fired about the same time. There was a car stood in here when they fired, so that you could do nothing. Some of them fired up like.

Q. Fired in the air, did they?

A. They appeared to fire in the air.

Q. How did these men of this side? You say they turned and fired the other way?

A. No, sir; those men in front wheeled round this way, and fired down Twenty-eighth. Fired up first and then——

Q. Where did they deliver their first fire—the men on that north side of the track?

A. They fired some of them right up square—down below the car. I could not see on account of the cars.

By Senator Yutzy:

Q. You are positive that the firing did not come from that side of the line next towards Liberty street first?

A. I am positive it did not, for the first firing commenced along the side of the hill—that part I saw.

By Mr. Dewees:

Q. How far was General Pearson out from the military when this command to fire was given?

A. He was in the hollow square.

Q. How far from the men?

A. It would appear to be in the center, about Twenty-eighth street. You know this line went round on Twenty-eighth, and covered over part of Twenty-eighth street towards the hill.

Q. Did you see the fire during the night?

A. I was down on Penn street when the fire started. I do not know anything about that. I went up there to see it, and stood on Liberty street, watching the fire.

Q. Did you see the troops come out of the round-house?

A. No, sir; I did not. I was not there at that time.

By Senator Yutzy:

Q. You said General Pearson—he repeated the word fire louder than the balance of his order. Are you right positive what the balance of the order was?

A. Order your men to fire.

Q. That was the exact language?

A. That is the very words.

Q. You are positive you heard the words, "order your men?"

A. Right in that way: "Order your men to fire."

Q. Were any of the soldiers struck?

A. I did not see anybody struck. There was a man carried away. They say he got sun struck. I seen him carried away. I didn't see anybody hit.

Q. Did you hear any pistol shots, or any shots fired from the crowd, or in the crowd, before the firing of the soldiery?

A. No, sir.

Q. Did you hear any?

A. One appeared to be like a cap—it was right in that corner. [Indicating.]

Q. In the crowd?

A. That was the first shot I heard fired. That soldier fired it. He didn't fire straight out. His gun went off up in that way.

Q. You heard a noise like a cap before the firing of the troops?

A. I couldn't tell exactly where that come from. It appeared to be round the watch-box.

Q. About the switch-box?

A. Yes, sir.

Q. That is, the watch-box on the corner of the street, and the railroad toward the hill?

A. That was on the side of the hill. It was right here. [Indicating.]

Q. It appeared to come from that direction?

A. From that direction.

Q. Didn't it sound like a pistol shot?

A. No; like a cap.

By Mr. Means:

Q. Then you heard no firing from the crowd until after the military fired?

A. There was no firing done until the military.

Q. Was there any firing done from the crowd at all that you heard?

A. Yes; I seen the firing. Parties were firing from the side of the hill after that fire. A man on a car fired a revolver. He was laying right down at the end of the car. This man pulled out his revolver and fired at the crowd.

Q. There was no firing from the crowd or mob until after General Pearson had given the command to fire, and they had obeyed that command?

A. Yes, sir.

By Senator Yutzy:

Q. There was a man fired from a car?

A. That was after the firing was done.

Q. Do you know that man?

A. I would know him if I would see him. Don't know him by name. I have met him a dozen times on the street since. I didn't want to go and ask his name, for fear they would ask me what my name was.

Q. Do you know where he lives?

A. No, sir. I know he lives in the city somewhere.

Q. Do you know General Pearson well?

A. I know him just by seeing him, and that is about all. Never spoke to the man at all. I don't know whether he spoke to me that time in the car or not. I won't say positively.

Q. Why were you afraid to ask this man his name?

A. I will tell you just the reason why. I didn't want to be called up as a witness. I have had enough trouble running round with this thing. I don't want to go against a man.

Q. You prefer that he should go scot-free?

A. I don't think he done anything.

R. S. Jones, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. R. S. Jones.

Q. Where is your residence?

A. No. 337 Chestnut alley, south side.

Q. What is your occupation, Mr. Jones?

A. I am a boiler—puddler.

Q. Were you present at the fire that occurred by the troops on the Saturday, the 21st of July?

A. I was.

Q. Will you be kind enough to tell what you saw?

A. I went out there about quarter to four o'clock—near that time—got there just about half an hour before the troops came up—the Philadelphia troops. I was there when the command was given to fire. They marched up the track. I saw General Pearson there, and Sheriff Fife and his deputies, some of them I don't know.

Q. State the movements of the troops, and what you saw?

A. They marched up the track to the corner of Twenty-eighth street. They came to a front to the round-house—fronted to the round-house. The rear rank came to about face and charged bayonets. They marched across the track—the opposite side—and that left a space there of about thirty feet; and there was a company behind that, formed in two sections, and one section marched up the track—they charged bayonets—and the Gatling guns came right along after them. They came to the head of the column and stopped, and they about faced and formed a square. I heard the command given to fire. I was standing right alongside of one of the soldiers, talking to him at the time, from Philadelphia. I never thought they were going to fire, or I would not have been there.

Q. You heard the command given to fire?

A. Yes, sir; when they came by the officer that was at the head of the column, turned around and stepped right into the square, and the sheriff and his deputies stepped in.

Q. Did they fire in a volley?

A. They fired just about the same as a new recruited regiment—you can pick them out in the field—you give them orders to fire, and they wouldn't fire as one. I guess it was just about as near as they could fire under the circumstances. I suppose they were a little scared.

Q. Did the crowd resist these men?

A. I didn't see any disturbance whatever when I was there. I didn't stay there after the firing.

Q. Did you see anything thrown, or any disturbance in the crowd?

A. No, sir.

Q. The crowd just stood there?

A. They were all standing there before the firing. I guess there was not many there after the firing. I didn't stay there to see.

By Senator Yutzy:

Q. Did you see any stone thrown from the crowd at the soldiers before the firing?

A. I didn't, sir.

Q. Did you hear any firing from any one in the crowd?

A. I didn't.

Q. How long after you heard the command given to fire did the firing take place?

A. Instantly.

Q. Did you hear that command given by more than one officer?

A. I did not.

Q. Was it a simultaneous discharge of a good many pieces?

A. As I said before, it was just something like a new regiment.

Q. Have you had any experience in active service in the army?

A. I was in the army three years, sir.

Q. What is the difference between the firing in a new regiment and an old one?

A. They don't fire together—they will in time. Time makes everything perfect.

Q. The firing is somewhat like the firing in a battle, after the first volley is fired?

A. Yes; I suppose there was about a dozen guns went off, and then the rest followed, the same as a new regiment.

Q. What the boys used to call a rattling fire in the army?

A. Yes, sir.

By Mr. Means:

Q. How near were you to where General Pearson stood when this command was given?

A. I guess they were about the center of the square, and I was standing three men from the end, at the head of the column—that is, the right of the square towards the round-house.

Q. What distance would you suppose?

A. About fifteen feet, I guess.

Q. From where General Pearson was standing to where you were?

A. Yes, sir.

Q. You cannot tell whether General Pearson gave that command?

A. I don't know.

Q. Was the command given as though it was peremptory?

A. It was given in a clear, distinct voice.

Q. Give us the exact language of the command?

A. The first thing I heard was, "fire!" just about that loud.

By Mr. Reyburn:

Q. Did it come from the officers or the crowd?

A. It came from the inside of the square.

Q. You don't know who gave it?

A. I don't know. I was looking right in at the soldiers, too, but I could not swear who gave the order.

Q. Wouldn't you have been apt to notice? How were they dressed?

A. Pearson had a blouse.

By Senator Yutzy:

Q. A military blouse?

A. A military blouse. The rest of the officers had their swords on, the general, I don't think he had a sword on.

By Senator Reyburn:

Q. Did he have on a hat?

A. He had a cap on.

By Mr. Means:

Q. Might not that command have come from one of the men in the ranks?

A. I don't think so—I never heard an order given from a soldier in the ranks?

Q. Might not that command have come from one in the line, and not from the officer in command?

A. From where I was standing, I thought it came from right in the center. They were not standing in the center, they were standing about five feet from the head of this square. It came from that direction.

Q. You don't know whether it came from an officer or who it came from?

A. I couldn't state—I judge it did.

Q. You supposed it would, but you really don't know that it did?

A. No; I didn't see his mouth open at the time.

By Senator Reyburn:

Q. Were you present at the disturbance that night?

A. No, sir; I went home, and stayed there. I went out Sunday, and I guess half the cars were burned when I went out.

Q. You went over Saturday night, and stayed home the balance of the night?

A. Balance of the night; yes, sir.

Q. What was the feelings in the crowd?

A. I don't know. I didn't ask, and I felt just as if I had no business there, and the quicker I got out the better.

By Senator Yutzy:

Q. You say General Pearson wore a blouse and a cap?

A. Yes, sir.

Q. Did he have any braid or anything of that kind about the uniform?

A. No; I don't think there was. I don't think there was anything to distinguish that he was a general or an officer of any kind.

Q. That is, to distinguish his rank?

A. No, sir; at least I didn't see it.

Q. Did he have brass buttons on his blouse?

A. Yes, sir.

Q. Did you take particular notice of it?

A. I was talking to him a few minutes before. The way I came to speak to him, we had gone up to the road above the track, and I had got through the guard. There was a guard across the track, and I had come through, and the party that had come with me—there was three of us, the guard wouldn't let them through, and the general was standing there and I asked him to let them through, and he said certainly, and they let the party through—that is the way I came to speak to him.

Q. Was that soon after or before the firing?

A. That was just before.

Q. Did you see General Pearson after the firing?

A. I didn't stay there after the firing. I got out of that as quick as I could.

Q. How long before the fire began did you see General Pearson?

A. I saw him before, and I saw him just when the order was given.

Q. Have you any knowledge of the causes leading to this strike first?

A. I have not, indeed. I don't know anything about it. I knew there was a strike.

Q. Did you see them leaving the round-house?

A. No, sir; I was not there.

William J. Shaner, *sworn*:

By Senator Reyburn:

Q. Where do you reside?

A. I board at 1145 Penn street.

Q. What is your occupation?

A. Roll turner. Work for my brother-in-law.

Q. Were you present on the day of the firing on the troops, on Saturday, the 21st of July?

A. Yes, sir.

Q. Describe where you were and what occurred, as near as you can recollect?

A. When the troops were coming up the track, I was up on the side of the hill, with a comrade of mine, Charles Bier. He and I went down a few steps, and waited until after they had got up and halted and formed two ranks. Before they formed a hollow square, I says to him, I am going down to see them, and to hear, if I can hear them read anything or say anything. He said, No, no, he says, you might get hurt. Says I, No, there is danger; so I left him standing, and went down and made my way in. There was a good many standing around at that time, and the watch-box which stood there—I put my foot up on the window, and held on to a bracket, a little above the rest of the crowd, and I stood there for a few moments, and I heard the command

given to fire, and when it was given I tried to get down, but I couldn't on account of the crowd there, and when they had cleared away, I got down and ran up to the ravine there, and laid down the best I could. That was my position when the firing took place. When the firing ceased, I went and looked to see if I could see my comrade, and I couldn't find him. I went down the street, and found that he was shot. I didn't find him until I found him in the hospital. I got everything he had on his person, and carried them home to his folks.

Q. You heard the command given to fire?

A. Yes, sir.

Q. What occurred—did the crowd stand still, or were they making a noise—and did they interfere with the soldiers?

A. There was no interference with the soldiers at all.

Q. Did you see anything thrown?

A. Yes, I did.

Q. What was thrown?

A. I saw one stone, to my knowledge, and that was all thrown—about as large as your hand—for it come from the corner of where the gate goes up to the hospital—the right hand corner as you face Twenty-eight street.

Q. Did you hear any firing by the crowd before the soldiers were ordered to fire?

A. No, sir.

Q. Did you hear any firing from the watch-box there?

A. Yes, sir; the soldiers—not from the crowd.

Q. Not from the crowd?

A. Not at all.

Q. There was no firing at all from that part of the crowd?

A. No, sir.

Q. Could you have heard any firing?

A. Yes, I could have.

Q. It was quiet there?

A. So far as firing was concerned it was.

Q. I mean before this firing took place?

A. There was noise, talking, and hooting, and just when the military fired for a moment it ceased like.

Q. You could hear who gave the command?

A. Yes, sir.

Q. Who was it—an officer?

A. Yes, it was an officer.

Q. Do you know him?

A. Yes, I do.

Q. Who was it?

A. General Pearson, or Albert Pearson.

Q. Do you know General Pearson?

A. Yes, I do.

Q. How long have you known him?

A. That is, I know him by sight, but never spoke to the man in my life.

Q. How was he dressed that day?

A. He was dressed in a white vest and blouse, with brass buttons on it, and the blouse was buttoned up middling close to the neck, and he had something similar to that. [Indicating.]

Q. A soft hat?

A. Yes; as near as I could see.

Q. Did you know General Pearson before that?

A. Yes, sir.

Q. In all this confusion, you could see General Pearson give the command to fire?

A. Right at the moment the command to fire was given, it was kind of stopped—the confusion was—and I heard distinctly the command "fire" given by General Pearson.

Q. Where was he standing?

A. He was standing a little over half way through the square, towards the rear rank.

Q. Did the men fire as soon as he gave the command?

A. Yes, sir.

Q. They fired at his command?

A. They fired at his command.

Q. You are sure of that?

A. I am certain of it.

Q. Did you see any of the soldiers struck by any stones? You say you only saw one stone thrown?

A. I only saw one stone thrown, to my knowledge, that I could distinguish perfectly, and I didn't see any soldier struck at all.

By Senator Yutzy:

Q. After General Pearson gave the command to fire, was it repeated by any other officers?

A. Not to my knowledge. I didn't pay any attention to it. I tried to get out of the ... and I couldn't. I was looking out for my head, then.

Q. How did you know the order was given by Pearson?

A. I saw it. I saw General Pearson, and saw his lips move.

Q. In what direction was he facing, then?

A. He was kind of facing toward the rear rank.

Q. Towards the hill-side?

A. No, sir.

Q. The other way down, towards Liberty street?

A. Kind of towards the sand-house.

Q. That is, on the left hand side, as you could see?

A. Yes, sir.

Q. He was facing in that direction?

A. Yes, sir.

Q. Did the fire commence from that direction?

A. No, sir; it commenced from the corner, right at the watch-box.

Q. Did he turn his back to give the command?

A. He kind of turned round to the officers that were there, and who they were I don't know.

Q. He had his back towards the watch-box when the command was given to fire?

A. Not altogether, he didn't. [Witness illustrates the situation of affairs on paper.] That is Twenty-eighth street; here is the watch-box; there is the rear rank; and here is the front rank; and here is General Pearson, right in here; and here is where the firing commenced; and General Pearson was standing, with his face towards Twenty-eighth street, before he gave the command to fire; and when he turned, he turned right around this way, and his face was directed about towards me; I could look right into his face there. There was a man standing between me and General Pearson, up like from him, and that was an officer, and who that officer was I don't know.

Q. You say you heard no command from any of the other officers?

A. No, sir.

By Senator Reyburn:

Q. What did he do after the firing? Did you notice what became of him?

A. I took notice he disappeared very quickly. I don't know whether he was inspecting car wheels or not.

Q. All that I want to know is what occurred after the command to fire was given?

A. The firing commenced immediately.

By Mr. Means:

Q. You didn't tell them that General Pearson was inspecting car wheels, did you?

A. It was hard to say what he was doing, I know he got away.

By Senator Yutzy:

Q. You say General Pearson had a blouse on?

A. Yes, sir.

Q. It was buttoned up close?

A. Buttoned up right across there. [Indicating.]

Q. That is, how far from his chin?

A. About there. [Indicating.]

Q. About six inches.

A. I suppose about that—six or seven inches, as near as I could see.

Q. How many rows of buttons had he on his coat?

A. That I don't know.

Q. What kind of a hat did he wear?

A. A soft hat, something similar to that.

Q. Had he any braid, or any thing else; a wreath, or anything on his hat?

A. Not as I took notice of.

Q. Had he any trimmings on his coat to distinguish him from the other officers?

A. No, sir; not that I saw.

Q. Had he any braid on his breast?

A. No, sir; it was brass buttoned.

Q. Buttoned clear up?

A. It was buttoned at the top. Buttoned, but I do not know whether it was buttoned below; it was a kind of a sack——

Q. You say he wore a white vest?

A. No, sir.

Q. How could you know that he wore a white vest?

A. I could see his white vest here. [Indicating.] His vest came up middling close.

By Mr. Dewees:

Q. Did you hear General Pearson, or anybody else, notify the mob to disperse?

A. No, sir.

Q. Did you hear anybody give orders to load?

A. No, sir.

Q. You heard nothing but the word, fire?

A. There was a command before that, to charge bayonets, but I do not know who it was that gave that. I did not see him.

Q. You were standing upon the window?

A. With my foot on the window, and holding on to the bracket above.

Q. Were there any officers about, except General Pearson?

A. Yes; there were other officers there, but I do not know who they were.

By Senator Reyburn:

Q. Did General Pearson have on a belt and sword?

A. No, sir; not as I saw.

Q. He had nothing then by which you could distinguish him as an officer—he had no shoulder straps?

A. No, sir.

Q. No trimmings on his coat?

A. No, sir; not as I saw.

Q. Nor any sword. He was just simply dressed as a civilian, with the exception of his blouse and brass buttons?

A. Yes, sir; a blouse. I did not take notice to his dress, only in that way.

Q. Had he shoulder straps on?

A. No, sir; not as I saw.

Q. You are sure of that?

A. So far as I know. I did not see it.

Q. You would have noticed it if he had?

A. I should think so.

Q. Did you see the sheriff?

A. I did not know Sheriff Fife, but a man was pointed out to me as Sheriff Fife, and I would know him again if I was to see him. The man that was pointed out to me had a straw hat on.

Q. You are sure General Pearson was not pointed out to you?

A. No, sir; I am sure of that. No man need point out General Pearson to me.

Q. You are sure somebody did not say in that crowd, "There is General Pearson along with the sheriff's posse."

A. Not to my recollection. There was no one told me that. When they came up, General Pearson, Sheriff Fife, and some other man—and who this man was I did not know—was kind of together. They were at the head of the column, and came up the railroad just as they halted, and before they formed an open square.

By Mr. Means:

Q. You said you did not know Sheriff Fife. How do you know it was Sheriff Fife?

A. I said a man that was pointed out to me as Sheriff Fife. I did not know the man personally, only he was pointed out to me that day by a party that that was Sheriff Fife. I never saw the man before, to my recollection, or afterwards.

Q. Did you see any party of citizens in front of the military, as they came up?

A. As they came up the track?

Q. Yes?

A. No, sir; only those at Twenty-eighth street.

Q. Only the crowd that was at Twenty-eighth street?

A. That is all.

Q. You did not see any civilians in front of the military as they marched up?

A. Not to my recollection.

Q. You say you went down to hear the sheriff's proclamation?

A. I went down to hear if he would read any riot act, or anything like that.

Q. You did not see the sheriff at all?

A. Only when he was pointed out to me as the sheriff, as I stated before.

Q. Did not see the party with the man who was pointed out as the sheriff?

A. I said I saw General Pearson and some other gentleman with the sheriff.

Q. There were only three of them?

A. Those were together. There were a great many others alongside of them.

Q. When the military marched up the track, what led you to go down to hear the proclamation?

A. Nothing; only curiosity.

Q. Did you understand that the sheriff was coming there with a posse? That he was going to read the riot act, or something of that kind?

A. No, sir; I did not know that the sheriff was coming at all. I did not know who was coming until after they got up there.

Q. What did you go down—you said you went down to hear what the sheriff would say?

A. I went down there to hear whether there would be anything read, or what would be said, and that was after the sheriff was pointed out to me.

By Senator Yutzy:

Q. You went down there after the sheriff was pointed out to you?

A. I went down to the watch-box after the sheriff was pointed out to me.

By Senator Reyburn:

Q. There were only three of them together, Sheriff Fife, General Pearson, and another man?

A. That other man, I do not know who it was.

Q. I mean in front of the soldiers.

A. There were other ones around them. There were other officers near them. Those three were pretty close together.

Q. When did you go there in the crowd?

A. I went up on the side of the hill among the boys before the Philadelphia troops came in at all; before I knew they were coming in—before the train

came in, I went up among the boys. I know a great many of them among the military. Spoke to them and shook hands with them.

Q. Talked with them?

A. Yes, sir.

Q. Did you witness any of the occurrences during the night after the firing?

A. The only thing I saw after the firing was a car that was fired, and I could see that plainly from the steps I was sitting on, with two other boarders that were sitting around the steps. The steps are very large, and one of the boarders drew attention to it. He says, "What is that lighting up there." I asked him, what. He says, "Don't you see it?" I said, "It is nothing more than a railroad man's lamp."

Q. You were not down in the crowd?

A. I was four or five squares away.

Q. I understood you to say you went to look for your friend?

A. That was after the firing commenced. It was before dark I had found him, but I had left him in the hospital just before dusk, and went to his home. I came back to the boarding-house and got my supper, and stayed there.

Q. Have you any knowledge of the causes?

A. No, sir.

By Senator Yutzy:

Q. What style of hat did General Pearson wear? You said he had a slouch hat. Of what color was it?

A. It appeared to me as soft. It was black.

Q. Broad brimmed hat?

A. I do not know. The rim was not broader than that [indicating]—it might have been.

By Senator Reyburn:

Q. It was a straw hat?

A. No, sir.

By Senator Yutzy:

Q. Did you see any policemen there at the time of the fire?

A. When the Philadelphia soldiers fired?

By Senator Reyburn:

Q. Yes.

A. Not to my knowledge, I did not.

Q. What do you mean by your knowledge. Do you mean you did not see it at all—you did not see any police officers?

A. That I did not see them to the best of my knowledge. They might have been there. I did not see them.

Q. Did you see the soldiers come out of the round-house, Sunday?

A. No, sir; I did not.

Q. Did you see them after they came out?

A. Yes; I did.

Q. As they marched along?

A. Yes; in order.

Q. Did you see any firing on them.

A. Yes; I did.

Q. Do you know who did that firing?

A. No, sir; I do not. The only one I saw firing was one man, and he was running the whole crowd of them out, as near as I could tell.

Q. One man was following them up?

A. That was the only man I saw have a shooting iron with him, and he had his coat off; but who he was I do not know, and I would not know him if I was to see him, for I was standing in the doorway of the boarding house when he went past, and he loaded his gun right ferninst the door. He had one of the guns the same as the military uses.

Q. Had a breech-loading musket?

A. Yes.

Q. And cartridges for it?

A. He had cartridges for it and a belt on—a cartridge-box.

Q. Did you see any firing from houses along the street?

A. No, sir; I did not go out for to see until after they had passed by. Then I went out along the street. After that, saw several of them that was shot—some killed dead—and helped pick them up and carry them in. One of the Philadelphia soldiers I helped up at Thirty-third street. A ball must have went in there [indicating] and come out through his wrist. At least the hole was through his wrist—through here and back here. [Indicating.]

Q. One man did all the shooting, you say?

A. That is the only man I saw—that is, right there where I live.

By Senator Yutzy:

Q. Where do you live?

A. 1145 Penn street—board there.

Q. Will you please describe that man that did that firing?

A. I cannot do it, sir. It is impossible. Only he was a tall man; but how he was dressed I could not tell, with the exception that he had a white shirt on, and whether it was an undershirt or a fine shirt I do not know, because I did not pay that much attention to it. He had his coat off.

Q. How close were you to him?

A. He passed along the pavement and I was standing out on the steps—the steps is five high, I think. I was standing in the doorway, and he was below me, and passed along the pavement.

Q. Was he an old or a young man?

A. Middle aged man, as far as I could judge.

Q. Did he wear whiskers?

A. That I could not say.

Q. Did he follow the troops up?

A. He followed them as far as the corner above. Then I did not take notice where he went to, because I come to the conclusion I was not going to interest myself in it.

Q. How many shots did you see him fire?

A. I only saw him fire one shot, and that he fired from the corner of Thirty-first street, and by the time he fired the shot I saw the troops he fired into stop and point down, and there was two balls came right past the door right over my head. I thought it was time to pass into the house.

By Senator Reyburn:

Q. Did this man say anything?

A. He said something about spilling the blood of some of his friends, and he was going to have revenge, when he passed the door. That is all I know.

By Senator Yutzy:

Q. What kind of a breech-loading gun did he have?

A. The same as the military have.

Q. It was a military gun, you mean?

A. It was a military gun; yes, sir.

Q. Did you ever attend any meeting, during that excitement, of citizens or people, for the purpose of organizing to resist the soldiers?

A. No, sir.

Q. Did you know of any meeting being held out Penn street or Butler street?

A. No, sir.

Q. Would you know this man that fired at the soldiers if you were to see him?

A. No, sir; I am certain of that.

Q. You say he had a cartridge-box—this man that fired?

A. Yes; and a white belt.

Q. Had it buckled around his body?

A. Yes, sir.

Q. What kind of a looking cartridge-box was it?

A. The same as the military used—a black one.

Q. A square box?

A. Yes; kind of square.

P. M. Stack, sworn:

By Senator Reyburn:

Q. Where do you reside?

A. I reside in Spring alley, near Twenty-eighth street.

Q. What is your occupation?

A. Constable, Twelfth ward.

Q. Were you present at Twenty-eighth street on Saturday, 21st July?

A. At the time of the shooting?

Q. Yes?

A. I was.

Q. Will you be kind enough to state what you observed?

A. I was in town that afternoon. I think it was about half past two o'clock, and I went up, and I saw a large crowd up there—went as far as Twenty-eighth street crossing—saw a lot of men right across the railroad, and went up there, and seen some men that I know—seen some Philadelphia soldiers come up. Seen General Pearson there. I stayed up two or three minutes, and they opened ranks, and Pearson came right up the middle, and stayed there for a few minutes, and Sheriff Fife was on the right hand side next to the hill. The crowd was hollering "Hold the fort," or something to that effect. I think it was "Hold the fort" they were hollering, and General Pearson was there and he said, "Charge bayonets," and they commenced to charge. As soon as they commenced to charge the crowd behind shoved up. I was one of the front and could not get back. The first thing I knew they commenced to fire. I thought they were firing blank cartridges, until I saw a man by the name of John Long fall, and saw they was not firing blank cartridges, and I turned around and ran away as fast as I could. That is all I knew about it.

Q. Where was Pearson?

A. Pearson was about in the middle. They came up about sixteen abreast, or something like that. I could not exactly tell. He was in the middle, anyhow. They opened order and came right up.

Q. About sixteen of them?

A. About sixteen abreast, right across the track.

Q. The sheriff, you mean?

A. What they call the Philadelphia soldiers. I do not know whether they were Philadelphia soldiers or not.

Q. Was not anybody in front of the soldiers when they marched up the railroad track?

A. There was a crowd in front of them. Sheriff Fife—there is a board walk where you get off the train, a platform where you get on the train—he was marching right up at the right hand side as you come up the railroad track, as far as Twenty-eighth street.

Q. Anybody with him?

A. That I could not say; he was right with the soldiers, and you could not see right over their heads.

Q. Was not he in front of the soldiers?

A. He was right on abreast with them.

Q. Could not you see Fife and who was with him?

A. I could not see who was behind me. I could see the front. I could not discern the men who was behind the front men.

Q. You heard Pearson give the command to fire?

A. Charge bayonets first. I was one of the fellows that was sticking around.

Q. What were you doing, trying to keep it off?

A. I went up there—I was a sworn officer of the railroad—and I thought I would try to do what I could.

Q. Had you tried to quell it?

A. Yes, I had, so far as I knew how. I assisted Mayor McCarthy's police when I went up there.

Q. Were the police there?

A. They were; eight or ten police there during the day and at night.

Q. What did they do?

A. The boys were around there playing with the cars—wherever there is excitement the boys are always there—they were trying to put the boys away, and the men were not doing any harm, it was the boys.

Q. You could not put the boys away then?

A. No; they were little boys.

Q. When the soldiers marched up, what did the crowd do? Did they fall back?

A. At the time they charged bayonets, the rear crowd shoved the front up—they were shoving them up. That is all I seen about it.

Q. Did you see any stones thrown?

A. I did; there was some little boys threw a couple of stones, and I says, "Quit that, boy, there will be trouble here."

Q. A couple of stones?

A. Yes, sir.

Q. Did you hear any firing? Did you hear anybody shoot before the soldiers shot?

A. No, sir.

Q. You didn't see but a couple of stones thrown at all?

A. It was thrown from a couple of boys from the sand-house. They were in the sand-house, and there was some stones in the sand, and they threw them over our heads. I seen the boys that threw them—little boys about eight or ten years of age. There is a sand-house where they dry sand for the engines, and they were in the sand-house at the time.

Q. You did not see any stones come from the side of the hill?

A. No, sir; I was on this side of the railroad, nearer to Penn street than I was to the hillside.

Q. They would not have reached you?

A. No; I do not think they could, unless they could throw them that far.

Q. Where was Pearson standing when he gave this command?

A. He was standing in the middle of the ranks—right up the middle.

Q. Did he give the command himself to fire, or did he give it to somebody else?

A. He did; he said "fire."

Q. That is all he said?

A. That is all, sir; he gave command to charge bayonets first.

Q. Charge bayonets and then fire?

A. Yes, sir.

Q. Did the men that he ordered to charge bayonets, fire?

A. I could not see where the shots came from, they came from the gun some place, that I know. We were standing right in front. When these men fired,

Johnny Long fell down. I helped to carry him in when the doctor was examining him there. I took him into the round-house.

Q. Do you know Pearson?

A. I do, sir.

Q. Did you know him by sight?

A. I had known Pearson for ten years.

Q. How was he dressed?

A. That is more than I can tell you.

Q. You did not notice?

A. I was just looking at his face, same as I am looking at you. I did not pay particular attention to his dress.

Q. You say you heard him give this command?

A. I did, sir.

Q. You are right certain of this?

A. I am positive.

Q. You are sure it was not "not to fire," and you only heard "fire."

A. He said fire, as loud as I am talking now. I was not sixteen feet away from him.

Q. Did you see the troops when they came out of the round-house?

A. When they came out, on Sunday morning, I saw them go up Penn avenue. I did not see them leave the round-house.

Q. How were they marching, in order?

A. Yes; in order.

Q. Was anybody firing on them?

A. I did see one man, just as I was coming down the hill. I went up there to see the burning from the top of the hill, near what they call the pest-house, and saw the soldiers between the round-house and the square shop.

Q. That was not where they marched out Penn street before the fire?

A. The fire was pretty close to the round-house when the cars were fired.

Q. That was after the troops had fired?

A. This was at five o'clock Sunday morning.

Q. When they came out?

A. The soldiers that were in there, they were firing away all night, and when I came out they were getting down off the hill on Twenty-eighth street, and the troops were getting out then, and I was coming down. The tail end of them were passing, and a man came down Twenty-eighth street in his shirt sleeves—a pretty good sized man, not too big—and he had a musket, and he was rolling up his shirt sleeves, and when he came to the drug store, corner of Twenty-eighth and Penn, I seen him raising his musket. I thought they would return back the fire up that street and I got down the alley and run into the house.

Q. Did you make any attempt to arrest this man?

A. No.

Q. Did you not think it was your duty, as constable, to stop that man from shooting?

A. If the whole police force could not stop him, I could not stop him.

Q. You did not try?

A. I was afraid of the gun.

Q. Did you see anybody else shoot?

A. No, sir.

Q. Did you know this man?

A. No, sir; never saw him, to my knowledge. Could not describe him to you.

Q. What did he say when he was shooting?

A. I was not that close to him. I did not get that close.

Q. Were you over there on Thursday, when the strike first took place?

A. I was up there; yes, sir.

Q. Did you hear any of the men say why they struck?

A. No, sir.

Q. Do you know any of the causes that led them to strike?

A. It was putting on double-headers. I believe that was the cause I heard for it.

Q. Was there any disturbance there Thursday?

A. No, sir; there was very few there on Thursday.

Q. Were there on Friday?

A. Friday they commenced to gather a little; on Saturday, there was upwards of a thousand.

Q. Were you called upon at any time to exert your authority to keep the peace?

A. No, sir; the city did not pay me for that as a constable.

Q. Is not that part of your duties as a constable?

A. It is a part of my duty as constable to try to suppress or arrest anybody I would see acting disorderly on the street, but a constable among two or

three hundred men is of very little use. We ain't paid by the city government as constable, to do anything——

By Senator Yutzy:

Q. Could you not have arrested this man who was firing on the troops?

A. I do not know.

Q. Were you not armed?

A. I was not.

Q. Had no pistol?

A. No, sir.

Q. Did you try to get somebody else to assist you in arresting this man?

A. It was too early in the morning. There was nobody out of bed, hardly.

Q. You did not follow after the troops. You say you went home?

A. I went home. Yes, sir.

Q. Stayed there?

A. Stayed there.

Q. Did you see any police about the fire during Sunday—see them making any effort to put out the fire or prevent it?

A. I did not. I went to my mother-in-law's on Sunday.

Q. You were not about then on Sunday?

A. No, sir.

Q. Do not know anything about what occurred then, of your own observation?

A. No, sir.

Q. Did you see Mayor McCarthy about on Sunday?

A. No, sir; I did not.

Q. Saturday night?

A. No, sir; he might have been there. I did not see him.

C. G. Barnett, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. C. G. Barnett. They call me Neall for short.

Q. Where do you reside?

A. I live 296 Centre avenue.

Q. What is your occupation?

A. I am solicitor for the Consolidated Gas Company.

Q. Were you present on Saturday, the 21st of July?

A. Yes, sir.

Q. At Twenty-eighth street?

A. Yes, sir.

Q. Be kind enough to describe what came under your observation?

A. I will tell you how I got there. I live on Centre avenue, and I came over the hill to our works. I went over there about dinner time, and stayed at the works until about three o'clock. I had nothing more to do that day, and I thought I would come up and see what the railroad men were doing. I stopped there, I suppose, until about half past three, and the train came in

with the Philadelphia soldiers on, so I got talking, like the rest of the men around there, and I stayed there, and they finally commenced to holler, and they said, "There comes the Philadelphia soldiers." I knew a young fellow in the Philadelphia troops, by the name of Deal, and I thought I would get to see him. I looked along the line, and finally found him; he was at the lower part. As they came up they divided off.

Q. What is his name?

A. Willie Deal; he lives in Philadelphia. When the soldiers came up, the first I saw was Sheriff Fife, General Pearson, Captain Moore, and then the soldiers came up. I was talking with Deal awhile, and he says, "You had better get out of here," and I finally walked up towards the switch-house, at the corner of Twenty-eighth and the railroad track, and I got up, standing beside the switch-house, and I took notice of a few boys commencing to lift up some small stones that did not amount to much; of course it would hurt a person to be hit with them. I told the boys, "You had better quit that, you will get into trouble." They said they were having some fun. I said it was wrong kind of fun to have. Then there was a squad of about twenty-five soldiers came up in the center, and they commenced to shove the crowd back, and the first thing I saw I heard the command to fire given. I thought it was about time to get down, and I got around to the side. I could still see the soldiers, and the first thing I heard was General Pearson giving the command to fire.

Q. You heard General Pearson?

A. I heard him just as distinctly as you are speaking to me.

Q. Do you know General Pearson?

A. I do, sir; that is, I am acquainted with him to see him. I have lived in this town all my life, and I know him as well as my own brother to see him.

Q. How was he dressed that day?

A. He had a blouse on. I should judge it buttoned up to about there. [Indicating.] A plain blouse; I do not think there was any trimmings on it,

except the buttons. It was buttoned up.

Q. Did he have a sword?

A. That I would not positively say. I did not pay that much attention to him.

Q. Did any of the officers have swords, or did you notice the other officers?

A. I noticed an officer that was pointed out to me as General Brinton.

Q. Did he have a sword?

A. He had a sword.

Q. The captains of the companies had swords?

A. The officers had, yes, sir.

Q. All had swords?

A. Yes; but I would not say positively that General Pearson had a sword on, because I did not take that particular notice of him. I did not think it was necessary. I did not know they would ever have any trouble.

Q. You are sure you heard Pearson give the command?

A. I did, sir.

Q. Where was he standing?

A. He was standing—there was a car between the sand-house and the round-house, and General Pearson was standing at the far end of the car, towards the Union depot, in the neighborhood of the sand-house.

Q. That is on the round-house side?

A. Yes; that is on the round-house side—that old sand-house.

Q. Where did the first fire come from?

A. The first fire was on the side that the round-house was on, about midway of the soldiers. Some of them fired up in the air, and after the first volley—

there is a road runs up the hill, the way I came down—after the first volley I thought it was getting warm, and I would get out of that and get home. I run about half way, and there was a little boy that was shot right there, and I grabbed the boy as I was running. I just grabbed him and took him with me, and there was a little hollow there where the water runs, and I thought that was a safe place for myself and the boy both. After the firing there was a boy standing there, and I said, "You had better go and get Doctor McCandless." After the firing stopped, I carried the boy to a little shanty house, and laid him down there. This other boy went for the doctor.

Q. When Pearson gave the command, what became of him?

A. I did not notice.

Q. You are right sure he gave the command "fire?" He did not say not to fire?

A. No; he gave the order to fire. I heard it distinctly.

Q. You are sure it was Pearson—you could distinguish Pearson among the crowd of officers?

A. As a military man, I have heard him give orders. Have heard him time and time and time again, and I know a man's voice when I hear it very often.

Q. What did he have on—a hat?

A. I think he had a soft hat—black soft hat, with a rim about that wide [indicating]—it may have been wider, but I did not pay particular attention to it—did not pay enough attention to him to know that he had a sword, because I did not think it was necessary.

Q. Did you see the troops come out of the round-house the next day?

A. After the firing was over, about five o'clock, I went home, and a gentleman by the name of Root, that boards in the house with me—after supper I says, "Suppose we go over and see what is going on over the hill."

We went over and stayed there awhile—did not go down. The next Sunday morning, about one o'clock, I heard an alarm, and I got out of my room and went through the hall and rapped at the door. Says I, "There is an alarm of fire. I bet that's the railroad property." Says he, "Oh, no." I went back to bed, and stayed there until the next morning about seven o'clock. I got up and went over the hill, and about eight o'clock—I think it was eight o'clock, I would not say for certain—the Philadelphia soldiers went out of the round-house. I was away up on the hill.

Q. Did you see them come out?

A. I saw a crowd. I could not distinguish. I was five or six hundred yards away from them.

Q. You were up on the hill?

A. You can't see very well, because of the smoke and one thing or other—I would not say for certain it was them.

Q. You do not know anything that occurred. Did you see any police in this crowd when you went there Saturday—when you went to see this friend of yours?

A. I think I saw one or two police—I think I saw two police.

Q. Were they making an effort to keep the crowd back, and keep them orderly?

A. One of these police talked to a man on the corner of Liberty and Twenty-eighth street, right at the end of the Pennsylvania shops. I judged, from the way he was talking to him, that he wanted him to go home. I was not near enough to him to tell.

Q. There was no force there sufficient to make any impression on the crowd?

A. There was nothing necessary for force. The men were quiet. Of course they were standing on the railroad track, but there was no noise. They were

quiet, peaceable men. There was nothing until the Philadelphia soldiers came. That was the commencement of it.

Q. When the sheriff came up, what did the crowd—did they say anything or do anything?

A. Not until the squad of about twenty-five soldiers came up in the center. Then they commenced to shove, and they had not room to get out. I suppose if they had given them five minutes, they could have got away.

Q. Did the sheriff make any call upon the crowd to disperse?

A. Not that I saw.

Q. You were talking with this friend of yours?

A. He told me to get out, and I walked toward the switch-house. Says he, "Neall, go away; if there is anything happens here you will get hurt," and I took his advice.

Q. What led him to say that?

A. I do not know. That is exactly what he told me.

Q. Were there not stones being thrown, that led this man to think there would be trouble?

A. No; he was at the lower end, towards the Union depot.

Q. Could he not see?

A. Not where he was standing.

Q. Was there not a crowd making an attack upon the soldiers, and that there was likely to be trouble?

A. Not at that time. They were not throwing any stones until I got to the switch-house, and then I saw the boys throwing stones.

Q. Was the crowd resisting the soldiers?

A. Not at that time. This middle division had not gone up. Just as they started, he told me to get out of there.

Q. When they got up, didn't the crowd resist them?

A. I think if they had given them five minutes there would have been no trouble. There was a great many men tried to get away, and the crowd held them back.

Q. Was it men there like yourself, or was it men there to resist the soldiers?

A. There was a great many men I knew had nothing to do with the Pennsylvania. They were there just standing looking on.

Q. If you went through a crowd like that, you could judge whether there were men there to resist the soldiers, or whether they were there out of curiosity?

A. I should judge that the most of them were there out of curiosity, and I did not know the feeling of the men. I never go up that direction, unless I am on business.

Q. Did you see any efforts made by the police during Sunday to stop the burning?

A. I was not near the railroad track on Sunday. I stood away up on the hill—not until Sunday evening, until half past seven, and then came down by the car way, and came down to the Union depot. There I saw a lot of police stopping the men from carrying away ale. I should judge—from the looks of the barrels—what they call Milwaukee ale or beer.

Q. Milwaukee ale or beer?

A. Beer, I suppose. It is not our style of keg that is made in Pittsburgh here. I do not drink enough for to know that. I know it was beer or ale.

By Mr. Means:

Q. Had you any trouble getting through the crowd when you wanted to get away on Saturday?

A. No, sir. I ran alongside of the hill, while there was very few people.

Q. You were right down the railroad among the soldiers?

A. I did see a lot of guns there, said to be Knapp's battery, lying at the watch-house—that was all the trouble. Just as I got away from the mob, I had no trouble at all—I could run away along the hill.

Q. Would it have been any trouble for the crowd to get away when the soldiers came up to ask them to fall back?

A. I think some of them could get away—not all the crowd, because there was cars on the other side of Twenty-eighth street, lying in there, and they got in round the cars, and could not get out.

Q. You said three fourths of the men there were spectators?

A. Yes, sir.

Q. What did the other fourth come there for?

A. I have not the least idea, I never go there unless going to the works.

Q. I suppose three fourths went there from mere curiosity, and that the other fourth went for some purpose?

A. Most likely they did, but I could not see that.

By Mr. Dewees:

Q. Did you hear General Pearson say anything else but "fire!"?

A. No, sir; and it was not a minute or a minute and a half after he gave the order to fire, until they did fire.

Q. How far were you from him?

A. I was standing about fifteen or twenty feet up off the railroad track right out to the switch-house.

Q. Would not a man have to have said something before he could have given the word "fire!"—you heard nothing before the word "fire!"?

A. They did not get away fast enough than was given to fire, and just about a minute afterward the firing took place.

William Black, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. William Black.

Q. Where do you reside?

A. Out at Millvale borough.

Q. What is your occupation?

A. Boiler-puddler.

Q. Were you present at Twenty-eighth street on the 21st of July, Saturday, at the time of the firing?

A. I was a little while, about the time I seen the Philadelphia troops marching up the railroad four abreast, and they came to a halt just before they got to Twenty-eighth street. Came to a front and open order—rear open order, then the front rank came to about face, and they faced the rear rank. Then a company marched up through the center, right up front to Twenty-eighth street. I was standing outside then and heard the order given to fire.

Q. You were standing where?

A. Just across from Twenty-eighth street, outside the crowd.

Q. You were out behind the crowd?

A. Yes, sir.

Q. You say you heard the command to fire?

A. Yes, sir.

Q. Do you know who gave the command?

A. No, sir; I do not know who it was gave it.

Q. You just heard the word?

A. The minute the word was given to fire I left.

Q. Did you see anything of the firing? You left then—saw nothing of it?

A. No, sir; I left the place then after they started to fire.

Q. Then you know nothing about the firing, any more than you heard the command given—did it come from an officer?

A. I could not say that.

Q. Or was it from the crowd—did you hear the crowd talk about firing?

A. Not while I was there.

Q. Did you see anything thrown?

A. No, sir.

Q. Was there any disturbance there, any noise or resisting of the soldiers?

A. There was some noise there.

Q. What do you mean by some noise?

A. Some of them hollering "Hold the fort."

Q. What did they mean by holding the fort—holding Twenty-eighth street?

A. I suppose so.

Q. They meant to stay there in spite of the soldiers, was that the idea that you had—to stay there in spite of the soldiers?

A. I suppose that was their idea.

Q. Had you been there any time previous to the firing?

A. No, sir.

Q. You know nothing whatever of the events occurring before that?

A. No, sir.

Q. Did you see the soldiers afterwards?

A. No, sir; never saw them any more after that. I never crossed the river again until Monday, I came down to the city again.

Q. Do you know anything about any organization formed to resist the soldiers?

A. No, sir.

Q. Who went with you to the scene of the riot?

A. Saturday?

Q. Yes.

A. There was a friend of mine lives right over here.

Q. Was not there a large crowd of you went over there together?

A. No, sir; there was no crowd.

Q. What mill are you working at?

A. Graff & Bennett's.

Q. Was not there a large number of men from your mill went over there on Saturday just before the firing?

A. If they went over there I didn't know anything about it.

Q. Were the men working at that time—that afternoon?

A. Saturday they generally shut down about two o'clock or three o'clock.

Q. You were not working that day on Saturday?

A. Yes, sir.

Q. What time did you leave the mill?

A. We shut down work about one o'clock at the upper end of the mill.

Q. About one o'clock?

A. Yes, sir.

Q. Didn't most of the men who were at work in the forenoon come over to Twenty-eighth street?

A. I couldn't say anything about that at all.

Q. Didn't see a great many of them?

A. No, sir; there might have been a good many there, but I didn't see them, the crowd was so big.

Q. Was there any talk about there in the crowd when you were standing there. Did you hear any talk about resisting the soldiers, and not allow them to clear the track?

A. No, sir; I didn't hear anything of the kind.

Q. Was it people there just out of curiosity?

A. I couldn't say what they were there for.

Q. You were there out of curiosity, were you?

A. Yes; just come over to see the soldiers.

By Senator Yutzy:

Q. Did you hear any abusive or threatening language on the part of the crowd towards the soldiers?

A. No, sir; not at the time I remained there.

By Mr. Means:

Q. In the forenoon of Saturday, while at work, did you hear any of the men say that they were going over there in the afternoon after they quit work?

A. No, sir; I didn't hear the men say anything.

Q. Didn't have any talk about going over to the scene of this riot?

A. No, sir.

By Senator Yutzy:

Q. Were you there on Sunday?

A. No, sir. Didn't come over this side of the river on Sunday.

Q. Do you know of quite a number of citizens carrying away goods and bringing them over to near your works, in that vicinity?

A. No, sir.

Q. On Sunday?

A. Not that I know of.

Q. Did you see anybody carrying any plunder from the cars?

A. They didn't fetch it across there in the day time. I thought they were watching pretty sharp around there over the other side.

Charles P. Wall, *sworn*:

By Senator Reyburn:

Q. What is your first name?

A. Charles P.

Q. Where do you reside?

A. Fourteenth ward.

Q. What is your occupation?

A. Plumber.

Q. Were you at Twenty-eighth street on Saturday, the 21st July, the time of the firing?

A. Yes, sir; I was.

Q. Will you be kind enough to state what you saw?

A. I went there out of curiosity, to see what was going on, on Saturday afternoon, and shortly after I was there the Philadelphia soldiers came up with their posse, the sheriff at the head. I was standing on the track and toward the round-house, and General Pearson came round and said he was ordered to clear the track, so I got around and walked up Twenty-eighth and come around on the hill which looks down on the track, and the soldiers formed a hollow square—the soldiers facing the hill as well as facing the round-house—and then the soldiers marched towards Twenty-eighth street, and the command was given to charge bayonets. They charged, I think, but the men there could not or would not move away from Twenty-eighth street. The soldiers came up to them with their bayonets, and they grabbed the guns, and pushed them away from them. Then the order was given to fire. The men, after the order was given them, started to run down Twenty-eighth street. The men that were charging—that were facing Twenty-eighth street—could not fire because they were so close. The moment they started to run they brought their guns to bear on them, and fired on the crowd as they were running. The men facing the hill fired into the party standing on

the hill, and I seen them commence to fire, and stayed there for some moments, and thought they were firing blank cartridges, until a party along side of me was shot in the head and dropped down, and I thought it was time to get, and I started.

Q. Where were you standing?

A. Standing right on the hill, looking down on the soldiers.

Q. How far from them?

A. I suppose between twenty and thirty feet.

Q. There is a road that runs up there?

A. Yes, sir.

Q. How far were you from that watch-house?

A. I was about thirty feet from the watch-house, I guess.

Q. Did you see anything thrown at the soldiers?

A. Yes; I saw some stones thrown.

Q. Anything fired at them—see any shots or hear any?

A. No, sir; didn't see or hear any shots.

Q. Were you close enough to tell who gave the order, or whether it was an order to fire?

A. Yes; I was close enough.

Q. Was it given by an officer?

A. Yes; it was.

Q. Do you know who the officer was?

A. Yes, sir.

Q. State his name?

A. General Pearson?

Q. Do you know General Pearson?

A. Yes, sir.

Q. Personally?

A. Yes, sir; that is, I don't know the General personally to speak to him.

Q. I mean by sight—if you see General Pearson walking along?

A. Yes, sir.

Q. Where was he when he gave the command?

A. He was in the square, a little toward Twenty-eighth—nearer Twenty-eighth street than any other part of the square.

Q. Anybody near him?

A. Yes; Mr. Pitcairn and some of the other officers was handy.

Q. Any of the sheriff's posse?

A. I didn't notice.

Q. They were in front, were not they, when the troops came up?

A. The sheriff marched front; yes, sir.

Q. Did he stop and address the crowd?

A. I suppose he was addressing the crowd when I was going round, but as soon as he gave the command to clear the track, I was walking round to get on the hill.

Q. You are sure you heard General Pearson give the command?

A. Yes; positively.

Q. It was not somebody told you that that was Pearson?

A. No, sir; I know the man.

Q. Did you notice how he was dressed that day?

A. Yes, sir—not particularly. I noticed he had a blouse on, with brass buttons on, buttoned up. I suppose I was as close to him as I am to you when he gave the command to clear the track. He said he had orders to clear the track. As soon as I seen they were going to clear the track, I got off the track and walked around.

Q. Did he have a sword on?

A. Not that I could see.

Q. Did you notice whether any of the other officers had swords on?

A. No, sir; I did not notice particularly.

Q. How would you distinguish an officer?

A. Well, I would distinguish him by his clothes, of course.

Q. If there were a number of men there, how did you distinguish it was General Pearson gave the command?

A. I could not help to distinguish him, because I knew him personally—knew him to be what they call a general. He had a blouse on.

Q. Did he order them to load, or anything preliminary—he just said fire?

A. Just gave the command to fire?

Q. Did he give that directly to the men themselves?

A. I could not say whether it was direct to the men, because immediately after he gave the command to fire, they commenced to fire—whether it was passed down the line or not, I could not say.

Q. Did you see any of the soldiers struck with stones?

A. No, sir; I did not.

Q. How many stones were there thrown?

A. Oh, a good many.

Q. Quite a volley?

A. Quite a volley of stones thrown. They seemed to all come from one place, though. On the hillside, where I was standing, there was not a stone thrown.

Q. Any stones thrown from below where you were standing?

A. From towards the hospital, there was. That seemed to be the only place there was any stones coming from.

Q. What became of General Pearson after he gave this order?

A. I didn't wait to see what became of him. I seen him start towards the round-house. Then I started myself, and ran up the hill some three hundred or four hundred yards, and then I stopped.

Q. From what point did the stones appear to come?

A. From the direction of the hospital.

Q. In front of you?

A. No, sir; from the rear.

Q. Could you see who threw the stones?

A. No, sir; I did not.

Q. Did General Pearson have anything about him, or his uniform, that would indicate his rank?

A. He had a blouse on with brass buttons I think he had epaulets on his shoulders, I could not say positively. I knew the man, knew him to be a general.

Q. What kind of a hat did he wear?

A. He wore a slouch hat—a soft hat.

Q. Did you see any other officers there that wore hats?

A. No, I couldn't say that I did. I didn't take notice of the officers particularly. In fact I did not take notice of any of them.

Q. Did you see the troops after they came out of the round-house on Sunday?

A. No, sir; I didn't.

Q. Were you there during Saturday night?

A. No, sir; I left there as soon as they went into the round-house; then I left and went home; didn't go there until the next morning. I went over on the hill and stayed a while, then I went home again.

Q. Did you hear them talk in the crowd about resisting the soldiers?

A. No, sir; heard nothing said. The crowd seemed to be very orderly up to the time the Philadelphia soldiers came. I was among the crowd until past one o'clock or two o'clock, and the Fourteenth regiment had charge of the track, and the shifting engine was going backwards and forwards. Of course, there was a big crowd there; but they didn't interfere in any way that I saw.

By Mr. Means:

Q. Did you hear the crowd say what they would do when the Philadelphia soldiers came in?

A. No, sir; I didn't hear them say anything.

Q. They were looking for them, were they not?

A. Not that I know of; didn't hear them say so.

Q. Was it possible for you to be mistaken in the man that gave the command "fire?" Might it not have been somebody else?

A. I don't think so. I knew the general, and was close enough to hear distinctly.

Q. You knew the command really came from him?

A. Yes, sir.

By Senator Yutzy:

Q. Was General Pearson facing towards Liberty street, or up the hill?

A. He was facing kind of towards Twenty-eighth street. Twenty-eighth crosses Liberty. That is where the most excitement was. The soldiers were trying to force them off the track. The crowd had gathered up the track, and they were trying to force them down. I suppose the men in front would have got out of that if they could, because I don't think any man would stand up to a bayonet.

Q. Facing towards Twenty-eighth and Liberty streets?

A. Yes, sir.

Q. Did the firing commence from that direction?

A. No; not just exactly. They fired into the car where they threw the stones first. When they started, the men that were standing on Twenty-eighth started to run.

Q. The crowd?

A. Then the soldiers brought their guns up and fired on them as they ran down Twenty-eighth street. Then the soldiers that was fronting the hill fired into the parties on the hill.

Q. Then the firing commenced on the line that were on Twenty-eighth street—lying parallel with Twenty-eighth street—facing up the track?

A. Yes; facing up the track.

Q. How long after that fire did the troops commence firing that were standing to their right, facing up the hill?

A. I suppose it was not more than ten or twelve seconds.

Q. Did those that were facing down towards Liberty street fire at that time?

A. No, sir; they did not.

Q. Did they fire at any time?

A. Not that I seen.

William J. McKay, *sworn*:

By Senator Reyburn:

Q. Give your full name.

A. William J. McKay.

Q. Where do you reside?

A. Thirtieth and Penn street.

Q. What is your occupation?

A. Work in the Western air brake shop, on Twenty-fifth street.

Q. Were you present during Saturday, the 21st July, at Twenty-eighth street?

A. Yes, sir.

Q. Be kind enough to state what came under your observation.

A. I was up there when the Philadelphia soldiers came. One of them got sun struck, and they had to carry him down to the office, Twenty-sixth street. That is all I have got to say.

Q. That is all you know about what occurred?

A. Yes, sir.

Q. Were you in the telegraph office there?

A. I was in the superintendent's office.

Q. You know nothing of what occurred at the time the soldiers fired?

A. No, sir; didn't hear them fire at all.

Q. Did any of the officers come to the telegraph office while you were there?

A. One soldier, and some other men came down, I don't know who they were.

Q. Was he an officer?

A. I took him to be an officer.

Q. Did you know the man?

A. No, sir.

By Senator Yutzy:

Q. What do you do at the Western air brake?

A. Chip brass castings.

Q. Where did you carry this man that was sick?

A. Carried him into the office—the left second door.

Q. What office?

A. The office under the superintendent's office; I don't know whose office it was.

Q. Was it a telegraph office?

A. I didn't take notice.

Q. Were you in the telegraph office at any time after you carried this man down?

A. No, sir; I was never in the office before in my life.

Q. It was not a telegraph office you carried this man to?

A. I didn't notice what office it was.

Q. It was the superintendent's office, you say?

A. No, sir; the superintendent's office is up stairs.

Q. Whom did you see there in this office, where you carried this soldier?

A. There was no person there.

Q. No one there at all?

A. No, sir.

Q. Did you know where the telegraph was of the railroad company?

A. Yes, sir.

Q. Where is it?

A. Twenty-sixth street—it was, before it was burned down, I don't know where it is now.

Q. Isn't there a telegraph office at the superintendent's office?

A. I don't know anything about that. I passed the office often, but I was never in it.

Q. What was this office used for that you carried the man to?

A. I don't know what it was for.

By Senator Reyburn:

Q. Were there any officers of the militia there when you went there with this man, except the one that helped?

A. No, sir; there was no other person in the room at all.

Q. Did you stay there with those men, or put him down?

A. We laid him down on two chairs, and there was a man came in and told us there was shooting up there, and I went up and left him there. The other two stayed there.

Q. Said they were shooting up there?

A. Yes, sir.

Q. Is that all he said about it?

A. That is all.

Q. Did he say anything about an order having been given to fire on the crowd?

A. No, sir; he just wheeled round and started back out again.

Q. Did you know this man?

A. No, sir.

By Senator Yutzy:

Q. You say there was no one in this office at all, when you carried this soldier there?

A. No, sir; there was no person in when we went in.

By Senator Reyburn:

Q. Did you see General Pearson about there?

A. I don't know the man. Never saw him.

Q. Did you see whether there was any other offices right there, close by this—that is, where you carried this soldier?

A. How do you mean?

Q. In the same building?

A. I didn't see any.

Q. The rooms close by these are used as offices?

A. Yes; there several rooms in this office. There may have been a thousand in there, but I didn't see them.

Q. On which side of the track, going down towards the Union depot?

A. It is on the right, coming down this way.

Q. Was it between the two tracks, between the Allegheny Valley and the Pennsylvania Central track?

A. Yes; it is right along side of the Allegheny track.

Q. Did you carry this man down the Allegheny track, or the Pennsylvania track?

A. Down the Pennsylvania.

Q. And then turned to the right?

A. Yes; where the engines come out of the round-house—carried him down across there, and went into the office.

Q. Is that the only building standing between these two tracks—the Allegheny Valley track and the Pennsylvania Central, in that vicinity?

A. No, sir; there is two or three dozen buildings.

Q. What were they?

A. There is a square shop, and the round-houses, and this shop, and then there is small buildings. I don't know what they are used for.

Q. There are offices in some of those buildings, are there not—machine shops for instance?

A. There is an office between the two round-houses—Shafer's office. That is the only one I know there.

Q. You are positive it was not the superintendent's office?

A. Yes, sir; the superintendent's office is up stairs.

Q. How many rooms were there down stairs?

A. I don't know how many; I was never in only this one.

Q. Were you there on Thursday or Friday previous to this?

A. Yes; I was up there.

Q. Do you know anything about the causes leading to this riot?

A. No, sir; only the double-headers. That is all I know.

Q. Did you hear any talk of resisting the troops if they attempted to clear the track?

A. No, sir.

Q. Did you see any stones or anything thrown at the soldiers?

A. No, sir; I was not there when they came up. This man fainted, and I helped to carry him down.

By Senator Yutzy:

Q. Did you notice whether there were any doors leading out of this office to any other rooms, or from the hall you went into to other rooms?

A. Yes, sir; as you go into the door there is a door leads to the left, past the stairs. There is one under the stairs.

Q. Did you go in the first door?

A. No, sir; the second.

Q. To the left?

A. Yes, sir.

Q. Was the first door open on the left as you went in the hall?

A. I didn't notice; I know there is a door there, because I took notice to it as we went in—we went on to a second door. The other fellow helping to carry him seemed to know where to take him to, and I went along.

Q. Did you see anybody in the room—the first room—the front room—to which this door led to, through the windows or door?

A. No, sir; I could see no person.

D. L. Reynolds, *sworn*:

By Mr. Reyburn:

Q. What is your full name?

A. D. Leach Reynolds.

Q. Where do you reside?

A. At the time of this trouble I resided in the Twelfth ward, on Thirtieth street.

Q. What is your occupation?

A. I was conductor on the road at that time.

Q. Do you know anything of the causes leading to this strike?

A. Yes, sir; the more important cause of it was the abuse of the men by the petted officials, such as despatchers, and so forth, and the double-headers.

Q. What do you mean by the petted parties?

A. It is just this way: They have a set of men that are posted, not only in Pittsburgh, but at the principal stations, whose duty it is to give the conductors orders, what they shall do with the cars, what cars they shall set off and take on, and they can either give a man a nice train or a train where there is no work to do, or they can give all the work to one man—one man they give all the work to do, and one man they let go behind with nothing to do. It caused a great deal of dissatisfaction, and a great deal of growling. As sure as a man did any growling, that man would be discharged the next trip.

Q. Are you employed by the railroad now?

A. No, sir; I left the road on the 16th August.

Q. Were you present on Saturday, the time the troops came in collision with the crowd?

A. I was.

Q. State what you saw?

A. I went up there about half-past one or two o'clock in the afternoon, and saw the crowd that was standing on Twenty-eighth street, and didn't like the looks of it. There was some rather rough characters there. I do not know who they were, and where they belonged. I then took up a position in the hospital grounds, about one hundred yards from the track, one side of a tree that stands by the fence, so that I could fully see and observe all that was going on. The report was that they were going to send a train out, with lots of militia, and General Pearson on the cow-catcher. I was waiting to see if the train succeeded in getting through the crowd. The Philadelphia troops, as I was going up Twenty-eighth street, came in. I believe the second section was coming in at the time I was going up. I remained up there, I presume, all of two hours before the Philadelphia troops came up the track. I was looking in so many different directions that I could not tell you whether General Pearson and Pitcairn, and the sheriff, was in front of the soldiers or not. I saw the entire body of them as they came up. I do not

remember of any persons or citizens of the Commonwealth in front of the militia when they came up and formed their hollow square. Then I saw Mr. Pitcairn plainly, and, also, General Pearson. Sheriff Fife I did not see. At the time they formed their hollow square, they threw out a platoon, as has been described, but across the front end of the square. That platoon undertook to chase the crowd back off the railroad tracks, off Twenty-eighth street. They refused to go back, and, of course, that is where the riots began. The soldiers tried to drive them back by shoving them back with their breasts. They refused to be pushed back. Then they undertook to charge them back with their bayonets. After that they fell back a step or two, and I heard the order to fire, and they did fire with good effect. About that time I took up over the hill, and came down the other way, a few minutes after the fire. I presume I was about fifty feet from the front end of the soldiers. They were then moving around somewhat, and I asked one of the railroad boys if he had seen any of our boys fall. He said there was three or four. I asked him if any of the soldiers were killed. About that time there was a gun went off—I think it went off in the air—and just then I seen one of the conductors coming down with his arm resting on his coat. He had taken his coat off, and I went over to and asked him how bad he was hurt. He said his arm was weak, so that he could not hold it up. I assisted him down to Penn street, and put him in a grocer's wagon, and took him to Doctor Clark's, and went to my own house and told my wife I was not hurt. I didn't find her there, I found her on Penn street. I put her in a baker shop, and then went off to look for some more friends. About this time they threw the platoon of soldiers across Twenty-eighth street, and I supposed they were going to fire, and I got into a hotel where I heard there was some wounded, to hear who they were. There had been some there, but they had been removed. I afterwards saw them bringing down an old gentleman, Mr. Stockel. I went home that evening, got my supper and remained at home until, I presume, it was three o'clock. Then I took my wife and started down to see. At Twenty-eighth street the crowd had got so dense that I went into a drug store, and while I was in there, a whole party went by, with a drum beating in front of them. They were whooping and hollering. I don't remember that there was any firearms in the party, but I know they had a big drum, and were

pounding on that. As soon as they got by, I says, I will take my wife home. I took her home, and after I got there, the neighbors and her together persuaded me to remain there, and the consequence was I didn't go away from my own door stoop that evening. I went to bed, I presume it was about half past nine o'clock, and on Sunday morning, I presume about two or three o'clock, she tried to awaken me to tell me the Pennsylvania railroad property was on fire, but she could not get me awake, and later in the morning, when the Philadelphia soldiers were going up Penn street, they formed a platoon in front of my house. I started out to hear where they had gone to, and found out that they were gone up the street.

Q. Did you see anybody fire on them?

A. No, sir; I didn't.

Q. Was there any talk of resisting these soldiers in clearing the track, and preventing them from running trains?

A. You might hear men talking of a great many things, but nobody could imagine what they were going to do. Nobody had any firearms to resist anything with. They were asking the question, that there were one thousand five hundred Philadelphia soldiers coming, and what are you going to do with them?

Q. The crowd resisted the soldiers, did they, when they attempted to clear the track?

A. Yes, sir.

Q. The soldiers did not use any more force than was necessary, at first?

A. No, sir; they did not use any force at all, but simply pushed ahead with their breasts.

Q. Tried to push the crowd back quietly?

A. Yes, sir.

Q. Did you see any stones thrown?

A. I saw one that I took to be a clod of earth, about the size of my hand, thrown from the west side of the watch-box from the side of the hill, down into the soldiers. That was the only stone I saw thrown that day.

Q. You were not near enough to tell who ordered the firing?

A. I could hear a great many words. I could not hear sentences, but I heard the word, "fire," distinctly. I could not hear any conversation unless it was in a loud tone of voice, but I heard, "fire," as distinctly as you speak.

Q. Did the soldiers fire in a volley?

A. No; more like one soldier got scared and he fires off his gun, and the balance follow suit.

Q. What was the objection to running double-headers?

A. It puts two men's work on one man for one man's pay. We had been reduced so often that we thought they had got about as low as we could live.

Q. How much did you average?

A. If I averaged full time, it was \$70 20 per month before the reduction. After that I got \$2 45 a day, and never got a full month. If you want to know all about their wages, I can tell you from the first reduction. When I went on the road they were paying conductors \$2 60 a day.

Q. When was that?

A. The 21st February, 1872, I think. They were paying conductors then \$2 60 a day, and there was an order came out—or rather the men wanted more wages, and the committee went to Philadelphia, and it was arranged that conductors, who had been running trains prior to March 1, would get \$2 85. New conductors were only to get \$2 45. When I went on the road first I acted in the capacity of brakeman for about eight weeks, and on the 24th day of April I took out my first train, and I received \$2 45 for that. I ran from the 21st day of April till the 16th of June as extra conductor, part of

the time running trains and part of the time not. After the 16th day of June I got a regular train, and I ran that for a whole year for \$2 45, and from the 16th day of June till the 1st day of next January I received \$2 70, which I was led to suppose was a raise of ten per cent. On the 1st day of January an order came out that we should be reduced, and that cut me down to \$2 40. I could not understand how a reduction of ten per cent. would take off more than an increase of ten per cent., and I had an interview with Mr. Pitcairn and the only satisfaction I got, that the company was losing money. The 16th day of June my wages went up to \$2 70, and that was the wages I received up until the day of the last reduction, when they cut me down to \$2 45.

Q. You had been getting \$2 70, and they cut you down to \$2 40, then you went to talk to Mr. Pitcairn, and he told you that the business was bad, and they had to make this reduction?

A. I did not make any complaint. They reduced by tens instead of by fives.

Q. What reason did he give?

A. He could not give me any reason, he said it was done on higher authority.

Q. I understood you to say, he said something about business was poor?

A. He said that the company was losing money. He took into consideration the different conductors, and they had different pay, and the conclusion was that they were losing money.

Q. Then they reduced you?

A. They reduced me to \$2 40 at that time. They ran the first year for \$2 20, and the second year for \$2 45, and the third year for \$2 70—so the order was in the start out. I never happened to come in under the \$2 20 list, they raised me to \$2 70, then they cut me down to \$2 40, and I had to work from June to January, at \$2 40, and then went up again to \$2 70, on account of the year having expired.

Q. What was the pay of the brakesman?

A. Brakesmen originally received \$2 00 a day, then afterwards they were cut down to \$1 80, and the last reduction brought them down to \$1 65.

Q. Did you know what wages they were making on an average?

A. They, as a general thing, made pretty near only about \$26 per month. Some months a man can make almost double time, other months he could not make so much.

Q. Did that depend upon his being attentive?

A. No, sir; it depended entirely on his business. A new man was treated the same as an old man, so far as going out was concerned, unless he was an extra brakeman. If he was regular, on a regular run, he went on that train every time.

Q. Of course, if he was not there to go out, some one took his place?

A. If he was not there to go out, they always supplied a man in his place—the crew was slim, I think, as it was.

Q. The man that was there always got his work?

A. I never lost a day on the Pennsylvania railroad by being absent, unless it was voluntarily or freight was scarce. Sometimes freight was scarce for a month, and they would have to cut one train off one day, and once they sent me home in July, for a week. It was on account of trade being very dull.

By Mr. Means:

Q. You are not in the employ of the road now?

A. No, sir.

Q. When did you leave it?

A. On the 16th day of August.

Q. Was there more of the hands left at that time?

A. The road was principally operated after the strike was over, by the same that had been on the line before the strike, and I was among the number, and about the time I stopped off, things began to assume the old fashioned shape—one day they would want me and the next day they would not, and I went to Mr. Pitcairn and asked him for an order for my money, and he said it was not necessary to give an order to get me the money.

Q. Quit of your own accord?

A. I suppose I would have been discharged if I had stuck to it.

William M. McKay, was recalled and explained to the committee the situation of the room where the soldier who was sun struck was taken into.

Colonel Smith, re-called:

By Senator Yutzy:

Q. You heard the last witness describe the building, and the manner in which he entered that building, and the way that he entered—where he says he left the soldier was at the telegraph office?

A. It was not a telegraph office. [Witness explains the situation of the rooms in the building on a plot.] This is the telegraph office, and this is the train master. I presume by the description that was where the soldier was taken. This is the passage connecting the main entrance of the building with the telegraph office. This is the first floor—the first floor above the basement—there is a basement under the telegraph office, and the superintendent's private office is immediately over this, on the second floor. The outer office of the superintendent is there on the second floor, and the clerks here. Three on the first and three on the second, and this is the trainmen's room, this is a

sort of counter here with windows where trainmen come up to get their orders.

Q. Was there a telegraph office adjoining this room where Mr. McKay carried the soldier?

A. The room is connected. There is a door just here.

Adjourned until this afternoon, at three o'clock.

AFTERNOON SESSION.

PITTSBURGH, *Tuesday, February 26, 1878.*

The committee met, pursuant to adjournment.

All members present except Messrs. Lindsey and Larrabee.

P. J. Young, *sworn*:

By Mr. Reyburn:

Q. Where is your residence?

A. No. 61 Fountain street.

Q. What is your occupation, sir?

A. Police officer.

Q. Were you on the force at the time of the riots, in July?

A. I was one of the men that was dropped at the time of the reduction—suspended.

Q. Were you on duty on Thursday and Thursday night, at the railroad?

A. Yes, sir.

Q. Be kind enough to state what occurred there?

A. Well, on Thursday, about noon, I think, Mayor McCarthy called—came to my place where I lived, and told me to hurry down to the mayor's office, I was wanted. I went down, and met Chief Dimick, and he told me I was wanted on the Pennsylvania railroad, there was a strike. I asked him if I was to act as a police officer, and he says, Yes, I was only suspended. I went out and met Mr. Butler at the Union depot. I believe he is the depot master there, and I told him I was sent out there by the mayor's orders. He sent out a car with me and two more officers to Twenty-eighth street, where we joined more police out there. When I arrived there, there was a large crowd of people congregated upon Twenty-eighth street, along the railroad, and remained there until two or three o'clock. I don't know exactly what time.

Q. In the afternoon?

A. Yes. Then me and four officers were detailed to go on board of a double-header. There was a train going out. I went on the first engine, with another officer, as I understood for a protection for the engineer, as far as East Liberty. The train started, and moved on a little piece up the track, and a crowd of, I couldn't say how many, came in front and motioned their hands at the engineer. I said to the engineer, go ahead. He made some remark, and he jumped off the engine. I remained there on the engine, and finally the fireman jumped off. I stood there for some time, thinking they might come back again. They didn't, and I got off, and was asked by, I think, Mr. Fox—he is police officer of the company—if I wouldn't go on the engine again. I said yes. I went on the engine and remained there. No engineer came aboard, and finally I left. At the same time, the other police that were out there—I don't know how many—were strung all along the track, keeping the crowd off. I suppose in the neighborhood of six o'clock I came into supper here, together with more of the officers, to the Continental, on Fifth avenue, at Mr. Newell's; we had supper there. After supper we all went out. A good many went out along with me to the Union depot, and we expected to get a train to go out as far as Twenty-eighth street. We stayed along there,

and no engine came down to the depot that night. Me and two or three more officers walked out Liberty street to Twenty-eighth street. There was a large crowd of people along there when we got out. I moved around through them. We patrolled Liberty and along Penn and Twenty-eighth street, and everything was very quiet. I left, I suppose, in the neighborhood of four o'clock in the morning. About that time. That is all I know.

Q. Did the crowd make any demonstrations? Was that all they did, waving their hands to the engineer?

A. Yes, sir.

Q. They didn't make any attempt to commit any violence?

A. No, sir; that night they were a very orderly crowd.

Q. What was this crowd composed of, railroad men?

A. I suppose there was some railroad men there through them.

Q. How many was there, do you suppose, altogether?

A. I couldn't exactly say. There was a large crowd of people. They were scattered up and down the railroad. It was dark.

Q. When you got this train, could you not have run that train out? Did you have a sufficient police force to guard a train—I mean on Thursday afternoon?

A. I wouldn't be afraid, if I was an engineer, to run away. I don't know what might have happened.

By Mr. Means:

Q. Did you have a police uniform on?

A. I had a summer uniform—police blouse?

Q. A regular police blouse?

A. Yes, sir.

Q. So that you would be known as a police officer?

A. I had no buttons on it. I had my shield on the inside of my coat. I wore citizen's clothes all the time I was detailed as a reserve man.

Q. A stranger would not have known you were a police officer?

A. There were a great many that did know me.

Q. A stranger would not have recognized you as being a police officer?

A. No; I didn't wear a shield.

Q. Did you know that engineer that jumped off the train?

A. No, sir.

Q. Did you know the fireman?

A. No, sir.

Q. How many police officers were there at any one time?

A. I couldn't, in fact, say how many. There was a squad went out in the morning—some more men that was suspended at that time. I don't know how many went out.

Q. Ten or fifteen or twenty?

A. I expect there was over fifteen men.

Q. Was there twenty?

A. I couldn't say, sir.

By Mr. Reyburn:

Q. Did you keep the track clear?

A. The track was clear at that time. Afterwards, of course, we were not keeping it clear. There was a large crowd that stood away back.

Q. On Friday, what did you do?

A. I didn't go out there on Friday.

Q. Why?

A. I think I came down to the mayor's office Friday, and I got some sleep that forenoon, Friday, and I heard that the sheriff and his posse had gone out and our services were not required.

Q. Who told you that?

A. I couldn't say. I don't know whether it came from the chief's clerk or not —Mr. Davis.

Q. You heard it at the office?

A. I heard it, I think, at the office. I won't swear to it, but I think I heard it at the office. However, I didn't go out.

M. Mulvaney, *sworn*:

By Mr. Reyburn:

Q. What is your full name?

A. Michael Mulvaney.

Q. Where do you reside?

A. In Eighth ward, Pittsburgh.

Q. What is your occupation?

A. Policeman.

Q. Were you on the police force in July, at the time of the disturbance?

A. Yes, sir.

Q. What days were you on?

A. On Thursday, the mayor's clerk told me to go to the Union depot there, and report to Mr. Butler. Mr. Butler told me to go to work at the round-house, and two or three more of us went down and we remained there. We went to the round-house, and we met some more of the police and stayed there for a long time. There was a big crowd around there. A lot of the police jumped on the train to help take it out—a double-header. Eight or nine of the police jumped on the train, and I saw the engineer and fireman jump off. The fireman and engineer jumped off. That is all I saw at that time. Everything was quiet.

Q. Were you there during that time?

A. No, sir; I was not. I left at four or five o'clock.

Q. Clearing the tracks and keeping the crowd off?

A. The crowd stood one side.

By Mr. Means:

Q. Were you one of the discharged men?

A. Yes, sir.

Q. Who sent for you to appear at the mayor's office?

A. I think it was the mayor's clerk or the chief clerk. I could not say which of the two.

Q. How many of you went out together?

A. Me and two more fellows went together at that time.

By Senator Yutzy:

Q. You went up there to help to take out the train—a double-header?

A. Yes, sir.

Q. How many of you?

A. I could not say. There was a good many police there. I could not say how many.

Q. Were you on the engine?

A. No, sir; I was not on the engine. I saw a lot of them jump on the engine.

Q. Policemen?

A. Policemen.

Q. Were there any threats made against the engineer or fireman?

A. I did not hear any.

Conrad Shaffer, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. Conrad Shaffer.

Q. Where do you reside?

A. 318 Fifth avenue.

Q. What is your occupation?

A. Police officer eight years and nine months.

Q. Were you on the police force last July, at the time of the riots?

A. I was not, sir.

Q. Were you sent for to appear at the mayor's office?

A. On Thursday morning, when this occurred, we were standing down there on Smithfield street. We just had been paid off, and I was standing there with George Kauffman, another police officer, and Detective O'Mara came to us and said we were wanted at the mayor's office. We went over, and they said to us there was a strike some place. They did not tell us where. There was ten of us gathered around there in the mayor's office, and we were marched by Smithfield street to the Union depot. Mr. Fox, the railroad officer, was along. We walked up Smithfield to the Union depot and got into a car with the shifter in front, and took us out to Twenty-eighth street. They stopped there and we got out, and when we got there this man McCall, who struck Watt—I seen the man running backwards and forwards—then somebody got him by the back of the neck, and I then ran up and put the nippers on him and arrested him and took him to the Twelfth ward station-house, and we went back to the railroad track. I stayed there all the forenoon, until about two o'clock in the afternoon. There was a train came along, and Mr. Fox came to us and said he wanted men on the engine. Fox told me and Cochran to stay in the rear, and we went back to the rear, and while we were going back the train moved on, and men got in front and done this like, [holding up his hands,] and the engineer got off. The second engineer got off, and the men that was firing they got off, and we stopped there then all the afternoon, and we went to the central station. We had our supper in the Continental, and after we had supper we were marched back again out to the depot. Walked up then to what they call the dispatch office, at the outer depot. There is a little house that they call the dispatch office, and a telegraph dispatch came in that they did not want any more officers—thought they could do without the police out there—so then we stood there for a long time, and did not know what to do, and Clerk Davis told us we might go home if they did not want us. Directly a dispatch came in that we could go out. We were put on a car and taken out again, and we remained all that night, until half past three o'clock in the morning. Then there was no disturbance going on, and we went home. I then stayed at home. We were not wanted any more—the city did not want us, and the railroad company did not want us.

Q. Did they tell you they did not want you?

A. We were our bosses.

Q. You say the railroad company did not want you?

A. I did not see any official of the Pennsylvania railroad there at all. On Monday evening after the proclamation was issued for all the old officers to come back again, I went to the Central station and offered my services, and on Monday morning the mayor, and General Negley, and a squad of his men, and a company of Mr. McFarland's were marched down Smithfield street to this place, where the boat was coming in from Elizabeth—right down here on second avenue—and stopped them, and the mayor and General Negley then made speeches to the men, told them they had better not raise any violence in the city of Pittsburgh, and keep quiet. We were taken away again, and placed on the city of Pittsburgh force on our regular beat.

Q. After you tried to start this train, and the men waved their hands, and the train stopped, did you get off?

A. I was not on the train. I was in the rear of it.

Q. Were the officers in possession of the track?

A. There was officers all along the track.

Q. They could have run this train. It was possible for the train to go out; that is, the crowd could not have interfered.

A. Yes, sir.

Q. You went back to the depot after supper?

A. After we had supper, we marched to the Union depot. Went into the telegraph office, outside the Union depot—there was a two story frame they called a dispatch office. A dispatch came in that they did not want any officers, and I asked Clerk Davis, says I, "Don't they want any more police out there" and he said, "It seems not."

Q. Who is Clerk Davis?

A. He was the chief's clerk.

Q. The mayor's clerk?

A. No, sir; the chief's clerk.

Q. He was not a railroad official?

A. No, sir; the chief's clerk.

Q. Dispatch came that they did not want any more officers?

A. They dispatched that a man was here, and if they wanted him, they could have him. There were two young men in there that were playing checkers. I could see them standing at the window and looking in. They were playing checkers at the time, and I walked right up to Mr. Davis, and the young fellow held his ear right down to the instrument when it came. They telegraphed, "You can send him, if the man is willing to go out." So he went.

Q. You did not go back, you said.

A. I went home.

By Mr. Means:

Q. Did you know those engineers that jumped off the train?

A. No, sir; they were perfect strangers to me.

Q. Did you know the man that waved, to stop the train?

A. No, sir; he was a tall young man, light moustache, to the best of my recollection.

Q. Did you know any of the railroad employés?

A. No, sir. It was on a different part of the city. My way was out here on Fifth avenue, that was over on the other side.

By Mr. Yutzy:

Q. Did they start the train?

A. They ran about the length of this room.

Q. How many men were on the track in front, and waved and signaled to stop?

A. I could not say how many there were in front of the train. There was not any more on the track than there is in this room.

Q. Did they make any threats?

A. No, sir.

Q. Said nothing to the engineers?

A. No, sir. All the man done was this. [Waving his hands.]

Q. Did you take that to be a signal to stop?

A. I supposed so. I was in the rear, and Mr. Fox told me. He says, "Shaffer, you go in the rear, and get on the train." Says I, "All right, Mr. Fox." Just as I got ready to jump on, the train stopped.

By Mr. Engelbert:

Q. This man that made these signals, was he on the track in front of the engine?

A. Yes, sir.

Q. How far were you from the engine?

A. I went to jump on. I went to get on, and I seen the young man doing this. Some of them hooted and cheered, and then she stopped.

Q. You were not at the rear of the train?

A. Not quite; it was a long train. I do not know how many cars were on it.

By Senator Yutzy:

Q. Were you up there on Sunday?

A. No, sir.

George Cochrane, *sworn*:

By Mr. Reyburn:

Q. What is your full name?

A. George Cochrane.

Q. Your residence?

A. Eighth ward.

Q. Occupation?

A. Been on the police force until they dropped these men.

Q. Are you on the force now?

A. No, sir.

Q. Were you on duty on Thursday and Thursday night of July 19th?

A. I was one of the ten men that was called in on Thursday.

Q. Be kind enough to relate what occurred?

A. We mustered up ten men, started out to the Union depot, got on a car there and went as far as Twenty-eighth street. Seen a big crowd out there. Stopped around there a little while, and this McCall, he jumped on a switch there and made use of some threatening language, and I believe, struck superintendent Watt, and we arrested him and put him in the Twelfth ward station-house. We fetched him to central station at Diamond alley. We came

in, got supper and went out again, then went to the Union depot and stopped out there awhile, and didn't know whether they wanted any more men or not. We stopped there awhile, and finally went out as far as Twenty-eighth street again, and stopped there all night. In the morning, I guess, six or seven o'clock, I came in again—Friday morning I came in to the Union depot, and seen Mr. Fox there, and he detailed me for the depot then—detailed five of us. Stayed in around about the Union depot. I stayed there until nine o'clock Friday night, and Fox told me I had better go home and get some sleep. I went home and came back Saturday morning, stayed around there all day Saturday and Saturday night, and I went up home to change my clothes. Sunday morning I came back again, stayed around until the Union depot had caught fire, and word was sent from the mayor's office that the mayor wanted all the policemen he could get hold of to report at the mayor's. We went down to the mayor's office, and was detailed there, doing duty around the city. We went out Second avenue here and stopped a party there from coming in. The mayor made a speech to them. Went to the Connellsville depot and arrested some thirty or forty there that had taken a train and would not pay any fare.

Q. Taken a train to go out?

A. No; they took charge of a train and would not pay fare.

Q. That was the parties that came from Cumberland, Maryland.

A. Yes; that was the same party.

Q. This double-header, on Thursday, I believe, was thirty-six cars and two locomotives?

A. We started to go out with some four or five policemen on each locomotive. Sheaffer and I was on the rear part of the train, and we made several attempts to go out, and the engineer on the first locomotive he jumped off, and the crowd cheered him. Then he got back on to his locomotive, and got his coat out of the box and put it on, and they both left their engine. There was nobody to hinder them going out, that I could see.

Q. Do you suppose they could run out, and did you have sufficient force to protect them?

A. There was sufficient force to protect them.

By Mr. Means:

Q. Were any of those ten men you speak of, that left the mayor's office, dressed in police uniform?

A. No; they had blouses on them.

Q. Could any of them be distinguished from any other citizens?

A. No; a stranger would not have known them, I suppose. There was hundreds of them out there knew me. I don't suppose a stranger would.

By Senator Yutzy:

Q. What made the engineers leave their engines?

A. They told them to get off.

Q. They told them to get off?

A. They beckoned for them, I believe, and they got off.

Q. Did you know the engineer?

A. Never had any acquaintance with him. Since that time I have.

Q. You did not know them at that time?

A. No, sir.

Q. Didn't tell you why they got off?

A. Yes, sir.

Q. Was any threats made by any one?

A. No, sir.

By Mr. Means:

Q. You speak of these men making some threats. They struck Mr. Watt?

A. Yes, sir; McCall, he used threatening language at the time he struck him.

Q. What did he say?

A. He jumped out there and says, "We will die here."

Q. Die—make a fight before these trains would go out?

A. Yes; we had no trouble out there after we made that arrest?

Patrick J. Carrigan *sworn*:

By Senator Reyburn:

Q. Where do you reside?

A. No. 109 Second avenue.

Q. What is your occupation?

A. Police officer.

Q. Were you on the police force on July 19?

A. Special police officer—yes, sir.

Q. Were you on duty on Thursday and Thursday evening?

A. Yes, sir.

Q. Will you be kind enough to state what occurred?

A. I went on duty Thursday afternoon. There was a pretty good sized crowd at Twenty-eighth street. And they were getting ready to take a train out, and they put a good many officers on each car and the locomotive, and some

stayed along the line and watched them. One man got out in front and done this way. [Waving his hand.] The train and the engineer got off.

Q. How long did you stay there?

A. I stayed until five o'clock, and then came in town, and they were taking this McCall in; and I got supper, and then went out again in the evening, and stayed there all night.

Q. Were you on duty Friday?

A. No, sir.

Q. Friday night?

A. No, sir.

Q. Saturday?

A. No, sir.

Q. Were you on duty at any time afterwards there?

A. Yes; went on duty again on Tuesday after the riot, and when going out on the train, one of the Pennsylvania officials got on the train, and told us when we got to Twenty-eighth street to get off, and not let these men see us. They did not want these men to know that they were.... About twelve of us went up the hill, and lay there behind some trees all night.

Q. This was Thursday?

A. Thursday. A few of us would go down to where the railroad fellows were, and stand around there. There was not over twenty-five or thirty.

Q. Were they on the tracks?

A. No, sir; on Twenty-eighth street. There was nothing on the tracks but railroad men, walking up and down.

Q. Could you have taken that train out that day?

A. Yes, sir; if they had engineers that train could have gone out.

Q. You had possession of the track—and the officers did?

A. There was only this one that was on the track.

Q. Was there any attempt made to assist him?

A. Not that I saw. He went over in the crowd. I was down back where the crowd was, in case of any of them interfering. We were in citizens' clothes, and we scattered amongst them.

Q. There was no attempt made to arrest?

A. They made arrests before I got up.

Q. They got McCall?

A. Yes, sir.

By Senator Yutzy:

Q. Policemen hid behind trees?

A. We were told to go there by the railroad officials—to get off and not show ourselves; there was some trees in the road, and we laid down there.

By Senator Reyburn:

Q. Were you ordered by the railroad officials in charge of you to go behind trees?

A. To go up on this road. He didn't tell us to go behind trees.

Q. And conceal yourselves?

A. And conceal ourselves.

John Davis re-called:

By Senator Reyburn:

Q. Were you out at Torrens, Mr. Davis, during Thursday?

A. I was.

Q. Will you be kind enough to state what occurred there, and what efforts were made by the police to disperse the crowd?

A. When I got there there was nothing special going on, for everything was quiet. I didn't remain there but a short time—came back to Twenty-eighth street, and when I was there everything was perfectly quiet.

Q. Officers had possession of the track?

A. Yes, sir.

Q. You have testified to what knowledge you had of the occurrences at Twenty-eighth street?

A. With the exception of Thursday night—a little matter I forgot. After I had got the men their suppers, I went to the depot, and reported at the telegraph office I had men to go out. And the reply came back that everything was quiet, and they needed no more men, and they could not send an engine for us. I told the men what transpired, and directly a second despatch came, that we could go out if we wished to. Some of the men walked out, some remained around the depot, and went out afterwards. As I have stated in my other testimony, on Friday morning I sent officers up to the depot, and they returned and stated that they were not wanted; they had all the men they wished.

Q. I believe you testified to that?

A. Yes; I testified to that.

Q. Anything else?

A. Nothing further than I was a witness of the transaction of the firing.

Q. Have you testified as to that?

A. No, sir. You stopped me right at the firing. I was present when the troops came up, and witnessed the whole transaction.

Q. Go ahead?

A. After the troops came up there were civilians in front of the troops. They halted probably five or six feet from Twenty-eighth street. The column left faced, and marched towards the sand-house. The first two columns about faced and marched towards the hill side—formed an open square—and a detachment of soldiers came between the two columns, with the Gatling guns in the rear of them. A detachment of soldiers came up between the two columns—came towards where the crowd was gathered—at a carry arms, and it appears they could not get further, and they fell back five or six paces, and came to a charge bayonets. At that time, when they came to a charge bayonets, there was in the neighborhood of a dozen or two missiles thrown from the house. I only saw one stone among the lot. At that moment they commenced to fire. I was on the hill side.

Q. Was the crowd resisting the soldiers?

A. There was such an immense gathering there they could not get away—they had no chance to get away.

Q. Did the soldiers attempt to press them back at first?

A. They first came to carry arms—carrying their guns at the side of them—then they stepped back and came to a charge. Just at that point these missiles came from the little house, thrown by the boys.

Q. Did you hear any pistol shots?

A. Previous to that? No, sir; I did not.

Q. Did you hear any command to fire?

A. I didn't, sir. I was probably sixty yards above the railroad track. I could witness the movement of the troops, but could not hear any orders given.

After the firing I immediately came down the hill the way I went up—took the same course. Came down past the soldiers, and went into the railroad buildings. I saw this soldier, who was carried off the ground before they had formed a square, and helped to bring him to.

Q. Who was there?

A. There was two men there—a reporter of one of the city papers.

Q. Do you know these men?

A. Only one of them.

Q. What was his name?

A. Mr. Rattigan. Him and I went in together. He is a reporter—used to be on the Pittsburgh *Chronicle*.

Q. What office was he carried to?

A. Telegraph office. The first floor in that building, Twenty-sixth street.

Q. Was there anybody in the room at the time besides these two men?

A. There were two other men attending him. One of them had a bandage around his head, and said he had got hit with a stone. He said he was not hurt very much. There was a small bandage around his forehead.

Q. You didn't know who gave the orders to fire?

A. No, sir. After the firing there was quite a raised. Some parties were excited over it—some of their friends being killed. It was quiet Thursday, Friday, and Saturday along the railroad. Had no trouble.

Q. How soon after the firing did you go down to this telegraph office?

A. The minute they commenced firing I saw dust flying pretty lively round me, and I started up the hill. I suppose I was three to five minutes going up and coming down. After the firing was done I came right down the hillside again—I came down the same course I went up.

By Senator Yutzy:

Q. You say a sick soldier was in the telegraph office?

A. In the room in the left of the building as you go in.

Q. Is that the telegraph office?

A. They call it a telegraph office, but it is not in that room.

Q. Train master's office?

A. I don't know whose office it is. They call it a telegraph office.

Q. The instruments are in the adjoining office?

A. Yes, sir.

Q. Could you see into the telegraph room?

A. I opened the door to look in.

Q. Anybody in?

A. No; the operator was working with this young man on the floor. He was having a spasm, stiffened up. They worked with him for probably ten minutes before he came to.

Q. He had a fit, didn't he?

A. A fit of some kind.

Q. That was fifteen minutes before the firing took place?

A. I came down the hill immediately after the firing took place, and went there to see these parties in the room.

Q. Did you see General Pearson on the ground just before the firing or during the time of the firing?

A. Didn't see him out after the troops went into the round-house; then I saw him in the yard, probably six o'clock in the evening—between five and six

—I saw him in the yard.

Q. Did you see the officers in the hollow square?

A. I saw some, but could not recognize any of them.

Q. Do you know General Pearson?

A. Yes, sir.

Q. Didn't see him?

A. No; didn't see him until the firing was all over.

Q. If General Pearson had been in the hollow square, wouldn't you have seen him?

A. My attention was not directly called to the officers. I was watching the movements of the men, and the minute these stones were thrown, my attention was called to that. In fact, I was not looking at the officers, I was watching the movements of the men. I suppose if I was looking for General Pearson, I could have picked him out from others. I have known him for a good many years.

Richard Hughes, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. Richard Hughes.

Q. Where do you reside?

A. 2512 Carson street, south side, Twenty-fifth ward.

Q. What is your occupation?

A. I was on the police force.

Q. Were you on the police force on the 19th day of last July?

A. I was one of those suspended.

Q. Did you offer your services to the railroad officers on the 19th of July?

A. Yes; I went up to the Union depot, two or three parties along with me, ex-policemen, Thursday morning. Stayed there until about eleven o'clock. The first thing, I seen about ten or fifteen, or twenty policemen, with two or three detectives, walking through the Union depot. That drew my attention, and I followed them. George Crosby, and two or three other parties went back, and met Mr. Davis on Smithfield street, and he told us they wanted to see us at the office—wanted us to go out to the Union depot. We went down to the Union depot, and seven of us, with detective White, and taking a train between one and two o'clock from Union depot to the stock-yards, we went out—seven of us. Sam Leary, at East Liberty, he came in, too. Mr. Watt was along with us. There was two or three hundred people around there, and they told us to clear the track, they were going to start a train then. We went to move them off the track, so they did, and when the track was clear, they couldn't get engineers, firemen, or brakemen to take out the train. Stayed there until seven or eight o'clock that evening, and everything was quiet. The regular force came out about half-past six that evening, in full uniform, around the stock-yards. There was nothing going on there. We came on on Monday morning following. I came to town; went up to the Union depot. I saw two or three policemen, and asked who hired them, and they said Fox. I asked him if they wanted any more policemen, and he said he had plenty. I asked for Mr. Watt, the superintendent, and he told me he was at the round-house. He told me they wanted no more policemen. I asked him to pay me what he owed me, I want to leave town in the afternoon. He said he couldn't pay me, to go to the office. He told me he didn't want any more police. I went to Mr. Watt myself.

Q. Did you tell him the mayor had sent you?

A. I told him the mayor had ordered us out there. The day before that we wanted to know who was going to pay us. They told us the pay was all

right. Clerk Davis asked me, why ain't you on duty, and I told him they didn't want me.

Q. Did you see anything of the fire that night?

A. No, sir; I left two o'clock Friday afternoon.

George W. Crosby, sworn:

By Senator Reyburn:

Q. What is your full name?

A. George W. Crosby.

Q. Where do you reside?

A. No. 1117 Carson street, south side.

Q. What is your occupation?

A. Formerly a policeman and laborer.

Q. Were you on the police force on the 19th of July last?

A. No, sir. I was taken off on the reduction. The 11th or 12th of July the suspension took place.

Q. Did you offer your services to the railroad officials on Friday, the 20th?

A. Yes. I went to the Union depot on Friday, the 20th, between nine and ten o'clock. I met Mr. Fox, a police officer of the Pennsylvania railroad, offered my services to him, and he told me he didn't want any more. He had all the men he wanted, and mentioned the number of men he had.

Q. How many did he say he had?

A. I couldn't say positively. Three or four, or four or five. I couldn't swear to the exact number, but I know he mentioned it to me. He had all the men he

wanted.

Q. You were not on duty on Thursday?

A. Yes; I was.

Q. Did you see anybody besides Mr. Fox?

A. At the Union depot?

Q. No, sir; that day—on Friday?

A. No, sir. I only offered my services to him.

Q. Did you see Mr. Watt, the superintendent, at any time?

A. I was in company with Mr. Hughes at the time he saw Mr. Watt, and I had nothing to say to Mr. Watt at all.

William J. White, *sworn*.

By Senator Reyburn:

Q. Where do you reside?

A. City of Pittsburgh.

Q. What is your occupation?

A. On the detective force.

Q. Were you out at Torrens on Thursday, the 19th of July?

A. I was, sir.

Q. Will you be kind enough to state what occurred, and what efforts were made by the police force to disperse the crowd?

A. I will state that about the neighborhood of twelve o'clock on Thursday, the 19th of July, I met the chief's clerk, Mr. Davis, and he told me he

wanted all the available police he could get, to go out on the railroad, there was a strike. I hunted around and got one or two, and going up Fifth avenue I met the mayor, and the mayor told me to go out and get all I could, and go to Twenty-eighth street. I went up to the depot, and got about six or seven men, besides myself, and took up some on my way—about seven men, I guess—and went to Twenty-eighth street, getting off the cars there; and Mr. Watt was with us, and he told us we had better go on to Torrens station. We got on the cars and went to Torrens station, and got off there. There was quite a crowd—I suppose seventy-five or one hundred strikers. Mr. Watt asked me to clear the tracks. I done so. Told the men to get off the tracks, and they all went off the tracks, and had no trouble or difficulty whatever. Stayed around there for a considerable time, and I think Mr. Gumbert, a gentleman connected with the dispatcher, came to me and said, "We are going to send a train out." Says I, "All right." Says he, "What I want you to do, is to get the men up the track, and see that nobody mounts the train." I told the men to scatter along, in different positions, on the track; that this train was going out, and see that nobody got on the train, and that the train went out. No person interfered whatever.

Q. What day was this?

A. Thursday, the 19th.

By Mr. Dewees:

Q. Was that a double-header?

A. I could not say. I suppose there was over twenty cars on it.

Q. Do you know whether there were two engines on it?

A. No, sir; there was only one engine.

By Senator Yutzy:

Q. How long did you remain there?

A. I remained until seven o'clock in the evening.

Q. Any further effort made to run trains after that?

A. No, sir.

Q. Any threats made by any of the men when the train started? Was the engineer threatened by the crowd?

A. No; I talked to some and they said they did not wish to intimidate any person. They were talking to the engineer and fireman. There was no threats or violence while I was there.

Q. Were you at Twenty-eighth street during the firing on the troops?

A. No, sir.

Q. Do you know anything connected with the riots?

A. I was not up at Twenty-eighth street, from the fact that the rules at the mayor's office require that a man has a week in the office, and it was my week in the office, and Friday and Saturday I was in the office all day. Sunday, after dinner, I started out. Then I started to help the fire department, and do what I could in that way.

Q. You were at the office after the Thursday of that week?

A. Yes, sir.

Q. While there, did you hear any demand made on the mayor for a force of police?

A. I cannot say that I did. The mayor was a good deal confused about it. We had not the force, in fact. I think it was Friday or Saturday morning. I seen a party come down to the mayor, and go into the office, and ask for that—some warrants that should have been served—that they hand them over. I believe they were handed over to a young man that came there—some warrants issued, I think, for some of the head rioters.

By Senator Reyburn:

Q. Do you know anything about those warrants?

A. No, sir; I do not.

By Senator Yutzy:

Q. Did you see any one ask the mayor to go along up to the railroad, and see Mr. Cassatt or Pitcairn or anybody else?

A. I did not.

Q. Did you hear any conversation in the office by some men, in regard to the burning of all the railroad property, on Sunday?

A. I did not; no, sir. I was in the office until dinner time. There was a good deal of excitement around there. Citizens running in—and the mayor was doing all he could, under the circumstances.

By Mr. Means:

Q. Who was the man that demanded the warrants?

A. He was a young man. I could not tell.

James Scott, *sworn*.

By Senator Reyburn:

Q. What is your name?

A. James Scott.

Q. Where do you reside?

A. Ninth ward, Pittsburgh.

Q. What is your occupation?

A. I am a detective officer.

Q. Were you on the force at the time of the disturbance, in July?

A. Yes, sir.

Q. Did you hear the mayor offer the services of the police force to the firemen to protect them, at any time during the fire on Saturday night or Sunday?

A. I will just state, as brief as I can. On Sunday morning I was sent by the chief to the Twelfth ward station to take charge of the telegraph office, and I met the mayor coming down. He asked me if I was going down. He told me to remain at the station there until I was relieved. In an hour and a half the mayor came back again in a buggy and asked if any squad of police had come up. He left his buggy there, and went to Twenty-eighth street. The station-house is at Twenty-sixth street. We went up street and came back again, and about the time we came back the squad of police was there. They brought in some prisoners. They had their arms full of goods. The mayor gave them orders to string along on Liberty street and protect the firemen, and arrest anybody that would interfere with them, and they started. I stood there all day, until seven o'clock in the evening.

Q. Do I understand you went with those men to Liberty street?

A. No, sir.

Q. You stayed at the station-house?

A. I stayed until I was relieved by the night captain. There were one hundred and fifteen men taken out. I think there are seven different station-houses that have a police wire in, and you have to have a man to attend to it; but in daylight they have none.

Q. There is no man left in the station-house at that time?

A. Nobody to do that. When we had the one hundred and sixteen men on, the lieutenant was always on duty more or less, and it was understood he could operate, and if there was anything wrong in the district, he could telegraph to head-quarters. We have one in East Liberty, one at

Lawrenceville, one in the Twelfth ward, one at Centre avenue, one at the Fourteenth ward, and three on the south side. I came down in the evening at seven o'clock. Some parties threatened they would be around in the evening to burn the water-works, and the citizens of those two blocks surrounding that and edging on the Fort Wayne sheds considered if any of those places got started it would be liable to burn them out. I went down to the mayor's office and reported this danger, and I thought we ought to have a squad of police, fifteen or twenty. I reported to the chief and also to the mayor, and said I would start back and get together what citizens I could; and it was not an hour until there was twenty-five police there. We surrounded these water-works and stayed there until daylight.

Q. The morning of——

A. That was Sunday night at the time of the fire. During the night, about eleven o'clock, we smelled smoke at the far end of the Fort Wayne, and a couple of citizens, by the names of Moran and Reed, went down there and put it out. If it had got started there would have been quite a fire there.

Q. You are a detective, I understand?

A. Yes, sir.

Q. Were you on duty on Thursday?

A. On duty on Thursday; yes, sir, on duty right along.

Q. Did you witness any of the occurrences?

A. No, sir; was not out there at any time. No orders to go out.

Q. You received no instructions about arresting these men. There was a warrant for some men who were supposed to be leaders?

A. There was a party detailed for that purpose.

Q. You were not in that party?

A. No, sir.

Q. Would it have been possible that night for these men to get hold of these parties—those officers that had the warrants? Were you out that night on duty?

A. Not that night—never off duty, you might say—we are always on duty.

Q. What I want to know is, whether these officers could have arrested these men they had warrants for?

A. I think it would have been almost an impossibility to have got them, unless they were got at their homes. To take them out of that crowd would take twice the force to get one or two men.

Q. You believe that with the force of the mayor, it would have been impossible to have taken these men?

A. To take these men right in the crowd, it would have been dangerous. I felt that way. I have had occasion to be where there was something like a riot at the bolt works, this same summer, and we had about twenty police there, and I suppose there was some fifteen hundred or two thousand men. We gave them to understand they could not pass into the gates, and they did not pass in, and it all passed quiet, and nobody hurt; but if we had fired one shot, I do not think we would have been of much use.

Q. As an experienced officer, you would not have made the arrest that night in that crowd?

A. Not in that crowd.

Q. Do you know whether there was any effort made to shadow these men—following them to their homes?

A. No, sir.

Charles L. Schriver, *sworn*:

By Senator Reyburn:

Q. Where do you reside?

A. Reside in Harrisburg.

Q. What is your occupation?

A. Locomotive fireman.

Q. Were you employed by the Pennsylvania Railroad Company?

A. I was.

Q. At the time of the strike on the 19th of July?

A. Yes, sir.

Q. Were you there on Thursday?

A. I was there on Thursday morning.

Q. Be kind enough to state what occurred?

A. I got to the round-house, I guess, about eight o'clock; stayed in there awhile. I was reading a dispatch containing an account of the riot in Martinsburg to three or four other fireman and engineers. There was a man came into the round-house and said the brakemen were on a strike. So a couple of us went down to the yard, and the brakemen said down there that they were not going out on any double-headers. There was a fellow tried to make a coupling, and a man hit him with a link, and a little while after that they took out the same train with a yard engine. They couldn't get any long road engines out—nobody would go. I went home to dinner and came back. They tried to take out this double-header. They coupled engine 775 and 473, and it was an understood thing between the engineers and conductors, that any person could go out ahead and make a signal to stop, they would stop and get off. As soon as 775 went down the yard and got the train of thirty-six cars, and came up into the yard, and 473 coupled ahead and pulled her out, there was four or five policemen got on each engine, and John Major, he was on 473, and the engineer of 473, pulled her out. She made about two exhausts, and a fellow got ahead on the track and threw up his hands. That

stopped her. He reversed, and got off. Then the road foreman and civil engineer took the train back into the yard and ran the engines up to the round-house. I went home to supper that evening, and was going to Allegheny, and parties said, "You better stay around here at Twenty-eighth street." It was all very quiet. There was no disturbance or anything. About twelve o'clock, somebody says, there was a kind of collision in the crowd. Right at Twenty-eighth street, about three feet on to Twenty-eighth street, there was a car that they used in loading cinders, and directly a man stepped up—it was Sheriff Fife—and commenced talking, and said we had better go home, and leave the company do as they please. It was only making the thing worse. The company would come out ahead anyhow, and it was no use kicking about it. General Pearson and Davy Watt was along, and, I guess, they talked in the neighborhood of ten minutes, perhaps, and some person went to General Pearson, and asked him about the case of McCall, who had been arrested. Pearson said if they would be down at the lockup with all their witnesses, he would defend them, and would not want any money for it. They thought that was a magnificent offer of General Pearson, and they would accept it, and I do not know whether they went down or not. I went home—the sheriff was there—and went to bed and got up about six o'clock, went down street; bought a paper to read an account of the strike, and went down town; and going down, there was one hundred cars of stock that had come to Twenty-fifth street, and asked for them to have two engines, and some parties volunteered in the crowd that they could have a dozen if they wanted. I went down to the depot about nine o'clock, and the engineer requested me to fire one of these trains to East Liberty. I fired up twice for him. The first trip they had put up this proclamation purporting to be the Governor's. I read it myself. There was three of them, I believe, posted up round there somewhere. This was about eleven o'clock. There was nothing further occurred of any importance there that night. I heard of the First division being called out. Knew of the other troops being called out—I heard of it about eleven o'clock. The First division was called out, and was coming here at about two o'clock. I heard about the shooting in Baltimore, and was told that they came to do the same thing here. I stayed there until General Pearson came. I was acquainted with General Brown.

Talked to Major McDonald, he said his men could not fire, that his men had no ammunition.

Q. Who told you that?

A. Major McDonald, of the Fourteenth regiment. I talked to General Pearson a while, and he got up and said there was no damn use of the boys going around there, he was going out with a double-header, and was going to ride on the pilot. Some of the boys allowed that he was not. I stayed there until ten o'clock, and I knew the Philadelphia troops ought to be there pretty soon. I left and went home; went to bed. I slept then until evening, and didn't know anything about the shooting, until I was awaked up about six o'clock. I went up to Twenty-eighth street. Didn't see any dead men. Seen some blood around. Stayed around Twenty-eighth street and Penn, and saw parties marching out with guns, flags, drums, &c. Went home and slept until half-past three o'clock that morning. I got awake by seeing the fire out of my bed. Waited until daylight. As I got to the Twelfth ward lockup the black maria came. They took down a whole gang for stealing up there that night. Just as I crossed Twenty-sixth street, an engineer of the road says, "The Philadelphia troops fired at us." I got up to Twenty-eighth street again, and was told they were going to leave the round-house. I stayed there at the corner of Twenty-eighth and Liberty, and I saw them marching down Twenty-fifth street. Then I stayed at Twenty eighth street until they passed. I saw they had all their arms cocked, and ready to fire.

Q. Did you see anybody fire?

A. No, sir. I went up to the hospital grounds with a lady friend of mine, stayed around Twenty-eighth street. She thought it would be the least danger. As soon as they got to Thirty-third street, I heard a volley. I guess it must have been a hundred pieces went off.

Q. You said it was understood that if any man came in front of the engines, any engineers and firemen were all to get off?

A. It was an understood thing between the crew of this train. The conductor, by the name of Franze—he formerly run from Pittsburgh to Connemaugh,

and then from Derry to Altoona. He came from Johnstown that morning. He didn't want to go out, and he came to where there was a crowd standing, and he said if any person would tell me not to turn the switch, I wouldn't do it. He only wanted an excuse not to go out. He wanted to keep himself solid with the company, and keep his job. He went down to the transfer, and coupled up thirty-six cars, and Woodward, the engineer of 473, he said the same. All he wanted was some one to go and signal to stop, and then they would have an excuse that they couldn't go out. They would be solid with the company and men also. When they coupled these engines, 473 and 775, a man by the name of David Davis, he was the first man to swing, and they understood what he wanted, and he reversed, and stopped. That is what I say, it was an understood thing between the crowd and that train crew.

Q. Was there any understanding among the men generally?

A. No; there was no understanding among the men generally. I think every person said they wouldn't go out on double-headers.

Q. They had all agreed on that?

A. Yes, sir.

Q. What were the causes leading to the strike?

A. When the reduction become known it was decided on a strike. Then there was to be a strike, and they sent a committee of engineers to see Mr. Scott; but they couldn't get any satisfaction. I understood then that the 27th, I believe, was set for another strike, and that fell through; but this strike, it was not a pre-arranged thing, until it was known, until the first eight-forty train that morning. When I came to the round-house—everything was double-headers. On Monday there had been an order posted on the telegraph that all trains were double-headers, and a new line would ran to Altoona. That would have taken a great deal of work from some men. There would be a good many discharged. They suspended two or three of their oldest engineers. Every man refused to give up. They all talked of it, and went on with the strike, all the other roads striking. On Friday a telegram came from the Erie that all of them were on a strike.

Q. Telegraph came from the Erie?

A. Came from Hornersville, New York.

Q. To the Trainmen's Union.

A. It come to the master of the Firemen's Brotherhood of this division?

Q. It was an understood thing they were going to strike on Friday?

A. No, sir; you misunderstood me. It was an understood thing that a strike was to occur on the 19th of July, but after the Baltimore and Ohio went out first, and then, when the men on the Pennsylvania struck, then the rest of them followed suit. The Fort Wayne, Pan Handle, and all over the country, all followed after the B. and O. and Pennsylvania.

Q. That was not double-headers?

A. The rest of them followed—that was going against their ten per cent.

Q. What was the cause?

A. The ten per cent. and abuse and double-headers was the main cause of the strike. If a man didn't make himself solid with these petty officials, they were abused.

By Senator Yutzy:

Q. Was it understood that there was to be a strike all over the country when the Pennsylvania Central men struck?

A. No; as far as I know I don't think it was. After the Pennsylvania went out, the other men had their cause to strike, too, and they followed suit, right after the Pennsylvania, because they had the two big trunk lines striking, and these other little roads, that they would follow suit.

Q. You were speaking of the Firemen's Brotherhood. Is that the same thing as the Trainmen's Union?

A. It is just the same as the Brotherhood of Locomotive Engineers.

Q. That is separate from the Trainmen's Union?

A. Yes, sir.

Q. Are you a member of the Firemen's Brotherhood?

A. No, sir; I don't belong.

Q. A member of the Trainmen's Union.

A. No, sir.

Q. Were you a member of any organization?

A. No, sir; I attended one meeting the firemen had. Engineers had their meeting, and firemen had their meeting, and trainmen had their meeting.

Q. Do you know whether there was a man selected to start this strike in any way?

A. To tell the truth, there was not one man in Pittsburgh knew this strike was to occur on the 19th of July.

Q. You believe the first man that left the train——

A. Was the cause of the rest following. This Rye, one of the men you had before you, his crew was to go out that morning at eight-forty. That would have been the second double-header on the road. Of course, there was a good many double-headers run over it, but it was to be general. There was to be no single trains. When his crew said they were not going out, we might as well quit this, as to be discharged after a while, then the rest of the men coming in, they would not go out, then, because the first fellows refused to go out on double-headers. If a man would have wanted to go out, he could have. There was nothing to prevent him, if he had a little courage.

Q. There would have been no bodily injury?

A. No, sir; if I had wanted to go out, I could have gone out or anything else. The strike was conducted by intimidation.

Q. I understand you one fellow got struck with a link?

A. That was done by a party who was not really responsible for what he was doing. He was a little the worse for his beer, or he would not have done it.

Q. We had testimony that links and pins were thrown at engineers on their engines—did you see anything of that kind?

A. There was one link thrown at this man that went to couple the caboose to the engines on the Thursday morning, and he had no business to couple a caboose, or they wouldn't have thrown any link. He belonged down to the transfer, and was not a long road man.

By Senator Reyburn:

Q. Every fellow has his work, and if he undertakes to do anything else, they don't allow him?

A. Just as affairs stood then, they didn't allow it. There was no threat made. Another fireman and me sat down on a track and talked to some of them—asked what they were going to do. They said nothing; only we are not going out on double-headers.

Q. How did they come and take possession of the switches, and stop trains from running?

A. They didn't stop any; they didn't have any men to go out with them. A good many men deny that they had anything to do with the strike, but they had at that time. They wanted their ten per cent. as much as anybody.

Q. Had the order cut their wages down below what they could have lived on, or could the men make fair wages enough to live on?

A. If the strike had not taken place that morning, there would have been twelve engineers to go off, about ten firemen, and forty trainmen, conductors, brakemen, and flagmen—that would have been fifty or sixty men. It would have been only a week or so until they would have run everything to Altoona, and that would have thrown out the east end of the

division, and then there would be nothing left for the strikers at all, only when freight was a little heavy they would not have made anything. A man never made much money unless freights were very good, and he is running all the time, and is half dead—then he can make money. That is in regard to firemen or brakemen; of course engineers, with their big wages, they can make money.

Q. Was it your object, as strikers, to compel the railroad company to employ more men than they really needed?

A. The object of the strike was to do away with double-headers and get their ten per cent. back, if they could. If Mr. Watt would have come up there that morning and said, all right, let them run single trains, the thing would have been over in half a minute. No; they wouldn't do that. They didn't think about their ten per cent. that morning. All it was about was double-headers. After the strike was prolonged, then the ten per cent. was more thought of.

By Senator Reyburn:

Q. You informed the masters of those lodges that there was a strike here in Pennsylvania, on the Pennsylvania, and he telegraphed back that there would be strikes on all the roads?

A. No, sir.

Q. What was it?

A. There was a telegram came from Hornersville, on the Erie road, from a man by the name of Donahue, to the master of this division of the Firemen's Brotherhood, stating that they were all out, and wished the Pennsylvania railroad men success. I believe that was it.

Q. Was there any understanding among the men that they were safe here, in Pittsburgh, to strike, and not to be molested, and they wouldn't be if they were Philadelphia men?

A. No, sir.

Q. In other words, that if the Philadelphia men came here they had no sympathy with the strikers, and they would be apt to attempt to run trains out, and take possession of the tracks?

A. No, sir; I have never heard anything of that.

Q. You don't know that this point was selected, then?

A. No, sir; it was only accidental the strike came about, and it was through the double-headers. If the strike would have been to occur that day, every body would have known it.

Q. Are you working now?

A. No, sir.

Q. Discharged?

A. No; I never was discharged. I asked for my time twice, and it was refused me, and I never went to work one day. I went down to Pitcairn's office to get a letter of recommendation—I wanted to go on some other road—and all the letter he would give me was a note saying he discharged me on account of reduction of force.

Officer White, re-called:

By Senator Reyburn:

Q. State what action the police officers took on Sunday to put down the riot, and burn, and break into the stores?

A. I would state that on Saturday night, about the breaking in of stores, I was at the office, and word came there that they were going into Johnson's gun store. I was ordered up there, and went up there, and the mob was then there, and I believe Mr. Johnson had handed out two or three guns there, to keep the mob away until the police came there. As soon as we got there, we

closed the doors, stood and guarded the gun-shop for a considerable time, until the mob went away, and stopped them from going in there.

Q. Did you have any encounter with the mob?

A. No; not a good deal to keep them away?

Q. You made a show of force, and they dispersed?

A. Yes. Then we had word they were up on Liberty, at a place kept by a man by the name of Shute. I found they had opened and cleaned it out. I came to the office again, and was ordered down to O'Mara and Bown's, and we found they had been in there.

Q. What did they take out—pretty much anything they could lay their hands on?

A. I do not think it was for arms, for the purpose of going out to kill the Philadelphians. I think it was plunder more than any thing else—a general cleaning out—anything they could get their hands on—scissors or anything else. There was a man came into the office with a couple of pair of scissors he had taken from some one. I did not think he wanted the scissors to kill any one with. They cleaned Bown's out completely—knives, pistols, scissors, anything that was in the store.

Q. Do you know where that crowd was from that broke into Bown's store?

A. I could not tell. I did not know whether it was the party that had stopped at Johnson's or not. There was a couple of hundred at Johnson's trying to get in, and we kept them from getting in there.

Q. Do you know where they were from?

A. No, sir.

Q. Do you know of an alderman that was with them, from the south side?

A. After I had left Bown's store, a company happened on Fifth street. I saw a gang of two or three hundred, and I saw an alderman with them.

Q. Anybody else you know?

A. Yes, sir.

Q. Who?

A. A councilman.

Q. Did they appear to be leading this crowd?

A. The councilman did. The alderman did not seem to take much part in it. The councilman seemed to be at the head of it.

Q. What day was this?

A. Saturday night.

Q. Whereabouts does he live?

A. Fifth avenue. After the breaking in at Bown's——

Q. Do you know whether they were part of the crowd that broke into the stores or not?

A. I do not think they were.

Q. Do you know whether the property was destroyed at the Union depot?

A. I could not tell you. I would also state about the police, on Sunday afternoon, during the time the Pan-Handle depot was in their charge. The police drove the mob out of the Pan-Handle depot at the time they were setting fire there. I know that they were police stretched the ropes on the street and kept the mob out, so as not to interfere with the firemen when working there.

Q. Did they hold it for any length of time?

A. They did hold it and kept the fire from going any further—kept the mob outside of the ropes.

Q. Was it not burned?

A. It was burned; yes, sir.

By Mr. Means:

Q. As an officer, do you believe that had there not been any interference with the railroad employés that you could have kept the peace with the force of police you had?

A. I do not think it was the railroad employés that gave us the trouble. I think it was the outside rabble entirely.

Q. I asked a question. The question is this: Do you believe, as an officer, had you nothing to contend but the railroad employés, could you have kept the peace?

A. Yes, sir; I think the mayor could have kept the peace. I do not think there would have been any trouble at all if the military had not been called out at all. My experience on Thursday, with these men at Torrens station, was, I had not any trouble with them. These men were orderly, and when they were ordered off the track they went off the track, and I had no trouble at all, and I apprehended no trouble. The men said they only wanted their rights, and did not wish to interfere with us at all, while we thought they were.

Colonel J. B. Moore, re-called.

By Senator Reyburn:

Q. I believe you testified to being at the firing, and so forth. Did you see General Pearson that afternoon?

A. I saw General Pearson continuously, sir, from Friday at eleven o'clock until eleven o'clock Saturday, except——

Q. How was General Pearson dressed that afternoon?

A. Full major general's undress uniform.

Q. What was that?

A. Fatigue cap, with velvet band and wreath, and the letters "U.S." in front of it; shoulder straps, with two stars; dark blue blouse and pants, and blouse braided, as worn by officers usually.

Q. Gold braid?

A. No, sir; it is black braid. Major general's belt on, very rare workmanship.

Q. Was it something that would attract attention—conspicuous?

A. Yes; it was one of those gotten up for a present, very elaborately embroidered.

By Senator Yutzy:

Q. What color was it?

A. Red, marked with gold braid.

By Senator Reyburn:

Q. General Pearson, then, had a fatigue cap?

A. Yes; such as prescribed for major generals to wear.

Q. What was it made of—the blue cap?

A. Dark blue cloth, with a velvet band.

Q. Gold wreath, with the letters U.S. in front?

A. Yes, sir.

Q. Did he wear this cap up there, just prior to the firing of the military on the mob?

A. No, sir; not just prior. On Friday, when I reported to him, he had on a straw hat, a white vest, and a blouse, before he and I came down from the Union depot, and we put on our uniforms in the evening. I suppose between eight and nine o'clock. It was not dark.

Q. On Saturday he wore this uniform?

A. Yes; he wore a uniform continuously from that up.

Q. Insignia of rank on shoulders?

A. Yes; and his sword. He had a sword with a gold scabbard. All the officers of his staff that were there were in full uniform, except Colonel Hays.

Q. Was he there with the military or with the Philadelphia troops when the firing took place?

A. No, sir; there was no officer near the Philadelphia troops except myself, that is, at the point when the firing took place at Twenty-eighth street. Mr. George Steen, Major Stouts, and Major Fife were at the cars taken out, one hundred and fifty feet below the street. They were down at that flank of the troops.

Q. Were you inside of this hollow-square?

A. Yes, sir.

Q. Did you wear a cap?

A. I wore a cap.

Q. Wear a belt?

A. Yes, sir.

Q. Sword?

A. Sword and blouse, precisely like the one General Pearson had on, except the shoulder straps.

Q. Did you know where General Pearson was, about the time the firing took place?

A. I knew where he started off. He gave me orders to remain with General Brinton, while he would go to the telegraph office.

Q. How long before the firing?

A. I should judge five or seven minutes.

Q. And started, did he?

A. Yes, started; I judge that from the fact that General Brinton went down the Weccacoe Legion and the Gatling guns, and go through the two lines that had been formed on each side of the track. Just as he had sent down that order, General Pearson started, and I should judge it would take time to get the guns up. I have no distinct knowledge of the time at all. It was quite a little time before they were able to get the guns up over the ties.

By Senator Reyburn:

Q. Then General Pearson left before these troops marched down? That is the Weccacoe Legion, with the Gatling guns—he left before that?

A. Yes, sir.

Q. And it was before the firing took place?

A. Yes, sir.

Q. That was the detachment that attempted to put the crowd back off Twenty-eighth street?

A. I cannot say whether it was the Weccacoe Legion or Washington Grays. I understood they were both there, but I could not distinguish them, they were all, as a matter of course, strangers to me. I saw "W.L." on their knapsacks, of either the front or rear rank. I could not see which it was.

Q. General Pearson could not have been there at the time of the firing?

A. No, sir; it was impossible for him to be there without my knowing, for he gave me orders to remain with General Brinton, while he went to the telegraph office, and I know there was no officer there except myself. When a man is alone, he generally knows it.

Q. No officer of your division there—that is, General Brinton and his command were there?

A. General Brinton was about as close to me as you are.

Captain E. Y. Breck, *sworn*:

By Senator Reyburn:

Q. Where is your residence?

A. Pittsburgh.

Q. What is your occupation?

A. I am a stenographer of court of common pleas, No. 1.

Q. What position did you occupy in the militia at the time of the disturbance in July?

A. I was captain in the National Guard, commanding Hutchinson's battery at that time, now known as Breck's battery.

Q. Were you present at the time of the firing of the troops, at Twenty-eighth street?

A. I was, sir.

Q. Be kind enough to state what occurred?

A. Do you wish a statement, as to the firing?

Q. As to the fire, and who were present—what officers?

A. Well, I was stationed just above the flag-house—I suppose you know where that is—and I had received an order a short time before the First division arrived on the ground to be prepared to load my guns on gondola cars, and I saw a plank brought out from the round-house on a truck, and dumped there on the track to load the guns. I was quite anxious, of course. There was a large crowd around there, and I did not feel altogether secure. There was only one company of infantry there, behind me, supporting the guns, and there were a great many rumors floating around there. There was a rumor of trouble in Philadelphia, and I was to be sent there, and for various causes I was anxious to see commanding officer—General Pearson—and as soon as I saw the column advancing up the track, I stood up on one of my limbers, where I could look over the heads of the crowd, and see what was going on. As they came up, I noticed, I think, first it was the sheriff, I remember of seeing him, I think some of his deputies, and I saw General Pearson and two officers, whom I afterwards knew as General Brinton and General Matthews. Although I did not know them at the time, I got acquainted with them that night. This, I suppose, was about half-past four in the afternoon. They moved up until the right of the column rested at Twenty-eighth street. They halted once down about opposite Twenty-sixth street gate, and then, I suppose, was the time that General Loud's brigade was put in possession of those cars down there. Then the first division started on up. The First brigade, they came up until the right was about at Twenty-eighth street, the First regiment was leading. The regiment was in columns of four. They wheeled in line to the left, forced the crowd back off the track, and up to within probably within twenty feet of the walls of the round-house. There were, I think, four gondola cars there, standing on side tracks, that prevented them clearing the track clear to the walls of the round-house. These cars were covered with people. As soon as they halted, both ranks were faced about, and what had been the rear rank was marched toward the hill. Then there was a company brought up from the rear, marched up through the open ranks, and about that time General Pearson disappeared from view. I was watching out very carefully for him, because I was expecting orders every moment, and I was very anxious that he would know where I was. In fact, he did see me. As they were marching up I stood

on the limber, and did something to attract his attention, and I attracted his attention, and he nodded, as much as to say he knew where I was. The reason I did that was, my position had been changed since morning, the guns had been moved from the position in which he had ordered them placed, and I wanted him to know exactly where they were. About that time I lost sight of him, and I did not see him again until I suppose about quarter of six, I saw him in the telegraph office.

Q. How was General Pearson dressed that day—could you see?

A. Yes; I was with General Pearson the evening before, when he put on his uniform. We were down at Union Depot hotel, and he asked me if I would like to take a walk around to head-quarters. I told him I would, and he and Colonel Moore and myself started off for head-quarters. We came up Grant, and I remember some house over here, where the general was acquainted with two or three ladies there. That two or three ladies sat on the steps, and they stopped the general and made some remark about they hoped he was not going to shoot the people, and he stood and talked some little time. We went on down to head-quarters, and got a fatigue blouse out of some of the cases there—the fatigue blouse of the old pattern is alike for all officers of different rank—the designation is by the shoulder-straps. He got this blouse out and found his straps, and I pinned the straps on for him—major general's straps—and he put on his cap and belt, and I think he carried his sword in his arm, if I am not mistaken. We stayed there a few minutes, I do not know but we might have been there ten minutes. Then we went down to the corner of Fifth and Smithfield, and took a car for the Union depot, and went right back. He had the same uniform when he came up the track and the same uniform when I saw him in the superintendent's office, at a quarter to six.

Q. Immediately after the firing?

A. Yes, sir; the first time I saw him after the firing. The cap—it is an ordinary fatigue cap, with a velvet band for general officers. He had that cap and a wreath in front, and I think two stars in the wreath—either U.S. or two stars. I believe it is regulation to wear two stars, and the blouse had

what they call herring-bone trimming—black braid, and runs from the buttons out into loops and slashed at the sides, and the belt was usually worn under the blouse, but it was over the blouse—a red morocco belt, groundwork of morocco, with gold embroidery. Quite profusely embroidered.

Q. Did the crowd resist these soldiers when they marched to Twenty-eighth?

A. Up the tracks?

Q. Yes, sir.

A. As they came up the crowd opened out for them—the column was narrow. They were in columns of four. There was a great deal of hooting and jeering. I think some few of the people were trying to cheer. It certainly was a sight that any man who had love for the military would cheer at. I never saw a handsomer sight for so small a body of men. They were in regular order, well uniformed, thoroughly equipped, and their guns looked splendidly in the sun; and the crowd gave way and there was no actual resistance—nothing to stop the troops until they tried to clear the Twenty-eighth street crossing. The column marched up without halting. I do not think they impeded their step any. When they marched toward the round-house they wheeled into line, to the left, and went towards the round-house. The crowd got back. They could not clear the tracks clear to the round-house on account of those cars. When the rear rank marched toward the hill the crowd gave way, but the troops only came to the edge of the track—the right hand track going out. That, of course, left plenty of room for the crowd on the road. The road was black with people. There were a great many on the side of the hill and the base of the hill.

Q. This crowd at Twenty-eighth street, did they resist when this detachment marched through the center and marched up against them?

A. Yes; there was one company that it looked to me, from where I stood, as if they were unable to do anything with the crowd—unable to move it—and there was a stronger company, or more men—it was another company—I

think it was the Weccacoe Legion and the Washington Greys—brought up from the rear. They came up at a carry, but they did not drive the crowd far. They could not do it without using their bayonets, and I do not know whether there was an order to charge bayonets given or not, but at any rate, the men commenced to bring their guns down as if they were going to charge, and from where I stood, I could see the guns held by the mob—held them in their hands—and I could see the men take hold, up near the muzzle, and draw their guns back, in order to get them down to a charge. Just as they did that there were one or two pistol shots fired, and then I saw about a wagon load of stones and lumps of coal—in an instant the air was black with stones and lumps of coal. Then a gun went off on the right of the company, followed by three or four more, and then very nearly a volley; and I did not want to be killed and jumped off the lumber.

By Senator Yutzy:

Q. Did you hear any command to fire?

A. No, sir; I did not.

Q. How near were you to this body of men—the Philadelphia troops?

A. I was within sixty feet of the middle of the Twenty-eighth street crossing, I suppose.

Q. Could you see the officers inside this hollow square?

A. The officers were mostly—except the regimental officers—the general officers were up on the crossing with this company—General Brinton and General Matthews. I ran down on the track to help the first regiment officers stop the firing. The men had fired, I suppose, two or three rounds apiece. I helped the officers to steady the men up, and give a little confidence to the men, and as soon as they did that, and I think loaded again by command. Then I went up to the crossing, and I saw General Brinton and General Matthews, and he had already thrown two companies further up the track, and had the two Gatling guns in position, one pointing up the

track—both, in fact. And while I stood there, they, turned and went down Twenty-eighth street.

Q. Just before the firing of the troops, did you see any officers in this square, or between these two lines facing away from the tracks—one facing the hill, and another facing down the other way?

A. They were both facing the hill at that time. As soon as the battalion wheeled into line, there was some little fuss there—a man or two fainted. They faced both ranks about.

Q. There was a space there?

A. Yes, sir.

Q. The regimental officers were there?

A. Yes; I spoke to Colonel Miller. He reminded me of it the other day in Philadelphia.

Q. Did you see any of the officers of the Sixth division there between these two lines?

A. No, sir; I think not, they were further up, right on the crossing. The two lines reached—suppose this is the lower line of Twenty-eighth street. [Illustrating.] They brought these lines right up to within ten feet, perhaps, of the lower line of the street, and then those two companies were right here. [Indicating.]

By Senator Yutzy:

Q. Do I understand you to say, that the company that was marched toward Twenty-eighth street did connect with those two wings of the flanks?

A. The company was practically covered on the flanks. There was a flag-house in here. [Indicating.]

Q. Some space between that company and the flanks of the regiment?

A. Yes. There was a little space, because I remember when I went down I went around the left flank.

Q. Did you see any of the officers of the Sixth division in the rear of this first company, marching towards Twenty-eighth street. Did you see Colonel Moore?

A. I do not remember of seeing him. I might have seen him.

Q. Where did you see Pearson? You said you saw Pearson, and nodded to him?

A. That was when he was marching up, and I followed him with my eye until I saw him on the crossing where the crowd was, but this was before they attempted to drive the crowd back, and there was one company—it was a small company—and they did not make much of an effort with them. They sent back for more men. I do not think the Gatlings were brought up at first. My recollection is they came up with those other companies that were brought up from the rear.

By Senator Reyburn:

Q. You did not see him after those other companies came up?

A. No, sir; I did not see him then.

By Senator Yutzy:

Q. Where did the firing commence?

A. Commenced on the right of this company.

Q. The company advancing towards the crossing?

A. Yes. They were facing up the railroad track right as you go out. The firing into the troops commenced over here. [Indicating.] There were two or three car loads of coal standing there.

Q. On the left going east?

A. On the left going east, and there was a man on that car fired the first shot.

Q. A pistol shot?

A. As nearly as I could state. Then there was a house on the road going up to the hospital grounds—there was a man behind that that was firing down this way—I saw that they both fired about the same time. There must have been a dozen pistol shots almost simultaneously with the lumps of coal and stones.

Q. Did that house stand near the gate that leads up to the hospital?

A. Yes. I think this end of the house was on a line with the gate. The watch-box would be down here [indicating] across the street, and up a little from the railroad. I was out there a month or so ago, and it has been removed.

Q. Where was your battery?

A. Right in there. [Indicating.]

Q. A little above the watch-house?

A. A little above the watch-house.

Major J. B. Steen, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. James B.

Q. Where do you reside?

A. I reside in Pittsburgh.

Q. What is your occupation?

A. The coal business.

Q. Were you a member of the National Guard of Pennsylvania in July last?

A. Yes; I was quartermaster on General Pearson's staff.

Q. Were you present at the time the troops were called out to quell the disturbance or strike?

A. I was present at the time the Philadelphia troops arrived.

Q. State as briefly as you can when you came upon the scene, and what occurred?

A. These Philadelphia troops arrived at Union depot some time after dinner, and they furnished them with meals there, and along in the afternoon the column started out towards Twenty-eighth street, headed by Sheriff Fife, General Pearson, and General Brinton, and Major Stroud, and Givens, and Moore, and myself were on the staff; and when we arrived at Twenty-eighth street, we formed a hollow square. There was a pile of plank about the center of the square, and I sat down on the plank with Pitcairn. We marched the Washington Grays through the center, to force the crowd back off Twenty-eighth street. There was pistol shots, and stones thrown, and they commenced firing on the right, and then there was a general volley along the line.

Q. Was this firing by orders?

A. I did not hear any orders. General Pearson had passed me while I was sitting on this pile of plank, and he asked Pitcairn where the nearest telegraph office was, and, I think, he told him in his office, and he started down that way. It was five or ten minutes before the firing took place.

Q. That was before this company was marched out to clear the crossing?

A. No, sir; it was after the company was marched out. I am not positive whether it was after or before, but my recollection is that it was after.

Q. General Pearson passed you, then, going down to go to Pitcairn's office?

A. Yes; to the telegraph office.

Q. How was he dressed?

A. He had a fatigue uniform, blue cap, blouse, sword, belt, and blue pantaloons.

Q. Had this blouse buttons up close to the throat?

A. Buttons all the way up to the throat.

Q. Did you notice whether it was buttoned that way?

A. I could not say whether it was buttoned or not. I should judge it was though.

Q. Did you say he had a cap on?

A. Cap; yes, sir.

By Senator Yutzy:

Q. Shoulder straps?

A. Two stars on the shoulder—straps and stars.

Q. Were they conspicuous enough to be noticed?

A. They would be noticed, I should judge—regular size.

Q. Regulation size?

A. Regulation size.

By Senator Reyburn:

Q. General Pearson passed you before the firing commenced?

A. Before the firing commenced.

Q. Five or ten minutes?

A. Five or ten minutes. I was sitting on a pile of plank there, and Pitcairn was sitting beside me and Major Stroud.

Q. How far is it from there to Pitcairn's office?

A. I should judge it was about a square—a little over that—two squares.

Q. Did he come back again at all, before the firing?

A. No, sir; the next place I saw him, was in Pitcairn's office. I went down to hunt him up to report, and I saw him in Pitcairn's office.

By Senator Yutzy:

Q. Did he know that there had been firing?

A. He knew it; yes, sir.

By Senator Reyburn:

Q. Was anybody there when you got there?

A. Yes; there were several gentlemen there, but I do not recollect who they were.

Q. Was he in the telegraph office or in Pitcairn's—that is above the telegraph office?

A. In Pitcairn's office.

Q. Has he a telegraph instrument there?

A. There is a waiter that goes down, and they send the messages down to the office.

Q. Was he dressed the same as when he passed you?

A. Yes; in his fatigue uniform.

By Senator Yutzy:

Q. How close were you to the military when the firing took place?

A. I was sitting right in the center of the hollow square.

Q. Were you in uniform?

A. Yes, sir.

Q. Did you hear any command to fire by any officer?

A. I did not. I do not think there was any command given to fire.

By Senator Reyburn:

Q. Did the officers attempt to stop the men when the firing took place?

A. As soon as the firing took place, they attempted to stop them. One company, I think on the left, did not fire.

Q. What did they say—order them to cease firing?

A. Run to them and knocked their guns up.

Q. Did you hear the command to cease firing?

A. I heard that very plain.

By Mr. Dewees:

Q. Who gave that command?

A. The different officers of the regiments.

Q. Did you hear any shots fired from the crowd before the firing by the military?

A. Some pistol shots and some stones thrown.

Q. How many shots?

A. I should think there were several. I suppose about ten or twelve.

Q. Before the firing by the military?

A. Yes, sir.

Q. Were any of the military struck or injured before the firing on the mob?

A. There was one of them hit with a stone.

H. Vierheller, *sworn*:

By Senator Reyburn:

Q. What is your full name?

A. Henry.

Q. What is your occupation?

A. Keeping saloon.

Q. Are you a resident of Pittsburgh?

A. Yes.

Q. Were you a member of the National Guard?

A. Yes.

Q. At the time of the July riots?

A. Yes.

Q. What position did you hold?

A. Private in company A, Eighteenth regiment.

Q. Were you out at Twenty-eighth street on the afternoon of the Twenty-first—Saturday?

A. No, sir; not on the Twenty-first. I was at the Union depot on Saturday.

Q. Did you see the troops start from the Union depot, out?

A. I was there before the Philadelphia troops arrived there on Saturday. I went there with Major Stroud, of General Pearson's staff. He came to General Pearson's head-quarters and wished to report to the general. Their head-quarters were right over my place, on Fifth avenue, and he asked me to go out with him to report to the general, and I did so.

Q. Did you see General Pearson there?

A. Yes, sir.

Q. What time was that?

A. It must have been between twelve and one o'clock.

Q. Had the Philadelphia troops arrived then?

A. No, sir.

Q. How was General Pearson dressed?

A. He had a fatigue uniform blouse—officer's blouse on and a fatigue cap.

Q. You were not present when the firing took place?

A. No, sir.

Q. Know nothing of that?

A. No.

Q. If you have anything that has not been testified, that is of any importance to our committee, make a brief statement of it?

A. In relation to Saturday, and that is all I know of it. I remained around there for an hour or so, intending to wait until the Philadelphia troops arrived, but they were late getting in, and I left there.

Q. You were not there when the firing took place?

A. No, sir.

Major General Albert L. Pearson re-called.

By Mr. Reyburn:

Q. You did testify as to the movements of the troops, &c, out at Twenty-eighth street, I think, Saturday afternoon?

A. Yes, sir.

Q. I want simply to ask you how you were dressed on that occasion?

A. Up until Friday night I was dressed in citizens' clothes; light gray pantaloons, blue cutaway, coat, and straw hat, but at about nine o'clock, Captain Breck, Colonel Moore, and myself came down to my headquarters, and Colonel Moore and I then procured our uniform. I wore my uniform from nine o'clock Friday night up until long after the difficulty; in fact, the only clothing I had on up until Monday, was a complete major general's uniform. The coat is single breasted, five buttons down front, and from each button was a broad braid which is known in military language as herring bone—goes from each button across the breast—and a large loop. The coat is slashed up the side, and that has got a herring bone along the trimmings on the side, and the same up the arm. The shoulder straps were regular shoulder straps—major general's—two stars. The cap, blue—a fatigue cap as usually worn by officers, with a dark blue velvet band clear around the cap, with a wreath embroidered with gold, and, at that time, the letters U.S. inside of the wreath. The belt was red Turkish morocco, very elaborately embroidered in gold. There was a wreath embroidered entirely around the belt with gold embroidery, up above and below the wreath——

Q. It was morocco?

A. Yes; the scabbard was gilt plate, and a handle of silver—it was a uniform, I presume, the only one like it on the ground. General Brinton's blouse was a perfectly plain blouse without the herring bone trimmings on it—it was not slashed. I don't think any of the other general officers had a blouse like it; in fact, I know they had not.

Q. You have testified in regard to leaving before the firing?

A. When I left, there was no indications of any firing or anything of that kind at all. There had been no stones thrown or pistol shots fired—nothing to indicate that there would be.

By Senator Yutzy:

Q. Why did you leave?

A. I left, as I testified before, from the fact that I had been informed by some of the officers of my own division, that there was a feeling existing among the portion of the troops of my own division that were at Twenty-eighth street, that probably they couldn't be depended upon. I thought it was better to have the other divisions that had been placed under arms sent for at once, and walked down the tracks and telegraphed to General Latta for that purpose.

Q. What office did you go to?

A. Pitcairn's office was over the telegraph office, at the corner of Twenty-sixth and Liberty. It is two squares away from where the difficulty occurred.

Q. Were you in the telegraph office or above?

A. In Pitcairn's office. There were waiters running from Pitcairn's office down to the telegraph office, so that messages could be received or sent in that manner. I was accompanied by Major Evans, who went with me.

Q. Major Evans you say went back with you?

A. Major Evans accompanied me from Twenty-eighth street to Pitcairn's office and was there when we first received the information that the affair had taken place, and was with me all the time that the difficulty was going on.

Q. Does he occupy any position in the division?

A. He is major and paymaster of the division, but was acting as a personal aid that day.

Q. Where is he?

A. He is out at his mill, at Soho.

Q. Iron mill?

A. Yes; the firm of Evans, Dalzell & Co. I think the first man that gave me any information of any firing was Mr. Cassatt—that is a positive assurance that the firing had taken place. He had been up in the cupola of one of the buildings and had observed all the proceedings that had taken place at Twenty-eighth street. I think he was the first that gave me any positive assurance that the troops had fired. I know I had heard no firing, had not heard the explosion of the pieces at all. I am very free to confess that I am very sorry that I was not at Twenty-eighth street at the time of the difficulty, because General Brinton, when no other officer would have had any reason to have waited for an order very long, for most undoubtedly and most assuredly had I been there, and the pistol shots had been fired as has been testified, and stones thrown, as Captain Breck has stated, and the troops treated in the manner in which they undoubtedly were treated, I would have directed Brinton at once to fire upon the rioters, and would have kept it up just long enough that they wouldn't have come back to that locality again, at least a good many of them. I didn't believe an order was given, at least, from what Brinton has informed, but I thought it should have been given.

Colonel Gray, re-called:

By Senator Reyburn:

Q. You have given your testimony, I believe, before, as to the occurrences. All we want to ask is, did you see General Pearson on the afternoon of the 21st of July?

A. I saw him at a distance. I was on the hill side, and saw him come up with the troops. I was up in the morning, in the forepart of the day, probably twice I saw him there, but I was not close to him. I was not down to the railroad that day.

Q. How was he dressed in the morning that you saw him?

A. I saw him at the Union depot at night—Friday night—and then in the morning, before he went out there. He was dressed in his fatigue uniform, and it has been very accurately described by himself, and I think everybody in the Sixth division knows it, and everybody who has seen him, the peculiar coat—different from any other fatigue uniform that is in existence now. I think he was dressed in that uniform and fatigue cap. I saw him come up with the Philadelphia troops, at a distance. I was on the hill side, and recognized him very distinctly. I was anxious that he should be there, and was satisfied that he was there.

At this point the committee adjourned to meet at Harrisburg, at the call of the chairman.

HARRISBURG, *March 8, 1878.*

The committee met, pursuant to notice, in Senate committee room, No. 6, all members present except Mr. Larrabee.

Governor John F. Hartranft, being duly *sworn*, testified as follows:

By Mr. Lindsey:

Q. Governor, just state in your own way where you were in July last, when the railroad strikes first broke out, and when you received the first information, and what was done by yourself thereafter?

A. I contemplated making a trip to the west with my family, and, in thinking the matter over before I started, I had a conversation with the Adjutant General, in which I stated to him that I thought everything was as calm in

the State it ever was since our administration, yet, if there was any trouble, he should exercise the authority vested in the commander-in-chief, in accordance with the same rules and principles that we had established when there was trouble prior to my leaving the State—that is, when there was trouble in a section of the State, we frequently had calls from the sheriffs of the county, and after we became satisfied that the sheriff had exhausted his authority, or was unwilling to exercise his full authority, we generally sent troops. With these general instructions, not anticipating for a moment that it meant anything, I left the State on Monday, the 16th of July. On Wednesday morning, I saw by the papers, at Chicago, where I was, that there was trouble on the Baltimore and Ohio road. On the next day, Thursday, receiving the papers on the train, I saw that the trouble was spreading. I telegraphed to the State for information as to whether this had spread upon the Baltimore and Ohio road into the State. The first dispatch that I received was received at Antelope, on the Union Pacific railroad, on Friday forenoon sometime. The dispatch was as follows:

"Mob stopped all freight trains at Pittsburgh. Sheriff called for troops. Ordered Pearson to take charge, and put one regiment on duty. Says he may need more."

Q. Who was that dispatch received from?

A. It was from General Latta.

Q. That was on Friday, the 20th of July?

A. That was on the 20th, in the forenoon. As soon as I reached Cheyenne, I sent a dispatch to General Latta, at one-thirty, P.M.:

"Order promptly all troops necessary to support the sheriffs in protecting moving trains on Baltimore and Ohio railroad. Go to Pittsburgh and keep supervision of all troops ordered out. Will be due at Ogden to-morrow at six o'clock. In the meantime, *en route*, let me know the situation."

I again sent a dispatch from Laramie City, same day, five-twenty, P.M.:

"Spare nothing to protect all persons in their rights under the Constitution and laws of the State, in accordance with the policy heretofore adopted. Am on the train to Ogden."

I received a dispatch from General Latta—I do not remember whether before sending this last or after—to this effect:

"PITTSBURGH, PA., *July 20, 1877.*

"No difficulty on Baltimore and Ohio railroad in Pennsylvania. Strike extended to Pennsylvania railroad. Trains stopped at Pittsburgh by rioters, numbering two or three thousand.

"General Pearson has six hundred men under arms guarding property. General Brinton will be here to-day, with twelve or fifteen hundred men. Movement will be made immediately on his arrival to open road, and we expect to do so without bloodshed.

"I will be at Union hotel, Pittsburgh, until order is restored. Keep me advised of your movements. If your presence is needed, I will promptly wire you."

I received numerous dispatches after that from General Latta, Mr. Scott, and others, and at Ogden I sent the following dispatch to General Latta, Saturday evening, the 21st of July:

"Dispatch received. Unless I hear from you to change my mind, I will take the first train to Pittsburgh. There must be no illegal interference with any person willing to work, and to this end act promptly, that it may be done without bloodshed."

I then went to Salt Lake City with my family, the next train east not being due at Ogden until ten o'clock Sunday morning. When I arrived at Salt Lake City, I had another dispatch from Mr. Quay. This I received at nine o'clock Saturday evening:

"A collision has occurred here between the strikers and the troops. Number of persons have been killed and wounded. Intense excitement prevails in city, and there are indications of further bloodshed, and that the trouble will be wide-spread and protracted. I suggest that you return, allowing your party to go forward."

I then secured a special train, leaving there at twelve o'clock, and got to Pittsburgh on Tuesday afternoon.

Q. Before you go any further, I would like to ask a question or two: In your instructions to General Latta, before leaving the State, was it your intention to delegate to General Latta your power as commander-in-chief to call out the militia in case of an emergency?

A. Not my power, but simply discretion, under the general order, to act in accordance with our custom in case there was any trouble in my absence, and to issue orders by my authority, just the same as if I were in the State.

Q. Signing your name?

A. No; his own, by order of the commander-in-chief, or what is the same thing, as Adjutant General. I may say that I talked with the Attorney General before I left the State, and he thought there was no reason why I should not go.

Q. He was to follow strictly the regulations that had been adopted heretofore?

A. Yes, sir.

Q. Under the act of 1864, what have been the regulations—I do not quite understand you on that point—about calling out troops?

A. We have not fallen back upon the act of 1864, because the sheriffs have always called. In fact, the sheriffs are generally very prompt to call for troops. They often wanted our assistance when we thought it was not necessary, and in every instance when troops have been ordered out during my administration, they have been ordered, as they were in this case, upon the call of the civil authorities to aid them. We have always kept the troops, so far as we could, subordinate to the civil authorities. In this instance, and some other instances, perhaps the civil authorities were not quite as active as they ought to have been, and they, to a certain extent, disappeared, and then, of course, we came under the act of 1864. But in the first instance we have never exercised our authority under that act.

Q. You would consider that under that act you have authority to call out the militia upon notice, or your own knowledge, that there is any serious riot or

outbreak in the State?

A. Yes. If there is a riot in any section of the State, and the civil authorities are unable or unwilling to suppress it, I think it would be my duty, as Executive, to order out the National Guard, and to take charge of the situation to protect life and property. I would not hesitate to do it, whenever I became satisfied of that fact.

Q. In your judgment, would that be in conflict—would such an action be in conflict, in any way—with the Constitution, which says that the military shall always be in subordination to the civil authorities?

A. Well, I do not pretend to give any legal opinion upon that point; but, so far as the past has been concerned, we would have been glad and willing to let the civil authorities take entire control, and it is only when they were willing and anxious that we took part, and there never has been a conflict.

Q. That has always been the rule adopted by you, as commander-in-chief?

A. Yes, sir. I am not quite sure that that question may not arise. I can see very easily how it might arise in the near future, in any locality where the civil authorities might be in sympathy with the lawless elements, but we hope that it may not.

Q. And is that a reason why you have adhered to the rules that you have just mentioned?

Q. I do not know that it was because of any supposed conflict, but I adhered to that because I thought it was the common-sense way of doing it. That is about all.

Q. Then the first telegram, I understood you to say, received from General Latta was in the forenoon of Friday, the 20th?

A. Yes, sir.

Q. Did you know on that day that General Latta had already ordered out the militia?

A. Not except through him.

Q. Does that telegram state that?

A. Yes. He says, "Ordered Pearson to take charge, and put one regiment on duty."

Q. Do you know what time General Latta gave that order to General Pearson to take charge?

A. No; I do not.

Q. I would like you now to state when the news first reached you of any disturbance at Scranton, and through what channel, and your action in relation to the outbreak at Scranton.

A. I do not know that I knew anything definitely about the trouble there until the 25th. As I was passing through Harrisburg to Philadelphia, on the 25th, I received a dispatch from the Brotherhood of Firemen and Brakemen, and there was also one, I think, from the officers of the road, which I do not see here just now. The question that arose there was that the railroad company were unable to run their trains, because the firemen and brakemen had struck, and mob would not let them, and then the Brotherhood of Firemen and Brakeman agreed that they might run the mails through, and the company did not want to do that unless they could take a passenger train. I telegraphed back to the superintendent of the railroad, "Would advise you to let mails run through." My object in that was not to precipitate any further disturbance until I had everything in hand. There was, I think, no running of trains for a week or ten days after that. They were making an effort to run trains about the 31st of July, but on the 1st of August there was a disturbance in Scranton, and the mayor called upon me for troops. The miners came out on a strike about the 25th. In consequence of this general confusion in Luzerne county, no trains moved. I had anticipated a movement to Luzerne county for the purpose of starting trains, and had made my arrangements, but this riot at Scranton precipitated the movement, and I got there on August 2d. The riot occurred on the 1st, and I

got the first news about two o'clock, and my advance troops got to Scranton early next morning.

Q. What day did you say you received the call from the mayor for troops?

A. On the 1st of August. The dispatch was:

"Mob have partly taken possession of the town. I was assaulted, and sent to my committee for assistance. Mob attempted to follow me up, when three or more were killed. Come to my assistance.

"R. H. McKUNE,
Mayor."

Very soon afterward, I received another dispatch: "How soon can I expect troops?" Then I received half a dozen dispatches from private parties. I sent a dispatch to McKune: "Keep quiet. Will be with you in the morning."

Q. Had you any communication with the mayor prior to the 1st day of August?

A. Yes; there were several dispatches in which he was confident that he could manage the situation. For instance, here is one on the 29th of July: "Pumps will start to-morrow. Send no troops until you hear further from me. Am in hopes of a peaceful settlement." Here is a dispatch from the mayor on the 25th of July, which I overlooked before: "Strikers have taken the coaches off of the mail train, and will not allow them to proceed. I am unable to assist the company in getting the train started." That is on the 25th of July. There is another dispatch here which influenced me to some extent, dated July 25:

"There is not flour or provisions enough in this (Wyoming) district to last one week. We are informed that at Scranton the situation is no better. Unless some means are adopted to open up western communication by rail, there

will be serious trouble here. The situation is very grave, and demands urgent attention.

"Very respectfully,

"CONYNGHAMS & PAINE."

That is dated Wilkes-Barre, July 25, 1877.

Q. Then, I understand, prior to August 1, the mayor of Scranton did not desire troops to be sent?

A. No; the first dispatch did not call for troops, but he was evidently looking to me for assistance. But in a few days after that, on the 29th, he thinks he is able to control it.

By Senator Reyburn:

Q. Up to that time he was confident that the civil authorities could control it?

A. Yes. There was no conflict, because the railroad companies could not move their trains, and did not attempt it. They could not move them, and the civil authorities were unable to assist the railroad companies, and therefore did not attempt it, and everything was quiet. Eventually they were looking to me to help them, but I did not propose to go there until I got through with Pittsburgh. Besides, I thought if we got everything started at Pittsburgh, the moral effect of that might settle the question in the whole State, and there would be no necessity to go anywhere else.

By Mr. Lindsey:

Q. Did you have any other dispatches from him except the one you have read, dated the 29th, in which he expressed himself as being able to control it.

A. No; I think not. I find none in the appendix to the message, and I have none in this package, I know. While I was at Pittsburgh, Mr. Farr, my private secretary, was here in charge, and he kept me in constant communication with the region—with the Luzerne region—and there is one dispatch from him here; it is rather lengthy, but it gives the situation on the 31st of July, the day before the riot occurred.

The dispatch was read as follows:

"With exception of Luzerne county, matters in eastern Pennsylvania have returned to normal condition. Philadelphia is orderly. In Reading all danger is over, and civil authorities are rapidly arresting rioters. About fifty are now in jail. The citizens support General Reeder's action, and believe the firing of his troops prevented great destruction of property. Two of leaders of rioters were killed. The P. & R.R. is running trains, and the bridge will be ready for trains in two weeks. At Harrisburg all signs of disorders have disappeared. Forty arrests have been made, and the authorities are rapidly ferreting others. There is no doubt of their conviction of majority of prisoners, both in Reading and Harrisburg. Captain Linden assures me there are no fears of an outbreak in Schuylkill, unless irruptions of striking miners from Luzerne force the men in Schuylkill to quit work. General Sigfried's advices from Pottsville are to same effect. In Luzerne affairs are threatening. The Lehigh Valley R.R. has not resumed, and trains are stopped on other roads by miners. Engineers driven from pumps, and mines are flooding. In Wilkes-Barre there is said to be a scarcity of provisions, owing to interrupted transportation, and fears are felt of disturbance on that account. A concentration of troops in Luzerne, to give control of property, open traffic, and protect workmen, would remove the last vestige of lawlessness in eastern Pennsylvania. There are two hundred regulars in Reading. Available troops can be taken from Harrisburg or Reading without danger. If to-night's advices indicate the necessity, I will go to Scranton and Wilkesbarre to-morrow, if I can get there."

Witness: There is another one here, 11.30, P.M., that I suppose was the same date.

The dispatch was read, as follows:

"In answer to my dispatch of yesterday, Sheriff Kirkendall, of Luzerne, telegraphs as follows: 'All travel and communication by railroad stopped. Rumors that Lehigh Valley road resumes to-day. There has been no riots so far, nor destruction of property, except incident to stopping mines. Work in all mines stopped; men on strike.' I report no immediate apprehension of danger. There are some five hundred troops—National Guard—encamped here—Wilkes-Barre.... telegraphs from Kingston, July 31, that Kingston, Plymouth, and Nanticoke have been entirely in the hands of mob since last night. If anything is being done to master it, I don't know it. Last night, 30th, they mobbed a passenger train at Plymouth. Have been ready all day to do so again, if one moved. This afternoon, 31st, at Nanticoke, the mob stopped all the pumps at the mines. The citizens are powerless to act; those in authority don't.

C. N. FARR, jr.,
Private Sec'y."

Q. Had you any communication with the sheriff of Luzerne county direct?

A. His dispatch is incorporated in these: "In answer to my dispatch of yesterday, Sheriff Kirkendall, of Luzerne, telegraphs as follows: 'All travel and communication by railroad stopped. Rumors that Lehigh Valley road resumes to-day. There has been no riot so far, nor destruction of property, except incident to stopping mines. Work in mines all stopped; men on strike.'" And there may have been other dispatches received from him which I have not got—which I did not print.

Q. Had you any dispatches from the sheriff of Luzerne county, in which he expressed himself as being able to control the situation of affairs without troops?

A. No; I think there were no such dispatches.

Q. Did he make any call for troops?

A. He made no call. The mayor of Scranton made a call, and so did the mayor of Wilkes-Barre. I cannot find the dispatch from the mayor of Wilkes-Barre, but I am satisfied there was one.

Q. Do you know what time the call was made by the mayor of Wilkes-Barre?

A. It came on the same afternoon that Mayor McKune called for troops. I do not know just what time the miners came out of the mines. I do not think they came out until after railroad communication was stopped. I think the strike was inaugurated after that.

Q. Did you publish the proclamation in your message?

A. Yes; there are two proclamations there.

Q. I wish you would state when the first proclamation was issued?

A. The first proclamation was issued on the 20th of July. The proclamation was gotten up at the office, and I was notified that it was issued as soon as it was done.

Q. By the Secretary of the Commonwealth?

A. By the Adjutant General. It was signed by the Secretary of the Commonwealth. The proclamation was prepared on a blank, which was left signed for general purposes. Then, when I returned to Pittsburgh I issued another proclamation, which was dated the 25th of July.

The proclamation was as follows:

Pennsylvania, ss:

JOHN F. HARTRANFT.

Place of
great seal
of State.

In the name and by the authority of the Commonwealth of
Pennsylvania.
JOHN F. HARTRANFT,
Governor of the said Commonwealth.

A PROCLAMATION.

To the people of the State of Pennsylvania:

WHEREAS, There exists a condition of turbulence and disorder within the State, extending to many interests and threatening all communities, under the impulse of which there has grown up a spirit of lawlessness requiring that all law-observing citizens shall organize themselves into armed bodies for the purpose of self protection and preserving the peace.

Therefore, I, John F. Hartranft, Governor of the State of Pennsylvania, do hereby recommend that all citizens shall organize themselves into associations, with such arms as they can procure, for the purpose of maintaining order and suppressing violence; and all good citizens are warned against appearing in company with any mob or riotous assembly, and thus giving encouragement to violators of the law.

Given under my hand, and the great seal of the State, at Harrisburg, this twenty-fifth day of July, Anno Domini one thousand eight hundred and seventy-seven, and of the Commonwealth, the one hundred and second.

By the Governor:

M. S. QUAY,
Secretary of the Commonwealth.

The witness: That was issued that night. It got into the morning papers, I think of the 25th, in which I called upon the people to organize, and aid the civil authorities.

Q. Have you a telegram notifying you of the issue of the first proclamation?

A. Yes, sir.

HARRISBURG, PA., *July 20, 2.20, P.M., 1877.*

GOVERNOR J. F. HARTRANFT, *on No. 3, Sherman, Wyoming:*

Trouble on the P.R.R., at Pittsburgh. Railroad officials over-anxious, fearing trouble would extend to Philadelphia, where train hands were in session last night.

Scott suggested your return, but there is no necessity. Proclamation issued. Go on. Where can we telegraph next? We go to Pittsburgh this afternoon.

(Signed)

JAS. W. LATTA,
C. N. FARR.

Q. When you arrived at Pittsburgh, state whether you were met by any committee of citizens or not?

A. When I came to Allegheny there was a large number of citizens—a committee in fact. They had telegraphed to me before I arrived. The names in the dispatch were John Kirkpatrick, John Harper, chairman of committee, G. Johnston, Joseph McCune, John B. Guthrie, George A. Berry, John H. Bickelsen, John D. Scully, and there were some twenty or twenty-five citizens, most of whom I was personally acquainted with, asked me to remain. My intention was to go right to Philadelphia, to consult with General Hancock, who had charge of the regular troops that had been sent into the State, and with General Schofield, who represented the President of the United States. I did not see what I could do in Pittsburgh without troops, but, to satisfy them, I remained, went to the hotel, and had the wires brought into the room, and probably lost no time by doing it. I did a great deal of work that night. I became satisfied, by my inquiries, that the roads

leading into Pittsburgh would have to be opened as soon as possible. The committee claimed that their supply of coal for the manufacturing establishments, for their water-works, and gas-works would not be sufficient to hold out more than about a week, at least, not two weeks, and if that supply should give out, together with the supplies of food, there would be a terrible state of affairs, and that made me more earnest and determined, perhaps, to organize a force and get back as soon as possible. I then went to Philadelphia and consulted with these gentlemen—the officers I named—and we all agreed that there was but one thing to do, and that was to organize a sufficient force and go to Pittsburgh and open the roads, which was done.

Q. Was there any resistance in the city of Allegheny to your passage through the city?

A. No, sir.

Q. By the rioters or strikers?

A. No, sir; they received me very kindly. They cheered me. I would not say they were rioters, but they were the strikers connected with the road.

Q. They were blockading freight, or holding freight trains, at that time in Allegheny city?

A. Yes; but there was no destruction of property. Mr. R. A. Ammon sent the following dispatch to me as I was coming into Pittsburgh. I received it about fifty or one hundred miles out of Pittsburgh: "We bid you welcome home, and assure you a safe passage over Fort Wayne road." He was very prominent at the depot when I arrived, and I did not see any other person that assumed to have any authority over the road when I arrived.

By Senator Yutzy:

Q. Will you please state who this R. A. Ammon is?

A. I saw him that day, and have never seen him since.

Q. Was he a railroad official, or was he one of the strikers?

A. I think he was one of the strikers. I think he had possession of the telegraph—I am not sure about that. He told me—I do not know whether it is proper to state this—that the principal railroad official, I forget his name, sent him word to protect the property, which he said he did.

Q. Mr. McCollough, was it?

A. I do not remember now. Very likely it was—Layng, I think, was the name.

Q. State when you left the State, whether there was anything at all to induce you to believe that there was any liability of a disturbance of the peace?

A. Not the slightest in the world. I said at the time I had the conversation with General Latta, that I thought things never looked better than they did now—at that time.

Q. Since that time, in your intercourse with the railroad officials of the State in any way, have you got information as to the causes of the outbreak?

A. Not sufficient for me to express any opinion. I have never investigated that.

Q. Far enough to express any opinion on the subject?

A. No, sir; I guess you know more about that than I do, by this time.

Q. Have you had any conversation or communications with any of the railroad employes who were engaged in the strike, other than Mr. Ammon?

A. No, sir.

Q. Did Mr. Ammon give any reasons for his taking charge of the railroad and telegraph at Allegheny City?

A. No; the only reason he gave, so far as protecting the property was concerned—I think it was Mr. Layng that sent him word to protect the property that night—the night of the 21st—and he claimed that he had. He

claimed a good deal of credit for what was done—I do not know, of my own knowledge, whether he had anything to do with it. I might say that there was a committee of engineers came to see me at Pittsburgh, when I was there with the troops on Sunday. They pretended that they were informed that I had authority to settle this question between them and the railroad company. Of course, I told them I had nothing more to do with it than any other citizen, so far as their differences were concerned. Another committee also came to see me, when I was at Kingston with troops—that was in Luzerne county—but there was nothing of any importance passed, because there was nothing that we could do—nothing that I could do. I went simply to preserve order.

Q. Had you been at home at the time of receiving the call from the sheriff of Allegheny county for troops, would you have asked him what measures he had taken to suppress the disturbance, before you would have ordered out the troops?

A. It is very likely I would; but I would have been influenced by the magnitude of the threatened disturbance to a very great extent. Of course, we always resist the sending of troops to the last moment; but, in this instance, I think it was perfectly proper to send troops.

Q. You would be influenced by the magnitude of the disturbance, then, rather than by the efforts put forth by the sheriff to suppress it?

A. If I knew the exact character of the sheriff I would be very much influenced by his call; but they are nearly always strangers, and I do not know to what extent they can be relied upon. I always avail myself of all the information I can get, and is very difficult to say what would control the Executive in making up his mind just at the last moment. Some sheriffs are very timid, and they throw the responsibility off as soon as possible. They think the moment they get troops that they are relieved. Others have a good deal more pride, and they try to control matters themselves. I think a great deal more could be done by sheriffs than is generally done.

Q. After ordering out the military force of the State, are the civil authorities relieved or superceded by the military force?

A. No; not as long as they appear active and on the ground. If they retire, of course the responsibility falls upon the Executive and his troops.

Q. To preserve the peace?

A. Yes, sir. Then we come under the act of 1864, which, I suppose, was the case in this instance.

Q. If the civil authorities in the locality should retire and do nothing towards the suppression of the riot, then you deem it the duty of the military to preserve the peace?

A. Yes; I would not hesitate a moment.

By Senator Yutzy:

Q. Would you not regard it the duty of both military and civil authorities to coöperate?

A. I would have the military support the civil authorities, and I think the latter ought to appear somewhere all the time, even if not in any great force, or with much power, because the rioters must be arrested and tried by civil authorities.

By Mr. Lindsey:

Q. And the military is to support?

A. Is to support.

By Senator Yutzy:

Q. And the civil authorities are not relieved from any responsibility after that just because the military are present?

A. I do not think so. I do not think that the laws relieved them. They relieved themselves.

By Mr. Lindsey:

Q. I understood you to say you have never found it necessary to fall back upon that act of 1864—the particular section that authorizes the commander-in-chief to call out troops—I think it is the ninety-second section?

A. At Susquehanna Depot the sheriff was active all the time, and there was no conflict. In fact, we never had a conflict before. We ordered the troops to Luzerne county again the next year—they were sent there upon the call of the sheriff. He was not very active. I finally told him to come to my office, and we consulted as to the necessity of withdrawing the troops, and we both decided that it was not the time to withdraw the troops. He would not take the entire responsibility, but I divided it with him. That was the nearest to taking the supreme control before. I considered the July riots of such a magnitude and so wide spread over the State—railroad communication stopped—the highways of the State obstructed—that it was necessary to exercise the authority given by the act of 1864. Although the troops went to Pittsburgh on the call of the sheriff, and to Luzerne on the call of the mayor of Scranton and the mayor of Wilkes-Barre, after they got on the spot, it was necessary, I think, to assume general control.

By Senator Yutzy:

Q. Under the act of 1864, you have the authority or the power to call out the military whenever you get information from any source that there is a disturbance of the peace that cannot be quelled by the civil authorities without being called on, or request made by the sheriff or mayor or other civil authority?

A. That is my construction of it. I am quite sure that that was the intention of the act, when it was passed.

Q. We are required to examine, and inquire into the conduct of the military during the riot—will you please give us a statement of their conduct—of the militia.

A. I think that would be simply expressing an opinion which the committee is called upon to do after investigating the facts. I have investigated the facts, and give my opinion in my message. You can take that as my evidence.

Q. What you know of your own professional knowledge of the conduct of the military?

A. That is a very comprehensive question. A great deal might be said, *pro* and *con*.

By Senator Reyburn:

Q. I suppose you can tell what the conduct of the militia was after you came home and took charge?

A. I had every faith in them. The troops that I went to Pittsburgh with, and the troops I went to Luzerne county with, I think they would have done anything I could have expected with that many men.

By Senator Yutzy:

Q. Did you consider their conduct, as troops, commendable during the time that you had charge of them after your return to the State?

A. Oh, yes; we had no conflict afterwards at all.

By Mr. Lindsey:

Q. I suppose what Mr. Yutzy would like to know is, whether there was any individual instance of misconduct on the part of any officer or soldier, after you took charge, that came within your own knowledge—came under your observation?

A. No, sir; I had no occasion to have anybody court-martialed for any misconduct.

By Senator Yutzy:

Q. If they had misconducted themselves you would have had them court-martialed?

A. I would have taken notice of it in that way. A militia officer occupies a very singular position. He ought to have more judgment and more courage than an officer of like grade in the field if he is confronted with any great emergency. The men that he commands are part of the people—part of the very people he is called on to oppose—and in a disturbance like this, suddenly thrown up, a large proportion of the community may be against the troops and in favor of the disturber of the peace. It is a very difficult position to hold, and it requires a great deal of judgment. In fact, a great deal more than it would require in the field.

By Mr. Means:

Q. It is not like meeting an enemy on the field to meet these people?

A. No. Of course this is only at first blush. After everybody cools off and they begin to realize that there must be law and order, then the reaction comes, but in the first instance it is a very difficult thing to determine just what to do. I would not like to loosely condemn people. I cannot tell what I would have done if I had been there. No man can tell. It is probably much easier to tell what ought to have been done after it is all over, and I am very confident now what I would do in the future. I have learned a great deal from these riots that I never knew before, and the experience has been quite valuable to the officers of the National Guard, and everybody. I do not think the like would occur again, unless there is a general revolution.

By Mr. Lindsey:

Q. I would like to ask you this question: Whether you have noticed any tendency of the civil authorities of the State to rely upon the National Guard

and shirk their own responsibility since the organization of the guard?

A. There has always been a National Guard in the State. As to the main question, there is a tendency to rely too much on the guard.

Q. Is that tendency growing, so far as your observation is concerned?

A. About two years ago we had a good many calls. They seemed to want troops for every little disturbance. I think there were four calls for troops from the western part of the State—two in one day, I believe. The troops were not sent. There has been no call since this late riot, and there had not been before that for a long time.

Q. Has the National Guard been increased under your administration?

A. No, sir; we have diminished it. Companies that would not come up to the standard at the annual inspections were mustered out. Last year we mustered out twenty companies.

Q. I suppose the Adjutant General's book shows the number of the National Guard?

A. Yes; the most they can have is two hundred companies—two hundred is the limit.

Q. Those companies are not full, I believe, now?

A. Oh, yes; they are full. Our minimum is forty. They must all be above that. Some of them have fifty or sixty, and a few companies have more than that, even. The number of the companies is simply an arbitrary number fixed by statute.

Q. Any further statement you desire to make you can do so?

A. I have none. We have a large quantity of telegrams and papers.

Q. In addition to these that are published in the message—in the appendix?

A. Oh, yes; but they are not of very great importance. I picked out those that were the most important.

Chester N. Farr, *affirmed*:

By Mr. Lindsey:

Q. You are the private secretary of the Governor?

A. Yes, sir.

Q. State where your residence is, Mr. Farr?

A. I reside in Reading, Berks county.

Q. State where you were last July—on the 19th?

A. I was in Reading, at home.

Q. Just go on and state from that point what intelligence you received of any disturbance in any portion of the State, and how it came to you, and your knowledge of what transpired after that?

A. On the evening of the 19th, about nine o'clock, I received a telegram from the Executive Department, embodying the telegram of the sheriff of Allegheny county to the Governor, and I left in the ten-thirty train to come on here with the expectation of meeting General Latta; and after I arrived here, I found that General Latta had left on the train from Philadelphia, and he was on the way, and during that time, sometime in the morning, about two o'clock, I think, of the 20th, I got a dispatch from the sheriff—at least a dispatch came—it was to the Governor, and I answered him that General Latta was on his way, and that there would be a consultation and action taken if necessary. On the morning of the 20th, I went down to the depot and found out when General Latta was expected to arrive, and went down to meet him at the train, and found he had ordered General Pearson's troops on duty in Pittsburgh; then prepared the proclamation, which is given in the appendix to the message, and went up to the hotel and took an hour or two's sleep, and in the morning the general telegraphed to the Governor that the proclamation was issued or would be issued. I don't remember the form.

Q. That was on Friday morning?

A. That was Friday morning.

Q. Friday morning, the 20th?

A. The 20th. During the day there was a number of dispatches by the general to the department, and at three-forty-five the general and myself and his clerk and the Assistant Adjutant General took the train for Pittsburgh, and on the way we received advices frequently in regard to the character of the situation—the threatening character of it—and having ordered General Pearson out, the general was waiting to find what had been the result. It was calculated that the Pittsburgh division—General Pearson's division—would furnish about a thousand men; but sometime in the afternoon we got advices from General Pearson that he had only succeeded in getting two hundred and thirty men. Then the general—if I recollect rightly—General Pearson in the same dispatch advised that the situation was so serious that he thought, in order to save bloodshed, there ought to be some other troops. General Latta then ordered General Brinton or requested General Brinton to have his troops notified, and afterward, when another dispatch came from General Pearson, very much of the same character stating that he had only a very small force out, and the men were not responding promptly, and that the situation was very threatening and would require a great many troops, he ordered General Brinton's division to report to General Pearson at Pittsburgh.

Q. What time was that order given to General Brinton?

A. Sometime late in the afternoon—I don't know the exact time.

Q. Do you remember the point from which the order was sent?

A. No, sir; I don't remember the point.

Q. It was while you were *en route* to Pittsburgh?

A. It was while we were *en route*; yes. We arrived at Pittsburgh, at the Union depot, between twelve and one o'clock, on Saturday morning. We

had been joined on the way by Colonel Norris and Mr. Linn. We were met at the depot by General Pearson; informed us that in the course of the few hours that had intervened, he had succeeded in getting together about six hundred men. I think he stated he had at the depot about three hundred and fifty men; the other two hundred and fifty, composing the Eighteenth regiment, were at Torrens station. The matter was talked over, and it was decided, as I understood, that no movement was to be made until the Philadelphia troops came. I believe General Pearson had intended that afternoon to attempt to run the trains, but had given it up for some reason. I suppose because he thought that if he had more troops, he could do it without a collision. In the morning, it was intended to wait until there was a large force there, for the purpose of having as large a force as possible, so as to avoid any collision if possible. During the morning—I suppose between three and four, or four and five o'clock—the hill at the side near Twenty-eighth street—I never went down to the ground, and don't know anything about it, except from the conversation that took place at the time—the hill at the side of the track at Twenty-eighth street, was occupied by the Fourteenth regiment, and Breck's battery. I believe the intention of that movement was to keep the crowd off the hill. About two o'clock in the afternoon of Saturday, the first detachment of the First division arrived, and after the troops had been fed, they marched down the track, and shortly afterwards—I suppose it was five o'clock—between four and five o'clock—we were told a collision had taken place between the troops and the rioters. We saw one or two of the Pittsburgh soldiers coming up the streets carrying their guns. The crowd would collect around them, and something would pass between them, and there would be cheers or something of that kind. About six o'clock, or perhaps later, we were told that the troops had gone into the round-house, and about nine o'clock—the time is merely in my mind as a sequence of events—I did not look at the time—I suppose it was about nine o'clock—General Pearson himself came into the room, but left shortly afterwards. All telegraphic communications stopped about that time, and we had no communications with the troops in the round-house, or where they were, until some time after that, when Sergeant Wilson, of the cavalry, came in dressed as a laborer, and brought some dispatches from

General Brinton. During the night there were several dispatches brought, and answers returned in the same manner, and in the morning, about nine o'clock—half-past eight or nine o'clock—we were told the troops had left the round house.

Q. At this point, Mr. Farr—because there are some questions I want to ask prior to that—what time was it after you received the dispatch at Reading bearing the sheriff's dispatch?

A. It was after supper some time. I don't remember the exact time, but about supper time.

Q. On the 19th?

A. On the 19th; yes, sir.

Q. Thursday evening, then, after supper?

A. It was Thursday evening, either about supper or after that time.

Q. Have you that dispatch, or can you get it?

A. I think I have it home. I don't think I have it with me.

Q. Who was that signed by?

A. It was repeated by Mr. Keely.

Q. From the Executive Department?

A. From the Executive Department. It might be I am wrong about the dispatch. It may have contained simply Gardner's dispatch. My recollection is, it was the same as the sheriff's, but the sheriff's may have come the next morning. I think I have all those dispatches collected together. I don't know whether that dispatch contained any man's name, or whether I simply assumed it was from the sheriff, from the fact that it may have said, "The following dispatch was received at this office." I think I have the dispatch, and I can get it when I go home and look over the dispatches.

Q. What time did you arrive at Harrisburg?

A. I got here—that train gets here about midnight; leaves Reading at ten-thirty, and gets here some time between twelve and one.

Q. Did you have any communication with the Secretary of State, on your arrival, Mr. Quay?

A. The Secretary of State was not here.

Q. He was not here?

A. No, sir.

Q. What time did you meet General Latta?

A. Some time between two and three o'clock, I think. The time may have been later. I think it was two-fifty; I am not positive.

Q. And you then prepared the first proclamation?

A. Yes, sir; drew the draft of it, and, after the general had ordered the troops out, the proclamation was issued.

Q. The general didn't make the order until after he arrived here and ordered the troops out?

A. I understood him to say he had ordered the troops from Lancaster.

Q. Did that proclamation appear in the morning papers?

A. That I don't know. I think it did. I am not positive of that. My recollection is it was telegraphed to Pittsburgh. I am not positive.

Q. Do you know what time you telegraphed it to Pittsburgh from here?

A. No, sir; it was sometime in the morning. It must have been some time about four o'clock.

Q. Had you any other intelligence from Pittsburgh than that contained in the telegram of Sheriff Fife?

A. That, and simply what I learned from General Latta.

Q. You had no other telegrams or communications to you or to the Executive Department?

A. Not to me.

Q. At the time of issuing the proclamation?

A. This other telegram may have been there. I had received one other dispatch from Sheriff Fife, just before I saw General Latta, which, as I stated, I had answered by saying that General Latta would be here. I think you will find that dispatch in the Governor's message.

Q. Was that directed to the Governor?

A. Yes; it was directed to the Governor, and I think it embodied this dispatch.

Q. If you can get both of those dispatches we would like to have them?

A. That I answered by stating that General Latta would be there.

Q. Where did you meet the Secretary of State first?

A. At Pittsburgh.

Q. On your arrival at Pittsburgh?

A. No, sir; he came in Saturday morning, I think, just after daylight—just about daylight, probably. He was at the Monongahela. We had telegraphed him to meet us at the Monongahela house, and after we got to the Union depot we found General Pearson and the troops were stopping there and were detained. Colonel Quay came in in the morning.

Q. After your arrival there and consultation with General Pearson, it was determined not to attempt to move any train until the Philadelphia troops arrived, as I understand you?

A. I understood that to be the determination. Of course in these military consultations, although I listened, I did not take any part. That was my understanding of the result of the conversation.

Q. Did you understand General Pearson to be giving directions to the military force there?

A. I understood General Pearson to be in command.

Q. And that the Adjutant General was there exercising his powers and duties as Adjutant General proper?

A. So I understood. I understood that the Adjutant General had authority from the Governor, and was exercising his authority so far as getting the troops there.

By Senator Reyburn:

Q. As commander-in-chief?

A. That is, he had directions from the commander-in-chief to issue the orders necessary to assist the authorities.

By Mr. Lindsey:

Q. In calling out the troops?

A. Yes; but after the troops were gathered together, they were in command of the officer of the division—that is, so far as any military operations were concerned.

Q. And that General Latta was not giving directions to the troops after they came there—not taking command of the troops, or superseding General Pearson at all?

A. That was my understanding.

Q. After the collision occurred, what time was it when General Pearson arrived at the Union Depot hotel?

A. I cannot tell the time exactly, but it was nine or ten o'clock, as near as I can say. I don't think I looked at my watch the whole twenty-four hours. I merely remember the time by the sequence.

Q. What was his purpose in coming there, or did he express any purpose?

A. My recollection is, he said he had come to see whether he could get provisions and ammunition, and I think that is the same reason that he gives in his report.

Q. What efforts did he make to get provisions and ammunition to the troops that night?

A. None at all, that I know of.

Q. You saw no efforts made?

A. I understood from the conversation that took place, that it was admitted that General Pearson could not get back to the round-house, and that he alone, without any force—there was no force there—could not get any provisions to the troops, and that as he seemed to be particularly obnoxious to the mob, it would be safer—or at least keep the mob from going to extremes—if he was out of the way. For these reasons he accepted General Latta's suggestion that he should leave.

Q. How long did he remain at the hotel?

A. I suppose—perhaps half an hour, perhaps longer.

Q. Do you know where he went?

A. No, sir.

Q. Do you know where he started to go?

A. No, sir; I don't. He came there with, I think, four members of his staff.

Q. Did they go with him, or did they remain?

A. I think one of them remained. I am not positive about that. I did not know the gentleman at that time. I cannot always rank them—there were a good many of them there.

Q. Who was to take command of the troops after he left?

A. That was understood to devolve upon General Brinton. In fact, that was something that I heard the Adjutant General ask—whether he, General Pearson, had left General Brinton in command, and whether General Brinton expected him back. And he said that he had told General Brinton if he did not come back he was to take command, and I always understood after General Pearson left, General Brinton to be in command of the troops.

Q. Of all the troops there then, including those of the Sixth division?

A. I don't know that I have any reason for being so explicit as that. I simply supposed that General Brinton was in command of the troops who were in the round-house, whether they were Pittsburgh or Philadelphia troops, who were there at that time. The detachment there was regarded as under his command.

Q. What time was the telegraphic communication between the Union Depot hotel and General Brinton cut off?

A. Just about the time General Pearson came. I think it was almost simultaneously about the time General Pearson came in, they announced that the communications were closed. The telegraph operator said he could not communicate.

Q. Was anything said or done there about moving General Brinton or getting any word to General Brinton—any communication in any other way?

A. Oh, yes; there was some talk—very considerable. I think it was believed that General Brinton was perfectly safe with his troops until after the firing began. Then there was considerable anxiety.

Q. That is after the burning?

A. I mean the burning—after they set fire to the cars. There was very considerable anxiety in regard to him, but the railroad officials stated that the buildings the troops were in were perfectly fire proof, and it was supposed that he was perfectly able to take care of himself.

Q. Did you see or hear anything from General Brown or his command that night?

A. After we first got there—during Saturday—General Brown was in and out several times in citizen's dress, telling about his conversations with the rioters, and the manner in which they talked to him, and various other things. I did not see him that night after the fire.

Q. Did you know anything about his dismissing his command—ordering Colonel Gray or Colonel Howard to dismiss their regiments?

A. No, sir. If the Fourteenth regiment came to the Union depot on Saturday night, I did not see it. There was one company of the Fourteenth regiment—I think it was the Fourteenth regiment—that was left, or came in afterwards in some way, that was there that night at the depot, and there were eighteen—eighteen or twenty men of the Black Hussars. There was about thirty thousand rounds of ammunition there.

Q. Eighteen of the Black Hussars, do I understand you to say?

A. I think there were eighteen or twenty—something like that. They were unarmed, except with the sabers, so far as I could see.

Q. Nothing but sabers?

A. That is all.

Q. Was there any talk by the Adjutant General, or any effort made, to get a communication, or to communicate with General Brinton in any way during the night of Saturday night?

A. Oh, yes. After the firing took place—I did not see it, I only knew this, of course, from hearsay—there was a wagon sent out with provisions for the troops. It was loaded up and sent down, but the mob prevented it getting to the troops. That was, I think, just before night-fall, and during the night there were several efforts made.

Q. There were none of those Black Hussars, or of Colonel Howard's, or of Colonel Gray's brigade sent, were there?

A. There were no troops there. The Black Hussars—it would have been madness to have sent out eighteen or twenty men with sabers into that crowd.

Q. Neither was the other company that you spoke of?

A. The other company—I don't remember just when that company came in. I noticed it sometime during the night. I didn't see it when it first came. I don't think it was left there when the troops went down. It was considered better to attempt no military movements during the night time, because of the crowd in the streets.

Q. When the burning commenced, was there any efforts made by the military in any way to stop the burning so far as you know?

A. None that I know of.

Q. Was it a subject of conversation at the Union hotel, between Latta and yourself, or any others that were in consultation there?

A. I don't understand the question.

Q. Was that subject talked of?

A. Do you mean, whether we were to prevent it, or whether as to the possibility or the feasibility of General Brinton's preventing it?

Q. What was the feasibility of General Brinton himself preventing it?

A. I cannot remember that there was anything said particularly about it. Although at that time it was supposed, before we received any communication from him—it was supposed he was able to take care of himself. He had five hundred men and two Gatling guns, and he had taken, I think, twenty rounds of ammunition per man and a couple of thousand for his gun, and until we got that first dispatch from him, it was generally supposed that he would be able to take care of himself.

Q. Which was the highest in rank, General Brinton or General Brown?

A. General Brinton was the highest. General Brinton was a major general, and General Brown, brigadier. He is brigadier of the Sixth division. While we were in the depot, after the firing took place, there were a number of wounded men brought in—soldiers. I heard the surgeon state, that he had ten or fifteen—I have forgotten which—anyway it was quite a number—it was nearly a dozen at least, and they were sent away on the next train. Most of them were wounded with pistol shots, so he stated.

By Senator Reyburn:

Q. Where did those soldiers come from?

A. From the front, where the collision had taken place.

Q. Do you recollect how many soldiers were brought in wounded?

A. There were from ten to fifteen.

Q. All of General Brinton's command?

A. I don't know. They were all with that detachment, but there were some troops down there who were not of the First division. General Brown had the Fourteenth, of the Sixth division, and Breck's battery, at Pittsburgh, and the Jefferson cavalry. But I think most of those wounded were Philadelphia troops. I judge so simply from the fact that they were sent down in the train—with the last train that was permitted to go through.

Q. What time did you leave the Union depot—just go on from that point?

A. After the troops had left the depot, this scout came in and informed us that General Brinton had left the round-house. I believe, however, General Latta had known it just before he came in. The first I knew of it was when he came in and informed us that the troops had left. Then General Brown came in shortly afterwards, and stated that the troops were in bad condition. The report was that they were being massacred by the citizens, and General Brown expressed great indignation then. He said he didn't care what

happened to the mob after their exhibition of brutality, and made other expressions of that kind. Afterwards we found out that these were entirely exaggerated reports; that the troops had marched out in reasonably good order. We stayed at the Union depot until nearly noon, or about eleven o'clock, I should judge. That was about nine o'clock. The proprietor got very anxious about the matter, because he thought our presence there would induce the mob to set fire to the building. General Latta would not leave until he made arrangements to save the ammunition, and arrangements were made. The building was then deserted. Nearly everybody was out of it, so far as the occupants of it. There were a number of muskets that had been left by the troops. They were taken up stairs, and put in the room. Between eleven and twelve o'clock, or thereabouts, we left and went down stairs, attempted to get a carriage, and could not find a driver. Then we went across the street and took cars, and went to the Monongahela house; and while there we received information from Colonel Norris, who, with Colonel Stewart, had started in the morning after General Brinton. And we received the same information in various ways—I don't know the exact channels—that the troops were beyond Sharpsburg, across the bridge, and wanted provisions, and efforts were made to get them.

Q. The Monongahela house was then the head-quarters of General Latta—General Latta made his head-quarters there?

A. Yes; he stopped there, and notified every one with whom we had telegraphic communications where he was.

Q. How long did he remain there?

A. Until nine o'clock in the evening.

Q. That Sunday evening?

A. Yes, sir.

Q. Yourself and the Secretary of State with him?

A. Yes, sir.

Q. Any other?

A. The Assistant Adjutant General, the Deputy Secretary of State, and Colonel Norris, and Mr. Russell, the clerk. When we went into the Monongahela house, we registered our names, and when I looked at the register afterwards, I found they had scratched them all out and put in fictitious names. While we were there, we heard that the mob had set fire to the Union depot. Of course, we could see the light, and I supposed the proprietors were afraid they might serve the Monongahela house the same way during the night that they had the Union depot. It was within my own personal knowledge that the Adjutant General was endeavoring to get the other detachment of the First division, and the Eighteenth regiment—Colonel Guthrie's regiment—that was at Torrens station, in such a condition that they could join General Brinton in the morning. It was supposed that General Brinton would have no difficulty in staying where he was until that juncture was effected, but the trains were all stopped, and it was difficult to get engineers to run them, even where they could be run, and the junction was not effected, and General Brinton was directed, or instructed whatever it may be, to make that junction himself when he left the round-house.

By Senator Reyburn:

Q. He didn't make that?

A. No, sir. As I understand it, the intention was to get the troops concentrated together after the collision, so as to get as large a force as possible, but they were in detachments, and the railroads were stopped, and many of the troops were without ammunition. Wherever it was possible ammunition was sent to them. It was wagoned down to the detachment of General Brinton's—his second detachment—and it was sent down the Ohio river to the Erie division and wherever it was possible.

Q. Were any of the officers of the railroad company at the Monongahela house?

A. Yes; both at the Union depot and Monongahela house. They came in.

Q. Were there any efforts—did you know on Sunday that Colonel Gray and Colonel Howard's regiment had been dismissed on Saturday night?

A. I knew nothing of it?

Q. You had no knowledge of it?

A. I had no knowledge of it. It was generally understood that the Pittsburgh division had gone to pieces, except the Eighteenth regiment.

Q. Did the civil authorities, the mayor of the city of Pittsburgh or the sheriff of the county, have any consultation with General Latta at the Monongahela house during that day?

A. Not at the Monongahela house?

By Senator Reyburn:

Q. Did they at any time after your arrival?

A. I don't remember of seeing the sheriff. I don't think he was there in the room at all, although I understood he went with the detachment to Twenty-eighth street. The mayor came, as I understood, when he was sent for by General Latta, and stayed, I suppose, twenty minutes.

Q. When was that?

A. That was during Saturday night. It may have been early Sunday morning, but it was before daylight.

Q. While you were yet at the Union Depot hotel?

A. At the Union depot. He came when he was sent for, and I did not take any part in the conversation, or hear it, but he talked with General Latta, afterwards with Secretary Quay, and then left, and that was the last I ever saw of him.

Q. Were you in consultation with citizens on Sunday?

A. Citizens were very scarce. I never saw many Pittsburgh people. Whenever a Pittsburgh man left, he very seldom came back.

Q. Did you know where the head-quarters of the citizens' committee was during the day, Sunday?

A. No, sir.

Q. And you were not called upon by them?

A. Not that I know of, sir.

Q. Was it known through the city where General Latta was?

A. It was in every paper that I saw in the morning.

Q. And you registered when you went to the Monongahela house?

A. Our arrival there the night before was in every morning paper that I saw of the city, and we were registered at the hotel, and we registered at the Monongahela house when we went there, and this very party who had been sent out in the interim we had gone to the Monongahela, they had no difficulty in finding us.

By Senator Reyburn:

Q. Did you understand the railroad company—the officials, I mean—to believe that they could run trains? Did they seem to have that impression after you arrived in Pittsburgh?

A. It was understood that they had the crews ready just as soon as the track was clear, and if protection was given them, they could run trains?

By Mr. Lindsey:

Q. How did you get that information? From what railroad officer?

A. I don't remember. I think it was stated generally—it was so understood.

Q. Mr. Cassatt was there, I believe. Was he not?

A. Mr. Cassatt was there.

Q. And Pitcairn, the superintendent?

A. Mr. Pitcairn was there. I think Mr. Pitcairn was the man I heard make the statement that he had the crews?

Q. Ready to start?

A. Yes, sir; I am not positive as to that.

Q. Do you know what efforts General Latta made during the day—Sunday, I mean—to stop the burning, or to collect a force—collect troops for that purpose?

A. I understood he was engaged all day in endeavoring to get those troops in the condition that they could be used.

Q. Colonel Guthrie's regiment at Torrens station, and General Brinton's command—he was trying to get them to form a junction, so that they could be used?

A. Yes, sir.

Q. Were there any other troops within the reach of the city?

A. I think there was. The second detachment of the First division was on its way, and it must have been near the city, some place.

Q. Who was commanding that regiment?

A. Colonel Rodgers, I think.

Q. Do you know where they were that night?

A. No; I do not know of my own knowledge, at that time. I know, since, they were within a few miles. They were, I suppose, twelve or fourteen miles, perhaps less; but they were without ammunition.

Q. What time did you leave the Monongahela house, and where did you go from there?

A. We left the Monongahela house and took a boat and went to Beaver.

Q. What time did you arrive at Beaver?

A. About midnight, I guess.

Q. Sunday night?

A. Yes sir.

Q. And from Beaver where?

A. From Beaver the intention was to go to Erie. Upon inquiry at Pittsburgh, the railroad officials informed us that they could not get their trains through to Harrisburg, and so the intention was to go from Beaver to Erie, as we understood the Erie railroad was running, and go to Harrisburg; but when we got to Beaver we found that the road running to Erie was stopped also, then General Latta and the Assistant Adjutant General and myself took a carriage and drove over to Allegheny City, and found that the train was running on the West Penn and took that train, and got to Harrisburg.

Q. The purpose in coming to Harrisburg was to collect more troops?

A. The communications were uncertain, and there was no way to get ammunition or orders to these troops.

At this point the committee adjourned until Monday afternoon, at two o'clock.

HARRISBURG, *Monday, March, 11, 1878.*

The committee met pursuant to adjournment, in Senate committee room, No. 6, at four o'clock in the afternoon.

All members present, except Messrs. Means, Torbert, Dewees, and Larrabee.

Chester N. Farr, *recalled*:

By Mr. Lindsey:

Q. Is this the first dispatch you received? [Indicating.]

A. That is the first dispatch I received. I received that after supper, Thursday night, the 19th.

Q. After supper, about what hour?

A. About nine o'clock. It was shortly after, and little before the train left.

Q. Dated received 9.16.

A. It was about that time. The dispatch was as follows:

HARRISBURG, PA., *July 19, 1877.*

Received at 10 No. Sixth street, Reading, 9.16, P.M.

C. N. FARR, jr., *516 Elm street, Reading, Pa.:*

Superintendent of Pennsylvania railroad wires, that a number of train men at Pittsburgh have refused to work, and have, by the aid of a promiscuous mob gathered from the streets, and by the most severe threats and violence against our men, who are ready to work, succeeded in intimidating them, and forcing them to get off their trains, and we are unable, by the aid of police furnished by authorities at Pittsburgh, to move our traffic which is suffering, especially live stock. I would respectfully urge, that such protection will be furnished as will enable us to have possession of our road. Did Governor leave any orders with you?

WARREN B. KEELY.

Then after I got up here, about one or two o'clock, I received one from Sheriff Fife. That I have not been able to find; but that I answered.

Q. You have not been able to find the dispatch you received from the sheriff?

A. No, sir, I think not. But I can get a copy of it here at the office, if you would like it.

Q. Can you give pretty nearly the contents of it?

A. No, sir; it was a short dispatch, simply asking me if anything was being done.

Q. Is it published in the Adjutant General's report?

A. No, sir; I think not. I have not got it here. I am sorry, I looked over all that I had, but I couldn't find it.

Q. I wish you would state now your knowledge of the disturbance at Reading—any facts that are within your own knowledge, and that you have obtained through an official capacity?

A. I know nothing about the disturbance of my own personal knowledge, except from hearsay after I got there. I got there on Tuesday afternoon—Tuesday evening, I think.

Q. What date?

A. It was the 24th. When we came down from Harrisburg on Tuesday afternoon, we got here just in time for me to take the two-fifty-seven train, and go to Reading. I had heard there was a disturbance over there, and I went over, and when I got there I found the bridge was burned down. We stopped just this side of the bridge, and had to drive in over the other bridge, and found considerable excitement in town, and a great deal of anxiety and uncertainty about the situation of affairs. General Reeder and his command had left about that time, and they expected the Federal troops in, and they came in shortly afterwards while I was there, and there was no further disturbance in town while I was there. There was a meeting of the citizens called for that night. It was attended by I should suppose fifteen or twenty, and some efforts were made to get up a citizens' organization; but it

didn't work. There was not a large amount of cheerful alacrity to go into the organization.

Q. By whose authority was the citizens' meeting called?

A. They were called together by the mayor. He was there at that time. He was at the meeting. The sheriff I didn't see.

Q. The sheriff resided in Reading—the sheriff of the county?

A. I think not; but he was in Reading at that time. So I understood, although I didn't see him.

Q. What is the sheriff's name?

A. His name is Yorgy. Captain Linden and his police were there at that time. I saw them. They had stayed to guard the railroad property. About seventeen or eighteen men he had at that time.

Q. Of the city?

A. No, sir; coal and iron police. The police were some twenty or twenty-two. A number of those were hurt in the fire—about seven of them were shot.

Q. Shot in this conflict that took place between the rioters and the troops?

A. Yes. As I understood that matter, Seventh street runs this way, [indicating,] and at the corner—at Penn street—it was where the principle crowd was. The cut opens there, and the police were drawn across Penn street, parallel with Seventh street. When the troops came out of the cut this volley went through the line.

Q. Of the police?

A. Yes, sir.

Q. Any of them killed?

A. No, sir; I think one of them lost his foot. Seven of them, altogether, were struck.

Q. How many were killed in the conflict that took place that evening?

A. Said to be eleven, those that were killed, and fifty odd were wounded. When I was there they had torn up the track. I saw that. They had torn up a rail or two out of the track, and overturned the watchman's box there, and had stone piled up. There was certainly no attempt to make a barricade—there was not much of a barricade.

Q. How large a force was assembled there of the rioters when you got there?

A. There were only a few men standing round.

Q. Were they railroad men that were standing about—railroad employés?

A. That I don't know. Of course there were a great many people on the streets, and there were crowds walking around.

Q. What night was it that the conflict took place between Reeder's troops and the rioters?

A. Monday night. The bridge was burned on Sunday, I think—Sunday night.

Q. Did they gather in any considerable force after your arrival in the city?

A. No, sir; I saw no mob.

Q. There was no further disturbance nor breach of the peace?

A. None at all. They commenced to arrest people who were engaged in it immediately.

Q. State what efforts were made by the civil authorities to punish those that were engaged in rioting, so far as you know of your own knowledge?

A. They had arrested—they arrested about sixty or seventy. I think then the next week they were all held for appearance at court. Two of them pleaded guilty—the two that were engaged in burning the bridge. Those two were in court, and the others were tried, and so far as I know of my own personal knowledge, there were about a dozen that I know of were tried and acquitted, and the others were held for the next term of court. I don't know whether they have been tried or not. I suppose they were, but I do not know.

Q. Were those arrests made by the mayor?

A. They were made by the chief of police, assisted by the coal and iron police, and the police of the city.

Q. This coal and iron police you speak of, is that a police kept up by the company—a private company?

A. I understand that to be under some act of Assembly, by which the Governor has power to appoint special policemen. I never looked up the act of Assembly. I know there are policemen appointed that way—special policemen.

Q. For the city?

A. No, sir; for the protection of corporate property. I don't know whether it specially applies to corporate property or not.

Q. Is that a general act?

A. Indeed, sir, I never looked at the act. I don't know. I really don't know where the authority comes from, except I know these appointments are made.

By Senator Reyburn:

Q. Confined to the coal regions?

A. They call them coal and iron police. I don't know under what act of Assembly.

Q. How are they paid?

A. I suppose they are paid by the companies, I don't know though.

Q. How many of these were there in the city of Reading?

A. I don't know of my own knowledge. I heard there were seventeen or eighteen. There is one correction I want to make. I don't know whether I have stated that I know of my own personal knowledge that Mayor McCarthy came to the room, or whether I said I understood he was sent for. I don't remember him as coming to the room.

By Senator Yutzy:

Q. That was at Pittsburgh?

A. At Pittsburgh. I learned afterwards he had been sent for, and did come. I was not introduced then, and had no conversation myself, and didn't enter into the conversation.

By Senator Reyburn:

Q. Do you know whether he was sent for?

A. That I do not know of my own personal knowledge.

James W. Latta, *sworn*:

By Mr. Lindsey:

Q. State to the committee where you were on the 19th of July last, or when the news first reached you of the disturbance on the Pennsylvania railroad at Pittsburgh, and what action was taken by you with reference thereto?

A. On the evening of the 19th of July, 1877, I was sitting in the room of Post No. 2, Grand Army Republic, at one of its regular weekly sessions, at the corner of Spring Garden and Thirteenth streets, Philadelphia. About

nine-thirty o'clock, there was a rap came at the door, and the messenger announced that I was wanted outside. I went outside and found a gentleman in a carriage, who announced himself as an official of the Pennsylvania Railroad Company. He told me there was some difficulty upon the railway, and that they would like to see me if I could go down to the West Philadelphia depot. I went back and left word it was doubtful whether I would be back again that night, and I went with him to the depot. I there met Mr. Lockhart, superintendent of the Philadelphia division, and went with two others, whom I do not now recollect by name. They told me all the circumstances that had occurred at Pittsburgh. They produced a number of dispatches, described the action that had been taken by the strikers during that day of Thursday, pulling off men from their trains, and pounding some of their officials when they attempted to run them, and the fact that the mayor had been called on, and had been found to have gone to Castle Shannon. This further fact I am not positive whether it appeared in the dispatches, or whether I simply recollect from having learned it subsequently. My impression is it appeared in the dispatches that the fact was that an effort had been made by the mayor, with some thirteen or fifteen policemen, to assist the railroad people in getting the train out, and it had failed. I have endeavored to get those dispatches, but have not been able to do so.

Q. Was this information communicated to you by the railroad officials at Philadelphia, or was it contained in the dispatches that you received from Pittsburgh?

A. It was communicated to me by them. They showed me the dispatches that contained the information to them, and I read them there in the office. Colonel Scott, it appears, had been sent for. He was somewhere out in the country, and they then said to me, we want troops. I told them they would have to take some other steps to secure the calling for troops before any troops could be ordered. I said, it appears the mayor has been doing something and you must look to the sheriff. They then showed me a dispatch that had been addressed by Mr. Cassatt to the Lieutenant Governor. I was satisfied the Lieutenant Governor had no power in the premises, but,

fearing that there might be some question as to whether he had or not, I got the Constitution, and they had Smull's hand-book. I made up my mind conclusively, that he had not, and I telegraphed to the Attorney General. In the meantime, however, Mr. Scott came in, and they, I believe, started off some requests to other people about getting the sheriff on the ground, and I telegraphed to Pearson at the same time, to know something about it myself, and believing it was going to be a serious affair, I went immediately back to my home and took a carriage and drove to the eleven o'clock train, and found Mr. Gardner, who was on a special train. We jumped on his train and came to Harrisburg.

Q. Who is Mr. Gardner?

A. He is general superintendent of the railway. He was going to his home in Altoona.

Q. Pennsylvania railway?

A. Pennsylvania railway. My impression is that is all that occurred at the depot. I got on his train at Lancaster. We had a pretty slow run, we were stopped a good deal, and at Lancaster I got a dispatch from the sheriff which appears in my report and appears in all the official documents.

Q. Sheriff, Allegheny county?

A. Yes, sir; it was addressed to me. It was stating that he had addressed one to the Governor.

Q. That is the one dated July 20, 1877, at one-fourteen, P.M.?

A. That is the only one.

Q. Contained on page No. 1 of your report?

The dispatch referred to, is as follows:

PITTSBURGH, *July 20, 1877—1.49, A.M.*

General JAMES W. LATTA:

I have addressed to Governor Hartranft the following message, and learning that he is absent, I forward it to you for your information.

R. H. FIFE,
Sheriff of Allegheny county.

PITTSBURGH, *July 20, 1877—1.14, A.M.*

Honorable JOHN F. HARTRANFT:

A tumultuous mob exists on the Pennsylvania railroad, at East Liberty, in the Twelfth ward of Pittsburgh. Large assemblages of people are upon the railroad, and the movement of freight trains, either east or west, is prevented by intimidation and violence, molesting, obstructing the engineers and other employés of the railroad company in the discharge of their duties. As the sheriff of the county, I have endeavored to suppress the riot, and have not adequate means at my command to do so. I therefore request you to interfere your authority in calling out the military to suppress the same.

R. H. FIFE,
Sheriff of Allegheny county.

Witness: Meantime, I had seen some telegrams from the Lieutenant Governor, either before or after this, I forget which, that he had no power in the premises. Having received instructions from Governor Hartranft before he left the State of Pennsylvania, which was upon the Monday previous to this date, that in case of trouble, I should assume the responsibility, and the case being one of serious magnitude, knowing the fact that the regular army had been three or four days endeavoring to open the Baltimore and Ohio road, and had failed, I thought the time had come for prompt and immediate action, and I sent a dispatch which reads as follows—from Lancaster,

Pennsylvania, to General Pearson. This dispatch shows conclusively, that the military were acting subordinately to the civil authorities:

LANCASTER, 7, 20, 1877—2.35, A.M.

Major General A. L. PEARSON, *Pittsburgh*:

You will assume charge of the situation in the Twelfth ward of Pittsburgh, to aid the civil authorities in suppressing existing disorders. Place one regiment on duty, advise me which command you so place, and report generally.

JAMES W. LATTA,
Adjutant General.

And I immediately advised the sheriff from Lancaster; the same telegram went to the sheriff:

LANCASTER, PA., *July 20, 1877—2.35, A.M.*

R. H. FIFE,
Sheriff, Pittsburgh, Pa.:

Have directed General Pearson to place one regiment on duty to aid you in suppressing disorders.

JAMES W. LATTA,
Adjutant General.

Q. What time did you send those despatches?

A. Two thirty-five, A.M., in the morning of the 20th July, on the way from Lancaster to Harrisburg. We were running very fast. It was a matter more of form than anything else, to prepare a proclamation. The proclamation I did not conceive to be of any moment, and I thought, as a matter of form, I

would let one go out. I got it pretty well finished by the time we got to Harrisburg, and at Harrisburg we met Mr. Farr, and I told him to complete it, and let it go out. That is the proclamation that has been referred to in his testimony and the Governor's, and which appears in the Governor's message—in the appendix to the Governor's message.

Q. The first proclamation that was issued?

A. Yes, sir; the first proclamation.

Q. State what advice you gave them?

A. At Harrisburg—we moved on Friday quickly from Lancaster, and when I got to Harrisburg—an hour and a half afterward I sent the dispatch, which appears on page 2 of my report, as follows:

Governor J. F. HARTRANFT, (care S. H. H. Clark,) *Omaha, Nebraska:*

Mob stopped all freight trains at Pittsburgh. Sheriff called for troops. Ordered Pearson to take charge, and to put one regiment on duty. Says he may need more.

JAMES W. LATTA,
Adjutant General.

Q. What time did you send them?

A. That was about four o'clock in the morning.

Q. When did you inform the Governor that you had issued a proclamation?

A. Not until eight or nine o'clock that morning in another dispatch that the Governor produced. The proclamation really had not gone out then.

Q. Did you inform him before or after the proclamation had gone out to the public?

A. I think the proclamation went over the wires about that time, but it had not really become a proclamation and about the time.... I did not recollect of anything of moment or importance occurring between that time of the sending of that dispatch, about the proclamation, which was read here on Saturday, until some time during the morning. I sent a ... General Pearson, to know how things were progressing, what things had been done, and at two o'clock I received a reply, which appears in my report, on page 2. It left Pittsburgh one-fifty-eight, P.M. Reads as follows, addressed to me:

PITTSBURGH, *July 20, 1877—1.58, P.M.*

General JAMES W. LATTA, *Harrisburg*:

I have ordered out all my infantry and two sections of Hutchinson's battery. The Eighteenth regiment, under command of Colonel Guthrie, are at Torrens station, where several hundred determined rioters are assembled, and defy the officers of the law. The Fourteenth and Nineteenth I will station between the Union depot and East Liberty. At the outer depot, fifteen hundred or two thousand men are congregated, and refuse to allow the passage of any freight trains. I will station the artillery at that point. It will require a strong hand to quell the disturbances, and disperse the mob. Thinking it better to overawe the mob by an appearance of strategy, and to save bloodshed, I have ordered out my command as above. A portion of the eighteenth regiment were on duty at eight o'clock, A.M.

A. L. PEARSON,
Major General.

I then left Harrisburg with Mr. Farr and Colonel Hassinger and Mr. Russell on the fast line west. During the morning, I might say that Colonel Scott was telegraphing me quite considerably about whether or not there were enough troops, and earnestly suggesting me to put some more in the field, and to show the opinion in which the troops of Pittsburgh were held at that time, there is a dispatch here which has never been published, and which I

will read now. I thought I could understand how to handle people I had been with for a good while, and there ain't any question about it, but this Sixth division, of the National Guard, stood the equal of any in the Commonwealth, on the morning of the 20th day of July, and I assured Colonel Scott, the troops were, in my judgment, so far as I understood the situation, satisfactory to me. I sent to Colonel Scott this telegram, dated Harrisburg, July 20, at noon.

ADJUTANT GENERAL'S OFFICE, HARRISBURG, *July 20, 1877—12, M.*

Colonel THOMAS A. SCOTT, *Philadelphia:*

Pearson is moving his whole force, and is doubtless on the ground by this time. He is an efficient, energetic, and judicious commander, with a body of troops under him that are as well disciplined and drilled as any National Guard forces in the country. They are officered by gentlemen of military experience and proved ability. I appreciate the situation, and no energies of mine shall be spared to bring matters to a successful issue. I go west on fast line. Will keep you advised. Have read Mr. Cassatt's dispatch to you.

(Signed)

JAMES W. LATTA,
Adjutant General.

Shortly after this dispatch went, some two and a half hours, I got some intimation through the railroad people that the troops were not coming out right, and I told them I could say nothing to them until I heard from General Pearson, who had the whole charge of matters. This dispatch of Pearson's, which appeared in my report, page 3, confirms these suspicions which I had about what these railroad officials had said to me:

PITTSBURGH, *July 20, 1877—5, P.M.*

Major General JAMES W. LATTA,
Adjutant General, (on Fast Line west:)

Matters are getting worse. The Fourteenth regiment, up to this time, four o'clock, have not reported a man. The Nineteenth has but fifty (50) men. The Eighteenth regiment has had one hundred and fifty (150) on duty since morning. Captain Breck has his battery horsed and ready for duty. Is now at Union depot. I fear the majority of the troops sympathize with the strikers. Mr. Cassatt is most anxious to have other troops, and as it will take a long time to get country troops together, the Philadelphia troops could be brought here in less time than any others, and would not be in sympathy with the strikers. Mr. Cassatt suggests that you have a good regiment under arms, and if I fail with what I have got, they can be ordered here by special train, and would arrive early in the morning. I will make the attempt to run the trains through in less than an hour, and will notify you of the result.

A. L. PEARSON,
Major General.

To which I replied, as follows.

MIFFLIN, *July 20, 1877—5.45, P.M.*

General A. L. PEARSON, *Pittsburgh:*

Your dispatch received. You say Cassatt suggests that another regiment be held under arms. Do you ask that the order be issued?

JAMES W. LATTA,
Adjutant General.

Then immediately after that I got one from Pearson which opened up the whole situation, and was acted on. That dispatch is on the same page, and reads as follows:

PITTSBURGH, *July 20, 1877—6.35, P.M.*

Major General JAMES W. LATTA, (*Fast Line west:*)

After every exertion on the part of myself and staff, since four o'clock this A.M., I have but two hundred and thirty men on hand. There are not less than four or five thousand strikers, and increasing in large numbers hourly. The sympathy of the various companies is with them, and I have no hesitation in saying, that to avert bloodshed, we should have not less than two thousand troops. While I can scatter the crowd, it will be only for the time being, and at fearful loss of life. I suggest that two thousand men be sent to-night.

A. L. PEARSON,
Major General.

Q. What hour is that dispatch dated?

A. That dispatch is dated six-thirty-five, P.M., Pittsburgh, July 20, 1877, and I got it at McVeytown tower, east of Huntingdon. I immediately ordered the divisions of Generals Brinton, Gallagher, Huidekoper, and White, and the Fifth regiment of General Beaver's division under arms, and advised General Pearson of this by telegram. In view of this fact of sympathetic tendencies on the part of the strikers with the rioters, after I got Pearson's dispatch, in another answer to Colonel Scott, I said I didn't deem it advisable to take any action with the troops just then, until we found out exactly how the troops felt. If the troops were going to be in this condition all over the State, we better study a little before making further movements, and I telegraphed Brinton a private and confidential dispatch, inquiring what the sentiment was there. He telegraphed back, assuring me his people were right, and I might use them on any emergency whatever. Immediately after that I put Brinton in the field, and ordered him to move the whole division to Pittsburgh. I directed Brinton to supply himself with ammunition, such as he had in Philadelphia. I had forty-five thousand rounds prepared for him, and handed to him as he passed through, with instructions to issue it to his troops, not less than ten rounds a man, before

they went any further, and I also put in his charge two Gatling guns, which we had at the Harrisburg arsenal, leaving their heavy guns behind them. I pursued my individual movement to Pittsburgh, and, I think I got there some time about one or two o'clock in the morning of Saturday. I do not recollect exactly the time. I found excitement, and things conditioned during the night as I supposed I would find them, from what reports I had. Found these two regiments, the Fourteenth and the Nineteenth, partially gotten together in cars. Pearson was about to execute a movement to carry them out by some strategic plan, about daylight, to Twenty-eighth street, and there hold the crossing with these two regiments and a battery, the object being entirely to avoid bloodshed, that being the tenor of all the dispatches I received. From what I could learn, I thought the movement of that battery and the necessity for two thousand men was rather an unwise one, and I advised against it; but the battery was taken out, and the measure was successfully accomplished. I discovered, much to my surprise, that public sentiment and the press were in pretty strong sympathy and accord with the people who were defying the law. No sheriff, no mayor, that I saw at all. Matters went on until two o'clock, I think, without any change worthy of comment, when Brinton arrived with about six hundred and fifty men. I then asked Pearson distinctly whether he was satisfied, or had enough troops to master the situation, and he said he was satisfied with them, and the movement commenced. I remained at the Union Depot hotel, to say nothing of the transaction at Twenty-fifth street. The firing was first announced to me in a dispatch, which was given in my report. It might be stated, in this connection, that the whole forty-five rounds of ammunition were brought to Pittsburgh, and it was a pretty serious embarrassment in future operations. These facts are all set forth in my report, and the troops were supplied with twenty rounds per man, and the guns with two thousand rounds each—the Gatling.

Q. Before they started from the Union depot?

A. Before they started from the Union depot. We had a vast amount of it lying there. If we had only got it issued, it might have made some change in

circumstances. The dispatch announcing the fire, I received at the Union depot, five-twenty P.M.

Q. What page is that on?

A. Page 5.

OUTER DEPOT, *July 21, 1817—5.25, P.M.*

Major General LATTA, *Union Depot:*

Send for Huidekoper's, Gallagher's, Beaver's, and White's, divisions. The location of the ground is such that it is almost impossible to handle troops. The troops have just fired into the crowd, and I am informed a number are killed. I am satisfied no trains can be sent out to-night. The appearance of affairs is desperate.

A. L. PEARSON,
Major General

The object of the movement, was, of course, to open the road, and Mr. Pitcairn told me shortly before the movement commenced, in reply to an interrogatory, that he had fifteen crews ready to carry out trains.

Q. Ready to take out trains?

A. Yes, sir. I never knew the reason why the trains did not run until I read General Brinton's report, which was some ten months afterward. I inquired from a gentleman connected with the railroad company why the trains did not move that day when the tracks were open, ready for them to move, about an hour after the fire occurred, and he told me the reason was that General Pearson said it would not do; but upon referring to General Brinton's report, I found that an offer had been made by the troops to guard the trains, and the railroad people said, we have not got the men to move the trains, and the trains, consequently, could not move. The road was open. The soldiers had discharged their duty, and opened the road.

Q. How long was it kept open?

A. I do not know, but I presume some couple of hours, from all I learn from the official reports, before they withdrew from this position to the round-house.

Q. What time was it that Mr. Pitcairn stated to you that he had fifteen crews to move trains?

A. I should think it was about—just a little while before Brinton came in, with his troops, and he got there at two o'clock. I saw him in the hallway of the hotel, standing about ten or fifteen feet from the desk of the Union Depot hotel clerk's office. I think Pearson stood beside me. I am not so sure of that, though.

Q. Did you have any consultation with General Pearson or railroad men about the propriety of undertaking to start trains that evening—that afternoon?

A. I have no distinct recollection of any consultation with him.

Q. Do you remember of any citizens calling at the office of the Union Depot hotel, and advising against moving the trains that afternoon?

A. No citizens called on me with such advice.

Q. Did any of the civil authorities?

A. I never saw any civil authorities of the city of Pittsburgh, except the mayor, for about ten or twelve minutes, and then I sent for him to come, during all the time I was there.

Q. When did you send for him?

A. About midnight, on Saturday. He met Colonel Quay, and I think the first word he said—I think he said: "If Hartranft had been here the troops would not have been ordered out. Why didn't you do like you did before—telegraph him, and then there would not have been any trouble." I said to him: "I think that if you get out there you can stop this thing now." He said

it was beyond his power, and he made some remark I did not like very well, and I turned on my heel, and left him in consultation with Colonel Quay.

Q. Can you remember that remark?

A. No, sir.

Q. The substance of it?

A. No; not well enough to testify to under oath. Colonel Quay and he kept up some considerable conversation.

Q. Was Colonel Quay present when that remark was made?

A. He was; yes, sir.

Q. Where was he?

A. Our room was at the head of the stairs, on the second floor—the first floor—I suppose the hotel would call it the first floor of the Union Depot hotel. This room faces right opposite the stairs. Quay and McCarthy were sitting on a kind of a bench there, and I was standing up. Matters went on. I don't recollect when I first learned that the troops were in the round-house. Oh, yes! here is the dispatch, on page 5, addressed from Pearson to me:

OUTER DEPOT, *July 21, 1877.*

Major General JAMES W. LATTA, *Union Depot:*

Brinton reports about fifteen killed and wounded, and child of ten years. The rioters numbered not less than ten thousand, and completely surrounded the troops, and fired the first shots. It is reported that the United States arsenal will be attacked, and arms and ammunition captured. Have notified the commandant of the fact. The rioters contemplate burning the railroad buildings, and I have ordered all my troops inside the walls of the buildings, and will protect at all hazards.

A. L. PEARSON,
Major General.

Q. What time did you receive that dispatch?

A. That dispatch must have been received about dark, or shortly afterward. I see it is without hour. Then I placed myself in communication with him. There are two dispatches here. I started a messenger boy off to the arsenal. It appears that Pearson had been in communication with them to advise the officers of the fact of what trouble there was. I was getting replies and sending messages back from these troops. They were on their way ... of them without ammunition, and some of them had been unable to get out of there, and wanted to know whether they should use force, and they finally did get out and go to the lower end of Pittsburgh by the next morning.

Q. What time did Pearson reach you at the Union depot that evening?

A. I have reported it at ten o'clock, and I think that hour is about right.

Q. What was that report, then, as near as you state it?

A. He came in with four of his staff, and I was rather astonished at seeing him. The mob had got pretty thick, and I had learned through the entire afternoon that no soldier could appear upon the highway with any safety, unless he had troops with him. A rope, I learned, was put around the neck of General Brinton's staff officers, and he was threatened with assassination and all sorts of things; but there is no question about the fact, unless a soldier was willing to give up his gun, he had no business out among them. Pearson managed to get down unobserved. The cars were four lines deep—were all down to the round-house—and I suppose he got through them. He said he managed to get down there in that way. I told him I was very much surprised to see him there, and he said the object of his visit was ammunition and rations for the troops—they were almost entirely out, and I told him the situation—whether he understood it fully I do not know—it was impossible for him to get back. I thought his usefulness was about ended. He got there, and he could not return again. I told him to go somewhere else, and report to me at daylight. He went to the house of one of the staff officers, somewhere on the outskirts of the town—Richard Evans. Daylight came, and he could not go through, I suppose, if he had

tried. I heard nothing further from him until about one o'clock. One of his staff officers brought a note from him at the Monongahela house. He offered to do any duty he could. He said if he came on the street he was satisfied his life would not be his own for a moment; and I did not see anything for anybody to do just then, and I told him I could see nothing to be answered by his coming out at that time, and he might as well remain where he was.

Q. General Pearson was in command of the troops, then, until ten o'clock?

A. O, yes. I must say something else. He was in command up to ten o'clock. Before I told Pearson to go away, I asked him four or five times very distinctly, and put the interrogatory as strong as I could, to know whether he had left General Brinton in absolute command, and he said that he had—that Brinton was the commanding officer, and I have since letters from General Brinton, in which he has assumed that he was in command of those troops.

Q. After General Pearson left, then General Brinton was the commanding officer?

A. He was the commanding officer.

Q. Had entire charge. Did you have any communication with General Brinton?

A. When Pearson left, no fire had broken out. Pearson rather charges disaster on me in his report. The burning did not occur until after he went home. After Pearson left, Mr. Farr and Colonel Norris, Mr. Linn, and Cassatt and Phillips were active and energetic in getting provisions out—trying at least. Having got an engine fired up, they backed it into the Union depot, and I think they got coffee and sandwiches—a tremendous amount of provisions carried out to where the engine was. An engineer had agreed to push it out, and everything was ready for the movement, when the engineer reported that the fire had gotten between the round-house and the Union depot, and he could not go. The cars were burned, and he could not run his engine past them, and the consequence was that the scheme was abandoned.

About that time, a man disguised as a working man, at great personal risk and the exercise of a vast deal of tact, presented himself to my room at the hotel. He told me where he had come from, and brought a dispatch from General Brinton. At that time, I suppose, the fire had got pretty well ahead, and it was rather of a demoralizing character. I had had it in mind, if it was possible, to get a communication to Brinton, and propose some plan to get out of the round-house, and clean that mob out; but I desisted from that when I read that dispatch. I unfortunately have lost it, but I recollect I stood up and read it out in the room, and I recollect I said—that subject of ordering the troops out had been discussed—I said I will assume no responsibility of ordering the troops to fight, when a report like that comes from them, and it left me under the impression that the whole thing was gone up. I recollect, I walked up and down the room that night, and I thought every friend I had would be burned to death by morning. I had no idea they would ever get out, and I devoted my entire energies to their relief. I had been the associate of the First regiment since my early boyhood days, and that dispatch left me and everybody else with that idea. I sat down and answered, in the nature of one which appears upon page 7, of that report, and sent it back by this same man. At that time the mob had got to be so serious, that I did not deem it wisdom to order any troops into the city of Pittsburgh without ammunition. The troops of Colonel Rodgers, which was part of the First division, and which should have been supplied with ammunition, were then about somewhere at Walls station. At the time Pearson came in to me, communications stopped with the round-house—wires were cut. We had one Western Union wire running to different points, and that was the only one we could get hold of. None, however, to the round-house. I sent word to this detachment at Walls, and to the detachments on their way, not to come within ten miles of the city, until they got ammunition. Then I sent this dispatch back to General Brinton:

Major General R. M. BRINTON, *round-house*:

I know your situation fully. Regret that you are so placed, but knowing your high soldierly qualities, know that you will hold out to the last. It would be

sad to sacrifice life, as you would have to, in case of a persistent attack, but if it comes, it consequently must follow. Every one has been untiring in efforts to get rations and ammunition to you, and, in every instance, it has failed. Cassatt and Philips, of the railroad, Baugh, of your staff, Norris, Farr, and Linn, volunteers, are now making every effort to again shortly reach you. No chance for friction primers.

Have again made every effort to reach you, but failed on account of the fire. The rest of Philadelphia troops are at Walls station, twelve miles east, and there remain awaiting ammunition. I am starting private conveyance to Torrens, with ammunition to Guthrie, in large enough quantities to supply himself and the troops now at Walls. When I hear of its safe arrival, I will order them forward to Guthrie, to report to him, directing him to move to your relief, with the whole command. His march will be about five miles, and, if all things prove successful, he ought to reach you by five or six o'clock. If compelled to escape at last, do so to the eastward; take Penn avenue, if possible, and make for Guthrie, at Torrens.

JAMES W. LATTA,
Adjutant General.

These instructions were not followed; but a different and another route was taken. I had inquired from the people of Harrisburg where the best place was to feed troops at that time in that large body. I was told by those who seemed to know that one of those large hotels at East Liberty could accommodate five or six hundred men, and I had made this direction to go to East Liberty to get the men fed. Men dragged out from their homes, and kept up two nights, cannot exist like the old and heavier campaigner can, who have become inured to privations.

Q. In giving these orders in your communication to General Brinton, and in the orders you gave to Colonel Guthrie and Colonel Rodgers, were you assuming command of the troops, or in what capacity?

A. I was assuming command, so far as that was concerned. I could not assume, as Adjutant General, the command of any troops, unless I relieve the officer commanding, and that would be a very delicate thing to do in the situation we were in. For the purpose of concentration, and for the purpose of a movement, I was acting as commander-in-chief, and for the purpose of giving general directions.

Q. You had plenty of ammunition at the Union depot?

A. Plenty of ammunition.

Q. Could you not, have ordered Colonel Guthrie to have marched down Fifth street by a circuitous route, and brought him to the Union depot at night?

A. He said he hadn't forces enough.

Q. There was no force on Fifth street, was there—running out Fifth avenue?

A. I suppose I could have done all these things, but I didn't conceive, in view of the reports I had, that it was wise to undertake, and my views were fully confirmed by the dispatches that came from Guthrie himself, after I had ordered the movement, because he wired me as follows—after I got him an order for the concentration he wants to know—a Pittsburgher inquired of me what route he shall take.

Q. Did Colonel Guthrie have any ammunition?

A. O, yes; he had some seven to ten rounds, I believe—I know he had some ammunition.

Q. How many rounds did General Brinton have with him in the round-house?

A. I reported twenty—that is my belief.

Q. At the time you sent this communication, on page 7, with the message to General Brinton, could you not have ordered him out of the round-house, and could he not have marched, at that time, down to the Union depot?

A. I cannot answer whether he could have marched down. I could have ordered him to do so.

Q. What is your opinion about his having been able to march down to Union depot, and cut his way to Union depot at that time?

A. I do not think at that time it would have been a wise movement in the night.

Q. A fire had already broken out?

A. Yes, sir.

Q. Do you know that Brinton had received that communication?

A. O, yes; Brinton got that.

Q. Was that discussed, or did that occur to you at the time to order him down to the Union depot?

A. Yes; I have just stated I intended to order him out. I do not mean to say at that particular time, but I intended to suggest, when I got this dispatch, and then I would not assume the responsibility of ordering troops out that were described to be in that condition.

Q. Have you that dispatch?

A. That is lost.

Q. Can you state the nature of it—the contents of it?

A. I do not want to say one thing that is in it. The contents of it were, as I have stated, general demoralization.

Q. Of his troops?

A. I do not mean to say his troops. The impression made by the dispatch was one that created upon the mind of anybody who read it—and there was no use attempt to fight just then with the troops. That was an impression left upon my mind, and upon the minds of those who heard me read it.

Q. Is that dispatch lost?

A. That dispatch is lost.

Q. Who was present and heard that dispatch read?

A. Colonel Farr, Colonel Quay, Colonel Hassinger, and Mr. Russell.

Q. What time was that received?

A. About midnight.

Q. Did General Pearson consult you after the track had been cleared, and after the collision, at about five o'clock—did he consult you as to the disposition of the troops?

A. No, sir.

Q. Did you know they were going to be placed in the round-house?

A. No, sir.

Q. Did you know where the Fourteenth and the Nineteenth regiments were, commanded by Colonel Gray and Colonel Howard?

A. I knew where they had been sent to in the morning.

Q. Do you know where they were in the evening?

A. I made up my mind they had all disappeared. I must not use that phrase any more, because one of the military newspapers says it is a peculiar one to use—that troops disappear.

Q. Did you know they were ordered in the transfer depot?

A. No, sir; but somebody came in, and told me they were all gone.

Q. Do you know when they were disbanded by order of General Brown?

A. The first I knew of that was, I saw Brown two or three times during the night in citizens' clothes, and toward the early morning, but I had heard all along his troops had gone. The old gentleman was pretty well excited. He

was going out and making promises, and coming back, and having interviews, and getting in among the fellows. The next day, Cap. Bigham, he was a pretty strong man, was in the room at the hotel, between nine and ten o'clock, and I said something pretty rough to Bigham, about the troops running away, and Bigham, like a good soldier, would ... that he had done what he was told; he said these troops left there by order of General Brown.

Q. That was the first you knew of General Brown's order?

A. That is the first I ever heard.

Q. After General Pearson left, then General Brinton was the commanding officer, as I understand, and you learned that fact by and through General Pearson?

A. By and through General Pearson.

Q. That he had left him in command?

A. Yes, sir.

Q. Did General Brinton know that the ammunition was at the Union depot?

A. O, yes.

Q. He knew it had been left there?

A. You know he kept sending for us to send it out to him. He left the ammunition under the guard of a detachment of cavalry. They had sabers way up at the lower end of the depot. My recollection is, when things got pretty hot, these men were no earthly account round with their sabers, and I believe a captain and some men of the Fourteenth were standing around there, too. They never reported to me for any special purpose. I sent those gentlemen out. I know I sent some of them out, for they succeeded in getting out, some from this exposed place, down to the cellar of the hotel.

Q. Was Cassatt and Pitcairn out at Twentieth street, at the time of the collision?

A. I am told they were.

Q. Did you have conversation with them after they returned?

A. I had a conversation with one of them.

Q. Did you ask them whether trains had been moved?

A. Yes; and they made answer just as I have stated. Said General Pearson told them not to move—they said General Pearson told them not to move.

Q. And did you have any conversation with General Pearson on the subject, when he came in?

A. No, sir.

Q. Did you have any consultation before the troops started with the civil authorities?

A. I never saw them.

Q. You don't know what arrangements—as I understand it, the sheriff marched with a posse in front of the troops?

A. I have been told so. I never saw the sheriff but once in my life, and that was two or three weeks afterwards.

Q. Were your instructions to the commanders to keep themselves subordinate to the civil authorities?

A. I have just read my original dispatches—aiding the civil authorities.

Q. When General Pearson left, at ten o'clock, you did practically relieve him from command?

A. Yes. Of course, it was a virtual relief, as explained in that way.

Q. He first asked you whether he had left General Brinton in command?

A. Yes, sir.

Q. Now, did you consider you had power to order the movements of General Brinton, after General Pearson had left?

A. I did; for purposes such as that.

Q. And also of Colonel Guthrie?

A. I did; yes, sir.

Q. And Colonel Rodgers and the troops in that vicinity?

A. Yes, sir. You will observe I did not give Brinton any particular order.

Q. That power you had by virtue of the instructions that the commander-in-chief had given you before he left?

A. I took it I had that power generally in the comprehensive duties of Adjutant General. The conclusion of this dispatch to Brinton is not in the shape of an order. It tells him what to do. Brinton thought he could have done better, he could have gone somewhere else, and when a man don't follow such instructions as that he takes a great deal of risk, just as a man who refuses to obey the order of an adjutant, if the Adjutant General is sustained by his chief, he is going to get a pretty good dressing; if not, he is all right.

Q. General Brinton could have obeyed your instructions or disobeyed them?

A. I am simply applying that remark to the conclusion of this letter, which reads: "If compelled to escape, at least do so to the eastward. Take Penn avenue, if possible, and make for Guthrie, at Torrens." Brinton could have taken that direction, or taken some other one if he thought he could do better by taking some other. When he didn't take the direction I gave him, he assumed a responsibility.

Q. Afterwards, you ordered him to join Guthrie, at Torrens?

A. I did; yes. He had got too far then. After this order went out, they succeeded in getting ammunition to Guthrie. I had ordered a train from

Walls by telegraph. The reply I got from Walls was, that the "engineers won't run the trains. I can't move them." Then I ordered the wagon.

Q. Did you see the sheriff after you arrived at Pittsburgh, or the Union depot, before the troops were sent to Twenty-eighth street?

A. I never saw the sheriff nor the mayor until I sent for him.

Q. Did you ask General Pearson whether he had a consultation with the sheriff or the mayor?

A. I did not ask him anything about the mayor, but I had dispatches from Pearson in which he said he had been with the sheriff.

Q. You saw no citizens on Saturday night, I understand you to say?

A. Saturday night—I don't recollect. I think Mr. Rook came in the room for a few moments on Saturday afternoon. Mr. Hampden was in the room.

Q. Who is the solicitor?

A. There was a good many railroad men around there, but outside of the railroad men I have no distinct recollection of any one but Rook.

Q. Did you see James Park, junior, Saturday evening?

A. I don't know such a name. I might know him if I would see him.

Q. He had no conversation with Mr. Cassatt in your presence, that you recollect of?

A. No, sir; nor nobody had any conversation with Mr. Cassatt in my presence during the evening. I didn't see Mr. Cassatt more than a few moments.

Q. On Saturday afternoon, did you see these gentlemen?

A. I don't know—I don't think I did. I might have seen him. If I saw this gentleman I could tell better. I don't know the name.

Q. Did any citizens speak to you or to Cassatt, in your presence, in regard to any meeting any time to move trains on Saturday?

A. No, sir; nobody. I heard it talked of, but nobody ever came to me. It was talked of in our room between us.

By Senator Yutzy:

Q. It was talked of in the room?

A. Between ourselves.

Q. Was this before the effort was made to clear the tracks with troops?

A. I do not recollect.

By Mr. Lindsey:

Q. Did it occur to you that Saturday would be a bad day to undertake the movement of trains?

A. It has occurred to me. Whether it occurred to me then or not I am not able to answer.

Q. Were you aware that the rolling mills and manufacturing establishments in Pittsburgh closed at noon on Saturday?

A. I don't think I was at that time.

Q. And that a large number of men were idle on Saturday afternoon?

A. I don't think I was at that time, but it is just one of those sort of things I know now, and I cannot give a full recollection or impression. I know this much, there was no direct report to me of this fact with any suggestion that the movement be suspended on account of that fact, because then I would recollect distinctly.

By Senator Reyburn:

Q. Your own understanding when you got to Pittsburgh was the civil authorities had lost all control, and were powerless?

A. When I first got to Pittsburgh?

Q. Yes?

A. Yes; so far as any force they had.

Q. They were powerless to disperse the crowd?

A. Yes, sir; so far as any force which they could control as a civil posse.

By Mr. Lindsey:

Q. After the burning commenced Saturday—the burning of cars—did it occur to you that it was possible for General Brinton, with the men he had there, to stop that in any way?

A. I don't know. It occurred to me.

Q. Did you take it into consideration?

A. I don't know that I did particularly. I was not thinking particularly about that.

Q. Did you have any consultation with the railroad officials during the night there as to any means—or try to devise any means to stop the burning cars?

A. There was not any of them there.

Q. What became of the railroad officials?

A. I don't know, sir.

Q. When did you miss them?

A. I last saw Mr. Cassatt somewhere towards dark. They were down stairs. I think Mr. Cassatt was down, but I didn't see him. He came back again.

Q. Did you see Pitcairn during the night?

A. I don't think I ever saw Pitcairn after I had talked with him about the cars.

Q. Did you see Mr. Scott?

A. Scott was the first man to tell me about the collision. He came in the room and announced the collision, said it was very sad, and walked out. I saw Mr. Phillips, another railroad man, I recollect, when the fire was getting close to the hotel. He and Russell threw cartridges into the pitcher full of water, thinking it would destroy them.

Q. What time did you arrive at the Union depot?

A. I estimated it at about noon.

Q. Sunday?

A. Sunday, yes, sir.

Q. What means did you take Sunday to try to stop the burning?

A. I didn't take any. I had nothing to take any means with. There were six gentlemen in citizens' clothes—most of them civilians—all civilians I think. The next day when I first heard that, Captain Aull was the first party who came in. He announced that the troops had got out of the round-house. There were two parties from East Liberty who had come into the room to ask me to retain the Eighteenth regiment there, and I looked at them in astonishment when I had ordered them to come in to the relief of General Brinton. While I was talking to those citizens, Captain Aull came in, and he overheard the conversation. He stepped up and told me he had driven through Brinton's troops, and they were marching out. I was relieved from a great deal of anxiety, so I sat down and immediately told Aull—having no other, I think—sat down and dictated a dispatch, which appears here on page 11, addressed to Brinton, signed by me, dated July 22, 1877:

PITTSBURGH, *July 22, 1877.*

Major General R. M. BRINTON:

Remain in position at stock-yards, or thereabouts, securing yourself, and await further orders. Congratulate you on your manœuver of this morning. Consult with Colonel Guthrie, and govern yourself accordingly. From information received here, it appears Eighteenth regiment is sufficient to protect stock-yards, and will not excite special prejudices of the mob. There is an old fort in the vicinity, which is suggested as a good place to hold. It can be shown to you by parties familiar with the neighborhood.

Keep your channels of subsistence well open, and await further orders. There may be some developments, which, of course, will require you to act on your own responsibility. If any troops arrive at East Liberty, assume command of them. Report their arrival here, if possible. Norris will be on the ground shortly, and explain the situation here. Act after consultation with him.

JAMES W. LATTA,
Adjutant General.

At the same time, Norris being a staff officer—it is not customary to give a staff officer written instructions—I started him off to talk with Brinton. Brinton appears to have given this order sometime about the 31st of July, seven or eight days afterwards. Norris got hold of me, and told me the purport of the order, and told me what the directions were, and he moved about a mile beyond Sharpsburg bridge and stayed there. I started off to try to make a junction with the troops at Walls, which I did not know at that time had gone to Blairsville.

Q. Did you have any consultation with the officers on Sunday?

A. I saw no citizens of Pittsburgh on Sunday, except Mr. Bennett. Whether we called to see him or not, I don't know. I was in the room just as Norris had returned to the Monongahela house. Bennett and Cassatt were sitting upon one bed, and Norris and some other gentleman on the other, and Norris was giving a description of his ride to Brinton, and I was introduced to Mr. Bennett, and shook hands with him, and overheard part of their

conversation, which was to the effect that Mr. Bennett was trying to persuade Cassatt to make some compromise with the men, which Cassatt refused to do.

Q. He was the only one?

A. I think so; the only one I saw. I was going to say, I remained there until nine o'clock at night, and then I had got dispatches from every part of the country, that showed everything was in a general uprising, and I made up my mind I must get to Harrisburg, and Phillips told me there was no way to get over the Pennsylvania, and we went to Beaver, believing the Erie route to be the most practicable. At Beaver I telegraphed to Scott to get a special train. Scott intimated their road was open, and I hired a carriage and drove back to Allegheny City, and came back here.

By Mr. Engelbert:

Q. Do you know what became of the ammunition in the Union depot?

A. Before I left the Union depot I spent about nearly an hour in arranging a plan to get it saved. I left it in charge of Captain Breck. The plan we had arranged was to—that was just about the time the milkmen were going back to their places in the country—to get empty milk cans and open the boxes and pour the ammunition into the cans and take the ammunition out. I am told that he got five or six cans loaded, and was on his way to hunt transportation, when the fire got hold of the thing, and the ammunition was destroyed.

By Senator Reyburn:

Q. Did the mayor, in that interview, express any intention or desire to suppress this—making any attempt to control it?

A. No, sir; simply said the matter was beyond his control, and he could not do anything, and he was tolerably mad.

Q. Did he say he had in the first place?

A. No, sir; I didn't ask him anything about that.

By Senator Yutzy:

Q. Who explained the movements of the troops, as they advanced out to Twenty-eighth street?

A. General Pearson. He showed his plans to me before he started.

By Senator Reyburn:

Q. Do you know whether the command was given to fire that day, by any of the officers?

A. I do not know anything about it.

Q. Do you know whether General Pearson was there at the time the firing took place?

A. I do not know.

Q. Do you know how General Pearson was dressed on that day?

A. Yes, sir; he left me with a blouse on. Major general's shoulder-straps and fatigue cap, and my impression is he had one of these old fashioned blouses, with the braid in front, and a sword and belt. Whether the belt was outside of the blouse or inside, I cannot recollect. He had a fatigue uniform of the United States army, excepting that braid, if that was there. It is not now a part of the uniform.

Q. What time did he leave you with that uniform on?

A. He left me with that uniform on, about three o'clock, and returned again with it on at night.

Q. Did he have it on at night?

A. Yes, sir.

By Mr. Engelbert:

Q. You saw him before the firing, and after the firing with the same uniform on?

A. Yes, sir; with the same uniform.

By Mr. Lindsey:

Q. After you returned to Harrisburg, who directed the troops from that time until the arrival of the Governor in the State?

A. There was very little direction done. In the meantime he had been advised of my movements, and he had in the meantime been directing himself. After the Pittsburgh collision, he commenced to move the troops, and we got into the same channel. Pretty much all the orders were alike.

Q. Do you know anything about a collision that occurred at Reading, with General Reeder's troops?

A. Only as it is officially reported by General Reeder and Bolton. It was reported here immediately, I saw it the next day.

Q. What time did General Huidekoper get to Pittsburgh?

A. He got to Pittsburgh from Chicago, a little before daylight on Sunday morning.

Q. Did you have any consultation with him after his arrival?

A. We had a plan of battle arranged there. Huidekoper started on its accomplishment. We chartered a steamboat, and we managed to smuggle several boxes of ammunition from the hotel, and he went to Rochester, believing his troops were coming down. He ought to have been in Pittsburgh by noon, but the troops were stopped by the riot.

Q. They were stopped by reports at Greenfield?

A. Yes, sir.

Q. Who was the colonel commanding these troops that were on their way?

A. I think they were in charge of a major on the Allegheny Valley road. They were in charge of Lieutenant Colonel Magee.

Q. They were not in charge of Colonel Carpenter?

A. Possibly so. I don't know that. Magee—I had communications with him.

Q. Do you know why they stopped at Greenfield?

A. No, sir.

Q. Did you ever try to ascertain the causes?

A. No, sir; that matter was altogether in the hands of General Huidekoper; he was division commander.

Q. Did Huidekoper report to you any reasons for it?

A. No, sir; not unless there is something in this report here. I think if he had I would have recollected it.

Q. Was it reported to you by anybody that there was no cause for the stopping of the troops there, excepting that the colonel commanding the troops was afraid to go on?

A. I never heard. I don't think I ever heard that before. There was plenty of ammunition; there was five thousand rounds of ammunition at Greenfield at the time.

Q. Plenty of ammunition in Greenfield?

A. I didn't know it then because it was in Huidekoper's division. I learned afterwards it was at Greenfield.

Q. They should have arrived, you say, at Rochester, at what time?

A. If the trains had been on time they ought to have been in Pittsburgh at twelve o'clock.

Q. Sunday?

A. Sunday, yes, sir.

Q. They never got any further than Greenfield?

A. Not within fifty or sixty miles. Huidekoper left Rochester and went out west to meet the Governor. He gave up all hopes of getting near about noon.

Q. Were any steps taken by the commander-in-chief to ascertain the cause of that delay?

A. No, sir; we assumed it was because they could not get the hands to run them. That was the report from every place, and it seemed to be generally confirmed. I was just going to say, in looking at this matter, it ought to be looked at in an exceptional light. It is a thoroughly new thing. The soldiers ought not to be reflected on as severely as the people have. There is as much courage in the National Guard as there is anywhere, and it ought not to be judged of in the light of a regular warfare nor by such rules.

By Senator Reyburn:

Q. You found after you had organized the troops, and had them out a few times that they were just as good as any soldiers?

A. Just as good as any soldiers you bring from any quarter of the globe.

By Mr. Lindsey:

Q. It was reported that some Philadelphia troops were captured across the Susquehanna here by a squad of rioters from Harrisburg, and tramps, and brought into the city. I wish you would state what you know about that, and who the troops were?

A. I only know if as you do. I didn't see it, and know nothing of it.

By Senator Reyburn:

Q. But was the thing not officially reported?

A. Nothing official reported to me. I believe the officer in charge of those troops is now undergoing trial by court martial in Philadelphia.

Q. Do you know who it is?

A. I only know from hearsay.

Q. Do you know of any troops that were ordered to Pittsburgh returning without orders?

A. I heard so, yes, sir; that there were troops that did return.

Q. Do you know it officially?

A. No.

Q. Of your own knowledge?

A. I don't think any troops did return, as bodies, to Philadelphia. Scattered, straggling men did, but no body of troops returned to Philadelphia. I do not think that the straggling in the National Guard was equal to what it is sometimes.

By Senator Yutzy:

Q. Do you approve of General Brown's course, in disbanding his regiments at Pittsburgh?

A. If it be a fact that General Brown did give these troops directions to leave, it was a most outrageous breach of everything a good soldier ought to have done. I believe those troops there could have held that place until now.

By Mr. Lindsey:

Q. I understand you to say that it is your judgment that those troops might have held that place?

A. I think so.

Q. Do you know anything as to the reasons that induced General Brown to disband those two regiments?

A. Haven't the most distant idea. I don't even know that it is a fact, except as I have seen it alleged in the newspapers.

Q. Are you well acquainted with General Brown?

A. I have known him five or six years. He has a very fine record in the army. He used to be adjutant in our corps.

Q. Stood well, up to this time, in the National Guard?

A. Excellently well.

Q. Do you know that he was at that time laboring under any physical or mental disability?

A. No, I do not, except that he struck me as being most terribly fussy, and ... a whole lot of information that it was not worth while bothering with.

Q. Did he strike you at that time as laboring under any mental disability?

A. No; I would not at all have considered that.

By Senator Yutzy:

Q. Did he show unusual excitement—nervousness?

A. Brown is a terribly talkative fellow, and he talked in his usual strain; I should not have set him down as anywise wrong.

C. N. Farr, recalled:

By Mr. Lindsey:

Q. I wish you would state whether you were present when General Latta received a dispatch from General Brinton, on Saturday evening?

A. Yes, sir; I was.

Q. Of the 21st. State as nearly as you can what the import of that dispatch was?

A. I cannot remember it sufficiently to give any of the language, except the general impression left upon my mind that General Pearson had left me, and that he had had no communications, and didn't understand the situation, and stated the condition of his troops, and how particularly he stated that I can't remember, except that the impression left upon my mind was that the troops were in danger of demoralization. There was a certain amount of unreliability, and that was intensified from the fact that we knew or understood, at that time, that the Pittsburgh division had gone to pieces, and up to that time we had considered that there would be no difficulty in General Brinton's holding his position until morning; that he had sufficient force, and was well armed and ammunitioned; but the dispatch created the impression that his troops were somewhat infected with that feeling of sympathy, or disinclined to take vigorous operations, and I understood that to be the reason why no more vigorous measure were taken.

General James W. Latta, recalled:

By Mr. Lindsey:

Q. In relation to General Brown—whose duty would it be to investigate the conduct of General Brown there at that time?

A. General Pearson's duty first; and if he did not investigate it himself, he ought to have reported the fact officially here. There was no official report that reached my department of General Brown's having, on that night, asked any troops to withdraw.

Q. Was General Pearson relieved of his command for any time after the troubles on the 21st there?

A. He remained temporarily withdrawn from his command until we started off to Scranton. When the Governor came into Pittsburgh that night, he found nobody but Brown, and placed Brown in temporary command of the troops that had been gotten together in the city.

Q. How long did Brown keep that position?

A. I should think from the 24th or 25th of July until the 1st day of August.

Q. No report has ever reached you officially that he did dismiss his troops?

A. No, sir; I never heard anything of it directly, except what Captain Bingham told me that morning, and I did not know but that Captain Bingham might have been misinformed—he might not have been in direct communication with his general. I did not pay much attention.

Q. Did any report reach you from Colonel Gray or Colonel Howard?

A. I saw Colonel Gray's report in the newspaper. Colonel Howard I don't think ever said anything to me about it.

Q. Does Colonel Gray or Colonel Howard mention the fact in their official report?

A. They don't come to me, sir.

Q. To whom do they report officially?

A. To General Pearson.

Q. Those don't come to you at all?

A. No, sir.

At this point, the committee adjourned until to-morrow morning, at nine o'clock.

HARRISBURG, *March 12, 1878.*

The committee met, pursuant to adjournment, at ten o'clock, A.M., in Senate committee room No. 6. All members present except Mr. Larrabee.

Honorable A. J. Herr *sworn*:

By Mr. Lindsey:

Q. It is made the duty of this committee, under the resolution by which they were appointed, to examine into the conduct of the militia of the State. Will you please state what knowledge you have of misbehavior on the part of the officers?

A. My personal knowledge is not very extensive, but the information that I received from credible citizens of Harrisburg, is clear and pointed. Shall I give you what I saw first?

Q. Yes.

A. One day during the riots—what day I can't recollect—but one day during the riots, I happened to be on the pavement in front of the court-house in the city of Harrisburg, and I saw a large crowd, men and half grown boys, coming up from the depot, going towards the bridge that spans the Susquehanna river. The impression prevailed amongst the citizens that this crowd was going over the bridge to make an attack upon some soldiers that were said to be there. After a time—maybe half an hour or thereabouts—the greater part of that same crowd came back from the bridge. Then I saw in the center as it were of some few men and some half grown boys, soldiers, and these half grown boys, or some of them, were carrying the guns of the soldiers, and they were fraternizing with the young boys round about the soldiers. The soldiers, themselves, all seemed to be in good humor, seemed

to know each other, and passed along very nicely and quietly, and the point of the whole thing was, that these soldiers had in this way allowed these few half grown boys either to take the guns, or they had delivered the guns up, and so they passed on down the street, these soldiers, with these few boys surrounding them, and I lost sight of them. I was then afterwards told, that the soldiers had sent word over to some of the people in town that they wanted to come to Harrisburg, and that they wanted these people to come over and escort them into Harrisburg. And then I was told further, that these parties had provided accommodations for these soldiers—these last two things I do not know, only that the rumors were upon the street, and at that time prevailing. And the feeling in my own breast, as well as throughout the citizens, was one of humiliation, that these soldiers would either give up their arms to these half grown boys, or send word to them that they wanted them to come and take them over to Harrisburg, or that they allowed them to take their arms. That is what I saw, and all I saw.

Q. How many of the soldiers were there?

A. That I cannot tell, because you know how difficult it is in a moving crowd to tell just about how many. I should suppose, maybe, there were six or seven or eight, or thereabouts. I am not accurate in regard to that, but there was a goodly squad.

Q. Were there any officers among them?

A. That I can't tell. You know I couldn't see very well, in the first place.

Q. Did you notice whether they were uniformed or not?

A. Oh, yes.

Q. No officers then?

A. That I could not say. I did hear that there was either a lieutenant or captain, but I am not positive in regard to that, but those were the general facts that I witnessed.

Q. How large was the crowd of half grown boys around them?

A. I should suppose, maybe, there were ten or twelve, that is, of the immediate crowd, that also was looking on, were attached to the body of men that were bringing the soldiers over. You might say that, perhaps, there were ten or twelve; but the crowd outside of the immediate circle of young fellows that had the guns was larger, and for the most part I guess they were spectators.

Q. When they went over the bridge in going out, how large a crowd was there?

A. It was a pretty large crowd, perhaps it numbered—I really don't know, but should suppose that that crowd may have numbered two hundred or thereabouts, but they didn't all go across the bridge, because I was told that the bridge-keeper kept them back, and would not let them all go, but I suppose the van of the crowd got over before they closed the gates.

Q. What is the bridge-keepers name—give it in full if you can?

A. That I can't tell; but I will get it and hand it to you, or to one of the gentlemen. I might get it in the Senate chamber. I guess, maybe, Mr. Childs could tell it.

Q. Which bridge was it, the covered bridge?

A. Yes, sir; that was about all I saw then. Shortly after, or some time after that, a gentleman by the name of Major Mumma—Major David Mumma
——

Q. Do you know what those boys did with that squad?

A. I said that I heard that they took them down to some hotel and provided meals for them, and furnished them, I was also told, with means to get away. That I only heard.

Q. Do you know what hotel it was?

A. My recollection is it was some hotel—Boyer's hotel, on the railroad. I may be mistaken in regard to that. Some of the hotels down in that

neighborhood. I was going to say that Major David Mumma, of this city, told me, and I have no doubt it is true, but he can give it you first hand, that he had occasion to go out to his farm, and to reach that farm he had to pass a little town by the name of Progress, and there he found a number of soldiers, and, I understood him to say, the officers with their epaulets torn off, and their buttons cut off, and very much excited and alarmed; and that they told him they had come, I don't know where, over the mountains and through the valleys, and all that sort of thing, and there they were.

Q. These are the ones you alluded to?

A. Partly.

Q. Where were they found?

A. In a little tavern in the little town by the name of Progress, near here. I would rather you would get the full statement direct from the major in regard to that. I can repeat what he said, but you can get it first hand.

Q. This was the party that was captured by the boys?

A. No, no. I just told you what I saw. Now I am only referring to what Major Mumma and other citizens told me about a squad of soldiers, and they characterized them as officers, epaulets cut off and buttons cut off, in a little tavern in a little town called Progress, near this city, and he described their alarm, and what he did to get them safe to the arsenal.

By Mr. Means:

Q. Did it appear to you that the boys had taken these soldiers prisoners? Did they treat them as prisoners, escort them in unarmed?

A. You could hardly use the word prisoners, because the prisoners seemed to be so willing. They were rather captives.

Q. A prisoner generally makes a show to go willingly?

A. It would only be an opinion as to whether the boys—my own opinion is, that the boys did not capture them in the sense of these men resisting, and

finally conquered them, but rather think that I believe what I was told afterwards is true—that is, that the soldiers had, some way or other, sent word here, and those fellows had gone over there.

Q. They wanted the boys to capture them?

A. I rather think so from what I was told.

Q. Did the soldiers carry arms?

A. No; the boys were carrying the arms.

By Mr. Lindsey:

Q. This crowd, when they started out—you could tell something by the way in which they started, whether they were moving toward an objective point?

A. Oh, yes, sir.

Q. That they appeared to be moving towards——

A. Yes, sir; just for instance, as you would stand by, and see a large crowd passing, and you would wonder where they were going, and you would keep looking to see that they were all directing themselves to one point, and you would then say, well, they are going there. Then I think that there is a Captain McAllister, who is living in Rockville, a few miles over here on the Susquehanna, he can tell you some very amusing things, and I don't know but a little humiliating, too. I could not distinctly recollect all it was that he said, because it was rather a humorous description he gave of their fright, &c.

Q. Is he a member of the National Guard?

A. No.

By Mr. Engelbert:

Q. The old gentleman?

A. No; it is the old squire, Jim—that is it, Captain James McAllister.

Q. Rockville, did you say?

A. In that neighborhood.

By Senator Yutzy:

Q. Do you know anything about the movements of the troops about the arsenal or anywhere about this town?

A. No; I can't say. There was so much said. I think that Sheriff Jennings and Mayor Patterson could give you a good deal of information about the movement—the incipient movements of the troops here. Both of those gentlemen could give you a good deal of information.

Q. Was the mayor in the city during all the time of the riots?

A. I think the mayor was, but the sheriff was not. The sheriff happened to be away. I think, if my recollection serves me, he was either at Atlantic City or Philadelphia at the commencement of the matter. The mayor, though, I understand, was all the time here, but the sheriff came, I think, just as soon as he was telegraphed for—as soon as he could get here.

Q. Do you know what action the mayor or civil authorities took to suppress or disperse the mob or crowd that was about the depot?

A. I was given to understand, and I think it is the truth, that he and the sheriff, after the sheriff came here, in effect, said to a large crowd that were round about the Lochiel hotel, that all those citizens who were in favor of peace and order should follow; and so the mayor, I understand, and the sheriff—at least one, if not both—led off, and quite a number of the citizens followed them with the purpose of protecting any property that might be threatened at the depot, and suppress any riot that might be threatened. Then I was told further that the mayor and the sheriff—either both or one—addressed the crowd; but what was said exactly I don't know; but the purpose was to preserve the peace, and that I think was the beginning of what was called the law and order party here. Then, the law and order party was composed of citizens of the different wards that were organized into

companies, with their captains and their lieutenants, and met at certain points regularly, and were drilled, and patrolled the city from early evening until late at night, and in that way order was preserved here. If there had been any attempt to break the peace in a violent way, outside of simple murmurings and mutterings on the part of the crowd, these citizens were fully determined to suppress it, and they had the means to—I mean as far as arms are concerned.

Q. What was the spirit of that mob?

A. I did not see it.

Q. When they stood before the court-house?

A. You mean when it passed there? As a matter of course, there was a good deal of talk, and now and then you would hear a shot and a yell, and so on; and I remember this, that I looked into the faces of some of the men as they passed, and unless it was the effect of imagination altogether in my mind, I would say that these men had a settled, cold, determined look in their faces, and I apprehended trouble.

By Senator Yutzy:

Q. Were they railroad men, in their appearance?

A. No; I could not say that. My recollection is, that this man whose countenance I looked at particularly, as he was coming towards me, was a railroad man, but that was the only one I could see, that I believed to be a railroad man, although the probability is that there were more in it; but that fact I do not know.

By Mr. Dewees:

Q. Were there any strangers?

A. No; I don't think there were any strangers, although I can't say that I recognized any of them. If they were brought before me now, I could not say you were there or you were not there, because the fact of the matter is, I

felt a little indignation, and so expressed myself to some police officers, that were standing, who happened to be near me. A police officer made a remark that excited me, and I turned upon him and berated him for what I supposed was his neglect of duty, and in that way my attention, possibly, was a little distracted from what was just passing at the time before me. If I understand you, you would like to get the name of this gate-*keeper at the bridge.

Q. Can you get any other gentlemen that could relate the same fact that Major Mumma can?

A. I cannot just now.

Q. About that squad of officers?

A. The major can. There was some people with him. McAllister's statement refers to a different transaction from what Mumma's does. Mumma's will be confined, if I remember rightly, to what he saw at Progress.

John D. Patterson, being duly sworn, testified as follows:

By Mr. Lindsey:

Q. You were mayor of the city of Harrisburg, I believe, in July last?

A. Yes, sir.

Q. At what day did the first disturbance appear here?

A. On Saturday evening, July 23, I think; I do not just remember the correct date.

Q. The 21st?

A. The 21st; you are right.

Q. You may state now the character of it and where it first broke out?

A. Do you wish me just to—my attention was first called to the disturbance on Saturday night, probably at ten o'clock. I was at the office, and had sent out the police force on their regular duty, and a report came to the office that there was a large gathering at the Pennsylvania railroad depot. There was a prospect of some trouble there. The mob interfered with the shipping of some ammunition. I immediately sent a special officer to Independence island, where there was a pic-nic and dance going on—and we had anticipated considerable trouble there—to call in the chief of police, and on his way down he should bring in the police officers before he returned. The lieutenant of police I had sent him to the depot. He, in company with special officer Roat, arrested a party for threatening to interfere with the engineer of a train, and had started to bring him to the mayor's office, and were stoned up Chestnut street and up Third to the office. They succeeded in getting the man into the office, and a large crowd gathered there, and I went out front and requested them to disperse. Quite a number of them left; probably three or four hundred remained there. Did not seem to be malicious or disposed to do much damage. Then I sent this man that had been arrested to the door to state that he had been arrested for drunk and disorderly. The crowd then dispersed. On Sunday was the first intimation we had of the strike among the employés of the Pennsylvania railroad. I was told there was a very large crowd at the Asylum crossing, and I took a carriage and went up there during Sunday, but found no person there. On Sunday afternoon I was informed that there was a large meeting out on the commons. I went out, and there was a man named Torbett making a speech to the crowd there. After he left the top of the car, there was an insane man got on the top of the car and talked about organizing to go and take this arsenal. About this time there was a passenger train passed down through the yard to the depot, and the crowd dispersed in the direction of the depot. I walked to the depot and found they had stopped the train—interfering with it. A great gathering there, nearly all of our own citizens—good, bad, and indifferent were there. Passed down the depot to the coupling between the engine and the first car—the baggage car—and found a great many there pulling the coupling. Among them were a great many boys, ranging from fourteen to twenty years of age. I seized two or three of the boys, took

them off the platform, and ordered them away, and got up on the steps of the car and made some few remarks to the crowd, calling on the citizens, if they were ready to assist the police, to step forward and we would disperse this crowd. At that time the people did not seem disposed to take much part, as there was no violence done as yet. I motioned to the engineer to pull out—we then had succeeded in coupling up the train. He declined to pull out. Afterwards stated he was informed there were obstructions on the track below the city. I came away and the crowd dispersed during the evening. Probably two hours afterwards they sent the train out. On Monday the parties became threatening; great crowds gathering through the city, stopping trains. I then called on some of the citizens, told them the status, and whatever was to be done must be done for Monday night. We must get ready, for that night we would probably have violence. After consulting with many of the prominent citizens, I went to the office, sent out a police force and notified the better class of citizens that their services would likely be required on Monday night, at least they should hold themselves in readiness to respond and report at the mayor's office in case of two taps of the court-house bell, at any time, day or night.

Q. Was it verbal notice?

A. Yes; it was given verbally to the citizens by the police officers.

Q. In the form of a demand by you, or request?

A. It was a request. I had instructed the police force from the beginning to exercise great care and discretion so as not to precipitate or provoke an outbreak; that as long as the strikers or mob failed to do violence, that we should wait until the sentiment of the people would change. I would say that when the strike first came upon us, I presume that the great majority of the people were in sympathy with the strikers—looked upon it as a strike or dispute between the employés and officers of the road—and their sympathies were with the employés; but afterwards the sentiment changed when they found that violence and destruction was perpetrated at Pittsburgh. Then the sentiment changed, and they were ready to take part to put down the outbreak on Monday evening. I came from my house probably

at six o'clock—I had been to tea—and coming downtown I was informed that there was a squad of Philadelphia soldiers had gone to Market street in custody of the mob. I then passed down Market street, and found that they had gone up the railroad. I followed up the railroad to Broad street, and there I found probably three thousand people gathered—men, women, and children. The squad of soldiers were there, in addition to the squad that had been brought in from Rockville. I found out who the soldiers were, and I requested—ordered them to send the guns to the mayor's office. Then they had forty-nine breech-loaders.

Q. The leaders of the rioters?

A. The mob, yes sir. After talking to the rioters they were entirely satisfied to send the guns to the office, but said a portion of the crowd would object, and requested me to make a few remarks to them. I then mounted a shed that was there and talked to them a few moments, and they very cheerfully then sent the guns to the mayor's office. The guns were afterwards turned over to the State, by order of Governor Hartranft. During that night an order came to the office—a report came to the office that they were breaking into a gun store on South Second street. I took a portion of the police force, hurried to South Second street, and we found the mob in possession of a store belonging to a man by the name of Altmeyer. We found that he had opened the door. They had gone there in force and demanded the opening of the door, and he had opened the door, and struck the gas for them, and they were all in possession of guns, and pistols, and knives. I formed the police force on the front and went in to them and talked to them, and after some little parley they all returned their guns—took nothing out with them. We came back to the office, and there Mr. Bergner, editor of the *Telegraph*, reported to me that they were forming on Market street, preparatory to destroying his building. I then struck the signal for the citizens to turn out.

Q. What time was that?

A. That was probably eleven o'clock.

Q. Monday night?

A. Yes, sir. The moment we struck the court-house bell the citizens came to our assistance. The sheriff, in the meantime, had returned home. He had got home about seven o'clock in the evening. I reported to him what we had done, and if it met his approval he should carry it out, with our assistance. He approved of our course, and he took charge of the citizens. They formed them into what he called a law and order posse, into companies and into a regiment. We then, after, formed at the corner of Third and Market. The sheriff and one officer and myself went down street to the mob, and attempted to speak to them from the steps of Mr. Muench, but they would not listen to us at all. They had broken into a store or two on Market street in the meantime. We then came back and came down Market street with the police force and the citizens, and the mob dispersed.

Q. How large a police force do you have?

A. We had seventeen. We had fifteen officers in line and two at the office.

Q. How many citizens?

A. I presume we had over—I can scarcely give an estimate, as they were formed in the rear of the regular police force—probably three hundred. From three hundred to five hundred.

Q. Were the citizens armed?

A. Most of them were armed.

Q. With what?

A. Revolvers and clubs.

Q. How large was the crowd at that time?

A. I presume there were—it being night we could scarcely tell—the street was crowded with them. There may have been from six hundred to one thousand men in the street in front of us. When we went down Market street the mob dispersed, with the exception of probably two hundred, with whom

we had a little collision at the foot of Market street. Then they dispersed and we had no further trouble.

Q. Was there any firing?

A. No, sir; not a shot fired.

Q. The police were ahead?

A. Yes, sir.

Q. And they dispersed that mob?

A. The police would have been unable to disperse the mob without the assistance of the citizens.

Q. Were there any of the mob arrested?

A. Yes, sir.

Q. How many?

A. Probably eight or ten arrested during that night. Altogether, there were within the week, a few days following the riot, forty-five or forty-seven arrested.

Q. Were the police officers obliged to use their maces in order to disperse the mob that night at the foot of Market street?

A. No, sir.

Q. Those who were arrested, what class of men were they?

A. Most of them followed no occupation. Probably one third of them were employés of the Pennsylvania Railroad Company, and I would say that the employés of the Pennsylvania Railroad Company were only arrested for interfering with the business of the railroad—they were not arrested for breaking into the stores.

Q. Those that were arrested among the mob at the foot of Market street that night, were there any railroad men among them?

A. Yes; one of the leaders of the mob was a railroad man.

By Senator Reyburn:

Q. Did the leaders seem to be railroad men—that is, that you came in contact with?

A. The fact is, they did not seem to have any leaders, except on Monday night, a man by the name of Finfrock seemed to be the leader. They looked upon him as their leader, and they looked upon him as their leader on Monday night. That was the only time they seemed to have any designated leader.

Q. What was done with the parties arrested?

A. Some of them were tried and convicted and sentenced to from three to eight months, with fines ranging from \$20 to \$500, I think. Others were held over for several terms, then their cases were disposed of. Most of them had families, and the greatest trouble we had here, was with them that followed no occupation—thieves and professional men—crooked men of all classes.

By Senator Yutzy:

Q. Tramps?

A. A great many tramps. The only man that was wounded by a shot during the excitement, was a tramp. He was turning a switch, and one of the police officers approached him, and he started to run, and he ordered him to halt, and the fellow would not halt, and he shot him in the leg. He was about the only man that was shot, and he was a tramp. Quite a number of those that were arrested and convicted of breaking into the stores and taking the most active part were tramps. We know them as professional tramps.

Q. Did you ascertain what the purpose of the mob was on Monday night, in case you had not succeeded in dispersing them?

A. I think there was a very small portion of the mob that were disposed to interfere with the loading of ammunition to be sent to Pittsburgh. In order to draw the crowd away from the depot, it appears that the officers had arranged that this man should make a little forward movement, and they would arrest him. That drew the crowd up, and while they were drawn away, they loaded the ammunition and sent it off.

Q. To Pittsburgh?

A. Yes, sir.

Q. How long did you continue up this organization of citizens?

A. I think we continued the organization until the early part of August. It was not fully disbanded until the 10th of August.

Q. Did you have any trouble in raising it or getting the citizens to aid you?

A. No, sir; not at all. I presume we had from a thousand to twelve hundred men enrolled as members of the law and order posse.

Q. At the depot on Sunday night, when you called for the citizens to assist the police in protecting that train, did they respond?

A. No, sir.

Q. Was it from lack of—was it because they feared the result?

A. I think it was simply owing to the fact that they did not realize the situation at all. They were backward—I merely put the invitation to them, did not urge them at all, and I am satisfied, that if I had made a strong appeal to them, they would have responded.

Q. How large a police force have you?

A. Seventeen.

Q. In all?

A. Yes, sir.

Q. Were they kept on duty both day and night?

A. Yes; they were on duty for eight days, day and night.

Q. Usually, how many were kept on duty?

A. At night?

Q. Night?

A. Twelve.

Q. How many during the day?

A. Five.

Q. This squad of soldiers that was taken down Market street—did you find where the crowd left them?

A. The soldiers were with the mob at Broad street and Pennsylvania avenue. When I got there they were feeding them, and giving them their supper.

Q. Where did they get the food?

A. At the houses right there—one of the hotels.

Q. Private houses?

A. Yes; some of the private houses.

Q. Fed by their captors?

A. Yes, sir.

Q. What finally became of them?

A. They were put on the train here and sent to Philadelphia.

Q. How many were there?

A. in this squad that was brought from the bridge, I think there were about fifteen. Probably sixteen or eighteen.

Q. Any officers among them?

A. Yes, sir.

Q. What rank?

A. Lieutenant.

Q. And the other squad that was brought from Rockville, how many were there of them?

A. I can scarcely tell you. We received forty-nine guns altogether, that had been captured.

Q. Do you know whose command they belonged to or what regiment?

A. The knapsacks were mostly marked State Fencibles, and some few Weccacoe Legion. I would just say. Mr. Chairman, that on Sunday we had requested the editors to publish no extras, it would only inflame the public mind still further, and with one exception they had complied with the request. On Sunday morning I had directed all the gun-stores and hardware stores, that were dealing in arms and ammunition, to put away their arms and ammunition during the day or early in the evening, quietly, so it would not be noticed, and we would have had no trouble and the mob got no guns at all except that a party on Market street failed to comply with that request—or on south Second street—they had removed their guns and brought them back on Monday evening to their store. On Sunday evening we had issued a proclamation calling upon citizens to remain at their homes, not to gather in crowds or about the street corners, and these proclamations were put in the hands of the public on Sunday evening. It was late, probably six o'clock or after, when it was printed. The citizens very generally complied with the proclamation. There was no trouble. Our citizens here showed a very willing disposition to do anything that was required of them, and offered their services after they fully realized the situation.

Q. On Sunday, were the saloons open?

A. No, sir; we closed the saloons in the proclamation of Sunday evening.

Q. How long were they kept closed?

A. We kept them closed until Thursday, I think—Wednesday or Thursday following—when we allowed them to open during the day and close at six o'clock in the evening.

Q. You controlled that yourself, as mayor of the city?

A. Yes. The great trouble with us here was as to the question of the authority of the mayor. Whether the mayor under the charter of 1874—while it provides for the mayor to have the same powers as the sheriff in case of an outbreak or riot, it was a question with some of our attorneys here, whether it was an outbreak in the sense of the act until there was some violence committed, and the sheriff unfortunately was absent until Monday. When he returned Monday evening there was no further trouble. We, however, had made arrangements to take the responsibility notwithstanding the doubt about it.

Q. If I understand you, there was no act of violence really committed by the railroad employés?

A. No, sir.

Q. It was done by outsiders and strangers?

A. The parties pulling the coupling of the passenger train on Sunday evening, I do not think there was a railroad employé amongst them at all. Not so far as my knowledge goes.

By Senator Reyburn:

Q. They were half-grown boys?

A. Yes; the great trouble was, they were boys fourteen to twenty-one years of age—boot-blacks and all classes. On Sunday night, when they talked about taking the arsenal, this man that had made these remarks was formerly an engineer of the Pennsylvania railroad, but, through religious zeal, he lost his reason, and was an inmate of an asylum. Of course, the

remarks had very little weight. Did not carry the crowd with him at all. On Saturday night, Captain Maloney, after consulting with some of us, had taken his company to the arsenal with his guns. I called there on Sunday night about eleven o'clock, and he assured me he was fully able to hold the arsenal against the mob. After requesting him to telegraph us in case there was any appearance of an attack, I then came in, and requested Mr. Jenkins to unload Gobin's regiment below what was called the cut, as there was a great number of what was called the mob out between here and the track. We were afraid they would place obstructions on the track. Really they had placed obstructions on the track. I requested Gobin's regiment to be disembarked above the stock-yards, then they would have almost a direct route to the arsenal.

At this point the committee adjourned, until four o'clock this afternoon.

HARRISBURG, *March 12, 1878.*

Committee met, pursuant to adjournment, at four o'clock, P.M., in Senate committee room No. 6. Mr. Lindsey in the chair. All members present.

W. W. Jennings:

By Mr. Lindsey:

Q. You were sheriff of Dauphin county in July last?

A. Yes, sir.

Q. Still sheriff?

A. Yes, sir.

Q. Were you at home at the time of the first disturbance that broke out in Harrisburg.

A. I arrived home—I was at Atlantic City—I arrived home Monday evening, July 23, about half-past six or seven o'clock.

Q. Just state how you found the city as to order and quietness when you arrived home?

A. I found the city under a great deal of excitement. The trains, I was informed, had been stopped from running, and I immediately went to my counsel, Mr. Wise, for instructions in regard to my powers and duties, and met a number of the prominent citizens, and went to work at once under advice of my counsel to prepare a proclamation, and I was informed by the mayor and other citizens, that the citizens had been notified to assemble at two strokes of the court-house bell. I went around town and endeavored to get parties together, until about ten or eleven o'clock, as near as I can recollect, and spent sometime preparing a proclamation and advising with the prominent citizens, and one came to me at the Lochiel Hotel and said that the rioters were breaking into the stores on Market street. I called upon the good citizens for the preservation of law and order to go with me and suppress the riot. I suppose about one hundred or one hundred and fifty went with me, and went down Market street, and we dispersed the mob. We arrested a couple of the rioters there. Afterwards came back, and I sent squads out. I then organized the party into companies, and I sent squads out to arrest and take these men out of bed who had been prominent and active as rioters, who I was informed had been prominent and active as rioters, and we put those in jail. The next morning I had my proclamation out, and also orders organizing companies. The citizens responded promptly. We organized some ten or eleven companies, and we ran the town on military principles for about one week. We had an officer of the day detailed to patrol the town at night, and we had the fire department under command, and everything in readiness if there would be any further trouble.

Q. What was the nature of your proclamation, was it calling for citizens to join?

A. The substance of my proclamation was, commanding the rioters to disperse, warning them of the penalties of the law, and summoning all good

and law-abiding citizens to assist me in putting down the riot.

Q. As a posse?

A. Yes, sir.

Q. Did you have any difficulty in raising a posse of citizens?

A. No, sir; I cannot say that I had any great difficulty.

Q. They joined cheerfully.

A. They responded to my call. I arrived here at seven o'clock on Monday evening, and on Tuesday evening I paraded in the streets about nine or ten hundred men, organized as a regiment. My proclamation in the morning—that was issued on Tuesday morning. I had it printed during the night, and I had it posted all around town by daylight almost, and one of my proclamations called for them to assemble at the court-house, at two o'clock in the afternoon, and I supposed there were six or eight hundred men at two o'clock that afternoon there organized into companies.

Q. In the evening, at the Lochiel hotel, what was the nature of that call? Was it commanding the citizens to join you as a posse, or was it a request?

A. It was more of the nature of a request. Of course, the feeling in town was a matter I suppose would have to be handled very delicately, and I got up on the railing at the Lochiel hotel and said, "Gentlemen, I am informed the rioters are breaking into the stores down on Market street. For the preservation of law and order, how many of you will go with me to suppress it?" and there were a number of voices responded, "We will all go with you."

Q. And then you led off and they followed?

A. Yes, sir.

Q. When you reached the crowd, how large a crowd did you find assembled?

A. Well, I could not estimate the numbers. The line was drawn at the foot of Market street by the railroad. There was a line of men across the railroad there—standing there. I remember one man who was in front had a gun in his hand. I went up to him and took the gun from him, and he gave me some impudence and I took him by the neck and tossed him into the crowd.

Q. Was his gun loaded?

A. Yes; it was loaded.

Q. Who was that man?

A. A man by the name of Davis. He is now here in our jail.

Q. Was he a railroad man?

A. No, sir.

Q. What class of people were these rioters composed of?

A. Well, we afterwards arrested a number of railroaders, though we arrested a number who were not railroaders, and they who were not railroaders, I must say, were the worst characters. The railroaders did not want the trains to run, that was about the extent that they wanted or demanded. The other party, of course, that broke in stores, behaved in a riotous manner.

Q. What did your posse—or what did you find it necessary to do to disperse the crowd?

A. I think our appearance commanded respect. I could hardly put it in any other way. I think they thought we meant business when we went down there, and I gave them to understand that in as plain a way as I could.

Q. Did you disperse them?

A. Yes; we did.

Q. Was it necessary to use any violence in doing that, any more than to make the arrests you have told us?

A. Well, we arrested other parties there. In other words, when we came down there I told them what we proposed to do. We cowed them, and the parties who replied and gave us impudence, we arrested them at once.

Q. Did you have any soldiers, any of the militia at your disposal during any of them?

A. No, sir; we did not call for the militia at all.

Q. Did not find it necessary?

A. Did not find it necessary.

Q. About how large was the crowd at that time? How many would it number in your opinion?

A. It is a hard matter to give you an estimate. The crowd broke and ran across the bridge, and parties who lived on the other side of the canal have estimated them from two to five hundred people. I judge there were two or three hundred people there anyhow.

Q. Did they re-assemble at any time after being dispersed that night?

A. No, sir. Right after we had dispersed them, we organized at once into companies and patrolled the whole town, and of course it was known that we would arrest any assemblies or any crowds at any place. On Tuesday evening there were a number of parties who were looked upon with a good deal of suspicion at the depot—at the railroad; but they made no demonstration, and dispersed on our approach.

Q. What was done with the parties that you arrested?

A. Tried and convicted at court.

Q. Do you know how many were tried and convicted?

A. No, sir; I could not tell you. We had forty under indictment, I believe. Some of them are in jail now.

Q. Were they tried by the county courts or police courts?

A. They were arrested and had a hearing before the mayor, and were tried by the county courts—committed by the mayor, and tried by the county court.

Q. Were any of the militia brought in at any time?

A. No, sir.

Q. Coming under your own knowledge.

A. No, sir; not under my own knowledge.

By Mr. Engelbert:

Q. I would like to ask you a question. I have understood that there was considerable grumbling and growling about the expense for that thing—how much was that?

A. The county paid in the neighborhood of \$2,000. They paid me \$1,965. We heard of a case in North street where a man had some two or three hundred guns in his house, and on Tuesday we took the guns from him, and he brought in a small bill and the items were made up. There were fifty men that were detailed as specials. They were on duty, in connection with the mayor's police, as policemen, and we paid those two dollars a night—or two dollars a day—and it amounted to something upwards of \$1,200—between \$1,200 and \$1,300—and the balance of the expense was for providing rations for our men at night. We were organized as a regiment, and we had regiment and company quartermasters, and we were provided with rations at night. They had quarters and all that kind of thing. That caused the expense, which was paid by the county commissioners.

Q. Not charged to the State?

A. No, sir; charged to the county. As it was all done under my orders, the county was liable for the expense—that part of it. The mayor had charge of these fifty men, to a great extent, that acted with his policemen—the mayor's policemen acted with me from the very start.

By Mr. Engelbert:

Q. Both acted in conjunction harmoniously?

A. Yes; the mayor and his police were the first to tender their services.

Q. Not afraid of one superseding the other?

A. We had no trouble at all. We procured fifty revolvers from the State for the use of those fifty men we had. The other men armed themselves.

By Senator Yutzy:

Q. Armed with muskets, and rifles, and shot guns?

A. No, sir; I wanted them only to have clubs, but nearly every one of them had pistols.

By Mr. Lindsey:

Q. I understood you to say the mayor and police tendered their services to you?

A. As soon as I arrived in town, it was supposed by the people that the sheriff would take charge of it. The mayor came to me, and tendered the services of himself and the policemen, and the policemen and the mayor were in front in anything done where the danger was supposed to be.

By Senator Yutzy:

Q. Held the post of honor?

A. Yes, sir. We used the policemen as skirmishers—you understand that.

By Mr. Engelbert:

Q. Of course, that expense has been paid by the county, and considered finally settled?

A. Yes; the expense consisting of pay for these fifty men, and there were some twenty—to distinguish them from them the rioters, we had badges printed and labeled, and all that kind of thing—did not think it necessary to get uniforms—and that cost something. The members of the posse got no pay at all.

By Senator Yutzy:

Q. In your official duties, did you inquire into the causes and origin of the riots, to ascertain what were the causes and grievances complained of?

A. The principal one was they did not receive enough to pay for the labor.

Q. These railroad men?

A. Yes, sir.

Q. What did the others complain of?

A. The others talked about being in want, and sympathizing with them on general appearance. I heard "bread or blood" in quite a number of places.

Q. Were the mill men and furnace men and the employés of the manufactories in and about the cities engaged in this riot as a general thing?

A. No, sir; I would say no. Not the men that worked. The fact of the matter was, my idea was, that the parties who were most active and violent were those who did not work at any time.

By Mr. Reyburn:

Q. Never worked?

A. No, sir.

Q. Did they belong to the city, mostly?

A. Oh a good many of them did; yes, sir. It brought our worst characters to the surface, of course.

By Mr. Engelbert:

Q. When you found a man who was boisterous, and rather of an ugly disposition, you did not wait until the next day to arrest him?

A. We went for him at once.

Q. Right then and there?

A. Yes, sir.

Q. Did you not propose to do it in a quiet way?

A. We did not want to bark up a fight in any way. Of course, our whole course was to suppress disorder; but when a man was violent, we would not hesitate, and we did not run around with a chip on our shoulders, and ask some one to knock it off, or anything of that kind.

Q. The posse had pluck enough to arrest them at once?

A. We arrested them after we went to work—after we got the posse organized—wherever they could be found. The mayor's police made the largest number of arrests.

By Mr. Lindsey:

Q. Did you have any conversation with the railroad men to ascertain what their grievances were?

A. No, sir; not to any extent.

Q. Did you, with any of the parties that you arrested?

A. Oh, I talked with them after they were in jail; yes, sir.

Q. Did you find out from the railroad strikers, or from any reliable source, whether there was any pre-arranged plan for a strike or not among the railroad men?

A. From what they told me, they would give me that impression—that there was a pre-arranged plan for a strike. They complained. My understanding of what they told me was that they had been got into this thing by the engineers, and then the engineers had stood back and let them stand the trouble. Their words were, "Stand the racket."

Q. What day did they first strike here in Harrisburg?

A. That I cannot tell. I was not here.

Q. Was there any organization here known as the Trainmen's Union?

A. I understand that they have an organization here—Locomotive Engineers' and Trainmen's Union.

Q. Did you learn it from any of the men themselves?

A. Yes, sir.

Q. Did you learn the objects of the Trainmen's Union?

A. Well, all objects—the idea that they gave me was, it was for beneficial and mutual protection. The parties that were arrested—the larger part of them that were arrested by the mayor's police, they blamed it more on the locomotive engineers than any other society. That they had got them to strike, and showed their hand, and got them into trouble, and they had stood back and done nothing. We often find, when persons are in trouble and they are in jail, they always have some other parties to blame it on.

Q. Did they say to you what they proposed to do?

A. No, sir; other than they wanted their wages increased. They did not speak of the organization as one of the objects being for the purpose of getting up strikes. They said it was more as a beneficial and mutual protection society; but I inferred from what they said that they regarded the society would act together in a strike.

By Mr. Larrabee:

Q. Was it a complaint they made of the reduction of the wages—that the wages had been reduced?

A. Yes, sir.

Q. Did you learn when that reduction had taken place?

A. I did not.

Q. Whether it was immediately preceding this strike or not?

A. That I do not know, sir.

Q. Did not learn from them how long their complaint had been standing—how long it had been running—whether recent?

A. No, sir; they did not go into the particulars at all in their complaint. It was on general principles about the workingmen being oppressed, and the road oppressing them.

Q. The rich oppressing the poor?

A. Yes, sir.

Q. Did these men that you talked with claim the right to interfere with other men who were willing to work; did you have any talk with them on that subject?

A. Well, I cannot say that I could answer that direct. They said, in substance, that those men who did not assist them, that were working men, that did not go into the strike with them, were blacklegs, and all that kind of thing; appeared to have a good deal of feeling against those that wanted to work, and did not go in with them to the strike.

Q. Complaining against those who would not join them?

A. Yes, sir.

Thomas Reckord, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I resided, at that time, at the bridge—the toll bridge.

Q. In July last.

A. Yes, sir.

Q. What was your business then?

A. Toll-gate keeper.

Q. At what bridge?

A. Harrisburg bridge—toll bridge.

Q. The bridge across the Susquehanna?

A. Yes, sir.

Q. On Monday, the 23d day of July, state whether there was any crowd coming there to cross the bridge from the city?

A. Yes; I was sitting in the office, reading a paper. All at once I heard a great noise, and I looked out the window of the house, and I saw a large crowd coming up, I suppose two or three hundred.

Q. What time of the day was it?

A. I can hardly tell you what time of the day it was. I think it was towards noon, or some place about that time.

Q. Go on and tell us all the facts about?

A. Well. I jumped off my seat and ran out of the door. I saw they were making for the bridge. I run and shut the gate. There was a great part of them got over before I got that accomplished. I shut the gates and kept a

great many this side. Those that got in passed over the bridge while I was there. There was another crowd came and insisted upon going over, and I wouldn't unlock the gates. They told me they would break the gates. Very well, said I, you can do so. There was one man—a young man—he was half grown—a great part of them were young men—he went and took hold of the picket-gate to break it open. I caught him by the collar of the neck and threw him back. I said I would throw him in the river if he didn't stop. He wanted to know what I had to do about it. I told him I would show him. I kept him at bay there for a long time. Finally there was a man came there—I cannot recollect his name now—and told me the mayor had sent him up there to tell me to open the gate. I used the remark that the mayor had nothing to do with that—I wouldn't open the gate—this was individual property, and it had nothing to do with the matter at all. I wouldn't open the gates. Some of them jumped over—some of them jumped over the gates, and finally this man insisted that the mayor had sent him. I wouldn't believe him at first. Finally he said it was so, and there was two or three men stood at the gate there and begged me to leave them over. Says I, if I open the gates they will crowd in. They said they wanted to go over, and would help me to shut the gates. These men were standing there waiting to get over, and they promised to help. I unlocked the gate, and after I unlocked it these men came in and tried to help me shut it, but the crowd pressed so hard, by the time I got the latch in they sprung the gate and threw it off its hinges—it is just set on hinges—and the gate fell over, then they all rushed in. I had no more command over them at all. They all rushed right through.

Q. How large a crowd went through?

A. I suppose there was a couple of hundred went over. I may say so by the looks of them.

Q. Did they say what they were going for?

A. Yes; some of them.

Q. What did they give as their object?

A. Their object was to go over there for some soldiers—over there to bring them over in safety. These soldiers over at Fairview—they wanted to come over, and they sent a man over to get some one to protect them.

Q. Did you see the man the soldiers sent over?

A. No; I didn't. He might have paid his toll, and went over.

Q. Do you know of your own knowledge that they sent a man over?

A. No, sir: I don't.

Q. You only get that from the crowd?

A. Hearsay.

Q. Did they come back?

A. Yes, sir.

Q. State the facts?

A. When they came back they had soldiers in the center, they flanked all around, and came in a kind of square across the bridge.

Q. How many soldiers were there?

A. There might have been twenty or thirty. I really don't recollect. I knew at the time. It has passed my memory. Something near that. They were in the center of these—fetched them over with music.

Q. What kind of music did they have?

A. Drum and fife, I think it was.

Q. How large a crowd was surrounding the soldiers?

A. There was not so many surrounding them as they came over. There was a kind of square formed, and the balance was running loose around.

Q. What class of men?

A. Most of them were half grown boys and negroes.

Q. Who carried the arms?

A. Some few boys carried some of the soldier's arms, and the rest the soldiers carried themselves.

Q. Did you try to prevent them going through the gates when they came back?

A. Oh! no.

Q. You allowed them to pass?

A. Yes, sir.

By Mr. Larrabee:

Q. No one seemed to be commanding this crowd or to lead the mob—no one seemed to be leading the mob or controlling it?

A. No one, individually. There was some men there that used very hard expressions toward me, sitting on the bench, and they threatened to mash my head, and everything else.

Q. Was there any one giving commands to the mob?

A. No; I didn't see any individual giving commands. They all seemed to take part in it—no one individual that I took notice.

Q. No one directed their movements?

A. No; they came up in a crowd.

Q. Did there seem to be any officers among the soldiers?

A. That is more than I can answer.

Q. You didn't see any one that from their uniform or any other emblem seemed to be officers?

A. Not that I can recollect. I don't know as there was any officers among them. I cannot recollect whether there was or not.

Q. The soldiers and the crowd were on good terms?

A. They came very quietly through, there was nothing——

Q. Did the soldiers act as if they were prisoners of war?

A. They walked very quietly surrounded by these men—went up Market street.

Q. There didn't seem to be any coercion there?

A. No, sir.

By Mr. Lindsey:

Q. How long was the crowd gone before they returned with the soldiers?

A. It might have been a couple of hours—fully that, I guess. There was a crowd continued there until they came back. I had to keep the gates locked all the time—the crowd was still remaining there waiting for them to come back.

Attorney General Lear, *sworn*:

By Mr. Lindsey:

Q. You may state what facts came under your own observation in relation to the railroad riots of last July?

A. The first knowledge I had of them was on the morning of Friday, which was the 20th, I guess. I received two dispatches, brought by the same boy at the same time, one from Governor Latta and the other from Adjutant General Latta in relation to these matters. The Governor told me that he had been applied to by the sheriff of Allegheny county to assist in suppressing

the riot, but he thought he had no authority, and had so answered the application. I telegraphed to him I thought he was right, there was no vacancy in the office of Governor; and the Adjutant General's dispatch was from West Philadelphia, that he was then on his way in pursuance of the clause stating that he had general authority from the Governor before he went away, &c.—I cannot tell the language of the dispatch at all. I telegraphed to him that I thought he ought to go—sent two dispatches, one to Philadelphia and Harrisburg. I believed from his dispatch that he had gone to Harrisburg. Then I was at home in Doylestown, at that time. On Monday or Sunday I got knowledge of the thing being serious. I concluded I ought to be nearer to it so that if there was anything for me to do I could do it; and I started to Philadelphia, and I got there and found a messenger at the hotel waiting to take me to West Philadelphia—with a carriage—to see Colonel Scott, who had a dispatch from the Governor, asking him to send me to meet him at the nearest point I could reach him in Pennsylvania. Colonel Scott suggested that the best place would probably be at Beaver, where Quay was. That was on Monday, the 23d, at twelve o'clock, and at half past six, the first train that went, I started to go to Beaver. I went through Harrisburg on the evening the sheriff has testified to, the 23d, and on out to Pittsburgh. All that occurred there was that I met the Governor. He came to Pittsburgh instead of stopping at Beaver. I got a dispatch that he was going on through, and I saw several committees of citizens at Pittsburgh during the day, and asked for the Governor to remain. A committee of printers and newspaper men, and a committee of bankers, who said they were in the hands then of people that might go any time into their banks and compel them to open their vaults, and a committee, of business men, men who had large numbers of hands employed, wanted me to impress upon the Governor the importance of recommending a compromise, which I didn't feel much inclined to recommend. The Governor came there that evening at seven o'clock, without having determined whether he would remain or not. I went to the train to go with him east, but he concluded—there was a committee of people there to wait upon him—and he did remain. That was seven o'clock, Tuesday evening. He remained until three o'clock the next morning. We didn't go to bed. We

remained at the Monongahela house and prepared, and Mr. Quay and the Governor supervised, the proclamation that was issued from the room there, and met committees of citizens, &c., and remained up until three o'clock or half past two, and we started down to Allegheny depot. We had to go from there at that time. We found several acres of people around there in the way. They didn't disturb us. Stopped us going across the bridge to see what we were and who we were, but went on notwithstanding. We came east, and at Altoona, when we took breakfast, there were, I suppose, a thousand people around there. A crowd of that sort of people that generally constitute a riot and a mob.

Q. Demonstration at Altoona?

A. No. We had to crowd our way through to get our breakfast—the Governor, Colonel Quay, and myself. Doctor Reed was along. We got in and got our breakfast, but we had some difficulty to get there, because there was a crowd there, but they didn't disturb us. The Governor, when they came in, somebody said something to him, and he made some remarks on the platform, and they gave the Governor three cheers—after breakfast. Then we returned to Philadelphia, and made arrangements which took the Governor back. We got to Philadelphia on Wednesday, and on Thursday he returned west, and went to Pittsburgh, when he had got his military properly organized—and Mr. Quay and myself remained there, and some others of the Governor's staff, and communicated with parties in connection with the business, and to see about organizing some others—I was not concerned in that—organizing an additional military organization for the purpose of going out to the scene of the difficulty; but we remained there until Saturday morning. I received a dispatch from the Governor asking me to go and join him at Pittsburgh. I don't think he stated what he wanted me for. Yes, he did. He stated he wanted to see about what to do with certain prisoners that had been captured at Johnstown, by a regiment of regulars, under Colonel Hamilton; and I went out that afternoon, and I reached Pittsburgh about twelve o'clock at night. We went over—the first train, probably, that went in over the route that had been torn up in different places—where the old depot was, and had it torn out, that Colonel

Hamilton's train, or the train his soldiers were on, was thrown off the track by the turning of the switch at Johnstown, about seven o'clock in the evening, and that he was very much injured himself—I think he had a rib or two broken—he could hardly sit down; but his men got out immediately and formed, and they picked up everybody that came about there, from that on until Monday—found some of them after daylight—were picked up and put into a car and taken to Pittsburgh, and put in the arsenal, and they had fifty-five of them there.

Q. As prisoners?

A. Prisoners, and the object of my being sent for was to see what to do with them. On Sunday I went out there, and was met by Daniel J. Worrall and the chief of police of Johnstown. He was brought along to see whether he could identify any of the dangerous or turbulent class of people of Johnstown, and I went into examination—all I could do was with the aid of eight of these policemen and Mr. Worrall, and I examined each one on oath—sixty of them, at least. The other fifteen of them were retained, because they were a little more suspicious characters, and it turned out, according to any kind of evidence that we could get—and I guess it was the fact—that they had been idlers that heard of this train being wrecked. Some of them were very innocent people, who had come there to see if they could render assistance. Some had come as idle spectators, and there was not the slightest evidence from any source that any of them had been guilty of having turned the switch, or were participants in the stoning of the train. The train had been stoned just before they got there, but none of those people were arrested until some little time afterwards, and as I concluded from the evidence I heard there, it seems most probable that the operators of the act wouldn't hardly be about looking on, just after a thing of that kind occurred, and they got out of the way. And these people, while they might have sympathized, there was nothing at all to show that they had any guilty connection with the turning of the switch. On Monday, I waited again to see about some others—we had got reports from Johnstown, saying that they were satisfied—parties who told to me that they were satisfied they were not concerned in it. Finally, from time to time they were all released, having no evidence

against them whatever, and that was the principal part of my business there. It kept me there several days—maybe a week—on the train. That is all I know about that. Then there was a difficulty occurred at Scranton and I went up there, and the Governor telegraphed to me while I was there, and I went to see about what to do with some—there was an alderman up there had issued a warrant, in pursuance of the report of the coroner's inquest, I think, upon the bodies of some men who had been shot in the riot, and they had pronounced all the military, I believe, participants in what they called a murder, and I started in obedience to the dispatch the same day. I arrived there, but they had done just what I was going to recommend; they had delivered themselves up to the proper authorities, *habeas corpus* had been issued, and the judges of the court—I think Judge Harding had them to apply. It turned out that they were either indicted, or no bills found true against them, or something of that kind. There was other difficulties of that kind occurred while we were up there, and occasionally these same police alderman—Mahon, I think his name was, in the Sixth ward of Scranton—would issue out a warrant once in awhile against certain of the military, and they would simply go and give bail, and that was the end of it. That was all the connection I had with the riots—the actual knowledge I have about it. Something about these prisoners. We found some little difficulty in keeping them up there from getting into the hands—it was evident, as the people of Scranton said, that if the warrants of this alderman were executed, and the soldiers were taken over into that Sixth ward, that is made up—if any of you know the situation of Scranton, there is a ward that is made up of miner's houses across the stream—the Lackawanna, I think likely—and they threatened if any soldier was taken over there before this alderman he would never get back alive, and they were devising ways and means to prevent any difficulty of that kind. I remained there a few days, and came back to Philadelphia, and at St. George's hotel I got an honorable discharge from military service. That is all the duties I had, except attachments, &c., which were not connected with the riot.

By Senator Yutzy:

Q. I wish to ask you a question: You were consulted by Governor before he left the State, as regards his absence for any length of time, whether it was policy for him to be absent and the policy pursued in his absence?

A. He spoke to me about it. There seemed to be, as I said to him, and as appeared to him, as good a prospect of peace in this State as ever there was, and he asked me what I thought about the propriety of his leaving upon a trip of that kind, and I told him I could not see any difficulty about it. That no doubt the State would go on harmoniously and all right, that it would not be a vacating of the office of the Governor. He didn't tell me anything about that I give more attention than I otherwise would during his absence, rendering any aid I could to the other authorities, to see to things. General Latta telegraphed to me that morning I speak of, the 20th, that he had a general authority to act in the Governor's absence, when the military were required, and simply telegraphed that there was trouble on the Pennsylvania railroad. He had acted, however, before that, because he had called out the troops. I recollect pretty nearly the second dispatch sent to me to Harrisburg. They were both sent within half an hour of each other. That if the civil authorities were insufficient to suppress disturbance, to maintain the peace and call out the troops, and to communicate to the Governor if he could, and if not, to suppress the riot promptly, and we would look for the authority afterwards. That is about what he had told him, and he acted upon the general authorities which the Governor had given him.

By Senator Reyburn:

Q. In your conversation with the Governor, was there anything about the probability of a strike on the Pennsylvania railroad?

A. No, sir; there was no apprehension of anything of that kind at the time at all, although it seemed to come pretty suddenly after that. There was nothing at all to indicate it—the Governor said nothing at all about that—he simply talked to me about his going out of the State to remain a length of time he would be gone. I forget now what it was, whether it would give any authority to have his office considered vacant or any ability or disability to act. I told him I thought not, that for the purpose of managing the State

government, I thought it would be perfectly proper for him to go, that he was entitled to have that sort of recreation. Of course, none of us apprehended anything, except what might arise at any time, and he had taken the precaution, it seems, although I do not know that, to say to General Latta, that he should act for the purpose of sustaining the civil authority as they had done heretofore, or something of that kind, as I learned afterwards, but the Governor did not tell me that, so far as I remember now. I believe that was what the Governor did say.

Sheriff Jennings, recalled:

By Senator Yutzy:

Q. As you are a military man, I want to ask you a military question. Do you know anything about the movements of the military about Harrisburg and vicinity and county?

A. When I came here, I believe General Sigfried was in command, and all that I saw of the military I thought they would be first rate, and I felt confident they would be useful to me in case I should fail with the posse. He kept them in camp; there was no straggling, no drunkenness or anything of that kind, and the men acted and conducted themselves like soldiers.

Q. Good discipline?

A. Good discipline. I would say that the troops were under good command.

David Mumma, *affirmed*:

By Mr. Lindsey:

Q. Do you reside in the city of Harrisburg?

A. Yes, sir.

Q. What is your profession?

A. I am a practicing attorney.

Q. State, Mr. Mumma, what knowledge you had of the conduct of the militia during the riots of last July?

A. We had no militia—no organized militia in the city until during the riots, until after the dispersal of the rioters by the sheriff's posse. A few men, two or three in number, sometimes came here in a train, evidently in order to meet their companies, and came for that purpose without organization, not more than five at one time, and the men who seemed to get up all the difficulties about the cars, immediately disarmed them and took their arms from them, and then there was no further violence exhibited to them. There were five, I think, is the highest number I saw. They had no means of resistance, as there was no organization, that was, of the military we had in the city before that.

Q. Those were men that had gathered in obedience to the call of their officers?

A. Gathered to meet their companies, came from the upper end of the county, some few from Lebanon county. They came in the trains, and they were only in squads of two or three, sometimes one alone.

Q. Were they overpowered by the mob?

A. They did not resist any, so far as I saw. Their arms were demanded, and they gave them up.

Q. How many did you see surrender their arms?

A. There may have been twenty or twenty-five, altogether.

Q. At different times?

A. At different times.

Q. Several in small squads?

A. Yes; no more than five. I did not see more than five at one time. They came from the upper end of this county. They were coming here to report.

Q. Did they surrender, because they were in sympathy, or would it have been folly for them to have resisted?

A. It would have been folly to resist, if there was any determination on the part of the men who were in the crowd to enforce the demand. I may say here, that at this time there was not much exhibition of violence. The trains were running, that is the commencement of it. They stopped none but freight trains and local passenger trains; the other trains, more especially the mail trains, were permitted to run through, and there was no violence by anybody. Everybody seemed to stand and look on, and when a train arrived, the engine and tender would immediately be boarded by about four fifths boys, and some two or three men, and the coupling would be drawn, and they would take the engine to the round-house. Shifter was allowed to run, and they would move the cars away. I may say, just here, that on inquiry, many men who were connected with the railroad shops here, men that I knew, that always said they had orders that there was a general strike pending, and they were to stop any local or freight trains, and that other trains with the mails, were to go on, and that they had no disposition to give any trouble, and frequently I was appealed to, that we should use our influence to keep the military away; that if the troops were brought on there would be violence.

Q. What class of men undertook to influence you in that direction?

A. They were men who were employés of the railroad.

Q. Railroad?

A. Railroad and other places. Our other shops were not in the matter that I know of.

Q. What class of men demanded the guns from the gathering soldiers?

A. I know but one, and he was really the principal man who took charge of the guns. He is now in the penitentiary—was convicted at our court—a man

by the name of Riggle, a loafer, who does not do anything and never did a day's work when he had it. I did not see any of our men connected with the railroad demand to take any guns from the soldiers at all.

Q. It was done by the lawless class?

A. Lawless class of men, mostly strangers. I did not know them, though I know a great many of our citizens, and there was a great many strangers here that we did not know at all. In the meantime, General Sigfried had got here, and some head was put to the military part of it, and I remember of speaking to several officers not to have the men brought in the town, for fear they might be overpowered. They were all taken to the arsenal. Everybody was anxious to have the arsenal taken care of. We were constantly assured by the better class of men that the arsenal would not be interfered with unless an attempt was made to put the military in. Hence, every citizen who had any influence tried to prevail on the military officers to get the men into the arsenal without bringing them into the city, and it was so arranged. Men coming in the Lebanon Valley train got off outside of the city and marched across. They came from above, got off at Rockville, and marched across, until they had sufficient men in the arsenal to defend it, and that, I have no doubt, was a very judicious method at that time, until there was a force here to stand up against the mob, if there was any trouble.

Q. Did you have any conversation with these soldiers, after they had surrendered their arms?

A. I believe I did speak to one or two of the men. There was some men, I just said before you came, Mr. Engelbert, that they came from your town to meet their companies, and they found themselves immediately surrounded by a mob, and they had no remedy, they had to give up their arms.

Q. What reasons did they give for surrendering?

A. They said they did not see how they could make any defense or hold their arms, because they were alone, and had not found their officers, and did not know what to do.

Q. Did you find any officers?

A. Military officers?

Q. Military officers in this section of the country—on the day——

A. I cannot give dates very well—but on the day when these men were brought over from across the river, I remember that, because when I came back I was informed of the fact that they had brought some men across the river. I was driving out to some property I have out here, and at the cemetery I met a couple of boys who said there was a whole lot of Light Horses, they called them, in the town of Progress. I left the boys and thought I had better go and see. I drove out and found a portion of the company of about thirty men, cavalry, without horses, and think they had infantry—they had muskets, but I think they had their cavalry equipments. These I saw at a tavern. Shall I say how they said they came there?

Q. Yes?

A. I spoke to them, and they told me they were taken up to Altoona. They were, as they called it, run into and cut off the road, and with a large number of infantry, and they were immediately surrounded there by the mob of about two thousand persons, hooted, yelled, and used violent expressions, and occasionally, I think, throwing stones in a small way. That they were then taken out of the cars, and, while standing there, the infantry surrendered their arms. Stacked their arms, as they called it. They were kept standing quite a long while in the hot sun, until very much exhausted, and finally they were again re-loaded in a train, brought to Rockville, six miles up the river here, and then they were advised or requested to get off the train, that it was not safe for them to come into Harrisburg on account of the mob, and that they started for a walk through the country, got some refreshments from the farmers, and crossed the country, and struck this little town of Progress, two miles or two and a half miles east. They said their purpose was to strike the railroad below Harrisburg, and inquired of me whether the steel works was a good place to strike. I told them it was not desirable to strike it, nor was it a very good place, for, while the men were

still doing their duty, and there was no riot, they might be in sympathy with these men, and I would not advise them to come there. I remonstrated most seriously with them not to pursue that course; but to go back to the arsenal with me, where there was about six hundred militia and infantry, and there really was no danger of any body getting hurt in any way, and that they would be protected there, and it would be very unpleasant and unfortunate if they were to go back to Philadelphia, where I believe they were from. I was asked a question whether the infantry would fight. I told them I didn't know that; but from the way things were going, and from what they told me of the surrender of half a brigade at Altoona, I would not swear that they would; but I then went to the arsenal. The arsenal is about a mile from this little town. I drove back and found Colonel Gobin, of Lebanon, was in command. Sigfried was in command, and Gobin was in command on the ground, and I told him what I had done, and asked him to get into the wagon, while I rode out to get the men to come in. We went out and had another interview with the men, and they partially promised to come in; but I told them I would send them a lot of newspapers, and so forth—they had seen no papers, and didn't know what was going on, and to what extent. I came in to take my supper, and then bought a whole lot of newspapers, and started out to take the lower route instead of the upper one, and missed that—they had just started in. I then came into the arsenal, and left them to read my newspapers, and congratulated them.

Q. How many officers were among them?

A. I think the officers were pretty much all there. I would say they were pretty much all there—the officers of the company.

Q. Were the captains and lieutenants there?

A. Yes, sir.

Q. Were they in uniform?

A. O, yes; they were all in uniform.

Q. Their uniforms—the buttons and straps were not cut off?

A. O, no; they were all in good trim. I was somewhat amused in finding them washing their feet in a trough, when I came out there, and, under the circumstances, I thought it was a little funny. It was not so much so after all. They told me the trouble they were in. I want to say just here, there was a good deal of fault found with men who didn't go through this town in a military way. I am not one of the persons who find fault with the military in that way, and a company of soldiers without any orders is a mob—is not very good shape—and I think it is better that they didn't happen to come in just at that time. They said, however, they had no commanding officer. Their general commanding was back; the first division of Philadelphia; and they had nobody to give them orders, and they didn't know what to do, or what right they would have to come at all—didn't want to come without some authority, and gave that as a reason why they didn't.

Q. Did they have arms?

A. They had their cavalry arms.

Q. Sabers and carbines?

A. Sabers and carbines—pistols.

Q. Did they have ammunition?

A. That I did not inquire into. They had their arms in the bar-room there. I did not inquire, but I presume they had ammunition.

Q. Did they tell you they had become separated from their command?

A. As I understood it, they didn't belong to the command that they were with when they got to Altoona. General Brinton was at Harrisburg, and they belonged to his division.

Q. They were going on their way to join him?

A. I suppose they were going on to Harrisburg; but at the time when all this was going on, there was no exhibition of violence in this city, simply because there was nobody interrupting or interfering with the men who

were stopping trains on Saturday evening, I think. What I mean by that is, there was no violence beyond that of stopping trains—I think on Saturday evening—I think that was when the first train was stopped in the depot. Rodgers had been interrupted, and they were very tired, and there was a great number of laborers in the cars—immense number of people were in the depot, and many of them were ladies and citizens of the State, and quite an effort was made by a number of us citizens to get that train on. When these boys, as we would call them—most of them were boys—they jumped on the tender, and when the train undertook to move out, they drew the pin. I may say, on that occasion, that a number of men connected with the railroad shops here made an appeal to me and to other citizens to get this train on, that it was not the orders that the passenger trains were to be stopped. These were outside men, boys interfering with them. Had nothing to do with it. I remember that a gentleman in Harrisburg was named who makes speeches for them, and I was asked to go and see him. Mr. McCrea finally said it was not worth while—ten or twelve attempts were made—an attempt to pull the train out, and some few men were pulled off the bumpers, and I pulled a boy off and they said I would start a riot, and they finally stopped that train, and passengers got off that night sometime.

Q. I want to ask you a question or two about those soldiers you found out there at this little village. I understand that they said that their reasons for going back were, that they were not with their commander, General Brinton, and there were no division and no brigade, at Altoona, of infantry?

A. They did not give that as their reason for coming back—but, as a reason why they did not want to engage in any active service here, because they had nobody to take the command.

Q. What reasons did they give for turning back?

A. They said the infantry surrendered their arms.

Q. At Altoona?

A. Yes, sir.

Q. What infantry did they refer to. It was not any of their command that surrendered?

A. No; as I understood—who commands the center district?

Q. General Beaver's command?

A. It was one of these middle divisions of the militia. It might not have been General Beaver's, but it was up there somewhere. They were simply, as I understood it, attached to the military train to carry them west, as I understood it, and then they were again ordered into a car and run back without any desire of their own, as I understand that.

Q. How far were they run back?

A. To Rockville, about six miles to Harrisburg.

Q. And then they left there?

A. They were asked to go out. If they came to Harrisburg they would be assaulted. There was another party made a much bigger circuit and came to Linglestown. There was a large number. I didn't see them myself.

By Senator Yutzy:

Q. Did you know anything about this party of soldiers that were captured across the river here?

A. At that time I was out here in the country. I only saw when I came back, that there was a number of people going out Market street, and then I heard that they had captured some soldiers, and marched them down Market street. I didn't learn anything about them.

Adjourned to meet at the call of the chairman.

AFTERNOON SESSION.

PHILADELPHIA, *Friday, March 22, 1878.*

Pursuant to adjournment, the committee met, at two o'clock, P.M., this day, in the St. Cloud hotel, this city, and continued taking of testimony.

The first witness examined was:

Robert A. Ammon, *sworn*:

By Mr. Lindsey:

Q. State where you reside?

A. In Pittsburgh, when I am at home.

Q. Where are you doing business now?

A. In the city of New York.

Q. How long have you been there?

A. Since the 31st day of December.

Q. When did you leave Pittsburgh?

A. I left Pittsburgh on the 30th day of December, on the eight o'clock train.

Q. You mean December last?

A. Yes.

Q. What business were you engaged in prior to the 19th day of July, 1877?

A. I was railroading.

Q. On what road?

A. On the Pittsburgh, Fort Wayne and Chicago.

Q. What position did you occupy on that road?

A. I was a freight brakeman on through freight—fast freight.

Q. How long had you been acting as a freight brakeman?

A. Nearly eleven months.

Q. Where were you on the 19th day of July, when the first disturbance occurred at Pittsburgh among the railroad employés?

A. I was on the train part of the 19th, and in the city of Pittsburgh part of the day, and in the city of Allegheny part of the day.

Q. Thursday the 19th?

A. Yes.

Q. State what you saw of the strike—when it commenced there, and what information you had about it?

A. The first knowledge I had of the strike—I went up to the oil country on the 16th or 17th—I have forgotten the date—a few days prior to strike—to take a position with a friend of mine there, who I had worked for formerly. Before I left Pittsburgh, I had heard of the strike at Martinsburg, in West Virginia, but didn't pay much attention to it, as I was acquainted with the men down there, and didn't think it amounted to a row of pins. I went on up to the oil country. It was on the 18th day of July. I believe I received a telegram from a particular friend of mine that trouble was expected in Pittsburgh, and that he would like me to come down.

Q. Where were you when you received that telegram?

A. At Parker City, Armstrong county.

Q. Who sent you the telegram?

A. A railroad employé.

Q. Give us his name?

A. No; I would rather not.

Q. Very well, go on with the history?

A. He wanted me to answer quick, but I didn't answer the telegram, so I got another telegram to come down that night, sure, and I did so. I came down.

Q. To Pittsburgh?

A. Yes.

Q. What time did you arrive there?

A. Seven-thirteen, I think it is. We got in on time that morning.

By Senator Yutzy:

Q. The 19th?

A. Yes, I think so—the morning of the strike. I have forgotten the date. I met some of the boys on jumping off the train, and they told me what they were going to do, and asked me to go along with them; but I refused to do that, and told them I didn't think it was any of my affair at all—that, so far as the union men were concerned, I would stay with them, but I wouldn't go to the office of the superintendent of the road with them, because I was not an employé of the road. I had been discharged before that.

By Mr. Lindsey:

Q. What did they tell you they were going to do?

A. That they were going to strike.

Q. How many of them?

A. That they were all going to strike. Some friends of mine met me there, when I came down on the train.

Q. How many of those men met you?

A. I cannot say. There may have been half a dozen or a dozen of them.

Q. What class of men? What position did they hold on the railroad?

A. They were conductors and brakemen.

By Senator Yutzy:

Q. Were there any engineers?

A. I think there were two or three engineers with them, from the Connellsville division of the Baltimore and Ohio road. I stayed there, and talked with them a while, and then went over to Allegheny. I got my breakfast and fooled around the house with my wife and baby for about an hour, and then went to bed. I was tired, as I had been up talking with the conductor of the train all the night before. After I went to bed they came over and knocked at the door, and asked my wife if I was in. She said yes, but that I was in bed. They then said that they wanted to see me, and she said they couldn't, for I was asleep. So they went away, but came back again, in the course of an hour. I heard the noise down stairs, and asked what the matter was, and she said that they wanted me to come out, that they were going out on a strike; but I refused to go with them, and gave my reasons for refusing to go.

By Mr. Lindsey:

Q. What were those reasons?

A. These men at the house were members of the Trainmen's Union, but two or three of them I considered scabs, and didn't want to have anything to do with them. A strike was to take place on the 27th of June, when some of those men were instrumental in getting up a rumpus in the Trainmen's Union, and I didn't want to have anything to do with them. I went back to bed again, and I think I must have slept until quarter past two o'clock when five brakemen and two conductors came up to the house and told my wife that they wanted to see me. She came up and called me, and I said it is all right, if they are going to strike I would be there. They went away, and I turned over in bed, and was just going to take another nap, when my wife called and said, Bob, they are going to put No. 15 engine on the siding. I

jumped up out of bed, and looked out of the window, and I could see them putting the engine in on the side track. So I then jumped into my clothing as quick as I could, and just as I got to the door five or six of them were there, and they said they wanted me to come quick, that the mayor was coming with twenty-five police. It is just a stone's throw from my house to the track, and my wife had something ready to eat, and I just swallowed a bite and went out on the track. I saw the engine standing there, and the chief of police and about twenty-five police. I jumped up on the engine, when he told me to get off the engine. I told him I wouldn't do it, and I wanted to know why I should, I told him he had no authority. Then an order was given to arrest me, but Mr. Ross, was a neighbor of mine and I told him I was a quiet, orderly citizen, and that I refused to be arrested; that I had not been guilty of any breach of the peace as I saw; but he said, Bob, you had better get off the engine, when I said I wouldn't be put off, but as the dispatcher instructed me to get off the engine I got off. I then started down to the lower end of the yard. Before I got down there the dispatcher asked me what I was going to do, and I said I was going down to see the fun. He said, you are not, you are going down to countenance the strikers. I said, Mr. Ross, I am not. He said, you are in sympathy with them, and I said I am, but I would not say one word to them. So I went down there, and got in the midst of them, and with that the chief of police and twenty-five policemen were told to disperse the men there. They wanted the men dispersed. The police commenced to circulate pretty free among the boys, and I said it was not right, and jumped up on a box car and called for them to come over to me. They all came. I saw Mayor Philips, of Allegheny, there, and they cried out to me to tell him just what they were there for, and who they were, and I did so. I explained to the chief of police and the mayor who they were and what they were going to do.

Q. What time was that?

A. About two-twenty.

Q. Thursday or Friday afternoon?

A. That was Friday. I have not got the date.

Q. You say two-twenty?

A. Yes.

Q. All this occurred on Friday?

A. Yes; all this occurred on Friday.

Q. At the Fort Wayne and Chicago depot?

A. Yes.

Q. Go on.

A. The police didn't disperse them. They couldn't get the train out, and they started to run the engine back into the round-house.

Q. Who is Mr. Ross?

A. The dispatcher of the Fort Wayne road, and Mr. Ross is the chief of police.

By Senator Yutzy:

Q. He is a brother?

A. No; he is no relation to him at all. That afternoon two or three sections of freight came in, and some of us jumped up on the cars and told the boys what we were doing, and they all came right with us. They stored everything away—put everything in good shape.

By Mr. Lindsey:

Q. What do you mean by storing things away?

A. Putting things away compactly on the tracks. To go back now to Mayor Phillips. I read his statement in the Pittsburgh *Dispatch*. As soon as I jumped down off the box car, Mayor Phillips sent one of his police officers over to me, who said that he would like to see me. I told him it was all right, and I walked over to where he was and spoke to him. He said that he had

heard everything I had said, and I asked him if he had any fault to find with it, and he said no. I believe I told him just what we intended to do, and that he should not be alarmed about our destroying property or the safety of the city or anything of that kind. That we intended to strike and were going to strike, and thought that we had a right to strike. I asked him if I had been guilty of any breach of the peace, one way or the other, and he told me no, and that as long as I did not do anything worse, that no one could arrest me, and that I should resist if any one did attempt to arrest me. Before he went away he told me that he would leave that portion of Allegheny in my charge. Several of the boys heard what was said, and they repeated it to the others, and they told the mayor that anything I said would be carried out. I never saw Mayor Phillips after that.

Q. Who stood by during that conversation with Mayor Phillips—anybody?

A. Yes.

Q. Can you name any of the parties?

A. I would rather not, for this reason, there is an indictment hanging against me in Allegheny county, and I wrote to my attorney about this matter, and he told me that he did not want me to say anything that would have any bearing on my trial. These men I have subpœnaed as witnesses, and they are working on the road now.

Q. Go on for the present?

A. We got everything into as good shape as possible. Wherever we could get hold of the wires we used them.

Q. Do I understand you to say that you took charge of the telegraph office.

A. No; but we telegraphed wherever we could wire—we used the telegraph. They had got orders not to allow any messages to go over the wires from actual or intended strikers anywheres.

Q. Go on and relate from that time what occurred during the progress of the strike?

A. I would sooner answer questions than tell you. I cannot give the story in full, and I do not want to give it to you half. So far as I am individually concerned, I would not care; but there are other men interested, and I would not want to implicate them.

Q. How large was the crowd on Friday afternoon, when Mayor Phillips was at the depot?

A. I should judge there was in the neighborhood—railroad men there—a hundred, and two or three times as many citizens.

By Mr. Larrabee:

Q. On Friday?

A. Yes.

Q. Did any freight cars leave the depot or arrive at the depot that night—Friday night?

A. Yes.

Q. Did you allow any freight trains to go out after that time?

A. We did.

Q. How many?

A. None went, but we allowed them to go if they could get the men. I told Mayor Phillips distinctly, that if they could get scabs enough to go on them that I would guarantee that any man who would scab it over the road would not be hurt.

By Senator Yutzy:

Q. What do you mean by a scab?

A. I consider a scab when a set of men combine themselves together for a certain purpose—when a man goes back on his obligations, or, in other

words, if a man will work for less wages than his fellow men, and preach before going out on a strike that he will stand up for those wages.

By Mr. Lindsey:

Q. You call those scabs?

A. Yes.

By Senator Reyburn:

Q. Do you mean non-union men?

A. Yes; but it is not necessary that a man should be a non-union man to be a scab. What I call a scab is a man that will take an oath and go back on that oath—perjure himself.

By Senator Yutzy:

Q. You mean belong to a union and go back on the order?

A. Yes; but I say it is not necessary that a man should belong to a union. I mean a man that will turn around and work for less money.

By Mr. Lindsey:

Q. Do I understand you to say that you were willing to let trains go out if they could get the men to run them?

A. Yes; I stated that distinctly, and others there heard it.

Q. Was any attempt made to start trains?

A. They called on every man on the road, and every man refused to go out.

Q. Did you or the party with you interfere with trains going out in any way?

A. No.

Q. You were the leader of the party on the Fort Wayne and Chicago road?

A. I was supposed to be.

Q. Did you interfere with the men who wanted to go out in any way?

A. No.

Q. Did you try to persuade the men not to go out or to run their trains?

A. At what time?

Q. At any time during the progress of the strike or previous to the strike?

A. Undoubtedly, I did. I was a member of the Trainmen's Union—I was the head of it—I mean the union. We said that if they did not give us our wages we would not work.

Q. On Friday, did you try to persuade any men not to go out?

A. Directly?

Q. Yes?

A. No, sir; I did not.

Q. Did any of the strikers?

A. I would rather not answer that question.

Q. It is a fair question. Did any of them try to persuade men not to run their trains?

A. They did through moral suasion. They talked to them kindly and pleasantly. They did not threaten them or anything of that kind.

Q. No threats were made?

A. No.

Q. And no attempt at violence was made?

A. We did not try to bulldoze anybody.

Q. During Friday night and during the day, Saturday, you were masters of the situation there in Allegheny City? That part of the city was placed in your care?

A. Yes.

Q. How large was the crowd during Saturday night?

A. It was large. It would be pretty hard to tell. Sometimes it was a pretty big crowd, and sometimes it was not so big.

Q. How many actual strikers were there?

A. They were all there. All the brakemen and firemen were there anyhow.

Q. How large was the number of actual strikers collected together there during Friday and Saturday and Sunday—taking in those days?

A. From one hundred and fifty to three hundred.

Q. Did you learn that troops were expected to arrive from Erie or from Meadville?

A. Yes.

Q. On Saturday and Saturday night?

A. Yes.

Q. State what was done to prevent those troops from coming in—what measures the strikers adopted, if any.

A. I believe they let them come. I do not know why General Huidekoper did not come.

Q. Was it arranged among yourselves to let them come in?

A. I believe they could have come as far as Allegheny City.

Q. Did not the strikers send a party down to the lower end of the yard, or below the depot, to intercept any train of troops that might be coming in?

A. Some people did go down. I suppose they just walked down that way to see how things were going.

Q. Was it not agreed that no troops should be allowed to arrive?

A. I do not see how they were going to stop the troops coming to Allegheny City, unless they threw them off the track.

Q. Was not that the arrangement—to throw them off the track to prevent their arrival?

A. No.

Q. Did not a party come down armed to prevent the troops from coming in?

A. No; they did not. Men were stationed as far as Sewickley. I suppose some had guns or revolvers.

Q. Strikers?

A. Men in sympathy with the strikers.

Q. What were they stationed along there for?

A. I suppose they wanted to know what was coming up along the road, or something of that kind. We did not know what was going to happen. They thought that maybe some soldiers might be coming up along the road. We would have known it then if the soldiers had come. They could not have got to Homewood unless we would have known it.

Q. Why?

A. We knew perfectly that No. 18 was carrying signals for the southward. It is the Erie night express, due in Allegheny at eleven o'clock.

Q. Who stationed those men along the road at Sewickley?

A. I suppose they walked down themselves.

Q. Who stationed them there? Who gave them orders to go there and occupy those positions?

A. I do not know that anybody gave them orders to occupy positions along the road, or to fire into trains, or anything of that kind. Men were sent down the road to watch everything.

Q. Sent by the strikers, were they?

A. Yes.

Q. What were they to watch—what instructions were they given?

A. If the troops were coming up we wanted to know something about it. We did not have engines to fire up and the water had run out, and so those men were stationed down there. Some had arms and some had not. If the troops came up and disembarked at Sewickley, or east of Sewickley, we would know it, by their discharging their pieces, that the troops had disembarked.

Q. They were to fire off their pieces as a signal?

A. Yes; to let us know what the troops were doing.

Q. Was it arranged that they should prevent the trains from coming in?

A. The calculation was to let the trains come right up to Strawberry lane.

Q. Through the Fort Wayne depot?

A. It is below—at the lower end of the yard.

Q. That is where the larger portion of the strikers were?

A. It was head-quarters.

Q. Your intrenchments were there?

A. There were intrenchments there.

Q. What did you intend to do, then, in case the troops came up to Strawberry lane?

A. We proposed to interview them before they got to Strawberry lane.

Q. How interview them?

A. We proposed to get on the train at Wood run, about two miles below there.

Q. How many were to get aboard the train there?

A. About three.

Q. For what purpose?

A. To see the commanding officer there and have a little talk with him and explain matters to him.

Q. What did you intend to do in case the troops arrived?

A. We proposed to dance in case the soldiers played the music, that is all about it.

Q. Did you propose to fight the soldiers?

A. No, sir; we did not, but we did not propose to be shot down like dogs by any men.

Q. Were you armed?

A. We were.

Q. With what kind of arms?

A. There were so many different kinds that I cannot enumerate them.

Q. Enumerate some of them?

A. Well, improved needle guns, and shot guns, and rifles, and revolvers—things of that kind.

Q. Where did you get your arms?

A. At different places.

Q. Name some of the places?

A. Pittsburgh and Allegheny.

Q. At what particular places did you get them?

A. We got some of them on Sixth street, Pittsburgh.

Q. At whose establishment, or store?

A. We did not get them out of a store.

Q. Where did you get them?

A. I was not along with them when they got them.

Q. State if you know where you got them?

A. I cannot state that, because I did not see them, I only heard so. They got them out of a wagon, that is all I know.

Q. You say from a wagon?

A. Or bus.

Q. Did you get any anywhere else?

A. Yes.

Q. Where?

A. In Allegheny city.

Q. At what point?

A. Not far away from the suspension bridge.

Q. Go on and state all the particulars?

A. If it was myself alone I would not care.

Q. You need not name individuals?

A. If I was to tell you where those men got them, you could find out who was there. I lay in prison three months because I would not tell that, and I do not propose to tell it now.

Q. But you say you had arms?

A. Yes; given to us by citizens.

Q. Of Pittsburgh?

A. Yes; and Allegheny. I was offered two hundred stand of arms more than I had.

Q. By citizens?

A. Yes; and two very prominent citizens of Allegheny. One of them has testified before this honorable committee. He offered to furnish a hundred stand of arms, and told me——

Q. Do you mean Mayor Phillips?

A. No.

Q. Have you any objections to stating who offered you the arms. It is a matter of importance, and you have made an oath——

A. I know that, but I would rather not answer the question.

By Senator Reyburn:

Q. When were those arms offered?

A. Friday, Saturday, and Sunday.

Q. But they were offered for the purpose of keeping the peace, were they not? You had promised to keep order?

A. I did, undoubtedly, promise that to Mayor Phillips, and my action shows that I was a quiet and peaceable citizen.

Q. But were not those arms offered for the purpose of keeping the peace?

A. Nothing was said about that at all, sir. Nothing was said about it at all.

Q. But those arms were not given you to resist the troops?

A. Yes, they were; some of them.

Q. You say that the citizens gave you those arms to resist the troops?

A. Yes.

By Senator Yutzy:

Q. Did those two prominent citizens?

A. No, sir; they did not.

By Mr. Lindsey:

Q. What did they give you the arms for?

A. Nothing was said.

Q. What did these two prominent citizens offer you the arms for?

A. One of them spoke for himself, and mentioned another prominent citizen who would also furnish arms.

Q. What day was that?

A. I won't be positive—it was either Saturday evening or Sunday evening—no, I am sure it was Sunday evening.

Q. What was the conversation about—in what connection did he offer you those arms?

A. The way it came about was this. He came over to Allegheny to the telegraph office, and asked some man outside where Mr. Ammon was, and he said inside the office. He asked if I would see him. I knew him by reputation, and I met him in the private telegraph office—he came in there. He told me he would like to have ten minutes of my time. He then sat down, and then asked me to give him the wages that each man was paid on the road—brakemen, firemen, engineers, and conductors. I sat down and talked with him awhile, and gave him those figures. Then he asked me whether the majority of the railroad men were single men or married men,

and I told him they were married men. And he said he could not blame the men for striking, and that he hoped and prayed they would stand out like men, but not be guilty of any violence, and that as long as we did that we would have the support of every citizen of Allegheny county. And he said that if we wanted any assistance or any help, that he would give both money and arms—he said I will furnish a hundred stand of arms, and I know another prominent citizen who told me that he would also furnish arms. I thanked him, and my attention was called in another direction.

Q. Did he mention the name of the other citizen?

A. He did.

Q. Now we would like to have the names of those individuals?

A. I have no objection to giving them to the committee privately, but I don't want them to be known.

By Mr. Means:

Q. You said if the soldiers fiddled, you proposed to dance?

A. Yes.

Q. Then you intended, if the soldiers pretended to sustain good order, to resist them?

A. In the first place, our object——

Q. The question is a straight one?

A. I will give it to you straight. We proposed to treat the commanding officer with all the respect in the world due to his position. We were perfectly well aware that the chief executive of the State was out of the State, and we did not think that he could depute his powers to any one in the State. So we would want to know where he got his orders from, and if he got them from a railroad magnate, we did not propose to pay any attention to him.

Q. But you said if the soldiers fiddled, you proposed to dance?

A. Yes.

Q. Then if they proposed to maintain order, you proposed to resist them—answer yes or no?

A. I refuse to answer the question in that way.

By Mr. Lindsey:

Q. If the soldiers undertook to disperse the crowd assembled there, did the strikers intend to resist?

A. I did for one, undoubtedly. I would rather have died right there, before I would have budged an inch.

Q. Was it talked of—was it understood that you, as a body, would resist?

A. I don't think there was a man there but what would have gone to just what I led him to.

By Senator Reyburn:

Q. What do you mean by saying if the commanding officer had his orders from a railroad magnate, you intended to do thus and so?

A. What do you mean?

Q. To resist, I understood you to say?

A. No; we proposed if General Huidekoper came to Allegheny, to go and interview him and explain the situation. We were going to ask him the question as citizens of the Commonwealth, for we looked upon it we had that right; if he had his orders from the chief executive or from Governor Hartranft; if he had, we would recognize him, if he had not, we did not propose to recognize him any more than anybody else. We proposed to treat him as a rioter, for we did not count ourselves as rioters, for if the mob had come we would have given the mob the best we had.

Q. Then you would have resisted in that case?

A. If he did not have authority, undoubtedly.

Q. But suppose he had authority?

A. Then we would have recognized it.

By Mr. Lindsey:

Q. Do I understand you to say that you would have resisted if the soldiers had undertaken to disperse you?

A. We looked at it this way: the Governor was out of the State, and we had our reasons for thinking he had not got his orders from the Governor, so we proposed to see who he got his orders from.

Q. If he had his orders from the Governor or the commander-in-chief, then you would have obeyed his orders and dispersed?

A. Yes, if he had his orders from the Governor. That was the only authority we recognized, and we knew he was out of the State.

By Mr. Means:

Q. Did you take advantage of his absence in this strike?

A. No, we did not.

Q. But you were well aware he was out of the State?

A. Yes.

Q. Was it your impression that no other man in the State of Pennsylvania could order out the military?

A. That was our impression of it, yes.

Q. It certainly would be a bad fix if there was nobody else that could order out the military?

A. All right; we knew the Lieutenant Governor was here.

Q. You did not take advantage of the Governor's absence, then?

A. No; we thought we had some rights that the railroad men were bound to respect, but they did not seem to respect them. They treated us like mad dogs.

By Mr. Lindsey:

Q. When was the Trainmen's Union organized?

A. On Saturday evening, June 2, 1877.

Q. Were you a member of the body?

A. I was the first man that ever took an oath in it.

Q. What was the purpose—what were the objects of that Union?

A. The purpose and object of the Trainmen's Union was to get the trainmen—composing engineers, conductors, brakemen, and firemen, on the three grand trunk lines of the country—into one solid body. We knew that a reduction over the three grand trunk lines was going to take place, and we thought if we could combine into one body all the men, at a certain hour on a certain day, if the railroad magnates did not accede to our demands we would strike, and leave the trains standing just where they were, and go home. That was the object of the Trainmen's Union.

Q. Do you know how far and wide it extended?

A. Yes.

Q. Please state?

A. It extended over the Baltimore and Ohio, the road from Pittsburg to Baltimore, the Fort Wayne road from Pittsburg to Chicago, and I think the last division was organized at Valparaiso, or Fort Wayne. It was on the

Northern Central and its leased lines, and all the leased lines of the Pennsylvania company were in it.

Q. Did it extend on the Erie road, and to the Atlantic and Great Western?

A. Yes.

Q. Over the whole length of the road?

A. I do not know.

Q. Where did it originate?

A. In Allegheny City.

Q. What arrangements, if any, were made by your organization for a strike?

A. When we thought we were strong enough so we could control at least three-fourths of the men of those roads, then we thought we could bring matters to a point—we could all quit. We knew they could not find enough green men to run the roads, and we thought that the citizens would look at it in the same light as we did—that the citizens would not care to trust their lives to green men—that the people traveling on the roads would not trust their lives to green men; and we thought by all going off and stopping the traffic on the roads that they would give us back our ten per cent.

Q. It was not organized until after the ten per cent. reduction was made on the 1st of June?

A. No; but it was talked about before that.

Q. How long before that was it talked about?

A. I believe the notice was stuck up by the Pennsylvania Company about the 26th or 27th day of May—somewhere in that neighborhood—and from that time on it was talked about.

Q. What led the men to talk about it at that time?

A. The notice was stuck up, that there would be a reduction.

Q. That was the first that called the attention of the men to it?

A. Yes.

Q. Was there any day set for the strike by the Trainmen's Union?

A. The 27th day of June, at twelve o'clock.

Q. State the extent of this strike as it was expected to take place on the 27th of June? How many men had you, who had agreed to strike? How wide was it to extend over the country?

A. I have just mentioned over the different lines.

Q. Had they all agreed to strike on that day?

A. Yes. Three or four days before the 27th of June—the 27th day of June was a Wednesday—the Sunday night before, that is, the 24th, forty men were sent out from Pittsburgh, so if they shut off the wires from us, we could notify the different divisions if we could not get telegrams to them in time, that if anything turned up, that it was ordered, and that that was the day set.

Q. At what hour?

A. At twelve o'clock, noon, June the 27th.

Q. To what points were those men sent?

A. All over the different trunk lines.

Q. To notify all the different lodges or divisions?

A. Yes.

Q. Did they so notify them?

A. They did, I believe, so far as they could get. But a hitch occurred before the 27th.

Q. What was it?

A. That was a Sunday night. On Monday night, the Pan-Handle division had a meeting, and most of the members from the other divisions were there, and it was decided on Monday night, when delegates from all the divisions around were there, that the strike should take place on the 27th, and on Tuesday night, all the members of the divisions around there were to come to Allegheny, to the usual place of meeting, and have another talk with the boys there. They met there, when three or four of them kicked up a rumpus, and it came near ending in a row. Some of the men who were the first to go into the thing—who were the first to propose doing anything, were the very men to kick, and two of them that night, went out on No. 11, west, and took the news out west, that there would be no strike the next day. We were all ready on the 27th, at twelve o'clock, noon, to go out on a strike, but we got telegrams from everywhere, asking if we were going on a strike, or whether we were not going on a strike. So the thing got mixed up, and they stopped the telegraph wires, and we couldn't get a word over. We had some trains stopped at Pittsburgh, but I had them all moved out on the track again, as I thought we had better let the thing go, than make a failure of it, and wait for some better time—a better organization, or some time when we could get things into better shape.

Q. What became of those men, sent out to notify the various divisions?

A. They beat their way back again, I guess, from all over the country to Pittsburgh.

Q. Did the Trainmen's Union break up at that time, or did they continue their organization?

A. They never had a meeting after the 27th, that I know of, in Pittsburgh.

Q. Did they at any other point?

A. Yes; the Trainmen's Union is still in existence.

Q. Was there any time arranged afterwards for a strike?

A. No; no time was agreed upon, but all labored under the impression that the bubble had grown so large, that it would have to burst sooner or later.

Q. Was there any pre-arranged plan, by which any strike was to take place on the 19th of July?

A. No, there was not. There was some little talk about it, if the railroad company would do so and so, that they would kick.

Q. Do what?

A. Put on double-headers.

By Senator Yutzy:

Q. What do you mean by kick?

A. Not stand it.

By Mr. Lindsey:

Q. Strike, do you mean?

A. Yes.

Q. Then there was no pre-arranged plan for that strike on the 19th?

A. There was no pre-arranged plan.

Q. Was it talked over?

A. Not on that day; but just as soon as they put on double-headers they didn't propose to submit to it, as they thought seventeen cars were enough for the men to take care of.

Q. These double-headers were only confined to the Pennsylvania Central?

A. Yes.

Q. They didn't extend over any other roads leading into Pittsburgh?

A. No.

Q. Was it known to the men on any other roads that the men on the Pennsylvania Central were going to strike?

A. I suppose they knew that they had their sympathy.

Q. I understood you to say that you left Pittsburgh the day before the strike?

A. No; I left it about the 16th.

Q. Did you know any thing about it then, or understand that there would be a strike then?

A. Yes; I remarked after the 27th day of June that I was positive there would be a strike, sooner or later—that the thing would have to come to a head itself.

Q. Did they say to you, or did you understand from any employés on the Pennsylvania Central road, that there would be a strike on the 19th?

A. No one knew that they were going to strike on that day.

By Senator Reyburn:

Q. Then no time was set?

A. No.

By Mr. Lindsey:

Q. Was it understood that when the order was given to run the double-headers that they would strike?

A. It was understood that just as soon as they put on double-headers they wouldn't run them. The men couldn't stand it.

Q. Did you know any thing about the strike at Martinsburg?

A. Yes; I heard of it.

Q. Before it took place?

A. No; not before it took place. I knew of it as soon as it did take place.

Q. Was there any general understanding that a strike would take place at the time the strike broke out at Martinsburg?

A. No; the understanding we had of this thing—our object in organizing the Trainmen's Union was, that the Pennsylvania Company would make a reduction on the first of June of ten per cent., and that, if their employés submitted to it, that the New York Central would follow about the 1st of July, and if their employés submitted to it—they had two roads, and had pooled their earnings—they would make a reduction on the 15th of July on the Baltimore and Ohio. They thought if they didn't get a strike before the 15th day of July, then the Pennsylvania road and these other roads would get so used to it, or that they would get us so frightened that we would have the idea knocked out of us, if they could run their traffic over those roads. They were not going to make a reduction over two trunk lines at one time.

Q. Did all that happen?

A. No; there was a reduction on the Pennsylvania on the 1st of June, and on Vanderbilt's road on the 1st of July, and on the Baltimore and Ohio on the 15th or 16th, and on the 15th was the strike.

Q. Did you have any communication with the men at Martinsburg before they struck?

A. I had some friends down there, and I used to hear from them once in a while.

Q. About the strike—this particular strike that took place at Martinsburg—did your union communicate with them? Was it understood or arranged between you for that strike on the 16th?

A. No; although they said that just as soon as they got the reduction they were going to strike.

Q. I understand you to say it was the double-headers, or the order to run them, that caused the strike on the 16th, at Pittsburgh?

A. Yes; because it was the wrong time to put on the double-headers, just following the strike at Martinsburg. That just started the whole thing.

Q. This Trainmen's Union was organized, you say, for the purpose of protecting yourself?

A. For protecting our own interests.

Q. What had you to complain of at the time of organizing the union?

A. The ten per cent. reduction. We thought we were getting little enough money.

Q. Had you anything else to complain of?

A. Yes; we had something a little worse than the reduction. That was all right. If they saw fit to reduce, and could get men to work at their rate, all right. The officials of the road, and Mr. Scott, all treated us all right. It was only the little under-officials who treated us like dogs. I was told that if I voted for a certain man I would get discharged off the road. I wanted to vote for a neighbor of mine.

Q. By whom were you told that?

A. By a petty under-official, the assistant day dispatcher.

Q. Had you anything to complain of, except this ten per cent. reduction?

A. Not on our road—not on the Fort Wayne road.

Q. Had they on the Pennsylvania Central, before the order was issued to run the double-headers?

A. No; I don't believe they had.

Q. That was the only thing you had to complain of?

A. Yes.

Q. Did you have any negotiations with the magnates of the road in regard to that?

A. Yes; we appointed a committee to wait on them, and talk with them, and try to get the thing settled up; but we couldn't reach them with a forty-foot pole. We tried everything with reference to avoiding a strike.

By Senator Reyburn:

Q. How long were you on the road?

A. About eleven months, I guess.

Q. Had there been any talk of striking before—during those eleven months?

A. No.

Q. Were any committees appointed to wait on the officials?

A. That was when we heard of the ten per cent. reduction.

Q. Had you any grievances before?

A. No.

By Mr. Lindsey:

Q. It was arranged then by your union that you would strike in case of a reduction?

A. That was what we organized for.

Q. Do you claim the right at all times to strike as a body? Do you claim that it is one of the rights that you have?

A. I claim that every free born American citizen, if necessary, has the right to quit work if he wants to. That is what I call striking—quitting work.

Q. Doing anything more?

A. We have no right to destroy property.

Q. Do you claim it as a right to interfere with those who want to work?

A. It is a right to use mere suasion. If I were to see you rushing on headlong on the breakers, and I can stop you, I would do so.

Q. Do you claim that you have a right to assemble in crowds or groups upon the property of the railroad company?

A. If that is where we are employed; yes.

Q. But when you strike, you are no longer in the employ of the railroad company?

A. No; not when we have once struck.

Q. Then after you have struck you don't claim that you have the right to assemble there?

A. Until we are ordered off?

Q. But when ordered off, have you the right to refuse to go?

A. It depends greatly upon who orders you off.

Q. When ordered off by an official of the railroad company?

A. If I am there for any unlawful purpose, I ought to go, but if I am not there for any unlawful purpose, and if I run against a man who wants to show fight or ride a big horse, I don't think I have any business to go, if I want to stay.

By Senator Reyburn:

Q. But do you say that you have the right to go on another man's property and stay there if he wants you to go away?

A. I don't recognize any one like a day dispatcher. It is not his business.

Q. But it is his business to keep the track clear?

A. No; it is not.

By Mr. Lindsey:

Q. You did assemble at yard of the Fort Wayne and Chicago road, one hundred and fifty or two hundred of you?

A. Yes.

Q. Were you ordered off—ordered to leave or disperse?

A. No; directly we were not.

Q. By any one belonging to the road?

A. The dispatcher told the chief of police to disperse this mob, that they were not employés of the Fort Wayne road, but rioters and loafers from Pittsburgh, and wouldn't allow their men to work.

Q. You resisted this? You refused to go?

A. I don't like a man to call me a liar.

Q. Did you refuse to go?

A. No one told me to go off the property.

Q. Didn't the policemen tell you to go?

A. No.

Q. Didn't they undertake to disperse you?

A. They got in amongst us, but they didn't push or tell us to go off.

Q. But you refused to go?

A. We didn't understand it that way.

Q. Was it not your duty to disperse when the policemen requested you, having been instructed so to do by the officials of the railroad company?

A. The police didn't tell us to disperse.

Q. You knew what they came among you for, and what commands had been given to them by the officers of the railroad company?

A. I heard the dispatcher say, disperse this lot of loafers and rioters from Pittsburgh. I don't know that he spoke to me.

Q. Did he refer to the crowd?

A. I don't know of any loafers or bummers in that crowd.

By Senator Yutzy:

Q. Were you ordered to disperse by anybody?

A. No; the dispatcher didn't speak to us, but to the chief of police, that these men are a lot of rioters from Pittsburgh, and he wanted them off the property.

By Mr. Lindsey:

Q. Did you consider you had the right to take that property and pack it away on the side tracks?

A. I thought I did perfectly right.

Q. If it was in danger of being destroyed?

A. Everybody appeared to be excited, and they had lost their heads, so that you couldn't get them to do anything. There were some passenger and freight cars, and a lot of cars loaded with live stock standing on one track, and nobody appeared to know what to do with them. People came to me and asked what to do, from even the dispatcher himself—he looked to me.

Q. But after you had refused to work, had you any right to interfere with that property?

A. We didn't interfere with the property.

Q. Had you any right to do anything with it?

A. If we were asked to do it we had.

Q. Had you any right to interfere with that property in any way?

A. Yes.

Q. You understand what I mean by my question? Do you not think it was your duty, after having refused to work, to leave the premises entirely and go away?

A. That depends on circumstances.

Q. But if you were working for a man and stopped work, or he turned you off, have you any right to remain around?

A. That depends a great deal on whether he wants me around or not.

Q. But have you any right to interfere with his property in any way, under any circumstances?

A. I would think I was a very foolish man. If my property was in danger I would like him to come and lend a hand.

Q. I didn't ask any question about the property being in danger?

A. We didn't interfere with the property in any way or manner.

By Mr. Means:

Q. Had the commander of the military refused an interview with you, or the party you represent, what would have been the consequences—what was your determination?

A. I don't know as we figured that far ahead.

Q. But you must have had some plan, sir?

A. I didn't happen to meet him, therefore, I cannot tell you.

Q. I want to know what was your determination?

A. That is something nobody knows.

Q. I insist upon an answer?

A. It is a question I cannot answer.

Q. This is the question. Had the commander of the military refused to have an interview with you or the party you represent, what was your determination—what did you intend to do?

A. That would have depended greatly on circumstances. I don't know what we would have done.

By Mr. Lindsey:

Q. Did you intend to resist the militia?

A. If you or any other man or the militia had raised a gun to shoot me, I undoubtedly would have resisted.

Q. But answer yes or no, then explain after answering the question?

A. What is the question?

Q. Did you intend to resist the militia had they attempted to disperse the crowd?

A. I will have to answer the question yes and no. If they had come with the requisite authority from the Governor of the State and ordered us to disperse, undoubtedly we would have obeyed them. If they had authority from the Governor of the State, I, for one, would have walked away.

Q. But suppose they had authority from General Latta?

A. I didn't recognize him.

Q. You didn't recognize him?

A. I didn't at that time.

Q. Certainly you couldn't have been a law-abiding citizen if you didn't?

A. I didn't at that time.

By Mr. Lindsey:

Q. Then you intended to use your own judgment as to whether the militia were there lawfully or unlawfully?

A. I look upon General Huidekoper as a gentleman, and don't think he would lie.

Q. Suppose he had said he was there on authority from the Governor?

A. I told you I would have gone off the premises and walked away. If he had told me it was none of my business, I would have told him I would make it my business. If he had told me he was there by authority of some railroad official, I would have told him that the best thing he could do for his own and for our sake, would be to take the back track, and go away.

Q. Did you see the daily papers of that week?

A. No; I don't believe I did.

Q. Did you see a published proclamation of the Governor's?

A. I don't believe I did.

Q. Did you know a proclamation had been issued?

A. I had heard of it.

Q. Commanding all citizens to disperse?

A. I had heard of it, but I didn't read it.

By Mr. Means:

Q. Then you and your party were to be the judges, whether or not General Latta had authority or not?

A. We were open to conviction. We thought we were endowed with a little common sense.

Q. I don't doubt it for a moment—not at all. But you were to be the judges whether General Latta had authority or not?

A. The way I came to get under that impression—an attorney, the first day of the strike, who was around there when this question came up about the Governor being out of the State, said that the troops or military could not be ordered out, because the Governor was not here.

Q. Give us his name?

A. I cannot give it.

Q. I insist upon it?

A. I refuse to answer the question.

Q. If the committee insists upon an answer you certainly will have to answer, because you have sworn to tell the truth?

A. Well, I will give the committee the names of any of these parties in confidence, but I don't care about telling their names to the world. I am perfectly willing to give them to the committee in confidence. I don't want to keep anything back, but I don't want to tell tales on anybody else.

By Senator Reyburn:

Q. Did your association have an attorney employed—the Trainmen's Union?

A. Two or three were around there, sort of acting as though they were employed, but we never knew who employed them.

Q. Did you consult with them?

A. No; they came there and gave us advice.

By Senator Yutzy:

Q. Gratuitously?

A. That is about it.

By Mr. Lindsey:

Q. Were they ever paid any fees?

A. Not that I know of.

By Senator Reyburn:

Q. Were they practicing attorneys at the bar?

A. Yes.

By Mr. Lindsey:

Q. You continued to keep up the strike there, and hold possession of the railroad property, until the arrival of the Governor of the State, did you not?

A. I believe we were on the premises when the Governor arrived.

Q. And had possession of the property of the railroad?

A. I don't know. The property was all lying there. No one was holding it?

Q. But didn't you guard it. Didn't you exercise care of it, and didn't you afterwards deliver it over to the railroad officials?

A. Yes; we told them that we wouldn't have anything more to do with it, that they must get somebody else to watch it.

Q. Who did you deliver it to?

A. A man I did not recognize came down and took possession for Mayor Phillips or his police.

Q. You surrendered the property to him?

A. No, sir; I did not, but to the officers of the road.

Q. What day was that?

A. That was the evening the Governor came in.

Q. The evening the Governor arrived?

A. Yes.

Q. Did you have any interview with the Governor on his arrival?

A. Yes.

Q. Tell us what that was?

A. I had a little talk with him and passed the compliments of the day, and asked him to come out and say a few words to the boys, and he came out on the back platform and said something to them. We then passed on to the round-house, where there was a crowd of some five or six hundred, and he spoke a few words to them, and then went on to the city of Allegheny, where the citizens met him with a carriage and took him to Pittsburgh, by the suspension bridge.

By Senator Yutzy:

Q. Did you telegraph to him?

A. I did.

By Mr. Lindsey:

Q. What was the nature of those telegrams?

A. Some of them are part of history. I telegraphed along the line not to interfere with the train he was on, so as not to get him angry with us, and I telegraphed him guaranteeing him a safe passage to Allegheny city.

Q. You had the power to give him a safe passage through?

A. My name was good enough at that time.

Q. Over the length of the Fort Wayne and Chicago road?

A. Yes.

Q. You controlled the road at that time?

A. It appeared that they were not going to recognize any man's orders but mine.

By Senator Reyburn:

Q. But they got obstreperous at last on your hands?

A. Towards the last.

Q. Didn't you go to a meeting with some citizens to a hall?

A. Yes.

Q. And there they thought you were taking too much authority on you?

A. They thought I was going back on them. At least a scab did. He supposed I was misrepresenting things at that time. At least I think so now. They were starving, and wanted coal, and I ordered a provision train and a coal train out, and one fellow wanted to kill me right off.

By Mr. Lindsey:

Q. So they struck on you?

A. Yes; this was the following Thursday. I had not been down from the Tuesday night when the Governor arrived until this afternoon of Thursday.

By Senator Yutzy:

Q. What means did you take to enforce your orders after they struck on you?

A. They did not strike on me.

By Mr. Lindsey:

Q. Didn't they refuse to obey your orders?

A. I had ceased to exist at that time. That was on the Tuesday night, and this meeting was on Thursday afternoon. Because I would not come up, I suppose they felt sick and sore, and thought I was trying to sell them out.

By Senator Reyburn:

Q. Those citizens you talked about who offered you arms, were not those men the ones who went with you to the meeting?

A. Neither one of them was there.

Q. Didn't they ask you to protect this property, and after a conversation with you, didn't you agree to go with them to this meeting and talk to the rioters?

A. There were no rioters on the Fort Wayne road.

Q. Or the strikers?

A. Yes.

Q. Didn't you promise them to keep order, and in consideration of that didn't they agree to give you the arms to keep off the mob in case any party came to burn the town?

A. No, sir; this was on the Thursday after the fire. I was at no meeting from the 27th day of June until this Thursday.

By Mr. Larrabee:

Q. Was there no understanding between you and the strikers on the Pennsylvania road during this time, after you got back to Allegheny City and took charge of things—were you acting in concert in preventing trains from going out?

A. I don't know that anything particular of that kind was agreed upon. Of course we talked over things of that kind.

Q. But you had communications with the parties who were striking on the Pennsylvania road?

A. Yes; men were going back and forth all the time.

Q. Was there anybody over there that had control of the strike there or who was looked up to as a leader or recognized as such?

A. There were some three or four of them. The man supposed to be the leader showed the white feather.

Q. Who was that?

A. Samuel Muckle, the president of the Pan Handle division.

Q. He was supposed to be the leader in the start?

A. Yes.

Q. Who was their leader after he showed the white feather?

A. I don't know, but I think Hice. He was at Torrens station.

By Senator Yutzy:

Q. How did he show the white feather?

A. He was a man who didn't live up to what he said he would do.

Q. In what respect?

A. He didn't live up to what he said he would do at the meeting.

Q. What did he agree to do in the first place?

A. He agreed to stand by the boys.

Q. What were the boys to do?

A. If the boys went out on a strike, Muckle was to stand by them.

Q. And prevent the running of trains?

A. The understanding was that every man was to quit work and go away, but not to prevent the running of trains. Muckle was discharged, and he tried to get a job in the employ of the road. His object in getting the men to strike was to get them out and then come in and scab it.

Q. That is, come in and offer his services to the railroad?

A. Yes.

By Mr. Larrabee:

Q. But were communications going on between you and the leaders of the Pennsylvania road—the leaders of the strike? Was there any concerted movement or action between you?

A. No, sir.

By Senator Yutzy:

Q. Give us a definition of your idea of a strike. What is generally understood by railroad men, or what did the Trainmen's Union understand by a strike?

A. So far as the Trainmen's Union was concerned, we considered by a strike that every man on the three grand trunk lines should go home when the hour came—just leave his train standing there.

Q. You mean refuse to work?

A. Yes.

Q. Nothing more?

A. That was our understanding.

Q. But you were not to prevent other men from working?

A. We had an understanding if a man was not a union man to coax him off if we could.

Q. But if he would not be coaxed?

A. Then to leave him stay. We considered that his own conscience would be enough for him.

Q. But you were not to try to drive him off?

A. No; a man who is a scab has a hard enough time of it. He has a hard time enough of it to make his life unbearable to him.

Q. Was any violence used that you know of to prevent trains from running on the Fort Wayne and Chicago railroad?

A. No, sir; none was used. I would not have allowed, so far as I was concerned.

Q. By what authority did you assume charge of the Fort Wayne and Chicago railroad?

A. I think I assumed authority of the Fort Wayne from telegrams I received from Mr. Layng, who is the general manager from Pittsburgh to Chicago.

Q. What were those telegrams?

A. I was asked to take charge of the trains and engines, and to move them to places of safety.

Q. Have you those dispatches?

A. I have.

Q. Have you them here?

A. No.

Q. Can you produce them?

A. I can, sir.

Q. Will you produce them?

A. Not in this city.

Q. Where will you produce them?

A. I will produce them anywhere where I can get them. I asked to have them sent here, but could not get them.

By Mr. Larrabee:

Q. Would this strike on the Fort Wayne and Chicago road have occurred if the strike on the Pennsylvania road had not occurred at that time?

A. That is a pretty hard question to answer.

Q. From your information—from what you know of the circumstances and the men engaged in it?

A. I have not thought over that, and really I cannot give an answer.

Q. Do you know whether the men on the Fort Wayne and Chicago road were making any preparations for a strike distinct from any strike upon the Pennsylvania railroad?

A. Some of them were and some of them were not.

Q. At this particular time that the strike occurred?

A. Really, I have never thought the matter over, and I cannot answer that question, because I have not thought it over in that light at all. They may have and they may not.

Q. You say that the main cause of the strike on the Pennsylvania road was the running of double-headers?

A. That is my impression.

Q. The cause of the strike upon the Fort Wayne road at that time was what?

A. Several things combined. I think it was the abuse of power by the under officials more than anything else.

Q. That and the ten per cent.?

A. Yes; that was pretty hard to swallow.

By Senator Reyburn:

Q. I understood you to say in talking to some citizens you had given some figures as to the wages that could be earned after the ten per cent. reduction. Can you give those figures to the committee now?

A. I didn't state the amount that could be earned, but the amount they were paying—brakeman, \$1 45.

Q. Per day?

A. Per trip, that is called a day.

By Mr. Englebert:

Q. How many hours?

A. The shortest run on the road was seven hours and twenty-five minutes. The longest run was eight hours and thirty-five minutes. Firemen the same as brakemen. Conductors, first class, \$2 12; second class, \$1 89 or \$1 91, I forget which. Engineers—I don't remember the classified pay—first class, three dollars and eleven or twelve cents. That had a great deal to do with the strike—the classification—so far as the engineers were concerned.

By Mr. Lindsey:

Q. How many days could you average per week?

A. The year around, or at that time?

Q. At that time?

A. I think the month that I was discharged I drew twenty-nine dollars and some cents—I don't know what.

By Senator Yutzy:

Q. As brakeman?

A. Yes. I had an income of forty dollars a month besides that, and it was the only way I could live.

By Mr. Lindsey:

Q. Did you make all the time?

A. I believe I did. I believe I lost only one trip. My impression is I did lose one trip.

By Senator Reyburn:

Q. Was not the amount you could earn governed by the amount of business doing by the road at that time—if the freight shipments were large you all got work?

A. We all had work any how. We all came in our turn.

Q. But the amount of money you made depended on the amount of the business of the road?

A. Yes.

By Mr. Lindsey:

Q. You put in your six days a week—work a week at \$1 40?

A. I undoubtedly worked six days.

Q. Every week?

A. Not at that time. We were not averaging six days' work at that time.

Q. Were you prior to that time?

A. Really I have forgot; but the pay was running very poor. I think the business was good in January and February, March and April, but I think after that time it was very slack.

By Senator Yutzy:

Q. How many days did you make in any one month?

A. In the month of January I made forty-four days.

Q. By over work?

A. Yes.

By Senator Reyburn:

Q. Did not the officials, when you sent your committee to them, didn't they talk over this matter with you?

A. Before the strike?

Q. Yes.

A. No, sir.

Q. Didn't you send a committee down to Philadelphia to see Mr. Scott?

A. Of engineers, I believe. We heard what the engineers were doing, and got enough of the engineers. They generally patched things up for themselves. They didn't look after anything else. It was about the time of taking the ten per cent. off.

By Mr. Engelbert:

Q. What position did you hold in Trainmen's Union?

A. I don't know that I held any position. I was appointed to organize the unions, and had unlimited powers.

By Senator Yutzy:

Q. By whom?

A. By what we called—there were members appointed from each division, and they constituted a sort of grand lodge. The division I belonged to was first organized. That is where I got my power from. They sent me right out. It was a Saturday night, and I left Pittsburgh the following Monday, June 4.

Q. Who organized the first lodge?

A. I was the first man to take an oath. I guess all took a hand in it.

Q. Were you president of that lodge?

A. There was no president of that lodge at that time.

Q. Were you chief of that lodge?

A. I suppose I was that night.

Q. What did they call the chief of that lodge—what name?

A. The grand organizer.

Q. Then by delegations from other lodges, you were appointed to organize lodges throughout the country?

A. Our lodge gave me authority, and as we formed lodges, they sent in delegations to form a grand lodge, and they confirmed the action of our lodge.

By Mr. Larrabee:

Q. Who paid your expenses going around?

A. The boys.

Q. As a union or a society, or did the boys contribute what they saw fit?

A. All the money I ever got, I got from the union at that time.

By Mr. Lindsey:

Q. From the lodge?

A. Yes; from the treasurer of the lodge.

By Senator Yutzy:

Q. Was it an oath-bound association?

A. Yes.

By Mr. Means:

Q. Did you go to Martinsburg, Virginia?

A. I was in that neighborhood.

Q. Were you at Martinsburg, Virginia?

A. I was very near to it.

Q. That is not an answer to my question.

A. At what time?

Q. To organize a lodge there before the strike?

A. I did initiate men into the organization called the Trainmen's Union, at Martinsburg.

By Senator Yutzy:

Q. Did you organize lodges over the Baltimore and Ohio road?

A. Yes.

By Mr. Means:

Q. Was it understood by your lodges that this strike was to commence at Martinsburg?

A. No, sir.

Q. Did you know, before the strike commenced at Martinsburg, Virginia, that it was going to take place?

A. No; of course I heard all that talk. They talked most loud at Martinsburg, but I thought it was all wind. I didn't think they would strike at all.

By Senator Yutzy:

Q. When you were telegraphed at Oil City, were you there for the purpose of organizing lodges?

A. It was Parker City.

Q. Were you there for the purpose of organizing lodges?

A. At that time?

Q. Yes?

A. I went up there to get work.

By Mr. Lindsey:

Q. How long had you been railroading?

A. About eleven months altogether.

Q. What had been your business before that?

A. I was in the hotel business.

Q. Where?

A. At Collinwood, eight miles from Cleveland.

Q. Were you proprietor of the hotel?

A. Yes.

Q. For how long?

A. One year and nine months.

Q. What was your business before that?

A. I was in the insurance business.

Q. Where?

A. At Pittsburgh.

Q. Is that your home?

A. Yes; it is my native place.

By Senator Yutzy:

Q. Were you working for your father or for yourself in the insurance business?

A. I represented four Chicago companies for myself.

Q. When you returned from the oil country, you say you met some railroad men who belonged to the Baltimore and Ohio railroad?

A. Of the Connellsville division.

Q. Where did you meet them?

A. Around the Union depot.

Q. How many of them did you meet there?

A. I remember three engineers who were there.

Q. Any other trainmen?

A. O, yes.

Q. Of the Baltimore and Ohio road?

A. These three engineers are all I can remember.

Q. Were they the ones who telegraphed to you to come to Pittsburgh?

A. No.

Q. Where did those men belong to—the Baltimore and Ohio or the Pennsylvania Central? Who telegraphed you?

A. To neither road.

Q. Of what road were they employés?

A. Of the Fort Wayne road.

By Mr. Dewees:

Q. How many miles of railroad had this trouble?

A. I never figured it up. A good many miles.

By Senator Reyburn:

Q. You had a signal to stop trains?

A. You can stop any train if you have the signal.

Q. But did not your organization have a particular signal by which you could stop the trains?

A. The Trainmen's Union?

Q. Yes?

A. Before the strike?

Q. Yes?

A. No, sir.

By Senator Yutzy:

Q. Different from the ordinary signal?

A. I don't comprehend the question exactly.

By Senator Reyburn:

Q. Was not there an understood signal among the trainmen by which, if an engineer of a train undertook to run it, they would throw him this signal, and he would stop the train and get off?

By Senator Yutzy:

Q. Some peculiar signal?

A. No; I saw lots of engineers that wanted the boys to do that.

By Mr. Larrabee:

Q. You say then that there was no signal?

A. No.

By Senator Yutzy:

Q. What was this signal that was used on the Pennsylvania railroad to stop trains? Was it any peculiar signal among the strikers different from other signals?

A. I have heard of it, but I can't speak from my own knowledge.

By Mr. Larrabee:

Q. What did you hear?

A. While in jail, McAllister told me that an engineer came to him and said, "McAllister, when we come to pull out from the round-house, you just jump up on the engine and say there is some danger—you put up your hand." McAllister is an innocent sort of a fellow, and he did just as the engineer told him, and he was convicted and sentenced to six months in the work-house.

By Mr. Lindsey:

Q. Did the engineer get off when McAllister told him he couldn't go down to Twenty-eighth street?

A. He run the engine back into the house.

Q. Who was the engineer?

A. I don't remember his name.

Q. Did you ever hear that a signal was agreed upon?

A. I have heard so many stories about that, I did not pay any attention to them.

Q. Was there any class of men coöperating with your party, beside your party?

A. The mill men and the glass-house men.

Q. They all seemed to be in sympathy with the strikers?

A. Yes; they came across to the boys.

Q. They came voluntarily, did they?

A. Yes.

Q. And entered into the strike like the railroad men?

A. Yes.

Q. And took hold and assisted you?

A. Yes.

Q. Was there another class of men—tramps or strangers—who came there from a distance?

A. They crowded into Allegheny City, but we used to railroad them out of the town.

Q. You did not care to have the assistance of that class of men?

A. No.

Q. Were there any men who came from other roads and assisted you there?

A. Yes; we had men from other roads—the Baltimore and Ohio, the Lake Shore and Michigan Southern.

Q. How many men came from the Lake Shore and Michigan Southern?

A. Oh, two or three men.

Q. What did they say their business was?

A. That they came from such and such a road, and had a strike, and just come to see how we fellows were doing it.

Q. What business did they have to travel up to Allegheny City?

A. It was not very far.

Q. Was there any agreement or understanding between you strikers and the men who came from distant places, that they should concentrate at Allegheny City or at Pittsburgh?

A. There was some talk about that.

Q. Why did they want to come to that place?

A. Oh, not to Pittsburgh, just exactly.

Q. But that was considered to be the head-quarters of the strike?

A. Yes.

Q. And the principal strike or trouble would be there?

A. That is about what they thought. It was talked over in the Trainmen's Union.

Q. If the understanding among the strikers was that they were merely to leave their work and go home—to leave their trains—why was there an understanding to congregate at Pittsburgh?

A. I didn't say that. It was one of the things that was talked over, but nothing was decided on definitely. If we had struck on the 27th of June, there never would have been any trouble at all.

Q. Would the men have come from the Lake Shore and Michigan Southern to Pittsburgh, if a strike had taken place on the 27th of June? Was there any understanding, that if a strike took place then, that men from different points would collect at some one point?

A. There was some talk about it, but nothing of the kind was decided on definitely. It was all talked over.

Q. Then the men that came without any understanding?

A. They just wanted to see how things were going.

Q. Were they discharged men, principally, that came from the other roads?

A. No.

By Mr. Means:

Q. Do you know anything about that boat load of men that came down the Monongahela river?

A. No.

Q. Was there any understanding that that boat load should come?

A. Not that I know of.

By Mr. Lindsey:

Q. Did any other citizens, except the two men you have mentioned—citizens of Pittsburgh or Allegheny City—talk with you or offer to aid you in any way?

A. Lots of the citizens were around there in the crowd, and they gave arms to the boys, and encouragement. For instance, one man would have his shot

gun, and he brought it, and one man had a rifle, and he brought it out and gave it to the boys, and some had revolvers, and they brought them out.

Q. And arms were given to the strikers in that way, by the citizens?

A. Yes.

Q. Was ammunition given to you in the same way?

A. Yes.

Q. What class of citizens were they who gave the arms and the ammunition?

A. They looked as respectable as Mr. Lindsey.

Q. Were they laboring men, or were they professional men?

A. They looked like professional men.

Q. Were any business men among them?

A. Yes.

By Senator Reyburn:

Q. When was this?

A. On Friday, Saturday, and Sunday.

Q. Did they furnish arms and ammunition on Sunday?

A. Yes.

Q. Was there any other encouragement given to the strikers by the citizens, except what you have mentioned—the giving of the arms?

A. They furnished us food.

Q. Was this food given to you because you were protecting the property, or was it given to you because you were strikers?

A. Well, we were strikers.

By Senator Yutzy:

Q. Were arms furnished you for the purpose of resisting the authorities, either the civil or the military, or for the purpose of protecting the railroad property and other property?

A. We were not resisting any authorities at all. We had the arms to keep off the mob. We did not take the arms to fight anybody that had authority over us.

Q. What did you take the arms for?

A. To keep off the mob, or the tramps, or anybody else that wanted to interfere with us.

By Mr. Lindsey:

Q. Was that what the citizens gave you the arms for?

A. I didn't ask them what they gave us the arms for.

Q. What did they say they gave you the arms for?

A. Some of them said this, and some of them said the other thing.

Q. State what any one citizen said on the one side, and then on the other?

A. Some of them said, "Shoot the damned soldiers when they come," and some of them said, "If anybody interferes with you, or tries to wrong you, kill them right here"—talk of that kind. "You are out on a strike now, and have got the railroad company where you want it, and you are damned fools if you don't keep them there."

Q. Were similar remarks to those made by any of the persons who furnished you arms and ammunition?

A. I cannot say that, because I would only hear some of them talk as I mingled with the crowd. I would turn around and look at them, and then

pass on. Of course, everybody was excited—everybody had lost their brains—everybody was wild, and people did not know what they were doing.

Q. Was anything said, prior to this strike, by the citizens about furnishing you arms?

A. No; I didn't hear anything of the kind prior to the strike.

Q. Did anybody offer to furnish you flour or articles to live on during the strike?

A. Yes.

Q. To what extent?

A. Enough to keep us until the strike was over.

Q. Were there any business men who offered to do that?

A. They were all business men.

Q. Flour dealers?

A. Yes; and grocery men.

Q. Wholesale dealers?

A. Men we were dealing with on the road offered to keep us all the time we were on the strike.

Q. Offered to keep you all the time you were out on the strike?

A. Yes.

By Senator Reyburn:

Q. Did Mr. Jenkins offer to furnish flour to the strikers?

A. I have heard it so stated, but I cannot say so from my own knowledge. I don't believe he did. I don't believe he is that kind of a man.

Q. Did any other offer to furnish any?

A. No one except our grocery men—the men we were dealing with—they encouraged us. They knew their money depended on us.

Q. From your intercourse with the citizens, was it your understanding that you, as strikers, had the sympathy of the community?

A. Undoubtedly we did, sir.

Q. What led you to understand that you had their sympathy?

A. By their actions.

Q. But what else?

A. The way we would hear them talk in their daily conversation; but I think if the strikers had turned in when the mob commenced burning the property, and if the citizens had just turned in with them—and I know if I had been in Pittsburgh, I would have died or I would have stopped that mob—at any rate, I would have attempted it, and I think I would have had enough citizens to help me.

By Senator Yutzy:

Q. You mean help you to prevent the destruction of the property?

A. Yes.

By Mr. Lindsey:

Q. The sympathy you spoke of—was it general?

A. We appeared to have the sympathy of the whole community.

By Senator Yutzy:

Q. Did you have the sympathy of the citizens while destroying the property of the railroad, or while burning it?

A. I think if we didn't have it, I think that they, the citizens, must have acted very funny. I didn't stop to ask them.

Q. Did you have the sympathy of the citizens in the destruction of the railroad property?

A. I don't think that they cared very much for the Pennsylvania Railroad Company, even if it was burned up. They just stood around, and said it was none of their business.

By Mr. Lindsey:

Q. Were you over at the fire during Sunday?

A. No, sir; I kept decently away.

Q. Then how do you know that they stood around there?

A. I lived in a high house, and I noticed lots of people up on the hill. I had a spy-glass.

Q. You say that you, as strikers, had the sympathy of the citizens. Was there any antipathy on the part of the citizens against the railroad company?

A. So far as I was able to judge, I don't think the citizens of Pittsburgh ever had any high opinion of the Pennsylvania Company.

Q. Why?

A. On account of the freight discriminations, &c. I have heard business men say repeatedly that their business had gone away from them—that the Pennsylvania Railroad Company drove that away from them, and the newspapers have been crying the Pennsylvania Company down for years.

Q. Was that what encouraged the railroad employés to strike?

A. No. We thought that our cause was a just one, and that any one with any sense would be in sympathy with us.

By Mr. Larrabee:

Q. Were there any citizens who condemned the strikers—any of them who ever said a word in rebuke of the strikers at any time?

A. After the fire; yes.

Q. But prior to the fire?

A. No. I never heard any one say anything of the kind before.

Q. But none of the officials of Allegheny condemned the action of the strikers?

A. At what time?

Q. At any time prior to that Sunday?

A. I never saw any of the officials, except Mayor Phillips one time when I spoke to him. He said if we wanted to strike we had a perfect right to strike.

Q. But he made a speech?

A. Yes.

Q. Didn't he tell the crowd to disperse and let the railroad property alone?

A. Not that I remember.

Q. What was the tenor of his speech?

A. My recollection of it is, he said if the men were determined to strike, all right, that they had a perfect right; but as chief magistrate of the city he would ask them not to interfere with any one that wanted to work.

Q. Didn't he also say that you must not interfere with the railroad property?

A. That is my recollection of it—that we must not interfere with anybody that wanted to work.

Q. Don't you remember that he said anything about the railroad property?

A. I have no recollection about his using the word property.

Q. Did he tell them that they must keep the peace?

A. Oh, yes.

Q. That he was there for the purpose of seeing that the peace was kept?

A. Yes.

Q. And you told him that you would keep the peace?

A. Yes; and he must have had some respect for our words, because he withdrew his police.

Q. You had no trouble during the whole disturbance?

A. No, sir.

Q. There was no interfering with the men that wanted to work?

A. No; I said distinctly that—in the presence of the mayor—that if they had scabs enough to work the trains they could do it.

Q. Do you know of any railroad men at the time of the disturbance, who were ready to go out on the trains?

A. I didn't see a man. Every man I saw said he would not work.

A. J. Cassatt, *sworn*:

By Mr. Lindsey:

Q. State your residence, and official connection with the Pennsylvania Railroad Company.

A. I reside in Philadelphia, and am the third vice president.

Q. Just give us a statement, as to where you were when the first disturbance occurred at Pittsburgh, on the Pennsylvania Central railroad, and what came under your observation thereafter.

A. I was in the office on Thursday—in the office of the company—about two o'clock, when I got a dispatch from Mr. Gardner, at Altoona, addressed

to Mr. Frank Thompson, at Philadelphia, which was brought into me, on account of Mr. Thompson's absence in New York, stating that a strike had taken place that morning at Pittsburgh, among the firemen and brakemen, and that no trains had gone out that morning. I telegraphed to Pittsburgh, to get extra conductors and engineers, to take the place of those who had gone out, and I thought it would be over very soon. I went up to the country where I lived, and I didn't hear anything further until evening. On coming to the West Philadelphia office, I then heard that no trains had moved up to that time, and I thought that my duty ought to be there, and I got on a train and went to Pittsburgh.

Q. What time did you arrive there?

A. On Friday morning. When I got to Pittsburgh, I found that Sheriff Fife had called upon the State authorities, and that three regiments were getting under arms then.

Q. State now, what the civil authorities were doing at that time, and whether you had any interview with the mayor of the city, and if so, what the end of it was, or whether you tried to have an interview?

A. I was told when I got there, that Sheriff Fife had gone out to the mob, and had undertaken to disperse them with some deputy sheriffs who were sworn in, but that they hooted at him, and it had no effect at all. I was told that the city had no police force on in the day time, or only a few men. I saw Mr. Stewart, who was formerly connected with the company, and asked him to go and see Mayor McCarthy, and ask him to put on some of the discharged men, and gather a posse, and send them down to disperse the crowd, and get back the property. But Mr. Stewart came back in a short time, and said that the mayor would not listen to it. So I gave up the attempt to have a further communication with the mayor, and wait for the State to take its course.

Q. Who is Mr. Stewart?

A. He was formerly our freight agent at Pittsburgh, and he is very well known there.

By Mr. Larrabee:

Q. What is his first name?

A. David Stewart. What passed between the mayor and Stewart I heard from Mr. Stewart himself.

By Mr. Lindsey:

Q. Did you request the mayor to come to the Union depot, or request an interview with him?

A. No; Mr. Stewart was simply to ask him to swear those people in; and upon the mayor's refusing to do so, he came back and reported to me, and told me at the same time that McCarthy, the mayor, had declined.

Q. What time did Mr. Stewart return to you?

A. About noon, on Friday.

Q. Did you meet Sheriff Fife on your arrival there?

A. I saw Sheriff Fife and exchanged a few words with him, because I learned from Mr. Pitcairn and Mr. Watt what powers he had assumed.

Q. Did you see General Brinton during the day on Friday?

A. He came on Saturday.

Q. I mean General Pearson.

A. I did.

Q. And learned what steps had been taken by the State officials?

A. He told me what he had done. He sent Colonel Guthrie's regiment—and, indeed, I saw them when they were out—to East Liberty, and expected to go down with two other regiments and open the road. That attempt afterwards was abandoned, because they thought the force was not sufficient to disperse the crowd who were assembled there. They thought it

best to wait until they could get a larger force, when they thought they could overawe the crowd, without coming to actual hostilities.

Q. Was any attempt made to move any trains from that time up to four o'clock Saturday afternoon?

A. No, sir; no freight trains. Our men declined to go out. The engineers and conductors said they were afraid that the road was blocked with the crowd.

Q. And until the arrival of General Brinton, with his force, no attempt was made?

A. No; in fact, no attempt was made then.

Q. Had you no communication with the citizens of Pittsburgh after your arrival?

A. Not as a body. I saw a number of the citizens. I think Mr. Park and Mr. Thaw, and Mr. James Park, junior. I think I saw him on that day, but I don't remember the citizens—quite a number.

Q. During the day Friday and Saturday, state whether the police officers made any attempt to disperse the crowd that were assembled about the railroad?

A. Not to my knowledge?

Q. Had you crews that were willing to go out in case they could get out without any disturbance?

A. We had a number of crews to go out after the road was opened.

Q. On Saturday had you the crews?

A. Yes. On Saturday I walked down with the troops as far as the round-house and went into the round-house myself, and saw a number of engineers that said they would take their trains out as soon as the road was open. We might have got up about a half dozen crews if the road was

opened, and if they could go in safety. We had the engines all fired up and backed out, and ready to start at fifteen minutes' notice.

Q. Were the engineers and the firemen at their posts at the time the troops arrived?

A. We had men at the round-house—engineers and firemen and conductors and brakemen, ready to take the trains out, and we were going to send out double-headers, too.

Q. How many crews had you ready then?

A. They reported twelve or fourteen crews—enough to take out that many trains. I saw a number of men in the round-house, and talked to them, and they said they would go if they had protection.

Q. Were you at Twenty-eighth street when the collision occurred with the troops?

A. No, sir. I went down with the troops as far as the western round-house, and went in there with the plan of starting the trains at once, as soon as the tracks were cleared. I went into the round-house and made arrangements to start, when the foreman of the machine shop came to me, and said a riot was going on outside, and I got on the roof and witnessed the collision between the troops and the people. A great number of stones were thrown and shots were fired by the crowd, and then I saw the troops fire in return.

Q. After the troops fired on the crowd, the crowd ran, and the tracks were cleared for a time?

A. Yes.

Q. At that time were your crews ready to go out, during the time the tracks were cleared?

A. They were. I can state that the only part of the track that was clear was on Twenty-eighth street. The crowd lined the road above Twenty-eighth street, and there was a crowd at East Liberty.

Q. Was that the reason why the trains did not start?

A. Yes; the men did not think it would be safe to go. The crowd dispersed, and while I was on the roof I got a message from General Pearson—for he was in Mr. Pitcairn's office, three or four hundred feet from where I was—and that he wanted to see me, and I went there, and General Brinton came in at the same time, and I was present when the discussion took place between the two gentlemen as to the proper course to pursue.

By Senator Yutzy:

Q. After the firing?

A. Yes; General Brinton said that he was not satisfied with the orders he had; that his orders were to go down and take possession of the property, but that none had been received about firing on the mob, and that he could not order his men to do it, and he wanted orders to disperse the mob, as it was re-assembling, and drive it away and make an end of it; or he wanted orders to get his command into a different position; that they were hemmed in between the shops and the hill, and were very much exposed to a fire of stones and a fire from the mob, and he did not think the place tenable, unless he got orders to attack and drive away the mob. General Pearson hesitated quite a while, and finally, after five minutes' discussion, or more, he said he did not think it his duty to attack the mob with that small force. He had no doubt that General Brinton could drive off and disperse the crowd, but there would be a great loss of life, and he thought the best thing was to retire the troops and wait for reinforcements, and then overawe the crowd and prevent bloodshed. I did not take any part in the discussion. I think that General Pearson asked me one or two questions, and I said that I was not a military man; that all I wanted was to get possession of the property again. I went afterwards to the Union depot.

Q. And did you remain at the Union depot all night?

A. To one o'clock, and then went to the Monongahela House.

Q. Were you there when General Pearson came in from the round-house?

A. I was.

Q. Did you hear what was said by General Pearson to General Latta?

A. No; I came into General Latta's room about seven o'clock that evening. My room was on the same floor. I saw General Pearson sitting down there, and he said he had come down to communicate with General Latta. I made some remark about his getting there—how he got there, and he said he had come along the tracks and among the cars, and was not recognized. I went away, and when I came in afterwards he had gone. I was not a witness of anything that passed between the two gentlemen.

Q. Do you know where General Pearson was during the firing between the troops and the people?

A. I believe he was in Mr. Pitcairn's office. I was so told that he was in the office at the time—by the clerks.

Q. Do you remember how General Pearson was dressed when the troops went out to Twenty-eighth street?

A. He was in a sort of undress uniform—light pantaloons and ordinary fatigue coat—a military coat. He was not in full uniform.

Q. In fatigue uniform?

A. Yes; a blue military sack coat, and, I think, light or white pantaloons.

Q. Did he have his sword?

A. No; I think he had a little cane in his hand.

By Senator Yutzy:

Q. When he went out?

A. When he went down with the troops.

By Mr. Lindsey:

Q. How was he when he returned?

A. In the same way, except that he had his coat on his arms. He was in his shirt sleeves. It was a very hot evening—a close evening.

By Senator Yutzy:

Q. Did he wear his belt?

A. I think not; but I am not positive about that.

By Mr. Means:

Q. Did you observe a belt he had on—a very fine belt?

A. No: he may have had it on, but I don't recollect it.

By Mr. Lindsey:

Q. In the conversation that you had with James Park, junior, do you remember which day it was—whether it was Friday or Saturday?

A. I think it must have been on Saturday—I think it was.

Q. Can you state the nature of the conversation?

A. Mr. Park, I think, was arguing against the propriety of sending the troops down, and said that the mob was a very violent one, and there were very large numbers of them, and that we ought to have eight or ten thousand troops to disperse them, and he thought that the troops ought not to go down. I replied in substance that was not my business. That I was to open the roads as soon as the tracks were cleared, and I supposed that General Brinton had his orders, and would obey them.

Q. Did he suggest that it was a bad time to undertake to open the road that afternoon?

A. I think he did, but I gave him to understand clearly that I had no control over the matter; that I was only anxious to get the road open. He wanted me

to suggest to the State authorities, or to ask them not to go down with the troops that day, or until we got reinforcements, and other suggestions were made by some other gentlemen—by Mr. Thaw—but I declined to have anything to do with them. In fact, Mr. Thaw had written out a note urging that the troops should not be taken down. I said I didn't think it was our business; that we were in the hands of the State, and that they ought to decide. Mr. John Scott, the solicitor of the Pennsylvania Company, came into the office while the discussion was going on, and said I was right, and Mr. Thaw then tore up the note; but he then made a strong appeal to me, personally, not to have the troops sent down; but I had made up my mind not to interfere in any way with the State officials, and I did not. I took the position that we were in their hands, and it was their problem to work out.

Q. Did General Pearson talk to you about the propriety of undertaking to open the road Saturday afternoon?

A. There was no discussion about it. It was taken as a matter of course that the troops would be down there. On Friday it was talked about, but on Saturday, when the Philadelphia troops arrived, there was no discussion about it. It was understood that they were to move down there at once.

By Senator Reyburn:

Q. At the time of this conversation between General Brinton and General Pearson in the office, did you hear General Brinton ask for permission to attack the mob?

A. I don't know whether it was put in that form, but he said he had force enough to disperse the mob and to keep them away, and wanted positive orders to attack them. My recollection is, he objected to the form of the orders he had—it throwed the responsibility. He said I have got force enough, and my men are ready to obey orders. I have got force enough to disperse the mob if I have orders to do so. He stated to General Pearson, when he came in, that he had not given the orders to fire, nor had any of his officers, but that the troops had fired in self defense, which I think I can justify myself, as I saw the stones and the pistol shots fired at them before

they turned and fired; and, indeed, the way in which the fire was returned led me to believe that it was not upon an order. It was scattering at first, but then became general.

Q. At the distance you were off, what led you to believe that no order was given to fire?

A. I was about one hundred and fifty yards, or perhaps a little less than that away, and I don't suppose the troops could have heard a command, if given, as there was such a shouting and yelling. The crowd was very large, and they all seemed to be shouting and hallooing. There was quite a shower of stones before the firing commenced, and when it did commence it was scattering, but then became quite general. It lasted a minute or two minutes, and I could see the officers trying to stop the firing, after it commenced.

By Mr. Lindsey:

Q. You remained at the Union depot until one o'clock?

A. Until one o'clock, Sunday morning.

Q. Did you learn that the mob had commenced firing at that time?

A. Yes; we saw the fire at that time. I left the depot in the first place pretty thoroughly worn out, and then it was urged that there was an ill feeling against Mr. Pitcairn, and General Pearson, and myself, and they thought it might endanger the building if I remained there, so I went up to the Monongahela house, and spent the night there.

Q. Did you have an interview with either General Latta or General Pearson, in regard to preventing the mob from firing the property?

A. General Pearson had left at that time, and General Latta had no force at all. There was a mile of space between the depot and the round-house, where the troops were, and there was a crowd of people all along that distance.

Q. Had General Pearson his coat off when he came in?

A. Yes; it was a surprise to me that General Pearson could get out at the time he did. He must have been disguised. He had his coat on his arm. He must have got in among the cars.

Q. Were you on the ground, anywhere in the vicinity, on Sunday?

A. I was at the Monongahela house until eleven or twelve o'clock on Sunday. I then went over the Point bridge, and took that road because there was no crowd there, in company with Mr. Bennett, who drove me over. We went to Mr. Layng's office, and afterwards came back to the Monongahela house, and stayed there until two or three o'clock, and I then went to Allegheny City, and stayed there until eight o'clock, trying to get provisions to General Brinton. I succeeded in getting two wagon loads off, about eight o'clock in the evening.

Q. Had you or any of the officials of the road been able to ascertain whether there was any arrangement for a strike of the employés of the road?

A. We had heard that the men had organized the Trainmen's Union, as they call it, and that a strike was threatened; but on looking at the thing as carefully as we could, we came to the opinion, or we did not believe, that any strike would take place, and we were rather surprised when the strike did take place. We never had any delegations from the men or any committees come to see us.

Q. Were there any complaints from the men after the issuing of the order reducing the wages ten per cent.?

A. There was no formal complaints. A committee of engineers came to see Mr. Scott, and after the interview with him, they asked him to put his statement in writing—what he said to them—the necessity for the reduction and the disposition of the company to restore the wages when the business of the company revived; which he did. In reply, they wrote a letter acquiescing in the reduction, because the company believed it was a necessity, and that they would accept it as cheerfully as they could.

By Mr. Larrabee:

Q. What time was that?

A. Shortly after the reduction took effect or after it was announced—a couple of weeks before the strike. We never had any communication from any brakemen or firemen or any one respecting that. This running of double-headers, to which they objected, had been practiced on the Pittsburgh division for a number of years, but not to the same extent. Many of the coal trains were running with two engines, and, as a matter of economy, it was decided to run all through trains with two engines. On other portions of the road, we ran fifty or sixty cars to a train, but at that end, we only ran seventeen cars with one engine, and in increasing the numbers of cars, we reduced the number of train hands, and saved expenses; and in order to do this, we decided double-headers. Some of the men objected to that. That may have been a pretext for the strike, but the men were not working any more hours.

Q. Did the issuing of the order running double-headers necessarily discharge any men?

A. It reduced the force of brakeman.

Q. And of engineers?

A. Not of engineers or firemen.

Q. Conductors?

A. Conductors also.

Q. And brakemen?

A. Yes; the men at that time were making short time, because business was slack. They were not making more than three, four, or five days a week—five trips, and the monthly wages were small. We had discharged a good many men—twenty-five or thirty per cent. of the men, but the remainder, of course, would have made better wages, and we paid by the trip only.

Q. How did the business of your company compare with the business done by the company for the three months preceding that time?

A. It was much lighter. The business fluctuated a good deal. There is sometimes a market for grain, in Europe for instance, when the shipments are large, and then again the shipments slack off. That very day I got a message from Mr. McCullough, the vice president of the western lines, stating that there was a brisk demand for cars, and asking me to send cars. If they had only waited a couple of weeks, they could all have had enough to do.

Q. How did the business compare with the amount of business done at the same time in the previous year?

A. We very often have periods of light business, quite as light as that—very often—that last a few weeks or a month or two.

Q. Was that what induced the company to reduce the wages—the falling off of business?

A. No; because we did not anticipate that falling off of business. In fact, the tonnage that year showed an increase, but on account of the low prices at which the business had to be hauled, we are forced to cut down expenses or else break.

Q. Freights were lower than they had been?

A. Yes; they had been decreasing for a number of years. We had to do the work cheaper.

Q. Was that in relation to through and local freights, both?

A. Yes; everything. Our local business was formerly the much larger portion of our trade, and the rates at which they were done were lower than they had been.

Q. Did that ten per cent. reduction apply to all the officers and employés of the road?

A. Yes; to all the officers and employés of the road, from the president down.

Q. Did it apply to the Pennsylvania Central Railroad and all its branches?

A. Yes; the order was given simultaneously to reduce on all the lines east and west of Pittsburgh. It was the second reduction made since the panic of 1873. Our board thought that the shrinkage or rather the reduction in the wages of that class of labor had been much greater than nineteen per cent., and that our men ought to be able to stand that.

Q. When was the first reduction made?

A. In the fall of 1873.

Q. What was the amount of that?

A. Ten per cent.; and then this reduction of ten per cent. made an aggregate reduction of nineteen per cent. on the original pay of 1873. Nearly every other class of labor had come down more than that.

Q. It was the only reduction made since 1873?

A. Yes.

Q. Were any of the employés of the road getting less than a dollar a day?

A. None of the train men were. I think that some of the apprentices in the shops were—the boys—and my impression is that they and the laboring men on the track were getting ten cents an hour, or a dollar a day. When the last reduction was made it didn't apply to the men getting a dollar a day.

Q. A dollar a day, or less?

A. Yes.

Q. Did these men who were working at a dollar a day have an opportunity to put in full time?

A. They worked by the day—full time—and the only thing that caused them to lose any time was bad weather, when they could not work.

By Senator Yutzy:

Q. You mean the laboring men?

A. Yes; laborers about the shops—unskilled labor—on the track.

By Mr. Means:

Q. Do you know anything about citizens going to Mayor McCarthy and asking him to swear in police officers to maintain peace in the city of Pittsburgh?

A. I don't know. All I know is what Mr. Stewart told me—about the mayor's reply to him when he took a message to him, that he would not swear in the policemen who were discharged—we offering to pay the wages.

Q. The Pennsylvania Railroad Company offering to pay the wages?

A. Yes; I was told he had discharged about a hundred men, and we thought that the hundred men who had been on the force—accustomed to the people—could be better handled. We made the offer to pay them.

Q. Did you ever have any strike before?

A. I don't remember any strike in the last seventeen or eighteen years on the Pennsylvania road.

By Senator Reyburn:

Q. Had any differences arisen between the employés and the company at any time?

A. Oh, yes; differences have arisen, but none that were not adjusted by compromise.

Q. Was there any difference existing between the company and the employés about the time of the strike on the Reading railroad—you remember there was a strike a few months before on the Reading railroad—principally the engineers?

A. There was no difference, at that time, that I know of.

Q. What is the general policy of your company in such cases—cases of disagreement or dissatisfaction between you and the men?

A. We hear the statement of the men, and if we think they have any just ground for complaint, we endeavor to remedy them, and after we have said so and so, we stand by our position. We looked upon this objection of the men to the running of double-headers as an interference with our own business. We thought that if we would let them say how many engines or cars should go to a train, we might as well give up the management into their hands, so we did not have any discussion about it. But we had no formal complaint. No committee waited on us in regard to that. We simply knew that some of the men objected, but from no person had we any complaint in a formal way. We did not think it a thing that affected the men, personally, but thought it simply a question of management.

Q. Always, when any difficulty had arisen or any complaint had been made, you had come to an amicable solution?

A. It had been the result before. I don't think that any strike on the road has taken place—certainly not since 1860, probably not for two or three years before that. There was a strike of engineers before that which was adjusted by conference.

Q. You knew nothing of the action of the sheriff at Pittsburgh, or the proclamation of the Governor, until you arrived at Pittsburgh?

A. Nothing.

Q. Then you had nothing to do with the proclamation?

A. Nothing whatever. I never saw it until it was printed in the papers.

By Senator Yutzy:

Q. To whom did you first make application for protection to your property?

A. I stopped at Greensburg, on my way out, and saw the Lieutenant Governor, supposing that, in the absence of the Governor, he was the proper

one to take action, and having been advised, on my way out, that Sheriff Fife had telegraphed him for assistance. I stopped over one train, the trains being run close together, to ascertain what action he was going to take, and I came on the next train to Pittsburgh.

Q. Did you ever make any application to the mayor of Pittsburgh or of Allegheny for protection?

A. I did not make any personally, but it was done by the officers before I got there.

Q. Did you make any direct application to the State authorities for protection?

A. No, sir.

Q. Do you know who made the application to the State for protection?

A. I was informed that Sheriff Fife did. I was informed by telegraph, on the way, on Friday night—early on Friday morning, I think, at Cresson, that Sheriff Fife had called upon the Lieutenant Governor for assistance; that he had not force enough to disperse——

By Mr. Lindsey:

Q. You were informed by your solicitor, Mr. Scott, what had been done in the way of calling for help on your arrival?

A. Yes; I was informed that he had first called upon the sheriff, and that the sheriff had made an attempt to recover possession of the property, and failed, and that the sheriff had made a formal call on the State officials.

Q. Did Mr. Scott state that they had called on the mayor before calling on the sheriff?

A. I don't recollect that. I don't know. When I got there, on Friday morning, the Governor's proclamation had been issued, and the troops were called out, and the matter was then in the hands of the State.

Q. Was any call made by you, or by any other officer of the Pennsylvania railroad, to your knowledge, upon the Governor directly?

A. No, sir; none whatever.

By Senator Yutzy:

Q. Was there any effort made by the strikers, or the railroad employés, to compromise the differences between the railroad company and themselves?

A. We heard nothing from them at all up to the time of the strike. On Friday afternoon, a committee, representing the strikers, consisting, I think, of engineers and firemen and brakemen, two or three of them, called on Mr. Pitcairn in person, and presented a written demand, stating that unless these demands are complied with, that they would not run their trains. This committee met Mr. Pitcairn on the platform, and I went out there to hear what they had to say. He handed me this paper, and I read it, and handed it back, and told him to have no further talk with them; that they had demanded such things that we couldn't grant them at all, and it wasn't worth while to discuss the matter. They demanded that their wages should be raised, and that double-headers should not be run; that no more than seventeen cars should be run to a train; that each engineer should have the privilege of selecting his own fireman, and that that the firemen should not be changed without his consent, and a number of other things of the same kind.

By Senator Reyburn:

Q. They also had up the classification?

A. Yes; the classification of engineers was to be abolished, and no man engaged in the strike was to be discharged. In other words, they proposed taking the road out of our hands.

Q. What was the classification of engineers?

A. It was introduced on our road, on the lines west of Pittsburgh, in 1871 or 1872, I think. The engineers asked for an advance of wages at that time, claiming that they were not being paid as much as other lines were paying—other lines that competed with us. A committee, representing each division of the road, called upon Mr. Scott at that time and asked for an advance, which resulted in the meeting being adjourned to Pittsburgh, where I met them. Mr. Layng and I presented this plan, stating that we were willing to advance the older men, but we couldn't advance the younger men in the service. I think it advanced all men who had been in the service over ten years ten per cent., and made no advance for the others. The understanding was that there should be four classes of men. In the first class, those who had served three years; that they should be in the second class two years; and be in the third class one year; and a man who was promoted from a fireman, should be in the fourth class. We made an advance of ten per cent. in the one class, and the second was ten per cent. below the first, and the third was ten per cent. below the second.

By Senator Yutzy:

Q. You graded the men according to their time of service and efficiency?

A. According to their value to the company.

Q. Was that one of the things complained of by the men?

A. I didn't know that there was any complaint about that until this committee came on Friday afternoon, and that was one of the things they wanted to abolish—the classification.

Q. So that they should be all alike?

A. All alike. I doubt very much to-day whether it is the sentiment of the road at all. I don't think that fair and sensible. It is the proper thing to do, but I don't think, however, that had anything to do with the strike, but they thought while they were asking for so many things, they might as well ask for that, too.

SCRANTON, *March 29, 1878.*

The committee met at the Wyoming house, at six o'clock, P.M. Mr. Lindsey in the chair.

All members present except Mr. Dewees.

R. H. McKune:

By Mr. Lindsey:

Q. State where your residence is?

A. City of Scranton.

Q. Were you mayor of the city in July last.

A. Yes, sir.

Q. How long had you been mayor previous to that time?

A. I took the office of mayor in 1875—20th March.

Q. When did your term expire?

A. It will expire next Monday, sir.

Q. I wish you would just go on Mr. McKune, in your own way, and make a statement of the disturbance that occurred in your city here in July last, giving the date when it commenced?

A. Will I commence with it at the commencement of the suspension?

Q. I think you had better give us a summary of it right along?

A. On Sunday evening, July 22, I think, I received notice, or received information, in regard to the riot at Pittsburg. I at that time was at Ocean Grove. I immediately started for home, taking the train next morning, and reached home Monday evening. I found the citizens here very much excited over a rumor of a strike that was to occur.

Q. What day was that?

A. On Tuesday. I attempted to get my council together, but found that they were opposed to taking any action for protection in any way, and gave it up. The strike was fixed to occur the next day. On Wednesday, I went to the depot, and was in the office of the superintendent, when a gentleman connected with the strike came in and stated to Mr. Halsted——

Q. The superintendent of what road?

A. Delaware, Lackawanna and Western—that the trains could go no further. The superintendent asked me for protection for the train.

Q. On the 25th?

A. On the 25th; yes, sir.

Q. What time of day?

A. This was at nine-fifty, sir. It was on the 25th, and this young man said that they would permit the engine and mail car to go through, but none—all the other cars to go, or the coaches—none of the coaches to go.

Q. Do you know who that gentleman was?

A. Mr. William F. Halsted, the superintendent of the road, will know. I think we will have him.

By Mr. Means:

Q. Do you know yourself?

A. No, sir; I do not. He was one of the employés of the road. He was one of the members of the executive committee—one of the executive committee of strikers. Mr. Halsted asked me if we could give him any protection to get the train through. The crowd was dense. I told him no. That my advice was that the engine be taken and run into the yard. I might say right here, in coming through New York, I had had an interview with Moses Taylor and other parties connected with the road, and I gave them to understand that I had no force here of any moment, and, from what I knew, that the Governor was out of the State; that I, probably, could not have any to assist them in getting a train through, and that the best way was not to attempt to push a train through until we could get sufficient force to do so. That was why I advised Mr. Halsted so to do. Mr. Halsted gave orders to have the engine taken and placed in the yard—not in the round-house, but in the yard—refused to permit it to go without it went with the train. Previous to that, I telegraphed in respect to the difficulty to Governor Hartranft, and received this telegram: "The Governor will be here at one o'clock. Let things remain in *statu quo*, and do not precipitate a collision." Signed by C. N. Farr.

By Mr. Lindsey:

Q. Where is it dated?

A. Dated Harrisburg. Immediately upon the cars being—upon the engine being taken off—I telegraphed to the Governor stating the fact that the strikers had taken the coaches off. That is, on the 24th instant—the 25th, we have got the dates wrong there—no, the dates must be right, this must be wrong, July 24. I telegraphed to the Governor like this, "The coaches have been taken off the mail train." During the afternoon the Governor's dispatch, after arriving, advising Mr. Halsted to let the mail car go through, which dispatch was sent not only to Mr. Halsted, but to the strikers. Their meeting was in the office immediately opposite to mine, and we then consulted in the evening or immediately, and from what I could gather as to the wishes of the parties—the board of directors concluded not to put the train through. On July 26, everything during the day was quiet. I would say on the 26th, the miners came out—the employés of the Delaware, Lackawanna and

Western Railroad Company, with also the mining company—they came out from their works to hold a meeting at the Round woods—a meeting probably of six or eight thousand.

Q. Where are the Round woods?

A. The Round woods lie in the Fifth ward—just on the borders of the Fifth ward, and the adjoining township. At this meeting a committee was appointed for the purpose of conferring with Mr. Storrs, asking for an advance of wages, and so on.

Q. Who was Mr. Storrs?

A. He is general manager of the coal department of the Delaware, Lackawanna and Western Railroad Company. This is Thursday. The streets began to be filled at that time with strange faces, faces of which my officers, nor none of the old citizens, nor the foreman of any of the companies could identify as citizens of our city. As I said before, I had asked a member of council, and tried to get my council called together to see what they would do to assist me in regard to the matter, and there was nothing done, and I then called together an advisory committee, consisting of seven of our leading men of the city. I selected gentlemen who were not connected in any way, who were all property holders, and not connected in any way with any of the corporations. That advisory committee met in the morning, at nine o'clock, and at three o'clock in the afternoon.

By Mr. Lindsey:

Q. On Thursday?

A. Yes, sir; and the whole time during the strike. On Thursday the pumps in the mines were vacated—ceased to work—and on the 27th of the month I received a notification from the Delaware, Lackawanna and Western Railroad Company, through their president, Sam Sloan, like this:

ROBERT H. MCKUNE, *Mayor of the City of Scranton:*

You are hereby notified that by reason of strikes and threats and unlawful conduct of disorderly and evil disposed persons, the Delaware, Lackawanna and Western Railroad Company apprehend that their property, situated within our city, is in danger of damage and destruction, and that the said company is unable to protect its rights and property, and look to you to use such lawful measures as will prevent its destruction and assure its safety.

DELAWARE LACKAWANNA AND WESTERN RAILROAD COMPANY,
Per SAM SLOAN,
President.

The same day I also received a notification from Mr. W. W. —.

By Senator Yutzy:

Q. Who was it signed by?

A. The railroad company, per "Sam Sloan, president"—not "Samuel," you will notice it is "Sam Sloan." I also received from W. W. Scranton, superintendent, on the same day—W. W. Scranton, general superintendent of the Lackawanna Iron and Coal Company—a like notification. I should state that on the 26th I had received from Mr. Lathrop, the receiver of the Central Railroad Company of New Jersey, a like notice. On receiving this notice I immediately placed a few special policemen out, and in consulting with my advisory committee, it was thought best to swear in a number of special policemen from among our citizens, who would be willing to act in case of emergency or outbreak, or the like of that without compensation.

Q. Will you tell how many policemen you had in the city at that time?

A. I had in the city, at that time, nine—ten regular police for day and night service, and put on eight specials. I had eighteen policemen in a city of thirty-five thousand inhabitants. I run the city now with eleven policemen.

By Mr. Means:

Q. Will you please state just here, if you had any difficulty in getting men to serve as police officers, that were citizens of this city?

A. Yes, sir.

By Mr. Lindsey:

Q. Let him get through with the history.

A. In the mean time, I had continued my—I may say that on the 25th, a committee from the railroad employés, a committee from several of the organizations of strikers, waited upon me to ask me to issue a proclamation prohibiting the sale of liquor. I issued the following:

MAYOR'S OFFICE, SCRANTON, PENNSYLVANIA, *July 25, 1877.*

The general public opinion, as expressed to me, seems not to apprehend any violence or danger, unless a too free use of liquor shall be indulged in; and, at the request of committees from the workingmen's organizations and others, who have called upon me this morning, requesting me to close all places where liquor is sold, I, therefore, in compliance with said request, ask of you to close your bars, and to strictly abstain from the selling of all kinds of liquor for the present.

R. H. MCKUNE,
Mayor.

I will state that, as a general thing, that request was complied with up to the 27th or 28th; in fact, all of our eating-houses sold no liquor during the whole time of the strike. Immediately upon my advisory committee coinciding with me in regard to my special police—they were afterwards known as vigilants—I placed the matter in the hands of Colonel Hitchcock for organization, and Captain Ripple and Captain Merryman. They immediately commenced their organization of enrollment, and during Thursday, I think, some thirty enrolled themselves. In the meantime, on the

27th, I had from Carney's, near Harrisburg—there seems to be two dates here, one of 27th and the other 28th—the following telegram:

ROBERT H. MCKUNE, *Mayor*:

Can do nothing for you at this moment. If you have patience for a few days, I hope to be able to relieve you.

J. P. HARTRANFT.

Q. Dated where?

A. That is on the Pennsylvania Central, dated 28th. This was in answer to a telegram to know if I could have troops. He had previously sent me a message like this:

"General Osborne and troops have been ordered to aid civil authorities. His attention has been called to your dispatch. His is all the force now at command."

I will state that General Osborne has command of forces of the division that belongs here in this section, and my committee were of the opinion that that force would be of no benefit to us. Thus things remained in a comparatively quiet state until the 27th, when I sent the following message to the Governor:

"The Delaware, Lackawanna and Western Railroad Company have asked me for aid, to prevent their mines from being flooded, and otherwise destroyed. I am unable to render the assistance required. Can you have sent here a body of United States troops. The militia are in sympathy with the strikers, and, in the opinion of my advisory committee, would be of no avail. The presence of United States troops, in my opinion, would secure the desired purpose, without a conflict."

It was in answer to this dispatch that the Governor sends this of the 28th, marked Carney's. On Friday evening was the first evening that I met any portion of my posse, or special police, as they were called; swore in at that time a portion, and again on Saturday they were furnished with arms, which we procured here—Remington rifles, mostly. There were some muskets that had been left by the companies, in the armories of the companies that had gone to rendezvous with General Osborne, which I took possession of, and had them sent to my head-quarters. I had established my head-quarters for the posse at the Lackawanna Coal Company's store, where the arms were all kept, and where men were on duty day and night. Thus matters stood with us until Sunday, when, sending for a committee of the employés that had been appointed at the meeting at the Round woods, and laying the state of the case before them, that a cessation of the pumps in the mines was only going to destroy and injure them; that as far as the company was concerned, they would be but little injured, for they didn't care anything about the coal getting out; that some of our mines were in such a situation that if the lower pumps were drowned out, which they would be, it would take six months, or even a year, for them to get pumped out again. The committee, after a couple of hours talk with them, were enabled to see the folly of their course, and I issued there, in their presence—framed the following proclamation, which I had posted in the many mines in the disaffected districts, during the riot:

MAYOR'S PROCLAMATION.

WHEREAS, A difference of opinion having occurred between the employers and employés of several corporations in this city, whereby labor at the different collieries has been suspended, and on account of this suspension, serious injury has been effected, the most serious of which is the non-working of the mines;

And whereas, I have the assurance that the men at the collieries are willing to render me their most hearty cooperation for the protection of those who may desire to work the pumps, I hail this as a good omen, and trust that no opposition may be made to the starting of the pumps, and I hereby invoke

the good offices of all good citizens to aid the companies in protecting their property of every kind from injury or destruction, and I do also hereby warn all persons that the property not only of corporations, but of individuals, must be protected, and that any act of violence or lawlessness will be by me resisted with all the force I can command, and to this end I call upon all citizens of the city to aid me.

ROBERT H. MCKUNE, *Mayor*.
MAYOR'S OFFICE, CITY OF SCRANTON, *July 29, 1877*.

Immediately upon the adjournment of the committee, I notified Mr. Storrs—Henry R. Storrs—the superintendent of the collieries here, and on Monday morning the men were put in at the pumps to work, and the pumps in the most of the mines were set to work. In the meantime, on Saturday, at the meeting of the councils, the following resolution was passed:

"Resolved by the common council, (the select council concurring,) That it is the sense of the councils that there is no danger of riot or disturbance in the city, and that there is among the workingmen no disposition to disturb the peace of the community, and that there is at present no necessity for any increase of the special police, and that any so-called policemen or watchmen or the employés will not be paid out of the city funds.

"On motion, the clerk was instructed to notify the mayor of the action of the councils on the above resolution.

"All of which is hereby respectfully submitted."

So, you see, I was running this thing somewhat single-handed. On Monday, the pumps, as I said, were going, and on Monday morning, at nine o'clock, I sent for the executive committee of the brakemen and firemen of the Delaware, Lackawanna and Western Railroad Company, and, in consultation with them, I there gave them to understand that the citizens of the city were desirous of having their trains placed again on the road, so that

they could have their mails, the banks could have their money, so that the men who had been at work could receive their pay, and, after a long conversation, lasting three hours, I gave them to understand that I should start a train next morning, at the regular schedule time, nine-fifty, and that any attempt on their part to obstruct it would be met with all the force I could command. The gentlemen of the committee wanted to know when I wanted an answer in regard to whether they would run, and I told them I would like an answer that afternoon, at four o'clock. They immediately, upon leaving my office, called for a meeting of the men who were here in the city, and, at three-thirty, took a vote in regard to the question of resumption, and, by a vote of eighty-two to seven, voted to resume work, and at six o'clock that evening the train that had started from Binghamton, upon a telegraph, passed through here. So on Tuesday evening, the pumps at the mines were working, the road was open. There was a general feeling of quietude among our citizens, and hopes that the strike was passed. On Tuesday morning, the committee from the Round woods, as we called them, met at my office for the purpose of holding consultation with General Brisbin.

Q. You say that was on Tuesday?

A. Yes. The legal adviser of the Delaware, Lackawanna and Western Railroad Company, in that interview, lasting some three hours, the whole situation was very thoroughly gone over on the part of the men, by almost each one of them taking some part in the debate, Mr. Brisbin, taking the standing and circumstances of the company and the men, then made the following proposition: That in case hereafter, any differences of opinion arising between employer and employés, that upon the appointment of the committee from the employés, and notifying Mr. Brisbin of the same, that he would call the board of directors together, forward to this committee transportation, and that they should have the opportunity of telling their grievances, direct to the board of directors. This was one point the men tried to gain, in their long strike—the six month's strike—one they gained at this time. I never saw men seemingly more highly pleased with the result, and not only those, but Mr. Brisbin himself. During the afternoon and evening,

when the information got through the city—when the evening papers came out, announcing the facts—the opinion in regard to the strike was, that the strike was about over, and we had rumors in regard to a meeting at the silk-works. We all presumed that the reports of this city would be given to that meeting, and that the meeting would, without question, resolve to go to work. The question of the advance of wages, had been abandoned, almost in the first interview with Mr. Brisbin and Mr. Storrs. In the evening, I met a number of special police posse at my head-quarters, stayed there probably half or three quarters of an hour, talking matters over, and we supposed that the emergency was over, and we relaxed, as it were, our vigilance, and most of the men went home. I had not been in bed, at the time I reached home, from the Tuesday night previous, at all. I stayed at home next day and night. I went home that night, and went to bed. I reached my office that morning, at about nine o'clock. I had relieved the officers that had been on day and night.

Q. Do you speak of Tuesday or Wednesday?

A. Wednesday, the 1st day of August. In the meantime, I might say, right here, that we had established a code of signals, to call any posse together, if it should become necessary. I need not say what it was—it was a code of signals to be given through one of the church bells. A gentleman was at my office, who represented the posse to carry the signal, or carry the orders for the signal to the men who were at the bell, and they were not to ring the bell without orders so given by the party. I remark this, for the purpose of showing in regard to what occurred now, upon the morning of the 1st. I had been hearing some cases, and was about through, when some parties came in, and said there was a large crowd coming up from the silk-works.

Q. What time was that?

A. I should think about half-past ten.

Q. In the morning?

A. Yes, sir; half-past ten or a quarter to eleven. One gentlemen, young Mr. Logan, came in with a request from Mr. Scranton that the signal bell should

be rung. About the same time, Colonel Hitchcock, over the posse, came in and informed me that a crowd was down round in the neighborhood of the machine-shops, that I showed you to-day, and he immediately left the office. I gave, both to him and Mr. Logan, this order, that they might go to head-quarters as quickly as they could, and any of the boys of the posse that they might see, to notify to come immediately there, and remain there till I should send orders, or the signal bell should be rung. About the same time, Lieutenant Brown came in, and I then put on my hat, and we walked up the street together. We noticed, or, at least, came across a number of the boys, and we ordered them immediately up to head-quarters; and when I came to the corner of Lackawanna and Washington avenue, looking down the machine-shops of the Delaware, Lackawanna and Western Railroad Company, I saw the whole space there covered with a large number of people.

Q. Give an estimate of the number, if you can, Mr. McKune?

A. Well, sir, from what I could see—what came under my observation, I should say three or four thousand people, sir, upon the railroad, through and in that part below the road. There were but very few people, we passed but very few people, comparatively, upon the main avenue, as we went up. I went down through the crowd, and as I struck the outer edge of the crowd, I said to them something like this: "Boys this won't answer. You are doing wrong. You must disperse and go home." Most of them that I first saw—the great majority of them—were of those that I knew. The way was immediately opened. Lieutenant Brown was with me. We walked side by side. I went in that way down as far as the office of the car shops—the Mackanny office, as I call it—having learned that Mrs. Mackanny and her daughter was in there, and was very much terrified, and wished to be got out. I found the door locked, and in looking into the window, saw that young Miss Mackanny was in her father's arms, fainting, and, of course, I concluded it was best that she should remain there up there. Turned and came back, for the purpose of going to the company's store—the head-quarters. Having passed from the office probably thirty or thirty-five feet, a party of men came out from the roadway that leads in through to the shops

—the car shops of the Delaware, Lackawanna and Western Railroad Company. I should think there was one hundred or one hundred and fifty of these men. They had mostly in their hands, clubs of different kinds, handles of picks, and sticks, and when the leader was within probably thirty feet of me, he made an inquiry—there was something of a fuss or noise right round where I was, and seemed to be the center of attraction—made an inquiry, "What was it? Who was it?" With that, some person standing in my vicinity says, "This is the mayor." Then, raising his club, hollered out, in an extreme loud voice, "Kill the son of a bitch. He has got no business here." With that, there were two pistol shots fired, one upon my right hand, and one upon my left, by my side, as I judge from the sound, and almost immediately with that, four or five men, one of them a constable of the Nineteenth ward, and another by the name of Duffy, and some three or four others, whom I did not know personally, rushed immediately behind me, to form a sort of a barrier against this crowd, that was seeming to make for me. With that, I was struck with a club—I judge it to be a club—right behind my shoulders very severely, so much so, that it started my left lung, which has been weak for some years, bleeding. My mouth was almost immediately filled with blood, a stone which was thrown hit me in my kidneys, and before I probably got ten steps, this crowd made towards me, and I was hit some numbers of times, but I kept square upon my feet. I dodged my head to avoid them as well as I could. In the meantime, Lieutenant Brown was standing by me. The very first signal, the very first exclamation of these men, I had ordered that the posse be sent for and the bells would be rung, but Mr. Brown dare not move. But the men passed the cry on, and it was taken up by others standing back. I probably went twenty steps before Father Dunn, the Catholic priest of the parish here, came down, and as soon as he saw me came right up to me and first took hold of my arm. He was a smaller armed man than I am; I then changed and took hold of his. Immediately upon his coming, this party that was behind trying to protect me was increased considerably, numbering twenty or twenty-five. Some of these men, who had had sticks in their hands, came up at this time.

By Senator Yutzy:

Q. For your protection?

A. Yes; the men I speak of, the constable of the Nineteenth ward, and William Duffy and others immediately upon the pistols being shot off, came right for my protection—the citizens here. I might say right here, that all that party who had swept through the shops and came under my observation, not one of them I recognized as a man whom I had ever seen before. The leader, whom I took very close observation of, was a man whom I had never cast my eyes upon before to my recollection. When we got to within twenty-five or thirty feet of the causeway under the railroad, the crowd behind broke through the party that was trying to protect me, and carried off Father Dunn. I slipped from him to the left of him, so that they rushed by me, and I escaped from them and went through under the railway bridge—under the railway near there—the causeway under the railway, and there met four of my policemen. In the meantime, the crowd commenced to surge past, filling the whole street almost, with the cry, "Now for the Lackawanna Iron and Coal Company's store." "Now for Lackawanna avenue. Let's clean out the town." The distance from where I met these policemen to Lackawanna avenue, is just a hundred feet, the depth of those lots. Just one hundred feet. When I reached Lackawanna avenue coming up Washington, in looking up the street, I saw my posse coming down. They were nearly opposite the Opera House, a distance of one hundred to one hundred and twenty feet from me. I stopped a moment, and the crowd seemed to give way, and waved my hands three times for them to come on. My idea was, if they could come down to my office, there we would make a stand, if they attempted to go to pillaging. I turned to go down towards my office. Lieutenant Brown was still with me. When opposite the store of Mr. Hunt, in whose employ he was, about twenty-five or thirty feet from the corner, he turned and went into the store. Just after he had left me, the crowd then commenced to surge down and fill up the street. I was struck with an instrument, whether it was a hammer or some heavy instrument I don't know—here, just back of the ear, and I have no memory from that moment of receiving the stroke—but I came down here as was testified to, at the trial, and went into the bank—the Merchants' and Mechanics', nearly opposite, at the distance from where I was struck, of about one hundred and

twenty-five feet. I have no memory from that time till I found myself back again up the street, probably fifty feet, and just stepping off the sidewalk, and as I stepped off the sidewalk into the roadway, I partly fell upon my hands, and as I was raising up, I heard a shot or two, and a man cried out, "Now go for them, damn them, they are firing blank cartridges; now take their guns away from them; now kill them," and upon looking round, I saw two men standing together. I gave the word of command to fire, and almost immediately upon the word, a discharge was made, and upon the word fire, one man fell right in his tracks, right where he stood.

Q. One of the rioters?

A. Yes, sir.

Q. It was your posse that fired?

A. The posse fired. You will hear of the action of the posse from the gentlemen who were with the posse. I cannot give that. And then while standing—the two men seemed to be standing together—as the one fell, the other, who was standing with him, threw a stick, or stone, or something from his hand and started running, and ran probably ten or fifteen steps. He was covered very thoroughly by two guns, but the parties who were covering him with their guns could not apparently hit him without hitting somebody else. As soon as he uncovered himself the guns were immediately discharged, and he fell dead. Almost in a breath after this, the whole crowd turned in all directions, and inside of five minutes our avenues were almost clear of people. I came down—I do not know whether I mentioned that before I left—while Father Dunn and me were together, that one of those men in front of me previous to coming under the bridge came in front of me, and with a blow from a front as he passed by me, gave me a blow which broke my jaw and fractured the whole roof of my mouth.

Q. The upper jaw?

A. Yes, sir; I have no use, even now, of my front teeth. The jaw is not together at all. I am unable to use them at all for anything, only soft food. I called upon the citizens to rally, or at least took a gentleman's arm and he

made the announcement for me, I was unable to say much, my mouth being so full of blood—calling upon them to come to the rendezvous at the company's store, as my head-quarters; the posse and myself then went there. I immediately telegraphed the Governor stating the case, and issued a proclamation calling upon the citizens to rally and take all precautionary measures possible for the suppression of any further outbreak. In the course of half an hour, the whole of the arms we had were placed in the hands of good responsible persons; our posse was drawn across the head of the street, and orders were sent—I sent my police out with orders that all persons should disperse—all crowds, and so on. In the course of probably half an hour from that, the report came that they were firing in the residence of the Messrs. Scranton, which was immediately above our head-quarters there. I went with the posse there, and placed some men on picket, and so on, taking precautionary measures. By two o'clock the crowds began to gather through the streets again. I sent my police officers out again to try to disperse the crowds. In the meantime, the dead bodies had been taken from off the streets, and taken home. Our acting chief came back and reported to me that he was unable to disperse the crowds. I immediately had Captain Repple to detail twenty-five men, and in company with him marched down the street, and as I met the crowds I merely said this: Gentlemen you must disperse, and go immediately home. I gave no other orders, and the result was that by the time I struck the corner here below, the crowd in this part had all dispersed, or dispersed immediately upon my giving orders. I sent the police on further, as I was quite weak at this time, bleeding very thoroughly from all of my wounds. I was unable to walk further, and went back again to head-quarters, and my policemen went on below, and were unable to disperse the crowd. The posse were kept on duty. I remained at head-quarters until next morning at half-past five o'clock, when General Brinton and his command arrived here. I then went home and had my wounds dressed. That is the history of the matter as I have it.

Q. These twenty-five men that you sent down in the afternoon at two o'clock—who were they?

A. They were the gentlemen I had sworn in as special police.

Q. Citizens of the city?

A. Yes; I could give you the names of them if I thought it was necessary, sir. Colonel Hitchcock, and Mr. Brown, and others of our best citizens.

Q. What did you learn about the assembling of this crowd, if anything, as to where they got together?

A. What I subsequently learned?

Q. What have you learned since?

A. The meeting was called at the silk-works—what we call the silk-works—it is in the Twentieth ward, near the outskirts of our city—the portion adjoining Taylorville—in a southerly direction. The resolutions which I got from the arrest of the gentleman who was president at the meeting—the chairman of the meeting—he was arrested and brought before me—and Mr. Thomas, who will be subpœnaed before you, can give you the exact wording of that resolution and can give you more intelligently the proceedings of that meeting than any other gentlemen that will be called upon. If you please, bear that in mind.

Q. What time was that meeting at the silk-works held?

A. I learned they commenced coming from Dunmore and the outer vicinity as early as three o'clock in the morning.

Q. Of What day?

A. Of the 1st day of August.

Q. Had been called by previous announcement?

A. They called all their meetings in their own manner of calling—by runners. I might say right here, at this point, they had a complete code of signals on the night of the 1st of August. While we placed our sentinels on the top of the buildings we occupied, we could discern lights from one side of the valley to the other—from point to point—a line of different colors and different shades. They had a thorough code of signals so all the way

through. You are aware, undoubtedly, that so far as the engineers or the firemen—the strikers—were concerned, they used their own alphabet in telegraphing over the wires. They used their alphabet.

Q. Had there been any assembly prior to their reaching the silk-works?

A. No, sir; this was the meeting.

Q. What time did they leave the silk-works and come to the city?

A. That the other gentlemen, (Mr. Manes,) can give you about the hour when they struck his works. I judge, I left my office somewhere about eleven o'clock.

Q. Were there any railroad men among this crowd that assembled on the 1st day of August?

A. There were some railroad men that I saw at the shops around when I struck the crowd?

Q. What class of men did they seem to be principally?

A. Well, they were mechanics and miners and laborers.

Q. Were there any men from the shops within the city?

A. Yes; there were mechanics and laboring men from the shops. Among the men who were more upon the outskirts, were quite a number of the men who were employés of the shops—men whom I recognized—quite a number of them. As soon as I made the remark that they had better disperse, they commenced, upon the outer portion of the crowd, quite a number, to go through from under the archway, apparently going up the street.

Q. Did you have any difficulty in getting extra police to serve?

A. Yes; the paid specials I wanted to put on for the protection of the company's property, whom I placed for the purpose of relieving the city from any legal liability, after having received these notices, of which I have given you a copy. It was with difficulty I could find men who would accept

the position. Quite a number who came and were sworn in on the morning before stopped at noon, and served half a day; but in regard to those that were specials—were paid—those were probably gathered through and by Colonel Hitchcock—a large number of those—quite a large number came to me; that is, volunteered first, and enrolled themselves.

Q. Offered themselves?

A. Yes, sir.

Q. And were sworn in?

A. Yes, sir.

Q. Was there any difficulty in getting men to serve in that way?

A. No, sir; not in the least. Had all that I deemed was necessary, and more, too.

Q. Had no difficulty in that respect?

A. No, sir.

Q. In getting the paid police that you spoke of first, what was the reason—what objections did they have in serving that way?

A. That was on account of the resolutions that had been passed in some of the meetings of workingmen, in which this vote of censure against me for placing these special policemen on had been passed. These resolutions had been passed without the men having any knowledge—report had it that I was putting five hundred or a thousand special policemen on the city, and putting them on pay. I didn't deem it to be my duty, nor the interest of the city, to let everybody know what I was doing, and this report got it, and this series of resolutions was afterwards passed by the council—first started under a misapprehension.

Q. Then I understand you to say, that it was not on account of any unwillingness of the citizens of Scranton to serve and aid in keeping the peace and good order of the city?

A. There are the facts, just as they are. It was with difficulty that I could get them.

Q. What powers are given you as mayor by the city charter or organization?

A. We are acting under the law of 1874, the Wallace act, where the mayor has the same power as the sheriff to call a posse comitatus, and so on. I might state right here, in regard to the passage of that very act, that I was before the committee, Mr. Merryfield and myself, asking that very power of the sheriff to be given to a city. Or town, as an instance, where we were so far from the county seat, in the case of outbreak, under the old charter the mayor would be helpless.

Q. Did you make any regular call upon the citizens to serve as a posse?

A. I made this call, in which I called those enrolled—my posse. When I went up the street, I might state right here, that Mr. Thomas, a gentleman who will be here, who was one of the committee from the workingmen, came and guaranteed me any aid I might need.

Q. How many did that posse number?

A. One hundred and twenty, sir, enrolled.

Q. Were ready to come at the signal?

A. Yes, sir.

Q. You speak of legal liability. Is there any law by which your city is made liable for damages done within your limits?

A. Nothing more, I suppose, than any neglect upon the part of the officers of the city to protect property. It is nothing further, sir.

Q. Any act of Assembly?

A. No, sir. I am not a lawyer, but I presume, if the officers of the city should fail to render abundant protection to property, when notified of its danger,

that then the city would be held responsible, in case the property was destroyed.

Q. In the interview that you had with the executive committee of the railroad employes, did you learn what their grievances were, and their reasons for striking?

A. On account of wages—desired more wages.

By Mr. Larrabee:

Q. Were they the first that struck?

A. Yes, sir.

Q. Had there been any reduction of wages on the Delaware, Lackawanna and Western, or any of the roads leading to your town?

A. Well, sir, I cannot tell you that, sir. The superintendent will be here.

By Senator Yutzy:

Q. What grievance did the railroad men complain of when they did strike?

A. Only in regard to reduction of wages.

Q. Had no other complaint?

A. I understand that the miners themselves and the laborers in the mine didn't strike. They were forced out of the mines on account of no work the very moment that the railroad ceased operating. That morning, or the next day, at least, mining had to cease, because there was no place to put the coal that they mined; but, upon their coming out, they then assembled together, and asked for an advance of wages.

Q. Had there been any reduction of wages among the miners prior to that strike?

A. The wages had been under a reduction for some length of time.

Q. For several years past?

A. Yes, sir.

Q. Do you know when the last reduction was made?

A. No, sir; I don't know the date.

Q. Did you have any interview with the miners?

A. This committee of eighteen represented miners, engineers, and laborers—represented all connected with the mines and all of its parts.

Q. What did they complain of?

A. The engineers of the pumps had some complaint to Mr. Brisbin in regard to not fulfilling the agreement made at the long strike.

Q. The long strike was in what year?

A. In 1872, I think.

Q. I would like to know whether they were railroad engineers or engineers at the pumps?

A. Pumps and collieries.

Q. Any railroad men in this delegation?

A. Not in this delegation of eighteen.

By Mr. Larrabee:

Q. I understood you to say they were miners, engineers, and brakemen?

A. No, sir: the committee on Monday was firemen and brakemen, not engineers. The engineers were not in the strike.

By Mr. Lindsey:

Q. The committee of eighteen was composed of who?

A. Composed of miners, laborers, engineers, and pumpmen at the mines.

By Mr. Yutzy:

Q. Not railroaders?

A. No, sir.

By Mr. Lindsey:

Q. Did they state in what respect the agreement had not been carried out by the companies after 1872?

A. They did, sir; in the interview with Brisbin they did very clearly. It was in regard to the *pro rata* reduction. I didn't take interest enough in it to explain it to you thoroughly, sir. It was a matter between them more. While it was at my office, and the parties were got together at my suggestions, I was there during the whole time, but the matter was more immediately for them to discuss, as I didn't consider it my place to take any part in the discussion, and did not.

Q. What did you ascertain subsequent to the conflict of the 1st of August? What did you find out about the cause that induced that assemblage at the silk-works?

A. They were called together, as I understood, to hear the report of this committee of eighteen.

Q. In the interview with you, did the committee of eighteen state what their purposes or objects were for the future?

A. On this Sunday interview?

Q. Yes?

A. Nothing more than they believed that the companies had been cutting down their wages too much, that they had been extravagant in the management of corporations, that it had come a time for retrenchment, and the retrenchment was all coming over on them as laborers, that they

believed they could, by a proper way of disposing of their coal and so on—they had some grievances in regard to that—that better wages could be paid.

Q. Did they intimate about what they intended to do?

A. Nothing more than they wouldn't work until there should be an advance in wages.

Q. Did they give any intimation of any intention to make an attack upon the city and disturb the peace in any way?

A. Directly the opposite, sir; gave me every assurance to aid and support. This question in regard to the large number of strangers that were here, was brought up and discussed, and they felt an anxiety in regard to that very point, that an overt act might bring them into disgrace.

Q. The miners?

A. This committee of eighteen.

Q. What was the object of this delegation calling on the mayor and making this statement? Did they make any demand of you?

A. I sent for them when the companies asked of me. This is a notice I didn't read, and this will more clearly show why I sent for the delegation:

SCRANTON, *July 27.*

R. H. McKune:

The men employed by this company to fire and operate the engines at our mines for pumping the water therefrom, have by threats and intimidation been driven from their works, and notice given, that any person or persons who should attempt to perform such service would do so at the peril of the lives. This action involves the flooding of the mines, which would cause immeasurable loss and damage to the company. I therefor call upon you for

such protection as employées are entitled to under the laws of this Commonwealth.

Signed by

WILLIAM R. STOORS,
General Coal Agent.

It was after receiving this from Mr. Stoors that I sent for this committee.

By Senator Yutzy:

Q. Did you know that that committee was in existence at that time?

A. By the papers, sir. The meeting was a public meeting, and the names of this committee were published in the papers, sir. Nothing secret about it so far as to the gentlemen who were going upon the committee. This committee had also called upon Mr. Stoors, making a request for more wages, which my scrap book that I have, if I had it here, would give you still fuller than that.

By Mr. Lindsey:

Q. What did you advise them in the interview, Mr. McKune?

A. I advised them—they disclaimed of having any knowledge of these parties who were sending letters or attempting to intimidate these men who were at work at the pumps. They disclaimed any knowledge of that, and at this interview stated clearly and distinctly that it was against their wish and desire, and as I said about the proclamation which I issued in regard to this very matter—the proclamation was framed by us there, jointly. The language, if you will read it, you would see that it is very careful—that it is very guarded—there is no implication of anybody being in the wrong—there is a difference of opinion. The whole thing was carefully gone over. Our interview lasted from one until between four and five o'clock. The whole of our interview was extremely pleasant, and they seemed just about as anxious as I was for the protection of property, and in the first draft of the

proclamation that I made, there might have been an inference drawn that they were at fault, and we worked until the proclamation which was issued met their views.

Q. I understood you to say that you put persons at the pumps before that interview?

A. No, sir; I had nothing to do with putting them at the pumps. I notified Mr. Stours, the general agent, in regard to the interview that I had. This was on Sunday, sir, and on Monday the men went to work.

Q. To work at the pumps?

A. Yes; there was more or less intimidation in different parts, even after this. I might state that, sir, and Mr. Stours probably will be able to give you a better account of the reports that he received.

Q. I understand the pumps were working at the time of the assemblage of this crowd, on the 1st of August?

A. Yes; the pumps were working more or less.

Q. And trains had been started?

A. Yes. The pumps were not being worked by the regular engineers or regular pumpmen.

Q. By whom were they worked?

A. Mostly by men—foremen and other men that understood how to work the pumps, but were not the regular men—were not the men who had previously operated these pumps, in no single instance.

Q. By whom were they sent there?

A. By the company.

Q. The trains were run on that day also?

A. Yes, sir.

Q. Were the freight trains run?

A. Oh, yes, sir.

Q. All trains?

A. Oh, there was no coal going out, because there was no coal mined. What freight there was through freight, and passenger trains were running on schedule time.

Q. In the crowd of men that were assembled there when you went down to the Lackawanna office—Delaware and Lackawanna was it?

A. Yes, sir.

Q. Did you see any men that you knew—railroad men or mechanics—about the city—the men you were accustomed to see?

A. Oh, yes; saw quite a number standing about. A large number even upon the railway, and a large number of our business men and prominent citizens drawn there to look upon the crowd.

Q. Were any of those engaged in riotous conduct that you knew?

A. No, sir.

Q. Railroad men?

A. No, sir.

Q. Miners?

A. No, sir. The first of the parties who had swept through the shops and who came out from under the shops, there was not a man of them that I recognized as a man I had ever seen before.

By Mr. Lindsey:

Q. These men that you knew were simply standing about?

A. Yes, sir.

Q. Were they the men that undertook to protect you?

A. Some of them probably did, sir.

Q. Did any of your mechanics in the city engage in the riots when it was once precipitated?

A. Well, sir, they were among the crowd that passed me as I was coming up Lackawanna avenue. There were quite a number of those that I had passed in going down, and while the cry was being made, "Now for Lackawanna avenue; now for the company's store."

By Senator Yutzy:

Q. They joined with the rioters after you returned?

A. Yes, sir.

By Mr. Lindsey:

Q. I wish you would state whether the action of the council in refusing to pay extra police was justifiable. Whether at that time the condition of affairs here was in a condition to warrant them in taking that action?

A. No, sir; it was not, because I had, as I said, but eight special policemen, whom I had sent out to the different parts and to the different properties upon which I received notification, I placed these special men. You, gentlemen, can judge whether a city of thirty-five thousand inhabitants, the larger portion, or a larger per centage of that of the laboring element—whether a force of twenty men is any too great a force as a police and protective force. I leave that for you, gentlemen, to judge.

By Senator Yutzy:

Q. Do I understand you to say that you called your council together with a view of then taking some action on this subject?

A. On Wednesday I consulted with a number of the council in regard to whether we had not better call a meeting, and what was best to be done in the matter; but this meeting where these resolutions were passed, I think, was a regular meeting. I am not clear in regard to that.

Q. They declined to meet. Is that what I understand you?

A. Yes, sir.

Q. What reasons did they give?

A. They thought it was not necessary—the one or two I talked to.

Q. Did they say why they thought it was not necessary?

A. No. Everything was quiet and peaceful.

By Senator Yutzy:

Q. Then, at this regular meeting, what action did they take in regard to disturbances?

A. There had been none at that time.

Q. But afterwards you said there was a regular meeting?

A. No, sir.

By Senator Reyburn:

Q. This crowd that swept through the shops was headed by a man who was a stranger?

A. They all were strangers.

Q. Was that the same crowd that was fired on in the street?

A. I should judge that some of them were the same.

Q. Were those men that were killed strangers?

A. Two of them were not residents of the city. I believe one of them was.

Q. Were any of your posse killed?

A. No, sir; but two of them were wounded, sir, with pistol shots.

Q. With pistol shots?

A. With pistol shots and with clubs. Two were wounded with pistol shots, and one with clubs.

Q. Did you ever ascertain where those two strangers that were killed came from?

A. Yes; I think one of the killed was from the Sixth ward, and two from the adjoining township—Lackawanna township.

Q. Were they railroaders?

A. Men employed in the mines—around the mines.

By Mr. Lindsey:

Q. Were any more of the rioters wounded?

A. There was one man—a young man—was wounded. A one legged Welsh boy that had formerly worked for the Lackawanna Coal Company, and he recovered.

Q. Did you, in your first correspondence with the Governor, did you think that you were able to control matters here in the city, and did you so indicate to him, without the aid of the militia of the State?

A. The following is a copy; I am not clear whether the date is right: "Governor Hartranft, in consulting with my advisory committee, they do not deem troops necessary, and advise against home troops," and further, on the 28th I telegraphed to the Governor again, as follows: "All quiet. I expect to get the pumps in the mines going to-morrow." I telegraphed to the Governor, "The employés of the railroad company have just informed me

that their difficulties have been adjusted, or have been settled," and again, on the 29th, I telegraphed to the Governor, "Pumps will start to-morrow. Send no troops until you hear further from me Am in hopes of a peaceful settlement."

By Senator Reyburn:

Q. That was at the time of this agreement.

A. Yes, sir.

By Mr. Larrabee:

Q. What date was that dispatch?

A. The 29th, sir.

By Mr. Lindsey:

Q. What date did you call upon the Governor to send you troops?

A. The 1st day of August, sir.

Q. After the conflict?

A. Yes, sir.

Q. As part of our duties is to find out about the conduct of the militia, I wish the mayor would just state what was the conduct of the militia during their presence here?

A. I can say, in regard to the militia—I don't know much about them, for I have very little knowledge of General Brinton's command that was here, for I was quite severely unwell, and was not out much, any further than going down in my carriage, and calling on General Lyle. In reference to those that remained, you are aware some of them remained here for three months, the Nineteenth, under Hartley Howard, and the First Pennsylvania. Their conduct was most excellent, so much so as to receive the encomiums, upon all sides, of every person.

By Mr. Larrabee:

Q. You say that you were at Ocean Grove at the time you heard of the Pittsburgh riots?

A. Yes, sir.

Q. How long had you been there?

A. I had been down a week previous.

Q. Had there been any rumors of any difficulty here, prior to the commencement of the Pittsburgh riots?

A. I telegraphed, on Saturday, to Mr. Halsted, superintendent, like this: "Do you apprehend any difficulty; if so I will return home." He telegraphed me, on Saturday: "I apprehend none; if I do so I will wire you." I have not got a copy of that telegram here.

Q. Did you, from any source, receive any intimation that there was liability to be any strike here, prior to the outbreak at Pittsburgh?

A. No, sir; not in the least.

Q. In your judgment, was this trouble here precipitated by the news of the rioting at other places?

A. Yes, sir.

Q. You think it grew out of that? That, the news of what was going on at other places, stirred up the workingmen, and incited them to do as they did?

A. Yes; permit me to say that I do not believe the miners would ever have come out of the mines, had the railroad men not suspended, and if the coal had been taken away from them as they mined it, the men would not, in my opinion, have come out of the mines.

Q. You think, then, it was a sort of a fellow-feeling that animated the workingmen here?

A. You might call it an epidemic.

Q. Will you state whether there were any symptoms of any difficulty or uneasiness among the men here prior to the news having been received of trouble?

A. There was none. Everything was the most perfect quiet when I left home.

By Senator Yutzy:

Q. The fact that the railroad was not carrying away the coal, was not that the cause of the miners coming out of the mines?

A. That is what I say, sir. I wish that to be on record.

Q. Did you ascertain who these men were that were interfering with the pumps at the mines?

A. No, sir; I do not know as I did.

Q. Were they miners on a strike?

A. No, sir; there were no arrests made of those. There were arrests made, afterwards, for an attempt of riot somewhere along about the 20th August, I should think, sir, by one of the companies of Colonel Howard's command—I think some five or six—my record book would tell the date, and soon—who were tried, and afterwards convicted at our county court.

Q. Men engaged in interfering with the pumps?

A. I don't know whether it was that, or an attempt. I think that was an attempt at riot about that date.

Q. Were any of the rioters arrested that were engaged in this riot here, on the streets, afterwards?

A. I think there has been some, sir.

Q. Were any of your posse arrested?

A. Yes; thirty-eight were.

Q. Arrested on information of some of the rioters?

A. The finding of the coroner's jury, sir. A coroner's inquest was held.

Q. Were they tried?

A. They were.

Q. By whom—the court?

A. The court, Judge Harding presiding.

Q. On what charge?

A. Upon a charge of murder—manslaughter.

Q. Were they acquitted?

A. They were.

Q. Were any of the rioters tried, that were arrested?

A. I think there has been, sir. There are other gentlemen here, who had charge of that matter, that will be able to testify better in regard to that than myself.

Q. At the office where you found the young lady, state whether any assault was made upon that by the crowd or mob?

A. None, that I know of.

Q. Was there any made after that time, or where did the crowd go, and what became of the inmates of the office?

A. The attention of the crowd was drawn away from that part over towards me, and the party who came out from the shops.

Q. Had you been informed they were in danger?

A. Yes, sir.

Q. And that is the reason you went down there?

A. Yes, sir.

Q. And after you got there, and found the young lady in a fainting condition, you did not consider it advisable to take them away from there, and didn't do so?

A. I didn't? consider it advisable to take them away, and made no effort so to do.

Q. You did not consider it advisable?

A. No, sir.

Q. Did they afterwards escape from the office, and reach their homes?

A. Without any difficulty.

Q. Why didn't you consider it advisable to take them away, if they were in danger?

A. I did not consider they were in danger.

By Mr. Means:

Q. I suppose you considered them more safe, than taking them away in the street?

A. Yes, sir.

Joshua Thomas, *sworn*:

By Mr. Lindsey:

Q. State where you reside, if you please?

A. I am residing at Hyde Park.

Q. What is your occupation?

A. I am a blacksmith.

Q. Were you here in July last, when the difficulty occurred?

A. I was.

Q. On what day was it that the disturbance took place in the streets here?

A. On the 1st of August.

Q. Will you please state whether you had any previous knowledge of the intention or existence of any disturbance, prior to that date?

A. No, sir; I had none.

Q. And what was the first thing that you noticed or discovered?

A. At the silk-factory meeting?

Q. Yes. State whether you were at the silk factory meeting?

A. Yes, sir.

Q. For what purpose was that meeting called?

A. As near as I could learn on the streets, the men anticipated hearing the reports of the standing committee of the Delaware and Hudson Canal Company, and they all went down there expecting to hear the committee report as to the result of the intercourse with the company.

Q. That was the committee that had been——

A. There was a meeting held out in the Round woods, and a committee appointed there to confer with the company with regard to their wages, and some time after this meeting was called, by whom I do not know, but the people generally thought that this committee was going to make a report there of the result of their conference with the company, and when we arrived there at the meeting, this committee was not present, and after being there possibly half or three quarters of an hour, the chairman of the

committee of the coal and iron company's men, called the meeting to order, and he stated that it was now time to appoint a chairman. There was quite a number of the men present in the meantime, but none of them would serve, finally he was told to serve himself in that capacity, and he did.

Q. What name did you say it was?

A. It was Rudolph Kreshner, and some one asked him from the crowd—there was, possibly, from five thousand to seven thousand people there—asked him what the object of the meeting was, and he told them if they would keep quiet for a few minutes they would learn. He didn't know. He said they would find out, and he talked to some of the men—I could not hear what he said, and then he rose, and he said he believed the meeting was to take some action with regard to those men that were working in the shops at that time, and there was then a party got up and offered a motion that a committee of I can't tell you how many—his motion was, that a committee, however, be appointed to ask these men to leave the work alone for the present, until the difficulty was settled. And after some little discussion, there was a motion made to amend that by making the committee twenty-five. Then that was objected to, on the ground that the companies would discharge all that would be appointed as a committee to go and ask these men to leave their work, and one man, I don't know his name now, he spoke there in favor of a committee of twenty-five, and others again spoke and objected to it, on the ground that they would be discharged—they had been before, and have been since, because they waited on these men. While this motion was under discussion, there was a motion made, that the whole body adjourn, and pass up around by the shops and ask the men to quit their work for the present, until the difficulty was settled with the company. Just at this time there was a man offered a letter to Kreshner, and wanted him to read it. He took up the letter and looked at it, and passed it back to the party and shook his head. Then this man got up on a little stand himself and read the letter to the body. Previous to that there had not been any unkind words, or anything boisterous—nothing out of the way at all, no abusive language, or anything—but as soon as the letter was read it was like a spark in a powder keg.

Q. Now, where did that letter come from?

A. I don't know.

Q. By whom was it signed?

A. It was signed by "Working Man."

Q. How many?

A. One working man.

Q. Just signed "Working Man?"

A. Just signed "Working Man."

Q. Can you give the contents of the letter, or the substance of it?

A. Only partially. It was on note paper. He went on to state—the writer did—to speak of the grievances of the men, how they had suffered short wages and short time, and the additional reductions, &c., and he said that the men could not live. He said, that W. W. Scranton had said, that he would have the men work for fifty cents a day—I don't remember how soon, but for fifty cents a day—or he would bury himself in a culm pile. He went on to state he was sorry he could not be present to-day as he had business elsewhere, but he hoped the men would do their duty, and signed himself "Working Man."

Q. After that letter was read what was done?

A. After that letter was read, there was four, five or six of us—I don't just remember how many—we held a little caucus near the stack—near one end of the silk factory, and we divided; I was to go one side, and another man was to go another side, and try to speak to allay the excitement, but the crowd was so dense we could not get up there. While we were trying to get in, there was a motion made at that time again that the body adjourn to the shops, and ask the men to leave the shops. Even then there was no threats of violence at all, but of course there was some epithets used against W. W.

Scranton, but no threats against him at all, nor no threats against any person, or property, or anything.

By Senator Reyburn:

Q. What do you mean by shops?

A. These shops where the men were working—railroad shops, furnaces, and steel-works. I didn't hear anything said, or any motion made, and the motion was not made to turn them out, but to ask the men to leave the shops.

By Senator Yutzy:

Q. I want to know what you mean by shops?

A. Railroad shops, steel-works, furnaces, mills, &c.

Q. All the manufactories?

A. Yes; all down on that side. [Indicating.] Then there was some discussion after this by the men backward and forward, and we went back again to the silk-works, and we were talking, and we saw the crowd dispersing. I saw no motion carried, I simply heard them offered and seconded, and put to the meeting, and then they were discussed. I heard the ayes and noes while I was back, but supposed they were voting on the motion; the decision of the chairman I could not tell what it was. Then the men began to disperse, and we stood talking there. We had no idea that any damage was being done. And while we were standing at the silk factory, just on the railroad we came over from the iron and coal company's factory—we could see the men running towards Ward street, in that direction from here.

Q. You remained down there when they started from the shops?

A. Yes; and when we saw these men going that way, we came up the L. and S. railroad, and I was just at the arch near the L. and S. shop when the firing occurred. I just heard it, and that was all, and then I walked right up to the corner here.

Q. When you got to the corner, what did you do?

A. I saw the men lying there dead in the street.

Q. Had the crowd dispersed?

A. Well yes, in the main. There was a great many standing around down the street, and up and down the avenue, walking and talking.

Q. Who notified you of the meeting at the silk-works?

A. Indeed, I could not tell you that. I had it from quite a large number.

Q. Laboring men?

A. Yes—oh yes. A gentleman that told me, said that he understood the D. L. and W. committee was going to make a report.

Q. Was it kept secret?

A. Oh, no, sir.

Q. How long did you know that before the assemblage?

A. I knew that was to be three or four days before that—two or three days.

Q. Why was it called at the silk-works—to meet at the silk-works?

A. Because there was no room elsewhere, unless they would have it up in the Round woods, back of Hyde Park, and that was about just as far over there.

Q. What do you mean by the Round woods?

A. It is a piece of woods that lies west of Hyde Park, commonly known as the Round woods.

Q. Grove?

A. A grove.

Q. How many were assembled there at the silk-works?

A. Well, I should judge there was between five and seven thousand?

Q. Assembled in a hall?

A. Oh, no, sir; out of doors.

Q. What class of men were they?

A. Workingmen.

Q. Railroad men any of them?

A. I do not remember particularly. I did not know a railroad man there. Doubtless there may have been some; but I don't remember of seeing any. Miners, laborers, carpenters, blacksmiths, machinists, teamsters, and so forth. All classes of men—working people.

Q. And they were there hearing the report of the committee appointed by the miners?

A. Of the Delaware, Lackawanna and Western Company.

Q. To consult with the officers of the company?

A. Yes—beg pardon, sir—they were there; believe that that was the object of the meeting.

Q. Why were the blacksmiths and carpenters and other mechanics generally notified to meet there?

A. They were not notified; but merely heard it talked on the streets, and I went there for one. I was very anxious to learn whether the miners were going to work, for, if they went to work, we stood a chance of getting work in the shops.

Q. Did your work in the blacksmith shops depend upon the work going on in the collieries?

A. Not altogether in the collieries; no, sir.

Q. Carpenters' work would not depend on that at all?

A. Curiosity, as much as anything. A great many of them went there out of curiosity.

Q. Were the men asked there from the shops—the crowd to stop the work—that is, you said the crowd went up to the steel-works, and the factory and machine shops here. Were any of that class of men at the meeting?

A. I only presume they were. I could not say that any one individual was there, but I presume there were, and had good reason to think so. They were Delaware, Lackawanna and Western railroad men were there. That is, miners, not railroad men, but miners. The coal and iron company's men were there—some of them—and some were there from Munica, a village below here, and some from Taylorville, and some from Old Forge, and they were anxious to know what the report would be of the Delaware, Lackawanna and Western committee, and they came here, anticipating to hear that report, because the success or the failure of the strike, in the main, was dependent upon the Delaware, Lackawanna and Western men, and if the report of this committee would be of such a nature as would advise the men to work, then the strike would end immediately, while if they held out, I suppose the rest would.

Q. Did you get any report of the committee?

A. No, sir.

Q. Nothing of the kind?

A. Nothing of the kind.

Q. Did you learn what action had been taken by the committee and the officers of that committee?

A. No, sir; not at that time. I do not know whether they had taken any action at all—whether they were prepared to make a report.

Q. Was any motion made to adjourn?

A. Down at that meeting?

Q. Yes?

A. Yes.

Q. That was voted down?

A. No, sir; it was carried, at least I presume it was carried, for this reason. I heard the motion made to adjourn where I was in the crowd. I could not get any further up towards the stand, but I came up, and then I heard a vote taken, and I could hear the "ayes," and they predominated, and I presumed it was on that question, for immediately afterwards the crowd dispersed.

Q. The crowd dispersed in the direction of the machine shops?

A. Up this way. Some went up across the river, waded the river, and went to Hyde Park, and some walked the road, and some came up this way and some up the other road.

Q. How many came towards the steel-works on the flat?

A. I could not tell you how many.

Q. Can you judge?

A. There was probably—may be—fifteen hundred or two thousand walking up the street and walking over that way. They didn't all go to the shops that came up.

Q. Did you know that they started to the shops when they started to persuade the men to quit work?

A. No, sir; there was a motion made to adjourn to the shops to request the men to stop work for the present, until the difficulty was settled between them and the company; that was the motion.

Q. Was that motion carried?

A. I presume it was, but when it was carried we were out of the crowd.

Q. And they all went to the shops, a large number?

A. A large number went up this way, and towards the shops.

Q. Was there any organization—any secret organization here known as the Trainmen's Union, to your knowledge, of the railroad employés.

A. I do not know. I presume there was.

Q. Do you know of such an organization called the Trainmen's Union?

A. No, sir; not as the Trainmen's Union.

Q. Do you know of any organization among the railroad employés?

A. I have understood that there is what is known as an Engineers' Brotherhood.

Q. Brotherhood of Locomotive Engineers?

A. Brotherhood of Locomotive Engineers; but we had nothing to do with this meeting.

Q. This Brotherhood of Locomotive Engineers, was that the only organization that you knew of among the railroad men?

A. Oh, I had heard and understood, and it was generally understood, that there was what was called a Firemen's Brotherhood.

Q. And brakemen?

A. And Brakesmen's Brotherhood. Nearly all trades have some sort of union—Machinists', Blacksmiths' Union, Coopers' Union, and so forth.

By Senator Reyburn:

Q. Beside the Brotherhood of Locomotive Engineers, then, there was an organization of brakemen and firemen?

A. All, sir, independent of each other.

By Mr. Engelbert:

Q. Do you know that of your own knowledge, or only by hearsay?

A. Hearsay.

By Senator Yutzy:

Q. Was there any public call for this meeting in the papers or otherwise?

A. No, sir; I didn't see any call; didn't hear of any published call.

Q. How did the idea that there would be a meeting there get abroad?

A. I do not know.

Q. Do you know of any one that advised the meeting?

A. I do not.

By Senator Reyburn:

Q. Is it the custom of workingmen to congregate in meetings and crowds, that way, and hear the report, for instance, if there is a committee been known as having waited on the officials of a railroad or coal companies?

A. Yes sir; if there was a committee pending between the men and the company, possibly the committee could not afford to issue a call through the papers, and nine, ten, or fifteen of the committee would go around and tell some one, and they would tell others that the meeting would be held at such a place.

Q. Do you suppose that was the way this meeting was called?

A. No, sir; I have no idea how it was called. I have no idea how it was called, not the slightest.

By Mr. Larrabee:

Q. Except you heard it talked among several of the laboring men, that there was to be such a meeting?

A. Yes; or rather asked me if I was going to be at the meeting.

By Senator Reyburn:

Q. When the motion to adjourn was carried, and the meeting broke up, did the men that went off to the flats, and come towards the city, go in a body, or with an organization, or was it merely that portion that lived in this end of town, coming home?

A. I should judge, that out of curiosity, some was along with them from different places, but there was no organization. They didn't come in an organized body. They took in the ground between two roads, between the street and the railroad, on the street and on the railroad, and on the ground between, and on the other side of the road. They were scattered along there. I should judge that it is nearly or quite three quarters of a mile from the silk-factory up to the shops and the head of the body—some of them went on; lived at the steel-works, fifty yards or one hundred yards this side of the steel-works. And we looked towards the hill, and we could see the men on the side of the hill; and we could see them, some of them going towards Ward street. There was nothing in the form of a government at all.

Q. You considered the meeting broken up at the time that motion to adjourn was carried?

A. Yes, sir.

By Mr. Larrabee:

Q. This man who read this letter, did he make any remarks in regard to it after he had read it?

A. I do not think that he did.

Q. Don't think he made any comments or advised the crowd what to do?

A. No, sir; he made no comments whatever.

Q. Did any one, after the reading of the letter, make any comments upon it, or advise the crowd what to do?

A. Not upon the letter.

By Mr. Reyburn:

Q. Did he call upon any of the crowd to follow him?

A. No, sir; there was no one that I heard call upon the crowd to follow him. No one. When the motion was made to adjourn, that side of the crowd or of the meeting that was this way, the northern side of it—the north-east of it, came first, some of them, and some stayed back.

Q. Did the greater part of the crowd come down through the shops?

A. Well, I don't know about that. I would not like to say, because I took no particular notice.

By Mr. Means:

Q. Did the crowd appear to have a head or a leader?

A. No, sir.

Q. Every fellow for himself, was it?

A. So it seemed to be; yes, sir. There was no leader at all.

By Mr. Larrabee:

Q. They all seemed to have an idea of coming the same way?

A. Not all.

Q. That is, they got headed this way?

A. Well, there was a great many that come up this way; lived that—live over this way. They live back on this side—a great many that came up—and they came down the avenue.

By Mr. Means:

Q. From the commencement to the end, in your opinion, you suppose there was no regular organization?

A. No, sir; there was no regular organization.

By Mr. Lindsey:

Q. You are pretty well acquainted with the laboring men in this vicinity, are you not?

A. Yes, sir.

Q. Were those six or seven thousand that assembled there composed of laboring men of this section—Scranton and surroundings—here principally?

A. Oh, yes, sir; principally.

Q. Were there any strangers, tramps or strangers—outside men entirely—outside of this region?

A. I could not answer that, because I do not know as there was.

Q. Did you see any?

A. No, sir; I took no notice of any.

Q. The faces of this crowd was familiar to you, were they, as men that you had seen in the vicinity?

A. Yes; a large majority of them were.

Q. You didn't see the conflict that occurred on the street?

A. No, sir.

At this point, the committee adjourned till to-morrow morning, at nine o'clock.

SCRANTON, *March 30, 1878.*

The committee met pursuant to adjournment, at nine o'clock in the morning, Mr. Lindsey in the chair. All members present except Mr. Dewees.

W. W. Mannis, *sworn*:

By Mr. Lindsey:

Q. Where do you reside, Mr. Mannis?

A. Scranton.

Q. What is your business?

A. Superintendent Lackawanna Iron and Coal Company, building and lumber department.

Q. I wish you would just state the facts that came under your observation in reference to the troubles—the strike of July last?

A. On the date of the riot, the 1st of August, in the morning, about eight o'clock, I heard there was a meeting called at the silk-works.

Q. Go on, Mr. Mannis?

A. I heard that there was a meeting called down at the silk-works, and they were going to clean us all out. I made my way around among my men, and went down to the foundry, supposing that would be about the first place they would strike. I stayed there. There had a man gone from our shops to attend the meeting. I asked of the different foremen what was best to do, and we decided that we would continue on. We would not close up our shops—that we would see what their intentions were. May be it was false. Pretty soon this man came back, and said, "You had better shut up. They are

coming in a body to clean you out. You had better get out of the way." We had another consultation, and decided we would stand our ground and protect our property. Pretty soon we saw them coming up Washington avenue, across the track. There they halted for a few minutes. Then they filed off, a part of them towards our shops, and the other part came on directly up the street. I should judge there were from fifteen hundred to two thousand that turned towards our shop; and as they came to the shops they scattered into all the shops; some of the men run out. Some started to run out, and they struck and chased them. They went into our boiler shop, where we have a shaft driven by water wheel and a large belt. Five or six caught hold of that to stop it. Says I, "Boys, don't destroy property now. You are only injuring yourselves. Don't come around here and destroy property." They paid no attention to me. I got the attention of one that seemed a leader, and says I, "If you have any control over these men, for God's sake take them back. You are only injuring yourselves." "Damn you," said he, "we have got the power." Says I, "If you were worth anything I would knock your brains out." They says, "Where's Bill Scranton, that is going to make us work for three shillings a day." Says I, "Listen to me. Go back and attend to your work." No; they had the power and they were going to use it. "You have got plenty," they said, "and we ain't. We are going to have our rights." They went into our shop and ordered the man to draw the fire. He started to do it, and then some one struck him with a chunk of iron, and he got up and went through the shop, they pelting him as he went. His shirt was torn off him, and his back was bloody. Another one started to run behind the foundry, and they were after him, and throwing stones and chunks of iron and cinder and anything they could get. They got the shops all cleaned out, and they started for the blast furnace. I heard one man sing out. Says he, "I know the way; follow me." With that I started on ahead of them. Before that, while they were standing in front of the machine shop, there was some one got up on a piece of casting. "Now," says he, "fetch on your Bill Scranton. Where is he? We'll gut him. We'll have his heart's blood." Says I, "Don't talk so loud. You are crazy. You do not know what you are talking about." He turned to me with some abuse; "that they had the power now, and they were going to use it—that they were going to gut Scranton." Says

I, "You had better keep off Lackawanna avenue or some of you won't get home." They started to the furnace, but I got ahead of them, and went on ahead to notify the men to take off the blast and fix the furnace, and met the foreman and told him they were coming. He ran to the furnace and took the blast off. The most of the men scattered, I don't think they got hold of any of them. I passed through the casting-house, up the steps to the engine-house. There was a lot of them behind me following me up. They came in contact with our boiler tender, an old man sixty or seventy years old. They knocked him down. I went to the engine-house. The engineer was coming out of the engine room—they had brought him out. He had walked across the street. Says I, "Come back, the boiler will blow up in twenty minutes with the steam you have got, if you stop the pumps." The leader of that gang came up and they surrounded me, and swore if they would put that man back in there again they would blow my brains out. Says I, "Gentlemen, you had better go back home; turn right around and go, or you will miss it." Says I, "Don't come around here and destroy property." They soon passed off, and came down toward the shops. I had nothing at all with me to protect myself. I had a pistol at home. I ran up home and got that and put it in my pocket, and went back to the engine-house again. Found the engine-house was afire in two places. The engineer had gone back and put it out, and drew the fire from the boilers. Then I started up to the railroad, toward the company's store again, and as I came right in front of the company's store the men had just filed out of the store—this posse—and came down the street, and as they crossed Washington avenue, the street was literally filled up with men, but they seemed to open and let this posse through, and as they went through the gap closed up again. Then I heard two or three pistol shots, and pretty soon I heard the rifle cracks—more than two minutes, maybe less—heard the rifles crack, and pretty soon they began to scatter. In a very few minutes I saw the posse come back, and the streets were pretty well cleared. I started down this way to where the shooting was; and I got part of the way down and I met them coming, one man on a litter—that was near Mr. Phillips'—his father was behind. I met them walking back towards the company's store.

Q. Was this one of the posse?

A. No, sir; he was one that was with the rioters. He is a Welshman, a very bad character; had but one leg. He was with them, and he was shot through the arm. The ball passed through the fleshy part of the arm. I thought he was dead, but he recovered again and is now at work. Previous to the 1st of August, they had driven our men and sent our men out of the shops. My shops are on the other side, the car smith shop is on the other side of the engine-house—part of them went over and took them out. Before the day of the strike they had notified them several times that they should stop work. In fact, they had stopped pretty near all my men. There was not more than half a dozen to work at that time. Ordered them to stop work.

Q. Had you had any difficulty with your men previous to the 1st of August.

A. No, sir; I had not.

Q. Did they all continue to work?

A. No, sir. Our men came out—I forget the date. Our puddlers were the first men to strike in the city.

Q. What day did they strike?

A. They struck at noon. I think it was Tuesday night the engineers and railroads all stopped. That was on Tuesday night. I do not remember the date, but the engineers and firemen stopped. Our puddlers all came out that day at noon.

Q. What day do you think that was?

A. That was the day that the engineers stopped at night—at noon.

Q. On the railroads?

A. Yes. Our railroad stopped here at night.

Q. Was it the Tuesday after the fire at Pittsburg—the burning at Pittsburgh?

A. Really, I could not say, sir. It seems to me it was before that, but I won't be positive of that. I forget what day our railroad stopped.

Q. Tuesday, after the trouble at Pittsburgh, your railroad stopped?

A. Then it was that Tuesday noon our puddlers stopped. The puddlers stopped at noon as the men came out at night.

Q. How many of them?

A. I should judge there were near a hundred.

Q. What did they complain of?

A. They made no complaints. It was like a perfect panic among them. They said the first thing they knew, the whistle blew at the mill, and "now come on," and they all came down to the steel mills, took the men with them there, and went down to the machine shops and foundries and stopped the men there. They did not succeed in stopping the foundry. They stopped the men at the machine shops. They had not asked for anything prior to that time. Had not asked for any advance. Mr. Scranton went down as soon as he heard of it, and asked them what they wanted, or had some talk with them. Maybe he could tell more about it than I could.

Q. Had they complained of low wages prior to that time?

A. It has been a complaint all through about low wages. I had not heard anything from our men. I suppose I have probably one hundred or one hundred and fifty men under my employ.

Q. You had heard nothing from them?

A. They had made no complaints to me.

Q. In any way?

A. No, sir.

Q. What were you paying these men?

A. The puddlers?

Q. Yes?

A. I could not tell you. They work by the ton, do not know what it was. It is not in my department.

Q. Was this W. W. Scranton employed in the works in which you were superintendent?

A. Yes; he is general manager.

Q. Were any of those puddlers in the crowd that came up from the silk-works?

A. I do not know, sir. There was not a single face I knew. All the crowd that I saw, that I came in contact with, were strangers to me, and looked to me more like miners than laborers.

Q. What proportion of the number of men that you had employed, was at work on that day—the 1st day of August?

A. I should suppose, probably not more than—you mean in my department—probably one fourth.

Q. Take it in the whole shops—what proportion were at work?

A. Probably one fourth. The others had been intimidated by threats and some had been assaulted before that, because they had continued to work. They had been notified that they should not work.

Q. Had you heard of any discontent among the men, or had there been any discontent or any strike contemplated, so far as you learned, prior to the news of the strike at Pittsburgh reaching here?

A. There had not anything positive. I knew there was a very bad feeling among the men, I knew the men felt sore and uneasy, didn't seem contented or happy. I had not heard any threats of any strike.

Q. What about?

A. About low wages. The companies had been oppressive, and they ought to have more, and there seemed to be a general dissatisfaction and bad

feeling.

Q. Had the wages been reduced any last year, during the summer?

A. Yes, sir.

Q. When were they reduced?

A. I think our reduction took effect the 1st of July—a general reduction among the mechanics, I think.

Q. How much did you reduce the wages?

A. I think it was ten per cent.

Q. Was that reduction general among the companies in Scranton?

A. I think it was, I would not be positive about that, I think it was.

Q. Did it extend to the miners—had there been any reduction in miners' wages?

A. No, sir; I think not. I think there had not been any since the 15th of last March.

Q. Simply applied to mechanics?

A. There had been a reduction in March of miners' wages—I think it was March there was a general reduction.

Q. How much of a reduction was made then?

A. I could not tell. That was something I had not anything to do with at all.

Q. Can you tell what the class of men were getting in the shops you had charge of?

A. How much they were getting?

By Senator Reyburn:

Q. About?

A. From \$1 50 to \$2 25.

By Mr. Lindsey:

Q. What class of men were getting \$1 50?

A. Ordinary carpenters and car-makers.

Q. What class getting \$2 50?

A. Our best blacksmiths and some of our best carpenters.

Q. Some of the best carpenters getting \$2 50?

A. Yes, sir.

Q. What would the wages average? Take it on an average?

A. Among mechanics?

Q. Yes.

A. I think it would average, probably, \$1 75.

By Senator Yutzy':

Q. This man that was wounded, is still here in the city working?

A. Yes, sir.

Q. Was he actively engaged in the riot?

A. I do not know.

Q. Never was arrested?

A. No, sir; his father is a very good mill hand, and through the influence of his father, and the sympathy with his family——

By Mr. Means:

Q. Had he been in your employ?

A. Yes, sir.

Q. Is he in your employ now?

A. Yes, sir; he was a short time ago, and I think he is. His father is a boss heater. It was his father's influence—we had a good deal of sympathy for the family. They are poor.

By Senator Yutzy:

Q. Can you give us an estimate—an approximate estimate of the amount of loss sustained, by reason of the riot, in the works of the company?

A. I could not swear. The principal loss was the furnace. We had two furnaces in blast. They were filled up full. That was a complete loss. It is very expensive to cut them out.

Q. Chilled, were they?

A. Both chilled.

Q. Who can give us the probable loss?

A. W. W. Scranton.

Q. You said you were notified that there would be a meeting at the silk-works, and they were going to clean your shops out. How did you get your notice?

A. The superintendent of the blast furnace told me.

Q. Do you know where he got his information?

A. I do not. I presume he got it from some of his men there.

Q. Got it from some of the hands that heard it talked?

A. Yes; how he got it I do not know. We were doing some work at the old mine, and I came through the blast furnace; says he, "There is a big meeting this morning." Says I, "Where is it? I guess we had better go down." Says

he, "They have a rousing meeting, and they are going to clean us all out to-day, and you had better be on the lookout." Says I, "I will keep my eye open." That is Carl McKinney, he is superintendent of the blast furnace.

Q. You do not know whether it was some of the men that wanted to notify him so that he would be on his guard or not who gave this information?

A. I do not. I rather mistrust so, though, thought it was some man he had put for that purpose. I imagine so, he seemed to know pretty well how it was going to be conducted.

By Senator Yutzy:

Q. Is he still here, this man, superintendent of the furnace?

A. Yes, sir.

Q. What is his name?

A. Carl McKinney.

By Mr. Lindsey:

Q. How long was it before your men resumed their work after the strike?

A. When our mechanics went to work after the strike?

Q. Yes?

A. There was not any general resumption of work until after the miners commenced working again. I do not recollect how long they were out, now.

Q. Was it a month?

A. Yes; it was more than a month, I think.

By Mr. Reyburn:

Q. Some time in September or October?

A. I think it was near the 1st of October.

By Mr. Lindsey:

Q. Before your works started up again?

A. Yes; but I wouldn't be positive about that. I am a poor hand to remember dates.

Q. Where were the men during the time the works were standing?

A. They were around home scattered. They were some of them that wanted to work, who would go out in the country and get work. Some of them laid around—loafed around.

Q. Unemployed?

A. Unemployed principally. Our men—I could have worked a good many more men if they would have worked, but they were afraid; men were actually afraid, my men told me. I could not get enough hardly to do what work I had to do. Tried to prevail on them to work. They said they would like to work but were afraid. I had a few at work, and several of them as they were going home they were stoned. They said if they didn't stop work they would burn every building down.

Q. What class of men were those that made these threats?

A. They were German and Irish.

Q. Were any of them arrested?

A. I don't know that any of them were arrested. The men were actually afraid to work. There was a great many glad to work, but they didn't dare. I know it was the case with my men.

Q. Was any effort made by the civil authorities here to arrest the men that were threatening others and intimidating them?

A. All that I could hear of were arrested—that any one would complain of. These men that they had made the threats to daresn't report them, or it would not have been safe for them. They would have lost their property and

their lives, undoubtedly. I had one man working that lived over in the Twelfth ward. He daresn't go to his dinner. He would have his dinner brought to him in the shop. He would go out early in the morning. Daresn't carry a dinner can. I never saw such a state of things among the men in my life. Never saw such a wild set of men as the men were that morning.

Q. Those men that threatened to stone those that wanted to work, were they men that had formerly been in your employ?

A. Yes, sir.

Q. Did your company take any means—adopt any plan—to bring those men to justice?

A. They did all they could, but they couldn't get the evidence without bringing these men they had made the threats to prosecute. The mayor told me once himself that any man that he could find out that had made any threats of that kind, that could be proved, to bring them right before him. I could get no man willing to go and swear to it.

By Senator Yutzy:

Q. Did your company reemploy any of those men that made threats?

A. Not if they knew it. I don't think they did. They would send squads around, half dozen in a squad, and wherever they found a company man at work, they would want to know who they were at work for. If they were at work for the company, they must quit—if they work individually, they could go on. I had some men at work about five miles out, and there were a party of men went out, and wanted to know if they were working for the company. They told them a lie, and said they were working for men that lived out there. They said, "If you are working for the company you have got to stop."

By Mr. Reyburn:

Q. I would like to ask the gentleman whether those were men or boys, or what aged men they were?

A. I think it run from fifteen to forty.

Q. They were men most of them, were they?

A. Yes, sir.

Q. Men of mature years?

A. Yes; they were men. I should judge the majority of them were between twenty and thirty, by their looks.

Q. Do you know the men composing the mayor's posse? Were you acquainted with them?

A. Yes, sir.

Q. What character of men were they?

A. They were some of our best men—most of them. They were of good standing.

Q. And character?

A. Yes, sir. I would say nearly all. There might have been one or two that wouldn't bear sifting; but they were composed of our best men. They were headed by W. W. Scranton, and Chittenden up here, and that class of men. They were all young men of good standing.

James E. Brown, *sworn*:

By Mr. Lindsey:

Q. State where you reside.

A. Ninth ward, city of Scranton.

Q. What is your business?

A. Hardware.

Q. Hardware merchant?

A. Yes, sir.

Q. If you will just give us a statement of the facts that came under your observation of the riots here?

A. How far back do you want I should go? I was one of the officers of the posse before the riot, and was with the mayor all through the crowd down there.

Q. Commence with the origin of it?

A. There was a great deal of excitement among all the laboring classes here, and a great many threats and rumors were current that property was going to be destroyed. After they had been current several days, a large number of young men here in the city, in talking over matters, made up our minds that something ought to be done to protect property, and it resulted in a meeting being called, and a paper circulated and largely signed, and the meeting was held at the club room of the Forest and Stream Club, to organize and decide what course we would take. We met and decided that we would organize in a sort of a military style, with the express intention of protecting property; but not interfering in any way between the laboring men and their employers. We had nothing to do with their quarrels, but we must protect our own property and the property of the citizens.

Q. When was that meeting called?

A. I cannot tell you the date. I could get it. It was near about the time, I think—immediately after the Pittsburgh riots.

Q. Had these rumors of difficulty and of attack upon property and destruction of property existed here before the Pittsburgh riots?

A. I cannot say just the dates. I didn't pay much attention to it. I thought, like a good many others, it was doubtful that there would be any trouble. We organized as fully as we could, and were careful who we allowed to belong to the party, and after the organization, who we elected went down to the mayor. Of course, we proposed to act through him and under his authority, and in no other way. He welcomed us and took proper steps to give us a legal standing. It was understood that we were to turn out only at the call of one of the officers, and a proper signal was agreed upon to be given, and that signal was only to be given by one of the other officers, and by no other persons; and as I happened to live nearer to the bell than any one else, it was understood that I was the only one to go out at night. A person was on duty all the time at the mayor's office to give me notice if that signal was to be rung if there had been any trouble. Things went on that way—rumors were constantly flying about—until, I think it was, the first Monday in August, when we met as usual at night. There was reports they were going to make an attack that night on the company's store I think, and we met, when I had a long talk with the mayor, as well as a great many others of the posse, and he told us of this meeting to be held at the silk factory on Wednesday. That he was perfectly certain there was going to be no more trouble; that everything was in a very satisfactory condition, and the same story again on Tuesday. That night word came to us they were going to throw a train off the track above the iron company's store, and they wished us to be on hand and see that if that was done there would be a force there to preserve order. We stayed there until a little after twelve, and in view of what the mayor told us of the train coming in all right, peaceable, and quiet, we made up our minds we had fooled with this thing long enough, and I saw Captain Ripple in the morning, and we agreed it was time to stop all that performance, and we would have nothing to do with it unless news came somewhat different from what we had. I went to the store as usual, and was around there. Knew of the meeting at the silk factory. Saw a crowd coming down there—from the upper stories I could see the crowd coming down there. I came down the street, and was talking with several members of the posse. The streets were very crowded. A great many strangers here—strange faces. Along towards eleven o'clock—between ten

and eleven—members of the posse commenced to come to me and say they didn't like the looks of the meeting down here, and they wanted me to act—to do something. Captain Riddle was at his works, and was not expected to be here all day, and I was the only one that was here that had any authority to give the signal.

Q. You were one of the three officers?

A. Yes, sir; I laughed at the notion of there being any trouble, and was so confident that the meeting with the railroad men had been so satisfactory, that I thought there was no danger whatever. Along just about eleven o'clock, near that, a man came to me and was very excited, and told me that the meeting had broken up and were coming up this way, and it was time to act. I told him, well, if you are afraid, go into the company's store—tell everybody you see to go to the company's store—I shall stay here until something more occurs. I went back to the store, saw that the crowd was getting more excited, and I commenced telling every man I saw to go to the company's store. I stayed in front of the store two or three minutes—the store is on the corner where the riot took place, and one of the Logan boys came over and said they wanted the signal given from the company's store. I told him we must have the mayor's order first, and to go down and tell the mayor I was there at the store, and if he wanted the signal given I would give it immediately. He went down and reported to the mayor, and his brother, at the time, standing there over the bell that nobody should ring it, and he had not been gone long before the messenger came then at the company's store who had been sent down to ring the bell, and I could not do it. I sent back word I would get the mayor's order and ring it immediately. I met the chief of police, and said they had sent down to have the signal rung, and they were driving the men out of the blast furnaces, and he said, don't give the signal. He said, send every man you see to the company's store. We went down Washington avenue, and went under the arch. There was a great many saw him going into the crowd where the disturbance was. They were then driving the men out of the car shops—cheering, and others hissing. He made a remark something like this: "Boys you better go home; you better get away from here;" and went on through the crowd. Some spoke and

looked, and some started as if they were going to leave. There was no perceptible difference. We went as closely as we could, until we got to Mr. McKinney's office. He went up about to the door. Just as he got to the door the crowds were coming out of the shops. The crowds seemed to strike there—the lookers-on and the rioters. Some that came out of the shops were very much excited, brandishing their sticks around. The mayor started to come back. Just as he turned around and got a little back, I saw him struck over the head with a club. He turned around and went to see who struck him, and started off again. There was a movement made in the crowd as if to protect him, and I was separate from him, I believe, five or six feet. I kept as close to him as I could. Neither of us were armed. Both of us were perfectly helpless, that is, we had not even a stick, and he was struck again. Meanwhile, the crowd as they came out of the shops, didn't seem to recognize him, and they said, "Who is he?" and I guess a dozen voices answered, "The mayor. Protect him." Some said—a great many said, "God damn him, kill him. What is he doing there?" Just then a pistol was fired. I saw the smoke of it. He evidently had it in his hand, and in getting it up the crowd was so thick it went off. Two or three rushed to strike him, and two or three rushed to protect him. The crowd was very thick just then. Father Dunn came along, and took hold of the mayor's arm, and marched him off. Another effort was made by the crowd to protect Father Dunn and the mayor, but especially Father Dunn. A great many more tried to protect him. When I speak of the crowd, I mean the men who had been driving the men out of the car shops. They says, "Who is he—Father Dunn—God damn him, kill him. What is he doing here?" That cry was repeated. After I got out of the crowd, I would have sworn that I saw Father Dunn struck, although he denies it, but I still believe, in my mind, that he was struck. After we got a little further, a man jumped from my side and struck the mayor on the cheek, with either a billy or a slung shot. That was the blow that broke his jaw. That man I wouldn't recognize again. I never saw him before, but from the view I had of the men who were killed, I think he was one of the men who were killed. As we got further along towards the arch—after we got out under the arch—towards Lackawanna avenue on to Railroad alley, the police took hold of the mayor, and helped him on to the street. I saw the

rear of our store was open, and I knew what threats had been made, and I jumped into the store and told them to close the front up. I thought that might be a very good place to start a fire. At the same time, I went to get a pistol. I tried to lock the front door, and as I looked over my shoulder, I saw the posse coming down the street. I jumped for the head of the posse. Stones were thrown, pistols were fired, and I heard one shot, I think it was, and I immediately turned around and yelled, "Don't fire!" My impression was they were not in any position, and they wanted to avoid a conflict with the crowd, if possible; but immediately after that, stones came from the other track parties by us, and there was another pistol shot or two—I couldn't say how many—and I saw a crowd throwing stones, and I turned around and I said, "Give it to them boys." Then the volley was fired, and immediately from that side between Colson's store and the next—the crowd over there—and I told them to give it to them, and they turned the guns that way; and by that time the crowd had got so thoroughly panic stricken that the riot was over.

Q. How many were there in your posse that were firing?

A. There was just fifty-one men with myself. As they came down the street they counted thirty-eight. I had the names of the whole posse, and from evidence I know—positive evidence—I know there was just fifty-one men.

Q. They were all present at that time?

A. Our whole posse was over a hundred.

Q. Was the signal given?

A. No, sir; I would not give it without the mayor's order. He was completely bewildered after this blow breaking his jaw. He was struck three or four other times, and just as soon as he could, got out of the crowd. I ran to give the signal, but I wanted my pistols first. I thought we were going to fight, and I wanted to be armed. Before I could get near the church to give the signal, the firing took place, and the whole thing was over. They ordered the men to fall in on Washington avenue, and they all fell right in without any excitement, just like old veterans, and we went straight to the company's

store, and by the time we got to the company's store, a great many citizens were there to support us. I had no idea they were whipped. I supposed they would merely go around through the yard and attack us again. We went to the company's store to prepare to meet them.

By Senator Yutzy:

Q. Who was given command of this posse?

A. There was no officer in command. W. W. Scranton had brought them out. They had gone there and got their guns, and W. W. Scranton had as much command as any one. I had command as soon as I got with them.

Q. Were your men sworn in as special policemen?

A. These also had written authority from the mayor.

Q. You said that the intention of your posse was to protect the property of private citizens. Did you intend to leave the property of corporations at the mercy of the mob?

A. No, sir; that is, we intended to protect common property which would damage the city if it were destroyed. We did not want to be sworn in. We would be sworn in, but we wished to be placed in such a position that we would not be forced to go over to breakers or outlying property in any direction to protect it, but property here in the city, for instance, the company's store we would protect. We did not wish to be mixed in any such way that we would have to take sides as between strikers and the man that wanted to work. It was not our business, we were not serving for pay, we were only serving for our own protection.

Q. I understood that was the case, but the language might be construed otherwise?

A. We could not draw the line between private property and corporation property.

By Senator Reyburn:

Q. You better explain more fully the object of the organization?

A. The object of the organization—we understood the cry had been raised all through in all directions among—I can't say whether there were miners or laborers, but among the worthless set of men who were in one thing or another, and hardly ever did a stroke of honest work, that they were going to gut Lackawanna avenue, that was the cry, and we organized to prevent any such thing as that taking place. We wished distinctly, and had it understood as distinctly, that the quarrels of men with their employers were nothing to us. We did not wish to side with the companies or men.

Q. The question of wages between the men and the company?

A. That was not for us to decide.

Q. You organized for protection?

A. Merely for protection of the property of the city. We had up to the time of the riot the best wishes of a large portion of the laboring class.

Q. How was it after the riot?

A. Then came a question of order. Three men were killed—whether in killing these three men we were justifiable, and under the excitement, a great many would privately tell us they thought we were justifiable, at the same time to hear them talk in a crowd, you would think they were not.

By Mr. Lindsey:

Q. You were tried, and the court sustained you?

A. Sustained us.

Q. How many were arrested of the posse and tried?

A. We were all tried—no we were not all tried. There were two indictments brought, one was for murder, and one was for manslaughter. Those they supposed had done the shooting were tried for murder and acquitted, and those that were under indictment for manslaughter—the whole thing was

nolle prossed. The same evidence that failed to convict the men of murder would have to be used on the trial for manslaughter.

By Senator Yutzy:

Q. Where were you tried?

A. Wilkes-Barre.

Q. Before what judge?

A. Harding. I was not tried; I was indicted for manslaughter only, because at the time the firing took place I had no weapons about me.

Q. All that were tried were acquitted?

A. Yes, sir.

By Mr. Lindsey:

Q. Was the case ever submitted to a jury?

A. Yes; the murder case was submitted to a jury.

Q. Under the instruction of the court?

A. Yes. It was so plain a case, we had so many men hurt, and we could prove so many stones thrown and pistol shots fired at us. We had four men altogether, wounded—one man shot in the leg, one man a pistol ball took him right across the fingers—it made no wound to speak of, still the intention was to hit him, and that same ball struck a gun and left its mark in the wood, and on the iron. Another ball that was fired whistled by my head and broke a plate-glass window.

By Mr. Larrabee:

Q. Did this all occur before your men fired?

A. The shooting of this pistol—the man who fired that pistol was killed. Two men were struck, and badly hurt with stones, and the men that threw

these stones were killed. All this took place before a single shot was fired from our side.

By Senator Yutzy:

Q. Were there any other stores broken into and robbed?

A. No, sir; not robbed. Our store was broken into, but it was by the mob, in their efforts to get away from the guns.

Q. After you were arrested, tell what took place in regard to your being arraigned before a magistrate.

A. We were not arrested; there were no arrests, virtually no arrests made. We voluntarily gave ourselves up, after this coroner's inquest had taken place, which was a coroner's inquest held by an alderman, an illegal inquest, as decided by Judge Harding. An inquest was held, and myself, as well as a number of others, were found guilty of murder, and warrants issued for the arrest.

Q. Were you charged with murder?

A. Found guilty by the coroner's inquest of murder, so far as a coroner's inquest could do that. Among the number found guilty, were men, who—or accused of it—were men who were not in the posse, and had no connection with it, and it was known to every one, who were blocks away from Lackawanna avenue. One of them was three blocks away from Lackawanna avenue, at the time the firing took place; another one was in his barn, one block away from Lackawanna avenue; and another one, I doubt whether he was in the city; another one was inside the store—of our store. Both the Messrs. Hunt who were found guilty—were brought in by the coroner's jury, charged with murder, had no connection in any way, shape or manner with the posse, and were not present at it, the elder Mr. Hunt, being inside of the store, and the younger one, being over two blocks away. Warrants were issued for the arrest of the elder Mr. Hunt, and some others, and Mr. Hunt was arrested. This was done at night. It was understood that we would be arrested at night, and taken in carriages to Wilkes-Barre, and not allowed

a chance to consult counsel, and taken down through Taylorville, where a large number of this crowd had come from, and where two of this crowd that were killed lived, and then probably lynched. As soon as any notice was given of these arrests, word was carried immediately to General Huidekoper's head-quarters, who was then stationed at the company's store, to come along on the track, and scattered where they would do the most good. He immediately ordered a company down, and took the prisoners from the constable, holding himself personally responsible for their delivery to the proper authorities. That was done, because no one had any idea that the coroner's inquest was a legal affair, and that the lives of the men arrested were not worth that, if they were taken off at night, because any one of them could be arrested in the day time. Any one of us could be arrested at any hour of the day, if they had seen fit to do so, and it was merely an action of revenge on the part of the crowd. The next day, all that were in any danger of arrest, voluntarily went to Wilkes-Barre, and entered bail.

Q. How many were arrested by that constable?

A. Two.

Q. And they were taken from the custody of the constable by this company of Huidekoper's?

A. Yes, sir. Undoubtedly other arrests would have been made, but they did not care to go under his guns to do it. We put ourselves under his guns, and spent the night there.

Q. Had they warrants against all the posse?

A. They were not able to find out. We were not allowed any access to what they were doing. It was all secret.

Q. Coroner's jury?

A. Yes, sir.

Q. Warrants issued by the coroner?

A. By an alderman, acting as coroner.

Q. And placed in the hands of this constable?

A. To arrest. The constable told me that he had a warrant for my arrest that night, but refused to serve it.

By Senator Yutzy:

Q. Did you ascertain what force accompanied the constable to make these arrests?

A. No, sir. There was quite a crowd apparently hanging on, but the constable made the arrest alone. The idea was to hurry the men off quietly, without letting us know anything about it, and get them out of the reach of assistance.

Q. Who were the two men that were arrested?

A. T. T. Hunt and C. B. Chittenden.

Q. Were they part of your posse?

A. Hunt had nothing whatever to do with it.

Q. What was Hunt's business?

A. Hardware merchant.

Q. Was Chittenden a member of the posse?

A. He was a member of the posse.

Q. Did he participate in the conflict?

A. I am not certain whether he did or not.

Q. In endeavoring to suppress the riot?

A. I am not certain whether he was in the squad or not. I know he belonged to the general committee—the general posse. If he was not there, he

probably would have been if he had had an opportunity.

Q. What class and character of men was that posse composed of?

A. The best men of the town. Merchants and lawyers, business men generally.

J. H. Powell, sworn:

By Mr. Lindsey:

Q. Where do you reside?

A. I reside in Hyde Park, this city.

Q. What is your business?

A. At present I am not doing anything. My last business was editor of the *Industrial Advocate*.

Q. In July last what were you?

A. At that time my occupation was a miner.

Q. And in August?

A. At that time my occupation was a miner.

Q. In whose employ were you?

A. D. L. and W. Co.

Q. Delaware, Lackawanna and Western?

A. Yes, sir.

Q. In what capacity were you employed?

A. Miner.

Q. As foreman, or as——

A. No, sir; miner.

Q. How far were you—was it from the city of Scranton where you worked in July?

A. We were not at work at the time. During that time they were on a strike.

Q. About the 20th of July—were you not at work at that time?

A. I presume not. I presume we were on a strike the 20th of July.

Q. Did all the miners——

A. I am not positive whether we commenced the strike——

Q. Did all the miners employed by the company strike?

A. It was a general strike. I presume it was a tidal wave that went through the country. The first commencement of the strike was the railroad men struck, and they blocked the mines to a stand still, and the miners at the meeting joined hands with the whole country.

Q. The miners struck?

A. They called a meeting, and decided to make a demand for higher wages.

Q. Had you stopped work before you called that meeting?

A. There was a meeting—a preliminary meeting—there was some of the mines idle for want of cars.

Q. Take the company that you were working for—the men that you were working with—did they strike, or were you stopped for want of work to do?

A. I could not state positive with regard to the whole mines. Part of the mines stopped for want of cars.

Q. I am asking whether yours stopped for want of cars?

A. At that time I was unable to attend to my work on account of sickness.

Q. Then you had not been at work for several weeks?

A. I was only working every other week. I could not work on account of sickness at the time.

Q. What day did they hold that meeting and agree to join hands with the railroad employés?

A. I am not positive of the date of that?

Q. Was it before or after the strike at Pittsburgh?

A. It was after the strike at Pittsburgh.

Q. Was anything done by the miners here about a strike before the strike at Pittsburgh?

A. No, sir.

Q. Had you held any meetings or contemplated a strike until after you heard of the strike at Pittsburgh?

A. No, sir; did not know of any meetings.

Q. Then that was the beginning of it?

A. Yes, sir.

Q. The railroad employés struck first, I understand you to say?

A. Yes, sir.

Q. Did they send any word or have any interviews with the miners to persuade the miners to strike?

A. Not to my knowledge.

Q. The miners held a meeting and resolved to strike also. Is that the way of it?

A. Yes, sir.

Q. How long after the railroad employé's struck?

A. I presume, if my memory serves me, it was about a week after the railroad strike, so far as I remember. I did not take any notice of it.

Q. Did the miners have any organization, any societies among themselves?

A. I presume that they had an organization. They used to have organizations. What they termed the W.B.A.

Q. Had they any in last summer—in 1877?

A. I presume they had.

By Senator Yutzy:

Q. Do you know the existence?

A. I may as well say that I knew of the existence of the W.B.A.

By Mr. Larrabee:

Q. Workingmen's Benevolent Association?

A. No; it was the old organization.

By Mr. Lindsey:

Q. What was the new organization?

A. The new organization, I presume, the title is the Knights of Labor?

Q. What were the objects of the organization?

A. The only object of the organization is men combined together to elevate labor?

Q. Are you a member of the organization?

A. Yes, sir.

Q. Was it secret?

A. There were secrets in it.

Q. Was it confined entirely to miners?

A. No, sir.

Q. Other classes of laboring men—did it take any?

A. Took in mechanics, and all that earn their living by the sweat of their brow.

Q. Took in railroad employés?

A. Any class in.

Q. Can you give us the extent of that organization?

A. I could not, sir.

Q. Do you know whether it extends throughout the State, or whether it is confined to the coal region?

A. I do not believe it is confined. I do not know that it is confined to any place.

Q. How many lodges do you know of, or did you, at that time?

A. I could not tell you, sir. I am not posted in the organization.

Q. Was there a lodge here in Scranton?

A. There was.

Q. More than one lodge?

A. There were several lodges. I could not state how many.

Q. Do you know whether there were any lodges in the vicinity of here, around in the townships?

A. I presume there were lodges throughout the county.

Q. All through the county?

A. Yes, sir.

By Mr. Reyburn:

Q. Are those lodges composed of different trades—different branches of the trades? They are all organized—that is, for instance, miners into one——

Mr. Lindsey: No; he has just said, they took in all classes of laboring men, miners, and mechanics.

By Senator Reyburn:

Q. I understand that. I want to understand whether he means a lodge, composed of those men generally, or whether they are lodges of each trade, and these lodges compose the organization or delegates from them?

A. I presume that there are lodges of different trades.

By Senator Yutzy:

Q. Under the same title?

A. The same title.

By Mr. Lindsey:

Q. Take the lodge to which you belonged. Were they composed entirely of miners?

A. No, sir.

Q. What other classes of men belonged?

A. Mechanics, carpenters, engineers, miners.

Q. Were there any railroad employés?

A. I do not know of any.

Q. In your lodge?

A. I do not know of any. There may be.

Q. Carpenters?

A. Carpenters.

Q. Blacksmiths?

A. Blacksmiths.

Q. Miners?

A. Miners.

By Senator Yutzy:

Q. What class of engineers?

A. Stationary engineers; not railroad.

By Mr. Engelbert:

Q. You only include those employed in collieries and about collieries in your organization?

A. All employed around collieries.

Q. Can you give us the extent of the organization in the city?

A. I could not.

Q. Do you know how many members it has throughout the State?

A. I could not say.

By Senator Yutzy:

Q. Approximate about?

A. I have no "about" about it.

By Mr. Larrabee:

Q. Have you not heard an estimate of the number in this vicinity or this county?

A. No, sir; I have not see anything official, more than it is stated somewhere, from thirteen thousand to fifteen thousand.

Q. In this vicinity?

A. In this county. That was the estimate. I have nothing official about it.

Q. The object is for the elevation of labor?

A. The object is the elevation of labor by honorable means and legal means.

By Senator Reyburn:

Q. Is it beneficial?

A. No, sir; only so far as helping a brother when he is in necessity.

Q. That is what I mean?

A. Yes; beneficial.

Q. If a man is sick or out of work or in distress, then he is helped?

A. Out of employment. In distress.

By Mr. Engelbert:

Q. Is it not more for assistance in case of a strike in distress than in case of sickness?

A. This labor organization, it is on account of distress; for instance, a man out of labor and in distress—a family in need; it is a matter of charity.

Q. You do not understand me, or if you do, you do not take it right. If a man strikes, he is helped quicker than if he is taken sick; was he not?

A. I don't know of any proviso with regard to men that strike. If a man is thrown out of employment, or deprived of employment, and in distress, and wants help to go somewhere where he can get employment, the object is to help him along, in order to sustain his family.

Q. Do they ever assist the miners of a colliery that are on a strike?

A. There is no proviso for strikes. Their funds would not afford them to.

By Senator Reyburn:

Q. If a man loses his employment from any cause, he receives assistance?

A. Not any amount. A man, for instance, is deprived of employment, and wants to go somewhere in search of employment—just help him a few dollars to get employment elsewhere.

By Mr. Larrabee:

Q. Is it a part of the objects of the association to organize in strikes case they think it is best in order to get their wages raised? If they are dissatisfied with regard to wages, is it a part of the intent of the society to organize?

A. No, sir.

Q. Or to help them on to arrange the machinery for a strike, so that it will all come off together?

A. There is nothing connected with that organization, only to elevate labor by legal means.

Q. I suppose they would not call striking, quitting work, illegal means?

A. No; my view of the question, a man has just as much right to quit work, and that is legal.

Q. But that is a question, whether this is a part of the objects of the association. Whether in case the men felt that they have been aggrieved by the reduction of wages—whether the association acts as a unit in forwarding a strike, in assisting the men, to all quit work simultaneously?

A. Oh, no; nothing of the kind.

Q. Nothing of the kind in the by-laws and constitution?

A. No; I do not know of anything that I could draw such an inference from.

Q. Is this association in existence now?

A. Yes, it is.

By Mr. Englebert:

Q. Were you working in the mines in 1876?

A. Yes, sir.

Q. What wages were you getting then—average—you being a practical man of intelligence, of course, you know about the average price of miners and laborers in 1876?

A. To be able to answer that question intelligently——

Q. As near as you can remember?

A. I ought to have prepared myself, by looking up the price of coal. I could not remember exactly what would be the price of a car in 1876. If I could remember that, I could find out about what it would be—the amount of money.

Q. What was the difference about in wages between 1875 and 1876, causing this dissatisfaction?

A. There was no difference.

Q. The same wages?

A. The price was the same in 1876 and 1877.

Q. Do you mean the pay for mining?

A. I do not remember of any reduction taking place.

By Senator Yutzy:

Q. Was there any reduction in March, 1877, of ten per cent.?

A. I believe there was ten per cent. in March.

By Mr. Larrabee:

Q. Did that take effect in the mines, or only in the machine shops?

A. There was one reduction that didn't take effect in the mines, but in the shops and among the mechanics.

By Mr. Engelbert:

Q. Not among the miners?

A. There was one reduction the mechanics had that didn't reach the miners.

Q. And are the wages of miners fixed by the price of coal at entirely the same scale?

A. They got so much a car. There is one grand mistake been made in the assessment of the car. It leaves the impression that the men get so much a ton instead of so much a car. When a man gets sixty-four cents a car, it is not sixty-four cents a ton, but sixty-four cents for two tons of clean coal.

Q. That would be thirty-one cents a ton?

A. Yes; for loading and mining and all the expenses in connection with it. The price of a car contained the price of mining coal, loading the coal, and all necessary expenses.

By Mr. Engelbert:

Q. Did not your mine wagons average more than two tons of clean coal?

A. I believe they average it so that a car carries about two and a half tons. There is half a ton allowed for breakage and culm, so it makes it about two tons of clean coal.

Q. Is that not a big average of loss?

A. It appears to me that it is, but it appears on the other side that it don't satisfy the corporation.

Q. About what I am speaking about is ordinary mining?

A. In my estimation, half a ton would be sufficient.

By Mr. Larrabee:

Q. How did this price range in 1877, as compared with 1873, at the time of the panic?

A. I could give you an estimate of what a miner would make in 1877 and 1876 as well.

By Mr. Lindsey:

Q. Just state whether the wages were any lower in May, June, or July, of 1877, than they were in the same months of 1876? Make your own estimates to yourself.

A. I do not want to state anything but what I am positive of, and I cannot bring to memory with regard to the dates of this reduction.

Q. Had there been any reductions in 1877?

A. Up to that date I cannot remember whether there was a ten per cent. or not. There may be others that can remember these things.

Q. You cannot state whether there was any reduction in 1877 or not?

A. I am not positive. I am under the impression that there was a reduction; but I could not state positively—in the early part of 1877.

By Senator Yutzy:

Q. Will you please define the term strike?

A. The only definition I can give you is that it means suspension of work.

Q. You mean if just one man quits work, he is on a strike, or when there is a combination of men all quit at once?

A. Oh, no; a man may suspend work himself, but the term strike means a general suspension of work.

Q. Of all the men—then you call it a strike?

A. Yes; although the proper term is suspension.

Q. You know it is generally termed a strike?

A. So the railroad and everything of that kind call it a strike; but it is not termed a strike unless there is an arrangement or understanding that they all quit. A meeting is called, there is a delegation appointed to inform the officials of the corporations of the demand of the men, and that committee returns back and reports; and if that is accepted—sometimes it is decided by ballot—if they agree to suspend work until their demand is complied with—they go under the term strike.

Q. What is the object of the men, and what means would be resorted to, to prevent other men from working?

A. There is no provision to prevent anybody. I never knew of any proviso to prevent anybody from working.

Q. Then when there is any interference, it is unauthorized by your organization?

A. Oh, yes.

Q. When men go on a strike, and others will undertake to work in their stead, and they are interrupted by violence and threats of violence?

A. No organization could be accountable for that, and I wish to state here that the late strike was not under the auspices of that organization.

Q. That strike at that time was not under their auspices?

A. The strike was not inaugurated by the organization.

Q. Did the organization approve of it?

A. There was a meeting called. There was a mass meeting, and when that meeting—that meeting adjourned to meet at a mass meeting and take a vote of the committee, and in that second mass meeting they decided to suspend work and join hands.

Q. The second mass meeting was at the silk-works?

A. No, sir.

Q. Where was it?

A. Held in the Round woods.

Q. Where was the first one held?

A. "Fellows' Hall."

By Senator Yutzy:

Q. Did this organization—"Rights of Labor"—did they by any resolution or by-law discountenance any interference with men that wished to work?

A. There is no combination to resort to any violence whatever.

Q. Was there anything condemning anything by the men?

A. There was nothing under the organization. The constitution and by-laws is the one safe basis of any society, and from their constitution and by-laws there is nothing whatever but that it is a law-abiding organization.

Q. Do you know of any resolutions being passed by any of those lodges and by this association, condemning interference with men who wished to work?

A. I do not, neither do I know of any resolution that urged anything of that kind.

Q. Were you present at this meeting out here at the silk-works?

A. Yes, sir.

Q. What resolutions were passed there?

A. I do not know but very little about the resolutions. I went there in company—at the time, I held the position of chairman of the county and central committee, and was secretary of the Hyde park executive committee, and we went there in company with others of that executive committee—over to the silk-works meeting, with the understanding that there were delegations there from all over the county.

Q. You are secretary of the executive committee of what?

A. Of the miners.

Q. Of those Knights of Labor?

A. Oh, no, sir; it was a committee appointed in this mass meeting of members and non-members. I went over there to that meeting, with the understanding that there were delegates to be there from all over the county. I do not know that our committee was notified officially of this meeting, only it was spoken all over the street, and I presume there was notice in the local press, that there was to be a meeting held. When I went there, there was a few thousand people there, and after a while the meeting was called to order by some gentleman, a stranger to me, and some gentleman, I forget his name, was elected chairman. He was also a stranger to me, and the meeting was orderly—there was a few disorderly men there, but the average of the meeting was an orderly meeting, with the exception of those few that may have been aggravated by seeing these men they termed

blacklegs working in their places in the shops. I was told that the meeting was called by the Lackawanna Coal Company, to receive the report of some committee, but I never heard of any committee reporting. I did not take any part there, more so than going round, and when I would hear some one making remarks there, to try to quash him of all such remarks, until a letter was brought there by somebody and read—a letter purporting to be written, as I understood at the time, by W. W. Scranton, and in that letter, it was read there, that Scranton stated something, that the men should live on mush and milk, or something to that effect. I was so far off I could not hear the letter, and that drove these men around there to a rage.

Q. Did you understand that this letter had been written by Scranton?

A. I never thought that was the letter. That was my impression. The impression it left on me was that it was written by some men to accomplish their object—to inspire the men to violate the laws.

Q. Do you know of any resolutions passed at that meeting? Do you know the purport of those resolutions?

A. I do not know of any resolutions.

Q. When this meeting adjourned, what was the general understanding of what was to be done?

A. The meeting adjourned. There were a few that got up a cry to go and drive all the blacklegs out; and the meeting adjourned, and the men started and went up in the direction of the shops.

Q. What do you mean by the shops?

A. The manufactories, you know.

Q. Different manufactories?

A. Yes; and that is the last I saw of the meeting. I could see these men running. I saw these men running up the hill. I didn't follow them. I took the railroad up.

Q. You did not go up with the crowd to the shops?

A. No; I didn't see anything.

Q. How large a crowd ran in that direction, about?

A. I think, maybe, those that went up there might have been three or four thousand people there in the meeting, more or less. I could not make an estimate. There was a large crowd.

Q. What class of men were those that talked about driving the blacklegs out of the shops and mills? Were they men from these shops, formerly?

A. They were strangers to me. I was not much acquainted with this city.

Q. Did the miners join in with that crowd?

A. It was not a meeting of miners; it was a public meeting. You could not say it was miners or mechanics.

Q. You could not tell whether there was any miners joined that crowd or not?

A. Oh, no.

Q. A mass meeting of all classes of laboring men?

A. A general meeting.

By Mr. Lindsey:

Q. Was there any liquor there, or anything to inflame—any drinking going on?

A. Oh, no; not to my knowledge.

Q. You didn't see anything of that kind?

A. Didn't see any man there under the influence of drink.

Q. Do I understand you to say you are a member of the executive committee of miners?

A. Yes, sir.

Q. Did you go there in your official capacity?

A. No, sir; we just met, and agreed to go there together.

Q. To hear some report?

A. Yes, sir; we went over there as a matter of curiosity, being a member of the executive committee of the Hyde Park miners.

Q. What did you expect this report from?

A. We were informed there would be delegates from different places?

Q. They were to make a report?

A. Yes; to know the general situation of the men all over the different parts of the county.

Q. What were they to report about?

A. With regard to what was the condition of the standing of men in different places. That is what we expected they would report.

Q. The condition in what respect?

A. In regard to what was the condition of the lines that were striking, or any sign of a break, or anything of that kind.

Q. That is, whether they were all standing solid in the strike?

A. Yes; exactly.

By Senator Yutzy:

Q. Did your committee intend to make a report at that meeting, also?

A. No, sir; but we could have made a report in behalf of the Hyde Park men, the men that we represented in committee. If there was any difficulty, we could see that the men at our side were all solid. That is the general phrase of a report, if the men are all solid—all solid.

Q. All stand united?

A. That meant united.

By Mr. Lindsey:

Q. What wages did you get the last month that you worked?

A. I presume that the men——

Q. I just asked you the question, how much did you get the last month that you worked? How much did you make?

A. The last month?

Q. Yes?

A. We generally work there——

Q. I ain't asking you that?

A. I could not tell you how much I made in the last month.

Q. How much could you make a day?

A. In the Diamond vein a man could make about \$1 89 a day, figuring down the price of a car, and allowing for expenses, and the price for labor, loading the coal.

J. F. McNally, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. Sixth ward, city of Scranton.

Q. What is your business? What was it in July last?

A. Boiler tender for the iron and coal company.

Q. Where is that located—the works of the company?

A. Down this side of Shanty hill a little ways.

Q. Were you at work on the 1st day of August?

A. No, sir.

Q. Go on and state why you were not, and give us the facts connected with the strike here, and all that you are acquainted with?

A. On the 8th day of July, I think it was, there was a reduction—it didn't say how much.

Q. A reduction of wages?

A. A notice put up to that effect.

Q. By that company?

A. Yes, sir. We didn't like it very well, and we appointed a committee to wait on Mr. Platt—he was outside foreman there—and see what the reduction was, and the committee went to Mr. Platt, and he was to go to Mr. Scranton. The answer was, that when we got paid we would find out what the reduction was. Mr. Platt stated that Mr. Scranton told him he didn't know it was any of his business to go there—something to that effect. So we worked along, and on the 20th they struck. I was on the night turn, and I worked Monday night, and Tuesday afternoon they struck.

Q. On the 20th of July?

A. Yes; about twelve o'clock. They stated here it was a puddlers'——

Q. It was either the 17th or the 24th—which was it now? Do you think Tuesday, 24th?

A. I could not say positively which it was. I know it was summer. The latter part of the month, or getting that way.

Q. Go on, then.

A. I was on the night turn, and I just got up about two o'clock, and I came over that afternoon a little early, and had a little work to do, and when I was going out mother said to me, "Where are you going? Going to work?" She said she heard they had struck. There was a meeting that night up on the hill. I left the dinner-pail in the house, and went up to the meeting, to see what was going on there. When I got there, Mr. Scranton came about the same time, and he asked what was the matter, and they told him. He said he could not do anything, and he drove away, and that is all there was about it until the 1st of August there was a meeting called to be held at the silk-works. So we went there to hear what it was. We understood it was a report from the miners and other different trades, in regard to what they were going to do, whether they were going to stay out or resume work, or what. After the meeting was called to order, before any committee had a chance to report, or anything of the kind, this letter was produced, and read there.

Q. That was at the silk-works?

A. Yes.

Q. State how the letter read. What the subject of it was. The subject matter, as near as you can remember.

A. The substance of the letter was, Mr. Scranton said he would have the men working if, I think, it was thirty-five cents a day and living on mush and molasses, or he would bury himself in a culm-dump. That was the statement of the letter.

Q. How was the letter signed?

A. Workingmen.

Q. These workingmen stated in the letter that that was what Mr. Scranton had said?

A. Yes, sir.

Q. Did the letter state when and where Mr. Scranton had made that declaration?

A. No, sir; not to my recollection.

Q. What did the letter advise the meeting to do?

A. It didn't state. That was about the substance of the letter.

Q. Who read the letter?

A. I could not tell you what his name is. I wouldn't know him if I would see him.

Q. Did you come up, then, with the crowd that came up to the shop?

A. No, sir. After the meeting adjourned, part of us came up the railroad towards the L.S. crossing, and I stood there conversing about fifteen or twenty minutes. The crowd had gone towards Lackawanna avenue. After they had dispersed from there, I thought I would walk to town, and I went up, and when I got up to the top of the hill the crowd and I walked through the crowd, and I met the mayor coming down. He seemed to be quite excited. He was going to McKinney's office. I met him a little this side of there. I passed on to Lackawanna avenue, and stood there.

Q. Your recollection of it is the same as that given by Mr. Brown this morning as to what occurred there on Lackawanna avenue?

A. No, sir.

Q. Go on and state, then, how it was?

A. I walked first towards Lackawanna avenue and then I walked back again to Washington avenue and stood down there. The mayor came up, supported by two men, one on each side of him, and the crowd following

up. A party says, What is this coming down the avenue? I stood up and I saw it was vigilantes, as they call them, coming down with rifles. They had just about passed about the time the crowd came there. The crowd filed in right behind them. Mr. Boltry stepped back and told them to keep back. With that they turned around again, and with that the first I heard was "crack," "crack," "crack" of the vigilants. They fired right into them.

Q. Was the crowd throwing stones?

A. I had not seen any.

Q. Did you hear any pistol shot from the crowd?

A. No, sir; not there, nor anywhere in that section.

Q. Whereabouts was the crowd when the vigilantes fired?

A. They were right on Washington avenue, from Lackawanna avenue.

Q. Going which direction?

A. They seemed to be facing down Lackawanna avenue.

Q. In this direction?

A. Yes.

Q. When the firing took place?

A. Yes; they were right abreast there.

By Senator Yutzy:

Q. How large a crowd was that?

A. I should judge from five to six hundred.

Q. What wages were you getting at the time of the strike?

A. One dollar and twelve cents.

Q. As boiler tender?

A. Yes; I looked after boilers there.

Q. Was that what your wages were about the time of the reduction or before?

A. After the reduction.

Q. How was it before the reduction?

A. Before the reduction it was one dollar and a half.

Q. When was the first reduction?

A. I think it was in March.

Q. How much was it after the reduction in March?

A. One dollar and twenty-five cents.

Q. Then after the last reduction it was one dollar and twelve cents?

A. One dollar and twelve and a half cents.

Q. What were engineers getting in the works where you were at that time?

A. One dollar and a half they were getting before the last reduction. One dollar and thirty-five cents, then, after the last reduction. There is one of the engineers here, who can state that.

Q. What were the men, generally, getting? What wages in the shops?

A. Laboring men were getting eighty cents a day.

Q. What kind of work were they doing?

A. All kinds of work round there—that is, laborers.

By Senator Yutzy:

Q. You mean repairing men—truckmen?

A. Truckmen, such as that.

By Mr. Lindsey:

Q. Get eighty cents a day after the first reduction?

A. Yes, sir.

Q. How much were they getting before the last reduction?

A. I think it was either ninety cents or one dollar, or one dollar and five cents.

Q. How much were they getting before the reduction in March?

A. I could not say what they were getting. Puddlers were getting three dollars a ton.

Q. Three dollars a ton before the reduction?

A. Before the reduction.

Q. How much were they getting before the reduction?

A. Two dollars and seventy cents I think it was, and that had to be divided between two.

By Senator Yutzy:

Q. They had a helper?

A. At this time two puddlermen were in together.

By Mr. Lindsey:

Q. How much would they puddle per day, on an average?

A. A ton was about all they were allowed to puddle. Twenty-two hundred, about that—twenty-two hundred I think was allowed for a ton.

Q. What then did they make per day, on an average?

A. Between one dollar and thirty-five cents and one dollar and fifty cents.

Q. Was this reduction of wages that was made in July general?

A. Yes; it was a general reduction—stated so.

Q. Among all the men?

A. Yes, sir.

Q. Did it apply to you?

A. The notice read that it would be a general reduction.

Q. Did the reduction apply to officers of the company—book-keepers and so forth?

A. That is something I could not state.

Q. Is a ton a day all that two men can puddle?

A. Yes—about that.

Q. Don't they puddle more than that some days?

A. They may perhaps—two hundred over that.

Q. Two hundred over? They are paid for all they make over, are they not?

A. That is something I cannot state. They are only allowed a ton.

Q. Did other companies here reduce their wages also?

A. Yes, sir.

Q. At the same time?

A. Well, somewhere around there. This company was the first that struck here.

Q. In the meetings that you attended among the men who struck, was there anything said about interfering with those parties of men who were willing to work?

A. No, sir; they were committees appointed to go and wait on them, and ask them civilly whether they could work. There was no violence of any kind.

Q. Committees appointed to visit them, and ask them to quit work?

A. Yes, sir.

Q. Until they got the wages they want?

A. Yes, sir.

Q. Did they fix upon any definite price per day that you would demand?

A. Yes; we asked them twenty-five per cent.

By Mr. Larrabee:

Q. Twenty-five per cent. advance?

A. Yes; there was a committee appointed between boiler tenders and engineers of the company, to wait on the former and demand it.

By Senator Reyburn:

Q. Were you on that committee?

A. No, sir.

By Mr. Lindsey:

Q. Well, now do you know——

A. I was on after. We could not get no one over there after we met altogether. There was a committee appointed to wait on Mr. Scranton, and I was on that committee to ask Mr. Scranton.

By Senator Reyburn:

Q. What reason did Mr. Scranton give?

A. He said he could not do it. He was not getting price enough for his iron, and could not afford to give it. He said these were just as big a price as any other company. There was one witness stated here to-day, in regard to after the coroner's inquest was held, that they were to take them in carriages to Wilkes-Barre after the arrest. There was no such proposition made.

Q. Were you at the coroner's inquest?

A. Yes, I was there—a witness there. They were to make these arrests and put them in the lockup here, and take them to Wilkes-Barre. They were not to take them by night.

By Senator Yutzy:

Q. How do you know?

A. Because I was there all the time.

Q. Have any conversation with the officers?

A. No, sir; it was somewhere about eight o'clock in the evening, or seven o'clock, when the verdict was given, and all the evidence was taken. Then the arrest was to be made immediately after that. He stated then, that there was an indictment in Wilkes-Barre, one for murder and one for manslaughter. There was not. There was only one indictment fetched against them. It was for manslaughter.

Q. Against whom?

A. Against the vigilants.

Q. Do you know how much the miners made per day during May, June, and July, 1877?

A. The miners stated to me that they could make on an average about one dollar and fifty cents a day.

Q. During May, June, and July?

A. Yes, sir; they were not working on full time. Some days they would make half of that. They were paid by the car, and they would not get the cars.

By Senator Yutzy:

Q. What was your object in coming up Lackawanna avenue at that time? You say you came up and stood on the corner?

A. I most generally come up every day two or three times.

Q. You had no particular mission to go up there?

A. No, sir.

By Mr. Larrabee:

Q. Expect to see any fun?

A. No, sir; I did not.

Q. Did you expect there was anything going on?

A. No, sir; never dreamed of anything.

By Senator Yutzy:

Q. Did you know there was a crowd of men driving the men out of the works.

A. No, sir; had not seen any.

Q. Did not know anything about that at all?

A. Did not see that at all. The men came out peaceably. I did not see any men around.

Q. Did you see the crowd going up to the works?

A. The place was on the road coming up.

Q. You were at the meeting at the silk-works, and came up?

A. No, sir; I took the railroad.

Q. Did the railroad lead you by the shops?

A. No, sir.

Q. Were you about the shops when the men were driving the workmen out—when the crowd was?

A. Yes. I just came there about the time the workmen were coming out. I did not see them driven out.

Q. Did you go inside the shops?

A. No, sir.

Q. You were along there just as the workmen were coming out?

A. Yes, sir.

Q. Was the crowd chasing any of them?

A. Not that I saw.

Q. The workmen came out peaceably and quiet? There seemed to be no trouble?

A. There did not seem to be any trouble.

Q. At what shops?

A. Delaware, Lackawanna and Western.

Q. At the lower shops?

A. At the first shops as you go down the hill.

Q. Did you see any men coming out of the lower works immediately in the vicinity of where the stables are?

A. No, sir; I did not. I met them after the crowd had passed.

Q. Passed them?

A. Yes; and I asked them what the difficulty was. They told me the men came there and ordered them out, so they went out. They stood all around the streets there.

Q. Have you any knowledge of some men being clubbed and beaten and injured?

A. No, sir. Did not see any clubbed, injured, or beaten in any way, shape, or manner.

By Mr. Larrabee:

Q. Do you not know that such things did take place—that some were beaten and driven out violently?

A. It was talked so. I never heard a man say he was hit.

By Senator Reyburn:

Q. Did you see the mayor hit?

A. No, sir.

Q. Did you see the mayor bleeding as if he had been struck?

A. Yes, sir.

Q. Did you see that crowd that came out of the shops with clubs in their hands?

A. No, sir; I did not.

Q. Did you see any men——

A. When the mayor got there I passed right on Lackawanna avenue.

Q. Did you see anybody in this crowd that came up Washington avenue with clubs?

A. I saw some boys had sticks—or laths, rather.

Q. What do you mean by boys?

A. Boys from twelve to fourteen.

Q. You did not see any attack made on the mayor at all?

A. No, sir; I did not. Not to my knowledge.

Q. Did you see Father Dunn?

A. I think I did see the mayor struck. I would not be positive though. I think I saw the mayor struck. I would not be positive.

Q. Who struck him? A boy?

A. No, sir. I think it was a man.

Q. What did he strike him with?

A. I could not see what he struck him with. I was quite a distance away. I was up on Washington avenue.

By Senator Yutzy:

Q. At what point was it you saw the mayor struck?

A. Right below the culvert.

Q. The causeway under the railroad?

A. Yes, sir.

By Senator Reyburn:

Q. What did the crowd say when they came up Washington avenue? Did you hear any expressions from the crowd what they were going to do?

A. When I passed by I heard them ask who it was that was going towards McKinney's office. They said it was the mayor. Those were the only words I heard spoken.

Q. You say you came up Washington avenue, and sat down?

A. I sat down on the corner of Hunt's store, on Washington avenue.

Q. When the crowd came up—after the vigilants came up the street—did the crowd say what they were going to do?

A. No, sir; they walked right along up the streets.

Q. What did those boys say?

A. The boys were ahead of the men. I did not pay much attention to what was going on. I saw the crowd pass up.

Q. Was there much noise?

A. No, sir.

Q. Walking quietly, were they?

A. Yes; they were walking at a fair gait.

Q. Now, was there not some kind of a row when the mayor was struck; were they walking quietly then?

A. They were standing—the majority of the crowd were standing down around the shops at that time.

Q. Where did this man come from that struck the mayor—that you think struck the mayor?

A. I could not say where he came from.

Q. Did he not come out of the crowd?

A. That is something I could not say, either.

Q. You must, certainly, if you got an impression on your mind that you saw him struck—you must certainly know where the man came from—you say it was a man?

A. I think the first I saw of the man, was right in front of the mayor. Where he came from, I could not say anything of the kind.

Q. Was the crowd about the mayor trying to protect him?

A. Yes; some of them were.

Q. You did not see anything of this crowd that came out with clubs—out of the shops?

A. No, sir; I did not.

Q. You say you heard somebody asking who it was?

A. Yes, sir; that passed through the crowd.

Q. Where did the reply, "the mayor," come from?

A. From the crowd. About the center of the crowd.

Q. Did you not hear some expression from these men that came out of the shops?

A. No, sir; I did not.

Q. Such as, "go for him," or "kill him," or something of that kind. Did you hear any expression of that kind in the crowd?

A. No, sir; I did not stand there at all. I passed right through.

Q. After the crowd got to Lackawanna avenue, where did you go?

A. I stood right there.

Q. On the corner?

A. Yes; about a couple of yards back. I stood about four or five feet away from where one of the men was struck.

Q. Where were the vigilant placed?

A. The last one stood about the corner of Mr. Hunt's store.

Q. Were they drawn up in line across the street?

A. No, sir; they were in twos, going down the street.

Q. Not this way?

A. Yes, sir.

Q. Did they halt or march off down the street?

A. They halted right there.

Q. And faced about and faced the crowd?

A. They turned towards—facing the crowd; yes, sir.

By Senator Yutzy:

Q. When the firing took place, were they facing?

A. Facing towards the crowd.

Q. Facing down this way?

A. No, sir; facing that way.

By Senator Yutzy:

Q. Were they drawn across the street in a line, or how were they placed?

A. As near as I can recollect it, they turned, and faced around. Suppose they were going down this way, [illustrating,] and they faced that way. [Illustrating.]

Q. Were they faced in a straight line across this avenue?

A. Not that I saw.

Q. Were they up and down the street—I mean, for instance, facing that side—lengthwise?

A. Yes; that is about the position they stood.

Q. Lengthwise, down this street?

A. Yes; and then they turned right around, as near as I can recollect it. When I saw them facing, each man stood right behind the other, and they turned right around and faced.

Q. In what direction?

A. Towards Washington avenue, where the crowd was coming up.

By Mr. Larrabee:

Q. Faced towards you?

A. Yes, sir.

Q. They fired pretty close to you?

A. Yes, sir. I did not know what was going on, for about a minute, until I heard one buzz pass my ear, and I thought it was time for me to get out. I ran back into Mr. Hunt's building after the fire was over, and they began to form a line across Washington—right on Washington avenue—began to form in line; then I came out.

By Senator Yutzy:

Q. The position you describe is, that they formed across Washington avenue, facing towards the shop?

A. After the firing was done, they formed to go towards the company's store.

Q. When the firing was done, where were they formed?

A. Right about the center of the street, on the street car track, coming down this way.

Q. Did not reach Washington avenue?

A. Yes; it was past it.

By Senator Reyburn:

Q. You say there was a man shot within four or five feet of you. What was he doing?

A. I could not say what he was doing. I saw him fall.

Q. You did not see what he was doing, before the shot was fired?

A. No, sir; I turned round just as he was falling, and one buzzed alongside of me, and I got.

Q. Was there any demonstration made by the crowd at all, before this firing?

A. No, sir; not that I heard.

Q. Did not see any stones thrown?

A. No, sir; the majority of the crowd was up past me, when the shots began to fire. There was one man came up, and he was talking with me, and he says, "What is this coming down the street?" and I looked around, and saw what was called the vigilants.

Q. Were you in position to see the stones when they were thrown?

A. Yes; I think I would, if there were any thrown. I stood right on a level with Lackawanna avenue.

Q. Had the crowd got across Lackawanna avenue?

A. There were some; I could not say exactly whether they crossed to the other side of the street or not.

Q. How many men were killed there?

A. Three.

Q. Whereabouts were they standing when they were killed?

A. One of them stood right at Hunt's corner, where I was standing, and as to where the others were, I could not say where they were, but after the firing was over one of them lay right in front of Monie & Pugh's bakery, and the other one lay right across from Hunt's.

Q. On this side of the street?

A. No, sir; on the other side. One of them lay on the street and one lay on the sidewalk on Washington avenue.

Q. Were they both on the right hand side of the street going up from here to Lackawanna avenue?

A. One of them was, and the other one was just outside of the side-walk.

Q. On the left hand side as you go up?

A. Yes, sir.

Q. If the firing was done in the other direction how could this man be shot upon that? You say they were facing down Washington avenue or in that direction—facing to the right up Lackawanna avenue?

A. Yes, sir; when the shots began to fire.

Q. You do not know whether this other man on the left or rear was shot at the same time or not?

A. He was shot with that volley.

Q. Did you hear any command given to fire?

A. Yes; as near as I can recollect, there was some one gave a command to fire, but who it was, I could not say.

Q. Give us the exact words if you can?

A. They said, "fire."

Q. They were all facing in the one direction when that command was given?

A. The men that were back, I could not say which way they were facing. The front were facing towards Washington avenue.

Q. And in one line?

A. Yes; all but Mr. Bolser. He was behind the crowd. I do not know whether he got as far as the crowd when the shots were fired. He stood somewhere about two or three yards back of the crowd.

Q. Was the volley fired by the whole command?

A. There were three or four shots fired, then there was a couple of seconds between, and then there was, "crack, crack, crack," right along.

Q. Was there any firing after that?

A. No, sir; not that I know of.

By Mr. Means:

Q. You said, awhile ago, that you were a member of that committee that waited upon Mr. Scranton?

A. Yes, sir.

Q. Were you chairman of the committee?

A. No, sir; I was secretary of that committee.

Q. How did Mr. Scranton treat you. Gentlemanly?

A. Yes; he did.

Q. Treated you gentlemanly and kindly?

A. Yes, sir.

Q. Just merely stated that he could not advance that twenty-five per cent.

A. Said he could not afford to advance a cent the way they were getting paid for what they sold.

F. L. Hitchcock, *sworn*:

By Mr. Lindsey:

Q. State your residence and business?

A. Residence Scranton; practicing law.

Q. Please give us a statement of the difficulty as it occurred in the city—as it came under your observation—in July last and the 1st day of August?

A. You want the transaction of the 1st of August?

Q. We would like to have the origin of it—as much as you can give us—the origin and causes that produced it?

A. You have had that all in detail in regard to the causes. I have nothing in addition to that. The only thing I can give you additional would be what I know of the organization of this posse and its work. While this strike was in progress and trouble became apprehended, the mayor called together an advisory committee, of which I was a member. This committee were devising ways and means for protection, and it was deemed best to organize this posse. I suggested, among other things—and we immediately proceeded to organize—this force comprising a good many of the old soldiers of the town, and got together a force of some one hundred and twenty or one hundred and thirty men, I think. We gathered together what arms we could find, and we commenced to drill. In the meantime we were sworn in as special policemen by the mayor, and we held ourselves in

readiness constantly to protect the city and preserve the peace. Our headquarters were established at the iron company's store, and for several evenings prior to the 1st of August we had been there—most of us—during the evening until twelve o'clock, and a large force all night, apprehending trouble. On the evening before the 1st of August we had resolved not to stay up there any longer, considering it unnecessary. I was sitting in my office, about ten o'clock, when the superintendent came down and told me he apprehended further trouble that night, and he wished us to get our posse together and go there that night. I immediately went up to Doud's store, where Captain Ripple said he would be, to communicate with him.

Q. Where is Doud's store?

A. Just above the corner of Washington avenue.

Q. State where the iron-works store is.

A. Still further up—at the corner—clear up. The iron company's store is at the corner of Jefferson avenue and Lackawanna. On my way up there, crossing Washington avenue, I noticed a number of persons looking down the avenue, and I stopped to see what they were looking at, and then for the first time saw this crowd approaching. I knew nothing of the meeting at the silk-works, and I was very apprehensive at the appearance of things. I went to the mayor's office and asked him if he could explain the meaning of that vast crowd coming towards the city. He said he did not know. He thought a moment, and said it was the meeting at the silk-works breaking up, and I said it does not look like breaking up; it is coming to town. "Very well," he says, "you get the posse together at the head-quarters, and await my orders." I immediately gathered together as many of the men as I could, and there we remained until we saw them driving the men out of the shops, clubbing and stoning people. They drove the men out of the furnaces, and they came out on to the track, frightened like a flock of sheep, fleeing for their lives. Mr. Scranton came up and said "What will we do?" I suggested we go down and protect them; we had a right to protect people in their work. "Very well," he said, "I would do that;" and he immediately communicated to Superintendent McKinney, and he said, the men had gone home, and were

afraid to work; there was no use. I said our duty was to wait until we were called upon by the mayor. Very soon afterwards we received a summons that there was trouble below. We immediately formed in line and marched down the avenue two and two. We had, I suppose—we counted off before we started—thirty-eight men; but our force received some additions, so we must have had in the neighborhood of fifty.

Q. When you got to Washington avenue?

A. When we got to Lackawanna avenue, coming down. I was unable to find any one of the officers of the posse, when I notified the men, and acting First Sergeant Bartholomew was in command. He came to me and said I must act as second lieutenant. I was acting then as second lieutenant near the rear of the column. As we approached Washington avenue, we noticed there was a large crowd there, whooping and yelling. There was some stones thrown as we approached, and quite a number of those missiles came in behind us very thick. The crowd parted and let us through. We came down on the street car track. As we passed the avenue—the rear of the line passed the avenue—these missiles became thicker, and some pistol shots were fired, and a number of our guns, I noticed, were leveled. I turned around, and two or three of the men had their guns down to shoot. I yelled to them not to shoot, and they raised their guns again. This attack became much more furious, and we appeared to be in danger of being swallowed up, destroyed, and the whole line fired. I supposed three or four shots fired first, and then the whole line fired. A number of the guns—two of the guns, I think—were seized by the rioters and attempted to be wrested from the men before any firing took place—tried to be taken from the men. Several of the men were hit—several pistol shots were fired. This was all done before our men fired a gun. Then, I suppose, there were about fifty or sixty shots fired. Immediately the whole field was clear, and everything was stopped. We marched back to head-quarters, and after we marched back there, our force was gathered in until we had about two hundred men on duty—two hundred men altogether. We formed a line across the avenue, picketed the streets at the head-quarters, and remained in that position all

day and all night. Three men were killed by the volleys. Two of the men fell near that corner on the right side, and one on the left.

By Senator Yutzy:

Q. In the first place, where did the stones appear to come from and the pistol shots, before your men fired?

A. Came from the crowd. Came from both sides.

Q. From Washington street?

A. Yes, sir; and some from the other side also.

Q. Both sides of Lackawanna?

A. They were at the junction of Washington avenue and Lackawanna. These men came up Washington avenue, and they divided and let us through, so that there was a large force back of us on Washington avenue. As we came down we went right through them, and they attacked us on both sides.

Q. What position were the men in when the firing took place?

A. They were faced this way, in column of twos—facing this way, and they simply faced about and fired both ways in the crowd.

Q. Faced outwards, both ranks?

A. Yes, sir.

Q. What position did you take next?

A. After the fire?

Q. Yes?

A. After the firing—after a few moments—we marched back to headquarters, and formed a line right across Lackawanna avenue, at the company's store.

Q. Had you, at any time, formed across Lackawanna avenue during the time you were at Washington avenue?

A. No; we just remained along the line of the street car track.

Q. Parallel with Lackawanna?

A. Yes, sir. We were on our way down to the mayor's office, and the attack stopped us, and compelled us to fire.

Q. About how many pistol shots did you hear before your men fired?

A. There was a great deal of noise and disturbance, and I could not tell how—exactly how many. There was one or two reports heard. How many I could not tell. There was a great deal of stones thrown, and a very excited time.

Q. Was the mob very demonstrative?

A. Yes; fearfully so—most terrible sight I ever saw. They seemed to be perfectly infuriated. I never saw men more like devils in my life.

Q. Hear any expressions from any of them?

A. Oh, yes; all kinds of expressions. "Kill the sons of bitches," "Take their guns," and all that kind of thing.

Q. Did you see the mayor in the vicinity of the firing?

A. No, sir; I did not see the mayor until after the firing was over. Just as the firing ceased the mayor came to us on the pavement.

Q. The man that was killed on the south side of Lackawanna avenue, was he near the corner?

A. I think there was one right near the corner.

Q. Did you see him shot?

A. I recollect seeing the two men fall—yes, I saw them as they fell, drop on to the ground.

Q. Was he making any demonstration towards the posse?

A. I do not know as to any individual, nor I could not pick out any individual. A large man there swung a club and was very demonstrative. Whether he was shot or not, I do not know. The man I did not know at all personally.

Q. On what day was this posse organized?

A. That I am not able to give you—the exact date from memory. We have got a record.

Q. Was it before or after the Pittsburgh riots?

A. I am unable to say. I judge it was—perhaps it was a little after that—what was the date of that?

By Mr. Lindsey:

Q. It commenced the 19th, but the destruction of property was on the 22d?

A. This was after that, I think. I think it was one of the reasons why we were supposed to take care of ourselves if we could. I think that was one of the reasons that actuated the advisory board. The idea was that we were isolated from all, and that we either had to take care of ourselves or take the chances of being stamped out.

Q. And this vigilance committee was organized for the purpose of protecting property?

A. Nothing else, sir. Preserving peace and protecting property, and for no special property. Protecting the public peace. I might say the reason why we had our head-quarters at the company's store, was simply because we were unable to get any other place. We were unable to get the Second National Bank and other halls—the board of directors refused us admission. Said that would bring the fury of the mob down upon them. Mr. Scranton came forward and said we could occupy their store. We offered to pay for these other places. We were some three days trying to get a place.

By Senator Yutzy:

Q. Could you see the men being driven out of the shops or any of the works from this store?

A. Yes. We could see them. I saw them before I got to the store. I saw them driving them out of the railroad shop and the furnaces before I went into the store.

Q. The mob following the men?

A. I saw men following them. Stones thrown at them. Following them with clubs, and the men fleeing for their lives. I saw them at all these places.

Q. The mob following these men. What was it composed of—boys?

A. I suppose boys sixteen to eighteen years old. Some of them were men. I noticed quite a number of those were young fellows—eighteen, twenty, to twenty-five years old.

Q. Was information made against you, as one of the posse, for murder?

A. Yes, sir.

Q. For manslaughter?

A. I think the indictment was murder.

Q. Were you arrested?

A. Yes, sir.

Q. By whom?

A. We went down and gave ourselves up. I was not one of those arrested by the constable.

Q. Not formally?

A. I went down before the court, and entered bail before the court—the whole of our posse—some fifty altogether.

Q. How many of your posse were tried?

A. The whole number, I think. Of those, there were some three or four that were proven not to have been present; that were arraigned as part of our posse.

Q. At the preliminary hearing were dismissed?

A. Yes, sir. Dismissed by the court.

Q. Had you a preliminary hearing before the court?

A. We gave bail, and on the trial a number of those persons were proven not to have been present. They were all tried. The judge directed a verdict of acquittal before it went to the jury.

Q. Then you had no preliminary hearing at all?

A. No, sir.

By Mr. Lindsey:

Q. How many were indicted for murder?

A. Some fifty.

Q. Some for murder, and some for manslaughter?

A. I think they were all on the same indictment of murder—all in one indictment, sir.

Q. And all tried?

A. Yes; all tried. There were three cases, but we were all on them. There were three different indictments. One case was made a test case for them all, and the other two the verdict was taken without any evidence at all, following the first one.

Q. One case was made a test case?

A. There were indictments in each of the three cases of Mr. Langon, Lane, and Dunledin. I think the case that was tried was for the murder of Langon. That was the one that was actually contested.

Q. The case that was contested—was that submitted to a jury?

A. Oh, yes; with the exception of those parties who were proved not present.

Carlos W. McKinney, *sworn*:

By Mr. Lindsey:

Q. State where you reside?

A. The corner of Adams avenue and Spruce street, Ninth ward.

Q. What is your business?

A. Superintendent blast furnace, Lackawanna Iron Company.

Q. On the 1st day of August, state where you were?

A. The morning of the first day of August, I went to the furnaces as usual. The furnaces had been idle for sometime before; that they had banked them up, and I got the men to go out and commence operations again. After working two or three days, on the 1st day of August there was a party assembled at the silk-works, while my men were at work at the furnaces. I was notified that there was a party down there, and there would probably be trouble. I went up about nine o'clock in the morning, at the top of the iron company's store, took a field glass and saw a large crowd at the silk-works. I saw the party start up Washington avenue from the silk-works, and I then went down near the steel-works, on an embankment, so that I could have a good view. I didn't know but that they were just going to make a parade through the streets, but when they arrived up as far as the iron company's machine shops—boiler shops—a large party of them left the main line, and

passed off into the machine shops and drove the machine shop hands out. I saw them stoning them, and throwing clubs at them, from where I stood. After that a large number of them came up towards the blast furnaces. A small track led in down to the machine shops. I then went down to the blast furnaces, and made arrangements to cast. I told the men it looked like trouble, and I thought we better get out what iron there was in the furnace, and in case the men came upon us we would throw the blast out. I looked around, and saw the crowd coming up, right at the foot of the furnace, probably a thousand of them; we were just then about done casting. I saw the men could not stop long enough to stop the furnace, and told them to run, and I threw the blast off myself. I passed then, off to the engine-house, told the engineer to stop the engine and take the blast off, which he did. By this time the crowd had followed me, and I went up to the iron company's store, and met the general manager there, Mr. Scranton, and told him what had occurred at the furnace, and asked him what should be done. He said, we would wait and see. At that time nearly all the superintendents and foremen had come to the office, and reported that they had been stopped, and their men had been driven off. Then we had collected citizens and people working for the iron company, some forty-four men, that were up in the store. Mr. Scranton, after waiting awhile, said we had better fall in and go down and offer our services to the mayor, as we had already been appointed special policemen for the protection of iron property, and the property in general. And he headed the line—got them in column of two, and made the remark that we might as well die as any other time, and told them to follow. We marched out of the company's store, came down Lackawanna avenue to the corner of Washington here, and we met the crowd which had left the blast furnace, and passed to the shops of the D., L. and W. Quite a number were already on Lackawanna avenue, probably half a block up. We passed them, and they said nothing particular until we got past Washington avenue. I was on the rear end of the line with Bartry, and Mr. Scranton was at the head. After passing Washington avenue, the main body of the mob that came from below, came around rushing into Lackawanna avenue, and there was one man, I don't know who he was—they said his name was Langon—who came up to the line on the side where

I was, and he had a stick about that long, [indicating,] and as I came by he shook his fist. I made no reply or anything. Then he turned to the crowd and says, "Fall in, boys, fall in, boys." They were rushing up. Then somebody hollered out, Take the guns away from them, they have blank cartridges. They were probably twenty-five feet from us, and Bartry and myself motioned them to stay back. At that time somebody fired a gun down the line, and when the first gun was fired a general fire commenced. After the crowd dispersed, we formed up in column of twos again, faced the other way, and marched back to the store.

Q. How many persons were killed?

A. There were three killed.

Q. How many wounded?

A. I don't know, sir; we have never been able to find out.

Q. Were any of the posse wounded?

A. Yes; I was wounded. A pistol ball in my knee, shot by a man who was on the corner, next to Jack Slagle.

Q. On the left hand side going up Lackawanna?

A. At the corner of Lackawanna and Washington. The first time these men shot, he hit my gun, and knocked a piece of the wood off. I have the gun yet. The next time he took me about four or five feet from the corner. I felt the ball strike by my knee. I felt down, and saw I was shot; felt the blood running down my leg, and right after that there was firing. Just at that time there was a man, probably about a head taller than the other man, who shot two men at the rear end of the column. I heard those balls come by, and I saw both shots.

Q. Were those shots fired before there was any firing?

A. Yes; they were firing before any shots were fired.

Q. Were you struck before any firing?

A. No, sir; I was struck after the general engagement commenced.

Q. Any stones thrown at the posse by the crowd?

A. Yes; there were stones thrown. I dodged one stone that struck a man by the name of John Stanton in the back.

Q. Was that before any firing?

A. That was before any firing.

By Mr. Larrabee:

Q. I understood you to say that the first pistol shot fired at you was before your posse fired?

A. I was not shot until after.

By Mr. Lindsey:

Q. I understood you there was a shot that hit your gun?

A. My gun and myself was shot after the firing.

Q. You say that the two shots fired by the tall man was before any firing done by the posse?

A. Before any firing in the line.

By Mr. Larrabee:

Q. You don't know who that was that fired, do you?

A. No, sir.

Q. Ever know what became of him?

A. No, sir.

By Mr. Means:

Q. Were you one of the men that were indicted for murder?

A. Yes, sir.

Q. Were you arrested?

A. I was arrested.

Q. By the constable?

A. No, sir. I went to Wilkes-Barre, and gave myself up with the posse.

By Senator Yutzy:

Q. Did you receive any information that this crowd were about to drive your men out of these furnaces?

A. My men told me at the blast furnace that some men had told them they had better get out. My foreman, as well as the men who were at work there, told me. That is the reason I went up on to the store so as to get a good view of the crowd, and be in readiness.

Q. Were you up in the store when you saw the crowd coming up?

A. I was on top of the store.

Q. Could you see any demonstrations they made in the furnace and workshops below?

A. After we commenced moving, I left that position, and passed down to the steel-mill, which is on a high embankment, I did not see what the crowd were going to do for certain. I supposed they were going to just have a parade. When I saw them make this demonstration at the lower shops, then I immediately went to the furnaces, and got out whatever iron there was in the furnaces, because I supposed that would be the next point of attack.

Q. You were close enough to those shops below the steel-works to see distinctly that the men were being driven out?

A. Yes. Saw them throwing stones at them. Saw the men who fired the boiler-house, and they threw stones at them at the same time. Saw two or three men running up the embankment on the opposite side they were stoning them.

Q. Did you see any of them hurt?

A. I could not tell whether the stones hit them or not.

Q. Do you know anything else that would be of interest to our committee, any information that you have not already stated?

A. These are just about the facts, so far as the riot is concerned.

At this point the committee adjourned to meet at four o'clock, this afternoon.

AFTERNOON SESSION.

SCRANTON, *March 30, 1878.*

The committee met, pursuant to adjournment, at four, P.M. All members present except Mr. Dewees.

John Mucklow, *sworn:*

By Mr. Lindsey:

Q. Where do you reside?

A. Down at Greenwood.

Q. How far from here?

A. They call it three miles.

Q. What is your business?

A. Working in the mines.

Q. Were you at home on the 1st day of August last.

A. Yes, sir.

Q. Had the miners been at work up to that time?

A. I believe not, sir.

Q. What time did they quit work?

A. I could not tell exactly. They had not worked for a week or so—nearly a couple of weeks, for all I know.

Q. Were they on a strike?

A. Our men did not strike at all. Our men were all working, and stopped for want of cars.

Q. Stopped because there were no cars to carry the coal away?

A. Yes. Our men did not strike at all. Did not hear a word about striking among our men.

Q. Do you know where Isaac B. Felts lives?

A. I guess he lives over in Taylorville.

Q. Do you know where his store is?

A. Yes, sir; his store is right opposite my house.

Q. Opposite your house?

A. Yes, sir.

Q. Do you know anything about its being broken into on the morning of the 1st of August—some time after midnight, or before daylight?

A. Broken open between twelve and one o'clock that night—that morning.

Q. Did you hear the disturbance?

A. Yes, sir; saw it, too.

Q. Were you up?

A. I was up laying on my porch.

Q. How many men were there that broke into the store?

A. I could not tell. There might have been some twenty; may be thirty, more or less. I could not say. It was moonlight.

Q. How did they get in. How did they break in. Give us a description?

A. I heard the first noise in the store. There was a crowd outside, and the first noise I heard in the store, and then they opened the front door to the store-room, and they went in there. There were some in the store before that, because they opened the door.

Q. Did they break in the door or unlock it?

A. The door was broke in—shoved in.

Q. Did you hear them when they first came there?

A. Yes; I was lying on the porch.

Q. What class of men were they?

A. I could not tell anything about that.

Q. Where did they come from?

A. I could not tell. They came up the road. That is, going down towards Pittston. They came up that way.

Q. Towards Scranton?

A. Came from towards Scranton. Towards Taylorville, the opposite side.

Q. What did they say?

A. Did not hear anything said, sir.

Q. Were they noisy?

A. No noise at all.

Q. Done quietly, was it?

A. Yes, sir.

Q. What damage did they do?

A. I could not state. I know they took goods away. I saw them carrying goods away. Could not tell how much or how little.

By Senator Reyburn:

Q. What kind of goods?

A. I saw them carry boxes away, blue boxes, and other things.

Q. Was it store goods, groceries, or was it iron?

A. Carried every sort away. I guess we found everything of every kind lying along through the woods and places afterwards.

Q. In what direction?

A. Right down towards the Lackawanna.

Q. In this direction, [indicating?]

A. No; more towards north.

Q. Would it be on the road toward the silk-works?

A. No, sir; it was down kind of katty-cornered from that; north-west.

Q. Did you go over to the store to see who it was?

A. No, sir; I did not. I knew better than that. Did not want to get my head broke.

Q. Did you consider it dangerous to have gone there?

A. I would consider it, and I had a pair of revolvers with me, too.

Q. Pair of revolvers?

A. I had a pair.

Q. And you would not want to risk it?

A. No; I would not want to risk it at all.

Q. Did you know any of the men?

A. No, sir; I did not know a man—had no knowledge of any man that was there.

Q. No knowledge?

A. No knowledge.

Q. Do you know whether those men came from the silk-works?

A. No, sir; I did not.

Q. Was there a meeting at the silk-works that same morning?

A. I heard there was afterwards, but I did not hear nothing of that until it was over. The first I heard of that was Langon and Dunledin was shot at Scranton. We heard out there, there was four men shot. That was all I know about it. The news was carried up there in the afternoon.

Q. Did you know those two men, Langon and Dunledin?

A. I knew Dunledin when he was a boy, and I knew Langon because he worked in our works.

Q. Last summer?

A. Yes. He worked there when he was killed.

Q. What kind of a man was this Langon?

A. I never saw anything wrong about him. He was assessor of our township.

Q. Assessor of the township?

A. Yes, sir.

Q. Had he been instrumental in instigating the strike?

A. Not that I know of.

Q. How was the other man—what kind of a character or reputation had he?

A. I do not know anything about him from the time he was a young boy.

By Senator Reyburn:

Q. How old a man was he?

A. Langon? I could not state.

Q. The other one.

A. He might have been, may be twenty—from twenty to twenty-five.

By Mr. Lindsey:

Q. Did Langon say anything to you about going to the silk-works?

A. Not a word.

Q. Did you know anything about the meeting before.

A. Not a word. Did not know until about three o'clock, in the afternoon.

Q. Had there been any talk among the men where you work about striking?

A. Not that I ever heard. Our men were all at work.

Q. What company were you working for?

A. Messrs. Correy & Co.

Q. Had your wages been reduced any during the spring?

A. Not from the fifteen cent drop, or whatever time the drop was.

Q. When was that?

A. I could not tell exactly what month it was in.

Q. What year?

A. I guess it must have been 1856 or 1857.

Q. 1876, you mean?

A. 1876 or 1877.

Q. How much were you making per day at the time you had to quit work?

A. We had to work pretty hard long hours if we could make one dollar and ninety cents a day as a miner.

By Mr. Larrabee:

Q. One dollar and ninety cents?

A. That was all we made that month.

By Senator Yutzy:

Q. Were you paid by the ton?

A. We were paid by the car.

Q. How much were you paid by the car?

A. Sixty-six cents. I think our vein is small—three foot thick and about three or four inches——

Q. How many cars can you put out to-day?

A. Six are our day's work. We had too much work. We could not do it.

By Mr. Larrabee:

Q. For how many men?

A. Two.

Q. You don't know of any reduction in the price for mining than that of last year?

A. Not from the fifteen cent drop.

Q. What was the grievance of the miners then?

A. Didn't seem to be any grievance at our place at all. I didn't hear them say anything, only they couldn't get cars enough to load the coal.

Q. Was there any demand for coal?

A. The cars didn't come for taking away.

Q. It was not so much then the price that was paid per ton as it was as to the number of cars furnished?

A. They had the same price, but they could not get as much as they could do.

Q. It was the want of work?

A. It was the want of work.

Q. Not the amount paid?

A. The amount of work, that was what it was for.

Q. What was the cause of this want of cars?

A. I could not tell that. It seems like this: we did not get the cars because the engineers and firemen stopped for wages. That was what I understood it was for.

Q. What?

A. The firemen and the engineers struck. That was the reason we could not get cars.

Q. For how long did this last, that you didn't have cars enough?

A. I could not say how long it was we could not get cars enough; and we don't get enough yet.

Q. Was there any plan before that time that the engineers should refuse to work and run the cars?

A. I did not hear anything before that.

Q. Was these grievances complained of?

A. No, sir; but there was not enough cars then.

Q. Have there been cars enough since?

A. In our place I only make six days a month now.

Q. What is the cause of the want of cars now?

A. Can't tell anything about it.

Q. Is it the want of demand for coal?

A. They say so. I don't know what it was.

Q. Was there a general understanding of the miners throughout this region, before the strike took place, that there would be a strike?

A. I never heard anything about it.

Q. Was there a strike among the other miners for higher pay?

A. Not as I know of.

Q. How much damage was done to Mr. Felt's store?

A. I could not say.

Q. You don't know the value of the goods they took?

A. No, sir.

John Jones, *sworn*.

By Mr. Lindsey:

Q. Where do you reside?

A. Greenwood.

Q. What is your business?

A. Stationary engineer.

Q. Were you at home in July last, or August the 1st?

A. I was at home on the day of August 1st.

Q. How far from Mr. Felt's store do you live?

A. About fifty feet, or seventy-five feet. Just opposite the store—nearly opposite.

Q. Did you hear anybody breaking into the store during the night, and if so, at what time?

A. I was not home that night. I was working.

Q. Where were you working?

A. At the Greenwood slope.

Q. Running an engine?

A. Running an engine.

Q. At what time did you come off?

A. Seven o'clock in the morning.

Q. You heard nothing of what took place at the store during the night?

A. No.

Q. Do you know who the parties were that were at the store?

A. No, sir; I do not.

Q. Do you know from where they came?

A. No, sir.

Q. Or what class of men they were?

A. No, sir.

Q. When did you learn of the store being broken open?

A. Learned of it when I came home in the morning—when I reached home.

Q. Who told you?

A. My wife.

Q. Did she hear any of the parties?

A. She did not say she heard any of the parties that were at the store. She heard from the neighbors. The neighbors told her of it.

Q. Did you know anything about the meeting at the silk-works?

A. Not until the day they had the meeting.

Q. What time did you learn of that?

A. I learned of it after the shooting.

Q. Where were you when you heard of it?

A. Sitting on the store porch.

Q. At Greenwood?

A. At my home; yes, sir.

Q. For what company were you working at the time?

A. The Pennsylvania Anthracite Coal Company.

Q. What wages were you getting, running the engine?

A. One dollar and eighty-five cents a day.

Q. Had there been any reduction made?

A. Not for six months previous to that, there had not been from that time on. There had not been, not very lately.

Q. When was the last reduction?

A. I think it was in December.

Q. Of 1876?

A. Of 1876.

Q. How much was that reduction?

A. Fifteen cents.

Q. There had been none since?

A. None since that.

By Senator Yutzy:

Q. Fifteen cents a day?

A. Fifteen cents on a dollar—fifteen per cent.

By Mr. Lindsey:

Q. Were you working for the same company that John Mucklow was?

A. Yes, sir.

Q. Was there any strike of the men that were working for that company?

A. No, sir; not that I know of. Would not call it a strike, anyhow.

Q. What do you call a strike?

A. I don't know what to call it. When men turn out for wages, for their rights, that is what they term a strike—stick out for their rights.

By Senator Yutzy:

Q. Tell what they propose to do when they go out for their rights—propose to simply quit?

A. Simply quit, and stand out until they get their rights.

Q. And prevent others from working, at the same time?

A. I don't know. I should not prevent any man, if I was striking. I should not prevent any man from work.

Q. Is not that generally done?

A. It seems so.

Q. Is not that the rule?

A. I don't know whether that is the rule or not. I could not say.

Q. What has been the custom, generally, when they went out on a strike? Would they permit anybody to work?

A. It has been a custom not to let them work.

By Mr. Means:

Q. Were you one of the strikers?

A. No, sir; I was not.

By Mr. Lindsey:

Q. You had charge of an engine?

A. Pumping engine and hoist.

By Senator Yutzy:

Q. Were you interfered with in your pumping?

A. No, sir.

Q. Not asked to quit pumping?

A. Not asked to quit pumping.

Q. Do you know of any other places where they were requested to quit pumping?

A. No, sir.

Q. Did you quit?

A. No, sir.

Q. Tended your engine?

A. Worked right along.

Q. Is there anything else you wish to state to this committee?

A. No, sir; nothing at all.

Q. We want to give a full hearing to all sides?

A. I am one of those kind of men that I don't go around much, and I don't know much; therefore, I can't tell you much of anything.

By Mr. Means:

Q. You are taking care of No. 1?

A. I am taking care of No. 1.

W. W. Scranton, *sworn*:

By Mr. Lindsey:

Q. State where you reside and your business, if you please?

A. I live here in Scranton. General manager of the Lackawanna Iron and Coal Company.

Q. I wish you would give us a statement of what took place prior to the 1st of August, in the way of organization for protection, and what you learned about the strike, and causes that induced it, &c., in brief?

A. It was Tuesday, July 24, I think, that our iron company men struck. The strike started in the old mill. A few men run out and shouted, "We have struck!" and blew the big whistle, and as the men came out to hear what was the matter, they said, "We have struck—all turn out!" and they all turned out. That was about noon time—between twelve and one o'clock. Those that had gone home, and who knew nothing about it, came back, and were told that the men had struck, and that they must not go back. Whereupon the leaders of them marched the men in a body down to our new mill, where we had some puddlers at work, and got them out there, and from there down to the machine shop. I heard of it then, and drove down and asked them what was the matter. I reproached them for striking without saying anything to me or making any complaint. Inquired what reasons they had, &c., and they said they struck because they were not getting pay enough; and I asked them what they wanted, and they said they wanted thirty-five per cent. advance. Of course I pooh-poohed it; it was ridiculous—such an advance as that in such times as these. Told them that was out of the question. Of course, we could not afford it. I would be glad to pay them better wages if we could; there was nothing to warrant it. They separated,

and I went back. Our shop hands still stayed in—the machine shop men, and foundry men, and our furnace men. Of course we did not want to have our furnace go out, if possible, and I went out and talked to these men in the afternoon and evening both. They said that they were perfectly willing to work—were satisfied with their pay, but that they were afraid, that there had been so many threats made that they had not dare stay. They would stay that night, but they must go out the next morning, because their lives were not safe. They said people had been to their wives and children, and they had been told that if their fathers, and brothers, &c., would not stop they would be killed. The long and short of the matter is, our furnace men were afraid. They said they were willing to work, and were satisfied to work, but they did not dare. Of course, judging from the temper of the times, I thought there might possibly be trouble, and I at once proceeded to organize a body of men to protect our property. I called in all our foremen, and a number of men I had confidence in—about thirty—armed them with rifles, kept them in the store that night, ready for anything that might happen. There was a good deal of talk about fire, &c. The next morning the furnace men went out. They said they could not stay. I went down and talked to them. They said they were willing to stay, but were afraid. Our teamsters—I did not think anybody would touch them—they were satisfied—and word came up while I was at breakfast that they had been scared away, and even our store teamster was notified that he would be shot if he went out. I went down, and got him out, and got some others out. That day the police sent us word, notifying us that without doubt our store was to be sacked that night, and that they knew of two wagons or one wagon which had been hired to carry off anything that might be taken out. Of course I listened to it, and got ready for it. That same day—I think it was that day or the next—the mayor sent word that the general of the division here was afraid of his own men with guns, and wanted me to take them and put them in our vaults. We took in about all the guns there were around there—probably five hundred or six hundred, and had them stored in our vaults, because these officers were afraid to trust their people. There was a sort of general panic. The next day I got our teamsters out. Our farm hands had been frightened away, but I talked with them, and reasoned with them, and finally went along with them

myself. We took a few rifles along, and cheered them up, and they went to work, and worked on. About Saturday word came round from all quarters that our iron company men, with the exception, perhaps, of a few—that there was no dissatisfaction—the feeling of fear was passing away; they were willing to come back. They said they wanted to be sure of protection—that was the first thing—they must be sure of protection, and they had been threatened, and all that kind of thing. I told them we would protect them from all that danger, so far as I could. I told them that we would protect them—that the government was bound to protect them, and if they wanted to work they could work, and the government must protect them, and we would protect them—do what we could. They asked me to put some such notice as that in the paper. I told them I would do so. Previous to that, on Saturday night, it looked as if the Pennsylvania coal companies might go to work. The head-house, at No. 5, was burned. Of course that blocked all the transportation on that side. The head-house was repaired, and on Monday I was satisfied our men were willing to go to work—only a few that wanted to stay out. I put a notice in the evening paper—the Star I think it was, and I stated that anybody that was willing to go to work for us, we would protect—the government was bound to protect them, and they should be protected if the whole power of the United States came there; otherwise law would amount to nothing, and I re-assured them the best way I could. The next morning, Tuesday morning, they went to work—our machinists and founders. Our farm hands had gone to work, and our furnace men went to work. We had banked our furnaces; we thought we could save them both, so our furnace men went to work again. We took only enough for one furnace, so as to make sure of one; thought we might have to let the other slide until we saved the first, and they went to work, day turn and night turn both. There had been a great deal of talk of trouble, and all that kind of thing, but of course you hear all kinds of rumors at a time like that. I did not take any too much stock in them. Still, we kept our forces in the store all the time. By that time a number of citizens had come in—Colonel Hitchcock, Mr. Ripple, and a number of other gentlemen—and we had signals arranged, and all that kind of thing, in case of trouble, to come out immediately. We had notified the mayor, in case of anything happening to

our property, that we should hold the city responsible for damages. Wednesday morning I was down town on some business, and I heard of this meeting at the silk-works. I did not think it would amount to very much more, but while I was down town I heard on all sides that the men had heard that the machine shops were being driven out. I hurried right back to the office, and got there just as the men from the tops of our furnaces were being driven out. I saw the men running. I saw a very large crowd, with sticks and stones, and gesticulation, and those men running and others chasing them, and I knew then it meant business. We had not many men in the store then. Our foremen came in one after another, and stated that the machine shops men there had been driven away and beaten. They came in from the blast furnaces and stated the same thing. Came from the engine-house and stated that it had been set fire to in three places. And I might say, by the way, before this—the very first night I got my foremen together—I took the precaution to have them sworn in as special police, and while we were there my own people came in—probably about thirty or so—and a number of citizens. At that time the mob had got to the railroad shops, and a message came from the mayor stating, for God's sake come down and help him. He was in a sore pass. So I made these men a little speech, that we might as well die now as any other time. Come down and do what we could for the mayor. I told them I did not want any fooling. I did not want any man who was not willing to be killed if it was necessary, and did not want any man who was not willing to shoot to kill, and said if there was any man who fired, I wanted him to shoot to kill, that we meant no nonsense. There was only thirty or forty of us. There were three or four thousand of the others, and we wanted no fooling. We wanted them to obey orders to the last degree, and when they received orders to fire, to fire to kill. Nothing else would stop the thing. The thing must be squelched, and the only way to squelch it, when they fired they must fire to kill. That was the only way to save the town. While we were getting ready to go more messages came up, and stated that those men were going from the railroad shops for Pine Grove breaker. I might say that our miners have got an agreement with us. It has been so for some years. They agree to work on, in case of a strike, and we agreed, on our part, to give them, dating from the commencement of

the strike, any advance of wages which the railroad company might give their men whenever they settled. If the railroad company gave them ten or fifteen or any per cent. advance, we agreed to give our men the same advance, dating from the start. Our Pine Brook men went in that morning. Understand that our entire force, so far as we had workmen, with the exception of two of our iron rolling men—and we had every reason to believe they would be in the next morning—our miners were at work, and were at work by virtue of agreement with us to work on in case of a strike. I have one of the agreements now in my pocket—a new one, similar to the old one. By that time, we started out. I went to the head of them. I did not myself know anything about military matters, beyond keeping the men in line, and that kind of thing, and I gave charge of it to young Bartholomew, who knew something of that sort of thing, and kept them in line and went down. I had seen some riots before, and knew pretty well about how that sort of thing was. We got down street, pretty near the corner of Washington avenue, and this crowd were coming up Washington avenue, and closed in behind our men, and I felt that the time was coming very close, and that it would be necessary to act very quick. They closed in behind us, coming up on each side of the avenue, leaving only the front clear. There were some in front. Not many. They were hooting and yelling, and finally I saw a movement of one or two, apparently leaders, looking at me as though there were getting ready for a rush. I had no doubt of it, and I was just waiting. I heard shouts: "Now, then, come along boys. They won't fire. They have blank cartridges," or something of that sort. There were sticks thrown, and just about as I was going to give the order to fire, I heard a shot fired, and almost simultaneously with that, every man stopped and fired.

By Senator Yutzy:

Q. Where did the shot come from—this first shot you heard?

A. Seemed to be a pistol shot.

Q. From the crowd or mob?

A. Yes; and the crowd rushed up and kind of fell back, and the shooting commenced. The shooting first was wild.

By Mr. Means:

Q. Before that shot was fired, were there any stones or missiles thrown?

A. Many stones and sticks. I was at the head, and the line was a long one—about forty, marching two by two.

Q. Were any stones or missiles thrown at the party to which you belonged?

A. Yes, sir.

By Senator Yutzy:

Q. At the rear of the line?

A. Yes; and on the side also. It looked to me as though they were going to rush. I happened to see the riots in 1863, and I saw the same swing of the crowd—the fellows behind push up those in front. When these things were thrown, the firing commenced. They fell back once or twice—little short rallies—and run, and we went back to the store. The next day the troops came. I might say when we left the store, we heard the men were going to Pine Brook, and that they were calculating to drive out the men that were in there, and burn the breaker.

Q. Were those your mines?

A. Yes, our mines. And also that they were going to stop at Dixon's works on the way.

Q. Were they also your mines?

A. No, sir; they were Dixon Manufacturing Company's works and machine shops. I might say, also, previous to this—the Sunday before this thing—our pump engineers, &c. had been visited, and it was said they were afraid to work, and left us. Of course I put people there in whom I had confidence, to run the pumps and keep them going.

By Mr. Lindsey:

Q. Will you give us a statement of what you were paying your men at that time?

A. We pay—most of our work is done by the ton. There is very little day-work with us, except shop hands and furnace men. Our rolling-mill men and steel-works men are working now under the same wages under which they struck. Our rolling-mill heaters are making from ninety to one hundred dollars a month. I can bring you the pay-rolls. I have got them at the office. The most of our men in the mills worked by the ton and by the roll—that is permanent men. All except the commoner class of laborers are making now anywhere from forty-five to sixty and seventy-five dollars—along there. The men in the steel-works are making about—well I should think anywhere from forty-five to sixty dollars—along there—it depends entirely on the product. We pay them according to the ton, and if they do small work they get small pay.

Q. Pay in proportion to the amount of work done?

A. Yes, sir; so much a ton. We pay a heater ten cents a ton. If he heats forty tons, he gets four dollars. Our mining wages are regulated entirely by the Delaware, Lackawanna and Western. We pay whatever wages they do. We tried to keep them working as full as possible.

Q. Can you give an estimate of what a man can make a day, should they work in the mines all day?

A. I am not so conversant with the special details of the mines. I can bring the pay-rolls, if you would like. I think that a miner—with our miners in Briggs shaft, I should think the average now depends a good deal on the men themselves—how smart they are—and I should think anywhere from thirty-eight to forty, along to fifty-five and sixty dollars a month. That is, a miner. Of course, a laborer don't make so much.

Q. Laborers in the mines work by the day or by the ton?

A. I think they are paid by the car. I don't remember how that is. A miner hires his own laborer, I believe.

Q. You haven't any particular charge of the details?

A. We pay it, that is all. I don't remember all this. Our Mr. Mattes could tell you better than I can. Our mining wages are virtually out of our hands. Whatever the D.L.W. pay, we pay, and the men, on their part, agree to work through, in case of a strike, and we agree to pay in advance, dating from the commencement of the strike, that the railroad may settle with their men to pay.

By Mr. Lindsey:

Q. Had there been any reduction prior to the 1st of August?

A. Our men, all excepting miners, had been reduced on the 1st of July. The reduction was ten per cent., some not that much, some more—averaging, probably, ten or twelve per cent., I suppose.

Q. Were there any men, under that reduction, that would make less than a dollar a day?

A. Our laborers were making less than eighty cents a day. The number of common laborers we have is very small. We don't have very many. I don't know how many we have, exactly. Our work is by the ton, as far as possible. Of course, it is better to have things by the ton.

Q. When was the reduction before the 1st of July?

A. I don't remember when we did last reduce. I could tell you this evening. Perhaps Mr. Mattes could tell you.

Q. Something has been said about a letter being read at the silk-factory—did you ever try to ascertain how that originated?—purporting to give some statement that you had made?

A. I hear of the letter, of course, that was all. No truth in that letter. The letter was forged. I don't know who wrote it. Perhaps I might give a very

good guess, and also, about other things. You have a great deal of knowledge that you cannot give legal force to.

Q. You have never been able to ascertain who it was, so as to prove it, who wrote the letter?

A. I was perfectly satisfied in my mind—no, I have never been able to prove it, but the time will come, undoubtedly, that I shall, and a good many other things, too.

Q. Did you find out what motive induced or actuated the man to send it?

A. It was, undoubtedly, a desire at the time—the men knew, and were perfectly well aware that our men were, for the time being, just terrorized. They knew, as well as I did, that if I could get our iron company men to work, the thing would stop, therefore it was necessary to drive them out to prolong the strike. For the same reason the Pennsylvania Coal Company's head-house was burnt.

Q. How many men did your company employ?

A. I think we have got about eighteen hundred or two thousand. I think there is about sixteen or seventeen hundred signatures on the pay-roll, and a great many of them draw pay for their children—two or three—sometimes. I suppose we have probably employed somewhere in the neighborhood of seventeen or eighteen hundred.

Q. Boys employed?

A. To a very large extent, boys who are under eighteen or twenty give their pay to their parents. Their parents draw it for them. My impression is, there is a law by which a parent can take the child's pay under age. I think they do draw it, though in many cases they do not do it. Their parents are paid.

Q. That includes the miners?

A. Yes; we have three mines. One of our mines is flooded—filled entirely.

Q. On account of the strike?

A. No; I flooded it myself, long ago, so as to run two mines, to give as steady work as possible to those that did work.

By Mr. Means:

Q. I would like you tell what passed between you and the chairman of the committee that waited upon you?

A. The men waited.

Q. First and foremost, do you know the chairman?

A. I really don't know who was chairman of that committee. The men can tell you that better themselves. There were a number of spokesmen. Mr. Duffy spoke, and I don't know but McNally did.

Q. Did you know the spokesmen yourself?

A. Yes; I knew the spokesmen.

Q. Who were they?

A. I think that John Evans was one. I am not sure; but McNally was another. I think Duffy said something.

Q. State what passed between you and the chairman of that committee?

A. They came out after the strike—after they had got the furnacemen off—came to the office to see me. I am not sure whether it was Wednesday or Thursday. I had sent around word, and a good many that I felt were not treating the company right to strike and stop their works, without letting us know what ground of complaint they had, and I sent word around there, so that a committee came, and they stated they wanted more pay. They said thirty-five per cent.

Q. Thirty-five?

A. Thirty-five; yes, sir. Of course, no one in the iron business now could do that. Such an advance as that was out of the question. I told them that was

out of the question, we couldn't pay them any more. It was out of the question. We couldn't clear ourselves. I asked them whether it was not better to take what they could get, and work steady until times grew better, than to stop and get nothing. Well, they said, the long and short of the matter was they wouldn't work unless they got thirty-five per cent., and they went away.

Q. Did you say to those men—this committee—when the times got better you were willing to advance their wages?

A. I believe I did say something of that kind in reply. If we could afford it we would be glad to do so.

Q. Did they make any reply to that?

A. I don't remember that they did.

Q. They said they wouldn't work unless you did advance?

A. Yes, sir; but, at that same time, I was receiving information all the time from many sources, that the most of them were perfectly willing to work. All they wanted was protection, and that they would go to work, which they did do on the following Tuesday.

Q. They did go to work on the following Tuesday?

A. All of our men went to work on the following Tuesday, except our iron rolling men. We had no work for the steel mill.

Q. When that committee waited upon you, did they say to you, or did they intimate to you, that they would force you into measures?

A. We had quite a long talk. I don't remember anything of that kind. They said they wouldn't work until they got an advance; of course that is equivalent to forcing a way.

Q. They didn't make any threats?

A. I don't remember of that?

By Mr. Larrabee:

Q. In consequence of that strike, did you blow out your furnaces?

A. Lost two furnaces.

Q. What was the damage?

A. It cost us about ten thousand dollars. We made up an itemized list of it soon afterwards. It amounted to about ten thousand dollars—a trifle over. It was a direct damage—it took as much to blast out our scaffold and re-line it, and there was some other incidental damage.

Q. Ten thousand dollars about covers the damage?

A. That is the strike damages—actual loss.

Q. To say nothing of incidental losses?

A. Yes; we paid that out afterwards to fix it.

Q. Was there any loss in the vicinity?

A. The Pennsylvania Company's head-house was burnt; their trellising was burnt, not on the actual day of the riots—it was during that time.

Q. Can you give an estimate account of that?

A. Our Point Brook stable was burnt—that was after we started our works again.

Q. Can you estimate the damage to the Pennsylvania Company?

A. No; other people could tell you better about that.

By Senator Yutzy:

Q. Was there any disposition manifested on the part of your men, to go in to the furnaces and run them, if you would permit them?

A. I don't know of any such; no sir. Of course, we would only have been glad to have them run. If they run them at all, they must run under our protection.

Q. Was there any disposition, any offers made on the part of your men to go in and work?

A. If we would protect them. Oh, yes; if we would protect them after two or three days. The first day, they stated, they were afraid of men striking outside. We labored with the furnace men by night, talking with them, trying to get them to stay. They said they were afraid. The following Tuesday, they got more or less over the fear, and they did go back, if that is what you mean.

Q. Did your men say who made the threats against them—of who they were afraid?

A. No; it was that some men would come to their houses and tell them so and so—tell their wives so and so, some men either told their little girls, and that kind of thing. We could get very little information from them.

Q. The threats were not open and above board?

A. Yes; may have been open, but they didn't give their names to us—were afraid we would act on them.

Q. In your opinion, were those men that made these threats in your employ?

A. Yes, sir; some were. You see, Mr. McGowan cleaned out the Mollies in Schuylkill. A great many of them who had not been apprehended have come up here and they now lie partly between here and Pittston, and Carbondale, and a good many in Oliphant and Carr's Patch; and the men who had been at Minica, were very largely men who were prominent in the riot. These Mollies are now re-organizing here more or less. We have got accurate information. Our information nowadays is very accurate. We know precisely where we stand.

By Mr. Lindsey:

Q. You have stated the substance of the agreement?

A. I have stated the substance of it, that is, with our miners alone. When we took our men back, we made an agreement with all our men, that hereafter they should give us thirty days' notice or forfeit their pay at the time of strike. That agreement was signed by every man who was of any consequence at all. Of course, there is a number of small fry that we don't care anything about.

Q. Signed by the men who carried on your works?

A. It is signed by three fourths of the men in our employ—miners, laborers, driver boys, &c. Our orders are strict in the matter.

Q. Did they enter into this article of agreement with a perfect understanding of what they were doing?

A. They received a printed copy. They agreed to give us thirty days' notice. They all agreed to work on in case of a strike, in case of any commotion elsewhere, they agreed to give us thirty days' notice. If they struck after thirty days' notice, they forfeited all pay due them at the time of the strike. That our miners, in case of a general strike, they agreed to work on through it and we agreed to pay them back pay when the railroad company pays.

Q. The railroad also engages in mining?

A. Yes; the D., L. and W., and the Delaware and Hudson are also mining. We mine no coal except for our own purposes—for our mills and steel-works—and we necessarily make a good deal of fine coal that is not convenient to use ourselves, and we sell what little fine coal we make that we don't want ourselves. We send nothing to New York.

Q. Did you notice any uneasiness among the men, or disposition to strike, prior to the strike at Pittsburgh?

A. No, sir. Of course, the great depression of business, and all that kind of thing contributed to make things very hard. There was a great many men out of work—that made it somewhat hard. Of course, a reduction of wages

is a thing you never take until a necessity comes on, and you cannot help yourself.

Q. Had there been any talk or organization among the men about a strike prior to the strike at Pittsburgh?

A. Not that I know of, sir. It went like wild-fire everywhere, and took these men like everybody else.

... Powell, re-called:

By Senator Yutzy:

Q. Are you prepared to give the figures as to the pay for mining per ton or per car?

A. You referred back, while I was on the stand before, to 1873. I have some figures for the price of mining coal from 1871 to 1878. The Delaware, Lackawanna and Western Railroad Company in '71, 2, 3, and 4, the G vein would return per car, \$1 17½, the E vein, what they call the Diamond vein

Q. One dollar seventeen and a half cents per car?

A. That was in 1874.

Q. The E vein, how much?

A. Ninety-three and a half cents. Six cars constitute a full shift between the miner and laborer.

Q. That makes what you would call a day's work?

A. A full shift; that is in the G vein. In the E vein, it is seven cars. The laborer draws one third of the total mined, then what remains after deducting expenses, on an average, amounts to about \$1 10 at that time.

Q. One dollar and ten cents for a day for the six or seven cars?

A. Expense. That is the wear and tear that has got to come out of the miners. The miner at that wages, would get \$3 50, and the laborer about \$2 35.

Q. The miner how much?

A. Three dollars and fifty cents. That is, taking now the highest rates ever given. In January, 1875, I was getting ten per cent. reduction, and G vein was then reduced to \$1 06 per car.

Q. Just give us the reduction?

A. March 15, in 1876, the Diamond G vein per car, ninety-five and one half.

Q. Was there reduction there?

A. Ten per cent.

Q. In addition to what you have stated?

A. Yes, sir; March 15, fifteen per cent. reduction.

Q. When was the ten per cent. reduction?

A. March, 1877.

Q. Now there is ten per cent. more?

A. Fifteen per cent.

Q. On July 1, was there any reduction?

A. June, 1875, ten per cent.; March 15, 1876, ten per cent.; January, 1876, ten per cent.; March 15, 1877, fifteen per cent.

Q. Was there any reduction after that?

A. No, sir; not for the miners. There is one thing, we have another vein here which we call the G vein, top and bottom, that is seventy-two cents per car.

Q. Has this reduction been general in all the mines, the same per centage?

A. The same per centage.

Q. Is there anything else?

A. You refer to the number of days worked. I can give you that.

Q. Your own days?

A. Through the courtesy of the superintendent of the Delaware, Lackawanna and Western I got the number of days from their books. The number of days worked in 1876, one hundred and sixty-five and three quarters. That was the breaker work in a year, making an average of \$14 per month, that is the whole breaker work. You take the mines there, and all they make is an average of \$12 per month—of the miners. In 1877 it averaged about—the breaker work—about \$16; that would give the miners about \$13 per month. In 1878 it lacks an average of \$12, which would give the miners nearly \$10.

Q. How many days did you make in any month?

A. I took the whole average of the mines.

Q. Got that from what?

A. The books of the company.

Q. Of the company you are working for?

A. Yes, sir.

Isaac Felts, *sworn*:

By Mr. Lindsey:

Q. State whether your store was broken open on the 1st day of August last?

A. The 1st day of August I found it was broken open. They said it was broken open in the morning.

Q. Done in the night or during the morning?

A. After midnight.

Q. How far from Scranton is it?

A. It is about three miles, or three and one half, I should judge.

Q. In which direction?

A. It is south from here—pretty nearly south.

Q. How far beyond the silk-factory?

A. It must be two and one half miles, probably.

Q. Is it near the church that stands out at Greenwood?

A. It is beyond the church; it is about half a mile or so beyond the church.

Q. State what your damage was?

A. As near as I can judge, I think it is between \$3,000 and \$4,000.

Q. Goods that were carried off?

A. Goods carried off.

Q. What kind of goods?

A. All kinds of merchandise. Goods pretty much that belong to a country store. We had to keep a little of most everything there.

Q. Was anything in the shape of ammunition or arms taken away?

A. No, sir; not that I know of. I had mining supplies. I had some little powder there, and one thing or other that was not taken. There was no ammunition that I knew of.

Joe Shoemaker, *sworn*:

By Mr. Lindsey:

Q. Were do you live?

A. Over in the Eleventh ward, Sixth street.

Q. What is your business?

A. Blacksmith.

Q. Where were you on the 1st day of August last?

A. The 1st day of August I went to work in the morning at the Lackawanna Iron and Coal Company's—down here at the flats.

Q. Go on and tell us what you did that day?

A. I worked there, and about between eleven and twelve o'clock—the miners had a meeting at the silk-factory, and the men came down and called us out. My woman was down there. "Joe," she says, "Come out, the miners will kill you;" says I, "I guess they won't do that." I went out and came up near the boiler-shop—and went out—I was the last man that went out of that shop. I didn't want to go out, I was satisfied with the wages Scranton offered me. I didn't want to go out, but they all went out, and so I went out—I closed the door of the shop, and I went out when everybody was done. I wanted to see what was going on, and I seen them—they went in the boiler-shop. There was a man working in there by the name of Hilton, and there was hollering inside, and I didn't know what was the matter, and I saw a man jump out and some fellow standing outside the door, he was jumping against the door. The door fly open and knocked them fellows back, and they run right in. They picked up stones and fired at them. They seen me, I had my sleeves rolled up. They thought that is a working man, and they fired at me. I got four stones, one on that shoulder, and one on that, and one right here, [indicating.] I sat down. I could not move myself any more. I hopped up, and when I got there he said, "Joe that blow I would not have

for fifty dollars." I didn't want to tell them I got hurt. The engineer was getting out, he was half ways in the window and half ways out when they got at him.

Q. Do you know any of those men that were hammering your engineer?

A. I was too far away. I was up at Robinson's brewery. I was too far off. I didn't go near them any more. He run around the building, and when he got to the foundry there was a pile of pig iron of about three foot high, and he run down, and some people stopped there by the foundry, and they picked up stones and fired at him. When he was behind that pig iron, he was gone from my eyes. That was all I could see of him. If it was not for the stopping work, I would have had about \$120 in my pocket, where I didn't have a cent. I was willing to work on, but they didn't let me.

Q. How long was you idle?

A. Three months idle. Had a family with three children, and was willing to work, but I couldn't work.

Q. Because they would not let you?

A. No.

Q. How much did you get a day when they drove you out of the shop?

A. I had \$1 53. My wages is \$40 any how, and then the three months makes me \$120 lost. Whose fault is it? Not mine. I was willing to work. It was not the company's fault either.

Q. The fault of strikers, was not it?

A. Yes; and then they hit me, and I had to lay two weeks in the bed, and the society to where I belong had to pay me benefits.

Q. What society do you belong to?

A. To a Dutch society—to two of them. I belong now twenty years—to one of them twenty-five years.

Q. What is the name of that society?

A. St. Joseph's Verein and Lackawanna Mutual Association.

Q. What is that society for?

A. For to pay benefits, same as Odd Fellows. Pay benefit if a man is sick. If you die, the woman gets \$50. If you are sick, you have \$4 a week. The society paid that at the time they hit me, and they had to pay me for it because it was not my fault. They didn't want to do it, but they had to do it. I said it was not my fault. I went to work for my family, and I got hurt. It was not my fault, and they had to pay me, so they did.

Charles F. Mattes, *sworn*:

By Mr. Lindsey:

Q. State your residence and your business, if you please?

A. My residence is here in Scranton. I have general charge of the coal mines, and real estate agent of the Lackawanna Iron and Coal Company. In reference to this matter, I will state just here that I was not an eye witness of those riots. When this suit was brought against the parties who were engaged in the shooting, I was charged with the gathering of evidence in the case on the part of the defendants, and it brought me in communication with a great many persons who were witnesses who were directly concerned, and I presume it is supposed for that reason that I could give more information than, perhaps, any other person in reference to it; but what I would have to say would not be from observation, but from other parties.

Q. We don't care to have you describe the riot as it occurred here that day. That has been described by so many gentlemen. I wish you would give us what information you have as to the cause of the riots, and what your information is as to what produced them, based upon information that you collected in making these defenses?

A. In the first place, the strike originated here with the railroad employés—firemen and brakemen ostensibly. Miners and mechanics, generally, and workmen generally were working on quietly, and with no demonstration of any sort, apparently reasonably well satisfied. There had been, from time to time, reductions in the wages, which are always accompanied, as every one knows, with more or less feeling of dissatisfaction on the part of those whose pay is reduced; but this strike here, it occurred to me, was a sympathetic movement in accord with the strike of the firemen. By that strike all transportation ceased. Of course the mines could not be carried on. The men were thrown out of employment; they could not work if they desired to, because there were no cars and no means of carrying away the product of the mines. The consequence was, they would meet together, and these matters were discussed. Agitators would go among them. The better class of men were overruled, and the more violent agitators carried the day, and it resulted in a strike and demand of an increase of twenty-five per cent. in the rate of wages, at a time when everything was depressed, and it was so preposterous. They were assured by a good many that it was a foolish demand, and one they could not expect to have acceded to, and must result in a prolongation of their idleness if they insisted upon that demand. I don't know as I could add anything to what has already been said here as to the cause. The strike on the railroad, in my view, was the primary cause, and it threw the men idle, and as is pretty nearly always the case, there was more or less trouble.

By Mr. Means:

Q. You think the strike at Pittsburgh was the cause of the strike at Scranton?

A. ...

By Senator Yutzy:

Q. Why was it?

A. Because this movement was carried through on the railroads. The railroads were all stopped. Many other classes of men were working along

contentedly, satisfied that they were doing the best thing they could do, if they were not satisfied with their wages. We all know they were feeling as though they were working for low wages, and those men who came among them did their utmost to create this spirit of dissatisfaction, and induce the strike.

Q. What combination, if any, was there between railroad men and other laborers?

A. I don't know that there was any direct combination. There was said to be a general labor union organized at the time. We heard a great deal of unions of various occupations, and of a general union of laboring and workingmen.

By Mr. Lindsey:

Q. Did you succeed in tracing that thing to a reliable source to find whether there was a union organized here?

A. I was perfectly satisfied in my own mind that there was a union. As to the existence of it, I couldn't definitely say.

Q. Was there any riot organized in the city of Scranton?

A. I think so.

Q. Composed of what class of men?

A. Composed of all classes of workingmen, so far as I could get at it. I was satisfied it was so. I couldn't state that positively, nor I couldn't point to men as directly connected with it.

By Mr. Means:

Q. Were the railroad employ  s the prime movers in this strike?

A. It occurred to me they were. They took the initiative at any rate in striking. They spoke first.

By Mr. Lindsey:

Q. The railroad employés did.

A. Yes. I mean by the railroad men, the men operating their trains. There was a large mass of miners—much the larger mass of miners are employés of the railroad company in this vicinity.

By Senator Reyburn:

Q. From the information you got, do you think there was an organization, and it was understood that the railroad men were the first to strike?

A. No, sir; I don't know that that is so.

Q. From your own knowledge of the state of the case then, as I understand it, you think the railroad men struck first of their own accord?

A. It appeared so to me, and, from any knowledge I have, I should judge it was so.

By Senator Yutzy:

Q. And the rest followed from a general sympathy of all laboring classes with them?

A. Yes, sir.

By Mr. Lindsey:

Q. I want to know whether the railroad men struck before or after the strike at Pittsburgh?

A. I think it was directly after—just about that same time, and just about the same time the thing followed around all over in quick succession.

Q. Do you recollect the day when they struck?

A. No, sir; I don't.

Q. Do you recollect the day the trains stopped running?

A. No, sir. I could easily have ascertained this point, only I didn't suppose I would be called upon for anything of the kind, and made no preparations.

Q. You think it was not until after the strike at Pittsburgh?

A. It was just about that time. I think it was just after.

By Senator Yutzy:

Q. Have you learned whether it was by a pre-concerted arrangement that they should strike here?

A. No, sir; but it appeared as if they did so. We knew very well there were labor organizations among the railroad men. They had their brotherhoods of engineers, and of firemen, and of brakemen, &c.

Q. Was there such an organization here as the Trainmen's Union that you knew of?

A. I never heard of it by that name. I had nothing particularly to do with the railroad, and, of course, wouldn't be as well posted in that as in some other matters.

By Mr. Lindsey:

Q. From the investigation you made, and from your knowledge of the strike here, do you think there would have been any strike here had you heard nothing of the strike at Pittsburgh and other parts of the country?

A. I think there would have been.

By Senator Yutzy:

Q. Why do you think there would not have been?

A. The men were working on peaceably, and apparently contented, and there were no demonstrations made, whatever, and they were getting reasonable pay.

Q. Did you hear any of those strikers say it was because the men struck at Pittsburgh and in Virginia or any other place?

A. You could get no reason out of them. I conversed with many men, but there was scarcely an instance in which he would acknowledge that he was a striker. He stopped simply because the rest of the men stopped.

Q. It was apparently infectious?

A. I don't think I met with a dozen men who would acknowledge that they were interested in the strike.

By Mr. Means:

Q. He proposed that if he was in Rome he would do as Rome does?

A. There was another reason assigned, something in substance to that.

By Mr. Lindsey:

Q. They wouldn't acknowledge that they were engaged in striking, in the conversations you had with them?

A. No, sir.

Q. Was there any fear, you think, operating on the minds of those men with whom you conversed that if they did acknowledge they were engaged in a strike they might be discharged by their several employers?

A. There may have been. I have no doubt some were affected in that way—no doubt of that, whatever.

By Senator Yutzy:

Q. I understood the witness to say that the railroad men struck first?

A. Yes, sir.

Q. Was there not a strike among other classes of men—iron men and rolling-mill men?

A. Not until after the railroad strike occurred.

Q. Another strike preceding that?

A. I have no recollection of any; no, sir. Not a matter of recent date. There may have been some local strikes about here, or some local difficulties, as is frequently the case. Sometimes there would be a strike at one mine because of some local difficulty. That won't affect the general region, whatever. That is frequently the case.

Q. What is the general custom of the men that strike? Is it their custom, when they quit work, to prevent other men from working?

A. Almost universally so.

Q. And by what means?

A. By intimidation of various sorts. Doing it at their houses mainly?

Q. Threatening them?

A. While the miners were idle, it has been the practice, heretofore, in this valley, for pump men to continue at work through the strike. I have never known a case but where they were stopped. In this case—I can speak positively to this one fact—that at one of the collieries that I have charge of, the pump men were visited by a crowd of men at night and threatened, and ordered to stop. This I have from the men themselves.

Q. Threatened with what?

A. Threatened with violence—to be beaten—forced out, if they didn't stop. The men, in this particular case, requested to remain until morning, and not to drop everything, and leave it unprotected. In the morning they were so badly frightened that they refused to continue at work. Then there was no recourse but either to let the mines fill, or to get other parties to work in their places.

Q. What means were resorted to prevent men from working that wished to work?

A. By beating them, going to their houses, and threatening them, sometimes, sending communications—sometimes are ornamented with cross-bones, and coffins, and pistols, and skulls.

Q. Drawings on paper?

A. Enough to frighten them. Sometimes men desire to be intimidated that way, as an excuse. I think so, many times.

Q. Have any of those threats ever been carried out?

A. Yes. Men have frequently been beaten.

Q. And killed?

A. I cannot re-call of any cases here, where men have been killed.

Q. Driven away by force?

A. Yes, sir. In this case of our colliery, the house of the man who was working as a pump-man—he had been working in the mines for years—been foreman at one time—his house—his house was visited twice, pistol shots fired into it, stones thrown at it, he was stoned and forced from his work; and another man, who was working with me was stoned, his house was stoned several times by parties, in the night. Who they were, we cannot tell, of course.

Q. Where men didn't obey the advice of those men that threatened them, was it generally followed by violence?

A. It very frequently has been.

Q. Has it been generally followed by violence, so far as your observation and knowledge extends?

A. No, sir; I wouldn't say generally, because threats have been so common. I could hardly say it was general; but, as a rule, men have been intimidated by the threats.

Q. I want to know whether, where they didn't obey the commands of these men that made the threats, and didn't cease work, whether that was generally followed by violence?

A. That is a very general question.

Q. So far as your observation extends?

A. I wouldn't say generally; no, sir; I would say that it has been frequently followed by violence.

By Mr. Lindsey:

Q. Have you seen any of the threatening letters—letters with coffins, &c., on them?

A. Oh, yes.

Q. Been shown you by the men?

A. Yes. I have sometimes taken them off the works.

Q. Taken them off—how?

A. Found them posted up; because where they had been posted up, they had been so frightened by them, that they wouldn't go in—wouldn't go to work for a day or two, until they got over the strike. I have some of them. I think I could scare up a few.

Q. In our examination we have had a good many terms we are not familiar with, and I don't know but what we ought to have some definition of them. For instance, blacklegs?

A. A blackleg, as I understand it, is generally applied to a man who takes another man's place. This I understand to apply to a man who, when one man strikes, another goes in and takes his place; but it is just as commonly applied to those who continue at work, and will not go on a strike—they are denominated blacklegs. That was so in this case.

Q. Have you any scabs in this county?

A. I don't think that is used much about the mines. I have heard that applied to shoe-makers more than any one else. That is, fellows who were wandering about, without any settled place.

L. C. Bortree, *sworn*:

By Mr. Lindsey:

Q. State where you reside, Mr. Bortree?

A. I reside in the Ninth ward of the city of Scranton.

Q. What is your business?

A. I am going to be a farmer on Tuesday next. I am not doing anything now.

Q. What were you doing on the 1st August last?

A. Special policeman.

By Senator Yutzy:

Q. Of the city of Scranton—of the mayor?

A. Yes, sir; under the mayor.

Q. State where you were on the morning of the 1st August, when the men came from the silk-works into the shops, driving the employés out of the shops?

A. Allow me to state it as it was.

Q. In brief?

A. I was here on duty on the upper end of this avenue during the night of the last of July or the 1st of August. I had permission of the chief of police

to leave here at five o'clock. Well, I did. During this time there was a fire at what was said to be the Pennsylvania railroad, No. 5. I went out and returned about ten o'clock. I called in to the coal and iron company's store up here, to get a rubber overcoat, with the intention of going home. While I was there, Mr. W. W. Scranton, says to me—I used to be deputy sheriff, was deputy sheriff for the past twelve years, off and on, at this end of the county. I had nothing else from the 24th of November, 1871, till the 12th April, 1878.

By Mr. Lindsey:

Q. Just come to the facts?

A. I stopped there and I went up and looked through a field-piece, and saw a large quantity of men.

Q. Field-glass?

A. Field-glass. I came down, just at the time I came from the building, some one said, that the mayor had sent for his posse. I supposed I was one, as I was a special police. W. W. Scranton gives me a gun, and he said, "Let's form this line." Well, I did. I said to him, "Scranton, I am as well known in this city as you are, and you take one end of the line and I will take the other." I fell back in the rear of the line, and Mr. Carl McKinney was my comrade. We started out of that store and came down, probably, two or three hundred feet, and I saw a man whom I thought I knew, on the opposite side.

Q. Come down where?

A. Come down this way.

Q. Lackawanna avenue?

A. Yes, sir; from the company's store. I was in the street railroad that passes here, on the opposite side of the track from here, and I saw this man drawing a revolver, and, I think, it was a four-barreled revolver, and he emptied that at me, at least I think he did. I carried my gun in that hand—

my left hand—and taking this right hand I says, "For God's sake keep quiet." I came on a little further, about a hundred feet. Before we struck Washington avenue, stones and clubs were thrown. Bear in mind, I was in the rear end, and when we passed that there was some——

Q. Passed what?

A. Passed the avenue, on the edge of it—the upper edge. Say for instance, that was the first edge of Washington avenue, [illustrating.] this man McKinney was close by me. Sometimes I was ten feet from him, sometimes twelve. Just as I struck Washington avenue, there was a man asked me—came up to me and he says, "You son of a bitch, give me that gun." I says, "You can't have my gun." He fell back in the crowd and I heard some one—who it was I don't know—say, "Let's rally on them," or something to that effect. "They have nothing but blank cartridges." Another man, whom I knew, came up within ten or twelve feet of me, and he called me, "Sheriff, you son of a bitch, give me that gun." I says, "No, you can't have my gun; for God's sake get your people off these streets." Previous to this there was three or four shots from these men, who was a hundred feet before you strike Washington avenue. When we struck Washington avenue, there was one, two, or three—anyway that I know—I am sure of one that was shot.

Q. One man shot?

A. Not any one from us, sir——

By Mr. Means:

Q. That was before you passed Washington street?

A. Yes; there was from three to four before we struck Washington avenue, and I saw a man when he shot—from three to four shots—just above Monie & Pugh's store, on the right hand side of this avenue. We came down on the center of the avenue. Of course, I do not know how the front end of our squad was. Of course, we were two by two. As soon as we passed through, they closed up like this.

By Senator Yutzy:

Q. Behind you?

A. Yes, behind me.

Q. Behind the end, as they were marching along?

A. Yes; and I saw parties there whom I knew, and I says to them, "For God's sake, boys, get off the street." I crossed over the avenue. I was struck in the left arm, struck in the shoulder, and struck in the back of the neck.

Q. What with?

A. One was, I am sure, a piece of a shovel handle. I saw it coming. There was a stone thrown which struck a man right behind me by the name of—I can't tell you his name—he was up here at the company's store. When I saw it coming, I dodged it, and it went over me.

Q. Many stones thrown?

A. Stones, clubs, sticks, and everything that you might think of.

By Mr. Means:

Q. You have stated, I believe, that you did advise a crowd there and then to go to their respective homes?

A. I says, to leave the streets. There ain't a man in this room but what knows me. Then we came down after we crossed the avenue, and this man, McKinney, he was next to me—I saw a man on the left hand side, at what is called Slager's building, have a revolver at the corner of the building, and he shot, and about the time he shot, some of our vigilants, as they call them, shot, and it lasted for probably, about a minute, I do not think it lasted two minutes.

Q. What was the effect of the firing?

A. The effect of the firing, I saw three men lying dead then and there—I suppose they were dead. One on the right hand side, as you go up this way, his name was Dunlevy.

Q. Were there any other ones wounded?

A. I could not swear to that, any further than seeing a man carried up the avenue on a stretcher of some kind.

Q. Did the crowd disperse?

A. They did. They dispersed right away, as soon as the first volley. I think there was somebody fell.

Q. Did you fire?

A. I did, sir.

By Senator Yutzy:

Q. Did the man fall that you shot at?

A. I do not know that.

By Mr. Larrabee:

Q. I suppose you didn't shoot to waste your fire?

A. You heard what Mr. Scranton swore to.

By Mr. Lindsey:

Q. Was there any firing after the crowd started to run?

A. Yes; there was. I saw a gentleman in this crowd that came near blowing my ear off, and while going—we had breach loaders.

Q. After the crowd started to run, did they fire?

A. Yes, sir.

Q. Was he with the crowd?

A. No; he belonged to the posse.

Q. He fired after the crowd started.

A. Yes; and then he loaded again, and it went off again, and I then told him not to put any more in that gun. It was accidental shooting. It was done all within a half second from the time that the first shot was fired. I do not think the shooting from the vigilants, as they term us, and I was the last man in the crowd—and I don't think it lasted one minute.

Q. All the firing?

A. From the time the vigilants opened fire until it had ceased.

By Mr. Means:

Q. Did you know the leader of this crowd?

A. I know two gentleman in that crowd, two that I supposed——

Q. Did you know them to be the leaders of that crowd or mob?

A. I know there was men in that crowd that said, "Boys, come on."

Q. I want to know this: if you know the leader of that crowd?

A. I should say I did.

Q. Were they railroad employés, were they colliers, or what were they?

A. I could not say the position they held in life.

Q. You have stated in your evidence, that you had told this crowd to disperse and go to their homes—what was their reply?

A. They said, "You sons of bitches, we will take your guns from you and we will clean the avenue." Whether the man I spoke to said it or some one else, I cannot say. There was lots of clubs thrown about this time, and stones. I was struck two or three times myself.

Q. In your evidence, you have said that they attempted or asked you to take your gun—who was the party that done that?

A. That question I don't propose to answer.

Q. I insist on it?

A. I will not answer that question.

Q. Did they belong to the rioters?

A. I object to answering to that.

Q. The man was one of the rioters—this party that tried to take your gun?

A. He is a man that asked me to take my gun.

Q. Did he belong to the rioter party?

A. He did.

At this point the committee adjourned, to meet at the call of the chair.

PITTSBURGH, *April 6, 1878.*

The sub-committee on railroad riot met at the Orphans' court room at ten o'clock, A.M. Mr. Reyburn in the chair. Present, Messrs. Reyburn, Torbert, Yutzy, Englebert, and Means.

David A. Stewart, *sworn:*

By Senator Reyburn:

Q. Where do you live, Mr. Stewart?

A. I live on Homewood avenue, Pittsburgh.

Q. What is your occupation?

A. I am president of the Pittsburgh Locomotive Works and Columbia Oil Company.

Q. Were you present on the 19th of July, the breaking out or first commencement of the riot?

A. The 19th. That was Thursday, was not it?

Q. Yes?

A. I was in the city on Thursday.

Q. Will you be kind enough just to make a statement, in your own way, of what you know of the occurrences of that day?

A. The only excitement that I saw was on the street, but on Friday morning when I came into the city—I live six miles out—in the city limits—but six miles from the neighborhood—I understood Mr. Cassatt was there, and I went to see him, and say to him that the city of Pittsburgh was very poorly off for police—one hundred odd men having been discharged—and suggested that he would get the mayor to employ those that had been discharged, and guarantee the payment of their wages, to protect the property of the company and the peace of the city, which he agreed to do. He said he did not know Mayor McCarthy, and I offered to take him down and introduce him. He started to go, and then was called back on some other business, and could not go, and requested me to take a carriage and go down and see the mayor, and bring him up if I could. I took a carriage and went down, and met the mayor on the steps of the city hall; went up to him and said to him I had been sent down by Mr. Cassatt, who would like very much to see him, and I offered a carriage, and asked him if he would come along up and see Mr. Cassatt. He said he would not; he would not have anything to do with it, the whole matter had been taken out of his hands. That there was no necessity, he said, of bringing the military here, that he could have allayed this whole thing if it had been left in his hands. I asked him if he would see Mr. Cassatt, if I would bring him down. He says, "No; I

will have nothing to do with him," and he turned on his heel and left, and did not wait to hear the proposition. I did not make the proposition, because he would not wait to hear anything.

Q. Did you see the mayor himself?

A. The mayor himself, on the steps of the city hall, and he saw the carriage there ready, right in front of him, to take him to the depot, if he had gone. This was on Friday morning.

By Mr. Means:

Q. Did you go back and report to Mr. Cassatt?

A. I went back and reported to Mr. Cassatt that he had declined to see me—to come to see him, or to see him.

By Senator Reyburn:

Q. Were you acquainted with the Mayor?

A. Oh, I know him. Not intimately. Have been in his office frequently before. I think he knew me, too.

Q. Have you any knowledge of any steps taken by the mayor to preserve the peace?

A. Not at that time. He declined then. He said the matter had been taken out of his hands, and he would not do anything.

Q. Do you know of his having taken any step at any time?

A. Well, after that—after the fire on Sunday, I saw him then with a lot of police, bringing some men from the Brownsville boat, or Connellsville road, or somewhere along there—after the fire on Sunday. I was not in town on Sunday, owing to an article in the *Globe* that Thomas A. Scott was at my house directing affairs from there. Having my family over there, I expected a lot of those men out there. I was at my house in East Liberty, around about the stock-yards, all day on Sunday.

Q. You say there was an article in the *Globe* newspaper published here?

A. On Sunday morning.

Q. That Thomas A. Scott was at your house?

A. Directing affairs from there.

Q. Was Mr. Scott there?

A. He was not there at any time during the riot. Was not there before the riot, nor has he been there since.

By Mr. Means:

Q. Did the mayor say to you who had taken this matter out of his hands—what authority had taken it out of his hands?

A. I do not think he said what authority. He said the whole matter had been taken out of his hands.

Q. Did not say who did it?

A. No; he may have stated the sheriff, but I am not sure about that—stated he would have nothing to do with it.

By Senator Reyburn:

Q. Where were you on Saturday? Where are your works located?

A. Our works are located in Allegheny, but my office is on Sixth street. I was not up about on Saturday. I was at the Union depot about the time the firing commenced at Twenty-eighth street, and I went out on the first train to home; but after the train could get through, and come up as far as the yard, it was stopped at the yard, owing to the troubles at Twenty-eighth street, and I suppose we were there half an hour. I was not at Twenty-eighth street at the time of the firing. I saw great crowds of people around the tracks as our train got through.

Q. Did the crowd seem excited?

A. Oh, yes; close up to the tracks along on both sides. That was after the first volley had been fired. There was no firing at the time I went through there. That was about five o'clock in the evening.

By Senator Yutzy:

Q. Were you about the Fort Wayne depot during Saturday or Sunday?

A. No, sir.

Q. Don't you know anything about the doings of the mob down there?

A. I was not in town on Sunday at all. I saw the troops there at the passenger depot at one o'clock that day, when the Philadelphia troops arrived there, when they were taking their lunch at the Union depot.

Q. Were you over in Allegheny at any time during the trouble?

A. No, sir; not at all during the trouble.

By Senator Reyburn:

Q. Did you apply to any of the other officials—sheriff or any other authorities?

A. No; I did not. I am not connected with the railroad in any way, except I am director in the Allegheny Valley road. I talked to Mr. McCargo about him applying, but he thought it was not any use, after the refusal to Mr. Cassatt.

Q. After the mayor refused?

A. Yes, sir.

By Senator Yutzy:

Q. What was the nature of that editorial in the *Globe*—was it inflammatory?

A. It was not an editorial; it was a local notice, stating that Thomas A. Scott was at the house of his nephew, D. A. Stewart, on Penn avenue, and

directing affairs from there. That was to create excitement. There was more inflammatory articles in the extra of the *Critic* issued on Sunday.

Q. The *Globe* was a Sunday paper also?

A. The *Globe* was a Sunday paper also.

By Mr. Means:

Q. What was the tenor of that article in the *Critic*—to excite?

A. To excite the populace.

Q. Or to allay the excitement?

A. I think it was signed "Thirty Thousand Citizens," calling for a meeting at city hall, on Sunday, at one o'clock. If I remember, the tenor was to put down the railroad men, and all that sort of thing.

By Senator Yutzy:

Q. Put down the strikers?

A. Tom Scott and the balance of them.

By Mr. Means:

Q. The railroad officials?

A. The better plan is to get the article itself, instead of letting me describe it.

By Senator Yutzy:

Q. Was this in the *Critic* or *Globe*?

A. In the extra of the *Critic*, on Sunday. The *Critic* had a regular edition, and afterwards issued an extra that was distributed about noon, or during the forenoon.

Q. Is there anything else that you know in regard to the riots that would be of interest to us?

A. I do not know anything directly. You know, I was about East Liberty on Sunday, and there is nothing that would be evidence. I saw the troops there, and I went to the general, and got him to distribute a guard around the stock-yards and Penn avenue, and made suggestions of that kind.

Q. Did the troops preserve order there?

A. Everything was very quiet there on Sunday, about East Liberty.

By Mr. Means:

Q. Did you have any conversation with Tom Scott or Mr. Cassatt in regard to this matter, except what you have stated about the mayor furnishing police, or anything that would have any tendency to put down this riot?

A. I don't remember now of any. I heard rumors that were current, of one kind and another, which I would not consider as evidence. I heard Mayor McCarthy made such and such speeches, but I don't know who from. That would not be evidence.

By Senator Reyburn:

Q. What was the conduct of the troops out at East Liberty, those that come under your observation?

A. They were very orderly and behaved. They had nothing to do, specially, there. I saw them have their drill there on Sunday evening. General White's troops were up above Torrens, and I applied to him first about having this guard placed along Penn avenue. At first there was no guard there, and there was danger of men coming out and setting fire to the stock-yards; and I applied to him, and he said General Gallagher was the officer in command, and I applied to General Gallagher, and he said he would have it attended to. I went back in a couple of hours, and it still was not done, but he did have it done that afternoon. I saw there was danger, and it might create a

great deal of trouble, but they had a guard placed all along Penn avenue, and also requested that there should be a guard put at the lower end of the yard, the upper end of the tracks, to keep persons from going there, except what was necessary on business, which they did. I was in the telegraph office, and heard the reports about the wreck of that stock train.

By Mr. Means:

Q. The disposition of the troops was to maintain order?

A. There was no difficulty, particularly. I think everything was quiet about East Liberty and about the stock-yards on that day—on Sunday.

Q. They were ready to do their duty?

A. Ready to do their duty.

Joseph Thomas, *sworn*:

By Mr. Reyburn:

Q. Where do you reside, Mr. Thomas?

A. Reside at No. 117, Bluff street, Sixth ward, Pittsburgh.

Q. Were you the coroner at the time of the riots in July last?

A. Yes, sir.

Q. Will you be kind enough to state to the committee the number of persons killed during those riots that came within your official knowledge?

A. There was twenty-two that was killed, and there was two that died from wounds. One was Lieutenant Ash, of Philadelphia, and a man by the name of Evans, that was wounded on Sunday morning, and died afterwards. They had amputated his limbs, and he died. I took his deposition.

By Senator Yutzy:

Q. Was he a soldier?

A. No; a citizen shot in the neighborhood of Thirty-seventy street on that Sunday morning. That is all I have any account of altogether.

By Senator Reyburn:

Q. What were those—citizens?

A. There was four soldiers—four Philadelphia soldiers, altogether, counting Ash. One of our soldiers that belongs around here, and the others were all citizens. That would be five, counting Ash, that I held an inquest on.

Q. What were the occupations of those men that were killed? Do you remember?

A. I think that I have got a list down there, if it has not been mislaid. There was some of all kinds, painters—some railroad men among them, there was some rolling-mill men, I think—yes, I know of one. I did have a list of them.

Q. Could you give the committee a list of the killed, with a statement——

A. Statement on my docket? I could. I had a list made out, which I gave the grand jury. I don't know what they did with it.

Q. We would like to have the list of killed from your docket?

A. Yes, and the place they were killed?

Q. Yes?

A. And their occupation?

Q. Yes; just a description of them, so that the committee can file them in their report. Where were those men killed?

A. The majority of them were killed in the neighborhood of Twenty-eighth street, and some were killed about the corner of Twenty-sixth or Twenty-seventh. That was during Sunday morning—Saturday night.

Q. During the time the troops were in the round-house?

A. Yes, sir. This one soldier that belongs here, he was shot up on the hill. I had been out in Sharpsburg that afternoon, and was within a couple of squares at the time of the firing. I could see him laying up on the hill from Liberty street.

Q. You speak of this man Evans having made a deposition?

A. He was shot right in the neighborhood of Thirty-seventh street.

Q. He was further out on Penn avenue?

A. Yes, sir; that was on the road that the troops retreated on. Butler street there was another—a saloon-keeper shot pretty near the same place. This man Evans' deposition, as near as I can remember, was, that he was engaged in the Valley round-house, taking charge of the engines, and running them in, and he had got done work, and went down to see about some relatives of his—went down street apiece, and saw the troops coming, and he turned off and went around the corner and waited until they passed, he said that after they went apiece, he followed them up on his way home. He was shot in the ankle.

Q. That was on Sunday morning?

A. Yes, sir; that saloon-keeper—he was shot at his own door, and there was a man that was carried in Doctor Robinson's—I don't remember his name, but I can give it to you—was shot just about a square above that. He was a plasterer.

Q. Did you have a physician to make a *post mortem* examination of the dead?

A. No, sir; I did not.

Q. What appeared to be the nature of the injuries of the soldiers that were killed? Did they appear to be wounded from rifle bullets or pistol bullets?

A. They appeared to be mostly gun-shot wounds. There was one of them had a hole you could pretty near put your fist through. It was where a ball came out. It appeared like a minie-ball. There were two soldiers. They were laid out by Mr. Devore. By the time I got there, he had them fixed up to be shipped, and he could give you a description of their wounds.

Q. Joseph?

A. Mr. Devore, the undertaker; he got them in Lawrenceville. He had them fixed up at the time I got to see them, and he could give you a description of them.

Q. Did you think they were all gun-shot wounds?

A. All gun-shot wounds, except one.

Q. Rifle of large caliber?

A. Yes. Well, these minie-ball are not a very big ball, but they make an ugly wound sometimes.

By Mr. Reyburn:

Q. I suppose the Senator means that they were not pistol shots?

A. No; I feel confident they were gun-shot wounds.

By Senator Yutzy:

Q. The wounds of how many men did you examine—of the soldiers?

A. These two in Devores. I don't know whether I examined the wounds or not. Mr. Devore would know. The other one up here I did. It was a very big wound. He was killed about Thirty-third street.

Q. A citizen?

A. No; he was a soldier. I think he had two wounds in him.

By Mr. Means:

Q. Was he a Philadelphia soldier?

A. Yes, sir.

By Senator Yutzy:

Q. Were there any women and children killed?

A. I didn't see any. There were rumors around the streets Saturday afternoon that there was, but I didn't see any.

By Senator Reyburn:

Q. You held no inquest upon any children or women?

A. No, sir; there were places pointed out to me Saturday where there had been women or children shot, but I didn't hear anything of it afterwards.

By Senator Yutzy:

Q. Have no knowledge of any being killed—children or women?

A. No, sir.

By Senator Reyburn:

Q. Have you any information, or did you see any of the occurrences on Saturday—Sunday that would be? You are county officer—are you a county officer?

A. Yes, sir. I was about two squares from the firing at the time it commenced, coming down Liberty street. I think I was up about Thirty-first street, about three squares.

Q. Coming this way?

A. Yes, sir; coming this way. I went up along Liberty street in the afternoon about two o'clock, and I was in a buggy when the firing commenced, about three squares up Liberty street from Twenty-eighth street. I could see the people up on the hill from where I was, the dust rising when the balls would strike. I was not near enough to recognize anybody.

Q. State how many you know of having been wounded?

A. Three.

Q. What were they?

A. One was a Philadelphia soldier.

Q. Where was he wounded?

A. He was wounded, I think, in this side, [indicating left side.]

Q. Which side?

A. I think on the left side.

Q. Where—what part of the city?

A. He was wounded out in the neighborhood of Thirty-seventh or Thirty-eighth streets.

Q. Was his a gun-shot wound?

A. I think it was a pistol shot.

Q. What were the others?

A. The others appeared to me like a pistol shot. This boy Jones, he was there in the hospital. He was shot in that place. His wound appeared like a pistol-shot wound. He was shot about the forks of the road. That would be, I suppose, Thirty-fifth street, maybe. Then there was another man by the name of Scott that was wounded in the leg. I didn't see his wound.

Mayor Phillips, sworn:

By Mr. Means:

Q. I would like to ask you one question. The committee would like to know, or I would, at least, if you put Allegheny City into the hands of this man Ammon, and if so, what you told him?

A. Put Allegheny city into the hands of Ammon?

Q. Yes, sir.

A. Emphatically, no! I never put anything into the hands of Ammon.

Q. Did you tell him to take charge of the lower part of Allegheny City?

A. I did not, sir.

Q. Did you tell him to resist any arrest that might be attempted to be made upon him?

A. Positively, no! I will tell you what I did say. When I went, I found there were five or six hundred men, and my force was very small and I cautioned them to be careful what they are doing, that they would get themselves into trouble, there is danger ahead, and says I, "Be careful what you are doing." That was the sum and substance of what I said. I cautioned Ammon, and it turns out there were three or four of my officers heard me say so. The chief of police is here now, if you would like to have him corroborate it.

Q. Do you know of any official communication that Ammon had with the railroad officials?

A. I do not, sir.

Q. Do you know of any communication at all that he had with them?

A. Hearsay, sir. I know nothing of my own knowledge—only heard it indirectly, from some person to me, that he had something from J. D. Layng.

Q. He did not tell you himself?

A. No, sir.

Q. Saw no telegram from Mr. Layng to him?

A. No, sir.

By Senator Yutzy:

Q. Did you have any conversation with Mr. Robert Ammon during the time he had charge of that railroad—the Fort Wayne railroad?

A. Yes, sir; I had conversation—at the time he had charge?

Q. Yes, sir.

A. I did not know that he had charge. He was there.

Q. Did he tell you at any time that one of your police officers attempted to arrest him, and he refused to be arrested?

A. No, sir.

Q. Do you know of the fact that one of your police officers attempted to arrest him?

A. No, sir.

By Senator Reyburn:

Q. Did you, at any time, attempt to arrest Ammon—any of your officers?

A. Afterwards. Will I give you the particulars of that, sir—the time that I went down with the policemen to protect that ten miles of freight, and again to bring up the first lot.

Q. What day was that?

A. I cannot tell you.

Q. That was after the riot?

A. Several days.

Q. I mean the Friday morning when the trouble first commenced in Allegheny?

A. It was Thursday or Friday before the troubles over here—Thursday or Friday. You asked me about something on Friday?

Q. Yes?

A. No. I only went down there at that time. I think that is the only time I ever saw him, except after that, the day he was arrested.

Q. Did he tell you that one of your officers had attempted to arrest him, and he refused to submit, because he had not a warrant?

A. No; I don't remember that—because he hadn't a warrant. No, sir. I never heard of this thing, either through Ammon or the policeman. I know nothing of it at all. I don't believe it.

Q. Do you remember Ammon telling you this?

A. No; I do not.

Q. That you said in reply that that was right, and for him to go ahead?

A. That's stuff. That ain't my style.

By Mr. Means:

Q. Allow no man to arrest him?

A. Oh, no, sir.

By Senator Yutzy:

Q. At any time sent policemen to arrest Mr. Ammon, in preserving the peace?

A. I sent police down. I sent a note over to—I am not sure whether I sent the note over to see John McCauley, and he needed protection away down the road. I understood that the men would protect the property as long as they could, and when they were worn out and weary, they would send me word, and I would put out a police force to protect the city. This was several days after that. I did so. I sent them ten or twelve miles down the road. I had no authority to do it with the city police, but they agreed to pay, and have since paid, an improvised police force.

Q. The railroad men, although they were on a strike, did they show any disposition to be riotous or lawless, and destroy property?

A. Not at all, sir. They told me at this Sunday meeting, that they would do all they could to protect the property until the matters were settled in regard to wages, or something, with the company.

Q. Did you have any information, or make any arrests of them—interfere with them?

A. No, sir. They said some of the trains were going through which were stopped. I didn't make any arrest before. I cautioned them prudence and carefulness, and the danger and the risk they were running. The men pledged me what they would do to protect the property, and they did it manfully. One night they came up and said they were worn out, and I had the promise of a hundred men to come down from off the hill, and the men didn't come, and one of the messengers came from the railroad men, and I told him I was very sorry, I had been promised one hundred men, and they didn't come, and I would have to ask them to go back again that night, and they did it, though worn out, with a positive assurance from me that I would see that they were relieved the next day.

Q. Those were railroad men?

A. Those were railroad men.

Q. Ammon applied to you for assistance?

A. I never saw Ammon, but that one day.

Q. Never applied to you for assistance at all?

A. No, sir; I don't believe he did.

W. D. Ross, *sworn*:

By Senator Reyburn:

Q. Where do you reside?

A. Allegheny City.

Q. What was your occupation in July last?

A. I was chief of police.

Q. Of Allegheny City?

A. Yes, sir.

Q. Were you present during the conversation between Mayor Phillips and Robert Ammon, or Boss Ammon, or Bob Ammon, or whatever his name is?

A. I was present a part of the time. I was not there all of the time.

Q. Be kind enough to state what your recollection of the occurrence is?

A. Well, I was on the scene of action down there before Mayor Phillips came—had been called down. I think I was in Pittsburgh when the word came to the office that they wanted some men down to help disperse this riot—preventing cars from going out, and, I think, took fourteen or fifteen men down, and found a large crowd. I suppose there was two hundred or two hundred and fifty persons there, with an apparent determination to prevent the cars from going out, and showing the disposition manifested by them. They were armed with links and coupling pins, and a great many of them had clinkers. I saw that they were determined to make resistance, and I talked to Mr. Ross, the dispatcher, and told him to send down a car, and

see if they could get through. I told Ammon we had come there for the purpose of stopping any violence that might be offered to the railroad employés, and we were informed that a crowd was there to offer resistance, from this side of the river—from Pittsburgh. His answer was, "Not a God damn bit of it." He says, "We are all employés of the Fort Wayne road. We have been discharged from the employment, and there are no Pittsburghers here, and we don't intend to let one pound of freight go out of this yard until our terms were complied with." And when I told him it was a pretty high-handed measure, or something like that, to take possession of the railroad and its property, and they would get into trouble, "Well," he said, "we might just as well die here as be starved to death," and he told me that they had this thing organized all over the country. It was not confined to Pittsburgh. It was North, South, East and West, and he had been in possession of the facts; and, says he, "I could stop it as quick as that," snapping his fingers, "by telegraphic dispatch that our terms are complied with." I had instructed a dispatch man to send down a locomotive and cars, and see if they could pass us, and when the cars came down Ammon stopped it, says, "Now is our time to strike," and he stepped up in front. The whole crowd rushed with him. They stopped the cars and mounted the locomotive, about two or three with him, and ordered them to return to the yard. They had no business coming out, and they reversed their engine and went back, and I saw there was no use in attempting to make an arrest. There was ten to one against us, and as determined to not be arrested as we would be to arrest them. When the cars ran back, I says, "Now, Ammon, you have taken possession of the road by violence, and we don't want to offer any resistance. The question will be determined by law whether you are going to hold it, or whether the railroad company is entitled to it." I thought the best way was to act with persuasion, and, says I, "You will be held responsible. If you have any right to do this, it will be a matter to be determined by law. We don't want to see any violence offered." I told Ross that I did not think it was worth our while to attempt to arrest them.

Q. Told whom?

A. Ross, the dispatcher in the yard. While we were talking about it, Mayor Phillips came down, and I went over to talk to the mayor. I left Ammon, and I think I remarked to the mayor that we were not able to do anything, and then Ammon came up and began to talk with him. The mayor told him he had need to look out, he would get into trouble. Something of that kind, that was the remark I heard. The mayor talked to him, that it was a high-handed measure, or something of that kind—I could not say positively what—something to that effect. I heard Ammon say he could not help it. He had told the mayor about the same as he told me, that he was in possession of the knowledge of the whole fact—how it was got up. He went to talk to him and I left them, and I left them while Ammon was relating his connection with the matter.

By Mr. Means:

Q. Did you hear the mayor tell Ammon that he should have charge of the lower part of the city of Allegheny?

A. No, sir.

Q. Did you hear him tell him to resist any person that should attempt to arrest him?

A. No.

Q. Did not hear a conversation of that kind?

A. No; I talked to Ammon, and told him that he would be arrested; said I, "It is only a matter of time."

Q. You told Ammon he would be arrested?

A. I told him that he would be arrested. That it was only a matter of time. We didn't want any property destroyed, if we could prevent it.

Q. What was Ammon's reply to you when you told him he would be arrested?

A. He said he would die before he would be arrested—that was his determination, he said. It was a matter of life and death with the men, and they were willing to stand out—have their terms complied with before they would surrender.

By Senator Yutzy:

Q. Did you or any one else attempt to arrest him at any time during the riot?

A. No; I don't think we did do anything of the kind. I was down several times and saw them still in force there, but my object was more by persuasion to keep them from committing any overt acts of violence, further than to stop trains. I did not want to see any property destroyed or any lives lost, and I knew that the best policy was to counsel peace and keep from getting into a fight with so small a force as we had. There were more than twenty, I suppose, to one of us, and then, besides that, they had the sympathy of a number of the men that were with us—probably of our police officers. It was with a good deal of difficulty that they would even consent to go down. I had to threaten to put them off the force, but I concluded we had better counsel peace, and keep from getting into trouble with them by arresting them.

By Mr. Means:

Q. Did you hear any of the citizens have any conversation with the men when you were there, counseling them to hold it?

A. I did hear one of the citizens.

Q. Just state to this committee what that citizen said to Mr. Ammon?

A. That was a man by the name of Hahn. He made a remark of this kind; says he: "The railroad men are right." That was in Ammon's presence. I don't know whether he directed his remarks to Ammon or to me. Says he, "The railroad operators are right, and I will give as much as I can afford to sustain them and help them hold out."

Q. What did you say that man's name was?

A. His name is Hahn. He is a grocer.

By Senator Yutzy:

Q. You say he has a grocery store?

A. Yes, sir.

Q. Where?

A. Down in the Sixth ward of Allegheny City. That was the only remark that I heard.

By Mr. Means:

Q. Do you know of any understanding between the railroad officials and this man Ammon, that he should run that railroad in their interest?

A. No, sir; I was down there—I won't be too certain what morning it was. They had taken possession of the telegraph office.

By Senator Yutzy:

Q. The strikers had?

A. The strikers had, and there appeared to be an arrangement to operate. The company wanted to put one operator in, and Mr. Ross was negotiating with a party—wanted to put in an operator to act in concert with the others, that all telegraphic dispatches that should come over the line might be under the supervision of the two, and the company would select one and they the other. That what business was done, running what little freight was allowed to come through the telegraph wires, would not be obstructed. And Ammon made that proposition. He got up on a barrel or bench of some kind at the telegraph office, and to the crowd he stated what proposition was made to them, that the railroad company wanted to put another man to operate along with others.

Q. In concert with the other operator?

A. Yes; and says he, "This is the proposition. Now we have got the matter in charge ourselves, and I think we are able to run it. We don't need the assistance of the railroad company." Says he, "It is for the men here to say whether they will accede to this proposition or not. For my part, I think we can control it ourselves, and if the strikers are in favor of accepting the proposition they would signify it by saying aye." They took a vote, and there was nobody said aye, and they took the negative, and they all cried no. He appeared to have control of the thing, and was running it, and all he had to do was to suggest or intimate what was desired, and they were ready to vote it.

By Mr. Means:

Q. Ammon and his party—did he accept the proposition from the railroad officials that they should have an operator?

A. No, sir; they would not accept it. They had the matter in charge, he said, and they would not accept it. They voted it down.

Q. Did Ammon say to this crowd, which he appeared to be a leader of—boss of—anything about the railroad officials asking him to run that road, take charge of it, and turn over the earnings of the railroad—railroad officials?

A. No; not that I heard of.

By Senator Yutzy:

Q. You speak of a proposition made by the railroad officials. Who made this proposition?

A. Well, it was Mr. Ross. That was their wanting to send some dispatches along on the road. Mr. Ross was dispatcher of the road, and they had taken possession of the railroad and telegraph office belonging to the road, and, as I understood it, put a telegraph operator of their own in there.

Q. Did he make this proposition of his own accord, or by the authority of the officials of the railroad company?

A. I could not say. I just said what Ammon said. Ammon mounted a bench, and he said the railroad company had made this proposition. Now, says he, "We have got charge of the concern, and we are capable of running it."

Q. Did you hear Mr. Ross make any proposition at all?

A. No, sir; It was Ammon's own statement.

By Mr. Means:

Q. Did Ross have any conversation with you as chief of police in regard the situation of things there?

A. Yes, sir. He wanted me to do all I could to keep matters quiet—keep them from committing any overt acts of violence, if I could.

By Senator Reyburn:

Q. Was there any disposition on the part of these men expressed to destroy property?

A. Well, I could not say that there was after I talked to them. The mayor had talked to them, &c. We counseled peace, and Ammon said, says he, "All that I am afraid of—we are going to hold the property. We will take care of it, we will protect it." I told him he was responsible for it. If he let it be destroyed the responsibility would rest upon him. I wanted to reason with him, as I seen he had control of the affairs.

By Mr. Means:

Q. Wanted him to realize the situation?

A. Realize the situation they were in, and make a more weighty responsibility on them, for having taken it by force, if they would let it be destroyed. I told him so. Says he, "All I am afraid of is, when the hands stop

work, they will hang around these damned doggeries and get drunk, and come in here and create a disturbance, and lead the thing into trouble." Says he, "If we just stopped them, I would not be a bit afraid of any property being burned." I told them they had just as good a right to stop doggeries as they had to stop a railroad, the rule would work both ways. If you could take possession of one class of property, why not take possession of the other. I talked with them, and I concluded I would go around and notify the saloons to stop myself. I saw it was the best we could do under the circumstances, and we did notify them, and they obeyed and stopped until the next Monday or Tuesday afterwards. I used a little strategy with them. I told them the mayor had instructed me to stop them, and under the law if they did anything to aid, abet, or encourage riot, they were responsible; that the sale of liquor might have that tendency, and they appeared to be cautious, and shut up their places.

Q. They shut up because you told them the mayor had ordered them; it was not this Boss Ammon?

A. No, sir; it was not Boss Ammon, it was Mayor Phillips and me had talked about that, and thought best to keep down riot in every form we could, under the excited state of affairs.

By Senator Yutzy:

Q. Did Ammon and his men who were acting in concert with them, make any effort to compel saloons from selling whisky?

A. No, sir; I don't think he did anything at all in the matter.

Q. You say that Mr. Ammon remarked, that he could stop all this rioting and strike by a single dispatch, if their terms were complied with. Did he say what those terms were?

A. He was going on to state the terms at the time Mayor Phillips came down, and the mayor arriving there he hadn't got through with his statement. So far as his statement to me was concerned it was, that the men that had been discharged would all be returned to their positions again, and

re-instated at the old wages, that double-headers should be taken off—he was going on making a statement of this kind when Mayor Phillips arrived and interrupted him. I don't know what all he would have stated. It was a part of it, that the men should all be re-instated that had been discharged, at their former wages, with an assurance that they would remain, and double-headers taken off the road.

Q. Did your force act in concert with the strikers in protecting the property of the Fort Wayne railroad?

A. We acted under the advice of Mayor Phillips, and we acted in concert, as a matter of course, in protecting property. We sent down men to watch the property and to keep it from being stolen.

Q. You assisted the railroad strikers, or they did so, in protecting the property?

A. They appeared to exercise a guard over it for one or two nights. I guess we had taken charge of the freight trains and set a watch over them, and then, when they gave them up we took charge of them. We sent police down, thirty or forty police, along the road where they had run them out to watch the property, and to keep it from being stolen and carried away.

Q. Was it a general understanding between your police force and these railroad men that you would assist each other in stopping any violence or destruction of property?

A. After they had——

Q. Taken possession of it?

A. Yes; there was an understanding, so far as I understood the situation of the case, the property had to be protected, and they were not able to protect it themselves, and they could not stand it, and when they were not able we protected it, and we had policemen down there by direction of the railroad company, to watch the property also. Under the circumstances we were placed in, we were disposed to do the best we could.

Q. Regardless of who it was that helped to protect the property?

A. Yes; that was the way I understand it.

Q. Coöperate with anybody that was peaceably inclined to assist you?

A. Exactly; and let the consequences follow.

At this point the sub-committee adjourned, until three o'clock, this afternoon.

PITTSBURGH, *April 6, 1878.*

The sub-committee met at three o'clock, at the orphan's court room, pursuant to adjournment. Mr. Reyburn in the chair. Present, Messrs. Reyburn, Torbert, Yutzy, and Englebert.

John I. Nevin, *sworn*:

By Senator Reyburn:

Q. Where is your residence and what is your occupation?

A. My residence is Sewickley, and editor of the *Leader*.

Q. Were you editor of the *Leader* at the time of the railroad strike in July last?

A. Yes, sir.

Q. Were you editor from the 19th to the 24th July?

A. Yes, sir.

Q. Be kind enough to look at these papers during that time, and see if they are your——

A. If I was editor.

Q. Take from the 19th of July on, and take the editorials—whether they were your articles?

Witness identifies editorial headed "Talk of the Desperate," July 20; also, editorial headed "No Violence," July 21; also, editorial headed "Fatal Rashness," July 22; also, editorial headed "Law and Order," second edition, July 23.

The editorials are as follows:

[Leader, July 20.]

THE TALK OF THE DESPERATE.

"This may be the beginning of a great civil war in this country, between labor and capital, that is bound to come. It only needs that the strikers at Martinsburg, or here, or elsewhere, should boldly attack and rout the troops sent to quell them—and they could easily do it if they tried—to set the spark to the magazine, and the explosion would follow at once. The workingmen everywhere, and of all classes of trade, are in the fullest sympathy with the strikers, and only waiting to see whether they are in earnest enough to fight for their rights. They would all join and help them, the moment an actual conflict took place. Against such an uprising, what would capital have to oppose? The militia? Why, have not we seen how the militia at Martinsburg fraternized with the mob; how at Wheeling only thirty men responded to the Governor's call to arms; how Mr. Garrett, in his appeal to the President, acknowledges that the militia is in such full sympathy with the strikers that they were of no use at all? And do not we see, to-day, in the ridiculous response to the calls upon the Grays to turn out—a corporal's guard—that the militia is of no more use here? The Governor, with his proclamations, may call and call, but the laboring people, who mostly constitute the militia, will not take up arms to put down their brethren. Will capital, then, rely on the United States army? Pshaw! These ten or fifteen thousand men, available men, would be swept from our path like leaves in the whirlwind. The workingmen of this country can capture and hold it, if they will only stick together, and it looks as if they were going to, this time, sure."

"Of course, as you say, the capitalists.... Many of the unemployed would be glad to get work as soldiers or extra policemen. The farmers, too, might turn out to preserve your 'law and order.' But the working army would have the most men and the best men. The war might be bloody, but right would prevail. Men like Tom Scott, Frank Thomson, yes, and William Thaw, who

have got rich out of the stock-holders of railroads, so they cannot pay honest labor living rates, we would hang to the nearest tree. Honest incorporate management would be enforced, and labor would demand and receive its fair share of the profits that are made by means of it."

"But even if the workingmen should fail—even if so-called law and order should beat them down in blood—why, that would be better than starving. We would, at least, have our revenge on the men who have coined our sweat and muscles into millions for themselves, while they think that dip is good enough butter for us, and do not care whether our families get a living or not. We would inflict more loss on them than the last ten per cent. reduction would net them gain in ten years, and if we died in this cause, we would only end lives of degradation and misery. Civilization! You say we should endanger civilization, if we succeeded in enforcing our demands by violence! Well, what has civilization done for us? Better the times of the Conestoga wagon, when everybody lived fat, than these railroad times, when labor goes around begging. Better than both, perhaps, the time when every man had his own farm, or lived by his brow; they had enough to eat then, and did not have to work so hard as we do now. What care we for civilization that is grinding us down, down, down to starvation and nakedness by one ten per cent. reduction after another, and one doubling up of crews after another, until the workingman shall be the white slave of his employer, and work for his board, if he gets even that."

It is well that the community should know something of the ideas that are circulating among the strikers and their friends at this time; the hates, and hopes, and aspirations, and half formed plans that animate the more impassioned leaders of them, and therefore we give the above, which is a faithful re-production of what a representative workingman said on the subject this morning. It will be seen, that he is really a communist, and there is no doubt that communistic ideas have widely spread, even among the most respectable, and most thoughtful classes of American workingmen. There is no gainsaying either, that the picture this man draws of the hardship which the present business depression has subjected labor to in many cases is not exaggerated, and it is true, that the sympathy of nearly the

entire community, is with the railroad strikers in the present case, who are called to endure still another turn of the screw, which is cutting down their wages to the danger limit. Nor is it wonderful, that these men, contrasting their hard lives with the luxury and extravagance with which certain railroad men live, and the brutal disregard to their sufferings, which one of them is alleged to have shown, should be goaded to revengeful and bitter thoughts, and even desperate talk.

But when all these allowances are made, it still remains to be said, that threats of violence, of war, of communism, are worse than folly on the part of strikers or the workingmen general. Of one thing there is no doubt, and that is, that resort to violence will not accomplish its object. Widely spread as is the sympathy with the strikers, it is a fallacy to suppose that lawful force will not be found to put down unlawful force. There never yet was a case in this country, where mob violence triumphed in the end, however apparently righteous the cause in which it was invoked, and there never will be such a case, until the American people loses its strong instinct for the preservation, at all hazards, of the established law and order. The people will turn out and enforce the law, so soon as they really think that the law is in serious danger, and there will be no war, nor even a serious insurrection, but all will yield to the majesty of established authority. And then the violent will see that they have accomplished nothing, and that their vengeance has mainly re-acted upon themselves. It will be a long time, before, in this free country, the communists can achieve even such a temporary success, put down speedily as it was, in fire and blood, as the Paris communes of 1871.

We are glad, therefore, to see that these enthusiastic, extravagant, and bitter ideas are being met in the counsels of the workingmen themselves, with solid arguments for moderation, and the use of pacific means only. If the employés of the Pennsylvania railroad can prove, by simply abstaining from work, that the railroad cut down their wages too low, and cannot properly fill their places with other men, everybody will be very glad. If that would show that labor is worth more than was supposed, and the price of labor is the measure of the prosperity of the whole community. But if they attempt

to force the railroad to accede to their demands, and prevent any person else from working, they will only make their friends everywhere sorry for them, and insure for themselves a certainty of discharge from their positions in the end.

[Leader, July 21.]

NO VIOLENCE.

One point that the inbred lawlessness of southern blood had something to do with the greater recklessness of the strikers on the Baltimore and Ohio railroad, as compared with the conduct of the men in similar circumstances on northern roads, was dreadfully illustrated at Baltimore, yesterday. No sooner was the militia called out to go to Cumberland, than the street crowds assaulted them with stones; and no sooner were they thus assaulted than the militia opened fire with ball cartridge right into the midst of people, dealing destruction around. Contrast now the conduct of both parties here, where an equally determined strike is in progress. The strikers carefully protect the property of the different railroads that center here. In stopping the trains they merely "entreat" the engineers to step down and out, though of course the entreaty is equivalent to command. Everything is done decently and in order, and rumors about the burning of the round-house are baseless and apparently malevolent. All violence is discountenanced; even the communistic speeches of certain hot-heads, who have gone out to incite the men, have been coolly received, and the imputation that they are a mob in act of riot is indignantly denied. Towards the militia, the strikers preserve a dignified and manly attitude. They know that the soldiers had to turn out when ordered, and they entertain no hard feelings to any of them, except, possibly, toward one or two of the officers, whom they believe to have been officious about trying to get the Governor to order out their division. They mingle with the soldiers in perfect good humor, though without abating a jot of their determination. And this is not only the feeling among the strikers, but among all the people whom, though

they almost universally sympathize with the strikers, admit that the soldier boys are but doing their duty, and never dream of making that unpleasant duty more difficult by assaulting them with stones. On the other hand, the soldiers are equally determined to get through this matter without shedding blood, if possible. They recognize in the strikers men whom, if they do take an attitude in opposition to authority, are, nevertheless, hard-working, honest, and well-meaning citizens, who only resort to their present procedure from what they conceive a desperate necessity. They are men who are anxious to work for a living, but see, as they have, that living taken away from them, and who are making a desperate effort to prevent the reduction, which they believe will make paupers of them. There is no doubt at all that the soldiers will endure insult, and even stone-throwing, before they will shed blood.

But we do not believe that either insult or violence will be offered them. The strikers will confine themselves to the exclusive and more effectual plan of a passive and what may be called distributive resistance. If a large body of troops are stationed here, trains will be allowed to go out, but will be stopped at some other point, at Altoona, or Philadelphia, or Harrisburg, where the soldiers are not. In this way they can and probably will carry on a warfare that will break no bones and shed no blood, but will yet be very difficult to subdue.

We are proud of both our workingmen and our soldiers that have thus far got along with no bloodshed, and with no casualty except one black eye and one swollen nose. We hope profoundly that the whole matter will be settled, one way or the other, without any more violence, and it will and can be, too, if our law-abiding people will sustain the reputation they have thus far merited.

[Leader, July 22.]

A FATAL RASHNESS.

A Philadelphia regiment which came here in the name of law and order has been swift to shed blood. Not two hours in our city, and before a hostile shot was fired at them, they have stained our hill-sides with the blood of ten or twelve men and children. Most of them were spectators, drawn by an unfortunate and innocent curiosity to their deaths. The wailing of women and children, the deep cursing of outraged men, and the outspoken indignation of an entire community, swell the chorus of condemnation against the officer or officers of the First regiment of Pennsylvania militia, who assumed the fearful responsibility of that hasty command to fire. We desire not to be unjust to the strangers. The strong current of public feeling should not prevent us from upholding them in their terrible deed, if the facts sustain them. Even now we will say that their side of the story may, perhaps, somewhat modify public opinion, when it is known. As appears elsewhere, the *Leader* tried to obtain their version of the affair officially, but in vain. Those officers who were seen going along the line striking up the rifles of their troops with their swords and otherwise endeavored to stop the effusion of blood, deserve as much credit as that officer who was seen waving his sword and encouraging the men to keep on with the butchery deserves censure.

But making all possible allowance for the Philadelphians, it does still appear that they acted rashly, importunately, deplorably. The crowd hissed them, but that was no reason for shooting. They hooted and jeered them, but all crowds do that, and true soldiers are not disquieted by such demonstrations. Men on the crossing caught hold of their bayonets, and half jocosely expostulated with the soldiers. That was reason for clearing a passage with a quiet forward movement with the bayonet, which would have been effective without hurting anybody. It was still no reason for firing—the hurling of a few stones from the hillside, which seems to have been the provocation that caused the massacre—but neither was that for men who came here to enforce order, it is true, but should have made up to endure much before shedding the blood of honest workingmen, who, even, if wrong were only misguided and had thus far conducted themselves with wonderful calmness and respect for order—neither was sufficient reason for beginning a fire of musketry upon the people, and change, what was before

but a peaceful though earnest conflict between the railroad men and their employers, into a scene of battle, murder, and sudden death.

The railroad officials do not seem to be responsible for the massacre. They appear to have evoked a power that they could not control, and so dazed and shocked at the consequences. Mr. Pitcairn's expression, "God only knows what will come of it," well shows this. Mr. Thaw, early in the day, expresses himself as willing and anxious that anything, everything, should be yielded up to the men rather than that blood should be shed. But it was too late. The collision was then inevitable, and it came.

What the end will be cannot now be known. At this writing the air is filled with rumors of fire and war. The troops of the State are concentrating here from all sides to the support of the Philadelphians, now cooped up, apparently terror-stricken, in the fire-threatened railroad round-house, and surrounded by an ever-increasing mass of armed citizens. It is possible that further bloodshed may be averted. The very free vent given to the excitement to-night, in arming and marching about with banners and guns may explain it, and give time for sober second thought to assert itself. The reasonable speeches at the Southside meeting, show that the best spirits among our workingmen are laboring to prevent riot and disorder. Time works for peace. But it is useless to disguise that the situation is very grave and growing graver, and that the men who were swift to shed blood will have the heaviest responsibility to answer for.

[Leader, July 23.]

LAW AND ORDER.

The citizens of Pittsburgh are rising to-day to defend themselves from the threatened revolt against law and property. This is a ringing answer to the tones that already come from other cities, that Pittsburgh is honored in the manhood and public spirit to put down mob law. The people are responding to the mayor's call by thousands. Let not enlistments slacken, however.

Now is the time to display such a force that resistance will be seen to be in vain, and effusion of blood prevented. We are proud to say that the Nineteenth and Fourteenth regiments of militia are redeeming themselves from the fault that they committed on Saturday, and are now mustering strength and will. By night this issuing would be and will be decided, and we hope by Harrisburg and Allegheny efforts alone.

By Senator Yutzy:

Q. Who was your reporter that reported the occurrences of the riot during Friday, Saturday, Sunday, and Monday?

A. Well, we have a corps of about five or six regular men, and during these three or four days, we employed a great many others. We gave page after page of matter about, and it would not have been possible for one or two or three or four to get it up. I can give you the names of a number of them. The man whom we had stationed close to the round-house during Saturday night, was named Mr. George Vickers. He is now, I think, on the *Philadelphia Times*. Mr. John Haslet and Mr. William Clark, and a number of others. Mr. Henry Myer was assisting us some.

Q. Had you more than one edition on that Sunday of the riot?

A. Yes. Had three editions.

Q. They are all on file, are they?

A. Think they are, ain't they?

Q. Will you please examine this article, and say whether you are author of it. [Indicating article of July 20, headed "Let them Go."]

A. Yes, sir.

The article referred to is as follows:

[Leader, July 22.]

LET THEM GO.

To the workingmen of Pittsburgh: In the name of the whole people of Pittsburgh we make an appeal for peace. There has been bloodshed enough—far more than enough. The workingmen have triumphed over the soldiers who rashly opened fire upon them, and there is now nothing more to fight for. Now is the time to show they deserve victory by proving themselves good citizens, refusing to prolong a slaughter that is a mere useless butchery. The Philadelphia militia, however rash, however boastful, are yet men who thought they were obeying the call of duty. There were undoubtedly roughs among their number, who gave an evil character to the regiment; but there are many good men among them, who simply obeyed orders; even when they fired their pieces they obeyed orders. Now that their point has been gained, we beseech our people not to sully their victory with the further shooting down of these men, who only seek to escape. To continue to hunt them down in their retreat on the north side, whither it is said they have gone, is to stain the green fields of our suburbs this bright Sunday morning with useless effusion of blood. To do this would only be to cause a revulsion of feeling, and the sympathy which to this point has been altogether with the strikers and their friends, and we confidentially appeal to them, that having gained everything they fought for, they now exert themselves as nobly to prevent excited outsiders from taking advantage of their triumph to shoot men, when they only want to get away.

Since writing the above it appears that the bulk of Philadelphia have got away from Sharpsburg, and are scattered in clouds through the hills. It is believed that they will now escape in safety, though it is possible that some of them may be yet followed up and shot down. It is a matter of thankfulness that they have escaped, the victory is complete, and that a great final massacre has been avoided. Let us now decently and solemnly mourn our dead, and mourn in calmness and order.

By Senator Reyburn:

Q. Have you any knowledge of the causes leading to this strike?

A. I have no special knowledge, no, sir, except what common rumor, and what was published about the matter. It originated out of the organization of the Trainmen's Union, precipitated in Maryland, and the particular special cause here, as I understood it, was the double-header grievance on the Pennsylvania railroad.

Q. Have you any knowledge as to the necessity of calling the military to this place?

A. You mean Philadelphia military?

Q. Yes; I mean the military. I will say in explanation that in our resolution we are required to inquire into the necessity of calling out, and the conduct of the troops; and as a public man you would be apt to know, and able to give an expression of opinion that would be of value?

A. I could only give my judgment about it, I suppose, not being in the service.

Q. That judgment could be expressed as a citizen, and would be formed from facts, I suppose, coming to your knowledge?

A. It seemed to me at the time that the military need not have been called so soon. I was under the impression at the time, strongly, that the mayor, with policemen, might have quieted the trouble—and, perhaps, would have done so if the military had not been brought so promptly on the scene—and it seemed to me, also, that bringing Philadelphia troops from a city that Pittsburgh has always felt a kind of rivalry toward, was calculated, perhaps, to inflame feeling here rather than to allay it. I remember there were rumors that Saturday evening—whether authenticated or not, I do not know—that the Philadelphia men had said that Pittsburgh troops had failed here, and they would clean out the rioters. I don't know whether they said it or not; but if they did not say it, it shows just as well the feeling of jealousy with which their presence was regarded, and they asserted that feeling during that whole Saturday night, that in attacking those Philadelphia troops they were cleaning out Philadelphia men. They had come here to interfere in

what might have been settled by local authorities, and from that point of view it seemed to me injudicious.

Q. Do you believe that the local authorities could have preserved order, and finally quieted the strike, without any loss of property?

A. I believe that they could have preserved order until the Governor would return, and I think that his presence would have prevented any outbreak. The fact that the Governor's proclamation calling out troops was gravely doubted here—everybody knew he was out of the State a long distance—had, perhaps, a good deal to do with the disorderly feeling. I do not believe that the local authorities could have eventually put down the riot; but I think they could have preserved order here, and kept things in tolerable order until the Governor himself had arrived here. I think if Governor Hartranft had been here on that evening, the collision could have been avoided.

By Senator Yutzy:

Q. I see, in this editorial you speak of, the "sympathy being with the strikers and their friends?"

A. There is no doubt that the sympathy of the people here was strongly with the strikers, before any act of violence was committed.

Q. Before the burning of the property?

A. Yes, sir; and the idea spread, after the collision had taken place, that it was all owing to reckless firing, without orders, which kept the sympathy with the strikers until the actual destruction of property commenced.

Q. In your opinion, was the sympathy of the citizens, and people generally here in the city, with the strikers when they made the assault on the troops in the round-house and driving them out of the city?

A. No, sir; I don't think that. I think the mass of our citizens then were not expressing sympathy with anybody—just paralyzed.

Q. Here is one expression: "The workingmen have triumphed over the soldiers, who rashly opened fire upon them, and there is now nothing more to fight for." Did the people, in your opinion, justify these men, called workingmen, in driving out the troops and triumphing over them?

A. I don't think they did. No, sir; that is not the spirit of that article, either, which is an appeal for the cessation of any further hostilities. At that time, of course, it was said that it was the workingmen entirely that was fighting—the railroad men—and they were in sympathy with them, the railroad strikers and their friends.

Q. There is another sentence: "Now is the time to show they deserve victory, by proving themselves good citizens, and refusing to prolong a slaughter that is mere useless butchery."

A. That is to show that they had deserved the victory they had got, by not using it any further.

Q. The expression is not used to justify them so much as to allay further bloodshed?

A. Yes; that is the whole spirit of it. When that article was written, it was supposed that General Brinton's troops were fleeing out into the country. A large mob was pursuing them, shooting them down in every direction, and nobody knew where the pursuit had stopped, perhaps not until they were all exterminated. We could not get at their side of the story, but it was supposed that they were even more demoralized than perhaps they were. That article was written for the express purpose of trying to stop pursuit, to try to allay the excitement.

By Senator Reyburn:

Q. You had no intention of contributing any to the excitement by any inflammatory article?

A. If I had I certainly would not have asked leave to let them go.

Q. Did you have any reporter with the troops as they retired from the round-house and went out Penn street?

A. We had no reporter at any time with the troops. You could not get any man to them. We had a reporter right in sight of the round-house. He saw the retreat, and followed out some distance towards Lawrenceville—towards the arsenal. That was Mr. George Vickers, the man I spoke of before. I, myself, was out there early in the morning, to look at the situation at the round-house. There was still some firing then.

Q. Did you indicate all the editorials you wrote during the riot on that subject in these papers?

A. I think I have indicated them all.

James W. Breen, *sworn*:

By Senator Yutzy:

Q. You have no regular file of your *Globe*?

A. No, sir; not bound. I gave the sergeant-at-arms two copies.

By Mr. Reyburn:

Q. What is your occupation?

A. Journalist.

Q. You reside in Pittsburgh?

A. Yes, sir. Thirteenth ward.

Q. Did you reside in Pittsburgh at the time of the riots, in July last?

A. Yes, sir.

Q. Is that a copy of your paper for that date? [Indicating.]

A. That is a copy of the extra. The regular edition—I couldn't get a copy for the file. It ran out early in the day. That has all that pertains to the riot in it.

Q. Is this article written by you? [Indicating extra, July 22, article headed "First Blood."]

A. You mean the entire article?

Q. More particularly that following the heading?

A. My impression is that it was; but it was made up in detail at different times and by different parties.

Q. Would you call that an editorial?

A. It is a local introduction. The only editorial that was in the paper during the riot is in that issue of the paper for the following Sunday, July 29—that is the only editorial that was in the paper.

Q. These head lines are also yours?

A. Yes; I make the head lines.

The article referred to is as follows:

[Sunday Globe Extra, July 22.]

FIRST BLOOD.

SEVENTEEN CITIZENS SHOT IN COLD BLOOD BY THE ROUGHS OF PHILADELPHIA.

THE LEXINGTON OF THE LABOR CONFLICT AT HAND.

THE CITY IN THE HANDS OF THE STRIKERS.

ARMED BANDS PATROLLING THE STREETS.

THE CIVIL AND MILITARY AUTHORITIES POWERLESS.

BITTER DENUNCIATIONS OF SHERIFF FIFE, GENERAL PEARSON, AND THE PENNSYLVANIA RAILROAD AUTHORITIES.

THREATS THAT THE PHILADELPHIA SOLDIERS WILL NOT BE ALLOWED TO GO HOME ALIVE.

THE FOURTEENTH AND NINETEENTH REGIMENTS DISBANDED AND REFUSE TO FIGHT, AND MANY GIVE THEIR ARMS TO THE STRIKERS.

THE PHILADELPHIA TROOPS PENNED IN THE ROUND-HOUSE AND SURROUNDED BY 20,000 STRIKERS.

THE SLAUGHTER OF THE INNOCENTS.

MILES OF BLAZING CARS.

THE STRIKERS HOLD THE FORT AND THE FREIGHT.

[Cut of man brandishing a bowie knife.]

Now that the strikers' contest has reached its crisis, and the military and civil are powerless to preserve order, and the blood of innocent men and children, shot down by Philadelphia roughs, cries aloud for atonement, it may not be amiss to place the responsibility for this awful condition of things where it belongs. The strikers have manifested, all along, an unwonted forbearance. There was no overt act of violence. The civil process had not been legally exhausted or properly invoked, and Sheriff Fife's misstatements and lying bulletins, and General Pearson's indiscreet bravado, only added fuel to what was already an overmastering flame. In a city where nearly every man is a worker, and where the mercantile community was bitterly hostile to an odious corporation, which had ground its life blood out by discrimination, the folly of bringing a few thousand Philadelphia troops to overawe the one hundred thousand workingmen of the city ought to have been apparent to the dullest observer. The little junta of railroad officials who wrote out the Governor's proclamation at the Union Depot hotel, and their indiscreet buncombe in disregarding Mr. Thaw's advice and cultivating an unnecessary issue with the strikers, and the culminating bloody blunder, which sent thirteen innocent victims to their graves, all show how such martinets as Cassatt, Scott, Gardiner, &c., fail to comprehend the situation. With bands of five and ten thousand men

patrolling the streets, the rumors and gun-works sacked, the booming of cannon, and the sharp crack of the strikers' muskets in front of the city hall, the threats of vengeance against the military and the railroad authorities, and the murder of the innocents, all this is directly attributable to the blunder of the sheriff and the indiscreet bluster of the military and railroad authorities, who imagined, because they had a few troops at their back, that they could defy the lightning. The feeling against the Philadelphia soldiery, which seemed to have acted with unseemly precipitancy, was very bitter, and threats were made that they will not be allowed to go home alive. Every law-abiding citizen must deplore extremes, but in a contest like the present, so long as labor, without violence, merely asserted its right to live, it was entitled to the sympathy of every worker in the hive of human industry, and the cowardice and imbecility of the railroad sharks, who sought to overawe all this community by imported bummers, met its proper rebuke. Contrast, in all this crisis, between the mock heroics of the Pennsylvania railroad squad, with its plotting and counter-plotting, and the clear-headed attitude of the Baltimore and Ohio railroad, who wisely remained passive until the storm spent itself, shows the difference between the statesmanship of Garrett and the poppy-cock of Scott. As the case stands, every one of the military should be arrested and tried for murder, and their abettors taught a lesson not likely to be soon forgotten.

By Senator Reyburn:

Q. What reason had you for saying that "seventeen citizens shot in cold blood by the roughs of Philadelphia?"

A. From the information that they fired on the populace without orders, and without justification, so far as the information went at that time—it was received to that effect—that they had not fired on the mob, who were in front of them obstructing the track, but fired on the unarmed populace on the hill side.

Q. What do you mean by Philadelphia roughs?

A. That was the expression used, that parties fired on the people without orders, and acting as roughs—firing recklessly, and without orders, and on people who were not firing on them.

Q. Did your information at that time lead you to suppose that there had been no attack made by the mob?

A. Yes, sir.

By Senator Yutzy:

Q. Did you depend upon your reporters for the information upon which you wrote?

A. Yes; largely. To some extent on such information as we could get outside.

Q. Were you on the ground where the firing took place, on Twenty-eight street, at the time?

A. No, sir; at no time on the ground. I had a reporter sent to Torrens station early in the evening. The idea at that time was that that would be the vital point; there was where the trouble was going to be. Colonel Guthrie was there with the Grays, and it was supposed to be the real point. It turned out afterwards that the trouble was down at the round-house. I got my information from sundry sources.

Q. Had you a reporter there?

A. No, sir; I had no reporter, but I had parties who were out there and gave me information that was supposed to be intelligent. At the time, they thought that the trouble would be at Torrens station, and I sent parties there, and there was no trouble there. There was no news from that point. The reporter was detained there until very late in the night.

By Senator Yutzy:

Q. This heading here of threats that the Philadelphia soldiers will not be allowed to go home alive—where did you get that information from—that there was such threats?

A. Those threats were made very freely on the street.

Q. You heard them yourself?

A. Yes, sir.

Q. Do you know any of the parties that made those threats?

A. Oh, yes. I couldn't say. I must have met a thousand people. The streets were blocked with people. I couldn't name anybody specifically.

By Mr. Means:

Q. You say you met a thousand people making threats?

A. No; I say I must have met a thousand people on the street—not a thousand making threats.

By Senator Yutzy:

Q. Here is another expression: "The Fourteenth and Nineteenth regiments disband, and refuse to fight, and many give their arms to the strikers." Was that the case?

A. That was the information at that time.

Q. Was it verified after further investigation?

A. I think it was pretty well ascertained afterwards that a portion of the military threw down their arms. I think that was developed afterwards.

By Senator Reyburn:

Q. In this article, you say that there was no overt act of violence. What do you mean by that?

A. There was no overt act of violence committed by the mob at the time it was written. I didn't consider that an overt act of violence to be standing on the railroad track—that refers to a physical effort.

Q. Do you mean, that the mob had a right to stand on the railroad track and take possession of the railroad track, and refuse to allow traffic?

A. No, sir; it was written from this standpoint: that the military, instead of removing the mob who were in front of them, and who were obstructing traffic, fired on the populace on the hill side who were unarmed and spectators, and were not parties to the conflict.

By Mr. Means:

Q. I suppose you mean that there were no demonstrations to destroy either life or property?

A. Yes, sir.

By Senator Yutzy:

Q. Had you gone to any trouble to ascertain the truth of the facts as they really occurred before the fire by the mob, before you wrote this article?

A. We sent reporters to the point where we supposed the trouble would be, and when we couldn't get reporters, I got other parties to go to the point, and got them to report the facts—used every proper effort to get at the truth of the matter. It was a hard matter to get reporters that night, it being Saturday night, and the daily reporters being all off and at home, it was very difficult to get them. I had to improvise by getting parties outside to give the news, the best way I could—outside of the regular reporters.

Q. When you wrote this article, you were fully of the opinion and believed that the mob had not shown any violence towards the troops?

A. Yes; that was my information at the time of writing that article.

Q. Did you get your information from one of these reporters?

A. No; the reporters didn't report until long after midnight. I got that information on the street. Some of the reporters sent out, found it difficult to get back at all in consequence of obstructions to travel—street cars stopped, and difficulty in getting in.

Q. You say here, the civil process had not been legally exhausted or properly invoked. "Sheriff Fife's misstatements and lying bulletins, and General Pearson's indiscreet bravado, only added to the fuel to what was already an overmastering flame." What do you mean by that—the civil process had not been exhausted?

A. I understood information was made before the mayor first, and that instead of the parties being arrested, that arrangements were being made for the arrest of the leaders of the riot peacefully and without bloodshed, and by that means the backbone of the outbreak would have been broken. Instead of that, the warrants were taken up to court, and bench-warrants were given, and then they attempted to arrest them by the aid of the military, and the military failed. So far as regards Fife, the information was at that time that he had not exhausted his process. Had not called a *posse comitatus*, and hadn't taken sufficient number to go out there and indite a proclamation such as he had indicted, or such as was written for him. My information was, that it was written by the Pennsylvania Railroad Company officials.

By Senator Reyburn:

Q. What information led you to believe that this proclamation had been written by the Pennsylvania railroad officials?

A. I heard it in a number of instances—I cannot exactly recall from whom—that the telegram had been written by somebody for the sheriff. It came in the usual course of news. I forget now from whom, and I think it was repeated in most of the papers at the time. The impression was that the sheriff had not exhausted his powers before calling on the military, and that the matter had been taken out of the hands of the mayor, and given into the hands of the military with undue precipitancy.

Q. Do you know that the mayor had been called upon to furnish a police force, for the protection of the railroad?

A. Yes; that was the information. I know that the police force was depleted to at least one third of its original force, and it was very difficult to get policemen to go in for a day, or a few hours, at the risk of being shot or killed for one day's pay. There was great reluctance on the part of policemen to go in on that plea.

Q. You say "the little junta of railroad officials, who wrote out the Governor's proclamation, at the Union Depot hotel." What reason had you for writing that? Had you any reason to suppose, or did you know that this proclamation had been written by the railroad officials?

A. I didn't see them write it; but the information was, at that time, that the proclamation was written in the Union depot. It turned out afterwards, it was written by the Governor's private secretary, Mr. Farr, I believe. That was not the information at that time. It was known, however, that it was not the Governor's proclamation, and it was the common opinion that it was written by Pennsylvania railroad officials.

Q. You mean common rumor?

A. Yes; in the excitement of the time, it was very difficult to get accurate information. Officials couldn't be found at their positions, and it was very difficult to get people to go—had to take it just as you could.

Q. Is it not characteristic of newspaper men to gather up all the information that they can, even if it is flying reports on the street, and give as near the truth of the matter as you can? Is that not characteristic of newspaper men?

A. Yes; so far as could be gathered.

By Senator Reyburn:

Q. You don't mean to say that newspaper men—an editor—will sit down and write an article on nothing but common street rumor, without taking proper steps to verify these facts, and see whether what they allege is true?

A. You cannot judicially prove everything before it goes in a newspaper, and the sources of information were stopped. It was impossible to see any railroad officials—most of them had left town.

Q. On Saturday?

A. Yes, sir.

Q. Was not Mr. Cassatt and other railroad officials at the Union depot through Saturday afternoon and evening?

A. I think not, sir; if they were, they were penned up, and not get-at-able.

Q. Couldn't you get at General Latta, and wasn't he there?

A. I don't know whether he was there. You speak about street information when that information coincides and comes from many quarters and many sources, it was reasonably something to pass upon.

By Senator Yutzy:

Q. That article was written before the burning took place, I suppose?

A. Yes, sir.

Q. I believe you have identified this paper, and this editorial, entitled "Military Mob?" Did you write that?

A. Yes, sir.

By Mr. Means:

Q. Mr. Breen, in your opinion, was the sympathy of the citizens of Pittsburgh with the strikers, when they first struck and quit work?

A. Very strongly with the strikers, but not with the mob.

Q. I am speaking of the strikers—of the railroad employés?

A. Yes, sir; very emphatically; both on the part of the business community and the other portion.

Q. Do you know of any business men in the city of Pittsburgh that made any proposition to the strikers in the way of support, furnishing them provisions, or taking care of them while they were not employed on the road?

A. There was some talk of that kind at the time, that Mr. Jenkins and Mr. King had proposed to furnish something or other.

Q. I don't wish to be personal in this matter; I just wish to know of any parties that proposed to these strikers to give them support?

A. I know as in the case of this other knowledge, that it could not be judicially proved at that time as a fact, but it was common rumor and talk that certain gentlemen had proposed to give provisions to aid the strikers.

Q. Do you know, of your own knowledge?

A. No, sir.

Q. But it was common rumor that the citizens of Pittsburgh were in sympathy with the strikers?

A. With the strikers, yes, sir; I don't know that there was any doubt of that.

Q. You don't know, then, any particular man or Pittsburgh parties who offered aid and comfort?

A. No, sir; I heard parties' names mentioned, but as they afterwards disclaimed it, I suppose there was nothing in it.

Q. Have you any knowledge of the causes leading to the strike?

A. Double-headers, and the issue between the Trainmen's Union and the Pennsylvania railroad. That was the primary cause, as I understood it.

By Mr. Means:

Q. These parties that reported to you information from which this article was written, were they railroad men or were they citizens of Pittsburgh?

A. Citizens of Pittsburgh.

Q. From their reports then to you, you wrote this article?

A. Yes; from the aggregate reports this article was written.

Q. Were these business men, or were they laboring men, or what were they?

A. I couldn't exactly classify them. I think they represented all classes. I think the entire sympathy of the community, mercantile and otherwise, was with the strikers up to the time of news of violence.

Q. During the destruction of railroad property, was there any demonstration on the part of the citizens to subdue this riot, or did they begin to realize their situation after it came to the destruction of individual property?

A. I think they sympathized fully with the strikers up to the point of burning and pillaging, and after that began there was a re-action in public sentiment.

Q. Was that so far as the railroad company was concerned, or had they come down to private property?

A. I don't exactly understand your question.

Q. Just what I want to know is this: Did the citizens of Pittsburgh think that the strikers were doing right, as long as they were destroying railroad property?

A. Well, I don't think they thought that exactly, but they didn't make any attempt to stay the conflagration or the fire.

Q. As soon as it came down to individual property, then what?

A. Then, I think, even before there was an effort made to get up a citizen's committee, and I think it was a failure; and I think only four responded to go out and assist in that.

Q. When it came down to individual property, then what?

A. Then, of course, there were more active efforts made by the authorities, and by parties living in the neighborhood.

Q. Did they seem to be general or just local?

A. No, sir; it did not seem to be general.

Q. Just local?

A. Just local.

Q. And then, if a fire was in the Sixth ward, the people of the Sixth ward or the Eighth or the Tenth or the Twentieth ward, or wherever it was, they would want to stop it, but the adjoining ward did not appear to take any part?

A. The fire was at Grant and Washington street, immediately in the neighborhood of the depot, and, of course, they used every effort possible, but I do not know, outside of the official departments, that anybody from any other quarter of the city was endeavoring to quell it—the firemen and police department, of course, were there, so far as I can learn, but they were comparatively powerless, on account of the size of the mob, and the area of territory they covered. I wish to make a remark here concerning the expression, "shooting down innocent citizens." That remark was intended to apply, and does apply, from reading the context, to parties on the hill side who were mere spectators, and not active rioters in any sense. If the military had cleared the track, and used proper force in clearing the track, I think they would have been justified, but they didn't even shoot the mob in front of them. They didn't fire into that crowd, but fired into an innocent crowd on the hill side, some of whom were in no sense rioters, and some of whom lived on the hill side. There was a small boy next door to me, was fired at and shot in his lung, who was taking some clothes to his brother, who was in the Fourteenth regiment; a boy about ten years of age, and he was nearly dead for several months. He finally got over it. This class of people here

referred to, who were shot at on the hill side, were not rioters or participants in the riot.

Q. You say they were fired at. Were they not hit accidentally?

A. The information at that time, and, I think, the testimony since, showed that they were fired at an angle with the hillside. The hill ran up there rather abruptly, and the volley took effect there where these people were looking down. I remember a few hours before that, parties had said that would be a good place to see the trouble. The appraiser of the port, here, Mr. Chandler, sent his boy there, that day, and says, "Don't you go down on the track, but go on the hillside; you will be out of harm's way." It turned out afterwards that was the very place to be in harm's way.

Q. You speak about trouble. What trouble was there anticipated? Was it anticipated that the mob on the railroad tracks would resist the military, and bring on a collision?

A. There was certain trouble anticipated—there was a conflict anticipated of some kind. Either the mob or the soldiers would have to give way, and it was not known which. Trouble was apprehended.

Q. Was there trouble talked of—rumors in the street that there would be a resistance to the soldiers?

A. No, sir; I didn't think there was any talk of resistance. There was talk of trouble. The rioters seemed to be taking the ground that they had a right to stop there, so long as they did not interfere with the trains, and the military undertook to clear the track; and do not think if the military had cleared the mob who had actively obstructed them, that the trouble would not have been so great as it was. Firing into these people who were on the hillside, and not participating in the riot, I think, considerably aggravated the trouble, from my observation.

Q. You were not there when the firing took place?

A. No, sir.

Q. Do you know that the mob did not fire—that, at least, the soldiers did not fire on the mob in front of them?

A. That was the information, and I believe that was the fact, that they fired on the hill-side, and not on the strikers.

Q. How many people were killed and wounded upon the hill-side?

A. I think there is a list there that was tolerably accurate at the time. I cannot vouch for its absolute accuracy. You refer to the number killed on the hill-side?

Q. Yes.

A. I could not tell that. This boy, there mentioned, was shot on the hill-side, and I heard of a number of others. I cannot exactly re-call them. That list merely embraces the total number.

By Senator Yutzy:

Q. Were these editorials, with the head-lines, intended to mollify and quiet the mob?

A. They were intended to represent the exact condition of affairs as we understood it at that time.

Q. Regardless of what effect it would have on the mob?

A. It is an exact reflex of the condition of affairs at the time. In the articles below, and in different other parts of the paper, any resort to physical violence was deprecated, further than the act of striking.

Q. In your estimation, did your editorial give a representation of the general sentiment of the citizens here as a reflex of the sentiment of the people?

A. I think it was, as far as I could learn.

Q. At that time?

A. Yes, sir.

Eugene O'Neal, sworn:

By Senator Reyburn:

Q. Where do you live?

A. Pittsburgh.

Q. What is your occupation?

A. Connected with Pittsburgh *Dispatch*.

Q. Are your files here?

A. I sent a file up by your sergeant-at-arms.

Q. Just state what knowledge you have of the occurrences?

A. My knowledge of the occurrences is confined first to the strike and calling out of the military. I was there on the Thursday, Friday, and part of Saturday preceding this bloodshed. I was then called away upon business to Buffalo, and all that I know of the strike reporters brought of the suspension of work of the railroad hands, and I saw a crowd collected around the tracks. I was on the ground on Friday night. I also noticed in some degree manifestations of public feeling in regard to the strike and calling out of the troops. That came from personal knowledge. The entire knowledge I had was derived from reports.

Q. There is an editorial in your issue of the 21st July, entitled "Fruits of a Hasty Step." Did you write that article?

A. Yes, sir.

[The following is the article referred to:]

[Dispatch, July 21.]

FRUITS OF A HASTY STEP.

There was a general feeling in the community yesterday that the sudden and unlooked for ordering out of the troops to adjust the railroad difficulty was not the wisest course that might have been pursued. The actions of the strikers, while in some instances reprehensible, could scarcely be held by any construction to amount to a continuous riot, as there was only one case of violence, (in which the offender, McCall, was promptly arrested by the police,) and while there was a very general trespassing upon the company's road, there was certainly no destruction of property. It was hoped that with a cooling night intervening to both the officers and the men calmly thinking the situation over, an amicable arrangement might be effected, and the inconvenience to the public ended; but the precipitate calling for troops dispelled that possibility, and made the affair assume a really very serious aspect.

One point that must have been lost sight of by the sheriff in his excitement (and perhaps by the company's representatives too) was, that the engineers and firemen, while not themselves striking, were naturally in sympathy with their late associates, and that the stoppage of the trains was done rather upon solicitation than compulsion.

But the question arises whether, conceding there was a riot within the legal acceptance of the term, the usual remedies were exhausted before calling for troops. So far as appears, a small squad of the mayor's police was sufficient to quell the only fight that occurred. It was then supposed that peace was reigning, until sometime after midnight, when Sheriff Fife addressed a party of the strikers advising them to go home, and when a more irreverent person in the crowd replied that he (the mayor) might migrate to a hot climate. This simple circumstance seems to have been the last straw. It was, of course, a very wrong remark to the sheriff who (without waiting, so far as is evidenced, to summon a *posse comitatus*) hastened off to the telegraph office and apprised the Governor, at lightning speed, that the red planet of war had risen on the banks of the Allegheny. And then flashed back telegrams to the major general in local command, and the major general emitted general order number one, (it must have scared the readers of yesterday morning's *Dispatch* as it burst upon them

with double-leaded significance from our advertising columns,) and troops were hurried out of bed, and amid a great rushing to and fro in hot haste, and sleepy eyes looked sad farewells to other eyes that winked, and mouths that yawned again, the regiments were put in marching order for the battlefield which lay from the Union depot along Snyder's hollow to the East Liberty stock-yards.

There was a sort of general feeling through the community yesterday that there was a good deal of farce about this, that so solemn a matter as calling out the military, spreading broad-cast over the continent the notion that Pittsburgh was on the verge of a civil war, ought not to have been resolved upon before at least all the ordinary police resources were exhausted. It also had the effect of creating an active sympathy for the strikers with many, who before had none. And besides, it incensed the men themselves, made them less open to argument and persuasion, and in so far as it did this, it tended to prolong the strike, and consequently disturb the business interests of the city; and worse yet, it drew hundreds of angry outsiders to the scene and mixed them in the controversy. We do not believe, as some are inclined to fear, that this affair will—ill-advised though it may have been—will occasion a general bitter feeling between labor and capital. The best proof is to be found in the expressions upon the street yesterday, which were not those of labor against capital or capital against labor; but almost unanimously, one of mortification at the eagerness and haste with which the solemn and expensive course of proclaiming a community in a state of insurrection was decided upon. It was hoped all around that the difference between the railroads and the hands would adjust itself inside of forty-eight hours at the furthest, if left to take its course; when or how it will be settled now remains to be seen; but at the best, there will be bitter feeling, and it is to be feared acts from time to time that under moral suasion and under peaceful treatment would not have been thought of. Two hours of calm, candid talk and fair treatment between the officers of the roads and the employés would have done more toward a permanent pacification than a regiment of military. Who would answer for the consequences, supposing that on the head of the hasty turn out of the military blood had been shed yesterday? The law is great and its majesty powerful when administered

with cautious solemnity and decorum, but never should it be stripped of its grave and most serious surroundings. To abate one jot or one tittle of them, is to inflame the passions of the multitude, and make them to forget their paramount duty of obedience to the law, and to precipitate the very evils sought to be avoided. It is scarcely necessary to add to aught which has been written, that on the question of the attitude of the strikers or violence by them or obstruction thrown by them in the way of the company, there can be no two opinions among calm people. Yesterday we said, as we believed firmly and as gathered from their conversations, the reasons that led them to quit work. For quitting work, they are certainly not censurable; in fact, considering the lowness of their wages, if by this method alone they could improve their condition, sympathy would attend their effort; but, of course, they have no right to violently interfere with the roads, if the roads can get other men to fill their places. On this point, no two intelligent and unheated persons think of disputing. There is, however, as explained by them, a considerable difference of opinion between the community and the authorities as to the wisdom of trying to knock this principle into the heads of the strikers with the butt end of a gun, instead of exhausting first peaceful methods. Brute force is bad all around, and even threats of it are not always the best or quickest remedy for evils.

Q. Have you any knowledge of the causes leading to the strike?

A. I have no personal knowledge. I had, however, some knowledge of the causes which had been gathered for some months before, and which were familiar in people's mouths about the time—the reduction of wages and the bitter feeling that existed between the employés and officers of the roads. I heard of these things as leading to the strikes. I was very familiar with the reports that Tradesmen's Unions had been formed for the purpose of carrying them out.

Q. For the purpose of carrying out the strike, do you mean?

A. Yes, sir.

Q. How did you obtain that information?

A. I obtained it by personal information—partly among railroad men, partly among citizens, and from our reporters.

Q. Did you have any knowledge leading you to suppose that this strike would take place before the 19th?

A. No; the strike had taken place before my attention was directed to it. Of course the information had come from other sections of the country that it had already taken place there.

Q. From your knowledge and information, was there any necessity for calling out the troops?

A. Not the slightest, sir, according to the best of my judgment and belief, at the time they were called.

Q. I believe you were not here after the troops arrived?

A. I was here after they arrived, but not here on the night of the bloodshed.

Q. You say there was no necessity for calling the troops here?

A. None that I could see.

Q. You mean by that that the civil authorities were able to cope with the mob, or with the strikers?

A. I think the civil authorities could have successfully coped with any disorder if it had not been for the introduction of the troops and their want of discipline. I think that the troops helped more than any other cause, so far as my judgment has been able to reach. Their want of discipline, their want of coolness, and subsequently their demoralization, running away, was the prime cause which led the mob, and brought out the bad elements in it, and gave them to suppose they were masters of the field.

By Mr. Means:

Q. You mean to say that there was a demonstration of that kind before the Philadelphia troops arrived?

A. Of which kind?

Q. Of the mob going out to destroy property?

A. It had assumed that which in popular parlance, is termed a mob.

Q. Was there any demonstration of that kind?

A. There was a demonstration to the extent of numbers of citizens assembling at the different points along the road, drawn by curiosity. The first demonstration I saw, was a demonstration of people who went out of curiosity to see the troops.

Q. That was your Pittsburgh troops?

A. Pittsburgh, yes, sir. So far as I could see, there was no disposition to violence, in any shape, manner or form, at that time.

By Mr. Means:

Q. After the arrival of the Philadelphia troops, did it excite the people of the city of Pittsburgh or the mob, to more violence than before they arrived?

A. There had been no act of violence, to my knowledge, in the sense of physical violence. There was no violence, save in so far as the presence of these men as trespassers might be considered violence, and the action of the strikers in their dealings with the engineers towards stopping the cars, so far as that might be considered violence. I do not speak of that. But there was no violence up to Saturday morning, that I heard of, save in the case of the assault upon the railroad officer at the time, which seemed to be an assault and battery, and the party, I think, was arrested, and brought to the station-house.

Q. After the arrival of the Philadelphia troops, was it then demonstrated that the citizens of Pittsburgh or the mob, was determined to clean out the Philadelphia troops?

A. I was not in the city after the conflict occurred, but suppose that of course. I could only judge as you judge, from what you read, that the

shedding of blood aroused the feeling of animosity, and as to the feeling among the citizens, I do not think there was any disposition among the citizens of Pittsburgh, to the encouragement of arson or bloodshed—that is, among the respectable and larger portion of the community. After the militia, which was supposed to be able to take charge of the situation had fled, then I have no doubt that the mob took control.

Q. Did you see any demonstrations made to clean out the Philadelphia troops?

A. Not the slightest. The troops arrived here the morning I left. I had arranged for a trip to New York, and I went to Buffalo, and the troops had arrived, and there was a bitter feeling among the people in regard to calling out the Philadelphia troops. There had been mention of that feeling about calling out the Pittsburgh troops, and a great many people thought it was unnecessary, as the civil authorities had been able to cope with disorder for ten years, and would be able to do it on this occasion, and I think the people thought the military force was being used as a police force for the railroad. I think they felt aggravated about it; but there was no evidence of disposition to resist, or tendency towards bloodshed, so far as my observation went, or so far as any reports we heard would lead me to believe.

J. M. Carson, *sworn*:

By Senator Reyburn:

Q. What is your name?

A. Joseph M.

Q. Where do you reside, sir?

A. Pittsburgh.

Q. What is your occupation?

A. Journalist.

Q. Was that your occupation in July last, at the time of the riots?

A. Yes, sir.

Q. Will you be kind enough to state any information that you have in regard to the causes leading to the riot?

A. I have none to give of personal knowledge. I was not out of the office that day from three o'clock until the next morning or the next day at one or two. I only know it from reporters that had been out at the scene of the difficulty. I only know it from hearsay, and I do not suppose that is evidence. I am prepared to answer to the queries in regard to the paper. There is an editorial in there. I desire to state that that is mine.

Q. That is in the *Critic* of July 22?

A. I desire that to be part of my evidence.

Q. "Military Blunder—Uncalled-for Bloodshed."

A. Yes, sir.

[*Critic*, July 22.]

MILITARY BLUNDER—UNCALLED-FOR BLOODSHED.

Even at the moment of this writing, it is not difficult to perceive that a fearful blunder has been committed by the Governor and his ill-timed military advisers. It is impossible for us to conceive that the action of the railroad strikers, taking the worst view of either side of the case, justified the calling out of the military.

Time should have been allowed for a respectful parley between parties; time for the railroad company to properly consider the grievances complained of in the respectful petition of the strikers, and time for the railroad employés to act in response. There is tyranny in this country worse

than anything ever known in Russia, and it is time we should get at the gist of it.

Strikes are common occurrences, but it appears that it is only when the "great monopoly," the hated company, which discriminates against the interests of Pittsburgh and western Pennsylvania, is subjected to one of these strikes, that the military are ordered out, and that, too, without a moment's consideration, as though the Pennsylvania railroad was more important than the peace and order and the lives of half the citizens of this State.

There is no use disguising the matter. The people of this city sympathize with the strikers. They are incensed beyond measure, with the cold, corrupt legislation which has fostered the colder and more corrupt organization known as the Pennsylvania Railroad Company. But we cannot disguise the legal technicalities which appear to brace up that company as against the people. All that we say and care to know is, that a fearful blunder was made by the constituted authorities, who from the Governor down to General Pearson and Sheriff Fife, appeared to be only the willing tools of the giant oppressor.

We hold that the reckless haste of General Pearson and Governor Hartranft makes them the prime ringleaders of what promises to be the bloodiest riot with which the Commonwealth has ever been visited. The insane policy of calling Philadelphia troops to this city to quell a domestic quarrel is reprehensible beyond degree.

Hartranft and Pearson have only added fuel to the flames, that may not be satisfied till the lives of hundreds of militia and citizens are sacrificed. But while we counsel peace, it is only the duty of journalists to fix the blame where it belongs, and therefore we arraign before the board of public opinion General Pearson, Sheriff Fife, Thomas Scott, and Governor Hartranft, and their aiders and abettors for the murder of our fellow-citizens, who were slaughtered by the Philadelphia militia.

Whether the officer commanding was drunk or crazy when he ordered the Philadelphia soldiers to fire into our own Nineteenth regiment, whereby one member was killed, it is a matter that should engage the minds of a military court. But such recklessness and mismanagement is only part and parcel of the great blunder of which we complain.

The railroad magnates claim and protest their inability to carry on their business with profit without the much vexed reduction. All the employées can say is, we must starve at these wages. Now, granting that on one side or the other there must be suffering, which, is it equable, should suffer? But the concession can only be made for the sake of casuistic argument. The railroads affirm that they cannot meet expenses without curtailing salaries to the extent that has caused this present trouble. Let us take the case of the Pennsylvania Company. In this instance, we could show some other method of escaping the difficulty. Look at this:

J. N. McCullough,	\$ 12,000 per annum.
William Thaw,	10,000 per annum.
Thomas D. Messier,	10,000 per annum.
John Scott, (solicitor,)	10,000 per annum.
H. H. Houston, (in no recognized position,)	10,000 per annum.

Contrast this with the ninety cents of the poor brakeman. But then, what is the poor laboring man? Let the following real occurrence tell:

BABY FOOD FOR LABORING MEN.

While circulating among the strikers at the outer depot, the reporter found a few of the men willing enough to tell their grievances. One said: "When Vice President Cassatt and General Manager Frank Thomson were at the Altoona shop, Cassatt remonstrated with Thomson against any further reduction. 'Why,' said Cassatt, 'the men cannot buy butter for their bread.' 'Butter,' said Thomson, 'what do they want with butter, let them make dip.' The reduction was made," continued the complaining striker, and whether the men have been living on dip or not, it is very evident from the belligerent feeling displayed here to-day, that they can fight on dip. "Yes,"

continued the man, in a cold, bitter tone, which showed plainly how deeply, how plainly, the cold-hearted insult.... "Mr. Frank Thomson drives his tandem team and draws his big salary, whilst we must do double work at half pay."

The officials can build palaces, the laborer can rent a hovel. The one can roll along in the bustling splendor of a four-in-hand, the other cannot hide the burnt and frost-bitten foot. These railroad authorities can afford salaries that will secure the costliest luxuries and sustain an apish aristocracy, that cannot extend the salary to meet the commonest necessities of life, to the beggared, starving, crushed laborer and his family. All these magnates will talk of the impossibility of running business without further curtailing the wages of the poor laborer. Arrogant impudence! Unbearable tyranny! Why, it has come to this, that labor is servitude! That a poor man must delude himself to satisfaction at the thought of starving, and respectfully take a pittance called wages. The millions must stand off and die smilingly, and look pleasurably at the outstretched arms of a few like Tom Scott grasping, robbing, paralyzing, crushing our industries, even our lives. Capital has raised itself on the ruins of labor.

The laboring class cannot, will not stand this longer. The war cry has been raised, and has gone far and wide. It will not confine itself to the narrow, nor even long stretch of the railroads. Labor will assert itself. It must have its equality, and that it will, sooner or later, amicably, it is desirable, forcibly, if necessary. Certainly rebellion against lawful authority is never lawful, but the principle that freed our nation from tyranny will free labor from domestic aggression.

The witness: The first page there was our reporters. The head-lines I do not know anything about. I went to bed that morning at half-past four, and those head-lines were put in after.

Q. That is, on the first page, and starts out with "Bread or Blood?"

A. Yes, sir; but the reports themselves I believe to be correct, and I believe as fair a statement as has been made of the occurrences. I regret this; but I

believe they are as fair a statement as could be had. I know they were truthful—there was no object in misrepresenting them, and the exasperating state of troubled feeling, after shooting down and killing twenty-two citizens of Pittsburgh—men and women—would have induced any community to have felt the same way as we did.

Q. Who is responsible for these head-lines starting out with "Bread or Blood?"

A. Legally, I am responsible; morally, I am not, but legally I am. I do not shirk any responsibility.

Q. What I mean by that question is, who wrote these head-lines?

A. I did not. I would rather the committee would not press the question as to who did it. It is not material to the issue anyhow. It was done by a young man in my employ at that time, after I had gone to bed. I did not know anything about it. For every line in that paper I am responsible, except these—for everything excepting the head-lines I am responsible for, and nobody else, and I am legally responsible for them. I do not seek to evade any responsibility.

Q. When I ask the question as to the responsibility, I do not mean legal responsibility?

A. I was the real editor. I do not object to the head-lines. They adequately represented popular sentiment at that time. If it was twenty-two citizens of Philadelphia shot down by Pittsburgh troops, I think there would be a feeling of that kind evinced by the Philadelphia papers. That is my judgment.

Q. One part of the head-lines says, "The worthy strikers arm themselves, and assemble thousands strong to compel their rights?"

A. I did not say so. I simply said I was legally responsible, and not morally. I did not write them, but I say this: that if twenty-two Philadelphians had been shot down without orders, as the evidence before your committee proves, that the Philadelphia papers would have had just such head-lines. It

is very well now, four or five months after the occurrence, and when we can calmly and coolly review the facts, to say that that is incendiary and improper. That is all right. I agree with you. I agree now that it was perhaps to that extent, but you, as a Philadelphian, if our Pittsburgh troops had gone down there and shot you Philadelphians, you certainly would have felt as I did when that was written. I did not write it, but I do not shirk any responsibility for it.

Q. Do you mean that that expresses the feeling at that time?

A. I believe that it adequately and fully represented that feeling. That is my candid, conscientious conviction.

Q. At the time of the occurrence?

A. Yes, I did. It is no idle thing to come out here and shoot down twenty-two people that were innocent. If they had been rioters or strikers, if they had had any part or lot in this thing and had shot them down, they would have been right. I would not have blamed you. I do not blame the committee, of course, but I do say this: it was no more and no less than murder to shoot down these people as they were shot down. I think that is the fullest and best account of the riot that appeared in any Pittsburgh paper.

By Mr. Means:

Q. Mr. Carson, do you say and do you think, in your opinion—had the press time to deliberate—do you believe they would have written so sarcastic an article as that?

A. There is no paper in the city of Pittsburgh, published on the eventful Sunday morning of that day, that would not have put some such article as that in their paper.

Q. Understand me right. Had the press had time to deliberate, would they have cast these articles broadcast to the world?

A. No, sir; they would not, but that Sunday morning—Monday morning there was a change. I understand you——

Q. This was done, Mr. Carson, on the spur of the moment?

A. It was done when we knew—when we had four reporters out there, when they were bringing in the intelligence of the murder, as we deemed it then, and as the grand jury has since, by their presentment presented, and when they were shot down without orders, we wrote those head-lines. I did not, but I am responsible. That is why we did it.

Q. You say you wrote the balance of the article?

A. No; four reporters did. The head-lines—I am responsible for every line that appears there but the head-line. And that editorial, I dictated that. That is entirely my own, and every word of it—I stand over it to-day, after months have elapsed. The head-lines—I did not know of it until the next morning.

Q. You say in this editorial, "It is impossible for us to conceive that the action of the railroad strikers, taking the worst view of their side of the case, justified the calling out of the military"—what do you mean by that?

A. I mean their action was passive—was not aggressive. They simply were there. They refused to work, and I furthermore believe, that had there been any conciliation, or attempt at conciliation, used by Scott or their pampered officials, that it could have been arranged. That is my candid belief.

By Mr. Means:

Q. Suppose that the railroad officials had agreed to comply with the request of the strikers—is that what you mean?

A. I do not mean that. I mean if there was any attempt made, but there was not any. They assumed the attitude of tyrants—were overbearing, were tyrannical, and they were abusive.

Q. What reason have you to believe, Mr. Carson, that the strikers would have gone to work had the railroad officials not raised their wages?

A. I can only say in reply to that, I believe they could have been conciliated, and there could have been an adjustment of troubles, and more than that I cannot say. I believe it could have been managed.

Q. Without the increase of wages?

A. I do. I believe even that.

Q. You believe, then, that the strikers would have conceded to the ten per cent. being taken off?

A. Yes, I do. But you treat a workingman as a dog, and he will be very apt, like a worm, to turn. It was not so much the reduction as it was they wanted to crush out all the manhood in him, and trample him into the dust. They treated them with no consideration at all. They treated them as just so much machinery. I do not want to interject a speech into my evidence, but if you want a speech I can give it to you on that question.

By Senator Reyburn:

Q. Had the strikers—had the men sent a committee to the railroad officials?

A. Yes—and how was the committee received.

Q. How?

A. I do not know. If you want me to tell you how I was told they were received, I will tell you; I do not know of my own knowledge.

Q. You must have some grounds for forming an opinion.

A. I will give you that now. They were received with the utmost haughtiness. They were dismissed with a wave of the hand. They said, "We will make no terms, no concessions with you. Go back to your wages—go to work—then we will talk to you. We will have nothing at all to do with you." Now that was the way they were received.

Q. Were they not told that if they would retire from the company's property, and allow the company to enjoy its property and its rights, that they would

receive them?

A. No, sir, never heard of it; no, sir. Not the most sanguine man that knows anything about the Pennsylvania railroad officials in western Pennsylvania would ever say such a thing either. I make that a part of my testimony.

By Mr. Means:

Q. Do you pretend to say that the——

A. I pretend to say that the railroad officials in western Pennsylvania, on the part of the Pennsylvania railroad, are tyrants, and serfs in Russia have better lives to lead than employés on the Pennsylvania railroad. There is no serfdom in Russia—if the reporter will make that correction. Slavery has been abolished in America, and has been abolished in Russia, but there is a modified form of it on the Pennsylvania——

By Senator Reyburn:

Q. What do you mean when you say that the "hated company discriminates against the interests of Pittsburgh and western Pennsylvania?"

A. Do you want me to talk on that subject? I can talk for five hours. I say they have systematically discriminated against Pittsburgh, and they have ruined it—that is what they have done. They will carry freight from Pittsburgh—they have systematically discriminated against Pittsburgh to the extent of twenty-five per cent., and when Colonel Scott was here, he said he was horrified. He had not dreamed there was such discrimination. He could not believe it possible; and James Parke, junior, who was one of our most eminent citizens, a Christian gentleman, too, he said it was true. Why, said he, I could not believe it possible. We know it's possible—we know it has ruined Pennsylvania; and the only thing that is going to help us is a competing road, and that, thank God, we will have in the course of three or four months.

Q. Let me ask you, what do you mean by discriminating?

A. it means that they will carry freight from Chicago to Philadelphia cheaper than they will carry from Chicago to Pittsburgh; that they will carry cheaper from Chicago to Albany than they will carry it to Pittsburgh; that Pittsburgh merchants can take goods to Boston, and take them to San Francisco a great deal cheaper—paying the freight to Boston and back—a great deal cheaper than they can ship them direct to San Francisco. There were three thousand tons shipped by Wilson, Walker & Co., to Boston, and from Boston to San Francisco, paying the freight to Boston and back. That is what made trouble in this community. They have been systematically oppressing Pittsburgh. There is no manufacturer unless he has got drawbacks and rebates.

By Mr. Means:

Q. This trouble might just as well have fallen on some other portion of the State as it did on Pittsburgh, would it not?

Q. It could have, and I think would, had we not anticipated the whole trouble here. There was not a community in the State of Pennsylvania, which would have sympathized to the extent that we did. I will answer why: we would have sympathized because we have been systematically oppressed for the last fifteen years. We have been practically ruined.

Q. This thing was as likely to occur at Harrisburg or Scranton or Reading, as it was at Pittsburgh, but, unfortunately, Pittsburgh was the place.

A. We bore the blunt of it. We were the first to receive it, and it found the community in full sympathy with the strikers, because of their sufferings. You systematically oppress a people, and revolution is not only right, but it is a duty.

Q. You say the community—did your merchants give aid and abet in this strike?

A. They did not. They were in sympathy with the strikers; but I was up on Sunday, there at the Union depot, and I saw the people. Saw that they were burning, and all that kind of thing. I did not see a single Pittsburgher. They

were all strange faces, and not a face there that was familiar to me, and I am thoroughly familiar with Pittsburgh. They were tramps gathered from all parts of the Union.

Q. That is not the question I asked you. The question I asked you was this: if the merchants of the city of Pittsburgh sympathized with the strikers?

A. They did.

Q. Sympathized with the mob in their violence?

A. No, sir. I went up to the Union depot on Sunday, between one and three o'clock in the afternoon. I saw that mob, and there was not a single Pittsburgh face in it. They were all strangers—tramps, and the strikers had gone away.

Q. No strikers among them.

A. No; I did not see any.

By Senator Yutzy:

Q. Was there any sympathy expressed by the good portions of the citizens of this city after the burning and destruction of property had commenced?

A. On the contrary, the utmost detestation of the ravages of the mob. They sympathized with the strikers in their demand for higher wages. Ninety cents is not much for a man to live on, and I would like to see you gentlemen try to live on it.

Q. Was there any expression of sympathy on the part of citizens with the mob that attacked the troops in the round-house before the burning took place?

A. I rather imagine that the feeling of the community was that the men who had murdered——

Q. I want you to answer the question, whether there was an expression and sentiment to that effect.

A. No; no organized expression.

Q. Was there any individual expression?

A. Yes, sir.

Q. Of good citizens?

A. Yes, sir.

Q. Justifying the attack upon the troops in the round-house?

A. No; not justifying the attack on the troops in the round-house?

Q. Or in their retreat from the round-house?

A. No; but there was a feeling that it was no more than retributive justice—there was no urging that to be done.

Q. There seems to be an article in the nature of an advertisement, commencing, "Attention Citizens," &c.

A. I cannot tell you about that. That is an advertisement. I did not see that, and I do not know who put it in, even.

By Mr. Means:

Q. That part you claim that you are not responsible for?

A. I do not know anything about an advertisement. A man pays for it and he gets them in.

By Senator Yutzy:

Q. Was that paid for?

A. I presume so. I am not business manager. I am responsible for whatever is written there. I assume that responsibility wholly.

Q. Do you know of any articles that were published in your paper that were calculated to arouse and inflame the people that were paid for for insertion?

A. No, sir; I did not.

By Mr. Means:

Q. Have you got any idea who wrote that article, if you were paid for it?

A. I do not know who wrote it. I do not know anything about that.

Q. In writing an article—supposing I was even competent to write an article for your paper, and would wish to suppress my name, would not you require to have my name, so that if you were come back upon you could get it?

A. In regard to that, that is not an article, it is an advertisement.

Q. It might come under that head. I think it would keep you very busy to make that out an advertisement. I do not claim to be a newspaper man, but it would keep me pretty busy to make that out?

A. It was paid for, or it would not have been in, because I have assumed the responsibility for everything that was in there, but I do not assume for that, because I do not know anything about it.

By Senator Reyburn:

Q. That was paid for as an advertisement?

A. I have no doubt that our business manager could give you proper information. I am willing to assume any responsibility. I do not shirk that, but that is a matter that is not in my line. That is a business advertisement.

By Mr. Means:

Q. I am not a newspaper man, but, I suppose, if I should write an article for your paper, you would require the name?

A. Look at the position it occupies; it is put among the advertisements, I believe.

Senator Reyburn: No, sir.

Mr. Means: No, sir; it would hardly bear that construction.

By Senator Yutzy:

Q. Is not the editor of a paper responsible for anything that is published in his paper, whether it is an advertisement or anything else?

A. He is.

Q. And therefore you are responsible, as editor of that paper, for that advertisement?

A. I am.

Q. Now, give us the name of the man that had that advertisement put in?

A. I cannot.

Q. Can you give us any party that can give us the name?

A. Our business manager probably could.

Q. Who is he?

A. E. G. Minnemeyer.

W. F. Aull, *sworn*:

By Senator Reyburn:

Q. Where do you reside?

A. Pittsburgh.

Q. Were you a member of the National Guard of the State of Pennsylvania in July last?

A. Yes, sir.

Q. What position did you hold?

A. Captain of the Eighteenth regiment.

Q. Did you receive an order from General Latta, ordering General Brinton to take a certain route after leaving the round-house, in case he was driven from the round-house?

A. I received an order from General Latta, after they had left the round-house, to deliver to General Brinton, with instructions to deliver to him at the arsenal. It was then supposed he was located at the arsenal.

Q. Did you deliver that order to General Brinton?

A. No, sir.

Q. Can you give the substance of the order?

A. Yes, sir. On Sunday morning, we were lying at Torrens station. Communication had been cut off, both by telegraph and couriers. We had no communication with General Latta at all, and Colonel Guthrie requested me to go to the Union depot, and endeavor, if possible, to obtain an interview with General Latta, and ask him what orders he had to issue for our regiment. I went to the Union depot, and, on my way there, I passed the Philadelphia troops just coming out of the round-house. I went to the Union depot and reported to General Latta that the troops were out of the round-house, and on their way out Penn avenue—I do not know where. He waited a few moments, and a messenger came in, stating that they had left the round-house, and had gone to the arsenal. Another one came in in a few moments, saying that they were quartered in the arsenal. General Latta, after deliberating for a few moments over the matter, and consulting one or two parties there, requested me to remain a few moments until he would write an order. I did not know what the substance of the order was at all, and, after I had started, he told me to take that order to General Brinton at the arsenal, and, as soon as I left the Union depot, I read the order, which was instructing General Brinton to proceed by way of Penn avenue to East

Liberty, and join Colonel Guthrie. I went immediately to the arsenal, and I found that they were not quartered there at all. I made inquiry and was told they had gone on out Butler street. I drove on up Butler street as rapidly as possible, and when I got to Sharpsburg, or two miles beyond there, they told me they were stationed two miles ahead of me, on the other side of the river. There was a gentleman remarked there that they were striking for Butler county. I deliberated a few moments whether I would follow them, or report first to the regiment, and consult Colonel Guthrie. I finally concluded I would go to my regiment, at East Liberty, and, if Colonel Guthrie thought it advisable, after consulting him, I would go across the river, and deliver the order to General Brinton. Upon handing the order to Colonel Guthrie, he instructed me to take command of the regiment, and he would go to town and see General Latta in person, which he did. I never saw the order from that time until this. A day or two afterwards, however, I received a telegram from General Latta, requesting me, for the first time, to report what action I had taken in the matter, and I reported to him by letter, which is published in the Adjutant General's report, I see.

Q. Did you read the order to Colonel Norris, or did he see the order, to your knowledge?

A. Yes; I showed him the order at the arsenal. He overtook me at the arsenal coming up a different route, and started for East Liberty. I hailed him, and told him he was on the wrong road. I told him I had an order here, producing it, I think. I think I told him I had an order for General Brinton, and I was going on to overtake him, and he turned immediately and went on ahead of me. I went back to my buggy and he went on ahead of me, and I did not overtake him. He understood, however, what was in the order. I believe he read the order before it left General Latta, at the Union depot.

Q. Who was responsible for the delivery of that order, handed you by General Latta for General Brinton?

A. Who was responsible for its delivery?

Q. For its delivery or its non-delivery?

A. My instructions were to deliver the order to General Brinton in the arsenal. When I found he was not in the arsenal, and my instructions being to report back to my regiment, I considered my first duty, after I found he had gone away outside of my route, was to report to my colonel and see what he would do. He then advised me to remain where I was, and said he would go with the order to General Latta, which he did. He took the order, put it in his pocket, and left the regiment on Sunday about eleven o'clock, I think, and went in and had an interview with General Latta.

Q. You were at Torrens station?

A. Yes, sir.

Q. You know nothing of the movement of the troops during Saturday night and Sunday morning?

A. I received an order on Sunday morning, at two o'clock, to join Colonel somebody, from Wall station, and move to Twenty-eighth street. We went to Torrens station, and received ammunition sent there for them, and waited there until the next morning, and they never put in an appearance.

August Ammon, *sworn*:

By Senator Reyburn:

Q. Where do you reside?

A. City of Pittsburgh.

Q. What is your occupation?

A. I am insurance agent.

Q. Are you the father of Robert Ammon, known as Bob Ammon during the troubles in July?

A. Yes; I am.

Q. Have you any knowledge of the occurrences during that time in Allegheny City?

A. I have, somewhat. I felt, of course, it was natural that I should feel an interest, seeing that my son was concerned there.

Q. Were you in Allegheny City at the time?

A. No, sir.

Q. Have you any personal knowledge of any of the occurrences over there?

A. Not of the occurrences. My aims were directed to inspire Robert as much as possible—to prevent destruction of property. I sent messages and communications to him frequently, almost hourly.

Q. To that effect?

A. Yes, sir.

By Senator Yutzy:

Q. Your son Robert testified in Philadelphia that he had some communications with some parties that were concerned in the railroad, either the officials of the railroad company and the civil authorities of Allegheny City—have you any of these communications—the originals?

A. Yes, sir; Robert handed them to me in the jail of Allegheny City, and I turned them over to his lawyer. I would have brought them up this morning, but Mr. Miller was sick. I did not go to see them until this afternoon. I have those that I deemed the most important here.

By Senator Reyburn:

Q. In whose handwriting are they?

A. I do not know.

Q. Do you know your son's handwriting?

A. Yes. They were dispatches which he received there.

Q. Just select them in their order?

A. Now here is the first one I present here. I have read them over so often that I am familiar with them, and if you will permit I will read them.

By Senator Reyburn:

Q. Read that one [indicating?]

A. This dispatch is directed to Allegheny City, at the outer depot, where Robert had his station, reads as follows:

"Operator, do anything to save property, and if engines and freight can be moved out of the city and men enough to do it, and the strikers will permit, run them west on north track far enough to be safe from any damage from Pittsburgh men. Give copy to Ammon. G. S. G."

If you desire an explanation of these, those initials signify "George S. Griscom," whose duty it was to send them. A gentleman by the name of W. A. Routson occupied his place.

Q. What position?

A. The position of Mr. Griscom, during his absence.

Q. What is Mr. Griscom's position?

A. He is a railroad official. Kind of assistant superintendent, Mr. Layng is general superintendent, and those gentlemen are next to him.

By Senator Yutzy:

Q. That was not signed by Griscom?

A. Not that. Routson signed these dispatches. I got that information from Robert. There is something on the other side. The operator who signs "K," says, "Ammon wants to know if you want the sixty-eight armed men."

Q. Signed by the operator?

A. Signed by the operator who signs himself "K." The answer of "G. S. G.," "Yes; if he is in good faith to defend the company's property." If it is in order, I might give you a little explanation.

Q. Certainly.

A. On Sabbath morning early, I guess, as early as five o'clock—I live on the south side—I got up, and I got my horse and buggy, and I put Robert's mother in with a younger son of mine, and asked them to drive over. I read in the *Chronicle* that Bob was among the strikers, and I supposed Bob was in the oil regions at the time; I did not know that he was in Allegheny. I sent Mrs. Ammon over with the request to Robert, that if he thought he would be involved in the strike he had better get in the buggy with his mother and come to Birmingham, and stay until the trouble was over, and I gave the little fellow, who was in the buggy some money to pay his fare in the street car. She informed me that Bob would willingly have complied with my request, but that he could not leave. There was a very great many tramps there, and he and the strikers had to get arms to keep these men away from robbing the cars, and for this reason he could not follow my advice, and go to Birmingham.

By Mr. Means:

Q. I would like to know this before you go any further. Are those telegrams that Robert Ammon received from the railroad officials during the time that he had charge of the road?

A. Yes, sir; this is the commencement of them. He had not charge on Sunday. He took charge of it on Monday. The next telegram is directed to Bob. It says:

"Ammon, a large crowd of men going down the Brighton road, where coaches and cars are on the main track, east of Manchester. Can you protect them?

"G. S. G."

Q. Who is "G. S. G."?

A. Assistant superintendent Griscom. Here is one directed to the initials "W. F. R." That means William F. Ross. He was also official of the railroad.

Q. Dispatcher, wasn't he?

A. Yes; I think so.

"Tell Ammon, if the freight cannot be moved, we would like to move the engines any way. Tell him to help the C. & P., too. [That means Cleveland and Pittsburgh.]

"G. S. G."

Q. Were these sent by wire—by telegraph?

A. Yes; he got them.

Q. By telegraph?

A. Yes, sir. Here is an original that is in Bob's handwriting.

"J. D. L.: [That means, J. D. Layng.]

"I have just sent Ed. Compbell and Paisley to Mayor Phillips for twenty-five police to watch cars, as our men are completely prostrated and wish to obtain some rest. They will watch with police. Can you make some arrangement to get victuals for these men on watch?

"AMMON."

They got a little provisions—that came a little previous, that ought to come in afterwards. Here is another addressed to J. D. L.:

"Can you arrange to send me to-day some hundreds of cartridges? Answer me, as I expect to have use for them.

"AMMON."

Here is another one:

"AMMON:

"Have instructed Ross and Parkin to arrange for provisions. See them.

"J. D. L."

That means J. D. Layng.

Q. Who is "J. D. Layng?"

A. "J. D. Layng;" he is general superintendent.

"AMMON:

"C. & P. Shifter wanted to go down to Glendale and back, and take down relief guards and supper to the men. Is it O.K. to run them following 37?

"G. S. G."

Bob's answer is written in his own handwriting:

"Will spare engine 305. Will pick it up and take it down with the relief.

"AMMON."

Here is another one:

"Please hurry engine for 17 over.

"W. F. Ross."

Q. These are without dates?

A.

"AMMON:

"Engine No. 421 will go on No. 17; and engine 97 on No. 37; and engine 325 on No. 39.

"J. G. PARKIN."

Q. Who is J. G. Parkin?

A. He arranged with Ross and Parkin for provisions—he was a regular employé there.

"AMMON:

"Engine, No. 330, will go on 17, instead of engine, No. 421.

"G. S. P." That is Parkin.

Here is a despatch from Mr. Layng:

"AMMON:

"I think a new request on the mayor would give you the cartridges, as he no doubt, has been supplied by this time.

"J. D. L."

By Senator Reyburn:

Q. Here is a dispatch:

"D. R. AMMON:

"Of course, you understand that I cannot do anything in the matter of sending, but if you will permit me, as a private individual, to make a suggestion, it would be, that you send to Mayor Phillips and ask him to send you fifty to one hundred men, to protect the property now on the Fort Wayne tracks. I think, that on a proper representation of the facts, he would do this, and it would give the men now in charge of the property, the rest I have no doubt they very much need.

"J. D. L."

"AMMON:

"You had better see Cole, and get matters in shape to talk; but, as I said in former message, what our men want to do, is to let the mob element quiet down and then they can talk calmly. You all want to maintain a record free from violence in any shape. I know you can fully appreciate the force of this.

"J. D. Layng."

The witness: These are all the dispatches which represent the general spirit, and there are a great many more, all in the same strain, and that is all I have to say. They speak for themselves as to their being genuine. If it should come to trial, I think it would be no trouble to prove that. One other matter I desire to call your attention to. As I stated already, that on Sunday, I sent Mrs. Ammon to bring Bob to Birmingham. Mr. Siebeneck informed me on Saturday evening that Bob was over there, and I told him I didn't think it was so. I understood, from Bob's wife, he was up in the oil regions. Bob was living right at the scene where the troubles in Allegheny occurred, and

had been an employé of the road, as you are aware. On Sunday, when Mrs. Ammon came home, I felt calm about it. I knew when Bob promised a thing, he generally would, at least, try to carry it out. On Monday morning matters seemed to move along smoothly in Allegheny—what I got was from the newspaper reports. I could not leave my office on Wood street, because our secretary had gone to Bedford, and I was there with one of the clerks and the janitor, and the situation in Pittsburgh then looked very threatening. We have a great many valuable assets there about our safe, and I thought my presence was necessary. Occasionally I would go up on Fifth street and send somebody for Bob, with a verbal message or a few lines. On about three o'clock in the afternoon—perhaps a little before——

Q. On what day?

A. On Monday, I saw Mr. Siebeneck. He says to me, "Ammon," says he, "I have just got word that Bob is in charge of the Fort Wayne road." I, for a moment, didn't know what to say, but Siebeneck assured me that the thing was so. Looking up the street, I saw Mr. Watt, the ticket agent of the Pennsylvania road, at the corner of Fifth and Smithfield street. He came up to me, and says, "My God, squire, has not there been enough property destroyed! Is there any end to this thing! Can you do anything so that property would not be destroyed in Allegheny. Have you any influence with Bob?" I told Mr. Watt, that I thought I had, and if he would go out and see General McCauley, the vice president of the road, for me, and could tell him that I would go to Allegheny, drive over with my wagon, and I was satisfied that Bob would come away with me, if they wanted him away, but that I would not do so unless I had the consent of the railroad officials, and I gave him my reasons. From what I knew, that Bob kept the thing there at bay, there had been no row, no disturbance. If I should take him away, and trouble should accrue in consequence, I would feel that I was indirectly responsible for it. Mr. Watt went out, and in perhaps half an hour or less time, he came back, and I give you his words as near as I can remember. He said, that the general said, "Tell the old squire we are very much obliged for his kindness, and the interest he shows, but the taking away of Bob, would be, perhaps, the worst move we could make." When I heard that, I felt calm

—my clerk—one of my clerks, lives in Allegheny. I again wrote a letter to Bob, and implored him, by all that could be dear and holy to him, to see to it, that no destruction of property would take place there. Early next morning, I got an answer from Bob, wherein he assured me that everything was working smoothly, and said all the best citizens, James L. Bennett, and gentlemen who had been before you, and others had been there, and saw him, and they all seemed to be satisfied for the present that he would do the best he could. Shortly after I received that letter, Mr. William L. Jones came in. He lives in Sewickley, is an insurance man, on Fourth avenue, and he told me that Bob was in charge of the road. I told him I was well aware of that, and stated to him that I had communicated with Mr. Watt and General McCauley, and says he, "I know Mr. Layng; will you permit me to go out and make him the same offer." I told him he should go, and I should be obliged to him. He went out and came back with about the same answer. Mr. Layng said he was perfectly satisfied to leave Bob at present where he was. I heard some more afterward, that Mr. McCauley said he hadn't said that to Watt, and I went out. I knew the general well. He says, "'Squire, I only said I didn't remember it, but if it is said that I did say it, I would not take it back, and under like circumstances I would perhaps say the same thing again." I advised Bob, during the day, then, to get out of it just as soon as he safely could for himself and the property. In the evening the Governor came, and you know, you have heard his Excellency; and the next morning the papers reported that Bob had stepped out and things had assumed the usual aspect again. From that time until Bob was arrested the committee of safety, or sub-committee of safety, they took Bob in charge. He stepped out, say on Wednesday morning, and about noon a gentleman attached to the *Chronicle* office came down and said there was a committee up there with Bob, and they wanted to see me. When I came up there Mr. Jacob Rees, Major Swearingen, Mr. Slagle, of the iron-works on the south side, and some others were present, and they told me they wanted to see Bob and get the blockade raised of the freight which was still on the tracks there, and it seems he was not much acquainted with him and didn't know what to do, and he said he would not say anything to him until his father came, and I told Bob there to follow the advice of these gentlemen, and if, in

consequence of their advice, he would get into trouble, I would see him through. These men subsequently got into the secret meetings of the strikers down to Dietrick's hall, in Allegheny, and things came all right again, and on Monday following—it was just one week after—a railroad official came to my office in the morning, I guess about as early as nine o'clock, and said, "Squire, if you don't want to have Bob arrested, get him out of the road," and I told that gentleman that I was obliged to him for his kindness, but if Bob and the railroad company had anything to settle, they had better settle it now. About two o'clock in the afternoon Bob was standing near the corner of Fourth avenue and Wood street, and six detectives pounced on him and dragged him to jail, and he stayed there for eleven weeks. That is all I have to say in regard to Bob. Now permit me to say, in less than a dozen words, in regard to what I read in the newspapers this afternoon, of the testimony of my friend, the mayor of Allegheny. The mayor swears, point blank and positively, that he had but one interview with Bob. If that was all, it must have been a mighty long one—a very long one. The mayor and myself have been personally acquainted for a number of years, and shortly after Bob was arrested he met me on Fifth avenue, and he stepped up to me and said, "Squire, I am sorry, on your account, in regard to the scrape Bob was in." I told his honor that the thing was certainly unpleasant, but that I did not worry much, after all, about it. I did not think it was anything that was disgraceful, like a charge of stealing or murder, or anything of that kind. It had happened in all countries before, and that I would have to be satisfied whatever the law said; and I says to him, says I, "So far as your city was concerned, mayor, there was not a dollar's worth of property stolen." "There was not anything destroyed." Says I, "Supposing, if Bob is tight, and we put you on the stand, what is the worse you could say against him." "Well," says the squire, "I would have to say that, by continuously persuading Bob and his men, I kept them down so that everything passed off quietly." Now, if it was the only one interview with him, it seems to me he must have been most of the time with Bob.

By Mr. Means:

Q. Did the mayor of Allegheny City give your son credit for maintaining the peace and order, and saving the destruction of property—did he do that?

A. How is it?

Q. Did Mayor Phillips, to you, give your son the credit for maintaining peace, and of restraining the crowd and rioters from the destruction of property?

A. That is all, sir, that was said between the mayor and myself, what I have recited—what I stated. I asked him what the worst was, if he was on the witness stand, he could say against Bob, and he stated that he would have to say, that, by continuously persuading Bob and his men, he kept them down. That everything went off smoothly.

Q. He went to Bob—when he wanted anything he went to Bob?

A. He said, by continuously persuading Bob and his men. That is the mayor's words. If he has forgotten it, I have not.

Q. In any communication that you had with Bob, did he assure you, or say to you, that he would not allow any property to be destroyed?

A. He said that in the most positive terms, verbally and in writing.

Q. To you?

A. Yes, sir.

Q. That he would not allow it?

A. Yes; he sent me verbally. Sometimes I would send over a man just to talk to him. That man might bring me back a verbal message, or might bring back a few lines. He said that I should not have the slightest fear.

Q. That he would take care of the railroad property?

A. He would take care of the property, and nothing should be destroyed while he was there. In one of his letters, he said he would rather die than submit to the destruction of property.

Q. Did he intimate to you in these communications that he had control of these men—that they would obey him?

A. They did obey him most implicitly. He said that.

Q. That they would obey him?

A. Yes, sir.

Q. And do what he told them to do?

A. And others told me something similar. I would say—permit me to recur to one conversation—Mr. James I. Bennett, a gentleman whom I believe has testified before you—he is president of the insurance company which I represent as general agent. I went to him after I had these assurances from the railroad officials that they did not want Bob away. I felt dissatisfied; but I thought I would have been more satisfied if he had been away. I went down to his office, at the iron-works, on Water street, and I told him. Says I, "Mr. Bennett, this is the way things stand." Well, says he, "I was down last night." Mr. Bennett lives near, in close proximity to where the trouble occurred. Says he, "I was there last night and saw Bob, and things are working about as smooth as they could under the circumstances," and says he, "Don't you do anything of the kind." Says he, "The strikers put Bob there to run the road, and, if you take him away, they will put some other man there who is, perhaps, not half as well qualified as Bob is." Those were Bennett's words to me.

Q. Is he the president of that road?

A. No; Bennett is president of the insurance company which I represent.

Q. Did the president of that road, or any of the officials of that road, say to you that they were satisfied that Bob should have charge of this road?

A. The vice president, the first vice president, General McCullough, was the man to whom I first went. I heard that Bob was in charge of the road, and agreed to go over and take Bob away, and he sent me back word, through

Mr. Watt, the ticket agent, that that would be the worst move he could make.

Q. Taking Bob away?

A. Yes, sir. And when I afterwards heard that it was said that McCullough hadn't said that, I went out and saw him—I am on intimate terms with him, and says he, "Squire, I simply don't remember that I said it; but, under like circumstances, I would perhaps say the same thing again to-day. I do not know what else I could say."

W. C. McCarthy, recalled:

The witness: I read in the newspapers this afternoon, that Mr. Stewart stated to this committee that he had an interview with me on Friday, in which he stated that the railroad company desired to have one hundred men, that they would pay for them. I have to say that Mr. Stewart had no interview with me on Friday, and he did not make that statement to me on Friday, nor did he make that statement to me upon any other day.

By Senator Reyburn:

Q. Did you see Mr. Stewart on Friday?

A. I did not.

Q. At the city hall steps?

A. I did not. I did see Mr. Stewart at the city hall steps on Saturday forenoon.

Q. What was the conversation then?

A. It was simply conveying from Mr. Scott or Mr. Cassatt, as he stated, a desire that I should go up to the Union depot to see Mr. Cassatt. I declined to do so, and gave my reasons for it, which were, substantially, that the troops were brought here unnecessarily; that it was disgracing the city, and

that I had an abiding conviction it would end in bloodshed, which would be unnecessary; and I declined to go to see him, as I knew who and what Pennsylvania railroad officers were; that they were imperious and dictatorial, and I could have no influence upon them whatever, and the result verified my predictions.

By Mr. Means:

Q. At that time did this gentleman ask you to swear in a certain number of police officers, and the railroad company would pay them?

A. He never said anything of the kind, either that day or any other day. It is pretty hard to join those two statements together.

Q. It is a little rough, mayor?

A. Well, I swear to that. The fact is, I scared them, and he did not know whether he was standing on his head or his heels. I blowed at him about bringing troops here, and it would result in murder, and I used strong language.

Q. Did you attempt to scare him?

A. No; I just gave the honest convictions of my soul to him in very strong and emphatic language.

Q. Why was it necessary that you should scare him?

A. It was not necessary to scare him, but he was scared. That is the only way I can account for his ideas that he delivered that message.

Q. Why was it necessary for you to use this very strong language to him?

A. Except I felt what I said, that these men had brought the troops here and shot people down unnecessarily, made me tell you over there that the police had broken the back of that strike on Thursday afternoon—utterly broken it, and if they had any gumption about them, with the expenditure of less than \$500, they could have moved a train, and the strike never would have been heard of again. But instead of that, they laid down upon their belly like

dogs, and cried for troops, and did nothing for twenty-four hours, and allowed the strike to get ahead.

By Senator Reyburn:

Q. I think that is in your testimony before?

A. Indeed, I do not know. As I understand, I thought when I was in Philadelphia listening to your proceedings at the St. Cloud, that I heard a gentleman swear that he saw the police, at the station-houses on Penn avenue, fire at them. I was very deaf that day, and I could not swear positively whether he said so, but on that point I have a few words to say. The first that I knew, or rather the first that I heard about the firing by the police upon the troops was contained in this dispatch to Mayor McCarthy:

"One of my men was murdered by your police force as we marched up Penn avenue, *en route* for Sharpsburg. The murderer can be identified by a dozen men of my command, although several others of your force discharged their pistols shots into my column while we marched out Penn avenue. Are you willing to assist me in arresting this murderer?"

I replied that I am, that I would. That dispatch I did not preserve a copy of. I afterwards received the following, second one from him:

"MAYOR MCCARTHY:

You seemed to misunderstand my telegraph. I asked you if you were willing to assist me in having your man identified. There is no question about the fact. I can produce the evidence of a dozen respectable citizens of Philadelphia who witnessed the firing. By making the proper inquiries on your part, and by arresting all suspected, I can produce those to identify the guilty party. It was not true that the police of Pittsburgh were hooting and yelling at us openly at nearly every point.

R. M. BRINTON,
Major General"

To this dispatch, of which I preserved a copy, I sent the following answer:

"R. M. BRINTON, *Major General*:

"I will assist you in identifying or arresting any murderer who is on the police force, or on either side of the struggle."

I said on either side of the struggle, because I believed both sides committed murder, and I may say that I and six or eight of my policemen are now under bonds to answer the charge—a civil charge—for damages for arresting two men who were suspected as being engaged in shooting at the Philadelphia troops as they went out Penn avenue, out Butler street. Then I go on to say:

"By referring to the language of your first dispatch, you will see that the misapprehension was on your part, and not on mine."

Well, gentlemen, when the Philadelphia troops came back here, I sent out orders and got all the police who had been up there at that time together, to meet at nine o'clock in the evening. I saw by a newspaper article—I had forgotten who it was—but I saw by a newspaper article here that it was Lieutenant Cochran that I sent out to the Philadelphia troops, to tell Brinton that at nine o'clock that night the men would be all at the mayor's office, and for him to come with his evidence. Nine o'clock came and no person came—until ten o'clock we waited, and they were dismissed. I dismissed the men with orders to appear at nine o'clock the next morning, and sent word out to camp to General Brinton. If General Brinton requires me to state I will just quote from a little remark I made. I say here Cochran had reported to me that the Philadelphia men, for some reason or other, didn't think they could get here last evening. That was the reply of Cochran. Then

I took it back until ten o'clock or nine o'clock next morning, when the police were there, together with a large number of citizens in the neighborhood of the station-houses, who were there at the time that the troops passed. The police unanimously, and the citizens unanimously all joined in the statement that on Penn street, between Twenty-sixth street and Twenty-seventh street, where the station-house is, and where the police were on the pavement, that at the time the troops passed the station-house there was no shooting, no disturbance of any kind whatever. That is the testimony of the police and of the citizens, given and sworn to upon that day, when I found the Philadelphia men didn't come to make good their word.

By Mr. Means:

Q. You say the Philadelphia men did not come to make good their word. What did you expect of the Philadelphia men?

A. I believed the Philadelphia men to be as good as their word, as laid down here by General Brinton. Here is General Brinton's dispatch to me: "One of my men was murdered by your police force as we marched up Penn avenue, *en route* for Sharpsburg. The murderer can be identified by a dozen men of my command, although several others of your force discharged their pistol shots into my column while we marched up Penn avenue. Are you willing to assist me in arresting this murderer?" I expected General Brinton to come with his men and attempt to identify the murderers, as he alleged we shot at those troops as they were passing the station-house. He did not come with his men. An hour or so after all these parties left, two men came to the office; I did not see them myself, but my man at the office reported to me that two men came there, dressed like officers, who stated that they were officers in the Philadelphia regiment, and they repudiated the statement that the troops were fired on as they passed the station-house.

Q. They said there was no firing on the troops?

A. Yes; these men's names—I heard at the time the names they gave.

Q. Do you know the names now?

A. No, sir; I do not. I might be able to find out—I don't know whether I could or not. I have forgotten the names; but if that circumstance is sworn to at Philadelphia, I can produce one hundred men to disprove it.

Q. Is that all?

A. That is all. I think I have said enough.

At this point the committee adjourned to meet at the call of the chairman.

HARRISBURG, *April 11, 1878.*

The committee met, pursuant to adjournment, in Senate committee room No. 6. All members present except Mr. Reyburn.

William S. Quay, *sworn:*

By Mr. Lindsey:

Q. Were you present Saturday afternoon, July 24, when the communication was received by General Latta from General Brinton?

A. I was. I was present with General Latta in his room during the entire night.

Q. In the Union depot?

A. Yes, sir.

Q. How many dispatches were received?

A. I think three, but I am not certain.

Q. What time was the first received?

A. The first one was in the early part of the night. I couldn't fix the time of receiving any telegrams, or, in fact, any of the occurrences of the night.

Q. Can you give the substance of the first dispatch?

A. I cannot give the nature. The first dispatch, however, was very discouraging, I remember that much. It related to the condition of his troops in the round-house, related to the supplies, subsistence, ammunition, and he went on, further, to say, my recollection is, that he considered part of his command as unreliable, and that one of his regiments was disposed to sympathize with the strikers—wouldn't fight with them, anyhow.

Q. Did he state what regiment it was?

A. He didn't use that language, but that was the idea conveyed.

Q. Do you recollect whether he named the regiment?

A. I think he named the Sixth regiment. We understood that to be the regiment referred to. Sometime afterwards, a second dispatch was received, in better character, and we were re-assured. The first one was very bad.

Q. The next dispatch was more encouraging?

A. Yes; decidedly more encouraging.

Q. Do you recollect how the next dispatch reached the Union depot?

A. I think that the dispatches were brought through the lines by Sergeant Wilson of the Jefferson Cavalry. He came out in disguise.

Q. All the dispatches you referred to were brought by him?

A. I think so. I will not be positive about that.

Q. Do you recollect of General Matthews making any remarks when he received the first dispatch?

A. I couldn't say positively, but there was conversation. I was in the room, but didn't pay any attention to it myself.

Q. Did you know whether General Latta contemplated ordering General Brinton's command out of the round-house, prior to receiving that first dispatch?

A. I have no recollection of anything that indicated any such intention.

Q. Was it a subject of conversation at all at his head-quarters, during the night?

A. As to the removal of those troops?

Q. Yes?

A. Yes. There was considerable conversation as to that, when General Latta was dictating his last dispatch to General Brinton. There was a conflict of opinion about it.

Q. Was the question of the expediency of ordering the troops out, for the purpose of stopping the destruction of property and driving the rioters from the ground—from the railroad ground? Was that the subject of conversation?

A. I think not. I don't remember that. There was no conversation amongst us. We had no idea of ordering the troops alone—that detachment of troops. The general plan was to bring on the Philadelphia troops, at Torrens station, unite them with Guthrie, and march them down on the rear of the mob, and attack and disperse them.

Q. How early in the evening did the General adopt that as a plan of action?

A. I couldn't say, as I said before. I couldn't, at this time, say.

Q. Can you tell us anything in relation to the dispatch that was sent by General Latta and General Brinton, Sunday morning, by Captain Aull, what knowledge you have of that dispatch, and what was done?

A. I don't think that I have any personal knowledge of that dispatch—don't think I saw it—and what I would give you would be hearsay about that. I

have a recollection of a telegram to direct Brinton, I think, to join Colonel Guthrie.

Q. Were you present when Major Norris started to find General Brinton?

A. I don't think I was present when he left the hotel. I was in the hotel.

Q. Did you hear General Latta give him any instructions?

A. Well, I couldn't say. I know he had his instructions, but whether I heard Latta give them to him, I don't know. I don't know what his instructions were.

By Senator Yutzy:

Q. Do you know anything about any proclamations issued by the Governor, in relation to this riot?

A. I know very little more than the proclamation was issued. At least, I saw the proclamation signed by the Governor and myself, which, I have no doubt, was issued here, under the seal of the State, but I was not present at the time. I know nothing more, really, than you, gentlemen of the committee, yourself.

Q. That proclamation was issued under general instructions from the department?

A. When the heads of departments leave, they generally leave blanks signed, to be used in case of an emergency, if they are required.

Q. They are issued according to general instructions and custom?

A. Yes, sir. I suppose the facts relating to that proclamation are already before the committee.

By Mr. Lindsey:

Q. Did you receive any communications from General Latta, or from any person connected with the department, prior to the issuing of the

proclamation?

A. I think not.

Q. All proclamations of the Governor are signed by the Secretary of the Commonwealth, are they not?

A. Yes, sir.

Q. The military orders of the commander in chief signed by the Adjutant General?

A. Adjutant General.

By Senator Yutzy:

Q. Has the Secretary of the Commonwealth, or his deputy, authority, under general instructions, to issue proclamations, in the absence of the Governor?

A. Well, I don't know. I think I would assume that authority without any hesitancy, in case of necessity. Whether it would be ratified or not, I don't know.

Q. Under general custom?

A. Custom; yes, sir. I really don't remember a case where I have done so. I am not certain, but what I have, in a case when the Governor was not here, about the reduction of the sinking fund.

Q. Do you know anything about a request made by the civil authorities of Allegheny county on the Governor, for troops?

A. I received on the morning of Friday, I think the 20th of July—the riots were on the 21st—on the day before, about three o'clock in the morning before, I received a telegram from the sheriff of Allegheny county, including a telegraph to Harrisburg, making the request. He stated that he inclosed it to me for my information.

Q. Was there any request made by private citizens or corporations for troops?

A. I forwarded the telegram to the Adjutant General, stating that I had received it, and I suggested that the major general commanding the Pittsburgh division furnish the necessary troops.

By Mr. Lindsey:

Q. What time did you receive that?

A. I think it must have been three o'clock on the morning of Friday.

Q. What time did you forward it to the Adjutant General?

A. I think by the same messenger. It was from the sheriff of Allegheny county, and I replied to him that I received his telegram.

By Senator Yutzy:

Q. Were you at the Union depot at the time the firing took place?

A. Yes, sir.

Q. Did you see General Pearson as he returned from the round-house or that vicinity?

A. Yes; I was in General Latta's room that evening with General Pearson and one or two other gentlemen, and he came in.

Q. Was he relieved from command by General Latta at that time?

A. I didn't understand that he was formally relieved of his command, but I know he was obliged to leave.

Q. For what reason?

A. The mob was said to be in search of him, and surrounding his house, and destroying his property. There was some conversation passed between us. I said I thought he was of no use there.

Q. How long did you remain at the Union depot, Saturday?

A. I was there all night.

Q. All that Saturday night?

A. I was there until in the morning at ten or eleven o'clock.

Q. Did you see General Brown there?

A. Yes, I saw General Brown in the early part of the night, I think. General Brown came in when the Pittsburgh troops were relieved.

Q. Did you know anything about his disbanding his command and sending them home?

A. Nothing, except from hearsay.

Q. Would you consider it justifiable or legal to issue a proclamation in the absence of the Governor in emergencies of this kind?

A. I think so.

Q. Did you regard it proper for the Adjutant General to call out troops or furnish troops for the suppression of the riot in the absence of the Governor?

A. That is a question I was not considering. There was nothing improper here when he had direct telegraphic communication with the Governor, and had authority to do so.

Q. In your estimation, would it require special instructions from the Governor to call out the troops?

A. I think he should act under general instructions. The Governor is the commander-in-chief of the troops.

By Mr. Lindsey:

Q. Did you receive any general instructions prior to the departure of the Governor for the West, as to what would be done in case of an emergency?

A. No, sir, I think not. I understood such authority was given in relation to troops to the Adjutant General. I didn't feel that I was vested with any special authority.

Q. In forwarding the demand that was made by the sheriff for troops to the Adjutant General, did you say anything to the Adjutant General about issuing any proclamation?

A. Nothing.

Q. Knew nothing of that until it was issued?

A. In my telegram to the Adjutant General was simply a suggestion that the major general commanding the Pittsburgh division—I didn't know who he was at the time—should furnish the troops.

W. W. Jennings, re-called.

By Mr. Lindsey:

Q. You may identify those papers, if you will state what they are?

A. This is my proclamation—the first one. Both are proclamations of mine, and this is an order. [Indicating.]

Q. Can you state the date when the first proclamation was issued?

A. The first proclamation was placarded over town—both these proclamations was placarded over town by eight o'clock Tuesday morning, the 24th. I arrived here on the 23d, about seven o'clock in the evening. These were all printed in posters.

Q. And the citizens were all summoned in accordance, or came out in accordance with this proclamation, I suppose—on the demand made by you

in this proclamation?

A. Yes, they did, a number of them, in answer to my call. Before this was published I had gathered them up—parties who were excited, and ready to take hold.

Q. This force you collected, did you swear them in as deputy sheriffs?

A. No, sir.

Q. Or special police?

A. I summoned as——

Q. *Posse comitatus*?

A. *Posse comitatus*. We didn't stand on ceremony very long.

Q. If there are any statements you wish to make, please make them?

A. I do not know of any, sir.

The following are the proclamations and orders referred to by the witness:

PROCLAMATION.

SHERIFF'S OFFICE, HARRISBURG, PA.

WHEREAS, For the past two days the peace and good order of the county have been disturbed and grave apprehensions exist lest injury be done;

And whereas, The duty rests upon me to preserve the peace and promote tranquillity;

Now, therefore, I, William W. Jennings, high sheriff of the county of Dauphin, do hereby enjoin all persons to remain quietly at their homes or places of business, to avoid gathering upon the streets and highways, thus by their presence keeping alive the excitement which pervades the community, and to further the restoration of good order, I charge upon parents to prevent the half grown lads over whom they have control from frequenting the streets.

And I hereby announce my resolute determination, with the aid of special deputies whom I have appointed, and the posse which I have summoned to preserve the peace and protect the person and property of the people within my bailiwick, and I hereby call upon all good and law abiding citizens to assist me and those acting with me to enforce the law and maintain good order.

Given under my hand this 23d day of July, A.D. 1877.

WM. W. JENNINGS,
Sheriff.

NOTICE TO LAW AND ORDER POSSE.

The chief engineer of the fire department of the city of Harrisburg, having issued an order specifying to what alarms the several fire companies shall respond, the following companies of the law and order posse, for the

purpose of preserving good order in the event of any fire alarm, will repair to the place designated by the alarm as follows:

Company A to Nos. 4, 5, 7, 12, 13, 41, 42 for the Friendship Fire Company.

Company C to Nos. 6, 21, 24, 31, 32, 61 for the Hope Fire Company.

Company I to Nos. 5, 6, 7, 23, 41, 61, for the Citizen Fire Company.

Company B to Nos. 7, 12, 13, 41, 42 for the Paxton Fire Company.

Companies D, F, and G to Nos. 21, 23, 24, 31, 32 for the Good Will Fire Company.

Company H to Nos. 5, 7, 41 for the Mt. Pleasant Hose Company.

The other companies of the posse will hold themselves in readiness for orders.

WM. W. JENNINGS, *Sheriff*.

SHERIFF'S OFFICE, HARRISBURG, *July 24, 1877.*

SHERIFF'S OFFICE, HARRISBURG, *July 24, 1877.*

Joseph F. Knipe, Commanding Co. A.

William K. Alricks, Commanding Co. B.

Charles Snyder, Commanding Co. C.

J. B. Boyle, Commanding Co. D.

George G. Boyer, Commanding Co. E.

C. A. Wilhem, Commanding Co. F.

Isaiah Reese, Commanding Co. G.

LAW AND ORDER POSSE

Will report with their respective commands at the Court-House at two o'clock.

The posse will hold themselves in readiness to respond to two taps of the court-house bell at any time prior to that hour. Other companies will be designated and assigned to duty as the public exigency may necessitate.

W. W. JENNINGS,
Sheriff.

Adjourned to meet at the call of the chairman.

HARRISBURG, *April 16, 1878.*

The committee met, pursuant to adjournment, at eight o'clock, P.M., in Senate committee room No. 6.

James H. Stewart, *sworn:*

By Mr. Lindsey:

Q. State your residence?

A. I reside in Pittsburgh.

Q. Did you reside there in July last?

A. Yes; I was a resident of Pittsburgh in July, 1877.

Q. Were you there during the riots of the 21st and 22d of July?

A. I was.

Q. State whether you accompanied Colonel Norris on Sunday morning, the 22d, to General Brinton's command?

A. I did.

Q. State where you overtook General Brinton?

A. Do you want me to state where?

Q. Yes?

A. We overtook General Brinton north of the Allegheny river—north-east of the Allegheny river—about a mile, I think, above Sharpsburg, on the bank of a ravine running up a hill. I don't know the name of the street. I was trying to remember it this afternoon, but I have forgotten the name of the road.

Q. From what point did you start?

A. From the Union Depot hotel.

Q. At what time?

A. I can't exactly state the time precisely—it was in the morning. We paid very little attention to time, having been very busily engaged all night and through the morning. We started, I suppose, between nine and ten o'clock, if my recollection serves me right—some place about that time.

Q. Had you been with General Latta and Colonel Quay during the night?

A. Yes, sir; with the exception of the time that I had been detailed for service outside of the city limits. Of course, where I went to from the Union depot was under orders of the Adjutant General.

Q. At whose instance did you and Colonel Norris go in pursuit of General Brinton?

A. I was directed by the Adjutant General to accompany Colonel Norris to the office of General Brinton.

Q. Did you hear the Adjutant General give Colonel Norris any orders to tell to General Brinton?

A. I did not.

Q. Verbal?

A. I did not hear any.

Q. Did he give him any written orders to your knowledge?

A. I think not.

Q. When you overtook General Brinton, state what conversation took place between Colonel Norris and General Brinton?

A. After passing through the city—through Penn avenue—we overtook General Brinton at the rear of his command, then marching very rapidly to the north. We drove partially through the left of his command, got out of our carriage, and walked the balance of the way to the front. Then General Brinton ordered a halt of his troops, and Colonel Norris then told him that the Adjutant General requested that he would turn back, and form a junction with Colonel Guthrie at Torrens station. Do you want me to go on and repeat the whole conversation?

Q. Yes?

A. They talked some time. I stayed with them. There were some officers of General Brinton's command with him, whom I was not personally acquainted with. General Brinton replied that his troops had been without food for twenty-four hours. That he had been fired upon from every corner and street car in the city. That he intended to go back into the country until he could get a position in which he could intrench himself and protect his men. And he furthermore added, that he would be God damned if he would go back into the city of Pittsburgh.

Q. Where were you when that conversation occurred?

A. Alongside of him. We were all sitting down. There had been a halt of the command made, and we sat down on the banks of a stream that ran along the public road.

Q. Did Colonel Norris deliver it as an order coming from the Adjutant General, or did he state that Captain Aull had had such an order?

A. Not that I know of. I can go back in my testimony and mention the fact that we met Captain Aull.

Q. Where did you meet Captain Aull?

A. We met Captain Aull at the eastern side of the arsenal, on Penn avenue. He stopped our carriage on, I think, the eastern side—the furthest extremity of the arsenal, on Penn avenue—stopped our carriage, and asked us where we were going. I told him we were after Brinton's troops. He said nothing at all about an order that he had.

Q. Do you know that he had an order?

A. I did not; no, sir.

Q. Did Colonel Norris tell General Brinton that Captain Aull had an order?

A. Not that I know of. I have no recollection of him telling him so.

Q. Did Colonel Norris repeat to General Brinton the substance of the order?

A. I do not know that he knew that Colonel Norris——

Q. Let me ask you the question over again. Did Colonel Norris tell General Brinton that Captain Aull had an order for him? Did Colonel Norris repeat the substance of the order which Captain Aull had?

A. Not that I know of. Captain Aull's name was not mentioned, and from the simple fact that we met Captain Aull, and he knew we were on the way to General Brinton—if Colonel Norris knew he had an order from the Adjutant General, it was not my business to know anything about it. I was simply directed to accompany the colonel on business.

Q. Did Colonel Norris state to General Brinton that the Adjutant General had requested him to deliver the order to return and form a junction with Colonel Guthrie?

A. As I said before, Mr. Chairman, Colonel Norris said to General Brinton that the Adjutant General had directed him to turn his column back, and pass the Allegheny river, making a junction with Colonel Guthrie, at Torrens station. Stated that fact, that the Adjutant General requested him to do so.

Q. And requested Colonel Norris to deliver that order to General Brinton—did he inform him—so inform?

A. Of course. He came direct from the Adjutant General, acting under orders of the Adjutant General.

Q. He was delivering the orders of the Adjutant General, as you understood?

A. Yes. That is what he was doing. That is what took me there. The Adjutant General directed me to accompany Colonel Norris. He was going on official business.

Q. We want to get at what Colonel Norris said to General Brinton?

A. That the Adjutant General directed him to turn his command back and form a junction with Colonel Guthrie, of the Eighteenth regiment, at or near Torrens.

Q. Did you return with Colonel Norris?

A. I did; yes, sir.

Q. To the Monongahela house?

A. To the Union Depot hotel.

Q. What time did you go back to the Union Depot hotel?

A. As I told you before, I don't remember anything about time; but when I got back there—when we got out of the carriage—we started upstairs to the room which the Adjutant General occupied, and was then informed that

they had changed the head-quarters from the Union Depot hotel to the Monongahela house. I suppose that might have been one o'clock.

Q. In the afternoon?

A. In the afternoon.

Q. Of Sunday?

A. Of Sunday. At that time the fire was coming down the track towards the hotel. Colonel Norris went before I did to the Monongahela house, and I followed him shortly afterwards.

Q. Did you hear him make any report to the Adjutant General?

A. I did not; no, sir.

By Senator Yutzy:

Q. Were you present when Captain Aull received the orders from the Adjutant General?

A. I was not.

Q. Did General Latta order Colonel Norris to proceed with any orders to General Brinton?

A. He did; yes, sir.

Q. Were you ordered to accompany him?

A. I was.

Q. When you reached General Brinton, what reason did he give for not returning to the city of Pittsburgh or Sharpsburg?

A. I stated before that he complained that his command had been without food for twenty-four hours, that he had been fired on from every street corner in the city, that he was anxious to get to the open country, where he could entrench himself, and take up a position to protect his men. He

declined to return and make any junction with any troops, or to have anything to do with any troops.

Q. Did Colonel Norris ask him to fall back to Sharpsburg, near the railroad, where he could be supplied with ammunition and food?

A. Yes, sir.

Q. Did he ask him to go to Pittsburgh at all?

A. I think not. If you will allow me to make a remark here, that at that time trains on the Valley road I believe had been stopped. On our road towards Brinton, after we had crossed the Allegheny river, we found the West Pennsylvania road was running, and I then remarked to Colonel Norris that if Brinton would come back to the river, I would see that rations were sent up the West Pennsylvania road, knowing that we could provide his troops with rations.

Q. He was to form a junction with Guthrie's troops where?

A. He was requested to go to Torrens station, or to go as near Torrens station as he possibly could.

Q. That is where Guthrie was stationed?

A. Yes; where the Eighteenth regiment was.

By Mr. Larrabee:

Q. Did you see General Loud there?

A. I did; yes, sir.

Q. Was he present during the time that this talk occurred between Colonel Norris and General Brinton?

A. That I cannot say. There were several of General Brinton's staff with him; but when we halted we left the line of the troops, and went down to the

banks of this stream I speak of. There was several of his staff officers, and some of the colonels, whose names I am not acquainted with.

Q. Did you see General Matthews with him?

A. I do not remember.

Q. There were several of his staff officers?

A. They were all strangers to me.

Q. How many of his staff officers were present at the time this conversation occurred?

A. I suppose there were five or six gentlemen present scattered around. Whether they were listening to the conversation or not I cannot pretend to say.

Q. What time was Colonel Norris and General Brinton talking this matter over?

A. How long?

Q. Yes?

A. I suppose twenty minutes. I know it was a longer time than I wanted to stay. I was anxious to get back.

By Senator Yutzy:

Q. Was he sitting down?

A. Yes; sitting on the bank of the stream.

Q. Not sitting on a log?

A. Not on a log.

Q. On a rock?

A. I might have been sitting on a log or rock. I know I sat down on the grass. It was very dusty and very hot, and we all took a drink out of the stream.

Q. This conversation took place while they were sitting there together?

A. Yes, sir.

Q. A number of the officers sat with them?

A. Yes; sitting scattered around, some standing. You know how it is yourself, colonel, when you have a consultation with officers.

Q. Did Colonel Norris make any other business known to General Brinton, except this one matter?

A. I do not know, they had some little private conversation between themselves.

Q. This one matter was all—the business matter that you heard talked over between them?

A. So far as I was concerned. That was the business that took me out there, that was all I know.

Q. When that concluded, then you turned about and left?

A. Yes; walked back nearly to the Sharpsburg bridge, and found our carriage, and returned through the mob at considerable trouble.

Q. There was a mob following them at that time?

A. No, sir; nobody.

Q. You spoke about a mob—you found the mob after you got back?

A. Yes; Colonel Norris and myself had some considerable difficulty, and were stopped on our road back by a mounted guide, or vidette, or something—I don't know who he was, or what he was after. He followed us for some considerable time, and came up and addressed us.

Q. What was your understanding of the nature of the business that you pursued Brinton? For what purpose did you pursue Brinton?

A. Why we pursued Brinton?

Q. Yes.

A. My understanding was, that he was to go back and form a junction with Colonel Guthrie, and march into the city of Pittsburgh.

Q. Was that your understanding before you left the head-quarters of General Latta?

A. Yes, sir.

Q. Do you know how you got that impression?

A. By being in consultation with the Adjutant General and the balance of the staff during the entire night.

Q. And conversation?

A. Yes, sir; we were consulting together, of course, about the most feasible means or measures—what to do with this exigency there. If you remember, we were but a handful of men ourselves, and there all night long. Could not get our troops into Pittsburgh, wires were cut, lines of railroad were stopped, and our great anxiety was to get as many troops as possible into the city to protect the city. The idea was, this first division would make a junction—that the Fourteenth and Nineteenth regiments having disbanded, you might say virtually disbanded. Having left the Eighteenth regiment at three o'clock in the morning, it was our desire to get the First division form a junction with the Eighteenth regiment, and come into the city to protect property which was then on fire.

Q. Where did Brinton say he was going to when he was asked to return, and refused to?

A. He said he was going to the open country, where he would entrench, and take up a position to protect his troops. Whether he was going to Butler

county or further north, I do not know. That was his remark—that he was going to the open country. Where he found that open country is more than I know, if he ever did find it. We did hear that he was marching to Philadelphia.

Q. Did General Brinton say anything that would lead you to think that he did not recognize Colonel Norris as an officer?

A. Did he say to us?

Q. Did he make any remarks to that effect, that led you to think he did not recognize him?

A. No, sir.

THURSDAY EVENING, *April 18, 1878.*

The committee met, at the call of the chairman, in Senate committee room No. 6. All present except Mr. Larrabee. Mr. Lindsey in the chair.

David Branson, *sworn*:

Q. State your residence?

A. No. 1315, South Broad street, Philadelphia.

Q. What is your business?

A. Coal merchant.

Q. A member of the National Guard?

A. Yes; I was last secretary, and am still quarter-master, of the Sixth regiment of infantry; but during the commotion acted as brigade

quartermaster and commissary, on the staff of General Loud, commanding the Second brigade of the First division.

Q. Did you accompany the troops to Pittsburgh?

A. Yes; in the first expedition that started, and remained with the division until it returned in August. Present for duty all the time.

Q. On Saturday evening, state where you were—what your position was, on Saturday evening of the troubles at Pittsburgh?

A. I was on duty with the brigade in the yards of the company, between the Union Depot hotel and the round-house, engaged in overlooking the line of the men, which kept back the crowd from that portion of the company's property.

Q. Were you in the round-house during the night?

A. In the round-house during the whole night.

Q. Did you leave with the troops in the morning?

A. Yes; the last officer to leave the building.

Q. State, if you please, whether the building was on fire or not when you left?

A. The buildings were all more or less afire when I left.

Q. How extensive was the fire in and about the round-house at the time you went out?

A. At the time the troops commenced to march out, there had been considerable burning of the buildings which we occupied, some of which had been put out, and re-kindled by the burning cars that were run down against the building. That happened two or three times. We thought it was impossible to keep the fire from spreading, and decided to abandon the building. At the time the troops were going out, all the buildings were on

fire, and in some of them the fire had got very extensive; so much so, that I felt hot when I went through the last door.

Q. You accompanied the troops on their march out Penn avenue, did you?

A. Yes, sir.

Q. Were you at the arsenal grounds?

A. Didn't go into the arsenal grounds, and didn't witness the interview between Brinton and Buffington. At that time, I was engaged in re-forming the troops. They had been broken up by the killed and wounded.

Q. Were you present when Colonel Norris overtook General Brinton?

A. Yes; when Colonel Norris overtook us beyond Sharpsburg, I was between the two brigades, the first brigade was marching in the rear, some of them assisting the men in charge of the Gatlings, dragging them up the hill. The other brigade had halted to give them time to catch up, and Major Norris arrived in a carriage or a hack, accompanied by some other party whom I didn't know, and Norris not recognizing me, stuck his head out of the side of the hack and told his driver to stop, and asked where General Brinton was. I told him a little further in advance, and I would go and show him, and went up with him about one hundred yards further, and found General Brinton sitting beside of the road, waiting for the troops to close up.

Q. You walked with him?

A. Walked with him. Walked hastily to him, found him waiting there, and he expressed great gratification to find the general again, they being old personal friends, and showed a good deal of feeling in the matter, and seemed very much exhausted and excited and worn out, evidently with loss of sleep and over-exertion, and the excitement of the occasion. Seemed almost dazed in his appearance by the state of affairs. He immediately inquired of General Brinton, what he proposed to do, and where he was going, and how much he had suffered. The general told him how he had got along. He had got out that way in order to find a place where supplies could

reach us, and feed the men and get some supplies to feed the troops and get a little rest. They were completely exhausted with want of sleep and food. Colonel Norris assented to that, as about the only thing that could be done, and asked Brinton what he wanted him to do. Repeated the question several times in the course of the conversation: what do you want me to do, stay with you or go back and see what I can do outside. The General said there was nothing he wanted so much as provisions. That was the substance of the conversation. There was nothing in the form of an order given. The whole conversation was a discussion as to what had best be done, and what he, Brinton, intended to do, and what he wished Norris to do for him to help him. He had arrived there with the impression that we had suffered much more than we had.

Q. Did the gentleman who was with Colonel Norris get out of the carriage and accompany you up to where General Brinton was?

A. He didn't accompany him. He may have got out of the carriage afterwards. I never noticed, after Norris got out of the carriage. I never saw him, to my knowledge.

Q. Was he present when you met General Brinton?

A. No, sir. He might have been a short distance in the rear, following us up. I didn't see him. He was not close to us. There was a few officers gathered around. I didn't see anybody else.

Q. Officers of——

A. Our division staff officers. And General Loud was there at about the time the conversation commenced. I think General Matthews joined us afterwards. There was several of the staff there, and I was there, by authority of the position which I occupied on the staff, ready to receive any instructions that might be given.

Q. Was the division all right when Colonel Norris and you overtook General Brinton?

A. The brigade that was marching in advance was halted, waiting for the other to close up; the other was staying back in order to give the men with the Gatling guns time to get up the hill—the brigade in the rear wouldn't go on and leave the men with the guns back there unprotected. We had to halt several times, during our march, on that account. Halted the head of the column, and let the others close up.

Q. Did General Brinton and Colonel Norris sit down and have a conversation together, upon a bank or a log? Do you recollect that?

A. I don't think they exactly sat down. I think they surrounded, or stood around, a log or stone, with one foot on it, or grouped together—pretty close together—and four or five of us lounged around, waiting for those to close up. I couldn't specify the exact position I was in. There was nothing said without my hearing it, unless some whispering, and I didn't notice any.

Q. Did the carriage remain back?

A. Some little distance back of where we were. The driver came up close to us, when Colonel Norris went to get in again. The carriage approached us. I don't know exactly the time; and he went away.

Q. Did Colonel Norris say anything about Captain Aull's having an order for General Brinton?

A. I didn't hear Captain Aull's name mentioned. Never heard of such a man until long afterwards.

Q. Did he say anything to General Brinton about returning and joining Colonel Guthrie at Torrens?

A. I didn't hear anything about joining him. General Brinton asked questions about where the other troops were. Talked to Norris, and made inquiries where the other troops were, and why they didn't come to his relief, and how disappointed they were that they didn't come, and matters of that kind.

Q. Did he tell Colonel Norris that General Latta had given an order to Captain Aull.

A. I didn't hear anything of the kind. Didn't hear anything said about orders.

Q. Were you present during the whole of the time that they were together?

A. I was not more than four paces away all the time they were together. If anything was said that I didn't hear, it must have been purposely said in an undertone to avoid being overheard.

Q. Did you know Mr. Stewart, who accompanied Colonel Norris?

A. Didn't know him. Never heard of the man before.

Q. Did you see any person in the group not an officer in the command?

A. No, sir.

Q. Do you recognize Major Stewart here as being the man who came up with Colonel Norris?

A. No, sir; I didn't recognize him. If that was the man, he looked very different on that occasion.

Q. Did you see him?

A. I don't remember of seeing him before.

Q. Do you remember of seeing any person?

A. I saw a man in the carriage with Colonel Norris.

Q. Did he accompany you, or did he come up afterwards and join the group?

A. He must have kept in the background—might have kept back behind us—didn't crowd up into the group.

Q. But did Brinton and Colonel Norris have any conversation by themselves?

A. Didn't appear to have any.

Q. Or in an undertone that could not be heard by the others?

A. Didn't hear anything of the kind going on. There appeared to be no effort to conceal what they were saying from any of the staff. They talked above an ordinary tone of voice.

Q. Have you given all the conversation that took place as near as you recollect it?

A. I couldn't give the exact wording of the conversation, as I never expected to be questioned about it; but the whole tone and manner of the conversation was as I have stated—asking for information on both sides, and an expression of disappointment on the part of General Brinton, why the troops had not joined him, his intentions as to procuring rest and food for his troops, and his desire, in answer to Colonel Norris' question what he should do, that Norris should go back and assist in getting provisions to him, and if there had been any order given it should certainly have been made known to me at once.

By Mr. Means:

Q. Will you state to this committee what transpired with the troops during that night in the round-house, and what took place there during the night—about their going out of the round-house—you were there. I believe you said that you were about the last man leaving it, didn't you?

A. Yes; the orders given me require me to be the last man to leave.

Q. If you please, just state to this committee what transpired during the night about their leaving the round-house, and what condition the troops were in when they left it, and what condition the round-house was in?

A. Commencing with after we were stationed in the round-house, the mob commenced to gather around, and, in a short time, they began to fire pistols, and throw stones into the windows, smashing all the windows, and breaking the furniture inside with the missiles they threw in. Shot the sentinels at the

gate, wounded other men inside, most of them not seriously. We didn't know at that time whether they were seriously injured or not. Finally, a large number made their appearance with muskets, and commenced firing with rifle balls.

Q. That was the crowd outside?

A. The crowd outside. Along about dusk this thing got warm.

By Senator Yutzy:

Q. Was this immediately before retiring from the round-house?

A. Saturday evening about dusk. That had begun to get right hot, balls commenced to come in very thick and heavy, and some of the rioters emboldened by our not returning the fire, which we were ordered by General Pearson not to, had come up to the gates pointing out at the head of Twenty-eight streets, and commenced sticking their pistols through the gates, and shot two sentries stationed there.

Q. Soldiers standing there?

A. Yes, sir.

Q. Were they Philadelphia soldiers?

A. Yes; they shot those two men. They were dragged away by their comrades. Still they would not allow us to fire. While this was going on, we staff officers busied ourselves in making preparations for the slaughter of the crowd, which we thought was bound to come, and was the proper thing to do to extinguish the rioters, and stationed soldiers at the different windows, and got the artillery in proper position—brass pieces and two Gatlings—gave instructions to the infantry not to fire until the artillery opened, knowing, of course, the artillery wouldn't fire without orders from proper authority. When the fire got pretty hot and the sentries were shot down, General Brinton got pretty warm about it, and insisted upon being allowed to fire, and went up to one of the offices where General Pearson made his head-quarters.

Q. Did you go to General Pearson?

A. Went to General Pearson. I followed him in, and he explained the necessity of being allowed to open fire on the rioters, that he could not stand this thing any longer, that the men were being shot down in cold blood, and now was the time; and Pearson says, "No, no; we must hold on a little longer; the thing must quiet down a little; don't let us have any more bloodshed"—some such thing as that. General Brinton replied, that it was only getting worse, the longer we put off the worse it would be, and Pearson said, "No; we might kill more innocent people. There might be some innocent women and children killed," and made replies of that kind to justify himself in not allowing the firing, which the staff officers standing by—I think about four in number were present besides the general—they were of opinion it ought to be done, and still he would not allow it, and several of us made some remarks on the subject—several of the staff officers.

Q. Be kind enough to state what those remarks were?

A. They were to the effect, that if we were going to do any shooting, now is the time to do it, and the remark I made to him was, if we were going to kill anybody—at first I said there were no women and children in that crowd.

Q. Was that remark made to General Brinton?

A. I made this to General Pearson, in the presence of General Brinton and some two or three or four other officers.

Q. You were addressing General Pearson?

A. I addressed General Pearson, right over General Brinton's shoulder—alongside of him. My rank did not justify it, but my old army rank did, and I presumed to advise him. Says I, "If we are going to do any killing, these are the men to kill. There are no women and children—they are all active rioters;" and he replied, "No, don't fire. You do not know who you will hurt; the artillery will shoot clear through the crowd." Just at that time the men in charge of the Gatling gun again moved it nearer the gate, and he saw the

motion outside, or heard the wheels of the gun, and he jumped up and went to the window and motioned not to fire. "Don't fire, don't fire, don't fire," he said; "if they fire, the balls might shoot some innocent woman on a doorstep a mile away down street." That disgusted me so, I sneeringly remarked, if they were afraid of killing people so far off as that, let us fire with infantry, that won't hurt any a mile away, by shooting out of a second story window; and he said, "No, no; don't fire; it will all quiet down; you will kill some innocent people." Then I turned away in disgust, and left him. He went down stairs, and was about three quarters of the opinion to go down in the shadow of the building and give the command to fire anyhow. I changed my mind, for fear that the Pittsburgh troops might be coming around the corner. I am sorry afterwards that I did not give the order.

Q. Were you in the service during the late rebellion?

A. Yes; five years and one week.

Q. What rank?

A. I went in as a private and came out as a colonel and brigade commander.

Q. As a military officer, what should you have done under the circumstances?

A. I should have opened fire with every weapon we had, at just about dusk, from the most available points at the time that General Brinton asked him to allow him to do so. The mob was so dense at that time they could hardly have got out of each others way. They were composed of very different material from the mob at Twenty-eighth street, where the first conflict occurred, the better class having disappeared, and the worst came to the front. The criminal classes, vagrants, bummers, and tramps of every kind, and such men as we call night owls—never seen in day time, were conspicuous in front, urging each other on. A class of the population that would benefit the community by fertilizing the soil. I think at that time, if we had killed those men, it would have silenced the whole riot.

Q. As a military man and having military experience, do you believe that General Brinton had force enough there to have cleared that track and taken possession of the railroad property.

A. At that time, if we had acted at that time, at dusk, we would had no more trouble.

Q. Do you believe that if General Brinton had the privilege to have let his command fire on that mob, could he have taken possession of the track and of the railroad property?

A. Yes; if General Pearson had allowed us to fire at the time General Brinton wished to do so, we would have destroyed the mob, and could have taken possession of anything around that neighborhood. All that would have been left of the mob would not have made any fight.

Q. I understand you to say in your testimony, that the round-house was on fire before General Brinton's command left it?

A. Yes; all the buildings. We not only occupied the round-house, but several other buildings that form a yard between them.

By Senator Yutzy:

Q. Wings of the round-house?

A. There were shops. There is a round-house, and engine houses, and machine shops, and there was a wood-working shop, and a car repair shop, and an upholstery shop, and then the company's offices. They are all connected together, and form a small yard in between them.

Q. Were they attached to the round-house?

A. One came in direct contact with the round-house, or within two or three feet of it, and another within ten feet of it, and there was a space wide enough for two teams to pass between them. We had artillery in this yard and in towards the gates, and the different detachments of troops occupied the different buildings—men were stationed at the windows.

By Mr. Means:

Q. One more question, and I believe I am done. What kind of discipline were the troops under while in the round-house?

A. I considered, for militia, uncommonly good discipline. They obeyed every order I heard given. I will say this: very much to my surprise, from the time I left Philadelphia, there never was an officer or soldier under me that refused to obey an order I gave him. Further than that, I would say, their obedience to the order not to fire, under the aggravating circumstances in the round-house and on the street the next day, when they were fired at constantly with pistols, was one of the most remarkable exhibitions of good discipline I ever witnessed in all my military experience. That is a test of discipline.

Q. Do you know of any arrangement, or any effort made, to furnish the troops with provisions at Torrens station, or at any other place, after you left the round-house?

A. The first I knew about the provision business, was what I have said about Colonel Norris and General Brinton talking, and then, again, in the evening, when Major Barr overtook us, near the poor-house. He was sent back to arrange about provisions, and we got provisions in the night. We got some provisions at the poor-house.

Q. What was the messenger's name in the carriage with you—that rode in the carriage with you? Did you not say there was a party rode in the carriage, when you met General Brinton? Who was with Colonel Norris?

A. I do not know who the gentleman was that was with Major Norris. I was not acquainted with him, and never saw him before. Do not know anything about it.

Q. Do you know if he got out of the carriage and walked up with you?

A. Did not see him get out of the carriage. I could not say positively that he got out of the carriage at all. He might have done so. I did not look back to

see.

By Mr. Larrabee:

Q. Did you say that the troops had orders not to fire upon the men that were following them, firing, on Sunday morning.

A. That was in order not to bring on a conflict as long as we could avoid it—to pay no attention to them. They were firing with pistols, and I did not reply to them, until they commenced to fire with rifles—a number of men.

Q. Did General Brinton give orders to that effect?

A. I do not know who the orders came from. I got orders from my brigade commander, General Loud.

Q. That the troops were not to fire upon the mob that were following on?

A. It was not so much on the mob following, as people on the sidewalk, and in the doors and windows of the houses, firing with small pistols?

Q. At the time there was firing by the troops?

A. After a time, when the rioters in different places, under cover, generally, at the windows, and behind signs, and around corners of buildings, commenced firing with rifles, then we returned that fire. In some cases the men standing on the sidewalk deliberately pulled out pistols, and fired at the rear of the column, just as we got by there. In one case I saw a man standing within four feet of a policeman on one side of him, and a squad of policemen, about ten or twenty feet on his other flank—saw this man, who was in citizen's dress, take a revolver and fire into our ranks, and no reply was made to him.

Q. No effort made by the police to interfere with him?

A. No; they looked on as if it was a dog fight.

Q. Did that shot hit any of the soldiers?

A. One shot I know took effect. They fired just as the rear of the column was getting by.

Q. At the police station?

A. It was right near a police station or an engine-house.

Q. Where the police were standing?

A. A group of them standing there. It was a municipal building. I think it must have been a fire station from the appearance of it. I looked back—we had just got by—and I judge, from the appearance of the building in Philadelphia, that it was a fire station. I was told since that it was. Those policemen were in uniform—quite a number of them—certainly seven or eight. There might have been a dozen of them, and no large crowd near to interfere with them in case they had chosen to arrest the man. I heard other firing at the same time, which, I believe, has been testified to by others as being done by policemen. I did not actually hear a policeman fire. There was more than one man fired—firing from the other side. I noticed this one man, particularly.

By Senator Yutzy:

Q. Where did this firing come from, parties on the sidewalks or from houses?

A. Some from sidewalks, houses, and doorways and cellars, from down street, in our rear, men from the corners of the streets we had just passed from behind projecting signs, in front of stores, boxes in front of stores. Saw some of them shoot.

Q. By pistols or muskets?

A. Those that fired from the rear were firing with muskets. All that I saw fire from doorways were pistols. Those from the windows were partly muskets and partly pistols.

Q. Were the police drawn up in line as you passed them?

A. Just standing on the curb-stone—that would naturally put them in line—they did not appear to be drawn up purposely.

Q. What was the conduct of the troops as they retired from the round-house?

A. They went out in as good order as from parade—regular formation. The only men out of place were three sharp shooters I had under my charge in the upper story of the building to keep men away from the cannon in the street. I was ordered to keep that gun quiet until the troops got out of the building. I had a detachment of men there that I held until nearly all the troops went out, and then dismissed all but three of them to rejoin their companies, and those three men remained out there Sunday until the last moment, and I got down opposite the passage-way through the building, and as the last file of men marched out of the building—the last file of the division marched out—I signaled for them to fire and come down. I fired at the corner of the building around which the rioters were sharp-shooting, to get at the cannon. It chipped off the corner of the building, and we made a run for it and got off before they made a shot at us, and the building that it was from was blazing at the time.

Q. The round-house?

A. The round-house and this office building, smoke pouring from the building at the time.

Q. Could you have remained in that round-house for any length of time after the time you retired, in your opinion?

A. Ten minutes afterwards every man's clothes would have been burnt off him if he had stayed there. As we marched around we made a sort of half circle. We went out Twenty-fifth street afterwards, went north to Penn street, and then east along Penn street, and as we passed Twenty-sixth, Twenty-seventh, and Twenty-eighth opposite the buildings, a square away, we saw the buildings, and that the fire had made great progress. The buildings were in complete blaze. Could not have stayed there ten minutes.

Q. Was your command supplied with ammunition to hold out against a mob?

A. We had very little ammunition then. During the night or just towards morning, I went around and made inquiry among the men and found most of them had from three to seven cartridges left. Here and there I found a man who had a large number, one man as many as twenty-eight, that had been obtained by some sharp practice—he would not tell me how. He would chuckle over it because he was an old soldier and knew how to take care of it.

Q. Was there a considerable amount of men that followed you as you retired from the round-house out Penn avenue?

A. When we looked back at some of the street corners, quite a crowd would make their appearance. They would not follow directly on the street, they would run down side streets and come up cross streets and come up on the corner at us. If we made a show to fire they would disappear—they would seem to follow the streets parallel with Penn street.

Q. Where did Colonel Norris overtake your command?

A. A short distance east of Sharpsburg, on the hill-side, in the edge of the timber, I think, about a mile from Sharpsburg. I do not know the exact distance.

Q. He got out of the carriage and walked along with the general. How far did he march with your command before he stopped?

A. The head of the column had stopped when he arrived.

Q. Was General Brinton marching at the time or was he walking along?

A. General Brinton was resting at the side, on the slope of the hill overlooking the stream. He sat down on something at the side of the hill. Colonel Norris approached and he got up to meet him. General Brinton had been marching at the head of the column, and halted at the head of the column, in order to get time for the guns to pull up.

Q. Was the entire command at rest when Colonel Norris reached there?

A. The leading brigade was resting. The other was marching to overtake the leading one. On account of difficulty in hauling the guns, quite a gap intervened between one brigade and the other.

Q. Did Colonel Norris walk with General Brinton with his command for any distance?

A. When the brigade with the guns overtook us the order was given for the whole column to move forward. By that time Brinton and Norris closed their conversation, and we walked along a short distance. We all walked along together a little ways talking, and he decided to go back, and the carriage turned around and Norris got in and rode back.

Q. What was the distance he marched with General Brinton?

A. I could not state the exact distance. I do not remember the exact distance. It was not a great distance. Did not pay much attention to that.

Q. When General Brinton and Colonel Norris met, was there any considerable excitement in the party?

A. The only excitement was on the part of Colonel Norris. He was very much excited, and seemed to be full of expressed emotion. We were all very cool. We got over our excitement and cooled off. Got out of the fire, and we were not half as much excited as outsiders.

Q. What was the language used by Colonel Norris at that time to General Brinton?

A. Expressed great gratification at seeing him sound and well—something to the effect that he never expected to see him again, and glad to see him—an expression of great gratification, great friendliness.

By Mr. Larrabee:

Q. Did General Brinton say to Colonel Norris he would be damned if he would go back to Torrens and form a junction with Colonel Guthrie?

A. There was no language of that kind used on any one's part, no violent language of any sort, no obstinate language, everything was pleasant, in the friendliest manner, the whole conversation the whole time they were together.

By Senator Yutzy:

Q. Were you present, within hearing distance, during the time that Colonel Norris and General Brinton were together?

A. Yes; the whole time. They could not have said anything unless they had whispered without my hearing, and I saw no sign of whispering. I might add that we were all very much interested in what Colonel Norris had to say, what was going on in Pittsburgh, what was the situation in the city, and Colonel Norris described the events that had occurred, so far as he had seen or heard what was going on in Pittsburgh, and we were intensely interested in listening.

By Mr. Larrabee:

Q. What errand had Colonel Norris—what specific reasons, if any, did he make known that he came for?

A. I did not hear him specify any particular reason for his coming. I supposed, as a matter of course, he came out to see where we were, and hear what was necessary to be done, the proper thing for a staff officer to do; ascertain the whereabouts and condition of the troops. He seemed to want to know what we wanted and what could be done for us.

Q. Did he say he had been sent there by anybody—been ordered to go out and find General Brinton?

A. Didn't hear him say anything of the kind. I assume, as a matter of course, that he had been sent to see what had become of us.

Q. That you presumed?

A. Yes; that is, military custom did not require any statement. The proper duty of a staff officer, when any troops are scattered is to hunt them up and see what is the matter with them.

By Senator Yutzy:

Q. Did you hear General Brinton say what he intended to do, and what course he intended to pursue?

A. He said he wanted to get a place to give the men a chance to sleep, and get his men something to eat. They were entirely exhausted, and remarked that they were fit for nothing until they had that.

Q. Did Colonel Norris ask him to go back to Sharpsburg, where he could be supplied with ammunition and rations near the railroad?

A. Didn't hear anything of that kind said. It would have aroused me if I had. There was no ammunition at Sharpsburg, and no way to get it there. It would have been an absurd suggestion.

Q. The reason I ask that question, there was some testimony heretofore, that he had been asked to go back to Sharpsburg on the railroad, where he could be supplied with rations and ammunition. I want to know whether there was any suggestion of that kind on the part of Norris or any one else?

A. I did not know how we could get ammunition to Sharpsburg if we could not get it to the round-house. They might get it to us in the country just as well. They had to wagon it wherever they took it.

Q. Did Colonel Norris propose to furnish you with ammunition or rations—propose to furnish General Brinton with ammunition or rations for his command, or say anything about ammunition or rations?

A. The word "proposal" hardly covers it. He said he wanted to know of General Brinton if he wanted to go back for supplies, or whether he wished him to stay with him. And General Brinton said he thought it was better to go back for supplies. He particularly needed provisions right away. They might have used the word "supplies" two or three times, but he laid great

stress on the fact that the men were nearly starved. That was spoken of two or three times. We were in a pretty desperate condition for something to eat; hadn't eaten anything for twenty-four hours. I know that made an impression on my mind and on my stomach.

By Mr. Larrabee:

Q. What time was it when Colonel Norris arrived?

A. When Colonel Norris arrived it was along about ten o'clock. It might have been from half past nine to half past eleven.

Q. You had something at the Union depot within twenty-four hours?

A. I had not. I sat down to the meal after the others had had their sandwiches, just before two o'clock, and was called away when I was putting the first mouthful in my mouth. I never got back. I was sorry my politeness kept me from putting it in my pocket.

Q. Where did you get your first provisions?

A. Along in the afternoon a man overtook us in a buggy with some loaves of bread, which General Brinton purchased, and broke up in pieces and gave to the men. Some of the men didn't get any.

Q. Did anybody in Sharpsburg furnish your men with provisions and water as your men passed through?

A. The men helped themselves to the water.

Q. Any of the citizens furnish provisions?

A. Some one came out that evidently recognized one of our captains, and came along to inquire for him, and handed him a bundle of cakes and crackers, which he scattered around among a dozen or twenty men—perhaps it might have been twenty-five. The men that got the crackers and cakes broke them up and passed them around. There was only a few got those.

Q. In marching out Penn street, after you left the round-house, at what gait did the troops march?

A. They marched rather slower than ordinary quick marching time, on account of pulling the guns, which necessitated their moving slow.

Q. Was there any haste at any point in the line of march?

A. There was a sort of break or stampede at one point before they reached the arsenal, where there was an unusual amount of firing. There was a sudden fusillade of musketry and pistols out of the doors, and out of the windows. A great many came from the second story windows at one time, or windows having the ordinary outside blinds.

Q. Shutters?

A. Slat shutters. Most of the houses at that time became two stories high. The shutters were bowed, and there came a volley of pistol balls and some rifle balls, and some from the rear. More than half of all the men that were hit during the commotion, were hit within five minutes, in that block. The firing was so sudden and unexpected, and two men were killed at the time, and one mortally wounded, and several others wounded slightly, that the men instinctively stopped. That was in the second brigade, in the rear. The others were beyond it, immediately where this firing took place. I believe I mentioned that all the attacks were made on the men in the rear. They would wait until we just passed before they fired, and fired from behind, alongside of the rear column. The first brigade continued to march on. Our brigade halted, and the men, by common impulse, without any order, commenced to fire in these windows, from which the smoke came. Of course, it stopped the firing from the windows. Some of the men fired from back down the street, and we opened the Gatling gun and fired down the street. The moment we commenced firing with that, we could not see a living thing down the street. Saw a dead horse, and two or three dead men, some smashed signs, and then we succeeded, by loud talking, in getting the men to cease firing, and just at that moment I noticed that the first brigade, or the first regiment, was double-quickening the men in the rear to their

regiment, to close up the gap that had occurred in the straggling marching, and that had an appearance as though they were not marching away. The men at the head of the column were marching; in ordinary quick time, and in marching, the men would straggle out. It is very important, in a fight, that they should be together and touch elbows, and they were closing up, and some men in our brigade suddenly remarked, or raised the cry, that "the first is running away!" in the frightened tone of voice. It had that effect, and several others took it up and looked around, stopped firing, and saw that the first brigade was a block away from them, and with a common impulse, there was a sort of stampede or rush after them. The officers rushed around in front and could not stop them, and when they overtook the first brigade, they ran up into them in confusion. That was all the stampede there was. It was settled in a few minutes and got into shape again.

By Senator Yutzy:

Q. Do you know of any orders, written or verbal, urging General Brinton during the time he was in the round-house, or after he retired from there, within twenty-four hours, from General Latta, as to his course to be pursued after he left the round-house?

A. I do not know as I am a competent witness on that. I heard it second hand.

Q. Just what you know of your own personal knowledge?

A. I didn't see the order. I was informed through my brigade commander that the orders were to go east out Penn street, that was in reply to my expression of opinion that we ought to go to the Union depot and get our ammunition and supplies there. He told me General Brinton had orders to go east out of Penn street when we left. Of course, like a good soldier, I shut up. I supposed that was sufficient knowledge of the order.

Q. Any orders to General Guthrie to your knowledge?

A. I did not hear of any. All that was explained to me was that the order was to go east at Penn street when we left.

James H. Stewart, re-called:

By Mr. Means:

Q. Were you an officer in command of a regiment or brigade—a field officer or commissioned officer?

A. I was not, sir.

Q. I mean a commissioned officer at that time?

A. No, sir. I was not.

Q. What position did Colonel Norris occupy?

A. I do not know, I understood on the Governor's staff. I don't know whether he held a commission or not.

Q. Do you know whether he was commissioned or not?

A. No, sir; I did not.

Q. Do you know of any arrangement that was made through the colonel to have the troops rationed at any place or at any time?

A. Of the first division?

Q. Of Colonel Brinton's command?

A. Yes; I know something about it. I know we used every effort—do you want me to explain why?

Q. I want to know the whys and the wherefores.

A. Every effort was made to ration Brinton's command, whilst he was opposite to the round-house. We used everything in our power to do that. I myself had secured an engine from Cassatt, the vice president of the Pennsylvania railroad, and some gentlemen communicated with the Governor. Colonel Farr and Colonel Quay, and quite a number of us, carried

on some tubs of sandwiches, and I having learned that the fire had taken place on Liberty street, we then telegraphed out, and found it was west of Twenty-eighth street, consequently, we could not get the rations, and we abandoned that. I afterwards went out myself to the general, carried an order, both written and verbal. I then returned to the Union Depot hotel. Every person connected with us, was very anxious to get the general's command furnished with provisions.

Q. Then the sum and substance of it was, you didn't succeed in furnishing them with rations?

A. We could not, it was utterly impossible.

Q. Were there any other arrangements made to furnish General Brinton's command with rations, after they arrived at the round-house, and after they got away from it?

A. We would have furnished him, if we had known where the general was.

Q. I ask the question, and I expect an answer plain, whether you did or didn't?

A. Whether we had sent any rations to them?

Q. Whether you did furnish them, and whether there was an arrangement made to get rations to them?

A. We had made arrangements—if he had turned his column back from where he was, beyond Sharpsburg, we had made arrangements to send rations up by the West Pennsylvania road.

Q. Where to?

A. To Sharpsburg. I supposed we might meet him there.

Q. Then you had no definite place that you expected to furnish these troops rations at?

A. No, sir.

By Mr. Lindsey:

Q. Does the West Pennsylvania road run through Sharpsburg?

A. Yes, sir.

By Mr. Means:

Q. Now. Mr. Stewart, in short, what arrangements did you make to furnish them with rations at all?

A. Where do you mean?

Q. At any place after they left the round-house.

A. After they left the round-house?

Q. Yes.

A. We made no arrangements, for the very simple reason, that as I said, we could not find out where General Brinton's command was. You will remember, the telegraph lines were cut. We learned accidentally, that the general was retreating, and we would have used every effort in our power to get the command furnished with rations, and could have done it, if he had turned the head of his column back. And in this connection, I want to just state here, that so far as the First division is concerned, they were a valorous set of troops, and did good service for the county of Allegheny, used every effort that they could. I believe, that so far as my own personal knowledge is concerned, that General Brinton did everything that he possibly could to help along the trouble that occurred. He was posted there in the round-house all night, and I do not blame him, really.

Q. Do you mean just what you said: that General Brinton did all he could to help along the trouble that occurred?

A. Oh, no.

Q. I wish you would explain this; give an explanation.

A. What I want to say is this: the general in command did everything he possibly could to protect the citizens of Allegheny county.

Q. And suppress the riot?

A. And suppress the riot.

By Mr. Means:

Q. And the railroad property?

A. Yes, sir.

Q. I would like you to be a little more explicit—a little more definite in regard to these rations. When you intended to transport the rations to these troops, and how you intended to get them there, and if you intended to get them there at all?

A. In the first place, we didn't know where the first division were retreating to. We understood that they had left the round-house, and were going north. We then could have made—did make—some arrangements to send rations to them, as I said before in my testimony.

Q. What arrangements did you make—put them on cars, or take them by wagons—how did you intend to transport them over there?

A. If he had come back south of the Allegheny, we would have sent them out the West Pennsylvania road—if he had made a junction with Guthrie, as we wanted.

Q. As who wanted?

A. General Latta.

Q. Did you say as you wanted?

A. I didn't say as I wanted.

Q. As the commander-in-chief wanted?

A. The Adjutant General; the commander-in-chief was not there.

Q. General Brinton, or who?

A. If General Brinton had come, and made a junction with Colonel Guthrie, we could have fixed the rations for him—could have done so if he had stayed in Sharpsburg.

Q. Now, in what way could General Brinton have made that connection with Colonel Guthrie?

A. How do you mean?

Q. By what road did he or could he have made it?

A. When he left the round-house, it was as easy for him to go to Guthrie's command as it was to march out to Sharpsburg.

Q. As you appear to know something about these arrangements, I would like to know what arrangement was made to get General Brinton's command any ammunition?

A. What arrangement?

Q. Yes; or if any?

A. I do not know that General Brinton's command had been exhausted of ammunition. We could have furnished him with all the ammunition that he wanted; as Colonel Norris told him, if he would turn back the head of his column, and make a junction with Guthrie, we could furnish him with both ammunition and rations.

Q. Now, do you know that Colonel Guthrie had ammunition, and plenty of it?

A. He had enough for his troops.

Q. How do you know that he had?

A. Having been out there in the morning, before daylight, furnishing Colonel Rodgers' command with some ammunition, I happened to know that Colonel Guthrie had plenty of it, and then we had more of it at the Union Depot hotel, and could have furnished the general's command with all the ammunition that he wanted.

Q. Had you any arrangements by which you would transport that ammunition to General Brinton's command—from the round-house, I mean?

A. After he left the round-house?

Q. From the Union depot?

A. O, yes; we could if we knew exactly where General Brinton was.

Q. Did you have any arrangements made to do that?

A. Well, we knew just exactly how we were handling our own stuff there.

Q. You did not know exactly what you were doing?

A. Yes, sir.

Q. Did you know from the commander-in-chief that General Brinton was short of ammunition?

A. From the commander-in chief? The commander-in-chief was not there. The Adjutant General was there. I knew from what General Brinton had told us on his route north of the Allegheny that he was short of ammunition.

Q. Did General Latta know that, to your knowledge?

A. Not until we returned from seeing General Brinton.

Q. And when General Brinton had marched north, you say then you supposed him to be retreating, and you gave up all hopes of furnishing any provision or anything else—when General Brinton, you say, went north, out Penn avenue—I believe it is north?

A. North-east; yes, sir.

Q. Then, after you found he crossed the Allegheny river you gave up all hopes and quit making any efforts to furnish him with either provision or ammunition?

A. No, sir; we did not. I believe that every effort was made to furnish his men.

By Mr. Lindsey:

Q. I would like to ask Mr. Stewart in what capacity he was acting?

A. As a volunteer aid of the Adjutant General.

Q. And did what he directed you to do simply?

A. At what time?

Q. While you were acting as volunteer aid?

A. You don't want me to tell everything I know?

Q. No, sir; my question is, you did what he directed you to do?

A. Everything, of course.

Q. That was all?

A. Yes, sir.

Q. You did not assume to do anything on your own responsibility?

A. No, sir.

Q. Were you a member of the National Guard at that time?

A. I was not. I had been a major on the staff of General Pearson.

By Senator Yutzy:

Q. Of the National Guard?

A. Of the National Guard.

Q. And you went out with Colonel Norris because you were directed to go out there by the Adjutant General?

A. Directed to go by the Adjutant General.

Q. And all you know about ammunition or provisions is what you were directed to do in relation to it?

A. Of course that is all.

Q. In your testimony heretofore you stated that Brinton made a remark that he would be God damned if he would return to Pittsburgh again. Are you certain he made that remark and used that language?

A. I am under oath, am I not?

Q. Refresh your memory and see whether he made that remark?

A. The general knew Colonel Norris better than he knew me, and of course, was speaking to him.

By Mr. Lindsey:

Q. Mr. Yutzy asks you whether you are certain that he made that remark?

A. I most positively assert that General Brinton made that remark.

Major Lewis D. Baugh, re-called:

By Mr. Lindsey:

Q. State whether you were with General Brinton's command on Sunday morning on their retreat?

A. No, sir; I was not.

Q. State what knowledge you have of the dispatches sent by General Brinton to General Latta during the night of Saturday?

A. I cannot, without my memorandum. I was present when the dispatches came in, several of them, two of them brought in by a scout, I think.

Q. From whom?

A. From General Brinton.

Q. To General Latta?

A. Yes, sir.

Q. You were in General Latta's office?

A. I was in General Latta's office.

Q. When two of them were brought in?

A. I think one or two, I cannot recollect. I was there when the scout came in.

Q. When the first dispatch was brought in?

A. I think so, yes, sir. I came in the room and found him there. If I had a report here I could talk more plain.

Q. You mean the Adjutant General's report?

A. Yes, sir.

Q. Can you state the nature of the dispatch?

A. If I saw the book I could state which dispatch it is.

Q. Did you see any other one than those that are published in the Adjutant General's report?

A. I don't recollect of seeing any other. I was in General Latta's headquarters off and on during the evening, being cut off from my division, and naturally went to the next head-quarters, and I was in there during the

evening, trying to get my rations out to the troops. I was commissary of the first division, acting quarter-master at the time, I had some ammunition there as well as rations, and I was in the room and out of it until pretty near midnight, and then I attempted to join General Brinton by myself, and went up street in citizen's clothes.

Q. Did you succeed?

A. No, sir; could not get to the round-house, found that I would get shot very likely by our own men as I was in citizens clothes, and looked about as much like a rioter as any of the rest of them.

Q. Did General Brinton complain of being short of ammunition in any of those dispatches?

A. I think he did, short of ammunition and short of provisions.

Q. Do you recollect what he said about it?

A. No, sir; I do not, because it is all written down, and I had the report.

Q. Are all the dispatches that you read or saw, as coming from General Brinton that night, published in the Adjutant General's report?

A. I think they are. There may be some more that I did not see. I read it over, and found it pretty near as I knew. I tried my best to get provisions to him, and I delivered ammunition—four boxes—to somebody, to take out to some other station to some other troops.

Q. Torrens station?

A. Torrens station, I think it was. I recollect going down in the cellar of the hotel and getting them out; it was pretty hard work for some one or two people, besides myself, to lift them up. The elevator was stopped.

Q. You were the commissary of General Brinton's staff?

A. Yes, sir; I am regular commissary of the First division—General Brinton's division.

Q. And as such were in consultation with the general during the night?

A. Yes, sir.

Q. Do you know of any supplies being provided to General Brinton's command during the night, or at Torrens station?

A. No, sir; not that I know of. There were some supplies I sent down there, but whether they reached or not I do not know; I don't think they did. Some started out there. The supplies went out in a wagon; I did not send those out—out to the round-house. When General Brinton started, he directed me to remain there and make arrangements to ration the troops in the evening and following morning. I made the arrangements, and after getting through with that arrangement I went on the track, and found there had been a fight.

Q. You say you were not with General Brinton when Colonel Norris reached him?

A. No, sir.

Q. When did you see General Brinton after that?

A. I think about three o'clock in the afternoon, as near as I can recollect, without having any watch on me.

Q. Of Sunday?

A. Yes, sir.

Q. Did General Brinton say anything about having seen Colonel Norris?

A. I do not know that he did—I do not recollect it.

Q. Did he tell you anything about Colonel Norris having been to see him?

A. I don't think he did. As soon as I found they had left the round-house, I heard they had gone to the arsenal. I heard Captain Breck say to somebody that they had gone to the arsenal. I drove there, and found they were not there, and somebody said they had gone to the right. I followed out, and crossed the railroad track, and came to the hospital, and down to the hotel

again. I found they had gone to Sharpsburg. I hired another carriage, and drove out to Sharpsburg; and when I got to Sharpsburg, I was bothered which road to take, and I daresn't ask anybody. I found the mark of the shoes that the column had moved in the road, and I followed up that road some distance.

Q. General Brinton did not mention the fact of Colonel Norris having met him that day?

A. I don't recollect of it.

Q. Did he say anything about having received any orders from General Latta?

A. No, sir; he asked me for orders as soon as I got there. I told him I had none. Then I went back to General Latta for the orders.

Q. Why did you go back?

A. He wanted orders.

Q. Did General Brinton send you back for orders?

A. Yes, sir.

Q. Where did you go?

A. Drove down the river road to the bridge, about opposite to the Monongahela House; crossed there, and went to the Monongahela House, and went to General Latta's room, and found him, and delivered a note to General Latta.

Q. From whom?

A. General Brinton.

Q. What did General Latta say in reply?

A. Asked where General Brinton was, and I told him back on the hills about the poor-house, as near as I could tell, being a stranger there, then he gave

me written orders to give to General Brinton.

Q. When did you tell this to General Brinton?

A. When he gave me the written orders, I asked him about provisions, and he says, I was commissary and it was my business to feed them. Says I, "Yes, but it is your business to give me some stuff." They had not time, and they left me there. Major Lazarus, one of the special officers, was in the room all the time, and there was a captain of the first regiment. I took them down with me, and turned around to Lazarus, and says I, "You read these orders. In case I do not reach General Brinton, or you see him first, give him these orders." Then there was two of us, in case one got picked up then the other would deliver the orders. When I crossed the river at the West Pennsylvania depot, he drove down and delivered the orders. As soon as I got out in the morning, I overhauled General Brinton and gave him the written order.

Q. Do you know what those orders were?

A. If I had a report here, I could tell you, sir.

Q. They are published in the Adjutant General's report?

A. Yes, sir. The substance was to proceed to Altoona.

Q. What is the date of the order—can you give that?

A. Sunday night, about nine o'clock, when I received it.

Q. You may give the substance of the order, as near as you can recollect?

A. To proceed to Altoona, and Mr. Creighton would furnish transportation. When I went back General Latta gave me orders that General Brinton should have it to-night. I went out, and jumped in a wagon, and started over.

Q. While you were at the Monongahela house, did General Latta say anything about General Brinton having disobeyed his orders?

A. No, sir.

Q. Did he say anything to you about having sent orders to General Brinton?

A. Not to me. Didn't hear him say a word about it.

Q. Did he mention having sent Colonel Norris or Captain Aull with orders?

A. No, sir; didn't say a word to me about it. I took General Brinton a note in, and handed it to him, and he then dictated an order. The order was written out, and handed to me, and delivered to General Brinton.

Q. Do you know whether Colonel Norris had returned?

A. I don't know anything about him.

Doctor J. E. Mears, re-called:

By Mr. Lindsey:

Q. State whether you were at the Union depot on Saturday morning, when Colonel Norris was sent by General Latta and General Brinton.

A. I was, sir.

Q. You may state what conversation took place between General Latta and Colonel Norris?

A. I don't know that I can state positively the conversation. I came to the hotel about eight o'clock on Sunday morning, went to General Latta's room, and reported that the troops had left the round-house, having learned that fact at the hospital, where I had spent a portion of the night, and said to him that I proposed to purchase some medical stores, and join him at once, and asked him where I should go to join him, and he told me to go to the arsenal. At that time, Colonel Norris was making preparations to join General Brinton also. What their conversation was, I cannot state positively, or what the nature of the instructions given to him were. I knew that he was going to see General Brinton, and, at the time, my impression was that he was going to see him in a friendly way. I knew that he was not officially connected with the National Guard, and the impression I had arrived at, at that time, was, he was simply going out to see him in behalf of General

Latta, as a friend of General Brinton, to see what had happened and what condition they were in, but I didn't understand, at the time, that he was going officially to him.

Q. Was Captain Aull there, at the time?

A. That I cannot state positively. I went into the dining-room of the hotel, and had a conversation with Captain Breck. That I remember, but I don't remember of meeting Captain Aull, at the time.

Q. Did you see the major, Saturday?

A. I didn't, sir. I may have seen him not to know him.

Q. Did you see Colonel Norris when he started in the carriage?

A. I didn't; because Colonel Norris started before I did. He took a hack, and I was going to a drug store to get some medical stores, and also going to a livery stable to get a conveyance, and Colonel Norris left the hotel before I had left Pittsburgh. As I said in my testimony before, I met once, after he had seen General Brinton.

Q. State what conversation you had with him?

A. I took with me, at the suggestion of Captain Breck, a man who had acted as scout during the night, a member of Murphy's cavalry, I believe. He went with me on account of my being a stranger in Pittsburgh, and showed me the way to the arsenal. When we reached the arsenal and found the troops were not there, and when I was denied admittance by the guard at the gate, or refused to be permitted to go near the gate or have conversation with him, I drove on, and the crowd knew nothing at all about the country beyond that point, so that the way was ascertained by asking persons, of course very cautiously, so as not to let them know what our object was. I followed the command by watching the road and seeing the foot-marks across the bridge going through Sharpsburg, and got through Sharpsburg and passed into the country, turned to the left, and I should think, not more than a quarter of a mile from the point at which I met Colonel Norris returning to the city. He was in a carriage with another person whom I did

not know, and to whom I didn't pay particular attention. I got out of the buggy and halted them. They didn't seem to be very desirous to be halted, because it was not desirable that it should be known who they were in that portion of the country. I asked the colonel where the command was, and he told me it was about a quarter of a mile beyond, on the hill. That was the only conversation I had with Colonel Norris. As I said before, he wasn't desirous of stopping very long to give me any information. His words and manner was such as indicated that it was not desirable that we should be seen conversing together, or holding any communication which would indicate that they were in any way associated or connected with the troops, as there were persons along the road that had followed up the command. I joined the troops, certainly no more than a quarter of a mile beyond. I found them resting in good order.

Q. When you joined the troops and met General Brinton, did he say anything about having received any orders from Colonel Norris?

A. No, sir; he didn't.

Q. Did he say what he intended to do?

A. I asked him the question, and he replied that he was going to the poor-house to get a place to rest his command, and also to get food, and I asked him whether he knew where the poor-house was, and what his information was, and he said that a citizen or some person at Sharpsburg had directed him, and told him to go there, that he could get food there, and get an opportunity to cook his rations.

Q. Did Colonel Norris say anything to you as surgeon of the division about having the column halted at any point?

A. No, sir; he didn't.

Q. To dress any wounds?

A. No, sir; not a word. It was as much as I could do to get him to halt them enough to ask him what I regarded as a very important question, where the command was, that I should join him.

Q. Did he say anything about what his business had been to the command?

A. Not a word; no, sir.

Q. Was there anybody in the carriage with him?

A. There was a person, sir, whom I didn't know. They were sitting—both of them—back in the corner of the carriage very closely.

Q. Would you recognize the person now?

A. No, sir. I didn't see anybody in the room whom I should recognize as being with Colonel Norris. I didn't closely examine the person. My business was with Colonel Norris, because I knew him, and desired simply to get the information from him.

Q. Did you know Colonel Norris?

A. I knew him by sight, having met him with the Governor's staff on one or two occasions. I had seen him at the hotel before.

At this point the committee adjourned, to meet to-morrow morning, at Reading, Pennsylvania.

READING, *April 19, 1878.*

The committee met at the Mansion house, at eleven o'clock, A.M. Mr. Lindsey in the chair. All members present except Messrs. Reyburn, Larrabee, and Yutzy.

George S. Goodhart, *affirmed:*

By Mr. Lindsey:

Q. State whether or not you were coroner in July last, at the time of the difficulties here among the railroad employés?

A. I was coroner; yes, sir?

Q. Still holding that position?

A. Still hold that position. I was elected at the same time that Samuel J. Tilden was elected—elected, I say, that is my opinion.

Q. Can you state what day the first difficulty among the railroad employés broke out here, or commenced?

A. No; I cannot. I cannot state the day. I presume it was within a week or somewhere about the 16th—15th or 16th of July. I would date it about a week anterior to the time these men were killed, which was on the 23d, Monday. The excitement ran very high throughout the day of Sunday.

Q. Will you please give us a history of how it first started, and then trace the extent of the difficulty and troubles along up until you come to the date of the conflict between the strikers and the militia?

A. Well, I don't know that I can answer that question with much accuracy. There had evidently been for some time before considerable contending between these engineers who were suspended and the Reading Railroad Company. It is that, I presume, that led to the difficulty.

Q. What time were the engineers suspended by the railroad company?

A. That is more than I can say.

Q. Was it some time prior to this difficulty—outbreak?

A. Yes; certainly it would be prior to this.

Q. How many of them had been suspended?

A. That I cannot say—a large majority of them, I think, that were on the road were suspended.

Q. Were there a large number of them suspended, and were without employ in and about the city of Reading?

A. It was generally so supposed.

Q. And the first dissatisfaction was among that class of men, was it?

A. Yes; and those who sympathized with them. There were differences of opinion among the citizens here. Many sympathized with the railroad company, and many, also, with these employés, and the feeling during the day of Sunday was very much against the Reading Railroad Company.

Q. That was Sunday, the 22d?

A. Yes; the 22d, and on Monday the general impression was here, with those that I had interviews with, that property and shops would be set fire to that night.

Q. The railroad shops?

A. Yes; during the day of Sunday, there was a good deal of excitement on the street here, on Penn street, and a great many people congregated out about the corner of Sixth and Penn and Seventh and Penn.

Q. What class of people generally gathered?

A. They were mostly workingmen, men thrown out of employment.

Q. Men from the manufacturing establishments?

A. Manufacturing, yes, sir; mechanics and laboring classes, principally.

Q. How large a number assembled?

A. I presume I saw as many as fifty to seventy-five, probably one hundred at times during the day on Sunday.

Q. What day was the railroad bridge across the Schuylkill burned?

A. It was burned that same night.

Q. Sunday night?

A. Yes; sometime during the night, about midnight, I think.

Q. This assembly of men on Sunday, was it composed of railroad men—were they actually engaged in running trains then—or was it men who had been discharged?

A. I am not prepared to answer that question, because I know very few of the engineers on the road. I do not know that I can point out a single man of them.

Q. Did the Reading railroad continue to run their trains?

A. They did on Sunday, I think, and a part of the day on Monday. On Monday, towards evening, some of the trains were stopped here in the city by some parties. It seems some of them were boys. Young men got on to the trains, on to the locomotive. At one time, I understood a boy—however, I don't know that I can say that, either, it was so stated by some of the witnesses, that a certain boy got on to a locomotive, and moved it back and forth, just about as he would a little wagon—made a plaything out of it.

Q. Drove the engineer from his engine?

A. Yes; they got off some way.

Q. You did not see them?

A. No; I did not see them. In fact I did not go on Seventh street at all on that day. I don't think I was on Seventh street on the Monday.

Q. Did the crowd remain together during the night of Sunday night, or did it disperse during the evening?

A. That is more than I can say, but I should suppose that it did not disperse very early—I think it highly probable that they kept up looking round for news.

Q. What street were they on on Sunday?

A. Principally, Penn street—corner Sixth and Penn streets.

Q. What was the character of the crowd, as being demonstrative?

A. Well, they were anxiously looking for news from other quarters, from Pittsburgh and Baltimore, where they had been on the strike, and, as a matter of course, they would congregate in front of the telegraph offices. Well, the news came pretty direct to the *Eagle* office, and they looked there to the bulletin boards for exciting news, and they came around for that purpose, and there was some of them, no doubt, were hard cases, and ready for any emergency.

Q. Were they noisy and boisterous?

A. I cannot say that they were.

Q. Did you have any conversation with any of them?

A. No; I did not.

Q. What seemed to be their troubles and grievances. Did they make them manifest in any way?

A. Well, the main grievance among them, that I could learn, was the depressed state of things, being out of employment, not able to get anything to do, and want generally.

Q. Who did they seem to blame for that state of things?

A. There was a good deal of censure placed upon the Reading Railroad Company, more than perhaps any other.

Q. On Monday morning was that crowd still in the streets?

A. Yes; there were some there on Monday morning.

Q. How large a crowd?

A. Probably not so many. I do not think there were so many there that morning as there were on Sunday evening and during the day on Sunday.

Q. Had the news of the burning of the bridge reached you then?

A. Well, not until during the night. I heard the fire alarm bell, but I did not get up. I did not go out at all.

Q. The fire alarm was sounded, was it?

A. Yes, sir.

Q. Were there any efforts made to extinguish the fire by the fire companies or civil authorities of the city?

A. Well; yes, sir. They went out, as was stated, before the inquisition—before the inquest; the firemen went out, Chief Boyer was there and a number of others, and it appears they could not do anything towards arresting the fire in any way. Some of the cars, I think, were set on fire, some box cars they had out there. Afterwards, it appears, that the report came that the bridge was on fire—that was stated before the inquest, that the mob was so great that they threatened the engineer, the chief of police, and other parties there that intended to suppress the flames—to put down the excitement.

Q. The mob would not permit the firemen to work?

A. Would not permit them to work—to put any water on the fire at all.

Q. Did they use any violence towards the firemen?

A. Not that I could learn.

Q. Did they make any efforts?

A. Not any that I know of.

Q. Do you know whether the police of the city were there—any of them to protect the firemen?

A. The chief of police was there, and no doubt he had a number of the police with him.

Q. Did you see the crowd during the day? How large a crowd was there during the day on Monday?

A. I suppose it would vary, likely, from one hundred to one hundred and fifty.

Q. Where were they mostly during the day?

A. Between the Keystone house, and the *Eagle* office.

Q. They still continued to gather around the bulletin boards?

A. Yes; around the bulletin boards. Some of them would come over, occasionally, to look at the *Times'* office, but most of the news came through the *Eagle* office, and the consequence was, the most of the crowd were in front of the *Eagle* office, there and at the Keystone house.

Q. How was it at the railroad depot, and about the railroad offices?

A. I don't know, for I didn't go there at all.

Q. Do you know how large a crowd was there?

A. No.

Q. Do you know whether there was any efforts made by the civil authorities of the city to disperse the crowd during the day?

A. Well, there was an effort made, at least it so appeared in the inquisition, that parties went to the sheriff, with a view of getting him to render some assistance. One party, a man by the name of Miller, proffered to suppress the mob with fifty men. Said that if the sheriff would allow him to, that he thought he could procure that number of men. This was sometime during the day of Monday that this statement was made. The proffer was made to the sheriff.

Q. Made by Mr. Miller himself?

A. By Mr. Miller, in company with Mr. Wood.

Q. What reply did the sheriff make to that offer?

A. I don't know the exact words—I have all that testimony down.

Q. Give us the substance of it—of his reply?

A. He did not feel disposed to do anything. They said they would get arms and ammunition, and everything that was necessary, to put it down, if he would give his consent, which, it seems, he declined to do; and when they said they would get the arms or guns, he said the rioters have guns, too; and he also said to them that he would not go to do anything by way of suppressing it, for fear that he would be shot the same as the sheriff was at Pittsburgh.

Q. You had received news, then, that the sheriff of Allegheny county was shot, had you here?

A. Yes; at that time.

Q. Which afterwards proved incorrect. Was that the only reason that he gave for not accepting the proposition of Mr. Miller?

A. I am inclined to think that was the only plausible reason he gave. He didn't believe in going out and being a target to fire at.

Q. Did he make any effort to arrest the parties who were in the disturbance during Monday?

A. None that I can learn.

Q. Did he make any effort at any time?

A. I think not.

Q. Did he call for any posse to assist you in any way?

A. He swore in the next day quite a number of deputy sheriffs, but on Monday I don't think he called on any. He issued his proclamation and called and put it up, I think, in the evening, about five or six o'clock.

Q. On Monday?

A. On Monday.

Q. Now, can you give us the substance of the proclamation?

A. No; I cannot. I didn't see it.

Q. Didn't see it?

A. No.

Q. Was there any call made for the militia to come out, by the sheriff, to preserve the peace?

A. No.

Q. Do you know how the militia happened to come here?

A. Well, it was said afterwards that they came here by the order of General Bolton.

Q. Monday night—go on and describe the situation of affairs, if you will—where the crowd was, and what took place on Monday night?

A. The main crowd was up at the corner of Seventh and Penn, and where there are always quite a number of men congregated, particularly at that hour, shortly before dusk, and about that time. There had been large crowds there for some weeks or so, who frequently congregated there, and on that night, as a matter of course, it would be expected there would be more, in consequence of the transactions that took place during the day. People went there to see the excitement, and so on, and it was with a great deal of difficulty, as I understood from the testimony of Chief Cullen, that they could keep the pass-way clear, to allow people to pass up and down the street. I think, if I mistake not, Mr. Cullen had nearly all his force there. He was chief of police, and once or twice, I think, he stated he got the pass-way cleared. It was soon blocked up again. Just about dusk, or a little after, it appears that General Reeder arrived with some men at the outer depot. Mr. Paxton, in communication with him, told him where the rioters were, and where one of the cars were that they wished to release from the mob. That was at the commencement of the cut there. The general ordered his men right there to release that car, and I suppose, passing through the cut. He

concluded to force his men right through. I don't know what acquaintance he had with the surroundings of the cut, but it strikes me very forcibly, even now, and has all along, that if he had sent a dozen men on either side of that cut, and his main body of men through the cut, that there would hardly have been a drop of blood shed. As these troops moved up the cut, they were met with volleys of stones and missiles, pistol-shooting, &c., from above either side, as they were passing along; and, indeed, I cannot see how they got through there and escaped with so little injury as they did. It looks to me almost a miracle. Have you observed the cut—have you been up there?

Q. Only in passing through it.

A. The testimony came in that they would throw stones large enough—well, too large for one man to handle—take two men—at one time two men were seen to get hold of a large stone, and push it right over, apparently on to them. They were treated in that way, until they got to the lower end of the cut, and they marched up the tracks on either side, I think, principally, on the west side. When they got about two thirds of the way through the cut, they fired forward, killing a number of men right at the corner of Penn and Seventh. One man was killed about two squares—better than two squares—below. He was on his way up town, somewhere. A man by the name of Trace, I believe.

Q. A citizen of the city?

A. Yes, sir; a citizen. Two or three men were killed on the southeast corner or near the southeast corner of the street, near the gutter. One or two of them were on the sidewalk. I think it very remarkable, indeed, that these men would come through there, and when they met with these missiles on either side of them, that they would fire forward, and being attacked as they were, it would appear as though they would fire in almost any direction for relief, and get out as speedily as possible.

Q. After they passed through the cut, did they encounter the mob at the end of the cut?

A. Some of them. Those that were throwing these missiles, on either side, I dare say, didn't organize in front of them; but there was some of the parties—some of the same mob—there.

Q. Was there any firing there, after they had passed through?

A. No; not after they had passed through.

Q. What street did they come out on, in passing through the cut?

A. Out on Penn street, and then down Penn.

Q. There was no firing, as they passed through the cut?

A. No; not after they had got on to Penn, west of Seventh.

Q. Did the troops accomplish what they were sent to—started to accomplish—gaining possession of the car?

A. Yes; they did that.

Q. How long did the troops remain in the city, then?

A. Well, during the night, I think. I think they left the next morning.

Q. Do you know where they went to from there?

A. No; I don't; but I learned that they had gone back to Allentown or Easton.

Q. Were any troops left at Reading, at all?

A. Yes; there was some left at the outer depot.

Q. To guard railroad property?

A. To guard the property of the railroad company.

Q. Was there any disturbance occurred after that Monday night?

A. None, that I could learn.

Q. Was the mob dispersed by the firing that took place?

A. Effectually.

Q. Did they ever rally, or come together again?

A. No; no rallying there.

Q. I wish you would give us the number of killed—the number that was actually killed—so far as you can?

A. There were ten killed—then another one subsequently died, about six or eight weeks, I think, afterwards—Corbett—from the wounds received at the same time.

Q. Making eleven in all?

A. Making eleven altogether.

Q. Were these all citizens, or a portion of them soldiers?

A. They were all citizens—no soldiers.

Q. Were any of them actually engaged, or were they citizens who had congregated there out of curiosity?

A. The larger part of them were there out of curiosity. Two of those that were killed were said to have had something to do with this matter, and were not innocent. The others—that is, taking it for granted that they were innocent, by being there, which the law, I believe, doesn't grant, either—may be said to have been innocent. Trace was, perhaps, the least censurable of any of them, for he was far away from the scene where this was transacted.

Q. I understand you to say this: of the killed there were only two who were actually engaged in the riots?

A. I would say, whose record was not altogether clear—free from censure.

Q. Now, how many persons were wounded, so far as you could ascertain?

A. That I cannot ascertain; but I presume there were as many as six or eight more that were wounded—probably more.

Q. Do you know how many of the soldiers were wounded?

A. No; I didn't learn, but I understand—I think that there were but two or three that were in any ways seriously hurt—none mortally.

Q. Now you may state what efforts were made by the sheriff on Tuesday—Monday night and Tuesday to preserve the peace?

A. The only effort that he made then that I know of was that he sent notice to quite a number of the citizens to call at his office and be sworn in as deputy sheriffs. What instructions they received from him I don't know.

Q. Do you know how many offered themselves or responded to his notice?

A. I don't know, but I understood there was some five or six hundred citizens that were sworn in by him or his deputy.

Q. What efforts did the mayor make, if any, to preserve the peace during the entire disturbance?

A. The mayor was not here at the time, but returned the night, I think, shortly before these troops left. He afterwards went out to the depot and was in communication with General Reeder, if I mistake not. I don't think that anything further was done to suppress the mob, for everything was quiet then.

Q. The chief of police was on the ground was he?

A. He was on the ground, and I think manfully did his duty.

Q. How many police were on duty at the time in the city?

A. I suppose there were about twenty-five or thirty, I forget the number.

Q. Do you know what authority the mayor has in case of riot and disturbances, given by the charter of the city or the laws relating to the city?

A. I have never read them. I have never read the charter of the city; but my own judgment would tell me that he had power of suppressing—the same power of suppressing a riot that a sheriff would have.

Q. Was that matter discussed, or taken into consideration by the citizens at the time? Did you hear any expression by legal gentlemen as to what the power of the mayor was?

A. I cannot say that I did; but the matter was discussed pretty freely among citizens, and some seemed to think that the mayor ought to have suppressed the riot. I presume he would if he had been here.

Q. Did he arrive here before the firing took place in the cut?

A. No.

Q. Not until after?

A. Not until afterwards.

Q. Did the chief of police make any arrests, to your knowledge, prior to the conflict between the troops and the mob?

A. No; they made no arrests so far as I could learn. It seems they were under the impression that they were almost entirely powerless with the meager number they had to arrest them.

Q. They didn't feel strong enough to cope with the mob without greater assistance?

A. No, sir.

Q. Were any arrests made that afternoon?

A. Yes; a great many arrests.

Q. By what authority—by whom?

A. Well, by the chief of police—they made the most of the arrests.

Q. Were any arrests made by the sheriff?

A. I think not. I don't know of any.

Q. The arrests then were mostly made by the chief of police on warrants issued by the mayor?

A. I think they were issued by the mayor.

Q. What was done with those persons who were arrested?

A. Some of them were taken up to jail. Others were released on bail.

Q. How many have been tried?

A. I suppose there were between forty and fifty that were tried—they were to have been tried. Whether they have all been or not, I don't know.

Q. How long is this cut?

A. Well, it is nearly two squares.

Q. How soon after the soldiers were in did they begin to attack them?

A. Within about probably fifteen or twenty minutes.

Q. Did they continue to fire on them then until they got down on to Penn street, where the cut runs down level?

A. No, not quite. I don't think there were any stones thrown after they had passed Court street, within just half a square from Penn.

Q. The firing didn't commence until they got on to the cut?

A. No; it was before the firing on the soldiers you mean?

Q. Yes, sir?

A. It was not, I think, until after they passed Court street—about that.

Q. It was still in the cut?

A. Still in the cut.

Q. Then they got out of the cut on to level ground, and then it was that the firing was done, and when the mob was dispersed.

A. Yes; there was firing done there, and at Penn street. They couldn't fire up and down Penn street without being very close to it.

Q. And this stone that took two men to throw down—did that hit anybody?

A. That is more than I know; not directly, evidently, or it would have killed them.

By Mr. Means:

Q. Was the sympathy of the people of the city of Reading with the strikers, the discharged employés of the Reading railroad?

A. Well, there was sympathy on both sides, evidently; and during the day, on Monday, I am inclined to think, quite a number of the people sympathized with the strikers, rather than with the railroad company.

Q. You say on both sides. Now, I would like to know what you mean by both sides?

A. I mean the Reading Railroad Company and the dismissed engineers of the road.

Q. Then, in your opinion, the sympathy of the people of Reading was with the employés of the Reading railroad in striking and destruction of property?

A. No; I couldn't say that.

Q. My question was simply this: that I wanted to know if the citizens of the city of Reading were in sympathy with the strikers, or the discharged employés of the Reading road?

A. I should say no; although they had a good many to sympathize with them here in the city.

Q. Well, then, Mr. Goodhart, were they simply discharged employés of the Reading road that participated in this destruction of property?

A. That question I cannot answer, because, as I stated before, I don't know any of the engineers of the road now.

Q. Did there appear to be any tramps or any strangers connected with this party who were with the engineers or employés of the Reading road?

A. So far as I know they were all strangers to me, and I have very little hesitation in saying, that a good many of them were strangers, coming here from a distance.

Q. From a distance and from other sections of the country?

A. Yes, sir. I think a number of them were strangers, not citizens of the place, nor had they been in the employ of the Reading Railroad Company.

Q. To your knowledge, do you know whether or not, the mayor of the city of Reading ordered out his police to suppress these rioters?

A. Not to my knowledge.

Q. When the mayor was not here, was there any person in authority?

A. The chief of police. Chief Cullen, he has stated, took his men up to the corner of Seventh and Penn that evening, and I presume did his utmost to clear the pass-way there, and suppress the mob. What effect it would have had upon them had they arrested two or three or half a dozen of these men I am not prepared to say, it might, possibly, have dispersed the mob.

Q. Well, then, Mr. Goodhart, in your opinion, what amount of men would it have taken to suppress this mob and restore order and peace?

A. I should think that one hundred and fifty or two hundred men would have done it, properly armed.

By Mr. Lindsey:

Q. What other property was destroyed beside the destruction of the bridge?

A. There was a few houses that were burned.

Q. Any freight in them?

A. I think there was some, and then there was some property destroyed right on the road here in the city.

Q. Private property?

A. No; that was cars loaded, and there was one car filled with tobacco, that was broken into and a great deal of it being carried away.

Q. Was there any property beside railroad property destroyed?

A. No, I think not; not that I know of.

Q. What day was the other property destroyed—before or after the destruction of the bridge?

A. That was afterwards.

Q. The bridge then, I understand, was the first thing?

A. No. These cars, at this side of the bridge, were the first, I understood, that were burnt, afterwards the bridge, and then, on Monday—this was on Saturday night—and on the Monday, there was some property destroyed on Seventh street; coal trains were arrested, and the coal was dumped down right on the track, at different places. The watchman's house was turned upside down.

Q. Now, I understand you to say that the citizens, some of them, sympathized with the railroad employés who had been discharged, and some sympathized with the railroad company? That is the way you put it, I believe?

A. Yes, sir.

Q. Well, now, was there any sympathy manifested by the citizens of Reading for those strikers or employes after they began to destroy property—or, in other words, in sympathy with the destruction of property?

A. None whatever, that I could learn.

By Mr. Means:

Q. There was no disposition on the part of the rioters, Mr. Goodhart, if I understand you, to destroy any property except that which belonged to the Reading railroad?

A. Yes; just so.

Q. Not outside of it?

A. Not outside of it.

Q. Where did you get your information in regard to Mr. Mullin having proffered his services to the sheriff?

A. Got it from his own testimony.

Q. Before you at the coroner's inquest?

A. Before me; yes, sir, and through Mr. Wootten, also. He testified to the same thing.

E. F. Evans, *sworn*:

By Mr. Lindsey:

Q. You were mayor of the city of Reading during the past summer?

A. Yes, sir.

Q. You may tell us, if you please, where you were when the difficulties in July occurred?

A. On the Friday morning preceding the riot in this city, which occurred on the Monday, or rather the burning of the bridge, took place on Sunday night. What was known as the riot, followed on Monday night, and the firing of the troops, and so forth. I left this city for four or five days, and went down to Ocean Grove, following the example of the Executive of the State, the mayor of Philadelphia, and the mayor of Scranton, to spend a few days there, intending to return the following week, and at that time I did not dream or apprehend of any danger here with a strike or anything of that kind. On the following Monday morning, at the Grove, I received a telegram about half past ten or eleven o'clock, from the chief of police of this city, that a number of cars were on fire. At that time it said nothing of the bridge, in fact that had not been fired, I believe, at that time. I picked up my things, and left in the first train, which was shortly after twelve o'clock. After reaching Allentown that night, at probably seven o'clock, I was informed that the train had been taken off the East Penn road, and I could not reach home. I then telegraphed to Mr. Wootten. I stated my position in the telegram that I could not get home. He then ordered a train to bring me over—a special car and engine was placed at my disposal—and we started out and ran here, probably at half past ten or eleven o'clock. That was on Monday evening—on, I believe, the 23d, if I mistake not; at any rate, it was Monday evening.

Q. Monday evening was the 23d?

A. I reached this city after the firing had taken place, and these men had been wounded. I came in from the depot and came down to my office, issued a proclamation requesting our citizens to uphold the authorities of the city. Had it published that night, or rather in the morning paper. I then went up to the depot and remained there until two or three o'clock in the morning, requesting during that time that if there was any trouble, the military being out there, that they should take charge, my police officers then, five or six of them being wounded, and they had been on duty Sunday night, and all day Monday and Monday night. On the following day, then—I think it was the following day—I swore in probably from one hundred and twenty-five to one hundred and fifty men, furnishing them with maces, to

go on duty if any further danger was apprehended. There was but little occurred after Monday night. I believe the tracks were torn up in some places on Seventh street, but not to any extent. Didn't amount to anything, and that was about the closing of what I—we did everything we could after I returned home—the city authorities—to suppress any further violence or outbreak.

Q. And succeeded in preserving the peace?

A. After that there was nothing occurred.

Q. Did the citizens respond heartily to your call?

A. As a general thing, as I have stated, probably one hundred and twenty-five or one hundred and fifty were sworn in, and they were willing to do duty when called upon.

Q. Was there any question about your authority to call out a posse of citizens?

A. It was voluntary. It was supposed, that the sheriff, having unlimited power, should have acted, whether in my absence or not, particularly in my being absent, and should have called on parties up there. I do not know when he reached here. There was a train or engine sent for him to bring him back to the city. He resides somewhere below the city. Of course, hearsay evidence does not amount to anything, but they said he didn't act as promptly as he should have done. That is what I heard after I reached home. When I reached home on Monday evening, I learned he had issued a proclamation sometime that evening.

Q. Everything was quiet on Friday, as I understand you, when you left?

A. I didn't apprehend any danger at all. There was nothing spoken of riot or any outbreak, or anything of the kind—didn't dream of such a thing.

Q. Was there any larger number of idle men, discharged men, in the city at that time than usual?

A. Not that I know of. I passed around portions of the city, the greater part of it, and I found nothing that would be necessary to call into order the police officers after I returned home.

Q. How large a police force had you at the time?

A. That I cannot exactly tell. At that time it was reduced, either before or after that, I think, however, before that—amounting to some twenty-six or twenty-nine men.

Q. Did you make any arrests after?

A. There were quite a number of arrests made. I think in all to be probably fifty—forty or fifty, or along there.

Q. Did you learn what the cause of the outbreak was?

A. Only from hearsay.

Q. What did the men themselves assign? What did they give as their reasons?

A. I didn't converse with any of the men on the subject.

Q. Did you form any opinion of yourself?

A. In reference to the outbreak?

Q. In reference to the cause of the outbreak.

A. I didn't. Nothing more, than I presume it was stimulated by the action taken in other portions of the country. There was then an outbreak, I believe, in some portions of Maryland, if I mistake not, near Baltimore, and perhaps in Pittsburgh, or near there.

By Senator Torbert:

Q. The bridge was burned down before you returned?

A. Yes, sir; I believe Stokley left the same day I did, and also the Scranton man.

At this point, the committee adjourned till half-past one o'clock, this afternoon.

AFTERNOON SESSION.

READING, *April 19, 1878.*

The committee met, pursuant to adjournment. All members present, except Messrs. Reyburn, Larrabee, and Yutzy.

Peter Cullen, *sworn*:

By Mr. Lindsey:

Q. State where you reside?

A. I reside 1022, Centre avenue.

Q. Were you connected with the police officers of the city of Reading in July last?

A. I was.

Q. In what capacity?

A. Chief of police.

Q. State what day the first disturbance or assemblage of strikers in any considerable number occurred?

A. That was on Sunday night, July 22.

Q. Had there been any difficulty threatened before that, to your knowledge?

A. There didn't appear to, in a general way, going round the streets—the principal streets. There had been a great deal of talk. Parties gathering, would talk quietly. Some were excited; that is, on the news received from Pittsburgh. That seemed to start them up some, but there was not anything particular done until Sunday night, on 22d, when the mob went out to the outer depot, or the new depot of the Philadelphia and Reading Railroad Company, and the first intimation I had that a mob had gone out there; in fact, I did not expect anything serious. The first intimation I had, was standing at the corner of Fifth and Penn, and I was informed that the crowd, or mob, had gone out to the depot, and were at the depot. That they were there, hooting and yelling, and throwing stones before the engines, and pulling down engineers, and so forth. I immediately started out this street, to go to the depot, and I got as far as Fifth and Elm, and found that box 35 fire-alarm sounded, and I also saw the flame of the Philadelphia and Reading Railroad Company's property. Saw flames near Fifth street bridge, between the depot and the bridge, just about a square off—not more from the depot; and I took Fifth street route, and then saw the crowd had gone over into the cut, and on to the track of the Lebanon Valley road, and I saw the cars were on fire. As I got to Fifth and Elm, I found Chief Engineer Boyer going out in his usual style, and I proceeded to the fire, and when I got there, I found there were a good many people there. The cabooses were on fire and burning on the tracks at that time. There didn't appear to be any disturbance of any kind, but the crowd was very large. That was Sunday evening, July 22, and the crowd was large, and somewhat excited; but there was no fighting. There was nothing in the way of any disturbance going on at that time, as the work had been done, which it appears the rioters had accomplished—which was intended. That was to burn the cars. I saw Chief Engineer Boyer then, and asked him about the fire department going into service, and he said he had been stopped, companies had been stoned, and were not allowed to go into service. We consulted together, and told him we would do all in our power to get the fire department into service. He was willing to do anything; and then G. A. Nichols, the vice president of the Philadelphia and Reading road, he came there, and myself and Chief Engineer Boyer and Mr. Nichols talked about this matter together, and

Nichols asked me how many officers I had there. I looked around, and found I had about six or seven officers, and Mr. Nichols asked me if we had all revolvers and pistols. I told him, I was not so sure about that. I thought the most of the men had. I had, and I thought most of the men had. I came to the conclusion that this matter was a very serious disturbance, and we agreed that I would get the entire police force together, and to go immediately to the scene of the riot, and to get the fire department in the service, and instructed the men on the ground to do all in their power to assist Chief Engineer Boyer, of the fire department, and keep the peace, so far as was in their power to do so, until I could get back with the balance of the force. I got as many of the men together as I possibly could, and instructed them to proceed at once to Chief Engineer Boyer, to render him such aid as was in their power to do so; and we found by the time I had got around, or not quite around—and found a box on Jefferson street had sounded an alarm, and the cry was raised that the Lebanon Valley bridge was on fire, and I saw the illumination, which showed that the bridge was on fire. I proceeded to the telegraph office, and telegraphed to Mayor Evans to come home at once, that the cabooses were burning, and that there was serious trouble apprehended, and the state of affairs at that time was very bad in the city. The whole population was very much excited, and there were a great many of the people in the city, in the confusion, running round in the streets, in all directions. Everything seemed to be confused. When I found the bridge had been on fire, instructed the officers to go to the bridge, and they did so; but when they got out, that work of destruction had been completed, so far as the bridge was concerned. The city that night was in a continual state of excitement, and the property of the Reading Railroad Company seemed to be in danger, if not the city of Reading, and matters went on in that way, and also on the following day, (Monday.) The mob kept together. They stopped engines, and were drinking around and disorderly, and they seemed to have a great many sympathizers in the city at the time. I sent out for two hundred men. There were two prominent gentlemen in Reading, Captain E. P. Boas and Henry S. Eckart, that called upon me at the office, and asked what could be done. I told them I was willing to do anything, but we wanted more help, and this thing done right,

and they agreed at once that they would be responsible for two hundred men. They would see that they were paid, and they would equip them and give them all seven-shooters and cartridges, and so forth. I then detailed a number of men—cannot tell the exact number—to go out in the different parts of the city, and to prevail upon parties to come to the city hall, and to go on duty to help squelch the riot. I waited and waited, and all in vain, and the reports that came in by the different officers was that they could not get anybody to assist. They would only laugh, and make different kinds of remarks; they didn't want their heads shot off, and they were going against their friends, and it was a workingman's fight, and all that sort of thing.

Q. What time was that?

A. This was immediately after dinner, on Monday, the 23d, and I only found there was one man I could get in the whole city to respond to the call of two hundred men. I inquired about the sheriff that night.

Q. State what inquiries you made of the sheriff?

A. I first went to the residence of the sheriff, where he lived, on South Sixth street—that was about twelve o'clock, or half-past twelve, Sunday night—and they informed me that he was not in the city. He had been down home, somewheres near or in the neighborhood of Pottstown—a little this side. I didn't know what to do at the moment, so I called on Judge Hagenman and told him the state of affairs, and how the city was, and how the town was in danger of being destroyed, that the torch of incendiaries had been applied to the property, and all that, and I asked what might be best to do under the circumstances. I told him Sheriff Yorgy was not home, and he advised me at once to try to get Yorgy to come to the city as quick as possible. I immediately, then, went to the office of Mr. Paxton, the master machinist of the P. and R. Railroad Company, and I met him at his office. That was on Monday morning, about one or half-past one o'clock. It might have been in the neighborhood of two. I asked him whether he would accommodate me—whether he could send a telegram for Sheriff Yorgy to come on at once to the city, that there was a riot here, and a large mob had gathered here and were destroying the property of the P. and R., and the city of Reading was

in danger. Mr. Paxton was willing to do anything, and had the telegram sent. I also asked Mr. Paxton if he would furnish a special engine to bring the sheriff on to Reading, as it was very important. Mr. Paxton did so, and had an engine furnished to the sheriff, and he had also a conveyance from the sheriff's house to the engine. The sheriff arrived, to the best of my knowledge, early in the morning, about daylight, or thereabouts. I went to the sheriff's office on that Monday morning, and found him in his office in the court-house. I went to consult him as regards the situation, and making arrangements to see what could be done. Told him it was necessary to act at once, and act promptly, and to get at least five hundred men if he possibly could. He seemed, at that time, willing, and said he had sent for William B. Albright. He wanted to consult with him as regards the matter, and he showed all signs of willingness to act and perform his duty on that occasion. I told him I was willing to do anything to aid, help, or assist in the matter, and to have this thing wiped out; and I came back to the office, then, on that morning, and waited there with the intention of reporting to the sheriff, and about nine or ten o'clock on that morning Mr. J. E. Wootten, the superintendent, at that time, I believe, of the Philadelphia and Reading Railroad Company, and he informed me at the city hall that the sheriff had backed out, and was not going to act; that he would not do anything. I was very much surprised to hear that answer, as he had seemed to be willing in the morning, and matters were getting worse all the time. On that Monday evening, at six o'clock, I took the entire police force.

Q. Now, starting with the Monday evening, you give a full history here in this evidence? [Indicating testimony taken before coroner's inquest.]

A. From there on, as to what occurred?

Q. A full history you give here?

A. Yes; it is about correct there as to the trouble.

Q. State whether this is evidence given by you before the coroner's inquest?

A. Yes; that is all correct.

Q. This is your evidence, given under oath?

A. That is evidence given under oath before Coroner Goodhart at the city hall, immediately after the trouble.

Testimony offered in evidence is as follows:

On Monday evening, at six o'clock, I started out with the force for Seventh and Penn streets, where a large crowd had collected. I informed the officers that we would have to go there, and do our duty. I found that nearly all the officers had pistols. Marched them to Seventh and Penn. Saw thousands of people there. Many strangers whom I had never seen before. There were people in all directions. The pavements and walls, as far as I could see along Seventh street, were lined with people, and the crowd extended up and down Penn street; and I got into the crowd at Seventh and Penn streets. I called upon the crowd to disperse, but the people paid but little attention to me. I then ordered the force up, for the purpose of pressing the force back, which they did, and I succeeded in clearing the pavements. Cleared the whole corner and crossings, and I kept the passage open on one side for a certain length of time to allow parties to pass, as also the street cars. A large number were forced up the cut in driving them away, most of whom were strangers, which made the crowd there much larger. I then drew the force up in line from Bechtol's corner over toward the Ubil house. I was expecting an attack at that time from the party in the cut. I noticed then, that they disconnected the engine, and commenced running it up towards us, as also the freight car, and I expected that they intended to attack our police force. They came forward to within sixty or seventy-five yards of us. They saw our lines were firm and solid, and they then stopped. I remained in that position for some time with the force. I found then that the party I had at first dispersed, had come in around me in all directions. Things then became quiet in the cut, and the people remained there. I then formed the force north and south, with the right resting on Breneiser's corner. I had all the police force that was at my command. I had them along the one track. I then detailed men to open the crossings, which they succeeded in doing. That position enabled us to keep the crossings clear, and to allow street cars to

pass. The crowd was very large during all this time. There were thousands there. The first disturbance that I heard, was on Sunday evening about nine o'clock. I heard they had stopped a train, and that they had things their own way. There had been gatherings on Saturday evening, but there was nothing of a serious nature. There were no arrests made until Tuesday. I had twenty-six or twenty-eight men on the force at my command. I consulted on Monday with some of the officials of the road, also on Sunday. They made no report to me of threatened destruction of their property. I was at the firing of the caboose on Sunday evening, and had seven or eight men there. I received information of a disturbance at the depot, and went there—the alarm struck before I got there. I saw the light from Fifth and Elm streets. I was not at the Lebanon Valley railroad bridge. I met Howard Boyer at the first fire. He told me his carriage had been stoned, that the mob would not let him put any water on the fire. I consulted with Howard Boyer, and we concluded that it would be best not to interfere. We had no idea who the parties were who were implicated in this matter—they were not all strangers—some of them have since been arrested. I applied for special power. I was authorized by two citizens to raise a special force of two hundred men. I sent the members of my force out to endeavor to enlist men to do special duty up to six o'clock in the evening, but failed to obtain any. There was no person here who had appointing power. Persons laughed at our policemen when they asked for help. Five officers of the force were seriously wounded on Monday evening. I received information on Monday evening, at Seventh and Penn, that troops were coming. Half an hour afterwards heard that troops had arrived at the outer depot. I was not present at their arrival, was not requested to be there, had no communication with them. Did not know who ordered them here, or for what purpose they had come. The first I heard, was two pistol shots from above Court street. I didn't see any bricks thrown, as I had enough to do at Seventh and Penn. I couldn't see anything but the people, as everything was a solid mass. I saw some of the killed and wounded, and helped to carry some of them off. I knew Mr. Weaver, who was killed. The first I saw of the soldiers, was when they passed down Penn. I saw no wounded soldiers then, but have seen several since. During Sunday night and Monday I felt that my force was

entirely inefficient, from the large crowds which were gathering and the excitement. I had a consultation with Sheriff Yorgey in his office in the court-house, soon after his arrival. I had telegraphed for him to come at quarter past two o'clock on Monday morning. I telegraphed from the depot, after trying at several other places. I had arranged with Mr. Paxton to furnish a special train to bring him up. He arrived about five o'clock. I informed the sheriff of the condition of affairs at seven o'clock in the morning. Told him it would be necessary for him to summon a thousand men, or thereabouts. He told me he had intended to do it, but it would take some time. I was certain he intended to do it, but he told me had sent for William B. Albright, and was waiting for him. I telegraphed him that I wanted help. Two hours after my interview, Mr. Wootten, of the Reading railroad, called upon me and said that Sheriff Yorgey refused to act, which very much surprised me. There was no force called out until to-day. I placed myself in communication with the mayor, telegraphed to him at a quarter past twelve, A.M., on Monday, July 23. I informed him of the condition of affairs. Asked him to come home at once, that tracks were being torn up, freight cars had been burned, &c. I was told that the telegraph office at Ocean Grove had closed. The mayor arrived in Reading on Monday night. The men on the police force obeyed my commands whenever I asked them to do so.

I heard two pistol shots in the cut, and immediately afterwards I heard a volley. Those balls did not come down our way, of any account. The next volley came into us, as well as the third volley. I realized the situation at once. The people commenced running in all directions. I requested all of them to get out of the way. I was struck by a ball on my left breast, while on duty at Seventh and Penn. I was expecting that the military, upon their arrival, would report to some of the civil authorities. All the information that I received was, that the troops had arrived at the outer depot.

There were shots fired on Penn street. Know that shots were fired down, as I was in the party. At about half past seven in the evening, was informed of the arrival of troops at the outer depot. Things looked very serious that night after the militia arrived. They reported to me at Fifth and Penn. I found the

people were greatly excited in regard to the shooting, and I kept them away from the soldiers as well as I could. There were no riotous disturbances in this city after that, except the tearing up of the tracks. I do not know who ordered the soldiers to come here. Was satisfied they were coming, but did not expect that they were coming in the way in which they did.

On being re-called, Chief Cullen said (while the cars were burning) I consulted Mr. Boyer in regard to the situation, and asked him whether it wouldn't be better to attack the party and try to get the fire department into service. I had only seven or eight men with me that evening, and the crowd was very large. When I was there every person was quiet, and the cars were burning on the track. There was no breach of the peace there, so far as I saw. When I asked Mr. Boyer whether it wouldn't be better to make an attack, I believe he answered, "Yes." He told me he was not armed, and I said that under the circumstances I would go into town and get as many men together as I possibly could for the purpose of doing my entire duty; but before I was half way through I noticed that box No. 7 struck an alarm, and immediately afterwards I saw a light looming up along the Lebanon Valley railroad, and I knew there would be trouble, and I told my men to go out and do everything in their power to assist Mr. Boyer to get the department into service. At that time a number of the police were taking lunch, and I had difficulty to get them together. By that time box No. 7 struck again, and I saw the fire looming up at the Lebanon Valley bridge. After I got as many of the force together as I could to go out there, I went to the telegraph office and telegraphed to Mayor Evans to come home at once, telling him of the situation. Then I went to the City hotel to see the sheriff and I was told that he had gone to his home in the country. I then went to see Judge Hagenman at his residence, as affairs were very serious. I told him that neither the mayor nor the sheriff was in town. Judge Hagenman advised me that the best thing to be done would be to telegraph for the sheriff at once. I immediately started out and found the telegraph office closed. I went down to Seventh and Chestnut and saw Mr. Blackman, and asked him where the telegraph operator was, and he told me that he had just gone home. He sent for him then and the operator came to the office, and I telegraphed to the sheriff at once that there was a mob here of about two

thousand persons and there was great excitement, that they were tearing up the tracks and burning cars, and so on, and that he shouldn't fail to come. I then saw Mr. Paxton, master machinist, and I asked him whether he would furnish an engine to bring the sheriff up to Reading at once, and he said he would, and he also engaged a conveyance to bring him to the depot, and the sheriff arrived in Reading, as far as I know, at about five o'clock in the morning. I addressed the crowd at Seventh and Penn streets on Monday evening. The feeling seemed to be all one way among the persons who had gathered there. I approached Seventh and Penn with the police, in front of Breneiser's store, and I announced to the crowd to disperse. I appealed particularly to all good citizens to go to their homes so that we would know with whom we had to contend. My voice was loud, so that the people could hear me a considerable distance on Penn and Seventh.

I had no power to appoint persons on the police force or call out a posse. Made an effort to get two hundred and fifty men, but failed to get even two men. Found it difficult to get anybody. Persons who were asked, laughed and said they didn't want their heads shot off. The mayor left on Friday morning previous to the disturbance, when everything appeared to be quiet. The city charter, I believe, empowers the mayor to raise a posse the same as the sheriff. This power, I believe, can not be conferred upon the chief of police. Two hundred men, armed, would have done a great deal towards quelling the disturbance.

Q. Did you have any conversation with the men engaged in the riot, at any time?

A. I had, on Sunday—Sunday afternoon, the 22d of July.

Q. What complaints did they make?

A. They were talking about the Pittsburgh troubles, and that seemed to be all the go on Sunday, seemed to excite them, and they talked about it, and that was all that was done, so far as talking and exciting and gathering in crowds. I did go into one party, and they were talking over these troubles. In Pittsburgh, the riot was going on at the time, and I had said to them that

they would be a great deal more thought of and respected by keeping out of difficulties of the kind, and attending to their business, than in gathering, and going into riots, and one party made the remark, "That was not bread and butter," and that seemed to be the feeling generally among the elements that were going around the streets, and gathering in crowds. The sympathy seemed to be considerably in favor of riot, on the Sunday and Monday, and it only commenced to turn about on Tuesday.

Q. What did they appear to complain of—set out as their grievance? Did they seem to have any particular thing?

A. No; they did not seem to say much on the matter, so far as that was concerned, as I know of, but the whole feeling seemed to originate from the Brotherhood of Locomotive Engineers, and the feeling in the city of Reading was very strong in favor of the Brotherhood of Locomotive Engineers; at least two thirds of the city, as near as I could calculate, they seemed to sympathize with the men's dispute between the company and themselves, and that feeling seemed to follow in reference to the troubles commencing here.

Q. Do you know what that dispute was?

A. As near as I understand, and so far as I was informed, the Philadelphia and Reading requested the Brotherhood of Locomotive Engineers that they would have to quit the organization called the Brotherhood of Locomotive Engineers, and to apply to something similar of their own, which would be beneficial, and as much derived from it as what they would have received from their own, and that the company would not have them in their employ unless they complied with those terms. I heard that spoken of. I cannot say to that officially, because I don't know it. That seemed to be the general talk.

Q. Had there been a large number of them discharged by the company prior to this disturbance?

A. Well, they were all either discharged or else quit. I believe the men quit. I don't think there were any discharged. I believe the men all quit, that is,

the engineers and firemen, and a great many brakemen quit, and I believe some conductors quit.

Q. Was it the engineers that had been discharged—the idle employés of the railroad here that first started this disturbance?

A. It appears so, that is, some parts of them—not all. There were some men of their brotherhood implicated in these troubles from the first start-out, others did not appear to have much to say or do as far as we know.

Q. What class of men, so far as you could judge, were engaged in the actual destruction of property, and burning of the bridge?

A. I have knowledge of two of the party that I had caused the arrest of. One of them was a railroad man employed by the company, and the other man had nothing at all to do with the railroad company, so far as I knew; who used to boat on the canal, and perhaps he would be brought into their employ in that way. I believe he was a boatman.

Q. Was this one employed by the railroad company at the time?

A. He was one of the men that quit the employ of the company.

Q. What in your judgment was the actual cause of the riot here?

A. I do not believe we would have had a riot in Reading, if the troubles had not started in Pittsburgh. That is my opinion of it, and I would judge to the best of my knowledge, and from what I know, that the troubles originated in this city from the dispute between the P. and R. engineers and the company. That seemed to be at the bottom of it, because some of their men participated in private meetings, held in this city previous to the outbreak which we knew of.

Q. And the news from the city of Pittsburgh from the outbreak there stimulated the movement?

A. That stimulated the movement, or give it a start. That seemed to start them up, and made them quite lively on having some disturbance.

Q. Do you know what the damage done to the railroad property was. What it was estimated at, including the bridge and the burning cars?

A. I can't say exactly; but it may have been—it was in the neighborhood of anywheres between \$150,000, it may have been more, or a little less, may have gone probably about that. The loss of the bridge was somewheres in the neighborhood of \$100,000. I believe there was some ten or twelve freight cars burned, and some cabooses burned. There were telegraph poles cut down, tracks burned up, engines damaged to some extent, and soon. The actual amount, of course, I am unable to say; but I suppose somewheres in the neighborhood of \$150,000, may be less and may be more.

Q. I understood you to say that this bridge was on fire before you reached the place with your police?

A. Yes, sir; the party, when they made this start to go to the Lebanon Valley road from the depot, after they had the engine stop there, &c, and committed their depredations, they started out on the tracks going right from us, and they commenced setting the cars on fire right straight along. There were a number of freight cars standing between the Fifth street bridge, where the first cars had burned, and the Lebanon Valley bridge, and they had them set on fire, and they appeared to keep on right straight ahead, until the whole thing was in flames. There did not appear to be any disturbance we know of, in all that movement. It seemed to be a concocted and well understood plan.

Q. Was there any sympathy with the strikers manifested by any of your police force?

A. Well, I can't say about that. To the best of my knowledge there was not. They did not express this in my presence. If there was, I have no knowledge of them expressing themselves as being in sympathy with the rioters, that I heard of.

Q. Did you have any trouble in getting them to obey orders, or do anything you required of them to do to preserve the peace?

A. No, sir; they did just as I told them, I had no trouble whatever. They were willing to just obey any order that was given in the performance of their duty.

By Mr. Means:

Q. Do you know of any communication between the railroad employés of the city of Reading, and any of the railroad employés of the city of Pittsburgh during this strike?

A. No, sir; I do not. I have no knowledge at all on that subject.

Q. You said in your testimony, that had it not been for the troubles at Pittsburgh, you would not have had any trouble at Reading. Now I want to know how you know that?

A. The reason I know that, is owing to telegrams being brought here to the city of Reading, and posted on bulletin boards.

Q. To whom were those telegrams sent?

A. The telegrams I have referred to, were sent to the *Eagle* office, they were on the bulletin boards of the *Eagle* office.

Q. To the editor of the *Eagle*?

A. I can't tell who they were sent to, but I saw them on the bulletin boards.

Q. What was the import of those telegrams?

A. Well, they were about the trouble there, and about firing—the trouble in Pittsburgh, in a general way, showing a great deal of trouble, and fighting, and riot going on there.

Q. In short, those telegrams were to the effect that the rioters had possession of the railroad property at the city of Pittsburgh?

A. I believe that was about the way it worded, or something like that. I cannot say positively the exact wording of the telegram.

Q. I just want this for information?

A. Certainly, I understand, I will answer all questions.

Q. I just want to know this, that if there was an understanding—did you as an officer, in the absence of the mayor of the city of Reading, believe that there was an understanding between these rioters, in the city of Reading, and the city of Pittsburgh?

A. There may have been, but I do not know it. I have no knowledge of that at all. As regards any understanding between the parties here, and the parties in Pittsburgh, I do not know. The only reference I had in regard to the trouble in Pittsburgh, is, as I stated, that I believed that had it not been for the trouble there, the probability is, we might not have had any here, because the news coming here, seemed to stimulate the matter.

George S. Goodhart, recalled:

By Mr. Lindsey:

Q. State whether this is the testimony taken before you at the coroner's inquest held here in July last? [Indicating paper.]

A. It is; yes, sir; I took it down.

Q. You reduced it to writing yourself?

A. I did, myself.

Q. The witnesses here were all sworn?

A. Sworn.

Q. This is the testimony of John E. Wootten, as it was taken down by you? [Indicating.]

A. Yes, sir; *verbatim*.

The testimony of John E. Wootten, taken at the coroner's inquest, offered in evidence, and is as follows:

John E. Wootten, General Manager Philadelphia and Reading Railroad Company, *sworn*:

I called at Sheriff Yorgey's office at about nine and a half o'clock on Monday morning, 23d July, and said to the sheriff that I had come to see him for the purpose of asking him to take some means for the protection of the property of the railroad company, and for the suppression of the mob then threatening to destroy not only the railroad company's property but that of the citizens of Reading. The sheriff said, "Well, what can I do?" I asked him if he had learned of the destruction of the Lebanon Valley bridge and of the burning of the company's cars. He said that he had. I replied that he should issue his proclamation, and call out a force for the suppression of violence and incendiarism. "Yes, I know that, but the men when called upon would not come." I then told him that in such an event I would engage to furnish him with a sufficient force to suppress the mob, and if he wished it, the force would be well armed. He replied "Yes, but the rioters also have arms?" I then said, "Do I understand you to say that nothing can be done by you to check the riotous and incendiary spirit that now threatens to destroy so much property, and for which damage the county is liable?" He replied by saying that he did not see that he could do anything. I said, "Suppose you advise with counsel in relation to the matter." He replied that he had had a talk with Judge Sassaman about it. I asked what he said. The sheriff replied that he did not know what course would be taken.

I then left the office, and in the corridor I met Reverend B. R. Miller, who said that the existing condition of affairs at Reading required immediate action, and that he, for one, was ready for any call that might be made upon him to assist in the suppression of the mob. I replied that I was very glad to hear him say so, and told him that I had just called upon the sheriff, who was disinclined to act, and that I would make another appeal to the sheriff if

he would accompany me to his office, which he did. I then told the sheriff that Mr. Miller had made a tender of his services for the suppression of disorder, and that I thought there would be no difficulty in getting as many more of our citizens as he might want. To which he replied that he didn't know yet what he would do in the matter, and after somewhat of a repetition of my previous conversation with him, in the presence of Mr. Miller, I left the sheriff's office and proceeded to the office of Chief of Police Cullen. Immediately after the interview with the sheriff I went to Philadelphia and conferred with President Gowen. At the time of my interview with the sheriff, so far as I knew, no one had any intimation that any troops were coming. The troops were sent at the order of General W. J. Bolton. After my arrival in Philadelphia, I telegraphed General Bolton that Reading was entirely without protection.

Q. State whether this is the testimony of Reverend B. R. Miller, as taken down by you, at the time? [Indicating paper.]

A. It is so.

Testimony of Reverend B. R. Miller offered in evidence, and is as follows:

Reverend B. R. Miller, *affirmed*, said:

My story is a short one. Coming from my home, on Monday morning, July 23, I saw an unsettled state of affairs at Seventh and Penn. Of course, I knew what had been going on the night before, and I stopped, and then passed on about my business. I saw Mr. Wootten enter the sheriff's office, and followed him, and I said, when he came out, "This is a great scare, and if the sheriff will give me arms and ammunition, I will raise fifty men, and quell the riot before night," and he said, "Come in, and we will see him." Mr. Wootten said to the sheriff, "Here is a volunteer, will raise men for you." The sheriff said, "I would rather not do anything about that," and wouldn't entertain the proposition at all, and Mr. Wootten turned around on his heels, perfectly disgusted, and left the office. This was between nine and

ten o'clock in the morning. I didn't know the soldiers were coming until I met them on the platform. Don't know who ordered them through the cut. When I offered to raise men, I thought that was the time to work, but the sheriff wouldn't do anything.

Q. State whether this is the testimony of Sheriff George R. Yorgey, as taken down by you?

A. It is.

Testimony of George R. Yorgey offered in evidence, and is as follows:

George R. Yorgey, *sworn*:

I am the high sheriff of Berks county. Noticed no collision between the militia and citizens or disorderly persons on Monday night. Was in my office at the time, and remained in the office until eleven o'clock that night—Monday night. No officer of the militia, nor any person called upon me between those hours at my office to quell this riot. I had no notice, whatever, that any troops would arrive on that night. Was not aware that any troops were here until I heard the firing, and after they told me. I was never consulted in reference to the military at all. I never ordered them nor knew nothing about them being ordered. They never formed any part of my posse. Daniel Francis and the watchman of the court-house were with me in my office. I was waiting for orders which detained me until eleven o'clock. After the firing, I inquired to know the result and what had been done. Was told that the crowd had dispersed. I did not visit the scene of disaster. I was there once on Monday, saw the crowded condition of the streets, and witnessed the riotous proceedings. Saw this when I posted up my proclamations on the four corners. I should have been informed of the coming of the troops, but was not informed. I do not know whose business it was to tell me. I informed the railroad officials where they might find me if they wanted me to call out the *posse comitatus*. I telegraphed this to Mr. Gowen, Monday afternoon about four o'clock, shortly before I issued my

proclamation, and I received no answer from Mr. Gowen. The militia came here without my knowledge, and I had nothing to do with them after they were here. In the forenoon things were middling quiet, and in the afternoon I had my proclamations struck off. I was not in the city on Sunday night, and came up from my Douglass township farm Monday morning at five o'clock. I heard the news Monday morning, and in the evening at five issued my proclamation. I did not think I should have issued my proclamation early on Monday morning instead of waiting until nearly night. In the forenoon of Monday, Mr. Wootten called on me and offered to furnish me with men. I did not issue my proclamation sooner because I could not get ready any sooner.

Peter Cullen, re-called:

By Mr. Lindsey:

Q. State what the conduct of the militia under the command of General Reeder was during their stay in Reading, so far as you are able to judge.

A. Well, the conduct of General Reeder and his troops was good, so far as I know. They behaved well, and obeyed the commands of the officers, I know. Immediately after the firing, he marched his command right in front of the Mansion house; and he asked me what was best to be done, or something to that effect, in a general way to inquire about things, and I told him that the Philadelphia and Reading Company seemed to be the property in danger, and I suggested to him that it would be a good idea to go to the new depot, and I furnished a guide to escort his command to the depot. It was then dark, probably half past eight o'clock in the evening, and a great many of the mob followed down. The streets were filled with people at that time, and, undoubtedly, there were a great many of the rioters there—I know there were—and he had his command formed here in front of the Mansion house, Fifth and Penn, and there were some of the men going to attack the soldiers with their sleeves rolled up, and some had brickbats in their hands. One man I had requested one officer to arrest, and he was

locked up, and he was going to attack the soldiers of Reeder's command, but Reeder's command was all soldierly, and had a good line of battle when they formed in front of the Mansion house, after their fight in the cut; they seemed to have perfect discipline all throughout.

Q. Were there any other troops here whose conduct was not as good as General Reeder's?

A. The Sixteenth regiment was here. I saw some of the members of the Sixteenth regiment on the streets, walking about loosely, and one of the members I asked him where he was going to, and got into a conversation with him, and I saw he was away from his command, and I asked him why he did not stay with his command, and he told me, he was not going to fire on his fellow workmen—that he didn't come here to do that. He showed me his hand, and says he, "Do you see that I am a workingman myself? I am not going to fire on any workingman."

Q. Who commanded the Sixteenth regiment?

A. I can't say positively about that. I believe Colonel Good is commander, or was the commander.

Q. Did you meet him, or have any conversation with him?

A. I did not come in contact with any of the officers of the Sixteenth regiment then.

Q. Knew nothing of his conduct but what was soldierly?

A. Never heard anything but what was right on the part of the officers of the regiment; and, undoubtedly, a large portion of the Sixteenth regiment was right. And I had received positive information that members of the Sixteenth regiment had been dealing out ammunition amongst the rioters in the crowds on the street during the day time.

Q. Of what day?

A. That was on Tuesday, the 24th of July.

Q. Did you have any conversation with more than one of the regiments?

A. Yes; I spoke to several, as they were walking about, and they did not seem to care about being connected with the military at all. They were walking round independent—didn't seem to care whether they had any duty to perform as soldiers. I did not see very many of them. I saw, probably, five or six in that way; but I heard a number of reports in regard to their giving out ammunition. I have that from worthy sources.

Q. Did you call the attention of the commanding officer to that fact?

A. I had word sent to that effect to the officer at the depot, but whether it was communicated to him, I am unable to say. But I did send word out to the depot that some of the men had been in amongst the crowd of rioters dealing out ammunition. That made the worst feeling of all that occurred—the soldiers giving their ammunition away, and mingling around with the rioters, and being away from their command. I cannot tell whether they were away from their command with leave. I suppose, certainly, they ought not to have leave given in a crisis of this kind, and I judge they must have been absent without leave.

Q. How long was the regiment here?

A. The Sixteenth were here, I believe, about a day and a half, to the best of my knowledge.

By Mr. Means:

Q. I would like to know from whom you received the fire—or if you did receive any—at the cut at Penn street, I believe you call it?

A. Seventh and Penn.

Q. You received a volley of musketry, or pistol shots, or something there. Whom did you receive it from?

A. From the military. I had a police force right on our tracks.

Q. It was at Seventh and Penn, if I am rightly informed?

A. Yes, sir.

Q. That is a part I had already forgotten, but it came into my mind a while ago, that while you had that police force there, you received a volley fired by somebody there at that point. I would like to know who it was from?

A. To the best of my knowledge, it was from the soldiers.

Q. Of what command?

A. General Reeder's command. The soldiers came down through the cut, and the first firing we heard, there were some parties said they are firing blank cartridges. The first firing I heard was pistol shots, that was the starting of the fire, but the crowd was very large on both sides of the cut, and the cut was pretty well filled with the rioters—with the mob, and the first I heard was pistol shots, and then I heard louder shots that seemed more like gun shots, and rifle shots. There were several of them, and immediately afterwards, there was a regular volley fired right down in the crowd.

Q. Have you ever been in active service in the army?

A. Yes; I have been three years and nine months.

Q. And from what you know of being there, did you consider that this shooting was musketry, or was it pistol shots?

A. It was musketry, it was rifle firing—there was pistol firing and rifle firing. The shots were sharp enough, that I knew they were minie balls.

Q. Could you tell whether there was a volley or skirmishing?

A. First, there were a few shots fired that went over our heads. Then a second volley was fired—a heavy volley, and just took a low range.

Q. You were there at that time, if I am rightly informed, endeavoring to clear that track, and keep that cut open?

A. Keep the crowd open, trying to disperse the crowd at that time.

Q. That is the time you received the volley?

A. That is the time we received the volley. The military did not see the police force, nor did the police force see the military. It was just dusk, and about that time the crowd was very large, and they came marching into the cut, and were at the corner of Seventh and Penn, right on the railroad tracks, and they got very close upon us before we knew it, owing to the large crowd.

Q. If I understand you, the military fired on the party, not knowing who they were firing on?

A. They were brick-batted and stoned, and pistol shots fired on the soldiers in the cut before they fired, and from the best information I have, and in that way I judge they did it in self-defense.

By Mr. Lindsey:

Q. You don't think that they knew, or had any intention of firing on the police?

A. No; I don't believe that. About the place where the military commenced firing was in the cut, between Court street and Washington street bridge, or about there, and the crowd or mob was all up along that place, from Walnut street, for two squares above in the street, and on the sidewalk, and all along the walls of the cut, and it appears the military came in through the cut, and when they got in they were attacked, and the pistol shots fired, and to the best of my knowledge the shots came from the wall of the cut, right above, over the soldiers' heads.

Q. That is what I wanted to know—if you believed that the firing was done in self-defense?

A. That is the way I looked at it. I looked at it in that light. They did it in self-defense, and the pistol shots seemed to come from the wall. That was pretty close—only half a square from the place where the firing took place.

At this point the committee adjourned, to meet at the call of the chairman.

HARRISBURG, *May 2, 1878.*

The committee met at half past seven o'clock, P.M. Mr. Lindsey in the chair.
All members present.

Colonel A. Wilson Norris, re-called:

Q. Colonel, you may state briefly the facts and details in reference to your visit to General Brinton, on Saturday morning, of July 22?

A. Well, I can only state the substance, probably, of what I stated before. When I discovered in the morning that General Brinton had escaped from the round-house, I believe the information was first brought by Captain Aull, of the Grays, and afterwards we ascertained through Captain Breck. There were no officers, I think, at the time, but Colonel Stewart and myself, and I volunteered to go to find—in fact, I was not an officer. I would like that stated. I volunteered to go and find General Brinton. I was moved to this action out of my regard for General Brinton, personally, and for his command, a great many of whom were my friends, and for public reasons, which I thought paramount to all. I thought it was very necessary to effect the junction with Colonel Guthrie and the other troops that were to join him, and I said to General Latta, that if he would procure me a carriage, I would endeavor to find him. At this time, or a little before, the order that is contained in the Adjutant General's report, and which closes, I believe, with an allusion to me, and with a suggestion to General Brinton to consult with me, was written and handed to Captain Aull, and at the same time was read to me, so that I could understand the purport of it. Captain Aull then left with the same purpose of reaching Brinton. When I volunteered to go, Colonel Stewart said he would accompany me, and rose off the bed where he was lying, and when the carriage came, we started and rode through the mob, which was chiefly on Liberty street—I believe it is called. We passed

right up Liberty street, over the hose, and through the mob. There was no other way for us below them at that time, and after going a few squares we passed down to the street below. I do not know what the name of it is—I think Penn street; and we went in pursuit of General Stewart to the arsenal. By that time we had reached the skirts of the mob, and had gotten beyond it, we found numbers of men along the way, but no indications of any great crowd having been there. We then discovered Captain Aull, and he told us that General Brinton and his command had gone on before towards Sharpsburg, I believe, or in that direction. I do not remember distinctly where he said. We continued our pursuit of him; inquired here and there from little groups of men that were discovered along the way.

Q. What was Captain Aull doing at the arsenal?

A. Well, I don't know. He had his buggy there, and had evidently been making some inquiry, I suppose. I didn't know at the time what he was doing.

Q. Did you leave him at the arsenal?

A. Yes; left him near there. We drove on.

Q. Was he driving when you left him?

A. No, sir; I think when we saw him he was out of his buggy. His buggy was a short distance away from him—at least I thought it was his buggy. I don't know whether it was or not; I didn't ask him.

Q. Proceed?

A. We then followed General Brinton across the bridge, and inquired at the end of the bridge if anybody had followed him across the bridge. We thought perhaps the mob had pursued him. He stated that nobody crossed the bridge after him—the toll man. We followed through the town, where everything was peaceful, and there was no indications of any mob, and found General Brinton's command perhaps a half a mile beyond Sharpsburg. The carriage drove up, and I halloosed to some officer, I don't remember who he was, and he directed the command to be opened, and we

drove through and I joined General Brinton. We got out of the carriage before he stopped his command, as my recollection is, and then I joined him and continued to walk with him. There were some of his officers around, of course. I couldn't swear positively as to whom were all there, and my first salutation to General Brinton was congratulating him upon his escape, and then made some remarks about where in the name of Heaven he was going, or something of the kind. He was going in the wrong direction, and then the conversation ensued about the order, in which I said that an order had been prepared, signed by Captain Aull. I may have said an officer. I may not have mentioned Captain Aull; but I think I did—pretty sure I did—because very likely when I knew he had gone with the order, and that he had it that, I did say so. General Brinton said that he couldn't take his command back in the condition they were in, and he wouldn't take his command back. He said perhaps if he had a positive order he might go, which implies at once—I don't think he will deny that—that he was pursuing the wrong direction. He then commenced to talk to me about his ammunition and provisions, and I suggested to him to levy mail on the country, to assess the provisions if his troops were in that condition. He said he wouldn't do that, he would have two hundred and fifty thousand people in the country down upon him. That I am positive he said. I then suggested that he should go back to Sharpsburg, saying that he could hold his position there. I didn't say this as an order, perhaps, but it was in our conversation. Of course, I had no right to give it as an order, and I did not. And he said he was not satisfied with the disposition of the people at Sharpsburg. That they were even worse there than they were at Pittsburgh. I thought that rather strange, because I had seen a train standing there, and people sitting in their yards, as we drove through. I am sure he said that. He said, further, that he had been fired on from that train—at least, I so understood it. It may have been from the cars in the city—I may have gotten the two mixed, so far as that is concerned. He said, too, that I told him where he first turned off to unite with Colonel Guthrie. And he said he had been followed by at least a thousand armed men to that point, and they had men over in the direction of Colonel Guthrie. I asked him whether I should go with his command, or go back. He said he would prefer that I would go back, and endeavor to get

provisions and ammunition for him. Of course, there had been a running conversation about provisions and ammunition, and his men looked as though they needed it. The most of this conversation passed between us while we were walking along, and I am certain it couldn't have been heard by all of his officers, because Brinton and I went side by side—it could have been heard, a good deal of it. I have no doubt these gentlemen are perfectly honest in saying they didn't hear me say it. I am sure some of them know that what I have stated to-night they did hear. We then had a talk about whether I should stop there, or whether I should go back. And he said he would go on a short distance, and remain there—I think he said about a mile, on a hill. I forgot to say that when I first met him, in speaking about his designs in leaving the city, he said he wanted to get the river between him and the mob, and to reach the hills and entrench; and that was his object in going across the river, so that he could feed his troops and revive them. When I closed the conversation with him, he said then he would go a short distance beyond—and I think he said half a mile—and remain there. That he didn't remain, I only know, of course, from hearsay—that he was not there.

Q. Did you see Captain Aull when he started with the order?

A. Did I see him when he started?

Q. Yes?

A. Yes, sir.

Q. How long did he go prior to your starting?

A. Possibly half an hour, probably more—may have been more. I couldn't swear to that positively. He started before I did. When Captain Aull started, I suppose he went out with his buggy, and we, in the meantime, had to get a carriage. It simply was an effort to duplicate the attempt to reach Brinton, and I volunteered to go, as I said, simply for that reason. I had no other object in the world.

Q. You saw the order handed to him by General Latta, did you?

A. Yes; I did.

Q. Did you read the order?

A. The order was read to me, sir. The order, as you observe, contained a suggestion to General Brinton to consult with him in regard to the situation in Pittsburgh. Of course, we had a running general conversation about what had happened in Pittsburgh. The general asked him about the hotel—whether it had been burned, and, when I left, he handed me, and several of the officers handed me, their checks, which were afterwards delivered, I believe, by one of the officers of the staff or one of the gentlemen, over to Major Baugh.

Q. When you overtook Captain Aull, at the arsenal, did you have any conversation with him, as to where he was going then?

A. No; I didn't.

Q. Had you then learned where Brinton's troops were?

A. Nothing positive, sir. I don't know whether Captain Aull knew positively. He just, I supposed, had ascertained in some way from inquiries made along the road.

Q. When you reached General Brinton, you say you indicated to him the fact that Captain Aull had delivered an order, or an officer had delivered an order?

A. An officer had an order to effect this junction.

Q. You are not certain whether you named Captain Aull or you named an officer?

A. I am not positive about it, but I feel very sure that I did, because of the fact that Captain Aull had the order that had been read to me, and that he had started in advance of me, and all that, and it strikes me that I would say so. I cannot see why I should not. Of course I may not have done it.

Q. Did you communicate to him the fact of having seen Captain Aull at the arsenal?

A. I don't know that I did, sir.

Q. Or that you left an officer at the arsenal?

A. I don't know that I did that. I may have done so, without having any recollection of it.

Q. Was any other person with you in the carriage, except Mr. Stewart?

A. No, sir; nobody accompanied us except the driver. It was an ordinary cab, and the driver was on the outside.

Q. When you reached General Brinton's force, did the driver drive you to General Brinton?

A. I think not all the way. I think I got out before we reached him. I may not have done so. I wouldn't be sure about that, but am pretty sure we got out before we reached General Brinton and joined him, walking up to him.

Q. When you left the carriage, did Stewart leave the carriage with you?

A. Yes, sir.

Q. Did he accompany you to General Brinton?

A. Yes, sir.

Q. Did General Brinton stop himself?

A. He didn't stop. My recollection is that the general didn't stop his command until his surgeon came up and asked him to stop, to take a ball from the shoulder of one of the men. Then they stopped, and the place where we stopped was along a small ravine, where several of the officers and ourselves sat down.

Q. Then you walked beside him for some little distance before he stopped?

A. Yes; I think I must have walked three fourths of a mile or a mile. I say that, from the fact that we had to go back to find our carriage, and our carriage stopped about the place we left it, and I think it was fully three quarters of a mile or a mile before we joined it. I know we became a good deal alarmed about it, and were afraid that we had lost him, and it was during our walk back we met I think Dr. Mears.

Q. Did you and General Brinton walk side by side?

A. Yes, sir.

Q. Where was Stewart during that time?

A. Stewart was walking by my side, and perhaps on the other side of General Brinton a portion of the time. I am pretty positive he was present during nearly everything that was said.

Q. Were there any officers walking with General Brinton when you overtook him?

A. Yes; I think there were.

Q. Did they continue to walk along?

A. Well, I think probably they did—some of them.

Q. Did you know the officers?

A. I remember General Loud being there. I remember Colonel Wilson being there; but whether they were around when everything was said I didn't know. I remember seeing Mr. Pettit. I remember seeing Dale Benson, but not with them. I think I met him on my way back. I know I shook hands with him.

Q. Do you remember of seeing Surgeon Mears?

A. I recollect about Surgeon Mears directly. I recollect him bringing up some bread, after we had left the command on our way back—that is, the

person I took for Surgeon Mears. I have met him since, but I don't think I knew him then.

Q. After you had walked some distance, General Brinton halted, I understand you to say?

A. Yes, sir.

Q. How long did you remain standing there in conversation?

A. Well, I don't suppose we had a ten minutes' conversation there.

Q. Did you remain standing all the time?

A. No, sir; I think we sat down, or sort of lolled on a bank or something of the kind. I don't think we stood, because we were all pretty tired. I know I was dreadful tired. That was the chief cause of my alarm when we went back to find the carriage, because I was satisfied I could never reach Pittsburgh. I had been up for two nights, and was worn out. The ride was a dreadful one.

Q. In communicating to him that an officer had been sent out with an order, you communicated to him the substance of the order you saw?

A. Yes; it was as I explained to him. I didn't say it in those words, probably, simply the substance of those orders, and they were to effect a junction with Guthrie. The whole object was to have the troops concentrated, and it was with that purpose that I went out. There was no earthly purpose for me to go and find General Brinton, other than that.

Q. In communicating that to him, did you tell him that General Latta had requested you to communicate the order to him?

A. Yes; I think I did.

Q. Did you tell him you had been sent for that purpose?

A. Yes, sir.

Q. Did he make any reply?

A. Yes; he said what I have said, that if he got a positive order, he would take his command back. I can say, too, without any reservation, that there was no reason under heaven why General Brinton should not have stopped with his command at Sharpsburg. There was not a symptom of the riot within two miles, after we left the skirts of it, at the arsenal. We rode on, and, of course, we met groups of men, but there were none of them that numbered thirty, and he was followed up by nobody from Sharpsburg but a small collection of boys, that were in the rear of his column, more out of curiosity than anything else, and that was the reason I suggested his taking up the position there, because I knew, and I said to him, we could have access to him there very easily, because the trains were then running, and I had seen a train standing there, and it moved off as we passed toward Allegheny, and my idea was, that if he wanted provisions and ammunition we could more easily get it there for him than at any other point, and I said that he could protect that bridge against any force. Any one who knows the bridge would be aware of that. It is an open bridge, and those two guns would have protected it against any force coming in that direction.

Q. Did you meet any officer of General Brinton's command on your return to Pittsburgh?

A. That had been with him?

Q. Any one that had remained in the city during the night?

A. Major Baugh.

Q. Where did you meet Major Baugh?

A. I saw Major Baugh at the Monongahela house.

Q. What time?

A. That night, sir.

Q. Did you meet him when you were returning to Pittsburgh anywhere about the arsenal, or on the way going to General Brinton's command?

A. I don't think I did. I met one officer, and I thought he was Doctor Mears—he had the bread in a bucket—and I don't think we met anybody else, because I cannot remember this circumstance, and if we had met them, I would have recollected it. We were followed, just after the doctor accosted us, by a man on horseback, who endeavored to have us intercepted three or four times—came up to the carriage—and when we got into Pittsburgh, evidently tried to have us intercepted by the mob, and we drove through the alleys to escape him, and we were more concerned about that than anything else at that time, and I think if we would have met anybody, it would have impressed itself upon my mind, and I don't recollect meeting anybody after we crossed the bridge. That I am quite sure. We didn't discover this man until we got across the bridge, and we discovered it by his coming up, and making inquiries, and making some remarks.

Q. After you crossed the bridge, you don't remember of meeting Major Baugh?

A. I don't, sir.

Q. Who made the inquiries of you?

A. Major Baugh?

Q. Yes, sir?

A. I don't have the slightest recollection of that. I think the one officer we took for Surgeon Mears. I think he was pretty nearly where this man accosted us.

Q. When Major Baugh came to the hotel in the evening, did you learn the object of his mission?

A. What—to General Latta?

Q. Yes?

A. No, sir; I couldn't say that I did.

Q. Did you hear any conversation between him and General Latta?

A. I may have heard it without having any recollection of it.

Q. Do you know whether General Latta gave him any orders or not?

A. I really don't know that, sir.

Q. That is all, unless you desire to state something further.

A. I have nothing to say, sir, I believe, except what I have said. I simply would ask these gentlemen to be called who heard me, because when I went back I made a statement which, in substance, is what I said here, and I may have said it a little different, but substantially the same, to Colonel Guthrie; and Captain Aull is here himself, and he knows that I was present when the order was given, and Colonel Stewart was present with me all the time, and I simply would like to have them called for that reason, to show that my two statements are consistent.

Colonel P. N. Guthrie, re-called:

By Mr. Lindsey:

Q. You may state what Colonel Norris stated to you on his return from General Brinton's command, in relation to his conversation with General Brinton?

A. Well, Mr. Chairman, I would like to start out a little further back than that, because Major Norris stated nothing to me of his own will, only at my request. I would like to state here that when Captain Aull left my regiment to enter the town, he was sent by me with instructions to General Latta, to this effect: that I didn't believe, at that hour, it was possible for the troops from Walls station to reach me; and that it was useless for me to remain at the stock-yards; and to report fully to General Latta the condition in which my regiment was placed; that we were doing nothing, and of no particular service to the railroad or to the public peace, and neither the railroad, at that hour, was threatened, nor the public peace. Captain Aull having gone in and

witnessed the departure of General Brinton from the round-house, and conveyed that information to General Latta, receiving an order from General Latta, to be conveyed to General Brinton, one copy of which was to be conveyed to me, and reaching me at an hour of the day—I do not remember what—with the information that he had not reached General Brinton, I deemed it of the greatest importance that I should know, of my own knowledge, what was the intention of the Adjutant General, and what was the condition of the forces. I waited at the stock-yards until I was satisfied by the actual appearance of the troops from Walls station, and from knowledge that I had received by sending one of the men from my regiment out in search of General Brinton, that there was no possibility of that junction. I then came into town fully impressed with the necessity that there should be some understanding between General Brinton's troops and mine, which was the only regiment left in Allegheny county, or in the vicinity of Pittsburgh and Allegheny, after General Brinton had crossed the river at Sharpsburg. I came in there to ascertain information from General Latta. I met Colonel Norris, and I asked him the question. At first he gave me no particular information. Afterwards, when I asked him again, he told me that he and Major Stewart had gone out in search of General Brinton, and had reached him at a point, I understood, across the Sharpsburg bridge. That he had represented to General Brinton that an order had been issued by General Latta, which was an order to him, General Brinton, through Captain Aull, instructing General Brinton to form a junction with me. When that junction was formed, General Brinton was to judge himself of the circumstances, and govern himself accordingly. It was my belief, that if that junction had been formed, the troops could have come into Pittsburgh, and reached the vicinity of that disturbance in time to have saved property. I asked Major Norris, particularly, if he had seen General Brinton and had conversed with him. He said he had. I asked him what the reply was, and he said that General Brinton was not able to come in. I asked him again what General Brinton's reply was. He shrugged up his shoulders, and still did not give me the verbal reply of General Brinton. Sometime afterward, in conversation with Colonel Norris, he told me that General Brinton had refused to form that junction with him, that is, to return from the position

that he was then in. There is no "ifs" and "ands" in the matter, in my mind. My impression is distinct and clear that Colonel Norris told me he had met General Brinton and he had had that conversation with General Brinton. He had urged upon General Brinton that he would comply with what were the instructions of this order, though General Brinton had not received it. That General Brinton had refused to comply with that order. I would further state to the committee here, that a copy of that order that was intended for General Brinton reached him on Sunday. I brought it back into the city on Sunday afternoon to General Latta, and I delivered it myself, personally, to General Brinton, at his head-quarters at the hospital, in Pittsburgh, after the return to Pittsburgh.

Q. What day?

A. Well, nearly a week—just a week. I gave it personally to General Brinton.

Q. The 31st of July, was it not?

A. I guess so. It was after General Brinton had gone back to the junction and then returned to Pittsburgh with the Governor. General Brinton told me at that time, that that was the first information he had of that order.

Q. The copy was delivered to you by Captain Aull, was it, colonel?

A. Captain Aull failed to reach General Brinton, for reasons which I will let Captain Aull state to you himself.

Q. I do not quite understand your statement, whether it was the original or a copy that was delivered?

A. The original order. There was one copy of that order, the original order is probably on file in the head-quarters. Copies of the order were given to Captain Aull, one for General Brinton and one for myself.

Q. You brought it into the city and kept it in your possession all the time, until you delivered it to General Brinton?

A. I kept it in my possession until I delivered it, personally, to General Brinton, at the hospital grounds, after the return to the city.

Q. Do you know whether General Latta was notified that General Brinton had not received the order?

A. I cannot say. I do not remember whether I stated that fact to General Latta or not. I do not believe I did. I went into town fully impressed that General Brinton would not join me, and that some other arrangement of troops must be made, and I do not know whether I stated to General Latta that General Brinton would not join me, and that he must make some other arrangement, or whether I stated to him that Captain Aull had been unable to reach General Brinton. At all events, the original order General Brinton never received until the 31st, I believe it was.

Captain W. F. Aull, re-called:

By Mr. Lindsey:

Q. Just state, if you please, what your conversation was with Colonel Norris, and why you did not reach General Brinton with the order given to you by General Latta Sunday morning, the 22d July?

A. Colonel Guthrie has stated that he sent me in for a personal conversation with General Latta, and I just state here that in passing Twenty-sixth street, I think it was, that as I approached Twenty-sixth street, I saw the people massed around the corners of the building, looking round up the street, as if something was going on, and I asked two or three parties what it was, and they said the troops were out. I drove across. They undertook to stop me, saying I had better look out, or I would get shot, that they had the Gatling guns up there, and they would shoot down street. I drove across the street and saw no indications of anybody shooting. I drove on and went around the square from there, where I could see the troops more closely, and they passed on out Penn street. I waited until I saw they had the Gatling guns

along with them, and I drove then, as rapidly as possible, to the Union depot. I was not aware that General Latta had not yet received the information of their leaving the round-house, until I went in, and, I think General Latta will remember, I was a little slow to tell him, from the fact that I supposed he knew about it, and when I told him they had got out of the round-house, and after getting out upon the street with their Gatling guns, he jumped up and appeared very much pleased, said, "Thank God they are out." I knew then that that was the first information he had received. He then turned to some officers present, and they commenced to congratulate each other that they had got out, and he told me to take a seat and remain. I sat down. A few moments afterwards, a party that I didn't know at the time, but who afterwards turned out to be a man by the name Surgeon Wilson, who had been acting the part of a spy for General Latta, reported that they were out of the round-house, and, I think, reported that they were going to the arsenal. A few moments afterwards another party came in, and reported that they had gone to the arsenal, and were now quartered in the arsenal. That I am positive of. I heard that—that they were quartered in the arsenal. That appeared to afford a great deal of relief to the officers present, and General Latta immediately began to dictate an order to his clerk, Mr. Russell, I believe. I waited until he had written the order, and he either wrote out a duplicate or wrote out two orders, I don't remember which. I am not clear as to whether they were two different orders or duplicate orders. At any rate he gave me an order; but before he gave it to me he had a long talk with Colonel Norris, took him into a private room, or talked with him first. He then read the order in my presence, that he afterwards handed to me, giving Colonel Norris instructions to reach General Brinton. My instructions were to return to my regiment, and that General Brinton being quartered in the arsenal, I should take the order, which I received, to deliver it to him there, then deliver the other order to Colonel Guthrie. When I reached the arsenal, I found the troops were not quartered there, and I went to two or three different parties at the arsenal for fear that they were trying to deceive me, that probably they were in the arsenal. I walked round the fence, and looked in wherever I could see, wherever I had the opportunity to see in, to convince myself positively that

they were not there, before I would go any further; but finally, I being convinced that they had gone out Butler street, as the sentinel informed me, I started back to my buggy, and just as I was approaching the street that crosses Butler street at right angles, Colonel Stewart and Major Norris came driving across the street, and I hailed them, and told Colonel Norris that they had gone on out Butler street, that I had information enough to convince me of that, and immediately turned round and started on, without asking for any further information. He drove on out Butler street. I got into my buggy and started after them. I drove on as far as Sharpsburg bridge, and made numerous inquiries of parties along the street how far they were ahead of me, and what the prospects would be of overtaking them. When I reached Sharpsburg bridge I was told they must be at least two miles ahead of me, and they had struck out into the country, towards Butler county. I supposed I stood or sat in the buggy for fully two or three minutes, meditating whether I would follow or take the other order to Colonel Guthrie first. I concluded, at last, that I would first take the order to Colonel Guthrie. I had two orders to deliver, and I concluded I would take the order to Colonel Guthrie, and if he advised me to, to strike across the country, and reach General Brinton with the other order. I drove straight to East Liberty, and reported to Colonel Guthrie what I had seen, and handed him the order that I had been authorized to deliver to him. I also stated to him that I had an order for General Brinton, and stated the circumstances under which I had not delivered it. I asked him the question if I should strike across the country from there, right directly across the river, the direction I knew they were in, or whether I would remain where I was. He replied, "Give me that order and I will go to the city and see General Latta myself," and I handed him the order and I never saw it afterwards. Colonel Guthrie then left the regiment and went to the city, as he has stated.

Q. When did you see Colonel Norris next after leaving him at the arsenal?

A. I am not exactly clear on that. I think I saw him Friday. I saw him at the Duquesne club-rooms.

Q. Well, did you see him within a week?

A. No, sir; it was some time afterwards before I saw him again.

Norman M. Smith re-called:

By Mr. Lindsey:

Q. You may state the facts in relation to the conversation that occurred between General Brinton and Colonel Norris, or what you know in relation to it?

A. Mr. Chairman, the only evidence I can give is corroborative. I met Colonel Norris immediately after his return from his trip to General Brinton's command. Met him in front of the Union Depot Hotel, immediately after he got out of his carriage, I think. He stated to me that he had carried the orders to General Brinton. That Colonel Norris has already said to you, that he carried, and also said that General Brinton had refused to obey them, and return to Pittsburgh.

Q. What time was it you met him?

A. Well, it is pretty hard for me to give the hour exactly. I had been up for three or four days and nights. I think, though, it was between nine and ten o'clock. I will not be positive about that. It might have been earlier, and it might have been later. I think, though, between nine and ten o'clock in the morning.

Q. Did he state exactly where he found him?

A. He said he had followed him beyond Sharpsburg, and dismounted from his carriage, and had marched on foot with him for some distance. Had communicated the order that he has stated. Had conversed with him for some time, and that General Brinton had refused to return to Pittsburgh.

Q. Did he say anything about his refusal to join Colonel Guthrie?

A. While I said return to Pittsburgh I meant to join Colonel Guthrie—that was implied. That after they joined, that is, it was in our minds, after they had united their commands, that they were to return to Pittsburgh; but when I said refused to return to Pittsburgh, I meant refused to join Colonel Guthrie, or rather to execute the order that Colonel Norris had to carry.

Q. Did he say anything about the condition of General Brinton's troops?

A. Perhaps he may have mentioned it in a general way, but I do not recollect that he specified it particularly.

Q. That was not spoken of?

A. I think not. At least that did not impress itself on my mind, if it was mentioned.

Q. Anything said about getting provisions to them?

A. Well, there probably was, but I am not prepared to say what it was—that was a matter that was paramount in all our minds, the matter of provisions for the troops had been concerning me, particularly, from the evening before, and continued to concern me until the next evening, until I secured some provisions and got them to the troops.

Q. Is that all that you know in relation to what occurred between Colonel Norris and General Brinton?

A. That is all, I believe, sir.

Colonel Norris: I would like to say, when I got back to the hotel, Mr. Cassatt was there, and I believe Mr. Bennett, of Allegheny, and we had a conversation then about supplying General Brinton's command with provisions and ammunition, and an arrangement was there made, I myself giving the directions where he was to convey the provisions to him, and that provisions did ultimately reach him. That conversation was heard, I believe, by Colonel Hassinger.

Colonel Smith: If I may be permitted—I was speaking of the time I met Colonel Norris. I was present at that conversation, at the Monongahela house, and can verify what the colonel said at that time.

Colonel D. L. Hassinger, *sworn*:

By Mr. Lindsey:

Q. You understand, I believe, the subject of evidence to-night. Will you go on and state what knowledge you have on the subject?

A. I was at the Monongahela house when Colonel Norris and Major Stewart returned, and I heard just about—he reported that he had caught up with General Brinton on his way out beyond Sharpsburg bridge, that he got out of the carriage and walked along, and had the conversation, and spoke about the order which had been sent to him through Captain Aull, and he said he gave him the substance of the order, and General Brinton had refused to obey him.

Q. Can you give the language of Colonel Norris—the exact words that Colonel Norris used?

A. Well, I don't know that I can, exactly. I do not recollect that part of it.

Q. You don't pretend now, in our statement, to give the language?

A. No. I have not heard any of the evidence at all that was before the committee, except sitting here for a few minutes.

Q. You are a member of the National Guard?

A. Yes, sir.

Q. What regiment?

A. Assistant Adjutant General of the State.

Q. Had you been at Pittsburgh during the riot—the entire progress of it?

A. Yes, sir.

Q. Were you with General Latta?

A. I was with him most of the time that he was there. On that morning I had started out when I heard that the troops were out of the round-house. I went out as far as the arsenal, and when I got there I found that they had gone in another direction. I was afoot, and, I think, returned to the hotel.

Q. You were at the hotel when the colonel arrived?

A. Yes, sir.

Q. Do you know whether Colonel Norris communicated that fact to General Latta that you have just related?

A. Yes; he did. General Latta was in the room at the time.

Q. In your presence?

A. Yes, sir.

Q. That is all you know in relation to the conversation that occurred between them, is it?

A. That is about all, sir; yes, sir.

General James W. Latta re-called:

By Mr. Lindsey:

Q. I would like you to state, general, just what Colonel Norris stated to you on his return from General Brinton's command?

A. I did detail that, sir, about as fully as I recollect it, describing the room and situation and surroundings. I will go over it again if you desire.

Q. I want to ask you one other question. Did you learn on Sunday that Captain Aull had not reached General Brinton with that order?

A. I did not find it out, sir, until nearly a week afterwards.

Q. When Major Baugh came to the hotel on Sunday, was anything said to him by you about whether Captain Aull had reached the command or not?

A. No, sir.

Q. And he did not communicate anything of the kind to you?

A. No, sir.

Q. When you gave the order to Major Baugh, you had no knowledge whatever of whether Captain Aull had reached General Brinton with the first order or not?

A. I had not, sir. I supposed he had. I took that for granted.

Captain Aull: Will General Latta add that he gave me no instructions to report back?

The witness: I did say that in my report.

Major General R. M. Brinton re-called:

By Mr. Lindsey:

Q. I wish you to state, general, whether at any time during your stay in Pittsburgh any attempt was made by any of the officials of the Pennsylvania Railroad Company to control your movements, or the movements of your troops in any way?

A. No, sir; there was no attempts made by any officers of the Pennsylvania Railroad Company, to my knowledge, to dictate or interfere in the slightest with the movements of the troops. I remember at one time, just after the

firing occurred at Twenty-eight street, that General Pearson was in Mr. Pitcairn's office, and Mr. Cassatt was there, one of the vice presidents of the Pennsylvania railroad, and I asked permission of General Pearson to clear the streets, and to follow the crowd to the arsenal, and he, more in his manner than anything else, appealed to Mr. Cassatt, and Mr. Cassatt said I have nothing to do with the movements of the troops, I know nothing about that whatever. I can say that at no time did they attempt, to my knowledge, to interfere in any way with the movements of the troops.

Q. Will you state from whom, or by whom, the provisions were delivered to your troops, on the hill beyond Sharpsburg?

A. After our arrival in Pittsburgh, or previous to our arrival, I telegraphed to Pittsburgh for provisions, to General Pearson, and he procured them from the Union depot, that is, a sandwich and a cup of coffee. After that, we were in the round-house, and I made repeated appeals——

Q. I speak of the provisions that were brought after you went beyond Sharpsburg, on the hill, when you were encamped there—from whom you received, the provisions, that is, who delivered them to you?

A. I had a note from Mr. Cassatt, about, I should think, ten or eleven o'clock that night, that is, Sunday night, saying that he had procured for us a lot of hams and provisions, &c, and had sent them out. I thought, at the time, that Mr. Cassatt had left Pittsburgh, but I found that he had not, and he had also sent two parties from Sharpsburg, merchants there, who said that they had an order from Mr. Cassatt to give us whatever they had in their stores, and they gave me an inventory of it, and said it was at my disposal, and that Mr. Cassatt had given them orders, and that he would be responsible for it, and I might say the only provisions I did receive from the time we went to Pittsburgh, until we arrived at Blairsville, came through his energies.

Q. Who delivered the line from Mr. Cassatt to you?

A. My impression was, or is, it was Mr. Smith—Colonel Smith, I think—who brought it there that night. There is one point I should like to correct. I won't detail any of the conversation, further than to allude to my evidence,

which I gave before. You have, with Colonel Norris, stated that I wanted to cross the river and intrench. That I did not say, and, moreover, it would have been impossible, because I had not any means of intrenching—no tools, or anything of the kind. He said he saw no crowd, at all, following to Sharpsburg, and that we should have remained there, in his idea. I merely refer to a dispatch which General Latta sent to the Governor at that time, and which he must have received information either from Captain Aull or Colonel Norris, as it was sent by telegram. It was directed to Governor Hartranft, dated July 22, p. 36, in which he says, among other things: "The first division, after stiff fighting for about fourteen hours, have retired to a point near Sharpsburg, pursued vigorously by a mob, to the high bridge at that point, under a hot fire pretty nearly all the way, but they effectually checked the attack." Colonel Norris returned, he said that there was no mob following us whatever.

Q. Go on, general?

A. In regard to our not stopping in Sharpsburg, and that ammunition, &c, could reach us, I want to state that we went on a point of the railroad below Sharpsburg, where we could procure provisions, and where we were in direct communication by rail with Pittsburgh, the same railroad which runs through Sharpsburg, and therefore we lost nothing by not stopping in Sharpsburg. In regard to receiving the provisions which Colonel Norris promised us if we would remain there, the provisions never came, except by the hands of the Pennsylvania Railroad Company. The evidence which Colonel Norris has given in regard to the situation we were in, &c., of course is entirely different from what I have already stated, and from what the officers who were immediately surrounding us when he joined us said. They being on the spot, it was not hearsay evidence on their part, but it was what they actually heard, and they have sworn that they were sufficiently near to hear every word that was passed at the time, but if it is necessary, I can produce those officers to corroborate it.

Q. We have had that.

Colonel Norris: I wish to ask Colonel Smith, whether the provisions were not sent in pursuance of the arrangements made after my conversation with Mr. Cassatt and Mr. Bennett?

By Mr. Lindsey:

You may state that, Colonel Smith.

Colonel Smith: As has already been stated, Mr. Cassatt and Mr. Bennett, and others, had a consultation at the Monongahela house, about noon of Sunday. Mr. Bennett and Mr. Cassatt left the hotel together, Mr. Cassatt, at least, and I think Mr. Bennett with him, went to Allegheny, to arrange with bakers, and other people there, to prepare sandwiches and other provisions to send out. I left the Monongahela house about three o'clock, and had this understanding with Mr. Cassatt, who was to take the road on the north side of the river, with the wagons of provisions. I was to move up on the south side, as stated in my examination in chief. I proceeded by certain routes across the Allegheny river, and at Aetna, I met Mr. Campbell Herron, and I stated the necessities of the troops, and asked him whether he could assist me in procuring provisions for them. I had in mind the conversation and action taken place at the Monongahela house, between Mr. Cassatt and others. Mr. Herron said that the store belonging to their furnace, their property, had some provisions in it, and he sent for his manager, Mr. Chalfant, and with him I arranged to load up whatever provisions they had, as soon as it became dark, and that they should be sent on to the camp of General Brinton's command. My arrangement with Cassatt, was to wait at General Brinton's camp until I heard from him—either saw him or heard from him. After that, I was to proceed to execute the orders I carried from General Latta, which has already been stated here to the committee. I waited there until about ten o'clock, when a man by the name of Bradley, a livery stable keeper—he had charge of hauling the provisions out there—came into camp, and reported two wagon loads within a short distance, and in the meantime, Mr. Chalfant had reported there, that a wagon containing hams, and some other provisions, which we turned over to the commissary of General Brinton's command. I believe there is no question about that, but

all these arrangements were made in pursuance of the understanding arrived at between Mr. Cassatt, and Mr. Bennett and others, at the instigation of Colonel Norris, after his return from visiting General Brinton's command in the morning.

At this point the committee adjourned, to meet at the call of the chairman.

Explanatory Note by the Reporter of the Committee.

Owing to an urgent desire on the part of the committee to have the testimony—taken in shorthand—transcribed and printed as rapidly as possible after the order to print was made by the Legislature, a number of men were put to work on it, each man taking a portion, irrespective of dates. As fast as transcribed, these portions were printed. This will explain the mingling of dates. Furthermore and unfortunately, in the hurry and confusion of such quick work, some of the copy was mislaid or lost before reaching the printer's hands, necessitating a re-dictation by myself from the original notes. This will explain the consequent delay.

SAM'L B. COLLINS, *Official Reporter of Legislature.*

PHILADELPHIA, September 30, 1878.

F. B. Gowen, *sworn*:

By Mr. Lindsey:

Q. State your residence and official connection with the Reading Railroad Company?

A. I reside at Mount Airey, in the city of Philadelphia, and am president of the Philadelphia and Reading Railroad Company, and have been so since the spring of 1869.

Q. We wish you to state now whether there was any difficulty on the Reading railroad during the riots last July; and if so, give us the circumstances?

A. There was a difficulty at Reading, on the line of the Reading railroad. We did not originate that, nor was it participated in by any one then in the employ of the company, so far as we have been able to ascertain. In other words the riotous attacks on property at Reading, which culminated in the burning of a large bridge over the Schuylkill river, in the city of Reading, were not the acts of any one of the then employés of the company, nor, so far as we have been able to learn, was there any single man then in the employ of the company absent from his post at that time, nor was there then any strike of any kind whatever among any of the then employés of the company.

Q. Did the road continue to run during the troubles?

A. The road was stopped for one day—absolutely for a little over twenty-four hours—the main line of the road was stopped—all the branches were running. The main line was stopped at Reading, by the tearing up of the track, and also the Lebanon Valley railroad was stopped for a long time, in consequence of the burning of the bridge, which took place on the night of the day on which the disturbance occurred elsewhere in Reading.

Q. Was this destruction of property caused by former employés of the road?

A. Almost entirely. It was caused by a mob that was composed principally, I believe, of former employés of the company, or led by them—organized by them—and, of course, participated in, or witnessed by a great crowd of people, many of whom may not have been at all active participants, but merely spectators.

Q. State whether you had reason to believe there would be any difficulty; and if so, what steps you took to prevent it?

A. Early in the spring of the year, as early as March, at least, we had reason to believe that the society called the Brotherhood of Locomotive Engineers

was arranging to make some kind of an attack upon the company, somewhat similar to that one which occurred on the Boston and Maine railroad and the Central railroad of New Jersey, and we had also reason to believe that there was then being organized throughout the country, somewhat under the shadow of, or in some way connected with the Locomotive Brotherhood, another society, which was to embrace all the trainmen employed upon the railroads generally, and we thought that the proper way to prevent such action having a disastrous effect upon our company and its property would be to state to those who belonged to this society that they could no longer remain in our employ; and upon a demand being made upon us by a committee of the Brotherhood of Locomotive Engineers for an advance in wages of twenty per cent., which we believed to be the preliminary step for testing the question of power, we notified all the engineers and firemen, who belonged to the Brotherhood of Engineers, that they could not remain in the service of the company and be members of that organization at the same time; but, as we understood, that that organization had a beneficial fund from which the members derived some benefit, we proposed to give them a fund of the same kind to which the company also would be a contributor, as well as themselves, so that no man, in leaving that Brotherhood of Locomotive Engineers, would lose the money value of his membership. When we issued this circular, between three and four hundred men, principally engineers and firemen, and a few others who left in sympathy with them, left the service of the company. That was in the month of April. That has been spoken of as a strike, but it was no strike, because these people who joined it knew that they could not remain in the service of the company, and it was different from a strike where persons simply stop work for the purpose of enforcing a demand for higher wages. A great number of those persons who left the service of the company in April, still, I think, remained under the impression that they could force the company to take them back, and they organized themselves more closely at Reading, and had a series of meetings at which they took in a great many others that didn't belong to the Brotherhood of Locomotive Engineers. They had regular meetings in some hall there, and maintained a position or attitude of hostility to the company. Their object being to embarrass the company in

the transaction of its business, so that the company would be forced to take them back; but as the company didn't take them back, as they desired, from day to day, and week to week, and month to month, they became very sore on the subject, and I believe that the riot at Reading—indeed, although I can only speak from hearsay evidence; but as I took part as a lawyer in the cases that grew out of it, I derived a great deal of information as to the reason of it. I believe that when the news came to Reading of the general outbreak upon the Baltimore and Ohio railroad at Martinsburg, a number of those former employés of the company assembled at a hall in one of their meetings, and determined that they would have to do something of the kind, such as the burning down of the bridge and the tearing up of the track, and, resulting from that, this attack was made upon the company, which I believe was confined entirely to such employés as had left the service of the company, and among them such followers or sympathizers as could be got into a crowd on such an occasion; but I believe that none of the employés of the company had anything to do with it, or took any part in it.

Q. Prior to the breaking out of the riot, had you filled the places of all those men who had left your services?

A. Yes; their places were filled within two or three or four days of the time. Indeed, there was no interruption in the business of the road resulting from those engineers leaving us in the month of April, except that we stopped the movement of the coal trade one day so that all the engineers who remained in our service connected with the coal trade might be on hand in case we didn't have enough new ones, so that all the trains we call schedule trains, that is passenger trains and freight trains, might be moved promptly. The whole thing was over in two or three days. The places of those who left were immediately supplied. We promoted a great many firemen competent to take the places of the engineers. I am sure that within a week or ten days after they commenced to leave, there was no longer any vacancy in our service not filled.

Q. Was there any difficulty in finding men?

A. None whatever. It was rather remarkable we had them so quickly, so rapidly. Of course, anticipating this disturbance, we were quietly on the lookout for men.

Q. Were the new men you employed experienced engineers?

A. Yes; and it was more remarkable still. Our business is a peculiar one. It is very much more difficult for an engineer from another road to take hold of a heavy coal train on a down grade, than to handle a passenger or a common freight train on an ordinary grade. But there were very few accidents. There were a few such as might result from the inexperience of men unaccustomed to that kind of business; but they were remarkably few. Of course we had to be very vigilant. The company went to some expense in order to guard against accident.

Q. Were any of those new men you got men who had been discharged from other roads?

A. I cannot answer that question positively, for the reason that I don't know it; but I should judge from the habit or custom of the company in that respect, that no new man was taken into the service of the company who didn't bring a certificate of good character. I am sure no one would have been taken that was discharged from any cause that affected his ability or knowledge as an engineer.

Q. Then I understand you to say that you had no difficulty in securing plenty of engineers?

A. None whatever. You will understand, of course, that while quite a number of firemen left our service, a great many other firemen in our service were competent to take an engine, and a number of those were promoted.

Q. Have you any knowledge of the number of new men employed?

A. I think the entire number of engineers and firemen could not have been more than about from three hundred to three hundred and fifty—probably

not so many. I think about three hundred or three hundred and fifty would cover all of those two classes—engineers and firemen.

Q. What steps were taken by the company to punish the rioters at Reading?

A. We left that, to some extent, to the civil authorities of Reading. In connection with them, prosecutions were commenced against a great number. Two of them who were known to have actually set fire to the bridge, or participated in the actual burning, who ran away, were arrested at a distance, and plead guilty.

Q. Were they men who had been in the employ of the company?

A. One of them had been at one time.

Q. In what capacity?

A. I think as a brakeman, and he had left the service of the company, at the time the locomotive engineers left, and at this meeting I spoke of as taking place at the hall in Reading, he had been promised by the Brotherhood of Locomotive Engineers to be paid so much a month, if he left the service of the company. The other one had never been in the service of the company—not that I am aware of.

Q. Do you know what steps were taken by the civil authorities at Reading to suppress the riot at that time?

A. There was very little done at the time. I think that all disturbance at Reading could have been prevented, if the sheriff of the county had shown the slightest amount of pluck or appreciation of his position. He had full knowledge—in fact, he was informed that it was to take place, but he did nothing practically, except when it was too late, to issue a proclamation that amounted to nothing.

Q. Do you know how long before it took place that this information was communicated to him?

A. Information was communicated to him of the intended rising. He was told of the facts in the possession of the party informing him, and an offer was made to him of men to act as a *posse comitatus*, about eight or ten o'clock in the morning of the day in which the trouble culminated. He did nothing until late that afternoon. I am quite confident that a determined man, armed with the law, in the position of the sheriff of Berks, at Reading, with twenty men—ten times which number he could have gotten from the citizens—could have prevented the whole disturbance.

Q. Do you know whether he made any call for help from the State?

A. I am not aware that he did, nor am I really aware of the means used to bring the military to Reading, or who first made the call for them. I know the military were sent there by the orders of some one in the military department of the State, who had authority upon that subject, and the disturbance was finally quelled by the action of the military, which unfortunately led to the killing of several persons.

Q. Had there been any reduction of wages on your road prior to July?

A. I think there had been no reduction of wages on the road for months before that. There had been two reductions of wages within the last few years.

Q. Since 1873—the time of the panic?

A. Yes.

Q. How large?

A. Each, I think, was ten per cent. The engineers on the Reading railroad have been for a great number of years paid according to the length of service. We have four grades, the first year the men get the lowest grade, and after they have been in the service of the company four years, they get the highest grade. That was due entirely, not to his knowledge as an engineer, but to his length of service as an employé in the company. It was understood that the men's wages should increase with the length of time

they remained with us. When any man left us, and came back, again he had to go down and come up, as the lowest men.

Q. Did that apply to any other employés but the engineers?

A. It applied to the firemen.

Q. Can you give the wages that the brakemen and firemen and engineers were getting per day.

A. I cannot give it exactly. I think at the time of this disturbance the highest grade engineers were paid \$2 97 per day. I think the firemen were getting about \$1 50 to \$1 60 per day. In the coal trade on the Reading railroad there were opportunities for engineers, during the busy seasons, to earn more than six days per week. Since the strike, or shortly after this trouble occurred, in April, as a mark of our appreciation of the fidelity of those who remained with us and resisted the temptation to leave when the Brotherhood of Engineers left—a good many of them, indeed, were members of the Brotherhood that stayed with us—we made a new grade of engineers, which no new men thereafter could enter, except after five years of service, and we put all the faithful men who remained with us in that grade, and gave them \$3 23. We have also that system among the conductors of the passenger trains. They are paid according to length of service, and there is an amount of their pay kept back from them, and invested for their benefit which increases with length of time.

Q. What were the wages of the brakemen?

A. I think from \$1 50 to \$1 60.

By Mr. Larrabee:

Q. Were you at Reading during the riots?

A. I was not there.

By Mr. Means:

Q. Did any of those firemen or engineers who left you at that time, ever make application to come back?

A. A great many, and it was a very sad thing.

Q. Was there a man by the name of Clarke who made that application to you personally?

A. I cannot give their names, but a great many have made application personally.

Q. Didn't you tell him that he had done wrong in being led away by the Brotherhood?

A. I know of a great many such cases. A great many I knew expressed a willingness to come back.

Q. And acknowledged to you that they had done wrong, and after their places had been filled by other parties, wanted to be again in the employ of the road?

A. A great many—I can hardly give you the number. The point with the company was this: we had taken on three hundred new men, and the first duty was to them. And most of those new men are excellent men. Some of them went to the expense of moving their families hundreds of miles. Many of the old men have written and asked to come back, saying that they did wrong, and saying that they were threatened. Many of them have been very seriously crippled, by reason of not receiving the pay promised them. I think that they promised sixty dollars a month to every man who quit the service of the company.

By Mr. Larrabee:

Q. From what source?

A. The Brotherhood of Locomotive Engineers.

By Mr. Means:

Q. The money didn't come?

A. They got very little. From what I understand from a number of them, I don't think they got enough to make more than ten dollars a month—hardly that.

Adjourned, to meet at eight o'clock this evening.

SAME DAY.

FRIDAY, *March 22, 1878*—8, P.M.

Pursuant to adjournment, the committee re-assembled at eight o'clock, P.M., and continued the taking of testimony.

Robert M. Brinton, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I reside at 1301 South Broad street, Philadelphia.

Q. You are a member of the National Guard of Pennsylvania?

A. Commanding the First Division National Guard of Pennsylvania.

Q. What is your rank?

A. Major General.

Q. State where you were when the news of the troubles at Pittsburgh, on the Pennsylvania railroad, reached you, and what your movements were afterwards?

A. I was at my office in Washington avenue about six o'clock in the afternoon, when I received a note from Mr. Thompson, of the Pennsylvania railroad, saying that General Latta had telegraphed me some instructions in regard to the riot at Pittsburgh. I proceeded to my home, where I found a message asking—from Colonel Scott, of the Pennsylvania railroad, saying that he had a message asking me to come to the Pennsylvania railroad office to confer with him. I did so and found him there. He handed me a message from General Latta, saying that troops were needed, and wanted to know how soon I could have a regiment ready to proceed to Pittsburgh. I suggested to him that if any troops were needed the whole division should be sent. I afterwards received a communication from General Latta to put the division under arms and be ready to move at a moment's notice, to report to General Pearson, at Pittsburgh. I telegraphed to General Pearson my instructions from General Latta, and immediately ordered the division to assemble, sending out officers to notify the different commands. It was summer time, and a great many of the men were absent. It was nine o'clock before I received the last message from General Latta, ordering me to report, and about two o'clock we had some six hundred men at the Pennsylvania depot.

Q. On what day?

A. In the morning of Saturday. I received the message on Friday night. I kept up communication with General Pearson, informing him of the number of men I had, and where I was on the road. We had no ammunition with the exception of a few rounds that the First regiment had. At Harrisburg we received some ammunition and two Gatling guns, which we attached to our train. We went through to Pittsburgh in eleven hours, arriving there about one o'clock on Saturday afternoon. There I met General Pearson, who ordered me to disembark the troops. I reported to him and General Latta in the Union Depot Hotel. The troops were rested and given coffee and sandwiches, and I ordered an additional ten rounds of ammunition, making twenty in all.

Q. Distributed?

A. Yes, among the men. General Pearson ordered me to have the troops ready to move to Twenty-eighth street. At that time. I told them in coming up, I had seen the hills covered with people, and I asked them in the event of their ordering me out, to go out with me, and look over the ground. I was an entire stranger there, and I thought they must be misinformed in regard to having cleared the hill, as they said General Brown's brigade had. I also met Mr. Cassatt at the depot, and I said in the event of our going down and clearing the tracks, can you move your trains. He said we can; we have crews already engaged to take out double-headers. General Pearson then ordered me down to Twenty-eighth street. I ordered one brigade to go down Liberty street. General Pearson then told me to go down the railroad, which I did, dragging the Gatling guns. We arrived at the crossing near Twenty-eighth street, going through rows of men, who were hooting and howling at us. Previous to this, while I was yet in the Union depot, I had been approached by several parties, who wanted to know if I would fire on poor workingmen. I didn't give any decided answer, not desiring any conversation with them. I called the brigade companies and several of the regimental companies together, and told them no matter what was done to us—even if they spit in our faces—I didn't want a shot fired, but if they attempted any personal violence, we had the right to defend ourselves, and we should do it. That was the order from which the firing commenced. We got down near to the Twenty-eighth street crossing. There was a large concourse of people there, far back as you could see, back on the railroad, and we were stopped. Sheriff Fife and his posse were ahead of us, and I believe he attempted to read the riot act, at least I heard him saying something; but he disappeared, and I didn't see any more of him or his deputies. General Pearson was with us. We could not force our way through without using some force, and I asked General Pearson whether he had any instructions to give. He hesitated a moment, and then said that the tracks must be cleared. The crowd then had pressed in between the column of fours, and I ordered the fours put into lines backward, and face the rear rank, about to push the crowd back from either side, and form a hollow-square.

By Senator Yutzy:

Q. How did you march?

A. The right in front—the First regiment was in front. The crowd gave back. We had a little difficulty in getting them back to the line of the cars. Quite a number of cars were there—the Twenty-eighth street crossing was blocked. The men standing there had evidently made up their minds to stay, saying that the railroad company had nothing to do with it, that they were not occupying anything but public ground. I then ordered two small companies, but finding them insufficient, I ordered up another command with arms apart, and attempted to push the crowd back; but finding it impossible, I gave orders to charge bayonets, which they did, and I saw one or two men bayoneted. The crowd at that time commenced firing on us, not only stones but pistol balls, and the men, acting on the orders already given to defend themselves, commenced firing—firing a few shots at first, which gradually went along the whole line. At that time, I had not over three hundred men. The second brigade had been left back, to guard the yard where the engines were to start from.

Q. Give us the position of your men at that time?

A. At that time, the rear rank was faced about. The Washington Grays and the Weccacoe Legion were in double rank, and were occupying the space between the two ranks of the First regiment facing east, trying to force their way back along the railroad from the Twenty-eighth street crossing, and the First regiment was keeping the crowd back from the railroad from the hill, and also from the car-shops.

Q. Had you the front and rear ranks of any companies on each side of the railroad?

A. Yes.

Q. In open order, one facing to the rear and the other to the front?

A. Yes.

Q. And then a command in front of them in the direction of the railroad?

A. A command on their flank—the right flank—facing eastward.

By Mr. Means:

Q. On the railroad?

A. Yes. The firing lasted about a minute—not over that, and the crowd, the moment the firing commenced, or shortly afterwards, dispersed and went in every direction. I gave the order to cease firing, and my staff officers had the firing stopped, and the ranks, which were somewhat broken, were re-formed, and I sent a staff officer to report to General Pearson. I thought he was on the ground, because it was not certainly—my opinion is, that in three minutes after he gave me the order to clear the tracks, the firing commenced. In the meantime, the Pittsburgh troops on the hill—I had not discovered them before—quite a number of them threw down their arms and left. I went up the hill a very short distance, and I saw what was going on there, and I hunted for General Pearson; finally, I received a note from him, saying he was at Mr. Pitcairn's office at the outer depot, and, that if I wished to communicate with him, to send a staff officer, which I did—Colonel Wilson—and he came back and said that General Pearson desired to see me. I turned the command over to General Matthews, and reported to General Pearson at the office of the Pennsylvania railroad at the outer depot—Mr. Pitcairn's office. I said to General Pearson at the time, that I thought we ought to continue to drive the crowd. I understood that they had gone to the arsenal. Several men came up to me and said that the crowd had gone to the United States arsenal to arm themselves, and I thought, when I found that they had gone away, that they would probably get arms and ammunition, and I proposed to General Pearson that we should follow the crowd. He hesitated some time about it, and finally I grew more imperative in my question, and I said, you must do something, I cannot allow my men to stand on the track with the crowd pushing around me, and not be allowed to fire. We will either have to move from there or attack the crowd. Finally, he said that the Second brigade had been moved into the round-house and machine shops, because he was afraid that they would be burned, and then

he told me to move my whole force in, amounting to six hundred men, which I did just at dusk in the evening. We moved in there. They told me to occupy one round-house and the machine and upholstery shops and the lumber-yard, and that General Brown would move into the other round-house at Twenty-eighth street, and I was not aware he was not there until I saw the flames. As soon as I went there, the crowd commenced trying to get into the yard, and I had a guard detailed and put out, and two of them were shot, one through the arm and one other through the leg, while on their beats. I then got down the Gatling guns and prepared to fire them, but thought it would be courtesy to communicate with General Pearson, and tell him what I was going to do; which I did, and he prohibited me from doing so. The crowd were firing pistol balls in at us, and a few rifle balls and a considerable number of stones. I went to General Pearson, and said, "I cannot stand it, we must defend ourselves." He said he would go to the mayor and see him, which would do more good than our bullets would, as he had a great deal of influence over the elements predominant then, and said that he did not want to take life unnecessarily, &c., at the same time we were short of ammunition and rations, only having twenty rounds, and if we were going to be in a state of siege, I thought we ought to have a sufficient amount. General Pearson said he would go and see that we got provisions and also ammunition, and left, saying he would be back in an hour. He went through the lumber-yard, and left us. At the same time he told me to open any dispatches that came for him, and I asked if he had any new instructions. He said, "I want you to hold the place," and after he left I proposed to hold it in the way I thought proper, by firing into the mob at the gates, which drove them away from there, so that presently there were only pistol bullets and a few straggling musket balls. We continued to hold it in that way without receiving any communications from the other world. I expected General Pearson back every moment. I didn't want to take it on myself to move out there, or do anything. About two o'clock in the morning Colonel Snowden, of the Third regiment, called into the round-house, and directed my attention to what he considered a piece of artillery. It was quite dark at the time. We watched it for probably fifteen minutes, when a cloud cleared away, and we decided it was a piece of artillery, around which were

quite a number of men who were training the piece. I immediately ordered Colonel Snowden to get fifty men out, and told him to lower their pieces and fire low, and I gave the order. They had got the piece finally into a position to suit themselves, and a man had hold of the lanyard. I gave the order to fire, and when the smoke cleared away eleven of them were lying there.

By Mr. Lindsey:

Q. The mob had it?

A. Yes; it was a brass field-piece that they had captured from Hutchinson's battery, I believe. During the whole night we had a skirmish with those people. They ran cars down loaded with oil, and attempted to set fire to the building, but fortunately some jumped the track and blocked the others. The next morning they ran down cars from the Allegheny side, which came down with their own gravity, but we finally threw a pile of car wheels on the track, and upset the cars. They were burning. They were loaded with whisky, or the most of them with high wines. We put out those fires by fire extinguishers, and also by a hose that we had there. We finally discovered that the building part of the Sixth division was on fire, and it communicated with the building we were in by the oil sheds. They got on fire, and the building we were in got on fire. During the night I had communication with General Latta, finding General Pearson did not return, and told him my situation, and received orders from him—or suggestions they were afterwards styled—in the first place to hold on vigorously, but in case I was obliged to leave there, to go out Penn avenue east towards Torrens station, and that there would be reinforcements sent to us not later than six o'clock in the morning; that part of the command—three hundred—who had failed to join, were at Walls station, and would join Colonel Guthrie at Torrens, and that they would join us. We waited until ten minutes of eight o'clock, when the smoke got so great that the men could scarcely breathe, and we went through the machine shops. We couldn't go out of the gate, the regular gate, on account of the cars that had been upset there and were burning, and I went out, I think, Twenty-third street—I am not very familiar with the

streets—with the intention not to leave Pittsburgh, but to go to the United States arsenal, where I certainly could get ammunition and possibly something to eat, as we had nothing but a sandwich and a cup of coffee since leaving Philadelphia, and through the excitement and the loss of two nights' sleep, the men were very much fatigued and thoroughly worn out. We went out towards the arsenal, and probably had gone a quarter of a mile out Penn avenue, when we were attacked. I was at the head of the column, and didn't see the force that was attacking us, but I sent a staff officer immediately to the rear. The firing was all at the rear, and I think four men were killed and some ten or twelve wounded.

Q. On your retreat from the round-house?

A. Yes; these men were shot from street cars, and from out of houses, and from behind chimneys. There was not any regular organized body, or a body sufficiently large to attack, until we got nearly to the arsenal, when—the Gatling guns I had placed between the two brigades, so that we could use them either in rear or at the front—when we opened with one of them, and dispersed the mob. We got to the arsenal, and I went ahead to see the commandant there, and went inside the gate, and went to his house and saw him, and told him who I was, and that my men were thoroughly worn out, and asked permission to form in the yard. The men were very thirsty, and the grounds were shady, and I thought we would wait there until I had orders from General Pearson. But we received positive orders from the commandant that we could not come in. I did not want any altercation with him, so I proceeded on eastward. I had received a communication from General Latta during the night, saying that he had made every attempt to feed us, and that it had been impossible, and I therefore thought that the best thing to do was to get something to eat. We had arrived within a short distance of Sharpsburg, when they told us if we came over there we could be fed. I concluded to do so, and went over there, and just as we got into the town, we were informed that two of the Fourteenth regiment, who had been on the hill, had been wounded seriously there by our shots, and that the people had no friendly feeling for us, and then I concluded we had better go on and wait for provisions, which I proceeded to do, when we were met by

two gentlemen, who joined us, one belonging to the Pennsylvania railroad, I believe, who said we could be fed a little lower down, at Claremont, where they gave us coffee and rations; but the rations they brought were berries—not very suitable things for soldiers to eat. We proceeded to Claremont, and there, awaited orders.

Q. Claremont hospital or the work-house?

A. They are both together—that is the work-house or home they call it—it is the poor-house. We were fed, I presume, from both houses—they both sent us out provisions. It has been said that we were ordered to Torrens, and disobeyed orders in not going there; but the orders I received, in regard to Torrens, came just one week after the orders were sent. I got them one week afterwards from Colonel Guthrie, who handed them to me. Colonel Norris is reported to have given us some orders, which I positively deny. I never received them in any way, shape, or form. On the contrary Major Baugh, whom I left at the Union depot, with General Latta, reported to me out there. I asked him "have you any orders," and he said "no; I have not." I said then you will have to go right back to Pittsburgh, and get me some orders.

Q. Who was it?

A. Major Baugh.

Q. What time did he leave General Latta?

A. I cannot say; but he joined me about two o'clock—two and a half o'clock.

Q. On Sunday?

A. Yes.

Q. In the afternoon?

A. Yes. It has also been said that we marched in a very rapid way out that street. It is about four miles, and I left at ten minutes after eight, and arrived

at Sharpsburg a little after ten, which amounts to two miles an hour, and in the army three miles was considered fair marching. The orders we received afterwards from General Latta were to proceed to Altoona, which, as soon as I could procure transportation, I attempted to do, and arrived at Blairsville, where I received a dispatch from Mr. Garner saying, I had better not come there, because he had made some arrangements with the rioters. I telegraphed that my orders were imperative, and that I was coming, provided I could get transportation. I got to Blairsville junction. I could not get transportation any further. I immediately telegraphed General Latta, Colonel Scott, and the Governor. I disembarked my troops, and remained there until I got orders to go back to Pittsburgh.

Q. It was on Saturday night you were ordered by General Pearson to enter the round-house? What time did General Pearson leave you?

A. About half past eight o'clock.

Q. What did he leave for?

A. For the purpose of seeing the mayor, for the purpose of getting us rations and ammunition.

Q. Did he leave you in general command after he left?

A. Yes. His instructions to me were to open any dispatches which might come for him, and hold on until I return, his words were.

Q. Hold on until I return?

A. I think those were his words.

Q. It was a verbal order?

A. Yes. He was standing in front of the company shops—inside the yard.

Q. Did you hear from him again that night?

A. I didn't hear from him until about one week.

Q. In his absence, would you have full command yourself?

A. I didn't consider I had full command, because he said he would be back in an hour, and I was waiting for him to return. When I found he didn't return, I opened communication with the Adjutant General of the State for him.

Q. What orders did you receive from him?

A. I received orders to hold on vigorously, that I would be reinforced by Colonel Guthrie's command, and that Colonel Rodgers' men would certainly join me before six o'clock in the morning.

Q. Did it occur to you to march out with your command at any time—out of the round-house—and disperse the mob gathered there?

A. That was discussed. I talked that over with my staff officers, at any rate, but we were ordered to remain there, and I didn't know—I expected General Pearson's return, and that he would bring us information about what was occurring outside. We had no information of any kind whatever. We couldn't tell whether there were ten thousand armed men in the town, or five hundred thousand. We knew that the force we had there was fully armed and had artillery, and we were outnumbered five to one.

Q. Who was it you sent to the Adjutant General?

A. A man named Sergeant Wilson, of the Jefferson cavalry, who was disguised.

Q. Did he bring you any report as to the number of the mob?

A. He didn't bring me any reports as to how many there were, and even if he had, I couldn't trust to a man simply passing through a crowd, because they were on every side. He said that the mob had vowed that they would burn us out or up—if they couldn't capture the place that they could burn us, and they were making arrangements to do that.

Q. What time did they begin to fire the cars?

A. The first I saw of the fire—I didn't know whether they were cars or buildings—but whatever they were, the first light I saw was about eleven o'clock. I may be mistaken in that, but I think it was.

Q. Could you see anything of the number engaged in the burning—the actual burning?

A. No; I couldn't see anything of the burning, because the buildings were on the other side—the Twenty-eighth street round-house was below us, and the buildings were above.

Q. Above Twenty-eighth street?

A. I mean west—nearer the Union depot.

Q. Didn't they burn east of you, also?

A. They might have burned east, but the first light I saw was there, and it seemed too far down for the cars.

Q. They kept burning down towards the Union depot?

A. I don't know. I couldn't see from where I was anything, except the illumination in the sky.

Q. Nor how many men were engaged in the burning?

A. No; on Liberty street and the street—I don't know the number of it—which would have run through the depot had it been prolonged—we could see men marching up and down that street, and could hear them giving commands along Penn street, which ran parallel with Liberty street, and we could see wagon loads of men coming in all the time.

Q. Did you send out any scouts?

A. I sent out two men of the Hutchinson battery, but they never returned. They said they would carry a dispatch to General Latta, and I wrote a note, but never heard of them afterwards. This scout returned, whose idea was that there were a great many, but he couldn't tell anything more than that, as

he walked through the crowd. He could not tell whether there were five thousand or twenty thousand in the city—he could only see the street they were in. I thought if he could get back General Pearson might.

Q. You didn't deem it safe to undertake to attack the crowd during the night?

A. I thought I would be superseding my orders if I attempted it. I was ordered to remain there. At no time was I in command in Pittsburgh.

Q. In the absence of General Pearson, you were the highest in rank, or the senior general, were you not?

A. Yes; but I was ordered by him to remain where I was. It was not left discretionary with me.

By Senator Yutzy:

Q. Is General Pearson your senior?

A. Yes.

By Mr. Lindsey:

Q. In his failure to return, would you not be justifiable in acting on your own judgment?

A. I communicated then with General Latta, and received a reply from him, saying they had made every attempt to provision us and get us ammunition, and that it was impossible, and knowing there were three regiments in Pittsburgh, and not knowing their demoralization—I didn't know they were so much demoralized as they were—if they couldn't communicate with us, I thought there must be a very strong force opposed to us, and my orders were to remain where I was.

By Senator Yutzy:

Q. From General Latta?

A. Yes.

By Mr. Lindsey:

Q. What time did you get those orders from General Latta?

A. I received two communications from him by the same man. One of them, I think, about eleven o'clock, and the other about one o'clock. I asked the man to out again, and he said he would not attempt it, that he had been stopped before, and that it was at the risk of his life. He would not attempt to go out again.

By Mr. Means:

Q. As a military man, you received a command from your senior, to hold your position, and you wouldn't have felt like doing anything else but to hold your position—you would have been liable to a court-martial, if you had disobeyed that order?

A. I would.

Q. The responsibility rested with your senior?

A. I told General Latta, in my note, which may have had some influence in his orders to me, that my men were terribly worn out, and had not had anything to eat for over twenty-four hours, and had not had any sleep for two nights, and I didn't think it would have been a wise thing with the amount of ammunition we had to attack that mob that night.

By Mr. Lindsey:

Q. General Latta had no power as a commanding officer, had he? His duties as Adjutant General were simply to marshal, and bring together the forces of the State—the militia forces, and when General Pearson was relieved or was absent, you would be the next general in command—would you not?

A. That is one way of viewing it. I would be, probably. A staff officer does not command troops; but General Latta was acting under the Governor or in

his place, and you notice in the Governor's message, he blames me for disobedience of orders which I never received, saying I had refused to return to Pittsburgh by orders of General Latta.

Q. Did you understand that General Latta was commander-in-chief.

A. I did. I would have obeyed any command that General Latta had sent to me; and not only that, I solicited his commands—I asked him what I should do.

Q. What induced you to leave the round-house on Saturday morning?

A. The round-house was on fire, and the men were choking with smoke when we left there, and it was not more than twenty minutes after we left, when the whole thing was a cinder.

Q. How large a crowd did you encounter when you left the round-house?

A. When we left, we came out in perfect order. The moment we came out the crowd fled, and we had no difficulty until we had gone some three or four squares. The crowd had disappeared.

Q. Couldn't you have formed then, after driving the crowd?

A. There was no crowd to drive at that time. We didn't see any crowd except the crowd which ran. My idea was to go to some place where the men could get something to eat. The Third regiment had three rounds of ammunition, and I thought certainly, at the United States arsenal we could get ammunition, and the men could be fed, or we should certainly get ammunition, and get water.

Q. Did it occur to you that it would be good policy to go to the Union depot?

A. Yes; and two of my staff, Colonel Wilson and Colonel Pettit, both advised me to go; but I told them my orders are to go east out Penn avenue, and I am going to obey my orders.

Q. Those were the orders you received from General Latta?

A. Yes.

Q. But your own judgment directed you to take the other course, and go to Union depot?

A. It did.

Q. If you had been acting on your own judgment, should you have gone there?

A. If I had it to do over again, I should go there.

Q. That was your judgment at that time?

A. Yes; but I thought the next best thing was to go to the arsenal. I would then be carrying out my orders, and would remain where General Latta could further instruct me.

Q. You had gone some distance before the firing commenced on your troops—that firing from the house?

A. Yes.

Q. Did you ever ascertain who fired—have you ever been able to learn the names of the parties?

A. We ascertained a few. We killed a few, and I think that a policeman fired on us. Mr. Lennig, who was a member of the Washington Grays at the time, and who is a member of the bar here, when he went back to Pittsburgh, identified this man, and talked to him, and the man acknowledged it—that he did fire.

By Senator Reyburn:

Q. Where did this policeman fire? When you went by the station-house?

A. We went by the station-house, but I didn't see them fire, but Mr. Lennig saw them fire near the cathedral.

Q. Did you see any policeman fire yourself?

A. No.

Q. Did Mr. Lennig?

A. He saw a policeman fire, and identified him when he went back to Pittsburgh the second time.

Q. When you arrived at the arsenal, did you enter at the gate?

A. I entered at the gate. The sentry there allowed me to enter, and showed me where Mayor Buffington was to be found, and I went to his quarters and saw him.

Q. Was he up at the time?

A. He was up. He came out of the house.

Q. How was he dressed when he came out?

A. In citizen's dress. I asked whether he was the commandant there, and he said he was. He was in citizen's clothes.

Q. Was he fully dressed?

A. Yes.

Q. Did you tell him your name?

A. My name and where we had been, and told him I wanted to bring the men in there. He said we couldn't come there, and I asked him where we could encamp.

Q. You are positive about giving him your name?

A. Yes.

By Senator Yutzy:

Q. And rank?

A. Yes; I had an officer with me who will corroborate it.

By Mr. Lindsey:

Q. Whereabouts did you meet him?

A. Right at his house.

Q. At the door?

A. He came on to the steps of a little porch and stepped down to the ground.

Q. Whereabouts is his house situated from the gate as you enter?

A. Probably two hundred feet from the gate.

Q. On the right side of the road leading down through the grounds or the left?

A. It is about two hundred yards from the street where we marched out—where the sentry gate is. A path led down, and Major Burlington turned on his heel, and didn't take the trouble to say he was sorry, but immediately turned on his heel and left.

Q. Where did he go?

A. Back to his house.

Q. Did he afterwards come up to the gate?

A. I never saw him afterwards.

Q. Did you have any wounded at the gate?

A. Yes; we had some three or four men carried in there, and Lieutenant Ash had his leg amputated and died there.

Q. Did he tell you that he would take care of the wounded?

A. No; he never made any remark to me of that kind.

Q. Did Lieutenant Lyon make any such remark?

A. I never knew such an officer was there.

Q. How long did you remain inside of the grounds?

A. I don't think I was there over two minutes—maybe I was longer. The firing was quite heavy after I got in there, and I went down to join my command.

Q. How were you dressed when you met Major Buffington?

A. In a blouse and a cap, with two stars on it, and blue pants. One of my shoulder straps during the night had been torn down, and it hung, and I took it off.

Q. Was the other on?

A. No; I had taken both off when I found one of them was torn.

By Senator Yutzy:

Q. What request did you make of Major Buffington when you went there?

A. I told him we had been in the company's shops all night, and that we were burned out, and that the men were out of ammunition, and that I wanted something to eat, and wanted to form my men there until I could get some further orders.

Q. You wanted to form your men in the arsenal grounds?

A. Yes.

Q. Did he refuse?

A. Most peremptorily, and said that we could not come there. I asked where I could encamp or could bivouac, and he said that I couldn't come in there, but could go somewhere else. I said I was a total stranger in the city, and wanted somebody to direct me—nothing more than a civil question, and he said he didn't know, that I would have to go away, and turned on his heel and left.

Q. What excuse did he make, if any, for refusing you admission?

A. I think that he had very few men there. The purport was that he was afraid we might draw the fire of the mob. That was the impression left on my mind.

Q. Did he say anything about a large amount of valuable ammunition and stores?

A. Not to my recollection. He might have said so; but I don't recollect. I know he said he had no ammunition for us.

Q. Did he say he had artillery ammunition, but no ammunition for infantry?

A. I do not recollect that he did.

By Mr. Lindsey:

Q. Did you rap at the door or call at the door, and meet him outside, or did he come out before you arrived at the house?

A. Two men were at the gate, and one ran ahead, and I think, told him. I think he rapped at the gate.

Q. Did you have any conversation with Lieutenant Lyon?

A. I do not remember seeing him.

Q. I understood you to say that you called at Colonel Scott's office, and was there shown the communication from General Latta?

A. Yes; I got my dispatch over the Pennsylvania railroad lines.

Q. Was it directed to Colonel Scott or to you?

A. To me.

Q. It went over their line?

A. Yes; all the time I was away we used their wires.

Q. Did you receive any orders from any one else before you left Philadelphia, than from General Latta?

A. No.

Q. Did you receive any communication from General Latta at Pittsburgh, while you were in the round-house, after General Pearson left you, before you sent a communication to him?

A. There was a communication, which came over the wires, directed to General Pearson. A dispatch which I did not understand, saying something about when the troops arrive, make disposition for them—a dispatch could not understand, directed to General Pearson, from General Latta.

Q. That was from General Latta?

A. Yes; but immediately after that the wires were cut, and we had no other communication.

Q. Did you send a communication to General Latta by a messenger, before you received the orders from him to hold the round-house?

A. I did. It was by the messenger whom I sent to General Latta that I received those orders.

Q. That was in reply to your communication?

A. Yes.

Q. There was no other communication from General Latta?

A. I sent him two. The first communication was—the purport of it was—that General Brinton had left there, and that we were suffering for ammunition and for rations, and also had but two friction primers. I have a copy of this, and one of the Sunday papers, I believe, copied it.

Q. That was the first?

A. Yes.

Q. Can you give us the original of that?

A. I think I can give the original—I can give you the original of one. *The Sunday Republic* published it.

Q. What was the second communication—the one you received and replied to from General Latta?

A. I received a reply to both from General Latta.

Q. Give us the nature of the second communication?

A. I cannot remember the exact phraseology of it.

Q. Give it in substance, as near as you can?

A. It was a mere reiteration, asking for ammunition, and asking for rations—saying that we must be provisioned—that the troops were in a terrible state, nearly starved, and suggesting in one of the dispatches, how they could get in there with their engines, that they might run down and we would try to have the gates ready for them to come in, and the engine, I believe, was subsequently loaded, and the engineer refused to take it.

Q. Did you try to convey the idea to General Latta, that your troops were unfit for duty?

A. No; I conveyed the idea, or attempted to, that they were worn out, not being properly cared for or rationed, and that I had no sufficient amount of ammunition. I tried to convey that idea.

Q. That they were demoralized?

A. No—I did not.

Q. Could there have been such a construction placed on your message?

A. No; I don't think so. A few of my men were not in the best condition, morally, but very few. I only placed them in another part of the building. I designated those.

By Mr. Lindsey:

Q. Did you designate those in your message to General Latta?

A. I probably did.

By Senator Yutzy:

Q. Were they officers or men?

A. A few of the men—none of the officers. But so far as the men were fatigued or worn out, I tried to convey that in the strongest terms.

Q. For the purpose of getting supplies?

A. For the purpose of getting something to eat and ammunition.

Q. Did General Latta say anything in his communications to you that you were left in command of the round-house, and that you were expected to act on your own discretion?

A. No; on the contrary, he gave me specific orders what to do, and when I left where to go.

Q. Did you expect to receive further orders from General Pearson when you received your communications from General Latta?

A. I cannot say that I expected to, although I would not have been surprised to have received them.

Q. Did you consider it your duty to take command of the force and to act at your own discretion after General Pearson had left you and you were not able to communicate with him?

A. No further than I did, because communications should have come the other way. I was ordered to do a certain thing, and it was possibly superseding my duty to send out an officer after orders. It would probably have been more soldierly for me to stay there and receive communications from my superior than to send after them.

Q. Didn't you consider it proper, as a military man, to exercise your own discretion in an emergency of that kind, and take the responsibility of it?

A. No; I do not think I did, nor do I yet. The responsibility rested on me to obey orders, and as I had no means of ascertaining what was going on outside, I resolved to hold that place as far as I could, and didn't move out until the men were nearly choked with the smoke. We held it for two hours longer than we were ordered to hold it.

Q. Was the round-house on fire when you left it?

A. It was.

Q. And the shops adjoining the round-house?

A. Yes; the machine shops adjoining the round-house were entirely on fire. The roof was on fire and the floors were saturated with oil and General Matthews sent to me two or three times saying that the smoke was so intense that they could scarcely stay there. Then I moved them out into the yard.

Q. The floors were saturated with oil?

A. Yes; it was not twenty minutes after leaving the place until it was a cinder.

Q. How did that place become saturated with oil—by the mob?

A. No; the employés of the Pennsylvania Railroad Company put it there while greasing the engines.

Q. Did any whisky or high wines run down into the round-house while you were there?

A. Some whisky ran into the cellar of the office while we were there. It was lower than the pavement, and when they threw the cars off the track there, some barrels got down on the pavement.

Q. Did it run down into the cellar?

A. Yes; into the cellar or basement where the telegraph batteries were stationed.

Q. Was the office connected with the round-house or the building you were in?

A. They were some of the buildings we were in, but not connected although not over three or four feet off them.

Q. Did you see Colonel Norris on your march from the round-house to Claremont?

A. I saw Wilson Norris after we had passed Sharpsburg, between there and Claremont.

Q. Did you receive any orders from him?

A. I have no recollection of receiving any orders from him, and I have questioned my staff who were around me at the time, and they have none.

Q. Neither verbal or written?

A. Neither verbal or written.

Q. Did you receive any orders from any one else before you reached Sharpsburg or Claremont?

A. No.

Q. No orders from any one to go to Torrens station during Sunday?

A. Whilst in the round-house, to proceed east out Penn Avenue, towards Torrens, from General Latta. I did not go there for this reason: Colonel Guthrie was to be at the outer depot at six o'clock in the morning, and we waited there until ten minutes after eight, waiting for him two hours and ten minutes. The suggestions which General Latta gave me were based on Colonel Guthrie's being at Torrens station, but considered I would only be exchanging places with Colonel Guthrie, and for that reason I concluded to

go to the arsenal. In the second place, General Latta or the authorities had said it was impossible to ration us.

Q. Did you receive any communication from General Latta, or any other superior officer, before you got to Blairsville?

A. Yes; from General Latta, to proceed to Altoona, which we immediately proceeded to do.

Q. Through whom?

A. Through Major Baugh, whom I sent back to General Latta for instructions—sent him back to Pittsburgh.

By Senator Reyburn:

Q. On Saturday afternoon, when the firing commenced—where did it commence?

A. The firing commenced from the Weccacoe Legion.

Q. Facing east?

A. Yes.

Q. It was the first firing from the troops?

A. The first firing came from there.

By Senator Yutzy:

Q. From what direction did the stones and other missiles come?

A. They came from every direction.

By Senator Reyburn:

Q. Was there any pistol firing from the side of the hill?

A. After the firing commenced it was very hard to detect in which direction it came. It seemed to come in all directions, and the stones were striking

against the muskets of the men as they held them up. It was very hard to detect where the firing came from.

Q. Was there any positive order given to fire?

A. I didn't hear it, and I didn't give it, and I don't think there was, further than the general order I gave, if we were attacked that we should defend ourselves.

By Mr. Lindsey:

Q. Was General Pearson present when the firing took place?

A. I think he was—not that I saw him, but he gave me the order to clear the tracks, and the time was so short after he gave the order before the firing commenced, that I do not see how he could arrive at Mr. Pitcairn's office before the firing took place, although I didn't see him myself. He gave me those orders, and I ordered the Weccacoe Legion, which had about seventy-five yards to go, and the whole time didn't occupy over two minutes.

Q. How was he dressed?

A. I think in full uniform—my impression is that he was. I think he was.

By Senator Reyburn:

Q. What do you mean by full uniform?

A. Blouse and cap—regular fatigue uniform.

By Mr. Larrabee:

Q. Suppose he had turned around immediately after giving you the order and gone to Mr. Pitcairn's office, could he have got there before the firing took place?

A. I do not think so, but I may be mistaken.

By Senator Yutzy:

Q. Did he wear a hat or a cap?

A. I cannot tell you, sir. It really didn't make sufficient impression on me, but I think he had a cap on. That is my impression, because I knew him in the army a long time, and he always used to wear a cap there.

Q. Had he a sword and belt on?

A. Yes; a sword and belt on.

By Mr. Lindsey:

Q. Were you in the late war?

A. Yes.

Q. What rank did you occupy?

A. I went out as a private in the Second Pennsylvania cavalry, and afterwards was promoted to different grades to major of a regiment, and brevet lieutenant colonel at Five Forks. I served two years as personal aid to General Griffin, of the Fifth Army Corps.

Q. When did you go out?

A. In September, 1861, and left the army in June, 1866.

Q. What rank did you hold when you left?

A. I was major and brevet lieutenant colonel.

Adjourned, to meet at two o'clock to-morrow.

PHILADELPHIA, *Saturday, March 23, 1878.*

Pursuant to adjournment, the committee re-assembled in the St. Cloud hotel, at two o'clock, P.M., this day, and continued the taking of testimony.

J. Ewing Mears, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. At No. 1429 Walnut street, in this city.

Q. What is your profession?

A. That of a physician.

Q. State whether you were a member of the National Guard, and if so, what position you held at the time of the riots?

A. I was the division surgeon of the First division, National Guard, under command of General Brinton.

Q. State whether you accompanied the command of General Brinton to Pittsburgh, and on what day?

A. I left the city of Philadelphia on the morning of Saturday, the 21st of July, in company with General Brinton, and arrived at Pittsburgh shortly after the middle of the day of Saturday.

Q. Go on and relate just what occurred after your arrival at Pittsburgh?

A. I don't know whether I can state it as you wish, without questions from yourself. After our arrival at Pittsburgh, the troops were disembarked, and orders were given with regard to their march up towards the round-house, and I was ordered by General Brinton to establish the division hospital in the mail-room connected with the railroad station. It was nearly opposite to the outer telegraph station, as the depot existed prior to its destruction. Before the command left the depot, I had assigned to the different brigades and regiments medical officers, taking from some regiments officers who were in access of the needs of the regiments; in other words, I distributed medical officers to the different commands, in accordance with the orders of General Brinton.

Q. Did you accompany the command at Twenty-eighth street?

A. I didn't.

Q. Where were you yourself?

A. I was at the depot. My orders from General Brinton were, to establish the division hospital at the depot, to which the wounded, if any happened to be wounded, could be sent.

Q. Did you send out surgeons with the command—as you distributed them, they went out?

A. Yes; there were two surgeons with the First regiment, one surgeon connected with the Second brigade, and one surgeon who was not acting as such among the other companies.

Q. Did you remain at the Union depot during Saturday night?

A. No; I remained there until ten o'clock, then I left the depot, the object being to join the command in the round-house, if possible. I had, in the meantime, met the surgeon of the Pennsylvania railroad, Doctor Murdock, who was also surgeon of the West Penn hospital, and he informed me that some of the wounded of the division were in the hospital, and offered his services to me to assist, and also on behalf of the staff, the use of the hospital. In view of this fact, and as I had also completed my duty at the depot by sending all of the wounded to Philadelphia prior to ten o'clock, I left the depot to start to join General Brinton in the round-house, but being unable to do so by reason of the mob, I went to the hospital, where I found some of the command.

Q. How many wounded were brought to the Union depot?

A. Fifteen.

Q. Of the militia?

A. Yes.

Q. They were sent to Philadelphia?

A. Yes; I obtained from Mr. Cassatt a special car for that purpose.

Q. How were the different men wounded?

A. The majority were wounded by small Smith & Wesson balls—balls that belong to the ordinary pocket revolver, and the gun shot wounds were all in the lower extremities.

Q. Were any wounded with stones or clubs?

A. They were wounded both with bullets, and also with clubs and stones, the majority being wounded with bullets, and as they stated, the wounds being given to them by persons under the cars, the result of that being that the wounds were in the lower extremities. Some had scalp wounds, received from clubs and stones, and some of the wounds in the lower extremities were also from clubs or stones. I should say that I moved the hospital from the mail-room, which I had taken, into the hotel, and took for that purpose the two large reading-rooms of the hotel. There I dressed the wounds of those sent to me, and sent them home when I finished the work.

Q. On Sunday, where were you?

A. On Sunday morning, at seven and a half o'clock, I left the West Penn hospital, and came into the depot. I was aware then that the command had left the round-house, that is, I was so informed, and I came into the hotel for the purpose of getting the medical stores, and also for the purpose of getting means of conveyance to the command. I had received a requisition the afternoon before, from one of the surgeons for lint and medical stores, and I had purchased some the night before in a drug store, at Pittsburgh.

Q. The details we don't care for—just simply the number of wounded, and if you heard the firing, and was with the command at the time?

A. I didn't hear the firing, and there were more wounded than I saw, because some didn't come to the depot.

Q. Do you know the number of the wounded altogether?

A. I have endeavored to ascertain that, but have failed thus far. I understood there were about twenty-eight.

Q. How many were killed?

A. As far as I can ascertain, three were killed, two instantly, and one died from the result of a gun-shot wound.

Q. Did you go with the command when it retreated out Penn avenue, and across the river?

A. I followed the command as closely as I could, and joined them after they had crossed the river.

Q. At what time?

A. Ten and a half o'clock.

Q. Were you dressed in uniform?

A. No.

Q. In citizen's clothes?

A. Yes.

Q. Did you have any trouble in reaching the command?

A. No; I was not interfered with, although I drove through the mob. I had with me a guide, a member of one of the cavalry companies of Pittsburgh, but he knew nothing of the country after passing the arsenal. I acted on my own responsibility. I had received an order from General Brinton the evening before, about joining the command, and was directed to join him in citizen's clothes.

Q. Did you stop at the arsenal?

A. I did.

Q. Did you see Major Buffington?

A. No.

Q. Or Lieutenant Lyon?

A. No.

Q. Did you see Lieutenant Ash?

A. I didn't see him.

Q. Did you know that Lieutenant Ash was there?

A. I didn't at that time.

Q. You reached your command in safety?

A. Yes; with the stores I had taken with me. I had a wagon and a horse, and I placed them in the wagon, and took them to the command.

Q. Are there any other facts that you wish to state? State whether you heard any orders given by General Latta to General Brinton?

A. I heard orders dictated to his secretary or to an officer in his room—I did.

Q. At what place?

A. At the Union Depot hotel.

Q. At what time?

A. About eight o'clock on Sunday morning.

Q. What were they?

A. As near as I can remember them—I was not the officer supposed to hear them, but they were given in an ordinary tone of voice—the order was congratulatory to General Brinton on his retreat from the round-house, as to his generalship in getting out of the round-house, and upon his march out Penn square to the arsenal. That is a portion of the order I distinctly

remember. Further, when I asked General Latta where I should join the command, he told me to go to the arsenal.

Q. Did you have any conversation with General Latta at that time?

A. I asked him where the command was, and how to get there.

Q. Did you hear any other command given by General Latta to General Brinton?

A. I did not. I met Major Norris returning from the command. He had joined them, and I asked him where they were, and he said on the hill, and that they were going to the poor-house. He said to me nothing at all in regard to any other destination. This hill, I suppose, was a quarter of a mile after the bridge had been crossed—after crossing the river.

By Mr. Means:

Q. Did you have any conversation with citizens of Pittsburgh, or come in contact with them?

A. I did, on Saturday night. I had taken, fortunately, a letter of introduction to a druggist in Pittsburgh, and I went to his drug store to make a purchase.

Q. Just state whether the citizens of Pittsburgh showed sympathy with the strikers?

A. Yes; most decidedly.

Q. Their sympathies were with the strikers?

A. Yes.

Q. And they were hostile to the troops?

A. Most decidedly. I had conversations with a number of medical men, and I was surprised to hear them, as medical men, express their sympathy with the action of the rioters.

Q. In plain words, they said that the strikers were doing right?

A. Yes; they approved their action.

By Mr. Lindsey:

Q. In what way did they manifest or express sympathy with the rioters?

A. In this way: they thought they were taking the proper action to redress the wrongs they had suffered.

Q. Did they say that the strikers were taking proper action?

A. They said that they thought they were doing right.

Q. What citizens said that?

A. I do not remember the names. I met one gentleman on the street. He was kind enough to conduct me back to the hotel, it being night, and I not knowing the way. He didn't know who I was or my business, and expressed himself very freely about the matter.

Q. Was he a business man?

A. I do not know that. He appeared to be a gentleman—he was dressed as such.

Q. Living in the city of Pittsburgh?

A. I suppose he did, sir.

Q. At the drug store, did you meet any citizens more than the druggist himself?

A. I didn't, because he advised me not to stay there long—that it would not be desirable for them to know who I was.

By Mr. Means:

Q. The druggist advised you not to stay there long—that he did not want the strikers to know you were in his place of business?

A. Or the citizens even to know it. It was rather out of regard for my safety, than possibly for himself. I went through the streets of Pittsburgh, when they were breaking into the stores and seizing arms, and the citizens looked on that indifferently, and no efforts were made to stop that.

Q. You went through the city of Pittsburgh, in disguise for your own safety, for fear of bodily harm you might receive.

A. I went into the streets of Pittsburgh in citizen's dress, in the first place, because I had been warned by General Latta, in regard to wearing my uniform. He advised me to remove it. He said it was not safe even for himself, or anybody connected with the military, to appear in uniform. That it would probably attract the mob to the hotel. I did it at his suggestion, and also, when I reflected on it, for my own safety.

By Mr. Lindsey:

Q. Where was that drug store?

A. I cannot tell you where, it was night.

Q. Do you remember the street?

A. I do not. I can go to it in daytime.

Q. Do you know whether it was the proprietor of the drug store with whom you had the conversation?

A. It was the clerk.

By Mr. Larrabee:

Q. Did you get an introduction to the proprietor?

A. I did not.

Q. Who was the letter addressed to?

A. To Mr. Ottinger. I took it, thinking I should possibly want to purchase something.

By Mr. Lindsey:

Q. You cannot give the street?

A. I didn't see it in the daytime at all.

Q. Can you give us the language—what he said?

A. I cannot, because I didn't stop very long at his store. I had sent him an order, and asked that it should be filled, and I went for the order. It was not completed, and it kept us a few minutes. Further, to show the hostility to the troops, when I was taking the wounded to the cars, the mob had got into the station, and were jeering us and making use of insulting remarks, such as to show that they were gratified that they were going home in that condition.

Thomas A. Scott, *sworn*:

By Mr. Lindsey:

Q. State what your official connection with the Pennsylvania Railroad Company is?

A. I am president of the Pennsylvania Railroad Company.

Q. You have held that position for a number of years?

A. I have been connected with the Pennsylvania Railroad Company, in various capacities, over twenty-six years.

Q. State, if prior to the strike that occurred in July last, you had any information that such a strike was to take place, or had any reason to apprehend a strike?

A. We had no information on the subject. I was on that evening up the river Delaware eighteen miles, visiting some friends—my daughters' family—and had gone to bed about ten o'clock, and heard nothing of the strike, or anything connected with it, until about eleven o'clock, when one of our

officers from West Philadelphia, came up and advised me that there was trouble on the road, and wanted me to come to West Philadelphia. I did so, and arrived there a quarter before twelve, on Thursday night. At that time I had no intimation of any possible trouble with any of our people.

Q. Had you any knowledge of the existence of an organization called the Trainmen's Union?

A. Yes; I had heard that there was such an organization. There was some discontent about salaries and other matters connected with railroad management, and I had an interview with some engineers and firemen a few weeks before, and went over the whole subject—went over the whole ground with them. I suppose it was a committee of twenty or thirty altogether; and after hearing all that was to be said on both sides, we finally agreed that it was one of the inevitable things that could not be avoided, but would be remedied as soon as the condition of the country got into a more prosperous condition. After the committee retired from the interview, they came back again with a letter directed to me, expressing just what I said, in substance, to you; therefore I had no idea that there was discontent among our people likely to lead to anything like the results attained afterwards—like the difficulty that resulted in Pittsburgh.

Q. What complaints did this committee make when they waited on you?

A. They wanted to have the ten per cent. restored.

Q. What time was that?

A. It may have been three or four weeks before the difficulty occurred.

Q. It was after the 1st of June—after the ten per cent. reduction?

A. After the notice was given.

Q. Did they have any other complaint to make than about the ten per cent. reduction?

A. They discussed the question of privilege to ride over the road, and about being allowed for time when off duty, and several things of that character, all of which were discussed in the most friendly way with the committee, and I supposed that the committee went away perfectly satisfied. They so expressed themselves in writing to me—perfectly satisfied with the action of the company.

Q. Did they make any objections to the classification—what is called the classification?

A. They discussed that question with me, and they wanted to get some changes made in that. That had been agreed upon with the engineers and firemen some years before.

Q. They were satisfied on that point?

A. Entirely.

Q. Had you heard of any dissatisfaction on that point from any other source than from this committee?

A. I had heard nothing about the question at all.

Q. Had there been any complaints made prior to the one made by this committee on that subject?

A. A year or two before the question had been discussed. I have always been in the habit when our people come to state their grievances or supposed grievances to hear them, and discuss the matter, and do what we think right about it. I believe I never have declined to receive our men, and talk over matters connected with the company.

Q. After the order was issued to run double-headers, did you hear of any dissatisfaction?

A. Not until this Thursday night. That that was one cause of dissatisfaction.

Q. How long before that was the order issued to run double-headers?

A. I cannot give the time, but it was, I think, a few weeks—but how long, I don't know. It is a matter of detail management of the respective divisions that scarcely ever comes to me at all.

Q. Do you know what date it went into effect?

A. No; I do not.

Q. From whom did you get the first information that a strike existed there at Pittsburgh?

A. From Mr. Charles E. Pugh, one of our superintendents at West Philadelphia, who came up for me to Andalusia, or near there.

Q. What time did he get there?

A. At a quarter before eleven o'clock.

Q. On the 19th?

A. Yes; on Thursday night.

Q. When did you get the next information?

A. When I got to the depot at West Philadelphia.

Q. What was the character of that?

A. That there was an outbreak among the men on all the roads extending rapidly over all the lines in the country, and that there was not a sufficient police force in the city of Pittsburgh, to manage the matter, and that the sheriff had been called out or called upon by somebody to organize a *posse comitatus*, and I believe he did make some effort about it.

Q. That he was called upon by some officer of your road?

A. No; but by some authorities of the city of Pittsburgh; but that, I cannot say. I was not there. That they called upon him, but just when they called upon him, I do not know.

Q. That information was communicated to you?

A. Yes; by telegraph.

Q. Were you informed that the city authorities and the sheriff were not able to suppress the strike or the riot there?

A. Yes; I was informed of that fact—that the sheriff had called upon the Governor of the State for aid.

Q. What time did you get that information?

A. Three or four o'clock in the morning.

Q. From whom did you get the information?

A. From our officers at Pittsburgh. I think probably from Mr. Pitcairn.

Q. Had you any communication with the Governor?

A. Yes; I telegraphed to the Governor after he had been called upon and given the general results of the trouble—I telegraphed. I thought it was very important for him to be back in the city at the earliest moment he could come. That I thought the peace of the whole State was threatened.

Q. What time did you send that telegram?

A. I think that was sent the next day some time.

Q. On Friday?

A. Yes.

Q. Did you see General Latta before he left for Pittsburgh?

A. Yes. He was there when I got to West Philadelphia. He was very much disturbed. He told me that the Governor, before leaving, had left power and authority with him to exercise his authority in case of disturbance. I asked what he proposed to do about the matter, and he said he proposed to go to Pittsburgh, and be governed by circumstances. If the Governor was called upon, that he would do what was necessary and proper to be done, under the circumstances, to preserve the order of the State. I think it was about a

quarter before twelve o'clock on Thursday night when I saw him. I expressed to him the importance of preserving the highways of the country intact, as I understood it and believed it.

Q. When did you first learn that they had ordered the troops out—when the Adjutant General had ordered them out?

A. I understood about four o'clock Friday morning that the sheriff of Allegheny county had called for troops.

Q. And you understood then that General Latta would call them in pursuance of the call of the sheriff?

A. General Latta told me if called on, that he had abundance of troops in the city of Pittsburgh to take care of anything that might arise—under General Pearson.

Q. Did you have any communication with General Pearson?

A. No; if General Pearson asked me any question about transportation of troops, I told him what was proper under the circumstances; but I do not recollect of having any from him.

Q. Had you ever had any strikes on that road prior to this time?

A. We had a strike in 1860, when I was general superintendent of the road—a small affair that didn't last but a few days—principally among some of the engineers and some of the shop men. But I believe we had no strike or trouble with our people from that time up to the occurrences last summer.

Q. What steps were taken at that time to control it by the company?

A. Simply notice to the men engaged in it, that if the wages or arrangements of the company did not suit them, to peaceably go away.

Q. Was there any attempt, at that time, to molest or disturb the property of the company?

A. Nothing at all, except stoppage of the trains.

Q. There never has been any strike before where there was an attempt to destroy property?

A. No.

Q. Can you give us the amount, or an estimated amount, of the destruction of property at Pittsburgh?

A. Well, I think it is in the neighborhood—you mean what property?

Q. Belonging to the company?

A. About \$2,000,000—various things we were interested in.

Q. Does that cover the merchandise?

A. Not at all.

Q. Simply the actual property of the company?

A. Yes; and it does not cover the consequent loss from the interruption of our business.

Q. But you include the destruction of cars, and engines, and shops, and tracks?

A. Yes.

Q. Do you know how many cars were destroyed?

A. I have not got the number at the end of my fingers, but it is in the annual report of the company. It is all stated there, sir. I think it is summed up in that report, that the probable loss, by reason of this trouble, was about \$5,000,000 to our company and to the community at large in Pittsburgh and the community elsewhere owning property in transit.

Q. In consequence of the riot that existed there?

A. Yes.

By Senator Yutzy:

Q. That includes the merchandise?

A. Yes; it is an estimated amount of what we thought about the right thing—as near as we could get at it.

By Mr. Means:

Q. Did General Brinton telegraph you at Blairsville Junction that he, General Brinton, could clear the tracks with the force under his command?

A. I think General Brinton did telegraph me; but I do not recollect the details of it at all.

Q. At Blairsville Junction?

A. That he thought with troops properly located he could take care of it.

By Mr. Larrabee:

Q. In the interview you had with this committee, they stated their views on the reduction of ten per cent.?

A. That and several other questions connected with it.

Q. When did this ten per cent. reduction take place?

A. In June.

Q. Had there been any prior reduction?

A. Yes; in 1873, we made a reduction of ten per cent.—following the panic.

Q. Then in June you made another reduction?

A. Of ten per cent. It applied to everybody in the company—to men on the track, and in the shops, and on the engines, and in the depots, and every officer of the company.

By Mr. Yutzy:

Q. To all the employés?

A. To all getting above a dollar per day.

By Mr. Larrabee:

Q. Was this last reduction made in pursuance of any arrangement with any other road?

A. Not at all.

Q. Was there not a meeting of representatives of the trunk lines in Chicago in May sometime, at which matters were talked over?

A. I don't know—I was not there.

Q. Was there a representative of your company present?

A. There may have been. I don't know nor whether they had up the question of compensation to the men. Our action on the subject was based on the general results of the business of the company, and the necessity of some positive thing being done in aid of the company and in aid of the men as well.

Q. The action of your company, in this reduction, was solely by yourselves, without any understanding?

A. With the other trunk lines?

Q. Yes.

A. None whatever. I think they didn't make any reduction until July.

Q. Didn't the New York Central make a reduction about that time?

A. I think on the 1st of July.

Q. And the Baltimore and Ohio about that time?

A. Somewhere along there. I don't know the dates exactly.

Q. This reduction was arrived at by yourselves without any understanding with other roads?

A. Yes; we thought it proper to be done. I think, and believe now, that we were paying men then twenty per cent. above the average price paid for an equivalent amount of labor anywhere else.

Q. Do you remember the prices paid the trainmen?

A. I don't recollect, but I can get you the data if you want them. I don't recollect the details. Our wages differ a little on different divisions—they are not entirely uniform. There are some places where the living is more expensive, and there the compensation is higher. They are paid according to locality. There are some places where the cost of living is a great deal less than in others, and a difference is made in wages. It is always been so both on the track and roadway and the trainmen also.

Q. Do you know whether arrangements were made at Chicago to pool the earnings of the three trunk lines?

A. An attempt was made.

Q. But never carried out?

A. No.

Q. You don't know whether this question of wages was discussed at that meeting?

A. I don't know.

Q. You had no report made to you by the representative of your road who was there?

A. No.

By Mr. Lindsey:

Q. To pool the entire earnings of the road?

A. No; the competitive business to avoid disagreements, and to put all the shippers on a perfect equality, and get a fair living compensation for doing

the work to be done. Through excessive competition, very often business was done resulting in a loss to the companies. They did the work for a great deal less than cost, and in doing, that with certain kinds of traffic, they did violence and injustice to other people at other points. That was one of the troubles with the city of Pittsburgh—perhaps their chief trouble.

Q. The purpose of it was to secure uniformity of freights?

A. And compensation to everybody.

Q. To shippers, too?

A. To shippers. In the early part of last year, the through business of the company was done below actual cost to every road that did it. During the first six months of last year, not a farthing was made on through competitive freight by any line.

Q. Was that agreed upon at that meeting in Chicago?

A. They made an effort, but didn't succeed in having it carried out practically.

Q. The trouble was in one line cutting down freights?

A. That is the allegation always—that somebody is cheating somebody else.

Q. It was attempted to carry it into effect?

A. Yes.

Q. For how long a time did you work at it?

A. Three or four months, probably, but finally it all broke up. On west-bound traffic we have an arrangement for a division of the business under low established rates, by which everybody is placed on a perfect equality. New York, a certain price, Philadelphia so much below that, and Baltimore, so much below that. Under that arrangement, the lines have been doing very much better than when in open warfare. I believe now that every west-bound shipper is placed on an entire equality.

Q. You have referred to Pittsburgh. Had there been complaints by shippers in Pittsburgh about discrimination?

A. Always.

Q. What were the complaints?

A. That through goods were carried at a less rate per ton per mile than their goods, and that we ought to be able to control that. I think I have tried diligently for the last five years of my life to get an arrangement or an agreement by which all these questions could be adjusted, and these discriminations of every character wiped out, and I went even to this trouble: I met a committee of merchants and manufacturers of the city of Pittsburgh, and went over the whole case with them. I said to them: gentlemen, there are times when it cannot be controlled. If we succeed in making this west-bound arrangement we will put all your interests here, so far as relates to the western markets, on a fair equality with everything that comes into competition with you from the east. I said so far as we are concerned, we have a strong desire to do just what you want done, and to that end we are working, and we will do anything we can do to bring it about; and if it should happen in the future that we must go through other and more violent wars than we have now passed, we will still agree that your trade in competition with like trade—that your manufacturing interests here shall be protected by at least ten per cent. less than the aggregate rates from points east of you. They expressed themselves very well satisfied with that arrangement.

Q. Can you give us any of the methods you have tried for the purpose of preventing those complaints by the people of Pittsburgh?

A. The general endeavor is to agree upon rates, and to adhere to them absolutely. We never charge in any case exceeding the rate charged from a distant point. In this arrangement, I referred to, for the city of Pittsburgh, I told them, in any possible state of things, we would make their rates ten per cent. less than any rate prevailing from any point east of them—Philadelphia, New York, or Baltimore. It sometimes happened that

competition ruled so strong that we carried things from New York to Chicago lower than we did from Pittsburgh, and when engaged in one of these little troubles, the rates are frequently changed a dozen times in a day. Our aim always has been to put all the shippers on our road and all the intermediate shippers on rates as low as competition might force at the extremes. We think it is right, and endeavor to do it. There have been isolated cases when it is not done, as it may happen that a shipper from New York to-day will have a low rate on some specific kind of goods, while the shipper from Pittsburgh would be paying the rate that prevailed the day before. But whenever such cases came to our notice we gave a drawback. Sometimes they never came to our notice, but have been nursed up, and made a cause of trouble and complaint. Whenever we found the difference too great we always paid them back.

By Senator Yutzy:

Q. By rebates?

A. Yes.

By Mr. Lindsey:

Q. There never has been a time when the price charged from Pittsburgh was greater than from any point beyond?

A. It never was the policy of the company that it should be so, but it has frequently happened in isolated cases that such was the case.

Q. Has that been the case for any length of time?

A. Never—not for any length of time.

Q. For a month at a time?

A. Oh, no—a day or two.

Q. How did freights compare in July last with what they had been for three months preceding that time?

A. They had been extremely low the whole of the year up to that time, and were then extremely low on east-bound business. On west-bound business on the 1st of July that arrangement was made to have a division of the business.

Q. How were freights after the strike was over?

A. On west-bound business, the arrangement that went into operation then is in operation now. On east-bound, every two or three weeks they have the same chronic trouble. After making an agreement, they violate it and break down, but as a general thing, the rates are better now than they were a year ago.

Q. How did rates compare the fore part of last season with the year before, at the same time?

A. Very much lower. Two reasons brought it about. First a short crop in the fall of 1876, when there was very little freight to come east—nothing at all equal to the facilities of the various companies, the result being a scramble and competition to get it, and prices ruled away below the cost of doing the work.

Q. How did the amount of freight or tonnage during the months of May and June, 1877, compare with the months of May and June, 1876?

A. It was not so heavy, but after the harvest of last year—and it was a heavy crop all over the west—and in consequence of the European war, which cause a demand, the roads had better tonnage.

Q. Was there any difference in the local freights?

A. They were greater in quantity all along our line. The crops were better.

Q. How did the local rates compare with the previous year?

A. They were on the same general basis as the previous year. I don't think there was any change, unless we got into those violent competitions, when we would reduce our local as well as through rates.

By Senator Yutzy:

Q. Did you ship goods or freight cheaper from New York to San Francisco than from Pittsburgh to San Francisco, such as steel or iron?

A. I think that has occurred a number of times. The rates are made by the Union and Central Pacific roads. At New York they come into competition with the Pacific mail and sailing vessels around Cape Horn, and on account of that competition, the rates are made low.

Q. Less from New York to San Francisco than from Pittsburgh?

A. Yes.

Q. Has it been the custom on your road to get a larger rate from New York than from Pittsburgh?

A. Yes; on our road we get a larger rate from New York than from Pittsburgh.

Q. Do you mean per ton per mile?

A. No. I mean the aggregate rate. The Pacific road fixes its own prices from Chicago west-bound.

Q. Can you not ship freight at a less rate per ton per mile for a long distance than for a short?

A. I think we can. It saves the intermediate handling.

Q. Do you know of any instance where iron or steel has been shipped from Pittsburgh to New York and from there to San Francisco by rail?

A. No.

Q. Because the rates would be cheaper?

A. No. I have understood of one or two cases where drugs were sent from Pittsburgh to New York, and these came into competition with drugs shipped by ocean, and were then shipped on back.

Q. Did the cheap rates at New York arise from competition with water transportation?

A. Yes; at sea. That only applies to heavy articles, about which there is no question of time or of insurance. It may apply to heavy drugs; but it does not apply to dry goods or groceries, or things like that.

Q. Are your local freight rates governed by your through rates in any way?

A. To the extent that whenever through rates come down below the local charges we reduce the local charges.

Q. Proportionately?

A. No; but we do not exceed on our local business the amount charged on other roads.

Q. Do you reduce the rates on local traffic when you reduce them on other traffic in equal proportion?

A. No. Say the rate from Chicago to New York is fifty cents, and the rate from Philadelphia or Harrisburg is fifty cents, and the rate from New York should be reduced to forty or thirty, we reduce the other rate.

Q. To the same per centage?

A. The same gross rate.

By Mr. Lindsey:

Q. Was there any strike in the city of Philadelphia among your employés?

A. There was some striking among the men on our trains.

Q. When did that first break out?

A. Probably a day or two after the trouble at Pittsburgh. I think the trouble occurred here on Friday night or Saturday.

Q. Among what class of your employés.

A. The trainmen entirely.

Q. Did it include the engineers?

A. No.

Q. The brakemen, firemen, and conductors?

A. Yes; the trainmen—on freight trains.

Q. Did they interfere with your property in any way here?

A. They declined to run the trains out, and said their lives were in danger, and the result was the trains didn't go for several days. It didn't apply to the Northern Central road or the New York division.

Q. Did they attempt to interfere with the property of the road?

A. Destroy it?

Q. Yes?

A. Not at all. I think they felt themselves bound by some organization that seemed to have control of them, not to do anything or allow others to take their places, and, therefore, it was simply a stand off policy—the trains didn't go. But they attempted no destruction of property at all.

Q. Did it become necessary for you to call on the civil authorities here?

A. Yes. There was a great deal of threatening all over town in regard to the possibility of serious trouble, and we had some trouble at the yards in West Philadelphia. Engines were taken from trains.

Q. What steps did you take for protection here?

A. I sent word down to the mayor's office about this difficulty on the lines of the road, and that we feared that some effort might be made to destroy our property, and that, therefore, we wanted the protection due to every interest in our State and city—nothing more. He organized a police force. A great many of the people of the city were alarmed about the situation of

affairs, and, I believe, they gave the mayor authority to take on additional policemen, which he kept employed for some days, until the threatened trouble was all over. I think his whole action in the management of the police force under him was very efficient and thorough.

Q. Did he respond promptly to that call?

A. Yes; and succeeded in maintaining order entirely.

Q. There was no trouble in maintaining peace and order?

A. No; excepting the exercise of a great deal of vigilance and care with a strong force.

Q. Was it necessary for the policemen to make any attack on the crowd?

A. I think nothing serious. They had several little disturbances. The crowd was armed and threatened trouble and all that.

Q. Did the crowd assemble in very large numbers?

A. I have been told from two to five thousand people; but they persuaded them to disperse. I do not think there was any trouble at any time. The mayor's policy was to prevent crowds from assembling, to prevent disturbance, and in the conduct of the whole matter I think he showed great wisdom and great efficiency.

Q. What day did you start your trains here?

A. From here west?

Q. Yes?

A. I think on the 27th or the 28th.

Q. Did you meet with any trouble in getting men to start them?

A. No.

Q. Was there any resistance made by the crowd?

A. Not here.

Q. Was it necessary to have any guard to protect the first trains that started?

A. Of military?

Q. Or policemen?

A. No. There were men here about the yards and depots to see that the peace was preserved, but they made no arrests, I believe, in connection with people in leaving trains. They did make arrests of some people for destroying some oil cars.

Q. On the Pennsylvania railroad?

A. On the junction road.

By Senator Yutzy:

Q. Did you, as president of the Pennsylvania Railroad Company, at any time, make any requisition on the State authorities for troops to protect your property?

A. Not at all. The State authorities were called out, as I understood, on a requisition from the county of Allegheny.

Q. By the sheriff?

A. Yes.

Q. Have you any knowledge of any officer of the Pennsylvania Railroad Company calling on the Governor for troops?

A. None whatever. They, no doubt, suggested to the Governor of the State that it was his duty to put the force in such a position as to preserve peace and order.

Q. Did you understand that you, as president of a railroad company or as a citizen, have the right to call on the Governor for troops, and that the Governor has a right to respond to that?

A. No.

By Mr. Lindsey:

Q. In the case of an outbreak, such as existed there, to whom would you apply for help?

A. To the civil authorities of the place, and they, in their turn, are obliged, as I understood the law, to make the requisition. I do not understand that I, as president of a company, have the right to make a requisition on the Governor, but I certainly have the right to notify him. I have no right to make a requisition.

Q. You have the right to notify him under the act of 1864?

A. I have no reference to any particular act. I never understood that a railroad company or a mining interest or anything else had a right to make a requisition. I always thought they had the right to state their case, and ask that some action should be taken, letting the mayor or sheriff, as the case may be, make his own requisition.

By Senator Yutzy:

Q. It has been charged by some that the troops were ordered by the Pennsylvania Railroad Company in their movements?

A. I think if you will ask the military officers—General Brinton—he will tell you that he moved his troops according to his superior officer's directions, and not at the direction of any railroad man. I guess he was careful to do that. I certainly never asked them to move troops to any particular place or to do any particular thing.

Q. But you conferred with the officers or advised them?

A. No; I conferred with the Governor of the State, and he gave his orders through his officers. I didn't give them any orders. I did give them every facility they asked for, just as we did with the Government of the United States when they got into the rebellion, when we stopped all our business

for a time, and gave our road completely to carry men and equipments, and whatever they might require for the field or elsewhere. We gave them entire control of our road.

Q. Do you say you never made any requisition on the State authorities for protection?

A. We stated our case to them, and said we are in great danger, and the highways of the State are in great danger, and we want that protection which it is our right to have.

Q. As every other citizen of the State, you would have the right to demand protection?

A. I think we all pay for peace and order to be preserved in the State, and it ought to be.

By Mr. Engelbert:

Q. Then you never did dictate to the Governor, or to any one in his absence, what to do with the military?

A. Not a bit. I was especially careful not to do anything of that kind.

By Mr. Lindsey:

Q. State if you have been able to ascertain or to gather facts sufficient to form a judgment as to what produced the strike?

A. I think the trouble originated through the discontent of men all over the country—not confined to railroads. Every other branch in some how was directly or indirectly connected with the outbreak, looking for compensation of an increased character, without regard to whether parties were able to pay it or not, and altogether, I think that whole movement was made up—either agreed upon or concerted and agreed upon under their own mode of organization. I think they took this abatement of ten per cent. as one pretext for making the outbreak.

Q. What facts have you that lead you to believe it was a concerted movement or agreed upon?

A. Simply their action, and the results spread before us everywhere.

By Senator Yutzy:

Q. Is the pay of railroad employés less, as a general thing, than that of any other ordinary avocation?

A. No; I think it is greater; and I think it ought to be a little greater, because the men are subject to risks in railroading, that they are not subject to in ordinary work; therefore, I think it is the duty of railroad companies to pay a little more for that service than is paid for an equal amount of labor in the ordinary channels of life. I think we pay twenty per cent. more to-day than men receive in the various other channels of business.

By Mr. Lindsey:

Q. Are they subject to greater expense than others?

A. Yes; by reason of going from their homes, their extra cost of living is something.

By Senator Yutzy:

Q. And in one sense you call it skilled labor, in addition to the risks they run?

A. Yes; we want men understanding their duties to run our trains and take care of the property and of the people in their charge. We want that in all the men, and, I think, as a general thing, we have as good a set of men as was ever organized.

By Mr. Lindsey:

Q. Was there any complaint among the men about their not being able to work full time?

A. Yes; when the depression of business came so strong, we undertook to retain more men in our service than were needed to do the work, and we did that very often at the request of men—of the older men, in order that younger men might have an opportunity to get some work and get a living out of the general result. Instead of men getting ten hours work they would probably get an average of six, seven, or eight hours, and in that way the work was distributed among a greater number of people.

By Senator Yutzy:

Q. You did that instead of discharging them?

A. Yes; the result of that was that it made the average low, and was a cause of complaint, and when this thing was all over, we had simply to compromise and in giving more hours of work, consequently, to do with fewer men.

By Mr. Lindsey:

Q. Looking at the matter from the experience you have, was that plan of retaining more men than you could give full work to a good one?

A. No; it caused dissatisfaction to the men, and caused them to complain, I think unreasonably and unjustly against the company, because the company, so far as it was concerned, was perfectly willing to pay that number of dollars for the service done, but it was distributed among so many that instead of their getting fifty dollars, say, per month, they would get thirty or forty, perhaps. Very many of the oldest men had their sympathies aroused in favor of men, and wanted them retained even if they could not get full time, and asked us to do that thing in many instances; but it resulted just in that discontent I have mentioned. Now we have changed our policy, and endeavor to give our men nearly as full time as we can, and in that give our oldest men and thoroughly loyal men, of course, the preference.

Q. From your experience and knowledge of the number of railroad men in the country, is there a surplus?

A. There is to-day.

Q. There are men out of employment?

A. Yes; the depression in the iron business, and coal business, and lumber business, and everything else, makes less traffic, and a greatly decreased number of trains. This decrease has made a corresponding decrease in the demand for men. We hope one day that it will change, and we can take on all our people and pay them better wages than now; but we cannot do it until the country becomes more prosperous than now.

Q. Did this number of men out of employment have a tendency to produce restlessness among them, and bring on the trouble?

A. There is no question about that. It was the want of employment that made the labor of the country dissatisfied. I think if we could set men to work making a living for themselves and their families, I think there would be no trouble about it. I think it is the best law that can be made.

Q. It was more that, in your judgment, that caused the trouble than low wages?

A. I think so.

George R. Sowden, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. I live in west Philadelphia, No. 1421 Locust street.

Q. What is your business?

A. I am a practicing lawyer.

Q. Go on and state what knowledge you have of the occurrences at Pittsburgh last July, and the movements of the militia?

A. During last summer I was colonel of the Third regiment of infantry, connected with the First brigade of the First division. I was in the brigade commanded by General Mathews. On the evening of Friday, July 20, I got a dispatch from him, asking me to assemble my regiment, and report for duty as soon as possible at the West Philadelphia depot. I got the dispatch at Bryn Mawr. I got to Philadelphia at nine o'clock, and sent out dispatches to my field officers and staff officers and company commanders, and I assembled part of my regiment there, and at two o'clock of Saturday, July 21, I went on the train to Pittsburgh. We reached there about two o'clock on Saturday. There the troops were ordered out of the train, and we moved up the railroad track. I was on the left of Colonel Benson, and in my rear was the Weccacoe Legion and the Keystone Battery. They were dragging the Gatling guns at that time without horses, but it was found impossible to drag the guns over the railroad ties, and men were detailed from the three regiments to assist in hauling the guns. I sent a detail for that purpose. After we got in to the neighborhood of Twenty-eighth street—I do not know in the meantime what had become of the Second brigade—I was facing west on the railroad track seventy-five yards below the crossing on Twenty-eighth street, and the rear of my command was towards the hill.

Q. Facing toward the hill?

A. No; I was facing toward the Allegheny river, forming a straight line. Some little time after I was there, the crowd of rioters formed in front of us, and also on my left flank, and, as I was in a straight line, I withdrew my left flank, so as to connect and form an angle with the balance of the brigade, to keep the rioters from coming in behind us. General Mathews approved of the partial change of front. At that time, there was an enormous crowd of people on the hill back of us, and in front of us, and there was a good deal of noise and confusion. After we had been there some little time, there was some firing of pistol shots; and stones, and brickbats, and clubs, and every thing of that sort were fired at us, and, presently firing began among the

troops on my right, and also on the other side. The brigade at one time formed three sides of a hollow square. The firing by the people began, as I saw, from the hill. That was the first I saw. That was, the firing at the troops. After some little firing on their part, the troops began the return fire. My men I didn't permit to fire until on Saturday afternoon, as I had received no orders to fire, and didn't see the immediate occasion for firing. I restrained my men from firing. Then, after this general firing on the right, a great many people on the hill were killed, and some of the rioters in front on twenty-eighth street were also killed. In the mean time, we were all surrounded, where I was, by the rioters.

Q. Did you hear any command given to fire?

A. No; I did not. There was no command to fire. I got no command to fire.

Q. Were there any shots fired by the mob before there was any firing by the militia?

A. Yes; a great many.

Q. Pistol shots?

A. Mostly pistol shots, and, I think, there were two or three gun shots from the side hill fired at us.

Q. What other demonstrations were made by the crowd, before the firing took place on the soldiers?

A. I was some distance from what you call the right of the brigade, on Twenty-eighth street. I had my hands pretty full where I was, and didn't pay much attention to what was going on there. In front of me some rioters showed pistols, and wanted to go through my lines. I refused to let them. They threatened what they would do with me and my men, and also tried to seduce the men from the lines. They were saying we are all workingmen, and you won't fire on workingmen. In this way they endeavored to break up the morals and discipline of the command. I drove them away without using violence, so far as I could, and kept them at a distance of from three or four yards.

By Senator Reyburn:

Q. What was the general conduct of the whole command?

A. Do you mean of the brigade?

Q. Your men?

A. It was very good. For raw troops, it was excellent. I have seen troops in the field that didn't behave nearly as well as the men in my command. Most of them are boys, and, like young colts, were a little skittish at the first fire; but finding they didn't get killed, they stood to their work very handsomely.

By Senator Yutzy:

Q. Had any of your command ever seen actual service during the late war?

A. Yes; I have seen service, and some of my officers and some of the men.

Q. What proportion of them?

A. I should say ten per cent. on an average. Perhaps more.

By Senator Reyburn:

Q. What was the general conduct of the division as a whole?

A. I cannot speak of that because I didn't see the Second brigade, and didn't know where it was; but the general conduct of the troops was excellent.

Q. From the commencement of the trouble?

A. Yes; in my judgment there was as good discipline, and order, and soldierly behavior on the part of the officers and men, as there would be in an army in the field, and much better than I have seen at times, in case of disaster. I was in the field about two years, and served under Generals McClellan, and Burnside, and Hooper, and Mead. I joined the army at Antietam, and served in the Pennsylvania Reserves at Fredericksburg, with

the Third division, under General Reynolds, and was at Chancellorsville and Gettysburg.

By Senator Yutzy:

Q. In what capacity did you serve in the army?

A. First as orderly sergeant, and I was then made first lieutenant and captain. I was on General Doubleday's staff part of the time. After this general firing had taken place on Saturday afternoon, we were moved down into the round-house. Some reason was given that we were sent to guard the property. We went into the round-house about dusk, and a little later—between seven and eight o'clock—I was following Colonel Benson, and was given that part of the house to guard opposite Liberty street, about seventy-eight feet long, and was instructed to put out sentries along the line and inside the house to guard the windows, with orders to keep the mob outside back from the windows, and observe their operations, and not to fire without orders. There was great confusion and tumult outside, and a great deal of yelling and screaming, and some firing, and we could scarcely show ourselves at the windows until the mob outside began to throw bricks and direct pistol shots at us, but my men, owing to the orders I had given, didn't fire at all. Occasionally I went to see if the sentinels were on duty and obeying orders. About one o'clock I was lying on a board, when I heard a sentinel call for the sergeant of the guard on this line of Twenty-eighth street, and I immediately went over, taking a posse with me, to learn the cause of the alarm, when I found a large crowd around a field piece, apparently loading it, and preparing to fire. I immediately sent my adjutant to notify General Mathews—to notify him of the fact, and request his attendance. While my adjutant was going for General Mathews, he met General Brinton, and brought him, and General Mathews turned up at the same time. We held a council. The piece was ready to be discharged, and was pointed toward where I was told the Second brigade was. Then it was determined to disperse the mob. I cannot say now whether any intimation was given to them at the time to leave or we should fire—I am not positive—but I think there was.

Q. Warning you mean?

A. Yes. I am not positive; but they had a light, and were about ready to fire, when, by General Brinton's or Mathew's orders, I drew some men up inside of the windows, and we opened fire on them. They immediately dispersed, a number being killed and wounded. After an interval they came up again, and we let them come up; but as soon as they came up to the piece, and attempted to fire, we ordered them back, and when they didn't go back, we opened fire. After that time notice was always given. I suggested the propriety of going out for the piece and bringing it in, and volunteered to go with my men and bring it in and spike it; but our commanders thought it was not worth while, as we had it covered. After the crowd had withdrawn from the piece, they got back of board-piles and small houses, and kept firing at us all night. One man fired an explosive bullet. Every now and then it would come in over the heads of the men and strike something large—such as the stack of a locomotive—and immediately explode. A number of them had muskets and rifles. In the meantime some cars out on the right of us had been fired, and a number of these burning cars were sent down towards the buildings where we were, and lodged against some building not filled with troops, and in a little while the flames rushed through the window of the first floor and struck the ceiling of the second floor, and in the course of half an hour or so everything was on fire, and about six o'clock everything was on fire all around us, and cinders were falling as long as my hand—large cinders from this building—and the roof of this outside building was entirely on fire, and it had communicated to the roof of the round-house, so that we were enveloped with a great deal of smoke, and in danger of being enveloped entirely in flames.

By Mr. Lindsey:

Q. How far was this cannon stationed from the position you held?

A. About as far as from here across the street—about eighty feet.

Q. In what direction?

A. It was facing about the direction of the grain elevator—in that direction.

Q. Down the track?

A. Not exactly, but sort of angularly, so as to strike the machine shops. It was on Liberty street.

By Senator Yutzy:

Q. Below you then?

A. Yes; but right opposite to us. After we were almost smothered in smoke, and these heavy cinders were falling, we fell in for the purpose of marching out—where, of course, I had no means of knowing—it was not proper for me to inquire. In the meantime we took the ammunition out of two or three guns there and dampened them with water so that it could not be used against us. We turned out the first street and went towards the Allegheny river and then we struck for Penn street, I think, and as soon as we struck that street and got opposite those men, who were firing all night, they turned about face and fired into our flanks. The firing began as soon as we got on Penn street, and they kept firing into our flanks all the time until we got to the arsenal.

By Mr. Lindsey:

Q. Where did the firing come from?

A. From door-ways, and alley-ways, and second story windows, and doors of houses, and telegraph poles, and from every place where a man could get behind—where he could fire without being in any danger. I saw men standing along the side-walks with large navy revolvers in their coat tails waiting for us to get past a sufficient distance to fire into us.

Q. For what distance was the firing kept up?

A. I can only give an estimate. I should say a mile.

Q. Firing out of houses—was there much of that?

A. A great deal of that? I saw repeated cases where a man's arm would be out of a window firing at us; and generally when we would pass a corner there would be a crowd there apparently peaceable, but when we got past they would immediately fire into us.

Q. How many men were wounded in going out?

A. I don't know. I do not remember the number of men wounded.

Q. Was there any jeering of citizens from the houses as you passed along?

A. A great deal.

Q. And participated in by women?

A. I think I heard several women abusing us and a number of men stating, that we had killed their brothers and sons and so on, and that they would kill us.

Q. When you arrived at the arsenal, did you go into the grounds?

A. No.

Q. You do not know what took place?

A. Not of my own knowledge.

Q. What was the conduct of the troops there under General Brinton, taking them all, during Saturday in the round-house?

A. In my judgment, it was excellent, and, as we marched out of the round-house in the morning, I think the men all kept perfect order. The men were dressed in regular files, and no officer, that I saw, was not in his proper place. There was no confusion among the troops until as we got near the arsenal, when there was a movement made, coming from the right, to close up on a double quick, and that brought the Second brigade in the rear up on us, and that sort of huddled up the First brigade, and made some confusion there.

Q. Where was that?

A. Somewhere in the neighborhood of the arsenal—probably two squares from the arsenal. That confusion lasted two or three minutes, probably, and the Second brigade was just put on the right, and order was immediately restored. At one time there was a little difficulty about drawing the Gatling guns, and I know I assisted myself in pulling a gun some distance with my men.

Q. Was there any demoralization during the night in the round-house?

A. Not a particle—so far as I saw—not a particle.

Q. The discipline was good at the time you were in the round-house?

A. Yes; I had sentinels on front, and they observed their duty perfectly, and my whole command was in excellent condition.

By Senator Yutzy:

Q. Was there any disobedience of orders on the part of the officers or men?

A. No; occasionally there would be a man that didn't have any experience in the field, as there will always be men who will shirk their duty. Once in a while there would be a man indifferent to his duty, but that was simply in isolated cases just as you would see in the army. I saw it in the army of the Potomac. As a whole the discipline of the troops in the round-house was excellent.

Q. You state you thought there was some musket firing or rifle firing from the mob at Twenty-eighth street.

A. Yes.

Q. Did you see any musket firing?

A. Yes.

Q. Did you see any muskets or rifles in the hands of the mob?

A. I cannot say that I saw—yes I did. I saw it on Saturday morning after leaving the round-house, as we were going up the street. I saw these men firing into us all night. I saw them have muskets. On Saturday afternoon I saw firing that must have come from muskets. I know the difference, and I judged from the sound and the smoke. The firing couldn't have been done with pistols.

Q. Were any of the military struck by pistol or rifle shots before they commenced firing on the mob?

A. Yes.

Q. Did you hear any command given to fire?

A. On Saturday afternoon?

Q. After this firing from the mob—following the stones thrown at the military.

A. No; I cannot say that I did. I am positive I did not; therefore I didn't fire nor order my men to fire.

Q. Did you hear a command from any officer to cease firing?

A. I do not remember any command to cease firing.

By Senator Reyburn:

Q. Did you see General Pearson at that time?

A. I saw him once that afternoon. That is the time we were going up from the Union depot to the Twenty-eighth street crossing; at least I saw a major general I took to be General Pearson.

Q. Did you hear any general give a command in this way: "Order your men to fire?"

A. No, sir; I did not.

Q. How was General Pearson dressed?

A. If this was General Pearson, he had a military coat on with shoulder straps, and no sword.

Q. A cap?

A. I think he had a cap on.

Q. You saw no belt?

A. I think he had no sword nor belt.

Q. After you left the round-house and were marching along Penn avenue, did you see any police officers fire at you?

A. No; I didn't see any firing. I saw them in front of a police-station, and I saw them with pistols; but I know a man that did see them fire.

Q. Did they make any hostile demonstration?

A. Yes—no; I cannot say that I saw any hostile demonstrations, except in their manner. They looked at us with a forbidding sort of manner.

By Senator Yutzy:

Q. Did they have pistols in their hands?

A. Yes.

E. Wallace Mathews, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. In Philadelphia—No. 4105 Walnut street.

Q. What is your connection with the National Guard—what is your rank?

A. At present I am not in the National Guard. During the July riots I occupied the position of brigadier general, and was in command of the First brigade, First division.

Q. State whether you were at Twenty-eighth street on Saturday, the 21st, when the collision occurred between the troops and the mob?

A. I was in the neighborhood of Twenty-eighth street, near the railway crossing, in command of my brigade.

Q. State what occurred prior to the firing?

A. The troops had been marching in column of fours, preceded by a gentleman in citizen's dress, who was pointed out to me as the sheriff of the county, and directly in advance of us was General Brinton and an officer dressed in fatigue uniform—a major general—who was pointed out to me as General Pearson. We marched toward Twenty-eighth street, in which was a dense crowd. The crowd was pressing upon both flanks, and was very dense in front, on Twenty-eighth street, at the crossing.

By Senator Yutzy:

Q. You marched with the right in front?

A. Yes. The order of the troops was as follows: The First regiment, under command of Colonel Benson; next the Third regiment, commanded by Colonel Snowden; third an independent company, the Weccacoe Legion; then followed the Gatling guns, with a detachment from some of the different commands to haul them, including one of my independent companies, the Washington Grays. We marched in this order, and we marched into the crowd until we couldn't march any further on account of the pressure ahead of us. Then, by direction or command of General Brinton, when the crowd in the neighborhood of Twenty-eighth street became so dense that we could not penetrate it, the fours were wheeled into line, facing our left flank, that is, facing the Allegheny river. Then, by order of General Brinton, the brigade was marched directly to the front, and across the tracks slowly, the men with their pieces at a carry, thus backing

the crowd off from the tracks, the purpose being, as I was informed, to clear the tracks. The crowd was pushed gently back, until they were pushed entirely off the tracks that were free from cars; but there were several open cars in the vicinity, and we saw that in attempting to clear the tracks we had already cleared, perhaps, four tracks. Then, by direction of General Brinton, the front rank was left in this place, and the rear rank was brought to about face, and marched to the rear, thus clearing the few men gathered in the rear.

Q. How far did you march to the rear?

A. About twenty feet.

Q. Across the tracks?

A. Yes—twenty or thirty feet—facing the hill so that the front two ranks were facing outward, opposite each other. Their backs were towards the center. The crowd on our right, that is on Twenty-eighth street, were very demonstrative and noisy, and began to press in between the open ranks. By General Brinton's orders, the Washington Grays were brought forward to drive out the crowd between the two ranks. They proved to be insufficient. They were only nine men beside the officer, and the Weccacoe Legion was brought forward to assist them, and General Brinton actively superintended the effort to drive the crowd out. That is where the first *mélée* occurred in driving out the men who had intruded between the two ranks. As the general took direct command, I didn't interfere. During that trouble some of the crowd, I believe, were hurt by bayonet thrusts, and then commenced pistol firing, and then almost simultaneously from every direction came pieces of coal and stones and all sorts of missiles, in a great measure from the hill and also from the cars—I think some were loaded with coal—and from Twenty-eighth street, mingled with pistol shots and shouting, so that it was a scene of confusion I never saw equaled. We were without orders, and I saw nothing of General Pearson there at that time. General Brinton I saw occasionally moving about in different places. I watched the crowd, because I saw they were very much incensed, fearing for my men. I saw them in several instances seize the muskets of the men, and I knew that many of

them were young men, and I feared if such a movement as that became general, they would disarm my men. Consequently, I watched very closely the temper of the crowd, until I became convinced we couldn't temporize any longer, and I gave the command to load.

By Senator Yutzy:

Q. How long before the firing did you give the command to load?

A. Not more than one minute, I should judge; and there had been pistol firing.

Q. From the mob?

A. Yes.

Q. Before you ordered your men to load?

A. Yes. Then, before I could take decided action in the matter, the firing commenced somewhere on the right, as near as I could judge, in the ranks of the Weccacoe Legion, or the artillery corps, Washington Grays. I heard no order to fire, and I gave no order to fire. The firing commenced first, a single piece, and then one or two near together, and then it became general on the right of the First regiment, and ran down as far as the center of the regiment, and as far as the close. Immediately all the officers, from all I saw—I remember Colonel Benson and his lieutenant—Colonel Clark—together with the staff officers and myself, attempted to stop the firing. We rushed among the troops in order not only to make ourselves seen, but felt and heard, and gave orders to cease firing. The crowd scattered entirely as soon as the firing commenced. We then moved immediately to the right, covering Twenty-eighth street, and took possession of that, in other words, brought up the Gatling guns, by order of General Brinton, and placed them on the street. One to command twenty-eighth street, and the other to command the tracks eastward. Then a company of the First regiment were brought—as the crowd attempted to cross on to Twenty-eighth street—were brought entirely across that street in the rear, and stretched across the street, in that direction, to keep the people back. Gradually the crowd began to get

together in knots, and assemble in our front, and some of the more violent among them, who seemed to be under the influence of liquor or partially intoxicated—some of them came up to within three or four feet, and shook their fists in our faces, and called us vile epithets, in order to break our lines. I saw no disposition on the part of the troops, not even the privates, to hurt anybody, except in self defense. In some cases they allowed the rioters to push through their lines, and get inside. In this way the crowd gathered in little knots, and came nearer, and got more and more bold, until I gave directions for one or two companies commanding Twenty-eighth street to bring their pieces to a ready, when the crowd immediately dispersed, showing that they still feared any application of lead. We then held this position until about dusk, when, by direction of General Brinton, I brought the brigade, marching left in front, into the round-house. There was no explanation given me at the time, so far as I remember, why we were taken into the round-house; but it being night, I presumed we were to be quartered there.

Q. By whose command?

A. I received my commands from General Brinton. We marched into the round-house, and around the circle, nearly covering the entire circle, the Third regiment, under Colonel Snowden, being stationed, as they had followed in line, opposite the Liberty street windows of the round-house. General Brinton and some of his staff and myself, with some of my staff, then went around the building, looked at the windows, and determined to put on a strong guard, and I gave the orders accordingly. The detail was made, and the guard was stationed at those windows, and I then attempted to get a little rest, but, after a few hours, about ten o'clock, some firing commenced, and, after the firing once commenced, there was no such thing as rest. I spent almost the whole night in the round-house proper. Where I attempted to rest was in the building that had been occupied as the telegraph office at the outer depot.

Q. In the round-house?

A. Immediately adjoining—three or four feet from the round-house. We had to increase the guard after the firing commenced. Had to put men at each window on the Liberty street side, and on the side of the yard on that side of the building towards Twenty-eighth street. I think we increased the guard, perhaps, twice during the night. At one time during the night, about one o'clock, I received information that a piece of artillery was in Liberty street, and I immediately hastened to the window, and saw a brass piece, which I judged to be a Napoleon gun.

Q. What time was that?

A. About one o'clock on Sunday morning. Several men were standing about it, and General Brinton was there, and Colonel Snowden. I asked if I should send out a detachment to capture the gun, and bring it in, but he didn't give me direct permission, but gave me some encouragement, and I went immediately to Colonel Benson to consult him about it, and asked for a detail——

Q. Who was Colonel Benson?

A. The commander of the First regiment. While consulting him about this matter, the Third regiment opened fire, as I understood, by direction of General Brinton, on the crowd surrounding the piece, and from that time on there was more or less firing. As the mob would come forward and make a demonstration as if they were going to fire the piece, the men at the windows would fire on them, but, after a time, they restrained firing, and ordered them to go back; and that became a by-word through the division, "Go back, go back, one, two, three," and then discharge.

Q. Was there any firing at that time from the mob outside on the troops?

A. Yes; pistol firing and gun firing—from some sort of guns. From that time until morning there was a good deal of firing. There was one party that was firing an explosive bullet, which would come through the windows and strike and explode.

Q. Explode after they came into the round-house?

A. Yes.

Q. You mean explosive shells, fired from a rifle?

A. Yes; small things. One struck on a column not more than four feet from where I was. I happened to be looking in that direction, and I saw it. First there was a sharp crack, and then I saw the smoke and some white ashes drop down from that spot. From that I knew very well that it was an explosive bullet. Further on towards morning, some burning cars were run in between our troops and the cannon, and from that time on we had very little firing there. Then some cars were stopped on the next building from the round-house, towards Twenty-eighth street, and that building took fire. General Brinton had organized a fire brigade, and had the fires put out. I didn't witness it myself, but understood it. He had put out those burning cars, so the round-house was not set on fire by the burning cars; but the machine-shop next took fire, and we could not find any means to put that out. The burning of that decided our case, for the round-house was connected with that by buildings filled with light kindling wood used by locomotives for firing up, and the burning of that building also sent columns of smoke down into our open round-house and cinders, and after a time the building itself took fire. I was then called after day light into a council, by General Brinton, who stated that he had received orders from General Latta, in case of moving out to go out eastward to Penn avenue—I understood it. There was a young man there from the Jefferson Cavalry, and he told where Penn avenue was—and for that matter, I knew myself—and when it was decided, the general gave me orders to take my brigade out first. I formed with Colonel Benson, of the First regiment, and Colonel Snowden, of the Third, and the Weccacoe Legion, and the Washington Grays, with the Gatling guns, and we issued out upon Liberty street.

By Senator Reyburn:

Q. The round-house was on fire?

A. I think the building itself was on fire. At any rate it was only a question of a few minutes. After those other buildings were fired it could not have

been saved.

Q. Would it have been possible for your troops to have remained there?

A. It would not have been possible—not many minutes more.

Q. Was the round-house filled with smoke?

A. The whole building was so filled with smoke—the smoke was so dense that it was difficult to see.

By Senator Yutzy:

Q. Before you left?

A. Yes.

By Senator Reyburn:

Q. After coming out and manœuvering in the street, your troops were steady and kept in good order?

A. I was at the head of the line, where I thought my services were most required—at the very head of the line, in advance of the First regiment, nothing being ahead of me, excepting a small skirmish line of a dozen men stretched across to clear the street, and on looking back I never saw a regiment march in better condition, even in the streets of Philadelphia, or march in parade in better order. They had their arms at right shoulder, and were in perfect order. After we had been besieged there and harassed all night, it nerved me, when I looked back at that sight, when I saw those men come out in such gallant style, after being harassed all night, and unaccustomed as they were to fighting. We went down Twenty-fifth street to Penn avenue, and out Penn avenue to the arsenal. From my position at the head of the line, I didn't see any firing in the street. As we went along, people on either side were looking at us, and I was quite anxious about this little skirmish line, and was keeping my eye on them to see that they didn't get nervous, and on that account may not have seen as much as the others. I didn't see any firing from our flanks or in any direction, until we arrived at

the arsenal. We halted there, and I saw the guard let General Brinton in, and I think one or two pressed in with them; but after a time they came back again. During that time there was some firing in the rear. We heard them hallooing there, and I distinctly heard firing in the rear, which increased, and then I noticed that the troops in our rear had become somewhat confused, and did not keep their alignment, and some of them came up into my brigade. My brigade then took the left, and Colonel Benson put his regiment in the rear, putting his command on the two sides of the street, so that they could command the windows. Those on the right side of the street commanding the windows opposite, and *vice versa*.

By Senator Yutzy:

Q. Did you march in that form?

A. Yes; and after that we were not disturbed. We marched to the Sharpsburg bridge, and crossed it, and in Sharpsburg we received a few pieces of bread, and passed on over the hill.

Q. From whom?

A. From citizens, I think.

Q. Of Sharpsburg?

A. I think so.

By Senator Reyburn:

Q. Were your troops exhausted by want of food?

A. Very much. I didn't get even a piece of bread, but I saw some that had that. I received nothing personally until we passed a mile and a half, perhaps, beyond Sharpsburg, and there I obtained a little buttermilk.

Q. Just state in this connection what rations the troops had received from the time they left Philadelphia to the time that you reached Sharpsburg?

A. After leaving Philadelphia, received nothing until we got to Altoona. There the men were served with sandwiches and coffee—one or two sandwiches and a cup of coffee to each man. These provisions were handed in to the men. Then on arriving at Pittsburgh they were served with similar things—sandwiches and coffee.

Q. During the night of Saturday you had nothing?

A. We had nothing after marching to Twenty-eighth street.

By Senator Yutzy:

Q. At what time did you get the last rations?

A. About three o'clock on Saturday afternoon.

Q. And you did not get anything after that until you reached Sharpsburg?

A. Nothing at all—excepting once in a while a soldier had put into his haversack an extra piece of bread.

Q. And this was three o'clock on Saturday afternoon, until that time on Sunday?

A. Nine o'clock, Sunday morning; and there was no serving of rations in Sharpsburg.

By Senator Reyburn:

Q. It was every fellow for himself?

A. Yes: each one foraging for himself. Rations were not served until that night. So far as I saw, everything was paid for that was received. I know that I paid for the buttermilk I received.

Q. Did you know or hear of any order being given to General Brinton by Colonel Norris to move to Torrens station?

A. I heard of no such order.

By Senator Yutzy:

Q. Or from any one else?

A. No; I asked General Brinton frequently what his orders were, and so far as I know, he told me the orders he had. I heard of no such orders.

By Senator Reyburn:

Q. If these orders had been given, do you think that General Brinton would have obeyed them and communicated the fact to you? You consulted together?

A. We did. I think he would have told me certainly if he had such orders. There was hardly any occasion to consult after we left the city.

Q. But during Saturday night?

A. I frequently saw him, and had he received such orders I would have heard of them.

By Senator Yutzy:

Q. Did you consult with him during the march from the round-house to Sharpsburg?

A. During the march, until my brigade was put on the left, I frequently saw General Brinton.

Q. Did you see Colonel Norris?

A. I didn't see him—to know him.

Q. Do you know him?

A. No; I saw a barouche later in the day in the vicinity of the arsenal, and I heard it stated that Colonel Norris was in the barouche.

Q. You stated that some cars were run between you and this gun?

A. Yes.

Q. What became of the gun after that?

A. I saw it from the windows—from the higher windows—I went up once for that purpose to look after that gun—and I found that provision had been made by General Brinton in regard to it. I think he had stationed some men of the Second brigade in the upper windows of the office of the building near the round-house, and towards which that gun was pointed.

Q. To pick off the gunners?

A. I understood that.

Q. Did you see any one with a lanyard in his hand fire that gun at any time?

A. I didn't. It would have been too dark up to daylight to see a lanyard.

Q. Did you see a light with the gun?

A. I didn't. I was with Colonel Benson consulting, at that time.

Q. Do you know it was a Napoleon?

A. No; I judged it was. I could see the gun distinctly, yet Colonel Benson could not see it at all. I would like to corroborate the testimony of Colonel Snowden in regard to the discipline of our troops in the round-house—of both brigades, so far as I saw them.

Q. In short, was the conduct of your troops commendable?

A. Perfectly so.

Q. Of officers and men?

A. Yes.

Q. Have you had experience in the army?

A. Yes. I entered the army early in 1861, in the infantry—the three months' service—and at the end of that time I raised a battery, and served as captain

of that battery for a year and a half. I was then on detached duty for awhile, and then, in the spring of 1863, I rejoined the army of the Potomac as major of the First artillery—the same regiment my battery was connected with—and served on General Doubleday's staff, and was in active command of three batteries in the field, and was with my command in the beginning of Chancellorsville, and later on in the battle I served as chief of corps, and after that battle had command of eight batteries in the artillery reserve of the army of the Potomac.

Q. With the rank of major?

A. Yes.

Q. Of artillery?

A. Yes.

Q. Do you know of any communications sent by General Brinton to General Latta while in the round-house?

A. I heard him say repeatedly that he had sent messages and received messages from General Latta.

Q. Did you see the communications from either one?

A. I saw one, but didn't read it.

Q. Do you know the nature of those communications?

A. Nothing except as I have stated that in case of leaving—this was near morning, I think—in case of leaving, to march out Penn avenue—whether it stated march east, or go by way of Penn avenue, it was something about Penn avenue. I knew where that was.

Q. From your experience as a military man, do you consider that it was a prudent move to go into the round-house with the troops at that time?

A. It is very easy to see mistakes after they are made. I can say, however, on general principles, it seemed to me at the time, as it has seemed since, that

the first thing to be done was to disperse the mob. Until that was done, there was no safety in going into the round-house. That the troops needed rest, there can be no question. Standing in the sun, many of them had fallen from sheer exhaustion and the heat of the sun. Several of the men were lying about there, and they were applying water to them, if they could get it. There was complaint from all quarters that the men were exhausted, and some seemed to be sunstruck. In that condition, they needed rest, and their commanding officers wanted to give them rest, but it was evident that the mob must be dispersed before there could be much rest for them.

Q. Was not the mob already dispersed?

A. It was on the crossing, but they were continually gathering.

Q. They were re-assembling?

A. Yes; and some were very demonstrative and very violent.

Q. Did you see General Pearson in the round-house, after you retired there?

A. Yes; he was in the telegraph office, which was immediately adjoining the round-house. A building some four or five feet from the round-house. I think they called it the dispatcher's office. It was the office where the wires centered. It was a square building, directly opposite Twenty-sixth street. I saw General Pearson sitting at a desk writing, when I entered.

Q. In this telegraph office, adjoining the round-house?

A. Yes.

Q. How was he dressed?

A. There was not much light and I could not tell, except that he was dressed in the fatigue uniform of a major general. He had straps on his shoulders, with two stars.

By Senator Reyburn:

Q. Did he have a blouse on?

A. I cannot say.

Q. Did he have a cap on?

A. I don't know. He may not have had any anything on his head in the house. When I saw the officer pointed out as General Pearson, on the tracks, I cannot tell whether he had a cap on or not, but it was something not unmilitary.

By Senator Yutzy:

Q. But do not remember whether it was a hat or cap?

A. No. But if he had a silk hat on, with a soldier uniform, I should have noticed it.

By Mr. Means:

Q. Do you know of any telegrams passing between General Brinton and Colonel Scott in regard to General Brinton clearing those tracks?

A. I do not know of any communications whatever, between them; but I am very confident, I am positive, I heard General Brinton say—we said to each other during the afternoon, we have possession of those tracks, and why don't they send out their trains.

Q. Then, in your opinion, they could have sent out trains, so far as you had possession of the tracks?

A. So far as the tracks were cleared up to the point where we were. But we understood the reason to be that the men would not serve.

Q. That they refused to run?

A. That was the excuse we heard; but there was no time during the afternoon, after the first firing, when the crowd were cleared from our immediate neighborhood, and no time, only during the night, that I did not feel as a military officer, that we had command of the position, and were competent to deal with the crowd. The only thing was, that we were lacking rest, and were greatly reduced in strength from hunger.

By Senator Reyburn:

Q. Did you hear General Pearson give such an order as follows, to the officers: "Order your men to fire," before the firing took place?

A. I did not—nothing of the kind. I heard nothing in relation to firing, except the first fire.

By Mr. Means:

Q. You suppose that the troops fired in self-defense?

A. I supposed at that time, and I don't know that I have any reason to change my impression, that it was an actual shot—the first shot—and there was so much confusion at the time that it would have been very natural for others to suppose the order was given.

By Senator Yutzy:

Q. You stated that you saw pistol shots fired from the crowd?

A. It would be more correct to say that I heard them.

Q. Did you see stones and missiles thrown?

A. I did.

Q. Did you consider that an assault on your troops?

A. I did.

Q. Did you not then consider the order to fire justifiable?

A. I did.

Robert A. Ammon re-called:

By Mr. Larrabee:

Q. What day and what time of the day was it you got word that the Governor was coming to Pittsburgh?

A. I think it was on the 24th. I think it was early in the morning, but won't be positive about that. That is my recollection.

Q. Where did you learn he was at the time?

A. He had left Chicago.

Q. What time did you expect him?

A. I cannot state, as the rioters at that point were not aware when he had left Chicago. I telegraphed along to the different trains, and found he was coming on No. 4.

Q. Did you have any communication with him?

A. Yes.

Q. What did you do when you learned he had come in?

A. I knew some men were lying along on the road, and more especially in Ohio, and I had heard the talk indulged in by the men. Some were in favor of stopping the train, and putting the Governor off. So I telegraphed to the men not to do anything to get the Governor down on us. I asked them to do that to please me, and they telegraphed back that they would.

Q. Did you telegraph them to more than one point?

A. No.

Q. To what point?

A. Latonia, Ohio. I then telegraphed to the Governor, extending a welcome back to the State, and guaranteeing him a safe passage. I won't be positive whether he got my message at Latonia or Salem.

Q. Did the Governor communicate with you?

A. No; but the conductor answered "O.K."

Q. Did you telegraph more than once to the Governor?

A. I believe not.

Q. Where were you when the train arrived?

A. At the outer depot, Allegheny city.

Q. Did you see him immediately on his arrival?

A. Yes; in a Pullman car.

Q. You went in and saw him?

A. Yes; I talked with him about five minutes, I suppose.

By Mr. Lindsey:

Q. What was the nature of the conversation?

A. I went into the car, and as I went in the Governor got up and extended his hand, and I sat down alongside of him. He asked what do you men propose to do. I told him what we had done—that we will behave ourselves. He said that he was glad of it, that he wanted the peace of the State preserved, and that he was glad to see us disposed to save property. He wanted to know if he could do anything for me, and I said nothing, but I would be glad if he would come out on the rear platform, and say something to the boys. He did so, and made a little speech.

Q. How did you introduce him?

A. I just said "boys, this is Governor Hartranft." I pulled the bell cord, and we went up as far as the round-house, and had the train stopped there, and Mr. Perkins, the master mechanic, jumped aboard, and I spoke to him for a while.

By Mr. Means:

Q. How did the boys take the remarks of the Governor?

A. They gave a cheer. I went on to Federal street with him, and a delegation from Pittsburgh met him with carriages, and took him across the river.

By Mr. Lindsey:

Q. Did you go across the river?

A. Yes.

Q. With the Governor?

A. No; in the crowd that went over. Before I left, I had his car switched over on the West Penn road.

By Mr. Larrabee:

Q. What is your age?

A. Twenty-five years.

By Senator Reyburn:

Q. Were you at Torrens station on Thursday?

A. No.

Q. On Friday?

A. I came by there on Thursday night or Friday morning.

Q. Were you there when the sheriff came out?

A. I was not.

By Mr. Larrabee:

Q. At what time were you arrested?

A. I was arrested on the 30th of July, about three and a half o'clock in afternoon.

Q. Was there any preliminary affidavit made?

A. I was arrested on a bench warrant, issued by Judge Ewing.

Q. Who made the information?

A. Chauncey McCoy.

Q. Of what road?

A. Of the Pittsburgh, Fort Wayne and Chicago.

Q. Have they ever taken any steps to bring on your trial?

A. No. I have asked for my trial repeatedly, but have never got it.

Q. Have you asked for your discharge?

A. No; because I don't want a discharge.

Q. Have you demanded a trial?

A. My attorney has asked for my trial. That is what I wish.

Q. Are you under bail now?

A. Yes.

Q. Do you go to Pittsburgh and renew your bail every time?

A. When my bail expires my bond is sent to New York, and I take it to a notary public and sign it, and he puts his seal to it, and I send it back to Pittsburgh.

Q. What is the amount of it?

A. Fifteen hundred dollars.

Q. What are the charges made against you?

A. Misdemeanor, under your own railroad act of March, 1877.

By Mr. Lindsey:

Q. I wish you would state once more just what is the object of the Trainmen's Union?

A. It was to resist this reduction of ten per cent., and to see if we couldn't bring the company to terms, and get them to look into our condition, so that anything of the kind should not occur again. We thought our labor skilled labor, and we were running great risks, and we thought we ought to earn more money, that instead of reducing it they ought to increase it. The object was to get up a union so strong that the railroad magnates would have to listen to us.

Q. Did you intend to strike?

A. We did, if they did not accede to our demands.

Q. What is a strike?

A. It is a body of men acting together for the purpose of quitting work in a body—to strike, and leave the work alone—as we understood it in the Trainmen's Union. We understood it that every man should leave his work at a given day and hour, and go to his home.

Q. Go to your homes?

A. Yes.

Q. You claimed no right then to interfere with those who desired to work?

A. No; but we claimed the right to use moral suasion. We didn't think we had any right to use any violence at all.

Q. Did you claim any right to interfere with railroad property?

A. No; it didn't belong to us.

Q. Prior to the organization of the Trainmen's Union, did you have any conversation with the officers of the railroad company in relation to this reduction of wages?

A. No; because we didn't think it would be advisable.

Q. Why not?

A. We thought it better to go ahead, and when we were in shape, if they refused we were ready to act.

Q. On the 27th day of June, you sent out forty men to notify all the lodges to get ready for a strike?

A. On Sunday, the 24th of June. Unless our demands were acceded to.

Q. Had you notified the railroad companies of your demand that the ten per cent. should be restored before that?

A. We drew up these resolutions—that is what Mr. Cassatt spoke about—and submitted them by a committee of five to the officials in Pittsburgh—to the local authorities there. They said they did not concern them, and they didn't want anything to do with them.

Q. When was that done?

A. I think on the 25th.

By Senator Reyburn:

Q. You mean the railroad authorities?

A. Yes. We then asked for passes to come to Philadelphia to see Tom Scott. They wouldn't give us passes, and the boys didn't think they had enough money, with the ten per cent. reduction, to come to Philadelphia. They thought they could quell us by discharging some of the ringleaders, and they discharged a couple hundred of the boys, and this committee were all discharged, and they got around among the men, and said that they did not want them to have anything to do with those men, and they closed the telegraph wires against us, and everything of that kind. So, on the morning of the 27th day of June, we sent a request for them to meet us in the hall.

Q. To whom did you send it?

A. To the local authorities—Lang, Barrett, Scott, Pitcairn. They didn't come. We found we could not get hold of the telegraph wires to work them. On the night of the 26th, on the last train that night they sent out men on the

train—thoroughly loyal men, as they called them—men that belonged to the Union, and we thought all right. They carried the news west and east that there would be no strike in Pittsburgh, and we knew nothing of that, but found it out afterwards. On Wednesday, June 27, one of our men jumped over the traces, and brought the word he was going out, and he told us what instructions his conductor had received in regard to the strike. Mr. Barrett, the superintendent of the Pan Handle road, had told him with the other trains he had sent word that night to the men that there would be no strike in Pittsburgh on the 27th. They told all the men to stay at work, that the thing would be arranged later; but it never was arranged. All were under the impression that the bubble would burst sooner or later. When the railroad officials say they had no notice of it, and did not know anything about the strike, why we tried everything in the world to let them know.

Q. In what way?

A. Why they discharged three or four hundred of us, and they certainly discharged us for cause. I received a letter myself from Mr. Thaw stating that I had lost the situation on account of being a member of the Trainmen's Union. I was discharged somewhere near Sunday the 24th of June.

By Senator Yutzy:

Q. Were you discharged before you organized Trainmen's Union lodges on the Baltimore and Ohio railroad in Virginia?

A. I traveled all over the Baltimore and Ohio, and I came back to Pittsburgh—part of the way over the Lake Shore and Michigan Southern and the Cleveland and Pittsburgh. Mr. Thomas had been watching for me, and he stopped me. I had not been paying railroad fares, so I came into Pittsburgh on a freight train.

Q. Were you still an employé?

A. Yes; at that time.

By Mr. Larrabee:

Q. Who was running in your place?

A. An extra man. I got back and reported for duty. I went west and thought I would lay off at Alliance and go out to Chicago, but while at the breakfast table, notice came that the superintendent of the road wanted to see me at his office, and I went over there and had a talk with him, and the consequence was that I was discharged.

By Senator Yutzy:

Q. And he gave you that letter you spoke of at that time?

A. Yes; or a few days afterwards, I don't remember which. I don't remember whether it was at that time or a few days afterwards.

Q. Did you ask for the letter?

A. No; but a pass to Chicago. It is customary, when they discharge a man, to give him a pass to where he wants to go.

Q. How did he come to give you that letter?

A. I don't know. I guess he thought he could use me.

Q. Did you ask him for it?

A. No. I guess he thought he was doing me a favor, and that I would return him the favor, if he gave me the letter.

By Mr. Lindsey:

Q. Have you a family?

A. Yes; a wife and two children.

Q. How long have you been married?

A. Four years the 13th day of last September.

By Senator Reyburn:

Q. Why did you select Pittsburgh for the strike?

A. The 19th of July?

Q. Yes?

A. I don't know. The strike did not originate there. It was not our idea at all. Our idea was to have it all over on the 27th day of June—all over the country—to just stop the traffic all over the country. We thought the public would look at it as we did, unless they could get enough pumpkin rollers and snake hunters to run their roads.

By Mr. Means:

Q. Was that the day the strike took place at Martinsburg?

A. No; It took place there on the 16th of July.

By Senator Reyburn:

Q. In making arrangements for this strike, did you talk about Pittsburgh being a suitable place, or a better place, for a strike, on account of the sympathy of the local authorities?

A. No.

By Mr. Means:

Q. How long were you railroading?

A. Between nine and eleven months—about nine months altogether.

Q. Didn't you think you were managing that western road pretty successfully, with the experience you had?

A. I didn't claim credit for it. If I had not had the men I had, I could not have done it.

Q. But were you not the man who run it? You laid out your plans the same as a military officer, and your men carried them out?

A. After Mr. Lang put the road in my possession, I tried to do the best I could for it—for the stockholders.

Q. Did you have the interests of the stockholders at heart? Did you take into consideration their interests more than the interests of the employés of the road—the men you represented?

A. I thought the stockholders were in about the same pew with us. I thought they were about swamped, and that we were.

Q. But I mean the question?

A. I was looking at the stockholders interests when I turned over all the money, and I wanted the boys to get back their ten per cent. I don't know that I made any distinction between them.

Q. But answer my question?

A. I think my sympathies did lean a little towards the boys, because I was one of them myself.

By Senator Yutzy:

Q. Did you act as general superintendent of the Fort Wayne and Chicago Railroad, while you were in charge of it?

A. I was supposed to be.

Q. Who acted as dispatcher?

A. A particular friend of mine. I saw that all trains went off, and came in.

Q. Had you a dispatcher acting in that capacity?

A. I had three telegraph operators, but I acted in the capacity of dispatcher myself. I gave the orders.

By Mr. Lindsey:

Q. While running that railroad as general manager, what would you have done if your men had struck?

A. I would have increased their wages.

Adjourned to Monday morning, at ten o'clock.

PHILADELPHIA, *Monday, March 25, 1878.*

Pursuant to adjournment, the committee re-assembled at ten o'clock, A.M., this day, in the St. Cloud hotel, and continued the taking of testimony.

R. Dale Benson, *sworn*:

By Mr. Lindsey:

Q. Where is your residence?

A. No. 260 South Fifteenth street.

Q. Were you a member of the National Guards in July last?

A. I was colonel of the First regiment of infantry.

Q. And you accompanied General Brinton's division to Pittsburgh?

A. Yes; I left with them from Philadelphia.

Q. Did you go with them to Twenty-eighth street, on Saturday?

A. Yes; my position was the right of the First brigade—the right of the division. I have heard General Mathews' and Colonel Snowden's testimony in regard to the details, and my testimony is pretty much the same.

Q. Their testimony in that respect was correct?

A. Yes; the only difference I would notice is in regard to what they testify in regard to my right. My right was impeded by a crowd of citizens at Twenty-eighth street. The column was halted on account of moving the Gatling guns, and I went ahead and told the crowd to leave my front, and some citizen came back to me agitated and excited, and said it was the sheriff's posse. I told him that it didn't make any difference what it was, that they must leave my front. He asked me whether my men would do their duty, and I told him it was not his business, and I ordered them to disperse. Two or three others came back and said they were ordered to march there, and I declined to allow them to march in my front. General Mathews was in the rear, attending to the Gatling guns, and I turned the party over to him, who turned out to be the sheriff of Allegheny county. General Mathews afterwards came and said they were instructed to march there, and so they were permitted.

By Mr. Means:

Q. Was it the sheriff himself that you stopped?

A. I was so informed afterwards.

Q. You knew it was the sheriff afterwards?

A. Yes; I didn't know him, and don't now. I never met him after that.

By Mr. Lindsey:

Q. State whether there was any order given to fire at Twenty-eighth street?

A. I never received any order, and gave no order to fire, nor do I believe any order was given to fire. The firing at Twenty-eighth street commenced by the men in the rear rank of the Weccacoe Legion. The company had been brought to a charge bayonets when the crowd seized this man's musket. I saw them take hold of it. He drew back and fired. The firing extended then towards the right—towards the Washington Grays.

Q. Did he draw his musket away?

A. He stepped back about a pace, and fired.

Q. Did he fire at the man?

A. I cannot tell, but he fired into the crowd. The firing then extended to the right. My regiment was crowded into—the crowd overlapping my right, which I suppose was the cause of the troops being ordered from my right to push the crowd back. The firing was desultory file firing, and I think that the responsibility for it rests with the authorities who put the troops into that perilous position.

Q. Had there been firing by the crowd before that?

A. Yes; there had been shots from the hill, and stone firing and firing also took place from Twenty-eighth street and from under the cars on my front.

Q. What time did this occur—this firing?

A. I should judge about three and a half or four o'clock. I didn't refer to my watch. It's only a calculation of mine—a guess at it.

Q. Did that disperse the crowd?

A. Entirely—from our immediate front and from the hill.

Q. Where did you remain after the firing?

A. In the same position.

Q. Until what time?

A. Until towards seven o'clock—six and a half or seven o'clock—I didn't refer to my watch during the afternoon.

Q. Then you retired into the round-house?

A. Yes.

Q. State what the condition of the round-house was when you left it in the morning?

A. I considered it wholly untenable. During the morning, General Brinton came to me, and we were talking over some matter, and I called his attention to the fact that we would have to leave the building very soon. From the windows we could see that the machine shops adjoining were on fire. At the time the fire was very close, and cars were burning on Liberty street. I told him that the building could not be saved, and some hour or two after that the building was entirely on fire adjoining us, and the smoke was so dense we could not breathe. Shortly after that we were moved out.

Q. Did the troops move out in good order?

A. In perfect order.

Q. In what direction did you retire?

A. Out Twenty-fifth street to Penn avenue, and down Penn avenue.

Q. Did your troops keep good order during the entire retreat out Penn avenue?

A. Pretty much so, until we got to the arsenal. There was some confusion there.

Q. What caused it?

A. I judge—I was on the extreme right—I suppose it was the firing in the rear. My position on the extreme right prevented me from seeing what took place; but I have no question that the troops were fired into, though I could not see it myself.

Q. Did you see any firing along the route from the round-house?

A. I didn't, though I heard shots.

Q. You heard shots?

A. Yes.

Q. State what the conduct of the men was in the round-house during the night?

A. My observation was almost entirely confined to my own corps. I never left my regiment, except to visit the detachments on duty, and so far as my regiment was concerned they were entirely under my control. The troops in the other buildings I didn't see.

Q. Was there any demoralization discoverable?

A. None that I saw. I never saw men more patient or under better discipline.

Q. How long did you halt at the arsenal?

A. I judge a very few moments. Probably five minutes.

Q. Did you know or see where General Brinton went?

A. I didn't.

Q. Did any of your men leave you at the arsenal?

A. Yes.

Q. How many?

A. I think five or six—an officer and five or six men.

Q. Where did they join you?

A. Some at Blairsville Intersection and some at Pittsburgh.

Q. How long afterwards?

A. Two or three men joined us in two or three days, and the officer in six or seven days. One of the men never reported at all. He was court-martialed—and the officer, too—all the men that left.

Q. A regimental court-martial?

A. No; it was ordered by brigade head-quarters.

Q. Was the officer discharged from the service?

A. He was not discharged.

Q. What was done by the court-martial?

A. The verdict was absent without leave, without criminal intent.

Q. That was the officer?

A. Yes.

Q. What was his rank?

A. Major and surgeon.

Q. If you know the reasons that induced that verdict you may state them?

A. My opinion is pretty much hearsay. I was not a member of the court. The proceedings were reviewed by General Brinton, and he can give you better the facts that led to the verdict. His order didn't approve of the action of the court.

Q. It didn't?

A. No.

Q. Were the men discharged?

A. The result of the court-martial has not been promulgated as yet.

Q. Had you any men that refused to report for duty when you first got the call to proceed to Pittsburgh?

A. I don't think there was any instance of that kind. My regiment had on duty four hundred and sixty-four men out of a roll of about five hundred and sixty, and some of these men who were absent had made efforts to report, but were unable on account of lack of transportation, or on account of being sent back after they started.

Q. Did any of your men who were not able to join you the night you left undertake to come to you at Pittsburgh afterwards?

A. Quite a number. One detachment reach Altoona and went back.

Q. Which regiment?

A. I refer to the detachment of my own regiment.

Q. Do you know why they went back?

A. My information is—I demanded a statement from the lieutenant—that General Beaver allowed the troops to do as they pleased at Altoona—to remain or to return.

Q. Was that detachment the one that marched on foot part of the way, and was escorted over the bridge at Harrisburg?

A. No.

Q. Did they get back to Philadelphia?

A. Yes; they made a march and detour near Harrisburg, but they got to Philadelphia. They were on the same train with the First City Troops.

Q. Was there any court-martial of those troops?

A. No; they reported to the regiment afterwards.

Q. What was done about them?

A. The case was scrutinized by me. It didn't go up any higher than myself, because I thought that the officer was justified under the circumstances. He merely followed the direction that most of the other troops took.

Q. Could he have gone on to Pittsburgh at that time?

A. I judge not—for want of transportation.

Q. How many days was it before the road was opened so that the detachment could have gone to Pittsburgh?

A. I cannot give the exact day. I think the road was opened about the 27th or 28th.

Q. What day was it they returned from Altoona?

A. They reported at Blairsville intersection—that detachment with others.

Q. When did they report to you at Blairsville?

A. I judge it was about the 26th, probably.

By Mr. Means:

Q. Do you think the troops could have remained any longer in the round-house than they did?

A. No; and I didn't see what the necessity was for their remaining there anyhow.

Q. What was the condition of your command, in regard to rest and want of food?

A. The men were very much exhausted. They had been taken away during the night from their homes, and, of course, had very little sleep, and little or nothing to eat, and, of course, they were very much exhausted. Still, as they demonstrated on their march, they could do their duty. I would like to state to the committee, that at no time, from the hour when my regiment left Philadelphia until it returned, was there any moment, in my estimation, when the men were not prepared for any duty, that they were called on to do.

Q. You had some army experience?

A. I served about three years and six months in the army.

Q. Your troops were as ready to do service as those in the United States army?

A. I never saw any difference.

Walter G. Wilson, sworn:

By Mr. Lindsey:

Q. State your residence, and what position you held in the National Guard in July last?

A. I live at No. 2323 Green street, Philadelphia, and I was major and acting assistant adjutant general with General Brinton, during the July riots.

Q. Did you hear the testimony of Generals Brinton and Mathews?

A. Yes.

Q. In the details as to what occurred at Twenty-eighth street. State whether their testimony was substantially correct?

A. Their testimony was entirely correct, so far as my knowledge went. I was on the ground constantly with General Brinton, during that afternoon, and reported to General Pearson, of my arrival with him. General Pearson was then at the Union depot. The formation of the column and line of march was stated by both Generals Brinton and Mathews, and is substantially correct.

Q. State whether at Twenty-eighth street you heard any command given to fire?

A. I did not.

Q. By any officer?

A. I did not.

Q. State what the action of the crowd was there, prior to the firing by the troops?

A. The action of the crowd was such as to induce me to believe that a conflict was inevitable. I was satisfied they had made up their minds to have a row. There was jeering and insults in every direction, but the men bore it all patiently. I heard General Brinton, on leaving the Union depot, state, if I am not mistaken, to General Mathews and General Loud, that he wanted them to endure, and pay no attention to anything the mob might say

or do, even if they spat in their faces—simply, if they were attacked, to defend themselves. At Twenty-eighth street it was absolutely impossible to move on account of the crowd. The Gatling guns were brought in between the ranks, and, when the crowd were pushing in and surging in at the end, the Washington Grays were formed across, but were found insufficient to keep the crowd back. General Brinton then sent me with instructions to bring up other men, as the mob were pressing in between the ranks of the First regiment, which I did. I heard no order given to fire, and saw distinctly, not only pistol shots, but stones and missiles of various kinds thrown from all directions. I saw, after the firing—in fact, it seemed to me that the firing had hardly commenced before the crowd scattered in every direction. I saw, immediately, Generals Brinton and Mathews and Colonel Benson, if I am not mistaken, give the command to cease firing, and go up and down the line endeavoring to stop the men. The crowd had dispersed in every direction.

Q. How long did you remain in that position before you moved into the round-house?

A. I should judge it was about two hours, probably three hours. The firing had hardly ceased, when General Brinton got a note from General Pearson, to which he sent me to reply in person. Upon reporting to him the state of affairs at Twenty-eighth street, he directed me to return, and inform General Brinton that he would like to see him personally. I did so, and accompanied General Brinton back to the outer office, where General Pearson was.

Q. Where was he?

A. In the second story in the office at Twenty-sixth or Twenty-seventh street, at the outer depot.

Q. How was he dressed?

A. He had on a fatigue uniform and cap, and sack coat or blouse—an officer's blouse—and dark pants, and, if I am not mistaken, a white vest. He had on shoulder straps, and the mark of his rank on the cap.

Q. Did he have on a belt?

A. No; I think not.

Q. State what the conduct of the troops was during the night in the round-house?

A. The conduct of the troops was unexceptionable. I was up and around during the entire night, from one part of the building to the other, and I saw no instance where the men refused to obey any order given to them, although they were, of course, rather exhausted, and rather hungry; yet, at the same time, any command that was given was obeyed at once, cheerfully and willingly. The slight disturbance that General Brinton spoke of in his testimony was so slight that I never knew anything about it until long afterwards, and I suppose I had probably as much opportunity to know what was going on as anybody.

Q. State whether you had notice of the orders received by General Brinton from General Latta or from General Pearson?

A. Yes, sir; I had.

Q. Of all the orders?

A. Yes.

Q. State whether General Brinton received any orders from General Latta before leaving the round-house?

A. He received two dispatches during the night from General Latta.

Q. State what they were?

A. The first one was complimenting him very highly.

Q. Were they telegraphic dispatches?

A. No; they came by the hand of a scout whom General Brinton sent to communicate with General Latta.

Q. Named Wilson?

A. Yes—of the Jefferson Cavalry. The first were sent off with members of the Hutchinson Battery, and they never returned. Wilson brought back an answer regarding the situation in which we were placed, stating we understand the situation thoroughly, and an effort would be shortly made to provision the troops—that ammunition had been sent to Guthrie, and that the troops at Walls station would join Guthrie, and that Guthrie would be on the way, and certainly ought to be with us by six or seven o'clock, and stating also that there was no chance for friction primers. The second dispatch—Sergeant Wilson went out again and returned about two o'clock—maybe three o'clock—and brought another dispatch from General Latta complimenting the division very highly upon their conduct, and stating that the ammunition had reached Colonel Guthrie, and that he would be on his way shortly, and certainly would reach the round-house not later than five or six o'clock, and to hold on vigorously, or if compelled to leave, that we should do so by way of Penn avenue or eastward, and take Penn avenue.

Q. What time was that dispatch received?

A. I should judge in the neighborhood of two or three o'clock.

Q. Did General Brinton stay as long as he could in the round-house?

A. He stayed as long as he possibly could stay—as long as it was possible to stay. I think it was ten minutes of eight o'clock when the order was given for the troops to fall in for the purpose of leaving. At that time the roof of the round-house was on fire, and the building was full of smoke, and the only part that was not on fire was the office building of the upholstery shop, through which we went out. The piles of lumber in the direction of the Union depot—I don't know whether east or north from that—were all afire. Shortly before leaving, I went to the upholstery shops, and could see nothing but a mass of flames to the Union depot.

Q. Were any guards thrown out to guard the approaches to the round-house during the night?

A. Yes; as far as it was prudent or possible to throw them.

Q. Were any attacks made on the guards during the night by the mob?

A. There was no attack. It was a desultory kind of firing during the entire night from every direction. Men would conceal themselves behind piles of lumber, and in the windows of the houses, and behind chimneys, on roofs. The firing came from every direction.

Q. At what distance were guards placed from the round-house?

A. It was probably as far as from here to Eighth street—probably two hundred yards.

Q. Did they remain out all night that distance?

A. Yes.

Q. Were any of them wounded there?

A. No; it was on the track side, towards the Union depot. The building was not defensible at all from that side.

Q. From the side towards the depot no attack was made?

A. No.

Q. How far were the guards out on the side towards Philadelphia?

A. There were no guards there. A part of the Sixth division was supposed to be in the Twenty-eighth street round-house.

Q. You had no guards on the street leading to Penn street?

A. There was no occasion for them. Everything was in perfect view, as far as that was concerned, from the building itself.

Q. State in what kind of order the troops marched out?

A. The order was perfect.

Q. Was there any firing along the route?

A. There was considerable firing along the route.

Q. Were you present when General Brinton met Major Buffington at the arsenal?

A. I was present when he met a person, supposed to be the person commanding the arsenal.

Q. Where was he?

A. It was at his house inside the arsenal grounds.

Q. How far from the house?

A. Right on the steps—right on the porch.

Q. What took place between them?

A. Well, General Brinton introduced himself, and told him who he was, and requested substantially—that was he requested permission to bring the men inside, and, if possible, to get ammunition and provisions for them, or if not, to allow them to remain there until he could communicate with General Latta, and get some orders. Buffington immediately ordered him to leave the place as rapidly as possible, and leave no men inside. He did that in an abrupt manner, as much as to say, if you don't go out, I will throw you out.

Q. Had you been directed to Major Buffington's house by anybody?

A. My impression is that Captain Murphy took us there. It may have been that some person just at the door, or the sentry at the gate, may have said so.

Q. You accompanied General Brinton to the house?

A. Yes.

Q. Did you meet him before calling at the door or ringing the bell?

A. We met him right at the porch. I think there was a lady standing there, and the question was asked if Major Buffington was in, and at that moment he came out. I know that nobody went for him.

Q. You turned then and——

A. Went to the gate as rapidly as possible.

Q. Did Major Buffington come up to the gate before you left?

A. No.

Q. Did you see anything more of him?

A. I didn't. He turned on his heel and went into the house.

Q. Did you see anything of Lieutenant Lyon?

A. I don't know the lieutenant at all. I will state this much, I think there was some one in citizen's clothing, when the wounded were brought to the gate, who said allow them to come in, and I suppose from what I heard afterwards that it may have been Lieutenant Lyon.

Q. Describe the appearance of the man you met at the house, supposed to be Major Buffington?

A. I cannot do that.

By Senator Yutzy:

Q. Was he in uniform?

A. No; in citizen's clothes. I don't know that I would know him if I saw him. It was all in a moment, and the excitement, as a matter of course, was great, and I paid no particular attention to the man's appearance.

Q. Do you remember whether he wore a mustache or not?

A. I think he had hair on his face; but whether a mustache or not I won't be certain. I think he had hair on his face.

Q. Some gentleman was there?

A. There was somebody who said he was Major Buffington.

Q. There was some person who permitted you to bring the wounded inside?

A. Yes; that was afterwards. After we were ordered out.

Q. State whether you were present when Colonel Norris overtook General Brinton?

A. I was.

Q. What orders did he give, if any?

A. None; he gave no orders.

Q. Did you hear anything or all of what took place between them?

A. I did. I heard the entire conversation.

Q. Do you know whether General Brinton received any orders after leaving the round-house or not during that day?

A. Not until late in the afternoon.

Q. What were they, and who communicated them?

A. Those orders came out by the hand of Major Baugh, who reported to General Brinton at Claremont, and was immediately sent back by orders from General Latta—I think it was him—but they were received late that afternoon, directing the general to bring the entire division to Altoona by rail.

Q. That was a written order?

A. Yes.

Q. Did a man by the name of Colonel Smith reach you during the day, Sunday?

A. Norman Smith?

Q. Yes.

A. He reached us on Sunday. I saw him—the first time I saw him to know him—he may have reached us an hour or so before—it was after the division had encamped on the hills overlooking Claremont. He was there, and stayed for some hours.

Q. Do you know what his mission was?

A. I don't know that it had anything to do with any military matters, and I think he said he had an appointment with somebody to go across the country. I didn't ask him who.

Q. Do you know whether General Brinton telegraphed to Colonel Scott of the Pennsylvania Railroad?

A. He sent a number of dispatches to Colonel Scott during the time we were out, in relation to various matters, for the purpose of urging the necessity of endeavoring to procure us ammunition, and provision, and blankets, and clothing, &c. And I know he also sent a note. I am under the impression it was in response to an inquiry as to the condition of the men, and he stated that, if he was allowed his own way, he could open the entire road from Philadelphia to Pittsburgh with the First division.

Q. When did he send that dispatch?

A. While we were at Blairsville Intersection.

Q. Do you know on what day?

A. I cannot state the day. We got there, I think, on the afternoon of the 23d, and it may have been the following morning. It was just in response to an inquiry as to the morale of the division.

By Mr. Means:

Q. Was there one or more sentinels at the gate when you reached the arsenal?

A. There was but one. There may have been one or two in the box; but one was patrolling the beat.

Q. Didn't the sergeant there point out to you and General Brinton the gate to Major Buffington's quarters?

A. No. There may have been somebody who pointed out the house, but nobody went for him.

Q. No one went on with you to the house?

A. No. He may have pointed it out to General Brinton, in response to a question. I don't recollect that he did or didn't.

Q. Did the major come out of the house there, and stand on the steps?

A. He came out of the house—out of the entry way—on to the steps.

By Senator Yutzy:

Q. Did Major Buffington give any reason for refusing admission into the arsenal grounds?

A. I don't think he said anything, except that there was a large amount of property there, or something.

Q. Did he say it would be endangered by bringing on a conflict with the mob?

A. I think not. I have no recollection of it.

By Mr. Means:

Q. Did he tell General Brinton there was no small ammunition there?

A. I have no recollection of his saying anything of the kind. He may have told him that he could not get any; but I have no recollection of his saying there was none.

By Senator Yutzy:

Q. How were your troops supplied with ammunition? Did you have sufficient?

A. No; not at that time. The next morning—Monday morning or afternoon—the ordinance return showed that the Third regiment had about three rounds to a man, and the First regiment, I think, an average of ten.

By Mr. Lindsey:

Q. How many did you have on Saturday afternoon when you went out to Twenty-eighth street?

A. We were supposed to have twenty rounds to a man. Ten were issued at Harrisburg, and ten at Pittsburgh.

Q. State whether General Brinton received orders from General Latta to go to Torrens station; and, if so, when he received them?

A. He received orders from General Latta to go to Torrens station on the night of the 3d of July.

Q. What kind of an order was it?

A. A written order, and sent, as I was afterwards informed, by the hands of Captain Aull, and delivered by him to Colonel Guthrie, and by Colonel Guthrie to the general, at the reception of the Duquesne club, the night before we left Pittsburgh.

Q. When was the order dated.

A. On the morning we left the round-house. It was a very congratulatory order, directing him to go to the stock-yards, and entrench himself there, and congratulating him on the movement of the morning, and stating he was glad to hear he was safe.

Q. What per centage of the men of the First division were soldiers of the late war? Do you know?

A. No; that is pretty hard matter to tell.

Q. From your acquaintance with them could you form an estimate?

A. I should judge probably fifty per cent. of them—taking the strength of the division right straight through—probably more than that.

By Senator Yutzy:

Q. You stated you heard no command given to the troops to fire.

A. No.

Q. Didn't you consider the men justifiable in firing?

A. Yes; I consider it would not have been half a minute before the command would have been given. It would have been necessary.

Q. Was there a consultation among the officers as to the position you should take after the firing took place?

A. The only consultation was between—or a conversation—it was hardly in the nature of a consultation—was between General Brinton and General Pearson. General Pearson sent to know of General Brinton—stating he had heard the firing—whether there were any killed or wounded, and requested him, if he desired to communicate, to send a staff officer. General Brinton sent me, and I immediately returned and reported that General Pearson desired to see him and went back with him.

Q. Where did you find General Pearson?

A. In the second story of the outer office.

Q. Mr. Pitcairn's?

A. I don't know. He was in the telegraph room. There was no consultation about it. It was an absolute order from General Pearson to move the troops in there.

E. DeC. Loud, sworn:

By Mr. Lindsey:

Q. Please state your residence?

A. No. 3741 Spruce street.

Q. State whether you are a member of the National Guard now?

A. Yes.

Q. And you were in July last?

A. Yes.

Q. What was your rank?

A. Brigadier General, commanding the Second brigade.

Q. You accompanied General Brinton to Pittsburgh?

A. Yes.

Q. State whether you went out with his command to Twenty-eighth street?

A. I did not.

Q. On Saturday?

A. I did not. When we started from Pittsburgh, or rather from Union depot, a portion of my command was then ordered to guard the passenger trains that were going to be run out, and when we got about the center—from the western half to the center of the round-house—I was ordered to take that position, and to keep the tracks clear, and see that nobody came into my line excepting those that had authority—to keep out all citizens—that the trains were ready to be run, and that I should keep things clear, in that shape, until they could open the road at Twenty-eighth street. I held that position until the firing began at Twenty-eighth street; but, I think, perhaps a little before that I sent an aid to General Brinton and asked him, if possible, to return to me the troops that had been detached, as the ground I had to cover was too large to be covered by the troops I had. He sent them back. Shortly after

that, I saw the firing at Twenty-eighth street. It was about a square and a half, and I could see the firing. I had stationed a line across east to keep the crowd back from that side, and when the rioters broke around from the rear of the First brigade, and came back, I ordered the line doubled, and turned the crowd through the yard out on to Liberty street, instead of letting them come on the tracks. So far, as I saw, the trains were all ready, with nobody interfering with them, and if they had had men to run them—engineers and firemen—I think they could have run those trains out after Twenty-eighth street was cleared.

Q. Were the engines fired up?

A. I think so.

Q. Were there engineers with them?

A. There seemed to be men about the engines that seemed to have authority. They seemed to be train hands—engineers.

Q. And brakemen?

A. They seemed to be. The most trouble I had was with young men that claimed to be clerks in the railroad office, who broke through the lines. While I was there, two or three passenger trains were run in from the west, coming in off the Pan Handle and Fort Wayne road, going east. They were some little while getting along; but they went on east. There was some trouble with the passengers on them, because they wanted to see what was going on. I held that position until some time after the firing at Twenty-eighth street, when I got orders from General Brinton, through Major Pettit, to move into the railroad shops connecting with the round-house. I knew the ground, as I had been there several times before, and I supposed we were going through this yard out to Liberty street, and going back to Pittsburgh; but when I got inside, General Brinton ordered me to take possession of the shops there on the left or on the west, and put one regiment in there and some other troops in the office, and put a guard over the gate. There was a double wagon gate there. I had no time to detail a regular guard, so I instructed Captain Ryan, of the Fencibles, to take charge of the gate. In the

meantime, Breck's Battery came in, and the First brigade went into the round-house and took possession of that. In about ten minutes, a train was going to run back on the Allegheny Valley road, which runs besides this railroad office or repair shop. When the cars came back—it was some local train—they were just filled with rioters, who were brought back right into Pittsburgh, and they were yelling and hooting and hallooing, and then this crowd gathered around the gate. We had no orders to fire on them at all, and we paid no attention to what was said by the mob. Along about dark, I was talking to General Brinton, when a man pushed himself in, and we ordered him out, and eventually pushed him out. Then a row began, and a couple of pistol shots were fired, and two men were shot, and Captain Ryan came to me and said that my men cannot stand this to be fired at, and without returning the fire. I told him I could not give an order to fire; but that I would ask General Brinton; but he said he could not give an order, that he was under the orders of General Pearson, and that we must first ask General Pearson if we couldn't open fire on the rioters. We run the Gatling guns, in the meantime, so as to command the gate. General Pearson said no, you must not fire a shot, and of course, when he said no, we had nothing else to do. He left about nine o'clock, and when he left General Brinton gave orders if anybody came near the gate to order them away, and if they didn't go, to fire on them. We remained there until they began to run the cars down on us. At first we supposed they ran the cars down to shoot this field-piece off—we supposed that was their idea—but we soon found it was on fire. The general then ordered me to take a detail of men up into the third story of this office, which had windows facing east, and we went up there, and put guards in the second and third stories, and in that way covered the field-piece. We stayed around there until daylight. During the night I think I saw pretty near every dispatch that General Brinton got, and I don't think I was away from him ten minutes at any one time during the night. I saw every dispatch, and was cognizant of their contents. I passed the scout in and out through my lines—this man that carried the dispatches to General Latta—and I know the instructions from General Latta were to hold the position as long as we could, and I know of the dispatch to move east out Penn avenue. When the eastern buildings had got afire, they came and told me that it was

necessary to vacate, that the fire had got so hot that they couldn't stand it, and when the First regiment formed, we could hardly see the lines for the smoke and cinders. There had been some cars filled with corn whiskey that had run down and got afire. We got the fire out; but they had blocked the gate so that we couldn't get the field-pieces out. The general then instructed me to have the brass guns spiked, to have them dismounted, and to destroy the powder. The powder was taken into the round-house and soaked in water, so that it couldn't be used, and the ammunition was thrown away, and the pieces were spiked. The Gatlings being much lighter, we found an entrance on the west of this repair-shop, and we moved the Gatlings through the repair-shop out to Twenty-sixth street. When we marched out I was at the head of my brigade. We must have got a half a mile or so, and there was some firing into the lines, and one or two men were wounded. I then went back, and you couldn't see any great number of rioters anywheres near us. I suppose within one or two Philadelphia blocks you could not see anybody; but you could see the crowd back that far. Every now and then there would be a shot coming from a doorway or a window as we passed along the street. Nobody would fire directly at us from a window as we passed along—either from the corners of the streets or the windows; but the firing was all after we passed, after we got by half a block or a block—then they would let into us. About this time a street car was coming up the street, and I don't know why, but I was looking at it, wondering whether it was going to try to get through the lines, when the first thing I heard was two rifle shots from the car, and two men of the Sixth regiment fell dead, one on top of the other. The shots were fired by two men apparently lying on their stomachs—lying on the cushions, and firing out the windows.

Q. Did the street car stop after they fired?

A. That I cannot say. I recollect, at that time, that the Gatling gun was opened, and I ordered my men to separate, so that they could fire into it, and they did fire. Just before that the driver of the street car had uncoupled the horses, and left the car standing. I have heard since that those two men were killed; but, of course, I cannot testify to that.

Q. Those two men in the car?

A. Yes; along about that time this man they called the bad angel—he would fire and then run into a house, and run back through the yard, and come out again and fire. He would fire coolly. I saw him twice drop on his knee and fire, just the same as if he were firing at a target. I heard Captain Ryan hallooing "shoot that man," and they fired at him, but, as he was firing out of door-ways or from behind trees, it was almost impossible to hit him. We were moving all the time. I cannot say positively whether Lieutenant Ash was shot previously to that time or not, but I recollect seeing him stagger. I suppose I noticed it more particularly because he was a personal friend of mine. I saw him stagger and fall into the gutter on the north side of the street, and throw up his hand and say, you are not going to leave me, and I ran back with three or four men, and carried him ahead apiece, until some men of the regiment ran their pieces under him, and brought him on, and he was carried on the limber of the Gatling up to the arsenal. By that time I concluded my brigade had enough of that, and I sent word to General Brinton, asking him if I could not change places with the First brigade, and he sent word back, yes, and I changed places at the turn of the street. The reason why I asked to be relieved was, that every man in the brigade had been on duty all night—every man. We had the lumber-yard to cover, and the railroad offices, and the repair shop, and the men had been up all night. I took the right of the line then, and I don't think that there was a shot fired after we changed position in the line.

Q. Where was Lieutenant Ash wounded?

A. In the leg. He bled very freely. I didn't suppose that he was mortally wounded, and I think if there had been anybody there to take care of him, he might have got through.

Q. He was left at the arsenal?

A. Yes; that is about the story, until we got to Sharpsburg. We had nothing to eat all the way along. When we got to Sharpsburg, along about ten and a half o'clock, Major Wilson then, Colonel Wilson now, went into a store and

bought a couple of boxes of crackers. I recollect it, because he gave one to my brigade, and one to the First brigade. That was all we got until about twelve o'clock.

Q. While you were down at the round-house, guarding the trains that were to move out, was there any attack made upon your line by the rioters?

A. No.

Q. Was there any firing by your men?

A. No; there is not a shot fired—they were rather troublesome. There was a considerable crowd there, but Captain Ryan kept them back. I might say that my orders were to keep all citizens off. I met a gentleman coming through, and told him to get out, and had some considerable difficulty. He said he was the sheriff of Allegheny county. That was away back at Twenty-sixth street. He was all alone—no posse with him or anything.

By Mr. Means:

Q. You say no posse was with him?

A. No; and he didn't seem to want a posse.

By Mr. Lindsey:

Q. That was after the firing at Twenty-eighth street?

A. I think it was right after the firing.

Q. The sheriff was going towards the depot then?

A. Yes; and making pretty good time.

Q. State whether there was any insubordination on the part of the troops during the night in the round-house?

A. I heard that some of the troops were dissatisfied—that they wanted something to eat, and didn't think they were treated right, and all that. I didn't see anything of it, and I was among them all night long.

Q. Was there any refusal to obey orders?

A. No; no man refused. There was, perhaps, a little hesitation when I asked some men to do a little piece of business, but they went and did it.

Q. What was that?

A. I wanted some car wheels put across the track. It was a rather open space, and they didn't seem to like it much, but they went and did it.

Q. Have you anything else to say?

A. I might say that I saw the scout going out all night long, carrying messages back and forward.

By Senator Yutzy:

Q. Did you consider the firing by the troops justifiable?

A. I can only say that if I had had command I would have fired sooner than they did.

Q. You would have given the order?

A. Yes; I gave the order to fire going out Pennsylvania avenue. I always considered when attacked you have the right to return the fire.

Q. You have had some experience in the army?

A. Some little.

Q. How much?

A. Four years.

Q. And you think that most any troops would have fired under such circumstances without orders?

A. I have my own opinion, and I think if I had been in the lines, I would have fired.

Q. If struck with a brick, you would have fired?

A. I think so. I will say simply this: I think if the troops had been sent to Pittsburgh three days sooner, it would have been a great deal better. They had been playing with the Pittsburgh troops before we got there.

Q. Did you see Colonel Norris when he joined General Brinton's command?

A. I did.

Q. Did Colonel Norris give General Brinton any orders?

A. No.

Q. Did you hear the conversation between them?

A. I did.

Q. If he had communicated any orders to General Brinton, you would have heard them?

A. I certainly should. I might say that I was standing with General Brinton, when Colonel Norris drove up. He jumped out of the carriage, and he seemed very glad, indeed, to see General Brinton and all hands, and we went over and sat along side of the road, and I heard all the conversation. I would have been very apt, if any orders had been given, to pay some attention, because I was anxious about the situation myself, and particularly as I was personally acquainted with Colonel Norris.

Q. You are certain he gave no orders to go to any point from where he was then?

A. Not that I know of; and I think if such orders were given, I would have heard them.

Q. Were you present during the entire conversation?

A. Yes.

Q. All the time?

A. I think so.

Q. Do you know of any orders having been received by General Brinton from any one or by the hands of any one to make any movement in any direction?

A. Yes; we had one about going out of Pittsburgh, to go east.

Q. After you left the round-house?

A. No; I saw the orders that night. I heard or read all the orders that came. The orders were, as I understood, to take a train down at the work-house, and join the command at Blairsville Intersection. I know we got an order after we were in the round-house, or rather an instruction that Colonel Lyle—we supposed that colonel, and the detachment under Colonel Rodgers, were with Colonel Guthrie, and would join us about daybreak.

Q. Did General Brinton receive any orders to move his command to Torrens station?

A. Not that I am aware of.

Q. Or to join Colonel Guthrie?

A. Not that I am aware of.

By Senator Yutzy:

Q. The brass guns at the round-house—whose command did they belong to?

A. To General Pearson's.

Q. Couldn't you have saved those guns, and taken them with you?

A. If we had any way of getting them out, and if we had horses to haul them.

Q. It was not possible to take them out where they were, and take them along by hand?

A. It might have been done, but under the circumstances, no. If there had not been any firing there, we might have cleared the track, and got the gate open.

Q. Couldn't you have taken those guns out of the same gate you took the Gatling guns out?

A. No; it would have taken a long while, because the shop was full of timber and all kinds of material, which would have had to be cleared out of the way, and it is not much of a joke to run a twelve pounder by hand. We might have taken a crowd and have dragged them a short distance, but not a long distance. It was as much as the men could do to drag the Gatlings.

Q. No horses were provided for those guns?

A. Not that I saw.

Q. Did Captain Breck have charge of those pieces?

A. Yes.

Q. Did he turn them over to General Brinton?

A. Of course, he was under General Brinton's command.

Q. Do you know whether Captain Breck's command retired to the round-house with your command?

A. I don't know, but I suppose they did. I cannot say positively.

Q. Did many of your men—the rank and file—have experience in the army as soldiers?

A. Yes.

Q. About what proportion of them?

A. I suppose thirty-three per cent. of them, anyhow. I should judge so.

Q. What character of men were the balance of the troops composed of generally?

A. I would just as lief depend on them, I think, as regular soldiers.

Q. You would depend on them just as soon?

A. Or a little sooner, I think.

Q. In what business were those men before they went out with you, as a general thing?

A. Most of them were mechanics.

Q. And some clerks?

A. Some.

Q. Professional men?

A. Very few.

Q. Men accustomed to manual labor?

A. Yes; and accustomed to three square meals a day, too.

Q. Could you expect men, taken from their homes as those men were, to be as efficient, so far as endurance is concerned, as men accustomed not only to military discipline, but to service in the field?

A. Why certainly not. If you have ever been in the service, you know how long it takes to break men in, before you get them into shape.

Louis D. Baugh, *sworn*:

By Mr. Lindsey:

Q. Where do you reside?

A. In Philadelphia, No. 2009 Chestnut street.

Q. State what your rank was in the National Guard in July last?

A. I was commissary of the First division, with the rank of major. I was then and am yet.

Q. Did you accompany the troops under General Brinton to Pittsburgh?

A. I did. I went with the first detachment.

Q. Were you at Twenty-eighth street during the firing?

A. No.

Q. What was your particular duty?

A. It is the duty of the commissary to feed the men—to supply them with rations.

Q. Where were you during Saturday?

A. When the column was ready to move to Twenty-eighth street, General Brinton ordered me to remain to procure subsistence for the men.

Q. When did you re-join the command?

A. On Sunday afternoon, about three o'clock.

Q. At what point?

A. At the work-house.

Q. Of Allegheny?

A. Yes.

Q. Did you have any orders for General Brinton?

A. I had none, sir.

Q. Did you have any conversation about orders with him?

A. Yes.

Q. What did he say?

A. The moment I arrived, he asked me for orders, once or twice, and I told him I had no orders, or had received none, and he sent me back for orders.

Q. To whom?

A. General Latta.

Q. Did you go back?

A. Yes.

Q. Where did you find General Latta?

A. At the Monongahela house.

Q. What orders did you get?

A. Do you want the order?

Q. Yes.

A. I took him the following order:

"Major General R. M. Brinton, commanding First division National Guard of Pennsylvania, bivouacked near Claremont station, West Pennsylvania division, Pennsylvania railroad:

"You will move your command by rail to Altoona, where the rest of your division now is, and there remain for further orders. I leave, via Erie, for Harrisburg to-night. Will be at Erie to-morrow night, on the rail Tuesday, and Harrisburg Wednesday. Have ordered Mr. Creighton, superintendent of the West Pennsylvania division to furnish transportation. Make requisition for more ammunition on Harrisburg by telegraph, and communicate further as to transportation with Mr. Gardner.

"JAMES W. LATTA, Adjutant General."

Q. What time did you take that to General Brinton and deliver it to him?

A. The written order?

Q. Yes?

A. I read that order to another officer, who reached him early in the morning, one or two o'clock. I reached him about eight o'clock.

Q. What morning?

A. Monday.

Q. With that order?

A. Yes.

Q. And delivered it to him?

A. Yes; I handed him the written order. When the order was given to me, I asked for it in writing. There were two of us together, and I gave the other staff officer the contents of the order, and told him if he reached him first to give it to him.

Q. Who was that staff officer?

A. Major Lazarus.

Q. Where did you find him on Monday morning?

A. On the railroad.

Q. Where?

A. I don't know the place, but I guess it is a little off Claremont.

Q. A major of whose staff was Major Lazarus?

A. General Brinton's. He was in the room when I got this order. I read it to him, and, as the mob was very great, I said if you reach him first, give him this order, and if I reach him first, I will carry it with me.

E. DeC. Loud re-called:

By Senator Yutzy:

Q. On your retirement from the round-house, did you cover the retreat a part of the way?

A. I had the left of the line as long as there was any firing going on.

Q. Did you, on your march, see any policemen on the street?

A. I did.

Q. Tell us what you saw them do?

A. I saw, I suppose, at least fifteen or twenty-five of them standing on a kind of low porch that looked to me something like a station-house, or as if it might be, as we went out, and they seemed to make no effort to keep the peace whatever. They were standing there, and after we passed, I heard the crack of a pistol. I cannot say positively that they fired it; but they certainly made no effort whatever to preserve the peace there. They were in full uniform, too.

Q. Did the sound seem to come from that direction?

A. Yes; right behind me. At that time I was on the right flank.

Q. How far were you from the police when you heard the shot fired?

A. Half a block I suppose—perhaps not that far. They were standing on a porch elevated, perhaps, two or three feet.

Q. You judge from the sound that the shot came from the police?

A. If it didn't come from them, it came from very near them.

Q. Did you see any arms in their hands?

A. No.

Q. Did you see any pistols in their hands?

A. No; I was in the street and they were just the width of the pavement from me.

Q. Is that the only place where you saw police?

A. That is the only place where I saw police.

Q. And you say that they made no effort to arrest any of the parties following you?

A. Not that I saw, and I would have been very apt to see it. I think there were enough of them there to have stopped it.

Q. Did you hear them make any remarks as you passed?

A. No; but they didn't seem to be very particularly pleased over the troops being there.

Q. But they said nothing?

A. No; but I could judge from the expression of their faces that their remarks were not at all complimentary. That was the inference I drew.

By Mr. Means:

Q. Did you have any communication with the citizens of Pittsburgh—did you go out into the crowd among the rioters at any time?

A. No.

By Senator Yutzy:

Q. Do you know of any citizens' committee that waited on General Brinton or that waited on your command to have a conversation in relation to this riot?

A. No; I heard that a committee came out to see General Brinton while we were at the hospital, when we got back a second time, and I understood that they just came out to pay their compliments to him.

Q. It was after you got back to Pittsburgh?

A. Yes; the first time nobody came near us—not a soul. In Sharpsburg some men came out, and said they were very sorry that so many were killed, and they seemed to be very kind.

Q. Is there anything you know that you have not yet testified to of interest to us or that might be important in the making up of a full history of this affair?

A. No; I don't know of anything more that I can say about the matter. I only had my own brigade to look after, and I can only tell what happened there. I can only say this, that I was very much surprised when we were put into the round-house and those shops.

Q. Surprised at your being stopped in the round-house?

A. Yes; a question has been asked that perhaps I can throw some light on. It was about what kind of a cap or head-covering General Pearson had on. He had a blue blouse on with a fatigue cap.

By Senator Reyburn:

Q. Did he have soldier straps on?

A. I think so, but cannot say positively—I know he had.

By Senator Yutzy:

Q. Did he have a sword or belt?

A. I didn't see any.

By Senator Reyburn:

Q. Did he have a white vest on?

A. I cannot say that.

Q. Could you have seen a white vest if he had had one on?

A. If he had turned right around to me I could have seen it. We all had white vests on, as we didn't have time to get anything else. He might have had no vest at all on. It was hot weather, and it was dark.

Q. How close were you to him?

A. About as near may be as to this gentleman here, [indicating a party in the room sitting near by.]

Q. Almost touching him?

A. I could have touched him if I had wanted to. He walked out with me to the wash-stand, I recollect. I don't know what he had on when he went out. All of his staff with him had fatigue suits on.

Louis D. Baugh re-called:

By Mr. Means:

Q. Were you dressed in uniform when you went to Pittsburgh?

A. Yes.

Q. Did you wear that uniform all the time?

A. No; I took it off, by orders of my superior officer.

Q. Did you mingle with the crowd after you dressed yourself in citizen's clothing?

A. Yes. I attempted to get to the round-house to General Brinton, and I started up from Union Depot hotel.

Q. Did you have any conversation with citizens of Pittsburgh, or with the rioters or the strikers?

A. I had no conversation with them, because I kept myself very quiet, listening to what they said.

Q. What did they say?

A. They wanted every damned Philadelphia soldier to go home in a box. That they would tear them to pieces. Then I went on apiece. I didn't want to get into that crowd.

Q. Who were they?

A. People of Pittsburgh.

By Mr. Lindsey:

Q. What people?

A. Part of the crowd along the street.

Q. In the vicinity where the riot was going on, or down in the city?

A. In the street running from Union depot to the round-house.

By Senator Reyburn:

Q. Parallel with the railroad?

A. Yes. I was trying to get to General Brinton, to make arrangements about feeding the soldiers. When I found what affection they had for us I would move on again. They wanted every damned one sent home in a box.

By Mr. Means:

Q. You looked upon that as the disposition manifested towards the Philadelphia soldiers?

A. Yes; indeed, it was—all Saturday night and Sunday morning when I left town.

Q. Did they go for you once in the depot?

A. In the West Pennsylvania depot they did, or I thought they did, and I got out. I knew what they were from the night previous.

Q. For your own safety, you thought it better to get away?

A. Yes.

George Francis Leland, *sworn with the uplifted hand*:

By Mr. Lindsey:

Q. Where do you reside?

A. 1622 Chestnut street.

Q. You were a member of the National Guard in July last?

A. I was adjutant of the Third regiment of infantry.

Q. Colonel Snowden's regiment?

A. Yes.

Q. Were you with him at Twenty-eighth street when the firing occurred?

A. I was. Just below Twenty-eighth street.

Q. Did you hear any orders given to fire?

A. I didn't. I heard Colonel Snowden distinctly say that no one was to fire until they received orders, and they received no orders from him to fire.

Q. Were you in the round-house during that night?

A. I was.

Q. State what the conduct of the troops was during the night, as to discipline?

A. It was very good, I think as far as I am a judge.

Q. Was there any insubordination?

A. No; none whatever.

Q. What was the condition of the round-house when you left in the morning?

A. It was on fire, I should judge from the amount of sparks and smoke and flame about us. Some of the troops attempted to put the flames out, but did not succeed.

Q. Was it safe to remain in the round-house any longer?

A. It was not.

Q. How did the troops march out—in good order?

A. In excellent order.

Q. Where were you in the line of march?

A. With the right of our detachment part of the time, and part of the time in the rear. We only had about forty-three men in our regiment.

Q. Was there any firing along the line in the street?

A. Yes.

Q. Where did it come from?

A. I should judge from citizens of Pittsburgh.

Q. Did you see any firing?

A. Yes.

Q. Did you see any person when they fired?

A. Yes; one or two I could pick out if I should see them again.

Q. What class of citizens were they?

A. The ordinary class of citizens—mechanics and workingmen; and I saw some policemen fire, too.

Q. Where were they?

A. At a station-house, evidently, from the number of men grouped around it.

Q. A police station-house?

A. Yes.

Q. How many of them?

A. Twenty-five or thirty of them.

Q. Did they fire as you passed them?

Q. They fired after we passed. I should judge the firing they did was intended for General Loud's command. They were in our rear.

Q. They fired on the rear of the line?

A. Yes.

Q. Did you see them when they fired?

A. Yes; I think I did. I looked back—I was attracted by the noise—and I turned my head, and I distinctly heard not only the noise, but saw the smoke and the raising of their arms among this crowd of men that I took to be policemen.

Q. Were they in uniform?

A. Yes; or in dark looking hats and blue sack-coats, I think. I am not familiar with the uniform of the police of that city.

Q. Did you see any pistols in their hands?

A. Yes; as I passed I saw one with a pistol by his side. One of them stood by the curbstone, as if he was reviewing us.

By Mr. Lindsey:

Q. Did they have their maces?

A. I think not, but I am not positive about that. I didn't notice any belts.

Q. Did you see a uniform on any one policeman—a full uniform?

A. I don't know what it is; but the uniform that most of them had on was the same uniform I noticed on the police officers after we returned to the city.

Q. When did you return to the city?

A. I think on the 28th of July.

Q. And the uniform was the same that you saw those men wearing?

A. Yes.

Q. Did you see any of the policemen on your return to the city, who were in that crowd?

A. I couldn't distinguish any of them. We were marching rather rapidly, and I was, in fact, too far off—probably fifty or one hundred feet. I couldn't recognize them again.

Q. How many shots were fired from that crowd?

A. I cannot tell that—quite a number, I should judge—half a dozen, or a dozen, or more.

Q. Did they wait until your men had passed, before they fired?

A. Yes.

Q. And they fired into your rear?

A. Yes.

Q. What effect did the firing have?

A. I cannot say that it had any. I know none were killed about there, or I don't think there were any. There may have been some wounded—scratches.

Q. Was the firing returned by your men?

A. No; it was not.

By Senator Reyburn:

Q. Did you see that man with the linen duster following the command, with a musket?

A. Yes.

Q. Did you see him shoot?

A. Yes; I remember that fellow distinctly. He followed us quite a distance. I remember another fellow particularly—a man with a crutch. As we went along he stood on the sidewalk, and I saw what I took to be a navy revolver in his hand as we passed, and after we passed he deliberately fired and run down a side street, and I could go right to the locality and pick that fellow out; I took a good look at him; I was on the right, near the gutter, and close to him as we passed him. They said afterwards that this fellow in the duster was the man that had been pegging away at us all night with a rifle that had a bullet that exploded when it struck. He kept it up all night while we were in the round-house. They said afterwards that he had lost a brother, and he wanted to be revenged. I am not positive, but I think he was killed—shot.

Q. Did you see any firing from houses?

A. Yes; from second-story windows.

Q. How long after you had left the round-house?

A. Some distance down—somewhere in the neighborhood of this police station. The firing I saw from the windows was on the left-hand side going up this street.

Q. Going eastward?

A. I don't know the location of Pittsburgh.

By Senator Yutzy:

Q. Towards the arsenal?

A. Yes; on the left hand side I noticed firing from the windows, and the police station was on the right hand.

By Senator Reyburn:

Q. You say this man was killed?

A. I heard he was.

Thompson Lennig, *sworn*:

By Mr. Lindsey:

Q. State your residence?

A. 1300 Walnut street.

Q. Were you with General Brinton at Pittsburgh, in July last?

A. I was in the division—yes.

Q. What was your rank?

A. I was a private at that time.

Q. In which regiment?

A. In the artillery corps, Washington Grays.

Q. State what your position was in the line in moving out Penn street in the morning?

A. I was helping to drag the first one of the Gatling guns.

Q. State whether there was any firing from houses or from persons along the street?

A. There was no firing, as far as I remember, until we had gone five or six squares, and I thought when there was no firing, that we were going to get out of the town without any trouble at all. It was not until shortly after we had passed the police station on our right, that the firing began. From that time there was firing until we reached the arsenal.

Q. There was not much until you reached the police station?

A. No. There was considerable firing, which might amount to skirmish firing in real service.

Q. Were there any policemen in the station when you passed?

A. Yes. I don't know how many. I saw eight or ten men turn up in line on the curb, and I think there may have been from ten to twenty-five scattered around. As I say, I saw eight or ten turn up in line on the curb as we passed.

Q. Was there any firing by the police or the troops as you passed?

A. That I don't know. I didn't say it; but I should like to say this: that there was firing, and as we passed by the station, I noticed one policeman particularly whose face was impressed upon me. And I saw him the following Sunday—the week following—the 29th of July, when I was wandering through the ruins, with a corporal of the Washington Grays. I saw this same man, and I accosted him and said, that I had seen him in front of the police station last Sunday, and he said he had been there. I then said that I heard it stated among our men that you fired upon us, and he said, I didn't fire, but others did, and he even went so far as to say that the lieutenant had ordered them to fire. Corporal Rider, who was with me at the time, heard the whole conversation, and can corroborate everything I have stated.

Q. What is his name?

A. Penn Rider, one of the assistant clerks in common pleas, No. 2.

Q. He stated that he had been ordered to fire?

A. He said that they were ordered by the lieutenant to fire. I saw this man's face.

Q. Just give the language of the policeman as near as you can?

A. I was walking over the ruins and I caught his face. It struck me again, and I said to myself, that is the man I saw last Sunday, and I accosted him, and said, "You were standing in front of the police station last Sunday." He said, "I was." I said, "I have heard from our men that you fired on us as we passed," and he said, "I didn't fire, but others did, and the lieutenant ordered us to do it." That was the whole conversation. I passed along, and didn't see anything more of him.

Q. Did you ask him who the lieutenant of the police was?

A. No.

Q. Have you ever found it out since?

A. I have made no inquiry. After I came back, I made affidavit to these facts, at the request of Colonel Pettit, and I thought it was no longer any matter of mine. It was in their hands.

Q. Did you see that policeman any time after that—have you seen him since?

A. No; I have not been in Pittsburgh since. I happened to be off duty at the time.

Q. Do you think you would recognize that policeman?

A. I should know him if I saw him five years hence.

Q. Was he in uniform when you met him or saw him?

A. Both times.

John W. Ryan, sworn:

By Mr. Lindsey:

Q. State your residence and what position you held in the National Guard in July last?

A. I live at No. 102 North Fortieth street, and had command of the independent company State Fencibles, attached to the Second brigade, First division.

Q. You accompanied General Brinton to Pittsburgh?

A. Yes.

Q. You were at Twenty-eighth street?

A. Yes.

Q. Where were you stationed after you went to Pittsburgh?

A. I was on the extreme left of the division, the portion of troops closest to Union depot. My company was formed—the major portion of it facing Union depot, with their backs towards Twenty-eighth street, and the smaller portion of it was on front, facing towards Penn street.

Q. What was your duty there?

A. To keep the people out.

Q. And guard the track?

A. To keep the people out, was the instruction I received.

Q. Well?

A. We did so.

Q. Did you have any trouble in doing that?

A. None special. After the firing began, some people came down the hill—came down, and once or twice my men were on the point of firing at them, because they would not go back; but I held the men in as long as possible. It

seemed to be more a want of understanding what we wanted them to do. After they found out what we wanted them to do, they did it.

Q. Was there any firing by your company?

A. We didn't fire a shot.

Q. How many men had you in your company?

A. I brought home seventy-four. I had about fifty at that time.

Q. Were you in the round-house during the night?

A. Once in a while I would go over there. My position was not directly in the round-house. I was in the paint shop, I think it is called, or the machine shop, or something of the kind.

Q. Adjoining the round-house?

A. Yes; and out in the board-yard. They sent us out there until we got ready to move out of the position.

Q. Was any attack made upon you in the shops during the night?

A. No; not directly.

Q. State what the discipline of the troops was—taking the whole command of General Brinton during the night?

A. There was no complaint—it was as good as might be expected.

Q. Was there any insubordination or refusal to obey orders that came under your observation?

A. Yes; some.

Q. Relate it?

A. When the companies of the Sixth regiment were formed into line, the company next to mine—I sent one of my sergeants to find out the matter, and he came back and told me that they proposed to lay down their arms

and go home, and I said I would like to see them try it, and I intend to shoot them if they attempt to do it.

Q. Did you see them afterwards or talk to them about it afterwards?

A. I intended to hunt the officers up; but while making up my mind to proceed in the matter, orders came to get ready to move, and that broke the little arrangement up.

Q. Did they move when the order came—did they obey the command?

A. Yes; so far as I could see, they did. They behaved as well as the rest did.

Q. They didn't throw down their arms?

A. No.

By Senator Yutzy:

Q. Did you say to them after you heard it, that you would shoot them?

A. I told them I wouldn't let them out. I told the commander that. My company was put on guard as soon as we got into that portion of the grounds.

By Mr. Lindsey:

Q. What attracted your attention was something unusual in that particular command?

A. Yes; they were forming, and I had not received any orders to do so, and was anxious to know what they were forming for.

Q. How many were reported as going to throw down their arms?

A. One company.

Q. How many men were in that company?

A. Probably thirty.

By Mr. Larrabee:

Q. What was the reason they gave for doing this, if they gave any?

A. They didn't seem to give any. It was sort of dissatisfaction.

By Mr. Lindsey:

Q. Did you see the officer of the company—the captain?

A. I saw an officer in front of them, and afterwards learned he was a lieutenant.

Q. You had no talk with him?

A. No.

Q. What was the conduct of the balance of the men in the division, so far as you could judge?

A. In the round-house?

Q. Yes.

A. First rate.

Q. It was that of soldiers?

A. Yes; and very patient ones, under the circumstances, I thought.

Q. Were you in the army during the late war?

A. Yes.

Q. How long were you out?

A. Over four years.

Q. What proportion of your company has seen service?

A. I don't know exactly now—we did represent one hundred and fifty-one years at one time in the company.

Q. Of actual service?

A. Yes; all the officers and non-commissioned officers, with one exception, were veterans.

Q. How many men were there in the company, when they represented one hundred and fifty-one years?

A. Sixty-seven men. Late on Saturday afternoon, I sent to the brigade commander, and asked permission to come and see him, and I waited, and asked if I could not have permission to drive the people away from the gate, that they were blackguarding us in the most scandalous manner.

By Senator Yutzy:

Q. What gate?

A. Leading out on the street. Men, women, and half-grown boys. It was the most outrageous language I ever heard in my life. When we would go up, and attempt to drive them away, they would just stand and spit at us, and call us all sorts of names. But my men stood it, and walked up and down, and paid no attention to them. But they finally got brandishing revolvers, and the excitement had become intense, when one of my corporals says to me: "I don't think we can stand it any longer, unless you give us permission to kill some of those people out there." and I said if I get permission, I will give it to you very quick. So I asked General Loud, if he would give permission, and he said: "I have no authority," and I asked if I might go and see General Brinton. I did so, and asked the question, and was told that permission could not be given. I said who was in command, and was told General Pearson. I said I know the gentleman, and will you give me permission to go and see him. I stated the position to him, and stated it was impossible to hold out any longer at the gate, and he said: "you must not agitate them. I don't want you to excite them poor people." They were too close to his heart. I turned away perfectly disgusted.

Q. You held the position you were commanded to hold?

A. Yes; after that General Loud thought it would be a little more secure to put some iron in front of the gate, which we did. I would have been glad to have given a little lead instead. They blackguarded us so that I was anxious to square matters with them.

Q. You could have cleared the tracks at that time?

A. Yes.

By Mr. Means:

Q. Did you hear any women using obscene language to the troops?

A. They were a little worse than the men. The language was terrible. One young fellow about twenty years of age climbed on to the stone post of the gate, and blackguarded us for the longest time. I have got a very large corporal, and he made a deliberate set at that man. The corporal said, can't I put him off, and I said, yes, he said he makes use of language more than I ever took of any one. I said knock him off, if he don't get off, or give him a jab with a bayonet; but he slipped off.

Q. What company of the Sixth regiment was it that wanted to lay down their arms?

A. I cannot say, but I can furnish the testimony of that fact from the members of my company, who reported the matter to me. I considered it of such little importance at the time that I really didn't pay much attention to it.

Q. They didn't lay down their arms, and obeyed orders afterwards?

A. No; they didn't lay down their arms, and I think that, notwithstanding their disposition to do an unmilitary act, if they had been called into line and directed to do their duty as soldiers at that time, they would have done so cheerfully.

Q. Did they remain with your command during the rest of your military movements?

A. Yes.

Q. And went to Scranton with you?

A. Yes.

Q. Did they observe their duty as soldiers after that?

A. As far as I saw, entirely so.

Q. You say you didn't ascertain their reasons for wanting to lay down their arms?

A. Not especially so. It was a sort of a growl they got into.

By Senator Reyburn:

Q. Were they not a little disgusted, like yourself?

A. I think they would have stood it a little better if they had had orders to defend themselves.

By Senator Yutzy:

Q. How many companies are there in this Sixth regiment?

A. I don't know, but I think they are eight—I don't know exactly.

Q. How many men about in the regiment?

A. I should judge they had about one hundred and fifty men.

Q. How many men in a company?

A. About thirty men—twenty-five or thirty.

Q. Was it a larger company than the rest of them?

A. I don't believe there were over twenty or twenty-five men that appeared in line when my attention was called to them. My company lay across the entrance of the paint-shop at this time, and this company was on the right. I said to one of the sergeants what is that company forming for, and he said I

don't know, and I said go and see, and he came back and said they proposed to quit, and lay down their arms and go home.

Q. You didn't hear them say it yourself?

A. No; I saw the company in line. I told the sergeant to see what they were in line for, and he came back and reported that they proposed to lay down their arms and go home. I said I would like to see them try it.

By Mr. Lindsey:

Q. What time in the night was that?

A. It was in the morning—sometime before we started away.

Q. After daylight?

A. Yes.

Q. As late as seven o'clock?

A. I cannot tell you that, because I don't remember the time we left the round-house. It was a short time before we left. I know that the orders we got to get ready to move broke the little arrangement up for them.

By Senator Yutzy:

Q. Did they lay down their arms any of them?

A. No; they had their arms in their hands. I didn't think it amounted to anything at all.

By Mr. Lindsey:

Q. What is the name of the sergeant that brought you the information?

A. George Simpson.

Q. Do you know where he is now?

A. I think I can find him in a short time. I think he is about the armory of the State Fencibles.

By Senator Yutzy:

Q. You were with the balance of the troops as they retired out Penn street?

A. Yes.

Q. Did you see any firing from citizens or policemen on your troops?

A. I saw some firing—considerable.

Q. By whom?

A. It was very hard to tell. I saw parties firing out of a street car. I saw a man fire the shot that I thought killed those two men in the Sixth regiment. It was about the time that the street car came along. I heard General Loud's testimony in reference to the car matter, and I thought at the time, and do yet, that he is mistaken about it. I think yet it was a single man that killed those two men and a single bullet.

Q. One shot?

A. Yes; I saw him raise the rifle.

Q. From the car window?

A. No; but behind a large iron pipe lying along the road where a stone wall runs along on the right hand side as we came down. I saw him raise the rifle, and saw his head down on the sight, and I saw the flash, and the bullet came along and cut some little limbs off a tree behind us. I could almost trace its flight until it struck these men, and the two of them fell almost at the same instant; and I thought before, and do yet, that that was the man who killed those two men.

Q. Was it near the car?

A. The car was down in the hollow, and this was when we were going up the hill, before we got to the arsenal. I called up two or three of my men and said, shoot that fellow, and we tried to, but we didn't succeed, and I am sorry we didn't. Just then things got mixed up a little, and we were ordered to the rear, and we stayed there as long as there was any firing going on, when they took us up and puts us on the right until we found a camping ground.

Q. Did you see any policemen on your march?

A. Yes; quite a squad in front of a fire engine house or a police station house. It had the appearance of either of those two places. They were strung along the curb-stone as we went along. Some of boys were hallooing "pass in review," "guide right," as soldiers will sometimes, even under the most trying circumstances. I noticed half a dozen or probably ten people there that I supposed to be policemen, with a good many citizens mixed in behind. It looked like a sort of rendezvous for the mob.

Q. Did the policemen make any remarks as you passed?

A. I didn't hear any. There was some firing out of the crowd after we got by a little piece. Some few shots were fired, and I told the boys to turn around and give it to them; but as we turned around, they went into the house.

Q. Could you tell who fired?

A. I could not tell. There were some citizens mixed up with them. I saw smoke, and knew the shots came from the crowd, but whether it was policemen or citizens I cannot say.

Q. How far away were you?

A. Sixty or seventy-five yards.

Q. Were any threats made by those policemen to arrest any of those citizens or the crowd who were following you?

A. No.

Q. Could they have prevented them from following you—the policemen that you saw?

A. If they had had the disposition.

Q. If they had made the effort?

A. Yes; the impression may have been a false one, but our impression was that they were about as bitter enemies as we had there.

By Mr. Means:

Q. You mean the policemen?

A. Yes.

By Senator Yutzy:

Q. How did you get that idea?

A. From the manner in which they acted. We regarded them as bad as anybody we had met there, and so far as my boys were concerned we had made up our minds to give it to them when we got a chance. We thought it was their duty to protect the peace, and not assist in breaking it up, and we preferred them to citizens. That is what I mean. We meant to give it to them, if we got a chance.

By Mr. Means:

Q. Did you have an opportunity to mingle in with the crowd?

A. Not a great many. I served with the Pittsburghers for three years, and I met a few of them out there.

Q. You knew some of the Pittsburghers?

A. Yes; I have served with them.

Q. In what regiment were you?

A. The Sixty-first Pennsylvania, commanded by Oliver H. Ripley, of Pittsburgh.

Q. You met some of them there while on this trip?

A. Yes.

Q. State whether you were led to believe that the people of Pittsburgh sympathized with the rioters?

A. There is no doubt about it.

Q. That they sympathized with the rioters?

A. Entirely so.

Q. And were hostile towards the Philadelphia soldiers?

A. It was very difficult to tell whether they despised the Pennsylvania Railroad Company or the Philadelphia troops most; but they certainly hated both of them. They were very angry at our coming out there.

By Senator Yutzy:

Q. You spoke of citizens of Pittsburgh. Was it not the crowd that surrounded you there, or in the mob that you heard these conversations that led you to think that the people were in sympathy with the rioters?

A. No. Not to that extent. Some of my old regiment, the Sixty-first Pennsylvania, came to see me the following Sunday, after we went back, and took occasion to say that it was a great mistake, that they were sorry to see me where I was, and that they didn't want to see any of the Sixty-first coming out there. And they were very bitter.

By Mr. Lindsey:

Q. Of what class of men were they—what positions did they hold in life?

A. They were working men, I should judge—men employed in the mills, probably, that work hard for a living, but yet, might be good citizens.

Q. You heard them talk so?

A. They said they were sorry to see me there.

By Senator Yutzy:

Q. Did you have charge of the prisoners captured at Johnstown?

A. General Brinton captured three men on the railroad track, and they were taken back, and I think, handed over to the charge of the Washington Grays.

Q. Did you take any of those prisoners to Pittsburgh, and hand them over to the civil authorities?

A. Yes. And we were most grossly insulted by a policeman in the station-house at the time. He was an officer.

Q. What was the nature of that insult?

A. He could have easily passed my company. We were in line, and he insisted on pushing me out of his road into the ranks. And I asked him if he couldn't go by without breaking the company up, and he turned around and made use of a very impertinent answer. He was a great big fellow.

Q. Did you learn his name?

A. No.

Q. Or rank?

A. He was an officer, I know. He broke the left of my company up. He was a man that weighed two hundred and sixty, and was six feet two or three inches high. He was a very fine large man, but a very great blackguard, none the less. There seemed to be some spite against the soldiers out there on the part of everybody.

Silas W. Pettit, sworn:

By Mr. Lindsey:

Q. State your rank in the militia, in July last?

A. I was judge advocate of the First division, with the rank of major, in July last, when the division went out, on General Brinton's staff.

Q. Go on and state the circumstances, omitting the details?

A. I was called out about eight or nine o'clock in the evening, and together with the other staff officers went around to notify the different commands, and about two and a half o'clock or two o'clock we left the Pennsylvania railroad depot, about six hundred strong, and got to Pittsburgh about two and a half o'clock on Saturday afternoon. When we got there, General Brinton reported to General Latta. We went upstairs into a room in the hotel. General Latta was there, and General Pearson, and Mr. Quay, and some others. We then marched out. In the meantime, the men were getting fed. We marched out toward Twenty-eighth street, along the track. They had horses for the Gatling guns, but no proper harness or arrangements for them, and the guns had to be hauled by hand. When we got near Twenty-eighth street, General Pearson ordered General Brinton to detach a part of his command to keep the track clear in the rear, and as a result of that, the Second brigade was left, General Pearson superintending that part of the command, to keep those tracks in the rear clear, and the rest of the command—the First brigade—consisting of the First regiment, and the Third regiment, and the Weccacoe Legion, and the Washington Grays, and battery went on towards Twenty-eighth street. When we got there, or close to it, the crowd was very thick on the track and on the hills, and in the empty and loaded cars on our left. The command was formed then into two ranks, the rear rank clearing one side and the front rank the other; but the crowd commenced to press in between the ranks, and the Weccacoe Legion and Washington Grays were thrown across the front. Then we attempted to push the crowd back, and just as we got to Twenty-eighth street the fuss commenced. The sheriff and a posse were in front of us, and they attempted to arrest somebody, as far as I could make out, and clear the tracks themselves, but they failed. The firing took place immediately upon the

order to charge bayonets, given to the Washington Grays and Weccacoe Legion. Some men were hurt with the bayonets.

By Senator Yutzy:

Q. Firing from the troops or the mob?

A. From the crowd. The firing from the troops immediately followed. The air seemed to be full of stones, and a great many pistol shots were fired from underneath the cars, and from over fences near the round-house. We got in on both sides of us—on both flanks and in front—then the troops fired. I may be mistaken, but I thought I heard an order when the firing took place.

By Mr. Lindsey:

Q. Whence did the order come?

A. I cannot tell that very well. I was between the two ranks—a few feet from the head of the column. It was a short column, not many men in it—not over two hundred and fifty all told, while the crowd must have been ten or fifteen thousand, and it looked pretty short in consequence. I heard the firing, and the men towards the fences and cars returned the fire, and it cleared them, and then they fired up the hill. The men facing the hill fired that way, and the men in front fired, and the crowd commenced to run. The order was given then to cease firing, and I endeavored to see it enforced, and to stop the firing as soon as the order was given. It was all over in a few moments.

Q. Who gave the order first to cease firing?

A. I heard General Brinton give that order when the crowd was running. Of course, it was my duty to see that it was done.

Q. When they commenced firing how far were you from General Brinton?

A. I cannot tell exactly. General Brinton had gone front. I thought he was with General Pearson, and I was standing where he left me. He didn't ask

me to follow him, and I stopped there. He went up towards the sheriff's posse. They were apparently in among the crowd right where that little watch-tower was or is.

By Senator Yutzy:

Q. You say you heard an order?

A. To cease firing. I thought I heard an order to fire before that.

Q. Before there was any firing by the troops?

A. I thought I heard an order to fire—commence firing.

By Mr. Lindsey:

Q. Did you see who it was that fired first?

A. It was over on the right of the First regiment—these two companies that were crossed from the front—it was right there it commenced. It could not have been delayed, however.

Q. You stood between the ranks?

A. The ranks were open, and all the officers were between them. The men had been faced outwards to drive the crowd away. It was the only formation that could have been made at the time.

Q. Were you in the round-house during the night?

A. After this firing the tracks were cleared, and the First brigade was turned across Twenty-eighth street. The crowd were all off the tracks, and nobody was allowed to cross them except those carrying dead and wounded. In one or two instances women came up or men who wanted to go up the hill to their residences; but the main tracks were as clear as Arch street is now. General Brinton reported the tracks were clear, and that he was ready to protect the trains; but we didn't get any, and we waited there for a considerable time. General Brinton went to the round-house with Colonel Wilson, and I remained out where I was, he not asking me to accompany

him, and after awhile we received an order to go into the round-house. We took in the command and the guns that were commanded by Captain Breck, and then brought in the Second brigade, which had been back there all this time, and the men were posted in the round-house and the machine-shop, or paint-shop, and lumber-yard. I accompanied General Brinton up stairs into the office, where General Pearson was. The crowd commenced to come around the buildings with jeers and whoops, and were firing shots. General Brinton desired permission to drive them away, which was refused. Shortly after that, two of our sentries were wounded. General Brinton reported that fact, and desired permission to protect himself and drive the mob away, which was again refused him. Several of General Pearson's staff, whose names I don't know, and several railroad men, and Mr. Pitcairn, I think, and Mr. Cassatt, and I think that Mr. Watt was there, but I am not certain about him. Before they left it was fully dark, somewhere between eight and ten o'clock. General Pearson left, and told General Brinton that he was going to the depot to report to General Latta, and get orders and get provisions for the command, and that he would be back.

Q. What orders did he give General Brinton about matters while he was absent?

Q. He told him, if necessary, that he must use his own discretion until his return, but gave him to understand that he would be back in some little time—a few hours. Then we stayed there during the night. There was a good deal of firing. It sounded like an extra Fourth of July. The men who were on duty as sentinels and guarding parts of the building were alert; and the rest of the men were resting themselves.

Q. Just state what the conduct of the troops was during the night?

A. They were in good condition—in good spirits, and subordinate—they were in first-rate condition, except that they were hungry. I didn't see this trouble with the Sixth regiment, although I heard of it. But the Sixth regiment marched out in as good shape as any other. They are a regiment scattered all over the city, pretty much. They have no regimental armory, and have labored under a great many difficulties, and have not got that

regimental organization and *esprit de corps* which they would have if they had proper facilities. They are poor men—workingmen, and scattered almost over the city, and it is a wonder to me that they ever kept together at all. When we were going to march out, it was necessary to clear that part of the street, and they cleared it. They opened fire out of some of the windows.

Q. Which regiment?

A. The left of the Sixth regiment. Captain Ryan's men were guarding at the board-yard.

Q. Was there any firing going out Penn street?

A. Yes; the command passed out—I don't know what direction it is—the west end of the machine shop in good order. I had cause to know that, because I went back while they were marching out, to see whether Captain Breck had spiked his guns. They were too heavy for us to take with us, and we had no ropes to haul them by. I saw the whole column. We were marching in column of fours. We had received orders during the night to go, and at the time we left the round-house was on fire, and it was a physical impossibility for men to stay there.

Q. Did you see any policemen at the station, as you passed out Penn street?

A. I saw a number of policemen at the place which I took to be a station-house. It may not have been. In talking about it afterwards, we always spoke of it as a station-house. As I remember, it had a lamp or bracket in front of it. It may have been an engine-house, or some sort of a public hall. A crowd was there of fifteen or twenty men, dressed in police uniform. Of course, I don't know that they were policemen. I did not see them fire.

Q. Whereabouts were you in the column?

A. I was at the rear part of the time—most of the time—but went forward to report to General Brinton what was the state of affairs there. Then I would come back and see what was going on along the column. The First regiment was front, and the Third regiment in the rear of them, and the battery, and

the Weccacoe Legion, and the Washington Grays, and I think Captain Ryan at that time was in the center, and then the Sixth regiment in the rear.

Q. Did you hear any firing from near the station-house as you passed?

A. It was pretty near all the time, and I didn't notice it specially. It was a subject of conversation afterward among ourselves, that that firing had taken place among the policemen.

Q. Were you present when General Brinton met Major Buffington at the arsenal?

A. I was at the rear at that time.

Q. And you didn't hear what took place?

A. I did not. I went to the arsenal—I went up to the front of the column, and was told that General Brinton was in the arsenal, and I jumped over the fence—I was refused admission at the gate—and I went in there, but I met a lot of wounded men and I told them where to go, and I thought, perhaps, I had better go back. So I went back to the rear.

Q. Where did you tell them to go?

A. I told them to go up towards the buildings, and get attended to. They allowed the wounded to go in. They took in Lieutenant Ash and all the wounded.

Q. Were you in the regular army during the late war?

A. I was in the Fifteenth Infantry.

Q. For how long?

A. I was in there about a year. I was only a boy, and my health gave out.

Q. What is your profession now?

A. I am an attorney-at-law.

By Senator Yutzy:

Q. Was Captain Breck in the round-house during the night you were there?

A. Yes.

Q. Did he remain there until you left?

A. Yes; he remained there, and seemed to desire to do his duty, as did his command. He only had a squad, however.

Q. Where did he go with his command after you left the round-house?

A. Nowhere; his men scattered in the city. We could not take his guns, and I suppose he didn't think he was obliged to go with us.

Q. Do you know how many men he had?

A. About a dozen or fifteen at the outside. Then there was a Captain Murphy who offered to show us the way to the arsenal. I only saw one man with him in uniform. He did his duty as well as he could, and piloted us out there. We were strangers in the city, and didn't know where to go, except that we had orders to go out Penn avenue, and did not know where it was. At Sharpsburg we met Major Norris, and went on towards the poor-house.

By Mr. Lindsey:

Q. Were you present when Major Norris met General Brinton?

A. I was present when he got out of his carriage.

Q. Did you hear him give any orders?

A. No; I was with the guns we were pulling up. He spoke to me, and then went towards General Brinton, and I didn't see him afterwards. He didn't tell me anything particular, and I never heard of any orders given by him, until about three weeks afterwards.

Walter G. Wilson, re-called:

By the witness: I simply want to make a little correction in my testimony, in regard to the arsenal. I stated I was not aware of any sentinel or sergeant accompanying us. My impression was it was Captain Murphy, of the Jefferson Cavalry, but I have since been informed it was a sergeant of the guard. I simply want to have that matter corrected.

E. DeC. Loud, re-called:

By the witness: A statement has been made here, in regard to the Sixth regiment, which I wish to correct. It was one of my brigade. They had about one hundred and ninety to two hundred men that night. That company that Captain Ryan testified in regard to had somewhere in the neighborhood of twenty men.

By Mr. Lindsey:

Q. The company that wanted to lay down their arms?

A. Yes; I went in to see about the matter, and I could find nothing of it. The thing had been all quieted over, and when the troops were ordered out, they obeyed as promptly as any other troops.

Q. Who was the captain of that command?

A. There was no captain, but a lieutenant.

Q. What was his name?

A. I don't remember now. I thought it was nothing but a company growl. This company was peculiarly situated. It had a position where they could see nothing of what was going on. I heard from my adjutant general that something was going on—some disturbance—and I went to see about it; but the whole thing was quieted over. The men said they understood that all were going out, and they thought they might as well go out as anybody else,

as they had not any chance to get anything to eat. They couldn't defend themselves, and they got tired, and they had nothing to eat. I didn't attach any importance to it, because when I took them out on the street they stood up to their work as well as the rest of them.

At this point, the committee adjourned to three o'clock, P.M.

SAME DAY.

MONDAY, *March 25, 1878.*

Pursuant to adjournment, the committee re-assembled at three o'clock, P.M., this day, in the St. Cloud hotel, and continued the taking of testimony.

Alexander Gilchrist, *sworn by the uplifted hand:*

By Mr. Lindsey:

Q. Where do you reside?

A. At No. 1806, Webster street.

Q. Were you with General Brinton at Pittsburgh, in July last?

A. I was.

Q. In what capacity?

A. Division orderly.

Q. Were you stationed on Saturday afternoon, when the firing occurred, at Twenty-eighth street.

A. At the telegraph office.

Q. Who placed you there?

A. I was placed there by order of General Brinton, who told me to place his division flag out there. I did so. The troops were marched towards Twenty-eighth street. He told me if any dispatches came, to bring them down to him. I put the division flag out there, and kept it out until five and a half o'clock. Then I understood from Major Baugh that the mob was trying to

pull the flag down, and he told me to take it down, and put it in the Union depot. I did so. He then told me to get some men of the Black Hussars, and keep guard over some ammunition there. We did so, until two o'clock Sunday morning.

Q. How many of the Black Hussars were with you?

A. Four or five were there. We kept guard there until very near daybreak. At that time the men said they were going to get something to eat, and I said I would remain until they came back. But no one came back. I then went to major Baugh, and said nobody was on guard but myself over the ammunition, and he said they had shifted for themselves, and I thought I had better do so. I addressed him as major, and he said don't address me as major. He wanted me to drop that. I remained until the people came out of church, and I said I was not going to stay there any longer by myself. I said I was going to try to find out where the division was, and I asked a police officer where the mayor's office was. He said down the street. I said what street. I didn't know the streets. He said, oh, you are one of those Philadelphians. I said yes. One of those damned Philadelphians. He said, down the street, and any person can tell you where it is. I went down to a stone building, and asked a citizen if that was the mayor's office, and he said it was. I went inside, and asked somebody if he could tell where the mayor was, and he said yes, in the back room. I went in and asked a man if he was the mayor. He said he was. I asked if he could tell me where the Philadelphia division was. He said, do you mean General Pearson's division. I said no; General Brinton's division. He said, I don't know anything about that damned division. They ought to be all burned or killed, or something of that kind.

Q. You were certain it was Mayor McCarthy?

A. He was pointed out to me by an officer.

Q. Did you ask him?

A. I asked if he was the mayor of the city, and he said he was.

By Mr. Larrabee:

Q. What did he say?

A. I asked him if he could tell me where the Philadelphia division was, and he said he didn't know anything about the division—that they ought to be all killed or in hell, and I thanked him and came away, and went down to Union depot again. That was just before they set fire to it. I stood there a few minutes. At that time the fire was caught to the telegraph office, adjoining the sheds. I thought probably I could get in and get the division flag, but the flames got in that far. I went in, and counted four officers and a sergeant of police. I went to go up stairs, and the sergeant asked where I was going. I said I wanted to get the division flag. He said you just get out of here, or I will break my club over your damned neck. I tried two or three times, and every time I was told I couldn't go up.

Q. Where was this ammunition stored that you guarded during Saturday night?

A. It was in the cellar, at the Union depot.

Q. You remained there until two o'clock Sunday, guarding it?

A. Yes.

Q. When you left, was there anybody guarding it?

A. No. Nobody was there at all. Every person had cleared out.

Q. Did Captain Breck come there at any time during Sunday, to move the ammunition?

A. Not that I saw.

Q. Was any attempt made to move the ammunition while you were there?

A. No; the ammunition was all burned up. On Saturday night, I was standing at the gate there, as you go into Union depot; two citizens were standing there talking, and they said it would be the roughest day's work for

the Philadelphia militia coming there; that not a damned one would go back alive.

Q. How were they dressed?

A. They looked to me to be like business men.

Q. From their dress, you would think they were?

A. Yes.

Q. Did they say anything else?

A. No; that is all I heard. I was standing right behind them at the time.

By Senator Reyburn:

Q. Whereabouts was the division head-quarters?

A. At the telegraph office.

Q. At Union depot?

A. No; a little office at the far end of the sheds, towards Twenty-eighth street. General Latta was sending telegraphs from there.

Q. Was it at the end of the sheds connected with Union depot, or down in the yard further?

A. Say there is Union depot, then there is a line of sheds running down towards Twenty-eight street, and there is a little off sort of place there, and a telegraph office on the first floor.

Q. Some distance from Twenty-eighth street?

A. I don't know how far Twenty-eighth street is.

Q. Was it attached to the sheds?

A. I would not say that for certain, but I think it was.

Wilson Norris, sworn by the uplifted hand:

By Mr. Lindsey:

Q. State your residence, and what official capacity you were acting in, in July last?

A. I live here in Philadelphia. In July last, I was going from Beaver to Pittsburgh, when the riots broke out. General Latta requested me to accompany him. At that time I was going west to visit Colonel Quay. I did accompany him to Pittsburgh, and during the night the riot broke out. The general then requested me to stay. I was there during the whole period of the riot, and subsequently. It would be a long story, to go on and tell all I saw, but I will be glad to answer any questions.

Q. Did you convey any orders, or visit General Brinton at any time to convey any orders to him from General Latta?

A. In this way. In the morning when we heard that General Brinton had escaped from the round-house, Captain Aull was there, and an order was given to him to convey to General Brinton. No other officers were around, and I volunteered to go and find General Brinton, if I could. I knew very well that General Brinton, perhaps, would not respect my order if I did convey it, and therefore it was mentioned in the order to Captain Aull, that he should consult with me about the situation. I started with Colonel Stewart in a carriage, and reached General Brinton beyond Sharpsburg, just on the hill. I explained the purport of the order sent by Captain Aull, and by the way, the order was but a sequence of other orders he had received during the night. He told me he had not taken the direction he was ordered to go, because he wanted to escape to the hills and entrench, where he could protect himself from the mob. I suggested to him to return to the town of Sharpsburg, but he said there was a worse feeling, or as bad a feeling manifested there as in Pittsburgh, and that directly he would have two hundred and fifty thousand people of the county about him. We had some conversation why he didn't take the route to the east, and he said he had

been followed by a large crowd of men. I knew nothing about that, because I saw no armed men on the way to him. General Brinton certainly understood the purport of the order given to Captain Aull, because his conversation evidenced that—there is no question about that. As to the propriety of his going the way he did, going on his own discretion, I have nothing to say about that. But he certainly knew what the purport of the order was, which was that he was to make a junction with Colonel Guthrie, and the other troops at East Liberty.

Q. Were you present when the order was given to Captain Aull by General Latta?

A. Yes.

Q. Was any direction given to him as to what route he should take to reach General Brinton?

A. I don't remember any further, than by the most immediate route. I passed Captain Aull myself on the way; as he had a buggy, I presumed he would reach there before we did.

Q. How were you traveling?

A. In a cab. I then overtook General Brinton, and told him if he would come back to Sharpsburg, that we might possibly get provisions and ammunition to him. That was his great complaint. I suggested that cars were running to and fro—and while I was there a Pullman train was just passing. He didn't even stop to consult with me or stop his command until it was stopped by the surgeon's request—stopped to take a ball out. I walked at least a mile with General Brinton, leaving the carriage behind. I know it must have been that far, from the distance I had to walk back. I wanted him to go back, but he said he would wait half a mile beyond—on the hill beyond, but I ascertained afterward he didn't stop there. I immediately went back.

Q. From what point did you start when you started to reach General Brinton?

A. From Union depot; and I came back to Union depot.

Q. What time of the day was it?

A. I won't be positive about that. I cannot say what time. I will not be positive—probably about eight or nine o'clock in the morning. It was shortly after their exit from the round-house. It was not a very great length of time afterwards.

Q. What time did you learn of their exit from the round-house?

A. I presume it was about half an hour before I started—possibly it might have been three quarters.

Q. How did the news reach you?

A. It came from Captain Breck. He came down the track with some eight or nine men—no, I think the first information we got was from Captain Aull. He said he had seen the command start down the street, and we discredited it, and went down to make some inquiries, and discovered Captain Breck, and he said it was so. Then the suggestion was made that the command be reached by somebody, and then Captain Aull and myself were sent.

By Senator Yutzy:

Q. Did you see any messages or dispatches while in the round-house from General Brinton to General Latta?

A. Yes.

Q. How many.

A. I should think three or four, carried by the messenger that was passing to and fro.

Q. Can you give the purport of those messages?

A. Well they were chiefly calling for provisions and for ammunition, and explaining the situation.

Q. Did he ask for any assistance?

A. I believe he did. I didn't see what assistance could have been furnished him just then, further than to supply him with ammunition and provisions, and every effort was made to do that.

Q. Did he ask about the regular troops—whether they were on the way?

A. I really don't recollect. He possibly may have done so—I cannot say at this time. I think there was some information given about the coming of Colonel Rodgers and other troops from the east and General Huidekoper's command from the north. I think there may have been some inquiries about that. I think possibly there were.

Q. Did you infer from any of those messages received from General Brinton that his men were in a demoralized condition or inefficient?

A. From one portion of them. There was a dispatch that conveyed that information in unmistakable terms. I remember that distinctly, for I remember the regiment he named.

By Mr. Lindsey:

Q. What regiment did he name?

A. I would rather not say that, unless you insist.

Q. Was it the Sixth regiment?

A. Yes. I think myself from the temper of the people about there, that General Brinton would have been ordered to take the street, had it not been for that dispatch. So far as I was personally concerned, I thought it was a piece of folly to remain there. I was satisfied, at any time, if a proper movement had been made that he could have gotten out. I saw the mob probably better than they did themselves—I saw a great deal of it—in the night and in the morning. It was very much worse in the morning than in the night, because it was aflame with rum, and utterly irresponsible at that time. I think it just simply exhausted itself.

By Mr. Larrabee:

Q. Was any one present when you communicated the substance of this order to General Brinton?

A. There may have been several officers around. I think there were.

Q. Do you remember who?

A. I don't, because I walked along half a mile, or a mile, possibly—half a mile at least. I suppose that some of General Brinton's staff officers were around. The conversation was just in the way I tell you. I gave him no direct order, because I doubted whether I had the authority, and he intimated he would not take such information, anyhow. He said if he got a direct order he might move back. I didn't pretend to convey any positive order to him.

Q. You say you found the command at Sharpsburg or Claremont?

A. Yes.

Q. How far is it from Sharpsburg to Claremont?

A. I really cannot tell you.

Q. How far did he march after you met him?

A. I heard some seven or eight miles. I don't know anything about that; but, when I asked where they found him, they told me some seven or eight miles from where I met him.

Q. Do you know where he encamped that night?

A. I do not. I was in Pittsburgh.

By Mr. Lindsey:

Q. Were you with General Latta during Sunday evening?

A. Yes.

Q. And remained with him until Monday?

A. Yes.

Q. Did any officer or any person reach General Latta from General Brinton asking for orders, on Sunday evening?

A. I saw one or two of his officers, but I have no recollection whether they were after orders or not.

Q. Where did you see them?

A. At the hotel.

Q. The Union Depot?

A. No; the Monongahela house. When I came back from General Brinton, the Union Depot hotel had been abandoned.

Q. What time did these officers come to the Monongahela house?

A. In the evening, about seven o'clock—possibly later.

Q. Did they return to General Brinton that night?

A. That I cannot say.

Thompson Lennig, re-called:

By Senator Reyburn:

Q. You were a private in the artillery corps, Washington Grays?

A. Yes; I served as such on that occasion.

Q. Were you in the company detailed to clear away the crowd at Twenty-eighth street?

A. Yes; after the First regiment had been divided, the rear rank remained on the left hand side of the railroad; and the front rank was marched across the railroad, extending west from Twenty-eighth street, and the Washington Grays, to which I was attached at the time, were taking charge of the

Gatlings. We were ordered to come front, march through the two ranks, and take charge of the crossing. We only had nine men and one officer. We had received short notice to leave, and that is all the men we had. We were ordered to push the crowd back with arms apart. It had no effect. They outnumbered us six or eight to one. Then the Weccacoe Legion was ordered up, a company with from twenty to twenty-five men at the outside. The Grays were divided, five men to one side, and four men on the other. We were then ordered to push the crowd back again. Being a little heavier, we succeeded in pushing them back; but they began to grab our pieces, and I saw one of the Grays who had his piece almost taken out of his hand. The crowd then began to draw their pistols. We had received no orders to fire whatever. This man simply retained his piece by using his bayonet, and my impression is he run the man through. His piece was rusty the next day. At that time the pistol firing began at Twenty-eighth street. The mob were all yelling and hooting. I then heard a rifle shot on our right; that is to say, the rear rank of the First regiment, which had been marched toward the hill. At the most, in thirty seconds not a man in our command would have had his piece, they outnumbered us so. Other shots followed, and I think that the general impression was that the command had been given. Every man felt that it was necessary it should come. The shots followed each other, and I think the whole command fired spontaneously. I heard no command to fire, and I don't think any other man in the command did.

Q. Could you have heard a command?

A. No; the only command I heard was from Colonel Benson, as the First regiment was coming up, and from the evolution which followed, it must have been "four paces left." Colonel Benson has a powerful voice. I only judged what it was from the evolution that followed. All the rioters were yelling and screaming at the same time, and it was utterly impossible to hear any command.

Q. How many pistol shots were fired before this shot?

A. It would be impossible to say.

Q. Generally speaking?

A. I think there had been firing, perhaps, two or three minutes. There were a number of cars standing there, and a number of rioters were underneath the cars, and the shots came out from underneath, and many of our men, I have heard, were wounded in the legs. I saw myself men drawing pistols in front of us, and heard them all calling us opprobrious names, and saying that no one would get home. They evidently thought we never would fire at all. As soon as the firing did take place, they scattered completely, and to all intents and purposes, it struck me that the riot was quelled. If there had been a little more determination after that, I think there would have been no further trouble.

Q. You were in the round-house?

A. Until nine o'clock, then the Washington Grays were ordered out with one of the guns or Gatlings, facing on Liberty street, on the opposite side from Captain Ryan's command, and we were there all night.

Q. What was the conduct of the soldiers during the night?

A. I saw nothing that was not thoroughly soldierly. This Sixth regiment, of which they speak, was in the paint-shop, and we could not see them where they were. I heard no complaints for want of food, yet, of course, we didn't have food. We had an ample supply of water in the round-house. I heard no complaints for want of food.

Robert M. Brinton, re-called:

By Mr. Lindsey:

Q. Were there any of your division that failed to report to you at Pittsburgh, after being ordered out, and if so, why?

A. There were quite a number—probably one half of the division. More than one half. They failed to report at Pittsburgh on account of the shortness

of the notice they received in Philadelphia. They subsequently followed, however, and a number of them reached, I believe, Walls station—some three hundred and fifty, under Colonel Rodgers. Colonel Lyle, with probably as many men, reported at Altoona, where he was stopped. He reported there and did duty with General Beaver. I believe the only reason they failed to report was because of the impossibility of receiving timely notice. Wherever men failed to report, when we returned, the brigade commanders made strict investigation into the cases, and all those men were called before a regimental court of inquiry.

Q. Some evidence has been given before the committee of a detachment who, in coming back, stopped across the river from Harrisburg, and were escorted over the river by some parties in Harrisburg. Was that part of your division?

A. I have heard that an officer and some twenty or thirty men were, when we were returning, escorted over the river, and their arms taken away from them. I have had that officer placed under arrest, and a court-martial ordered, and the trial was in progress when, unfortunately, the president of the court tendered his resignation, and his resignation was accepted and forwarded to him, and the court was dissolved. Since then another court has been appointed, and that court is now sitting in the investigation of the conduct of that officer. For the last six months we have had courts-martial going on in the division, and in the case of one officer tried, I think the testimony amounted to twenty-seven pages, closely written matter. The finding was cowardice and absence without leave, and the court said under extenuating circumstances. I reviewed the testimony carefully, and from the testimony couldn't see how cowardice could be substantiated—how that verdict was proper. In regard to being absent without leave, I thought that the testimony was not sufficient to exonerate the officer, although he was ill at the time, as he could have communicated with the commanding officer to know where he was. In every instance where we could detect any omission of duty, we examined into it carefully.

Q. Did you ascertain who the privates were with that crowd?

A. Yes; and those men will be tried.

Q. They have not been tried yet?

A. Not to my knowledge. I don't officially know anything about the inquiry until it comes from brigade head-quarters; but I know that proceedings have been instituted against every man we could find that deserted his command or who didn't go out. The pay of this officer who was on trial has been stopped. He has not been paid, and it is hanging in that way until the case is decided.

Q. The case you speak of now, as reviewing, is the one alluded to by one of the witnesses—Colonel Benson?

A. Yes.

Q. Did that detachment afterwards report for duty?

A. I think it did. I think it afterwards joined us when the Governor came and opened communication with us at Blairsville.

Q. State what time Colonel Norris reached you on Sunday?

A. We had crossed the bridge near Sharpsburg, and had gone beyond the limits of the town, and were halted on the side of a stream when T first saw Colonel Norris. He stopped his barouche below and came up and stood along side of me. Colonel Wilson and General Loud were with me at the time. I am not mistaken on the subject. He gave me no orders whatever. I have tried to tax my memory, because it was what I wanted all the time. I thought it was a singular thing, because after our column had marched from the round-house, where it was impossible to get orders, I thought possibly I might get an officer to guide our column, and when I saw Colonel Norris, I was glad to see him, expecting orders.

Q. What did he state his mission was?

A. His mission was to find out where we were, and to attempt to ration us. That seemed to be his particular mission. So far as giving me any orders or

consulting me in regard to them, I positively deny it.

Q. Did he state to you that Captain Aull had received an order from General Latta, to communicate to you?

A. I don't remember that he did that. I didn't know Captain Aull at the time. He was not on the Governor's staff. I had been on the Governor's staff myself, and I knew no such officer on the staff.

Q. Did Captain Norris claim to be acting on the staff of General Latta, or on that of the Governor in any way? Was he a staff officer?

A. At that time, no.

Q. Did he represent himself to be?

A. No, sir; he didn't.

Q. Or that he was authorized by the Adjutant General to convey orders?

A. Our conversation—I remember the first thing he said, was when we got up, "Bob, my God I am glad to see you;" that was the first expression he used. He asked where I was going to, and I said I was going to get something to eat, and that I had moved up the hill because I didn't want to remain in Sharpsburg, where some of the Fourteenth regiment had been shot, and where I thought there might be further difficulty, it being Sunday, and the men all idle. He walked along with us, and halted with us. We were halted when he joined us. We halted there for some little time. I remember going down and getting a drink out of a brook, and quite a number of men did so also. He walked with us for probably quarter of a mile. I said to him, for Heaven's sake Norris, try to get us some rations and some ammunition. Major Baugh joined us, and I sent him back immediately. I asked him whether he had any orders, and then I told him he would be obliged to go right back to Pittsburgh and get them. Major Baugh went back and got the orders he showed here to-day.

Q. Does anything else occur to you?

A. Only this; those officers who were with me, they may remember what Colonel Norris said; they may have refreshed their memories. I should like you to re-call those officers who were with me at the time.

Q. Captain Aull didn't reach you that day?

A. I don't remember to have seen Captain Aull that day. He didn't reach me at all. The orders I received, said to be handed to him for me, were given me one week afterwards, by Colonel Guthrie. If I had received those orders, I should have obeyed them implicitly.

E. DeC. Loud, re-called:

By Mr. Lindsey:

Q. Were you with General Brinton when Colonel Norris reached him on Sunday?

A. I was.

Q. State what Colonel Norris said?

A. When Colonel Norris came up he jumped out of his barouche, and said what General Brinton has testified to—my God, Bob, I am glad to see you; where are you going—and he came up and shook hands with him. He said he was glad to know that we got out, and said it was a pretty good thing to get out all right. General Brinton asked about rations. We were more interested in that than anything else. We sat down on a rock along by a little run, and talked there awhile.

Q. Did you hear him say anything about Captain Aull having received any order from General Latta?

A. I don't know him.

Q. Did you hear him call his name?

A. I don't think I did. I think if there had been anything of the kind I should have noticed it, because I was with General Brinton, and my relations with General Brinton, after we got into the round-house, were closer than any other officer, except the Adjutant General. I was with him—I was with him when the scout came in and went out, and was walking with him all the way out. I was with him from the time my brigade took the right of the line, until Doctor Maris came along, and he got into the carriage with Doctor Maris. I was not away from him five minutes during all the time.

Walter G. Wilson, re-called:

By Mr. Lindsey:

Q. Were you with General Brinton when Colonel Norris reached him?

A. I was standing right alongside of him.

Q. State what Colonel Norris said?

A. The first remark that Colonel Norris made was, my God, Bob, I am glad to see you alive, and he went on to ask some men as to what had taken place during the night, and said, where are you going? The general said, I am going to get something to eat. He said, I have been promised rations on this side of the river. He said, why don't you stay down in Sharpsburg? When he said, I am informed that there is a worse feeling in Sharpsburg than in any other part of this neighborhood, and I deem it best, if that is the case, to take possession of the hill above, only a short distance, probably a quarter of a mile. He said, I had been offered provisions for my men if I came over here, and I have done so. These men are hungry and tired, and worn but, and they really need food. They went on and had some further conversation in relation to what had taken place during the night. The general asked about some matters in relation to the movements of the troops, I believe. He had received a dispatch from General Latta during the night, announcing that a certain division had been ordered there. Colonel

Norris then wanted to know whether he should stay, and the general said no; that he would rather he should go back and get some orders, and, if possible, make an effort to get provisions and ammunition.

Q. Did he mention Captain Aull's name?

A. He did not.

Q. Did you walk along with him?

A. I was at no time further away than from your phonographer here, (three or four feet.) We got up from the brook and walked up the road—probably walked a distance of a couple of squares on the road. Then Colonel Norris went back, and said he would use his utmost efforts to communicate with him again, and furnish him with ammunition and rations. Captain Aull's name I never heard mentioned in any way, shape, or form until the night of the 31st of July, when at the Duquesne Club, Colonel Guthrie came up to General Brinton, and said I have got a dispatch for you—the order.

By Senator Yutzy:

Q. Were you within hearing distance all the time?

A. Yes; at no time further away than from this gentlemen here, (the stenographer.) I considered that my post, and was always there ready for anything the general might want.

H. S. Huidekoper, *sworn by the uplifted hand*:

By Mr. Lindsey:

Q. Where were you when the news of the Pittsburgh riots reached you?

A. I was in Chicago.

Q. How did they reach you?

A. I got the first news of the riot on Friday evening, I think. I was attending the United States court there, and couldn't leave, but had requested General Latta by letter, early in the week, to notify me by letter if the services of my division were needed, and, relying on that, I waited until Saturday morning, when I saw by the newspapers that my division had been ordered to Pittsburgh. I took the eight o'clock train, sending three telegrams, one to General Latta, that I would be in Pittsburgh on Sunday night; one to my brother for my uniform, and one to the assistant adjutant general of the division to move the division to Rochester, Pennsylvania, and await my arrival. I found afterwards that my request to General Latta had escaped his memory, among the many things he had to look after.

Q. What is your rank in the National Guard?

A. Major general of the Seventh division, commissioned eight years ago.

Q. Where is your residence?

A. In Meadville, Pennsylvania. I had command of the Fifteenth and Seventeenth regiments.

Q. Who is colonel of each of those regiments?

A. The colonel of the Fifteenth regiment is Colonel Carpenter, and of the Seventeenth regiment is Colonel Magee, of Oil City, then lieutenant colonel.

Q. Who was your assistant adjutant general?

A. John M. Clarke, of Meadville.

Q. Is he the one you directed to move the division to Rochester?

A. Yes.

Q. State what time you arrived at Rochester?

A. I arrived at Rochester probably about two o'clock on Sunday morning. Fortunately on the train I met Mr. Layng, general manager of the Fort

Wayne road. He was in a private car on his way from Chicago to Sewickley. About four or five o'clock in the afternoon Mr. Layng, at my request, telegraphed to Greeneville an instruction to the troops there to take some ammunition that I had put in Packer's warehouse which had been left over under some requisition I made two years ago in anticipation of some trouble in Mercer county, and bring it with them to Rochester.

Q. Five o'clock of what day?

A. Saturday afternoon. After that Mr. Layng told me it was impossible to get telegraphic communication with anybody except through the hands of the men who had the wires in charge, and who were rioters.

Q. The strikers?

A. Yes; it was an exceedingly delicate thing to know how far you could telegraph to the troops, how far you could expose your weakness or want of ammunition, or how far to send your orders, or make any inquiries concerning numbers or dispositions.

Q. You arrived at Rochester at what time?

A. Two o'clock Sunday morning.

Q. What were your movements from that time?

A. I kept on the Fort Wayne train, getting out of Mr. Layng's car some twelve miles from Pittsburgh, and got into a car in front of the sleeping-car, and ran into Pittsburgh. The train was stopped at the outer depot and was examined there, and I could see the strikers moving along the cars, and there was quite a large crowd outside. The next time the train stopped, I jumped off—it was about a minute afterwards—and went across the Federal street bridge, and took a back street to the Monongahela house, and went in there to leave a hand-book, and stepped down towards the round-house. There I met General Brown, and called twice for a dispatch, but he didn't answer at once, until he saw who I was. I was in citizen's clothes. I then went in a carriage down to General Latta's head-quarters, in the Union Depot hotel. The room he occupied was on the side of the depot towards the

street, and I very much questioned the safety of his position or of his staying there, as it was liable at any moment to be entered. Colonel Norris and Colonel Farr and Colonels Russell, Quay, and Stewart were all present in that room. Colonel Norris took me immediately to the end of the building, and looked out to where we could see the round-house burning. We could see distinctly the flames around it, and in a very little while a bright blaze came up, as if some cars were suddenly struck by the fire, and there was a good deal of noise and firing. He said the Philadelphia troops were in there, and asked if I couldn't get down to relieve them. I then went back and asked about ammunition, and was told it was in the cellar—about twenty boxes of it—and that Colonel Stewart had engaged wagons to remove it, and I went down on a wharf about five o'clock to engage a boat to take the ammunition to Rochester. It was hard to find any person willing to take the ammunition or anything. Most all were with the strikers, except one boat, and the captain of that agreed to take it. We went back, and there was considerable delay about getting the ammunition. I went once or twice to the ordinary telegraph office to get word from the troops, but found I could get nothing, as the wires were in the hands of the strikers.

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BINDING,
HARRISBURG, PA., *November 4, 1878.*

The copy for the latter portion of the testimony was not delivered to me by the official reporter until November 2, 1878, which will account for the delay in the printing of this volume.

J. W. JONES,
Superintendent of Public Printing and Binding.

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